SUPPLEMENT NO. 83
May 2026

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22,703, enacted December 16, 2025.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
71—72.1	71—72.1
77—78.11	77—78.11
427—438.3	427—438.3
961—994.8	961—994.8
1023—1027	1023—1027
1329—1334	1329—1334
1675—1679	1675—1679
1875—1882	1875—1882
1905—1914	1905—1910
1959—1963	1959—1963
1977—1978	1977—1978.1
2175—2176.4	2175—2176.4
2271—2286.1	2271—2286.1
2298.1—2300	2298.1—2300
2327—2328.2	2327—2328.2
2350.2.23—2350.2.31	2350.2.23—2350.2.31
2353—2354.1	2353—2354.1
2363—2368	2363—2368
2408.1—2410.1	2408.1—2410.1
3439—3445	3439—3445
3501—3590	3501—3590

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SUPPLEMENT NO. 82
September 2025

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22,618, enacted May 6, 2025.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
71, 72	71—72.1
1023—1026	1023—1026
1161—1166.1	1161—1166.4
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2350.31, 2350.32	2350.31—2350.36
2373, 2374	2373—2374.1
3439—3444	3439—3444
3501—3589	3501—3590

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SUPPLEMENT NO. 81
March 2025

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22,544, enacted November 4, 2024.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
179, 180	179, 180
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1341—1346	1341—1346
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3475—3478	3475—3478
3501—3584	3501—3589

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SUPPLEMENT NO. 80
August 2024

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22,429, enacted April 2, 2024.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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62.5, 62.6	62.5, 62.6
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645	645, 646
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SUPPLEMENT NO. 79
April 2024

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22,523(Corr.), enacted May 2, 2023.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
74.1—76.4	75—76.4.2
3443, 3444	3443, 3444

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SUPPLEMENT NO. 78
December 2023

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22,274, enacted June 20, 2023.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
71—74	71—74.2
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2421	2421—2426
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SUPPLEMENT NO. 77
July 2023

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22,258, enacted May 16, 2023.

See the Code Comparative Table—Ordinances for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:5	SH:5
61, 62	61, 62
72.3—76.2	73—76.7
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860.1—867	861—868
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3513—3514.1	3513—3514.1
3522.1—3524	3523—3524.1
3529—3536	3529—3536.1
3549—3550.1	3549—3550.1
3567—3568.1	3567—3568.1

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SUPPLEMENT NO. 76
May 2023

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22,239, enacted March 21, 2023.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
	SH:5
317, 318	317—318.1
1793—1796	1793—1796
3443	3443

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SUPPLEMENT NO. 75
January 2023

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22,206, enacted December 6, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
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449, 450	449—450.1
469, 470	469—470.1
3443	3443

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SUPPLEMENT NO. 74
October 2022

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22,159, enacted August 2, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xv, xvi	xv, xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
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2155—2176.4	2155—2176.4
3443	3443
3517, 3518	3517, 3518
3535, 3536	3535, 3536
3547, 3548	3547, 3548
3567—3568.1	3567—3568.1

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SUPPLEMENT NO. 73
June 2022

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22,097, enacted February 15, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
1675—1678	1675—1678
3443	3443

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SUPPLEMENT NO. 72
April 2022

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 22,091, enacted January 18, 2022.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xiii, xiv	xiii, xiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
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1785, 1786	1785, 1786
1820.1—1820.3	1820.1—1820.3
2151	2151
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3443	3443
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3566.1—3568	3567—3568.1
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SUPPLEMENT NO. 71
November 2021

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21,996, enacted May 18, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
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2003	2003—2005
3443	3443
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3538.1—3540	3539—3540.1
3564.1—3566	3565—3566.1

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SUPPLEMENT NO. 70
September 2021

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21,971, enacted April 6, 2021.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3, SH:4	SH:3, SH:4
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71—72.2	71—72.2
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1329—1332	1329—1332.3
1675—1678	1675—1678
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SUPPLEMENT NO. 69
September 2020

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21,871, enacted June 9, 2020.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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695—698	695—698
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SUPPLEMENT NO. 68
April 2019

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21,677, enacted December 11, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
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64.1—64.3	64.1—64.4
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3428.1—3430	3429—3430.1
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SUPPLEMENT NO. 67
September 2018

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21,577, enacted April 3, 2018.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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62.5—62.7	62.5—62.8
69—72.1	69—72.2
237—238.1	237—238.1
305—308.1	305—308.1
425—428.1	425—428.1
439—442	439—442
477—480	477—480.1
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3509, 3510	3509—3510.1
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SUPPLEMENT NO. 66
March 2017

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21,336, enacted December 6, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
57—62.2	57—62.2.1
69—72.1	69—72.1
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427, 428	427—428.1
467—474	467—474
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853, 854	853—854.1
955	955—956.1
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SUPPLEMENT NO. 65
July 2016

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21,238, adopted May 17, 2016.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
xvii	xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:3	SH:3
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SUPPLEMENT NO. 64
May 2015

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 21,028, adopted April 21, 2015.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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1963	1959—1963
1993, 1994	1993—1994.1
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2350.25, 2350.26	2350.25, 2350.26
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3506.1—3522	3507—3522.1
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3550.3—3560	3551—3560.1
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SUPPLEMENT NO. 63
September 2014

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,902, adopted July 1, 2014.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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1159	1159, 1160
1163—1166.1	1163—1166.1
1175—1178	1175—1178
1661—1664	1661—1664.1
1677	1677—1679
1871	1871—1872.2
1881—1884.1	1881—1884.1
2149—2156	2149—2151
	2153—2156.3
2277	2277—2278.6
2293—2298.1	2293—2298.1
2306.7—2310.9	2307—2310.10
2323—2344.1	2323—2344.5
2350.29, 2350.30	2350.29—2350.31
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3577, 3578	3577—3578.1

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SUPPLEMENT NO. 62
December 2013

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,814, adopted November 5, 2013.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
Title page	Title page
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
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SUPPLEMENT NO. 61
April 2013

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,670, adopted December 18, 2012.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
xiii, xiv	xiii, xiv
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
SH:1, SH:2	SH:1, SH:2
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SUPPLEMENT NO. 59
January 2012

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,500, adopted November 1, 2011.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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426.2.1—426.7	426.3—426.8
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3541—3542.1	3541—3542.1
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SUPPLEMENT NO. 58, REVISION
April 2011

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement No. 58, Revision, is printed to revise pages appearing in Supplement No. 58, and should be inserted as directed below.

Remove Old Pages	*Insert New Pages*
963—968	963—968.1
973—980	973—980
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SUPPLEMENT NO. 58
February 2011

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,347, adopted October 19, 2010.

See the Code Comparative Table for further information.

Remove Old Pages	*Insert New Pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents) SH:1 (following Checklist of up-to-date pages)
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2346.1, 2346.2	2346.1—2346.2.1
2349—2350.8	2349—2350.8.1
2350.13—2350.23	2350.13—2350.30
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SUPPLEMENT NO. 57
October 2009

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,148, adopted August 18, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
5, 6	5, 6
71—72.1	71—72.1
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1819, 1820	1819—1820.1
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SUPPLEMENT NO. 56
July 2009

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,122, adopted June 16, 2009.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
xiii, xiv	xiii—xiv.i
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
71—72.1	71—72.1
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SUPPLEMENT NO. 55
February 2009

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,026, adopted September 16, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
57	57
80.5, 80.6	80.5—80.7
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SUPPLEMENT NO. 54
December 2008

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 20,044, adopted November 3, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—xvii	ix—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 53
February 2008

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19,902, adopted January 8, 2008.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix, x	ix, x
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Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 52
September 2007

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19,784, adopted July 17, 2007.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xiii—xvii	xiii—xvii
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
305, 306	305—306.1
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3504.1	3504.1
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SUPPLEMENT NO. 51
March 2007

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19,658, adopted December 19, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
xi, xii	xi, xii
xv, xvi	xv—xvii
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3501—3502.1	3501—3502.1
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SUPPLEMENT NO. 50
July 2006

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19,509, adopted March 21, 2006.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
x.i—xvi	xi—xvi
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 49
April 2006

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19,460, adopted December 20, 2005.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
Checklist of up-to-date pages	Checklist of up-to-date pages (following Table of Contents)
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SUPPLEMENT NO. 48
November 2005

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19,419, adopted September 20, 2005.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
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SUPPLEMENT NO. 47
July 2005

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

Ordinance No. 19,299, adopted April 5, 2005.

See the Code Comparative Table for further information.

Remove old pages	*Insert new pages*
ix—x.i	ix—x.i
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SUPPLEMENT NO. 46
June 2005

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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SUPPLEMENT NO. 45
June 2004

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City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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SUPPLEMENT NO. 44
October 2003

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City of

LITTLE ROCK, ARKANSAS

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SUPPLEMENT NO. 43
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LITTLE ROCK, ARKANSAS

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SUPPLEMENT NO. 42
May 2003

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City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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SUPPLEMENT NO. 41
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City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

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SUPPLEMENT NO. 39
June 2002

CODE OF ORDINANCES

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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See the Code Comparative Table for further information.

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SUPPLEMENT NO. 38
February 2002

CODE

City of

LITTLE ROCK, ARKANSAS

Looseleaf Supplement

This Supplement contains all ordinances deemed advisable to be included at this time through:

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See the Code Comparative Table for further information.

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THE LITTLE ROCK CITY CODE,

REVISED 1988

GENERAL ORDINANCES OF THE CITY

Published in 1988 by Order of the City Commission

Adopted, September 28, 1988
Effective, September 28, 1988

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OFFICIALS

of the

CITY OF LITTLE ROCK, ARKANSAS

AT THE TIME OF THIS CODIFICATION

Lottie Shackelford
Mayor

F. G. "Buddy" Villines, Vice Mayor
Sharon Priest
J. W. "Buddy" Benafield
Tom Milton
Charles Bussey
Tom Prince
Board of Directors

Tom Dalton
City Manager

Mark Stodola
City Attorney

Jane Czech
City Clerk

PREFACE

This Code constitutes a complete recodification of the ordinances of the City of Little Rock, Arkansas of a general and permanent nature.

Source materials used in the preparation of the Code were the 1961 Code, as supplemented through March 5, 1986, and ordinances adopted by the board of directors. The source of each section is included in the history note appearing in parentheses at the end thereof. The absence of such a note indicates that the section is new and was adopted for the first time with the adoption of the Code. By use of the comparative tables appearing in the back of this volume, the reader can locate any section of the 1961 Code, as supplemented, and any ordinance included herein.

The chapters of the Code have been conveniently arranged in alphabetical order and the various sections within each chapter have been catchlined to facilitate usage. Footnotes which tie related sections of the Code together and which refer to relevant state laws have been included. A table listing the state law citations and setting forth their location within the Code is included at the back of this volume.

Numbering System

The numbering system used in this Code is the same system used in many state and municipal codes. Each section number consists of two component parts separated by a dash, the figure before the dash referring to the chapter number and the figure after the dash referring to the position of the section within the chapter. Thus, the first section of Chapter 32 is numbered 32-1 and the tenth section of Chapter 1 is 1-10. Under this system, each section is identified with its chapter and at the same time new sections or even whole chapters can be inserted in their proper place simply by using the decimal system for amendments. By way of illustration: If new material consisting of three sections that would logically come between sections 1-9 and 1-10 is desired to be added, such new sections would be numbered 1-9.1, 1-9.2 and 1-9.3 respectively. New chapters may be included in the same manner. If the new material is to be included between Chapters 8 and 9, it will be designated as Chapter 8.5. Care should be taken that the alphabetical arrangement of chapters is maintained when including new chapters. New articles and new divisions may be included in the same way or, in the case of articles, may be placed at the end of the chapter embracing the subject, and, in the case of divisions, may be placed at the end of the article embracing the subject, the next successive number being assigned to the article or division.

Index

The general index of the Code has been prepared with the greatest of care. Each particular item has been placed under several headings, some of the headings being couched in lay phraseology, others in legal terminology, and still others in language generally used by municipal officials and employees. There are numerous cross references within the index which stand as guide-posts to direct the user to the particular item in which he is interested.

Looseleaf Supplements

A special feature of this Code to which the attention of the user is especially directed is the looseleaf system of binding and supplemental servicing for the Code. With this system, the Code will be kept up-to-date periodically. Upon the final passage of amendatory ordinances, they will be properly edited and the appropriate page or pages affected will be reprinted. These new pages will be distributed to holders of copies of the Code, with instructions for the manner of inserting the new pages and deleting the obsolete pages.

Successfully keeping this Code up-to-date at all times will depend largely upon the holder of the volume. As revised sheets are received, it will then become the responsibility of the holder to have the amendments inserted according to the attached instructions. It is strongly recommended by the publisher that all such amendments be inserted immediately upon receipt to avoid misplacing them and, in addition, that all deleted pages be saved and filed for historical reference purposes.

Acknowledgments

The publication of this Code was under the direct supervision of Roger D. Merriam, Supervising Editor of the Municipal Code Corporation, Tallahassee, Florida. Credit is gratefully given to the other members of the publisher's staff for their sincere interest and able assistance throughout the project.

The publisher is most grateful to Mr. Mark Stodola, City Attorney, and to Attorney Mr. Robert H. Hall, for their cooperation and assistance during the progress of the work on this Code. It is hoped that their efforts and those of the publisher have resulted in a Code of Ordinances which will make the active law of the city readily accessible to all citizens and which will be a valuable tool in the day-to-day administration of the city's affairs.

MUNICIPAL CODE CORPORATION

Tallahassee, Florida

ORDINANCE NO. 15,559

An Ordinance Adopting and Enacting a New Code for the City of Little Rock, Arkansas; Providing for the Repeal of Certain Ordinances Not Included Therein; Providing a Penalty for the Violation Thereof; Providing for the Manner of Amending Such Code; Providing When Such Code and This Ordinance Shall Become Effective; and Declaring an Emergency.

Now, Therefore, Be It Ordained by the Board of Directors of the City of Little Rock, Arkansas:

Section 1. The Code entitled "The Little Rock City Code, Revised 1988," published by Municipal Code Corporation consisting of Chapters 1 through 36, each inclusive, is adopted.

Section 2. All ordinances of a general and permanent nature enacted on or before July 18, 1988, and not included in the Code or recognized and continued in force by reference therein, are repealed.

Section 3. The repeal provided for in Section 2 hereof shall not be construed to revive any ordinance or part thereof that has been repealed by a subsequent ordinance that is repealed by this ordinance.

Section 4. Unless another penalty is expressly provided, every person convicted of a violation of any provision of the Code or any ordinance, rule or regulation adopted or issued in pursuance thereof, shall be punished by a fine not exceeding five hundred dollars ($500.00) or double such sum for such repetition thereof. If the violation is, in its nature, continuous in respect to time, the penalty for allowing the violation to continue is a fine not to exceed two hundred fifty dollars ($250.00) for each day that the same is unlawfully continued. If a violation is a misdemeanor under state law, the penalty for the violation shall be as prescribed for the state offense. The penalty provided by this section, unless another penalty is expressly provided shall apply to the amendment of any Code section whether or not such penalty is reenacted in the amendatory ordinance. In addition to the penalty prescribed above, the City may pursue other remedies such as abatement of nuisances, injunctive relief, and revocation of licenses or permits.

Section 5. Additions or amendments to the Code when passed in the form as to indicate the intention of the City to make the same a part of the Code shall be deemed to be incorporated in the Code, so that reference to the Code includes the additions and amendments.

Section 6. Ordinances adopted after July 18, 1988 that amend or refer to ordinances that have been codified in the Code, shall be construed as if they amend or refer to like provisions of the Code.

Section 7. Emergency Clause. The present Code of Ordinances for the City of Little Rock has had more than 90 supplements since it was first published in 1962 [1961]. Copies of certain portions of these supplements no longer exist. Further, pagination of the old Code is confusing. In addition, there have been occasions when ordinances of the Board of Directors have amended original ordinances, but on other occasions have only amended the codification of the ordinances. The ability to pass a single codification of ordinances and, in doing

so, assure that all prior ordinances and codifications are properly stated is a matter of great importance that affects the health, safety and welfare of the entire community since it helps assure that actions taken by the Board, or by the various City departments, are done pursuant to a set of ordinances that has been formally adopted in the proper fashion by the Board of Directors. An emergency is therefore declared to exist and this codification of ordinances and this ordinance shall become effective on the date of passage.

Passed: September 28, 1988

Jane Czech
City Clerk

Lottie Shackelford
Mayor

Approved as to Form:
/s/ _____
Mark Stodola, City Attorney

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(This checklist will be updated with the printing of each Supplement)

From our experience in publishing Looseleaf Supplements on a page-for-page substitution basis, it has become evident that through usage and supplementation many pages can be inserted and removed in error.

The following listing is included in this Code as a ready guide for the user to determine whether the Code volume properly reflects the latest printing of each page.

In the first column all page numbers are listed in sequence. The second column reflects the latest printing of the pages as they should appear in an up-to-date volume. The letters "OC" indicate the pages have not been reprinted in the Supplement Service and appear as published for the original Code. When a page has been reprinted or printed in the Supplement Service, this column reflects the identification number or Supplement Number printed on the bottom of the page.

In addition to assisting existing holders of the Code, this list may be used in compiling an up-to-date copy from the original Code and subsequent Supplements.

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2350.25, 2350.26	64	2419, 2420	66
2350.27, 2350.28	58	2421, 2422	78
2350.29, 2350.30	65	2423, 2424	78
2350.31, 2350.32	82	2425, 2426	78
2350.33, 2350.34	82	3389, 3390	OC
2350.35, 2350.36	82	3391, 3392	4
2351, 2352	61	3393, 3394	4
2353, 2354	83	3395, 3396	OC
2354.1	83	3397, 3398	9
2355, 2356	69	3399, 3400	22
2357, 2358	69	3401, 3402	5
2359, 2360	69	3403, 3404	8
2361, 2362	69	3405, 3406	9
2363, 2364	83	3407, 3408	19
2365, 2366	83	3408.1	19
2367, 2368	83	3409, 3410	14
2369, 2370	69	3411, 3412	31
2371, 2372	69	3413, 3414	32
2373, 2374	82	3415, 3416	32
2374.1	82	3417, 3418	48
2375, 2376	69	3418.1	48
2377, 2378	69	3419, 3420	35
2379, 2380	69	3421, 3422	39

Page No.	Supp. No.	Page No.	Supp. No.
3423, 3424	70	3543, 3544	83
3424.1	70	3545, 3546	83
3425, 3426	47	3547, 3548	83
3427, 3428	55	3549, 3550	83
3429, 3430	68	3551, 3552	83
3430.1	68	3553, 3554	83
3431, 3432	61	3555, 3556	83
3433, 3434	61	3557, 3558	83
3435, 3436	70	3559, 3560	83
3436.1	70	3561, 3562	83
3437, 3438	67	3563, 3564	83
3439, 3440	83	3565, 3566	83
3441, 3442	83	3567, 3568	83
3443, 3444	83	3569, 3570	83
3445	83	3571, 3572	83
3475, 3476	81	3573, 3574	83
3477, 3478	81	3575, 3576	83
3501, 3502	83	3577, 3578	83
3503, 3504	83	3579, 3580	83
3505, 3506	83	3581, 3582	83
3507, 3508	83	3583, 3584	83
3509, 3510	83	3585, 3586	83
3511, 3512	83	3587, 3588	83
3513, 3514	83	3589, 3590	83
3515, 3516	83		
3517, 3518	83		
3519, 3520	83		
3521, 3522	83		
3523, 3524	83		
3525, 3526	83		
3527, 3528	83		
3529, 3530	83		
3531, 3532	83		
3533, 3534	83		
3535, 3536	83		
3537, 3538	83		
3539, 3540	83		
3541, 3542	83		

SUPPLEMENT HISTORY TABLE

The table below allows users of this Code to quickly and accurately determine what ordinances have been considered for codification in each supplement. Ordinances that are of a general and permanent nature are codified in the Code and are considered "Includes." Ordinances that are not of a general and permanent nature are not codified in the Code and are considered "Omits."

In addition, by adding to this table with each supplement, users of this Code of Ordinances will be able to gain a more complete picture of the Code's historical evolution.

Ord. No.	Date Adopted	Include/Omit	Supp. No.
20,098	4-21-09	Include	58
20,102	5- 5-09	Include	58
20,155	9-15-09	Omit	58
20,180	10-20-09	Include	58
20,181	10-20-09	Include	58
20,195	12- 1-09	Include	58
20,198	12-15-09	Include	58
20,217	2-16-10	Omit	58
20,221	2-16-10	Include	58
20,223	3- 2-10	Include	58
20,231	3- 2-10	Include	58
20,232	3-16-10	Include	58
20,241	4- 6-10	Include	58
20,245	4- 6-10	Include	58
20,253	4-20-10	Include	58
20,254	4-20-10	Include	58
20,255	4-20-10	Include	58
20,263	5- 4-10	Include	58
20,278	6- 1-10	Omit	58
20,279	6- 1-10	Include	58
20,281	6- 1-10	Include	58
20,288	7- 6-10	Include	58
20,310	9- 7-10	Include	58
20,311	9- 7-10	Include	58
20,313	9- 7-10	Include	58
20,324	9-21-10	Include	58
20,326	9-21-10	Include	58
20,332	9-21-10	Include	58
20,345	10-19-10	Include	58
20,347	10-19-10	Include	58
20,395	1-18-11	Include	59
20,396	2- 1-11	Include	59
20,407	2-15-11	Include	59

Ord. No.	Date Adopted	Include/Omit	Supp. No.
20,412	3- 1-11	Include	59
20,414	3- 1-11	Include	59
20,423	4-19-11	Include	59
20,433	5-17-11	Include	59
20,458	8-16-11	Include	59
20,482	10- 3-11	Include	59
20,490	10-18-11	Include	59
20,500	11- 1-11	Include	59
20,508	12- 6-11	Include	60
20,509	12- 6-11	Include	60
20,514	12-13-11	Include	60
20,523	12-20-11	Include	60
20,533	2- 7-12	Include	60
20,534	2- 7-12	Include	60
20,540	2- 7-12	Include	60
20,541	2- 7-12	Include	60
20,562	3-27-12	Include	60
20,568	4- 3-12	Include	60
19,917	2- 5-08	Include	61
20,569	4-17-12	Include	61
20,570	4-17-12	Include	61
20,580	5- 1-12	Include	61
20,581	5- 1-12	Include	61
20,588	6- 5-12	Include	61
20,616	8- 7-12	Include	61
20,617	8- 7-12	Include	61
20,620	8-21-12	Include	61
20,662	12- 4-12	Include	61
20,670	12-18-12	Include	61
20,708	4- 2-13	Include	62
20,726	5-21-13	Include	62
20,730	5-21-13	Include	62
20,738	6-18-13	Include	62
20,787	9-17-13	Include	62
20,814	11- 5-13	Include	62
20,839	2-11-14	Include	63
20,854	3- 4-14	Include	63
20,863	4- 1-14	Include	63
20,867	5- 6-14	Include	63
20,873	5- 6-14	Include	63
20,880	6- 3-14	Include	63
20,881	6- 3-14	Include	63
20,882	6- 3-14	Include	63
20,894	6-17-14	Include	63
20,899	7- 1-14	Include	63
20,902	7- 1-14	Include	63
20,920	8-19-14	Include	64

Ord. No.	Date Adopted	Include/Omit	Supp. No.
20,940	10- 6-14	Include	64
20,942	10-21-14	Include	64
20,956	11-18-14	Include	64
20,957	11-18-14	Include	64
20,958	11-25-14	Include	64
20,971	12-16-14	Include	64
20,972	12-16-14	Include	64
20,978	12-16-14	Include	64
20,995	2-24-15	Include	64
21,006	3- 3-15	Include	64
21,010	3- 3-15	Include	64
21,013	3-17-15	Include	64
21,017	4- 7-15	Include	64
21,020	4- 7-15	Include	64
21,028	4-21-15	Include	64
21,053	6- 2-15	Include	65
21,079	8- 4-15	Include	65
21,099	9-15-15	Include	65
21,168	2- 2-16	Include	65
21,211	4- 5-16	Include	65
21,238	5-17-16	Include	65
20,990	1-20-15	Include	66
21,031	4-21-15	Include	66
21,040	5-19-15	Include	66
21,069	7-14-15	Include	66
21,071	7-14-15	Include	66
21,243	5-17-16	Include	66
21,245	5-17-16	Include	66
21,246	6- 7-16	Include	66
21,251	6- 7-16	Include	66
21,267	7-19-16	Include	66
21,293	9- 6-16	Include	66
21,296	9- 6-16	Include	66
21,297	9- 6-16	Include	66
21,336	12- 6-16	Include	66
20,650	10-16-12	Include	67
20,653	11- 5-12	Include	67
21,378	3-21-17	Include	67
21,380	4-18-17	Omit	67
21,396	5- 2-17	Include	67
21,397	5- 2-17	Include	67
21,412	6- 6-17	Include	67
21,422	6- 6-17	Include	67
21,424	6- 6-17	Include	67
21,442	7- 5-17	Include	67
21,469	8-15-17	Include	67
21,495	10-17-17	Include	67

Ord. No.	Date Adopted	Include/Omit	Supp. No.
21,510	11-21-17	Include	67
21,551	2-20-18	Include	67
21,562	3-20-18	Include	67
21,577	4- 3-18	Include	67
19,761	6-12-07	Include	68
21,649	12- 3-18	Include	68
21,676	12-11-18	Include	68
21,677	12-11-18	Include	68
21,732	5-21-19	Include	69
21,745	6- 4-19	Include	69
21,750	6-18-19	Include	69
21,760	7-23-19	Include	69
21,780	9-17-19	Include	69
21,781	9-17-19	Include	69
21,785	10- 2-19	Include	69
21,793	10-15-19	Include	69
21,823	12-17-19	Include	69
21,847	3-25-20	Include	69
21,860	4-21-20	Omit	69
21,867	5-19-20	Include	69
21,871	6- 9-20	Include	69
18,488	5-15-01	Include	70
20,638	10- 1-12	Include	70
20,754	8- 6-13	Include	70
21,888	7- 7-20	Include	70
21,892	7-21-20	Include	70
21,923	12- 1-20	Include	70
21,940	12- 1-20	Include	70
21,953	1-19-21	Include	70
21,955	1-19-21	Include	70
21,968	3-16-21	Include	70
21,971	4- 6-21	Include	70
21,987	4-20-21	Include	71
21,996	5-18-21	Include	71
22,066	11-16-21	Include	72
22,069	11-16-21	Include	72
22,091	1-18-22	Include	72
22,097	2-15-22	Include	73
22,159	8- 2-22	Include	74
22,198	12- 6-22	Include	75
22,199	12- 6-22	Include	75
22,200	12- 6-22	Include	75
22,201	12- 6-22	Include	75
22,202	12- 6-22	Include	75
22,203	12- 6-22	Include	75
22,204	12- 6-22	Include	75
22,206	12- 6-22	Include	75

Ord. No.	Date Adopted	Include/Omit	Supp. No.
22,227	2-21-23	Include	76
22,239	3-21-23	Include	76
22,252	4-18-23	Include	77
22,253	5- 2-23	Include	77
22,258	5-16-23	Include	77
22,206	12- 6-22	Include	78
22,272	6-20-23	Include	78
22,274	6-20-23	Include	78
22,253(Corr.)	5- 2-23	Include	79
22,276	7-11-23	Include	80
22,277	7-11-23	Include	80
22,278	7-11-23	Include	80
22,279	7-11-23	Include	80
22,281	7-11-23	Include	80
22,304	8-15-23	Include	80
22,338	11-21-23	Include	80
22,384	2- 6-24	Include	80
22,398	2-20-24	Include	80
22,427	3-19-24	Include	80
22,429	4- 2-24	Include	80
22,467	6- 4-24	Include	81
22,492	8- 6-24	Include	81
22,493	8- 6-24	Include	81
22,506	9- 3-24	Include	81
22,544	11- 4-24	Include	81
21,787	10- 2-19	Include	82
22,265	6-13-23	Include	82
22,597	4- 1-25	Include	82
22,598	4- 1-25	Include	82
22,599	4- 1-25	Include	82
22,618	5- 6-25	Include	82
22,637	7-15-25	Include	83
22,638	7-15-25	Include	83
22,640	7-15-25	Include	83
22,647	8-19-25	Include	83
22,649	8-19-25	Include	83
22,651	9- 2-25	Include	83
22,658	9-16-25	Include	83
22,678	10-21-25	Include	83
22,695	12-16-25	Include	83
22,697	12-16-25	Include	83
22,699	12-16-25	Include	83
22,700	12-16-25	Include	83
22,703	12-16-25	Include	83

CODE OF ORDINANCES

Chapter 1

GENERAL PROVISIONS

Sec. 1-1. How Code designated and cited.

The ordinances embraced in the following chapters and sections shall constitute and be designated "The Little Rock City Code, Revised 1988" and may be so cited. The Code may also be cited as the "Little Rock City Code" or as the "Little Rock Code."
(Code 1961, § 1-1)

State law reference—Authority to codify ordinances, A.C.A. § 14-55-701 et seq.

Sec. 1-2. Rules of construction.

In the construction of this Code, and of all ordinances, the following rules shall be observed, unless such construction would be inconsistent with the manifest intent of the city board of directors.

Generally. All words and phrases shall be construed and understood according to the common and approved usage of language; but technical words and phrases and such others as may have acquired a peculiar and appropriate meaning in the law shall be construed and understood according to such peculiar and appropriate meaning.

A.C.A. The abbreviation "A.C.A." means the Arkansas Code of 1987 Annotated.

State law reference—Designation, etc. of state code, A.C.A. § 1-2-113.

Board of directors. The term "board of directors," or "directors" shall refer to the board of directors of the City of Little Rock.

City. The term "city," "the city" or "this city" shall mean the City of Little Rock.

Code. The term "Code" or "this Code" shall refer to "The Little Rock City Code, Revised 1988" as designated in section 1-1.

Computation of time. Whenever a notice is required to be given or an act to be done, a certain length of time before any proceeding shall be had, the day on which such notice is given, or such act is done, shall be counted in computing the time, but the day on which such proceeding is to be had shall not be counted.

County. The term "county" shall mean Pulaski County, Arkansas.

Finance department, department of finance. The terms "finance department" and "department of finance" are interchangeable.

Finance director, director of finance. The terms "finance director" and "director of finance" are interchangeable.

Gender. A word importing the masculine gender only shall extend and be applied to females and to firms, partnerships, and corporations as well as to males.

Include, including. The term "include," "including" or any other similar term of inclusion shall mean without limitation or restriction.

May. The term "may" is to be construed as being permissive and not mandatory.

May not. The term "may not" has a prohibitory effect and states a prohibition.

Must. The term "must" is to be construed as being mandatory and not permissive.

Number. Words used in the singular include the plural, and the plural includes the singular number.

Oath. The term "oath" shall be construed to include an affirmation in all cases in which, by law, an affirmation may be substituted for an oath, and in such cases the words "swear" and "sworn" shall be equivalent to the words "affirm" and "affirmed."

Or, and. "Or" may be read "and," and "and" may be read "or" if the sense requires it.

Other city officials or officers. Whenever reference is made to officials, boards, commissions, departments, etc., by title only, *i.e.*, "city clerk," "chief of police," etc., they shall be deemed to refer to the officials, boards, commissions and departments of the city.

Person. The term "person" shall extend and be applied to firms, partnerships, associations, organizations and bodies politic and corporate, or any combination thereof, as well as to individuals.

Public works department, department of public works. The terms "public works department" and "department of public works" are interchangeable.

Public works director, director of public works, etc. The terms "director of public works," "public works director" and "director of the department of public works" are interchangeable.

Sanitary sewer committee, sewer committee. The terms "sanitary sewer committee" and "sewer committee" are interchangeable.

Shall. The term "shall" is to be construed as being mandatory and not permissive.

Sidewalk. The term "sidewalk" means a strip of land in front or on the sides of a house or lot of land lying between the property line and the street.

Signature or *subscription.* The term "signature" or "subscription" includes a mark when the person cannot write.

State. The term "state," "the state" or "this state" shall be construed to mean the State of Arkansas.

Street. The term "street" shall be construed to embrace streets, avenues, boulevards, roads, alleys, lanes, viaducts and all other public highways in the city.

Tense. Words used in the past or present tense include the future as well as the past or present.

Written or *in writing.* The term "written" or "in writing" shall be construed to include any representation of words, letters or figures, whether by printing or otherwise.

Year. The term "year" shall mean a calendar year.

If at any point in this Code a specific city department, city official, or city employee is specified or designated as having authority, responsibilities or duties as set forth therein, the department, employee or official as specified in the Code shall be construed to mean or include the phrase "or such other department, official or employee as subsequently is designated by the city manager to carry out or have such authority, responsibility or duty."
(Code 1961, § 1-2; Ord. No. 15,988, § 3, 12-18-90)

Sec. 1-3. Catchlines of sections; history notes, etc.

(a) The catchlines of sections of this Code printed in boldface type, italics, or otherwise, are intended merely as catchwords to indicate the contents of the section, and shall not be deemed or taken to be titles of such sections, nor as any part of the section, nor unless expressly so provided, shall they be so deemed when any of such sections, including the catchlines, are amended or reenacted.

(b) The history or source notes appearing in parentheses after sections in this Code are not intended to have any legal effect but are merely intended to indicate the source of matter contained in the section. Cross references and state law references which appear after sections or subsections of this Code or which otherwise appear in footnote form are provided for the convenience of the user of this Code and have no legal effect.

(c) All references to chapters, articles or sections are to the chapters, articles and sections of this Code unless otherwise specified.
(Code 1961, § 1-3)

Sec. 1-4. Effect of repeal of ordinances.

(a) The repeal of an ordinance shall not revive any ordinances in force before or at the time the ordinance repealed took effect.

(b) The repeal of an ordinance shall not affect any punishment or penalty incurred before the repeal took effect, nor any suit, prosecution or proceeding pending at the time of the repeal, for an offense committed under the ordinance repealed.
(Code 1961, § 1-4)

Sec. 1-5. Amendments to Code; effect of new ordinances; amendatory language.

(a) All ordinances passed subsequent to this Code which amend, repeal or in any way affect this Code, may be numbered in accordance with the numbering system of this Code and printed for inclusion herein. In the case of repealed chapters, sections or subsections or any part thereof,

by subsequent ordinances, such repealed portions may be excluded from the Code by omission from reprinted pages affected thereby. The subsequent ordinances as numbered and printed or omitted, in the case of repeal, shall be prima facie evidence of such subsequent ordinances until such time that this Code and subsequent ordinances numbered or omitted are readopted as a new Code of Ordinances by the board of directors.

(b) Amendments to any of the provisions of this Code shall be made by amending such provisions by specific reference to the section number of this Code in the following language: "Section _____ of the Little Rock City Code, 1988, is amended to read as follows: . . . ." The new provisions shall then be set out in full.

(c) In the event a new section not heretofore existing in the Code is to be added, the following language shall be used: "The Little Rock City Code, 1988, is amended by adding a section (article, etc.) to read as follows: . . . ." The provisions shall then be set out in full.

(d) All sections, articles, chapters or provisions desired to be repealed must be specifically repealed by section, article or chapter number, as the case may be.
(Code 1961, § 1-6)

Sec. 1-6. Additions and amendments deemed incorporated in Code.

Any and all additions and amendments to this Code, when passed in such form as to indicate the intention of the board of directors to make the same a part hereof, shall be deemed to be incorporated herein, so that reference to the Code shall be understood and intended to include such additions and amendments. In addition, any addition to this Code that was not passed in such form, but that has been published in this Code shall be considered a part of this Code.

Sec. 1-7. Altering Code.

It shall be unlawful for any person to change or amend by deletions, any part or portion of this Code, or to insert or delete pages, or portions thereof, or to alter or tamper with such Code in any manner whatsoever except by ordinance of the board of directors, which will cause the law of the city to be misrepresented thereby.
(Code 1961, § 1-7)

State law reference—Destruction of public records, A.C.A. § 13-4-110.

Sec. 1-8. Severability of parts of Code.

It is hereby declared to be the intention of the board of directors that the sections, paragraphs, sentences, clauses and phrases of this Code are severable.

(a) In the event that any phrase, clause, sentence, paragraph, or section of this Code shall be declared unconstitutional by the valid judgment or decree of a court of competent jurisdiction, such unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections of this Code.

(b) *Reserved.*
(Code 1961, § 1-5; Ord. No. 16,606, § 1, 3-1-94)

Sec. 1-9. Penalty for violations.

(a) In this section "violation of this Code" means:

(1) Doing an act that is prohibited or made or declared unlawful, an offense or a misdemeanor by ordinance or by rule or regulation authorized by ordinance;

(2) Failure to perform an act that is required to be performed by ordinance or by rule or regulation authorized by ordinance; or

(3) Failure to perform an act if the failure is declared a misdemeanor or an offense or unlawful by ordinance or by rule or regulation authorized by ordinance.

(b) In this section "violation of this Code" does not include the failure of a city officer or city employee to perform an official duty unless it is provided that failure to perform the duty is to be punished as provided in this section.

(c) Except as otherwise provided, a person convicted of a violation of this Code shall be punished by a fine not exceeding one thousand dollars ($1,000.00), or double such sum for each repetition thereof. If the violation is, in its nature, continuous in respect to time, the penalty for allowing the continuance thereof is a fine not to exceed five hundred dollars ($500.00) for each day that the same is unlawfully continued.

(d) If a violation of this Code is also a misdemeanor under state law, the penalty for the violation shall be as prescribed by state law for the state offense.

(e) The imposition of a penalty does not prevent revocation or suspension of a license, permit or franchise.

(f) Violations of this Code that are continuous with respect to time are a public nuisance and may be abated by injunctive or other equitable

relief. The imposition of a "penalty" however does not prevent the simultaneous granting of equitable relief in appropriate cases.
(Code 1961, § 1-8; Ord. No. 20,130, § 1, 7-7-09)

Cross reference—Municipal court, Ch. 19.

State law reference—Ordinance violations, A.C.A. §§ 14-55-501 et seq., 14-55-601 et seq.

Sec. 1-10. Discharge of fines by working.

Fines imposed for violation of ordinances of the city may be discharged by the offender working out the same upon the streets or alleys of the city, at the rate of ten dollars ($10.00) per day, under the direction of the police department or such person or persons as the board of directors may direct, and under sufficient guards. Any prisoner confined in the county jail or city jail by sentence of the municipal court may, at the request of the chief of police, be taken out and required to work out the amount of all fines, penalties, forfeitures and costs imposed on him in the municipal court, at the rate of ten dollars ($10.00) per day, on the streets or other improvements under the control of the board of directors. When any such person is allowed or taken out to so work out such fines, penalties, forfeitures and costs, an accurate account shall be kept by the police department of the name of any such person and the number of days worked so that he may be discharged when by the number of days worked he is entitled thereto.
(Code 1961, § 24-34)

State law reference—Authority to so provide, A.C.A. § 14-55-604.

Sec. 1-11. Certain ordinances not affected by Code.

Nothing in this Code or the ordinance adopting this Code shall affect any ordinance:

(1) Promising or guaranteeing the payment of money for the city, or authorizing the issuance of any bonds of the city or any evidence of the city's indebtedness, or any contract or obligation assumed by the city.

(2) Granting any right or franchise.

(3) Dedicating, naming, establishing, locating, relocating, opening, paving, widening, vacating, etc., any street or public way in the city.

(4) Making any appropriation.

(5) Adopting a budget or amending same.

(6) Levying or imposing taxes.

(7) Establishing or prescribing grades of any street in the city.

(8) Providing for local improvements and assessing taxes therefor.

(9) Dedicating or accepting any plat or subdivision in the city.

(10) Extending or contracting the boundaries of the city.

(11) Prescribing the number, classification, benefits or compensation of any city officers or employees.

(12) Pertaining to planning or zoning that is not codified in this Code.

(13) Adopting or amending zoning maps or street master plans.

(14) Granting railroad companies the right to construct spur railroad tracks or requiring railroad crossing signals.

(15) Relating to the installation of fire hydrants.

(16) Relating to the exercise of the power of eminent domain by the city.

(17) Authorizing any encroachment on any city or public property.

(18) Prescribing traffic regulations for specific locations.

(19) Which is temporary, although general in effect.

(20) Which is special, although permanent in effect.

(21) The purpose of which has been accomplished.

All such ordinances are hereby recognized as continuing in full force and effect to the same extent as if set out at length in this Code. Such ordinances are on file in the city clerk's office.

Sec. 1-12. Provisions considered continuation of existing ordinances.

The provisions of this Code, so far as they are the same as ordinances existing at the time of adoption of this Code, shall be considered as a continuation thereof and not as new enactments.

Sec. 1-13. Code does not affect prior offenses, rights, etc.

(a) Nothing in this Code or the ordinance adopting this Code shall affect any offense or act committed or done, or any penalty or forfeiture incurred, or any contract or right established or accruing before the effective date of this Code.

(b) The adoption of this Code shall not be interpreted as authorizing or permitting any use or the continuance of any use of a structure or premises in violation of any ordinance of the city in effect on the date of adoption of this Code.

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ARTICLE I. IN GENERAL

Sec. 2-1. Official flag.

(a) The official flag of the City of Little Rock as designed by David Wilson and as depicted below is hereby adopted.

(b) As the official flag of the City of Little Rock, its symbolism is described as follows: A clean white background of the banner represents the optimism and open potential that the city has to offer. The royal blue horizontal broad stripe symbolizes the Arkansas River which borders Little Rock, and has served as an economical and historical emblem since the city's beginning. The forest green stripe runs vertical to the royal blue stripe, creating a cross which symbolizes the location and statute of Little Rock—a city serving not only as the crossroads of Arkansas, but a crossroad of the mid-southern United States as well. The strong forest green color depicts the fields, parks and forests which contribute to the natural beauty of the city. The seal of the flag is a modernized adaptation of the current Little Rock seal. The razorback red silhouette of the great State of Arkansas shows her capitol, the City of Little Rock, represented by the centered star. The star rises directly above "The Little Rock"—the protruding cliff along the Arkansas River, which was discovered in 1722 by French explorer La Harpe, when the city was given the name. The Arkansas River behind the rock and the symmetrical oak leaves in the border of the seal are a stylized illustration of what the flag's stripes represent—the natural beauty of the city. Finally, the gold color of the seal and bordering stripes symbolize the superior economic history, and the future economic potential that is available in the City of Little Rock, Arkansas.

(Ord. No. 15,566, §§ 1, 2, 10-18-88)

Editor's note—Ordinance No. 15,566, §§ 1, 2, adopted October 18, 1988, did not specifically amend the Code; hence, inclusion as § 2-1 was at the discretion of the editor.

Sec. 2-2. [Non-discrimination policy.]

(a) The City of Little Rock shall not discriminate against vendors because of the race, color, creed, religion, sex, national origin, age, disability, marital status, sexual orientation, gender identity, genetic information, political opinions or affiliation of the vendors' owners. All city departments, divisions, commissions and offices that contract with vendors shall adopt a written policy that reflects such non-discrimination in contracting.

(b) Employees of the City of Little Rock in providing city services to the public and public accommodations shall not discriminate because of race, color, creed, religion, sex, national origin, age, disability, marital status, sexual orientation, gender identity, genetic information, political opinions or affiliation. All city departments, divisions, commissions and offices shall adopt a written policy that reflects such non-discrimination in providing city services.

(c) All contracts providing goods and services to the City of Little Rock shall contain a clause stating that the contracting party shall not discriminate on the basis of race, color, creed, religion, sex, national origin, age, disability, marital status, sexual orientation, gender identity, or genetic information. All bid and proposal requests for such contracts from the City of Little Rock shall include notification of such a clause and the requirement that it be agreed to and followed.

(Ord. No. 21,031, §§ 1—3, 4-21-15)

Editor's note—Ord. No. 21,031, §§ 1—3, adopted April 21, 2015, did not specify manner of inclusion; hence, codification as § 2-2 was at the discretion of the editor.

Secs. 2-3—2-25. Reserved.

ARTICLE II. BOARD OF DIRECTORS*

DIVISION 1. GENERALLY

Sec. 2-26. Executive sessions.

(a) Executive sessions will be permitted only for the purpose of considering employment, appointment, promotion, demotion, disciplining, or resignation of any public officer or employee. Executive sessions must never be called for the

*__Cross reference—__Emergency interim successors to municipal officials, § 11-26 et seq.

State law reference—Board of directors generally, A.C.A. § 14-47-109 et seq.

purpose of defeating the reason or the spirit of the Freedom of Information Act of 1967 [A.C.A. § 25-19-101 et seq.].

(b) No resolution, ordinance, rule, contract, regulation or motion considered or arrived at in executive session will be legal unless following the executive session, the public body reconvenes in public session and presents and votes on such resolution, ordinance, rule, contract, regulation, or motion.

(Code 1961, § 2-5.12)

State law reference—Similar provisions, A.C.A. § 25-19-106.

Sec. 2-27. Enacting clause for ordinances.

The enacting clause of all ordinances of the city shall be: "BE IT ORDAINED BY THE BOARD OF DIRECTORS OF THE CITY OF LITTLE ROCK, ARKANSAS."

(Code 1961, § 1-9)

Sec. 2-28. Approval of ordinances and resolutions by city attorney, copies of same, etc.

All ordinances and resolutions shall be submitted to the city attorney for approval as to form and content prior to consideration by the board of directors and an original and three (3) copies of each proposed ordinance and resolution shall be filed with the city clerk. Upon adoption, one (1) copy of each resolution or ordinance shall be immediately furnished to the head of the department of the city affected and one (1) copy shall be immediately furnished to the city attorney. The clerk shall retain the original and one (1) copy in the official records of the city.

(Code 1961, § 2-1)

Sec. 2-29. Voting requirements for passage or adoption of legislation.

Voting requirements for the passage or adoption of any bylaw, ordinance, resolution or motion shall be that which is now or may hereafter be provided by applicable state law.

(Code 1961, § 2-5.13)

State law reference—Voting requirements for passage of ordinances, A.C.A. § 14-55-203.

Sec. 2-30. Members of board of directors to sign ordinances, resolutions, motions or other writings as sponsors.

(a) Any member of the board of directors may note the fact that the member, alone or in combination with other members, authored or sponsored a resolution, ordinance, motion or other writing by reserving the right to sign the engrossed copy of the writing as its sponsor.

(b) The city clerk is directed to ascertain whether any member wishes to sign the engrossed copy of an ordinance, resolution, motion, or other writing, and if so to have a final copy prepared that permits such designation.

(Ord. No. 16,583, §§ 1, 2, 1-18-94)

Editor's note—Ord. No. 16,583, §§ 1, 2, adopted January 18, 1994, did not specifically amend the Code; hence, inclusion herein as § 2-30 was at the discretion of the editor.

Sec. 2-31. Board of directors' policy statements.

(1) *"Must do" policy statements.* The board of directors of the City of Little Rock hereby adopts the following policy statements under the "must do" category:

(a) *Policy statement for a safe city.* It is the policy of the City of Little Rock to protect the rights of the people, ensure public order, and provide public safety through efficient delivery of services in addition to requiring the highest level of professional standards.

This shall be accomplished by:

- Providing protection through the enforcement of municipal laws;
- Providing protection from loss or damage of property;
- Safeguarding individual liberties and implementing community partnerships to foster cooperation and shared resources from other public and private agencies;
- Maintaining and improving community liability through partnerships with diverse communities by proactively addressing public safety concerns, which enhance the quality of life for all;

• Supporting programs that address the issues of children, youth, and families;

• Striving to ensure the availability and access of adequate, safe, and affordable housing;

• Striving to improve vehicular and pedestrian safety;

• Providing disaster assistance in natural and man-made emergencies;

• Providing optimum service levels to the public as cost effectively as possible to maintain a safe, healthy community.

(b) *Policy statement for economic development.* It is the policy of the City of Little Rock to create an environment that attracts new business, retains and encourages growth for existing business, and supports growth sectors within our economy.

This will be accomplished by:

• Continuing to support and promote the local regional economy;

• Leveraging key resources and assets to attract and keep business interests that offer high-wage/high-skill opportunities for residents;

• Continuing to build on the momentum from public and private investment and

recognizing that these efforts provide economic growth for all of central Arkansas;

• Recognizing the important role small and minority-owned businesses have in the creation of jobs and economic growth and continuing to offer assistance and programs that support these initiatives;

• Creating an environment that is attractive to young people;

• Providing a strong work force for new and existing business.

(c) *Policy statement for basic city services.* It is the policy of the City of Little Rock to ensure citizens receive quality basic services, and to provide a viable system that enables its employees to give the most efficient and effective support possible.

The services provided to the citizenry will include:

• A comprehensive operational and administrative support system;

• The collection of solid waste and recyclables;

• An efficient drainage and wastewater system;

• The provision of a clean, healthy water supply;

• A coordinated and efficient public transit system;

• A comprehensive effort to ensure air quality.

(d) *Policy statement for infrastructure.* It is the policy of the City of Little Rock to maintain and improve a comprehensive infrastructure system that meets the changing needs of the community while protecting the integrity of the environment.

A comprehensive infrastructure system includes:

• Drainage systems;

• Information technology systems;

• Public buildings;

• Solid waste facilities;

• Streetlights;

• Streets;

• Traffic signals;

• Wastewater facilities;

• Water systems.

(2) "*Should do" policy statement.* The board of directors of the City of Little Rock hereby adopts the following policy statement under the "Should Do" Category:

Policy statement for quality of life. It is the policy of the City of Little Rock to ensure the availability of varied recreational, creative, and educational experiences that enhance the quality of life for our residents and visitors.

This will be accomplished by:

• Adopting policies that encourage the availability and the continuous improvement of cultural and artistic offerings;

• Adopting policies that capitalize on Little Rock's rich natural resources by encouraging the preservation of open space, and developing public and private land for active and passive leisure activities;

• Embracing and celebrating the diversity of Little Rock's citizenry through the promotion of festivals and other events that highlight the varied cultural background of the city;

• Adopting policies that support the various entertainment venues and tourist attractions that exist within the city.

(3) *Mission statement.* The board of directors of the City of Little Rock hereby adopts the following mission statement:

Little Rock's vision is to be a leading city of the 21st century by providing a safe and supportive environment that empowers its citizens, neighborhoods and businesses to develop and prosper.

(Ord. No. 18,866, §§ 1—3, 5-20-03)

Secs. 2-32—2-45. Reserved.

DIVISION 2. RULES OF ORDER AND PROCEDURE

Part A. General Provisions

Sec. 2-46. Scope.

This division applies to the conduct of meetings of the board of directors.
(Code 1961, § 2-5.11)

Sec. 2-47. Definitions of parliamentary terms.

The following are definitions of various terms of parliamentary procedure. These terms are applicable to meetings of the board of directors.

Adjourn means to terminate a meeting officially.

Adopt means to approve, to give effect to.

Adopt a report means to formally accept a report. Adoption commits the board to everything included in the report.

Affirmative vote means a "yes" vote to a question before the board. It signifies agreement to its acceptance.

Agenda means the official list of business to be considered at a meeting.

Amend means to change, by adding, deleting, or substituting words or provisions.

Annul means to void or cancel an action previously taken.

Appeal means that a decision (of the presiding officer) is referred to the board for its determination by a vote.

Common law means law developed by court decisions. It is made law.

Debatable means capable of being discussed.

Division of question means separation of a main motion into two (2) or more independent parts, each of which is capable of standing alone.

General consent means an informal method of disposing of routine and generally favored proposals by the chairman assuming the group's approval, unless objection is raised. It is also called "unanimous consent."

Incidental motions means motions relating to questions which arise incidentally out of the business, or order or manner of considering the business of the board.

Lay on the table means to postpone a motion until a later, but as yet undetermined time.

Limit debate means to place restrictions on the time to be devoted to debate on a question or the number of speakers or the time allotted each.

Main motion means a motion presenting a subject to the board for discussion and decision.

New business means any business other than unfinished or "old business" which may properly be brought before the board.

Object to consideration means to oppose discussion and decision on a main motion.

Order of business means the formal program or sequence of different items or classes of business arranged in the order in which they are to be considered.

Ordinance means a law made by legislative body of a municipality.

Pending question means a question, or motion, before the board, which has not yet been voted upon.

Postpone definitely means to defer consideration of a motion or report until a specific time.

Postpone indefinitely means to kill a motion or report by deferring consideration of it indefinitely.

Postpone temporarily means to defer consideration of a report or motion until the board chooses to take it up again. The old form of the motion was "lay on the table."

Precedence means the right of prior proposal and consideration of one (1) motion over another, or the order or priority of consideration.

Privileged motions means the class of motions having the highest priority.

Question of privilege means request or motion affecting the comfort or convenience of the board or one (1) of its members.

Reconsider means a motion to cancel the effect of a vote so that the question may be reviewed and redecided.

Refer to committee means a motion to delegate work to a small group of members for study, decision, or action.

Resume consideration means to take up for consideration a motion which has been postponed temporarily. The old form of the motion was "take from the table."

Special committee means a committee appointed to accomplish a particular task and to submit a special report. It ceases to exist when its task is completed.

Special meeting means a meeting called to consider certain specific business which must be set forth in the call.

Standing committee means a committee to handle all business on a certain subject which may be referred to it, and usually having a term of service corresponding to the term of office of the officers of the organization.

Unfinished business means any business deferred by a motion to postpone to a definite time, or any business which was incomplete when the previous meeting adjourned. Unfinished business has a preferred status at the following meeting.

Viva voce vote means a vote taken by calling for "ayes" and "noes" and judged by volume of voice response. It is sometimes called "voice vote."

Vote immediately means a motion to close debate, shut off subsidiary motion, and to take a vote at once.

Withdraw means a motion by a member to remove his motion from consideration by the board.
(Code 1961, § 2-5.11(V))

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 2-48. Robert's Rules of Order.

Except where a conflict exists with the provisions of this division or with state law, Robert's Rules of Order, Newly Revised, shall govern the board of directors in its official actions.
(Code 1961, § 2-5.14)

Sec. 2-49. Order of business.

(a) Except as provided in subsection (b) of this section, the order of business at meetings is as follows:

(1) Roll call;

(2) Invocation;

(3) Consent agenda;

(4) Citizen communications on the first meeting of the month only;

(5) Unfinished and new business;

(6) Citizen communications on the second meeting of the month only;

(7) Adjournment.

(b) There may be deviation from the order of business by a motion to suspend the rules or by general consent. To secure general consent the mayor states that there will be a change in the order of business if no member objects.
(Code 1961, § 2-5.11(I); Ord. No. 20,863, § 1, 4-1-14)

Sec. 2-50. Quorum.

(a) A quorum is a requirement to transact business during a meeting of the board of directors. A quorum is the minimum number of members of the board of directors, including the mayor for this purpose, present at a regular, recessed, called, or other meeting of the board of directors in order to transact business legally. Before the mayor calls the board meeting to order, he should be reasonably sure that a quorum is present. If a quorum is not present, all the group can do is fix a time for another meeting and adjourn or recess.

(b) For purposes of this section, the word "present" means:

(1) That the mayor or board member is physically located at the place the board meeting is being held; or

(2) If necessary to approve a measure that is deemed by the mayor to be vital of the interests of the city, a board member is located outside the corporate limits of the city on city business, but is appearing by electronic means; provided that, for a board member to be present by electronic means, the mayor, or the member who is presiding over the meeting, is physically present at the place where the board meeting is being held. Board members appearing at meetings pursuant to this subsection shall be entitled to participate by electronic means in matters coming before the board, including discussion, debate and voting, as if they were physically present at the meeting as long as a city staff person is with the member in order to confirm the member's identity and location; or, the member participates by electronic or other means which allows the mayor, other members of the board of directors, and the public, to see and hear a member participating electronically;

(c) A majority of the board, including the position of mayor, is a quorum.
(Code 1961, § 2-5.11(IV); Ord. No. 21,847, § 1, 3-25-20; Ord. No. 21,953, § 1, 1-19-21)

Sec. 2-51. Calling special meetings.

The procedure for calling special meetings and giving notice thereof shall be as provided in A.C.A. § 25-19-106.

State law reference—Ordinance prescribing procedure for calling and giving notice of special meetings, A.C.A. § 14-47-123(c).

Sec. 2-52. Citizen communication guidelines.

(a) Three (3) minutes are allowed to present a specific item which is not already on the agenda. This time is allotted for any person to express a written or oral viewpoint, grievance, or other message to the board of directors. Board members may ask questions of the speaker, or make a relevant comment, after the presentation has been completed. A maximum of thirty (30) minutes is allotted for citizen communications each meeting.

(b) No advance permission is required, but persons wishing to address the city board are required to fill out a yellow card listing the specific subject to be addressed and hand it to the city clerk upon arrival.

(c) Citizen communication will be held immediately following the consent agenda items at the first regular meeting of the month, and at the end of the printed agenda at the second regular meeting of the month; however, if at the second regular meeting of the month, the board of directors have an executive session, then citizen communication shall be held before the board goes into executive session.
(Ord. No. 21,010, § 1, 3-3-15; Ord. No. 22,427, § 1, 3-19-24)

Sec. 2-53. Procedures for placement of items on the agenda.

(a) The city manager shall be responsible for the preparation of a preliminary agenda for consideration by the board of directors.

(b) Any item presented by a member of the board of directors, or the mayor, to the city manager and the city attorney two (2) weeks before a scheduled agenda meeting shall be placed on the agenda for that meeting without any additional approval from the board.

(c) Any items presented by a member of the board of directors, or the mayor, to the city manager and the city attorney less than two (2) weeks before a scheduled agenda meeting shall be subject to placement on the agenda for that meeting upon a majority vote of the members of the board.

(d) Any item presented by a member of the board of directors, or the mayor, at the beginning of a pending board meeting, or agenda meeting, shall be subject to placement on the agenda upon a three-fourths (0.75) vote of the members of the board.

(e) Any item presented by the city manager between an agenda meeting and a regular board meeting shall be subject to placement on the agenda upon a majority vote of the members of the board.

(f) This section shall not affect the ability to hold a called special meeting of the board of directors to consider an item on the agenda of that called meeting.

(g) Any item placed on the agenda by a member of the board of directors, or the mayor, may be withdrawn by the proponent without a vote of the remaining members of the board at any time prior to a final vote on the measure.
(Ord. No. 20,650, § 1, 10-16-12; Ord. No. 20,653, § 1, 11-5-12)

Secs. 2-54—2-65. Reserved.

Part B. Motions

Sec. 2-66. Generally.

(a) The business of a meeting is carried on by means of motions. In a broad sense a motion is a formal statement of a proposal for the board to consider and vote upon.

(b) It is well to become familiar with the steps of handling a motion and with their phraseology. Only after these mechanics of a motion become second nature, can a person concentrate on the content of the motion.

(c) The following are the steps in handling a motion:

(1) A member addresses the mayor.

(2) The mayor recognizes the member.

(3) The member states his motion.

(4) Another member seconds his motion.

(5) Mayor states the motion to the assembly.

(6) Members may discuss the motion, if debatable.

(7) Clerk or recorder takes the vote.

(8) Mayor announces the result.
(Code 1961, § 2-5.11(II))

Sec. 2-67. Addressing the chair.

Any member of the board may propose a motion. He may do this at any appropriate time whenever there is no business before the assembly. To present a motion, a member addresses the presiding officer by his official title; for example: "Mr. Mayor." Addressing the chair is equivalent to requesting permission to present a motion or to discuss a motion already presented.
(Code 1961, § 2-5.11(II)(a))

Sec. 2-68. Recognition by the mayor.

The mayor recognizes a member by calling his name, or by nodding to him, or by designating him in some other way. As soon as the mayor recognizes a member, that member is entitled to the undivided attention of the board while he proposes or discusses a motion.
(Code 1961, § 2-5.11(II)(b))

Sec. 2-69. Form.

A motion is a proposal that the board take certain action or express certain sentiments. It is always stated in the form: "I move . . . ," followed by the proposal to be considered. An occasional brief introductory remark may preface a motion, but discussion or debate is not permis-

sible until a motion has been stated by the mayor and is before the board for discussion. If it is desirable to have discussion before a motion can be formulated, this may be done by moving that the subject be considered informally.
(Code 1961, § 2-5.11(II)(c))

Sec. 2-70. Seconding.

(a) After a member has proposed a motion, it is then in order for another member to second the motion. The seconding member, without rising, says: "I second the motion." If the mayor does not hear a second to a motion, he should ask, "Is there a second to the motion that . . ." and repeat the motion, since it may be that some of the members have not understood its meaning. If no second is forthcoming, the mayor declares the motion "lost for want of a second."

(b) Seconding a motion means that the seconder wishes to have the motion presented to the assembly for consideration. It does not necessarily imply that the seconder favors the motion or intends to vote for it, although this is usually true. Requirement of a motion and a second is based on the belief that at least two (2) members should be interested in the discussion of a proposition before a motion is presented to the board.

(c) Routine motions, such as approving the minutes are frequently stated by the mayor without waiting for a second, unless some member objects. If a member does object, the mayor must call for a second.
(Code 1961, § 2-5.11(II)(d))

Sec. 2-71. Statement of motion by the mayor.

(a) As soon as a motion has been properly moved and seconded, it is the duty of the mayor to state the motion promptly to the board. Until he has done so, the motion is under the control of its maker and can be withdrawn or modified by him as he wishes. Once the motion has been stated to the board, it is in the possession of the body to do with it as it chooses.

(b) If a motion is proposed in a form which is misleading, vague, or overly complicated, it is the duty of the mayor either to request the member to rephrase his motion or to rephrase it himself. If the mayor rephrases the motion, he should make sure that he does not change its meaning. He should ask the member whether the rephrased motion, as stated to the board expresses his proposal correctly.

(c) If a motion proposes action which is contrary to law, or to the bylaws or rules, or if it is obviously dilatory (that is, made for the purpose of delaying business) or is completely unsuitable for the consideration of the board, the mayor should rule it out of order. He may say, "The chair rules your motion out of order," and state the reason for so doing.
(Code 1961, § 2-5.11(II)(e))

Sec. 2-72. Discussion.

A member obtains the floor to discuss a motion in the same manner as he does to propose a motion. Once a member has been recognized for the purpose of discussing a motion, he must be protected in his right to speak, so long as he observes the rules of decorum and confines his remarks to the subject. Debate is restricted to the measure under consideration and neither its proposer nor his motives can be discussed. The rules of debate require that all discussion be impersonal and that it be addressed to the presiding officer.
(Code 1961, § 2-5.11(II)(f))

Sec. 2-73. Voting on motion.

When it appears that all members who wish to discuss the question have done so the mayor may

inquire: "Is there any further discussion?" or, "Are you ready for the vote?" This query gives notice that debate is about to close and that if any member wishes to claim the floor, he should so do immediately. The mayor should ignore calls of "Question!" from the floor, for no member has a right to try to force an immediate vote in this manner. If no one claims the floor, the mayor, after a pause, puts the question to vote. The announcement of the vote by the mayor is the last step in the production line which has carried the motion from its introduction by an individual member to its disposal by vote of the board.
(Code 1961, § 2-5.11(II)(g))

Sec. 2-74. Precedence and classification.

(a) The rank of motions, which is called "precedence," keeps the business of the meeting going with easy efficiency, and every motion is attended to in its proper turn. The order of precedence of motions is based on the degree of their urgency; and it is logical and easy to understand. The following is a list of the more important motions, arranged in the order of their precedence:

(1) Adjourn.

(2) Recess.

(3) Question of privilege.

(4) Postpone temporarily ("lay on the table").

(5) Vote immediately ("previous question").

(6) Limit debate.

(7) Postpone definitely.

(8) Refer to committee.

(9) Amend.

(10) Postpone indefinitely.

(11) The general main motion:

a. The general main motion is the main motion.
b. Motion to postpone temporarily or to postpone indefinitely are subsidiary motions.
c. Motions to adjourn and questions of privilege are privileged motions.

(b) Motions are classified as follows:

(1) Main motions. This group is made up of motions which bring subjects (as contrasted with procedural questions) before the board for decision. These motions constitute the principal business of a meeting. They are the most important of all motions because they bring the main business before the meeting.

(2) Subsidiary motions. This group is made up of seven (7) motions which are alternative methods of changing or disposing of the main motion. Their name derives from the fact that they are subsidiary to the main motion, and, therefore, can be proposed only when a main motion is before the board. If a main motion is pending and some members do not wish to vote on it directly at the time, they have several choices as to how the motion may be modified or disposed of. For example, one (1) member may believe that it is an unsuitable motion for the board to consider and may move to postpone it indefinitely. Another may think that the motion should be changed so that it conforms more nearly to the ideas of the board and may move to amend it.

(3) Incidental motions. The motions of this group arise incidentally out of the business which is before the board. In general, they are concerned with the rights and privileges of members. They have only a few characteristics in common. The purpose of this group of motions is to handle procedural problems which arise out of the consideration of other questions. These problems, naturally, must be settled before consideration can be given to the question out of which they arise.

Incidental motions are not included in the list of precedence because they may be proposed at any time and must be decided whenever they arise. Therefore, they present no problem of precedence. The important incidental motions are:

a. Appeal.
b. Point of order.
c. Parliamentary inquiry.
d. Suspend rules.

e. Withdraw a motion.
f. Object to consideration.
g. Division of a question.
h. Division of the assembly.

Many additional motions may arise incidentally during the discussion of another motion. For example, if the board were considering a main motion, some member might move that it be voted upon by ballot. This would be an incidental motion and would be voted upon immediately. If, however, no main motion were pending and someone moved that hereafter votes be taken by ballot, this would be a main motion and not an incidental motion. This is an example of how motions may vary in their classification according to the situation out of which they arise. Further examples of motions which may arise incidentally are: Motion to excuse a member from voting; to consider a resolution paragraph by paragraph; to take a vote by roll call; to close nominations.

(4) Privileged motions. This small group is composed of motions which are so important that they are given privileges not accorded to other motions. They are, in effect, main motions which, because of their urgency, must be decided before the pending question. They relate to the members and to the board rather than to the main motion.

(c) The chief purpose of dividing motions into four (4) groups is to determine their rank or precedence. This rank is fixed and definite and is based on logical reasoning. There are two (2) important rules of precedence:

(1) When a motion is pending, any motion of a higher rank may be proposed, but no motion of lower rank is in order. The motion to adjourn has the highest rank, and a main motion has the lowest. If a main motion is pending, any motion of higher rank can be proposed. If a motion to refer to committee is pending, the motions listed in paragraphs (a)(1) through (a)(7) of this section can all be proposed, but a motion to amend or to postpone indefinitely cannot.

(2) Motions are considered and voted upon in inverse order to the order of their proposal, the last one proposed being considered and disposed of first.

(Code 1961, § 2-5.11(III))

Secs. 2-75—2-90. Reserved.

ARTICLE III. INITIATIVE AND REFERENDUM*

Sec. 2-91. Petitions; required signatures; filing.

Fifteen (15) percent of the legal voters of the city may order the referendum, or invoke the initiative upon any local measure. The number of signatures required upon any petition shall be computed upon the highest vote cast at the last preceding general election for any position on the board of directors. All initiative petitions proposing local measures shall be filed with the city clerk not less than sixty (60) days nor more than ninety (90) days prior to the election at which they are to be voted upon.

(Code 1961, § 19-1)

State law reference—Similar provisions, Ark. Const. Amend. No. 7, § 1.

Sec. 2-92. Clerk to check names and report on initiative petitions.

Whenever any initiative petition is filed with the city clerk, he shall exercise due diligence in checking same as to sufficiency, and if said city clerk finds any petition to be insufficient, he shall without delay notify the sponsors of such petition and permit ten (10) days for correction or amendment. Then the city clerk shall report his final finding to the board of directors, and if it be ascertained that such petition is signed by the requisite number of electors, board shall direct the city clerk to publish for one (1) time, not less than thirty (30) days prior to the municipal election, in some newspaper having a general circulation in the municipality the full text of the proposed measure to be submitted to a vote of the people, together with the exact title to be used on the ballot

*State law reference—Initiative and referendum, Ark. Const. Amend. No. 7, A.C.A. §§ 7-9-103, 7-9-201 et seq., 14-47-124.

(the cost of the publication to be borne by sponsors of said petition) and the board of directors shall further direct the city clerk to certify to the county board of election commissioners, not later than eighteen (18) days prior to such municipal election, the exact title to be placed on the ballot. Such finding as to sufficiency of the petition shall be final, unless suit is brought in the chancery court of the county within thirty (30) days to review such action. If the sufficiency of any petition is challenged, the failure of the courts to decide to the election as to the sufficiency of any such petition shall not prevent the question from being placed upon the ballot at the election named in such petition.
(Code 1961, § 19-2)

Sec. 2-93. Filing of referendum petitions; notice.

(a) All referendum petitions under Amendment No. 7 to the state constitution must be filed with the city clerk within thirty (30) days after the passage of the ordinance or resolution.

(b) Whenever any referendum petition is filed, the mayor, acting on behalf of the board of directors, shall give notice by publication for one (1) insertion in a newspaper published in the county and having a general circulation in the city of a time not less than five (5) days after the publication of such notice at which the board of directors will hear all persons who wish to be heard on the question whether such petition is signed by the requisite number of petitioners. At the time named, the board of directors shall meet, at its regular place of meeting, and hear all who wish to be heard on the question, and its decision shall be final, unless suit is brought in the chancery court of the county within thirty (30) days to review its action.
(Code 1961, §§ 19-3, 19-4)

Sec. 2-94. Election on referendum petition.

If the board of directors finds that a referendum petition is signed by the requisite number of qualified petitioners, it shall order a special election to determine by a vote of the qualified electors whether the ordinance or resolution shall stand or be revoked, and fix a date which shall be not less than ten (10) days after the date of the action of the board calling the election. The mayor shall publish a notice of the call of such election in not less than one (1) issue of a newspaper published in the county and having a general circulation in the city not less than five (5) days prior to the date of the election. Such notice shall designate by its number, caption, and date of passage, the ordinance or resolution which has been referred to the people for approval or rejection by their vote at such election. Otherwise, subject to the provisions of Amendment No. 7 to the state constitution and other applicable laws, such election shall be conducted in the manner provided by law for the conduct of a regular municipal election.
(Code 1961, § 19-5)

Sec. 2-95. Procedure when ordinance or resolution defeated.

If any ordinance or resolution referred to the people is defeated at the polls, the board of directors shall make note of such fact on same.
(Code 1961, § 19-6)

Secs. 2-96—2-109. Reserved.

ARTICLE IV. OFFICERS AND EMPLOYEES*

Sec. 2-110. Mayor.

(a) The mayor shall be the chief executive officer of the city and the city manager shall be the chief administrative officer of the city.

(b) Pursuant to the provisions of A.C.A. § 14-47-120, as amended, the mayor shall have the following authority:

(1) Subject to the approval of the board of directors, the mayor shall have the authority to nominate, hire, or remove, the city manager and the city attorney, provided that the annual review of both the city manager and the city attorney shall be conducted by the entire board of directors;

*__Cross reference—__Emergency interim successors to municipal officials, § 11-26 et seq.

(2) Subject to confirmation by the board of directors, advice by the respective ward representative of the ward where the nominee resides, and such other advice as may be given by the at-large representatives, to nominate and fill any vacancy occurring on any board, authority or commission;

(3) Except as set forth in subsection (4), all other powers and duties granted to the city manager pursuant to A.C.A. § 14-47-120, as amended, or set forth in state law but not specifically referred to in this subsection, shall hereafter be performed at the direction of the mayor;

(4) The annual budget of the city shall be prepared by the mayor and the city manager, and will be administered by the city manager.

(c) The mayor shall have a veto power as follows:

(1) The mayor shall not be entitled to vote unless such vote is necessary for passage of a measure;

(2) The board of directors may override a mayor's veto by a two-thirds (2/3) vote of the number of members of the board of directors in accordance with subsection (d) of this section;

(3) The mayor shall have seven (7) calendar days from the date of approval of a motion, ordinance, or resolution, to exercise a veto.

(d) Override of the veto. The time to override a veto, and other issues that relate to an override, are as follows:

(1) The board of directors shall exercise the power to override a veto over any permanent on temporary ordinances or resolutions at the next regular session of the board of directors following the written notification of a veto; and

(2) Failure to override a veto in a single vote of the board of directors shall constitute a confirmation of the veto, and no further consideration of veto override on the measure shall be introduced in subsequent sessions of the board of directors; and

(3) The vote to override a veto, or the failure to override a veto, shall not be subject to a motion to reconsider, a motion to expunge the record, or any other parliamentary procedure which would permit the reconsideration of the question of override; and

(4) Any ordinance or resolution vetoed, and confirmed by failure to override the veto, may be reintroduced as a new ordinance or resolution subject to any state statutes, ordinances, or procedures for the introduction of ordinances or resolutions, or amendments to ordinances or resolutions.

(e) The additional duties and authorities for the mayor include:

(1) The authority to hire or remove the city manager and the city attorney subject to board approval and subject to the board conducting annual evaluations of the city manager and the city attorney;

(2) To fill vacancies on municipal boards and commissions subject to approval of the board of directors, and after consultation with the respective ward representative and such other advice as may be provided from at-large directors;

(3) That the annual budget shall be prepared by the mayor and the city manager, and will be administered by the city manager; that the duties of the city manager as set forth in A.C.A. § 14-47-120, and other state law, be performed at the direction of the mayor.

(Ord. No. 19,761, §§ 1—5, 6-12-07)

Editor's note—Ord. No. 19,761, §§ 1—5, adopted June 12, 2007, added the provisions of § 2-110, which were approved by the voters in an election held on August 14, 2007.

Sec. 2-111. City manager.

There is a city manager. The city manager is appointed as provided by law and has the powers and duties provided by ordinance. In addition to

any other powers, and notwithstanding any other provision of this Code, including zoning regulations, if an event is declared a disaster by the President of the United States, or by the Governor of Arkansas, and temporary housing for victims of the disaster is provided within the corporate limits of the city, the city manager may, upon request, grant special permission for up to ninety (90) days at a time for such housing, provided that the facilities to be used meet basic health and safety standards, and the impact of the disaster situation continues to make it impractical for the victims to return to their homes.
(Ord. No. 19,419, § 1, 9-20-05)

State law reference—City manager, A.C.A. § 14-47-119 et seq.

Sec. 2-112. Civil service.

There is created a board of civil service commissioners, the members of which shall be appointed by the board of directors as provided in A.C.A. § 14-51-201 and shall have the powers, duties and functions as prescribed by law. The board of civil service commissioners is subject to all fiscal procedures of the city.
(Code 1961, § 2-4)

Cross reference—Boards and commissions generally, § 2-261 et seq.

State law references—Civil service not affected by managerial form of government, A.C.A. §§ 14-47-108(b), 14-47-127; board of civil service commissioners, A.C.A. § 14-51-201 et seq.; civil service system, A.C.A. § 14-51-301 et seq.

Sec. 2-113. Participation in Social Security program.

The city participates in the federal Social Security program.
(Code 1961, §§ 34-1—34-3)

Sec. 2-114. Persons authorized to issue ordinance violation citations.

The city manager or his designated representative may issue citations to require alleged violators of any ordinance to appear in the municipal court to answer the violation. The city manager shall designate in writing the individuals who are authorized to issue citations. This list shall be filed with the city clerk.
(Code 1961, § 2-2.1)

Sec. 2-115. Expense accounts.

Any city official or employee who receives expense money from the city to attend meetings, conventions or conferences covering city problems shall file an itemized expense account with the director of finance.
(Code 1961, § 2-48)

Sec. 2-116. Compensation for mayor and board of directors.

The mayor and members of the board of directors shall be compensated as follows:

(1) a. The mayor shall be compensated with a salary and benefit package comparable to the highest-ranking municipal official.

b. The initial salary and benefit package for the mayor shall apply from and after October 15, 2007, unless otherwise amended.

(2) Each member of the board of directors, other than the mayor, shall receive an annual salary of eighteen thousand dollars ($18,000.00).

In addition to an annual salary, each member of the board of directors, other than the mayor, shall receive the sum of two hundred and fifty dollars ($250.00) a month as an office allowance.

(3) Payments of salaries or applicable benefits shall be in the same manner as all city employees.

(Ord. No. 16,498, § 1, 9-29-93; Ord. No. 17, 363, § 1, 12-17-96; Ord. No. 19,857, § 1, 11-13-07; Ord. No. 20,730, §§ 1, 2, 5-21-13)

Sec. 2-117. On-line convenience fee.

An on-line payment convenience fee may be established by the city manager and added to the cost of any license, permit, report or other item that is purchased from the city through an on-line payment system. The convenience fee shall be based on the cost of the equipment, personnel and network connections that are required to provide the on-line payment service.
(Ord. No. 19953, § 1, 4-15-08)

Secs. 2-118—2-130. Reserved.

ARTICLE V. DEPARTMENTS*

DIVISION 1. GENERALLY

Sec. 2-131. Americans with Disabilities Act consultant services.

(a) The provision of Americans with Disabilities Act (ADA) consultant services is hereby declared a professional service. Such professional services shall be contracted pursuant to the professional services laws of this state, A.C.A. §§ 19-11-801—19-11-805, as amended, or Act 616 of 1989, as amended.

(b) The city manager is hereby authorized to issue and publish requests for qualifications for ADA consultant services.

(c) Final award of said contract will be made by the board of directors after consideration of the city manager's recommendation made pursuant to city selection procedures.
(Ord. No. 16,972 §§ 1—3, 9-19-95)

Secs. 2-132—2-145. Reserved.

DIVISION 2. LEGAL DEPARTMENT

Sec. 2-146. Established; city attorney as head; appointment; term; budget and fiscal review process.

A legal department of the city is hereby established. The head of the department shall be the city attorney, who shall be appointed by the board of directors and shall serve at the will of the board. The city attorney shall be responsible for the functioning and operation of the legal department. The city attorney's budget and fiscal review process will be the same as other departments of city government.
(Code 1961, § 2-26)

Sec. 2-147. Litigation.

The city attorney shall, through the legal department of the city, take charge of and direct the management of all litigation in which the city may be a party or in which the city may have an interest. The city attorney or an assistant city attorney shall prosecute all cases coming before the municipal court of the city to which the city may be a party, and all such cases which may be appealed from the court. The city attorney shall represent the city and all city officials in their official capacity in all legal matters and proceedings in which they may be a party, or interested.
(Code 1961, § 2-27)

***Cross references—**Fire department, § 12-51 et seq.; department of parks and recreation, § 22-1; police department, § 24-21 et seq.

Sec. 2-148. Advise city officials; approve legal instruments.

The city attorney shall advise the board of directors, or any committee or member thereof, the mayor, the city manager and the heads of all departments, and through the city manager and heads of departments, all other officers or officials of the city upon any and all legal questions affecting the city's interest. The city attorney shall approve as to form all contracts, bonds, insurance policies, and/or other documents filed with the city pursuant to the ordinances and regulations thereof, which are in the name or are made to, or with the city.
(Code 1961, § 2-28)

Cross reference—City attorney to approve ordinances, § 2-28.

Sec. 2-149. Duties required by state law.

In addition to the duties imposed upon the city attorney and the legal department by this division, the city attorney and the legal department shall perform such other duties as are imposed by the general law of the state.
(Code 1961, § 2-29)

Secs. 2-150—2-165. Reserved.

ARTICLE VI. FINANCIAL AFFAIRS*

DIVISION 1. GENERALLY

Sec. 2-166. Fiscal year.

The fiscal year of the city government shall begin on January 1 and shall end on December 31 of each calendar year. Such fiscal year shall also constitute the budget and accounting year. As used in this division "budget year" means the fiscal year for which any particular budget is adopted and in which it is administered.
(Code 1961, § 2-50)

State law reference—Fiscal year, A.C.A. § 14-71-102.

*Cross references—Licenses, taxation and miscellaneous business regulations, Ch. 17; land along riverfront not to be sold or leased, § 22-2.

Sec. 2-167. Sale of personal property by city manager.

The city manager or his authorized representative shall have the exclusive power and authority to sell or exchange any personal property owned by the city having a value of less than twenty thousand dollars ($20,000.00) and not immediately needed by the city for public purposes.
(Code 1961, § 2-42)

State law reference—Authority of city manager to sell city supplies, equipment, etc., A.C.A. § 14-47-120(5)(A)(iii).

Sec. 2-168. Inventory of city property; audit of insurance and official bonds.

The city manager shall maintain an inventory of all real property owned by the city and of all other property of the city having a useful life of one (1) year or more. At least once a year the city manager shall have audited through his office the insurance policies and the official bonds of the city employees, and determine whether city property is properly and adequately insured, and whether city employees are properly and adequately bonded.
(Code 1961, § 2-68)

Sec. 2-169. Examination of claims.

The director of finance shall examine all payrolls, vouchers, bills, and other claims and demands against the city and shall not approve same for payment thereof unless he has found by diligent investigation that the claim has pre-audit budget certification, is in proper form, correctly computed, and that it is justly and legally due and payable; and that it is accompanied by the certification of a responsible official of the department concerned that the goods and services listed therein were actually received.
(Code 1961, § 2-69)

Sec. 2-170. Approval of utility rate increases.

Any city agency requesting approval of a municipal utility rate increase will:

(1) Make a request in writing to the city manager not less than sixty (60) days prior to the date formal approval is expected by the board of directors.

(2) Provide with request one (1) complete set of financial data and any and all other information required presented in an organized manner to justify the proposed rate increase.

(3) Provide a statement from a CPA firm (which may be the agency's independent auditor) which verifies correctness of financial data.

(4) Assure the city manager the proposed rate increase has been reviewed and approved by the agency's legal staff or counsel as to form and procedure.

(Ord. No. 15,249, § 1, 2-17-87)

Sec. 2-171. Approval of bond issues.

Each city agency requesting approval of a new bond issue or restructuring of an existing bond issue will:

(1) Make a request in writing to the city manager not less than sixty (60) days prior to the date formal approval of the bond issue or restructuring is expected by the board of directors. The request will show the need for the bond issue, the amount required, and the date funds are needed.

(2) Provide with the request one (1) complete set of financial data and any and all other information required presented in an organized manner for evaluation of the bond issue request.

(3) Provide a statement from a CPA firm (which may be the agency's independent auditor) which verifies correctness of financial data.

(4) Assure the city manager the proposal has been reviewed and approved by the agency's legal staff or counsel as to form and procedure.

(Ord. No. 15,249, § 2, 2-17-87)

Sec. 2-172. Formulation of bond issues and sale of bonds.

(a) Any agency requesting approval of a bond issue may make recommendations on formulation of the issue including such items as the length of maturities, amortization schedules, revenue pledges, early redemption provisions, discounts, good faith checks, provisions for advertising and marketing the bonds, etc. However, all of these will be reviewed in advance by the city's finance director for the purpose of formulating a recommendation to the board of directors.

(b) It is in the interest of the city, its taxpayers and its ratepayers that city bonds be sold in a manner that ensures that the best sale results, taking into account both long-term and short-term implications, are achieved and that avoids concerns or allegations regarding the selection and compensation of financial professionals. There are a number of conditions that determine the most responsible, efficient and cost-effective method of selling city bonds. When conditions exist that generally favor competitive sale of bonds, the competitive method should be chosen. When conditions do not favor a competitive sale, the negotiated method of sale may be appropriate. When the negotiated method of sale is used, the following procedures shall be followed:

(1) An analysis of the conditions preventing a competitive sale will be submitted to the city's finance director, who shall present a report to the board of directors before any action is taken to market the bonds.

(2) The selection of all professionals involved with the bond issue shall be made in accordance with the provisions of Code section 2-244.

(3) All such other steps as are deemed necessary by the city finance director shall be taken to ensure that the bond sale process is fair, equitable and defensible, and all such records of the selection process as are required to thoroughly document the rational for each selection will be maintained in public files.

(Ord. No. 15,249, §§ 4, 5, 2-17-87)

Secs. 2-173—2-190. Reserved.

DIVISION 2. BANKING SERVICES*

Sec. 2-191. Award of contracts after competitive bidding; criteria.

Beginning January 1, 2016, the city shall contract for banking services for an initial two (2) years with the option to renew for five (5) additional one-year terms under the same terms and conditions. The contract will be awarded after competitive bids for banking services have been evaluated according to criteria established by the city manager and the finance department director. In deciding to award the contract for banking services, the city shall give preference to the banking institution that offers the lowest cost of services requested and the highest Community Reinvestment Act ratings, while giving consideration to new or unique services offered by the banking institution that can be quantified to provide financial benefits to the city.
(Ord. No. 15,587, § 1, 11-15-88; Ord. No. 16,664, § 1, 5-17-94; Ord. No. 17,861, § 1, 11-2-98; Ord. No. 21,099, § 1, 9-15-15)

Sec. 2-192. Eligibility requirements.

To be eligible to submit a bid, a banking institution must meet the following qualifications:

(1) The banking institution must be licensed by the federal government and be a part of all relevant federal insurance plans;

(2) The banking institution must be licensed by the State of Arkansas;

(3) The banking institution must have at least four (4) staffed full service locations within the boundaries of the City of Little Rock, Arkansas;

(4) The banking institution must provide all of the services being sought by the city in its requests or proposals;

(5) The banking institution must have a Community Reinvestment Act rating of "satisfactory" or higher within the Greater Little Rock, Arkansas Metropolitan Statistical Area.

(6) The banking institution must agree to provide one hundred eighty (180) days written notice to terminate the agreement for convenience or cause.

(Ord. No. 15,587, § 2, 11-15-88; Ord. No. 17,861, § 2, 11-2-98; Ord. No. 21,099, § 2, 9-15-15)

Sec. 2-193. Depository agreement; policy.

It is the policy of the city to have a depository agreement and to place all funds controlled by the board of directors with one bank that meets the criteria set forth in this division and that properly responds to all the criteria set forth in the city's request for proposal for banking services.
(Ord. No. 15,587, § 3, 11-15-88)

Sec. 2-194. Services required.

In order for a banking institution to be considered a qualified bidder, the bank must be capable of, and agree to, provide the city full banking services. These services will be paid for on a fee for services used basis. These services will include, but not be limited to, the following:

(1) Accepting deposits and processing checks. Reconciliations will be furnished on computer tapes for, at a minimum, the city's combined and payroll accounts, and other accounts as requested by the city.

(2) Complete wire transfers, night depository services, investment processing services, coin sorting and counting services.

(3) Collateralize at least one hundred four (104) percent of the daily account balances with the United States Government and selected agency securities of the United States Government with maturities not to exceed five (5) years, or one hundred ten (110) percent of the daily account balances if the United States Government and selected agency securi-

*__Editor's note—__Ord. No. 15,587, § 7, adopted Nov. 15, 1988, repealed Ord. Nos. 10,767 and 10,911, which were included as §§ 2-45—2-47 of the 1961 Code and subsequently comprised art. VI, div. 2, Depositories, §§ 2-191—2-193, of this Code. Inclusion of §§ 1—6 of Ord. No. 15,587 as a new div. 2, §§ 2-191—2-196, was at the editor's discretion.

ties have a maturity of five (5) or more years, or other instruments authorized by Arkansas law.

(4) Provide the city monthly statements that detail account balances, average interest rate earned, and the dollar amount of interest credited to various city accounts.

(5) Direct deposit of payroll services for those city employees electing to use this service.

(6) Cash all checks issued by the city and drawn on the servicing bank at all branches of the servicing bank within the Greater Little Rock Metropolitan Statistical Area.

(Ord. No. 15,587, § 4, 11-15-88; Ord. No. 16,664, § 3, 5-17-94; Ord. No. 17,861, § 3, 11-2-98; Ord. No. 18,772, § 1, 11-4-02)

Secs. 2-195, 2-196. Reserved.

Editor's note—Section 4 of Ord. No. 17,861, adopted Nov. 2, 1998, repealed § 2-195 pertaining to requirements for existing service provider seeking new contract and § 2-196 pertaining to legislative intent, both of which derived from Ord. No. 15,587, adopted Nov. 11, 1988 and Ord. No. 16,664, adopted May 17, 1994.

Secs. 2-197—2-210. Reserved.

DIVISION 3. BUDGET*

Sec. 2-211. Nature and scope.

The budget for the city shall set forth all proposed expenditures for the administration, operation, and maintenance of all departments; expenditures for capital or special projects to be undertaken; and support for other agencies to be provided. In addition thereto, the budget shall set forth the anticipated revenues and other means of financing the proposed expenditures. The budget shall be adopted for the ensuing fiscal year period. Budget information prepared for any subsequent fiscal periods and included in the material presented to the board of directors shall be considered a fiscal plan and not a part of the adopted budget.

(Code 1961, § 2-51; Ord. No. 16,882, § 1, 5-2-95)

*__State law reference—__Annual adoption of budget, A.C.A. § 14-58-202.

Sec. 2-212. Preparation.

The city manager shall submit to the board of directors each year a budget and such other explanatory information as may be required for their consideration. The city manager shall compile the budget with the assistance of the finance department and other departments or agencies, estimating all revenues and expenditures detailed by organizational unit, service program, or object of expenditure, as appropriate. In preparing the budget, the city manager will compile two (2) annual budgets for bi-annual fiscal periods beginning in even numbered years. The board of directors will amend or revise the budgets as they deem advisable and adopt the budget for the even numbered year by ordinance, while the budget for the odd numbered year will be approved as a fiscal plan. During the even numbered year, the city manager will review the fiscal plan for the ensuing year and revise it as deemed necessary for resubmission to the board of directors. After reconsideration and revision as deemed necessary, the board of directors will adopt a budget ordinance for the second year of the bi-annual period.

(Code 1961, § 2-52; Ord. No. 16,882, § 2, 5-2-95)

State law reference—Preparation and submission of budget by city manager, A.C.A. § 14-47-120(6).

Sec. 2-213. Public record; distributing copies.

The budget and budget message and all supporting schedules shall be a public record in the office of the city clerk open to public inspection by anyone. The city manager shall cause sufficient copies of the budget and budget message to be prepared for distribution to interested persons.

(Code 1961, § 2-53)

Sec. 2-214. Adoption.

On or before December 30 of each year the board of directors shall adopt a budget for the ensuing year.

(Code 1961, § 2-54)

Sec. 2-215. Budget document—Generally.

The budget document, setting forth the financial plan of the city for the ensuing fiscal period, shall include the following:

(1) Any explanatory budget message;

(2) A summary of the budget by fiscal year;

(3) A detail of the revenue projections upon which the budget is based; and

(4) The detailed budget plan.

(Code 1961, § 2-55; Ord. No. 16,882, § 3, 5-2-95)

Sec. 2-216. Same—Budget message.

(a) The budget message submitted by the city manager to the board of directors shall be explanatory of the budget, shall contain an outline of the proposed financial policies of the city for the budget year and shall describe in connection therewith the important features of the budget plan. It shall set forth the reasons for salient changes from the previous year in cost and revenue items and shall explain any major changes in financial policy.

(b) Attached to the budget message shall be such supporting schedules, exhibits and other explanatory material in respect to both current operations and capital improvements, as the city manager shall believe useful to the board of directors.

(Code 1961, §§ 2-56, 2-57)

Sec. 2-217. Same—Summary.

At the head of the budget there shall appear a summary of the budget, which need not be itemized further than by principal sources of anticipated revenue and total proposed expenditures of each department, in such a manner as to present to taxpayers a simple and clear summary of the estimates of the budget.

(Code 1961, § 2-58)

Sec. 2-218. Same—Complete budget plan.

The budget shall provide a complete plan for the operation of all city departments and offices for the ensuing budget year. It shall contain in tabular form:

(1) Detailed estimates of all anticipated revenues.

(2) All proposed expenditures.

(Code 1961, § 2-59)

Sec. 2-219. Classification of revenues.

Anticipated revenues shall be classified as "surplus," "miscellaneous revenues" and "general property tax." Miscellaneous revenues shall be classified by sources.

(Code 1961, § 2-60)

Sec. 2-220. Surplus.

Surplus shall include:

(1) Revenue receipts made available by the lapsing of unencumbered budget balances at the end of the budget year.

(2) Receipts from unanticipated revenues of the preceding fiscal year in excess of the estimates in the budget.

(3) Receipts from anticipated revenue of the preceding fiscal year in excess of the estimates of the budget.

(Code 1961, § 2-61)

Sec. 2-221. Comparing anticipated revenues with past years.

In parallel columns opposite the several items of anticipated revenues there shall be placed the amount of each such item in the budget of the last completed fiscal year, the amounts of such items actually received during such year, the amount of each such item in the budget of the current fiscal year and the amount actually received for the time of preparing the budget plus receipts for the remainder of the current fiscal year estimated as accurately as may be.

(Code 1961, § 2-62)

Sec. 2-222. Emergency appropriations.

At any time in any budget year, the board of directors may make emergency appropriations to meet a pressing public need.

(Code 1961, § 2-63)

Sec. 2-223. Lapse of budget.

All budgets shall lapse at the end of the budget year to the extent that they shall not have been expended or lawfully encumbered.
(Code 1961, § 2-64)

Sec. 2-224. Record of daily transactions.

The city manager shall have maintained through his office the city's preaudit budget procedure in such a manner that the accounts will show daily all transactions relating to departmental budgets.
(Code 1961, § 2-65)

Sec. 2-225. Requisitions and certification for purchases.

Operating departments shall requisition the purchase of supplies and materials in such departments on a form prescribed by the city manager and no requisition shall be approved by the city manager, or an employee designated by him, unless there is an unencumbered budget balance sufficient to meet the obligation. Before so certifying, the proper budget account shall be encumbered with the amount of the requisition.
(Code 1961, § 2-66)

Sec. 2-226. Monthly statements; annual report.

At the close of each month, and at any other time, if so ordered by the board of directors, the city manager shall have prepared for submission to the members of the board a statement of the condition of each departmental budget and such other reports as may be required of him. At the close of the year he shall submit to the members of the board a complete report of the budget transactions of the year.
(Code 1961, § 2-67)

State law reference—Annual report, A.C.A. § 14-47-120(7).

Sec. 2-227. Departmental budget savings.

Innovative and cost-saving service efforts of city employees should be recognized and rewarded. Therefore, at the end of each fiscal year, as adjusted for the results of the annual audit, the finance department will report budget savings by organization to the city manager. The city manager will submit to the board of directors those savings of a nonpersonnel, non-mandated nature for reappropriation within the current budget of the organization producing the savings. The reappropriated savings may be utilized by the organizations as they see fit, except that they may not be used to incur any recurring obligation of the city, such as the hiring of new employees.
(Ord. No. 16,882, § 4, 5-2-95)

Secs. 2-228—2-240. Reserved.

DIVISION 4. PURCHASES

Sec. 2-241. Authority of city manager.

The city manager or his authorized representative shall have the exclusive power and responsibility, after the proper exercise of a competitive selection process as set forth in section 2-242, to make purchases of all supplies, apparatus, equipment, materials and other things, requisite for public purposes in and for the city, and to make all necessary contracts for work or labor to be done, or materials or other necessary things to be furnished for the benefit of the city, or in carrying out any work or undertaking of a public nature therein; provided, that this authority does not extend to the settlement of litigation in which the city, or any employee, is a party.

Prior to the settlement of any litigation in which the city, or an employee or other person hired by the city, is a party, the city attorney or his authorized representative, shall have informed each member of the board of directors, including the mayor, of the nature of the litigation, the nature of any proposed settlement, and the right to discuss potential settlement in a public meeting; provided, that all such determinations shall be conducted in accordance with the Arkansas Freedom of Information Act.
(Code 1961, § 2-43; Ord. No. 22,069, §§ 2, 3, 11-16-21)

State law reference—Authority of manager to make contracts, purchases, etc., A.C.A. § 14-47-120(5).

Sec. 2-242. Bids.

(a) (1) Where the amount of expenditure for any purchase or contract authorized in section 2-241 exceeds fifty thousand dollars ($50,000.00) or more, the city manager, or city manager designee, shall invite competitive bidding thereon by legal advertisement published one (1) time in any local daily newspaper or posting by electronic media, but in all instances, adequate notice shall be given; bids received pursuant to the advertisement shall be opened not less than seven (7) days, nor more than thirty (30) days following the date of invitation to bid unless the city manager authorizes an increase in the maximum number of days the bid shall be open due to the complex nature of the bid issue. Any such extension in the maximum number of days the bid shall be open must be authorized prior to the bid opening; provided; however, the city manager or board of directors may reject any and all bids.

(2) This requirement for competitive bids does not apply to commodities that are purchased solely for resale at city facilities; for purposes of this subsection (a)(2), commodities means perishable foodstuffs for immediate use, unprocessed feed for livestock, poultry, or animals at the Little Rock Zoo, or items purchased on the open market without modification for resale at a gift shop, pro shop, or similar facility, operated by the city.

(3) This requirement for competitive bids does not apply to advertising services for events and promotions sponsored by the city; for purposes of this subsection (a)(3), advertising services means advertising in newspapers, periodicals, and related publications and advertising on television, radio, billboards, and electronic media.

(b) In the event the net price to be awarded on any contract or purchase of goods or services, other than professional services, is less than fifty thousand dollars ($50,000.00) during the course of the contract, the city manager shall be authorized to award the contract or purchase without transmitting the bids to the board of directors.

(c) No personal property owned by the city shall be sold or exchanged without competitive bidding unless the city manager shall certify in writing that, in his opinion, the fair market value of such property is less than ten thousand dollars ($10,000.00).

(d) The board of directors, by ordinance, may waive the requirement of competitive bidding in exceptional situations where such procedure is not feasible, but such exceptional situations being lacking, the board of directors may not except any particular bid from the requirement of competitive bidding.

(e) The city manager is authorized to approve professional service contracts up to fifty thousand dollars ($50,000.00), exclusive of political consultants and lobbyists, which still must receive board approval, pursuant to the following conditions:

(1) The city manager shall provide the mayor and members of the board of directors each Monday, or the first day of business if city hall is closed on a Monday for any reason, fourteen (14) days before the issuance of a formal request for proposals, a list of the professional services contracts that are anticipated to be over five thousand dollars ($5,000.00) but under fifty thousand dollars ($50,000.00) during the course of any budget year.

(2) If, during the fourteen (14)-day period, any member of the board of directors, including the mayor, wishes to discuss the proposed professional service at a public meeting, the desire shall be made a discussion item for the next regular meeting, or regularly scheduled agenda meeting, of the board of directors;

(3) Failure to follow this procedure for any reason whatsoever shall mean that the city is not authorized to enter into such a contract, which is a condition of any

professional service that will be placed in the request for qualifications submitted to make the selection decision.

(f) (1) The City of Little Rock shall have the option to make purchases by participating in a reverse internet auctions so long as the purchase is not for construction projects or materials.

(2) For purposes of this section:

a. "Reverse internet auction" means an internet-based process in which bidders are given specifications for items and services being sought for purchase by a municipality; and bid against themselves in order to lower the price of the item or service to the lowest possible level; and

b. "Reverse internet auction vendor" means an internet -based entity that hosts a reverse internet auction.

(3) A reverse internet auction shall not be used for purchases and contracts for construction projects and materials.

(4) The following are required in order to conduct any reverse internet auction:

a. All bidders shall be provided instructions and individually secured passwords for access to the reverse internet auction by either the city or any reverse internet auction vendor.

b. All reverse internet auctions will be timed and the time shall be part of the reverse internet auction specifications.

c. All reverse internet auctions shall be held at a specific date and time.

d. The reverse internet auction and bidding process shall be interactive, with each bidder able to make multiple bids during the allotted time.

e. Each bidder shall be continually notified of their relative position in the bidding process.

f. All bidders shall remain anonymous and shall not have access to other bidders or bids.

g. The board of directors shall have access to real-time data, including all bids and bid amounts.

(5) The board of directors may create by additional ordinance reverse internet auction specifications for the anticipated purchase of specific items or purchase.

(6) A fee may be included as part of the bids received during the reverse internet auction and shall be paid by the winning bidder.

(7) For any and all reverse internet auctions, the board of directors may refuse all bids made during the reverse internet auction. the board of directors may begin the reverse internet auction process anew if it is determined it is in the best interest of the city.

(Code 1961, § 2-44; Ord. No. 15,221, § 2, 12-2-86; Ord. No. 16,948, §§ 1, 2, 8-1-95; Ord. No. 17,440, § 1, 3-18-97; Ord. No. 17,701, § 1, 4-7-98; Ord. No. 17,860, § 1, 11-2-98; Ord. No. 18,652, § 1, 12-18-01; Ord. No. 20,902, § 1, 7-1-14; Ord. No. 21,028, § 1, 4-21-15; Ord. No. 21,053, § 1, 6-2-15; Ord. No. 21,296, § 1, 9-6-16; Ord. No. 21,562, §§ 1, 3, 3-20-18; Ord. No. 22,206, § 1, 12-6-22; Ord. No. 22,206, § 1, 12-6-22; Ord. No. 22,618, § 1, 5-6-25; Ord. No. 22,658, § 2, 9-16-25)

State law reference—Bids, A.C.A. § 14-47-138.

Sec. 2-243. Competitive selection of professional services.

Subject to the provisions of Little Rock, Ark., Rev. Code § 2-242(e) (1988):

(a) The city and all its boards, commissions and authorities not otherwise authorized to do so by state law, shall competitively select based on qualifications and other relevant evaluation criteria other than price or cost:

(1) As required by the Arkansas Code, all architectural, engineering, legal, land surveying services done for or on behalf of the city;

(2) All services declared to be a professional service if done for or on behalf of the city, its boards, commissions or authorities, including the following:

a. Accounting services.

b. Construction management services.

c. Stormwater utility management services.

d. Information system services consultants.

e. Executive recruitment services.

f. Lobbyist services.

g. Housing counseling services.

h. Industrial psychologists and other disciplines associated with development and implementation of tests and systems designed for hiring and promotion of municipal employees.

i. Employee benefit plan consultant services.

j. Municipal code codification services.

k. Advertising design and consultation services.

l. Real estate marketing.

m. Entertainment promotion.

n. Growth management consultant.

o. Historic preservation consultant.

p. Environmental systems engineers and suppliers.

q. Labor economics consultants.

r. Veterinarian services which can include [those] selected on the basis of exotic animal veterinarian services for entities such as the Little Rock Zoo, or on the basis of typical veterinarian services for domesticated animals.

s. Property and casualty insurance consultant.

t. Development or redevelopment coordinator.

u. Development fees consultant.

v. Abstract and real estate title services.

w. Broadband services provider, except when the city manager has authorized that all or part of a bid package for such services, equipment or material, is to proceed on a bid for the lowest responsible and responsive bidder.

x. Real estate appraisal services.

y. Environmental consultant services.

z. Consultation, installation, configuration, programming, training, maintenance, operation or integration of hardware or software for technology systems.

aa. Grant coordination.

bb. Entrepreneurial training and development services.

cc. When an insurance broker is selected as a professional service pursuant to the category for employee benefit plan consultant services, or the category of property and casualty insurance consultant, the broker is permitted to do the following to assist the city in the selection of insurance products:

a. Develop with the city a set of questions and issue about the type of insurance coverage requested, including, but not limited to, issues such as premiums, coverage, co-pays, and dependent coverage, the historic character of a property, or the need to cover the entire value of the property or use a reduced deductible for particular properties;

b. Upon obtaining answers to these questions, review them with the individual companies and have authority to negotiate a product price the broker believes will mean the city's interest;

c. Recommend to the city a package of insurance benefits and what factors were considered in the selection of the package including, but not limited to, responses to inquiries by the broker, the rate of commissions, the history of the company, and any issues with the product;

d. Develop a final package based upon any considerations or modifications that the city wishes to pursue.

The insurance broker shall maintain appropriate records of the negotiations that will become the property of the city and, to the extent permitted by law, will be subject to disclosure as public record pursuant to the state Freedom of Information Act so long as such disclosure does not create an unfair competitive advantage for the insurance company.

(3) Any other appropriate service that the board may from time to time declare to be a professional service because cost or price bidding, is found to be impractical, unfeasible, or, if based solely upon price, would result in an outcome that would not meet the best interests of the city.

(b) It is the policy of the city to publicly announce all requirements for the competitive selection of professional services as referenced above, and to negotiate contracts for such services on the basis of demonstrated competence and qualifications for the type of professional services required provided that the services are rendered at fair and reasonable prices.

(c) All municipal boards, commissions, and authorities established pursuant to state statute or other legislative authority other than that provided for in A.C.A. tit. 14, ch. 47 [A.C.A. § 14-47-101 et seq.], shall be responsible for the implementation of

such policies and procedures as are hereinafter delegated to the city manager and the board of directors.

(d) The competitive selection for such services shall be conducted by a review committee which has been selected by the appropriate governing board, commission or authority as the case may be, which shall include appropriate city personnel and professionals, and/or individuals with community expertise based on the nature of the services to be selected. The review committee for each proposed contract, shall establish the qualifications and evaluation criteria necessary for the specific services to be provided.

(e) The city manager will cause to be advertised in a newspaper of general circulation a notice that the city has a need to contract for a particular professional service and shall invite all interested parties to submit within ten (10) days, to the extent permitted by the ethical standards of the profession, a statement of their qualifications and other relevant information based on the evaluation criteria specifically developed for the proposed services to be provided.

(f) The review committee shall evaluate all statements of qualifications and other submittals and may conduct interviews with up to five (5) firms regarding anticipated concepts and the relative utility of alternative methods of approach for furnishing the required services and then shall select therefrom, in order of preference, based on criteria established and published by the review committee, no less than three (3) of the firms deemed to be the most highly qualified to provide the services required.

(g) The review committee or its designee shall then negotiate a contract with the highest qualified firm for the services to be rendered, at compensation which the review committee, or its designee, determines is fair and reasonable to the city, subject to the approval of the governing board, commission or authority as referred to in subsection (c) of this section. In making such determination, the review committee or its designee, shall take into account the scope, complexity, and professional nature of the services to be rendered.

(h) Should the review committee, or its designee, be unable to negotiate a satisfactory contract with the firm considered to be the most qualified, at a price determined to be fair and reasonable to the city, negotiations with that firm shall be formally terminated. The review committee, or its designee, shall then undertake negotiations with the second most qualified firm. Failing accord with the second most qualified firm, the review committee, or its designee, shall terminate negotiations. The review committee, or its designee, shall then undertake negotiations with the third most qualified firm. Should the review committee, or its designee, be unable to negotiate a satisfactory contract with any of the selected firms, then the review committee shall select additional qualified firms in ranking order based on their competence and the information submitted pursuant to the evaluation criteria established and continue negotiations in accordance with this subsection until an agreement is reached.

(i) The requirement for a review committee shall be waived and the review of qualifications as hereinabove stated shall be delegated to the responsible department head for recommendation to the city manager who shall review and approve or disapprove all professional services contracts in an amount of five thousand dollars ($5,000.00) or less.

(Code 1961, § 2-44a; Ord. No. 15, 221, § 1, 12-2-86; Ord. No. 16,982, § 1, 10-3-95; Ord. No. 17, 111, § 2, 2-6-96; Ord. No. 17,170, § 1, 4-16-96; Ord. No. 17, 439, §§ 1, 2, 3-18-97; Ord. No. 17, 479, § 1, 5-6-97; Ord. No. 17, 563, § 1, 8-19-97; Ord. No. 17, 588, § 1, 10-7-97; Ord. No. 17,705,

§ 1, 4-7-98; Ord. No. 17, 818, § 1, 9-1-98; Ord. No. 18,100, § 1, 9-21-99; Ord. No. 18,111, § 1, 10-19-99; Ord. No. 18,113, § 1, 10-19-99; Ord. No. 18,426, § 1, 2-6-01; Ord. No. 18,449, § 1, 3-20-01; Ord. No. 18,667, § 1, 4-16-02; Ord. No. 18,684, § 1, 5-21-02; Ord. No. 19,110, § 1, 5-18-04; Ord. No. 19,180, § 1, 9-21-04; Ord. No. 19,484, § 1, 2-7-06; Ord. No. 20,095, § 1, 4-7-09; Ord. No. 20,148, § 1, 8-18-09; Ord. No. 20,241, § 1, 4-6-10; Ord. No. 19,917, § 1, 2-5-08; Ord. No. 20,581, § 1, 5-1-12; Ord. No. 20,616, § 1, 8-7-12; Ord. No. 20,662, § 1, 12-4-12; Ord. No. 21,013, § 1, 3-17-15; Ord. No. 21,424, § 1, 6-6-17; Ord. No. 21,442, § 1, 7-5-17; Ord. No. 21,940, § 1, 12-1-20; Ord. No. 22,206, § 2, 12-6-22; Ord. No. 22,206, § 2, 12-6-22)

Sec. 2-244. Selection of professional services for rate increases and bond issues.

The selection by an agency of bond counsel, independent financial advisor, or any other professional service will be made in accordance with the provisions of section 2-243. The assistant city manager for administration will be a member of the review committee established by section 2-243 for selection of bond issue-related professional services, and will inform the city manager of all proposed selections before contracts are executed for such services.
(Ord. No. 15,249, § 3, 2-17-87)

DIVISION 5. FINANCIAL REPORTING STANDARDS

Sec. 2-245. Title.

This division shall be known as the "Financial Reporting Standards for the City of Little Rock, Arkansas."
(Ord. No. 18,605, § 2, 12-18-01)

Sec. 2-246. Definitions.

Accrual basis of accounting means a basis of accounting that recognizes the financial effect of transactions, events, and interfund activities when they occur, regardless of the timing of related cash flows.

Basis of accounting means the method used to capture the timing of recognition, that is, when the effects of transactions or events should be recognized for financial reporting purposes. For example, the effects of transactions or events can be recognized on an accrual basis (i.e., when the transaction or event takes place, or on a cash basis, i.e., when cash is received or paid). Basis of accounting is an essential part of measurement focus because a particular timing of recognition is necessary to accomplish a particular measurement focus. The cash basis of accounting shall not be used by the city except to account for miscellaneous cash revenues such as fines, permits, licenses, and fees that are not accrued, or for other items not practicably measured until cash is received.

Board of directors means the mayor and members of the board of directors of the City of Little Rock, Arkansas.

City means the City of Little Rock, Arkansas.

City clerk means the city clerk, or designated representative, of the city, or if no one is officially serving in the position, the acting city clerk, or designated representative.

City manager means the city manager, or designated representative, of the city, or if no one is officially serving in the position, the acting city manager, or designated representative, which may include an assistant city manager.

Cash basis of accounting means a basis of accounting that recognizes transactions or events when related cash amounts are received or disbursed.

Chief financial officer means the chief financial officer, or designated representative, or if no one is serving in the position, the acting chief financial officer.

Consistency means the principle according to which once an accounting principle or reporting method is adopted, it will be used for all similar transactions and events.

Expenditures means decreases in net financial resources under the current financial resources measurement focus and pertains to payment of

normal operating payments and encumbrances. Expenditures are measured in governmental fund accounting.

Expenses mean the cost of doing business in a proprietary organization and can be either outflows or the using up of assets (cost expiration) such as the depreciation of fixed assets. Within the context of this division, "proprietary organization" or "proprietary fund" refers only to a method of accounting and is not used as any reference to whether the enterprise is conducted in a governmental or proprietary manner as that term is understood in Arkansas State Law. The city shall operate all enterprises referred to in this division in its governmental capacity.

Fund balance and net position mean the difference between fund assets plus deferred outflows of resources and liabilities plus deferred inflows of resources reflected on the balance sheet or statement of net position.

Generally accepted accounting principles (GAAP) means the conventions, rules and procedures that serve as the norm for the fair presentation of financial statements. Cash basis and income tax basis are not considered to be in accordance with GAAP.

Government fund type means funds generally used to account for tax-supported activities. There are five (5) different types of Governmental Funds: the General Fund; Special Revenue Funds: Debt Service Funds; Capital Project Funds: and Permanent Funds.

Modified accrual basis of accounting means a basis of accounting according to which 1) revenues are recognized in the accounting period in which they become available and measurable; and 2) expenditures are recognized in the accounting period in which the fund liability is incurred, if measurable, except for unmatured interest on general long-term debt and certain similar accrued obligations, which should be recognized when due.

Month-end close means one (1) month following the month reported. Up to two (2) weeks shall be allowed for the preparation of reports and variance analysis.

Proprietary fund type means funds that focus on the determination of operating income, changes in net assets, or cost recovery, financial position, and cash flows. There are two (2) different types of proprietary funds: Enterprise Funds and Internal Service Funds. Within the context of this division, "proprietary organization," or "Proprietary Fund" refers only to a method of accounting and is not used as any reference to whether the enterprise is conducted in a governmental or proprietary manner as that term is understood in Arkansas State Law. The city operates all enterprises referred to in this division in its governmental capacity.

Retained earnings means the excess of revenue or expenditures that has accumulated since the inception of a proprietary fund.

Revenue(s) means:

(1) Increases in the net current assets of a governmental fund type from other than expenditure refunds and residual equity transfers, but does not include any general long-term debt proceeds and operating transfers in (which are classified as "other financing sources") unless these constitute a reservation of fund balances for encumbrances carried forward from the prior year and the expenditure for which the fund balance was created has also been carried forward; or

(2) Increases in the net total assets of a proprietary fund type from other than expense refunds, capital contributions and residual equity transfers, but does not include operating transfer in which are classified separately from revenues unless these constitute a reservation of fund balances for encumbrances carried forward from the prior year and the expense for which the fund balance was created has also been carried forward.

(Ord. No. 18,605, § 3, 12-18-01; Ord. No. 22,253, § 1, 5-2-23; Ord. No. 22,253(Corr.), § 1, 5-2-23)

Sec. 2-247. Account reconciliation.

The city shall reconcile the city's financial records of cash receipts and expenditures to the

amount on deposit in all accounts in all financial institutions, or otherwise invested, on a monthly basis.
(Ord. No. 18,605, § 4, 12-18-01)

Sec. 2-248 Monthly financial report.

The board of directors shall receive a monthly financial report as follows:

(a) Budget comparison reports for budgeted funds shall be prepared and submitted to the board of directors by the city manager and chief financial officer within a reasonable time after the month-end close as follows:

(1) A monthly financial report, governmental fund type, which is an unaudited statement of revenues, expenditures, and changes in fund balances which also shows a comparison of budgeted to actual amounts.

(2) A monthly financial report, proprietary fund type, which is an unaudited statement of revenues, expenses and changes in net position which also shows a comparison of budgeted to actual amounts.

(b) For purposes of this section, a "reasonable time after month-end close" shall, except for the months of the first quarter and December, mean two (2) calendar weeks after month-end close unless the chief financial officer, prior to that time, notifies the board of directors in writing that the time frame cannot be met because of circumstances beyond the city's control and, provided that the report(s) will be published to the board of directors in accordance with this division as soon as reasonably possible which shall be within a time period not to exceed thirty (30) calendar days from the initial due date for the report(s).

(1) For purposes of this section, a "reasonable time after month-end close" shall, for the months of the first quarter and December, mean four (4) calendar weeks after month-end close unless the chief financial officer, prior to that time, notifies the board of directors in writing that the time frame cannot be met because of circumstances beyond the city's control and, provided that the report(s) will be published to the board of directors in accordance with this division as soon as reasonably possible which shall be within a time period not to exceed thirty (30) calendar days from the initial due date for the report(s).

(c) For purposes of this section, any report issued shall also contain a written explanation of significant variances of actual revenues and expenditures or actual revenues and expenses. The definition of a significant variance for any fiscal year shall be determined by the board of directors and shall be defined in a section of the annual budget ordinance for that fiscal year.

(d) Absent a signed and detailed written statement to the contrary, which may be presented independently by either the city manager or the chief financial officer in the exercise of their best professional judgment, the publication to the board of directors of any monthly financial report shall be deemed the equivalent of an affirmation by the city manager and the chief financial officer that for the period identified in the report:

(1) The report has been prepared from the accounting records of the city; and

(2) The city manager and the chief financial officer believe the accounting records accurately reflect:

(A) For the governmental fund type, the revenues and the expenditures and the fund balances; or

(B) For the proprietary fund type, the revenues and the expenses and the net position.

(e) The board shall include the receipt of the monthly financial report as an agenda item at the first regular meeting after its receipt.

(f) The format of all monthly financial reports shall be in accordance with governmental accounting standards and shall include annual budget, year-to-date budget, actual, variance from budget, and prior year for all budgeted funds.

(Ord. No. 18,605, § 5, 12-18-01; Ord. No. 22,253, § 1, 5-2-23; Ord. No. 22,253(Corr.), § 1, 5-2-23)

Sec. 2-249. Quarterly fund balance report.

(a) Within a reasonable period of time after month-end close for the last month in a quarter, the city manager and finance director shall prepare and publish to the board of directors a report that shows the balance of all city's funds.

(b) For purposes of this section, a "reasonable time after month-end close for the last month in a quarter" shall mean thirty (30) calendar days after month-end close unless the director of finance, prior to that time, notifies the board of directors in writing that the time frame cannot be met because of circumstances beyond the city's control, provided the quarterly fund balance report shall be published to the board of directors as soon as reasonably possible, and in any event within thirty (30) calendar days from the initial due date for the report.

(c) Absent a signed and detailed written statement to the contrary, which may be presented independently by either the city manager or the finance director in the exercise of their best professional judgment, the publication to the board of directors of any quarterly fund balance report shall be deemed the equivalent of an affirmation by the city manager and the director of finance that for the period identified in the report:

(1) The report has been prepared from the accounting records of the city; and

(2) The city manager and the director of finance believe the financial records accurately reflect:

a. The fund balances; and

b. The retained earnings.

(d) The quarterly fund balance report shall appear in substantially the following format:

City of Little Rock, Arkansas
Quarterly Fund Balance Report
For the Three Months Ended _____
(Unaudited)

	GF		BSR		OSR	CP	DS	EF		ISF		T	TOTAL ACTUAL
	B	A	B	A	A	A	A	B	A	B	A	A	(Memorandum only)
REVENUES:													
General property taxes	___	___	___	___	___	___	___	___	___	___	___	___	___
Sales taxes	___	___	___	___	___	___	___	___	___	___	___	___	___
Licenses and permits	___	___	___	___	___	___	___	___	___	___	___	___	___
Intergovernmental	___	___	___	___	___	___	___	___	___	___	___	___	___
Charges for services	___	___	___	___	___	___	___	___	___	___	___	___	___
Fines and fees	___	___	___	___	___	___	___	___	___	___	___	___	___
Utility franchise fees	___	___	___	___	___	___	___	___	___	___	___	___	___
Investment incomes	___	___	___	___	___	___	___	___	___	___	___	___	___
Miscellaneous	___	___	___	___	___	___	___	___	___	___	___	___	___
Total Revenues	___	___	___	___	___	___	___	___	___	___	___	___	___
EXPENDITURES/ EXPENSES:													
General government	___	___	___	___	___	___	___	___	___	___	___	___	___
Public works	___	___	___	___	___	___	___	___	___	___	___	___	___
Parks & recreation	___	___	___	___	___	___	___	___	___	___	___	___	___

	GF		BSR		OSR	CP	DS	EF		ISF		T	TOTAL ACTUAL (Memorandum only)
	B	A	B	A	A	A	A	B	A	B	A	A	
Fire	___	___	___	___	___	___	___	___	___	___	___	___	___
Police	___	___	___	___	___	___	___	___	___	___	___	___	___
Housing	___	___	___	___	___	___	___	___	___	___	___	___	___
Education	___	___	___	___	___	___	___	___	___	___	___	___	___
Capital outlay	___	___	___	___	___	___	___	___	___	___	___	___	___
Depreciation	___	___	___	___	___	___	___	___	___	___	___	___	___
Total Expenditures/ Expenses	___	___	___	___	___	___	___	___	___	___	___	___	___
REVENUES OVER (UNDER) EXPENDITURES/ EXPENSES	___	___	___	___	___	___	___	___	___	___	___	___	___
OTHER FINANCING SOURCES/USES:													
Transfers in	___	___	___	___	___	___	___	___	___	___	___	___	___
Transfers out	___	___	___	___	___	___	___	___	___	___	___	___	___
Grants received	___	___	___	___	___	___	___	___	___	___	___	___	___
Interest expense	___	___	___	___	___	___	___	___	___	___	___	___	___
Gain (loss) on disposal of fixed assets:	___	___	___	___	___	___	___	___	___	___	___	___	___
Other	___	___	___	___	___	___	___	___	___	___	___	___	___
REVENUES AND OTHER FINANCING SOURCES OVER (UNDER) EXPENDITURES/ EXPENSES AND OTHER FINANCING USES:	___	___	___	___	___	___	___	___	___	___	___	___	___
BEGINNING FUND BALANCE/RETAINED EARNINGS:	___	___	___	___	___	___	___	___	___	___	___	___	___
RECONCILIATION OF ENDING FUND BALANCE/RETAINED EARNINGS:													
Reserve fund balance	___	___	___	___	___	___	___	___	___	___	___	___	___
Other fund balances	___	___	___	___	___	___	___	___	___	___	___	___	___
TOTAL FUND BALANCES:	___	___	___	___	___	___	___	___	___	___	___	___	___

This Quarterly Fund Balance Report was presented to the Little Rock Board of Directors at its regular meeting of _____

Identification of Initials:

GF	General Fund	EF	Enterprise Funds
BSR	Budgeted Special Revenues	ISF	Internal Service Funds
OSR	Other Special Revenues	T	Trust Funds
CP	Capital Project	A	Actual
DS	Debt Service	B A	Budgeted as compared to Actual

(Ord. No. 18,605, § 6, 12-18-01)

Sec. 2-250. Semi-annual financial reports.

In addition to the reports required in this division, the city manager and financial director shall prepare and publish any financial statement or report as to city funds of whatever type as required by state law, or within thirty (30) calendar days after the month-end close for June and December of each fiscal year, whichever is sooner.

(Ord. No. 18,605, § 7, 12-18-01)

Sec. 2-251 Publication of financial reports.

In addition to publishing reports required in this division to the board of directors, the city manager, chief financial officer and city clerk shall also publish them as follows:

(a) Monthly financial reports shall be made available to the public and shall be published on any website the city maintains.

(b) Financial presentations regarding financial reports shall be made available on any government access channel the city maintains with a cable television operator.

(Ord. No. 18,605, § 8, 12-18-01; Ord. No. 19445, §§ 1(a)—1(c), 12-5-05; Ord. No. 22,253, § 1, 5-2-23; Ord. No. 22,253(Corr.), § 1, 5-2-23)

Sec. 2-252. Maintenance of financial records.

The city manager and director of finance shall maintain all records and documents pertaining to the monthly financial report for a period of not less than seven (7) years after the time covered by the records, provided that no such records shall be destroyed prior to the completion of an annual audit for the period covered by the report.

(Ord. No. 18,605, § 9, 12-18-01)

Sec. 2-253. Destruction of financial records.

Financial records necessary to fulfill the requirements of this division may be destroyed:

(a) Unless otherwise required by state statute or regulation, after the expiration of seven (7) years, provided there has been an annual audit for the period covered by such records, the city manager may authorize the destruction of all records and documents pertaining to the reports identified in this division if a memorandum has been prepared that identifies the records and documents, the method of destruction, the date of destruction, and the employee(s) who carried out the destruction; or

(b) At any time that the originals of the records are no longer required for any evidentiary purpose in a court of law and:

(1) The records have otherwise been retained in an electronic format or similar technology;

(2) There has been an annual audit for the period covered by such records;

(3) Records retained in such a manner are accepted for accounting or evidentiary purposes as true and accurate reflections of the information contained in the record;

(4) There is on file an affidavit that sets forth the records that have been so retained, the person or entity who placed the records in an electronic format or similar technology, and a statement that the recordation is a true, accurate, and complete preservation of the records;

(5) A back up copy of the records is available; and

(6) The records are to be maintained in this form for at least a period of seven (7) years.

(Ord. No. 18,605, § 10, 12-18-01; Ord. No. 22,253, § 1, 5-2-23; Ord. No. 22,253(Corr.), § 1, 5-2-23)

Sec. 2-254. Restricted reserve fund.

As a part of any city budget, and as a part of all financial reports required by this division, there shall be identified a restricted fund balance that constitutes a restricted reserve fund for the city. Any changes in this fund from the most immediate prior report of a similar nature shall be noted and explained by the city manager and chief financial officer.

(Ord. No. 18,605, § 11, 12-18-01; Ord. No. 22,253, § 1, 5-2-23; Ord. No. 22,253(Corr.), § 1, 5-2-23)

Sec. 2-255. Timeline for finance department reporting requirements.

As a part of each annual budget, the board shall include a section which sets forth the timeline for the receipt and reporting of information required by this division. This timeline shall be prepared by the city manager, after consultation with the chief financial officer and all appropriate financial institutions and shall constitute an annual guideline to assure the efficient and accurate maintenance of city fiscal records and reports.
(Ord. No. 18,605, § 12, 12-18-01; Ord. No. 22,253, § 1, 5-2-23; Ord. No. 22,253(Corr.), § 1, 5-2-23)

Sec. 2-256. Provisions in relation to federal and state law.

(a) The provisions of this division shall be interpreted as supplemental to the provisions of any federal or state law that addresses issues of local government financial reporting.

(b) The city manager and chief financial officer shall always be required to prepare and publish financial reports in accordance with the provisions of this division.

(c) Notwithstanding the supplemental nature of this division, the city manager and chief financial officer shall not be required to publish any financial reports otherwise required by Arkansas State Law to be published if:

(1) The reports are duplicative to reports that are already published as required by this division;

(2) The federal or state law in question permits a municipality to obtain an exemption from the publication provisions of the law; and

(3) The city has received such an exemption.
(Ord. No. 18,605, § 13, 12-18-01; Ord. No. 22,253, § 1, 5-2-23; Ord. No. 22,253(Corr.), § 1, 5-2-23)

DIVISION 6. RESTRICTED RESERVE FUND

Sec. 2-257. Title.

This division shall be known as the "Restricted Reserve Fund" ordinance for the City of Little Rock, Arkansas.
(Ord. No. 18,606, § 2, 12-18-01)

Sec. 2-258. Definition.

Restricted reserve fund means a portion of the governmental fund type's net assets that are accounted for in a restricted fund balance which is not available for appropriation without a special and specific actions of the board of directors.
(Ord. No. 18,606, § 3, 12-18-01)

Sec. 2-259. Size.

The restricted reserve fund shall be considered to be fully funded as a part of the annual city budget when the restricted fund balance shows an amount equal to ten million dollars ($10,000,000.00), or ten (10) percent of the annual general fund revenues for a budgeted year, whichever amount is greater.
(Ord. No. 18,606, § 4, 12-18-01)

Sec. 2-260. Timeline for initial funding.

Absent express action of the board of directors to the contrary, as a part of the annual city budget process, revenues shall be deposited in the restricted reserve fund in such amounts determined by the board of directors to assure that the restricted reserve fund shall be fully funded by December 31, 2005.
(Ord. No. 18,606, § 5, 12-18-01)

Sec. 2-260.1. Limitation on appropriations.

The restricted fund balance which constitutes the restricted reserve fund shall not be available for appropriation without the passage of an express ordinance by the board of directors, after recommendation from the city manager, to spend funds in the restricted reserve fund. The city

manager shall not recommend the appropriation of any monies in the restricted reserve fund unless the recommendation:

(a) Is presented to the board of directors:

1. In writing at least seventy-two (72) hours prior to the regular meeting of the board at which the issue will be discussed; or

2. At a special meeting called for the express purpose and considering such an appropriation; and

(b) The city manager demonstrates that no other funds are available to meet the special obligation under consideration; and

(c) The city manager demonstrates that the appropriation is necessary:

1. To meet a unique opportunity for the overall well-being of the city and there is not sufficient time to meet this opportunity as part of the regular city budget process; or

2. To continue to operate budgeted city services at the level set forth in the annual budget because of some catastrophic event, or some unforeseen economic downturn that could not be reasonably predicted and considered as a part of the annual budget process; or

3. To meet some legal obligation imposed upon the city as a result of administrative or legal action not reasonably anticipated at the time of the annual budget process.

(d) Until the restricted reserve fund is fully funded in accordance with section 2-259 of this division, the city manager should consider a recommendation to expend funds from the restricted reserve fund only as a last resort and, only if he reasonably believes that it is absolutely necessary to meet a serious and imminent situation facing the city.

(Ord. No. 18,606, § 6, 12-18-01)

Sec. 2-260.2. Notice of downward economic trends.

The city manager and director of finance shall notify the board of directors in writing at the first available opportunity if economic trends indicate that the revenues projected as a part of the annual city budget are not meeting projections and require the board to consider reductions in force, city services or the use of restricted reserve fund monies to meet the city's obligations funded in the annual city budget.
(Ord. No. 18,606, § 7, 12-18-01)

DIVISION 7. FINANCIAL POLICIES

Sec. 2-260.3. Operating management.

(1) All city departments will share in the responsibility of meeting policy goals and ensuring long-term financial health. Future service plans and program initiatives will be developed to reflect current policy directives, projected resources and future service requirements. When appropriate, sunset provisions will be incorporated into service plans.

(2) The budget process is intended to weigh all competing requests for city resources. Requests for new, ongoing programs made outside the budget process will be discouraged.

(3) Addition of personnel will only be requested to meet program initiatives and policy directives, after service needs have been thoroughly examined and it is substantiated that additional staffing will result in increased revenue or enhanced operating efficiencies. To the extent feasible, personnel cost reductions will be achieved through attrition.

(4) Current expenditures will be funded by current revenues. A diversified and stable revenue system will be developed to protect programs from short-term fluctuations in any single revenue source.

(5) No revenues will be dedicated for specific purposes, unless required by law or generally accepted accounting practices (GAAP). All

nonrestricted revenues will be deposited in the general fund and appropriated by the budget process.

(6) User fees and charges will be examined annually to ensure they recover all direct and indirect costs of service. If the user fees and charges required to meet full cost recovery would be excessively burdensome on citizens receiving service, the board of directors may approve a lower user fee or charge. The city will consider market rates and charges levied by other public and private organizations for similar services in establishing rate and fee structures. Rate adjustments for waste disposal will be based on five-year financial plans.

(7) Grant funding should be considered to leverage city funds. Inconsistent and/or fluctuating grants and trusts should not be used to fund ongoing programs. Programs financed with grant moneys will be budgeted in separate cost centers, and the service program will be adjusted to reflect the level of available funding. In the event of reduced grant funding, city resources will be substituted only after all program priorities and alternatives are considered during the budget process.

(8) All grants and other federal and state funds shall be managed to comply with the laws, regulations, and guidance of the grantor, and all gift and donations shall be managed and expended according to the wishes and instructions of the donor.

(9) Fleet replacement will be accomplished through the use of a "rental" rate structure. The rates will be revised annually to ensure that charges to operating departments are sufficient for operation and replacement of vehicles.

(10) Balanced revenue and expenditure forecasts will be prepared to examine the city's ability to absorb operating costs due to changes in the economy, service demands, and capital improvements. The forecast will encompass five (5) years and will be updated annually.

(11) Comparison of service delivery will be made to ensure that quality services are provided to our citizens at the most competitive and economical cost. Departments will identify all activities that can be provided by another source and review alternatives to current service delivery. The review of service delivery alternatives will be performed continually. During the annual budget process, funding for outside agencies, Children's Youth and Family, and special projects will be evaluated.

(12) To attract and retain employees necessary for providing high-quality services, the city shall establish and maintain a very competitive compensation and benefit package with the public and private sectors.

(13) The city will follow an aggressive and professional policy of collecting revenues.

(14) In each annual budget, the city may authorize a transfer from one fund to another for one (1) or more special projects. Expenditures from the special project shall be consistent with the purpose of the special project. Unspent appropriations for special projects remaining on December 31 in the current fiscal year shall be returned to the fund of origin unless the city manager authorizes a special project to continue.

(15) The city will strive to maintain fair and equitable relationships with its contractors and suppliers.

(Ord. No. 18,649, § 1(Att. A), 2-19-02; Ord. No. 22,697, §§ 1, 2, 12-16-25)

Sec. 2-260.4. Capital management.

(1) A five-year capital improvement plan will be developed biannually and updated annually, including anticipated funding sources. Capital improvement projects are defined as infrastructure or equipment purchases or construction that results in a capitalized asset exceeding ten thousand dollars ($10,000.00) and having a useful life (depreciable life) of one (1) year or more.

(2) The capital improvement plan will include all major capital projects with a total proposed cost valued at fifty thousand dollars ($50,000.00) or more. Capital improvements with a value less than fifty thousand dollars ($50,000.00) shall be included in the annual operating budget process. These improvements are referred to as capital outlays. Repairs are the maintenance of an existing capital asset to preserve or restore the

asset to its original condition are not eligible for inclusion in the capital improvement plan. The city will expense repairs to the appropriate operating fund and department.

(3) Proposed capital projects will be reviewed by a cross-departmental team for accurate costing (design, capital, and operating), congruence with city objectives and prioritized by a set of deterministic criteria. Financing sources will be sought for the highest-ranking projects.

(4) Capital improvement operating budget impacts will be coordinated with the development of the annual operating budget. Future operating, maintenance, and replacements costs will be forecast as part of the city's five-year financial forecast.

(5) The city will strive to provide for a minimum of five (5) percent of internal, pay-as-you-go financing for its capital improvement program. Funding may come from fund balance reserves or any other acceptable means of funding.
(Ord. No. 18,649, § 1(Att. A), 2-19-02; Ord. No. 22,697, § 4, 12-16-25)

Sec. 2-260.5. Debt management.

(1) The city will seek to maintain and, if possible, improve its current bond rating in order to minimize borrowing costs and preserve access to credit. The city will encourage and maintain good relations with financial bond rating agencies and will follow a policy of full and open disclosure.

(2) Every future bond issue proposal will be accompanied by an analysis showing how the new issue combined with current debt impacts the city's debt capacity and conformance with city debt policies.

(3) The city will attempt to develop a coordinated communication process with all other overlapping jurisdictions with which it shares a common tax base concerning collective plans for future debt issues.

(4) Financing shall not exceed the useful life of the asset being acquired or constructed.

(5) The city will not use long-term debt to finance current operations.

(6) The general policy of the city is to establish debt repayment schedules that use level annual principal and interest payments. Any deviations from this must be communicated prior to the issuance of the debt explaining the reason for the deviation.

(7) The general policy of the city is to fund capital projects (infrastructure) with new, dedicated streams of revenue or voter approved debt. Nonvoter approved debt may be utilized when a dedicated revenue source other than general revenue can be identified to pay debt service expenses.

(8) Interest earnings on bond proceeds will be limited to 1) funding the improvements specified in the authorizing bond ordinance, or 2) payment of debt service on the bonds.

(9) Utility or waste disposal rates will be set to ensure debt service coverage exceeds the bond indenture requirement of one hundred twenty-five (125) percent.

(10) The city shall comply with the Internal Revenue Code, Section 148—Arbitrage Regulation, for all tax-exempt debt issued. An annual estimate of arbitrage liabilities shall be obtained by the city and recorded on the financial statements.

(11) The city shall use a competitive bidding process in the sale of debt unless the use of a negotiated process is warranted due to market timing requirements (refunding), or a unique pledge or debt structure. The city will award competitively issued debt on a true interest cost (TIC) basis.

(12) Proceeds from debt will be used in accordance with the purpose of the debt issue. Funds remaining after the project is completed will be used in accordance with the provisions stated in the bond ordinance that authorized the issuance of the debt.
(Ord. No. 18,649, § 1(Att. A), 2-19-02; Ord. No. 22,697, §§ 5, 6, 9, 12-16-25)

Sec. 2-260.6. Reserves.

(1) All fund designations and reserves will be evaluated annually for long-term adequacy and use requirements in conjunction with development of the city's five-year financial plan.

(2) The general fund goal is to set aside ten million dollars ($10,000,000.00) or ten (10) percent of general fund revenues, whichever is greater, into a restricted reserve fund.

(3) Each annual operating budget will include a contingency appropriation in the general fund sufficient to provide for unforeseen needs of an emergency nature for that year. The desired level of the contingency appropriation each year shall be based on the average of the three (3) prior years' experience levels but no less than one-half (.5) percent of general fund revenue for the current fiscal year.

(4) The waste disposal fund will maintain an unrestricted net position reserve of no less than fifteen (15) percent of current year revenues.

(5) Fleet management reserves will be maintained based upon lifecycle replacement plans to ensure adequate fund balance required for systematic replacement of fleet vehicles. Operating departments will be charged for fleet operating costs per vehicle class and replacement costs spread over the useful life of the vehicles.

(6) The general policy of the city is to establish debt repayment schedules that use level annual principal and interest payments. Any deviations from this must be communicated prior to the issuance of the debt explaining the reason for the deviation.

(7) A facility maintenance reserve will be maintained based upon life-cycle replacement plans to ensure adequate funding for infrastructure repair and operating equipment replacement (HVAC, roofing, etc.).

At the end of the fiscal year and upon completion of the related annual audit, the city will annually transfer any general fund surplus to the restricted reserve fund to meet target reserve requirements for future periods.
(Ord. No. 18,649, § 1(Att. A), 2-19-02; Ord. No. 22,697, §§ 8—10, 12-16-25)

Sec. 2-260.7. Cash management and investments.

(1) Cash and investment programs will be maintained in accordance with the state law and the adopted investment policy and will ensure that proper controls and safeguards are maintained. City funds will be managed in a prudent and diligent manner governed by the primary objective of safety of principal; the secondary objective shall be compliance with all legal restrictions and liquidity needs; and the final objective shall be yield.

(2) The city will maintain written guidelines on cash handling, accounting, segregation of duties, and other financial matters.

(3) The city will conduct periodic reviews of its internal controls and cash handling procedures.

(4) The city will annually identify and develop an internal audit work plan.
(Ord. No. 18,649, § 1(Att. A), 2-19-02; Ord. No. 22,697, §§ 8—11, 12-16-25)

Sec. 2-260.8. Accounting, auditing and financial reporting.

(1) The city's accounting and financial reporting systems will be maintained in conformance with generally accepted accounting principles (GAAP) and the standards set by the Governmental Accounting Standards Board (GASB) and the Government Finance Officers Association (GFOA).

(2) An independent public accounting firm will perform an annual audit. The auditor's opinion will be included with the city's published annual comprehensive financial report (ACFR). The ACFR will be made available to the public via the city's website.

(3) The city's ACFR will be submitted to the GFOA certification of achievement for excellence in financial reporting program. The financial report should be in conformity with GAAP, demonstrate compliance with finance-related legal and contractual provisions, provide full disclosure of all financial activities and related matters, and minimize ambiguities and potentials for misleading inference.

The city may supplement its ACFR with a simpler, Popular Annual Financial Report (PAFR) designed to assist those citizens who prefer a

less detailed overview of the city's financial activities. This report will be issued concurrently with the ACFR.

(4) The city's budget will be submitted to the GFOA distinguished budget presentation program. The budget should satisfy criteria as a financial and programmatic policy document, as a comprehensive financial plan, as an operations guide for all organizational units and as a communications device for all significant budgetary issues, trends and resources.

(5) Financial systems will be maintained to monitor revenues, expenditures, and program performance on an ongoing basis.

(6) Monthly financial reports shall be prepared and presented to the board of directors on a timely basis.

Monthly sales and use tax collection report shall be prepared and presented to the board of directors on a timely basis.
(Ord. No. 18,649, § 1(Att. A), 2-19-02; Ord. No. 22,697, §§ 12—15, 12-16-25)

Secs. 2-260.9—2-260.14. Reserved.

ARTICLE VII. BOARDS AND COMMISSIONS*

DIVISION 1. GENERALLY

Sec. 2-261. Authority to establish, etc.

The board of directors may establish or abolish boards and commissions in accordance with applicable law.

***Cross references—**Board of civil service commissioners, § 2-112; ambulance board, § 5-26 et seq.; municipal airport commission, § 7-26 et seq.; board of building code appeals, § 8-30; board of electrical code appeals, § 8-121 et seq.; housing board of adjustments and appeals, § 8-376 et seq.; Oakland-Fraternal cemetery board, § 9-96 et seq.; board of commissioners of Mount Holly Cemetery, § 9-125; city beautiful commission, § 15-26 et seq.; library board of trustees, § 16-26 et seq.; city advertising and promotion commission, § 17-100; parking authority, Ch. 21; art and humanities promotion commission, § 22-86 et seq.; board of trustees of the Arkansas Museum of Science and History, § 22-181 et seq.; planning commission, § 23-26 et seq.; historic district commission, § 23-96 et seq.; port authority, Ch. 25; sign appeal board, § 27-10; waterworks commission, § 35-26; sanitary sewer committee, § 35-103; board of zoning adjustment, § 36-66 et seq.

Sec. 2-262. Attendance of members at meetings.

(a) All boards and commissions which are not provided for by state law are controlled by this section.

(b) This section automatically amends the bylaws of all affected boards and commissions.

(c) When a member of a board or commission has missed more than twenty-five (25) percent of all regular meetings of that particular board or commission in one (1) calendar year or more than three (3) consecutive regularly scheduled meetings, then such person is automatically removed from such position unless, prior to the next scheduled meeting of the city board of directors, the member submits in writing his desire to remain on the board or commission, then the city board of directors, by a majority vote, shall allow the member to continue to serve. Any board or commission of the city, except the civil service commission, planning commission and board of adjustment, each of which hears regularly scheduled petitions from the public, may submit its own attendance policy in writing to the city board of directors. If the city board approves the policy by a majority vote, that board or committee shall then be exempted from the provision of this section.

(d) The board of commission shall immediately certify to the city manager that the member has missed the requisite number of meetings. The city manager shall immediately notify the board of directors of the vacancy, whereupon the board of directors shall appoint a new member by resolution at the next regular meeting of the board of directors.

(e) The city manager shall also notify the person who is to be replaced of such replacement.
(Code 1961, § 2-5.1)

Sec. 2-263. Commission member doing business with the commission or bureau.

(a) Members of the Little Rock Advertising & Promotion Commission "Commission" who are appointed to one of the four (4) tourism industry positions or to the at-large position ("commission-

ers") pursuant to state statute and city ordinance are authorized to enter into contracts for furnishing goods or services to the commission and the Little Rock Convention and Visitors Bureau on the same terms and conditions as other businesses pursuant to the commission's purchasing policies currently in effect, and consistent with the city's purchasing policies.

(b) All transactions directly invoiced to the commission or bureau and authorized by this section shall be reported to the commission on a monthly basis.

(c) Whenever a procurement, sponsorship, or business development expenditure that involves a commissioner comes before the commission for approval, the involved commissioner shall comply with the city code of ethics codified as sections 2-331 through 2-339, as may be amended.
(Ord. No. 19,858, § 1, 11-13-07)

Secs. 2-264—2-270. Reserved.

DIVISION 2. RESERVED*

Secs. 2-271—2-280. Reserved.

DIVISION 3. RESERVED†

Secs. 2-281—2-290. Reserved.

*__Editor's note—__Ord. No. 18,673, § 7, adopted April 2, 2002, repealed Div. 2, which pertained to commission on domestic violence and derived from Ord. No. 16,704, §§ 1—4, adopted July 13, 1994; Ord. No. 17,731, §§ 1(a), (b), adopted May 19, 1998; and Ord. No. 18,545, § 1, adopted Aug. 21, 2001.

†__Editor's note—__Ord. No. 18,673, § 7, adopted April 2, 2002, repealed Div. 3, which pertained to education commission and derived from Ord. No. 16,730, §§ 1—4, adopted Aug. 16, 1994; Ord. No. 17,362, § 1, adopted Dec. 17, 1996; Ord. No. 17,983, § 1, adopted April 20, 1999; and Ord. No. 18,328, § 1, adopted Aug. 1, 2000.

DIVISION 4. MACARTHUR—MILITARY HISTORY MUSEUM COMMISSION‡

Sec. 2-291. Creation.

There is hereby created a MacArthur—Military History Commission to be comprised of not more than seventeen (17) persons, or such number as the commission later deems appropriate, appointed by the board of directors, and authorized to fulfill the duties set forth in this division, provided that this group will always include at least two (2) military veterans on active duty, or honorably discharged or retired from service.
(Ord. No. 16,800, § 1, 12-20-94)

Sec. 2-292. Powers.

The MacArthur—Military History Commission shall have the following duties and powers:

(1) To develop a mission statement for the museum.

(2) To hold regular public meetings and keep a written record of its proceedings which shall be public records.

(3) To annually review the needs of programs that enhance awareness of the rich military history of the city and the state and to submit a proposed budget for such programs to the city manager and the board of directors of the city.

(4) To make expenditures in accordance with the annual budget adopted by the city and in accordance with all fiscal procedures of the city.

(5) To initiate, sponsor or conduct, alone or in cooperation with other public or private agencies, public programs to further the public awareness of the city's and the state's military heritage.

‡__Editor's note—__Ord. No. 16,800, §§ 1—4, adopted Dec. 20, 1994, did not specifically amend the Code; hence, inclusion herein as Div. 4, §§ 2-291—2-294, was at the discretion of the editor.

(6) To apply for, receive, and expend any public or private grants or monies that are provided for museum and history purposes.

(7) To annually report to the board of directors of the city by December 31 of each year the programs and activities the commission has undertaken during that year.

(8) All other powers, consistent with Arkansas law and city ordinances, necessary to carry on the mission of the MacArthur—Military History Museum [Museum of Military History].

(Ord. No. 16,800, § 2, 12-20-94)

Sec. 2-293. Collection.

The collection and records of the museum shall be the property of the city, but shall be held in trust by the commission.
(Ord. No. 16,800, § 3, 12-20-94)

Sec. 2-294. Location.

Upon the Arkansas museum of science and history moving its collection and quarters from the MacArthur Park armory building, the MacArthur—Museum of Military History shall be located in the armory building. This building shall then be used for the sole purpose of housing the military history collection and conducting its programs.
(Ord. No. 16,800, § 4, 12-20-94)

Secs. 2-295—2-300. Reserved.

DIVISION 5. RESERVED*

Secs. 2-295—2-310. Reserved.

*__Editor's note—__Ord. No. 19,900, § 1, adopted Jan. 8, 2008, repealed div. 5, which pertained to land bank and residential housing facilities board and derived from Ord. No. 16,819, §§ 1—4, adopted Dec. 209, 1994.

DIVISION 6. COMMUNITY HOUSING ADVISORY BOARD

Sec. 2-311. Name.

This board shall be known as the "Community Housing Advisory Board."
(Ord. No. 17,750, § 1, 6-2-98)

Sec. 2-312. Purpose.

The purpose of this board shall be to coordinate city efforts to develop affordable housing within the city.
(Ord. No. 17,750, § 2, 6-2-98)

Sec. 2-313. Members.

(a) The community housing advisory board shall consist of eleven (11) members who are duly qualified electors of the city and who represent the following interests at the time of appointment:

(1) One (1) member of the board of directors, or a representative who has served on the board of directors and is appointed by the board to continue in such service;

(2) One (1) representative of a lending institution;

(3) One (1) representative who is landlord of property within the City of Little Rock;

(4) One (1) representative of a for profit corporation within the city;

(5) One (1) representative of a community development corporation;

(6) One (1) representative of a neighborhood association recognized by the city;

(7) One (1) representative of the real estate business community within the city;

(8) One (1) representative of a nonprofit corporation within the city;

(9) Three (3) representatives selected for at-large seats.

(b) In addition to fulfilling the requirements set forth above, the members of this board shall also be required to have knowledge and experi-

ence in the housing needs of the city, and a background in the social, economic and cultural development of the city.

(c) The members of this board, and their successors, shall be selected by the city board of directors.
(Ord. No. 17,750, § 3, 6-2-98)

Sec. 2-314. Term.

Each member of the community housing advisory board shall serve a term of three (3) years, provided that the initial terms of office shall be determined by drawing lots to assure staggered terms so that four (4) members shall initially serve one (1) year, four (4) members shall serve

two (2) years, and three (3) members shall serve three (3) years. Notwithstanding the length of term set forth in this section, all members of the board shall serve until their successor has been appointed by the city board of directors.
(Ord. No. 17,750, § 4, 6-2-98)

Sec. 2-315. Powers and duties.

The community housing advisory board shall have the following powers and duties:

(1) To appoint a chair and vice-chair, which is to occur at the first meeting in January of each year;

(2) To adopt rules, regulations, and bylaws, consistent with state law and city ordinances, under which the board shall operate;

(3) To create any committees or subcommittees that the board deems necessary;

(4) To provide an annual report to the city board of directors which shall contain recommendations and provide information about the operation of the community housing advisory board and the plans it has developed to promote affordable housing within the city.

(Ord. No. 17,750, § 5, 6-2-98)

Sec. 2-316. Quorum.

No business shall be conducted unless there is a quorum of six (6) members present at any duly scheduled regular or special meeting.
(Ord. No. 17,750, § 6, 6-2-98)

Sec. 2-317. Staff.

The city manager is authorized to provide city staff to assist the community housing advisory board in the fulfillment of its duties.
(Ord. No. 17,750, § 7, 6-2-98)

Sec. 2-318. Findings.

The city board of directors finds that it is important to assure than affordable housing is available to all of its citizens. In Resolution No. 10,134, the board agreed that a majority of the initial membership of this community housing advisory board should come from the housing partnership and landbank authority task force.
(Ord. No. 17,750, § 8, 6-2-98)

DIVISION 7. RACIAL AND CULTURAL DIVERSITY COMMISSION

Sec. 2-319. Created.

The city hereby authorizes a commission to be known as the "Little Rock Racial and Cultural Diversity Commission" to fulfill the purposes of this division.
(Ord. No. 16,722, § 1, 8-2-94)

Sec. 2-320. Purpose.

The Little Rock Racial and Cultural Diversity Commission has the full-time mission of promoting equal opportunity and the full exercise of civil rights for all citizens of the city. It is committed to dismantling racism and reducing prejudice within the city through modeling, education and policy development.
(Ord. No. 16,722, § 2, 8-2-94; Ord. No. 17,665, § 1, 1-20-98)

Sec. 2-321. Membership.

The commission shall consist of nineteen (19) members selected at large and shall reflect to the extent possible the diversity of the community. Each ward of the city shall be represented on the commission by at least one (1) person who resides within the boundaries of the ward. Members of the commission shall be selected by majority vote of the board of directors.
(Ord. No. 16,722, § 3, 8-2-94; Ord. No. 17,665, § 2, 1-20-98; Ord. No. 17,926, § 1, 1-19-99; Ord. No. 18,754, § 1, 10-1-02)

Sec. 2-322. Term of members.

(a) All persons who served on the original commission and who are again appointed to this commission as a result of Ordinance No. 17,665, shall draw lots to determine if their tenure continues for one or two (2) years. All other persons appointed as a result of this ordinance shall draw lots to determine if their tenure shall be for one

(1), two (2) or three (3) years. The initial composition of the reconstituted commission shall be five (5) persons with one-year terms; six (6) persons with two-year terms; and six (6) persons with three-year terms.

(b) After these initial terms are completed, all appointments to the commission shall be for a term of three (3) years.

(c) Notwithstanding subsection (b), any person selected to fill an unexpired term on the commission shall serve until the completion of that unexpired term, provided the person may be reappointed to a full term consistent with city policy.
(Ord. No. 16,722, § 4, 8-2-94; Ord. No. 17,665, § 3, 1-20-98)

Sec. 2-323. Vacancies.

If any member of the commission resigns or terminates service before his or her term expires, the board of directors shall appoint a successor to fill the remainder of the term.
(Ord. No. 16,722, § 5, 8-2-94)

Sec. 2-324. Selection of officers.

The officers of the commission shall consist of a chair and a vice-chair and such other officers as shall be determined by the commission to be required. These officers shall be elected by the commission.
(Ord. No. 16,722, § 6, 8-2-94; Ord. No. 17,665, § 4, 1-20-98)

Sec. 2-325. Duties and powers.

The commission shall have the following duties and powers:

(a) To carry out goals as directed by the city board of directors;

(b) To advise and assist the city in dismantling racism through education, mediation and legislation;

(c) To promote equal opportunity and full exercise of civil rights of all citizens of the city;

(d) To engage in such other activities as may be referred to the commission by the board of directors;

(e) To prepare an annual report of the activities of the commission; and

(f) To periodically review and revise its bylaws for necessary changes.
(Ord. No. 16,722, § 7, 8-2-94; Ord. No. 17,665, § 5, 1-20-98)

Secs. 2-326, 2-327. Reserved.

DIVISION 8. PARKS AND RECREATION COMMISSION

Sec. 2-327.1. Statement of policy.

The city shall maintain an efficient parks and recreation system which includes, among other things, parks, open space, athletic fields, tennis facilities, swimming pools, golf courses, recreation centers, and other facilities dedicated to enhancing the quality of life for the citizens and visitors to the city. The city will work to fully implement the master parks plan to achieve "a city in a park".
(Ord. No. 18,803, § 1, 1-7-03)

Sec. 2-328. Little Rock Parks and Recreation Commission.

A Little Rock Parks and Recreation Commission is created to review, consult and advise the city on matters concerning the operation and maintenance of the parks and recreation department and on matters pertaining to the implementation of the master parks plan, and significant issues involving or affecting these matters shall be referred to and considered by this commission prior to consideration by the board of directors. It shall consist of no less than five (5) and no more than eleven (11) residents of Little Rock, Arkansas, who will serve a term of three (3) years. The initial membership of the Little Rock Parks and Recreation Commission will include the citizens already serving on the Little Rock Parks and Recreation Advisory Commission. After the initial cycle of terms, the Little Rock Parks and Recreation Commission shall make appointments to the commission, each of which must be affirmed

by the Little Rock Board of Directors. The director of Little Rock Parks and Recreation will serve as an ex-officio member of the Little Rock Parks and Recreation Commission. The said commission may from time to time elect honorary life members, as it deems necessary.
(Ord. No. 18,803, § 2, 1-7-03; Ord. No. 19,211, § 2, 10-5-04)

Sec. 2-329. Compensation.

Members of the Little Rock Parks and Recreation Commission shall serve without pay. Members of the commission may be reimbursed for expenses necessarily incurred in the performance of commission business in accordance with city policy and state statute.
(Ord. No. 18,803, § 3, 1-7-03)

Sec. 2-330. Authority and duties of the commission.

The Little Rock Parks and Recreation Commission shall have the following authority and duties:

(a) To hold periodic meetings not less than once a month, which are open to the public and for which minutes shall be maintained, to perform the other duties required by this division;

(b) To consult with and advise the Director of Little Rock Parks and Recreation, and to recommend policies and plans for the operation, maintenance and expansion of the park system, facilities and programs;

(c) To consult with and advise the Little Rock Parks and Recreation Department Director, and to recommend to the city manager and board of directors park land and facility acquisitions based on standards contained in the Asset Management and Disposition Policy for Little Rock Parks and Recreation Park Land adopted by the board of directors, as may be amended.

(d) To consult with and advise the Director of Little Rock Parks and Recreation, and to recommend fees, rates, tolls, and charges for the services, facilities and commodities rendered by the properties and programs of the park system;

(e) To consult with and advise the Director of Little Rock Parks and Recreation, and to recommend rules and regulations governing the use and protection of the park system and property therein;

(f) To consult with and advise the Director of Little Rock Parks and Recreation on the master parks plan and the best approach for implementation, including but not limited to prioritizing projects and recommending capital funding allocations;

(g) To consult with and advise the Director of Little Rock Parks and Recreation annually to determine financial needs for the department and to report these budget need for the next year to the city manager for inclusion in the city's budget process, provided that any budget recommendation will assure that the city's covenants pursuant to any outstanding parks and recreation revenue bonds are met;

(h) Reserved.

(i) Reserved.

(j) To submit an annual report to the Little Rock Board of Directors that addresses the state of the operations, facilities and programs in Little Rock Parks and Recreation;

(k) To cooperate with counties, municipalities and other political subdivisions of the state on matters relating to planning, establishing, developing, improving or maintaining any park, parkway or recreational area that has an impact beyond the city limits;

(l) To have all authority, subordinate to the city board of directors, or the city manager, which is not specifically enumerated in this division to operate and improve the city's park system, facilities and programs, provided that such authority does not violate or conflict with state law, subject

to the city or any of its employees to liability, or is contrary to the covenants of any outstanding bond issues.

(Ord. No. 18,803, § 4, 1-7-03; Ord. No. 20,708, § 1, 4-2-13)

Secs. 2-330.1—2-330.9. Reserved.

DIVISION 9. COMMISSION ON CHILDREN, YOUTH AND FAMILIES

Sec. 2-330.10. Creation.

There is hereby created the Little Rock Commission on Children, Youth and Families, hereinafter referred to as the "commission", exclusively an advisory commission, to be appointed by the Little Rock Board of Directors, hereinafter referred to as the "board of directors".

(Ord. No. 18,673, § 1, 4-2-02)

Sec. 2-330.11. Mission statement.

The commission shall provide policy leadership and advocacy that improves the health, safety, education and quality of life of children, youth and families in Little Rock.

(Ord. No. 18,673, § 2, 4-2-02)

Sec. 2-330.12. Goals.

The goals of the commission are as follows:

(a) To educate and advise the board of directors about critical policy decisions and emerging issues impacting children, youth and families in Little Rock.

(b) To develop strategic plans, set priorities, and advise the board of directors on the implementation of coordinated, holistic community approaches that address the needs of children, youth and families in Little Rock, particularly those at most risk.

(c) To serve as an informational resource to the board of directors on issues related to children, youth and families in Little Rock.

(d) To identify and promote best practices in the delivery of services to children, youth and families in Little Rock.

(e) To collaborate with other governmental jurisdictions and with the private sector to fulfill the commission's mission and goals.

(f) To complement the work of the city's elected officials and administrative departments through the commission's collective and informed judgment.

(g) To report annually to the board of directors on the status of children, youth, and families in Little Rock.

(h) To secure the assistance of individuals with relevant experience, knowledge, expertise or ideas in planning and providing services for children, youth, and families in Little Rock.

(Ord. No. 18,673, § 3, 4-2-02; Ord. No. 19,902, § 1, 1-8-08)

Sec. 2-330.13. Composition and term of service.

(a) The commission shall consist of eleven (11) persons, which shall include the following representatives:

(1) One (1) person who is a member of the board of directors.

(2) One (1) person who is a representative of the Little Rock School District.

(3) Nine (9) people with considerable experience and background in developing policy-level recommendations relating to children, youth and families, and representing areas of interest such as, but not limited to: Child and adolescent development; juvenile justice; and mental health.

(b) Except for the initial membership, each commission member shall serve for a three-year term. A commission member may be reappointed for one (1) additional term. In the event a vacancy occurs during the term of office of any appointed member, a successor shall be appointed for the unexpired term of the office vacated in a

manner similar to that for the initial member. A person selected to fill the unexpired portion of the term is eligible for reappointment to a full term.

(c) A majority of the members of the commission shall constitute a quorum.
(Ord. No. 18,673, § 4, 4-2-02; Ord. No. 19,902, § 2, 1-8-08; Ord. No. 21,745, § 1, 6-4-19)

Sec. 2-330.14. Powers and duties.

The commission shall have the following powers and duties:

(1) To create bylaws;

(2) To recommend to the board of directors, the city manager, and the director of community programs such policies and best practices as the commission believes will aid the city in the delivery of services to children, youth and families in Little Rock.

(3) To make funding priority recommendations to the board of directors, city manager, and the director of community programs for expenditures for programs for children, youth, and families in Little Rock.

(4) To hold public meetings and forums as necessary.

(5) To make recommendations to the board of directors regarding proposed legislation at the local, state, and national level that affect children, youth and families in Little Rock.

(6) To appoint committees to assist the commission in fulfilling its mission and discharging its duties.

(7) To make an annual report to the board of directors that focuses on one to three critical issue areas to children, youth and families with recommendations to address those issues.
(Ord. No. 18,673, § 1, 4-2-02; Ord. No. 19,902, § 3, 1-8-08)

Secs. 2-330.15—2-330.29. Reserved.

DIVISION 10. LAND BANK COMMISSION

Sec. 2-330.30. Created.

There is hereby created the land bank commission ("commission").
(Ord. No. 19,911, § 1, 1-15-08)

Sec. 2-330.31. Liberal construction of the division.

This division, being necessary for the welfare of the city and its inhabitants, shall be liberally construed to effect the purposes of it.
(Ord. No. 19,911, § 2, 1-15-08)

Sec. 2-330.32. Purpose.

The purpose of the land bank commission is to reverse urban blight, increase home ownership and stability of property values, provide affordable housing, improve the health and safety of neighborhoods within the city, and maintain the architectural fabric of the community.
(Ord. No. 19,911, § 3, 1-15-08)

Sec. 2-330.33. Definitions.

(a) *Residential housing facilities.* For purposes of this division, the term "residential housing facilities" means facilities for single- and multifamily residential housing units of any and all kinds, and such other improvements or facilities deemed incidental or essential to the community, and in accordance with a properly approved land bank redevelopment plan, provided that no such incidental development shall be in conflict with state law or city ordinance.

(b) *Land bank redevelopment plan.* Policy guide for acquisition and conveyance of land bank commission properties giving consideration to city zoning, parks, land use, and neighborhood action plans.

(c) *Development site plan.* Plan prepared and submitted by applicant requesting conveyance of land bank commission property.
(Ord. No. 19,911, § 4, 1-15-08)

Sec. 2-330.34. Authority of land bank commission.

The commission shall, in the name of the city, and with approval of the city board of directors, have the power to control, acquire, construct, reconstruct, preserve, extend, equip, improve, operate, maintain, sell, lease, convey, contract concerning, or otherwise deal in or dispose of residential housing facilities, and other capital improvements or facilities, or any interest in such facilities including without limitation leasehold interests in and mortgages on such facilities, within the corporate limits of the city.

(1) *Requirements.* The land bank commission shall inventory all property acquired for its use and benefit, and maintain the inventory as a public record; shall prepare and approve a land bank redevelopment plan (LBRP) in consultation with the community housing advisory board (CHAB); shall make the LBRP a part of the commission bylaws, provided, that the city board of directors is free to amend, repeal, modify, or expand any or all of these elements; and shall require all prospective purchasers to submit a development site plan (DSP) and time frame for the property of interest which meets land bank redevelopment plan (LBRP) standards and other requirements of this division.

(2) *Conveyance consideration.* Prior to conveyance, the land bank commission shall consider whether the prospective purchaser, or developer, has a history of not paying fines for violations of state laws, city ordinances, or code provisions; further, the commission shall consider whether the prospective purchaser was a prior owner of real property transferred to the state land commission as a result of tax delinquency during the three-year period prior to the request for approval of a development site plan, or approval of an extension to complete an approved development site plan; further, the commission may adopt additional conveyance considerations.

(Ord. No. 19,911, § 5, 1-15-08)

Sec. 2-330.35. Approval of development site plan.

Before the commission can recommend to the city board of directors the conveyance of real property, it must first approve the development site plan submitted by applicant which includes:

(1) A time frame for development pursuant to the approved plan;

(2) Information and procedures to assure the development of the approved plan in the form it is approved;

(3) Proof that the approved plan is consistent with all zoning requirements, or has obtained any necessary amendments to the local zoning requirements;

(4) Proof that the approved plan otherwise complies with all city codes and regulations, including variances, otherwise required.

(5) Demonstration that the approved plan complies with the land bank redevelopment plan and is consistent with the spirit of any affected neighborhood action plan.

(Ord. No. 19,911, § 6, 1-15-08)

Sec. 2-330.36. Approved development site plan not binding on other city commissions.

Nothing in the requirements of this division shall mandate that any city board or commission approve any action requested by a proposed developer even if failure to receive such approval negates the ability to move forward with the land bank redevelopment plan.

(Ord. No. 19,911, § 7, 1-15-08)

Sec. 2-330.37. Time frame for completion of the development site plan.

(a) Unless expressly authorized by the city board of directors, upon recommendation of the commission, any approved development site plan shall be completed within one (1) year from the date approval of the plan is granted.

(b) If the developer has made substantial progress toward completion of the development site plan, the commission may approve an extension of time for development, not to exceed six (6) months from the date the plan expires.
(Ord. No. 19,911, § 8, 1-15-08; Ord. No. 20,620, § 1, 8-21-12)

Sec. 2-330.38. Lank bank commission subject to city supervision.

(a) The city manager, or a designee of this office, shall serve as the administrative staff of the commission.

(b) The city manager may designate the director of finance and treasurer to serve as the treasurer for the commission.

(c) The commission shall be subject to the authority of the mayor and city manager as to establishing a budget, hiring employees, and fulfilling the functions of the commission as set forth in this division.

(d) The commission, within ninety (90) days of the initial appointments, shall prepare a set of bylaws to be submitted for approval, by resolution of the city board of directors, before they become effective; further, any substantive changes in the bylaws shall also be approved by the city board of directors before they become effective.

(e) The commission shall file an annual report with the city clerk and community housing advisory board (CHAB) that sets forth its activities for the proceeding calendar year, including a complete operating and financial statement prepared in accordance with the relevant city ordinances as to financial reporting.

(f) The commission shall confer and coordinate with the community housing advisory board (CHAB) to insure consistency of housing policy established by the city board of directors.
(Ord. No. 19,911, § 9, 1-15-08)

Sec. 2-330.39. City purchasing, bidding and financial reporting procedures will control.

All laws, ordinances, resolutions, and other documents, which set forth purchasing, bidding, or financial reporting procedures for the city shall also apply to the commission.
(Ord. No. 19,911, § 10, 1-15-08)

Sec. 2-330.40. Meetings; quorum; public records.

(a) The commission shall meet upon the call of its chairman, or a majority of its members, and at such times as may be specified in its bylaws for regular meetings.

(b) A majority of its members shall constitute a quorum for the transaction of business.

(c) The affirmative vote of a majority of the members present at a meeting of the commission shall be necessary for any action taken.

(d) No vacancy in the membership of the authority shall impair the right of a quorum to exercise all the rights and perform all the duties of the board.

(e) A record of the proceedings of the commission shall be maintained.
(Ord. No. 19,911, § 11, 1-15-08)

Sec. 2-330.41. Appointment of commission members and commission procedures.

(a) Unless expressly authorized by the city board of directors, upon recommendation of the commission, any approved development site plan shall be completed within three (3) years from the date approval of the plan is granted.

(b) If the developer has made substantial progress toward completion of the development site plan, the commission may approve an extension of time for development, not to exceed an additional two (2)-year extension option.

(c) One (1) of the eleven (11) members shall be from the housing industry.

(d) One (1) of the eleven (11) members shall be an officer of a financial institution.

(e) One (1) of the eleven (11) members shall be a member of the board of the Little Rock Housing Authority, selected from a list of three (3) names submitted by the board of the Little Rock Housing Authority.

(f) One (1) of the eleven (11) members shall specifically be designated as selected from ward 1, notwithstanding the fact that any other commissioner lives in ward 1.

(g) One (1) of the eleven (11) members shall specifically be designated as selected from ward 2, notwithstanding the fact that any other commissioner lives in ward 2.

(h) One (1) of the eleven (11) members shall be a member of CHAB, selected from a list of three (3) names submitted by the CHAB membership.

(i) Four (4) of the eleven (11) members shall be selected at large, provided that the four (4) at-large members shall reside in different city wards.

(j) The members of the commission shall have terms of four (4) years, except that the initial members shall have staggered terms to be decided by drawing lots. Five (5) members shall have four-year terms, and four (4) members shall have two-year terms.

(k) A member shall serve until his or her successor is selected and qualified.

(l) Members shall be limited in the number of consecutive terms that can be served as set forth in city ordinance, resolution, or policy statements.

(m) Vacancies shall be filled by the mayor, subject to confirmation by the city board of directors.

(n) Any commissioner is subject to removal for cause which is defined to include misfeasance, malfeasance or nonfeasance in office; except for removal for absences, which are subject to city procedures for handling such matters. Any commissioner subject to removal for cause shall be notified in writing of the reason for such removal, and shall be provided ten (10) days from the receipt of such notice to provide a statement as to why the commissioner believes that removal is inappropriate, or that the basis for removal contains misstatements of fact, or that the basis for removal should not result in such a sanction.
(Ord. No. 19,911, § 12, 1-15-08; Ord. No. 20,245, §§ 1—4, 4-6-10; Ord. No. 22,272, § 1, 6-20-23)

Sec. 2-330.42. Additional and supplemental powers.

In addition to the provisions of this division, the commission shall exercise all additional or supplement powers authorized by the general assembly for local governments, provided the city board of directors delegates such authority to the commission.
(Ord. No. 19,911, § 13, 1-15-08)

Secs. 2-330.43—2-330.49. Reserved.

DIVISION 11. PUBLIC FACILITIES BOARD

Sec. 2-330.50. Created.

In accordance with and pursuant to the authority conferred by the Public Facilities Boards Act (A.C.A. §§ 14-137-101 et seq.), there is hereby created and established a public facilities board (hereinafter referred to as the "board") with authority as hereinafter provided to deal in or dispose of the facilities identified in the Public Facilities Boards Act.
(Ord. No. 20,026, § 1, 9-16-08)

Sec. 2-330.51. Title.

The name of the board shall be "City of Little Rock, Arkansas (Heifer Project International) Public Facilities Board".
(Ord. No. 20,026, § 2, 9-16-08)

Sec. 2-330.52. Members.

The initial members of the board shall be appointed by the mayor pursuant to A.C.A. § 14-137-108(b), subject to confirmation by the board of directors. each member shall take and file with the city clerk the oath of office prescribed by the Public Facilities Boards Act.
(Ord. No. 20,026, § 3, 9-16-08)

Sec. 2-330.53. Powers.

The board is empowered, from time to time, to own, acquire, construct, reconstruct, extend, equip, improve, operate, maintain, sell, lease, contract concerning, or otherwise deal in or dispose of capital improvement facilities for the use and benefit of Heifer Project International, or any interest in such capital improvement facilities including, without limitation, leasehold interests in and mortgages on such capital improvement facilities.
(Ord. No. 20,026, § 4, 9-16-08)

Sec. 2-330.54. Issuance of bonds.

The board is authorized to issue revenue bonds from time to time and to use the proceeds, either alone or together with other available funds and revenues, to accomplish the purposes for which the board is created. Such revenue bonds shall be obligations only of the board and shall not constitute an indebtedness for which the faith and credit of the city or any of its revenues are pledged, and the principal of and interest on the bonds shall be payable from and secured by a pledge of revenues, obligations, and other funds or sources of funds as authorized by and in accordance with the provisions of the Public Facilities Boards Act.
(Ord. No. 20,026, § 5, 9-16-08)

Sec. 2-330.55. Annual report.

The board shall have all the powers provided in the Public Facilities Boards Act, subject to the provisions of this division, and shall carry out its duties in accordance with the Public Facilities Boards Act, including specifically, without limitation, the filing of the annual report required by A.C.A. § 14-137-123.
(Ord. No. 20,026, § 6, 9-16-08)

ARTICLE VIII. CODE OF ETHICS*

Sec. 2-331. Declaration of policy.

Our government is a representative democracy. Those who are elected or appointed to serve others as representatives accept a public trust, which they share with those whom they hire, appoint, or otherwise enlist to help them serve the public. The public entrusts its power

*__Editor's note—__Ord. No. 17,050, §§ 1—8, adopted Dec. 5, 1995, did not specifically amend the Code; hence, inclusion herein as Art. VIII, §§ 2-331—2-338, was at the discretion of the editor.

resources to its servants to be used only in the public interest. Public trust requires public servants to faithfully and diligently fulfill their public responsibilities, and to steadfastly subordinate to the public interest any personal and private interests, whether their own or those of others, which are contrary to the public interest.

It is the responsibility of each public servant to cultivate public trust in the integrity of government. Public trust in the integrity of government can be cultivated only when public servants act with integrity. Therefore, it is the responsibility of each public servant to act accordingly and to contribute to a work environment which supports integrity in others.

This article should encourage members of the public to seek public office or employment, to serve on public boards, to assist public servants as volunteers and to take pride in participating in the governmental process. It is designed to clearly state principles of ethics which all citizens may easily understand and apply in their individual circumstances while serving as public servants.
(Ord. No. 17,050, § 1, 12-5-95)

Sec. 2-332. Purposes.

[The purposes of this article are:]

(1) To state principles of ethics which are to be applied in public service;

(2) To provide a process by which public servants may identify and resolve ethical issues;

(3) To promote public confidence in the integrity of public servants; and

(4) To establish penalties, when appropriate, for public servants who violate the public trust.

(Ord. No. 17,050, § 2, 12-5-95)

Sec. 2-333. Definitions.

(a) *Business entity* means any corporation, general or limited partnership, sole proprietorship (including a private consultant business), joint venture, unincorporated association or firm, institution, trust, foundation, or other organization, whether or not organized for profit. Business entity does not include local, state or federal agencies or political subdivisions thereof, or officially recognized neighborhood associations of the City of Little Rock.

(b) Subject to the provisions of section 2-337 of this article, *gift* means anything of economic value, regardless of the form, without adequate and lawful consideration, but not including: The solicitation, acceptance, receipt, or regulation of political campaign contributions regulated in accordance with provisions of federal, state, or local laws governing campaign finances.

(c) *Interest* shall mean any material, direct or indirect benefit accruing to a public servant or the public servant's immediate family whether in the public servant's own name or the name of any person, firm, corporation, association or trust from which the public servant is entitled to receive any financial benefit, as a result of a contract or transaction which is or which will become the subject of any official act or action by or with the city. Interest in a corporation, firm or association, means a minimum ten (10) percent ownership of such firm, corporation or association by the public servant or his or her relatives.

(d) *Relative* means a person who is related to a public servant as spouse or as any of the following, whether by marriage, blood or adoption: Parent, child, brother, sister, aunt, uncle, niece, nephew, grandparent, grandchild, father-in-law, mother-in-law, son-in-law, daughter-in-law, stepfather, stepmother, stepson, stepdaughter, stepbrother, stepsister, half-brother, half-sister, brother-in-law or sister-in-law.
(Ord. No. 17,050, § 3, 12-5-95)

Sec. 2-334. Who is covered.

This code of ethics shall be applicable to members of the city board of directors, members of all boards and commissions of the city, the city manager and the city attorney. In addition, municipal government involves administrative, legislative and quasi-judicial procedures. Members of the city board of directors, as well as city boards and commissions, are necessarily affected by the advice and conduct of city staff, particularly the advice of professional and executive employees. It shall be the policy of the city that professional and

executive employees adhere to the letter and spirit of the principles set forth in this ethics code. Professional and executive employees shall include all department directors and their first level assistants. Henceforth, all persons covered by this code of ethics shall be called "public servants".
(Ord. No. 17,050, § 4, 12-5-95)

Sec. 2-335. Disclosure and conflict of interest.

(a) Public servants covered by this code of ethics shall disclose any matters which would, to their knowledge, have a direct or indirect financial impact, as distinguished from the public generally, on them or their relatives. Furthermore, if any public servant has a direct interest or shall be a director, officer or employee of or have an ownership in any business entity with a direct interest in any contract or business relationship with the city, the fact there is such an interest shall be disclosed to the board or commission and shall be set forth in the minutes of the board, and the public servants having such interest shall not participate or vote in any proceedings relating to the authorization of such contract or relationship.

(b) Any public servant who believes that he or she has an interest in any agenda item before the board or a commission shall to the extent permitted by law or any relevant contractual agreement, disclose the nature of such interest. The city clerk, or the clerk's designee, shall make a record of such disclosure in the minutes of the board or commission. Such disclosure shall be made no later than the first meeting of the voting body, at which the agenda item concerned is to be taken up for consideration, recommendation, discussion or vote at which the public servant is present. This disclosure does not preclude the public servant from asking points of inquiry as to whether there is a conflict of interest which are made during the meeting.

(c) To avoid even the appearance of impropriety, after the public servant determines he or she has a conflict of interest in respect to any agenda item and the public servant determines he or she will abstain, once all conflict of interest questions relating to the agenda item concerned have been determined, the public servant shall immediately remove himself or herself from the meeting room or to the area of the room occupied by the general public. He or she shall not return to his or her regular seat as a member of the body until deliberation and action on the item is completed. Nothing herein shall require a public servant to remove himself or herself for any item contained on a "consent agenda" on which there is no deliberation, the individual's conflict has been disclosed, and the public servant has abstained from voting on the item.

(d) Actions conducted in accordance with an ethics advisory opinion described below are not conflicts of interest. Actions which might otherwise constitute a conflict of interest shall be deemed to comply with this article if:

(1) Before acting, the public servant requested and received a written or verbal advisory ethics opinion in accordance with the procedures established in this article; and

(2) The material facts, as stated in the opinion request, were true and complete; and

(3) The actions taken by the public servant were consistent with the ethics opinion.

(e) Political fundraising. This article does not prohibit an elected official properly soliciting contributions are permitted and to be reported under federal and state laws. However, use of the City of Little Rock logo and letterhead stationery for purposes of political fundraising is prohibited.
(Ord. No. 17,050, § 5, 12-5-95)

Sec. 2-336. Opinions on conflicts of interests.

(a) The city attorney shall issue a formal opinion as to whether a person to which this code of ethics is applicable has a conflict of interest with respect to a matter pending before any city board on which that person sits and votes. This opinion may be requested by the person voting or by any other person concerned about a potential conflict. The request for an advisory opinion shall be made to the city attorney in writing and the opinion shall be issued within three (3) working days of receipt of the request. The document requesting

the opinion, and the opinion itself, are subject to disclosure pursuant to the provisions of the Arkansas Freedom of Information Act.

(b) Any person to whom this code of ethics applies may also request informal opinions from the city attorney as to whether a conflict of interest exists in a particular case. The city attorney shall provide advise to the person requesting this information as soon as possible after the request. In addition, the city attorney shall note in writing the date of the request, the person making it, the question or questions asked, and the informal advice provided. A copy of this notation shall be provided to the city clerk and to other members of the involved board or commission. Should the city attorney receive such a request, but the person chooses not to follow the advice given the city attorney's shall assure that the minutes or record of the involved board or commission action contain a notation that the city attorney's advice was not followed. With respect to board or commission meetings at which the city attorney is not present, the city attorney's designee or other counsel appearing at the meeting, shall transmit to the city attorney a copy of the minutes of the meetings which will reflect whether or not the person to which this code of ethics is applicable followed the advice of the city attorney.

(c) In addition to advance requests for an advisory opinion from the city attorney, a member of the board of directors, and other individuals to whom this code of ethics applies, may recuse from the consideration of any issue before the body on which the individual serves if they believe they have a conflict of interest. Under such circumstances, the individual shall state for the record the fact that he or she is recusing from the issue being considered and the reason for the recusal. The city clerk, or other individuals responsible for keeping the minutes of the meeting, shall specifically note the statements of the individual recusing and memorialize them in the minutes so that there will be written record of the recusal.

(d) Only the city attorney appointed by the city board of directors, is authorized to issue the opinions set forth in this section. Any board or commission that otherwise uses outside counsel shall deal exclusively with the city attorney on questions of conflict of interest. In the event the city attorney suffers a conflict of interest in issuing such an opinion, and all senior members of his staff suffer the same conflict, the city board of directors shall designate someone to serve as a special city attorney for purposes of issuing the opinion requested pursuant to this section.
(Ord. No. 17,050, § 6, 12-5-95)

Sec. 2-337. Gifts.

No public servant shall solicit or accept any gift at the time of their service on any city board or commission for themselves or any other person or organization, from any individual, organization or enterprise involved in a contract, zoning issue, or other transaction with the city which could be influenced by the public servant. Gifts to the city or for public purposes are specifically exempt from this provision.

Multiple gifts from the same person shall be considered cumulative for each year beginning the first day of January, but gifts shall not include:

(1) A non-monetary gift with an economic value of less than one hundred dollars ($100.00); or

(2) A non-monetary award publicly presented in recognition of public service; or

(3) Gifts from family members who would be defined as relatives under this article.

(Ord. No. 17,050, § 7, 12-5-95)

Sec. 2-338. Enforcement.

(a) The city board of directors shall have the primary responsibility for the enforcement of this code of ethics through the city attorney.

(b) Any person who believes a violation of any part of this code of ethics has occurred may file a complaint with the city attorney.

(c) The city attorney shall make a report of all substantiated violations by public servants of this code of ethics to the board of directors.

(d) The board of directors shall have primary investigative authority of alleged code of ethics violations by any member of the city board, other city boards and commissions, the city manager and city attorney. The responsibility for investigation of other individuals to whom this code of ethics applies will be with the city manager's office.

(e) When the board of directors finds by majority vote, that any member of the board, a member of any other city board or commission, the city manager or city attorney has violated any provision of this code of ethics, the board is authorized to do any or all of the following:

(1) Warn;

(2) Issue letters of caution or reprimand;

(3) Vote in accordance with any applicable statutory procedure to remove the person from office for misfeasance, nonfeasance, or malfeasance;

(4) Cause a complaint to be prepared and filed with the appropriate court of proper venue for removal of a public servant from office for nonfeasance in accordance with Ark. Code Ann. § 14-42-109.

(f) Discipline of other individuals to whom this code of ethics applies will be handled by the city manager's office.

(g) All documents under this enforcement provision shall be subject to disclosure pursuant to the provisions of the Arkansas Freedom of Information Act.
(Ord. No. 17,050, § 8, 12-5-95)

Sec. 2-339. Relationship to state law.

This code of ethics shall not supersede, nor is it intended to conflict with state law, to include but not be limited to, the state election laws, the Disclosure Act for Lobbyists and State and Local Officials or any other state ethics legislation.
(Ord. No. 17,050, § 9, 12-5-95)

Secs. 2-340—2-349. Reserved.

ARTICLE IX. UTILITY RELOCATION

Sec. 2-350. Utility relocation statement of policy.

In the interest of the public health, safety, and welfare, and consistent with city ordinances, franchise agreements, and various city master plans, the city may make, or cause to be made, improvements, repairs, replacements, realignments, or relocation of public facilities located within the city rights-of-way. Such construction activity may require the adjustment or relocation of facilities of public utilities located within the city rights-of-way. The city declares that the right of public utilities to use the city rights-of-way is permissive and subordinate to the reasonable exercise of the city's police power.
(Ord. No. 19,116, § 1, 5-18-04)

Sec. 2-351. Definitions.

City means the City of Little Rock, Arkansas, a municipal corporation of the first class, acting either alone or in conjunction with other public entities that are created solely by the city such as the advertising and promotion commission, wastewater department, Central Arkansas Library System, Central Arkansas Water, Little Rock National Airport, or metropolitan emergency medical services ("MEMS"). However, other public agencies not directly or indirectly under the sole management of the city, including but not limited to, the Little Rock Housing Authority, shall not be considered the city for purposes of this article. For purposes of this definition, the geographic limits of the city shall be the corporate limits of the city on the effective date of this article [May 18, 2004]. No reorganization of any agency existing as of the effective date of this article shall affect responsibility for relocation costs as established by this article.

Public utility shall mean any person, organization, corporation, partnership, or firm, which performs a public service within the city and which has access to use and locate facilities within city rights-of-way by virtue of any city ordinance, franchise, commission, contract, or by virtue of common law. The term public utility shall include, but not be limited to, entities that

provide electric, gas, water, sewer, railway, transportation, cable television, local or long distance telephone, and telecommunication services designed for the conveyance of voice, picture, or data.

Relocation means the removal of utility facilities located within city rights-of-way and, if nec -

essary, the replacement of those facilities with other facilities that are functionally the same. Extensions of and upgrades or improvements to utility facilities, even if made in connection with a relocation, are not considered relocations, and the incremental cost of any such extension, upgrade, or improvement shall not be the responsibility of the city unless the city has expressly requested and contracted for the extension, upgrade or improvement.

The general service rules and regulations as promulgated by the Arkansas Public Service Commission govern the installation, relocation and provision of electrical service and facilities to city owned buildings. Distribution facilities located on city owned property that are not located in city rights-of-way or whose purpose is to serve electrical power to the city buildings shall be relocated if necessary for a city building expansion at the company's expense if the line is not owned by the company prior to the city's interest and is not evidenced by a utility easement; otherwise the city bears the cost of relocation.
(Ord. No. 19,116, § 2, 5-18-04)

Sec. 2-352. Application of article.

The company, upon written notice from the city manager or the city director of public works, shall promptly, after securing adequate right-of-way, adjust, relocate, or remove any and all facilities within, upon, under, or above any city rights-of-way in order to accommodate the construction, improvement, alteration, or maintenance of city rights-of-way required or authorized by the city, its boards, commissions, or departments. The company shall make adjustments or relocations at its own expense, except as set forth in section 2-354, regardless of the source of funds for the project.
(Ord. No. 19,116, § 3, 5-18-04)

Sec. 2-353. City duty to mitigate utility facility relocation.

The city shall seek to minimize current and future installation or relocation costs incurred by the company through measure such as the:

(a) Regular and systematic consultation in public works planning with the company whenever the company will be impacted by a public project that is the subject of this article, or

(b) Sharing of information and advance engineering proposals, to the extent feasible, with the company whenever the company will be impacted by a public street project that is the subject of this article, or

(c) Consideration of the unique needs of the company in the planning and design of a public project that is the subject of this article, or

(d) Any combination of these measures.
(Ord. No. 19,116, § 4, 5-18-04)

Sec. 2-354. Reimbursement of certain relocation costs.

(a) *Federal fund reimbursement.* The city shall reimburse the company for the direct cost of required relocations in an amount directly proportionate to any federal funds which the city applies for and receives on such public projects if such reimbursement is specifically provided for as a line item reimbursable allowance for utility relocation or adjustment. The city shall request a utility line item reimbursable allowance whenever the city has reason to believe funds may be available for such reimbursements.

(b) *Utility ownership of the property.* The city shall reimburse the company for direct costs of required relocations when the company can demonstrate that the company legally acquired the right-of-way or otherwise occupied it prior to the dedication of the right-of-way to the city.

(c) *Method of reimbursement.* Relocation costs shall be reimbursed, when appropriate, pursuant to an agreement between the city and the company involved in the particular project. Such agreement shall describe the scope of the company's relocation work and allocate the costs or the proportional share of the costs for such work. This cost allocation shall not require the city to reimburse the company for any betterment which is only occasioned by the other adjustments required.
(Ord. No. 19,116, § 5, 5-18-04)

Sec. 2-355. The company to engage in good faith negotiations for reimbursement.

Whenever it is determined that the company is entitled to be reimbursed by the city for the expense of a relocation, the company shall make a reasonable determination of the amount of reimbursable expense and shall engage in good faith negotiations with the party responsible for relocation costs.
(Ord. No. 19,116, § 6, 5-18-04)

Sec. 2-356. Policy does not impact other franchise requirements.

Nothing in this article shall be construed as altering or amending any of the rights or obligations of either the city or any public utility other than the company as delineated in any existing franchise agreement or any other agreement between the city and such other public utility. This policy will not govern telecommunications activities if the public utility becomes a telecommunications-service provider.
(Ord. No. 19,116, § 7, 5-18-04)

Sec. 2-357. Failure to comply with relocation policy constitutes abandonment of all or part of the city franchise.

Failure of the company to comply with the relocation policy set forth in this article shall be deemed an abandonment by the company of the company's right to use city rights-of-way in those instances and for those projects in which the company is not in compliance.
(Ord. No. 19,116, § 8, 5-18-04)

Secs. 2-358—2-374. Reserved.

ARTICLE X. ELECTIONS

DIVISION 1. GENERALLY

Secs. 2-375—2-384. Reserved.

DIVISION 2. MUNICIPAL CAMPAIGN FINANCE

Sec. 2-385. Title.

This division shall be known as the Little Rock Municipal Campaign Finance Ordinance.
(Ord. No. 17,408, § 1, 2-18-97)

Sec. 2-386. Applicability.

This division shall apply to all candidates for any elected city office including, but not limited to, the positions of mayor, member of the board of directors, or municipal judge.
(Ord. No. 17,408, § 2, 2-18-97)

Sec. 2-387. Campaigns for municipal office.

This following provisions shall apply to campaigns for municipal office:

(a) Contributions to regular election campaigns for municipal office shall be limited to the period beginning June 1 immediately before the election and ending December 1 immediately after the election.

(b) Contributions to special election campaigns for municipal office shall be limited to the period of time:

(i) Immediately following the call of the special election until the date of its special election; and

(ii) Thirty (30) days after the date of the special election, provided that no contribution shall be accepted from any person with an interest in business pending before the elected municipal official.

(Ord. No. 17,408, § 3, 2-18-97)

Sec. 2-388. Restrictions.

No candidate for elected municipal office shall take any campaign funds solicited, accepted, or received for (sic) a candidate, the candidate's spouse or the candidate's dependent children, provided that nothing herein prohibits a candi-

date that has an opponent from employing a spouse or dependent child as a campaign worker. (Ord. No. 17,408, § 4, 2-18-97)

Sec. 2-389. Balance of funds over expenses.

Within thirty (30) days following a general election, if there is no campaign deficit, a candidate for municipal office shall turn over any balance of campaign funds over expenses incurred as of the day of election either to:

(a) The city for the benefit of the city general fund; or

(b) A nonprofit organization which is exempt from taxation under section 501(c)(3) of the United State Internal Revenue Code; or

(c) The contributors to the candidate's campaign; or

(d) A combination of the entities listed in this subsection.

(Ord. No. 17,408, § 5, 2-18-97)

Chapter 3

ALARM SYSTEMS*

Article I. In General

Sec. 3-1. Penalty.
Sec. 3-2. Central alarm system.
Sec. 3-3. Alarm system permit.
Sec. 3-4. Automatic dialing systems.
Secs. 3-5—3-10. Reserved.

Article II. False Alarms

Sec. 3-11. Title.
Sec. 3-12. Purpose.
Sec. 3-13. Definitions.
Sec. 3-14. Registration required; application; transferability; false statements.
Sec. 3-15. Duties of the alarm user.
Sec. 3-16. Duties of alarm installation company.
Sec. 3-17. Duties of alarm monitoring company.
Sec. 3-18. License or licensing.
Sec. 3-19. Duties and authority of the alarm administrator.
Sec. 3-20. Civil penalties.
Sec. 3-21. Alarm cancellations.
Sec. 3-22. Appeals.
Sec. 3-23. Enforcement and penalties.
Sec. 3-24. Report of Freedom of Information Act requests.
Sec. 3-25. Reserved.

*__Cross references—__Fire prevention and protection, ch. 12; licenses, taxation and miscellaneous business regulations, ch. 17.

__State law references—__Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.; alarm systems, A.C.A. § 17-13-101 et seq.

ARTICLE I. IN GENERAL

Sec. 3-1. Penalty.

Any person convicted of a violation of any of the provisions of this chapter shall be punished as provided in section 1-9.

Sec. 3-2. Central alarm system.

(a) The city manager or his designated representative may continue, modify or renegotiate as necessary agreements for the installation and maintenance within the Central Communications Center of all equipment and apparatus necessary for a central standardized system for receiving both burglar and fire alarms from throughout the city. Alarms to be monitored will originate only from a business, industrial, or governmental location. No personal or residential alarms are to be allowed connection to the central system and any such residential alarms will be disconnected at the earliest feasible time. It is to be understood that the company designated within such an agreement will provide, install and maintain the central system at its sole expense and without charge to the city. The agreement will provide that the designated company will make all tie-ins or connections, either the transferring of existing connections to the present fire and/or burglar alarm system or for new connections; and that for such service the company shall be paid at the rate determined in the agreement. The company designated in the agreement is granted the privilege of providing annual maintenance and service to the central system and the connections thereto for which it will be paid an annual fee per connection.

(b) Users of the burglar and fire alarm system herein provided shall pay a connection fee as stipulated in the city's agreement with the designated company and in addition shall pay an annual service charge of two hundred thirty-four dollars ($234.00) per connection to the central system. These fees are to be paid to the city and are separate from any fee which any alarm company might charge the user for the installation and maintenance of their individual system.
(Code 1961, § 13-15)

Sec. 3-3. Alarm system permit.

(a) Any property owner or lessee of property in the city having on his premises an alarm system shall apply to the city manager or his designee on a form to be supplied by the city manager or his designee, for a permit to have such a device on his premises. No such alarm system may be installed on the premises of the owner or lessee after the effective date of this chapter prior to the licensing authority having issued a permit to such owner or lessee. No alarm system shall be modified prior to the city manager or his designee having issued a permit to such owner or lessee.

(b) The permit fee to be paid to the city for an alarm system shall be ten dollars ($10.00) per year.

(c) In this section "alarm system" means any mechanical, electrical or electronic device which is designed or used for the detection of an unauthorized entry into a building, structure or facility or for alerting others of the commission of an unlawful act within a building, structure or facility, or both, and which emits a sound or transmits a signal or message when actuated. "Alarm system" includes but is not limited to a direct dial telephone device, an audible alarm and a proprietor alarm. A device which is not designed or used to register alarms that are audible, visible or perceptible outside of the protected building, structure or facility is not included within this definition, nor are auxiliary devices installed by the telephone company to protect telephone systems which might be damaged or disrupted by the use of an alarm system.
(Code 1961, §§ 31-27(4), 31-30(a), (b))

Sec. 3-4. Automatic dialing systems.

It shall be unlawful for any person to use or cause to be used any device or telephone attachment that automatically selects a public, primary telephone trunkline of the city and then reproduces any prerecorded message.
(Code 1961, § 25-123(a))

Secs. 3-5—3-10. Reserved.

ARTICLE II. FALSE ALARMS*

Sec. 3-11. Title.

This article may be known and cited as the "False Alarm Reduction Ordinance."
(Ord. No. 19,331, § 1, 6-7-05)

Sec. 3-12. Purpose.

The purpose of this article is to require alarm users, installers and monitors to properly use and maintain the operational effectiveness of alarm systems in order to improve the reliability of alarm systems and reduce or eliminate false alarms. This article governs alarm systems intended to summon emergency services and requires registration, provides for penalties for violations, establishes a system of administration, and sets conditions for the cancellation of emergency services.
(Ord. No. 19,331, § 2, 6-7-05)

Sec. 3-13. Definitions.

In this article the following terms and phrases shall have the following meanings:

9-1-1 center means the municipal agency responsible for receiving an alarm dispatch request from either an individual or an alarm monitoring company, and relaying that request to the appropriate emergency services agency.

Alarm administrator means a person or persons designated by the treasury management division of the finance department of the city to administer, control and review false alarm reduction efforts and administer the provisions of this article.

Alarm dispatch request means a notification to an emergency services agency that an alarm, either manual or automatic, has been activated at a particular alarm site.

Alarm installation company means a person who sells, provides, maintains, services, repairs, alters, replaces, moves, and/or installs an alarm system at an alarm site.

Alarm user permit means a permit issued by the city to the alarm user to operate an alarm system, obtained after the alarm user makes written application to either the alarm installation company, alarm monitoring company or, the alarm administrator, in the case of a local alarm.

Alarm site means a single fixed premises or location served by an alarm system or systems. Each unit, if served by a separate arming station in a multiunit building or complex, shall be considered a separate alarm site.

Alarm system means a device or series of devices, including, but not limited to, hard-wired systems and systems interconnected with a radio-frequency method such as cellular or private radio signals, which emit or transmit a remote or local audible, visual or electronic signal indicating an alarm condition and intended to summon emergency services response, including local alarm systems. Alarm system does not include an alarm installed in a vehicle or on someone's person.

Alarm user means any person, who (which) operates an alarm system.

Alarm user awareness class means a class conducted for the purpose of educating alarm users about the responsible use, operation, and maintenance of alarm systems and the problems created by false alarms.

Arming station means a device that allows control of an alarm system.

Automatic voice dialer means any electrical, electronic, mechanical, or other device capable of being programmed to send a prerecorded voice message, when activated, over a telephone line, radio or other communication system, to an emergency services agency or the city 9-1-1 center requesting dispatch.

Cancellation means the process where a dispatch is terminated when an alarm installation company or alarm monitoring company for the alarm site notifies the responding emergency ser-

*__Editor's note—__Ord. No. 19,331, §§ 1—15, adopted June 7, 2005, amended Art. II in its entirety and enacted similar provisions as set out herein. The former Art. II derived from Ord. No. 17,904, §§ 1—13, adopted Dec. 22, 1998; and Ord. No. 18,069, §§ 1—13, adopted July 20, 1999.

vice agency before their arrival that there is not an existing situation at the alarm site requiring response after an alarm dispatch request.

Conversion means the transaction or process by which one alarm installation company or monitoring company begins the servicing or monitoring, or both, of a previously unmonitored alarm system or an alarm system previously serviced or monitored, or both, by another alarm company.

Dispatch means the process in which the 9-1-1 communication center instructs the appropriate emergency services agency to respond to an alarm.

Duress alarm means a silent alarm system signal generated by the entry of a designated code into an arming station in order to signal that the alarm user is being forced to turn off the system and requires an emergency service.

Emergency services means the public service and emergency service agencies operating in the city, including all municipal police, fire, ambulance, emergency management and other such emergency service agencies as may be needed.

False alarm means an alarm dispatch request to an emergency service agency to summon a law enforcement agency, fire dispatch or medical emergency, or any combination thereof, to a nonemergency situation.

Grace period means a specified length of time from the date of installation, or system conversion or takeover during which no occurrence, fine or penalty is assessed for false alarms.

Holdup alarm means a silent alarm signal generated by the manual activation of a device intended to signal a robbery in progress.

Local alarm system means any alarm system, which is not monitored, that annunciates an alarm only at the alarm site.

Monitoring company means a person in the business of providing monitoring services.

Monitoring means the process by which a monitoring company receives signals from an alarm system and relays an alarm dispatch request to the city 9-1-1 center for the purpose of summoning the appropriate emergency services agency to the alarm site.

One plus duress alarm utilizes the manual activation of a silent alarm signal by entering at an arming station a code that adds one to the last digit of the normal arm/disarm code (e.g., normal code = 1234, one plus duress code = 1235).

Panic alarm means an audible alarm system signal generated by the manual activation of a device intended to signal a life threatening or emergency situation requiring an emergency service response.

Person means an individual, corporation, partnership, association, organization or similar entity.

Response means the dispatch of emergency services personnel to the premises where an alarm system has been activated, indicating an emergency service at those premises.

Responsible individual means an individual who is able and has agreed to:

(1) Receive notification of an alarm system activation at any time;

(2) Respond to the alarm site within thirty (30) minutes at any time; and

(3) Grant access to the alarm site and deactivate the alarm system upon request.

Takeover means the transaction or process by which an alarm user takes over control of an existing alarm system, which was previously controlled by another alarm user.

Verify means an attempt by the monitoring company, or its representative, to contact the alarm site by telephonic or other electronic means, whether or not actual contact with a person is made, to determine whether an alarm signal is valid before requesting a police dispatch, in an attempt to avoid an unnecessary alarm dispatch request. For purposes of this division, "verify" requires that if the initial call to the alarm site is unanswered, the monitoring company must attempt to reach a responsible party at a different number than the one listed as the

alarm site telephone number. This process is known as "ECV", or "enhanced call verification." This verification process does not apply to fire and medical emergency alarm signals, which are dispatched immediately.

Zones means division of devices into which an alarm system is divided to indicate the general location from which an alarm system signal is transmitted.
(Ord. No. 19,331, § 3, 6-7-05; Ord. No. 21,020, § 1, 4-7-15)

Sec. 3-14. Registration required; application; transferability; false statements.

(a) No alarm user shall operate, or cause to be operated, an alarm system at its alarm site without a valid alarm permit. A separate alarm permit is required for each alarm site.

(b) At the time of an alarm system installation, monitoring service agreement or alarm system takeover, the alarm monitoring company shall register the alarm site online with the city's alarm administrator and obtain a permit number. The alarm permit shall be effective until the registered alarm user no longer occupies the site. All local alarm system applications shall be submitted by the alarm user to the city's alarm administer at the time of the alarm system installation or alarm system takeover. The alarm permit shall be effective until the registered alarm user no longer occupies the site. Failure of an alarm user to pay a previous civil penalty shall not prohibit the alarm user from being registered.

(c) Each alarm permit application must include the following information:

(1) The name, complete current address, (including apartment or suite number), and telephone numbers of the person who will be the permit holder and be responsible for the proper maintenance and operation of the alarm system;

(2) The classification of the alarm site (e.g., single-family residential, apartment, commercial, warehouse, government office, etc.);

(3) Mailing address, if different from the address of the alarm site;

(4) The date of installation, conversion or takeover of the alarm system, whichever is applicable;

(5) The name, address, and telephone number of the alarm installation company or companies performing the alarm system installation, conversion, or takeover and of the alarm installation company responsible for providing repair service to the alarm system;

(6) The name, address, and telephone number of the monitoring company, (if applicable), if different from the alarm installation company; and

(7) Signed certification from the alarm user stating that:

a. Operating instructions for the alarm system, including guidelines on how to avoid false alarms, have been read and agreed upon by the alarm user;

b. The alarm installation company has trained the applicant in proper use of the alarm system, including instructions on how to avoid false alarms; and

c. The alarm user is aware of the fact that an emergency service response may be influenced by factors including, but not limited to, the availability of emergency service units, priority of calls, weather conditions, traffic conditions, emergency conditions and staffing levels.

(8) The name, address and telephone number of the alarm monitoring company previously utilized, if applicable.

(d) Any false statement of a material fact made by an applicant for the purpose of obtaining an alarm permit shall be sufficient cause for imposition of a civil penalty prior to the issuance of a permit by the city's alarm administrator.

(e) An alarm permit cannot be transferred to another person or alarm site. An alarm user shall inform the alarm installation or alarm monitoring company, in the case of a monitored alarm system, or the city's alarm administrator, in the case of a non-monitored alarm system, of any change that alters any of the information listed on the alarm permit application within five (5) business days of such change.
(Ord. No. 19,331, § 4, 6-7-05; Ord. No. 21,020, § 2, 4-7-15; Ord. No. 21,293, § 1, 9-6-16)

Sec. 3-15. Duties of the alarm user.

(a) An alarm user shall:

(1) Maintain the alarm site and the alarm system in a manner that will minimize or eliminate false alarms;

(2) Make every reasonable effort to have a responsible individual available at the alarm site within thirty (30) minutes after an alarm dispatch request; and

(3) Not activate an alarm system for any reason other than an occurrence of an event that the alarm system was intended to report.

(b) An alarm user shall have a licensed alarm installation company inspect the alarm system after three (3) false alarms within a revolving three-month period. The alarm administrator may waive a required inspection if he/she determines that a false alarm(s) could not have been related to a defect or malfunction in the alarm system.

(c) An alarm user shall not use automatic voice dialers.

(d) An alarm user shall maintain at each alarm site an alarm permit and a set of written operating instructions for each alarm system.

(e) Alarm users may agree with their alarm installation company or monitoring company to go through a "grace period" for the first seven (7) days after installation of an alarm system during which time neither the alarm installation company nor the monitoring company will have any obligation to respond to any alarm signal from the alarm site. If the alarm signal is the result of an actual alarm event, the alarm installation company or the monitoring company shall send an alarm dispatch request to an emergency service agency.

(f) Hospitals may agree with their alarm installation company to go through a "grace period" for the first sixty (60) days after installation of an alarm system during which time neither the alarm installation company nor the monitoring company will have any obligation to respond to any alarm signal from the alarm site. If the alarm signal is the result of an actual alarm event, the alarm installation company or the monitoring company shall send an alarm dispatch request to an emergency service agency.

(g) An alarm user shall register a local alarm system, which is not monitored, with the city's alarm administrator.
(Ord. No. 19,331, § 1, 6-7-05; Ord. No. 19,654, § 1, 12-5-06; Ord. No. 21,293, § 2, 9-6-16)

Sec. 3-16. Duties of alarm installation company.

(a) An alarm installation company shall:

(1) In the case of local alarm systems, which are not monitored, distribute the required alarm permit to each alarm user.

(2) Provide written and oral instructions to each of its alarm users in the proper use and operation of their alarm systems. Such instructions will specifically include all instructions necessary to turn the alarm system on and off and to avoid false alarms;

(3) Review with the alarm user the customer false alarm prevention checklist or an equivalent checklist approved by the alarm administrator;

(4) Adjust the mechanism or cause the mechanism to be adjusted so that a burglary alarm signal audible on the exterior of an alarm site will not sound for more than fifteen (15) minutes after being activated; and

(5) Not program or cause to be programmed automatic voice dialers to directly dial an emergency services agency, but can be used to call their own personnel.

(6) Ensure that all alarm users of previously installed alarm systems equipped with a duress, holdup or panic alarm are given adequate training as to the proper use of the duress, holdup or panic alarm;

(b) An alarm installation company that purchases alarm system accounts from another person shall notify the alarm administrator of such purchase and provide details as may be reasonably requested by the alarm administrator.

(Ord. No. 19,331, § 6, 6-7-05; Ord. No. 21,293, § 3, 9-6-16)

Sec. 3-17. Duties of alarm monitoring company.

(a) A monitoring company shall:

(1) Verify alarm signal before requesting an emergency service response to an alarm system signal, with the exception of duress, panic, hold-up, fire or medical emergency alarm situations;

(2) Communicate alarm dispatch requests to 911 center after verifying the alarm signal;

(3) Not utilize automatic voice dialer technology to request an alarm dispatch to an emergency services agency or 911 center but may use them to call their own personnel;

(4) Record the incident number of the alarm call upon communicating the alarm to the 911 center;

(5) Communicate cancellations to the 911 center in a manner and form as outlined in section 3-21;

(6) Communicate any available information (north, south, front, back, floor, etc.) about the location on all alarm signals related to the alarm dispatch request;

(7) Communicate type of alarm activation (silent or audible, interior or perimeter);

(8) Provide an alarm user permit number when requesting emergency service dispatch;

(9) Promptly advise the emergency service agency if the monitoring company knows that the alarm user or the responder is on the way to the alarm site after an alarm dispatch request;

(10) Attempt to contact the alarm user or responsible individual within twenty-four (24) hours via mail, fax, telephone or other electronic means when an alarm dispatch request is made; and

(11) Maintain for a period of at least one (1) year from the date of the alarm dispatch request, records relating to alarm dispatch requests, upon the effective date of this article. Records must include the name, address and telephone number of the alarm user, the alarm system zone(s) activated, the time of alarm dispatch request and evidence of an attempt to verify. The alarm administrator may request copies of such records for individually named alarm users. If the request is made within sixty (60) days of an alarm dispatch request, the monitoring company shall furnish requested records within three (3) business days of receiving the request. If the records are requested between sixty (60) days to one (1) year after an alarm dispatch request, the monitoring company shall furnish the requested records within thirty (30) days of receiving the request.

(12) Register the required alarm permit of each alarm user at the time of new service or alarm system conversion or takeover.

(b) An alarm monitoring company that purchases alarm system accounts from another person shall notify the alarm administrator of such purchase and provide details as may be reasonably requested by the alarm administrator.

(Ord. No. 19,331, § 7, 6-7-05; Ord. No. 21,293, § 4, 9-6-16)

Sec. 3-18. License or licensing.

Alarm installation companies and monitoring companies shall maintain a license with the state, as required by Arkansas State Code. A copy of the license shall be submitted to the alarm administrator to be kept on file.
(Ord. No. 19,331, § 8, 6-7-05)

Sec. 3-19. Duties and authority of the alarm administrator.

(a) The alarm administrator shall establish a procedure for the notification to the alarm user of a false alarm. Such notice shall include:

(1) The date and time of emergency service response to the false alarm;

(2) The response incident number; and

(3) A statement urging the alarm user to ensure that the alarm system is properly operated, inspected, and serviced in order to avoid false alarms and resulting civil penalties.

(b) The alarm administrator or emergency service agency may create and implement an alarm user awareness class. The alarm administrator may request the assistance of false alarm associations, alarm companies and emergency service agencies in developing and implementing the class. The class shall inform alarm users of the problems created by false alarms and teach alarm users how to avoid generating false alarms.
(Ord. No. 19,331, § 9, 6-7-05; Ord. No. 21,020, § 3, 4-7-15)

Sec. 3-20. Civil penalties.

(a) An alarm user shall be subject to civil penalties, depending on the number of false alarms within a calendar year based upon the following schedule:

False Alarm Civil Penalties

# of False Alarms	*Civil Penalty*
1	None
2	None
3	None
4	$25.00
5	$50.00
6 or more	Varies depending on the responding agency: $200.00 for police response $300.00 for fire response at a single family-residence $500.00 for response to fire at multifamily, commercial, school, or industrial complex $450.00 for an emergency response by the Little Rock Ambulance Authority

(b) In some instances, more than one (1) type of emergency services may respond to the same call, and the civil penalty may increase accordingly.

(c) In addition, any person operating a non-permitted alarm system will be subject to a civil penalty of one hundred dollars ($100.00), in addition to any other fines. In addition, the alarm installation and/or alarm monitoring company will each be subject to a civil penalty of two hundred fifty dollars ($250.00) for each false alarm in addition to any other civil penalties. The alarm administrator may waive this additional civil penalty for a non-permitted system if the alarm user submits an application for alarm registration within thirty (30) days after notification of such violation.

(d) The alarm installation company shall be assessed a civil penalty of two hundred fifty dollars ($250.00) if the emergency service personnel responding to the false alarm determines that an on-site employee of the alarm installation company directly caused the false alarm. In this situation, the false alarm will not be counted against the alarm user.

(e) The alarm monitoring company shall be assessed a civil penalty of two hundred fifty dollars ($250.00) for each failure to verify alarm system signals as specified in subsection 3-17(a)(2).

(f) The alarm installation company shall be assessed a civil penalty of one thousand dollars ($1,000.00) if the alarm administrator determines that an alarm installation company employee

knowingly made a false statement concerning the inspection of an alarm site or the performance of an alarm system.

(g) Notice of the right of appeal under this article will be included with any civil penalty.

(h) Hospital buildings used to provide direct patient care shall be exempt from the assessment of civil penalties. Hospital buildings undergoing construction or significant reconstruction shall be exempt from the assessment of civil penalties during construction/reconstruction. The hospital shall provide notice to the false alarm coordinator when construction or reconstruction begins and ends.

(i) A twenty-five dollar ($25.00) late fee will be assessed for each false alarm invoice not paid within thirty (30) days of the due date stated on the invoice notice.
(Ord. No. 19,331, § 10, 6-7-05; Ord. No. 19,654, §§ 2, 3, 12-5-06; Ord. No. 21,020, § 4, 4-7-15; Ord. No. 21,293, § 5, 9-6-16)

Sec. 3-21. Alarm cancellations.

(a) The alarm system monitoring company shall communicate verified cancellations of alarm dispatch requests to the emergency service agencies in a manner and form prescribed by this section.

(b) In order for the 9-1-1 center to verify the identity of the alarm system monitoring company and to confirm that the correct specific alarm dispatch request is to be cancelled, alarm system monitoring companies are to use the incident number given to them by the 9-1-1 center when the alarm call was first made.

(c) For alarm systems that utilize an alarm monitoring company, a request for a cancellation of an alarm response will only be accepted by the alarm monitoring company and only after the incident number of the alarm is reported to the 9-1-1 center.

(d) If an alarm cancellation occurs prior to emergency services arriving at the site that was the subject of the alarm, the call is not a false alarm for the purpose of fees for service and no fee will be assessed.
(Ord. No. 19,331, § 11, 6-7-05; Ord. No. 21,020, § 5, 4-7-15)

Sec. 3-22. Appeals.

(a) If the alarm administrator assesses a civil penalty, the alarm administrator shall send written notice of the action and a statement of the right to an appeal to the alarm user, alarm installation company and/or monitoring company.

(b) The alarm user, alarm installation company, or monitoring company, or all of them, may appeal an assessment of a civil penalty to the alarm administrator by setting forth in writing the reasons for the appeal within thirty (30) days after receipt of the civil penalty or notice of revocation.

(c) The alarm user may appeal the decision of the alarm administrator to the false alarm appeals panel as follows:

(1) The alarm user may file a written request for a review by paying an appeal fee of twenty-five dollars ($25.00) and setting forth the reasons for the appeal within thirty (30) days after the date of notification of the decision of the alarm administrator. Appeal fees will be returned to the appealing alarm user if the appeal is upheld.

(2) The false alarm appeals panel shall consist of three (3) members of representatives from city agencies such as fire, police, MEMS, 9-1-1 and finance.

(3) The false alarm appeals panel shall conduct a hearing within thirty (30) days of the receipt of the request and consider the evidence by any interested person(s). The false alarm appeals panel shall make its decision on the basis of the preponderance of evidence presented at the hearing. The false alarm appeals panel must render a decision within ten (10) days after the date of the hearing. The false alarm appeal panel shall affirm or reverse the decision of the alarm administrator.

(d) Filing of a request for appeal shall stay the action by the alarm administrator requiring payment of a civil penalty, until the false alarm appeals panel has completed its review. If a

request for appeal is not made within the thirty-day period, the action of the alarm administrator is final.

(e) The alarm administrator or the false alarm appeals panel may adjust the count of false alarms based on evidence that:

(1) Evidence that a false alarm was caused by action of the telephone company, alarm installation company and/or monitoring company;

(2) Evidence that a false alarm was caused by a power outage lasting longer than four (4) hours;

(3) Evidence that the alarm dispatch request was not a false alarm.

(f) The installation company or the monitoring company may appeal the decision of the alarm administrator to the false alarm appeals panel as follows:

(1) The installation company or the monitoring company may file a written request by paying an appeal fee of twenty-five dollars ($25.00) and setting forth the reasons for the appeal within fifteen (15) business days after the date of notification of the decision from the alarm administrator. Appeal fees will be returned to the appealing company if the appeal is upheld.

(2) The false alarm appeals panel shall conduct a hearing within thirty (30) days of the receipt of the request and consider the evidence by any interested person(s). The false alarm appeals panel shall make its decision on the basis of the preponderance of evidence presented at the hearing. The false alarm appeals panel must render a decision within ten (10) days after the date of the hearing. The false alarm appeal panel shall affirm or reverse the decision of the alarm administrator.

(3) Filing of a request for appeal shall stay the action by the alarm administrator requiring payment of a civil penalty, until the false alarm appeals panel has completed its review. If a request for appeal is not made within the fifteen-business-day period, the action of the alarm administrator is final.

(g) With respect to civil penalties of an alarm installation company or monitoring company, the alarm administrator may take into consideration whether the alarm company had engaged in a consistent pattern of violations. The alarm administrator or the false alarm appeals panel may adjust the civil penalty based upon:

(1) A written statement from an independent inspector designated by the alarm administrator that the alarm system has been inspected and is in good working order;

(2) Confirmation that the alarm system requires two independent zones to trigger before transmitting an alarm signal to the monitoring company;

(3) Confirmation that the alarm system requires two independent detectors to trigger before transmitting an alarm signal to the monitoring company;

(4) Confirmation of the alarm verification process will not make an alarm dispatch request unless the need for law enforcement is confirmed by telephone, a listen-in device, camera device or other device agreed upon by the false alarm appeals panel; and

(5) Certification that the monitoring company will not make an alarm dispatch request unless the need for law enforcement is confirmed by a person at the alarm site.

(6) Written evidence that the alarm user, upon being notified by the alarm administrator that false alarms have been caused by user's alarm system, contracted with a qualified professional to make necessary repairs or maintenance to the alarm system in an effort to fix any defective portion of the system and/or completely replace the alarm system. The dollar amount in civil penalties reduced by the alarm administrator shall not exceed the dollar amount the alarm

user paid for equipment, parts, and/or labor for the repairs. All subsequent civil penalties after the waiver date are once again the responsibility of the alarm user.

(Ord. No. 19,331, § 12, 6-7-05; Ord. No. 19,886, § 1, 12-4-07; Ord. No. 21,020, § 6, 4-7-15; Ord. No. 21,293, § 6, 9-6-16)

Sec. 3-23. Enforcement and penalties.

Enforcement of this article may be by civil action as provided under municipal law.
(Ord. No. 19,331, § 13, 6-7-05)

Sec. 3-24. Report of Freedom of Information Act requests.

Upon receipt of a Freedom of Information Act request for false alarm or alarm user database information, the alarm administrator will notify the city manager's office of the request. The city manager will notify the mayor and board of directors of the request in a timely manner.
(Ord. No. 19,331, § 14, 6-7-05)

Sec. 3-25. Reserved.

Editor's note—Ord. No. 21,020, § 7, adopted Apr. 7, 2015, deleted § 3-25, entitled "Review of article after one year, in December, 2006", which derived from Ord. No. 19,331, § 15, adopted June 7, 2005.

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Chapter 4

ALCOHOLIC BEVERAGES*

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***Cross references—**Health and sanitation, ch. 14; licenses, taxation and miscellaneous business regulations, ch. 17; alcoholic beverages in parks, § 22-36.

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ARTICLE I. IN GENERAL

Sec. 4-1. Attempting to purchase alcoholic beverages by minor prohibited.

(a) It shall be unlawful for any person under the age of twenty-one (21) years of age to misrepresent his or her age for the purpose of obtaining liquor, beer or alcoholic beverages.

(b) It shall be unlawful for any person under the age of twenty-one (21) years to attempt to purchase or otherwise obtain any alcoholic beverage from a retail dealer who sells such beverages for off-premises consumption or from a public tavern, restaurant, or other establishment which sells such beverages for on-premises consumption.

(c) It shall be unlawful for any person under the age of twenty-one (21) years to attempt to purchase or otherwise obtain any alcoholic beverage at a private club.

(d) Any person convicted of violating subsections (a), (b) or (c) above shall be punished by a fine of not less than one hundred dollars ($100.00) and not more than five hundred dollars ($500.00).

(e) Posting of notice. The manager of any public establishment which sells alcoholic beverages for on-premise or off-premise consumption, and the manager of any private club which serves alcoholic beverages for on-premise consumption shall be required to post in a conspicuous place a notice stating:

"NOTICE TO PERSONS UNDER 21 YEARS OF AGE

You are subject to a $500 fine for:

(1) Misrepresenting your age for the purpose of obtaining liquor, beer, or alcoholic beverage.

(2) Attempting to purchase or otherwise obtain liquor, beer, or alcoholic beverage."

(1) The size of the notice shall not be less than eight and one-half (8½) inches by eleven (11) inches. The lettering on the notice shall be clearly legible.

(2) Any establishment which sells alcoholic beverages at a drive-in window shall post a separate notice at each drive-in window.

(Ord. No. 16,724, §§ 1—5, 8-2-94)

Editor's note—Ord. No. 16,724, §§ 1—5, adopted Aug. 2, 1994, did not specifically amend the Code; hence, inclusion herein as § 4-1 was at the discretion of the editor.

Secs. 4-2—4-25. Reserved.

ARTICLE II. ALCOHOLIC LIQUOR*

DIVISION 1. GENERALLY

Sec. 4-26. Definitions.

In this article "alcoholic liquor" or "liquor" means all vinous, spirituous or malt liquors as defined in and subject to the Arkansas Alcoholic Control Act [A.C.A. § 3-1-101 et seq.]. Such terms do not include beer or light wine as defined in A.C.A. § 3-5-202.

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 4-27. Penalty.

Any person, firm, corporation, or association violating the provisions of this article shall be deemed guilty of a misdemeanor, and upon conviction, in addition to losing their permit, shall be fined not more than five hundred dollars ($500.00). Each day's violation of said article shall constitute a separate misdemeanor.

(Ord. No. 16,439, § 1, 6-15-93)

Sec. 4-28. Reserved.

Editor's note—Ord. No. 16,439, § 2, adopted June 15, 1993, amended the Code by repealing provisions contained in § 4-28. Said provisions pertained to the size of liquor containers and carried no history note.

Sec. 4-29. Possession of open containers in unlicensed premises.

(a) It shall be unlawful for any person to possess or control on the premises where liquor is allowed to be sold, any bottle or container contain-

*__State law reference—__Arkansas Alcoholic Control Act, A.C.A. § 3-1-101 et seq.

ing liquor which has been opened unless the premises is authorized to sell for consumption on the premises.

(b) Subsection (a) applies to adjoining premises when any person has any interest therein and in addition has any interest in the regularly licensed retail or wholesale liquor store.
(Code 1961, § 4-8; Ord. No. 16,439, § 3, 6-15-93)

Secs. 4-30—4-45. Reserved.

DIVISION 2. PERMIT

Sec. 4-46. Required.

No person shall engage in the wholesale or retail liquor business without a permit issued pursuant to this division.
(Code 1961, § 4-1; Ord. No. 16,439, § 4, 6-15-93)

Sec. 4-47. Application and issuance.

A person required by this division to obtain a permit shall file a permit application with the city collector. A copy of the applicant's state permit shall accompany such application. The city permit shall be issued in the same name as the state permit.
(Code 1961, § 4-1; Ord. No. 16,439, § 5, 6-15-93)

Sec. 4-48. Fee.

(a) The privilege of storing, transporting and selling spirituous, vinous, and malt liquors at wholesale within the city requires a permit. There is levied an annual permit fee in the sum of one thousand five hundred dollars ($1,500.00) for each such business conducted. For the purpose of this subsection, the term "liquor" does not include beer with five (5) percent or less alcohol content by weight or any type of wine.

(b) The privilege of operating a business for the sale of spirituous, vinous, and malt liquors at retail in unopened packages within the city requires a permit. There is levied a one-time, nonprorated fee of two hundred twenty-five dollars ($225.00) for the issuance of a permit plus an annual permit fee in the sum of two hundred dollars ($200.00) for each such retail store operated. For the purpose of this subsection, the term "liquor" does not include beer with five (5) percent or less alcohol content by weight or any type of wine.

(c) The city revenue collection division shall have the right to accept installment payments of the permit fees due the city for such periods of time as the state alcoholic beverage control division grants for the payment of state permit fees.

(d) The city revenue collection division charged with the duty of collecting the permit fees shall notify the director of the alcoholic beverage control division of the identity of wholesalers and retailers who fail to comply with the provisions of this chapter.
(Code 1961, §§ 4-2—4-4; Ord. No. 16,439, § 6, 6-15-93; Ord. No. 20,279, § 1, 6-1-10)

State law references—Municipal license fees limited to one-half of state fees, A.C.A. § 3-4-202; state fees, A.C.A. § 3-4-604, 3-4-605, 3-7-111.

Sec. 4-49. Term.

A permit issued pursuant to the provisions of this division shall have a term concurrent with that of the state license that accompanied the application.
(Code 1961, § 4-4; Ord. No. 16,439, § 7, 6-15-93)

Sec. 4-50. Temporary permits.

(a) If a nonprofit or charitable organization has obtained a temporary permit from the alcohol beverage control board for the sale of liquor pursuant to A.C.A. § 3-4-105, the organization shall pay to the city revenue collection division a temporary permit fee of twenty-five dollars ($25.00) for the sale of such beverages for a period not to exceed five (5) consecutive days.

(b) A temporary permit issued under subsection (a) is only for on-premises consumption at the event specified in the temporary permit.
(Ord. No. 20,279, § 8, 6-1-10)

Sec. 4-51. Hours of operation for a transferred private club permit.

Any class B private club permit transferred into the corporate limits of the city after the effective date of this section [September 21, 2010], shall be restricted in the hours of operation to no

earlier than 7:00 a.m. and no later than 2:00 a.m.; provided, that this restriction shall not apply to the provisions of this Code of Ordinances that relates to legitimate sale of alcoholic beverages for consumption in any hotel or restaurant permitted to do so by state law and this chapter 4 of this Code of Ordinances; and, provided further, that this restriction shall not apply to the transfer of any permit in existence for a private club located within the corporate limits of the city on the effective date of this section [September 21, 2010], if the transfer is permitted after a public hearing by the alcoholic beverage control board, or its successor.
(Ord. No. 20,332, § 1, 9-21-10)

Secs. 4-52—4-65. Reserved.

DIVISION 3. ON-PREMISES CONSUMPTION*

Sec. 4-66. Definition.

For purposes of this division, "alcoholic beverages" includes liquor, beer and wine.
(Ord. No. 20,279, § 2, 6-1-10)

Sec. 4-67. Permit.

(a) Any hotel or restaurant which shall apply for and receive a permit to sell alcoholic beverages for on-premises consumption in accordance with A.C.A. § 3-9-210 shall pay to the city a permit fee on a calendar year basis in the following applicable amount:

(1) Hotel having fewer than one hundred (100) rooms, seven hundred fifty dollars ($750.00).

(2) Hotel having one hundred (100) or more rooms, one thousand five hundred dollars ($1,500.00).

(3) Restaurant having a seating capacity of less than one hundred (100) persons, seven hundred fifty dollars ($750.00).

(4) Restaurant having a seating capacity of one hundred (100) or more persons, one thousand five hundred dollars ($1,500.00).

(b) An annual renewal fee in the same amount as provided in subsection (a) of this section shall be paid to the city revenue collection division on or before June 30 of each year for the fiscal year beginning July 1.

(c) The fee for a permit issued between January 1 and July 1 shall be one-half (½) of the applicable amount specified in (a).
(Code 1961, § 4-41; Ord. No. 16,439, § 8, 6-15-93; Ord. No. 20,279, § 3, 6-1-10)

State law reference—Authority to require permit fee, A.C.A. § 3-9-214.

Sec. 4-68. Supplemental tax.

There is levied a supplemental tax of ten (10) percent upon the gross proceeds or gross receipts derived from the sale of alcoholic beverages pursuant to A.C.A. tit. 3, ch. 9, subch. 2 [A.C.A. 3-9-201 et seq.]. The tax shall be reported and paid to the city revenue collection division in the manner and at the same time as gross receipt taxes are reported and paid to the division of alcoholic beverage control. The taxes may be passed on to the consumer. A surety bond in the amount of five thousand dollars ($5,000.00) securing payment to the city shall be required for new permittees for one (1) year and for those permittees who have paid thirty (30) or more days late two (2) times in one (1) fiscal year.
(Code 1961, § 4-42; Ord. No. 16,439, § 9, 6-15-93)

State law reference—Authority to levy above tax, A.C.A. § 3-9-214.

Sec. 4-69. Private club; annual permit fee; supplemental tax.

(a) Any private club which applies for and receives a permit from the alcoholic beverage control division in accordance with A.C.A. §§ 3-9-222 and 3-9-223 shall pay to the city an annual permit fee of seven hundred fifty dollars ($750.00) for the fiscal year beginning July 1. An annual renewal fee in the same amount shall be paid to the city revenue collection division on or before July 1 of each year.

*__State law reference—__On-premises consumption of alcoholic, A.C.A. § 3-9-201 et seq.

(b) A permit shall be renewed on or before June 30 of each calendar year for the fiscal year beginning July 1.

(c) The fee for a permit issued between January and July 1 shall be one-half (½) of the applicable amount specified in subsection (a) hereinabove.

(d) In addition, there is levied a supplemental tax of five (5) percent upon the gross proceeds or gross receipts derived by such private club from the charges to members for the preparation and serving of mixed drinks, for the cooling and serving of such beer and wine drawn from the private stocks of such member as hereinabove provided for consumption only on the premises where served. The supplemental tax shall be reported and paid to the city revenue collection division in the same manner and at the same time as reported and paid to the state division of alcoholic beverage control. A surety bond in the amount of five thousand dollars ($5,000.00) securing payment to the city shall be required for all new permittees for one (1) year and for those permittees who have paid thirty (30) or more days late twice in one (1) fiscal year.
(Code 1961, § 4-43; Ord. No. 16,439, § 10, 6-15-93; Ord. No. 20,279, § 4, 6-1-10)

State law reference—Authority to levy above fee, A.C.A. § 3-9-223.

Sec. 4-70. Delinquent supplemental tax payments; penalty.

If any permittee shall fail to remit the supplemental tax on gross receipts within the time provided by A.C.A. tit. 3, ch. 9, subch. 2 [A.C.A. § 3-9-201 et seq.], a penalty of twenty-five (25) percent thereof shall be due and payable.
(Code 1961, § 4-44)

State law reference—Similar provisions, A.C.A. § 3-9-234.

Sec. 4-71. Hours of sale for on-premises consumption.

(a) Except as otherwise permitted by state law, it shall be unlawful for any person in the city to sell, offer for sale, or give away any alcoholic beverage except as follows:

(1) Monday through Friday from 7:00 a.m. to 2:00 a.m. of the following morning;

(2) Saturday from 7:00 a.m. to 1:00 a.m. on the following Sunday morning.

(b) Provided; however, that hotels and restaurants that possess a permit for on-premises consumption of alcoholic beverages, and that obtain a state license to do so, may sell alcoholic beverages for on-premises consumption on Sundays between the hours of 10:00 a.m. and 12:00 midnight. The privilege of selling alcoholic beverages for on-premises consumption on Sunday within the corporate limits of the city shall be governed by rules and regulations set forth in relevant Arkansas State Statutes, as may be amended, or as promulgated by the Arkansas Alcoholic Beverage Control Board, or its successor.
(Code 1961, § 4-15(d); Ord. No. 15,588, §§ 1, 2, 11-15-88; Ord. No. 16,242, § 1, 7-7-92; Ord. No. 17,950, § 1, 3-2-99; Ord. No. 22,492, § 1, 8-6-24)

Editor's note—Ord. No. 15,588, adopted Nov. 15, 1988, was not expressly amendatory of the Code; hence, inclusion of §§ 1 and 2 thereof as § 4-71(b), and designation of existing § 4-71 provisions as § 4-71(a), was at the discretion of the editors.

State law references—Authority to fix hours of sale etc., A.C.A. §§ 3-9-205, 3-9-233; sale during prohibited times unlawful, A.C.A. § 3-9-236; penalty for violation of A.C.A. §§ 3-9-201 et seq., 3-9-204.

Secs. 4-72—4-90. Reserved.

ARTICLE III. LIGHT WINE AND BEER*

DIVISION 1. GENERALLY

Sec. 4-91. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Beer means any fermented liquor made from malt or any substitute thereof and having an alcoholic content not in excess of five (5) percent by weight.

***State law references—**Light wines and beer, A.C.A. § 3-5-201 et seq.; municipal authority to regulate same, A.C.A. § 3-5-213.

Light wine means the fermented juice of grapes or other small fruits, including berries, and having an alcoholic content of not in excess of five (5) percent by weight.
(Code 1961, § 4-25)

Cross reference—Definitions and rules of construction generally, § 1-2.

State law reference—Similar provisions, A.C.A. § 3-5-202.

Sec. 4-92. Penalty.

Any person violating any of the provisions of this article shall upon conviction be punished by a fine of not more than five hundred dollars ($500.00).
(Code 1961, § 4-33; Ord. No. 16,439, § 11, 6-15-93)

State law reference—Above penalty required, A.C.A. § 3-5-203.

Sec. 4-93. Sale near churches and schools prohibited.

(a) It shall be unlawful to sell beer or light wines within three hundred (300) feet of any church in the residential section of the city. The residential section of the city shall be any part thereof that is outside of the fire zone, as now or hereafter be fixed by the board of directors. The business section of the city is that part of the city within the fire zone.

(b) The distance shall be measured from the nearest point of the church or school to the nearest point of the building or place where beer or light wine is sold.
(Code 1961, § 4-28)

State law reference—Location restrictions authorized, A.C.A. § 3-5-213.

Sec. 4-94. Intoxicated persons on licensed premises.

It shall be unlawful for any person engaged in the retail sale of beer or light wines in the city to allow any intoxicated person to remain in his place of business.
(Code 1961, § 4-28)

Sec. 4-95. Sale in other than original containers.

It shall be unlawful for any person having a permit to sell liquor to sell or offer for sale at retail any beer except in the original container. Such container shall not be opened on the premises. This section does not apply to places authorized to sell beer for on-premises consumption.
(Code 1961, § 4-32; Ord. No. 16,439, § 12, 6-15-93)

Sec. 4-96. Selling alcoholic beverages from residence prohibited; exceptions.

It shall be unlawful to sell any alcoholic beverages in any residence, or in any house or building used in part as a residence, or building built into a residence; provided, however, that this section shall not apply to places of business which hold a valid alcoholic beverage permit issued by the State of Arkansas.
(Ord. No. 16,723, § 5, 8-2-94)

Secs. 4-97—4-110. Reserved.

DIVISION 2. PERMIT

Sec. 4-111. Required.

No person shall engage in the business of transporting, storing, selling, distributing, possessing, and manufacturing of beer or light wine without a permit from the revenue collection division, which permit shall at all times be subject to all of the limitations and restrictions provided for in this article.
(Code 1961, § 4-17; Ord. No. 16,439, § 13, 6-15-93)

Sec. 4-112. Reserved.

Editor's note—Ord. No. 16,439, § 15, adopted June 14, 1993, amended the Code by repealing provisions contained in § 4-112. Said provisions pertained to application requirements for alcoholic beverage licenses and derived from the Code of 1961, §§ 4-17 and 4-18.

Sec. 4-113. Fee.

(a) Before any person shall engage in the business of selling beer or light wine within the city he shall pay a fee to the city in the following sum:

(1) Class A, for each retail dealer whose total gross annual sales do not exceed one thousand dollars ($1,000.00), fifteen dollars ($15.00) per year.

(2) Class B, for each retail dealer whose total gross annual sales exceed one thousand

dollars ($1,000.00) and do not exceed two thousand dollars ($2,000.00), twenty dollars ($20.00) per year.

(3) Class C, for each retail dealer whose total gross annual sales exceed two thousand dollars ($2,000.00) and do not exceed three thousand dollars ($3,000.00), twenty-five dollars ($25.00) per year.

(4) Class D, for each retail dealer whose total gross annual sales exceed three thousand dollars ($3,000.00) and do not exceed four thousand dollars ($4,000.00), thirty dollars ($30.00) per year.

(5) Class E, for each retail dealer whose total gross annual sales exceed four thousand dollars ($4,000.00) and do not exceed five thousand dollars ($5,000.00), thirty-five dollars ($35.00) per year.

(6) Class F, for each retail dealer whose total gross annual sales exceed five thousand dollars ($5,000.00) and do not exceed six thousand dollars ($6,000.00), forty dollars ($40.00) per year.

(7) Class G, for each retail dealer whose total gross annual sales exceed six thousand dollars ($6,000.00), forty dollars ($40.00) plus five ($5.00) for each additional thousand or fractional part of a thousand of gross business in excess of six thousand dollars ($6,000.00).

(b) Before any person shall engage in the business of distributing or selling beer at wholesale, they shall pay to the city a permit fee of five hundred dollars ($500.00) per year.

(c) A new business shall pay a fee of forty dollars ($40.00) for a beer permit.

(d) The fee shall be due and payable on June 30 of each year or on commencing business.

(e) Whenever it appears to the city collector that a retail dealer has secured a permit for fifteen dollars ($15.00) when a larger amount should have been paid he shall require the payment of the difference or cancel the permit.

(f) The revenue collection division charged with the duty of collecting the permit fees shall notify the director of the alcoholic beverage control division of the identity of retailers failing to comply with the provisions of this chapter.
(Code 1961, §§ 4-16, 4-19—4-21; Ord. No. 15,913, § 8, 8-7-92; Ord. No. 16,439, § 15, 6-15-93; Ord. No. 20,279, §§ 5—7, 6-1-10)

Sec. 4-114. Term.

A permit issued pursuant to this article expires on June 30 of each year.
(Code 1961, § 4-20; Ord. No. 16,439, § 16, 6-15-93)

Sec. 4-115. Posting.

The permit required by this division shall be prominently displayed in the location for which it was issued.
(Code 1961, § 4-22; Ord. No. 16,439, § 17, 6-15-93)

Sec. 4-116. Temporary permits.

(a) If a nonprofit or charitable organization has obtained a temporary permit from the Alcohol beverage control board for the sale of beer or light wine pursuant to A.C.A. § 3-4-105, the organization shall pay to the city revenue collection division a permit fee of fifty dollars ($50.00) for the sale of such beverages for a period not to exceed five (5) consecutive days.

(b) A temporary permit issued under subsection (a) is only for on-premises consumption at the event specified in the temporary permit.
(Ord. No. 20,279, § 10, 6-1-10)

Secs. 4-117—4-140. Reserved.

ARTICLE IV. SECURITY MEASURES FOR CLASS B PRIVATE CLUBS

Sec. 4-141. Security measures for class B private club permits.

(a) Any class B private club that operates past 12:00 midnight on Friday and Saturday nights, and on state-recognized holidays and during special events, must retain a minimum number of two (2) individuals, who are certified by the State of Arkansas to act as a law enforcement officer, to

be present on and around the exterior premises of the club from 12:00 midnight until closing on those above-designated nights for the purpose of providing security and ensuring the safety of the employees and patrons of the club. A class B private club may apply to the chief of police for a waiver from the requirement as to the number of certified officers. The decision of the chief of police on the request for a waiver may be appealed to the city manager. While the matter is on appeal to the city manager, the class B private club shall comply with the decision of the chief of police. The chief of police and the city manager, in passing upon such a request for a waiver, shall consider the location of the club, and the size of the club in terms of the building and the number of patrons it can facilitate.

(b) To the extent any class B private club is, as of the date of the adoption of the ordinance from which this article derives, utilizing more than two (2) individuals who are certified by the State of Arkansas to act as a law enforcement officer, or is using such individuals during a time period greater than the minimum specified above, that club shall not modify that practice so as to decrease the number of individuals or hours without first submitting an application to the chief of police for approval. This decision of the chief of police may be appealed to the city manager. To the extent any class B private club is unable to retain the necessary individual(s) on reasonable terms, that club may make application to the chief of police for a waiver of the requirement set forth in this article. This decision of the chief of police may also be appealed to the city manager. While the matter is on appeal to the city manager, the class B private club shall comply with the decision of the chief of police.

(c) In addition to two (2) individuals, unless a lesser number is authorized by the chief of police, who are certified by the State of Arkansas to act as law enforcement officers to work outside of an class B private club as set forth above, any such club shall also employ an adequate number of individuals to work as security on the inside of the club. Individuals working as security on the inside of the club are not required to be certified by the State of Arkansas to act as a law enforcement officer.

(Ord. No. 20,940, § 1, 10-6-14)

Sec. 4-142. Probationary measures to be enacted against class B private club permits in the event of frequent unlawful activity.

(a) If numerous incidents occur on the interior or exterior premises owned or controlled by a class B private club, including adjacent properties controlled by the class B private club by virtue of an agreement, lease or contract, after the effective date of this article, that could constitute grounds for it to be declared a nuisance as defined by Arkansas case law, or that could constitute grounds for the suspension of its Arkansas Beverage Control Board license, or which involve numerous events on the premises that constitute a felony under Arkansas law, then the chief of police shall conduct a review of all the relevant facts underlying those incidents, including consulting with the club owner, manager and relevant employees, and if he concludes in his reasonable judgment that the incidents resulted in whole or in part from a lack of reasonable security measures or improper operations by the class B private club, he may place that class B private club on probation by requiring it to close at a time earlier than 5:00 a.m., but no earlier than 3:00 a.m., for a period of time determined by the chief of police, but no more than two (2) months.

(b) In the event the chief of police places a class B private club on probation a second time within a twelve-month period, the probation shall be for a minimum of two (2) months.

(c) The chief of police shall provide notice of probation to the class B private club in writing via certified mail. The decision of the chief of police may be appealed to the city manager, such appeal being submitted via letter to the city manager within thirty (30) days of receipt of the decision of the chief of police. If requested in the appeal letter, the city manager shall provide the class B private club the opportunity to be heard on its appeal on a date and time set by the city manager. The city manager shall render a decision within fifteen (15) days of receipt of the appeal, or within fifteen (15) days of the hearing, whichever is later, and shall submit that ruling to the class B private club via certified mail. The decision of the city

manager shall be final. The imposition of the probation shall be stayed during the pendency of all appeals.

(d) All class B private clubs shall install and/or maintain adequate exterior lighting and video surveillance equipment, on property owned or legally controlled by it and shall consult with the chief of police in determining adequate lighting and video surveillance, and signage to prohibit loitering. If adequate lighting and surveillance is not already in place upon the date of enactment of this article, the class B private club shall install such equipment within reasonable period of time as determined by the chief of police.

(e) A class B private club which does not operate later than 2:00 a.m. on any night of the week is exempt from this article.
(Ord. No. 20,940, § 1, 10-6-14)

Secs. 4-143—4-165. Reserved.

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Chapter 5

AMBULANCES AND EMERGENCY MEDICAL CARE*

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*__Editor's note—__Ord. No. 22,384, § 1, adopted February 6, 2024, amended chapter 5 in its entirety to read as herein set out. Former chapter 5, §§ 5-26—5-37, 5-56—5-80, pertained to similar subject matter, and derived from Code 1961, §§ 5-1—5-7(a)—(c), 5-9, 5-11—5-13, 5-17, 5-19—5-22; Ord. No. 14,062, § 1, 6-16-81; Ord. No. 14,062, § 1, 6-16-81; Ord. No. 15,300, §§ 1—6, 8—10, 5-5-87; Ord. No. 15,301, § 1, 6-2-87; Ord. No. 15-611, § 1, 12-20-88; Ord. No. 15,714, § 1, 7-18-89; Ord. No. 15,763, § 1, 10-17-89; Ord. No. 17,255, §§ 1—6, 8—14, 16, 18, 20, 21, 23, 24, 8-6-96; Ord. No. 17,589, § 1, 10-7-97; Ord. No. 19,640, §§ 1—4, 12-20-05; Ord. No. 19,954, § 1, 4-15-08; Ord. No. 20,995, § 1, 2-24-15; Ord. No. 21,251, § 1, 6-7-16; Ord. No. 21,422, § 1, 6-6-17; Ord. No. 21,871, § 1, 6-9-20

__Cross references—__Health and sanitation, ch. 14; traffic, ch. 32.

__State law reference—__Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

Sec. 5-77. Reserved.
Sec. 5-78. Medical quality review and investigation of consumer complaints.
Sec. 5-79. Provision for special use licensure.

ARTICLE I. GENERAL

Secs. 5-1—5-25. Reserved.

ARTICLE II. EMERGENCY MEDICAL HEALTH CARE FACILITIES BOARD (AMBULANCE BOARD)*

Sec. 5-26. Created.

Pursuant to the Public Facilities Boards Act [A.C.A. § 14-137-101, et seq.], there is created the City of Little Rock, Arkansas, Emergency Medical Health Care Facilities Board.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-27. Membership.

(a) The emergency medical health care facilities board shall consist of five (5) persons selected as provided in A.C.A. § 14-137-108, for terms of five (5) years each. However, the medical director for the emergency medical health care facilities board shall be a member of the emergency medical health care facilities board and shall not be subject to any term limits. Such board shall, prior to the appointment of each member, submit a letter to the board of directors listing the name and occupation of each proposed member for review and/or comment by the board of directors. Members shall be residents and qualified electors of the city and shall take, and file, with the city clerk, the oath of office prescribed by law.

(b) The board of directors shall make all reasonable efforts to ensure that the membership consists of persons whose occupation or expertise lies in the following fields:

(1) The medical director for the emergency medical health care facilities board.

(2) Attorney.

(3) Health care administrator.

(4) Business.

(5) Consumer.

(c) In addition to the membership set out above, if the emergency medical health care facilities board expands, pursuant to the interlocal agreement approved by the board of directors, to provide ambulance service to counties and other municipalities, not more than two (2) additional members per governmental unit may be added to the membership of such board. The appointment of such new members, their terms, residency and other qualifications, shall be determined by the terms of the interlocal agreement providing for the expansion of service. The interlocal agreement must be approved by the board of directors.

(d) The mayor of the City of North Little Rock may appoint two (2) members to serve on the board who shall represent the interests of the City of North Little Rock. These members shall be residents of the City of North Little Rock and shall serve a term of five (5) years provided an interlocal agreement concerning ambulances between Little Rock and North Little Rock is in effect. Neither of these members shall be eligible to serve as chairman of the board.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-28. May be called ambulance authority.

The emergency medical health care facilities board created by this article may be referred to as the "ambulance authority."
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-29. General functions.

The ambulance authority has authority to accomplish, establish, manage, operate, finance and contract for emergency medical health care services and facilities within, or near, the city.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-30. Fiscal procedures.

The emergency medical health care facilities board is subject to all fiscal procedures of the city.
(Ord. No. 22,384, § 1, 2-6-24)

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*__Cross reference—__Boards and commissions generally, § 2-261 et seq.

__State law reference—__Public Facilities Boards Act, A.C.A. § 14-137-101 et seq.

Sec. 5-31. Powers.

The ambulance authority is empowered, from time to time, to loan, acquire, construct, reconstruct, extend, equip, improve, sell, lease, and contract concerning emergency medical health care services and facilities as shall be determined by the ambulance authority to be necessary to effect the purposes of this article to provide adequate, efficient and professional emergency medical health care services and facilities as within, or near, the city. In addition, the ambulance authority shall have each of the powers set forth in A.C.A. § 14-137-111, and appropriate to the purposes for which the ambulance authority is created. The ambulance authority may enter into such contractual or cooperative agreements with such persons as may, in its discretion, be advisable to accomplish the purposes of this article, including without limitation, departments, agencies, or instrumentalities of the United States of America, the state, any county or municipality of this state, or the city.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-32. Insurance and indemnity.

The ambulance authority shall acquire, obtain, or otherwise contract for all forms of insurance that are necessary and advisable to fully protect, insure and hold the city harmless from any liability connected with the ambulance authority. In any event, the ambulance authority will indemnify and hold the city harmless from any liability the city may incur or suffer as a result of the ambulance authority's operations.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-33. Issuance of bonds.

The ambulance authority may issue evidence of indebtedness, including, but not limited to, revenue bonds, notes or other evidences of indebtedness, from time to time, and may use the proceeds, either alone, or together with other available funds and revenues, to accomplish the purposes for which the ambulance authority is created as the same relates to the providing of adequate, efficient, and professional emergency medical health care services and facilities; provided that the accumulated indebtedness represented by such revenue bonds, notes, or other evidences of indebtedness shall be obligations only of the ambulance authority and shall not constitute an indebtedness for which the full faith and credit of the city or any of its revenues are pledged, and the principle and interest on the bonds or other evidence of indebtedness shall be payable from and secured by a pledge of revenues from emergency medical health care services and facilities financed, in whole or in part, from bond proceeds or other evidence of indebtedness and as authorized by, and in accordance with the provisions of the Public Facilities Board Act [A.C.A. §§ 14-137-101, et seq.], together with such other collateral as may be properly pledged under such act and as the ambulance authority in its discretion may determine.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-34. Excess revenues.

Any revenues of the ambulance authority accumulated in excess of the amount necessary to accomplish the purposes for which the ambulance authority is created and to comply with all covenants and agreements of the ambulance authority in connection with any outstanding bonds or other obligations shall be reported to the board of directors.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-35. Organization and reports.

The ambulance authority shall adopt such bylaws and other rules and regulations as shall be necessary for the conduct of its business and consistent with the provisions of the Public Facilities Boards Act [A.C.A. §§ 14-137-101, et seq.]. The ambulance authority shall cause to be filed with the city clerk the annual report described in A.C.A. § 14-137-123 and the ambulance authority shall further provide the city with monthly financial statements in a form acceptable to the city.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-36. Responsibilities.

The ambulance authority shall provide developmental and financial oversight on all

matters concerning ambulance service in the city. The ambulance authority shall study, review, analyze, advise and report on all matters of public policy affecting ambulance service that come before the board of directors including, but not limited to, applications for franchises, franchise fees, applicable rates and proposed regulations and ordinances.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-37. No subsidy.

The city shall not lend, transfer, give or otherwise extend any monies or subsidize the ambulance authority in any way except to the extent of assistance to the ambulance authority which may be financed through ambulance franchise fees collected by the city.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-38. Exclusivity.

The ambulance authority shall have exclusive franchise within its service areas to provide Advanced Life Support (ALS) and Basic Life Support (BLS) ambulance services subject to any exceptions in the Little Rock Code.
(Ord. No. 22,384, § 1, 2-6-24)

Secs. 5-39—5-55. Reserved.

ARTICLE III. AMBULANCE SERVICE

Sec. 5-56. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Advanced life support (ALS) means a level of emergency service provided by an emergency medical technician-paramedic trained at the level of advanced life support, including resuscitation techniques such as intubation, intravenous access, and cardiac monitoring.

Ambulance means any motor vehicle equipped with facilities to convey infirm or injured persons in a reclining position.

Ambulance authority, or the *authority,* means the City of Little Rock, Arkansas, Emergency Medical Health Care Facilities Board. The ambulance authority does business as metropolitan emergency medical services, or "MEMS."

Ambulance control center means the facility designated by the ambulance authority from which all ambulances are dispatched and controlled.

Ambulance patient means any person who is ill, infirm, injured or otherwise incapacitated, bedridden, or helpless and requires or requests ambulance service or helicopter rescue service to or from a hospital, physician's office, medical clinic, nursing home or other health care facility.

Ambulance personnel means paramedics, emergency medical technicians, emergency vehicle operators and emergency medical responders.

Ambulance run means a patient transport by ambulance on a for-hire fee for service or prepaid capitation basis.

Ambulance service area means that area which is contained within the boundaries of the municipal limits of the city and the area of those jurisdictions participating by interlocal agreement in the MEMS system.

Arkansas Emergency Physicians' Foundation, Inc., or *AEPF* means the non-profit professional and charitable organization composed of licensed physicians, a majority of whom are regularly engaged in the full-time professional practice of emergency medicine. This term may apply to this organization, or to any similar organization, or to a separate board created by the city.

Base station physician means a physician licensed under the Arkansas Medical Practices Act (A.C.A. §§ 17-95-201, et seq.) and certified by the AEPF or the American College or Emergency Physicians or operating under the supervision of such a physician.

Basic life support (BLS) means a level of emergency service provided by an emergency medical technician that includes basic techniques such as bleeding control, simple airway maneuvers and administration of oxygen.

Dispatcher means any person who works in the ambulance control center and dispatches ambulances.

Driver means an emergency vehicle operator or any other person who is certified by the license officer to drive ambulances in the city.

EMS means emergency medical services.

Emergency medical technician, or EMT means any person certified by the state as an emergency medical technician.

Exclusive franchise means the exclusive right to engage in all emergency and nonemergency intracity patient transports and intercity and intracounty patient transports originating from within the city. This definition also includes the ambulance authority's operating area as established by interlocal agreement.

First-responder means any person capable of providing qualified first-responder emergency care as required by the AEPF or as further defined by the Arkansas Department of Health.

Intercity patient transport means an ambulance run which transports a patient from a point within the city to another city, or from another city to a point inside the city.

Intracity means that which takes places solely within the city.

License officer means the authorized agent of the city manager.

Life-threatening emergency means an echo or delta level response that is designated as time critical and life threatening as defined by the International Academies of Emergency Dispatch ("IAED"). The response time component of life-threatening emergency calls will be measured based on the baseline and benchmark standard endorsed by the Commission on Fire Accreditation International ("CFAI") which also takes into consideration the population density as well as the service area.

Medical control means online medical direction given to ambulance personnel by a base station physician through direct voice contact via telephone or other communication device or platform, or via offline medical direction through the use of standing orders through written clinical guidelines.

Medical propriety dispatch system, or *MPDS* means a unified system used to dispatch appropriate aid to medical emergencies including systematized caller interrogation and pre-arrival instructions.

Medical protocol means any diagnosis-specific or problem-oriented written statement of standard procedure, or algorithm, approved by AEPF as the normal standard used to determine level of response, pre-arrival instruction and prehospital care for that given clinical condition.

Medical quality review means an official inquiry into the circumstances involving an ambulance run or request for service.

Nonlife threatening emergency means a Charlie, Bravo, Alpha or Omega response as defined by IAED. The response time for these emergencies shall be determined by AEPF.

Paramedic means a person licensed by the state as a paramedic.

PSAP means a public safety answering point, e.g., 911 call center.

Response time means the time interval from the initial call from the requestor to the arrival of the first ambulance on scene. Response time consists of the following components:

(a) *Dispatch time:* The time interval from initial call from the requestor until the first dispatch notification for a unit to respond.

(b) *Turnout time:* The time interval from when response personnel receive the dispatch notification until there is a staffed ambulance responding.

(c) *Travel time:* The time interval from the staffed ambulance initiates response until it arrives at the scene of the incident.

(d) *Dispatch to first unit arrival:* Is a cumulative time for the time components of turnout and travel times. This is the

time controlled only by the responding resources and not the ambulance control center.

The EMS agency response time begins when it receives a response from the primary PSAP and both a full address and a MPDS call determinate has been obtained. The measurement of time stops when the ambulance or other unit arrives at scene of an incident or at a staging area awaiting the arrival of another public safety official due to an unsafe scene.

Senior paramedic in charge means that individual among the licensed personnel on board an ambulance unit who is not the driver and who is a paramedic currently certified under state law, and who is designated by his employer, or immediate supervisor, as the individual in command of the ambulance and its operation. If two (2) or more licensed EMTs on the ambulance, or at the scene, are at the same level of training and experience, the person with the lowest EMT license number shall be the individual in command of the ambulance, and as applicable, at the scene.

Special use permit means a permit issued by the license officer to hospitals serving the public for the provision of specialized mobile intensive care services to clinically defined patient populations (such as neonatal transport) and permits issued pursuant to Little Rock Code section 5-79(c).

System status management means the formal and orderly process of continuously locating ambulance units available for dispatch among post locations throughout the geographic area being served to maintain the best possible readiness configuration at all times.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-57. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in Little Rock Code section 1-9. Each day that any violation, of or failure to comply with this article, is committed, or permitted to continue, shall constitute a separate and distinct offense under this Section and shall be punishable as such hereunder. Each ambulance run unlawfully performed shall be considered a separate offense. Each hour of illegally rendered standby services shall be considered a separate offense. Each incident of willful falsification of data by a licensee shall be considered a separate offense. Each ambulance run for which records are willfully omitted shall be considered a separate offense. Each instance of willful participation in the committing of an offense by an individual working as a paramedic, EMT or dispatcher shall also be considered a separate offense.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-58. Purpose and general intent.

(a) *Purpose.* It is the purpose of this article to establish a regulated ambulance service system that can provide each ambulance patient with the best possible chance of survival without disability or preventable complication.

(b) *General intent.* It is the intent of the board of directors of the city that:

(1) Exclusively is mandatory because it is neither fair nor financially feasible to require a high level of emergency performance from one (1) ambulance company while simultaneously allowing other ambulance companies to select certain preferred nonemergency business.

(2) Substantive regulation requiring clinical excellence and citywide life-saving response time performance cannot reasonably be imposed on an unsubsidized ambulance company without simultaneously granting that ambulance company an exclusive contract to furnish all ambulance service, both emergency and non-emergency, to residents of the city.

(3) If the ambulance authority is not operated as a public facilities board (with ambulance services provided by employees of the board), it may, after bid procedures, select a private ambulance company for an exclusive contract to provide ambulance personnel to operate the ambulance service in the city. The ambulance company shall provide the ambulance

personnel necessary to operate the equipment owned by the ambulance authority and to provide those management functions delegated to it under contract by the ambulance authority. The ambulance authority shall own, or shall serve as a primary lessee of, all ambulance and communication equipment and shall provide all administrative oversight for the ambulance service system. Nothing in this paragraph shall prevent the ambulance authority from operating the ambulance service and providing its own personnel.

(4) This article will:

a. Furnish bona fide monitoring and medical control of present ambulance operations.

b. Allow the city to contract with AEPF to develop written medical standards, protocols, controls, medical quality reviews and system evaluation and to provide complete medical control over and evaluation of the city's ambulance service system.

c. Require the development of a first-responder program.

(5) The ambulance authority shall be required to:

a. Designate a single EMS control center in the city, or county, from where all ambulance dispatching shall take place.

b. Purchase an appropriate complete communication and recording system.

c. Design the communication system and control center operation to allow for full-time recording of all ambulance-related radio and telephone traffic.

(c) *Basic life support: Non-life threatening emergencies.* Notwithstanding any other provision of this chapter, the ambulance authority may provide for BLS responses to non-life threatening emergencies as permitted by the state department of health, as consistent with this chapter, and as approved by AEPF.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-59. Operation on fee or for-hire basis.

Except as provided in Little Rock Code sections 5-58 and 5-60, no person or entity, public or private, shall operate an ambulance to transport the sick, injured, or infirm on a fee or for-hire basis, regardless of whether it is an emergency or routine non-emergency patient transport, upon any street within the city or other contracted areas.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-60. Exemptions.

An ambulance service license shall not be required for ambulance services which are:

(1) Owned and operated by an agency of the United States Government.

(2) Rendering requested assistance to an ambulance which is currently licensed in cases of disaster, in a major emergency too great for local resources, or in response to provisions of a written mutual aid agreement approved by the ambulance authority.

(3) Engaged in intercounty or intercity patient transport from facilities anywhere outside of the city and its franchise area extended by interlocal agreements, but which ambulance run ends anywhere inside the city and its franchise area.

(4) Rendering ambulance services under contract with the ambulance authority.

(5) Private companies which use an ambulance solely for the transportation of their employees for illness or injury sustained while performing their work.

(6) Operating a privately-owned ambulance designed especially for the transportation of the infirm or physically handicapped where the ambulance is used

solely for the benefit of the owner and not for hire on a fee for service or pre-paid basis.

(7) Ambulances owned and operated by a licensed hospital and used exclusively for specialized mobile intensive care or for institutional transfers of their own admitted patients or residents, provided such hospital shall apply for and receive a special use mobile intensive care license or be eligible for grandfather licensing, as provided for under Little Rock Code section 5-79. Such special use permit is non-transferable by the hospital.

(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-61. Medical director generally.

The medical director shall be a licensed physician selected by AEPF, or a similar organization. He shall serve at the pleasure of same.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-62. Reserved.

Sec. 5-63. Intracity ambulance service.

It shall be unlawful for any person, or entity, public or private, to operate an intracity ambulance service which provides emergency or nonemergency prehospital care or patient transports except as specifically allowed pursuant to the provisions of this article.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-64. Deviation from medical protocol.

Base station physicians may, for cause, deviate from approved medical protocol in a specific case where authorized deviation is warranted by special circumstances.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-65. Control by board of directors.

The ambulance authority is authorized to operate the city's ambulance service system under the supervision and control of the ambulance authority's board of directors.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-66. Management options and mandatory requirements.

(a) Mandatory requirements for exclusive contract method are as follows:

(1) The ambulance authority shall operate, or cause to be operated, a licensed ambulance service system for the city, and for neighboring areas if appropriate contractual relationships can be developed with those neighboring areas for the equitable sharing of equipment costs, operating costs, medical costs, control and audit costs and management costs. The service operated by the ambulance authority shall have the following characteristics:

a. The services rendered must at all times be in compliance with the provisions of this article.

b. All emergency equipment utilized in this service must be owned by or leased to the ambulance authority as primary lessee.

c. All legal proceedings which are necessary, shall be performed by the ambulance authority.

The ambulance authority shall own, or shall be the primary lessee of, all ambulance and communication equipment, shall be responsible for all billings and collections, but may outsource the billings and collections, as needed, and shall provide administrative oversight for the ambulance service system. AEPF shall provide all medical advice, medical control, medical quality reviews and medical oversight.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-67. Physician supervision and medical quality control.

(a) *Advisory contract.* The city manager may contract with AEPF, or any similar organization, to provide medical advice to the ambulance authority and physician supervision and medical quality control over the city's ambulance service system.

(b) *The AEPF generally:*

(1) *Powers and duties.* The powers and duties of AEPF are generally to provide the ambulance authority with information about the necessary elements of the city's ambulance service system and to:

a. Establish reasonable standards of production and patient care, including standards for vehicles and on-board equipment.

b. Make official recommendations to the ambulance authority and to the city's board of directors.

c. Establish medical protocols.

d. Establish standards, procedures and protocols for the operation of the EMS control center.

e. Establish procedures and protocols for first-responder medical care.

f. Establish standards and procedures governing the reliable provision of twenty-four-hour medical control.

(2) *Medical quality reviews.*

a. The AEPF, or similar organization, shall perform medical quality reviews when requested by the license officer, at the request of the chairman of the ambulance authority, the city manager, any member of the board of directors, any certified paramedic, any licensed physician, or any member of the ambulance authority board in accordance with the terms and conditions of its contract with the city.

b. A medical quality review performed upon the request of an authorized party and which is related to a particular incident, rather than to a concern about a general protocol or system procedure, shall be initiated by a review of all recordings, dispatch records, patient report forms, hospital records, and other records, documents, and information related to that incident. If, in the opinion of the reviewing physician, additional inquiry or action is appropriate, an oral review of the matter shall be conducted by the reviewing physician. The person whose performance is the subject of such medical quality review shall be notified of the time and place of such oral review, and the person whose performance is the subject of the medical quality review may not be excluded from the oral review.

c. The medical quality review procedure is intended to be educational and positive and not vindictive or punitive. Any individual whose actions are under review may not be excluded from the review process and shall have the right to appear and be heard.

(3) *Medical director.* The medical director shall implement the policies established by AEPF and upon approval of AEPF and the ambulance authority, may appoint an assistant to the medical director who shall serve in that capacity at the pleasure of the medical director.

(4) *Annual report.* The medical director and the chairman of the ambulance authority may, at their discretion, make a written report to the board of directors on January 1 of each year detailing the status of the ambulance service system.

(c) *Radio communication.*

(1) The ambulance authority shall ensure that at all times its field personnel have direct access by reliable radio or telephone communications to medical consultation and direction concerning the care of patients in the field. To ensure that reliable medical communications exist at all times and to ensure that all medical communications are appropriately monitored for backup purposes, the ambulance authority shall furnish or otherwise acquire a reliable medical communications system.

(2) All medical control radio traffic shall be continuously recorded by the ambulance control center. All tapes or other recording media shall be retained for one hundred twenty (120) days and may then be recycled, destroyed or erased.

(d) *Run reports and reviews.* A copy of the approved run report form, approved by the ambulance authority, shall be left with the emergency receiving facility to which each patient is delivered. The receiving facility physician may request a medical quality review to be performed relative to the prehospital or interhospital care of that patient. Ambulance personnel involved directly in the handling of a medical quality reviewed case after notification from the medical director shall attend the reviews of that case. Failure to attend the medical reviews without good cause is grounds for disciplinary action by the executive director.

(e) *Appeals.* AEPF shall make its findings and recommendations to the director of operations, who shall be responsible for any disciplinary action taken against ambulance personnel or performance improvement plans for ambulance personnel. Such actions may be appealed to the executive director. In the case of fire department first-responders, AEPF shall make its findings and recommendations to the fire chief, who shall be responsible for any disciplinary action taken against fire department personnel, in accordance with the city's personnel policy and civil service rules and regulations.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-68. Standards of production and performance.

The ambulance authority shall follow the following as minimum standards:

(1) *Equipment and management capability.* Each and every ambulance and all on-board equipment utilized by the Ambulance Authority in performing services which are the subject of this article shall comply with applicable standards required for licensure. The ambulance authority shall maintain the equipment and shall employ sufficient backup equipment to ensure that a safe level of reserve equipment capacity is available to provide peak period ambulance coverage even at times when unusual occurrences of equipment breakdown and routine equipment maintenance coincide.

(2) *Personnel.* The ambulance authority shall ensure:

a. That each ambulance is staffed by personnel as required by the Arkansas Department of Health.

(3) *Clinical performance.* The clinical performance of the ambulance authority and its personnel shall be consistent with and shall conform to the operating procedures and medical protocols adopted by AEPF. Where clinical performance deficiencies are discovered, the ambulance authority shall efficiently and promptly take all reasonable measures to correct the deficiencies.

(4) *Response time performance.* Response time performance standards are as follows:

a. Life-threatening emergency calls.

1. The fire department shall make a diligent good faith effort to manage all available resources to achieve the response times for life-threatening emergency calls set by CFAI. Response times under exceptional circumstances, e.g., mass casualty events, shall be exempt from these requirements.

2. The ambulance authority shall make a diligent good faith effort to manage all available resources to achieve the response times for life-threatening emergency calls set by CFAI. Response times under exceptional circumstances, e.g., mass casualty events, shall be exempt from these requirements.

3. Where an ambulance unit is dispatched from a non-transporting first-response-only status, its response time may be counted as the ambulance authority ambulance response time even though the patient was transported by a different ambulance. In addition, the response time of a neighboring ambulance service responding by mutual aid request may also be counted as the ambulance authority's ambulance response time, provided the level of life support capability furnished by the neighboring ambulance service is comparable to that required under this article, as determined by AEPF, and provided that reliance upon neighboring ambulance service operators is only an occasional event and not a routine method of operation of the ambulance authority.

b. *Nonlife-threatening emergency calls.* The ambulance authority shall make a diligent good faith effort to manage all available resources to achieve the response times for nonlife-threatening emergency calls set by the center for public safety excellence.

c. *Other types of calls (nonlife-threatening).* The ambulance authority's response to other types of calls shall be reasonable, but in every case where a conflicting demand for resources occurs, responses to life-threatening and nonlife-threatening calls shall take precedence over requests for non-emergency BLS transfer service. Furthermore, the ambulance authority shall display sound judgment in developing its system status management plans to preserve a safe level of emergency response capability at all times by delaying response to requests for non-emergency BLS service until additional ambulance units become available whenever the number of remaining ambulance units available for dispatch falls below a reasonably established safe level of emergency reserve capacity, as determined by historical demand analyses.

(5) *Continuous physician medical control required.* The ambulance authority shall be responsible for ensuring that its field personnel at all times have access to qualified medical control and direction concerning the care of patients in the field by a base station physician or designee. All medical control and direction shall be available by reliable radio, telephone, or other communication platform, according to the communications standards and other standards of medical control set forth in Little Rock Code section 5-67.

(6) *Data systems and reporting.* The ambulance authority shall comply at all times with the data system and reporting standards required by AEPF, applicable Statutes and the Arkansas Department of Health requirements.

(7) *In-service training program required.* The ambulance authority is required to furnish or otherwise make available without charge to its employees an in-service training program which conforms to the standards for in-service training adopted by AEPF. All ambulance personnel are required to attend these in-service training programs in accordance with the guidelines promulgated by AEPF.

(8) *Fully centralized dispatch required.* All dispatching movements of ambulance units subject to regulation under this article shall be directed from the designated EMS control center or other designated area. It is unlawful to dispatch or control any ambulance unit subject to

regulation under this article from any location other than the designated EMS control center or other designated area. At all times, the EMS control center or other designated area shall have full authority to direct the positioning, movements and run responses of all manned ambulance units, and to activate on-call crews following the then current system status management procedures.

(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-69. First-responder program.

(a) The city will continue to provide "emergency first-responder" program and personnel, provided this service shall maintain at least emergency medical responder certification, as certified by the state health department.

(b) The ambulance authority's communication center personnel shall request first-responder units provided by the city. The fire department will maintain control over the use of fire apparatus as first-responders, and shall be advised by the ambulance system dispatch personnel as to the need for such "first-responder" response. The director of operations, or his/her designee, shall be advised by the Central Station District Chief of the non-availability and resumption of availability of first-responders. The fire department shall retain control over the decision to divert fire apparatus from first-responder activity in the event such units are needed for fire purposes.

(c) The ambulance authority shall make its training program available to first responder programs. The city will use its best efforts to have its first responder personnel avail themselves of this training.

(d) The ambulance authority' will fully cooperate with the city's communication center in establishing radio monitoring capability of the ambulance service system's activities and all necessary' communication linkages between the various emergency provider organizations' operations.

(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-70. Vehicle permits.

It shall be unlawful for any person subject to regulation by this article to operate an ambulance or helicopter service unless a currently valid state vehicle permit has been issued.

(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-71. Dispatch personnel certification, etc., required.

(a) *General requirements for ambulance personnel.* Every ambulance shall be staffed as mandated by the state health department.

(b) *Dispatchers.*

(1) *General responsibilities for dispatcher.* Any person employed for the purpose of receiving telephone or other requests for ambulance service and for dispatching ambulances in the city's ambulance service system is required to receive emergency medical dispatch training as provided by, or equal to, that provided by the ambulance authority.

(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-72. Insurance.

(a) The ambulance authority shall maintain the following insurance:

(1) Automobile liability insurance in an amount not less than one hundred thousand dollars ($100,000.00) for injury to or death of, one (1) person, by reason of the carelessness or negligence of the driver of such ambulance; three hundred thousand dollars ($300,000.00) for injury to, or death of, more than one (1) person, resulting from any single accident, by reason of the carelessness or negligence of the driver of such ambulance; and fifty thousand dollars ($50,000.00) for damage to property resulting from any single accident, by reason of the carelessness or negligence of the driver of such ambulance, issued by an insurance company licensed to do business in the state for each and every ambulance owned or operated, or

both owned and operated, by the ambulance authority, providing for the payment of damages:

a. For injury to or death of individuals in accidents resulting from any cause for which the owner of the vehicle would be liable on account of liability imposed on him by law, regardless of whether the ambulance was being driven by the owner or his agent; and

b. For the loss or damage to the property of another under like circumstances.

(2) Malpractice insurance providing a limitation on each claim of not less than five hundred thousand dollars ($500,000.00).

(3) One million dollars ($1,000,000.00) aggregate coverage.

(b) Satisfactory evidence that such insurance is at all times in force and effect shall be furnished to the city attorney, in such form as he may specify.

(c) Every insurance policy required hereunder shall contain a provision for a continuing liability thereunder to the full amount thereof, notwithstanding any recovery thereon, that the liability of the insurer shall not be affected by the insolvency or the bankruptcy of the assured, and that until the policy is revoked or expires, the insurance company will not be relieved from liability on account of nonpayment of premium, failure to renew license at the end of the year, or any act or omission of the named assured. Such policy of insurance shall be further conditioned for the payment of any judgments up to the limits of the policy recovered against any person other than the owner, his agent, or employee who may operate the same with the consent or acquiescence of the owner.

(d) Every insurance policy shall extend for the period to be covered by the license applied for, and the insurer shall be obligated to give not less than thirty (30) days written notice to the insured before any cancellation or termination thereof earlier than its expiration date. The cancellation or other termination of any such policy shall automatically revoke and terminate the permits issued for the ambulances covered by such policy, unless another insurance policy complying with the provisions of this section is provided and is in effect at the time of such cancellation or termination.

(e) Each insurance policy shall name in addition to the Little Rock Ambulance Authority, the city and AEPF.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-73. Fees.

The city shall negotiate the fees to be paid for the services provided by AEPF in this article. The city may assess this amount as a fee to be assessed the ambulance authority from revenues.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-74. Reserved.

Sec. 5-75. Patient management and management of scene.

Authority for patient management in a medical emergency shall be invested in the senior paramedic, the incident command system, or, when only a BLS unit is involved in an incident, the lead EMT, as appropriate. Authority for the management of the scene of a medical emergency shall be vested in the senior paramedic until appropriate public safety officials arrive on the scene and take control. The scene of a medical emergency shall be managed in a manner described to minimize the risk of death or health impairment to the patient and to other persons who may be exposed to the risks as a result of the emergency condition, and priorities shall be placed upon the interests of those persons exposed to the more serious risks to life and health. Public safety officials shall ordinarily consult the senior paramedic in charge at the scene in the determination of relevant risk factors.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-76. Protocol for determining destination facility.

(a) For all calls designated as other than life-threatening emergency or nonlife-threatening emergency, the patient shall be delivered to

the destination of the patient's choice, whenever practicable. However, in cases where the patient is incompetent or unable to make a choice, the patient shall be delivered to the destination requested by the appropriate party acting on behalf of the patient, whenever practicable.

(b) For all calls designated as life-threatening emergency or nonlife-threatening emergency calls, or which, during the course of a transfer become a life-threatening emergency call, the patient shall be delivered to the destination of the patient's choice, whenever practicable. However, if the patient is incompetent or unable to make a choice, the patient shall be delivered to the destination requested by the appropriate person acting on behalf of the patient, whenever practicable. If no requested destination can be determined, the patient shall be delivered to the nearest medically appropriate emergency receiving facility.

(c) No life-threatening emergency or nonlife-threatening emergency type patients shall be delivered to an emergency receiving facility which does not have twenty-four-hour physician coverage of emergency services, except as otherwise provided by law.

(d) Other provisions of this section notwithstanding, for calls retrospectively designated as life threatening emergency, the patient shall be delivered to the appropriate emergency receiving facility in conformance with disease-specific or problem-specific transport protocols then currently in effect and approved by AEPF.

(e) This section shall not apply to the Arkansas Trauma Communications Center and other state agencies that dispatch ambulances.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-77. Reserved.

Sec. 5-78. Medical quality review and investigation of consumer complaints.

(a) The medical quality review process shall be conducted under the supervision of the medical director and each medical quality review hearing shall be directly supervised by a physician appointed by the medical director pursuant to the terms and conditions of the contract between the city and AEPF, or other similar organization. A medical quality review' shall be performed at the request of the executive director, the chairman of the ambulance authority, the city manager, any member of the board of directors, any certified paramedic, any licensed physician, or any member of the ambulance authority board.

(b) In addition to medical quality reviews performed upon request, AEPF shall also conduct additional selected reviews chosen on a diagnosis-specific or problem-oriented basis to periodically assess the ambulance service system's ability to deal effectively with specific clinical conditions. These reviews shall be periodically performed by reviewing a random selection of cases of each type desired. Furthermore, AEPF physicians may periodically ride as observers on ambulances to directly observe care rendered, and such observations shall be a form of medical quality review for evaluation purposes.

(c) The executive director and AEPF shall establish procedures for formal investigation of consumer complaints. The ambulance authority and its employees shall cooperate fully with all investigations and shall answer in writing any inquiries by AEPF concerning such investigations. The chairman of the ambulance authority or the executive director may instruct the staff of the ambulance authority to conduct an investigation on their behalf.

(d) If, as a result of findings from a medical quality review process, AEPF believes that a certified paramedic or EMT should be subject to restrictions as necessary to protect the public health and safety, a written recommendation shall be made to the executive director. He shall make any additional necessary investigation and shall then determine and implement any necessary and appropriate action.
(Ord. No. 22,384, § 1, 2-6-24)

Sec. 5-79. Provision for special use licensure.

(a) Upon application to and approval by AEPF, special use licenses may be issued to licensed hospitals for provision of specialized mobile

intensive care services and to private companies for purposes restricted to the emergency care and transport of the company's own employees.

(b) Applicants for specialized mobile intensive care licensure must be hospitals, departments of hospitals, or the ambulance authority.

(c) Central Arkansas Radiation Therapy Institute (CARTI) is granted a limited special use permit for the purposes of continuing the transportation of CARTI patients from, and return to, CARTI facilities. Such permits for this medically necessary transportation may be restricted under this article depending upon the extent of future expansion of these services.

(d) Applications for such specialized licensure shall be made on such forms as may be described, prepared, or prescribed by the license officer, and shall contain the information that is necessary and appropriate for AEPF to make an informed judgment. No fee shall be required for the processing of application for such special licensure.

(e) AEPF shall not arbitrarily or without cause withhold its authorization for the issuance of a special license, provided; however, that licenses so issued shall be clearly restricted to the special purposes defined herein, and provided there exists a clinical necessity for the special service to be offered, and provided that in the case of such special licensure for purposes other than specialized mobile intensive care, the applicant is able to demonstrate compelling reasons for allowing the draining off of fee for services revenues which would otherwise be available to support advanced life support production capacity to serve the city and other contracted areas. However, because the population served by the city's ambulance service system is, at best, too small to optimize advanced life support service economies of scale, the mere presence of a desire to operate a transfer service which does not provide specialized mobile intensive care shall not, by itself, constitute a compelling reason to allow the draining off of needed financial resources to support essential advanced life support production capacity.
(Ord. No. 22,384, § 1, 2-6-24)

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Chapter 6

ANIMALS*

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*__Editor's note—__Ord. No. 18,668, §§ 1—3, adopted Apr. 2, 2002, amended ch. 6 in its entirety. Section 1 amended art. I and enacted similar provisions as set out herein. The former art. I derived from Code 1961, §§ 7-12, 7-13, 7-16(a)—(e), (h), 7-37, and 7-39; Ord. No. 16,164, §§ 1—5, adopted Feb. 4, 1992; and Ord. No. 18,345, §§ 1, 2, adopted Sept. 19, 2000. Section 2 renumbered art. II as art. III. The previous art. II derived from Code 1961, §§ 7-1—7-5, 7-7, 7-8, 7-16(f), and 7-33—7-35; Ord. No. 16,164, §§ 6—16, adopted Feb. 4, 1992; and Ord. No. 15,371, § 1, adopted Nov. 3, 1987. Section 3 created a new art. II titled "Miscellaneous Provisions" and renumbered certain provisions from the original art. I to be included in this article and maintain numerical continuity of the chapter. These provisions derived from Code 1961, §§ 7-18, 7-19, 7-21, 7-24, 7-25, 7-27, and 7-39; Ord. No. 15,775, §§ 1, 3, adopted Nov. 7, 1989; Ord. No. 16,164, §§ 17—21, 24, 25, adopted Feb. 4, 1992; Ord. No. 16,368, §§ 2, 4, adopted Feb. 16, 1993; and Ord. No. 18,345, §§ 3—5, adopted Sept. 19, 2000. See the Code Comparative Table for specific references and changes.

__Cross references—__Health and sanitation, ch. 14; keeping of bees, § 18-4; nuisances, ch. 20; animals in parks, § 22-39.

__State law references—__Authority to legislate on matters pertaining to municipal affairs A.C.A. § 14-63-601 et seq.; general authority to regulate animals, A.C.A. § 14-54-1101 et seq.

Sec. 6-45. Feed stores and poultry houses; keeping of poultry and animals.
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ARTICLE I. GENERAL PROVISIONS

Sec. 6-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Abandon means relinquishing custody of an animal without making alternative arrangements for its care and protection, or leaving an animal confined without providing water or minimum nutrition as required under this chapter.

At large means, with reference to a dog, not confined or restrained as required under this chapter.

Breeder means any person who maintains an unaltered (unsterilized) dog or cat and breeds such animal for any consideration of profit, fee or compensation.

Cat means any domesticated breed within the feline family.

City means the City of Little Rock, Arkansas.

Collector means the city revenue collector or his duly authorized agent.

Dog means any domesticated breed within the canine family.

Domesticated animal means an animal that has adapted to life in close association with and to the advantage of humans, such as animals that are kept by humans as pets or as livestock.

Emergency communications means the city office of emergency services, which serves as the 911 public safety answering point on a continuing basis.

Sterilize means the surgical alteration of an animal through spaying or neutering so that it is incapable of reproduction.

Vaccination means an injection of any vaccine for rabies approved by the state veterinarian board and administered by a licensed veterinarian.

(Ord. No. 18,668, § 1, 4-2-02; Ord. No. 18,959, § 2, 10-7-03; Ord. No. 20,098, §§ 1—3, 4-21-09)

Sec. 6-2. Enforcement.

(a) *Penalty.* Any person convicted of a violation of any of the provisions of this chapter shall be punished as provided in section 1-9 [of the Little Rock City Code Revised 1988].

(b) *Creation of the division of animal services.* The division of animal services is hereby created. The city manager is directed to assure that this division is placed under the auspices of the appropriate city department and that any necessary regulations are promulgated and published to assure compliance with the terms of this animal services code, as it may be amended, including, but not limited to, provisions which govern the care of any animal found within the corporate limits of the city.

(c) *Authority to issue citations.* The city manager shall designate the division of city government, in addition to certified law enforcement officers, permitted to issue citations for the violation of any provision of the animal services code. The names of the persons authorized to issue citations shall be on file with the city clerk. No person shall be authorized to issue citations pursuant to this section until the person has successfully completed an appropriate training program to assure: an understanding of the provisions of this Code; and awareness of the policies, procedures, and regulations of the division of city government primarily charged to assure compliance with this Code; and an appreciation of the statutory and constitutional rights of any person alleged to have violated this Code.

(d) *Citation to appear.* The citation to appear shall:

(1) Contain a brief statement of the nature of the violation;

(2) Be signed by a person who is authorized to issue it and who has personal knowledge of the violation; and

(3) Contain a printed statement to be signed by the violator in which the violator promises to appear in municipal court on a certain date.

(e) *Refusal to sign citation.* The citation to appear should be signed by the violator. If the violator fails to sign the citation to appear, the person issuing the citation may:

(1) Indicate on the space provided for signature that the violator refused to sign, leave a copy of the citation with the person cited, and follow the usual procedure for filing the citation in municipal court; or

(2) File a criminal affidavit and seek a warrant for the arrest of the offender.

(f) *Enforcement orders.* An enforcement order is a written notice which mandates compliance with one (1) or more Code provisions by a certain date.

(1) A person authorized to issue a citation for failure to comply with the provisions of this animal services code shall also have the authority to issue an enforcement order provided that no enforcement order shall be issued if the noncompliant situation is one that presents an imminent risk of death or serious physical injury to any animal or person.

(2) The enforcement order shall:

a. Contain a brief statement of the nature of the violation;

b. Be signed by a person who is authorized to issue it and who has personal knowledge of the violation; and

c. Contain a printed statement to be signed by the violator in which the violator promises to comply with the enforcement order by a certain date.

(g) *Refusal to sign enforcement order.* The enforcement order should be signed by the violator. If the violator fails to sign the enforcement order, the person issuing the enforcement order may:

(1) Indicate the refusal of the violator to sign on the space provided for signature and leave a copy of the enforcement order with the person cited or posted at their residence and mail a copy of the enforcement order to the violator by any form of delivery for which a return receipt is used; or

(2) Mail a copy of the enforcement order to the violator by first class mail and by any form of delivery for which a return receipt is used.

The date of service for a signed enforcement order, or for an unsigned order that is posted and mailed to the violator, is the date the order is signed, or the date the order is posted. The date of service for an unsigned enforcement order that is mailed pursuant to subsection (b) above is the date a return receipt is signed by the violator, or three (3) days after the first class letter is mailed, whichever occurs first.

(h) *Interference with enforcement.* It shall be unlawful for any person to interfere with, molest, injure, or harass, any person authorized to enforce the animal services code while that person is engaged in any enforcement duties taken pursuant to the Code, or to otherwise obstruct or prevent an authorized person from the discharge of any such duty.
(Ord. No. 18,668, § 1, 4-2-02)

Sec. 6-3. Sanitary conditions.

(a) It shall be unlawful for any person keeping or harboring any animal to fail to keep the premises where such animal is kept free from unsanitary conditions which encourage the breeding of parasites, insects and flies or cause odors that are offensive to a person of reasonable sensibilities.

(b) It shall be unlawful to allow premises where animals are kept to become unclean and a threat to the public health by failing to diligently and systematically remove all animal fecal matter from the premises a minimum of once every forty-eight (48) hours.

(c) It shall be unlawful for any person to allow an animal within the person's control to defecate on public property or on the private property of another person unless the person having control of the offending animal immediately removes and disposes of the animal's feces.

(d) All animal fecal matter shall be disposed of in accordance with the Little Rock Solid Waste Ordinance [section 28-1 et seq.].

(e) All places where livestock is kept shall have adequate drainage sufficient to prevent standing water in yards or pens. Duck ponds shall be drained and cleaned as required to prevent malodorous conditions.

(f) It shall be unlawful for any person keeping or harboring any animal to keep the animal in premises on which there is garbage, trash, or debris of any nature, including broken glass and cans, that could subject the animal to injury or disease.
(Ord. No. 18,668, § 1, 4-2-02)

Sec. 6-4. Animal slaughter.

It shall be unlawful to slaughter a domesticated animal in a residentially zoned area of the city. Nothing in this section shall prevent the euthanasia of any animal by a licensed veterinarian or by trained animal services personnel.
(Ord. No. 18,668, § 1, 4-2-02)

Sec. 6-5. Animal cruelty.

(a) Except as authorized by law, no person shall knowingly:

(1) Abandon any animal under circumstances subjecting it to the possibility of death, injury, starvation, dehydration or disease;

(2) Subject any animal to cruel mistreatment of any kind or by any means or device, including tying or strapping with weights or heavy chains;

(3) Subject any animal to the following if not performed by a licensed veterinarian: neutering or spaying; tail docking, ear cropping, or other surgical procedure;

(4) Subject any animal in his or her custody to neglect under circumstances exposing the animal to injury, disease, unsanitary conditions, extreme temperatures, starvation, dehydration or death;

(5) Cause or permit any dogfight, cockfight, bullfight or other combat between animals or between animals and humans;

(6) Kill or injure any animal belonging to another without legal privilege or consent of the owner; or

(7) Subject a dog or cat to direct point chaining as defined in this chapter.

(b) It shall be unlawful for any person to poison any animal or to distribute poison or other toxic substance in any manner whatsoever with the intent to harm, or for the purpose of poisoning any such animal, except for the purpose of controlling insects or rodents in accordance with accepted pest control methods.

(c) (1) No person shall leave or confine any animal unattended in a motor vehicle if the animal is left in an enclosed vehicle with the windows opened or closed when (i) the interior of the vehicle is not provided with conditioned air or adequate ventilation to maintain an interior temperature of 90° Fahrenheit or less, or (ii) the animal is showing signs of heat distress;

(2) For purposes of this section the word Animal does not include livestock.

(d) Authority to remove. In order to protect the health and safety of an animal that is left unattended in a vehicle and is exposed to extreme heat, and to prevent an ongoing offense of cruelty to animals, a city animal control officer, enforcement officer or emergency personnel who has probable cause to believe that subsection (c) above is being violated shall have authority to enter the vehicle to remove the animal by any means reasonable under the circumstances. If it reasonably appears that there is time to contact the owner, or other person present in the immediate area with access to the vehicle, without serious injury to the animal, a reasonable effort to do so shall be made prior to entry into the vehicle to remove the animal. Pursuant to procedures established by the city manager, the rescued animal shall be impounded, and a reasonable effort shall be made to contact the owner.

(e) Evidence of distress. For purposes of this section, "showing signs of heat distress" means that the enforcement officer, emergency personnel, or city animal control officer, reasonably believes that the animal displays one (1) or more of the following:

(1) Fast heavy panting;

(2) Weakness;

(3) Respiratory difficulties;

(4) Disorientation;

(5) Convulsions.

(Ord. No. 18,668, § 1, 4-2-02; Ord. No. 20,098, § 4, 4-21-09; Ord. No. 21,495, §§ 1—3, 10-17-17)

State law references—Municipal authority to prevent cruelty to animals, A.C.A. § 14-54-103; cruelty to animals, A.C.A. § 5-62-101.

Sec. 6-6. Trapping.

(a) *Trapping prohibited.* No person shall set any trap to catch any animal, permit any trap owned by them or in their control to be set to catch any animal, or allow a trap to be set to catch an animal on their property without first obtaining a written permit signed by the animal services division manager or the manager's appointed designee. Any animal so trapped shall be immediately relinquished to the division of animal services.

(b) *Exceptions.*

(1) Subsection (a) shall not apply to the indoor trapping of rats and mice.

(2) Subsection (a) shall not apply to fur-bearing-season traps authorized by the Arkansas Game and Fish Commission pursuant to the Game and Fish Commission Code of Regulations.

(3) Trapping of rabbits and other nuisance animals in humane box traps is permitted for relocation of the animal in accordance with the Arkansas Game and Fish Commission Code of Regulations. Any domesticated animal that is caught in such trap must be immediately released or immediately relinquished to animal services.

(4) Subsection (a) shall not apply to licensed, insured contractors doing business in the city for the purpose of trapping of nuisance beaver, muskrat, nutria, groundhog, gophers, moles, squirrels, and skunks in accordance with the Arkansas Game and Fish Commission Code of Regulations.

(Ord. No. 18,668, § 1, 4-2-02; Ord. No. 19,758, § 1, 6-5-07; Ord. No. 20,098, § 5, 4-21-09)

Sec. 6-7. Diseased or injured animals.

(a) *Proper treatment required.* It shall be unlawful for any person to knowingly keep any injured animal without providing proper, timely treatment, including treatment by a veterinarian when appropriate, for such injury.

(b) *Isolation for illness.* It shall be unlawful for any person to knowingly keep any animal infected with a fatal disease that is contagious to other animals unless the sick animal is isolated to prevent spread of the disease to other animals. This subsection shall not apply to rabid animals. Any animal showing positive signs of rabies shall be euthanized and laboratory-confirmed in accordance with Arkansas law.

(c) *Injured or diseased animals.* Any injured or diseased animal within the city shall be subject to seizure if a court of competent jurisdiction issues a warrant for such seizure upon a determination that there is probable cause to believe that:

(1) The animal is injured and is not receiving proper and timely treatment for the injury;

(2) The animal is diseased, and

a. Is not receiving proper and timely treatment for the disease; or

b. Is not being cared for in a manner designed to assure that the animal poses no threat to the health or well being of humans or animals.

(d) *Emergency seizure.* Any injured or diseased animal within the city shall be subject to immediate seizure if the city has a reasonable suspicion that an emergency exists and such seizure is necessary to protect the animal from an imminent threat of death, infectious disease, or serious physical injury.

(e) *Appropriate treatment.* Any diseased or injured animal seized pursuant to the provisions of this animal services code shall be appropriately treated for the injury or disease by the division of animal services or, where necessary, by a veterinarian licensed to practice in the state.

(f) *Disposal of remains.* The remains of any dead animal are subject to seizure and disposal if, within a reasonable period after death, the owner has not disposed of the remains as required by the city solid waste ordinance, or by state law dealing with the remains of animals tested for the presence of rabies.

(g) *Euthanasia.* Any diseased or injured animal shall be subject to being euthanized when it is determined by a veterinarian licensed to practice in Arkansas, or by the head of the animal services division, acting pursuant to protocols approved by a veterinarian licensed to practice in Arkansas, that such disposition is necessary to prevent unwarranted suffering by the animal. Best efforts shall be made by the animal services division to contact the animal's owner before such animal is euthanized. The disposition of the euthanized animal shall be in accordance with regulations promulgated pursuant to the provisions of this animal services code.

(h) *Expense for treatment of diseased or injured animals.* Any owner who reclaims or redeems an animal which has been treated under the provisions of this animal services code shall, prior to the release of the animal, reimburse the city or the treating veterinarian for any expenses incurred, unless the owner shows proof that the animal was undergoing treatment for the disease or injury at the time it was seized. If the owner makes direct payment to the veterinarian for such treatment, the owner must provide the division of animal services with a receipt of such payment before the animal is released. The payment for the expense incurred in the treatment of such animal is in addition to any redemption fees assessed pursuant to this animal services code.

(Ord. No. 18,668, § 1, 4-2-02; Ord. No. 20,098, § 6, 4-21-09)

Sec. 6-8. Rabies control.

(a) *Animal bites.*

(1) When any animal has bitten a person, that person or anyone having knowledge of such incident shall immediately notify Little Rock Emergency Communications or the Little Rock Animal Services Division.

(2) The animal shall be quarantined at the expense of the owner for a period of ten (10) days from the date of the bite, at a veterinary facility in Pulaski County under the care and custody of an Arkansas-licensed veterinarian.

(3) As an alternative to quarantine of the animal, the owner may relinquish the animal to animal services division to be euthanized for pathological examination.

(b) *Rabies vaccinations.* No person shall own, keep, harbor, or have control over any dog or cat over the age of five (5) months unless the animal has been vaccinated with antirabies vaccine by a licensed veterinarian in accordance with state law. For purposes of this subsection, "five (5) months" shall be attained at the end of the fourth month since birth or when the animal's canine teeth appear, whichever occurs first.

(c) *Annual license fee and tags for individual dogs and cats.*

(1) It shall be unlawful for any person to own or possess a dog or cat within the city without first having paid to the city an annual license fee as follows:

a. For a sterilized animal, or an unsterilized animal too elderly or infirm to breed, certified as such in writing by a veterinarian licensed to practice in the state at the time of licensing of the animal, ten dollars ($10.00) each on all dogs and cats five (5) months of age or over;

b. For an unsterilized animal not within the exception in subsection a. above, thirty-two dollars fifty cents ($32.50) each on all dogs and cats five (5) months of age or over.

(2) The license fee shall be due and payable upon the dog or cat attaining five (5) months of age and at the same time as the dog or cat receives a rabies vaccination as required by this section. In addition to receipt of a license, the owner

shall also be provided with a document that shows proof of a rabies vaccination. For purposes of this subsection, "five (5) months of age" shall be attained at the end of the fourth month since birth or when the animal's canine teeth appear, whichever occurs first.

(3) Upon request by the division of animal services, its designees, or an animal services officer, the owner or person having control of the dog or cat must provide a copy of the rabies vaccination registration form for dogs and cats as proof of the license and tag. The owner or person having control of any dog or cat which is unvaccinated shall, upon proper request, provide proof of the age of each dog or cat which is unvaccinated.

(4) Upon payment of the fee, it shall be the duty of the city or its designee to furnish the owner of the dog or cat with a metal license tag of distinctive design with the serial number of the dog or cat. This serial number will be kept on file in the animal services division.

(5) Every dog or cat covered by this section must have and wear a collar or harness with a current license tag firmly attached. The tag, when issued, shall at all times be securely attached to the dog's or cat's collar or harness, and failure to keep such tag on the dog's or cat's collar or harness shall be unlawful.

(6) Any untagged dog or cat found running at large shall be considered as a stray or as an unowned animal for the purpose of enforcement of this chapter and shall become the property of the city.

(7) The license required by this subsection shall be effective for the year ensuring its issuance and must be renewed in each subsequent year during the same month it was originally issued.

(8) Owners of guide dogs or service dogs, such dogs being used to aid the blind or disabled, and owners of police dogs, such dogs being used regularly for law enforcement purposes, are not required to pay an annual city license fee as required by this subsection at the time the dog receives a rabies vaccination, although such owners shall have their dogs vaccinated for rabies and shall provide records of such vaccination upon request of an animal services officer.

(9) The city will furnish registration forms and tags to all veterinarians who shall register dogs and cats kept within the city limits. Each veterinarian shall remit to the city all monies collected for licenses at the end of each month with one (1) copy of each completed registration form.

(10) Any licensed veterinarian may, in addition to the annual license fee, impose a handling charge of up to one dollar ($1.00) for the collection of the annual license fee.

(Ord. No. 18,959, § 3, 10-7-03; Ord. No. 19,439, § 1, 11-29-05; Ord. No. 20,098, §§ 7, 8, 4-21-09)

Secs. 6-9—6-11. Reserved.

Sec. 6-12. Reserved.

Editor's note—Ord. No. 18,959, § 1, adopted Oct. 7, 2003, repealed § 6-12, which pertained to dangerous and vicious dogs and derived from Ord. No. 18,668, § 3, adopted April 2, 2002.

Sec. 6-13. Reserved.

ARTICLE II. DOGS*

Sec. 6-14. Definitions.

Attack means aggressive behavior by an animal that involves repeatedly biting or shaking its victim.

Cable run means a metal cable that is mounted aboveground at a designated height to two (2) stationary objects for the purpose of attaching a pulley system that moves from one end of the cable to the other and to which a dog is tied or secured by means of a rope, chain, or cable attached to the dog's collar or harness.

Dangerous dog means a dog that has been designated as dangerous pursuant to the standards and administrative procedures identified in this chapter or that has been designated as dangerous or vicious pursuant to similar standards and procedures in another jurisdiction.

Direct point chaining means attaching an animal directly to a stationary object by means of a leash, rope, chain, cable or other material attached to the dog's collar or harness but does not include temporary restraint of a dog for purposes of vehicular transport.

Electronic containment device means a transmitter/receiver system for the confinement of dogs which consists of (1) a boundary wire that emits a radio signal, and (2) a battery-operated electronic device on the dog's collar which receives the radio signal and emits an audible warning beep and a corrective electrical stimulus as the dog approaches the wire.

Privilege license means the city license that is required to carry on a business, profession or occupation within the city.

Provocation means causing a dog to bite or attack by:

a. Any intentional or accidental act of pulling, pinching, squeezing, kicking, hitting or striking the dog with an object or a part of a person's body, unless the person is responding to an attack or an immediate threat of attack by the dog as indicated by the dog's lunging, snarling or baring of its teeth;

b. Any sudden motion toward the dog or any attempt or threat to kick, hit or strike the dog with an object or part of a person's body, unless the person is responding to an attack or an immediate threat of attack by the dog as indicated by the dog's lunging, snarling, or baring of its teeth;

c. Any act of teasing or tormenting the dog;

d. Any act of grabbing, touching or holding of the dog's young or any sudden motion toward the dog's young;

e. Any act of holding, kicking, hitting, striking, or otherwise physically harming the dog's owner or other member of the dog owner's household;

f. Entry into the dog's area of confinement without the owner's presence, provided that this definition does not apply if the dog is confined in a particular manner for the purpose of causing provocation to prevent legal access to the premises in violation of this article; or

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***Editor's note—**Ord. No. 18,959, § 1, adopted Oct. 7, 2003, repealed §§ 6-42—6-46.1 and § 6-48, which were contained in art. III, titled dogs and cats. Similar information pertaining to dogs only is set out herein in this art. II. Said ordinance also repealed § 6-21, which pertained to animal bites and derived from Ord. No. 18,668, § 3, adopted April 2, 2002.

Ord. No. 20,121, §§ 7, 8, adopted June 16, 2009, reorganized certain provisions of this article to facilitate easier reference to Code provisions regarding potentially dangerous dogs, dangerous dogs and vicious dogs. Section 6-20, entitled "Potentially dangerous breeds", was renumbered as § 6-19. The previous § 6-19, entitled "Dangerous or vicious dog designation", shall be restructured by renumbering and renaming subsection (a) as "Section 6-20. Dangerous dog designation" and by renumbering and renaming subsection (b) as a newly created "Section 6-21. Vicious dog designation."

g. Any act of breaking and entering, or other unlawful entry, into the dog owner's residence, vehicle, or other property.

Swivel means pivoting hardware that can be used in a trolley system to attach a cable run to a tether or a tether to a dog's collar or harness in order to minimize twisting and tangling of the tether.

Tether means a rope, chain, or cable that is attached to a dog's collar or harness for purposes of restraining the dog.

Trolley system means a method of restraining a dog which utilizes a cable run, swivel and tether attached to a dog's collar or harness.

Vicious dog means a dog that has been designated as vicious pursuant to the standards and administrative procedures identified in this chapter or that has been designated as dangerous or vicious pursuant to similar standards and procedures in another jurisdiction.
(Ord. No. 18,959, § 5, 10-7-03; Ord. No. 20,121, § 1, 6-16-09)

Sec. 6-15. Maximum number.

(a) *Maximum number.* Except as set forth in subsection (b), it shall be unlawful for more than four (4) dogs to be kept or harbored at any household or business in the city limits.

(b) *Exceptions.* Subsection (a) of this section does not apply to:

(1) The normal place of business for animal hospitals or veterinary clinics;

(2) Dog breeders or dog kennels, if the operator of the breeding or kennel facility holds a Little Rock privilege license for the dog breeding or kennel business;

(3) Specific dogs kept or harbored at the owner's residence pursuant to an over-limit permit issued by the animal services division where:

a. The dog owner submits an application for over-limit permit to the animal services division on a form to be approved by the animal services division manager;

b. The dog owner submits to an on-site inspection and provides proof of current rabies vaccination and city license for each dog identified in the over-limit permit application; and

c. The dog owner has no record of dangerous dog designations and no record of convictions for Little Rock Animal Code violations for running at large or failure to vaccinate or license, or for animal cruelty, abuse, or neglect. Any conviction that is overturned by a court of competent jurisdiction shall not be counted for purposes of this subsection.

(c) *Revocation of over-limit permit.* An over-limit permit may be revoked if the dog owner is subsequently convicted for any Little Rock Animal Code violation, provided that a conviction that is overturned by a court of competent jurisdiction shall not serve as the basis for revocation of an over-limit permit.
(Ord. No. 18,959, § 5, 10-7-03; Ord. No. 20,121, §§ 2, 3, 6-16-09)

Sec. 6-16. Confinement.

(a) *General.* Any person owning, possessing or keeping a dog shall keep the dog securely confined behind a fence or otherwise restrained upon the person's property by adequate means to prevent the dog's escape; or shall effectively control the dog, whether on or off the person's property, by means of a leash or other proper method of supervised restraint from which the dog cannot escape.

(b) *Dog parks.* Confinement of a dog in a fenced area designated by the Little Rock Parks and Recreation Department as a "park dog run" shall be considered adequate confinement under this section if the dog owner or caretaker supervises the dog's activity and adheres to applicable parks rules and regulations pursuant to Little Rock Ordinance No. 18,924.

(c) *Confinement to prevent legal access.* Dogs shall not be confined in any manner for the purpose of preventing legal access to public utility facilities or for the purpose of causing the dog to

be provoked by visitors in areas accessible to and commonly used by visitors for legal access to the premises.

(d) *Chaining.* Direct-point chaining or tethering of dogs to a stationary object is prohibited. Dogs may be restrained by means of a trolley system, or a tether attached to a pulley on a cable run, if the following conditions are met:

(1) Only one (1) dog may be tethered to each cable run.

(2) The tether must be attached to a properly fitting collar or harness worn by the dog, with enough room between the collar and the dog's throat through which two (2) fingers may fit. Choke collars and pinch collars are prohibited for purposes of tethering a dog to a cable run.

(3) There must be a swivel on at least one (1) end of the tether to minimize tangling of the tether.

(4) The tether and cable run must be of adequate size and strength to effectively restrain the dog. The size and weight of the tether must not be excessive, as determined by the animal services officer, considering the age, size and health of the dog.

(5) The cable run must be at least ten (10) feet in length and mounted at least four (4) feet and no more than seven (7) feet above ground level.

(6) The length of the tether from the cable run to the dog's collar should allow access to the maximum available exercise area and should allow continuous access to water and shelter. The trolley system must be of appropriate configuration to confine the dog to the owner's property, to prevent the tether from extending over an object or an edge that could result in injury or strangulation of the dog, and to prevent the tether from becoming entangled with other objects or animals.

(e) *Electronic containment devices.* An electronic containment device may be used as a primary containment measure if signs stating "pet contained by electronic device" or similar language using a trade name, are conspicuously posted at the front and back of the enclosed area for purposes of public notice. Such signs shall be a minimum of six (6) inches by eight (8) inches and one (1) of the signs shall be visible from the roadway or entry to the premises. The property owner is responsible for posting the signs in accordance with the Little Rock Sign Ordinance, and the failure to post or maintain such signs is a violation of this section.

(f) *Confinement during transportation.*

(1) When transporting a dog in an open-bed pickup or in any open-bed vehicle, the dog shall be confined in a secured carrier or dog box that provides the dog with adequate room to stand, turn around, and stretch out without hindrance and provides adequate ventilation and protection from environmental conditions.

(2) If a dog must be transported in an open-bed vehicle but is too large for a carrier or dog box, the dog shall be restrained by a system of tethering to the vehicle bed in a manner that reasonably restricts the dog to the center of the bed in order to prevent the dog's escape and to minimize the dog's access to the sides of the vehicle bed.

(3) It shall be unlawful for any person to place or confine or allow a dog to be confined in such a manner that it must remain in a motor vehicle, trailer or pet carrier under such conditions for such periods of time as may endanger the health or well-being of the dog due to heat, lack of food or water, or any circumstances which might cause suffering, disability, or death.

(g) *Penalty, failure to confine.* Conviction for failure to confine a dog in violation of this section shall result in a fine as follows:

(1) *For a sterilized dog:*

a. The first violation within a three-year period shall result in a twenty-five-dollar fine.

b. The second violation within a three-year period shall result in a seventy-five-dollar fine.

c. The third and each subsequent violation within a three-year period shall result in a one-hundred-dollar fine.

(2) *For an unsterilized dog:*

a. The first violation within a three-year period shall result in a one-hundred-dollar fine, unless by time of sentencing for the violation, proof of sterilization of the animal has been produced, in which case the fine structure applicable to sterilized dogs in subsection (g)(1) herein shall apply.

b. The second and each subsequent violation within a three-year period shall result in a two-hundred-dollar fine, unless by time of sentencing for the violation, proof of sterilization of the animal has been produced, in which case the fine structure applicable to sterilized dogs in subsection (g)(1) herein shall apply.

c. The fine structure applicable to sterilized dogs in subsection (g)(1) herein shall also apply to unsterilized dogs too elderly or infirm to breed, as previously certified in writing as such at the time of the dog's licensing by a veterinarian licensed to practice within the state.

(Ord. No. 18,959, § 5, 10-7-03; Ord. No. 20,121, § 4, 6-16-09)

Sec. 6-17. Minimum care.

(a) *Shelter.*

(1) All dogs shall have continuous access to a structurally sound, moisture-proof and windproof shelter large enough to keep the dog reasonably clean and dry.

(2) A shelter which does not protect the dog from temperature extremes or precipitation, or which does not provide adequate ventilation or drainage, shall not comply with this section.

(3) A dog's shelter and bedding and other accessible space shall be maintained in a manner which minimizes the risk of the dog contracting disease, being injured or becoming infested with parasites.

(b) *Nutrition.*

(1) It shall be unlawful for any person keeping or harboring any dog to fail, refuse or neglect to provide such dog with clean, fresh, potable water adequate for the dog's size, age, and physical condition. This water supply shall be either free flowing or provided in a removable receptacle that is weighted or secured to prevent tipping.

(2) It shall be unlawful for any person keeping or harboring any dog to fail, refuse or neglect to provide such dog with wholesome foodstuff suitable for the dog's physical condition and age and in sufficient quantities to maintain an adequate level of nutrition for the dog.

(c) *Exercise.*

(1) The enclosure or confinement area for a dog shall encompass sufficient usable space to keep the animal in good condition.

(2) When a dog is confined by means of a tether and cable run, the trolley system shall be configured to allow access to the maximum available exercise area.

(3) When a dog is confined outside by means of an enclosure or an electronic containment device, the following minimum space requirements shall be met:

(i) *Large dog.* For a dog that is larger than twenty (20) inches at the withers or that weighs more than fifty (50) pounds, the minimum confinement area per dog is one hundred (100) square feet.

(ii) *Medium dog.* For a dog that is larger than twelve (12) inches at the withers and up to twenty (20) inches at the withers or that weighs over twenty (20) pounds and up to fifty

(50) pounds, the minimum confinement area per dog is eighty (80) square feet.

(iii) *Small dog.* For a dog that is twelve (12) inches or less at the withers or that weighs twenty (20) pounds or less, the minimum confinement area per dog is fifty (50) square feet.

(Ord. No. 18,959, § 5, 10-7-03; Ord. No. 20,121, §§ 5, 6, 6-16-09)

Sec. 6-18. Barking, howling.

It shall be unlawful for any person to keep on his premises, or under his control, any dog which by loud and frequent barking and howling shall disturb the reasonable peace and quiet of any person.

(Ord. No. 18,959, § 5, 10-7-03)

Sec. 6-19. Potentially dangerous breeds.

(a) *General.*

(1) There shall be a recognized category of dogs designated as potentially dangerous breed.

(2) Beginning on the ninety-first day after passage of this section, it shall be unlawful for any person to keep within the city limits any potentially dangerous breed, except in compliance with the provisions of this section.

(3) A potentially dangerous breed shall include the following:

(i) A pit bull, which is defined as any dog that is an American pit bull terrier, a Staffordshire terrier, or American Staffordshire terrier, and any dog of mixed breeding that has the primary characteristics of an American pit bull terrier, a Staffordshire terrier, or an American Staffordshire terrier. The American Kennel Club and United Kennel Club standards for the above breeds shall be on file for viewing at the city's animal shelter.

(ii) Any other breed that is so declared by ordinance.

(4) For purposes of this section an "owner" is defined as any person who owns, keeps, exercises control over, maintains, or harbors a potentially dangerous breed.

(5) Notwithstanding the special provisions set forth below as to keeping a potentially dangerous breed within the city limits:

(i) Any such animal is also subject to the provisions for designation as a dangerous dog or as a vicious dog.

(ii) Any such animal declared to be a vicious dog shall be euthanized once process to declare the animal a vicious dog has been completed.

(iii) The city's animal services division may temporarily harbor and transport any potentially dangerous breed for purposes of enforcing the provisions of this section.

(iv) An owner may transport into and temporarily hold in the city limits a potentially dangerous breed for the purpose of transporting the dog to a veterinarian or groomer for care, or to participate in a contest or show sponsored by the American Kennel Club or the United Kennel Club.

(b) *Permit required.*

(1) *Permit.* A potentially dangerous breed may be kept within the city limits only so long as the registered owner or custodian complies with the requirements and conditions of the potentially dangerous breed permit.

(2) *Permit fee.* The owner or custodian shall pay an annual permit fee established by the city manager, in addition to all other required fees, for each year that a potentially dangerous breed is kept within the city limits.

(c) *Registration requirements*. The owner of any potentially dangerous breed shall be allowed to keep such dog within the Little Rock city limits only if the owner registers the dog with the city's animal services division on an annual basis and obtains a potentially dangerous breed permit and

a window sticker with each annual registration. As a condition of registration, the owner shall at the time of application provide sufficient evidence that the owner is in compliance with all of the following requirements:

(1) *Rabies vaccination.* The dog must be vaccinated against rabies by a licensed veterinarian on an annual basis.

(2) *Current city license.* The owner must purchase an annual city license for the dog, and the dog must wear the city license tag on its collar at all times.

(3) *Microchip.* The dog must be identified by means of a microchip that is injected under its skin by a licensed veterinarian and maintained as long as the animal is kept within the city limits.

(4) *Photo.* The owner must bring their potentially dangerous breed to the city animal shelter to have its photo taken with the owner.

(5) *Sterilized.* The owner must provide documentary proof from a licensed veterinarian that their dog has been spayed or neutered. This requirement shall not apply if:

(i) Animal services receives a letter from the owner's veterinarian, to be confirmed by the animal services veterinarian, stating that the dog is physically unable to reproduce or that the dog is medically compromised to the extent that it cannot be safely sterilized;

(ii) The potentially dangerous breed is a registered AKC or UKC show dog with points or with documentation of training for show purposes, if the owner purchases an annual show dog permit for a fee established by the city manager; or

(iii) The dog is a registered AKC or UKC dog with points, and the owner purchases an annual breeder's permit for a fee established by the city with the restriction that the dog shall be allowed to produce or sire no more than one (1) litter per calendar year beginning on January 1 and ending on December 31. For any additional litter produced in any calendar year, there shall be a fine, in addition to any other fine, of five hundred dollars ($500.00) against both the sire and the bitch, and two hundred fifty dollars ($250.00) for each live pup.

(d) *Permit conditions.*

(1) *Place of confinement.* A potentially dangerous breed must reside at the owner's residence or place of business.

(2) *Window sticker.* An annual window sticker, provided at the time of registration, must be posted on the owner's property, visible from the street to indicate that a potentially dangerous breed resides on the property.

(3) *Confinement.* A potentially dangerous dog shall be confined indoors or by means of a fence that is of adequate height and construction to prevent the dog's escape. Potentially dangerous dogs shall not be confined by means of an electronic containment device, or invisible fence. When outside of an area of confinement, a potentially dangerous breed must be restrained by means of a secure leash held by an adult who has the ability to control the dog.

(4) *No transfer of permit.* A potentially dangerous breed permit shall not transfer to a new owner residing in the city limits. The new owner must meet all registration requirements within ten (10) days of acquiring the dog.

(5) *Relocation reported.* The owner of a potentially dangerous breed may relocate the dog to the owner's new Little Rock residence or place of business if the owner contacts animal services prior to the relocation in order to report the new address and obtain a new window sticker. The new window sticker must be posted at the new residence or place of business within thirty (30) days of the move.

(6) *Maximum number.* The number of potentially dangerous breed dogs kept, maintained or harbored at one residence shall not exceed two (2).

(e) *Breed designation appeals.* The owner of a dog that has been identified as a potentially dangerous breed under this section shall have the right to an administrative appeal of the breed designation by submitting a request for a hearing to the animal services division manager in writing within five (5) days of the division manager's designation of the owner's dog as a potentially dangerous breed. A hearing to consider disputes and to view the dog's physical characteristics and pedigree shall be conducted by a committee appointed by the city manager and comprised of at least the animal services veterinarian, a member of the animal services advisory board and a Little Rock citizen. The committee shall make a final determination of the dog's breed or predominant breed characteristics. If the committee determines that the dog is a potentially dangerous breed, as defined by this section, the owner shall have ten (10) days to meet all registration requirements and to comply with all permit conditions.

(f) *Compliance period.* Within ten (10) days after acquiring a potentially dangerous breed, or after moving to the city with a potentially dangerous breed, or after a potentially dangerous breed designation has been affirmed on appeal, or after noncompliance under this section has been brought to the attention of animal services, the owner of a potentially dangerous breed must register their dog and comply with all potentially dangerous breed regulations.

(g) *Enforcement.*

(1) *Dangerous breed regulation violations.* Failure to comply with any potentially dangerous breed registration requirement or permit condition within the allotted ten (10) day time period shall constitute a violation of this chapter and may result in the issuance of a citation and a warrant to seize the owner's dog if it is not removed from the city limits pending adjudication of the citation.

(2) *Noncruelty violations.* Permits to keep a potentially dangerous breed within the city may be revoked by the animal services division upon the owner's second conviction for violation of the city's noncruelty animal code provisions. If the permit(s) is revoked, a warrant to seize the potentially dangerous breed may be served on the owner if the dog is not removed from the city limits. In addition, the owner shall lose their right to register any potentially dangerous breed within the city for a period of two (2) years.

(3) *Cruelty violations.* Upon conviction for any animal cruelty charge, the owner of a potentially dangerous breed shall lose their potentially dangerous breed permit(s) and shall lose their right to register any potentially dangerous breed within the city for a period of ten (10) years. A warrant may be obtained to seize the owner's potentially dangerous breed dog(s) pending adjudication of the cruelty violation citation. Upon conviction for animal cruelty and revocation of the potentially dangerous breed permit, the owner's potentially dangerous breed dog(s) must be removed from the city limits or surrendered to the Little Rock Animal Services Division.

(h) *Authority to euthanize potentially dangerous breed declared to be a vicious animal.* Notwithstanding any provision of this Code of Ordinances, if a potentially dangerous breed is declared to be a vicious animal pursuant to the provisions of subsection 6-21(b) the dog shall be euthanized within seventy-two (72) hours of the final vicious dog declaration.

(Ord. No. 20,121, § 8, 6-16-09)

Editor's note—See editor's note at the beginning of this article.

Sec. 6-20. Dangerous dog designation.

(a) *General.* It shall be unlawful for any person to keep within the city limits any dangerous dog, except in compliance with the provisions of this section.

(b) *Grounds for dangerous dog designation.* A dog is considered dangerous for purposes of this section if:

(1) Without provocation, it attacks or bites a person engaged in a lawful activity;

(2) While off the property of its owner and without provocation, it seriously injures another domesticated animal;

(3) Without provocation while not on a leash and under the control of its owner or custodian, it chases, confronts or approaches a person on a street, sidewalk or other public property in a menacing fashion such as would put a reasonable person in fear of attack;

(4) Acts in a manner which the owner knows, or reasonably should know, is an indication that the dog is dangerous and is not merely being protective in a particular set of circumstances; or

(5) Has been declared dangerous, or has been given some other designation, by another governmental body under circumstances that would meet the grounds for dangerous dog designation under the provisions of this ordinance.

(c) *Impoundment pending declaration.* Upon reasonable suspicion that a dog is dangerous and poses a serious threat to public health or safety, the animal services division manager, or appointed designee, may seek a warrant to seize the dog for quarantine at a veterinary clinic or for impoundment at the animal services facility, pending the dangerous dog declaration process.

(d) *Dangerous dog designation.*

(1) *Designation.* If the animal services division manager has cause to believe that a dog is dangerous, the division manager may find and declare such dog a dangerous dog.

(2) *Notice.* Within three (3) days of declaring a dog dangerous, the animal services division manager shall give notice of the declaration and the reasons for it in writing to the person who owns, keeps, or otherwise maintains the dog. The notice shall inform the owner or custodian that a permit is required to keep such dangerous dog within the city limits.

(3) *Opportunity to contest designation.* The notice shall also inform the owner or custodian of the dog that a hearing to contest the declaration shall be held before the city manager, or appointed designee, if a request for a hearing is submitted in writing to the animal services division manager within five (5) working days from receipt of the notice of dangerous dog declaration.

(4) *Status pending hearing.* Once notice of dangerous dog designation has been given, the dog shall be considered dangerous unless, and until such time as, the declaration is overruled by the city manager or appointed designee. If a hearing is requested, the owner shall not be required to obtain a dangerous dog permit unless, and until such time as, the declaration is upheld by the city manager or appointed designee.

(5) *Hearing.* Hearings required pursuant to this subsection shall be held no more than five (5) working days from the date of receipt of the request. The city manager, or appointed designee, shall act as the appeal hearing officer and shall make his ruling on the basis of a preponderance of the evidence presented at the hearing. The hearing shall be an informal proceeding, and each party shall have the right to call and examine witnesses, to introduce exhibits, to cross-examine opposing witnesses on any matter relevant to the issues even though that matter was not covered in the direct examination, to impeach any witness regardless of which party first called the witness to testify, and to rebut the evidence against the party. Either party may call the owner/custodian as a witness. The decision of the hearing officer is final.

(6) *Compliance.* If the person owning, keeping, possessing or otherwise maintaining the dog fails to request a hearing, or if the hearing officer determines that the dangerous declaration stands, the owner or custodian shall comply with the requirements of this section in order to keep such dog within the city limits.

(e) *Permit required.*

(1) A dangerous dog may be kept within the city limits only so long as the owner or custodian complies with the requirements and conditions in accordance with the dangerous dog permit.

(2) The owner or custodian shall pay an annual permit fee of one hundred fifty dollars ($150.00) for possession of a dangerous dog, in addition to all other required fees.

(f) *Conditions for keeping a dangerous dog.* The requirements and conditions for keeping or maintaining a dangerous dog within the city limits shall include:

(1) *Confinement.* All dangerous dogs shall be securely confined:

(i) Indoors; or

(ii) In an enclosed and locked pen or physical structure upon the premises of the owner. The pen or physical structure must meet the minimum space requirements of this chapter and must have secure sides and a secure top attached to the sides. If no bottom is secured to the sides, the sides must be embedded into the ground no less than two (2) feet. The pen or physical structure must be capable of preventing the entry of the general public, including children, and must be capable of preventing the escape or release of the dog. Electronic containment devices shall not be used to confine dangerous dogs.

(2) *Minimum care.* All shelter and minimum care standards required by this chapter shall apply to dangerous dog confinement.

(3) *Leash and muzzle.* The owner of a dangerous dog shall not allow the dog to go outside of its kennel, pen or physical structure unless the dog is muzzled, restrained by a leash sufficient to control the dog, and under the physical control of an adult. The muzzle must not cause injury to the dog or interfere with its vision or respiration, but must prevent the dog from biting any human or animal. A muzzle is not required if the dog is:

(i) In the owner's yard if the yard is enclosed by a fence that is capable of preventing uninvited entry by other dogs or people; and

(ii) Is restrained by means of a leash held by an adult.

(4) *Signs.* The owner of a dangerous dog shall provide public notice of the dog's presence on the premises by displaying a warning sign provided by the animal services division. The sign shall be placed in a prominent place on the owner's property, clearly visible from the public highway or thoroughfare. Similar signs shall be posted on the dog's kennel, pen or enclosed structure.

(5) *Photograph identification.* Within ten (10) days of the declaration of a dog as dangerous, the owner or custodian shall provide the animal services division manager with two (2) digital-quality color photographs of such dog, clearly showing the color and approximate size of the animal, or shall make the dog available for photographing by the animal services division.

(6) *Change of status.* The owner or custodian of a dangerous dog shall notify the animal services division immediately if the dog is unconfined and on the loose, or has attacked a human or a domestic animal.

(7) *Change of ownership.* If the owner of a dangerous dog sells, gives away, or otherwise transfers custody of the dog, the owner shall, within five (5) calendar days, provide the animal services division with written documentation containing the name, address, and telephone number of the new owner or custodian. The previous owner shall also, within five (5) calendar days of transferring ownership or custody of the dog, notify the new owner of the dog's designation as a dangerous dog and, if the new owner resides within the city limits, of the requirements and conditions for keeping a dangerous dog. This notice

shall be in writing and a copy shall be provided to the animal services division. Upon being notified that a dangerous dog has been removed to another jurisdiction, the animal services division is authorized, but not required, to notify the appropriate governmental department in the jurisdiction where the dog has been transferred that the dog has been declared dangerous by the city.

(g) *Failure to comply.* It shall be unlawful for the owner or custodian of a dangerous dog to fail to comply with the requirements and conditions set forth in this section. Any dog found to be kept in violation of this section shall be subject to seizure and impoundment. In addition, failure to comply shall result in the revocation of the dangerous dog permit for such dog. In the event of permit revocation, the owner or custodian shall remove such dog from the city limits within twenty-four (24) hours of receipt of the notice of revocation, or the dog shall be humanely destroyed.

(h) *Exemptions.* Dogs that are used regularly for law enforcement purposes shall not be subject to this section, but shall be confined and maintained in accordance with the law enforcement agency's general orders.

(Ord. No. 20,121, § 8, 6-16-09)

Editor's note—See editor's note at the beginning of this article.

Sec. 6-21. Vicious dog designation.

(a) *General.* It shall be unlawful for any person to keep within the city limits any vicious dog.

(b) *Grounds for vicious-dog designation.* A dog is considered vicious for purposes of this section if it:

(1) Causes death or serious physical injury to a person engaged in a lawful activity;

(2) On two (2) or more occasions, attacks or bites without provocation a person engaged in a lawful activity;

(3) On more than one (1) occasion, while off the property of its owner and without provocation, seriously injures another domesticated animal;

(4) Without provocation, kills a domesticated animal;

(5) Trains for dog fighting or is owned or kept for the purpose of dog fighting; or

(6) Has been declared vicious, or has been given some other designation, by another governmental body under circumstances that would meet the grounds for vicious dog designation under the provisions of this article.

(c) *Impoundment pending declaration.* Upon reasonable suspicion that a dog is vicious and poses a serious threat to public health or safety, the animal services division manager, or appointed designee, may seek a warrant to seize the dog for quarantine at a veterinary clinic or for impoundment at the animal services facility, pending the vicious dog declaration process.

(d) *Declaration of a vicious dog.*

(1) *Notice to owner.* In instances where the dog is declared vicious, the division of animal control shall, within forty-eight (48) hours, notify the owner of the dog in writing posted at the owner's or custodian's last known address, that the dog has been determined to be a vicious animal, the reasons for the declaration and, if applicable, that the dog has been quarantined or impounded by animal services. The owner shall have five (5) days from delivery of the notice to contact the division of animal services and comply with the ordinance by removing the dog from the city limits or by having the dog euthanized.

(2) *Opportunity to contest vicious designation.* The notice shall also inform the owner or custodian of the dog that a hearing to contest the declaration shall be held before the city manager, or appointed designee, if a request for a hearing is submitted in writing to the animal services division manager within five (5) working days from receipt of the notice of vicious-dog declaration.

(3) *Status pending hearing.* Once notice of vicious-dog designation has been given, the dog shall be considered vicious unless,

and until such time as, the declaration is overruled by the city manager or appointed designee.

(4) *Hearings.* Hearings required pursuant to this subsection shall be held no more than five (5) working days from the date of receipt of the request. The city manager, or appointed designee, shall act as the appeal hearing officer and shall make his ruling on the basis of a preponderance of the evidence presented at the hearing. The hearing shall be an informal proceeding, and each party shall have the right to call and examine witnesses, to introduce exhibits, to cross-examine opposing witnesses on any matter relevant to the issues even though that matter was not covered in the direct examination, to impeach any witness regardless of which party first called the witness to testify, and to rebut the evidence against the party. Either party may examine the owner/custodian. The decision of the hearing officer is final.

(5) *Change of status.* The owner or custodian of a vicious dog shall notify the division of animal control immediately if the dog is unconfined and on the loose, or has attacked a human or a domestic animal.

(6) *Failure to comply.* If the person owning, keeping, possessing or otherwise maintaining the dog fails to request a hearing, or if the hearing officer determines that the vicious declaration stands, the owner or custodian shall comply with the ordinance by removing the dog from the city limits or by having the dog euthanized. If the dog owner/custodian does not comply with the ordinance, the animal services division manager, or appointed designee, may seek a court order to impound the dog, if necessary, and may have such dog euthanized.

(e) *Exemptions.* Dogs that are used regularly for law enforcement purposes shall not be subject to this section, but shall be confined and maintained in accordance with the law enforcement agency's general orders.
(Ord. No. 20,121, § 8, 6-16-09)

Editor's note—See editor's note at the beginning of this article.

Secs. 6-22—6-25. Reserved.

ARTICLE III. CATS*

Sec. 6-26. Definitions.

For purposes of this article:

Attack means aggressive behavior by an animal that involves repeatedly biting or scratching its victim.

Dangerous cat means a cat that has been designated as dangerous pursuant to the standards and administrative procedures identified in this article or that has been given another designation pursuant to similar standards and procedures in another jurisdiction.

Free-roaming cat means a cat that is not kept inside of a house, business or other legal occupancy structure or kept in a fenced area enclosed with a top and containing a shelter as described in this article. A cat that is allowed to go outside of such structure or fenced area is considered a free-roaming cat.

Cattery means an establishment for the breeding or boarding of cats.
(Ord. No. 20,120, § 1, 6-16-09)

Sec. 6-27 Maximum number.

(a) *Maximum number.* Except as provided in subsection (b), it shall be unlawful for more than four (4) cats to be kept or harbored at a household or business within the city limits.

*__Editor's note—__**Editor's note—**Ord. No. 20,120, §§ 1—5, amended Art. III in its entirety and enacted similar provisions as set out herein. The former Art. III derived from Ord. No. 18,959, § 5, adopted Oct. 7, 2003.

(b) *Exceptions.* Subsection (a) does not apply to:

(1) The normal place of business for animal hospitals or veterinary clinics;

(2) Cat breeders or catteries, if the operator of the breeding or cattery facility holds a Little Rock privilege license for the cat breeding or cattery business; or

(3) Specific cats kept or harbored at the owner's residence pursuant to an over-limit permit issued by the animal services division where:

i. The cat owner submits an application for over-limit permit to the animal services division on a form to be approved by the animal services division manager;

ii. The cat owner submits to an on-site inspection and provides proof of current rabies vaccination and city license for each cat identified in the over-limit permit application; and

iii. The cat owner has no record of convictions for Little Rock Animal Code violations for failure to vaccinate or license, or for animal cruelty, abuse or neglect. Any conviction that is overturned by a court of competent jurisdiction shall not serve as the basis for denial of an over-limit permit.

(c) *Revocation of over-limit permit.* An over-limit permit may be revoked if the cat owner is subsequently convicted for any Little Rock Animal Code violation, provided that a conviction that is overturned by a court of competent jurisdiction shall not serve as the basis for revocation of an over-limit permit.
(Ord. No. 20,120, § 2, 6-16-09)

Sec. 6-28. Confinement.

(a) *Identification.* Cat owners shall identify their free-roaming cats by means of a microchip that registers the owner with a national computer recovery network.

(b) *Sterilization.* All free-roaming cats shall be sterilized unless the owner's veterinarian, licensed by the state, certifies in writing that the animal is physically unable to reproduce or that the animal is medically compromised to the extent that it cannot be sterilized safely.

(c) *Chaining.* Direct-point chaining or tethering of cats to a stationary object is prohibited.

(d) *Warning notice to comply with free-roaming requirements.* Notwithstanding any other provision of this article:

(1) If the animal services division determines that the owner of a free-roaming cat is not in compliance with the microchipping and sterilization requirements of this section; and

(2) If a prior warning notice to comply with the microchipping and sterilization requirements has not been issued for that animal; then the owner shall be given a warning notice to comply with the microchipping and sterilization requirements within ten (10) days, with documented proof of such compliance or a letter to document the owner's intent to keep the animal indoors submitted to the animal services division within that ten (10) day period.
(Ord. No. 20,121, § 3, 6-16-09)

Sec. 6-29. Minimum care.

(a) *Shelter.*

(1) All cat owners shall provide their cats with continuous access to a structurally sound, moisture-proof and windproof shelter large enough to keep the cat reasonably clean and dry.

(2) A shelter which does not protect the cat from temperature extremes or precipitation, or which does not provide adequate ventilation or drainage, shall not comply with section.

(3) A cat's shelter and bedding shall be maintained in a manner which minimizes the

risk of the cat contracting disease, being injured or becoming infested with parasites.

(b) *Nutrition.*

(1) It shall be unlawful for any person keeping or harboring any cat to fail, refuse or neglect to provide such cat with clean, fresh, potable water adequate for the cat's size, age, and physical condition. This water supply shall be either free flowing or provided in a removable receptacle that is weighted or secured to prevent tipping.

(2) It shall be unlawful for any person keeping or harboring any cat to fail, refuse or neglect to provide such cat with wholesome foodstuff suitable for the cat's physical condition and age and in sufficient quantities to maintain an adequate level of nutrition for the cat.

(c) *Exercise.* Any enclosure or area of confinement for a cat shall encompass sufficient usable space to keep the animal in good condition.
(Ord. No. 20,120, § 4, 6-16-09)

Sec. 6-30. Dangerous cat designation.

(a) *General.* It shall be unlawful for any person to keep within the city limits any dangerous cat, except in compliance with the provisions of this section.

(b) *Ground for dangerous cat designation.* A cat is considered dangerous for purposes of this section if:

(1) Without provocation, it attacks or bites a person;

(2) Acts in a manner which the owner knows, or reasonably should know, is an indication that the cat is dangerous and is not merely acting in self defense under a particular set of circumstances; or

(3) Has been declared dangerous, or has been given some other designation by another governmental body under circumstances that would meet the grounds for dangerous cat designation under the provisions of this ordinance.

(c) *Dangerous cat designation procedure.*

(1) *Designation.* If the animal services division manager has cause to believe that a cat is dangerous, the division manager may find and declare such cat a dangerous cat.

(2) *Notice.* Within three (3) days of declaring a cat dangerous, the animal services division manager shall give notice of the declaration and the reasons for it in writing to the person who owns, keeps, or otherwise maintains the cat. The notice shall inform the owner or custodian that a permit is required to keep such dangerous cat within the city limits.

(3) *Opportunity to contest designation.* The notice shall inform the owner or custodian of the cat that a hearing to contest the declaration shall be held before the city manager, or appointed designee, if a request for a hearing is submitted in writing to the animal services division manager within five (5) week days from receipt of the notice of dangerous cat declaration.

(4) *Status pending hearing.* Once notice of dangerous cat designation has been given, the cat shall be considered dangerous unless, and until such time as the declaration is overruled by the city manager or appointed designee. If a hearing is requested, the owner shall not be required to obtain a dangerous cat permit unless, and until such time as, the declaration is upheld by the city manager or appointed designee.

(5) *Hearing.* The hearing required pursuant to this subsection shall be held no more than five (5) week days from the date of receipt of the request. The city manager, or appointed designee, shall act as the appeal hearing officer and shall make his ruling on the basis of a preponderance of the evidence presented at the hearing. The hearing shall be an informal proceeding, and each party shall have the right to call and examine witnesses, to introduce exhibits, to cross-examine opposing witnesses on any matter relevant to the

issues even though that matter was not covered in the direct examination, to impeach any witness regardless of which party first called the witness to testify, and to rebut the evidence against the party. Either party may call the owner/custodian as a witness. The decision of the hearing officer is final.

(6) *Compliance.* If the person owning, keeping, possessing or otherwise maintaining the cat fails to request a hearing or if the hearing officer determines that the dangerous declaration stands, the owner or custodian shall comply with the requirements of this section in order to keep such cat within the city limits.

(d) *Permit required.* A dangerous cat may be kept within the city limits only so long as the owner or custodian obtains a dangerous cat permit and complies with the conditions for maintaining a dangerous cat permit.

(e) *Conditions for maintaining a dangerous cat permit.*

(1) The owner or custodian shall pay an annual permit fee of twenty-five dollars ($25.00) for possession of a dangerous cat, in addition to all other fees required under this chapter.

(2) The owner or custodian shall not allow a dangerous cat to be a free-roaming cat.

(f) *Failure to comply.* It shall be unlawful for the owner or custodian of a dangerous cat to fail to comply with the requirements and conditions set forth in this section. Any cat found to be kept in violation of this section shall be subject to seizure and impoundment. In addition, failure to comply shall result in the revocation of the dangerous cat permit for such cat. In the event of permit revocation, the owner or custodian shall find a new home for the cat outside of the city limits within twenty-four (24) hours of receipt of the notice of revocation, or the cat shall be humanely destroyed.
(Ord. No. 20,120, § 5, 6-16-09)

Secs. 6-31—6-40. Reserved.

ARTICLE IV. MISCELLANEOUS PROVISIONS*

Sec. 6-41. Hogs prohibited.

It shall be unlawful to keep or maintain any hogs, pigs or swine within the corporate limits of the city. This section does not apply to:

(1) The Little Rock Zoo;

(2) The Museum of Science and History, also known as the Museum of Discovery;

(3) The Heifer International Global Village;

(4) A College of Veterinary Medicine operated under the auspices of an accredited college or university;

(5) A bona fide circus, state fair, research or educational institution comply with applicable laws and regulations;

(6) Vietnamese pot-bellied pigs.

a. Vietnamese pot-bellied pigs, subject to the provisions of sections 6-1 through 6-8(a) and 6-43.

b. It shall be unlawful for more than one (1) Vietnamese pot-bellied pig to be kept or harbored in any household or business within the corporate limits of the City of Little Rock, Arkansas.

(Ord. No. 18,668, § 3, 4-2-02; Ord. No. 18,928, § 1, 9-2-03; Ord. No. 18,959, § 4, 10-7-03; Ord. No. 20,957, § 1, 11-18-14; Ord. No. 22,227, § 1, 2-21-23)

Sec. 6-42. Keeping of prohibited animals.

(a) In this section:

(1) *Carnivora* shall include, but not be limited to, the following families, with representatives of those families as indicated:

a. *Ursidae:* Bears.

*__Editor's note—__**Editor's note—**Ord. No. 18,959, § 4, adopted Oct. 7, 2003, renumbered §§ 6-13—6-20 as 6-41—6-48 and §§ 6-51 and 6-52 as 6-49 and 6-50 to create a new article IV as set out herein.

b. *Canidae:* Wolves, coyotes, foxes, or the hybrid offspring of such canidae (including, but not limited to, domestic dog—canidae crosses).

c. *Hyaenidae:* Hyenas.

d. *Filidae:* Lions, tigers, leopards, American lions (commonly known as pumas, cougars, and panthers), cheetah, bobcats, ocelots, jaguars, African panthers, lynx, margays.

e. *Procyonidae:* Raccoons and relatives.

f. *Mustelidae:* Weasels, skunks, and relatives.

g. *Viverridae:* Binturongs, civets and relatives.

(2) *Innately wild animals* shall include all members of the order Carnivora which are all meat-eating animals, excluding domestic breeds of dogs and cats.

(3) *Nonhuman primates* shall include, but not be limited to, the following families:

a. *Monkeys:* Spider monkeys, squirrel monkeys, marmosets, baboons and relatives.

b. *Great apes:* Gorillas, orangutans, gibbons, siamangs, chimpanzees and relatives.

(4) *Venomous reptiles* shall include, but not be limited to, the following families:

a. *Colubridae:* (two (2) genera only), *Dispholidus* (boomslang) and *Thelotornis* (twig snakes).

b. *Elapidae:* Cobras, kraits, coral snakes and relatives.

c. *Hydrophilidae:* Sea snakes.

d. *Viperidae:* Vipers, adders.

e. *Crotalidae:* Pit vipers (commonly known as rattlesnakes, water moccasins, copperheads).

f. *Helodermatidae:* Gila monsters.

(b) The sale, possession, maintenance or keeping of carnivora, innately wild animals, nonhuman primates and venomous reptiles within the city is unlawful.

(c) Subsection (b) of this section does not apply to:

(1) The Little Rock Zoo.

(2) The Museum of Science and History.

(3) Bona fide circuses and carnivals.

(4) Research or educational institutions complying with applicable laws and regulations.

(5) Professional members of the Arkansas Herpetological Society who have received prior approval from the director of the Little Rock Zoo.

(d) There shall be a three-day grace period after notice for removal of the innately wild animal from the city before the penalty for violation of this section shall be imposed.
(Ord. No. 18,668, § 3, 4-2-02; Ord. No. 18,959, § 4, 10-7-03)

Sec. 6-43. Keeping of livestock.

It shall be unlawful to keep cows, goats, horses, Vietnamese pot-bellied pigs, or other lawfully allowed hoofed animals in a pen or lot, pasture, yard, home or building that is within three hundred (300) feet of any residence or business other than the residence of the livestock owner or business establishment of the livestock owner.
(Ord. No. 18,959, § 4, 10-7-03; Ord. No. 20,957, § 2, 11-18-14)

Sec. 6-44. Keeping of small animals and fowl; locations of pens, etc.

Small animals such as rabbits and guinea pigs and fowl, such as chickens, guineas, turkeys and the like may be kept within the city limits, subject to the following provisions:

(1) All such animals must be provided with adequate housing. Floor space in such houses shall be in accordance with the following minimum requirements:

a. For rabbits, four (4) square feet per animal over four (4) months of age.

b. For turkeys, four (4) square feet per animal over four (4) months of age.

c. For chickens and similar fowl, three (3) square feet per bird over four (4) months of age.

d. For bantams, three (3) square feet per bird over four (4) months of age.

Provisions of this section do not apply to pea fowl or ducks.

(2) All pens or yards where such animals are kept shall be placed the following minimum distances from any business establishment or any residence other than that of the owner of same:

a. Rabbits, ten (10) feet.

b. All other animals referred to in paragraph (1) of this section, twenty-five (25) feet; provided, however, that chickens or similar fowls must be kept at least five (5) feet from owner's residence as well as twenty-five (25) feet from the house of the nearest neighbor.

(Ord. No. 18,668, § 3, 4-2-02; Ord. No. 18,959, § 4, 10-7-03)

Sec. 6-45. Feed stores and poultry houses; keeping of poultry and animals.

Feed stores may keep poultry and animals for demonstration purposes provided same are kept inside the business building and comply with all sanitary regulations provided in this article. Poultry houses may keep fowls for sale provided same are kept inside the business building and comply with all the sanitary regulations provided in this article.

(Ord. No. 18,668, § 3, 4-2-02; Ord. No. 18,959, § 4, 10-7-03)

Sec. 6-46. Kennels.

(a) In this section "kennel" means an establishment wherein any person engages in the business of boarding, breeding, buying, grooming, letting for hire, training for a fee, or selling dogs or other animals.

(b) All kennels shall, in addition to the other requirements of this chapter, comply with the following minimum standards of this section. Failure to meet these standards shall be grounds for denial of a privilege license or revocation of a privilege license.

(1) Enclosures must be provided which shall allow adequate protection against weather extremes. Runs and/or cages with adequate drainage into a closed sewer system must be provided. Floors of building, runs and walls shall be made of an impervious material to permit proper cleaning and disinfecting.

(2) Building temperatures shall be maintained at a comfortable level. Adequate ventilation shall be maintained.

(3) Each animal shall have sufficient space to stand up, lie down and turn around without touching the sides or top of cages.

(4) Cages are to be of material and construction that permit cleaning and sanitizing.

(5) Cage floors of concrete, unless radiantly heated, shall have a resting board or some type of bedding.

(6) Runs shall provide protection from the weather. Runs shall have an impervious surface.

(7) All animal quarters and runs are to be kept clean, dry and in a sanitary condition.

(8) The food shall be free from contamination, wholesome, palatable, and of a sufficient quantify and nutritive value to meet the normal daily requirements for the condition and size of the animal.

(9) All animals shall have fresh water available at all times. Water vessels shall be mounted or secured in a manner that prevents tipping and be of the removable type.

(10) Kennels and boarding facilities, except licensed veterinarian facilities, shall provide an adequate exercise area of a minimum of twenty-five (25) feet by twenty-five (25) feet.

(Ord. No. 18,668, § 3, 4-2-02; Ord. No. 18,959, § 4, 10-7-03)

Sec. 6-47. Pet shops.

(a) In this section "pet shop" means any establishment that offers to sell two (2) or more species of live animals with intent that they be kept as pets.

(b) All pet shops, including pet shops run in conjunction with another holding facility, shall in addition to the other requirements of this chapter comply with the following minimum standards of this section. Failure to meet these standards shall be grounds for denial of a privilege license or revocation of a privilege license.

(1) There shall be available hot water at a minimum temperature of one hundred sixty (160) degrees for washing cages and disinfecting, and cold water easily accessible to all parts of the shop. Fresh water shall be available to all species at all times. Containers are to be cleaned and disinfected each day. All water containers shall be mounted so the animal cannot turn them over and be removable for cleaning.

(2) The room temperature of the shop shall be maintained at a level that is healthful for every species of animal kept in the shop.

(3) All cages and enclosures are to be of a nonporous material for easy cleaning and disinfecting. Each cage must be of sufficient size that the animal will have room to stand, turn and stretch out to his full length.

(Ord. No. 18,668, § 3, 4-2-02; Ord. No. 18,959, § 4, 10-7-03)

Sec. 6-48. Livestock or fowl running at large prohibited.

(a) No horse, mule, mare, colt, jack or jenny, or swine of any kind, sheep, goat, or cattle of any kind, shall be permitted or suffered to run at large. It is unlawful for the owner or person in charge of any such animals to suffer or permit any of such animals to run at large.

(b) It shall be unlawful for any person to permit chickens and other fowl to run at large.

(Ord. No. 18,668, § 3, 4-2-02; Ord. No. 18,959, § 4, 10-7-03)

Sec. 6-49. Release of unaltered (unsterilized) animals.

(a) It shall be unlawful for any animal control shelter or animal humane organization to release any unaltered dog or cat to a new owner unless a written agreement to spay or neuter such animal has been signed by the person acquiring the animal and an officer/agent for the animal control shelter or animal humane organization.

(b) The sterilization shall be performed by the date stipulated, but if an extension of time is necessary for a valid reason, the owner shall request and must receive approval for such extension. In the event an extension is granted, a written extension agreement must be signed by the owner and an officer/agent of the animal control shelter or the animal humane organization. The maximum extension that may be granted is thirty (30) days. A copy of the signed written agreement and any extension agreement must be provided to the division of animal control and must be kept on file by the division of animal control. The signed written agreement shall be binding and failure to comply is unlawful. Upon failure to comply:

(1) The animal shall be returned by the owner to the animal control shelter or animal humane organization which released the animal; and

(2) Ownership of the animal reverts to the agency which released the animal;

(3) No claim may be made by the owner to recover expenses incurred for maintenance of the animal, including the initial procurement cost.

(c) This section does not prevent the manager of the division of animal control from establishing clinics for the purpose of sterilization.

(Ord. No. 18,959, § 4, 10-7-03)

Sec. 6-50. Impoundment, redemption, etc. of dogs.

(a) The animal control officer shall take into custody any dog found at large in the city and shall impound the dog in the animal control center. Each impounded dog shall be held for a period of five (5) business days at the end of which time the dog shall become the property of the

division of animal control, unless custody of the dog is released prior to such time under the following conditions:

(1) During the first three (3) business days of such impoundment, the animal control officers shall make diligent efforts to determine the owner of the dog and notify the owner of the impoundment.

(2) If the owner of the dog fails or refuses to claim and repossess the dog by the payment of the proper fee as prescribed in subsection (c) of this section, then the animal control officer may deliver custody and possession of the dog to any person other than the owner upon the payment of the adoption fee as prescribed in subsection (e) of this section.

(3) The owner of the impounded dog who fails or refuses to claim and repossess the dog must pay the daily board rate for the five (5) business days during which the animal control center has maintained the dog for the owner to reclaim and repossess the dog.

(b) No dog that has not been licensed and vaccinated shall be released unless the person redeeming the dog and an officer/agent of the division of animal control signs a written agreement to have the dog licensed and vaccinated. The division of animal control shall keep the original written agreement for the licensing and vaccination of the dog.

(c) The fees for redemption of a dog by its owner are as follows:

(1) For an owner who has failed to license and vaccinate the dog as prescribed in this chapter within one (1) year:

First impoundment	$ 52.50*
Second impoundment	97.50*
Each subsequent impoundment.	225.00*

(2) For an owner who has licensed and vaccinated the dog as prescribed in this chapter within one (1) year:

First impoundment	$ 37.50*
Second impoundment	52.50*
Third impoundment.	97.50*
Each subsequent impoundment.	150.00*

*Plus daily board rate as provided in subsection (d) of this section.

(d) The daily board rate for the care and maintenance of the dog is six dollars ($6.00).

(e) The adoption fee per animal is as follows:

Dog (three (3) months and older)	$30.00
All other dogs or cats	15.00

(f) The relinquishment fee per animal is as follows:

Dog or cat (three (3) months and older)	$15.00
(under three (3) months old)	4.50

(g) The payment of the redemption fee as provided in subsection (c) of this section does not preclude the prosecution of the owner and the imposition of fines in Little Rock Municipal Court. (Ord. No. 18,959, § 4, 10-7-03)

State law references—Impoundment of dogs at large, A.C.A. § 14-54-1102; sterilization of impounded dogs and cats, A.C.A. § 20-19-103.

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Chapter 7

AVIATION*

Art. I.	**In General, §§ 7-1—7-25**
Art. II.	**Little Rock Municipal Airport Commission, §§ 7-26—7-50**
Art. III.	**Adams Field Height Zoning, §§ 7-51—7-120**
Art. IV.	**Operation of Commercial Ground Transportation at Little Rock Regional Airport, §§ 7-121—7-132**

***Cross reference**—Airport terminal service, § 34-73 et seq.

State law reference—Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

ARTICLE I. IN GENERAL

Secs. 7-1—7-25. Reserved.

ARTICLE II. LITTLE ROCK MUNICIPAL AIRPORT COMMISSION*

Sec. 7-26. Created.

There is hereby created a commission to be known as the municipal airport commission.
(Code 1961, § 3-1)

State law reference—Authority to create airport commission, A.C.A. §§ 14-359-103, 14-359-104.

Sec. 7-27. Members.

(1) The municipal airport commission shall be composed of seven (7) citizens who are qualified electors of the city. At least one (1) of the members shall be experienced in aviation holding some type of pilot aeronautical rating. Members of the commission shall be appointed by the city manager and confirmed by a three-fourths vote of the board of directors. They shall hold office for a term of five (5) years. Terms shall begin on January 1 and end of December 31 of the fifth year thereafter.

(2) Upon the effective date of Ordinance No. 19,299 [April 5, 2005], the city clerk shall commence advertisements for the two (2) new open positions on the Little Rock Airport Commission, provided that one (1) person selected will serve a term of four (4) years, and the second person selected shall serve a term of five (5) years.

(3) New members of the Little Rock Airport Commission shall be subject to the attendance requirements set forth in section 2-262 of the Little Rock Code.

(4) New members of the Little Rock Airport Commission shall be subject to the term limitations set forth in Resolution No. 8096, adopted February 1, 1989.
(Code 1961, §§ 3-1, 3-2; Ord. No. 19,299, §§ 1—4, 4-5-05)

State law reference—Similar provisions, A.C.A. §§ 14-47-120(4), 14-359-105.

***Cross reference—**Boards and commissions generally, § 2-261 et seq.

State law reference—Airport Commission Act, A.C.A. § 14-359-101 et seq.

Sec. 7-28. Meetings.

The municipal airport commission shall meet at least monthly, but other meetings may be held at any time by the board or upon the call of the city manager or board of directors.
(Code 1961, § 3-8)

State law reference—Similar provisions, A.C.A. §§ 14-47-120(4), 14-359-108.

Sec. 7-29. Powers and duties.

The municipal airport commission shall have the powers provided by law.
(Code 1961, §§ 3-3—3-5)

State law reference—General authority of municipal airport commission, A.C.A. § 14-59-114 et seq.

Sec. 7-30. Monthly and annual reports.

The municipal airport commission shall keep a record of all revenues and expenditures of the airport, its related properties and facilities, and shall submit monthly reports to the mayor and city board of directors. It shall be the duty of the municipal airport commission to cause an annual audit of the financial affairs of the airport to be conducted by certified public accountants. The accountants will prepare an annual audit report showing receipts and disbursements in all the airport funds, the status of the airport's bonded debt, and any other detail necessary to present the complete financial condition of the airport. The audit report shall be filed by the airport commission with the city clerk not later than sixty (60) days following close of the previous calendar year. The commission shall furnish such other reports, data, and information as may be requested by the city manager, mayor, or the board of directors.
(Code 1961, § 3-6)

State law reference—Similar provisions, A.C.A. § 14-359-118.

Sec. 7-31. Fiscal procedures.

The municipal airport commission is subject to all fiscal procedures of the city.

Sec. 7-32. Budget.

The municipal airport commission shall submit to the city annually, not later than October 15 of

each year, its budget for the following year. The budget will show estimated revenue, expenditures, and fund balances for the following year.
(Code 1961, § 3-7)

State law reference—Similar provisions, A.C.A. § 14-359-116.

Sec. 7-33. Civil service not to apply.

The civil service regulations of the city shall not apply to the commission or employees of a municipally owned airport, its related properties and facilities.
(Code 1961, § 3-9)

State law reference—Similar provisions, A.C.A. § 14-359-119.

Sec. 7-34. Airport facilities and properties vested in commission.

(a) Complete control, possession and charge of the city's municipal airport facilities and related properties are hereby vested in the municipal airport commission. The commission is designated as the party in succession to all contracts entered into for the benefit of the municipal airport.

(b) The commission is designated as the party in succession to any and all funds, both federal and state, which have heretofore or may hereafter be granted to the city for the purpose of improving the municipal airport, as well as being designated as the party in succession to the city to receive any and all liquidated damages to the airport which have been heretofore agreed upon by the city and other parties.

(c) The commission is designated as the party in succession to any and all rights of action which the city may have acquired in operation of the airport.
(Code 1961, § 3-10)

Secs. 7-35—7-50. Reserved.

ARTICLE III. ADAMS FIELD HEIGHT ZONING*

DIVISION 1. GENERALLY

Sec. 7-51. Short title.

[This article shall be known and may be cited as "Adams Field Height Zoning Ordinance."]
(Ord. No. 18,343, 9-5-00)

Sec. 7-52. Definitions.

As used in this article, [the following words shall have the meanings ascribed to them in this section] unless the context otherwise requires:

Airport: Adams Field.

Airport elevation: Two hundred sixty-two (262) feet above mean sea level.

Airport manager: The person responsible for the day-to-day operations and management of Adams Field appointed by the Little Rock Municipal Airport Commission.

Approach surface: An imaginary plane longitudinally centered on the extended runway centerline, extending outward and upward from the end of the primary surface and at the same slope as the appropriate approach zone height limitation slope set forth in section 7-54 of this article. In plan, the perimeter of the approach surface coincides with the perimeter of the approach zone.

Approach, transitional, horizontal and conical zones: These zones are set forth in section 7-53 of this article.

Board of adjustment: Shall mean the Little Rock Board of Adjustment, a board consisting of

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***Editor's note—**Ord. No. 18,343, adopted Sept. 5, 2000, replaced the respective provisions of the Adams Field Height Zoning Ordinance, which had been codified as §§ 7-51—7-59 and 7-76—7-83, and derived from §§ 3-21—3-27 and 3-33—3-38 of the 1971 Code. The similar provisions of Ord. No. 18,343 have been codified as §§ 7-51—7-63.

Cross references—Planning and development, Ch. 23; zoning, Ch. 36.

State law reference—Authority to enact and enforce airport zoning regulations, A.C.A. § 14-363-204.

nine (9) members appointed by the Little Rock City Board of Directors as provided in Ordinance No. 13,777 [section 2-26 of this Code].

Conical surface: An imaginary surface extending outward and upward from the periphery of the horizontal surface at a slope of 20 to 1 for a horizontal distance of four thousand (4,000) feet.

Hazard to air navigation: An obstruction determined to have a substantial adverse effect on the safe and efficient utilization of navigable airspace.

Height: For the purpose of determining the height limits in all zones set forth in this article and shown on the zoning map, the datum shall be mean sea level.

Horizontal surface: An imaginary horizontal plane one hundred fifty (150) feet above the airport elevation, the perimeter of which in plan coincides with the perimeter of the horizontal zone. The actual elevation of the horizontal surface is four hundred twelve (412) feet above mean sea level.

Little Rock Municipal Airport Commission: A commission consisting of seven (7) members appointed by the Little Rock City Board of Directors to oversee the operations and management of Adams Field.

Nonconforming use: Any pre-existing structure, object of natural growth or use of land which is inconsistent with the provisions contained herein at the time of the adoption of this article or any amendment thereto.

Nonprecision instrument runway: A runway having an existing or planned instrument approach procedure utilizing air navigation facilities (or area type navigation equipment) with only horizontal guidance, for which a straight-in nonprecision instrument approach procedure has been approved or planned.

Obstruction: Any structure, growth or other object, including a mobile object, which exceeds a limiting height set forth in section 7-54 of this article.

Person: Any individual, firm, partnership, public or private corporation, company, association, joint stock association or government entity, and includes any trustee, receiver, assignee or other similar representative thereof.

Precision instrument runway: A runway having an existing or planned instrument approach procedure utilizing an instrument landing system (ILS), precision approach radar (PAR), microwave landing system (MLS), or precision global positioning system (GPS). It also means a runway for which a precision approach system is planned and is so indicated on an approved airport layout plan or any other planning document.

Primary surface: An imaginary surface longitudinally centered on a runway. The primary surface extends two hundred (200) feet beyond each end of that runway. The width of the primary surface is set forth in section 7-53 of this article. The elevation of any point on the primary surface is the same as the elevation of the nearest point on the runway centerline

Runway: An area prepared for landing and takeoff of aircraft along its length.

Structure: Any object, including a mobile object, constructed or installed by man, including but without limitation, buildings, towers, cranes, smokestacks, earth formations and overhead transmission lines.

Transitional surfaces: These imaginary surfaces extend outward at ninety-degree angles to the runway centerline (and the extended runway centerline) at a slope of seven (7) feet horizontally for each foot vertically from the sides of the primary and approach surfaces to where they intersect the horizontal and conical surfaces. Transitional surfaces for those portions of the precision approach surfaces which project through and beyond the limits of the conical surface, extend a distance of five thousand (5,000) feet measured horizontally from the edge of the approach surface and at ninety-degree angles to the extended runway centerline.

Tree: Any object of natural growth.

(Ord. No. 18,343, § II, 9-5-00; Ord. No. 19,299, § 10, 4-5-05)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 7-53. Airport zones.

In order to carry out the provisions of this article, there are hereby created and established certain zones which include all of the land lying beneath the approach surfaces, transitional surfaces, horizontal surface and conical surface as they apply to Adams Field. Such zones are shown on the "Adams Field Height Zoning Height Zoning Map," consisting of one (1) sheet, prepared by Garver and Garver, Inc., dated August, 1983, and revised by Garver Engineers, Inc., on May 1, 2000, which is attached to Ordinance No. 18,343 and made a part hereof. An area located in more than one of the following zones is considered to be only in the zone with more restrictive height limitation. The various zones are hereby established and defined as follows:

(1) *Nonprecision Instrument Approach Zone (Runways 18 and 36).* The inner edge of this approach zone coincides with the width of the primary surface and is five hundred (500) feet wide. The approach zone expands outward uniformly to a width of three thousand five hundred (3,500) feet at a horizontal distance of ten thousand (10,000) feet from the primary surface. Its centerline is the continuation of the centerline of the runway.

(2) *Precision Instrument Approach Zone (Runways 4L, 22R, 4R, and 22L).* The inner edge of this approach zone coincides with the width of the primary surface and is five hundred (500) feet wide. The approach zone expands outward uniformly to a width of three thousand five hundred (3,500) feet at a horizontal distance of ten thousand (10,000) feet from the primary surface. Its centerline is the continuation of the centerline of the runway.

(3) *Transitional Zones.* Areas beneath the transitional surfaces.

(4) *Horizontal Zone.* The horizontal zone is established by swinging arcs of ten thousand (10,000) feet radii from the center of each end of primary surface of each runway, and connecting the adjacent arcs by drawing lines tangent to those arcs. The horizontal zone does not include the approach and transitional zones.

(5) *Conical Zone.* The area that commence at the periphery of the horizontal zone and extends outward for a horizontal distance of four thousand (4,000) feet.

(Ord. No. 18,343, § III, 9-5-00)

Sec. 7-54. Airport zone height limitations.

Except as otherwise provided in this article, no structure shall be erected, altered or maintained, and no tree shall be allowed to grow in any zone created by this article to a height in excess of the applicable height limitation herein established for such zone. Such applicable height limitations are hereby established for each of the zones as follows:

(1) *Nonprecision instrument approach zones.* Slope thirty-four (34) feet outward for each four (4) upward, beginning at the primary surface, and extending to a horizontal distance of ten thousand (10,000) feet along the extended runway centerline.

(2) *Precision instrument approach zones.* Slope fifty (50) feet outward for each foot upward, beginning at the end of and at the same elevation as the primary surface, and extending to an additional horizontal distance of forty thousand (40,000) feet along the extended runway centerline.

(3) *Transitional zones.* Slope seven (7) feet outward for each foot upward, beginning at the sides of and at the same elevation as the primary surface and the approach surface, and extending to a height of four hundred twelve (412) feet above mean sea level. In addition to the foregoing, there are established height limits sloping seven (7) feet outward for each foot upward, beginning at the sides of and at the same elevation as the approach surface, and extending to where they intersect the conical surface. Where a precision instrument runway approach zone projects beyond the conical zone, there are established height limits sloping seven (7) feet outward for each foot upward, beginning

at the sides of and at the same elevation as the approach surface, and extending for a horizontal distance of five thousand (5,000) feet, measured at ninety-degree angles to the extended runway centerline.

(4) *Horizontal zone.* One hundred fifty (150) feet above the airport elevation, i.e., to a height of four hundred twelve (412) feet above mean sea level.

(5) *Conical zone.* Slopes twenty (20) feet outward for each foot upward, beginning at the periphery of the horizontal zone and at one hundred fifty (150) feet above the airport elevation, and extending to a height three hundred fifty (350) feet above the airport elevation, i.e. to a height of six hundred ten (610) feet above sea level.

(6) *Excepted height limitations.* Nothing in this article shall be construed as prohibiting the construction or maintenance of

any structure, or growth of any tree to a height up to fifty (50) feet above the surface of the land.

(Ord. No. 18,343, § IV, 9-5-00)

Sec. 7-55. Use restriction.

Notwithstanding any other provision of this article, no use may be made of land or water within any zone established by this article in such a manner as to create electrical interference with navigational signals or radio communications between the airport and aircraft, make it difficult for pilots to distinguish between airport lights and other lights, result in glare in the eyes of pilots using the airport, impair visibility in the vicinity of the airport, create bird strike hazards or otherwise in any way endanger or interfere with the landing, takeoff or maneuvering of aircraft intending to use the airport.

(Ord. No. 18,343, § V, 9-5-00)

Sec. 7-56. Nonconforming uses.

(1) *Regulations not retroactive.* Notwithstanding the provisions of subsection (3) hereof, the regulations prescribed in this article shall not be construed to require removal, lowering or other change or alteration of any nonconforming use, or otherwise interfere with the continuance of a nonconforming use. Nothing contained herein shall require any change in the construction, alteration of which was begun prior to the effective date of this article [September 5, 2000,] or any duly enacted amendment thereto, and is diligently prosecuted.

(2) *Marking and lighting.* Notwithstanding the preceding provision of this section, the owner of any existing nonconforming use is hereby required to permit the installation, operation and maintenance thereon of such markings and lights, as shall be deemed necessary by the Little Rock Municipal Airport Commission, to indicate to the operators of aircraft in the vicinity of the airport the presence of such airport obstruction. Such markings and lights shall be installed, operated and maintained at the expense of the City of Little Rock.

(3) *Lowering or removal of nonconforming uses.* In order to eliminate or mitigate existing hazards to landing and taking-off at Adams Field, to improve and make safer Adams Field, and to permit public use of any obstructed navigable airspace needed for such use, the Little Rock Municipal Airport Commission may acquire, by purchase, grant or condemnation, such estate or interest in any nonconforming use for which a permit has been granted in accordance with subsection (3) hereof, as is necessary to permit lowering or removal of such nonconforming use to the extent necessary to conform to the applicable height limitation prescribed in this article or any duly enacted amendment thereto. In cases of imminent danger to the health, safety and general welfare of the public, the Little Rock Municipal Airport Commission shall take such immediate steps as are necessary to remove said danger, and a hearing shall thereafter be held to determine what compensation, if any, should be made to the owner of the structure or tree causing said danger.

(Ord. No. 18,343, § VI, 9-5-00)

Sec. 7-57. Permits.

(1) *Future uses.* Except as specifically provided in (a), (b) and (c) hereunder, no material change shall be made in the use of land, no structure shall be erected or otherwise established and no tree shall be planted in any zone hereby created unless a permit therefor shall have been applied for and granted by the Little Rock Municipal Airport Commission. Each application for a permit shall indicate the purpose for which the permit is desired, with sufficient particularity for it to be determined whether the resulting use, structure or tree would conform to the regulations herein prescribed. If such determination is in the affirmative, the permit shall be granted. No permit for a use inconsistent with the provisions of this article shall be granted unless a variance had been approved in accordance with subsection (6).

(a) In the area lying within the limits of the horizontal zone and conical zone, no permit shall be required for any tree or structure less than seventy-five (75) feet of vertical height above the ground, except when, because of terrain, land con-

tour or topographic features, such tree or structure would extend above the height limits prescribed for such zones.

(b) In areas lying within the limits of the approach zones but at a horizontal distance of not less than four thousand two hundred (4,200) feet from each end of the runway, no permit shall be required for any tree or structure less than seventy-five (75) feet of vertical height above the ground except when such tree or structure would extend above the height limit prescribed for such approach zones.

(c) In the areas lying within the limits of the transitional zones beyond the perimeter of the horizontal zone, no permit shall be required for any tree or structure less than seventy-five (75) feet of vertical height above the ground, except when such tree or structure, because of terrain, land contour or topographic features, would extend above the height limit prescribed for such transitional zones.

Nothing contained in any of the foregoing exceptions shall be construed as permitting or intending to permit any construction or alteration of any structure, or growth of any tree in excess of any of the height limits established by this article, except as set forth in section 7-54(6).

(2) *Existing uses.* No permit shall be granted that would allow the establishment or creation of an obstruction, or that would allow a nonconforming use to become a greater hazard to air navigation than it was on the effective date of this article (or any duly enacted amendments thereto) or than it is when the application for a permit is made. Except as indicated, all applications for such a permit for existing uses shall be granted.

(3) *Continuance of nonconforming uses.* The owner of any nonconforming use shall be granted a permit authorizing continuance of such nonconforming use, upon application therefor made by him; provided that, if such application is not made within ninety (90) days of the effective date of this article or any duly enacted amendment thereto the Little Rock Municipal Airport commission shall by appropriate action compel the owner of the nonconforming use, at his own expense to lower or remove such object to the extent necessary to conform to the regulations. Notwithstanding the foregoing provisions, no permit allowing the continuation of any nonconforming use shall be granted where such use is, at the time a permit is applied for, not in conformity with the regulations in effect immediately prior to the enactment of any ordinance amending this article, including but not limited to changes in the height zoning map incorporated herein which may from time to time be amended to eliminate or mitigate existing hazards to landing and taking off at Adams Field, to ensure compliance with all applicable federal laws, or for any other lawful reason.

(4) *Change and repair of nonconforming uses.* Before any nonconforming use for which a permit has been issued in accordance with subsection (3) hereof, may be altered or repaired, rebuilt, allowed to grow higher or replanted, a permit must be secured from the Little Rock Municipal Airport Commission authorizing such change or repair. No such permit shall be granted that would permit the structure or tree in question to be made higher or become a greater hazard to air navigation than it was when the permit for its continuance was granted.

(5) *Nonconforming uses abandoned or destroyed.* Whenever the Little Rock Municipal Airport Commission determines that a nonconforming use has been abandoned or more than fifty (50) percent torn down or destroyed, whether voluntarily, by act of God or otherwise, or has become more than fifty (50) percent deteriorated or decayed, no permit shall be granted that would allow such structure or tree to exceed the applicable height limit or otherwise deviate from the zoning regulations. In all such cases of fifty (50) percent destruction, deterioration or decay, whether application is made for a permit for repair or not, the Little Rock Municipal Airport Commission shall, by appropriate action, compel the owner of the nonconforming use, at his own expense to lower or remove such object to the extent necessary to conform to the applicable height limit.

(6) *Variances.* Any person desiring to erect, increase the height of any structure, or permit the growth of any tree, or use property, not in accordance with the regulations prescribed in this

article, must apply to the Little Rock Municipal Airport Commission for a variance from such regulations. The application for variance shall be accompanied by a determination from the Federal Aviation Administration as to the effect of the proposal on the operation of air navigation facilities and the safe, efficient use of navigable airspace. Variances shall be allowed where it is duly found that a literal application or enforcement of the regulations will result in practical difficulty or unnecessary hardship, and the relief granted will not be contrary to the public interest, will not create a hazard to air navigation, will do substantial justice and will be in accordance with this article. No application for variance may be considered by the Little Rock Municipal Airport Commission unless a copy of the application has been furnished to the airport manager for advice as to the aeronautical effects of the variance. If the airport manager does not respond to the application for a variance within fifteen (15) days after receipt, the Little Rock Municipal Airport Commission may act on its own to grant or deny the application.

(7) *Obstruction marking and lighting.* Any permit or variance granted may, if such action is deemed advisable to effectuate the purposes of this article and be reasonable in the circumstances, be so conditioned as to require the owner of the structure or tree in question to install, operate and maintain, at the owner's expense, such markings and lights as may be necessary. If deemed proper by the Little Rock Municipal Airport Commission, this condition may be modified to require the owner to permit the City of Little Rock, at its own expense, to install, operate and maintain the necessary markings and lights.

(8) *Notice of hearing of application for permits and variances; introduction of evidence.* In all cases of applications for permits and variances as provided for in this section a public notice shall be published in the manner prescribed by law for publication of legal notices, of a public hearing upon the application in question; a public hearing shall hearing shall be held at which any person having an interest in the proceedings shall have an opportunity to offer evidence for or in opposition to the application in question; and written findings of fact and conclusions of law shall be made by the Little Rock Municipal Airport Commission, based upon the evidence offered at the public hearing.
(Ord. No. 18,343, § VII, 9-5-00)

State law reference—Permits and variences, A.C.A. § 14-363-206

Sec. 7-58. Enforcement.

It shall be the duty of the Little Rock Municipal Airport Commission to administer and enforce the regulations prescribed herein. Applications for permits and variances shall be made to the airport manager upon a form published for that purpose. Applications required by this article to be submitted to the airport manager shall be promptly considered and granted or denied.
(Ord. No. 18,343, § VIII, 9-5-00)

Sec. 7-59. Little Rock Board of Adjustment.

(1) The Little Rock Board of Adjustment shall have and exercise the following powers: to hear and decide appeals from any order, requirement, decision or determination made by the Little Rock Municipal Airport Commission in the enforcement of this article.

(2) The Little Rock Board of Adjustment shall adopt rules governing the discharge of its duty in harmony with the provisions of this article. Meetings of the Little Rock Board of Adjustment shall be public. The Little Rock Board of Adjustment shall keep minutes of its proceedings showing the vote of each member upon each question or, if absent or failing to vote, indicating such fact, and shall keep records of its examinations and other official actions, all of which shall immediately be filed in the office of the city clerk and on due cause shown.

(3) The Little Rock Board of Adjustment shall make written findings of facts and conclusions of law, giving the facts upon which it acted and its legal conclusions from such facts in reversing, affirming or modifying any order, requirement, decision or determination which comes before it under the provisions of this article.

(4) The concurring vote of a majority of the members of the Little Rock Board of Adjustment shall be sufficient to reverse any order, requirement, decision or determination of the Little Rock

Municipal Airport Commission or decide in favor of the applicant on any matter upon which it is required to pass under this article.
(Ord. No. 18,343, § IX, 9-5-00)

Sec. 7-60. Appeals.

(1) Any person aggrieved, or any taxpayer affected, by any decision of the Little Rock Municipal Airport Commission made in the administration of this article, may appeal to the Little Rock Board of Adjustment.

(2) All appeals hereunder must be taken within a reasonable time as provided by the rules of the Little Rock Board of Adjustment, by filing with the Little Rock Municipal Airport Commission a notice of appeal specifying the grounds thereof. The Little Rock Municipal Airport Commission shall forthwith transmit to the Little Rock Board of Adjustment all the papers constituting the record upon which the action appealed from was taken.

(3) An appeal shall stay all proceedings in furtherance of the action appealed unless the Little Rock Municipal Airport Commission certifies to the Little Rock Board of Adjustment, after the notice of appeal has been filed with it, that by reason of the facts stated in the certificate, a stay would in the opinion of the Little Rock Municipal Airport Commission cause imminent peril to life or property. In such case, proceedings shall not be stayed except by order of the Little Rock Board of Adjustment on notice to the Little Rock Municipal Airport Commission and on due cause shown.

(4) The Little Rock Board of Adjustment shall fix a reasonable time for hearing appeals, give public notice and due notice to the parties in the interest, and decide the same within a reasonable time. Upon the hearing, any party may appear in person or by agent or attorney.

(5) The Little Rock Board of Adjustment may, in conformity with the provisions of this article, reverse or affirm, in whole or in part, or modify the order, requirement, decision or determination appealed from and may make such order, decision, requirement, decision or determination as may be appropriate under the circumstances.
(Ord. No. 18,343, § X, 9-5-00)

Sec. 7-61. Judicial review.

Any person aggrieved, or any taxpayer affected, by any decision of the Little Rock Board of Adjustment may, within thirty (30) days thereof, appeal therefrom to the Circuit Court of Pulaski County, as provided in Section 6 of the "Airport Enabling Act", Act 116, Acts of Arkansas, 1941. Appeals from the Circuit Court shall be in accordance with statutes governing such appeals in force and effect at the time an appeal is taken.
(Ord. No. 18,343, § XI, 9-5-00)

Sec. 7-62. Penalties.

Each violation of this article, or of any regulation, order or ruling promulgated hereunder, shall constitute a misdemeanor and be punishable by a fine of not more than five hundred dollars ($500.00), or imprisonment for not more than one hundred dollars (180) days, or both; and each day a violation continues to exist shall constitute a separate offense. In addition, the Little Rock Municipal Airport Commission may institute in any court of competent jurisdiction, an appropriate action or proceeding to prevent, restrain, correct or abate any violation of the regulations of this article, or any order or ruling made in connection with its administration or enforcement, and the court shall adjudge then to the plaintiff such relief, by way of injunction (which may be mandatory) or otherwise, as may be proper under all the facts and circumstances of the case, in order fully to carry out and effectuate the purpose of this article and the orders and rulings made pursuant to the authority herein given.
(Ord. No. 18,343, § XII, 9-5-00)

State law reference—Authority to provide for fine and imprisonment for violation of airport zoning ordinances, A.S.A. § 14-363-203.

Sec. 7-63. Conflicting regulations.

Where there exists a conflict between any of the regulations or limitations prescribed in this article and any other regulations applicable to the same area, whether the conflict be with respect to the height of structures or trees, and the use of land, or any other matter, the more stringent limitation or requirement shall govern and prevail.
(Ord. No. 18,343, § XIII, 9-5-00)

Secs. 7-64—7-120. Reserved.

ARTICLE IV. OPERATION OF COMMERCIAL GROUND TRANSPORTATION AT LITTLE ROCK REGIONAL AIRPORT*

Sec. 7-121. Statement of policy and purpose.

(a) The board of directors finds that, in order to retire existing debts incurred by the city or for its benefit, in the construction and improvement of the airport and related facilities; pay for airport equipment; protect the public; preserve order; provide for public health, safety and welfare; and enhance the welfare and operational capabilities

*__Editor's note__—Ordinance No. 15,601, § 1, adopted Dec. 8, 1988, amended the Code by adding provisions designated by the editor as Ch. 7, Art. IV, §§ 7-121—7-132.

of the airport, it is necessary to fix reasonable and uniform charges, fees and regulations for those persons who do not have leases or concession contracts with the city or the commission to operate commercial vehicles on the airport, but who desire to obtain and exercise the privilege of commercially transporting goods, commodities, things or services, including, without limitation, the transportation of persons to and from the airport.

(b) In establishing and fixing these charges, fees and regulations, the city gives due regard to the airport properties and improvements used and the expenses of operating the airport and regulating commercial operations on the airport by off-airport businesses.

(c) The city finds that the charges and fees established and fixed herein are for the use of the airport, including improvements, facilities and roads related thereto, and are needed to help defray the costs of administration, operation, maintenance and improvement of said properties.
(Ord. No. 15,601, § 1, 12-8-88)

Sec. 7-122. Definitions and construction.

(a) *Definitions.* Unless specifically defined otherwise in this article, or unless a different meaning is apparent from the context, the terms used in this article shall be defined as follows:

(1) *Airport* shall mean and include the Little Rock Regional Airport which is an airport managed, maintained, operated and controlled by the commission for the benefit of the city, its agents, agencies, and/or employees, together with all properties, real or personal, located at, used therefor and relating thereto.

(2) *Airport trip* shall mean a single operation of a commercial vehicle traveling to a public area at the airport for commercial purposes of an off-airport business.

(3) *Cargo/freight forwarding business* shall mean any off-airport business which carries cargo or freight to or from the airport.

(4) *City* shall mean the City of Little Rock, Arkansas, a municipal corporation within the State of Arkansas.

(5) *Commercial vehicle* shall mean any self-propelled, wheeled, or tracked vehicle or trailer hitched onto a motor vehicle used for the transportation and/or convenience of persons or goods to, from or on the airport, or for the service and maintenance of equipment or property, by an off-airport business.

(6) *Commission* shall mean the Little Rock Municipal Airport Commission, an agency of the City of Little Rock established pursuant to the city's ordinances and laws of the State of Arkansas.

(7) *Manager* shall mean the chief administrative officer of the management of the airport.

(8) *License* shall mean (1) the privilege authorized by this article granted to operate a commercial vehicle in public areas at the airport; and (2) the certificate or document representing the privilege stated.

(9) *Licensee* shall mean a person licensed to operate under this article.

(10) *Management* shall mean those employees of the commission charged with day-to-day operation and maintenance of the airport.

(11) *Off-airport business* shall mean any commercial business, firm, corporation, partnership, sole proprietorship, person or other entity not located on the airport premises which uses airport facilities. The defined term shall specifically be limited to: (1) hotels, motels, rental car, and parking businesses; (2) businesses which have tenant facilities at the airport, but also operate an off-airport business as defined herein; and (3) all persons who act as representatives of such businesses during operation of commercial vehicles in public areas at the airport. The defined term shall specifically exclude taxicab and limousine companies whose operation at the airport is regulated by ordinance. The final decision regarding the categorization of a particular off-airport business shall be made by the management.

(12) *Ordinances* shall mean the Revised Ordinances of the City of Little Rock.

(13) *Permit* shall mean the certificate or document representing the privilege authorized by this article for a particular commercial vehicle to be operated in public areas at the airport.

(14) *Person* shall mean any individual, firm, partnership, corporation, company, association, joint stock association, group or any trustee, receiver, agency or similar representative thereof.

(15) *Public areas* shall mean the access roads to the airport terminal building and the departure roads therefrom, together with all rights-of-way and facilities incident thereto which are used by the general public. All other areas are to be considered operational or restricted areas with access regulated by the commission.

(16) *Representative* shall mean, without limitation, employees, agents, directors and officers.

(17) *Tenant facilities* shall mean those facilities directly leased from the commission or those facilities which are otherwise leased or subleased pursuant to the prior written consent of commission.

(b) *Construction.* Throughout this article, the singular shall include the plural and vice versa; the word "all" means "any and all"; the word "any" means "any and all"; the word "including" means "including without limitation"; the word "he" or any other masculine pronoun includes any individual regardless of sex.
(Ord. No. 15,601, § 1, 12-8-88)

Sec. 7-123. License and vehicle permit required.

(a) *License.* All persons who own commercial vehicles which operate in public areas at the airport shall obtain a license from the management for such operation. The operation of a commercial vehicle in public areas at the airport without a license is prohibited and is a violation of this article.

(b) *Vehicle permit.* In addition to the license, all persons who own commercial vehicles shall obtain a permit for each vehicle operated in public areas at the airport. An airport decal shall be provided by the management to the owner of the commercial vehicle after determination that said owner is licensed hereunder and upon issuance of a permit. The airport decal shall be displayed in either the front or rear windshield on the driver's side of the permitted commercial vehicle for which the airport decal was issued. Operation of a commercial vehicle in public areas at the airport without the airport decal properly affixed shall be a violation of this article, provided, however, vehicles licensed by the ICC and regulated taxicabs and limousines shall be exempt from the permit requirement.
(Ord. No. 15,601, § 1, 12-8-88)

Sec. 7-124. General regulations.

(a) *Restricted operational activities.* It shall be unlawful for persons operating commercial vehicles licensed hereunder to:

(1) Operate or drive a commercial vehicle in public areas at the airport, unless such person has a current and valid driver's license issued by the State of Arkansas;

(2) Cruise the premises of the airport for the purposes of soliciting business or fares;

(3) Make repairs to a vehicle, unless such repairs are for an emergency, i.e., flat tire or dead battery;

(4) Park to load or unload passengers in any areas other than those designated by the manager;

(5) Fail to obey promptly any lawful command by any city police officer, commission or management representative, or other duly authorized representative of the commission or city;

(6) Fail to provide identification, upon request, by any duly authorized representative of the city, commission or management;

(7) Fail to provide for inspection by any duly authorized representative of the city, commission or management, of any books, records, trip logs or other documentation which may be required to be kept by an off-airport business operating under this article;

(8) Litter;

(9) Solicit or attempt to solicit, persuade or urge, by words, gestures or otherwise, any person or persons to use or hire a vehicle or accept transportation in a commercial vehicle;

(10) Violate any of the laws of the State of Arkansas, the United States, the Ordinances, or any laws, rules and/or regulations of any governmental body exercising jurisdiction over a particular type of off-airport business.

(b) *Designated areas.* The manager may designate certain areas which shall be reserved for temporary parking of commercial vehicles operating hereunder. Upon designation of such areas, the manager shall provide written notice to be mailed or otherwise delivered to licensees. Any licensee or representative of a licensee who, without authorization, operates a commercial vehicle in any area not designated by the manager shall be in violation of this article, and said unauthorized operation shall constitute grounds for revocation and/or nonrenewal of the licensee's license. Use of any designated areas hereunder shall be nonexclusive and on a first-come-first-serve basis.

(c) *Compliance with laws.* All persons operating commercial vehicles hereunder must be properly licensed by the State of Arkansas and city for the type of business in which they are engaged, and all commercial vehicles must be operated in compliance with all other governmental laws, ordinances, rules and regulations relating to such business. Furthermore, all commercial vehicles operating hereunder must bear a valid safety inspection decal as required by the State of Arkansas.
(Ord. No. 15,601, § 1, 12-8-88)

Sec. 7-125. Exemptions.

The following persons shall be specifically exempt from compliance with this article, including the license fee requirements herein set forth:

(1) Local, state or federal governmental entities, agencies, departments or public trusts and persons operating vehicles owned or operated for said governmental entities.

(2) Persons operating taxicabs, limousines or other vehicles whose operation is regulated by ordinance.

(3) Persons owning and/or operating commercial vehicles that forward cargo or freight and utilize only the cargo buildings and do not serve the terminal building at the airport.

(Ord. No. 15,601, § 1, 12-8-88)

Cross reference—Airport limousine service, § 34-101 et seq.

Sec. 7-126. Classifications of off-airport businesses.

For the purposes of this chapter, Off-Airport Businesses shall be divided into the following classes:

Class A: Nontenant rental car businesses and off-airport businesses operating parking facilities for the air travelling public.

Class B: Off-airport businesses, not including Class A and Class C business, such as hotels and motels that transport persons to and from the airport.

Class C: Off-airport businesses operating parking facilities for the air travelling public.

(Ord. No. 15,601, § 1, 12-8-88; Ord. No. 16,239, §§ 1, 2, 7-7-92)

Sec. 7-127. Rates, fees and charges, amounts.

Fees for licenses and permits are established as hereinafter set forth. All funds received under this article shall be paid into the airport revenue fund, to be used only for airport purposes.

(1) *Licenses.* Class A, Class B, and Class C off-airport businesses shall apply to the manager for original and renewal licenses to operate at the airport. All applications shall be accompanied by a payment of fifteen dollars ($15.00) as a nonrefundable application fee.

(2) *Permit fees.*

a. *Class A.* Each business operating a nontenant rental car business shall pay a fee based on the following calculation: One dollar fifty cents

($1.50) for each vehicle rented by the nontenant rental car business permitted under this article to an airport patron, multiplied by the number of complete days such patron rents a vehicle from the nontenant rental car business. A "complete day" consists of a period of twenty-four (24) consecutive hours, beginning at the time such vehicle is rented to the airport patron. With respect to periods of rental that either do not equal a complete day or that exceed a complete day yet do not equal a successive complete day, the nontenant rental car business shall pay a fee of forty cents ($0.40) per hour or partial hour, not to exceed one dollar fifty cents ($1.50) in any one (1) complete day.

b. *Class B.* Each Class B off-airport business shall pay fifteen dollars ($15.00) per month for each vehicle it operates at the airport; provided that, no Class B off-airport business shall be required to pay in excess of five hundred dollars ($500.00) between January 1 and December 31 of any year. Payment of the fifteen-dollar ($15.00) license fee required by this article shall entitle a Class B license applicant to one permit and airport decal for one vehicle which will entitle that vehicle to operate at the airport for one month. Additional permits may be obtained for commercial vehicles owned by the licensed off-airport businesses at a cost of fifteen dollars ($15.00) per vehicle, per month. Upon payment of the vehicle permit fee, the management shall deliver to the licensee an airport decal to be used as required by this article.

c. *Class C.* Each class C business shall pay a fee based upon the following calculation: Six and one-half (6.5) percent of the receipts for occupied parking spaces. A space is "occupied" if the parking space generates any income for the class C business for that day.

This permit fee shall be payable monthly and such payment shall entitle a licensee to a permit which will authorize it to shuttle the parking facility's customers to and from the airport for one (1) month. The monthly fee shall be transmitted with a copy of the contemporaneous monthly sales tax report submitted by the business to the Arkansas Department of Finance and Administration.

Effective January 1, 2012, each class C business shall pay a fee based upon the following calculation: Seven and one-half (7.5) percent of the receipts for occupied parking spaces. A space is "occupied" if the parking space generates any income for the class C business for that day.

This permit fee shall be payable monthly and such payment shall entitle a licensee to a permit which will authorize it to shuttle the parking facility's customers to and from the airport for one (1) month. The monthly fee shall be transmitted with a copy of the contemporaneous monthly sales tax report submitted by the business to the Arkansas Department of Finance and Administration.

Effective January 1, 2014, each class C business shall pay a fee based upon the following calculation: Eight (8) percent of the receipts for occupied parking spaces. A space is "occupied" if the parking space generates any income for the class C business for that day.

This permit fee shall be payable monthly and such payment shall entitle a licensee to a permit which will authorize it to shuttle the parking facility's customers to and from the airport for one (1) month. The monthly fee shall be transmitted with a copy of the contemporaneous monthly sales tax report submitted by the business to the Arkansas Department of Finance and Administration.

(3) *Rates subject to review.* The commission will review the rate structure established hereunder in the third quarter of each calendar year. The commission is hereby empowered to recommend modifications of such rates as shall be necessary in the commission's opinion to fulfill the purposes of this article. Any rate recommended by the commission will be subject to review and approval by the board of directors within thirty (30) days after the rate is recommended. The commission will give written notification to the board of directors of its decision to recommend a modification of such rates.

(Ord. No. 15,601, § 1, 12-8-88; Ord. No. 16,239, §§ 3, 4, 7-7-92; Ord. No. 16,663, § 1, 5-17-94; Ord. No. 20,221, §§ 1—3, 2-16-10)

Sec. 7-128. License and vehicle permit applications and renewals; insurance requirement.

(a) *License application.* Application for a license must be in writing, verified by the applicant or his duly authorized agent and filed with the manager on an application form approved by the commission. The determination of the off-airport business classification for any applicant shall be made by the manager based upon all available information, including, without limitation, the completed license application.

(b) *License renewal.* Between January 1 and January 31 of each year, a licensee may renew its license by submitting any required reports and by payment of the required fees, unless the manager notifies said licensee thirty (30) days prior to the expiration date of the current certificate of the manager's intention to recommend to the commission denial of renewal based upon the manager's determination of supported facts that:

(1) The licensee is not in compliance with the license and applicable provisions of this article, or other law; or

(2) The licensee is not fit, willing, or able to operate its commercial vehicles in accordance with the provisions of this article or other law.

(c) *Permit application and renewal.* Permits shall only be issued to licensees and may be obtained at the time of the license application or at any other time prior to operation of the commercial vehicle in public areas at the airport. Permits shall be renewed at the same time and in the same manner as renewals of licenses hereunder; provided, however, commercial vehicles permitted hereunder must meet the minimum standards for airport commercial vehicles, as promulgated by the commission.

(d) *Insurance.* Licenses and permits shall not be issued or renewed unless the applicant for a license ("applicant") or licensee maintains insurance in a form approved by the Arkansas Insurance Department, covering all owned, hired and nonowned vehicles operated on the airport, as follows:

(1) a. Comprehensive public liability insurance in the amounts of not less than two hundred fifty thousand dollars ($250,000) per person; bodily injury not less than five hundred thousand dollars ($500,000) per occurrence; and property damage not less than one hundred thousand dollars ($100,000) per occurrence; or a combined single limit policy in an amount of not less than five hundred thousand dollars ($500,000);

b. Automobile liability insurance in the amounts of not less than two hundred fifty thousand dollars ($250,000) per person; bodily injury not less than five hundred thousand dollars ($500,000) per occurrence; and property damage not less than one hundred thousand dollars ($100,000) per occurrence; or a com-

bined single limit policy in an amount of not less than five hundred thousand dollars ($500,000);

c. The amounts of insurance required may be established annually by the commission.

(2) An applicant or licensee shall file with the manager a certificate of insurance issued by the insurer which evidences the required coverage. The certificate of insurance and insurance policies shall provide that they may not be cancelled or amended without ten (10) days prior written notice to the manager and shall be in a form as approved by the Arkansas Insurance Department.

(3) If within ten (10) days following notification to the manager that the insurance required by this section has been cancelled or amended, the licensee shall fail to provide another policy of the like kind, then the license and all permits issued hereunder shall be automatically suspended.

(4) It shall be the duty of the licensee promptly to notify the manager of any modification, expiration, termination or renewal of insurance policies required hereunder by submission of a new certificate of insurance.

(5) Licensee shall pay any judgment for loss or damage to any party resulting from the operation or use of a commercial vehicle at the airport within ninety (90) days after the judgment is final.

(6) An applicant or licensee shall submit proof to the manager of having complied with all applicable financial responsibility laws of the State of Arkansas prior to receiving an original or renewal license.

(Ord. No. 15,601, § 1, 12-8-88)

Sec. 7-129. Administrative enforcement.

(a) [*Definitions.*] For the purpose of this section, the term "revocation" includes denial of licenses and renewals thereof and, to the extent applicable, denial of permits and renewals thereof. For purposes of this section the term "suspend" means the total or partial restriction of the privilege to operate a commercial vehicle in public areas of the airport or, in appropriate cases, the restriction of privileges granted under a license under this article.

(b) *Warnings, suspension and revocation.*

(1) Whenever the manager reasonably determines that a driver or a licensee has violated any rule, regulation or ordinance of this city or [of the] commission, the manager in his discretion may permanently or temporarily suspend the privileges of any driver of a licensee and/or immediately issue a warning to the licensee that a violation has occurred. The warning shall inform the licensee of the nature of the violation and inform the licensee that further enforcement action will occur if the violation is repeatedly not corrected.

(2) Whenever a licensee defaults on the payment of any fees and charges required by this article, or whenever the manager upon reasonable investigation, which will include consultation with the licensee or its representative, finds serious or repeated violation(s) of any state, municipal, or commission law, rule, regulation or ordinance, the manager may suspend a license for a period of up to ten (10) days. The manager shall notify in writing the licensee or its authorized representative of the suspension by either hand delivery or certified mail. The suspension shall become effective upon the sending or mailing of the notice of suspension.

(3) If after receiving a notice of suspension, a licensee fails to pay any fee or charge required by this article, or if a licensee or its employees repeatedly violates the rules, regulations or ordinances of the city or commission, or if a violation of any rule, regulation or ordinance, in the opinion of the manager, results in a threat to the public health, safety or welfare the manager may take the following actions:

a. Immediately suspend the privileges of any driver or a licensee pending further investigation; or

b. Upon reasonable investigation, including consultation with the licensee or its representative, give written notice of revocation of the license by either hand delivery or certified mail.

(c) *Effective date.* Revocation shall be effective immediately upon the sending of the notice of revocation.

(d) *Hearing on revocation.* In the event of a suspension or revocation, a licensee charged with or alleged to be in violation of any rule, regulation or ordinance of the city or commission, may, within ten (10) days after receipt of the notice of suspension or revocation, file with the manager a signed, written demand for a hearing.

(e) *Time of hearing.*

(1) If a hearing is properly demanded, the manager shall, as soon as practicable after the demand is filed, issue a notice of hearing which shall be sent by certified mail to the affected licensee at its last known address, and which shall state:

a. The time and place of hearing;
b. A reference to the particular rule, regulations or ordinance involved; and
c. A plain or concise statement of the facts upon which suspension or revocation is based.

(2) The hearing shall be held before a hearing officer designated by the manager.

(3) The hearing shall be held within thirty (30) days after written demand therefor is filed.

(f) *Form of hearing.*

(1) At the hearing the affected licensee may be represented by counsel or anyone of its choosing.

(2) Testimony shall be taken upon oath or affirmation of the witnesses from whom received. The hearing officer shall administer oaths or affirmations to witnesses.

(3) A verbatim oral, written or mechanical record shall be made of the entire proceedings, and the record shall include any written statement on behalf of the affected licensee, all evidence received or considered, stipulations, and any final ruling by the hearing officer.

(4) A copy of the findings of fact and the final ruling of the hearing officer shall forthwith be sent by certified mail to the licensee at its last known address.

(g) *Appeal from hearing to authority.*

(1) An aggrieved licensee may seek review of the ruling of the hearing officer by filing with the manager, within fifteen (15) days after receipt of the copy of the ruling, a signed written request for review by the commission.

(2) After requesting review, the aggrieved licensee shall submit to the commission a transcript of the record before the hearing officer.

(3) A licensee requesting review shall bear the cost of transcribing the record. If, however, the commission reverses or remands the hearing officer's order, the commission shall reimburse the licensee for its cost of transcribing the record.

(4) Any review of the final ruling of the hearing officer shall be confined to the factual record made at the hearing. The review panel shall consist of not less than a majority of the commission members. The review panel shall not substitute its judgment for that of the hearing officer on any issue of fact and shall reverse or remand an order only if it finds that the order is not supported by reliable probative and substantial evidence in the whole record, or that the order is legally incorrect. The decision of a majority of the review panel shall rule on the appeal. (Ord. No. 15,601, § 1, 12-8-88)

Sec. 7-130. Payment.

(a) *Class A.* Payment of fees required hereunder from Class A off-airport businesses shall be made in full to the commission immediately prior to the time of issuance of licenses or permits and at the time of each airport trip. Actual payment

shall constitute a condition to validity of any such license or permit or airport trip.

(b) *Class B:* Payment of fees required hereunder from Class B off-airport businesses shall be made in full to the commission immediately prior to the time of issuance of licenses or permits and either monthly or annually thereafter. Actual payment shall constitute a condition to validity of any such license or permit or airport trip. (Ord. No. 15,601, § 1, 12-8-88)

Sec. 7-131. Violation an offense.

It is hereby declared to be unlawful and a public offense for any person to commit a violation of any provision of this article. (Ord. No. 15,601, § 1, 12-8-88)

Sec. 7-132. Penalty.

Any person violating or failing to comply with any of the provisions of this article shall, upon conviction thereof, be subject to a fine of not more than five hundred dollars ($500.00). Each day, or part of a day, in which such violation is committed shall constitute a separate offense. (Ord. No. 15,601, § 1, 12-8-88)

Chapter 8

BUILDINGS AND BUILDING REGULATIONS*

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***Cross references—**Adams Field airport zoning, § 7-51 et seq.; fire prevention and protection, ch. 12; flood damage prevention, ch. 13; landscaping and tree protection, ch. 15; nuisances, ch. 20; planning and development, ch. 23; signs, ch. 27; stormwater management and drainage, ch. 29; street names and property numbers, § 30-301 et seq.; subdivisions, ch. 31; water, sewers and sewage disposal, ch. 35; zoning, ch. 36.

State law references—Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.; authority to enact building regulations, A.C.A. § 14-56-201 et seq.

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ARTICLE I. IN GENERAL

Sec. 8-1. Definition of deteriorating area, substandard structure, etc.

(a) The purpose of this section is to provide for the health, safety, and general welfare and to conserve public investment in the infrastructure of developed areas by establishing a mechanism for timely detection of neighborhood deterioration and a basis for planning and utilizing measures available under federal, state or local laws and regulations to prevent, eliminate, or abate conditions which cause or advance deterioration in neighborhoods.

(b) In this section:

(1) *Deteriorating area* means any United States Census block group within the city in which the median value of owner-occupied housing units as reported in any decennial census is a smaller percentage of the median value of such residences for the city as a whole than it was in the last previous or the penultimate previous decennial census, and in which twenty-five (25) percent or more of residential dwellings are deteriorating structures as determined and certified by the city employee designated by the city manager.

(2) *Deteriorated area* means any United States Census block group within the city in which twenty-five (25) percent or more of residential dwellings are substandard structures as determined and certified by the city employee designated by the city manager.

(3) *Deteriorating structure* means a structure in which need of maintenance is evident, but in which no condition or combination of conditions constitutes a violation of the minimum standards established by the city's housing code.

(4) *Substandard structure* is a structure in which the condition of one (1) or more component or system does not meet minimum standards established by the city's housing code.

(Ord. No. 15,503, §§ 1—5, 6-21-88; Ord. No. 15,988, § 4, 12-18-90)

Sec. 8-2. Codes adopted.

(a) The following publications are adopted by reference:

(1) The 2021 Arkansas Fire Prevention Code, Volume 1 (Fire) with the most current Arkansas Amendments and 2021 Revisions and Appendices (B), (C), (D), (E), (F), (G), (H), (I), (J), (K), (L), (M), (N), (O) based on the 2021 International Fire Code.

(2) The 2021 Arkansas Fire Prevention Code, Volume II (Building), with the most current Arkansas Amendments and 2021 Revisions and Appendices (C), (E), and (Q), based on the 2021 International Building Code.

(3) The 2021 Arkansas Fire Prevention Code, Volume III (Residential) with the most current Arkansas Amendments and 2021 Revisions and Appendices (AQ) based on the 2021 International Residential Code.

(4) a. The "2018 Arkansas Plumbing Code" with 2018 Revisions and Appendixes B, C, D, E and F.

b. Notwithstanding the provisions of subsection a. above, the city, consistent with other provisions of Arkansas state law, shall set the job qualifications for its employees. No job qualifications contained in the 2018 Arkansas Plumbing Code are adopted in any form whatsoever.

(5) a. The "2018 Arkansas Fuel Gas Code" with 2018 Revisions and Appendixes A, B, C and D.

b. No job qualifications contained in the 2018 Arkansas Fuel Code are adopted in any form whatsoever.

(6) The 2021 International Mechanical Code with Appendix A.

(7) The 2011 Arkansas Energy Code (Based on the 2009 International Energy Conservation Code, Chapter 5 or ASHRAE 90.1 2007, with Arkansas adopted amendments), to be replaced on January 1, 2015 with the 2014 Arkansas Energy Code (Based on the 2009 International Energy Conservation Code, Chapter 5 or ASHRAE 90.1 2007 with the Arkansas Energy Code for New Building Construction Supplements and Amendments, 2014).

(8) The 2020 National Electrical Code.

(9) The International Existing Building Code and Appendices (A), (B) and (C).

(10) The 2021 International Property Maintenance Code with Appendix A.

(11) The 2021 International Swimming Pool and Spa Code with Appendix A.

(b) Notwithstanding the provisions of subsection (a) above, the city, consistent with other provisions of state law, shall set the job qualifications for its employees. No job qualifications contained in any of the above codes are adopted in any form whatsoever.
(Ord. No. 17,075, § 1, 1-2-96; Ord. No. 17,076, § 1, 1-2-96; Ord. No. 17,777, § 1, 7-7-98; Ord. No. 19,155, § 1, 8-2-04; Ord. No. 19,638, § 1, 11-21-06; Ord. No. 19,653, § 1, 12-5-06; Ord. No. 20,198, § 1, 12-15-09; Ord. No. 20,345, § 1, 10-19-10; Ord. No. 20,570, § 1, 4-17-12; Ord. No. 20,787, § 1, 9-17-13; Ord. No. 20,971, § 1, 12-16-14; Ord. No. 21,267, § 1, 7-19-16; Ord. No. 21,397, § 1, 5-2-17; Ord. No. 21,649, § 1, 12-3-18; Ord. No. 22,198, § 1, 12-6-22; Ord. No. 22,199, § 1, 12-6-22; Ord. No. 22,200, § 1, 12-6-22; Ord. No. 22,201, § 1, 12-6-22; Ord. No. 22,202, § 1, 12-6-22; Ord. No. 22,203, § 1, 12-6-22; Ord. No. 22,276, § 1, 7-11-23; Ord. No. 22,277, § 1, 7-11-23; Ord. No. 22,278, § 1, 7-11-23; Ord. No. 22,279, § 1, 7-11-23; Ord. No. 22,638, § 1, 7-15-25)

Editor's note—Ord. Nos. 17,075 and 17,076, adopted Jan. 2, 1996, amended the Code by adding new subsections 8-474(b) and 8-28(d). In order to keep related materials together, the editor has redesignated said provisions as a new § 8-2.

Sec. 8-3. Residential code adopted.

The residential code for the city is adopted by reference in subsection 8-2(a)(3).
(Ord. No. 18,554, § 1, 9-4-01; Ord. No. 20,971, § 2, 12-16-14)

Sec. 8-4. Hours of construction.

(1) *[Construction allowed.]* Commercial and residential exterior and interior construction work including erection, excavation, demolition, or repair of any building and its components shall be allowed between the hours of 6:00 a.m. to 6:00 p.m., Monday through Friday; 7:00 a.m. to 6:00 p.m. on Saturday; and 1:00 p.m. to 6:00 p.m. on Sunday. Additional interior construction work shall be allowed to be performed between the hours of 6:00 p.m. to 10:00 p.m., Monday through Saturday provided that all exterior openings are completely covered. These construction hours shall be adhered to except in the case of urgent emergency in the interest of public health and safety and then only with written permission from the building codes division, which permission may be granted for a period not to exceed thirty (30) days while the emergency continues. If an emergency arises when permission is not obtainable, the necessary work may be done and reported to the building codes division at the earliest date that the office is open after the emergency arises and may grant permission retroactively to the beginning of the emergency. If the building codes division should determine that the public health and safety will not be impaired by the erection, demolition, excavation, alteration or repair of any building within the designated hours and if they shall further determine that loss of inconvenience would result to any party in interest, they may grant permission for such work to be done within such hours upon application being made at the time permit for the work is obtained. The building codes division may stop construction work at anytime when the work disrupts or causes excessive disruptions of adjoining businesses or residential occupancies or is found to be detrimental to the health, safety and welfare of citizens.

(2) *Working hours permit.* In cases where construction-related work can only be performed other than the hours listed in subsections 8-4(1) and 18-52(b)(12)1., a temporary work permit may be issued by the building codes division. Applicant must obtain permit prior to commencement of work and all referenced job construction permits must be obtained. If approved the permit may be issued from one (1) to seven (7) days. Applicant must take all precautions to avoid disturbing other adjacent occupancies. The building codes division reserves the right to revoke any temporary work permit if work disrupts or causes excessive disruptions of adjoining businesses or residential occupancies or is found to be detrimental to the health, safety and welfare of citizens.
(Ord. No. 18,867, § 1, 5-20-03)

Secs. 8-5—8-25. Reserved.

ARTICLE II. BUILDING CODE

DIVISION 1. GENERALLY

Sec. 8-26. Short title.

This article may be cited as the "building code."
(Ord. No. 14,119, §§ 1, 4, 9-15-81)

Sec. 8-27. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 8-28. Building and fire codes adopted.

(a) The building and fire codes for the city are adopted by reference in subsection 8-2(a).

(b) In the event of a conflict between the fire code adopted in subsection 8-2(a)(1) and the building code adopted in subsection 8-2(a)(2), the most stringent provisions shall govern.
(Ord. No. 14,119, §§ 8, 9, 19, 9-15-81; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16, 414, § 1, 5-4-93; Ord. No. 17,730, § 1, 5-19-98; Ord. No. 18,706, § 1, 6-18-02; Ord. No. 19,332, § 1, 6-21-05; Ord. No. 18,640, § 1, 11-21-06; Ord. No. 19,641, § 1, 11-21-06; Ord. No. 19,642, § 1, 11-21-06; Ord. No. 20,971, § 3, 12-16-14)

Sec. 8-29. Restrictions on enforcement officers and employees.

An officer or employee connected with administration or enforcement of this article, except one whose only connection is as a member of the board established by this article, shall not be financially interested in the furnishing of labor, material, or appliances for the construction, alteration, or maintenance of a building, or in the making of plans or of specifications therefor for any building project within the city unless he is the owner of such building. Such officer or employee shall not engage in any work which is inconsistent with his duties or with the interests of the city.
(Ord. No. 14,119, § 11, 9-15-81)

Sec. 8-30. Construction board of adjustments and appeals.

The construction board of adjustments and appeals is created to hear appeals of decisions and interpretations by a city building official, and to consider variances of the technical codes adopted or followed by the city. These technical codes include building codes, electrical codes, plumbing and mechanical codes for new and existing installations and structures.

(1) *Membership.* This board shall consist of seven (7) members with expertise in dealing with the various city codes. The members shall include a registered architect; a licensed building contractor; a registered electrical engineer; a licensed mechanical or plumbing contractor; a registered mechanical engineer; a licensed master electrical contractor; and, a registered structural engineer. No board member shall be permitted to sit in any case in which that member has a personal or financial interest in the matter under consideration.

(2) *Term of office.* Upon the expiration of the term of the initial board members, each member shall serve a term of four (4)

years, and may be reappointed for one (1) additional four-year term. The initial board shall draw lots with two (2) members to initially serve one-year terms; two (2) members to initially serve two-year terms; two (2) members to initially serve three-year terms; and one (1) member to initially serve a four-year term. The persons selected to serve a three- or four-year term may only be reappointed to serve one (1) additional four-year term.

(3) *Attendance and vacancies.* Members of the board shall be subject to the attendance policies established by the city board of directors. Vacancies shall be filled in accordance with city policies. Any person appointed to fill an unexpired term shall serve only until the end of that term, but can then be considered for reappointment.

(4) *Quorum.* A simple majority of the membership of the board shall constitute a quorum. In granting a variance to any city technical code, an affirmative vote by a majority of the members voting and present, but in any event at least three (3) votes, is required. To modify a decision of a building official shall require at least four (4) affirmative votes.

(5) *Secretary.* A city building official shall act as secretary of the board and shall make a detailed record of all proceedings which shall, at a minimum, set forth the reasons for a decision, the vote of each member, the absence of any member, and the failure of any member to vote.

(Ord. No. 17,779, § 1(A), 7-7-98)

Editor's note—Ord. No. 17,779, adopted July 7, 1998, amended § 8-30 in its entirety to eliminate the board of building code appeals and create a construction board of adjustments and appeals. Former § 8-30 from Ord. No. 14,119, § 19, adopted Sept. 15, 1981.

Sec. 8-30.1. Procedure for appeals.

(1) Any person entitled to appeal a decision of the building official shall file a written appeal with the board within thirty (30) calendar days of the date of a decision by the building official. Only the owner of a building, structure, or service system, or the duly authorized agent of such person, may appeal a decision of a city building official to the construction board of adjustment and appeals if one of the following conditions are claimed, in the written notice, to exist:

(a) The building official rejected or refused to approve the mode or manner of construction proposed to be followed or materials to be used in the installation or alteration of a building, structure or service system;

(b) The provisions of the adopted code do not apply to the specific case;

(c) There is an equally acceptable, or more desirable, form of installation that can be employed in the specific instance; or,

(d) The true intent and meaning of the code, or any of the regulations adopted pursuant to the code, has been misconstrued or incorrectly interpreted.

(2) The building official may limit the time for taking an appeal if the official believes that a building, structure, or service system is unsafe, unsanitary or dangerous. If the time for appeal of a decision is limited, the order of the building official shall state the time for appeal and shall give a reason why it is believed the building, structure or service system is unsafe, unsanitary or dangerous.

(Ord. No. 17,779, § 1(B), 7-7-98)

Sec. 8-30.2. Variances.

(a) The construction board of appeals, after a hearing upon an appeal, may grant a variance from the strict application of any provision of any technical code in a particular case when to do so would:

(1) Create a substantial hardship;

(2) Be contrary to the spirit and purpose of any technical code or the public interest;

(3) Ignore special conditions, or circumstances, peculiar to a particular

building, structure, or service system, which are not applicable to other similar structures;

(4) Grant the minimum possible variance that will allow the reasonable use of the building, structure, or service system; and

(5) Be in harmony with the general intent and purpose of city technical codes and, will not be detrimental to the public health, safety and welfare.

(b) In granting a variance, the board may prescribe a reasonable time limit within which to commence, or to complete, or both, the action for which the variance is sought. In addition, the board may prescribe additional conditions and safeguards.
(Ord. No. 17,779, § 2, 7-7-98)

Sec. 8-30.3. Rules and regulations.

The board is empowered to establish rules and regulations for its operation. Meetings of the board shall be held as needed, provided that:

(1) The board shall meet whenever such a meeting is called by the building official;

(2) The board shall meet within thirty (30) calendar days of the receipt of a notice of appeal.
(Ord. No. 17,779, § 3, 7-7-98)

Sec. 8-30.4. Decisions.

Decisions of the board shall be made without unreasonable delay and shall be recorded in a docket book maintained by the city building official. Each decision shall include some statement of reasons for the decision. If a decision of the board reverses or modifies a refusal, order or disallowance of the building official, or varies the application of any provision of a technical code, the building official shall immediately take action to comply with the board decision. A certified copy of the decision shall be mailed, or otherwise delivered, to the appellant; a copy shall also be posted in the office of the building official for two (2) weeks after being noted on the board docket.
(Ord. No. 17,779, § 4, 7-7-98)

Sec. 8-31. Building permits and permit fees.

(a) *[Applications.]* Applications to the department of public works for the issuance of a building permit for the construction of a new dwelling, from one (1) to four (4) units in design, intended principally for residential purposes, but excluding any unit to be a primary residence of the builder, shall include a copy of such applicant's certificate of registration issued by the secretary of state pursuant to the provisions of A.C.A. ch. 17, tit. 47 [A.C.A. § 17-47-101 et seq.], and a statement by such applicant that such certificate of registration is in full force and effect.

(b) *Special building permit fees:* All residential building, electrical, plumbing and mechanical fees in the Central High, Downtown, and Philander Smith Targeted Neighborhood Enhancement Areas shall be figured in accordance with this section for establishing fees. Final assessments of said fees shall be reduced by seventy-five (75) percent rounded off to the nearest dollar, but in no case shall a fee be assessed at less than the minimum cost as established in subsection(c)(I). Mixed occupancies with residential occupying more than seventy-five (75) percent of floor space shall be assessed at the residential fee rate. All other occupancies in the designated areas shall have fees assessed in accordance with section 8-31.

(c) *Fees.* The following are hereby established as permit fee schedules for building, electrical, plumbing, mechanical and other related work in the city.

(1) *Building permit fees, miscellaneous fees and general regulations.*

a. *Permit fees.* Permits are required for any work that exceeds five thousand dollars ($5,000.00), including material and labor, or that requires an inspection, except for residential fences less than seven (7) feet in height, residential roofs, painting, floor coverings and cosmetic changes, one-story detached accessory structure used as tool and storage sheds, playhouses, and similar

uses, provided the floor area does not exceed two hundred (200) square-feet, are excluded. Proper documentation, i.e., copy of contract or letter of affidavit from applicant, must be presented when obtaining a permit. If documentation is not present, or cannot be obtained, the latest building valuation data chart as published by the International Code Council will be used in determining permit fees. Fees on work requiring a building permit as set forth in the Building and Safety Codes adopted by the city shall be paid as required at the time of filing an application.

b. *Certificate of occupancy fees.*

1. Certificate of occupancy fee for a new commercial building or addition with an associated building permit - sixty-one and 80/100 dollars ($61.80).
2. Residential certificate of occupancy associated with a new single-family residence, new duplex, or new townhouse thirty and 90/100 dollars ($30.90).
3. Certificate of occupancy fee for existing buildings or change in in use only one hundred three dollars ($103.00).
4. Temporary or partial certificate of occupancy as set forth in subsection (c)(l)v.
5. Certificate of occupancy update - one hundred three dollars ($103.00).

c. *Minimum fee.* Minimum fee for any building permit, except as otherwise specified, shall be fifty-one and 50/100 dollars ($51.50).

d. *Commercial plan-checking fee.* When the valuation of the proposed construction exceeds five thousand dollars ($5,000.00) and a plan is required to be submitted in accordance with the Arkansas Fire Prevention Code, a plan-checking fee shall be paid to the building codes division at the time of submitting plans and specifications for checking. Said plan-checking fee shall be equal to one-half (½) of the building permit fee. Minimum fees shall fifty-six and 65/100 dollars ($56.65) for new construction (added square feet) repair, remodels and miscellaneous permits requiring plan review. Such plan-checking fee is in addition to the building permit fee and is non- refundable.

e. *Data processing fee.* The following is hereby established as the data processing fee schedule for building, electrical, plumbing, mechanical, zoning, civil, and other related work in the city. Collected fees shall be placed in a separate account and shall be used for the purpose of purchasing and maintaining data processing equipment, software and providing general training for planning and development staff, or as determined by the planning and development director. All purchases shall not be made without prior written approval from the planning and development director. The data processing fee is in addition to the permit charge and is non-refundable.

Classification of Work	
Residential or Commercial Permits	$25.75

Act 474 of 1999 surcharge. As required by Act 474 of 1999, a surcharge of fifty cents ($0.50) per each one thousand dollars ($1,000.00) of construction authorized on any non-residential construction permit issued by the city will be imposed to financially support the craft training education program, with a maximum surcharge to be one thousand dollars ($ 1,000.00).

f. Inspection fees for the moving of houses, HUD-certified manufacture homes, and modular buildings.

Moving structure off lot	$103.00
Moving structure on same lot	$ 51.50
Required inspection before move inside city	$ 51.50
Required inspection before move from city from Pulaski County of adjacent county	$ 51.50
Required inspection for move to city from outside adjacent counties, but in the state of Arkansas, or from out of state	$103.00

(plus $ 0.41 per mile round trip plus expenses)

g. *Demolition of structure.* Ten cents ($0.10) per square foot of floor area. Minimum fee of fifty-one dollars and 50/100 ($51.50). Demolition permits shall expire one (1) year from issuance date except in cases where structure is declared to be an imminent danger.

h. *Blasting fee.* In addition to insurance and bond as required in Ordinance No. 11,361 (February 18, 1 963), a permit fee of one hundred three dollars ($103.00) for the first day and fifty-one and 50/100 dollars ($51.50) for each additional day shall be charged.

i. *Parking lot fees.* A minimum routing fee of fifty-one dollars and 50/100 ($51.50) shall be charged and permit fees shall be assessed as set forth in subsection 8-31 (c)(1)a.

j. *Construction shack or field office.* Fee of fifty-one and 50/100 dollars ($51.50) with site plan. Fee waived if included with permit applications.

k. *Tent permit.* Fee of fifty-one and 50/100 dollars ($51.50) upon proper completion of fire department approval form.

l. *Swimming pools.* Fees assessed per subsection 8-31(c)(l)a., but minimum fee shall be fee of fifty-one and 50/100 dollars ($51.50).

m. *Fuel tank or pump.* Each (new or replacement) will be fifty-one and 50/100 dollars ($51.50).

n. *Miscellaneous permit fees.* Satellite dishes, solar panels, towers and cell sites, fire alarm systems, fence, indoor or outdoor storm shelter, and any other miscellaneous permit, unless previously outlined, shall be assessed as set forth in subsection 8-3 l(c)(l)a. Retaining walls four (4) feet or more in height specifically used for retaining dirt or fill shall be designed, approved and stamped by a licensed design professional at time of application in accordance with the current city-adopted building codes. Fees shall be as set forth in subsection 8-31 (c)(1)a.

o. *Fire department permits and inspection fees.*

1. The permit fee for new installations and/or replacement of fire sprinklers shall be assessed as follows:

A. Buildings or structures with one (1) to five thousand (5,000) square feet shall be assessed forty-three cents ($0.43) per square foot. Buildings or structures with five thousand one (5,001) square feet and up shall be assessed as two hundred six dollars ($206.00) for the first five thousand (5,000) square feet plus twenty-two cents ($0.22) for each additional square foot and up. In no case shall a permit fee be less than fifty-five dollars ($55.00).

2. The permit fees for other various fire suppression systems shall be as follows:

A. The permit fee for a standpipe system shall two hundred sixteen and 30/100 dollars ($216.30). On combination standpipe and sprinkler systems the sprinkler permit fee includes the standpipe fee.

B. The permit for a carbon dioxide fire suppression system shall two hundred sixteen and 30/100 dollars ($216.30) for the first two hundred (200) pounds of agent plus twenty-two cents ($0.22) for every pound in excess of two hundred (200) pounds.

C. The permit fee for a clean agent suppression system shall be two hundred sixteen and 30/100 dollars (216.30) for the first thirty-five (35) pounds of agent plus sixty-five cents ($0.65) for each pound of agent in excess of thirty-five (35) pounds.

D. The permit fee for a foam suppression system shall be $0,527 per gallon of foam concentrate where the system is not part of an automatic sprinkler system. Foam suppression systems that are submitted as part of an automatic sprinkler system shall be reviewed under the sprinkler fee schedule. The minimum fee shall be two hundred sixteen and 30/100 dollars ($216.30); the maximum fee shall be one thousand six hundred twenty-two and 25/100 dollars ($1,622.25).

E. The permit for a range hood suppression system shall be two hundred sixteen and 30/100 dollars ($216.30).

F. The permit fee for a dry chemical suppression system shall be two hundred sixteen dollars and 30/100 dollars ($216.30) for the first thirty (30) pounds of agent plus $0.27 for each pound in excess of thirty (30) pounds.

3. The inspection fee for various fire alarm and other miscellaneous fees shall be as follows:

A. Fire alarm test four (4) stories and above:

Inspection fee: . . .	$216.30
Re-inspection fee:	$108.15

B. Fire alarm test up to three (3) stories:

Inspection fee: . . .	$108.15
Re-inspection fee:	$ 54.59

C. Tent inspection: . . . . . $ 54.59

D. Ansul system inspection:. $108.15

E. Knox-box lock inspection:. . . . . $ 54.59

F. Investigative fee: . . . . . $ 54.59

G. Re-inspection fee: . . . . . $ 54.59

4. Collected fees shall be distributed as follows:

A. Fire department: fees collected deposited in fire marshal's education and training account.

p. *Investigative fee.* In those instances wherein the information submitted to obtain a permit is inadequate or incomplete, or work has begun without a permit, or an inspection is required to determine the "on-site" conditions prior to issuance or denial of a permit, the building codes division may charge the owner an investigative fee of forty-six and 35/100 dollars ($46.35). The payment of the investigative fee shall

not exempt any person from compliance with the provisions of the Code, or from any penalty prescribed by law.

q. *Re-inspection fee.* A re-inspection fee of forty-six and 35/100 dollars ($46.35) will be charged when an additional trip is made by an inspector due to rejections, lockouts, insufficient information as to location of building or structure, work not ready for inspection, or any other cause due to neglect or failure on the part of the applicant.

r. *Penalties (working without a permit).* Where work for which a permit is required by a current city-adopted building or safety code or a provision of the city Code is started or proceeded prior to obtaining said permit, the fee herein specified shall be tripled; however, payment of such triple fee shall not relieve any person from fully complying with the requirements of such codes in the execution of the work nor from any penalties prescribed herein and no additional permits shall be granted until all fees have been paid.

s. *Copy fees.*

1. Duplicate permit card (lost, stolen, misplaced, etc.)	$6.18 per card
2. Permit background computer readout	$1.08 per copy
3. Copier fees	$0.2625 per copy
4. Duplicate copy of certificate of occupancy	$11.33 per copy

t. Reserved.

u. Expiration of permits/permit refunds.

1. All permits issued by the building codes division shall expire one (1) year from the date of issuance. Extensions of up to one (1) year after the expiration date may be granted for each permit. The request for extension must be in writing to the building codes division and must show just cause. A fee of one hundred three dollars ($103.00) shall be assessed for each year extension.

2. All permits issued by the building codes division shall expire one (1) year from the date of issuance. Extensions of up to ninety (90) days may be granted for permits where the original fee was less than-one hundred three dollars ($103.00). The fee for each ninety-day extension shall be the same as the original permit fee cost.

3. All permits shall become invalid if work authorized is not commenced within six (6) months of permit issue date, or if the work authorized is suspended or abandoned for a period of six (6) months after work commences. Before work can be resumed, a new permit must be obtained. The permit fee shall be one-half (½) the amount required for a new permit, provided no changes have been made in the original plans and specifications for such work, and provided that suspensions or abandonment have not exceeded six (6) months.

4. A permittee holding an unexpired permit may apply for a one-time extension, provided they can show good and satisfactory reason, and beyond their control the work

cannot be commenced within the six-month period from the issue date. In order to renew work on a permit after it has expired, the permittee shall pay a fee in accordance with subsection 8-31 (c)(1)u.1. or 8-31(c)(l)u.2.

5. In cases where a change in contractor is made prior to completion of the job. The permit fee shall be assessed based on the stage of approval of inspections. The fee assessment shall be prorated in accordance with the number of remaining inspections. Inspections consist of the following:

   Building: Footing, framing, final.

   Electrical: Pipe-in wall, rough, final.

   Plumbing: Slab, rough, final.

   Mechanical: Duct work, rough, final.

6. Permit refunds issued in accordance with finance department guidelines.

v. Temporary certificate of occupancy ninety (90) days.

1. *Commercial*. sixty-one and 80/100 dollars ($61.80).

   Single buildings, apartments, motels, hotels and multi-tenant occupancies when permitted under same contractor or owner shall be assessed as follows: sixty-one and 80/100 dollars ($61.80) for the first five (5) units and five and 15/100 dollars ($5.15) for each additional unit. A one-time extension of thirty (30) days may be granted if applicant can show just cause for temporary certificate of occupancy to be extended. Applicant shall pay extension fee of eighty-two and 40/100 dollars ($82.40) for each extension request.

2. *Residential*. Fifty-one dollars and 50/100 dollars ($51.50).

   Temporary certificate of occupancies issued for residential occupancies shall expire ninety (90) days from date of issuance. A one-time extension of thirty (30) days may be granted if applicant can show cause for temporary certificate of occupancy to be extended. Applicant shall pay an extension fee of seventy-two dollars and 10/100 dollars ($72.10) for each extension request. Failure to obtain a permanent certificate of occupancy after expiration of a temporary certificate of occupancy may result in issuance of a citation for appearance in Little Rock District Court. This may also include disconnection of utilities. Fines for occupying a structure without a permanent certificate of occupancy may be assessed up to two hundred fifty-seven and 50/100 dollars per day for each occurrence.

(2) Electrical permit fees.

a. New construction.

1. One- and two-family dwelling: Ten cents ($0.10) per square foot under roof.

2. All other occupancies: As set forth in the unit cost schedules in subsection 8-31(c)(2)c.

b. Repair/alteration/addition to existing construction. As set forth in the unit cost schedules in subsection 8-31(c)(2)c.

1. Meter loops.

   A. First $16.48

B. Additional	$ 8.24
2. Load centers, regardless of voltage.	
Up to 60 amps . . .	$ 9.27
Up to 100 amps . .	$18.54
Up to 150 amps . .	$28.84
Up to 200 amps . .	$39.14
Over 200 [amps] . per 100 amps over 200 amps	$ 6.18
3. Openings.	
1 to 20	$12.36
21 to 60	$28.84
61 to 100	$35.02
101 to 200	$58.71
201 to 300	$76.22
301 to 400	$93.73
For each 25 over 400	$ 6.18
4. Motor and generator wiring.	
Up to 1 hp.	$6.18
2 to 4 hp or kW . .	$9.27
5 to 10 hp or kW.	$14.42
11 to 15 hp or kW	$17.51
16 to 20 hp or kW	$21.63
21 or over hp or kW.	$25.75
Fraction horsepower motors can be grouped for their total horsepower and paid for as one (1) unit.	
5. Temporary power to building.	$25.75
6. Smoke or carbon monoxide detectors:	
(1-4)	$12.36
Each smoke detector over 4.	$ 5.15
For inspection purposes smoke detectors may be grouped in a ratio of five (5) detectors to one (1) inspection provided that all detectors are ready for inspection at the same time and are located in the same structure.	
7. Pool bonding	$18.54
8. Pool pump (each). . .	$12.36
9. Hydro massage tub.	$10.30
10. Hot tub or spa	$14.42
11. *Miscellaneous.* Special circuits such as window air conditioners, baseboard heaters, rectifiers, motion pictures machinery, x-ray machines, special equipment, outdoor lighting or any circuits not already covered: . .	$18.54
12. Dishwashers or trash compactor	$ 6.18
13. Disposal/ceiling fan, vent hood, bath fan, exhaust fan (each)	$ 6.18
14. Electric heat	
1 to 15 kW	$ 8.24
16 to 25 kW	$15.45
Motor/no electric heat (gas-fired furnace)	$ 6.18
15. Construction meter (owner or contractor)	$28.84
16. Range	$17.51
17. Dryer.	$17.51
18. Water heater.	$17.51
19. Sign	$36.05
20. Investigation.	$46.35
21. Inspection (each)	$25.75

22. Re-inspection (each) $45.35

c. *Temporary power requirements.* Before any power is supplied to the permanent distribution system of a building under construction, written notice must be submitted to this office noting the length of time the temporary power will be needed before the final electrical inspection is made, the understanding that the structure will not be occupied until after the final inspection, and that the party submitting the request will assume liability of any damage incurred as a result of disconnection of power from the building as a result of a violation of this section. The time limit on temporary power being furnished to the building will be determined on the basis of need, not to exceed thirty (30) days. An extension of time may be granted only be special permission.

After release for connection to electrical service, if connection is not made within six (6) months, a new meter loop permit and inspection approval will be required before release.

d. Expiration of permits shall be assessed as provided in subsection 8-31(c)(l)u.

e. Minimum fee for permit for electrical work shall be fifty dollars ($50.00)

f. *Work with no permit.* In case it shall be discovered that any electrical work has been installed or put into use for which no permit has been issued, the violator shall pay a fee equal to three (3) times the permit fee which shall have been paid for work done in violation thereof and no additional permits shall be granted until all fees have been paid.

(3) *Plumbing permit fees.*

a. *New construction.*

1. One- and two-family dwellings: Ten cents ($0.10) per square foot under roof.

2. All other occupancies:

As set forth in the unit cost schedules in subsection 8-3 l(c)(3)b.

b. Repair/alterations/addition to existing construction.

1. Unit costs-Each plumbing fixture outlet or appliance: $6.18

Shall include each water closet, urinal, bidet, sink, lavatory, basin, laundry sink, wash tray, beer or soda fountain, bath tub, hot tub, shower, sauna, drinking fountain, wet bar, washing machine, hose cabinet or hose rack, fire pump, sewer ejector, cooling tower, sill cock, dental unit, hub drain, floor, area or roof drain, sand trap, grease trap, sump pump or any other plumbing element commonly known as plumbing fixture.

2. Water service . $30.90

3. Water housepiping $30.90

4. Water standpipe $30.90

5. Backflow prevention device $30.90

6. Sump . . . . . $ 8.24

7. Swimming pool $14.42

8. Renew soil line $ 8.24

9. Renew gas vent $ 8.24

10. Gas housepiping $30.90

11. Additional opening . . . . . $ 6.18

12. Floor furnace $17.51

13. Unit heater . .	$17.51
14. Wall furnace .	$17.51
15. Commercial dryer.	$17.51
16. Commercial range	$17.51
17. Water heater.	$17.51
18. Miscellaneous	$17.51
19. Inspection . . .	$25.75
20. Investigative inspection (as per conditions of subsection 8-31 (c)(1)p.).	$45.35
21. Re-inspections	$45.35

c. Expiration of permits shall be addressed as per conditions of subsection 8-3 l(c)(l)u.

d. Work located out of city limits shall be charged
a surcharge of fifty (50) percent of total permit charge.

e. Minimum fee for any permit for plumbing work shall be fifty dollars ($50.00).

f. *Work with no permit.* The penalty for failure to obtain a permit for work as called for in city Code shall be as described in the penalty section of this Code, and in addition to any such fine or imprisonment as may be imposed pursuant to said penalty section, the violator shall pay a fee equal to three (3) times the permit fee that was paid for work done in violation hereof.

(4) Heating/air mechanical permit fees.

a. New construction.

1. One- and two-family dwelling: Eleven cents ($0.11) per square foot.

2. All other occupancies. As set forth in the cost schedules in subsection 8-31(c)(4)b.

b. Commercial and residential replacements, repairs, alterations and additions.

1. Total Valuation	Mechanical fee schedule
$500.00 and less	No fees, unless inspection required, in which case a Twenty-Five and 75/100 Dollars ($25.75) fee for each inspection shall be charged.
$100.01 to $50,000.00	Fifty-One 50/100 Dollars ($51.50) for the first two thousand dollars ($2,000.00) plus Six and 18/100 Dollars ($6.18) for each additional one thousand dollars ($1,000.00) or fraction thereof.
$50,001.00 to $100,000.00	Three Hundred Sixty and 50/100 Dollars ($360.50) for the first fifty thousand dollars ($50,000.00) plus Five and 92/100 Dollars ($5.92) for each additional one thousand dollars ($1,000.00) or fraction [thereof].
$100,001.00 to $500,000.00	Six Hundred Fifty-Nine and 20/100 Dollars ($659.20) for the first one hundred thousand dollars ($100,000.00) plus Five and 66/100 Dollars ($5.66) for each additional one thousand dollars ($1,000.00) or fraction thereof.
$500,001.00 and up	Two Thousand Nine Hundred Twenty-Five and 20/100 Dollars ($2,925.20) for the first five hundred thousand dollars ($500,000.00) plus Five and 15/100 Dollars ($5.15) for each additional one thousand dollars ($ 1,000.00) or fraction thereof.

* Boiler permits are issued only with proof of special boiler license.

2. Inspection (each)	$25.75
3. Re-inspection (each)	$46.35
4. Investigative inspection (each).	$46.35

c. Minimum fee for any heating/air or mechanical permit shall be fifty dollars ($50.00).

d. Expiration of permits are addressed as per conditions of subsection 8-3 l(c)(l)u.

e. Work located out of city limits shall be charged a surcharge of fifty (50) percent of total permit charge.

f. *Penalties (working without a permit).* Where work for which a permit is required by the Arkansas Mechanical Code is started or proceeded prior to obtaining said permit, the fee herein specified shall be tripled; however, payment of such triple fee shall not relieve any person from fully complying with the requirements of the Arkansas Mechanical Code in the execution of the work nor from any penalties prescribed herein and no additional permits shall be granted until all fees have been paid.

(Ord. No. 15,391, §§ 1(I)(A), (I)(B), (I)(D)—(I)(K), (L), (O), 2, 12-9-87; Ord. No. 15,401, § 1, 12-15-87; Ord. No. 15,777, §§ 1(I)(A), (B), (D)—(K), (N)—(Q), 2, 11-7-89; Ord. No. 17,066, § 1, I. A., B., D.—K., N.—T., 12-26-95; Ord. No. 17,648, §§ 1, 2, 12-30-97; Ord. No. 18,086, § 1, 8-3-99; Ord. No. 18,551, § 1, 9-4-01; Ord. No. 18,617, §§ 1, 2, 12-18-01; Ord. No. 18,617, §§ 1, 2, 12-18-01; Ord. No. 19,458, §§ 1, 2, 12-13-05; Ord. No. 20,253, § 1, 4-20-10; Ord. No. 20,458, §§ 1, 2, 8-16-11; Ord. No. 20,971, §§ 4—6, 12-16-14; Ord. No. 20,972, § 1, 12-16-14; Ord. No. 21,677, § 1, 12-11-18; Ord. No. 22,204, § 1, 12-6-22; Ord. No. 22,703, § 1, 12-16-25)

Editor's note—Ord. No. 18,086, adopted Aug. 3, 1999, enacted a new subsection designated as A1 to § 8-31. In order to maintain the alphanumeric style of this Code, said provisions have been redesignated as subsection (b) and the rest of the subsections relettered accordingly.

Sec. 8-31.1. Residential permits.

(a) *Residential permits required.*

(1) *Building permit required.* No person, firm, corporation, partnership, association or any other organization of any kind or character whatsoever shall build, construct, or erect any residence, as that term is defined herein, nor remodel or construct, build, or erect any addition, as defined herein, to any such residence without first obtaining a building permit for such construction, building, erection, remodeling project or addition, as set forth herein.

(2) *Definitions.* As used in this section, the following definitions shall apply:

a. *Addition* or *remodel:* Any construction involving substantial changes, improvements, repairs or additions to a residence.

b. *Homebuilder:* Any person who, in the pursuit of an independent business, undertakes to, or offers to undertake, or submits a bid to, or contracts or undertakes to construct, or assumes charge, in a supervisory capacity or otherwise, or manages the construction of a private residence on behalf of another person, or who, to do similar work upon his own property with the intent to resell the private residence, employs members of one (1) or more building trades upon a single job or project or under a single building permit.

c. *Property owner:* Any person who assumes the responsibility of a homebuilder for the purpose of construct-

ing their own personal single-family detached residence with the expressed intent of occupying said structure.

d. *Person:* Any natural person, limited or general partnership, association, corporation or other organization or entity, or any combination thereof.

e. *Residence:* Any dwelling, from one (1) to four (4) units in design, intended principally for residential purposes.

(b) *Applications for permit to include residential building contractor's license.*

(1) Homebuilders applying to the department of planning and development for the issuance of a building permit for the construction of a residence, or for the construction of an addition or a remodeling project, with a value of twenty thousand dollars ($20,000.00) or greater, shall include a copy of their current residential building contractor's license issued by the Arkansas Contractor's Licensing Board pursuant to the provisions of the Arkansas State Residential Licensing Law Act 950 of 1999 (A.C.A. § 17-25-501 et seq.), as the same may be amended from time to time, together with the statement of the applicant that the said license, is currently in full force and effect.

(2) A property owner who acts as a residential building contractor for the purpose of constructing his own personal residence need not submit proof of a residential building contractor's license, provided that this person does not construct more than one (1) residence per calendar year.

(c) *Applications for permit to include certificate of insurance.*

(1) All applications to the department of planning and development for the issuance of a building permit for the construction of a residence, or for the construction of an addition or a remodeling project, with a value of twenty thousand dollars ($20,000.00) or greater, shall include a certificate issued by an insurance company licensed to do business in the State of Arkansas that the applicant has procured and has in effect public liability and property damage insurance covering the applicant's homebuilding operations in the sum of not less than twenty thousand dollars ($20,000.00) for injury or damage to property and fifty thousand dollars ($50,000.00) for injury and damage, including death to any one (1) person, and one hundred thousand dollars ($100,000.00) for injury or damage, including death to more than one (1) person.

(2) All applications to the department of planning and development for the issuance of a building permit for the construction of a residence, or for the construction of an addition or a remodeling project requiring a permit shall provide a surety bond in the amount of ten thousand dollars ($10,000.00) to the City of Little Rock per Ordinance No. 17,777.

(d) *Concurrent homebuilder registration and licensure requirements.*

(1) The Residential Building Contractor's License Law Act 950 of 1999 (A.C.A. § 17-25-501 et seq.), will become effective after

July 1, 2001, and will supersede the Homebuilders Registration Law Act 859 of 1987 (A.C.A. § 17-47-101 et seq.). Current homebuilders registrations are due to expire on November 30, 2000, and the homebuilder licensure law is scheduled to be effective after July 1, 2001. However, the residential building contractor's committee of the state contractors licensing board is currently issuing residential building contractor's licenses to those homebuilders complying with the requirements for licensure as a residential building contractor.

(2) In order to provide a smooth and workable transition between the requirements of Act 950 of 1999 and Act 859 of 1987, the City of Little Rock will accept either a current homebuilder registration issued by the Secretary of State's office as per Act 859 of 1987, or a residential building contractor's license issued by the State Contractors Licensing Board as per Act 950 of 1999, as meeting the requirements of subsection (b) above from the date of the passage of this section until July 1, 2001. Beginning on July 1, 2001, a homebuilder must comply with the requirements of subsections (b) and (c) above.

(Ord. No. 18,475, § 1(8-31A—8-31D), 5-1-01)

Sec. 8-32. Fire district.

There is hereby created within the city one (1) fire district with segments bounded or identified as follows:

(1) *Boundaries.* Beginning at the northeast corner of Interstate 30 and the Arkansas River, thence south along the Interstate 30 center right-of-way line to the intersection of Interstate 30 and President Clinton Avenue, thence west along the President Clinton Avenue center right-of-way line to the intersection of President Clinton Avenue and Sherman Street, thence south along the Sherman Street center right-of-way line to the intersection of Sherman Street and East 2nd Street, thence west along the East 2nd Street center right-of-way line to the intersection of East 2nd Street and Scott Street, thence south along the Scott Street center right-of-way line to the intersection of Scott Street and East 8th Street, thence west along the East 8th Street center right-of-way line to the intersection of West 8th Street and Center Street, thence north along the Center Street center right-of-way line to the intersection of West 7th Street and Center Street, thence west along the West 7th Street center right-of-way line to the intersection of West 7th Street and Gaines Street, thence north along the Gaines Street center right-of-way line to the intersection of Capitol Avenue and Gaines Street, thence west along the Capitol Avenue center right-of-way line to the intersection of Capitol Avenue and Chester Street, thence north along the Chester Street center right-of-way line to the intersection of Chester Street and LaHarpe Boulevard, thence east along the LaHarpe Boulevard center right-of-way line to the intersection of LaHarpe Boulevard and Ottenheimer Plaza Road, thence east along the Ottenheimer Plaza Road center right-of-way line to Interstate 30 and the Arkansas River to the point of the beginning.

(2) *Buffer zone.* Where four (4) contiguous blocks, or more, comprise a fire district, there shall be a buffer zone of two hundred (200) feet, or sixty thousand nine hundred sixty (60,960) millimeters, around the perimeter of such district. Streets, rights-of-way and other open spaces not subject to building construction can be included in the two hundred-foot, or sixty thousand nine hundred sixty (60,960) millimeter, buffer zone.

(Code 1961, § 13-28; Ord. No. 15,734, § 1, 8-15-89; Ord. No. 16,185, § 1, 3-3-92; Ord. No. 18,892, § 1, 7-1-03; Ord. No. 21,396, § 1, 5-2-17; Ord. No. 21,971, § 1, 4-6-21)

Sec. 8-33. Permit to move building.

No person shall move a building from one (1) lot to another lot within the city without the

approval of the city employee designated by the city manager. The city employee designated by the city manager shall not issue any permit therefor until the same has been so approved.
(Code 1961, § 29-7; Ord. No. 15,988, § 4, 12-18-90)

Cross reference—Disconnecting sewers when moving buildings, § 35-112.

Sec. 8-34. License for houseowners.

No person, except a licensed building mover, shall move any building over or along any street or highway within the city and every such person, before engaging in such occupation, shall obtain an annual license. Such license shall not be granted until the person applying therefor shall have given the required bond.
(Ord. No. 14,119, § 34, 9-15-81)

Cross reference—Licenses, taxation and miscellaneous business regulations, Ch. 17.

Sec. 8-35. Certificate of occupancy.

(a) *Purpose.* Certificates of occupancy are required to ensure that completed structures and the development of property of which such structures are a part comply with the provisions of this chapter, as well as any site plans or conditional approvals for such structures and development.

(b) *Authority.* The building official shall have the authority and responsibility to issue and keep records of certificates of occupancy in accordance with the requirements set forth in this chapter, chapter 31 and chapter 8, article II.

(c) *Certificate of occupancy required.* No new structure or addition to an existing structure shall be occupied and no use of a building shall be changed unless a certificate of occupancy is issued therefor by the building official.

(d) *Procedure.*

(1) *Application.* A certificate of occupancy shall be applied for coincident with the application for a building permit and will be issued before occupancy and connection of utilities to such building.

(2) *Action on application.* The building official or his designated agent shall inspect the property which is the subject of an application within a reasonable time, after completed application has been filed, and shall issue a certificate of occupancy if the premises of the property comply in all respects with the applicable development regulations in effect. If the premises do not so comply, the building official shall deny the application in a written notice mailed to the applicant within five (5) days after the inspection of the property, specifying the provisions of which ordinance with which the structure or development does not comply.

(3) *Contents of certificate of occupancy.* Information required for submission to obtain a certificate of occupancy shall include:

a. Name of applicant.

b. Nature and extent of the applicant's ownership interest in the subject property.

c. Address of the property for which a certificate is requested.

d. A legal description of the property, the zoning classification for the property, and a statement that the use of the property is allowed or permitted in the zoning classification for the property.

e. If a site plan or other conditional approval for the structure or the development of which such structure is a part was required, a copy of any document granting such approval and any plans approved in connection therewith.

f. Such other information as requested by the building official to ensure conformance with applicable development regulations.

(4) *Temporary certificates of occupancy.* A temporary certificate of occupancy may be issued for a portion or portions of a building which may be safely occupied prior to final completion of the building. It may also be used for transient use

which, due to its nature, is not required to comply with permanent construction regulations. A temporary certificate of occupancy shall be valid for a period not exceeding six (6) months. Such temporary certificate shall not be construed in any way altering the respective rights, duties or obligations of owners or of the city relating to the use or occupancy or any other matter required by this section.

(5) *Certificates for existing buildings.* A record of all certificates of occupancy shall be maintained on file in the office of the building official and copies shall be furnished for an inspection fee of ten dollars ($10.00) on written request to any person having a proprietary or tenancy interest in the building or land affected.

(Code 1961, Ch. 43, § 4-104; Ord. No. 17,234, § 1, 7-2-96)

Editor's note—Ord. No. 17,234, § 1, adopted July 2, 1996 amended the Code by replacing former § 8-35 as herein set out. Former § 8-35 pertained to fences, walls, etc., and derived from Ord. No. 14,119, adopted Sept. 15, 1981, and Ord. No. 15,988, adopted Dec. 18, 1990.

Sec. 8-36. Bond required to receive permit.

(a) Every building, electrical, plumbing, mechanical, house mover, demolition or associated contractor requiring a construction related permit under this chapter, except as otherwise provided herein, shall fulfill all of the applicable requirements of this chapter and provide the bond required in this section.

(b) Prior to the issuance of any construction related permit required under this chapter, the permit applicant (herein referred to as "permittee") shall have on file with the building codes division a surety bond in the amount of ten thousand dollars ($10,000.00) executed by the permittee and a surety company authorized to do business and in good corporate standing in the State of Arkansas, to assure the permittee's full compliance with this chapter. The city or any person in a contractual arrangement with the permittee who is aggrieved by failure of the permittee to comply with the provisions of this chapter shall have a right of action against the permittee and the surety to require such compliance or pay the cost thereof. The aggregate liability of the surety for any and all breaches of the conditions of the bond shall not exceed the penal sum of the bond.

(c) The bond shall be continuous and shall remain in full force and effect at all times during the permit period. The bond shall not terminate during the permit period except upon thirty (30) days' prior written notice to the building codes division. Should the bond be canceled during the permit period and the permittee fails to provide a substitute bond prior to the cancellation date, the permit shall be automatically suspended as of the day the bond ceases to be effective and shall remain suspended until a substitute bond is provided. Suspension shall be automatic and shall be effective without notice or hearing as otherwise provided in this chapter.

(d) A bond shall not be required of a permittee to perform construction work on residential property owned by the permittee unless such a bond is otherwise required by article VIII of this chapter.

(e) A violation of this section shall be punishable as provided in section 1-9 of this Code.
(Ord. No. 18,225, § 1, 2-15-2000)

Secs. 8-37—8-50. Reserved.

DIVISION 2. ACCESSIBILITY FOR THE PHYSICALLY DISABLED OR HANDICAPPED*

Sec. 8-51. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Accessible means minimally that:

(1) Paths have been provided for the physically disabled and/or handicapped and

*__Cross reference—__Construction of streets so as to accommodate physically handicapped persons, § 30-50.

which are unobstructed, and devoid of curbs, stairs, or other abrupt changes in elevation.

(2) Ramps, where provided along such paths, are in compliance with the requirements of this section and all laws and ordinances. Ramps shall be constructed of non-slip material and shall be lighted with not less than five (5) footcandles per square foot if ramps are available or intended for use after dark.

(3) Corridors included in such paths are of a width between walls not less than forty-four (44) inches.

(4) Doorways in such paths are of width sufficient to provide a thirty-two-inch clear passage when any single closure leaf or any one (1) of manually-operated multiple leaf closures is in fully opened position or when automatically operated sliding closures are in fully opened position.

(5) Curb cuts connecting sidewalks or other paths of travel will be within the limits (either marked or unmarked) normally used as a crosswalk and will have tactile markings for identification by blind individuals, but in no case may a change in level exceed one-half inch. Additionally, all sidewalks or pathways designed for public use will have a curb cut or equivalent inclined surface at its terminus or where the path crosses (or would cross if extended) streets, parking lots, drives or other sidewalks.

Single-family structure does not include a condominium as defined by state law or a townhouse for sale.
(Ord. No. 13,478, § 2(517.2), 8-1-78; Ord. No. 13-695, § 1(517.2), 7-17-79)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 8-52. Scope and application.

(a) The requirements of this division apply to all levels and areas of buildings and structures except as modified in this division, and to all occupancy classifications except group H hazardous and except single-family structures of group A residential.

(b) In the event of a conflict between the provisions of this division and the Arkansas Fire Prevention Code adopted in subsection 8-2(a), the more stringent requirements control.
(Ord. No. 13,478, § 1(517.1), 8-1-78; Ord. No. 13,695, § 1, 7-17-79; Ord. No. 20,971, § 7, 12-16-14)

Sec. 8-53. Additional standards.

The provisions of this division may not adequately provide for every contingency relating to environmental barriers faced by handicapped individuals. In situations not contemplated by the provisions of this section, compliance with the standard "Specifications for Making Buildings and Facilities Accessible to, and Usable by, the Physically Handicapped," American National Standards Institute A117.1-1961 (R 1971) shall be evidence of compliance with the intent of this division.
(Ord. No. 13,478, § 2(517.2), 8-1-78)

Sec. 8-54. Discrimination in sales.

Developers and their agents shall not discriminate against handicapped or physically disabled persons in the marketing and sale of structures that are subject to the provisions of this division.
(Ord. No. 13,478, § 2(517.2), 8-1-78; Ord. No. 13,695, § 1, 7-17-79)

Sec. 8-55. Access to buildings.

(a) Accessibility to buildings shall be provided from right-of-way and parking areas by means of a pathway leading to at least one (1) entrance generally used by the public. Such pathway shall have been cleared of nonstructural items related to construction activity, prior to the opening of the building to the general public. Where curbs exist along such pathway, as between a parking lot surface and a sidewalk surface, inclined curb approaches or curb cuts having a gradient of not more than one (1) foot in twelve (12) feet and a width of not less than four (4) feet shall be provided for access by wheelchairs. The sidewalls of a curb cut shall not exceed an inclination ratio of 8:1.

(b) A parking lot serving each such entrance pathway shall have a number of level parking spaces, as set forth in the following table, identified by above-grade signs as being reserved for physically handicapped persons. Each parking space so reserved shall be not less than twelve (12) feet in width. Such spaces shall be level or have a maximum slope of two (2) percent, (50:1 ratio) and marked with the international symbol of access.

PARKING SPACES FOR HANDICAPPED

Total Spaces in Lot	*Required Number of Reserved Spaces*
up to 25	1
26 to 50	2
51 to 75	3
76 to 100	4
100 to 150	5
151 to 200	6
201 to 300	7
301 to 400	8
401 to 500	9
501 to 1000	2% of total
over 1000	20 plus 1 for each 100 over 1000

Parking spaces for the physically handicapped shall be located as close as possible to elevators, ramps, walkways and entrances. Parking spaces should be located so that physically handicapped persons are not compelled to wheel or walk behind parked cars to reach entrances, ramps, walkways and elevators.

(c) All buildings that have their main floor level above or below ground level shall have a least one (1) ramp at a public entrance to the building accessible and available for use by physically handicapped persons using wheelchairs, braces, crutches or other devices. Ramps for use by physically handicapped persons shall not have a slope greater than one (1) foot rise in twelve (12) feet, or eight and one-third (8⅓) percent, or four (4) degrees fifty (50) minutes. Ramps shall have landings at the top and bottom. Top landing will be a minimum of five (5) feet by five (5) feet with one and one-half (1½) feet of clearance on either side of a door that swings outward onto the landing. The bottom landing shall provide at least six (6) feet of straight clearance uninterrupted by gratings, drain covers, or other change in level.

(d) Landings shall be provided at twenty-foot intervals for a ramp over twenty (20) feet in length. Each landing shall have a minimum length of five (5) feet except the bottom landing which shall have a length of six (6) feet. Ramps over twenty (20) feet in length shall not exceed a slope ratio of 20:1 (five (5) percent).

(e) Projections into the required ramp and landing width shall be limited to handrails (three and one-half (3½) inches maximum) and stringers (one and one-half (1½) inches maximum). Doors opening onto a ramp or landing shall not reduce the clear width to less than forty-two (42) inches. Where changes in elevations exist in exit access corridors, exits and exit discharges, ramps shall be used when the difference in elevation is less than twenty-one (21) inches. Handrails shall be provided on both sides of a ramp, shall be between thirty (30) and thirty-four (34) inches high and extend one (1) foot beyond top and bottom steps (except where the extension would in itself create a hazard).

(f) All controls, emergency equipment, alarms, etc. shall be mounted no higher than forty-eight (48) inches.

(g) All alarms shall be both visual and audible; visual alarms will be designed to raise the overall light level sharply and be visible from all public areas (such as library stacks, or individual reading rooms).

(h) If the use of an exit is controlled by such devices as narrow checkout lanes, turnstiles, etc., there shall be at least one (1) lane of thirty-two (32) inches of clear opening path of exit which will be open and available for use whenever other controlled exits are available for use. "Express lanes" or other exits shall provide thirty-two (32) inches clear width in addition to other controlled exits.

(i) At least one (1) main entrance door designed for use by the handicapped and equipped with door closer shall have kickplates extending the width of the door of at least twelve (12) inches width. This main entrance door shall be operable by single effort and opening pressure shall not exceed eight (8) pounds pressure.
(Ord. No. 13,478, § 2(517.3), 8-1-78)

Sec. 8-56. Access within buildings.

(a) Accessibility within buildings shall be provided utilizing at least one (1) of the required means of egress at ground level, preferably an entrance generally used by the public, and shall include access provisions to each floor. Where provided, elevators shall be included in the access patterns.

(b) Elevator entrances shall be identified as to each floor level by means of a plaque located five (5) feet above the floor on the right jamb of such entrances, bearing square-edged numerals at least one and one-half (1½) inches high, raised at least twenty-five thousandths of one (1) inch and adjacent braille symbols.

Elevator control panels shall bear identification of buttons by means of square-edged numerals or letters at least one-half inch high, raised at least twenty-five thousandths of one (1) inch and bear adjacent braille symbols.

Emergency telephones shall have a cord at least twenty-four (24) inches long. Normal operating controls shall be no higher than forty-eight (48) inches.

Heat-sensitive elevator buttons are expressly prohibited. Braille or regular letter markings shall be included on closing surface of the right exterior door (as viewed from the inside of the car) at a height of sixty (60) inches to identify the floor at which the elevator has stopped.

(c) Common facilities of group A "residential" occupancies, provided for the use of all residents and their guests, such as pools, patios, sauna rooms, recreational buildings, laundry rooms and similar areas shall be included in access patterns.

(d) Rooms included in access patterns which do not have a depth of seven (7) feet or a turning space of four (4) feet by five (5) feet shall be equipped with outward-swinging doors if hinged door leaves are installed. Doors equipped with automatic door closers shall be operable by a single motion not exceeding eight (8) pounds force.

(e) In buildings equipped with water fountains, at least one (1) such shall have a spout between twenty (20) inches and thirty (30) inches of the floor and shall be equipped with front-mounted hand and/or hand and foot operated control. When accessible fountains are located in alcoves, the alcoves shall be of a width not less than thirty-two (32) inches.

(f) Where banks of public telephones are provided, at least one (1) shall be so installed that the headset, dial and coin receiver are within forty (40) inches of the floor. Unobstructed access to within twelve (12) inches of the telephone shall be provided. Such access shall be not less than thirty-two (32) inches in width. In banks of more than one (1) telephone, five (5) percent or not less than one (1) shall be equipped with volume control and braille markings for instructions, emergency phone numbers, etc. When telephones are located within seventy-five (75) feet of each other, at least one (1) shall meet the aforementioned standards.
(Ord. No. 13,478, § 2(517.3), 8-1-78)

Sec. 8-57. Restroom facilities.

(a) In buildings equipped with restrooms for use by the public or by the general tenancy, at least one (1) restroom for males and one (1) for

females on each floor shall be made accessible to and usable by the handicapped. Such restrooms shall be marked by the international symbol of access for the handicapped (white design on blue or black background). Where such restrooms are not visible from all public areas on the floor, the direction thereto shall be indicated by use of the same symbol and appropriate directional signs.

(b) Any abrupt changes in floor level at doorways to restrooms shall be ramped, or have beveled threshold not exceeding one-half inch. Where the entrance to the restroom is a vestibule containing privacy screens or a series of doors, there shall be unobstructed space between screens or doors of not less than four (4) feet in width and five (5) feet in length. At least one (1) urinal shall be either floor-mounted or wall-mounted with bowl height of fifteen (15) inches or less. Where parallel exterior and interior privacy doors are provided the space between these doors shall be at least six (6) feet.

(c) Each such restroom shall be provided with at least one (1) toilet stall approachable through an unobstructed passage forty-four (44) inches in width and with a space not less than five (5) feet square for one hundred eighty-degree turns by wheelchairs.

(d) Where mirrors, towel dispensers, and disposal units are provided, at least one (1) of each shall be installed within forty (40) inches of the floor.
(Ord. No. 13,478, § 2(517.3), 8-1-78)

Sec. 8-58. Seating accommodations.

(a) Places of assembly with fixed seating arrangements shall provide viewing positions for persons in wheelchairs in accordance with the following schedule:

Capacity of Assembly Spaces	*Number of Viewing Positions*
up to 25	1
26 to 50	2
51 to 75	3
76 to 100	4
101 to 200	5
201 to 300	6
301 to 400	7
401 to 500	8
501 to 1000	2% of total
over 1000	20 plus 1 for each 100 over 1000

(b) Viewing positions for persons in wheelchairs shall be provided in a reasonable and convenient section or sections of the facility by one (1) of the following methods:

(1) By providing portable seats which can easily be removed.

(2) By providing clear space devoid of any portable or fixed seating arrangement.

(c) These positions shall be so conveniently located as not to substantially interfere with egress from any row of seats, shall be reached by means of ramps and/or elevators, and shall not substantially infringe upon aisle requirements.

(d) There shall be no steps in the aisles or in the access route used by the physically handicapped to reach the viewing positions, but the aisles shall be inclined according to the provisions of section 8-55, subsection (c).
(Ord. No. 13, 478, § 2(517.3), 8-1-78)

Sec. 8-59. Exceptions.

(a) The provisions of this division need not apply to buildings or areas within buildings which are frequented only by employees and where the work within such area cannot reasonably be performed by the handicapped unless such areas lie in the path of egress from areas normally used by the handicapped.

(b) Buildings having accessibility at habitable grade levels, where no public elevator is provided, shall not be required to comply with the provisions of this division at floors above such levels if facilities normally sought and used by the public in such buildings are available at the grade level.

(c) The provisions of this division need not apply to the floors above grade in buildings of occupancy classifications group B "business" or group S "storage," where such buildings do not exceed five thousand (5,000) square feet in area

per floor, do provided accessibility at grade floor levels, and do not provide public elevator service.

(d) Buildings of occupancy classification group A "residential" are exempt from the provisions of this division only in the following respects:

(1) Floors above grade, need not comply where the building height does not exceed three (3) stories; accessibility is provided at grade floor levels, and there is no elevator service.

(2) Hallways within dwelling units which serve as a single room, may be less than forty-four (44) inches in width, but shall not be less than thirty-six (36) inches wide.

(3) In residential complexes other than condominiums and townhouses-for-sale complexes containing twenty (20) or more units, individual dwelling units of multi-family residential use otherwise covered shall be exempt from all provisions of this division except that ten (10) percent of such units shall meet minimum space requirements such as door widths, widths of interior corridors, wheelchair turning space requirements, etc., and height requirements of built-in equipment and controls such as light switches, electrical outlets, thermostats, etc. Such accessible dwelling units shall be located in various locations throughout the building so as not to tend to segregate disabled persons to a particular area, building, or price range or otherwise interfere with or prohibit reasonable freedom of choice of housing accommodations by handicapped persons.

(4) In buildings of occupancy classification group A "residential" containing less than twenty (20) units, individual dwelling units are exempt from all provisions of this section.

(5) In condominium and townhouse-for-sale complexes containing twenty (20) or more units, individual dwelling units of multi-family residential use otherwise covered shall be exempt from all provisions of this division except that ten (10) percent of such units shall meet minimum space requirements such as door widths, widths of interior corridors, etc. The requirements of section 8-55, subsection (f) will be at the option of the buyer to be determined at time of sale. The option is to be stated in writing. Such accessible dwelling units shall be located as determined by the seller. In no case shall there be less than ten (10) percent accessible dwelling units which will be determined during final inspection by the city building codes inspector.

(Ord. No. 13,478, § 2(517.4), 8-1-78; Ord. No. 13,618, § 1, 3-20-79; Ord. No. 13,695, § 1, 7-17-79)

Secs. 8-60—8-85. Reserved.

ARTICLE III. ELECTRICITY

DIVISION 1. GENERALLY

Sec. 8-86. Short title.

This article may be cited as the "electrical code."

Sec. 8-87. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 8-88. Civil liability.

This article shall not be construed to relieve from or lessen the responsibilities of any person owning, operating or installing electrical wires, appliances, apparatus, construction or equipment, for the damage to property or persons injured by any defect therein, nor shall the city or any agent thereof be deemed to assume any such liability by reason of any inspection authorized by this article.

(Code 1961, § 12-3(h); Ord. No. 17,073, § 1, 1-2-96; Ord. No. 20,971, § 8, 12-16-14)

Secs. 8-89—8-100. Reserved.

DIVISION 2. ADMINISTRATION AND ENFORCEMENT

Part A. General Provisions

Sec. 8-101. Disconnection of service.

The electrical inspector may cause the turning off of all electrical current from all conductors and apparatus that are deemed by him to be in an unsafe condition or that have not been installed in conformity with the provisions of this article. No person shall supply or cause to be supplied any electric current to conductors or apparatus that have been deemed by the electrical inspector to be in unsafe condition or that have not been installed in conformity with the provisions of this article and to which the electrical inspector has caused the electrical current to be turned off.
(Code 1961, § 12-4(b); Ord. No. 17,073, § 1, 1-2-96; Ord. No. 20,971, § 9, 12-16-14)

Sec. 8-102. Duties of the electrical inspectors.

It shall be the duty of the electrical inspectors to inspect all electrical systems for compliance with this code and all other codes having jurisdiction in all buildings, old or new, to include underground and overhead service lines, whether private or public, where such buildings and underground or overhead service lines are located within the inspection limits of the city.
(Ord. No. 20,000, § 1, 7-15-08; Ord. No. 20,971, § 10, 12-16-14)

Sec. 8-103. Inspector's right of entry.

Should an electrical inspector be denied entry to any building in which he has reason to believe an unsafe or hazardous situation my exist, the inspector shall have the authority to secure a warrant for the right to enter and inspect such building.
(Ord. No. 20,000, § 1, 7-15-08; Ord. No. 20,971, § 11, 12-16-14)

Sec. 8-104. Limitations of the electrical inspectors.

The electrical inspectors shall not be interested in any business engaged in electrical systems or the sale of same or any part thereof either directly or indirectly in the city.
(Ord. No. 20,000, § 1, 7-15-08)

Secs. 8-105—8-120. Reserved.

*Part B. Electrical Code Appeals**

Sec. 8-121. Appeals.

Electrical code appeals refer to section 8-30.1 of the City Code.
(Code 1961, § 12-6(a); Ord. No. 17,779, § 5, 7-7-98; Ord. No. 18,551, § 1, 9-4-01)

Secs. 8-122—8-145. Reserved.

Part C. Permits and Inspections

Sec. 8-146. Permit generally.

(a) No person shall install or perform any electrical work without an electrical permit issued by the permit and records office.

(b) Electrical permits must be secured by the master electrician or his authorized representative prior to the commencement of such work.

(c) Notwithstanding subsection (b) of this section a building contractor shall be permitted to secure electrical permits and to request inspections on temporary power centers for use during construction of one- and two-family dwellings. The permit may be taken and scheduled for inspection the following workday or it may be placed on a special "will call" file to be held until being requested. The actual construction and maintenance of the temporary construction meter shall be done by a licensed electrical contractor. When a

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***Editor's note—**Ord. No. 17,779, § 7, adopted July 7, 1998, repealed §§ 8-122—8-129, which pertained to the board of electrical code appeals and derived from the 1961 Code and Ord. No. 17,073, adopted Jan. 2, 1996.

Cross reference—Boards and commissions generally, § 2-261 et seq.

reinspection fee is required as a result of an improper installation, it shall be secured by the electrical contractor making the correction.

(d) Applications for permits shall give the exact address by street and number, approximate date inspection is desired, the name of the master electrician in charge of the work and a complete description of the extent of the installation.
(Code 1961, §§ 12-3(a), (c), (d), 12-12(a); Ord. No. 17,073, § 2, 1-2-96)

Sec. 8-147. Persons eligible for permits.

(a) Except as provided in subsection (c) of section 8-146 and in subsection (b) of this section, electrical permits shall be issued only to persons licensed under this article unless the person has a permanent employee who is licensed journeyman electrician to install or maintain electrical wires or apparatus in or upon the premises.

(b) A permit may be issued to a property owner to do work on such person's own home provided the owner has a current State of Arkansas Master or Journeyman Electrician's License. A homeowner desiring to be eligible for a permit shall show proof that he or she owns the home and resides or will reside in the structure after completion.
(Code 1961, § 12-19; Ord. No. 17,073, § 2, 1-2-96; Ord. No. 18,551, § 1, 9-4-01; Ord. No. 20,000, § 1, 7-15-08; Ord. No. 20,971, § 12, 12-16-14)

Sec. 8-148. Rough inspection.

Before any electrical wiring shall be concealed from view, or in the case the wiring is in conduit, before the conduits shall be concealed from view, the person installing same shall give notice to the electrical inspector, who shall as soon as possible after the receipt of such notice, inspect the work. No such work shall be concealed from view before the expiration of forty-eight (48) hours from receipt of the notice, not including weekends or holidays, unless the electrical inspector shall make his inspection and approve the work before the expiration of such forty-eight (48) hours. No job shall be considered as being completely roughed in until all joints have been made with approved connections and pigtails provided for hanging of fixtures.
(Code 1961, § 12-3(f); Ord. No. 17,073, § 2, 1-2-96; Ord. No. 18,551, § 1, 9-4-01; Ord. No. 20,971, § 13, 12-16-14)

Sec. 8-149. Final inspection.

(a) Before any electrical current shall be used upon any electrical wiring of any character, the electrical contractor or his master electrician shall notify the electrical inspector that the job is ready for final inspection. The electrical inspector shall schedule the inspection for the following workday or as soon as conditions permit. If the electrical inspector finds the installation has been constructed in accordance with the provisions of this article, he shall record approval of inspection. The approval shall state the name of the inspector and the date of the inspection.

(b) When final inspections are requested, the structure shall be supplied with temporary power by the owner or electrical contractor so that all electrical components can be tested. Occupied structures or structures containing personal property will not be entered by the electrical inspector unless accompanied by the owner or the owner's representative.
(Code 1961, § 12-3(g); Ord. No. 20,971, § 14, 12-16-14)

Sec. 8-150. Final clearance.

It shall be unlawful for any electrical utility company or any person to furnish electrical current to any new building, tent, structure or outdoor wiring of any kind, nature or description, without first obtaining a clearance from the electrical inspector.
(Code 1961, § 12-4(a); Ord. No. 18,551, § 1, 9-4-01; Ord. No. 20,971, § 15, 12-16-14)

Sec. 8-151. Fees.

The fee schedules for electrical permits and inspections shall be assessed as approved and as set forth in subsection 8-31(c)II, electrical permit fees.
(Code 1961, § 12-3(b), (e); Ord. No. 15,391, § 1(II)(A)—(C), (F), 12-9-87; Ord. No. 15,777,

§ 1(II), 11-7-89; Ord. No. 17,066, § 1.II, 12-26-95; Ord. No. 17,073, § 2, 1-2-96; Ord. No. 18,551, § 1, 9-4-01; Ord. No. 20,000, § 1, 7-15-08; Ord. No. 20,971, § 16, 12-16-14)

Sec. 8-152. Temporary power requirements.

Before any power is supplied to the permanent distribution system for a building under construction, written notice shall be submitted to the building codes division, noting the length of time the temporary power will be needed before the final electrical inspection is made, with the understanding that the structure shall not be occupied until after the final inspection and that the party submitting the request shall assume liability for any damage incurred as a result of disconnection of power from the building as a result of a violation of this article. The time limit on temporary power being furnished to the building will be determined by the electrical inspector on the basis of need, not to exceed thirty (30) days. An extension of time may be granted only by permission of the electrical inspector.
(Ord. No. 20,000, § 1, 7-15-08; Ord. No. 20,971, § 17, 12-16-14)

Sec. 8-153. Work with no permit.

In case it shall be discovered that any electrical work has been installed or put in use for which no permit has been issued, the violator shall pay a fee equal to three (3) times the permit fee which shall have been paid for work done in violation thereof and no additional permits shall be granted until all fees have been paid.
(Ord. No. 20,000, § 1, 7-15-08)

Sec. 8-154. Bond required.

Prior to issuance of an electrical permit, a surety bond shall be required in the amount of ten thousand dollars ($10,000.00) to the city per Ordinance No. 17,777.
(Ord. No. 20,000, § 1, 7-15-08)

Sec. 8-155. Installations where several persons are concerned.

On installations where several persons are concerned with the installation of electric conductors or appliances, each party shall be required to pay the fees established for such work.
(Ord. No. 20,000, § 1, 7-15-08)

Sec. 8-156. Projects consisting of more than one structure.

When a project consists of more than one (1) structure, each separate structure shall have a separate electrical permit. For purposes of determining whether separate permits are needed, buildings not having common attic space connected only by a canopy walkway or similar connections shall be deemed to be a separate building.
(Ord. No. 20,000, § 1, 7-15-08)

Secs. 8-157—8-170. Reserved.

DIVISION 3. TECHNICAL STANDARDS

Sec. 8-171. Generally.

(a) All electrical work for light, heat, power or other purposes placed in or on any building, structure or premises within the city shall be installed in conformity with the rules and regulations of the current adopted edition of the National Electrical Code and in conformity with the additional provisions of this chapter. Where local rules and regulations are set forth in this chapter, they shall take precedence over any conflicting rules.

(b) All electrical work of any kind and all systems shall satisfactorily fulfill the purpose for which the work and systems are installed and all work shall be executed in a neat and workmanlike manner. Substandard work or work not in keeping with good electrical practice shall be classified as defective and shall be immediately corrected by person causing the same.
(Code 1961, § 12-2(a); Ord. No. 17,073, § 3, 1-2-96; Ord. No. 18,551, § 2, 9-4-01; Ord. No. 20,971, § 18, 12-16-14)

Sec. 8-172. Conflict.

In the event of a conflict between the electric code adopted by reference in subsection 8-2(a) and the provisions of this article, the provisions of this article shall take precedence.
(Ord. No. 20,971, § 19, 12-16-14; Ord. No. 22,200, § 1, 12-6-22)

Editor's note—Section 19 of Ord. No. 20,971 deleted former § 8-172 entitled "National Electrical Code—Adopted", which derived from: Code 1961, § 12-1; Ord. No. 17,074, § 3, 1-2-96; Ord. No. 17,925, § 1, 1-19-99; Ord. No. 18,551, § 2, 9-4-01; Ord. No. 18,705, § 1, 6-18-02; Ord. No. 19,333, § 1, 6-21-05; Ord. No. 19,998, § 1, 7-15-08; Ord. No. 20,000, § 2, 7-15-08; and Ord. No. 20,569, § 1, 4-17-12.

Sec. 8-173. Service disconnect.

(a) *Readily accessible location.* The service disconnecting means shall be installed at a readily accessible location either immediately adjacent to or attached to the outside of a building or structure, or inside nearest the point of entrance of the service conductors.

(1) Service entrance conductors shall not exceed twenty (20) feet maximum developed length unspliced between the meter housing and the main disconnect. This allows the service entrance conductors to run within the building up to twenty (20) feet and to terminate at the disconnecting means.

(2) Electrical rooms containing building main disconnects located within a structure shall be located near the point of service entrance and on the exterior wall with a door leading directly outside. The door shall be identified with at least three-inch high lettering stating "Electrical Equipment Room."

(3) No remote tripping device shall be allowed that will modify these requirements.

(Ord. No. 20,971, § 20, 12-16-14)

Editor's note—Section 2 of Ord. No. 18,551, adopted Sept. 4, 2001, deleted former § 8-173, which pertained to amendments to the 1996 National Electrical Code, and derived from the 1961 Code and Ord. No. 17,073, adopted Jan. 2, 1996.

Sec. 8-174. Reserved.

Editor's note—Ord. No. 20,971, § 21, adopted Dec. 16, 2014, deleted § 8-174, entitled ""UL," etc., approved", which derived from: Code 1961, § 12-1(b); and Ord. No. 17,073, § 3, adopted Jan. 2, 1996.

Sec. 8-175. Hazardous materials or apparatus.

No electrical apparatus or materials shall be used or placed on sale when the electrical inspector shall consider it a fire hazard or hazardous to life or property.
(Code 1961, § 12-1(c); Ord. No. 17,073, § 3, 1-2-96; Ord. No. 20,971, § 22, 12-16-14)

Sec. 8-176. Electrical calculations and miscellaneous provisions.

(a) Electrical calculations shall be submitted in writing at the time the electrical permit application is submitted.

(b) All building construction shall require the size of the service wire and the service entrance switch to be calculated according to the provisions found in the National Electrical Code. For one- and two-family construction, the calculations shall be submitted in writing at the time the electrical permit application is submitted. For other types of construction, calculations shall be included as part of the plan submittal and reviewed prior to the issuance of a permit.

(c) Before an additional meter may be added to an existing service for a residence, the proper zoning shall be in place and verified.

(d) Service entrance switches shall be marked with name, address and telephone number of the electrical contractor installing such work. Apartment houses or other multiple meter installations shall also have plainly marked the number of the apartment or sufficient load designation. Such marking shall be permanent.
(Code 1961, §§ 12-1(d), 12-2(b)(1); Ord. No. 17,073, § 3, 1-2-96; Ord. No. 18,551, § 2, 9-4-01; Ord. No. 20,000, § 2, 7-15-08; Ord. No. 20,971, § 23, 12-16-14)

Secs. 8-177—8-195. Reserved.

DIVISION 4. LICENSING OF ELECTRICIANS*

Sec. 8-196. Required.

No person shall engage in the business of installing, altering or repairing any electrical

*__Cross reference—__Licenses, taxation and miscellaneous business regulations, Ch. 17.

wiring, fixtures, devices or equipment or doing any electrical work covered by the article without a valid license issued by the Arkansas Board of Electrical Examiners.
(Code 1961, § 12-3(a), 12-12(a), 12-16(b); Ord. No. 17,073, § 4, 1-2-96; Ord. No. 20,971, § 24, 12-16-14)

Sec. 8-197. Reserved.

Editor's note—Ord. No. 20,971, § 25, adopted Dec. 16, 2014, deleted § 8-197 entitled "Exemptions", which derived from Code 1961, § 12-20.

Sec. 8-198. Examinations and license issuance.

(a) Every person desiring to engage in the electrical business in the city, before engaging in such business, shall successfully pass an examination held by the Arkansas Board of Electrical Examiners. Every such person while in the performance of such work shall present a valid license when requested to do so by the electrical inspector.

(b) *Exception - HVACR work.* Any individual licensed or registered to perform HVACR work by the HVACR section of the Protective Codes Division of the Arkansas Department of Health may perform electrical connections to the heating and air conditioning units without obtaining an electrical license to perform the work, so long as the connection is made to a disconnecting means suitable in capacity for the equipment to be serviced and is provided by others within ten (10) feet of the unit.
(Code 1961, §§ 12-12(b), 12-13(a); Ord. No. 17,073, § 4, 1-2-96; Ord. No. 18,551, § 3, 9-4-01; Ord. No. 20,000, § 3, 7-15-08; Ord. No. 20,971, § 26, 12-16-14)

Sec. 8-199. Reserved.

Editor's note—Ord. No. 20,971, § 27, adopted Dec. 16, 2014, deleted § 8-199 entitled "Specialist sign electrical license", which derived from: Code 1961, § 12-13(a), (b), (d); Ord. No. 17,073, § 4, adopted Jan. 2, 1996; Ord. No. 18,551, § 3, adopted Sept. 4, 2001; and Ord. No. 20,000, § 3, adopted July 15, 2008.

Sec. 8-200. Recognition of out-of-state licenses.

The Board of Electrical Examiners of the State of Arkansas regulates the approval or disapproval of out-of-state electrical licenses.
(Code 1961, § 12-22; Ord. No. 18,551, § 3, 9-4-01)

Sec. 8-201. Fraud in connection with license.

It shall be unlawful for any person licensed by the Arkansas Board of Electrical Examiners to alter, transfer, or lend his license certificate or use a license not his own. It shall be unlawful for any person to falsely represent himself to be so licensed or to wrongfully use a license.
(Code 1961, § 12-18; Ord. No. 20,971, § 28, 12-16-14)

Sec. 8-202. Display of license and company name.

(a) Every person licensed by the Arkansas Board of Electrical Examiners shall display such license in his place of business within the city.

(b) All vehicles operated within the city by the various types of electrical contractors shall have the company name stenciled, painted, or suitably attached on each side of the vehicle. The company name shall be in letters of at least two (2) inches in height.
(Code 1961, § 12-17; Ord. No. 20,971, § 29, 12-16-14)

Sec. 8-203. Reserved.

Editor's note—Ord. No. 20,000, § 3, adopted July 15, 2008, deleted § 8-203, which pertained to transfer or assignment and derived from Code 1961, § 12-16.

Sec. 8-204. Suspension or revocation.

The electrical inspector may suspend or revoke the privileges of anyone licensed by the Arkansas Board of Electrical Examiners to be issued electrical permits or do electrical work in the city for any violation of the terms of this article or any ordinance governing the installation or inspection of electrical work.
(Code 1961, § 12-16(a) ; Ord. No. 20,000, § 3, 7-15-08; Ord. No. 20,971, § 30, 12-16-14)

Secs. 8-205—8-220. Reserved.

Secs. 8-221—8-229. Reserved.

Editor's note—Section 3 of Ord. No. 18,551, adopted Sept. 4, 2001, deleted §§ 8-221—8-229, which pertained to classification of licenses and their requirements, and restrictions on specific categories, and derived from the 1961 Code and Ord. No. 15,391, adopted Dec. 9, 1987; Ord. No. 15,777, adopted Nov. 7, 1989; Ord. No. 17,073, adopted Jan. 2, 1996.

Sec. 8-230. Apprentices.

(a) The definition of "electrical apprentice", the requirements of supervision and the licensing of apprentices shall be regulated as set forth by the Arkansas Board of Electrical Examiners.

(b) During investigation or inspection, an electrical company or contractor that is found not to be in compliance with state regulations for apprentices shall be issued a written stop work order by the electrical inspector. Inspection and work may resume only when a re-inspection fee is paid and the company or contractor is found to be in compliance upon re-inspection of the work.
(Code 1961, § 12-14(f); Ord. No. 18,551, § 3, 9-4-01; Ord. No. 20,971, § 31, 12-16-14)

Sec. 8-231. Electrical contractor.

(a) The definition of "electrical contractor", the requirements of supervision and the licensing of electrical contractors shall be regulated by and as set forth by the Arkansas Contractors Licensing Board and the Arkansas Board of Electrical Examiners.

(b) Before any person, firm, partnership or corporation shall engage in the business of electrical contracting, the name, residence and place of business of such person shall be registered with the building codes division permit section. Registration shall include the name of the master electrician managing or supervising the business of such person as superintendent or manager and the date on which such person qualified as a master electrician. Every removal of place of business or change in the name of the organization or change in the licensed master electrician in charge of the business shall require immediate notice thereof to the building codes division permit section. Every electrical contractor shall promptly report the death, resignation or discharge of his master electrician to such permit section.

(c) A licensed master electrician shall not represent more than one (1) firm at a time. The master electrician shall be responsible for the layout and supervision of all electrical installations performed by the company he represents. A qualified master or journeyman electrician shall do the actual work.
(Code 1961, § 12-4(g); Ord. No. 17,073, § 4, 1-2-96; Ord. No. 18,551, § 3, 9-4-01; Ord. No. 20,971, § 32, 12-16-14)

Secs. 8-232—8-236. Reserved.

Editor's note—Section 3 of Ord. No. 18,551, adopted Sept. 4, 2001, deleted §§ 8-232—8-236, which pertained to electrical air conditioning, specialists refrigeration, maintenance, repair and sign contractors, and derived from the 1961 Code and Ord. No. 17,073, adopted Jan. 2, 1996.

Secs. 8-237—8-255. Reserved.

ARTICLE IV. RESERVED*

Secs. 8-256—8-325. Reserved.

ARTICLE V. HOUSING CODE†

DIVISION 1. GENERALLY

Sec. 8-326. Short title.

This article may be cited as the "housing code."
(Code 1961, § 18-1)

***Editor's note—**Section 1 of Ord. No. 18,556, adopted Sept. 4, 2001, repealed Ord. No. 15,302, which pertained to flood loss prevention, and had been codified as art. IV, §§ 8-256—8-263, 8-281—8-284, and 8-301—8-305. Said ordinance further provided for enactment of similar provisions which have been codified, at the discretion of the editor, as a new ch. 13, art. II.

†**Cross reference—**Unsafe buildings and structures, § 20-26 et seq.

Sec. 8-327. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alter or *alteration* means any change or modification in construction or occupancy.

Apartment means a room or a suite of rooms occupied, or which is intended or designed to be occupied, as the home or residence of one (1) individual, family or household, for housekeeping purposes.

Apartment house means any building or portion thereof which is designed, built, rented, leased, let or hired out to be occupied, or which is occupied as the home or residence of more then two (2) families living independently of each other and doing their own cooking in said building, and shall include flats and apartments.

Approved means approved by the building official.

Area as applied to the dimensions of a building, means the maximum horizontal projected area of the building at grade.

Accessory structure means a detached structure subordinate in land coverage to the principle structure located on the same property.

Attic story means any story situated wholly or partly in the roof, so designated, arranged or built as to be used for storage, or habitation.

Basement means a portion of a building located wholly or partly underground.

Bearing wall means a wall which supports any vertical load in addition to its own weight.

Boarding house means a rooming or lodging house where meals are provided.

Building means any structure built for the support, shelter, or enclosure of persons, animals, chattels, or property of any kind. The term "building" shall be construed as if followed by the words "or part thereof".

Building official means the officer or other person, charged with the administration and enforcement of this article or his duly authorized representative.

Chimney means a vertical shaft of masonry, reinforced concrete, or other approved noncombustible, heat-resisting material enclosing one (1) or more flues, for the purpose of removing products of combustion from solid, liquid, or gas fuel.

Department means the department assigned administrative and enforcement authority for this code.

Dilapidated dwelling or structure means a dwelling, dwelling unit, multiple dwelling, apartments, apartment houses, rooming and boarding houses including among others, garages, sheds, and similar accessory structures, which by reason of inadequate maintenance, dilapidation, obsolescence, or abandonment, are unsafe, unsanitary, or which constitute a fire hazard, or are otherwise dangerous to human life and are no longer adequate for the purpose for which they are originally intended. It is the intent of the definition to include any and all structures as may legally come within the scope of the definition of structures as set forth in this section.

Dwelling means any building which is wholly or partly used for or intended to be used for living or sleeping by human occupants whether or not such building is occupied or vacant; provided that temporary housing shall not be regarded as a dwelling. "Dwelling" shall be construed as if followed by the words "or part thereof".

Dwelling unit means any room or group of rooms within a dwelling and forming a single habitable unit with facilities which are used or intended to be used for living, sleeping, cooking and eating, whether or not such unit is occupied or vacant. "Dwelling unit" shall be construed as if followed by the words "or part thereof".

Exit corridor means any corridor or passageway used as an integral part of the exit system. That portion of a corridor or passageway which exceeds the allowable distance of travel to an exit, becomes an exit corridor or passageway.

Exterior wall means a wall, bearing or nonbearing, which is used as an enclosing wall for a building, but which is not necessarily suitable for use as a party wall or fire wall.

Extermination means the control and extermination of insects, rodents, or other pests by eliminating their harborage places; by removing or making inaccessible materials that may serve as their food; by poisoning, spraying, fumigating, trapping, or by any other recognized and legal pest elimination methods as approved by the building official.

Family means in addition to customary domestic servants, either:

(1) An individual or two (2) or more persons related by blood, marriage, adoption, main-

taining a common household in a dwelling unit; or

(2) A group of not more than four (4) persons who are not related by blood, marriage or adoption, living together as a common household in a dwelling unit; or

(3) A group of not more than eight (8) unrelated mentally retarded or physically handicapped persons which may include two (2) additional persons, acting as house parents or guardians, who need not be related to each other, or to any of the mentally retarded or physically handicapped persons in the group.

Floor area means the total area of all habitable space in a room, building or structure.

Flue means a vertical passageway for products of combustion.

Foundation wall means a wall below the first floor extending below the adjacent ground level and serving as support for a wall, pier, column, or other structural part of a building.

Garbage means the animal and vegetable waste resulting from the handling, preparation, cooking and consumption of food.

Grade with reference to a building means, when the curb level has been established the mean elevation of the curb level opposite those walls that are located on, or parallel with and within fifteen (15) feet of street lines; or when the curb level has not been established, or all the walls of the building are more than fifteen (15) feet from street lines, "grade" means the average of the finished ground level at the center of all walls of a building.

Habitable room means a room or enclosed floor space used or intended to be used for living, sleeping, cooking, or eating purposes, excluding bathroom, water closet compartments, laundries, pantries, foyers, or communicating corridors, closets, and storage.

Heating furnaces and boilers includes warm air furnaces, floor-mounted direct-fired unit heaters, hot water heaters, and steam boilers operating at not in excess of fifteen (15) pounds of gauge pressure, used for heating of buildings or structures.

Infestation means the presence within or around a dwelling, of termites, beetles, insects, rodents, or other pests.

Multiple dwelling means any building, or portion thereof, which is designed, built, rented, leased, let or hired out to be occupied, or which is occupied as the home or resident of two (2) or more families living independently of each other and doing their own cooking in the building. "Multiple dwelling" includes flats and apartments.

Occupant means any person over one (1) year of age, living, sleeping, cooking, or eating in, and having legal possession of a dwelling unit or rooming unit.

Openable area means that part of a window or door which is available for unobstructed ventilation and egress which opens directly to the outdoors.

Owner means:

(1) The holder of the title in fee simple and any person, group of persons, company, association or corporation in whose name tax bills on the property are submitted and/or;

(2) Any person who, alone or jointly or severally with other has legal title to any dwelling or dwelling unit, with or without accompanying actual possession thereof, and/or;

(3) Has charge, care or control of any dwelling or dwelling unit, as owner, executor, executrix, administrator, trustee, guardian of the estate of the owner, mortgagee or vendee in possessions, assignee of rents, lessee, or other person of a building, or their duly authorized agent. Any such person thus representing the actual owner shall be bound to comply with the provisions of this article and of rules and regulations adopted pursuant thereto, to the same extent as if he were the owner. It is his responsibility to notify the actual owner of reported infractions pertaining to the property which apply to the owner.

Operator means any person who has charge, care or control of a building or part thereof, in which dwelling units, or rooming units are let.

Ordinary minimum winter conditions means the temperature twenty (20) degrees Fahrenheit above the lowest recorded temperature for the previous fifteen-year period.

Plumbing means the practice materials, and fixtures used in the installation, maintenance, extension, and alteration of all piping fixtures, appliances, and appurtenances in connection with any of the following: Sanitary drainage or storm drainage facilities, the vending system and the public or private water supply systems, within or adjacent to any building, structure or conveyance; also the practice and materials used in the installation, maintenance, extension or alteration of stormwater, liquid waste, or sewage, and water supply systems of any premises to their connection with any point of public disposal or other acceptable terminal.

Premises means a lot, or parcel of land including the buildings or structures thereon. "Premises" shall be construed as if followed by the words "or part thereof."

Public area means an unoccupied open space within or adjoining a building and on the same property, that is permanently maintained accessible to the fire department or other emergency personnel and free of all encumbrances that might interfere with its use.

Repair means the replacement of existing work with current acceptable material, not including additional work, that would change the structural safety of the building, or that would affect or change required exit facilities, a vital element of an elevator, plumbing, gas, piping, wiring or heating installations, or that would be in violation of law or ordinance. The term "repair" shall not apply to any change of construction.

Required means necessitated by some provision of this article.

Residential occupancy means buildings in which families or households live. Such buildings include dwelling and multiple dwellings.

Rooming house means any place or building, or structure consisting of four (4) or more rooms that are used, maintained or advertised to the public where sleeping accommodations are offered to, or provided for guests for pay.

Rooming unit means any room or group of rooms forming a single habitable unit used for or intended to be used for living and sleeping, but not for cooking or eating purposes. "Rooming unit" shall be construed as if followed by the words "or part thereof."

Rubbish means combustible and noncombustible waste materials, except garbage, and the term shall include the residue from the burning of wood, coal, coke, and other combustible material, paper, rags, cartons, boxes, wood excelsior, rubber, leather, tree branches, yard trimmings, tin cans, metal, mineral matter, glass crockery and dust.

Stairway means one (1) or more flights of stairs either exterior or interior with the necessary landings and platforms connecting them, to form a continuous and uninterrupted passage from one (1) story to another in a building or structure.

Structure means that which is built or constructed, an edifice or building of any kind, or any piece of work artificially built up or composed of parts, joined together in some definite manner. The term "structure" shall be construed as if followed by the words "or part thereof."

Substandard dwelling or structure means a dwelling unit, multiple dwelling, apartment, apartment house or any other space used or intended to be used as habitable living space in any building or structure which does not meet the basic requirements of this article for such use.

Supplied means paid for, furnished, or provided by or under control of, the owner or operator.

Temporary housing means any tent, trailer, or other structure used for human shelter which is not attached to the ground, to another structure, or to any utilities system on the same premises for more than thirty (30) consecutive days.

Unsafe dwelling or structure means a dwelling, dwelling unit, multiple dwelling, apartments, apartment houses, rooming and boarding houses including among others, garages, sheds, and similar accessory structures, which by reason of inadequate maintenance, dilapidation, obsolescence, or abandonment, are unsafe, unsanitary, or which

constitute a fire hazard, or are otherwise dangerous to human life and are no longer adequate for the purpose for which they were originally intended. It is the intent of the definition to include any and all structures as may legally come within the scope of the definition of structures as set forth in this section.

Valuation or *value* as applied to a building means the estimated cost to replace the building in kind.

Vent pipe as applied to heating, means a pipe for removing products of combustion from gas appliances.

Ventilation means the process of supplying and removing air by natural or mechanical means to or from any space.

Writing includes handwritten, printed and typewritten.

Yard means the open exterior unoccupied space located on the same property occupied by a building.
(Code 1961, § 18-16(1)—(51), (53), (54); Ord. No. 16,155, § 1, 1-21-92)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 8-328. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 8-329. Intent and purpose.

This article is hereby declared to be remedial, and shall be construed to secure the beneficial interests and purposes thereof, which are public safety, health, and general welfare, through structural strength, stability, sanitation, adequate light and ventilation, and safety to life and property from fire and other hazards incident to construction, alteration, repair, removal, demolition, use and occupancy to dwellings, apartment houses, rooming houses, or buildings, structures or premises used as such.
(Code 1961, § 18-2)

Sec. 8-330. Scope and compliance.

(a) Every building used in whole or in part as a dwelling unit or as two (2) or more dwelling units, or as rooming or boarding houses, shall conform to the requirements of this article irrespective of the primary use of such building, and irrespective of when such building may have been constructed, altered or repaired. No person shall erect, construct, alter, demolish or move any structure in violation of this article.

(b) This article establishes minimum standards for occupancy, and does not replace or modify standards otherwise established for construction, replacement or repair of buildings except such as are contrary to the provisions of this article.
(Code 1961, §§ 18-3, 18-74)

Sec. 8-331. Existing buildings.

(a) The provisions of this article shall apply to any dwelling, apartment house or rooming house irrespective or when the building was construed, altered, or repaired.

(b) If alterations or repairs due to natural deterioration, fire damage or scheduled rehabilitation, costing in excess of fifty (50) percent of the then physical value of the building are made to an existing building, such building shall be made to conform to the requirements of the building code to such extent as the building official may determine.

(c) If the cost of such alterations or repairs, or the amount of such damage, is more than twenty-five (25) but not more than fifty (50) percent, of the then physical value of the building, the portions to be altered or repaired shall be made to conform to the requirements of the building code to such extent as the building official may determine.

(d) Repairs and alterations, not covered by the preceding paragraphs of this section, restoring a building to its condition previous to damage or deterioration, or altering it in conformity with the provisions of the building code or in such manner as will not extend or increase an existing nonconformity or hazard, may be made with the same kind of materials as those of which the building is constructed.

(e) For the purpose of this section, the "physical value" of a building or structure as hereinafter defined, shall be determined by the building official.
(Code 1961, § 18-4)

Sec. 8-332. Notice of violations; correction of violations.

Notices of violations of this article shall be served in the manner provided in chapter 20, article II. Such violations shall be abated in the manner provided in chapter 20, article II.

Sec. 8-333. Maintenance.

All buildings or structures, both existing and new, and all parts thereof, shall be maintained in a safe and sanitary condition. All devices or safeguards which are required by this article in a building when erected, altered, or repaired, shall be maintained in good working order. The owner, or his designated agent, shall be responsible for the maintenance of buildings, structures and premises to the extent set out in this article. The tenant shall be responsible for the maintenance of buildings, structures, and premises to the extent set out in this article.
(Code 1961, § 18-5)

Sec. 8-334. Requirements not covered.

Any requirements, not specifically covered by this article, found necessary for the safety, health, and general welfare of the occupants of any dwelling, shall be determined by the building official subject to appeal to the housing board of adjustments and appeals.
(Code 1961, § 18-11)

Sec. 8-335. Liability.

Any city officer or employee, or member of the housing board of adjustment and appeals, charged with the enforcement of this article, in the discharge of his duties, shall not thereby render himself liable personally; and he is hereby relieved from all personal liability for any damage that may accrue to persons or property as a result of any act required or permitted in the discharge of his duties. Any suit brought against any officer or employee because of this article shall be defended by the city attorney's office until the final termination of the proceedings.
(Code 1961, § 18-12)

Sec. 8-336. Utility services to unsafe dwellings or structures.

The city shall not provide, nor permit another to provide (either public or private) utility services such as water, gas and electricity, sewer, etc., to any dwelling unit having been declared unsafe and becoming vacant until such dwelling unit has been inspected and brought into compliance with this article. The requirement shall not preclude the temporary use of such utility services as may be deemed necessary during construction, repair or alteration. The building official shall be responsible for making the determination as to when such "temporary services" may be necessary.
(Code 1961, § 18-14(b); Ord. No. 16,155, § 2, 1-21-92)

Secs. 8-337—8-350. Reserved.

DIVISION 2. ADMINISTRATION AND ENFORCEMENT

Part 1. General Provisions

Sec. 8-351. Enforcement officer.

The building official shall enforce this article.
(Code 1961, §§ 18-6, 18-9)

Sec. 8-352. Restrictions on employees.

No officer or employee connected with the department, except one whose only connection is as member of the board, established by this article, shall be financially interested in the furnishing of labor, material, or appliances for the construction, alteration, or maintenance of a building. No such officer or employee shall engage in any work which is inconsistent with his duties or with the interests of the department.
(Code 1961, § 18-7)

Sec. 8-353. Records.

The building official shall keep, or shall cause to be kept, a record of the business of the department. The records of the department shall be open to public inspection.
(Code 1961, § 18-8)

Sec. 8-354. Reports.

The building official shall annually submit a report to the chief administrator covering the work of the department during the preceding year. He shall incorporate in said report a summary of the decisions of the housing board of adjustments and appeals.
(Code 1961, § 18-13)

Sec. 8-355. City's right of entry.

The building official and his duly authorized representative upon presentation of proper identification to the owner, agent, or tenant in charge of such property, may enter any building, structure, dwelling, apartment, apartment house, or premises, during all reasonable hours, except in cases of emergency where extreme hazards are known to exist which may involve the potential loss of life or severe property damage, in which case the above limitations shall not apply.
(Code 1961, § 18-9)

Sec. 8-356. Service of written notices.

Written notice shall be considered to have been served if delivered at, or sent by certified mail to, the last business or residential address known to the party giving the notice.
(Code 1961, § 18-16(52))

Sec. 8-357. Inspections.

(a) The building official shall make or cause to be made inspections to determine the condition of dwellings, dwelling units, rooming houses, boarding houses, and premises in the interest of safeguarding the health and safety of the occupants of dwellings and of the general public. For the purpose of making such inspection, the building official is hereby authorized to enter, examine, and survey at all reasonable times, all dwellings, dwelling units, rooming houses, boarding houses and premises. The owner or occupant of every dwelling unit, dwelling, boarding or rooming unit, or the person in charge thereof, shall give the building official free access to such dwelling, dwelling unit, or rooming unit or boarding house and its premises, at all reasonable times for the purpose of such inspection, examination, and survey.

(b) No building, plumbing, electrical, gas, or other permit, as may be required for an addition, alteration or repair of an existing unsafe dwelling unit shall be issued until such time as an inspection of the property has been made to determine the feasibility of rehabilitation of such dwelling unit.

(c) It shall be unlawful for any person to interfere with, molest, injure, harass, obstruct, or prevent the building official or his duly authorized representative in the discharge of his duties.
(Code 1961, § 18-14(a), (c); Ord. No. 16,155, § 3, 1-21-92)

Sec. 8-358. Appeal rights.

(a) Where the literal application of the requirements of this article would appear to cause undue hardship on an owner or tenant or when it is claimed that the true intent and meaning of this article have been misconstrued or wrongly interpreted, the owner of such building or structure, or his duly authorized agent, may appeal from the decision of the building official to the housing board of adjustments and appeals.

(b) Life safety violations are not subject to the appeal process established in the preceding paragraph. Failure to correct life safety violations within the time specified by the building official shall be directed to municipal court.
(Code 1961, § 18-15; Ord. No. 17,053, § 1, 12-19-95)

Secs. 8-359—8-375. Reserved.

*Part B. Housing Board of Adjustments and Appeals**

Sec. 8-376. Created.

There is created a board to be known as the housing board of adjustments and appeals.
(Code 1961, § 18-26(a))

***Cross reference**—Boards and commissions generally, § 2-261 et seq.

Sec. 8-377. Members.

(a) The housing board of adjustments and appeals shall consist of five (5) members appointed by the board of directors. The members shall be residents of the governed area. Members of the board shall be appointed for terms of four (4) years each.

(b) Members may be replaced by the board of directors for cause upon stated charges after a public hearing before the board of directors. Vacancies shall be filled by the board of directors for the unexpired terms.

(c) Continued absence of any member from regular meetings of the board shall, at the discretion of the board of directors, render such member liable to immediate removal from office.

(d) Members shall serve without compensation.
(Code 1961, § 18-26(a), (b))

Sec. 8-378. Officers.

At its first meeting of each year the housing board of adjustments and appeals shall elect a chairman, vice-chairman and secretary.
(Code 1961, § 18-26(c))

Sec. 8-379. Meetings.

The housing board of adjustments and appeals shall hold meetings on call at which meetings all appeals on file shall be considered and acted upon by the board. Regular or special meetings may be called by the chairman at any time. Reasonable notice of the place, time and date of such meetings shall be given all the members of the board and all appellants in each case to be heard by the board.
(Code 1961, § 18-27; Ord. No. 16,155, § 4, 1-21-92)

Sec. 8-380. Records and secretary's duties.

All minutes of the housing board of adjustments and appeals shall be public records and the secretary of the board shall keep all records and perform such additional duties as the board may deem proper.
(Code 1961, § 18-28)

Sec. 8-381. Duties.

The housing board of adjustments and appeals shall:

(1) Consider and determine appeals whenever it is claimed that the true intent and meaning of this article have been misconstrued or wrongly interpreted.

(2) Permit, in appropriate cases where the application of the requirements of this article in the allowance of the stated time for the performance of any action required hereunder would appear to cause undue hardship on an owner, a reasonable extension of time; provided, however, no such extension shall be granted for more than twelve (12) months from the date of such notice.

(Code 1961, § 18-29)

Sec. 8-382. Procedures.

The housing board of adjustments and appeals shall establish its own rules for procedures for accomplishment of its duties and functions, provided that such rules shall not be in conflict with the provisions of this article and the laws of the state.
(Code 1961, § 18-30)

Sec. 8-383. Fiscal procedures.

The housing board of adjustments and appeals is subject to all fiscal procedures of the city.

Sec. 8-384. Appeals and variances.

(a) The housing board of adjustments and appeals, when so appealed to and after a hearing, may vary the application of any provision of this article to any particular case when in its opinion, the enforcement thereof would do manifest injustice, and would be contrary to the spirit and purpose of this article or public interest, or when in its opinion the interpretation of the building official should be modified or reversed.

(b) A decision of the housing board of adjustments and appeals to vary the application of any provision of this article or to modify an order of the building official shall specify in what manner

such variation or modification is made, the condition upon which it is made and the reasons therefor.

(c) Every decision of the housing board of adjustments and appeals shall be final, subject however, to such remedy as any aggrieved party might have at law or in equity.

(d) It shall be in writing, and shall indicate the vote upon the decision. Every decision shall be promptly filed in the office of the building official and shall be open to public inspection; a certified copy shall be sent by mail or otherwise to the applicant and a copy shall be kept posted in the office of the building official for two (2) weeks after filing.

(e) The housing board of adjustments and appeals shall in every case reach a decision without unreasonable or unnecessary delay.

(f) If a decision of the housing board of adjustments and appeals reverses or modifies a refusal, order, or disallowance of the building official, or varies the application of any provision of this article, the building official shall immediately take action in accordance with such decision.

(g) Any person receiving written notice from the building official of deficiencies in his property under this article may within thirty (30) days following the date of the notice enter an appeal in writing to the housing board of adjustment and appeals. Such appeal shall state the location of the property, the date of the notice of violations, and the number of such notice. The appellant must state the variance or modification requested, the reasons therefor, and the hardship or conditions upon which the appeal is made. No appeal filed later than thirty (30) days after the date of such notice shall be acted upon by the housing board of adjustments and appeals, unless the building official shall consent thereto. In case of a building or structure which, in the opinion of the building official is unsafe or dangerous, the building official may, in his order, limit the time for such appeal to a shorter period. Appeals shall be on forms provided by the building official.

(h) It shall be the responsibility of the appellant to notify all interested parties of his appeal. Furthermore, the appellant must provide the secretary of the board no less than twenty-four (24) hours prior to the hearing a list of said parties and their interest.
(Code 1961, §§ 18-32, 18-33; Ord. No. 16,155, § 5, 1-21-92)

Secs. 8-385—8-400. Reserved.

DIVISION 3. MINIMUM STANDARDS

Part A. General Provisions

Sec. 8-401. Compliance.

Except as otherwise provided no person shall occupy as owner-occupant or let or sublet to another for occupancy any dwelling or dwelling unit designed or intended to be used for the purpose of living, sleeping, cooking, or eating therein, nor shall any vacant dwelling building be permitted to continue which does not comply with the requirements of this article or related articles.
(Ord. No. 16,155, § 6, 1-21-92)

Sec. 8-402. Rooming houses.

(a) *Generally.* No person shall operate a rooming or boarding house, or shall occupy or let or sublet to another for occupancy any rooming unit in any rooming or boarding house, except in compliance with the provisions of every section of this article except the provisions of sections 8-403 and 8-407.

If food preparation and/or eating facilities are provided, they shall be required to meet the requirements set forth under the rules and regulations pertaining to food service establishments as regulated by the Arkansas State Health Department.

(b) *License.* No person shall operate a rooming house or boarding house unless he holds a valid rooming or boarding house license.

(c) *Water closet, lavatory and bath facilities.*

(1) At least one (1) flush water closet, lavatory basin, and bathtub or shower, properly connected to a water and sewer system and in good working condition, shall be sup-

plied for each four (4) rooms within a rooming or boarding house wherever the facilities are shared.

(2) All such facilities shall be located on the floor they serve within the dwelling so as to be reasonably accessible from a common hall or passageway to all persons sharing such facilities.

(3) The water closet, tub or shower and lavatory shall be located in a room with an approved door and locking mechanism to provide privacy to the user.

(d) *Water heater required.* Every lavatory basin and bathtub or shower shall be supplied with hot water at all times.

(e) *Minimum floor area for sleeping purposes.* Every room occupied for sleeping purposes by one (1) person shall contain at least seventy (70) square feet of floor space and every room occupied for sleeping purposes by more than one (1) person shall contain at least fifty (50) square feet of floor space for each occupant thereof.

(f) *Exit requirements.* Every room unit shall have safe, unobstructed means of egress leading to safe and open space at ground level, as required by the laws of the governed area or of the state.

(g) *Sanitary conditions.* The operator of every rooming or boarding house shall be responsible for the sanitary maintenance of all walls, floors, ceilings, and premises, and shall be further responsible for the extermination of all insects, rodents or other pests where the entire structure or building is leased, occupied or controlled by the operator.

(Code 1961, § 18-61; Ord. No. 16,155, § 7, 1-21-92)

Sec. 8-403. Required facilities.

(a) *Sanitary facilities required.* Every dwelling unit shall contain not less than a kitchen sink, lavatory, tub or shower and a water closet all in good working condition and properly connected to any approved water and sewer system. Every plumbing fixture and water and waste pipe shall be properly installed and maintained in good sanitary working condition, free from defects, leaks, and obstructions.

(b) *Location of sanitary facilities.* All required plumbing fixtures shall be located within the dwelling unit and be accessible to the occupants of same. The water closet, tub, or shower and lavatory shall be located in a room affording privacy to the user.

(c) *Hot and cold water supply.* Every dwelling unit shall have connected to the kitchen sink, lavatory, and tub or shower an adequate supply of both cold water and hot water. All water must be supplied through an approved pipe distribution system connected to an approved potable water supply.

(d) *Water heating facilities.* Every dwelling shall have water heating facilities which are properly installed and maintained in a safe and good working condition and are capable of heating water to such a temperature as to permit an adequate amount of water to be drawn at every required kitchen sink, lavatory basin, bathtub or shower at a temperature of not less than one hundred twenty (120) degrees Fahrenheit. All water heaters shall be equipped with approved temperature and pressure relief valves, and a relief line of proper size leading to a safe area for discharge.

(e) *Heating facilities.* Every dwelling unit shall have heating facilities which are properly installed and maintained in safe and good working condition, or shall be provided with sufficient fireplaces, chimneys, flues, or gas risers whereby heating appliances may be connected so as to furnish a minimum temperature of sixty-eight (68) degrees Fahrenheit in all habitable rooms and bathrooms, measured at a point three (3) feet above the floor during ordinary winter conditions. Shut-off valves are required on gas risers when an appliance is connected to the riser. All gas risers are required to be properly capped or plugged when not connected to an appliance.

(f) *Cooking and heating equipment.* All cooking and heating equipment and facilities shall be installed in accordance with the building, gas or electrical code and shall be maintained in a safe and good working condition.

(g) *Garbage disposal facilities.* Every dwelling unit shall have adequate garbage disposal facili-

ties or garbage storage containers, the type and location of which facilities or containers are approved by the city.
(Code 1961, § 18-40; Ord. No. 16,155, § 8, 1-21-92; Ord. No. 17,053, § 2, 12-19-95)

Sec. 8-404. Light and ventilation.

(a) *Light and ventilation.* Every habitable room shall have at least one (1) window or skylight facing directly to the outdoors. The minimum total window area, measured between stops, for every habitable room shall be eight (8) percent of the floor area of such room. Whenever walls or other portions of structures face a window of any such room and such light obstruction structures are located less than five (5) feet from the window and extend to a level above that of the ceiling of the room, such a window shall not be deemed to face directly to the outdoors and shall not be included as contributing to the required minimum total window area. Whenever the only window in a room is a skylight-type widow in the top of such room, the total window area of such skylight shall equal at least fifteen (15) percent of the total floor area of such room.

(b) *Habitable rooms.* Every habitable room shall have at least one (1) window or skylight which can easily be opened, or such other device as will adequately ventilate the room. The total of openable window area in every habitable room shall equal at least forty-five (45) percent of the minimum window area size or minimum skylight-type window size, as required, or shall have other approved, equivalent ventilation.

(c) *Bathroom.* Every bathroom shall comply with the light and ventilation requirements for habitable rooms except that no window or skylight shall be required in adequately ventilated bathrooms equipped in adequately ventilated bathrooms equipped with an approved ventilation system capable of continuous operation while the room is in use.

(d) *Electric lights and outlets.*

(1) Every dwelling unit shall be wired for electric lights and convenience receptacles. Every habitable room of such dwelling shall contain at least two (2) duplex floor or wall type electric outlets. Every kitchen, bathroom, bedroom, laundry room, furnace room, corridor, hallway and porch shall contain at least one (1) supplied ceiling or wall type electric light fixture with approved wall switch. Every bathroom shall be equipped with one (1) ceiling or wall type electric light fixture with approved wall switch. Every bathroom shall also contain one (1) outlet capable of being connected for use at the lavatory without an extension device. Every such outlet and fixture shall be properly installed and maintained in good working condition and shall be connected to the source of electric power in a safe manner.

(2) When enforcing authority feels that installation of a wall switch is impractical an approved ceiling mounted pull-chain type light fixture may be used except in the bathroom and/or over kitchen sinks and on the exterior.

(3) Every exterior exit shall be provided with adequate exterior lighting controlled by an interior mounted switch at each exit.

(e) *Light in public halls and stairways.* Every public hall and stairway in every multiple dwelling containing two (2) or more dwelling units shall be adequately lighted at all times.
(Code 1961, § 18-41; Ord. No. 16,155, § 9, 1-21-92; Ord. No. 17,053, § 3, 12-19-95)

Sec. 8-405. Electrical systems.

(a) All electrical fixtures, receptacles, equipment and wiring shall be maintained in a state of good repair, safe, capable of being used and installed and connected to the source of electric power in accordance with the electrical code.

(b) Where the determination is made, upon examination of the existing electrical service supply, that such service supply is obsolete or is being used in such a manner as would constitute a hazard to the occupants or would otherwise constitute a hazard to life and property; the minimum capacity of the service and the main disconnect switch shall be increased to adequately carry the total load required in accordance with the electrical code of the city.

(c) The minimum capacity of the service and the main disconnect switch shall be sufficient to adequately carry the total load required in accordance with the electrical code.
(Code 1961, § 18-42; Ord. No. 16,155, § 10, 1-21-92)

Sec. 8-406. Minimum dwelling space requirements.

(a) *Required space in dwelling unit.* Every dwelling unit shall contain at least one hundred fifty (150) square feet of floor space for the first occupant thereof and at least one hundred (100) additional square feet of floor space per additional occupant.

(b) *Required space in sleeping rooms.* In every dwelling unit of two (2) or more rooms, every room occupied for sleeping purposes by one (1) occupant shall contain at least (70) square feet of floor space. Every room occupied for sleeping purposes by more than one (1) occupant shall contain at least fifty (50) square feet of floor space for each occupant thereafter.

(c) *Minimum ceiling height.* At least one-half of the floor area of every habitable room, foyer, hall or corridor shall have a ceiling height of at least seven (7) feet and the floor area of that part of any room where the ceiling is less than seven (7) feet shall not be considered as part of the floor area in computing the total area of the room for the purpose of determining the maximum permissible occupancy thereof.

(d) *Occupancy of dwelling and unit below grade.* No basement space shall be used as a habitable room or dwelling unit unless:

(1) The floor and walls are impervious to leakage of underground surface runoff water and are insulated against dampness.

(2) The total window area in each room is equal to at least the minimum window area size required in section 8-404, subsection (a).

(3) Such required minimum window area is located entirely above the grade of the ground adjoining such window area.

(4) The total of openable window area in each room is equal to at least the minimum as required under section 8-404, subsection (b) except where there is supplied some other device affording adequate ventilation.

(Code 1961 § 18-59; Ord. No. 16,155, § 11, 1-21-92; Ord. No. 17,053, § 4, 12-19-95)

Sec. 8-407. Sanitation requirements.

(a) *Responsibility.* Every owner of a structure containing two (2) or more dwelling units shall be responsible for maintaining in a clean and sanitary condition the shared or public area of the dwelling and premises thereof.

(b) *Cleanliness.* Every occupant of a dwelling unit shall keep in a clean and sanitary condition that part of the dwelling, dwelling unit and premises thereof which he controls and occupies or which is provided for particular use.

(c) *Garbage disposal.* Every occupant of a dwelling or dwelling unit shall dispose of all his garbage and any other organic waste which provide food for rodents and all rubbish in a clean and sanitary manner by placing it in the garbage disposal facilities or rubbish storage containers.

(d) *Care of premises.* It shall be unlawful for the owner or occupant of a residential building, structure or property to utilize the premises of such residential property for the open storage of any abandoned motor vehicle, icebox, refrigerator, stove, glass, building material, building rubbish or similar items. It shall be the duty and responsibility of every such owner or occupant to keep the premises of such residential property clean and to remove from the premises all such abandoned items as listed above, including but not limited to weeds, dead trees, trash, garbage, etc. upon notice from the building official. In this subsection "abandoned motor vehicle" means a motor vehicle that is in a state of disrepair and incapable of being moved under its own power, and/or does not have a current safety inspection and license plate.

(e) *Extermination.* Every occupant of a single-dwelling unit and every owner of a building containing two (2) or more dwelling units shall be

responsible for the extermination of any insects, rodents, or other pests within the building or premises.

(f) *Use and operation of supplied plumbing fixtures.* Every occupant of a dwelling unit shall keep all plumbing fixtures therein in a clean and sanitary condition and shall be responsible for the exercise of reasonable care in the proper use and operation thereof.

(g) *Precautions to prevent accumulation of water.* Every yard shall be properly graded and the necessary precautions taken to prevent the accumulation of water under all structures located on premises.
(Code 1961, § 18-60)

Secs. 8-408—8-420. Reserved.

Part B. Structural Requirements

Sec. 8-421. Foundation and underpinning.

(a) The building foundation walls, underpinning, piers, or other structural elements shall be maintained in a safe manner and capable of supporting the load which normal use may cause to be placed thereon.

(b) Underpinning, and foundation wall, when present must be constructed to allow adequate cross ventilation with proper vents and access door.
(Code 1961, § 18-44)

Sec. 8-422. Exterior walls.

The exterior wall shall be substantially weathertight, watertight, and shall be made impervious to the adverse effect of weather and be maintained in sound condition and good repair.
(Code 1961, § 18-45)

Sec. 8-423. Roofs and overhangs.

Roofs and overhangs shall be maintained in a safe manner and be structurally sound and have no defects which might admit rain or cause dampness in the walls or interior portion of the building.
(Code 1961, § 18-46; Ord. No. 16,155, § 12, 1-21-92)

Sec. 8-424. Means of egress.

Every dwelling unit shall have safe, unobstructed means of egress with minimum ceiling height as required by the building code, leading to a safe and open space at ground level. Habitable areas above two (2) stories shall have an approved auxiliary means of exit leading to a safe and open space at ground level.
(Code 1961, § 18-46; Ord. No. 16,155, § 12, 1-21-92)

Sec. 8-425. Stairs, porches and appurtenances.

Every inside and outside stair, porch and any appurtenances thereto shall be safe to use and capable of supporting the load that normal use may cause to be placed thereon, and shall be kept in sound condition and good repair.
(Code 1961, § 18-48)

Sec. 8-426. Protective railings.

Steps, porches and landings above fifty-four (54) inches from ground level of all dwelling units and structures shall provide properly constructed banisters and handrails. Existing handrails and banisters on steps, porches and landings which are less than fifty-four (54) inches from ground level shall be properly constructed and maintained, or they may be removed at the option of the owner.
(Code 1961, § 18-49; Ord. No. 16,155, § 14, 1-21-92; Ord. No. 17,053, § 5, 12-19-95)

Sec. 8-427. Windows and doors.

Every window, exterior door and basement door and hatchway shall be weathertight, and rodentproof, and shall be kept in sound working condition and in good repair, and shall be provided with proper hardware and locking devices.
(Code 1961, § 18-50; Ord. No. 16,155, § 15, 1-21-92)

Sec. 8-428. Windows.

Window sashes shall be properly fitted and weathertight within the frame. Windowpanes or an approved substitute shall be maintained without cracks or holes.
(Code 1961, § 18-51)

Sec. 8-429. Windows to be openable.

Every window or skylight required for light and ventilation for habitable rooms shall be capable of being opened and secured in position.
(Code 1961, § 18-52)

Sec. 8-430. Door frames.

Every door shall fit reasonably well within its frame.
(Code 1961, § 18-53)

Sec. 8-431. Screens.

(a) Every window opening to outdoor space shall have the lower half of the sash screened. All screens shall be properly constructed and installed in frames.

(b) Dwelling units equipped with central mechanical ventilation for the entire dwelling are not required to have screens on window openings.

(c) Any room of dwelling unit having a properly installed and operating window-type air conditioning unit is not required to have screens on window openings.
(Code 1961, § 18-54; Ord. No. 16,155, § 16, 1-21-92; Ord. No. 17,053, §§ 6, 7, 12-19-95)

Sec. 8-432. Protective treatment.

(a) All exterior wood surfaces, other than decay-resistant woods, shall be protected from the elements and decay by painting or other protective covering or treatment.

(b) Each side or elevation of a structure shall be inspected independently of the other sides to determine if painting or a protective treatment is required. The following percentages shall be based upon the areas of the side or elevation where wood or primer coat is exposed:

(1) Zero (0) to fifteen (15) percent of the square feet of the paintable surface: Painting or other protective treatment shall not be required.

(2) Sixteen (16) to thirty-five (35) percent of the square feet of the paintable surface: Spot painting or protective treatment of only the exposed area shall be required.

(3) Thirty-six (36) percent or greater of the square feet of the paintable surface: Painting or protective treatment of the entire side or elevation shall be required.

(4) Painting or protective treatment shall be required on all new wood.

(c) Garages, storage buildings, and other accessory structures shall be maintained and kept in good repair and sound structural condition, and shall have protective treatment as provided in subsection (a) of this section.
(Code 1961, § 18-55; Ord. No. 17,053, § 8, 12-19-95)

Sec. 8-433. Interior floors, walls, and ceilings.

Every interior floor, wall, and ceiling shall be rodent-proof and, shall be kept in sound condition and good repair, and be properly covered or finished to allow adequate sanitary conditions, and shall be safe to use and capable of supporting the load which normal use may cause to be placed thereon. Floors in rooms where plumbing fixtures and/or plumbing pipes are located must have a water impervious covering or finish.
(Code 1961, § 18-56; Ord. No. 16,155, § 17, 1-21-92)

Sec. 8-434. Structural support.

Every structural element of the dwelling shall be maintained structurally sound and show no evidence of deterioration which would render it incapable of carrying loads which normal use may cause to be placed thereon.
(Code 1961, § 18-57)

Sec. 8-435. Protective railings for interior stairs.

Interior stairs and stairwells more than four (4) risers high shall have handrails located in accordance with the requirements of the building code. Handrails or protective railings shall be capable of bearing normally imposed loads and be maintained in good condition.
(Code 1961, § 18-58; Ord. No. 16,155, § 18, 1-21-92; Ord. No. 17,053, § 9, 12-19-95)

Secs. 8-436—8-470. Reserved.

ARTICLE VI. PLUMBING CODE*

DIVISION 1. GENERALLY†

Sec. 8-471. Short title.

(a) *[Citation.]* This article may be cited as the "plumbing code".

(b) *Definitions.*

(1) *Administrative authority.* The individual inspector, board, department or agency established and authorized by the city board of directors to administer and enforce the provisions of the plumbing and natural gas code as adopted or amended.

(2) *Department* shall mean the department of planning and development.

(3) *Inspector.* The term[s] plumbing and gas inspector's supervisor, [and] plumbing and gas inspector, for enforcement purposes of this code, shall have the same meaning as that of the city manager or his/her duly authorized representatives.

(4) *Jurisdiction* shall mean within the city limits of Little Rock.

(5) *Plumbing* includes all piping, fixtures, appliances and appurtenances in connection with the water supply and the drains, waste and venting system within the building perimeter and the underground water service line from building to the wastewater utility connection. (Jurisdiction of Little Rock Wastewater Utility) All natural gas piping beginning at the outlet side of the meter up to and within the building perimeter, all appliances utilizing natural gas and their connection to the gas house piping including the venting, air-distribution system and the combustion air source to the appliance.

(6) *Alterations.* The alteration of any such systems except minor repairs to faucets, valves, piping, appliances and removal of stoppages from the drain, waste and vent system.

(7) *Minor repairs.* The term minor repairs shall be limited to removing stoppages from the drain, waste and vent system including the sewer service, repairing leaks in the water piping, drains waste and vent system by placing a temporary clamping device on the pipe to stop or retard the leak pending permanent repair or replacement, rewashering of faucets and valves, lubricating and/or replacing O rings of same.

(8) *Roughing-in* is the installation of all parts of the plumbing, gas piping system which can be completed prior to the installation of fixtures and appliances. This includes drainage, water supply, vent piping, gas house piping, air-distribution ducts, and the necessary supports and anchors for same.

(9) *Unlawful.* The term unlawful as used in this code shall mean unlawful insofar as the city has jurisdiction within its police powers.

(Ord. No. 20,001, § 1, 7-15-08; Ord. No. 21,246, § 1, 6-7-16)

Sec. 8-472. Penalty.

Any person, firm or corporation who engages in or follows the business or occupation of, or advertises or holds himself or itself out as or acts as a plumbing, gas fitter contractor without first having obtained the required licenses and permits

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***Note—**Section 33 of Ord. No. 20,971 renamed art. VI from "Plumbing, Natural Gas" to "Plumbing Code", as set out herein.

†**Editor's note—**Ord. No. 20,001, § 1, adopted July 15, 2008, amended div. 1 in its entirety and enacted similar provisions as set out herein. The former div. 1 derived from Ord. No. 17,231, § 1, adopted July 2, 1996; Ord. No. 17,232, § 1, adopted July 2, 1996; Ord. No. 17,233, § 1, adopted July 2, 1996; Ord. No. 17,777, § 2, adopted July 7, 1998; Ord. No. 18,280, § 1, adopted May 16, 2000; Ord. No. 18,552, § 1, adopted Sept. 4, 2001; Ord. No. 19,155, § 2, adopted Aug. 2, 2004; Ord. No. 19,251, § 1, adopted Dec. 21, 2004; Ord. No. 19,639, § 1, adopted Nov. 21,, 2006; Ord. No. 19,997, § 1, adopted July 15, 2008; and Ord. No. 19,999, § 1, adopted July 15, 2008.

or who otherwise violates any provisions of this code shall be punished as provided in section 1-9, Penalty for Violation.
(Ord. No. 20,001, § 1, 7-15-08)

Sec. 8-473. Civil liability.

This article shall not be construed to relieve from or lessen the responsibilities of any person owning, operating or installing plumbing and gas pipes, appliances, apparatus, construction or equipment for the damage to property or person injured by any defect therein. The city or any agent thereof shall not be deemed to assume any such liability by reason of the inspection authorized herein of the certificate of inspection issued by the plumbing inspection supervisor.
(Ord. No. 20,001, § 1, 7-15-08)

Sec. 8-474. State codes adopted.

(a) (1) The "2018 Arkansas Plumbing Code" with 2018 Revisions and Appendixes B, C, D, E and F.

(2) Notwithstanding the provisions of subsection a. above, the city, consistent with other provisions of Arkansas state law, shall set the job qualifications for its employees. No job qualifications contained in the 2018 Arkansas Plumbing Code are adopted in any form whatsoever.

(b) (1) The "2018 Arkansas Fuel Gas Code" with 2018 Revisions and Appendixes A, B, C and D.

(2) No job qualifications contained in the 2018 Arkansas Fuel Code are adopted in any form whatsoever.

(c) The "2021 International Mechanical Code" with 2021 Revisions and Appendix A is adopted by reference.

(d) In the event of a conflict between the publications in subsections (a), (b) or (c), the more stringent provisions shall govern.

(e) Notwithstanding the provisions of subsections (a), (b) and (c) above, the city, consistent with other provisions of Arkansas state law, shall set the job qualification for its employees. No job qualifications contained in the 2021 International Mechanical Code are adopted in [any] form whatsoever.
(Ord. No. 20,001, § 1, 7-15-08; Ord. No. 20,345, § 2, 10-19-10; Ord. No. 20,971, § 34, 12-16-14; Ord. No. 22,198, § 1, 12-6-22; Ord. No. 22,199, § 1, 12-6-22; Ord. No. 22,201, § 2, 12-6-22)

DIVISION 2. ADMINISTRATION AND ENFORCEMENT*

Part A. General Provisions

Sec. 8-475. Supervision and authority of department.

The planning and development department of the city under the supervision and direction of the city manager shall be responsible for carrying out the provisions of this code. The department shall act in an advisory capacity to the board of directors in the preparation of ordinances pertaining to this code. The formulation of rules and regulations pertaining to enforcement of the ordinances shall be made by the department with approval of the city manager.
(Ord. No. 20,001, § 2, 7-15-08)

Sec. 8-476. Liability of the plumbing, gas inspectors.

Where action is taken by the plumbing and gas inspector to enforce the provision of this code, such action shall be in the name of and on behalf of the city and the inspectors in so acting for the city shall not render themselves personally liable for any damage which may occur to persons or property as a result of an action committed in good faith in the discharge of their duties and any suits brought against any inspector by reason thereof shall be defended by the city attorney until termination of the proceedings contained therein.
(Ord. No. 20,001, § 2, 7-15-08)

*__Editor's note—__Ord. No. 20,001, § 2, adopted July 15, 2008, amended div. 2 in its entirety and enacted similar provisions as set out herein. The former div. 2 derived from Ord. No. 17,232, § 2, adopted July 2, 1996; and Ord. No. 18,552, § 2, adopted Sept. 4, 2001.

Sec. 8-477. Limitations of the plumbing and gas inspectors.

The plumbing and gas inspectors shall not be interested in any business engaged in plumbing or gas piping systems or the sale of the same or any part thereof, either directly or indirectly.
(Ord. No. 20,001, § 2, 7-15-08; Ord. No. 20,971, § 35, 12-16-14)

Sec. 8-478. Duties of the plumbing and gas inspectors.

It shall be the duty of the plumbing and gas inspectors to inspect all plumbing and natural gas piping systems for compliance with this code and all other codes having jurisdiction in all buildings, old or new, to include underground service lines, private or public, rural or urban, where such buildings and underground service lines are located within the inspection jurisdiction of the city.
(Ord. No. 20,971, § 36, 12-16-14)

Sec. 8-479. Inspector's right of entry.

Should the inspectors be denied entry to any building that [in which] they have reason to believe an unsafe or hazardous situation may exist, the inspector shall have the authority to call upon the Little Rock Police Department for aid and assistance in securing warrants for the right to enter and inspect such buildings.
(Ord. No. 20,001, § 2, 7-15-08)

Sec. 8-480. Disconnection of utilities by city.

The administrative authority may cause the turning off of all water and gas utilities or discontinuance of sewer services which are deemed by same to be in an unsafe condition or which have not been installed in conformity with the provisions of this article. No persons shall supply or cause to be supplied any public water, gas or sewer utility which has been deemed by the administrative authority to be in an unsafe condition or which has not been installed in conformity with the provisions of this article and from which the administrative authority has caused the public utility to be turned off.
(Ord. No. 20,001, § 2, 7-15-08)

Sec. 8-481. Final clearance before furnishing utility service.

It shall be unlawful for any person to furnish natural gas or water to any new building, tent, structure or outdoor piping of any kind, nature or description without first obtaining a clearance from the administrative authority stating that such plumbing is approved and a permit has been issued where necessary.
(Ord. No. 20,001, § 2, 7-15-08)

Secs. 8-482—8-500. Reserved

DIVISION 3. LICENSES, PERMITS AND FEES*

Sec. 8-501. Licensing of contractors, plumbers, gas fitters.

No person, firm or corporation shall install any part of the plumbing, gas piping system where such systems are located in the inspection jurisdiction of the city unless at all times a currently licensed master plumber, HVACR/mechanical gas fitter, and/or a supervising gas fitter that resides in the state [one] of whom shall be responsible for proper installation, etc., and shall not serve as master plumber, HVACR/mechanical gas fitter and/or supervising gas fitter for any other person, firm or corporation while serving as such for said company.
(Ord. No. 20,001, § 3, 7-15-08)

Sec. 8-502. State license requirements.

All master plumbers, journeyman plumbers, apprentice plumbers, supervising gas fitters, gas fitters, gas fitter trainees, shall be licensed by the state as same before repairing, replacing, altering or installing any part of the plumbing, and natural gas piping systems where such systems are located within the jurisdiction of the city.
(Ord. No. 20,001, § 3, 7-15-08)

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*__Editor's note—__Ord. No. 20,001, §§ 3, 4, adopted July 15, 2008, amended div. 3 in its entirety and enacted similar provisions as set out herein. The former div. 3 derived from Ord. No. 17,232, §§ 3, 4, adopted July 2, 1996; and Ord. No. 18,552, §§ 3, 4, adopted Sept. 4, 2001.

Sec. 8-503. Gas fitters limitations.

All categories of gas fitters are limited to gas plumbing.
(Ord. No. 20,001, § 3, 7-15-08)

Sec. 8-504. License holders.

Each holder of a master plumber, journeyman plumber, apprentice plumber, supervising gas fitter, gas fitter, and gas fitter trainee's license shall carry evidence of proper registration on

their person at all times while engaged in such work and shall produce and exhibit same when requested by an inspector or officer of this city.
(Ord. No. 20,001, § 3, 7-15-08)

Sec. 8-505. License fees.

In addition to individuals being licensed to prove their competency, each person, firm or corporation engaged in the contracting for or the installation of the plumbing, gas piping systems, equipment or appurtenances shall pay to the city collector's office a privilege license fee set by the city board of directors.
(Ord. No. 20,001, § 3, 7-15-08)

Sec. 8-506. State contractor's licensing board.

On any project where the cost of work is twenty thousand dollars ($20,000.00) or more, with the exception of a single-family residence, an Arkansas State Contractor's License is required by same, located at 4100 Richards Rd., North Little Rock, AR 72202.
(Ord. No. 20,001, § 3, 7-15-08)

Sec. 8-507. Vehicle signs.

All vehicles used by plumbing, and gas fitter contractors and their employees for said business purposes shall have the company name and master plumber, and/or supervising gas fitter's license number stenciled, painted or suitable attached on each side of the vehicle in water proof letters and number of at least two (2) inches in size.
(Ord. No. 20,001, § 3, 7-15-08)

Sec. 8-508. Job signs.

Each location where a plumbing, and/or gas piping permit is required a job sign shall be attached to, or placed on the building premises in a place which can be seen from the street, with the contractor's company name and the state license number of the responsible master plumber, gas fitter and/or supervising gas fitter in water proof letters and numbers of not less than two (2) inches in size.
(Ord. No. 20,001, § 3, 7-15-08)

Sec. 8-509. Permits.

(a) *[Permit required.]* It shall be unlawful for a person or persons to install plumbing work, and/or gas piping to include underground services in all buildings new or existing or to make any changes on the existing plumbing, and/or gas piping system in all buildings private or public, rural or urban, where such buildings and/or underground services are located within the inspection jurisdiction of the city without first obtaining a permit for same from the city.

(b) *[Application information.]* The following information shall be furnished upon an application for a permit:

(1) The address at which the work is to be performed and the phone number.

(2) Company name, business address and phone number

(3) State license number of the appropriate master plumber, gas fitter and/or supervising gas fitter that is responsible for the plumbing or gas installation.

(4) Copy of current city privilege license.

(5) Copy of a current ten thousand dollar ($10,000.00) bond made out to the city as per Ordinance No. 17,777.

(c) *Exception.* No permit shall be required for the following:

(1) Rodding waste and sewer lines for the purpose of removing stoppages;

(2) Repairing waste and sewer lines by placing a temporary clamping device on the pipe to stop or retard the leaking pending permanent repair or replacement;

(3) Replacing a fixture trap, fixture water supply lines;

(4) Replacing a clothes washer (AWM) where no rough-in is required;

(5) The connection to the gas house piping of domestic ranges and ovens, portable heating stoves, space heaters, domestic clothes dryers, gas lights and gas grills where a gas cutoff valve is existing and it is not

necessary to alter the gas house piping in any manner to receive the appliance connection as mentioned above.

(d) *[Receiving fixtures or appliances.]* Should it become necessary to extend, shorten, relocate or alter any part of the plumbing, gas piping system to receive a plumbing fixture, gas appliance, a permit shall be required.

(e) *[When to apply.]* All permits required for the installation of the plumbing, natural gas piping covered by the provisions of this code and other codes having jurisdiction shall be obtained by the master plumber, supervising gas fitter, and/or their authorized representative prior to the beginning of such work.

(f) *Requesting inspections.* Only the permit holder or their authorized agent are permitted to request inspections.
(Ord. No. 20,001, § 4, 7-15-08)

Sec. 8-510. Homeowner permits.

Qualifications of the homeowner. A qualified homeowner may obtain homeowner's permit to install, repair or replace any part of the plumbing, gas piping system in his/her private home. The homeowner's permit is limited to a one-family residence that he or she owns and resides in or will reside in when classified as ready for occupancy. Permits shall be issued in accordance with the following rules and regulations:

(1) Homeowners may obtain a homeowner's permit to install, repair, or replace plumbing, and/or the gas piping system. The homeowner shall be physically able to perform all installations by him or herself other than labor used to dig, cover or carry materials and equipment for the permitted work and must have the knowledge to meet all applicable code requirements.

(2) The homeowner in person shall make application to obtain the homeowner's permit. Agents or representatives will not be accepted.

(3) The homeowner must show to the permit office representative [information] which includes, but is not limited to, proof of ownership of said property and proper identification (deed, buyer's contract and driver's license).

(4) The homeowner shall be responsible for the securing of all required inspections at the appropriate point of progress during the job and at the conclusion of the job and for compliance with all rules and regulations of the city's plumbing code and all other codes having jurisdiction pertaining to the plumbing, gas piping system.

(5) The homeowner's permit is limited to one (1) single-family residence that he or she owns and reside in or will reside in when classified as ready for occupancy.

(6) Homeowners that have permitted job items turned down twice on requested inspections shall be required to obtain a licensed contractor per section 8-501 to complete the job to meet code.

(7) Homeowners are prohibited from obtaining permits and performing work on rental or commercial property.

(Ord. No. 20,001, § 4, 7-15-08)

Sec. 8-511. Permit and inspection fees.

The fee's schedules for plumbing and gas permits and inspections shall be assessed as set forth by the city of board of directors in subsection 8-31 III, plumbing permit fees.
(Ord. No. 20,001, § 4, 7-15-08)

Secs. 8-512—8-530. Reserved.

DIVISION 4. TECHNICAL STANDARDS

Sec. 8-531. Workmanship.

All plumbing work of any kind shall satisfactorily fulfill the purpose for which it is installed, and all work shall be executed in a neat and workmanlike manner. Work not in keeping with good plumbing practice shall be classified as defective and shall be immediately corrected by persons causing the same.
(Ord. No. 17,232, § 5, 7-2-96; Ord. No. 18,552, § 5, 9-4-01)

Sec. 8-532. Approval of materials and methods.

The city reserves the right to approve or disapprove any material approved by the state or approve or disapprove any methods not specifically covered by the provisions of this article.
(Ord. No. 17,232, § 5, 7-2-96; Ord. No. 18,552, § 5, 9-4-01; Ord. No. 20,001, § 4, 7-15-08)

Sec. 8-533. Materials and apparatus, generally.

All materials, devices, equipment and any and all items necessary for the installation of plumbing systems shall bear the label of the independent testing laboratories specifically approved by the authority enforcing this article and/or be approved by the plumbing inspector. No plumbing apparatus or materials shall be used or placed on sale when the plumbing inspector shall consider it a fire hazard or hazardous to life and property.
(Ord. No. 17,232, § 5, 7-2-96; Ord. No. 18,552, § 5, 9-4-01; Ord. No. 20,001, § 4, 7-15-08)

Sec. 8-534. Swimming pools, etc., drainage.

The water from scudder drains and all swimming and wading pools shall be connected to the city storm sewer, if available, in a manner acceptable to the administrative authority. If no storm sewer is available, they shall be connected to the sanitary sewer as prescribed in the Arkansas Plumbing Code adopted in subsection 8-2(a)(4).
(Ord. No. 17,232, § 5, 7-2-96; Ord. No. 18,552, § 5, 9-4-01; Ord. No. 20,001, § 4, 7-15-08; Ord. No. 20,971, § 37, 12-16-14)

Sec. 8-535. Reserved.

Editor's note—Ord. No. 20,001, § 4, adopted July 15, 2008, deleted § 8-535, which pertained to technical updates and derived from Ord. No. 17,232, § 2, adopted July 2, 1996; and Ord. No. 18,552, § 5, adopted Sept. 4, 2001.

ARTICLE VII. HVACR/MECHANICAL

DIVISION 1. GENERALLY

Sec. 8-536. Short title; definitions.

(a) *Short title.* This article may be cited as the "Mechanical Code".

(b) *Definitions.*

(1) *Administrative authority* shall mean the individual inspector, board, department or agency established and authorized by the City of Little Rock Board of Directors to administer and enforce the provisions of the Arkansas Mechanical Code, as adopted in subsection 8-2(a)(6).

(2) *Department* shall mean the department of neighborhoods and planning.

(3) *Inspector* [shall mean] the term mechanical inspector supervisor, mechanical inspector, for enforcement purposes of this code shall have the same meaning as that of the city manager or his/her duly authorized representatives.

(4) *Jurisdiction* shall mean the city limits of Little Rock.

(5) *Roughing-in* is the installation of all parts of the HVACR/Mechanical system which can be completed prior to the installation of fixtures and appliances. This includes vent piping, air distribution ducts, and the necessary supports and anchors for same.

(6) *Unlawful,* as used in this code, shall mean unlawful insofar as the city has jurisdiction within it's police powers.

(Ord. No. 18,553, § 1, 9-4-01; Ord. No. 20,971, § 38, 12-16-14; Ord. No. 21,246, § 2, 6-7-16)

Sec. 8-537. Penalty.

Any person, firm or corporation who engages in or follows the business or occupation of, or advertises or holds himself or itself out as or acts as a HVACR/mechanical contractor without first having obtained the required licenses and permits or who otherwise violates any provisions of this code shall be punished as provided in section 1-9, Penalty for Violation.
(Ord. No. 18,553, § 1, 9-4-01)

Sec. 8-538. Civil liability.

This article shall not be construed to relieve from or lessen the responsibilities of any person owning, operating or installing HVACR/mechani-

cal, appliances, apparatus, construction or equipment for the damage to property or person injured by any defect therein. The city or any agent thereof shall not be deemed to assume any such liability by reason of the inspection authorized herein of the certificate of inspection issued by the mechanical inspection supervisor.
(Ord. No. 18,553, § 1, 9-4-01)

Sec. 8-539. State codes adopted; HVACR/mechanical appeals.

(a) In the event of a conflict between the Arkansas Mechanical Code, as adopted by subsection 8-2(a)(6), and the provisions of this article, the provisions of this article shall take precedence.

(b) HVACR/mechanical appeals shall follow the procedures in section 8-30.1 of the Little Rock City Code.
(Ord. No. 18,553, § 1, 9-4-01; Ord. No. 20,971, § 39, 12-16-14)

DIVISION 2. ADMINISTRATION AND ENFORCEMENT

Sec. 8-540. Supervision and authority of department.

The neighborhoods and planning department of the City of Little Rock under the supervision and direction of the city manager shall be responsible for carrying out the provisions of this code. The department shall act in an advisory capacity to the board of directors in the preparation of ordinances pertaining to this code. The formulation of rules and regulations pertaining to enforcement of the ordinances shall be made by the department with approval of the city manager.
(Ord. No. 18,553, § 2, 9-4-01)

Sec. 8-541. Liability of the HVACR/mechanical inspectors.

Where action is taken by the HVACR/mechanical inspector to enforce the provision of this code, such action shall be in the name of and on behalf of the City of Little Rock and the inspectors in so acting for the city shall not render themselves personally liable for any damage which may occur to persons or property as a result of an action committed in good faith in the discharge of their duties and any suits brought against any inspector by reason thereof shall be defended by the city attorney until termination of the proceedings contained therein.
(Ord. No. 18,553, § 2, 9-4-01)

Sec. 8-542. Limitations of the HVACR/mechanical inspectors.

The HVACR/mechanical inspectors shall not be interested in any business engaged in HVACR/mechanical or the sale of same or any part thereof either directly or indirectly.
(Ord. No. 18,553, § 2, 9-4-01)

Sec. 8-543. Duties of the HVACR/mechanical inspectors.

It shall be the duty of the HVACR/mechanical inspectors to inspect all HVACR mechanical systems for compliance with this code and all other codes having jurisdiction in all buildings, old or new to include underground service lines, private or public, rural or urban, where such buildings an underground service lines are located within the inspection limits of the City of Little Rock Arkansas.
(Ord. No. 18,553, § 2, 9-4-01)

Sec. 8-544. Inspector's right of entry.

Should the inspectors be denied entry to any building that they have reason to believe an unsafe or hazardous situation may exist; the inspector shall have the authority to call upon the Little Rock Police Department for aid and assistance in securing warrants for the right to enter and inspect such buildings.
(Ord. No. 18,553, § 2, 9-4-01)

Sec. 8-545. Reserved.

DIVISION 3. LICENSES, PERMITS AND FEES

Sec. 8-546. Licensing of contractors, HVACR/mechanical.

No person, firm or corporation shall install any part of the HVACR/mechanical system where

such systems are located in the inspection limits of the City of Little Rock, Arkansas, unless at all times a currently licensed HVACR/mechanical contractor.

HVACR/mechanical gas fitter, and/or a supervising gas fitter, that resides in the State of Arkansas of whom shall be responsible for proper installation, etc., and shall not serve as master plumber, HVACR/mechanical gas fitter and/or supervising gas fitter for any other person, firm or corporation while serving as such for said company.
(Ord. No. 18,553, § 3, 9-4-01)

Sec. 8-547. State license requirements

All HVACR Class A, B, and C and HVACR trainees shall be licensed by the State of Arkansas as same before repairing, replacing, altering or installing any part of the HVACR/mechanical systems where such systems are located within the jurisdiction of the City of Little Rock, Arkansas.
(Ord. No. 18,553, § 3, 9-4-01)

Sec. 8-548. Gas fitters limitations.

All categories of gas fitters are limited to gas plumbing.
(Ord. No. 18,553, § 3, 9-4-01)

Sec. 8-549. License holders.

Each holder of a HVACR/mechanical and gas fitter trainee's license shall carry evidence of proper registration on their person at all times while engaged in such work and shall produce and exhibit same when requested by an inspector or officer of this city.
(Ord. No. 18,553, § 3, 9-4-01)

Sec. 8-550. Licenses fees.

In addition to individuals being licensed to prove their competency, each person, firm or corporation engaged in the contracting for or the installation of the HVACR/mechanical systems, equipment or appurtenances shall pay to the city collector's office a privilege license fee set by the City of Little Rock Board of Directors.
(Ord. No. 18,553, § 3, 9-4-01)

Sec. 8-551. State contractor's licensing board.

On any project where the cost of work is twenty thousand dollars ($20,000.00) or more, with the exception of a single-family residence, an Arkansas State Contractor's License is required by same, located at 621 East Capitol Avenue, Little Rock, AR 72202.
(Ord. No. 18,553, § 3, 9-4-01)

Sec. 8-552. Vehicle signs.

All vehicles used by HVACR/mechanical, and gas fitter contractors and their employees for said business purposes shall have the company name and HVACR/mechanical, and/or supervising gas fitter's license number stenciled, painted or suitable attached on each side of the vehicle in water proof letters and number of at least two (2) inches in size.
(Ord. No. 18,553, § 3, 9-4-01)

Sec. 8-553. Job signs.

Each location where a HVACR/mechanical permit is required a job sign shall be attached to, or placed on the building premises in a place which can be seen from the street, with the contractor's company name and the state license number of the responsible HVACR/mechanical gas fitter and/or supervising gas fitter in water proof letters and numbers of not less than two (2) inches in size.
(Ord. No. 18,553, § 3, 9-4-01)

Sec. 8-554. Permits.

(a) It shall be unlawful for a person or persons to install HVACR/mechanical work, and/or gas piping to include underground services in all buildings new or existing or to make any changes on the existing HVACR/mechanical, and/or gas piping system in all buildings private or public, rural or urban, where such buildings and/or underground services are located within the inspection limits of the City of Little Rock, Arkansas, without first obtaining a permit for same from the City of Little Rock.

(b) The following information shall be furnished upon an application for a permit:

(1) The address at which the work is to be performed and the phone number.

(2) Company name, business address and phone number.

(3) State license number of the appropriate HVACR gas fitter and/or supervising gas fitter that is responsible for the mechanical system or gas installation.

(4) Copy of current city privilege license.

(5) Surety bond in the amount of ten thousand dollars ($10,000.00), per Ordinance No. 17,777.

(c) Reserved.

(d) Should it become necessary to extend, shorten, relocate or alter any part of the HVACR mechanical system a permit shall be required.

(e) All permits required for the installation of the HVACR/mechanical systems covered by the provisions of this code and other codes having jurisdiction shall be obtained by the HVACR gas fitter having class A or B licenses or their authorized representative prior to the beginning of such work.

(f) Requesting inspections. Only the permit holder or their authorized agent are permitted to request inspections.
(Ord. No. 18,553, § 4, 9-4-01)

Sec. 8-555. Homeowner permits.

(a) *Qualifications of the homeowner.* A qualified homeowner may obtain homeowner's permit to install, repair or replace HVACR/mechanical system in his/her private home. The homeowner's permit is limited to a one family residence that he or she owns and resides in or will reside in when classified as ready for occupancy. Permits shall be issued in accordance with the following rules and regulations:

(1) Homeowners may obtain a homeowner's permit to install, repair, or replace HVACR/mechanical system. The homeowner shall be physically able to perform all installations by him or herself other than labor used to dig, cover or carry materials and equipment for the permitted work and must have the knowledge to meet all applicable code requirements.

(2) The homeowner in person shall make application to obtain the homeowner's permit. Agents or representatives will not be accepted.

(3) The homeowner must show to the permit office representative, which includes, but is not limited to proof of ownership of said property and proper identification (deed, buyer's contract and driver's license).

(4) The homeowner shall be responsible for the securing of all required inspections at the appropriate point of progress during the job and at the conclusion of the job and for compliance with all rules and regulations of the Arkansas Mechanical Code, as adopted by subsection 8-2(a)(6), and all other codes having jurisdiction pertaining to the HVACR mechanical system.

(5) The homeowner's permit is limited to one (1) single-family residence that he or she owns and reside in or will reside in when classified as ready for occupancy.

(6) Homeowners that have permitted job items turned down twice on requested inspections shall be required to obtain a licensed contractor to complete the job to meet code.

(7) Homeowners are prohibited from obtaining permits and performing work on rental or commercial property.
(Ord. No. 18,553, § 4, 9-4-01; Ord. No. 20,971, § 40, 12-16-14)

Sec. 8-556. Permit and inspection fees.

HVACR/mechanical permit fees:

(a) *New construction:*

One- and two-family dwellings: $.05 per square foot.

All other occupancies: As set forth in the cost schedules in subsection (b).

(b) *New commercial, replacements, repairs, alterations and additions:*

(1) Heating, ventilating, ductwork, air conditioning, boilers, and refrigeration systems shall be thirty dollars

($30.00) for the first five hundred dollars ($500.00) up to one thousand dollars ($1,000.00), or fraction thereof, of valuation of the installation plus three dollars ($3.00) for each additional one thousand dollars ($,1000.00), or fraction thereof.

Boiler permits only issued with proof of special boiler license.

(2) Inspections (each): $15.00.

(3) Reinspections (each): $25.00.

(4) Investigative inspections (each): $30.00.

(c) Minimum fee for any permit shall be: $30.00.

(d) Expiration of permits as per condition of I.V [section 8-31(c)I.S.].

(e) *Penalties (working without a permit):* Where work for which a permit is required by the Arkansas Mechanical Code, as adopted by subsection 8-2(a)(6), is started or proceeded prior to the obtaining of said permit, the fee herein specified shall be tripled; however, payment of such tripled fee shall not relieve any person from fully complying with the requirements of such publication in the execution of the work nor from any penalties prescribed herein and no additional permits shall be granted until all fees have been paid.

(f) Work located out of the city limits shall be charged a surcharge of fifty (50) percent of the total permit charge.

(Ord. No. 18,553, § 4, 9-4-01; Ord. No. 20,971, § 41, 12-16-14)

DIVISION 4. TECHNICAL STANDARDS

Sec. 8-557. Workmanship.

All HVACR/mechanical work of any kind shall satisfactorily fulfill the purpose for which it is installed, and all work shall be executed in a neat and workmanlike manner. Work not in keeping with good HVACR/mechanical practice shall be classified as defective and shall be immediately corrected by persons causing the same.

(Ord. No. 18,553, § 5, 9-4-01)

Sec. 8-558. Approval of materials and methods.

The city reserves the right to approve or disapprove any material approved by the state or approve or disapprove any methods not specifically covered by the provisions of this article.

(Ord. No. 18,553, § 5, 9-4-01)

Sec. 8-559. Materials and apparatus, generally.

All materials, devices, equipment and any and all items necessary for the installation of HVACR/mechanical system shall bear the label of the independent testing laboratories specifically approved by the authority enforcing this article and/or be approved by the HVACR/mechanical inspector. No HVACR/mechanical apparatus or materials shall be used or placed on sale when the HVACR/mechanical inspector shall consider it a fire hazard or hazardous to life and property.

(Ord. No. 18,553, § 5, 9-4-01)

Sec. 8-560. Technical updates.

(a) Flex duct shall be allowed only on branch lines.

(b) Flex duct shall be no longer than six (6) feet in length in commercial and ten (10) feet in length in residential installations.

(c) Mechanical approved fittings are required for all turns and take-offs in flex duct installation.

(d) Flex duct shall not be allowed in crawl spaces in residential or commercial occupancies.

(e) Fiber duct (duct board) shall not be allowed.

(f) Mechanical contractor shall submit a heat load with each permit application.

(Ord. No. 18,553, § 5, 9-4-01)

Sec. 8-561. Drainage from mechanical equipment.

No condensate drains from mechanical equipment, blow off drains from steam boilers or presses, area drains, lily ponds, fish ponds or sump pumps or any source which steadily or intermittently waste clear water shall terminate

in any alley, street, curb, gutter or in any manner which might become a nuisance to foot or vehicular traffic.
(Ord. No. 18,553, § 5, 9-4-01)

Sec. 8-562. Duct testing (heating and air).

(a) *New residential construction.* Duct testing shall be required for all new single-family residential structures. Single-family residential developments that utilize the exact same floor plan multiple times are required to have duct testing completed on a minimum of twenty (20) percent of new single-family residential units.

(b) *New multi-family construction.* Duct testing shall be required for all new multi-family developments and shall meet the following testing criteria when these developments utilize the exact same floor plan.

(1) Two (2) units up to two hundred (200) units shall have a minimum of twenty (20) percent of units tested and certified. This includes individual floors with two hundred (200) units or less per floor. This includes individual buildings where the total number of units are less than two hundred (200) units for the entire building.

(2) Two hundred one (201) units and up shall have a minimum of ten (10) percent of units tested and certified. This includes individual floors that exceed two hundred one (201) units or more per floor. This includes individual buildings where the total number of units exceed two hundred one (201) units or more.

(3) In cases where the development is a continuous building completely connected, the number of units shall be determined where required fire tenant separation walls are installed.

(4) If the development utilizes the same HVACR contractor for the duration of construction the rules for testing ten (10) percent or twenty (20) percent shall be granted. In cases where another HVACR Contractor is hired prior to completion of the project, the project regardless of the number of units shall meet the twenty (20) percent testing criteria up to completion.

(c) *Addition, alterations and renovations.* Additions, alterations and renovations to existing residential structures shall not be required to comply with the duct testing requirements, but shall be required to comply with the 2014 Sr. Energy Code and 2010 AR Mechanical Code duct sealing requirements.

(d) *Repairs.* All repairs to existing residential structures and mechanical systems shall not be required to comply with the duct testing requirements, but shall be required to comply with the 2014 AR Energy Code and 2010 AR Mechanical Code duct sealing requirements.

(e) *Duct tester qualifications.* The duct tester shall be certified by one (1) of the following:

(1) Residential Energy Services Network certified rater (RSNET) or equivalent.

(2) Building Performance Institute certified rater (BPI).

(3) AR HVACR Association certified duct tester.
(Ord. No. 21,577, § 1, 4-3-18)

Sec. 8-563. Duct testing criteria.

Duct testing shall be verified by either of the following:

(1) *Rough-in test.* Total leakage shall be less than or equal to six (6) cfm (169.9L/min) per one hundred (100) feet^2 (9.29m^2) of conditioned floor area when tested at a pressure differential of one-tenth (0.1) inches w.g. (25 Pa) across the roughed in system, including the manufacturer's air handler enclosure. All register boots shall be taped or otherwise sealed during the test. If the air handler is not installed at the time of the test, total leakage shall be less than or equal to four (4) cfm (113.L/min) per one hundred (100) feet^2 (9.29m^2) of conditioned floor area.

(2) *Post construction test.* Leakage to outdoors shall be less than or equal to eight (8) cfm (226.5 L/min) per one hundred (100)

feet^2 (9.29m^2) of conditioned floor area or a total leakage less than or equal to twelve (12) cfm (12 L/min) per one hundred (100) feet^2 (9.29m^2) of conditioned floor area when tested at a pressure differential of one-tenth (0.1) inches w.g. (25Pa) across the entire system, including the manufacturer's air handler enclosure. All register boots shall be taped or otherwise sealed during the test.

Exceptions: Duct tightness test is not required if the air handler and all ducts are located within conditioned space.

(3) *Duct testing compliance and verification.* The tester shall provide (city-provided form) within five (5) days of completion to the building codes division, the results of the test and that the duct testing complies with subsection 8-563(1) or subsection 8-563(2). A certificate of occupancy shall not be issued without completion verification and compliance with the duct testing requirements.

(4) *Sticker.* The 2014 AR Energy Code label shall be completed and posted permanently on the electrical distribution panel and front entrance of structure. The sticker may be removed from the front entrance after occupancy or sale of the property. Under other information the date of duct testing shall be noted.

(Ord. No. 21,577, § 1, 4-3-18)

Sec. 8-564. Blower door testing (spray foam insulated structures).

(a) *New residential construction.* Blower door testing shall be required for all new single-family residential and multi-family structures. Residential developments that utilize the exact same floor plan multiple times are required to have blower door testing completed on a minimum of twenty (20) percent of residential units.

(b) *Addition, alterations and renovations.* Additions, alterations and renovations to existing residential structures shall not be required to comply with blower door testing requirements, but shall be required to comply with the 2014 AR Energy Code and 2010 AR Mechanical Code.

(c) *Repairs.* All repairs to existing residential structures and mechanical systems shall not be required to comply with the blower door testing requirements, but shall be required to comply with the 2014 AR Energy Code and 2010 AR Mechanical Code.

(d) *Blower door testing qualifications.* The duct tester shall be certified by the following:

(1) Residential Energy Services Network (RSNET) certified energy rater or equivalent.

(Ord. No. 21,577, § 1, 4-3-18)

Sec. 8-565. Blower door testing criteria.

Blower door testing and compliance shall meet the 2014 AR Energy Code and 2010 AR Mechanical Code for foam insulated structures.

(1) *Blower door testing and compliance and verification.* The tester shall provide (city-provided form) within five (5) days of completion to the building codes division, the results of the test and that the blower door test complies with the code. A certificate of occupancy shall not be issued without completion verification and compliance with the testing requirements.

(2) *Sticker.* The 2014 AR Energy Code label shall be completed and posted permanently on the electrical distribution panel and front entrance to the residential structure. The sticker may be removed from the front entrance after occupancy or sale of the property. The date of blower door testing results shall be noted.

(Ord. No. 21,577, § 1, 4-3-18)

ARTICLE VIII. BLASTING*

Sec. 8-566. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 8-567. Exemptions.

(a) This article does not apply to fireworks.

(b) This article does not apply to:

(1) Public utility companies operating and required to furnish a public service under a franchise or other consent granted by the city that pays to the city an annual franchise or privilege tax, or an annual tax in lieu of a franchise or privilege tax.

(2) Boards, agencies or commissions of the city.

(c) Any such public utility, agency, board or commission exempted under subsection (a) of this section shall, before doing any blasting within the city, file with the department of public works a safety plan or outline containing the rules and conditions under which it will conduct blasting. Such rules and conditions shall be reasonably calculated, in the opinion of the director of the department of public works, to safeguard the public both as to persons and property in connection with the blasting. It is unlawful to fail to comply with such rules and conditions.
(Code 1961, §§ 7A-1, 7A-7)

Sec. 8-568. Permit.

(a) It shall be unlawful for any person to use dynamite or any other explosive without first obtaining a permit for same from the city department designated by the city manager.

(b) Such a permit shall be granted only if the location of the explosion is such that:

(1) The explosion will not be likely to cause injury to persons or property.

(2) No public utilities or public property will likely be affected adversely without the consent of the utility company or department so affected.

(c) Prior to the issuance of a permit a fee of thirty dollars ($30.00) for each day of blasting to be performed shall be paid. The fee shall be paid to the city collector. If work is commenced prior to obtaining a permit, a permit fee that is three (3) times the normal fee shall be paid to the city.

(d) Prior to the issuance of a permit the applicant shall produce satisfactory evidence of:

(1) Public liability insurance in a sum of not less than one hundred thousand dollars ($100,000.00) for any one (1) person and three hundred thousand dollars ($300,000.00) for all persons who may be personally injured and one hundred thousand dollars ($100,000.00) for property damage to the property of any one (1) and all persons.

(2) A surety bond in the penal sum of one thousand dollars ($1,000.00) conditioned upon compliance with the provisions of this article and the payment of all sums due under this article by way of fees or otherwise.

(Code 1961, §§ 7A-1, 7A-3—7A-6; Ord. No. 15,391, § 1(I)(L), 12-9-87; Ord. No. 15,777, § 1(I)(L), 11-7-89; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 17,066, § 1.A.K., 12-26-95)

Sec. 8-569. Supervision.

The director of the city department designated by the city manager or his duly authorized agent shall personally supervise the shooting of all explosives and shall be given reasonable notice by the person in charge of the shooting of the time, place and circumstances of same.
(Code 1961, § 7A-2; Ord. No. 15,988, § 4, 12-18-90)

Sec. 8-570. Safety precautions.

Any person using explosives shall cover the orifice with mats or timbers of sufficient width, length and thickness, or other safety precautions approved by the city department designated by

*__Editor's note—__Section 1 of Ord. No. 18,553, adopted Sept. 4, 2001, renumbered Art. VII as VIII.

__Cross reference—__Fire prevention code, § 12-26 et seq.

the city manager so as to prevent fragments of rock, earth and debris from ascending into the air.
(Code 1961, § 7A-3; Ord. No. 15,988, § 4, 12-18-90)

ARTICLE IX. RENTAL INSPECTIONS*

Sec. 8-571. Short title.

These regulations shall be known as the Rental Inspection Program of the City of Little Rock, may be cited as such, and may be referred to herein as "this article".
(Ord. No. 16,659, § 1, 5-17-94)

Sec. 8-572. Purpose.

The purpose of this article is to safeguard the stock of decent, safe and sanitary rental housing within the city and to protect the owners, tenants and their invitees by providing for systematic city-wide inspections of rental housing and the public areas therein to ensure code compliance.
(Ord. No. 16,659, § 1, 5-17-94; Ord. No. 20,881, § 1, 6-3-14)

Sec. 8-573. Scope.

The provisions of this article shall apply to all rental housing units located within the city, including houses, apartments, manufactured homes and mobile homes, except those units that are owned and managed by the Little Rock Housing Authority or other public housing owned by the State of Arkansas or the United States Government.
(Ord. No. 16,659, § 1, 5-17-94; Ord. No. 20,881, § 2, 6-3-14)

Sec. 8-574. Definitions.

For the purposes of this article, certain words, phrases, terms and their derivatives shall be construed as specified herein. Words, phrases and terms used in this article but not specifically defined herein, shall have the meaning stated in the Housing Code of the City of Little Rock if referring to rental housing units that are apartments or houses or article IV, chapter 20 of the City Code of Ordinances concerning substandard maintenance of manufactured homes and mobile homes if referring to a rental housing unit that is a manufactured home or mobile home. Where not defined in such code or this article, such words, phrases and terms shall have the meaning generally prescribed by dictionary definition.

Certificate of compliance. A certificate of compliance is a document issued by the department of housing and neighborhood programs that certifies:

(1) A particular house or apartment has been inspected and found to be in compliance with the premises code and housing code, including the residential rental inspection program, or a particular manufactured home or mobile home has been inspected and found to be in compliance with the premises code and the rental inspection program code provisions, and not in violation of article IV, chapter 20; and

(2) The owner or an agent of owner is available to receive and to respond to notices and civil and criminal process of the city regarding code enforcement; and

(3) The owner or agent of owner has a current business license from the city to rent residential housing units.

Code compliance. The standards enumerated in the Housing code, chapter 8, article V of the Little Rock Ark., Rev. Code (1988), are the minimum housing code requirements of the city for apartments and houses. The provisions of article IV, chapter 20 of the Little Rock, Ark., Rev. Code (1988), provide the maintenance requirements of the city for manufactured homes and mobile homes. For purposes of this article, reference to the term "code compliance" when referring to apartments and houses shall mean compliance with all provisions of the housing code as detailed in the technical standards in the administrative guidelines of the rental inspection program. For purposes of this article, reference to the term "code compliance" when referring to a manufactured home or mobile home shall mean that the manufactured home or mobile

*__Editor's note—__Section 1 of Ord. No. 18,553, adopted Sept. 4, 2001, renumbered Art. VIII as IX.

home is not in violation of the provisions in article IV, chapter 20 of the Little Rock, Ark., Rev. Code (1988).

Life safety violation, in the context of an apartment or house, means a housing code violation that is deemed by the building official to constitute an unsafe condition presenting an immediate danger to human health, safety or welfare.

Life safety violation, in the context of a manufactured home or mobile home, means a violation of article IV, chapter 20 of the Little Rock, Ark., Rev. Code (1988), that is deemed by the code enforcement officer to constitute an unsafe condition that presents an immediate danger to human health, safety or welfare.

Life threatening violation means a life safety violation that is deemed by a fire marshal or the neighborhood programs manager or his or her designee to pose an imminent danger of death or serious injury or serious disease.

Rental housing unit. A rental housing unit is defined the same way as a dwelling unit in this section. Such term includes, but is not limited to, a manufactured home used as a rental and a mobile home used as a rental. The only difference between a dwelling unit and a rental housing unit is that a rental housing unit is intended to be leased or rented to the occupant.

A unit shall not be deemed a rental housing unit for purposes of this chapter if the owner of record shall provide to the city satisfactory evidence that another person in possession and control of the property has a contractual right to purchase the unit on a date certain for a specified price and is entitled to receive, when the purchase price is paid, a warranty deed if the unit is real property, or a bill of sale if the unit is a manufactured home or mobile home. Satisfactory evidence for a manufactured or mobile home shall be a purchase plan with a promissory note or a UCC filing showing an article 9 security interest. Satisfactory evidence for real property shall include a valid and enforceable written contract, filed in the deed records of the Pulaski County Circuit Clerk, which should contain the following provisions:

(1) A term for payment or escrow of taxes and assessments levied against the real property;

(2) A term for payment of property insurance covering loss or damage to the improvements on the property;

(3) A term stating that the buyer is responsible for any and all repairs and maintenance necessary to maintain the structure and premises in compliance with this Code;

(4) In a lease with option to purchase arrangement, the buyer or optionee pays the sell or optionor up-front a reasonable option consideration at the beginning of the contract which is applied toward the purchase price in the event the option is exercised, and that a portion of the rent aid during the term of the lease is applied toward the purchase price if the option is exercised.

(Ord. No. 16,659, § 1, 5-17-94; Ord. No. 17, 502, §§ 1, 2, 6-3-97; Ord. No. 18,421, § 1, 1-16-01; Ord. No. 18,742, § 1, 9-3-02; Ord. No. 20,881, § 3, 6-3-14)

Sec. 8-575. Administration.

The building official is authorized to administer the provisions of this article.
(Ord. No. 16,659, § 1, 5-17-94)

Sec. 8-576. Rental inspection program.

The systematic rental inspection program is part of the overall effort by the city to encourage conservation of existing residential rental properties. Owners of rental housing units are required to bring and to maintain these units in code compliance.
(Ord. No. 16,659, § 1, 5-17-94)

Sec. 8-577. Implementation of a systematic and random rental inspection program.

The City of Little Rock hereby institutes a systematic rental inspection program that will

ensure that all rental housing units within the city are inspected over time. Staff will provide the owner or local agent a notice to comply request on each attempt to inspect a specific property. Failure to comply with this notice to comply may result in further enforcement action which can include legal action in a court of competent jurisdiction, and the service of any process in accordance with Arkansas state law.
(Ord. No. 16,659, § 1, 5-17-94; Ord. No. 20,881, § 4, 6-3-14; Ord. No. 21,781, § 1, 9-17-19)

Editor's note—Ord. No. 21,781, § 1, adopted Sept. 17, 2019, changed the title of § 8-577 from systematic inspection to implementation of a systematic and random rental inspection program.

Sec. 8-578. Implementation of systematic inspection.

Areas of implementation will be selected and priority will be established by the city manager as outlined in the administrative guidelines of the rental inspection program.
(Ord. No. 16,659, § 1, 5-17-94)

Sec. 8-579. Certificate of compliance required.

(a) *Certificate of compliance.* It is unlawful to rent, let, or allow the occupancy of any rental housing unit without a certificate of compliance for each unit.

(b) *Requirements for issuance and maintenance of certificate of compliance.*

(1) In order to obtain and maintain a certificate of compliance, the owner or agent of owner shall maintain a current business license and shall comply with the provisions of this Code to assure that the owner or someone authorized to act as agent of the owner:

a. Maintains with the department of housing and neighborhood programs a current name and home or business address at which the owner and the agent of owner can be served personally or by certified mail, and a current telephone number at which the owner and agent can be reached telephonically or by facsimile, and an e-mail address if available; and

b. Has the authority to consent to an administrative search of the unit and provides access for such search; and

c. Has written authorization to receive and to accept on behalf of the owner any notices of code violations and civil and criminal legal process from the city.

(2) Once issued, a certificate of compliance shall remain in full force and effect until an inspection reveals code violations which are not subsequently corrected within the time allowed by the city and result in its suspension or revocation by the department of housing and neighborhood programs.

(3) Any rental housing unit found to be occupied without a current certificate of compliance shall be inspected and the owner or agent shall be required to obtain such certificate within the time permitted by subsection (d)(4). Such unit may continue to be occupied prior to the initial inspection in accordance with section 8-580.

(c) *Local agent for service.*

(1) Any rental property owner who resides outside the state shall designate an agent for receipt of notice and process on behalf of the owner. To qualify for designation, such agent shall reside or maintain a place of business within the limits of Pulaski County, Arkansas.

(2) Out-of-state owners shall ensure the agent for service:

a. Is provided current contact information specified in the previous section; and

b. Is provided written authorization to accept service of civil or criminal process and to provide consent to any administrative search and to

provide access for search conducted solely to assure compliance with city housing, premise and rental inspection codes:

i. Within twenty-four (24) hours' notice for any matters that concern a life-safety code violation; or

ii. Within five (5) business days, notice of any nonlife-safety code violation.

(3) It is the responsibility of the agent to forward to the owner all code compliance notices and civil and criminal process received by the agent.

(4) Any agent appointed by an owner pursuant to this subsection shall not have civil or criminal liability for action or inaction of the owner, notwithstanding any provision of common law, contractual provision, statute, ordinance (including without limitation LRC section 8-327), or directive which may be contrary.

(d) *Effect of noncompliance.*

(1) Failure to comply with the provisions of this section is deemed to constitute an imminent threat to the public health, safety and welfare of the citizens of Little Rock and may lead to a declaration by the city that the rental housing unit is a public nuisance.

(2) Any rental housing unit that has been declared to constitute a nuisance shall be subject to the following remedial actions at the option of the city, in addition to any other legal or equitable remedies available to the city:

a. Revocation or suspension of the certificate of compliance;

b. Condemnation of the unit;

c. Causing the unit to be closed, boarded and secured in which case the city official may direct that utilities be terminated to the unit.

(3) If the city requires the closing of any rental housing unit, the building official shall post on the structure written notice of its hazardous condition and shall immediately send notice, by first-class mail and by a form of delivery for which there is a receipt to show proof of delivery, to the tenant and to the owner or agent of the owner that describes the action taken by the city, the date and the reason for such action.

(4) The owner shall come into compliance with the provisions of this section within the following timelines measured from the date the notice is served by the city:

a. Ten (10) business days to designate an agent as directed by this section; or,

b. Seven (7) days allowed under subsection 8-583(d) to correct life safety violations;

c. Thirty (30) days, or such lesser time allowed, pursuant to the special provisions of subsection 8-583(e) to correct all nonlife safety, nonlife threatening violations; provided that in appropriate circumstances as set forth in this section, the building official may extend the time to sixty (60) days pursuant to subsection 8-583(e).

(5) No person occupying a structure after the city has posted on the structure a notice of its unsafe condition shall be considered a displaced person nor shall such person be entitled to relocation assistance from the city.

(e) *Penalty.*

(1) Each violation of this section shall be punishable as provided in section 1-9 of this Code in addition to any remedial action set forth above or which shall be deemed necessary pursuant to the inherent power of the court, or which is otherwise authorized by state law.

(2) Each day a violation continues after a compliance date specified in this section or in any notice served by the city shall be deemed a separate offense.

(Ord. No. 16,659, § 1, 5-17-94; Ord. No. 18,742, § 2, 9-3-02; Ord. No. 20,324, § 3, 9-21-10; Ord. No. 20,881, §§ 5, 6, 6-3-14)

Sec. 8-580. Occupancy.

As of the effective date of this article, all rental housing units which have not been inspected as required by this article may continue to remain occupied until such time as the initial biennial inspection is conducted, whereupon the provisions relating to occupancy as provided by this article shall apply.
(Ord. No. 16,659, § 1, 5-17-94)

Sec. 8-581. Systematic inspections and rental inspection goals.

Systematic and random inspection of twenty (20) percent of the total number of registered rental units shall occur annually. In doing so:

(a) The City of Little Rock shall use the total registered rental units annually as selected by the city manager, or designee, and shall, to the extent possible, include an inspection proportionally of the various categories of rental units. A residential rental complex with multiple buildings shall be inspected initially based upon a random sampling of at least twenty (20) percent of the units, with equal percentages of units inspected in each building with a minimum of one (1) unit per building.

(b) This random systematic inspection shall not apply to the first five (5) years for newly-constructed residential rental facilities that have received a certificate of occupancy for each building within the twelve-month period prior to the first occupancy;

(1) Nothing in this subsection precludes any inspection based upon a complaint or the appearance of a health or safety violation;

(2) This provision applies only if inspections of the newly-constructed residential rental facilities have been conducted in accordance with the applicable provisions of section 8-582;

(3) Notwithstanding any other provision of this section, the city shall review for acceptance any inspection report from a state or federal agency of a residential rental facility that has received federal funds, and is required to have such an inspection performed by the funding entity, provided nothing prohibits an additional inspection in accordance with the relevant provisions of section 8-582 of this Code.

(Ord. No. 16,659, § 1, 5-17-94; Ord. No. 21,781, § 2, 9-17-19)

Editor's note—Ord. No. 21,781, § 2, adopted Sept. 17, 2019, changed the title of § 8-581 from frequency of inspections to systematic inspections and rental inspection goals.

Sec. 8-582. Additional inspections.

In addition to the systematic random inspections outlined above, each rental housing unit shall be subject to more frequent inspections upon the following events:

(1) The owner or manager of the property requests an inspection of the unit upon notice to the district supervisor; or

(2) The city receives a complaint regarding the condition of the unit and inspection or re-inspection is necessary; or

(3) The unit is affected by fire, vandalism, storm or other natural disaster; or

(4) Title to the unit is conveyed or otherwise transferred, either voluntarily or involuntarily, to another party.

(Ord. No. 16,659, § 1, 5-17-94; Ord. No. 21,781, § 3, 9-17-19)

Sec. 8-583. Inspection procedure.

(a) It shall be the responsibility of the owner, tenant or agent in charge of the unit to provide access to the building official into all areas subject to inspection under this article pursuant to section 8-355, section 8-357 and section 20-75. The building official may obtain an administrative search warrant in order to gain access to the rental housing unit. The legislative finding that rental housing units should be inspected to ensure compliance with the applicable housing code or manufactured home and mobile home

maintenance code for the health, safety and welfare of the occupants shall be deemed to be probable cause for the issuance of the warrant.

(b) Upon completion of inspection, the city shall issue a certificate of compliance for the unit when the unit is deemed to be in code compliance.

(c) If the premises are found to be in violation of one (1) or more provisions of code compliance, the city shall provide written notice of such violations to the owner. The notice shall:

(1) Be in writing.

(2) Include a description of the property sufficient for identification.

(3) Include a statement why it is being issued.

(4) Include a statement to the owner that all repairs must be completed as set forth in subsections (d) and (e) below.

(5) Include a statement of the procedure for an owner to request an administrative review of non-life safety violations.

(6) Require that all necessary permits be secured before corrective work starts.

(7) State that if repairs, reconstruction, alteration, removal or demolition are not completed within the stated time as set forth in the notice, the code enforcement officer may initiate legal proceedings by charging the person with the violation of this Code.

(8) Before utilities are terminated for life safety violations at vacant structures, the rental unit shall also be posted with a notice that the utilities are subject to removal pending possible administrative review and with a list of violations deemed to be life safety violations. Additional notice shall be made as follows:

a. By delivery to the owner personally, or by leaving the notice at the usual place of abode of the owner with a responsible adult; or

b. By depositing the notice in the United State Post Office addressed to the owner at his last known address by certified mail, return receipt requested, with postage prepaid thereon; and

c. By depositing the notice in the United States Post Office addressed to the owner at his last known address by regular mail with notarized affidavit stating the date it was deposited in the mail with postage prepaid thereon.

(d) The owner shall complete code compliance for life safety violations within seven (7) days of the notification by the city. The city shall not issue a certificate of compliance until any violations listed in the notice are corrected.

(e) If a good faith effort is demonstrated, all life safety violations were corrected within seven (7) days of the notification by the city, and there is consistent and continuous progress shown, the building code official may grant an extension for repair of all nonlife safety violations from thirty (30) days to a time not to exceed sixty (60) days from the notification by the city. The city shall not issue a certificate of compliance until any violations listed in the notice are corrected.

(f) Owners of four (4) or more rental dwelling units are eligible to submit a plan for rehabilitation of all the units included in the plan in order to bring the units into code compliance. In such instances the owner shall obtain an approved rehabilitation plan from the building official pursuant to the administrative guidelines of the rental inspection program. The building official may allow up to twenty-four (24) months from plan approval for code compliance of all units included in the plan. Life safety violations shall not be eligible for inclusion in a rehabilitation plan.

(g) Neither life safety violations nor any component of an approved rehabilitation plan shall be subject to appeal to the housing board of adjustments and appeals.

(h) If the owner fails to abate the violations determined by inspection within the time periods prescribed, the city shall proceed with prosecution of the violations in district court.

(i) The city may direct the termination of utility service to a unit containing one (1) or more life safety violations. The city may also direct the termination of utility service to any unit in violation of this subsection upon notice of a change of occupancy or upon a determination that the unit is vacant. Utility service shall not be restored until all life safety violations have been corrected, as determined by a building official.

(1) With the exception in subsection (4) below, prior to such termination of utilities, the property shall be posted with a notice listing the life safety violations determined to exist and stating the review process available to the property owner if the owner desires to contest the finding of life safety violations. The rental unit shall not be rented or otherwise occupied until life safety violations have been corrected or are no longer found to exist.

(2) Beginning March 15, 2001, if, within seventy-two (72) hours, excluding weekends and holidays, of the posting of the property, the neighborhood programs manager receives a request by the owner for an administrative review of the finding that one (1) or more life safety violations exist, such review will be made within two (2) working days from the request for review. The review shall be conducted by the neighborhood programs manager, the building codes manager, and the fire marshall, or their designees, at the rental unit where violations were found to exist. If the review team affirms that one (1) or more life safety violation exists, the utility services may forthwith be terminated. From the effective date of this section until March 15, 2001, a period of ninety-six (96) hours shall be given for the owner to request an administrative review before utilities may be terminated.

(3) If the review team is denied access to inspect the rental unit to review the finding of life safety violations, utility services may then be terminated.

(4) If a life safety violation is deemed to be a life threatening violation, no administrative review shall be provided to the owner prior to termination of utilities.

(Ord. No. 16,659, § 1, 5-17-94; Ord. No. 17,053, § 10, 12-19-95; Ord. No. 18,421, §§ 2—4, 1-16-01; Ord. No. 20,324, §§ 1, 2, 9-21-10; Ord. No. 20,881, §§ 7—10, 6-3-14)

Sec. 8-584. Certificate transferability.

A certificate of compliance issued pursuant to this article may be transferable to succeeding owners; provided that within five (5) business days of the transfer, the transferor shall provide written notice of said transfer to the building official. Such notice shall contain the name and address of the new owners. A transfer shall not affect the time limits imposed by this article.
(Ord. No. 16,659, § 1, 5-17-94)

Sec. 8-585. Display of certificate.

The certificate of compliance shall be displayed at all times in a conspicuous place on the premises. Upon request of the city, an existing or prospective tenant, the owner or agent shall present the certificate.
(Ord. No. 16,659, § 1, 5-17-94; Ord. No. 17,053, § 12, 12-19-95)

Sec. 8-586. Annual report.

The building official shall prepare a report each year concerning the administration of the rental inspection program. The annual report shall describe the number of inspections performed, the corrections made as a result of such inspections, and any enforcement actions taken. This detailed annual report shall be submitted to the city manager in March of each year and shall identify the rental units inspected, the size of a residential rental complex if a complex is inspected, the main address of the rental unit, and a copy of the certificate of compliance.
(Ord. No. 16,659, § 1, 5-17-94; Ord. No. 21,781, § 4, 9-17-19)

Sec. 8-587. Tenant responsibility.

(a) It is a violation of this article for any person having care, custody, or control of a rental housing unit to damage, destroy or tamper with

the unit, thereby causing noncompliance with the housing code or article IV, chapter 20, as applicable.

(b) Before the city can issue a citation under this section, the owner shall provide the building official with written documentation signed and dated by the tenant indicating that the condition causing noncompliance did not exist when the tenant took possession of the property. This document shall be in a form approved by the building official. Furthermore, the building official shall determine that the tenant in possession of the property damaged, destroyed or tampered with the unit, thereby causing noncompliance with the housing code or a violation of article IV, chapter 20.
(Ord. No. 16,767, § 1, 10-18-94; Ord. No. 20,881, § 11, 6-3-14)

ARTICLE X. TENANT RIGHTS

Sec. 8-588. Landlord responsibility for multiple-family dwellings.

In the event the owner, or landlord, of the multifamily housing unit is located outside of Little Rock, Arkansas, then the owner, or landlord, shall have a designated representative who is located in Little Rock, Arkansas. The owner, or landlord, shall disclose the identity and address of its designated representative on an annual basis when the owner, or landlord, renews their business licenses with the City of Little Rock.
(Ord. No. 22,467, § 1, 6-4-24)

Sec. 8-589. Short title.

This article shall be known as and may be cited as "Tenants' Rights." This article emphasizes certain rights that tenants have under a rental agreement, wherever made for a dwelling unit located within the city. These rights do not include the entire code requirements listed under the housing code, nor does it change amend or alter any requirements under federal, state or local law.
(Ord. No. 22,467, § 1, 6-4-24)

Sec. 8-590. Definitions.

Building and housing codes means any law, ordinance or governmental regulation or rule concerning fitness for habitation, or the construction, maintenance, operation, occupancy, use or appearance of any premises or dwelling unit.

(1) *Dwelling unit* means a structure or the part of a structure that is used as a home, residence, or sleeping place by one (1) person who maintains a household or by two (2) or more persons who maintain a common household and includes landlord-owned mobile homes.

(2) Property that is leased for the exclusive purpose of being renovated by the lessee is not considered a dwelling unit within the meaning of this chapter.

Landlord means the owner, lessor, or sublessor, of the premises, and it also means a manager of the premises who fails to disclose as required by this article.

Multiple-family dwellings means a dwelling designed or occupied by more than two (2) families.

Organization means a corporation, government, governmental subdivision or agency, business trust, estate, trust, partnership or association, two (2) or more persons having a joint or common interest, and any other legal or commercial entity.

Owner means one (1) or more persons, jointly or severally, in whom is vested all or part of:

(1) The legal title to property; or,

(2) All or part of the beneficial ownership and a right to present use and enjoyment of the premises.

Owner includes, but is not limited to, a mortgagee in possession.

Person means an individual or organization.

Premises means a dwelling unit and the structure of which it is a part and facilities and appurtenances therein and grounds, areas and facilities held out for the use of tenants generally or whose use is promised to the tenant.

Rent means the consideration payable for use of the premises. Including late charges whether payable in lump sum or periodic payments, excluding security deposits or other charges.

Rental agreement means all agreements, written or oral, and valid rules adopted under this article embodying the terms and conditions concerning the use and occupancy of a dwelling unit and premises.

Rental housing unit is defined in the same way as a dwelling unit in this section. Such terms include, but are not limited to, a manufactured home used as a rental and a mobile home used as a rental. The only difference between a dwelling unit is that a rental housing unit is intended to be leased or rented to the occupant. A unit shall not be deemed a rental housing unit for purposes of this chapter if the owner of record shall provide to the city, satisfactory evidence that another person in possession and control of the property has a contractual right to purchase the unit on date certain for a specified price and is entitled to receive, when the purchase price is paid, a warranty deed if the unit is real property, or a bill of sale of the unit is a manufactured home or mobile home. Satisfactory evidence for a manufactured or mobile home shall be a purchase plan with a promissory note or a uniform commercial code (UCC) filing showing an article 9 security interest. Satisfactory evidence for real property shall include a valid and enforceable written contract, filed in the deed records of the Pulaski County Circuit Clerk, which should contain the following provisions:

(1) A term for payment or escrow of taxes and assessments levied against the real property; and

(2) A term for payment of property insurance covering loss or damage to the improvements on the property; and

(3) A term stating that the buyer is responsible for any and all repairs and maintenance necessary to maintain the structure and premises in compliance with this code; and

(4) In a lease with option to purchase arrangement, the buyer or optionee pays the sell or optionor an up-front a reasonable option consideration at the beginning of the contract, which is applied toward the purchase price in the event the option is exercised, and that a portion of the rent aid during the term of the lease is applied toward the purchase price if the option is exercised.

Single-family residence means a structure maintained and used as a single dwelling unit.

(1) Notwithstanding that a dwelling unit shares one (1) or more walls with another dwelling unit, it is a single-family residence if it has direct access to a street or thoroughfare and shares neither heating facilities, hot water equipment, nor any other essential facility or service with any other dwelling unit.

Tenant means a person entitled under a rental agreement to occupy a dwelling unit to the exclusion of others.
(Ord. No. 22,467, § 1, 6-4-24)

Sec. 8-591. Implied residential quality standards.

(a) For all lease agreements or rental agreements entered into or renewed after November 1, 2021, and exclusive of a lease to purchase, or a lease with a purchase right, and except when temporarily prevented by an act of God, the failure of, or caused by public utility service, or other force majeure events to include without limitation any epidemic or pandemic that causes work stoppages, labor or material shortages, or required social distancing that impacts the ability to maintain or repair a premises, there shall be implied in all leases and rental agreements for residential purposes a requirement that a dwelling unit or single-family residence have both at the time of possession is delivered to the tenant or tenants named in the lease or rental agreement and throughout the term of the lease agreement:

(1) An available source of hot and cold water as required under A.C.A. § 18-17-502. This implied standard is consistent with

section 8-403(c) of the housing code, which requires that every dwelling unit shall have connected to the kitchen sink, lavatory and tub or shower an adequate supply of both cold and hot water. All water must be supplied through an approved pipe distribution system connected to an approved potable water supply.

(2) An available source of electricity as required under A.C.A. § 18-17-502. This implied standard is consistent with section 8-405 of the housing code, which requires the following:

a. All electrical fixtures, receptacles, equipment, and wiring shall be maintained in a state of good repair, safe, capable of being used and installed and connected to the source of electric power in accordance with the electrical code.

b. Where the determination is made, upon examination of the existing electric service supply, that such service supply is obsolete or is being used in such a manner as would constitute a hazard to the occupants or would otherwise constitute a hazard to life and property; the minimum capacity of the service and the main disconnect switch shall be increased to adequately carry the total load in accordance with the electrical code of the city.

c. The minimum capacity of the service and the main disconnect switch shall be sufficient to adequately carry the total load required in accordance with the electrical code.

(3) A sanitary sewer system and plumbing that conform to applicable building and housing codes in existence at the time of installation as required under A.C.A. § 18-17-502. This implied standard is consistent with section 8-403(a) of the housing code which requires that every dwelling unit shall contain not less than a kitchen sink, lavatory, tub or shower and a water closet all in good working condition and properly connected to any approved water and sewer system. Every plumbing fixture and water and waste pipe shall be properly installed and maintained in good sanitary working condition, free from defects, leaks, and obstructions.

(4) A functioning roof and building envelope as required under A.C.A. § 18-17-502. This implied standard is consistent with section 8-423 of the housing code which requires that all roofs and overhangs shall be maintained in a safe manner and be structurally sound and have no defects which might admit rain or cause dampness in the walls or interior portion of the building.

(5) A functioning heating and air conditioning system to the extent the heating and air conditioning system served the premises at the time the landlord and the tenant entered into the lease or rental agreement as required under A.C.A. § 18-17-502.

(6) Pest extermination. This implied standard is consistent with section 8-407(e) of the housing code, which requires that every occupant of a single dwelling unit and every owner of a building containing two (2) or more dwelling units shall be responsible for the extermination of any insects, rodents or other pests within the building or premises.

(7) Maintenance. This implied standard is consistent with section 8-333 of the housing code, which requires that all buildings or structures, both existing and new, and all parts thereof, shall be maintained in a safe and sanitary condition. All devices or safeguards which are required by this article in a building when erected, altered, or repaired, shall be maintained in good working order. The owner, or his designated agent, shall be responsible for the maintenance of buildings, structures and premises to the extent set out in this article. The tenant shall be

responsible for the maintenance of buildings, structures and premises to the extent set out in this article.

(Ord. No. 22,467, § 1, 6-4-24)

Sec. 8-592. Penalty.

(a) Any person, landlord, or owner convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

(Ord. No. 22,467, § 1, 6-4-24)

Sec. 8-593. Exclusive possession.

(a) A tenant is not an invitee on the landlord's premises but has an equal right to that of the landlord to exclusive possession of their rental housing unit.

(Ord. No. 22,467, § 1, 6-4-24)

Sec. 8-594. Annual report.

(a) Each year the housing and neighborhood programs department, public works department, planning and development department and the city attorney's office shall review the Arkansas Fire Prevention Code, Arkansas Energy Code, National Electrical Code, Arkansas Plumbing Code, Arkansas Fuel Gas Code, Arkansas Mechanical Code, International Building Code and the International Property Maintenance Code, and the Arkansas Residential Landlord-Tenant Act of 2007 to update and make revisions to this article.

(Ord. No. 22,467, § 1, 6-4-24)

Chapter 9

CEMETERIES AND CREMATORIES*

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***Cross reference—**Health and sanitation, Ch. 14.

State law references—Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.; authority as to cemeteries, etc., A.C.A. §§ 14-54-802, 14-54-803; death and disposal of the dead, A.C.A. § 20-17-101 et seq.

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ARTICLE I. IN GENERAL

Sec. 9-1. Penalty.

Any person convicted of a violation of any of the provisions of this chapter shall be punished as provided in section 1-9.

Sec. 9-2. Approval required to establish additional cemeteries or to exhibit columbarium.

It shall be unlawful for any person to establish or attempt to establish additional cemeteries without the approval of the board of directors. It shall be unlawful to exhibit a columbarium without the approval of the city manager or a designated agent.
(Code 1961, § 10-10)

Sec. 9-3. Trespass.

No person shall trespass in a cemetery.
(Code 1961, § 25-20)

Sec. 9-4. Desecration.

No person shall desecrate any cemetery.
(Code 1961, § 25-20)

Sec. 9-5. Floral arrangements; removal.

It shall be unlawful for any person in charge of any cemetery, or employee therein, to cause or permit any floral arrangement, moss or other substance used in the making and filling of the same, when such floral arrangement has been once placed upon or adjacent to the grave of any person buried in such cemetery, or in any vault in such cemetery, to be removed from such cemetery, except for the purpose of destroying or composting such floral design, moss or other substance used in making and filling the same. Except for artificial flowers, which shall be removed and disposed of after they become dilapidated, discolored, or unseasonable, it shall be the duty of the person in charge of every cemetery to destroy, or cause to be destroyed by fire, composting or disposal with other solid waste, all floral arrangements, together with the moss and other substances used in making and filling the same, within ten (10) days after such floral arrangement has been placed upon or adjacent to the grave of any person buried within such cemetery, or in any vault in such cemetery.
(Code 1961, § 10-8; Ord. No. 20,508, § 1, 12-6-11)

Secs. 9-6—9-25. Reserved.

ARTICLE II. CREMATORIES

Sec. 9-26. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 9-27. Construction and inspection.

Crematories may be constructed and operated within the city, subject to the provisions of this article, and subject to the direction and control of the board of directors. The construction and operation of crematories shall be under the supervision and direction of the city department designated by the city manager, whose duty it shall be to inspect same.
(Code 1961, § 10-12; Ord. No. 15,988, § 4, 12-18-90)

Sec. 9-28. Permit; plans and specifications.

Before a building permit is issued for the construction of a crematory, the plans and specifications shall be approved by the city department designated by the city manager. Such construction plans and the operation of the crematory shall also comply with all applicable state environmental standards.
(Code 1961, § 10-13; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 20,508, § 2, 12-6-11)

Secs. 9-29—9-45. Reserved.

ARTICLE III. CITY CEMETERIES

DIVISION 1. GENERALLY

Sec. 9-46. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 9-47. Scope.

This article applies to all cemeteries that are owned, operated or maintained by the city. In this division "cemetery" means a cemetery owned, operated or maintained by the city.

Sec. 9-48. Cemetery manager.

The city manager, with the approval of the cemetery's board of directors, except where appointment is otherwise authorized by ordinance, shall appoint or provide for the appointment of a cemetery manager for each of the municipally operated cemeteries. A cemetery manager shall take charge of the cemetery of which he is appointed manager and keep it in proper order. A cemetery manager may delegate his duties to a municipal employee.
(Code 1961, § 10-110; Ord. No. 20,508, § 3, 12-6-11)

Sec. 9-49. Use restricted.

Cemetery lots shall be used only as a burial ground for the corpses of human beings.
(Code 1961, § 10-6)

Sec. 9-50. Record of sales of lots; receipts.

Except as provided in sections 9-74 and 9-127, the city clerk shall keep records of the sales of lots, stating therein the price sold for, and the name of the purchaser, the number of the lot so purchased and date, and such other remarks as may be necessary. He shall give the purchaser a receipt in full for the lot purchased.
(Code 1961, § 10-6)

Sec. 9-51. Right of city to trim or remove trees.

If any trees or shrubs situated in a cemetery should, by means of their roots or branches, or otherwise, become detrimental to the adjacent lots or avenues, or dangerous or inconvenient to passengers, it shall be the duty of the cemetery manager to have the same removed, or such parts thereof as are detrimental, dangerous or inconvenient.
(Code 1961, § 10-7)

Sec. 9-52. Criminal mischief.

No person shall do any of the following acts in a cemetery without permission of the cemetery manager:

(1) Break down, destroy, injure or deface any part of the enclosure.

(2) Open or leave open any gates or any private enclosure therein.

(3) Injure or deface any stone, monument, or sepulchral structure, trees, shrubs or plants.

(Code 1961, § 10-5)

State law reference—Damage or destruction of property, A.C.A. § 5-38-101 et seq.

Secs. 9-53—9-70. Reserved.

DIVISION 2. OAKLAND-FRATERNAL HISTORIC CEMETERY PARK*

Part A. General Provisions

Sec. 9-71. Penalty.

Any person convicted of a violation of any of the provisions of this division shall be punished as provided in section 1-9. In cases of violations of this division by any member of the Oakland-Fraternal Historic Cemetery Park Board, such member shall be removed from the board.
(Code 1961, § 10-52; Ord. No. 20,508, § 4, 12-6-11; Ord. No. 20,514, § 1, 12-13-11)

Sec. 9-72. Scope.

The provisions of this article apply to Oakland-Fraternal Historic Cemetery Park. In this division "cemetery" means the Oakland-Fraternal Historic Cemetery Park.
(Ord. No. 20,508, § 4, 12-6-11; Ord. No. 20,514, § 1, 12-13-11)

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*__Editor's note—__Ord. No. 20,508, § 4, adopted Dec. 6, 2011, amended Div. 2, §§ 9-71—9-101 in its entirety by deleting all references to "Oakland-Fraternal Cemetery" and "Oakland-Fraternal Cemetery Board" and replacing with "Oakland-Fraternal Historic Cemetery Park" and "Oakland-Fraternal Historic Cemetery Park Board", as set out herein.

Sec. 9-73. Name.

The grant of land for a special burial ground, made March 30, 1888, to G. U. O. of O. F., F. & A. M., and K. of T. O. of 12, together with all subsequent additions is designated as Oakland-Fraternal Historic Cemetery Park.
(Code 1961, § 10-16; Ord. No. 20,508, § 4, 12-6-11; Ord. No. 20,514, § 1, 12-13-11)

Sec. 9-74. B'Nai Israel section.

(a) There is hereby granted to the trustees of the Congregation of B'Nai Israel for the purpose of a Jewish cemetery the following tract of land:

> Beginning at the northwest corner of the present Hebrew cemetery, thence south to the southwest corner of the present Hebrew cemetery, a distance of four hundred sixty-eight (468) feet; thence west to the east side of Barber Avenue, about three hundred thirty (330) feet; thence north along the east side of Barber Avenue, a distance of four hundred sixty-eight (468) feet; thence east to the point of beginning, a distance of about two hundred twenty-eight (228) feet, containing about three and sixty-eight hundredths (3.68) acres, more or less.
>
> Description is intended to embrace the strip or body of land lying between the present Hebrew cemetery on the east and Barber Avenue on the west. Such strip of land to be used by the trustees of Congregation B'Nai Israel exclusively for the purpose of a Jewish cemetery, and for other purposes incident thereto, and if the same shall be abandoned by the trustees of Congregation B'Nai Israel and its use as a Jewish cemetery cease, it shall thereupon revert to the city.

(b) In the event the Oakland-Fraternal Historic Cemetery Park Board has the branch that runs along a great portion of this grant walled up or otherwise improved, the trustees of Congregation B'Nai Israel will pay half the expense of the cost of such work. The cemetery board has the right to police and regulate such grant. The city clerk is not required to keep records of transactions involving the B'Nai Israel portion of the cemetery.
(Code 1961, §§ 10-14, 10-15; Ord. No. 20,508, § 4, 12-6-11; Ord. No. 20,514, § 1, 12-13-11)

Sec. 9-75. Rights reserved by city.

Nothing in this article shall authorize the Oakland-Fraternal Historic Cemetery Park Board to do or have done any work or to make or enter into any agreement or contract to be done or paid for at the expense of the city, or abridge the right of the board of directors to make and carry into effect all needful police and other proper regulations relating to the cemetery.
(Code 1961, § 10-53; Ord. No. 20,508, § 4, 12-6-11; Ord. No. 20,514, § 1, 12-13-11)

Sec. 9-76. Use of funds.

All moneys derived from the cemetery shall be set apart and kept upon the books of the Oakland-Fraternal Historic Cemetery Park. Such moneys shall not be used for any other purpose than for the improvement and benefit of the cemetery. The city's treasury services manager shall direct the investments in the operating and perpetual care accounts of the Oakland-Fraternal Historic Cemetery Park.
(Code 1961, §§ 10-23, 10-50; Ord. No. 20,508, §§ 4, 5, 12-6-11; Ord. No. 20,514, § 1, 12-13-11)

Sec. 9-77. Fixing price of lots, graves; sale of lots and graves.

(a) The Oakland-Fraternal Historic Cemetery Park Board may establish the price of lots and graves to be sold by the city in the cemetery.

(b) In all cases of sales of lots and graves in the cemetery made by the cemetery board, a written memorandum thereof describing the lot or grave, and giving the name of the person to whom the sale was made, together with the amount to be paid therefore, shall be made out and signed by an employee of the cemetery, accompanied by a receipt for the payment of the purchase money thereof. Upon presentation and filing of the same with the city clerk, a deed for such property shall be prepared by the city clerk. In no case shall a person be permitted to purchase more than two (2) burial lots, or an organization be permitted to purchase more than five (5) burial lots, without special permission of the board of directors. The cemetery board may charge and collect ten dollars ($10.00) for each transfer of deed.
(Code 1961, § 10-49; Ord. No. 20,508, §§ 4, 6, 12-6-11; Ord. No. 20,514, § 1, 12-13-11)

Sec. 9-78. Maintenance charges.

(a) The Oakland-Fraternal Historic Cemetery Park Board may charge the owners of each cemetery lot for which perpetual care has not been paid an annual fee not to exceed the sum of twenty-five dollars ($25.00). Fees so collected shall be used for the upkeep and improvement of all lots, and the surrounding area of such lots, for which perpetual care has not been paid.

(b) If any such care charge applicable to an unused lot shall remain unpaid for a period of three (3) years, the cemetery board may declare a forfeiture of the record owner's right of interment in the delinquent lot and thereupon grant and convey the right of interment therein to another upon payment of the applicable purchase price for such lot together with the purchase price of perpetual care.
(Code 1961, § 10-45; Ord. No. 20,508, §§ 4, 7, 12-6-11; Ord. No. 20,514, § 1, 12-13-11)

Sec. 9-79. Contracts.

No contract involving the cemetery shall be binding or of any force unless approved by a majority of the members of the Oakland-Fraternal Historic Cemetery Park Board.
(Code 1961, § 10-47; Ord. No. 20,508, §§ 4, 8, 12-6-11; Ord. No. 20,514, § 1, 12-13-11)

Sec. 9-80. Burials.

It shall be unlawful for any person to bury, or cause to be interred, the body or remains of any deceased person in the cemetery except under the direction of a licensed funeral director.
(Code 1961, § 10-27; Ord. No. 20,508, §§ 4, 9, 12-6-11)

Secs. 9-81—9-95. Reserved.

*Part B. Oakland-Fraternal Historic Cemetery Park Board**

Sec. 9-96. Created.

There is hereby created the Oakland-Fraternal Historic Cemetery Park Board.
(Code 1961, § 10-11.1; Ord. No. 20,508, § 4, 12-6-11; Ord. No. 20,514, § 1, 12-13-11)

Sec. 9-97. Members.

The Oakland-Fraternal Historic Cemetery Park Board shall consist of eleven (11) members who preferably should be lot owners or descendants of lot owners therein. Members of the cemetery board shall be appointed by the mayor subject to approval of the board of directors. The terms of the members shall be for three (3) years and until their successors are appointed and qualified. Vacancies for any unexpired term shall be filled in the same manner as herein provided for the original appointment of members. Appointees to fill vacancies shall serve for the unexpired terms.
(Code 1961, § 10-11.1; Ord. No. 19,919, § 1, 2-5-08; Ord. No. 20,508, §§ 4, 10, 12-6-11; Ord. No. 20,514, § 1, 12-13-11; Ord. No. 20,873, § 1, 5-6-14)

Sec. 9-98. General powers.

The Oakland-Fraternal Historic Cemetery Park Board has control and charge of the cemetery. The board shall have charge of all burial lots in the cemetery and shall cause suitable surveys, plats and numbers thereof to be made in all cases where the same may be required; a copy of same shall be filed in the office of the city clerk. The cemetery board shall have control over the sale and conveyance of lots, but in no case shall it sell more than two (2) burial lots to any one (1) person, nor more than five (5) burial lots to any one (1) organization. The cemetery board may employ a cemetery manager to dig graves and care for the cemetery and fix his compensation. Such compensation shall be paid by such board.

***Editor's note—**Formerly entitled, "Cemetery Board", see editors note at art. III, div. 2.

Cross reference—Boards and commissions generally, § 2-261 et seq.

The cemetery board may make all necessary improvements and repairs and regulate the interment of persons.
(Code 1961, §§ 10-11.1, 10-19—10-21, 10-46; Ord. No. 20,508, § 4, 12-6-11; Ord. No. 20,514, § 1, 12-13-11)

Sec. 9-99. General authority to make repairs, etc.

The Oakland-Fraternal Historic Cemetery Park Board may make all such needful repairs and improvements in the streets, avenues, walks and other public grounds of the cemetery. It may promulgate rules and regulations necessary for the management of the cemetery and control of its employees; provided, where any work is to be done or any improvements are to be made on or in the cemetery, the director of the city department designated by the city manager shall prepare plans and specifications for such work or improvements, and make estimates therefor. All such work or improvements shall be done under his supervision and be accepted by him in writing.
(Code 1961, § 10-48; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 20,508, § 4, 12-6-11; Ord. No. 20,514, § 1, 12-13-11)

Sec. 9-100. Fiscal procedures.

The Oakland-Fraternal Historic Cemetery Park Board is subject to all fiscal procedures of the city.
(Ord. No. 20,508, § 4, 12-6-11; Ord. No. 20,514, § 1, 12-13-11)

Sec. 9-101. Reports of treasurer.

The Treasurer of the Oakland-Fraternal Historic Cemetery Park Board shall make annual reports as of December 31st of each year, giving in detail the amount of all receipts and expenditures. Such report shall be made in duplicate to the cemetery board. After the reports are examined by the cemetery board, the cemetery board shall transmit a copy, with its approval or disapproval, to the city board of directors on or before March 1st of each year. One (1) of the reports shall remain on file with the city clerk, and the other is to be kept by the cemetery board.
(Code 1961, § 10-51; Ord. No. 20,508, §§ 4, 11, 12-6-11; Ord. No. 20,514, § 1, 12-13-11)

Secs. 9-102—9-120. Reserved.

DIVISION 3. MOUNT HOLLY CEMETERY

Sec. 9-121. Penalty.

Any person convicted of a violation of any of the provisions of this division shall be punished as provided in section 1-9.

Sec. 9-122. Scope.

This division applies to Mount Holly Cemetery. In this division "cemetery" means Mount Holly Cemetery.

Sec. 9-123. Dedication of land.

The tract of land conveyed to the city by Chester Ashley and Roswell Beebe, by deed, bearing date February 23, 1843, and duly recorded in the clerk's office of Pulaski County, in record book "O," folios 239, 240, 241, 242, 243, 244, and 245, shall be known and designated as Mount Holly Cemetery, for the use of the inhabitants of this city, subject to the provisions of the deed, and such ordinances of the board of directors as it deem necessary.
(Code 1961, § 10-29)

Sec. 9-124. Catholic section.

The piece of land at present enclosed by the Catholic Church, at the northeast corner of block No. 173, in Mount Holly Cemetery, making a square of one hundred fifty (150) feet upon each side, is exclusively set apart and appropriated as a public burial place for the interment of deceased persons of the Catholic denomination, under the superintendence of the bishop or trustees of the Catholic Church at Little Rock.
(Code 1961, § 10-30)

Sec. 9-125. Board of commissioners.

(a) A board to be known as the Board of Commissioners of Mount Holly Cemetery is hereby created. It shall consist of five (5) persons, appointed by the city manager subject to the approval of the board of directors. Members shall hold office for the term of three (3) years and until their successors are appointed and qualified.

(b) The board of commissioners shall have direction and control of the grounds in the cemetery. It shall have power to direct the manner of digging graves and conducting funerals; to keep the avenues and lots in order, and to make all necessary and proper rules, regulations and arrangements for the management and control of the cemetery, subject to any orders that may be made by the city board of directors.

(c) The care of the cemetery, the employment of a cemetery manager and his assistants and the granting of privileges of interment is vested in the board of commissioners, subject only to the superintending control of the board of directors and of the proper officers of the city.

(d) The board of commissioners shall have the authority to sell lots in the cemetery for such an amount as the board, by resolution, finds to be a reasonable price.

(e) The board is subject to all fiscal procedures of the city.
(Code 1961, §§ 10-31—10-33, 10-37)

Cross reference—Boards and commissions generally, § 2-261 et seq.

Sec. 9-126. Treasurer.

(a) When the Treasurer of the Board of Commissioners of Mount Holly Cemetery has given a bond that is satisfactory to the city manager and which has been approved by the city attorney and filed with the city clerk, the city collector, as he collects the charges upon the cemetery lots and any other sums for the use of the cemetery, shall turn the same over to the treasurer taking a receipt therefor.

(b) The treasurer of the board shall annually file a report with the city clerk showing the amount received from all sources by the board of commissioners and the amounts expended and the purpose for which the same were expended.
(Code 1961, §§ 10-37, 10-38)

Sec. 9-127. Records.

The city clerk is not required to keep records involving transactions in the cemetery. The Board of Commissioners of Mount Holly Cemetery shall keep such records.

Sec. 9-128. Maintenance charge.

(a) There is levied upon each lot in the cemetery, an annual charge of twenty-five dollars ($25.00) for the maintenance of the cemetery. Such sum must be paid between August 1 and December 1 of each year. If the charge is not paid by December 1, a penalty of one dollar ($1.00) per lot shall be added thereto, and a like penalty of one dollar ($1.00) per lot shall be added for each year that the charge remains unpaid.

(b) The charge shall be collected by the city collector, who shall notify, by mail, the living relatives of the persons interred in such lots, so far as he can ascertain their identity and whereabouts. Failure of such relatives to receive notice shall not affect the accrual of penalties.

(c) If any such charge shall remain unpaid for three (3) years, the city collector shall notify the authorities in charge of the cemetery of that fact; and thereupon such authorities shall have the right to grant to other parties the privilege of interment in such delinquent lots, subject to the condition that the graves and the monuments therein shall not be disturbed.
(Code 1961, §§ 10-34—10-36; Ord. No. 13,169, § 1, 7-7-76; Ord. No. 15,266, § 1, 4-7-87; Ord. No. 15,713, § 1, 7-18-89)

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Chapter 10

(RESERVED)

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Chapter 11

EMERGENCY SERVICES*

Art. I. In General, §§ 11-1—11-25
Art. II. Emergency Interim Successors To Municipal Offices, §§ 11-26—11-29

*State law references—Arkansas Emergency Services Act of 1973, A.C.A. § 12-75-101 et seq.; authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

ARTICLE I. IN GENERAL

Sec. 11-1. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Accredited local office of emergency services means any local office of emergency services which has completed the requirements under the Arkansas Emergency Services Act of 1973 [A.C.A. § 12-75-101 et seq.] and has complied with the rules promulgated by the state office of emergency services, and has received by reason thereof a letter of accreditation from the state office of emergency services.

Chief executive means the city manager.

Disaster means any tornado, storm, flood, high water, earthquake, drought, fire, radiological incident, airborne or surface-borne toxic or other hazardous material contamination, or other catastrophe, whether caused by natural forces, enemy attack or any other means, which is or threatens to be of sufficient severity and magnitude to warrant significant state or federal action to supplement the efforts and available resources of the city and in which the chief executive of the city certifies the need for state assistance for alleviating the damage, loss, hardship or suffering resulting from such disaster.

Emergency services means the preparation for and the carrying out of all emergency functions, other than functions for which military forces are primarily responsible; to prevent, minimize, and repair injury and damage resulting from major emergencies or disasters caused by enemy attack, natural causes, manmade catastrophes or civil disturbances. These functions include, without limitation, firefighting; law and order; medical and health; rescue; engineering; warning; communications; radiological, chemical or other special material identification, measurement and decontamination; evacuation and relocation of persons from stricken areas; emergency social services such as housing, feeding and location services; emergency transportation, plant protection, damage assessment and evaluation; temporary restoration of public facilities, debris clearance, and other functions related to the protection of the people and property of the city, together with all other activities necessary or incidental to the preparation for and carrying out of all the foregoing functions.

Governing body means the board of directors.

Major emergency means a condition which requires the activation of emergency response which exceeds the day-to-day response and activities of city forces and requires the coordinating of a complement of local, state, federal or volunteer organizations. The request of at least one (1) responder organization from outside the city forces may constitute a major emergency.

Operational control means the assigning of missions and the exercising of immediate command and overall management of all resources committed by state and/or local government to a disaster operation or major emergency. Unless otherwise delegated by executive order, the chief executive of the city or head of the city office of emergency services, as his direct representative, will exercise operational control of the occurrence and assign missions. Each agency, department or organization will exercise control and authority over their personnel and resources to accomplish the assigned mission and will coordinate activities through the office of emergency services. Operational control does not imply, nor is it intended to include, administrative management, which will remain with the parent organization.

Public safety agency means a functional division of the city which provides firefighting and rescue; natural or man-caused disaster or major emergency response; law enforcement; and ambulance or emergency medical services. The city office of emergency services is considered in the context and definition of a public safety agency for performance and/or coordination of functions defined as "emergency services" to the extent necessary for mitigation of, planning for, response to and recovery from disasters or major emergencies.

Public safety officer of the office of emergency services means those positions approved by the state director in the city staffing pattern and authorized by him to perform and/or coordinate "emergency service" functions to the extent necessary

for mitigation of, planning for, response to and recovery from disasters or major emergencies. Office of emergency services communications personnel are designated public safety officers for the purposes of operating public safety communications networks and access to disaster or major emergency areas to operate mobile communications command post equipment.

Qualified emergency services worker means an emergency services volunteer worker, duly qualified and registered with both an accredited local office of emergency services, and the state office of emergency services, and who has on file in both the aforementioned the following information:

(1) Name and address.

(2) Date enrolled.

(3) Loyalty oath.

(4) Class of service assigned.

(Code 1961, § 11-2)

Cross reference—Definitions and rules of construction generally, § 1-2.

State law reference—Similar provisions, A.C.A. § 12-75-103.

Sec. 11-2. Policy and purpose.

(a) Because of the existing and increasing possibility of the occurrence of major emergencies or disasters of unprecedented size, and destructiveness resulting from enemy attack, natural or man-caused catastrophes, riots and civil disturbances, and in order to ensure that this city will be prepared to deal with such contingencies in a timely, coordinated and efficient manner, and generally to provide for the common defense and to protect the public peace, health and safety, and to preserve the lives and property of the people of this city, it is hereby found and declared to be necessary:

(1) To create an office of emergency services as a public safety agency of the city.

(2) To confer upon the chief executive the emergency powers provided in this article.

(3) To provide for the rendering of mutual aid to other political subdivisions within the state and adjoining states.

(4) To cooperate with the state government with respect to carrying out emergency services.

(b) It is further declared to be the purpose of this article, and the policy of this city, to authorize and provide for a major emergency and disaster management system embodying all aspects of pre-emergency and pre-disaster preparedness, major emergency and disaster response and post-emergency and post-disaster relief by:

(1) Requiring all city departments, mutual aid reponse of other political subdivisions and state agencies, and volunteer organizations to coordinate all major emergency and disaster-related activities through the office of emergency services in order to assure maximum efficiency and economy.

(2) Requiring that all emergency service-related functions of this city be coordinated to the maximum extent with comparable functions of the state and federal government, including their various departments and agencies, and with private agencies of every type to the end that the most effective preparation and use may be made of the city, state and national manpower, resources and facilities for dealing with any major emergency or disaster that may occur.

(c) It is further declared to be the purpose of this section, and the policy of this city, to organize its emergency services forces in conformity with the Arkansas Emergency Operations Plan (Arkansas Disaster Plan) as directed by the Arkansas Emergency Services Act of 1973 [A.C.A. § 12-75-101 et seq.] and with all provisions of that act.

(Code 1961, § 11-1)

State law reference—Similar provisions, A.C.A. § 12-75-102.

Sec. 11-3. Office created; appointment of director.

(a) The city manager shall create an office of emergency services and appoint a director who shall serve in accordance with the provisions of the Arkansas Emergency Services Act of 1973 [A.C.A. § 12-75-101 et seq.].

(b) Personnel of the office shall be provided with appropriate office space, furniture, equipment, supplies, stationery and printing in the same manner as provided for personnel of other city departments.

(c) The director shall be the executive head of the office. He shall be responsible for carrying out the program for emergency services in the city. The director shall coordinate the emergency services activities of all city departments and private or volunteer organizations or individuals; and shall maintain liaison with, and cooperate with, the state office of emergency services and similar organizations of other political subdivisions, neighboring states and the federal government; and shall have such additional authority, duties and responsibilities authorized by the city manager, this Code and the emergency operations plan of the city and state and federal legislation, rules or regulations. The powers and authority of the director shall be powers and authority of the office and may be delegated and subdelegated to personnel of the office as deemed necessary by the director for the efficient and effective operations of the office.
(Code 1961, § 11-3)

State law references—Local emergency services agencies, A.C.A. § 12-75-118; local emergency services responsibilities, A.C.A. § 12-75-116.

Sec. 11-4. Powers and duties of director generally.

The director of emergency services shall have general direction and control of the office of emergency services and, subject to the direction and control of the city manager, shall have the following functions and duties:

(1) Cooperate with city, county, state and federal governments, and with private agencies in all matters pertaining to the emergency services of this city.

(2) Make, amend and rescind the orders, rules and regulations necessary to carry out the provisions of this article within the limits of the authority conferred upon him herein, with due consideration for the plans, orders, rules and regulations of state and federal governments.

(3) Develop a comprehensive emergency operations plan with annexes from city departments and other organizations which will be approved by the director and receive concurrence of the chief executive. The plan will be submitted to the state office of emergency services for final approval, after which time it shall have the full force and effect of law.

(4) Seek assistance from persons when a required skill for a disaster function is not available within city government. The assignment of duties, of a supervisory nature, shall also grant authority for the persons so assigned to carry out such duties prior to, during and after the occurrence of a disaster. Such services from persons outside the government may be accepted by the city on a voluntary basis. Such citizens shall be enrolled as office of emergency services volunteers in cooperation with the heads of city departments affected.

(5) In accordance with comprehensive plans and programs prepared by the city office of emergency services and approved by the state to procure supplies and equipment, institute training and public information programs, and to take all other preparatory steps, including the partial or full mobilization of all city resources, in advance of actual disaster to ensure the providing of adequately trained and equipped persons in times of need.

(6) Make studies and surveys of potential hazards and of facilities and resources within the city as may be necessary to determine the capabilities and/or limitations of the city to carry out emergency operations under any contingency.

(7) Cooperation with adjoining cities, to establish interjurisdictional disaster planning and service areas.

(8) On behalf of the city, enter into mutual aid agreements with other cities.

(9) Delegate any administrative authority vested in him under this section, and to provide for the subdelegation of any such authority.

(10) Cooperate with the governor and the state office of emergency services and other appropriate state offices and agencies, and with the officials and agencies of the other

cities and counties within the state, including the direction and control of:

a. Mobilization of emergency service forces and tests and exercises.
b. Warnings and signals for drills or attacks and the mechanical devices to be used in connection therewith.
c. The conduct of civilians and the movement or stopping of pedestrians and vehicular traffic during, prior and subsequent to drills or attack.
d. Public meetings or gatherings.
e. The evacuation and reception of the civil population.

(11) Assume primary oversight responsibility and authority for hazardous materials within the corporate limits of the city. These responsibilities include, but are not limited to:

a. Implementing and enforcing rules and regulations regarding the reporting of and safe storage and handling of hazardous materials.
b. In cooperation with the hazardous materials response unit of the fire department, provide or arrange training for emergency services, fire department, and other personnel regarding safe storage and handling of hazardous material and for response to hazardous materials incidents.
c. Advise and assist the hazardous materials response unit of the fire department, who has responsibility to actually handle the material in emergency situations, by obtaining necessary assistance and information, providing coordination of responding departments and agencies, keeping the city manager informed, and providing post-incident reporting as necessary.
d. Inspect, or cause to be inspected by the hazardous materials unit or inspection division of the fire department and/or state department of pollution control and ecology, any property, structure, vehicle or location within the corporate limits of the city which has been reported or alleged to contain hazardous materials which are not properly stored. Should it be determined that hazardous materials are improperly stored, they may be declared an imminent hazard and the owner, transporter or custodian may be required to properly store, remove or destroy the hazardous material.

Cross references—Solid waste, Ch. 28; water, sewers and sewage disposal, Ch. 35.

(Code 1961, § 11-5)

Sec. 11-5. Powers and duties of director during local emergency.

(a) When deemed necessary, the director will recommend that the chief executive declare a local disaster emergency in accordance with A.C.A. § 12-75-108; provided, that such declaration shall not exceed seven (7) days. Any order or proclamation declaring, continuing or terminating a local disaster emergency shall be given prompt and general publicity and shall be filed promptly with the city clerk. The effect of a declaration of a local disaster emergency is to activate the response and recovery aspects of any and all applicable local or interjurisdictional disaster emergency plans and to authorize the furnishing of aid and assistance thereunto.

(b) When deemed necessary, the director of emergency services or his designee may declare an emergency situation, which requires response by agencies, departments or organizations outside the city's normal forces, as a major emergency. The effect of such a declaration is that the office of emergency services assumes jurisdiction and activities will be coordinated through the office. Each city department and outside agency is responsible for command and control of their forces and accomplishment of assigned or preassigned missions, while the office of emergency services is responsible for the overall situation. A major emergency declaration will not exceed twenty-four (24) hours, but may be upgraded to a local disaster emergency at any time.

(Code 1961, § 11-6)

Sec. 11-6. Power to enter into contracts and obligations.

If any disaster occurs and a disaster emergency is declared, the city shall have the power to enter into contracts and incur obligations necessary to combat such disaster, protect the health and safety of persons and property, and provide emergency assistance to the victims of such disaster. The city is authorized to exercise the powers vested under this section in the light of the exigencies of the extreme emergency situation without regard to the time-consuming procedures and formalities prescribed by law (excepting mandatory constitutional requirements) pertaining to the performance of public work, entering into contracts, the incurring of obligations for the employment of temporary workers, the rental of equipment, the purchase of supplies and material and the appropriation and expenditure of public funds.
(Code 1961, § 11-7)

Sec. 11-7. Appropriation and authority to accept services, gifts, grants and loans.

(a) The city shall have the power to make appropriations in the manner provided by law for making appropriation for the ordinary expenses of the city for payment of expenses of the office of emergency services.

(b) Whenever the state government or any agency or officer thereof shall offer to the city services, equipment, supplies, materials or funds by way of gift, grant or loan for the purpose of emergency services, the city, acting through the board of directors, may accept such offer and upon such acceptance, the board of directors may authorize any officer of the city to receive such services, equipment, supplies, materials or funds on behalf of this city, and subject to the terms of the offer and the rules and regulations, if any, of the agency making the offer.

(c) Whenever any person shall offer to this city services, equipment, supplies, materials or funds by way of gift, grant or loan, for purpose of emergency services, the city, acting through the board of directors, may authorize any officer of the city to receive such services, equipment, supplies, materials or funds on behalf of this city, and subject to the terms of the offer.
(Code 1961, § 11-8)

State law reference—Similar provisions, A.C.A. § 12-75-123.

Sec. 11-8. Utilization of existing services and facilities.

In carrying out the provisions of this article, the city manager is directed to utilize the services, equipment, supplies and facilities of existing departments, offices and agencies, and these departments, offices and agencies are directed to cooperate with and extend such services and facilities to the city manager and to the office of emergency services of the city upon request.
(Code 1961, § 11-9)

State law reference—Similar provisions, A.C.A. § 12-75-121.

Sec. 11-9. Political activity prohibited.

The office of emergency services shall not participate in any form of political activity, nor shall it be employed directly or indirectly for political purposes.
(Code 1961, § 11-10)

State law reference—Similar provisions, A.C.A. § 12-75-122.

Sec. 11-10. Emergency services personnel; oath, etc.

(a) No person shall be employed or associated in any capacity with the office of emergency services of this city who advocates or has advocated a change by force or violence in the constitutional form of government of the United States or of this state, or of this city, or the overthrow of any government in the United States by force or violence, or who has been convicted, or is under indictment, or information charging any subversive act against the United States. Each person, except those designated as public safety officers by the state director of emergency services, who is appointed to serve in the office of emergency services shall, before entering upon his duties, take an oath in writing, before a person authorized to administer oaths in this state, which oath shall be substantially as follows:

"I, _____, do solemnly swear (or affirm) that I will support and defend the Constitution of the United States, and the Con-

stitution of the State of Arkansas, against all enemies, foreign and domestic; that I will bear true faith and allegiance to the same; and I take this obligation freely, without any mental reservation or purpose of evasion; and that I will well and faithfully discharge the duties upon which I am about to enter."

(b) Personnel designated as public safety officers of the office by the state emergency services director will swear an appropriate oath before an official authorized to administer oaths in this state.
(Code 1961, § 11-10.1)

State law reference—Similar provisions, A.C.A. § 12-75-12.

Sec. 11-11. Enforcement.

(a) It shall be the duty of the office of emergency services established pursuant to this article, and of the officers thereof, to execute and enforce such orders, rules and regulations as may be made by the director of emergency services under the authority of this article. Such office shall have available for inspection at its headquarters all orders, rules and regulations made by the director, or under his authority.

(b) In the event of a major emergency, local disaster emergency or declaration of imminent hazard regarding hazardous materials, refusal by any person to carry out or obey orders, rules and regulations made under the authority of this article shall be deemed a misdemeanor.
(Code 1961, § 11-10.2)

Sec. 11-12. Emergency response vehicles.

(a) Due to the time-critical nature of response to the scene of a disaster or major emergency occurrence, the state director of emergency services, as authorized by the Arkansas Emergency Services Act of 1973 [A.C.A. § 12-75-101 et seq.] has designated appropriate vehicles of state agencies and local offices of emergency services as emergency response vehicles.

(b) These vehicles share the same privileges and immunities regarding traffic laws and ordinances as other emergency vehicles as defined by state law.

(c) Emergency vehicles designated by the state director of emergency services shall be identified by a flashing light or rotating beacon, which will be green in color.

(d) When responding to an emergency, the designated emergency vehicle shall have flashing lights or rotating beacon activated and must be equipped with and operating a siren device.
(Code 1961, § 11-10.3)

State law reference—Similar provisions, A.C.A. § 12-75-113(c).

Sec. 11-13. Telecommunications.

(a) The responsibility for development, implementation and coordination of radio and radio/data systems, computer-aided dispatch systems, 911 emergency and standard telephone systems, specifications for communications and telephone equipment, and the actual purchase, maintenance and replacement of all city-owned radio communications and telephone equipment of the city is the responsibility of the office of emergency services.

(b) The office will provide user training upon request for communications equipment owned and/or operated by the city.

(c) The city office of emergency services shall operate the Central Communications Center, which will serve as the 911 public safety answering point (PSAP). This public safety communications center shall maintain a telecommunications link with the state office of emergency services and may serve the purpose of coordination, dispatch and information service for those departments and public safety agencies of the city and other political subdivisions and private agencies as directed or authorized by the city manager and mutual aid agreements. The Central Communications Center will operate on a continuous basis and will be staffed by public safety communications officers of the office of emergency services.
(Code 1961, § 11-10.4)

State law reference—Arkansas Public Safety Communications Act of 1985, A.C.A. § 12-10-301 et seq.

Secs. 11-14—11-25. Reserved.

ARTICLE II. EMERGENCY INTERIM SUCCESSORS TO MUNICIPAL OFFICES*

Sec. 11-26. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Attack means any attack or series of attacks by an enemy of the United States causing, or which may cause, substantial damage or injury to civilian property or persons in the United States in any manner by sabotage or by the use of bombs, missiles, shellfire, or atomic, radiological, chemical, bacteriological, or biological means, or other weapons or processes.

Emergency interim successor means a person designated pursuant to this article, in the event the officer is unavailable, to exercise the powers and discharge the duties of an office until a successor is appointed or elected and qualified as may be provided by the constitution, statutes, charters, and ordinances, or until the lawful incumbent is able to resume the exercise of the powers and discharge the duties of the office.

Office means a position on the board of directors.

Unavailable means either that a vacancy in office exists and there is no deputy authorized to exercise all of the powers and discharge the duties of the office, or that the lawful incumbent of the office is absent or unable to exercise the powers and discharge the duties of the office.
(Code 1961, § 11-11)

Cross reference—Definitions and rules of construction generally, § 1-2.

State law reference—Similar provisions, A.C.A. § 21-1-303.

Sec. 11-27. Appointment for positions on board of directors.

(a) The members of the board of directors shall, individually, name emergency interim successors for their respective position only, and shall name not less than three (3) nor more than seven (7) such emergency interim successors. The emergency interim successors shall be named by a title or by named person and said names shall be listed in their order of succession.

(b) Each list furnished and executed by individual members of the board of directors shall be certified by the city clerk. Three (3) copies of every list shall be kept at all times in the office of the city clerk.

(c) Each member of the board of directors shall review the list of successors to his position at reasonable intervals to ensure its current status.

(d) Any change in appointment of emergency interim successors to a position on the board of directors shall be effected by the execution of an entirely new list which shall reflect any change desired, the latest such list, by date shown thereon, prevailing over all prior inconsistent lists theretofore filed for the particular position.
(Code 1961, §§ 11-12—11-15)

Sec. 11-28. Powers of emergency interim successor.

In the event that any member of the board of directors shall be unavailable as the result, either directly or indirectly, of an attack, the powers of the office held by such unavailable officer shall be exercised and duties shall be discharged by the designated emergency interim successor in the order specified. Such emergency interim successor shall exercise the powers and discharge the duties of the office until such time as an emergency interim successor in higher or superior priority becomes available, until a duly constituted and appointed officer shall be elected in accordance with the statutes or ordinances applicable, or until the duly constituted and appointed officer becomes available to exercise the powers and discharge the duties of his office.
(Code 1961, § 11-16)

Sec. 11-29. Oath of office.

At the time of the designation and appointment as an emergency interim successor, said emergency interim successor shall take such oath as may be required for him to exercise the powers and discharge the duties of the office to which he may succeed.
(Code 1961, § 11-17)

*State law reference—Authority to adopt emergency interim succession ordinance, A.C.A. § 21-1-306.

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Chapter 12

FIRE PREVENTION AND PROTECTION*

Article I. In General

Sec. 12-1. Penalty.
Sec. 12-2. Duty to report fires to fire department.
Sec. 12-3. Trash burning.
Sec. 12-4. Installation of fire hydrants.
Sec. 12-5. Aboveground storage tanks for flammable liquids, liquefied petroleum gases.
Sec. 12-6. Careless disposition of smoking materials banned.
Sec. 12-7. Definition of open burning.
Sec. 12-8. Open burning permit.
Sec. 12-9. Action on application.
Sec. 12-10. Transfer.
Sec. 12-11. Expiration of permit.
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***Cross references—**Alarm systems, ch. 3; buildings and building regulations, ch. 8; smoking in public places, § 14-2; fireworks in parks, § 22-40; fires in park, § 22-45.

State law references—Fire prevention generally, A.C.A. §§ 12-13-101 et seq., 20-22-201 et seq.; authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

ARTICLE I. IN GENERAL

Sec. 12-1. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 12-2. Duty to report fires to fire department.

The occupant of any building or structure located within the city who shall have knowledge of any fire by which any part of said building or structure, or any of the contents or furnishings therein, may have been damaged, shall immediately report same to the fire department. The report shall be made by telephone to the fire department immediately upon receiving or having knowledge of any such fire and shall advise the fire department of the extent and nature of such fire and the damage done thereby. In this section "occupant" means the head of a household or person responsible in his absence, the manager or custodian in charge of the premises, or any other person whose duties include responsibility for the condition of the premises, or any one (1) of several occupants who shall cause the others to fail to notify the fire department by assurances that he has done or will do so himself.
(Code 1961, § 13-9.1(a))

Sec. 12-3. Trash burning.

(a) In this section "congested district" means an area containing buildings of high value, constructed closely together, from which a fire might spread rapidly and endanger the lives of the citizens of the city. The boundaries of the congested district are as follows:

> South on McLean to Fourth Street, west on Fourth to Scott Street, south on Scott to Fifth Street, west on Fifth to Broadway Street, north on Broadway to the Arkansas River and east along the Arkansas River to McLean Street.

(b) It is unlawful to burn trash or rubbish in the congested district.
(Code 1961, § 13-6)

Sec. 12-4. Installation of fire hydrants.

Whenever the chief of the fire department, with the approval of the state fire prevention bureau, selects locations within the city for fire hydrants deemed necessary for adequate fire protection for the city and requests the waterworks commission to install same, the waterworks commission may install the hydrants and charge rental therefor.
(Code 1961, § 13-16(a))

Sec. 12-5. Aboveground storage tanks for flammable liquids, liquefied petroleum gases.

(a) It shall be unlawful for any person to store Class I or Class II flammable and combustible liquids, as defined by the Arkansas Fire Prevention Code, in aboveground storage tanks unless such tanks are installed in conformance with the Arkansas Fire Prevention Code or the National Fire Protection Association Standard No. 30, entitled *Flammable and Combustible Liquids Code.* The fire chief or his designated agent shall have the authority to require the removal of any aboveground storage tanks not in compliance with said standards upon a determination that the tank creates a safety hazard to life and/or property.

(b) The storage of liquefied petroleum gases in aboveground tanks is prohibited in any of the designated fire districts of the city provided that this prohibition shall not apply to tanks existing upon the passage of this section which are installed in compliance with the requirements of the *Arkansas Fire Prevention Code* and the *State Code, Liquefied Petroleum Gas Container and Equipment.*

(c) Nothing in this section shall prohibit the use of Class II liquids in outside aboveground tanks having capacities of less than six hundred (600) gallons for temporary use. Nothing in this section shall prohibit the storage of fuels for farm, factory or industrial use, fleet servicing of private vehicles on sites five (5) acres or more in size with tanks located a minimum of one hundred fifty (150) feet from common property lines or adjacent rights-of-way.
(Ord. No. 15,854, §§ 1—3, 4-17-90)

Editor's note—Nonamendatory Ord. No. 15,854, §§ 1—3, adopted Apr. 17, 1990, has been codified herein by the editor as § 12-5.

Sec. 12-6. Careless disposition of smoking materials banned.

(a) It shall be unlawful for any person to carelessly set fire to, burn or cause to be burned any grass, field, tree or shrubbery, or any bedding, furniture, curtains, draperies or any other household furnishings by means of any lighted cigarettes, cigars, pipes or other form of burning tobacco, or other smoking material, or by means of matches, lighters and the like, in lighting or attempting to light or failing to properly extinguish and dispose of any cigarette, cigar, pipe or other form of smoking material.

(b) Severability. If any provision or clause of this section or the application thereof to any person or circumstances is held to be unconstitutional or to be otherwise invalid by any court of competent jurisdiction, such invalidity shall not effect other ordinance provisions or clauses or applications thereof which can be implemented without the invalid provision or clause or application, and is listed in the provisions and clauses of this section and declared to be severable.
(Ord. No. 16,484, § 1, 9-7-93)

Sec. 12-7. Definition of open burning.

Open burning means the burning of any matter in such a manner that the products of combustion resulting from the burning are emitted directly into the ambient air without passing through an adequate stack, duct, or chimney. No open burning permit is required for fires used for cooking of food, including barbecues and outdoor fireplaces.
(Ord. No. 19,444, § 1, 12-6-05)

Sec. 12-8. Open burning permit.

A permit from the fire department is required prior to open burning. Open burning permits may be issued subject to specific conditions, consistent with standards provided in the fire prevention code adopted in section 12-28, which conditions shall be specified in writing in the permit. The holder of a permit shall comply with the conditions contained in such permit. Only clean fuel not containing garbage, rubber, plastics, metals, petroleum products, tires, shingles, treated lumber, or other hazardous materials is permitted. Applications for a permit should be submitted a minimum of three days prior to the requested burn date.
(Ord. No. 19,444, § 1, 12-6-05)

Sec. 12-9. Action on application.

The fire department shall act, within a reasonable time, on an application for an open burning permit and shall notify the applicant in writing of its approval, conditional approval, or denial.
(Ord. No. 19,444, § 1, 12-6-05)

Sec. 12-10. Transfer.

Open burning permits shall not be transferable either from one location to another, or from one person to another.
(Ord. No. 19,444, § 1, 12-6-05)

Sec. 12-11. Expiration of permit.

Open burning permits shall expire on the date specified on the face of the permit and may not be extended, except for the presence of bad weather conditions or a burn ban, as determined by the fire department.
(Ord. No. 19,444, § 1, 12-6-05)

Sec. 12-12. Display of permits.

Permits shall be displayed and available for inspection at the open burning site by any and all persons who may request to see the permits.
(Ord. No. 19,444, § 1, 12-6-05)

Sec. 12-13. Forfeiture of permission to burn.

A permittee may forfeit permission to burn for failure to comply with any conditions of the open burning permit, as determined by the fire department. A notice of such forfeiture of permission shall be set forth in the burn permit.
(Ord. No. 19,444, § 1, 12-6-05)

Sec. 12-14. Novelty lighters.

(a) *Prohibitions, inapplicability.* The retail sale, offer of retail sale, gift or distribution of any novelty lighter within the territorial jurisdiction of the city is prohibited. This prohibition is inapplicable to:

(1) Novelty lighters which are only being actively transported through the city; or

(2) Novelty lighters located in a warehouse closed to the public for purposes of retail sales.

(b) *Definition.*

"*Novelty lighter*" means a lighter:

(1) That has entertaining audio or visual effects, such as the depiction of logos, decals, art work; or

(2) That resembles in physical form or function articles commonly recognized as appealing to or intended for use by young children, particularly those ten (10) years of age or younger; articles which are commonly recognized as appealing to or intended for use by young children include, but are not limited to, lighters that depict or resemble cartoon characters, toys, guns, watches, telephones, musical instruments, vehicles, human body or parts of the human body, animals, food or beverages, or that play musical notes or have flashing lights or other entertaining features; and

(3) That operates on any fuel, including butane or liquid fuel.

Exceptions. The term "novelty lighter" excludes:

(1) Any lighter manufactured prior to 1980; and

(2) Any lighter which lacks fuel or a device necessary to produce combustion or a flame.

(c) *Enforcement.* The provisions of this section shall be enforced by the fire marshal, any police officer, any code enforcement officer, and any other city official authorized to enforce any provision of the Little Rock City Code.
(Ord. No. 19,924, § 1, 2-19-08)

Secs. 12-15—12-25. Reserved.

ARTICLE II. FIRE PREVENTION CODE*

Sec. 12-26. Short title.

This article may be cited as the "fire prevention code."

*__Cross references—__Blasting, § 8-566 et seq.; hazardous material disposal, § 11-4(11).

Sec. 12-27. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 12-28. Adoption by reference.

The fire prevention and protection codes for the city are adopted by reference in chapter 8, section 8-2 of this Code.
(Code 1961, § 13-1; Ord. No. 16,414, § 1, 5-4-93; Ord. No. 17,126, § 1, 2-20-96; Ord. No. 17,730, § 2, 5-19-98; Ord. No. 18,706, § 2, 6-18-02; Ord. No. 19,641, § 2, 11-21-06; Ord. No. 19,642, § 2, 11-21-06; Ord. No. 20,971, § 42, 12-16-14)

Sec. 12-29. Reserved.

Editor's note—Former § 12-29, which pertained to tent permits and derived from Ord. No. 15,391, adopted Dec. 9, 1987, has been treated as being superseded by the provisions of Ord. No. 17,066, § 1.I.M, adopted Dec. 26, 1995. Current provisions pertaining to tent permits can be found in § 8-31(b).

Secs. 12-30—12-50. Reserved.

ARTICLE III. FIRE DEPARTMENT†

DIVISION 1. GENERALLY

Sec. 12-51. Fees for fire alarm reports and inspections.

The city manager may establish charges for the following services performed by the fire department:

(1) Fire alarm reports (for verification of fire loss).

(2) Fire department inspection of the home for exceptional children, youth home, nursing homes and daycare centers.

(Code 1961, § 13-17)

†__State law references—__Fire department generally, A.C.A. § 14-53-101 et seq.; right of firemen not forfeited while fighting fires outside of city limits, A.C.A. § 14-53-102.

Sec. 12-52. Charge for reports on hazardous materials site assessments established.

A charge of fifty dollars ($50.00) is hereby established to provide reports on hazardous materials site assessments performed by the fire department fire marshal's office.
(Ord. No. 16,538, § 1, 12-7-93)

Editor's note—Ord. No. 16,538, § 1, adopted Dec. 7, 1993, did not specifically amend the Code; hence, inclusion herein as § 12-52 was at the discretion of the editor.

Sec. 12-53. Fees for open burning.

(a) *Commercial burn permit.*

(1) Thirty-day permit—Two hundred fifty dollars ($250.00).

(2) Ninety-day permit—Three hundred fifty dollars ($350.00).

(b) *Bonfire/special permit.* Fifty dollars ($50.00) plus any after-hour expenses for fire marshal, and standby fees for apparatus if required.

(c) *Cost for fire watch/standby.* One hundred thirty-five dollars ($135.00) per hour (two-hour minimum).

(d) *Reapplication/lost commercial permit.* Ten dollars ($10.00).

(e) *Residential burn permit.* Five dollars ($5.00).
(Ord. No. 19,444, § 2, 12-6-05)

Secs. 12-54—12-65. Reserved.

DIVISION 2. FIRE PROTECTION OUTSIDE OF CITY LIMITS

Sec. 12-66. Generally.

(a) Any person outside the corporate limits of the city may apply to the board of directors for limited firefighting equipment protection. The board of directors may at its discretion approve or reject any such application.

(b) If the board of directors approves an application, the firefighting facilities of the city shall then be available upon the following conditions:

(1) *Agreement.* An agreement shall be signed by the applicant, which agreement shall state that the city agrees to furnish only limited firefighting equipment. The applicant shall agree that any portion or all of the equipment may be recalled at any time by the city when, in the judgment of the chief of the fire department, such equipment is necessary for fire protection within the city. The agreement shall further provide that the city does not undertake to guarantee any firefighting results, and offers only such reasonable equipment as is consistent with conditions prevailing at the time. The applicant shall agree that no claims of any kind or nature shall ever be made against the city resulting from the use and/or operation of the equipment.

(2) *Bond.* The applicant shall furnish to the city a performance bond from any reputable bonding company approved by the city collector and city attorney in the amount of one thousand dollars ($1,000.00) where the assessed evaluation of the property covered by the application (which shall include real property, "building" and personal property located therein) is one hundred thousand dollars ($100,000.00) or less as reflected by the county tax records or in the amount of two thousand five hundred dollars ($2,500.00) where said evaluation is over one hundred thousand dollars ($100,000.00). The city manager may allow a waiver of the bond requirement established in this paragraph for fire protection outside the city limits whenever a letter of guarantee for payment of fire department costs is provided by the applicant in a form approved by the city manager, the city collector and the city attorney.

(3) *Ready-to-serve fee.* The applicant shall pay in advance to the city collector an annual ready-to-serve fee in an amount which is the product of 5.6 mills times the current assessed evaluation of the property as reflected by the records of the county tax assessor.

(4) *Usage fee.* In addition to the above fee the applicant shall pay a usage fee of one

hundred dollars ($100.00) per hour or fraction thereof for each firefighting company which responds to an alarm on the premises of the applicant, whether the alarm is false or comes as a result of a fire. Only one (1) firefighting company shall respond to an alarm on the premises of any applicant unless the applicant or its or his agents request additional companies. The city shall not be bound to dispatch any equipment unless the equipment is available and is not needed at the time for fighting fires within the city limits.

(5) *Fire hydrant.* No application shall be considered unless and until a fire hydrant has been installed within five hundred (500) feet of the applicant's building provided water is available.

(6) *Failure to pay fee.* Failure of the applicant to pay any fee set out in this section within ten (10) days after receiving due notice from the city collector shall void all agreements between the applicant and the city.

(c) The sole purpose of this section is to offer service to separate properties subject to fire damage, and the grouping of one (1) or more properties shall not be allowed for the purpose of this section. It is further declared to be the intent of the city to offer firefighting protection to industrial and commercial property only and no alarm for residential property outside the city limits will be answered by the fire department, and the chief of the fire department is hereby expressly prohibited from taking firefighting equipment outside city limits except pursuant to the provisions of this division; provided, however, fire alarms to public buildings supported and maintained by taxation and churches within the area shall be answered when in the judgment of the chief of the fire department firefighting equipment is not needed for fire protection within the city.
(Code 1961, § 13-13; Ord. No. 15,092, § 1, 5-6-86)

Sec. 12-67. Lands being annexed, etc.

Notwithstanding other provisions of this division, the city will offer firefighting protection service to land areas included in voluntary petitions to annex such lands to the city filed in the county court on the day following the date the county court approves the petition by the entry of an order of the court to such effect. This commitment to provide firefighting protection is conditioned upon the city receiving written notice of the hearing to be held by the county court on the petition not less than fifteen (15) days prior to the date of such hearing, and upon receipt of a copy of the order of the county court approving such annexation on the date the order is entered. In the event a suit is filed in circuit court challenging the annexation, fire service will cease, pending the decision of the court. In addition, services shall be rendered immediately to all unincorporated islands within the city existing as of the date of the passage of this section and to any future islands when they become eligible under the provisions of A.C.A. tit. 14, ch. 40, subch. 5 [A.C.A. § 14-40-501 et seq.].
(Code 1961, § 13-13.1)

Sec. 12-68. Mutual aid arrangements.

The chief of the fire department may provide mutual firefighting aid at the request of the chief of the fire department of any incorporated city or town to alarms in such cities or towns. Further, the chief of the fire department may approve written agreements with communities not incorporated within a radius of ten (10) miles of the corporate limits of the city provided such communities maintain in service quality firefighting equipment capable of mutually aiding the city.
(Code 1961, § 13-14)

Sec. 12-69. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.
(Ord. No. 22,429, § 1, 4-2-24)

Sec. 12-70. Third party inspections and reporting system.

(a) *Inspections and maintenance required.* The owner of the property where any device, equipment, alarm, system and any other feature is

required for compliance with the provisions of this article, or is otherwise installed on the property, shall cause maintenance, testing and inspections of all such devices, equipment, alarms, systems and features in accordance with this article and applicable referenced standards and specified intervals. If following inspection and testing, any device, equipment, alarm, system and any other feature does not meet manufacture's specifications, or fails to perform as intended, then it shall be repaired or replaced in accordance with subsection (e) below. Maintenance, testing and inspections shall include, but not be limited to, the following lire protection systems:

(1) Automatic fire sprinkler system.

(2) Commercial kitchen hood system.

(3) Fire alarm system.

(b) *Qualifications of inspectors.* Only qualified personnel shall make inspections or perform testing required by the current editions of the Arkansas Fire Prevention Code and the adopted provisions of technical codes. Qualified personnel shall include, but not be limited to:

(1) Personnel who are factory-trained and certified for the type and brand of device, equipment, alarm, system or feature being inspected, or tested.

(2) Personnel who are certified by a nationally-recognized certification organization approved by the city.

(3) Personnel who are registered, licensed or certified by Arkansas or the city to perform the required inspections and testing.

(4) Personnel of the fire department.

(c) *Reporting of inspections and tests.* Records of all installations, inspections, tests and maintenance required by this section shall be provided electronically to the city's designated electronic reporting system. Completed records shall be submitted no later than fifteen (15) days following the applicable installation, inspection, test and maintenance. The submitted report shall contain all information required by the city's designated electronic reporting system. The fee for any report filed using the electronic reporting system shall not exceed fifteen dollars ($15.00) for each type of fire protection system.

(d) *Retention of records.* Records of any device, equipment, alarm and system inspections, tests and maintenance required by the current editions of the Arkansas Fire Prevention Code and the adopted provisions of technical codes shall be maintained on the premises for a minimum of three (3) years following the date of any inspection, test and maintenance and shall be copied to the fire department and its contractors pursuant to either the provisions of the City Code, or upon the request of the fire code official.

(e) *Repairs.* If any device, equipment, alarm, system and any other feature fails its inspection or operational test, within thirty (30) days of such inspection or test, the property owner shall make all necessary repairs to make the item fully operational. Defective parts must be replaced with manufacturer-approved parts. If repair is not possible, the item must be replaced with devices, equipment, alarms, systems and features in accordance with this Code and applicable referenced standards. Completed records shall be submitted no later than fifteen (15) days following the applicable maintenance, repair or replacement. The submitted report shall contain all information required by the city's designated electronic reporting system. The fee for any report filed using the electronic reporting system shall not exceed fifteen dollars ($15.00). Upon the request of the fire code official, additional inspections and testing may be required of the repaired or replaced device, equipment, alarm, system or other feature.
(Ord. No. 22,429, § 1, 4-2-24)

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Chapter 13

FLOODS

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Secs. 13-1—13-50. Reserved.

Article II. Flood Damage Prevention

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Sec. 13-52. Definitions.

Division 2. Administration

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Sec. 13-55. Establishment of development permit.
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Sec. 13-58. Appeal board.

Division 3. Provisions for Flood Hazard Reduction

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ARTICLE I. IN GENERAL

Secs. 13-1—13-50. Reserved.

ARTICLE II. FLOOD DAMAGE PREVENTION*

DIVISION 1. GENERALLY

Sec. 13-51. Statutory authorization, findings of fact, purpose and methods.

(a) *Statutory authorization.* The Legislature of the State of Arkansas has in A.C.A. § 14-268-101 et seq., delegated the responsibility of local governmental units to adopt regulations to minimize flood losses. Therefore, the City of Little Rock, Arkansas, does hereby ordain as follows:

(b) *Findings of fact.*

(1) The Federal Emergency Management Agency (FEMA) has identified special flood hazard areas of the City of Little Rock in the current Scientific and Engineering Report entitled "The Flood Insurance Study (FIS) for Pulaski County, Arkansas, and Incorporated Areas," dated February 26, 2021, with an effective Flood Insurance Rate Map (FIRM) dated February 26, 2021.

(2) These special flood hazard areas are subject to periodic flooding events that result in loss of life and property, pose health and safety hazards, disrupt commerce and governmental services, and cause extraordinary public expenditures for flood protection and relief, all of which adversely affect the public health, safety and general welfare.

(3) These periodic flooding events are exacerbated by the cumulative effect of floodplain developments which cause an increase in flood heights and velocities, and by the placement of inadequately elevated, inadequately floodproofed or otherwise unprotected structures or uses vulnerable to floods into special flood hazard areas. Such structures or uses are inherently hazardous to other lands because of their adverse impact on flooding events.

(c) *Statement of purpose.* The purpose of this article is to promote the public health, safety and general welfare, to prevent adverse impacts from any floodplain development activities, and to minimize public and private losses due to flooding events in identified special flood hazard areas. This article advances the stated purpose through provisions designed to:

(1) Protect natural floodplains against unwise development;

(2) Eliminate adverse impacts of necessary floodplain development;

(3) Minimize expenditure of public money for costly flood control projects;

(4) Minimize the need for rescue and relief efforts associated with flooding and generally undertaken at the expense of the general public;

(5) Minimize prolonged business interruptions due to flood events;

(6) Minimize damage to public facilities and utilities such as water and gas mains, electric, telephone and sewer lines, streets and bridges located in special flood hazard areas floodplains;

(7) Minimize future flood blight areas to help maintain a stable tax base; and

(8) Provide for notice to potential buyers when property is in a special flood hazard area.

(d) *Lands to which this article applies.* The article shall apply to all special flood hazard areas within the jurisdiction of the City of Little Rock.

*__Editor's note—__Section 1 of Ord. No. 21,069, adopted July 14, 2015, repealed Art. II in its entirety, and enacted new provisions to read as herein set out. Former Art. II, §§ 13-51—13-63, pertained to flood damage control, and derived from Ord. No. 18,556, § 1(Arts. 1—5), adopted Sept. 4, 2001; and Ord. No. 18,603, adopted Dec. 4, 2001.

(e) *Methods of reducing flood losses.* This article uses the following methods to accomplish the stated purpose:

(1) This article restricts or prohibits structures or uses in special flood hazard areas that adversely impact health, safety or property during flooding events;

(2) This article requires protection against flood damage for structures or uses vulnerable to floods at the time of initial construction, or after substantial improvement of the structure, or after substantial damage has occurred;

(3) This article controls the alteration of natural floodplains, stream channels and natural protective barriers which are involved in the accommodation and transport of floodwaters;

(4) This article controls floodplain development (structural development, placement of manufactured structures, clearing, grading, mining, drilling, dredging, placement of fill, excavating, watercourse alteration, drainage improvements, roadway or bridge construction, individual water or sewer installations and other activities) which may increase flood damage by increasing flood elevations, floodwater velocities, or flood discharge patterns;

(5) This article regulates the construction of flood barriers which unnaturally divert floodwaters or which may adversely impact other lands. Flood Damage Prevention Code adopted by reference. There is hereby adopted by reference a "Flood Damage Prevention Code for the City of Little Rock, Arkansas," dated February 26, 2021. The Code shall include:

Article 1 Definitions;

Article 2 Administration;

Article 3 Provisions for Flood Hazard Reduction.

A copy of the referenced Code shall be filed in the office of the Pulaski County circuit clerk and shall be available for inspection and copying during normal business hours.

(f) *Abrogation and greater restrictions.* This article does not repeal, abrogate, or impair any existing easements, covenants, or deed restrictions. Whenever there is a conflict or overlap between this article and another ordinance, easement, covenant, or deed restriction, the instrument with the more stringent restrictions applies.

(g) *Interpretation.* In the interpretation and application of this article, all provisions must:

(1) Be considered as minimum requirements;

(2) Be liberally construed in favor of the governing body; and

(3) Be deemed to neither limit nor repeal any other powers granted under state statutes.

(h) *Warning and disclaimer of liability.* The degree of flood protection required by this article is considered reasonable for regulatory purposes. Documented scientific and engineering data form the basis for these requirements. On rare occasions, flooding events greater than those considered for this article will occur. In addition, flood heights may increase over time due to manmade or natural causes. This article does not imply that land outside special flood hazard areas will be free from flooding, nor that strict adherence to this article protects uses permitted within special flood hazard areas from all flood damages. This article specifically does not create liability on the part of the community, nor any official or employee of the community, for any flood damages that result while strictly following this article, or from any lawful administrative decision made under the provisions of this article.

(i) *Compliance.* Constructing, locating, substantially altering or changing the use of any structure or land after the effective date of this article requires full compliance with the provisions of this article and all other applicable regulations.

(j) *Penalty for noncompliance.* Flood hazards are reduced by compliance with the provisions of this Code. Accordingly, enforcement of this article discourages noncompliance and is a recognized mechanism for flood hazard reduction.

The floodplain administrator must enforce the provisions of this article and is authorized to:

(1) Issue cease and desist orders on noncompliant floodplain development projects;

(2) Issue citations for noncompliance;

(3) Request that FEMA file a 1316 Action (Denial of Flood Insurance) against noncompliant properties; and

(4) Take any other lawful action necessary to prevent or remedy any instance of noncompliance with the provisions of this article.

a. It is a misdemeanor to violate or fail to comply with any provision of this article.

b. Any person found, in a court of competent jurisdiction, guilty of violating this article is subject to fines of not more than five hundred dollars ($500.00) per day for each violation; in addition the defendant is subject to payment of all associated court costs and costs involved in the case.

(k) *Emergency clause.* It is hereby found and declared by the City of Little Rock that severe flooding has occurred in the past within its jurisdiction and will certainly occur within the future; that flooding is likely to result in infliction of serious personal injury or death, and is likely to result in substantial injury or destruction of property within its jurisdiction; in order to effectively comply with minimum standards for coverage under the National Flood Insurance Program; and in order to effectively remedy the situation described herein, it is necessary that this article become effective immediately.
(Ord. No. 21,069, § 1, 7-14-15; Ord. No. 21,732, §§ 1, 2, 5-21-19; Ord. No. 21,923, §§ 1, 2, 12-1-20)

Sec. 13-52. Definitions.

Unless specifically defined below, words or phrases used in this Code have their common usage meaning to give the most reasonable application to this Code.

Additional definitions for floodplain management terms can be found at Part § 59.1 of 44 CFR.

44 CFR (Emergency Management and Assistance - National Flood Insurance Program Regulations) parts 59—75 contain federal regulations upon which local floodplain managements are based.

44 CFR § 65.12 contains the section of the federal regulations which involves revision of flood insurance rate maps to reflect base flood elevations caused by proposed encroachments.

100-year flood is any flood with a one-percent chance of occurring in any given year. The term is misleading, because of its statistical derivation. A "100-year flood" may occur many times in any given one-hundred-year period, or it may not occur at all in one hundred (100) years.

500-year flood is any flood with a 0.2-percent chance of occurring in any given year. As with the 100-year flood, this term is also misleading, because of its statistical derivation. A "500-year flood" may occur many times in any given five-hundred-year period, or it may not occur at all in five hundred (500) years.

A risk zones are special flood hazard areas without detailed studies, where base flood elevations have not been determined.

AE or A1-30 risk zones are special flood hazard areas where detailed studies have determined base flood elevations. AE has replaced A1-30 in newer flood maps.

AH risk zones are special flood hazard areas characterized by shallow flooding with ponding effects (where floodwaters accumulate in depressions and linger until absorbed or evaporated).

AO risk zones are special flood hazard areas characterized by shallow flooding with sheet flow (where floodwaters flow in a broad, shallow sheet rather than through a narrow channel).

Accessory structures are structures which are on the same parcel of property as the principle structure and the use of which is incidental to the use of the principle structure (such as garages and storage sheds).

Adverse impact means negative or harmful effect in relation to flooding. The adverse impacts can be measured in terms of increased flood peaks, increased flood stages, and/or higher flood velocities in the floodway model as determined by FEMA in the City of Little Rock's Flood Insurance Study dated (effective date of the new FIS).

Alluvial fan flooding means flooding occurring on the surface of an alluvial fan or similar landform which originates at the apex and is characterized by high-velocity flows; active processes of erosion, sediment transport, and deposition; and unpredictable flow path.

Apex means a point on an alluvial fan or similar landform below which the flow path of the major stream that formed the fan becomes unpredictable and alluvial fan flooding can occur.

Appeal board means a person or persons specifically designated to render decisions on variance applications and floodplain management complaints.

Area of shallow flooding means a designated AO, AH, or VO Zone on a community's flood insurance rate map (FIRM) with a one-percent chance or greater annual chance of flooding to an average depth of one (1) to three (3) feet where a clearly defined channel does not exist, where the path of flooding is unpredictable and where velocity flow may be evident. Such flooding is characterized by pending or sheet flow.

Area of special flood hazard is the land in the floodplain within a community subject to a one-percent or greater chance of flooding in any given year. The area may be designated as Zone [A] on the flood hazard boundary map (FHBM). After detailed ratemaking has been completed in preparation for publication of the FIRM, Zone A usually is refined into Zones A, AE, AH, AO, A1, 99, VO, V1-30, VE or V.

Automatic entry and exit of floodwaters means that the water must be able to enter and exit with no intervening action from a person.

Base flood is the flood profile used as the basis for the NFIP regulations. The federal government has selected the one-percent chance flood as the base flood.

Basement is any enclosed area that is below grade on all sides.

BFE is the acronym for base flood elevation.

Buoyancy is the upward force exerted by water. Buoyancy can cause underground tanks to float free and can lift structures off foundations.

Certificates of compliance are formal documents issued by floodplain administrators certifying that completed projects comply with the requirements of the local Code.

Code of Federal Regulations (CFR) is the codification of the general and permanent rules published in the Federal Register by the executive departments and agencies of the federal government. It is divided into fifty (50) titles that represent broad areas subject to federal regulation. The federal regulations pertaining to the National Flood Insurance Program are found in Title 44, Emergency Management and Assistance.

Clearing is the act of cutting timber or shrubs from an area.

Commercial business park is typically an area of offices or light industrial usage, although retail, service, or industrial usage is sometimes included in supporting roles. For example, a commercial business park of office complexes may also include restaurants which service these offices.

Concrete deadman anchors are heavy steel rods embedded in buried sections of concrete, used to secure items in place under tension.

Covenant is a clause in a contract that requires one (1) party to do, or refrain from doing, certain things. A covenant frequently appears as a restriction that a lender imposes on a borrower.

Crawlspace is a type of structural foundation where the space beneath the lowest floor is typically not deep enough to allow a person to stand and not all four (4) walls are below grade.

Critical facilities include: governmental facilities that are considered essential for the delivery of critical services and crisis management (such as data and communication centers and key governmental complexes); facilities that are essential for the health and welfare of the whole population (such as hospitals, prisons, police and fire stations, emergency operations centers, evacuation shelters and schools); mass transportation facilities (such as airports, bus terminals, train terminals); lifeline utility systems (including potable water, wastewater, oil, natural gas, electric power and communications systems); high potential loss facilities (such as nuclear power plants or military installations); hazardous material facilities (such as industrial facilities housing or manufacturing or disposing of corrosives, explosives, flammable materials, radioactive materials and toxins.

Critical feature means an integral and readily identifiable part of a flood protection system, without which the flood protection provided by the entire system would be compromised.

D zones areas in which the flood hazard has not been determined, but may be possible.

Deed restriction refers to a clause in a deed that limits the future uses of the property in some respect. Deed restrictions may impose a vast variety of limitations and conditions, for example, they may limit the density of buildings, dictate the types of structures that can be erected, prevent buildings from being used for specific purposes or even from being used at all.

Development means any manmade change to improved or unimproved real estate. It includes, but not limited to, construction, reconstruction, or placement of a building, or any addition or substantial improvements to a building. "Development" also includes the installation of a manufactured home on a site, preparing a site for a manufactured home, or installing/parking a travel trailer. The installation of utilities, construction of roads, bridges, culverts or similar projects are also "developments." Construction or erection of levees, dams, walls, or fences; drilling, mining, filling, dredging, grading, excavating, paving, or other alterations of the ground surface are "developments." Storage of materials including the placement of gas and liquid storage tanks are "developments," as are channel modifications or any other activity that might change the direction, height, or velocity of flood or surface waters. "Development" will normally not include maintenance of existing drainage ditches, gardening, plowing, planting, harvesting of crops, or similar practices that do not involve filling, grading, or construction of levees.

Development permit refers to the permit required for placing a "development" in the floodplain.

Easements are rights or permissions held by one (1) person to make specific, limited use of land owned by another person.

Elevated building means a non-basement building (i) built, in the case of a building in zones A1-30, AE, A, A99, AO, AH, B, C, X, and D, to have the top of the elevated floor, or in the case of a building in Zones V1-30, VE, or V, to have the bottom of the lowest horizontal structure member of the elevated floor elevated above the ground level by means of pilings, columns (posts and piers), or shear walls parallel to the floor of the water and (ii) adequately anchored so as not to impair the structural integrity of the building during a flood of up to the magnitude of the base flood. In the case of zones A1-30, AE, A, A99, AO, AH, B, C, X, and D, "elevated building" also includes a building elevated by means of fill or solid foundation perimeter walls with openings sufficient to facilitate the unimpeded movement of floodwaters. In the case of zones A1-30, VE, or V, "elevated building" also includes a building otherwise meeting the definition of "elevated building," even though the lower area is enclosed by means of breakaway walls if the breakaway walls met the standards of Section 60.3(e)(5) of the National Flood Insurance Program regulations.

Elevation certificate refers to FEMA form 81-31, which for the purposes of this Code must

be properly completed by a professional engineer, surveyor or architect licensed to practice in the State of Arkansas.

Erosion is the process of soil removal by moving water.

Existing construction means for the purposes of determining rates, structures for which the "start of construction" commenced before the effective date of the FIRM or before January 1, 1975, for FIRMs effective before that date. "Existing construction" may also be referred to as "existing structures."

Existing manufactured home park or subdivision means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including, at a minimum, the installation of utilities, the construction of streets, and either final site grading or the pour of concrete pads) is completed before the effective date of the floodplain management regulations adopted by a community.

Existing structure means, for floodplain management purposes, a structure which is in place before any reconstruction, rehabilitation, addition, or other improvement takes place.

Expansion to an existing manufactured home park or subdivision means the preparation of additional sites by the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including the installation of utilities, the construction of streets, and either final site grading or the pouring of concrete pads).

Federal Emergency Management Agency, or *FEMA*, is the federal agency responsible for administering the National Flood Insurance Program.

FEMA is the acronym for the Federal Emergency Management Agency.

Fill refers to the placement of natural sand, dirt, soil, rock, concrete, cement, brick or similar material at a specified location to bring the ground surface up to a desired elevation.

FIRM is the acronym for flood insurance rate map.

Flood fringe refers to the portion of the 100-year floodplain which is outside the floodway (see definition of floodway below.)

Flood insurance rate map (or "FIRM") refers to the official flood map of a community on which FEMA has categorized special flood hazard areas into risk premium zones.

Flood insurance study (or "FIS") is the official report provided by FEMA. It contains flood profiles, floodway tables, engineering methods, and other descriptive and technical data.

Flood protection system means those physical structural works for which funds have been authorized, appropriated, and expended and which have been constructed specifically to modify flooding in order to reduce the extent of the areas within a community subject to a "special flood hazard" and the extent of the depths of associated flooding. Such a system typically includes hurricane tidal barriers, dams, reservoirs, levees or dikes. These specialized flood modifying works are those constructed in conformance with sound engineering standards.

Flooding events are general or temporary conditions of partial or complete inundation of normally dry land areas from the overflow of inland or tidal waters, or from the unusual and rapid accumulation or runoff of surface waters from any source.

Floodplain refers to any land area susceptible to inundation by floodwaters from any source. For the purposes of this Code, floodplain refers to the land area susceptible to being inundated by the base flood.

Floodplain administrator refers to the community official designated in the local flood damage prevention code as responsible for the code's administration.

Floodplain development permit is a permit issued by the local floodplain administrator and is required before beginning any development in an area designated as a special flood hazard area on the community's FIRM.

Floodplain management means the operation of an overall program of corrective and preventative measures for reducing flood damage including but not limited to emergency preparedness plans, flood control works and floodplain management regulations.

Floodplain management regulations means zoning ordinances, subdivision regulations, building codes, health regulations, special purpose ordinances (such as a floodplain ordinance, grading ordinances and erosion control ordinance) and other applications of police power. The term describes such state or local regulations, in any combination thereof which provide standards for the purpose of flood damage prevention and reduction.

Floodproofing is a combination of structural and nonstructural additions, changes, or adjustments to structures that reduce or eliminate the risk of flood damage.

Floodproofing certificate refers to FEMA form 81-65, which for the purposes of this Code must be properly completed by a professional engineer or architect licensed to practice in the State of Arkansas.

Floodway or *regulatory floodway* refers to a stream channel and the land to either side of the stream channel that must remain undeveloped and open in order to allow floodwaters to pass without increasing the base flood elevation more than a designated height. For the purposes of this Code, the height is one (1) foot. Severe restrictions or prohibitions are imposed on development within the floodway.

Flow-through openings are openings specifically designed to allow floodwaters to flow into and out of enclosed spaces, minimizing the danger of foundation or wall collapse from lateral hydrostatic pressure.

Functionally dependent use means a use which cannot perform its intended purpose unless it is located or carried out in close proximity to water. The term includes only docking facilities, port facilities that are necessary for the loading and unloading of cargo or passengers, and ship building and ship repair facilities, but does not include long-term storage or related manufacturing facilities.

Grade means the surface of the ground.

Grading means to smooth the surface of the ground, typically with heavy construction equipment.

Highest adjacent grade (HAG) means the highest natural elevation of the ground surface prior to construction next to the proposed walls of a structure.

Historic structure means any structure that is:

(1) Listed individually in the National Register of Historic Places (a listing maintained by the Department of Interior) or preliminarily determined by the Secretary of the Interior as meeting the requirements for individual listing on the National Register;

(2) Certified or preliminarily determined by the Secretary of the Interior as contributing to the historical significance of a registered historic district or a district preliminarily determined by the Secretary to qualify as a registered historic district;

(3) Individually listed on a state inventory of historic places in states with historic preservation programs which have been approved by the Secretary of the Interior; or

(4) Individually listed on a local inventory or historic places in communities with historic preservation programs that have been certified either:

a. By an approved state program as determined by the Secretary of the Interior; or

b. Directly by the Secretary of the Interior in states without approved programs.

Hydrodynamic forces are the forces and stresses associated with moving water, including impacts from objects carried in the water.

Hydrostatic flood forces are the forces and stresses associated with standing floodwaters.

Lacustrine flooding is flooding associated with a lake.

Lateral forces are the horizontal hydrostatic forces associated with standing water. Water exerts an equal force in all directions, and as little as three (3) feet of standing water can generate sufficient lateral force to collapse a foundation or wall.

Levee means a manmade structure, usually an earthen embankment, designed and constructed in accordance with sound engineering practices to contain, control, or divert the flow of water so as to provide protection from temporary flooding.

Levee system means a flood protection system which consists of a levee, or levees, and associated structures, such as closure and drainage devices, which are constructed and operated in accordance with sound engineering practices.

Lowest floor refers to the lowest floor of the lowest enclosed area (including basement). For a typical slab-on-grade construction, the lowest floor is the top of the first floor of the structure. For a typical basement foundation construction, the elevation of the lowest floor is the top of the basement floor. For a typical crawlspace foundation construction, the elevation of the lowest floor is the top of the first floor of the structure. For a typical split-level construction, the elevation of the lowest floor is the top of the first living area floor. For a manufactured home installation, the elevation of the lowest floor will be the bottom of the lowest I-Beam. The garage floor and crawlspaces are not the lowest floor as long as there are no living areas in the garage and it is used solely for storage, parking vehicle and entry to the structure, provided that such enclosure is not built so as to render the structure in violation of the applicable non-elevation design requirements of Section 60.3 of the National Flood Insurance Regulations.

Manufactured home means a structure transportable in one (1) or more sections, which is built on a permanent chassis and is designed for use with or without a permanent foundation when connected to the required utilities. The term "manufactured home" does not include a "recreational vehicle."

Manufactured home park or subdivision means a parcel (or contiguous parcels) of land divided into two (2) or more manufactured home lots for rent or sale.

Mean sea level means, for purposes of the National Flood Insurance Program, the National Geodetic Vertical Datum (NGVD) of 1929 or other datum, to which base flood elevations shown on a community's flood insurance rate map are referenced.

Mixed-use structures are structures with both a business and a residential component, but where the area used for business is less than fifty (50) percent of the total floor area of the structure.

New construction means, for floodplain management purposes, structures for which the "start of construction" commenced on or after the date of a floodplain management regulation adopted by a community and includes any subsequent improvements to such structures.

New manufactured home park or subdivision means a manufactured home park or subdivision for which the construction of facilities for servicing the lots on which the manufactured homes are to be affixed (including as a minimum, the installation of utilities, the construction of streets and either final site grading or the pouring of concrete pads) is completed on or after the effective date of floodplain management regulations adopted by a community.

No adverse impact principle is a principle of restricting land development that "adversely affects" someone else's property or land.

Nonresidential structures are structures used only for commercial or public purposes, such as businesses, schools, churches, etc.

No-rise certificates are formal certifications signed and stamped by a professional engineer licensed to practice in the State of Arkansas, demonstrating through hydrologic and hydraulic analyses performed in accordance with standard engineering practice that a proposed develop-

ment will not result in any increase in flood levels within the community during the occurrence of a base flood event.

Piers are columns of masonry or other structural material (commonly cement blocks stacked up to support a manufactured home), usually rectangular, used to support other structural members. For the purpose of this article, piers must be permanent in nature.

Pilings are steel tubes driven to rock or a suitable soil bearing layer and connected to the foundation of a structure.

Ponding is a flooding effect where floodwaters accumulate in shallow depressions and linger until absorbed or evaporated.

Recreational vehicle means a vehicle which is (i) built on a single chassis; (ii) four hundred (400) square feet or less when measured at the largest horizontal projections; (iii) designed to be self-propelled or permanently towable by a light duty truck; and (iv) designed primarily not for use as a permanent dwelling but as temporary living quarters for recreations, camping, travel, or seasonal use.

Risk zones categorize special flood hazard areas into groupings by the specific risk of flooding. Zones A, AE or A1-30, AO, and AH are special flood hazard areas. See "X risk zones" in this section.

Riverine flooding is flooding associated with a river or stream channel.

RV is the acronym for recreational vehicle.

Screw augers are any type of anchor that twists into the soil, typically to a depth of four (4) feet or more. They are not suitable for securing manufactured homes against floodwaters because saturated grounds often soften and fail to hold the anchor in place.

Section 404 Wetlands Permit is a permit required under Section 404 of the Clean Water Act for the discharge of dredged and fill material into any surface water of the United States. The United States Army Corps of Engineers issues Section 404 Permits.

SFHA is the acronym for special flood hazard area.

Shallow flooding means a depth of less than three (3) feet.

Slab anchors are anchors where the hook of the anchor is wrapped around a horizontal rebar in the slab before the concrete is poured.

Special flood hazard areas are geographical areas identified on FEMA flood maps as being at-risk for flooding. The maps further categorize these areas into various flood risk zones A, AE or A1-30, AH, and AO.

Start of construction includes substantial improvement and means the date the building permit was issued, provided the actual start of construction, repair, reconstruction, rehabilitation, addition placement, or other improvement was within one hundred eighty (180) days of the permit date. The actual start means either the first placement of permanent construction of a structure on a site, such as the pouring of slab or footings, the installation of piles, the construction of columns, or any work beyond the stage of excavation; or the placement of a manufactured home on a foundation. Permanent construction does not include land preparation, such as clearing, grading and filling; nor does it include the installation of streets and/or walkways; nor does it include excavation for basement, footings, piers or foundations or the erection of temporary forms; nor does it include the installation on the property of accessory buildings, such as garages or sheds not occupied as dwelling units or not part of the main structure. For a substantial improvement, the actual start of construction means the first alteration of any wall, ceiling, floor, or other structural part of a building, whether or not that alteration affects the external dimensions of the building.

State coordinating agency is the agency that acts as a liaison between FEMA and a community for the purposes of floodplain management. The Arkansas Natural Resources Commission is the State Coordinating Agency for Arkansas.

Stream channels are depressed natural pathways through which water of any quantity routinely flows.

Structural development is a development that includes the placement or construction of a structure.

Structure means, for floodplain management purposes, a walled and roofed building, including a gas or liquid storage tank, which is principally above ground, as well as a manufactured home.

Substantial damage is damage of any origin where the cost to restore a structure to its original undamaged state would equal or exceed fifty (50) percent of the market value of the structure before any damage occurred. In determining whether substantial damage has occurred, estimators must use standard contractor and materials costs. There are no exceptions for homeowners who make their own repairs or for discounted or free raw materials.

Substantial improvement is any reconstruction, remodeling, addition or improvement to a structure with a cost equaling or exceeding fifty (50) percent of the market value of the structure before any improvement. Improvements to correct identified violations of local health, sanitary or safety Codes are not substantial improvements, regardless of the cost, as long as they are the minimum improvement necessary to bring the structure up to Code. Alterations to historical structures are also exempted, as long as the improvement does not affect the structure's official status of "historical structure."

Uses vulnerable to floods are simply any land or structural uses that may be negatively affected by a flood.

Variance is a formal, written permission from the appeals board to construct or develop in a way that is inconsistent with the requirements of this Code. The variance only deals with this Code. The appeals board has no authority to waive any other governmental requirement, and has no say in the cost of flood insurance.

Violation means the failure of a structure or other development to be fully compliant with the community's floodplain management regulations. A structure or other development without the elevation certificate, other certifications, or other evidence of compliance required in this Code Section 60.3(b)(5), (c)(4), (c)(10), (d)(3), (e)(2), (e)(4), or (e)(5) [of the National Flood Insurance Program regulations] is presumed to be in violation until such time as that documentation is provided.

Water surface elevation means the height, in relation to the National Geodetic Vertical Datum (NGVD) of 1929 (or other datum, where specified), of floods of various magnitudes and frequencies in the floodplains of coastal or riverine areas.

X risk zones are a special group of insurance risk zones. One (1) type, shown as non-shaded areas on FEMA-issued flood maps, indicates a zone where flooding is not expected to occur. The second type, shown as shaded areas of FEMA flood maps, indicates a flood hazard area that is expected to be affected by the 500-year flood, but not by the 100-year base flood.
(Ord. No. 21,069, § 1, 7-14-15)

DIVISION 2. ADMINISTRATION

Sec. 13-53. Designation of the floodplain administrator.

The Mayor of the City of Little Rock, or his designee, is hereby appointed the floodplain administrator.
(Ord. No. 21,069, § 1, 7-14-15)

Sec. 13-54. Duties and responsibilities of the floodplain administrator.

(a) Obtain accreditation each year as required by A.C.A. § 14-268-106 through the state coordinating agency, which is the Arkansas Natural Resources Commission.

(b) Administer and implement the provisions of this Code and other appropriate sections of 44 CFR (Emergency Management and Assistance - National Flood Insurance Program Regulations) as they pertain to floodplain management

(c) Review applications for floodplain development permits to:

(1) Evaluate proposed projects for reasonable safety from flooding;

(2) Evaluate proposed projects for conformance with no adverse impact principles;

(3) Ensure that all other permits necessary (including Section 404 Wetlands Permits as required by the Federal Water Pollution Control Act Amendments of 1972, 33 U.S.C. 1334) for proposed projects are obtained from the appropriate government agency prior to issuing a floodplain development permit; and

(4) Ensure that proposed projects conform to the applicable provisions of this Code.

(d) Approve or deny applications for floodplain development permits on the basis of:

(1) The proposed development's compliance or non-compliance with the provisions of this Code;

(2) The expected flood elevation, floodwater velocity, flood duration, rate of rise and sediment transport of the floodwaters expected at the proposed development site;

(3) The proposed development's potential to adversely impact life and property by changing flooding patterns, changing erosion rates, or being swept onto other lands by floodwaters;

(4) The proposed development's susceptibility to flood damage;

(5) The proposed development's compatibility with existing and planned community development;

(6) The proposed development's accessibility by ordinary and emergency vehicles during flooding events;

(7) The anticipated costs of providing governmental services to the proposed development during and after flooding events, including maintenance and repair of streets, bridges, facilities and public utilities such as sewer, gas, electrical and water systems;

(8) The proposed development's functionally dependent use;

(9) The availability of alternative locations, not subject to flooding or erosion damage, for the proposed development; and

(10) The relationship of the proposed use to the comprehensive plan for that area.

(e) Interpret the exact location of the boundaries of special flood hazard areas whenever a mapped boundary appears to be different from actual field conditions. (The sole purpose of this interpretation is to determinate the applicability of the provisions of this Code to the proposed project.)

(f) Notify adjacent communities and the state coordinating agency, which is the Arkansas Natural Resources Commission, a minimum of sixty (60) days prior to any alteration or relocation of a watercourse, and submit evidence of all such notifications to FEMA.

(g) Ensure that the flood carrying capacity within an altered or relocated portion of a watercourse is not diminished, and that the alteration or relocation does not adversely impact other lands.

(h) Obtain, review and reasonably utilize, whenever the current flood insurance study or current flood insurance rate map does not provide base flood elevation data, any base flood elevation data and floodway data available from any federal, state or other source. The floodplain administrator may obtain such data by requiring the applicant to submit it in conjunction with a floodplain development permit application. (The sole use of this data is the administration of the provisions of this Code.)

(i) Inspect floodplain developments as necessary to ensure construction is in accordance with the application data that formed the basis for the decision to issue the floodplain development permit.

(j) Issue certificates of compliance.

(k) Maintain all records and documents pertaining to this Code for public inspection.
(Ord. No. 21,069, § 1, 7-14-15)

Sec. 13-55. Establishment of development permit.

A floodplain development permit is required for all structural development, placement of manufactured structures, clearing, grading, mining, drilling, dredging, placement of fill, excavating, watercourse alteration, drainage improvements, roadway or bridge construction, individual water or sewer installations or any other development in a special flood hazard area to ensure conformance with the provisions of this Code.
(Ord. No. 21,069, § 1, 7-14-15)

Sec. 13-56. Permit procedures.

(a) Application for a floodplain development permit shall be presented to the floodplain administrator on forms furnished by him/her and may include, but not be limited to, plans in duplicate drawn to scale showing the location, dimensions, and elevation of proposed landscape alterations, existing and proposed structures, including the placement of manufactured homes, and the location of the foregoing in relation to areas of special flood hazard.

(b) The documentation required with each application for a floodplain development permit, and the specific provisions of this Code applicable to the proposed development, are dependent upon the type of development proposed and the risk zone of the proposed development site. Section 13-59 contains standards for all developments in all risk zones. Section 13-60 contains standards for specific development types in specific risk zones.

(c) The decision of the floodplain administrator to approve or deny issuance of a floodplain development permit is subject to appeal to the designated appeal board. Within the City of Little Rock, Arkansas the designated appeal board is the board of directors.
(Ord. No. 21,069, § 1, 7-14-15)

Sec. 13-57. Variance procedures.

(a) Applicants must submit petitions for variances directly to the appeal board (section 13-58).

(b) Variances may only be issued:

(1) If showing a good and sufficient cause;

(2) Granting of the variance will not result in adverse impact upon other lands;

(3) If granting of the variance will not result in any additional threats to public safety;

(4) If granting of the variance will not result in extraordinary public expense;

(5) If granting of the variance does not create a nuisance, cause fraud on or victimization of the public, or conflict with existing laws or ordinances;

(6) If granting of the variance will not result in increased flood heights or an increase in expected flood velocities;

(7) If the requested variance is the minimum necessary, considering the flood hazards, to afford the necessary relief; and

(8) Upon determination that the requested variance is necessary to avoid an extraordinary hardship to the applicant.

(c) Variances may not be issued for developments inside a regulatory floodway unless:

(1) All requirements of 44 CFR § 65.12 are first met; or

(2) The following requirements are met:

a. A no-rise certificate signed and sealed by a professional engineer licensed to practice in the State of Arkansas is submitted to document that no increase in the base flood elevation would result from granting a variance for the proposed development;

b. Protective measures are employed to minimize damages during flooding events; and

c. The variance does not result in adverse impact to other lands.

(d) Examples of developments for which variance petitions may be appropriate include, but are not limited to:

(1) The new construction of, or substantial improvement to, a structure on a lot of one-half-acre or less in size that is surrounded by contiguous lots with existing structures constructed below the base flood elevation;

(2) For the reconstruction, rehabilitation or restoration of an historical structure, provided that:

a. The proposed repair or rehabilitation will not preclude the structure's continued designation as a historic structure; and

b. The variance is the minimum necessary to preserve the historic character and design of the structure.

(3) The new construction of, substantial improvement to, or other development necessary to conduct a functionally dependent use, provided that:

a. The criteria outlined in subsections (c) and (d) and section 13-58 are met; and

b. The structure or other development is protected by methods that minimize flood damages during the base flood and create no additional threats to public safety.

(Ord. No. 21,069, § 1, 7-14-15)

Sec. 13-58. Appeal board.

(a) Within the City of Little Rock, Arkansas, the board of directors is the designated "appeal board."

(b) The appeal board will consider an appeal only with allegations of an error in any requirement, decision, or determination made by the floodplain administrator in the enforcement or administration of this Code.

(c) Upon consideration of the factors noted in sections 13-57 and 13-58, and the intent of this article, the appeal board may attach such conditions to the granting of variances as it deems necessary to further the purpose and objectives of this article.

(d) Appeal board decisions are binding only upon the requirements of this Code, and have no bearing on the decision of any lending institution to require the purchase of flood insurance or on the rate determination of such insurance.

(e) Any time the appeal board issues a variance, it must provide the applicant with a formal written warning of an increased risk of flood damage due to removal of restrictions designed to lessen such risks. The notice must also warn of a corresponding increase in the cost of flood insurance, since the cost of such insurance will be commensurate with the increased risk.

(f) Aggrieved parties may appeal any decision of the appeal board to a court of competent jurisdiction.

(Ord. No. 21,069, § 1, 7-14-15)

DIVISION 3. PROVISIONS FOR FLOOD HAZARD REDUCTION

Sec. 13-59. General standards.

The following standards apply to all developments in special flood hazard areas, regardless of the type of proposed development or the risk zone of the proposed site.

(1) All new construction or substantial improvements shall be designed (or modified) and adequately anchored to prevent flotation, collapse or lateral movement of the structure resulting from hydrodynamic and hydrostatic loads, including the effects of buoyancy;

(2) All new construction or substantial improvements shall be constructed by methods and practices that minimize flood damage;

(3) All new construction or substantial improvements shall be constructed with materials resistant to flood damage;

(4) All critical facilities constructed or substantially improved in special flood hazard areas (SFHA) must be constructed

or modified to exceed 500-year flood protection standards or located outside the SFHA;

(5) The placement or construction of all new structures must be in full compliance with the provisions of this Code;

(6) For the purposes of this Code, all mixed-use structures are subject to the more stringent requirements of residential structures;

(7) A substantial improvement or substantial damage to an existing structure triggers a requirement to bring the entire structure into full compliance with the provisions of this Code. The existing structure, as well as any reconstruction, rehabilitation, addition, or other improvement, must meet the standards of new construction in this Code;

(8) Any improvement to an existing structure that is less than a substantial improvement requires the improvement, but not the existing structure, to be in full compliance with the provisions of this Code;

(9) All manufactured homes to be placed within a special flood hazard area on a community's FIRM shall be installed using methods and practices which minimize flood damage. For the purposes of this requirement, manufactured homes must be elevated and anchored to resist flotation, collapse, or lateral movement. Methods of anchoring may include, but are not limited to, use of over-the-top or frame ties to ground anchors. This requirement is in addition to applicable state and local anchoring requirements for resisting wind forces. Screw augers or expanding anchors will not satisfy the requirement of this provision;

(10) The design or location of electrical, heating, ventilation, plumbing, and air conditioning equipment for new structures, or for any improvements to an existing structure, must prevent water from entering or accumulating within the components during base flood events;

(11) The design of all new and replacement water supply systems shall be designed to minimize or eliminate infiltration of floodwaters into the system;

(12) The design of new and replacement sanitary sewage systems shall be designed to minimize or eliminate infiltration of floodwaters into the system and discharge from the systems into floodwaters; and

(13) The placement of on-site waste disposal systems shall be located to avoid impairment to them or contamination from them during flooding;

(14) Construction of basement foundations in any special flood hazard area is prohibited;

(15) New construction and substantial improvements, with fully enclosed areas (such as garages and crawlspaces) below the lowest floor that are usable solely for parking of vehicles, building access or storage in an area other than a basement and which are below the base flood elevation shall be designed to automatically equalize hydrostatic flood forces on exterior walls by allowing for the entry and exit of floodwaters. Designs for meeting this requirement must either be certified by a registered professional engineer or architect or meet or exceed the following minimum criteria:

a. A minimum of two (2) openings on separate walls having a total net area of not less than one (1) square inch for every square foot of enclosed area subject to flooding shall be provided.

b. The bottom of all openings shall be no higher than one (1) foot above grade.

c. Openings may be equipped with screens, louvers, valves, or other coverings or devices provided that they permit the automatic entry and exit of floodwaters.

(16) The placement of recreational vehicles (RV) in special flood hazard areas must either:

a. Be temporary, as demonstrated by the RV being fully licensed, being on wheels or a jacking system, attached to the site only by quick disconnect type utilities and security devices, having no permanently attached additions, and being immobile for no more than one hundred eighty (180) consecutive days; or else

b. Meet all provisions of this Code applicable to manufactured home structures.

(17) All proposals for the development of a residential subdivision, commercial business park or manufactured home park/subdivision must have public utilities and facilities such as sewer, gas, electrical and water systems located and constructed to minimize or eliminate flood damage;

(18) All proposals for the development of a residential subdivision, commercial business park or a manufactured home park/subdivision must include an adequate drainage plan to reduce exposure to flood hazards;

(19) All proposals for the development of a commercial business park or a manufactured home park/subdivision must include an adequate evacuation plan for the escape of citizens from affected nonresidential structures during flooding events.

(Ord. No. 21,069, § 1, 7-14-15)

Sec. 13-60. Risk zone specific standards.

In addition to the general standards, the following standards apply to specific development types in specific risk zones. Risk zones listed in the Code that do not appear on the current FIRM are not applicable.

(1) In AE or A1-30 risk zones: Special flood hazard areas with base floods determined:

a. For residential structures in zone AE or A1-30:

1. For all new residential structures, the top surface of the lowest floor (including all machinery and equipment) must have an elevation at least one (1) foot or more above the published base flood elevation (BFE). This elevation must be documented on an elevation certificate properly completed by a professional engineer, surveyor or architect licensed to practice in the State of Arkansas.

2. For all substantial improvements or substantial damage to existing residential structures, the entire structure becomes subject to the requirements of a new residential structure.

3. For any reconstruction, rehabilitation, addition, or other improvement to an existing residential structure that is less than a substantial improvement, only the improved area, but not the entire structure, becomes subject to the requirements of a new residential structure.

b. For nonresidential structures in zone AE or A1-30:

1. All new commercial, industrial or other nonresidential structures must either:

(i) Have the lowest floor (including basement) elevated at least one (1) foot or more above the base flood level; or

(ii) Be floodproofed such that, together with attendant utility and sanitary facilities, be designed so that below an elevation of at least one (1) foot or more above the base flood level the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy;

(iii) A registered professional engineer or architect shall develop and/or review structural design, specifications, and plans for the construction, and shall certify on a floodproofing certificate that the design and methods of construction are in accordance with accepted standards of practice as outlined in this subsection. A record of such certification which includes the specific elevation (in relation to mean sea level) to which such structures are floodproofed shall be maintained by the floodplain administrator.

2. For all substantial improvements or substantial damage to existing commercial, industrial or other nonresidential structures the entire structure becomes subject to the requirements of a new nonresidential structure.

3. For any reconstruction, rehabilitation, addition, or other improvement to an existing nonresidential structure that is less than a substantial improvement, only the improved area, but not the entire structure, becomes subject to the requirements of a new nonresidential structure.

c. For manufactured homes in zone AE or A1-30:

1. All manufactured homes that are placed or substantially improved on sites:

(i) Outside of a manufactured home park or subdivision;

(ii) In a new manufactured home park or subdivision;

(iii) In an expansion to an existing manufactured home park or subdivision; or

(iv) In an existing manufactured home park or subdivision on which a manufactured home has incurred "substantial damage" as a result of a flood, be elevated on a permanent foundation such that the lowest floor of the manufactured home is elevated at least one (1) foot or more above the base flood elevation and be securely anchored to an adequately anchored foundation system to resist flotation, collapse, and lateral movement.

(v) All machinery and equipment shall be elevated to at least one (1) foot or more above the published BFE and be securely anchored to resist flotation, collapse, and lateral movement. This elevation must be documented

on an elevation certificate properly completed by a professional engineer, surveyor or architect licensed to practice in the State of Arkansas.

2. Require that manufactured homes be placed or substantially improved on sites in an existing manufactured home park or subdivision on the community's FIRM that are not subject to the provisions of paragraph (1) of this section be elevated so that either:
   (i) The lowest floor of the manufactured home is at least one (1) foot or more above the base flood elevation, or
   (ii) The manufactured home chassis is supported by reinforced piers or other foundation elements of at least equivalent strength that are no less than thirty-six (36) inches in height above grade and be securely anchored to an adequately anchored foundation system to resist flotation, collapse, and lateral movement.
3. For all substantial improvements or substantial damage to existing manufactured home, the entire structure becomes subject to the requirements of a new manufactured home.
4. For any reconstruction, rehabilitation, addition, or other improvement to an existing manufactured home that is less than a substantial improvement, only the improved area, but not the entire structure, becomes subject to the requirements of a new manufactured home.

d. When a regulatory floodway has not been designated, the floodplain administrator must require that no new construction, substantial improvements, or other development (including fill) shall be permitted within zones A1-30 and AE on the community's FIRM, unless it is demonstrated that the cumulative effect of the proposed development, when combined with all other existing and anticipated development, will not increase the water surface elevation of the base flood more than one (1) foot at any point within the community.

(2) *Floodways:* High risk areas of stream channel and adjacent floodplain.

a. Developments in regulatory floodways are prohibited, unless:
   1. A no-rise certificate, signed and stamped by a professional engineer licensed to practice in the State of Arkansas, is submitted to demonstrate through hydrologic and hydraulic analyses performed in accordance with standard engineering practice that the proposed development would not result in any increase in flood levels within the community during the occurrence of a base flood event; or
   2. All requirements of 44 CFR § 65.12 are first met.

b. No manufactured home may be placed in a regulatory floodway, regardless of elevation height, anchoring methods, or no-rise certification.

(3) *In AH or AO risk zones:* Special flood hazard areas of shallow flooding.

a. For residential structures in zones AH or AO:
   1. For all new residential structures, the top surface of

the lowest floor (including all machinery and equipment) must have an elevation at least one (1) foot or more above the published BFE, or at least one (1) foot or more above the highest adjacent grade in addition to the depth number specified (at least two (2) feet if no depth number is specified) on the community's flood insurance rate map. This elevation must be documented on an elevation certificate properly completed by a professional engineer, surveyor or architect licensed to practice in the State of Arkansas.

2. For all substantial improvements or substantial damage to existing residential structures the entire structure becomes subject to the requirements of a new residential structure.

3. For any reconstruction, rehabilitation, addition, or other improvement to an existing residential structure that is less than a substantial improvement, only the improved area, but not the entire structure, becomes subject to the requirements of a new residential structure.

b. For nonresidential structures in zones AH or AO:

1. All new commercial, industrial or other nonresidential structure must either:

(i) Have the top surface of the lowest floor elevated at least one (1) foot or more above the published BFE, or at least one (1) foot or more above the highest adjacent grade in addition to the depth number specified (at least two (2) feet if no depth number is specified) on the community's FIRM, with documentation on an elevation certificate properly completed by a professional engineer, surveyor or architect licensed to practice in the State of Arkansas; or

(ii) Be floodproofed such that the structure, together with attendant utility and sanitary facilities be designed so at least one (1) foot or more above the published BFE in zone AH, or at least on (1) foot or more above the base specified flood depth in an AO zone, the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads of effects of buoyancy.

2. For all substantial improvements or substantial damage to existing commercial, industrial or other nonresidential structures the entire structure becomes subject to the requirements of a new nonresidential structure.

3. For any reconstruction, rehabilitation, addition, or other improvement to an existing nonresidential structure that is less than a substantial improvement, only the improved area, but not the entire structure, becomes subject to the requirements of a new nonresidential structure.

c. For manufactured homes in zones AH or AO:

1. All manufactured homes that are placed or substantially improved on sites:

(i) Outside of a manufactured home park or subdivision;

(ii) In a new manufactured home park or subdivision;

(iii) In an expansion to an existing manufactured home park or subdivision; or

(iv) In an existing manufactured home park or subdivision on which a manufactured home has incurred "substantial damage" as a result of a flood, be elevated on a permanent foundation such that the lowest floor of the manufactured home is elevated at least one (1) foot or more above the published BFE, or at least one (1) foot or more above the highest adjacent grade in addition to the depth number specified (at least two (2) feet if no depth number is specified) on the community's FIRM, and be securely anchored to an adequately anchored foundation system to resist flotation, collapse, and lateral movement.

2. Require that manufactured homes be placed or substantially improved on sites in an existing manufactured home park or subdivision on the community's FIRM that are not subject to the provisions of paragraph 1. of this section be elevated so that either:

(i) The lowest floor of the manufactured home meets the elevation standard of paragraph 1.; or

(ii) The manufactured home chassis is supported by reinforced piers or other foundation elements of at least equivalent strength that are no less than thirty-six (36) inches in height above grade and be securely anchored to an adequately anchored foundation system to resist flotation, collapse, and lateral movement.

3. For all substantial improvements or substantial damage to existing manufactured home, the entire structure becomes subject to the requirements of a new manufactured home.

4. For any reconstruction, rehabilitation, addition, or other improvement to an existing manufactured home that is less than a substantial improvement, only the improved area, but not the entire structure, becomes subject to the requirements of a new manufactured home.

d. Where FEMA has not established a regulatory floodway in zones AH or AO, no floodplain development permit may be issued unless a detailed engineering analysis is submitted along with the application that demonstrates the increase in base floodwater elevation due to the proposed development and all cumulative developments since the publication of the current FIRM will be less than one (1) foot.

e. Require adequate drainage paths around structures on slopes, to guide floodwaters around and away from proposed structures.

(4) *In "A" risk zones:* Special flood hazard areas with no base flood elevations determined:

a. In zone A, the applicant or the applicant's agent must determine a base flood elevation prior to construction. The BFE will be based on a source or method approved by the local floodplain administrator.

1. For all new residential structures, the top surface of the lowest floor (including all machinery and equipment) must have an elevation at least one (1) foot or more above the BFE. This elevation must be documented on an elevation certificate properly completed by a professional engineer, surveyor or architect licensed to practice in the State of Arkansas.

b. For residential structures in zone A:

1. For all new residential structures, the top surface of the lowest floor must have an elevation at least one (1) foot or more above the BFE. This elevation must be documented on an elevation certificate properly completed by a professional engineer, surveyor or architect licensed to practice in the State of Arkansas.

2. For all substantial improvements or substantial damage to existing residential structures, the entire structure becomes subject to the requirements of a new residential structure.

3. For any reconstruction, rehabilitation, addition, or other improvement to an existing residential structure that is less than a substantial improvement, only the improved area, but not the entire structure, becomes subject to the requirements of a new residential structure.

c. For nonresidential structures in zone A:

1. All new commercial, industrial or other nonresidential structures must either:

(i) Have the lowest floor (including basement) elevated at least one (1) foot or more above the base flood level; or

(ii) Be floodproofed such that, together with attendant utility and sanitary facilities, be designed so that below an elevation of at least one (1) foot or more above the base flood level the structure is watertight with walls substantially impermeable to the passage of water and with structural components having the capability of resisting hydrostatic and hydrodynamic loads and effects of buoyancy.

(iii) A registered professional engineer or architect shall develop and/or review structural design, specifications, and plans for the construction, and shall certify on a floodproofing certificate that the design and methods of construction are in accordance with accepted standards of practice as outlined in this subsection. A record of such certification which includes the specific eleva-

tion (in relation to mean sea level) to which such structures are flood-proofed shall be maintained by the floodplain administrator.

2. For all substantial improvements or substantial damage to existing commercial, industrial or other nonresidential structures the entire structure becomes subject to the requirements of a new nonresidential structure.

3. For any reconstruction, rehabilitation, addition, or other improvement to an existing nonresidential structure that is less than a substantial improvement, only the improved area, but not the entire structure, becomes subject to the requirements of a new nonresidential structure.

d. For manufactured homes in zone A:

1. All manufactured homes that are placed or substantially improved on sites:

(i) Outside of a manufactured home park or subdivision;

(ii) In a new manufactured home park or subdivision;

(iii) In an expansion to an existing manufactured home park or subdivision; or

(iv) In an existing manufactured home park or subdivision on which a manufactured home has incurred "substantial damage" as a result of a flood, be elevated on a permanent foundation such that the lowest floor of the manufactured home is elevated one (1) foot above the base flood elevation and be securely anchored to an adequately anchored foundation system to resist flotation, collapse, and lateral movement.

2. Require that manufactured homes be placed or substantially improved on sites in an existing manufactured home park or subdivision on the community's FIRM that are not subject to the provisions of paragraph (1) of this section be elevated so that either:

(i) The lowest floor of the manufactured home is at least one (1) foot or more above the base flood elevation; or

(ii) The manufactured home chassis is supported by reinforced piers or other foundation elements of at least equivalent strength that are no less than thirty-six (36) inches in height above grade and be securely anchored to an adequately anchored foundation system to resist flotation, collapse, and lateral movement.

3. For all substantial improvements or substantial damage to existing manufactured home, the entire structure becomes subject to the requirements of a new manufactured home.

4. For any reconstruction, rehabilitation, addition, or other improvement to an existing manufactured home that is less than a substantial improvement, only the improved area, but not the entire structure,

becomes subject to the requirements of a new manufactured home.

5. All machinery and equipment shall be elevated to at least one (1) foot or more above the BFE and be securely anchored to resist flotation, collapse, and lateral movement. This elevation must be documented on an elevation certificate properly completed by a professional engineer, surveyor or architect licensed to practice in the State of Arkansas.

e. Base flood elevation data and a regulatory floodway, utilizing accepted engineering practices, shall be generated for subdivision proposals and other proposed development including the placement of manufactured home parks and subdivisions which is greater than fifty (50) lots or five (5) acres, whichever is lesser, if not otherwise provided.

(Ord. No. 21,069, § 1, 7-14-15; Ord. No. 21,968, §§ 1—5, 3-16-21)

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Chapter 14

HEALTH AND SANITATION*

Art. I.	**In General, §§ 14-1—14-20**
Art. II.	**Regulation of Minor Tobacco Use, §§ 14-21—14-27**

*__Cross references__—Alcoholic beverages, Ch. 4; ambulances and emergency medical care, Ch. 5; animals, Ch. 6; cemeteries and crematories, Ch. 9; nuisances, Ch. 20; solid waste, Ch. 28; water sewers and sewage disposal, Ch. 25.

__State law references__—Public health and welfare, A.C.A. § 20-2-101 et seq.; authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

ARTICLE I. IN GENERAL

Sec. 14-1. Penalty.

Any person convicted of a violation of any of the provisions of this chapter shall be punished as provided in section 1-9.

Sec. 14-2. Smoking in public places.

(a) In this section:

(1) *Employee* means any person who is employed by an employer in consideration for monetary compensation or profit.

(2) *Employer* means any person who employs the service of more than four (4) persons.

(3) *Place of employment* means any enclosed area under the control of a public or private employer which employees normally frequent during the course of employment including but not limited to work areas, employee lounges, conference rooms, and employee cafeterias. A private residence is not a place of employment.

(4) *Smoke or smoking* includes the carrying or holding of a lighted pipe, cigar or cigarette of any kind or any other lighted smoking equipment or the lighting or emitting or exhaling the smoke of a pipe, cigar or cigarette of any kind.

(b) It shall be unlawful to smoke in the following places:

(1) Those portions of any building, structure or other enclosed facility open to the general public for the primary purpose of exhibiting any motion picture, stage production, musical recital or a similar performance exclusive of sports events other than in an area which serves as a lobby.

(2) Any room, chamber, place of meeting, or public assembly wherein public business is being conducted and which is open to members of the general public either as participants or as spectators except that the prohibition contained in this subparagraph shall not apply within a contiguous area containing fifty (50) percent or less of a room, chamber or place of meeting or public assembly if the entity having management and control of the premises has designated and identified such area as a smoking-permitted area by appropriate signs, provided that no division of that area of such room, chamber, place of meeting, or public assembly set aside for the use by the general public shall be made on a front area versus rear area basis, and further provided that where such premises as above provided have a seating capacity of fewer than fifty (50) seats that the contiguous area to be set aside for use as a smoking-permitted area by the entity having management and control of the premises shall be twenty-five (25) percent or less of the total area set aside for use by the general public.

(3) Those areas within the buildings or structures of any health care facility which are open to visitors to the premises, except that in such areas there may be enclosed areas designated and set aside on each floor where smoking may be allowed.

(4) Any retail food marketing establishment including grocery stores and supermarkets, except those areas of such establishments set aside for the serving of food and drink, restrooms and offices and areas thereof not open to the public.

(5) Those areas within the buildings or structures of any hospital or within twenty-five (25) feet of any entrance to any hospital on property belonging to the owner of the hospital.

(6) Any elevator located in any building in the city to which members of the general public have access.

(7) Any vehicle providing passenger service under franchise granted by the city.

(c) The person having the authority to manage and control in any area designated as a nonsmoking area pursuant to subsection (b) of this section shall post or cause to be posted and prominently displayed and shall maintain "no smoking" signs in conspicuous locations within said areas. All such signs shall clearly and conspicuously recite

the phrase "no smoking" and/or use the international no smoking symbol and shall cite city ordinances. The signs shall be posted not less than five (5) feet nor more than eight (8) feet above floor level and shall be sufficient number in location to cause the message of at least one (1) of the signs to be clearly visible, legible and readable.

(d) All federal, state, county, school and special districts and officials are urged to enact and enforce provisions similar to the provisions of this section.

(e) The prohibitions in subsection (b) of this section shall not apply to private enclosed offices occupied exclusively by smokers even though such offices may be visited by nonsmokers, or to those portions of restaurants, bars or hotels where food or alcoholic beverages are served to the public.

(f) Those persons responsible shall implement the provisions of this section in a manner consistent with all applicable state or federal statutes, rules or regulations.

(g) It shall be unlawful to willfully mutilate or destroy any signs required by this section. It shall be unlawful to smoke in any area posted as a nonsmoking area.
(Ord. No. 15,290, § 1, 5-5-87; Ord. No. 16,655, § 1, 5-3-94; Ord. No. 17,668, § 1, 2-3-98; Ord. No. 17,669, § 1, 2-3-98)

Editor's note—Ord. No. 16,655, § 1, enacted May 3, 1994, amended the Code by adding a new § 14-2(b)(4). In order to avoid duplication of numbers, the editor has redesignated the provisions in § 1, of Ord. No. 16,655 as § 14-2(b)(5).

State law reference—Smoking in public, A.C.A. § 20-27-701 et seq.

Secs. 14-3—14-20. Reserved.

ARTICLE II. REGULATION OF MINOR TOBACCO USE

Sec. 14-21. Short title.

This article shall be known as the Regulation of Minor Tobacco Use Ordinance.
(Ord. No. 17,513, § 1, 7-1-97)

Sec. 14-22. Definitions.

(a) *Minor* means any person under the age of eighteen (18) years old.

(b) *Playground* means an area of land or athletic field used for, and equipped with, facilities for recreation or athletic contests.

(c) *Public place* means any enclosed public or private place to which the public of substantial numbers of people have access.

(d) *Self-service method* means any method, other than a vending machine, that permits a consumer to remove a tobacco product without the retailer's direct assistance.

(e) *Smokeless tobacco* means any tobacco product that is used by putting it into the mouth without lighting, or is commonly referred to as smokeless tobacco including, but not limited to, snuff and chewing tobacco.

(f) *Tobacco product* means any product that contains tobacco including, but not limited to, pipe tobacco, cigars, cigarettes, smokeless tobacco, snuff and chewing tobacco.
(Ord. No. 17,513, § 2, 7-1-97)

Sec. 14-23. Prohibited acts.

It shall be unlawful:

(1) To distribute, give away, or otherwise cause to be circulated to minors any free tobacco products;

(2) To distribute free samples of any tobacco product or coupons that entitle the holder of the coupon to any free sample of any tobacco product in or on any public street or sidewalk that is within one thousand (1,000) feet of the perimeter of any playground, school, or other facility if such facility is used primarily by persons under eighteen (18) years of age;

(3) To distribute free samples of any tobacco product or coupons that entitle the holder of the coupon to any free sample of any tobacco product in or on any public street or sidewalk that is within one thousand (1,000) feet of the perimeter of any play-

ground, school, or other facility if such facility is used primarily by persons under eighteen (18) years of age;

(4) To advertise tobacco products in any family amusement center or video arcade;

(5) To own or operate a business that sells tobacco products to a minor;

(6) To sell tobacco products to any minor;

(7) For any person, other than the parent or legal guardian, to purchase or procure tobacco products for a minor.

(Ord. No. 17,513, § 3, 7-1-97)

Sec. 14-24. Restrictions on owners or operators of businesses.

(a) It shall be unlawful for any owner or operator of a business where tobacco products are sold:

(1) To sell tobacco products through vending machines, provided that this provision does not apply to private clubs where alcoholic beverages are permitted and these clubs prohibit entry to minors; employee break rooms, dressing rooms, or cafeterias that are provided by the employer; hotels if the machines are located in an area accessible only to adults; or, or other places that are not otherwise generally accessible to minors.

(2) To offer tobacco products, in quantities less than a full carton, for sale through any self-service method, except in restricted areas within a factory, business, office, or other structure to which members of the general public are not given access; or on premises permitted to sell alcoholic beverages provided that these facilities prohibit entry to minors; or, in places where the self-service display is within eight (8) feet of the cash register and all tobacco products are in full view of the cashier.

(b) It shall be unlawful for any store owner or operator of a store that fronts a school or playground to use more than fifteen (15) percent of the street level windows, or fifteen (15) percent of the exterior of the business, to advertise tobacco products.

(c) It shall be unlawful for any restaurant owner or operator of a restaurant that is open to minors to fail to prominently identify any area of the restaurant available only to nonsmokers.

(Ord. No. 17,513, § 4, 7-1-97)

Sec. 14-25. Purchase of tobacco products by a minor.

(a) It shall be unlawful for any person under eighteen (18) years of age to purchase or procure tobacco products for personal use or for use by another person.

(b) Any person convicted in municipal court of violating this subsection shall be subjected to the following civil penalties:

(1) For a first offense, mandatory enrollment in a smoking education or cessation class, or a similar class, approved by the municipal court;

(2) For a second or subsequent, offense within twenty-four (24) months, participation in up to forty (40) hours of community service;

(Ord. No. 17,513, § 5, 7-1-97)

Sec. 14-26. Penalty.

(a) Except as set forth in subsection (b), any person convicted of a violation of this article shall be punished in accordance with section 1-9.

(b) If a business, or owner, is convicted of a violation of section 3(e), in section 1-9, and an employee is convicted of a violation of section 3(f), for the same act of selling tobacco products to a minor, then:

(1) For a first offense, the maximum fine shall be fifty dollars ($50.00) for the business and an equal fine for the employee;

(2) For a second offense within twenty-four (24) months, the maximum fine shall be one hundred dollars ($100.00) for the employee if it is the same employee or fifty

dollars ($50.00) for a different employee, and one hundred dollars ($100.00) for the business.

(Ord. No. 17,513, § 6, 7-1-97)

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Chapter 15

LANDSCAPING AND TREE PROTECTION*

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*__Editor's note—__Ord. No. 20,181, § 1, adopted Oct. 20, 2009, amended Ch. 15 in its entirety and enacted similar provisions as set out herein. The former Ch. 15 derived from Code 1961, §§ 26-18, 26-19, 26-19(a), 26-19(b), and 26-20—26-22; Ord. No. 18,359, §§ 1—4, adopted Sept. 26, 2000; Ord. No. 18,362, § 1, adopted Sept. 26, 2000; and Ord. No. 18,369, § 1, adopted Oct. 10, 2000.

__Cross references—__Buildings and building regulations, Ch. 8; planning and development, Ch. 23; stormwater management and drainage, Ch. 29; subdivisions, Ch. 31; zoning, Ch. 36.

__State law reference—__Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

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ARTICLE I. IN GENERAL

Sec. 15-1. Short title.

This chapter may be cited as the "Landscape Ordinance."
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-2. Compliance with other ordinances.

This chapter is supplemental to all other ordinances. In the case of conflicting requirements, however, the most restrictive shall apply. The provisions of this chapter are intended to be harmonious, compatible and supportive of those included in the zoning, stormwater management and applicable land development ordinances. The landscaping requirements of this chapter shall overlay rather than add to landscaping specified by related ordinances. Detailed landscaping requirements are provided in this chapter to further the purpose and intent of this and related ordinances.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-3. Purpose and intent.

The purposes of this chapter are to:

(1) Heighten the quality of life and contribute to an environment which serves to encourage economic and cultural development.

(2) Encourage the creative integration of manmade and natural environments, combining in a balanced design such features as existing topography, grading, hydrology, structures, pedestrian and vehicular use areas, vegetation and views.

(3) Screen automobiles and vehicular use areas, dumpsters, buffer conflicting land uses, and enhance the appearance of the public right-of-way.

(4) Break up the visual continuity and mass of parking lots into more attractive subareas and provide channelization for internal traffic circulation.

(5) Conserve energy by providing protective barriers from wind and other natural elements which would otherwise increase heating and cooling cost, provide shade and preserve large trees.

(6) Provide for opaque screening and barriers as needed.

(7) Encourage the proper protection and maintenance of new and existing healthy and quality trees and shrubs.

(8) Encourage green/sustainable practices as a purpose to aspire towards for all applicable landscape projects.

(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-4. Scope.

(a) The provisions of this chapter shall be applicable to all properties in the city except:

(1) Those districts zoned agriculture and forestry (AF) and mining (M);

(2) Properties of two (2) acres or less zoned R1, R2, R3, R4 and R7A; and

(3) Those areas of the city designated "mature" by the department of planning and development and approved by the planning commission and the city beautiful commission. The city official may grant not more than a twenty-five (25) percent reduction of these provisions for developments within mature areas. A map of mature areas is available at the department of planning and development;

(4) Wireless communications facilities which have separate landscape requirements under chapter 36 of this Code.

(b) This chapter also applies to new and expanded developments and vehicular use areas which are located in a zone or use of higher density than two-family and when the existing landscaping is nonconforming. Additionally, it applies to the rehabilitation of an existing structure exceeding fifty (50) percent of its current cost and to the expansion of an existing structure exceeding ten (10) percent of its current floor area when the existing landscaping is nonconforming and

the structure is in a zone or use of higher density than two-family. Based on this scope, this chapter shall apply:

(1) To all future vehicular use areas as they are developed.

(2) To any expansion or addition to existing vehicular use areas or changes in the land use intensity of vehicular use areas when such expansions or changes are considered by a public body.

(c) The city may establish site guidelines which may be referred to in order to clarify these regulations.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-5. Exemptions.

This article shall not apply to the maintenance of overhead or underground utility lines, nor does it apply to the development of subdivisions in the construction of streets, curbs, gutters, storm sewers and overhead or underground utility lines. It is expected that proper care and planning are used in the construction so that the maximum number of trees can be preserved.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-6. Definitions.

For the purpose of this chapter, certain words or terms applicable hereto are defined as hereinafter provided. Words and terms used in this chapter but not defined in this chapter shall have the meanings ascribed elsewhere in this Code. Words used in the present tense shall include the future, words used in the singular number shall include the plural number and words used in the plural shall include the singular. Rules of construction of terms are designated in chapter 1 of this Code.

Automatic irrigation means the watering of land or plant material by artificial means to foster plant growth by the use of underground pipes, valves, sprayheads, and/or drip lines. Automatic irrigation shall be in compliance with all state and city standards and must include an RPZ, a backflow preventer, and an automatic controller.

Buffer, hillside means a strip of land which separates large cuts or fills from abutting properties, public right-of-way or from other large cuts or fills on a site. Its purpose is to facilitate effective drainage and erosion control and to encourage preservation of large trees of a site and reduce public view of cuts and fills.

Buffer, land use means a strip of land lying parallel and adjacent to a property line common to a dissimilar use of a more restrictive nature. This strip shall lie parallel to the property line at any point. The purpose of this buffer is to provide for visual and physical separation of uses of a dissimilar nature.

Buffer, street means a strip of land lying parallel and adjacent to a public street right-of-way. This strip shall lie parallel to the street right-of-way line at any point. The purpose of this buffer is to provide for a separation of traffic movements, both on and off the site, and provide for a visual and spatial separation of certain uses and/or activities from the public right-of-way.

Building landscape area means the on-site landscape area which separates parking from the building. The principle purpose of this area is to improve the appearance of the building from the street and vehicular use area.

Caliper means the diameter of a tree as measured twelve (12) inches above ground level for nursery stock trees and at breast height (four and one-half (4½) feet) for preserved trees.

Canopy means the outermost spreading branch layer of a tree.

City official means the employee of the city who is designated by the city manager as having responsibility for the administration and enforcement of this chapter.

Critical root zone means the area of undisturbed natural soil around a tree defined by a concentric circle with a radius equal to the distance from the trunk to the outermost portion of the dripline.

Damaged tree means a tree that has been damaged or diseased greater than fifty (50) percent. An inspection and approval by the city official is required prior to removal and replacement of a damaged tree.

Deciduous means the tendency of a plant to drop or lose its leaves during a particular season of the year, generally during the winter months.

Design professional means a landscape architect, an architect, an engineer, a horticulturalist or a certified nurseryman.

Diameter at breast height (DBH) means the diameter of a tree measured four and one-half (4½) feet above ground level.

Dripline means a vertical line extending from the canopy of a tree to the ground.

Driveway access means an area intended to provide entrance, exit or maneuvering for vehicular traffic from a public right-of-way to an off-street vehicular use.

Earth berm means a mounding of soil volume in order to create a screen or change in elevation between the use area and adjacent areas. The berm shall be constructed to minimize erosion and should normally be completely covered with ground cover or lawn grass.

Evergreen means the tendency of a plant to retain its leaves during all seasons of the year.

Ground cover means planting materials which reach a maximum height of not more than eighteen (18) inches in height and may be used in lieu of grass. Ground cover shall present a reasonably complete cover appearance within two (2) years of planting.

Hydroseeding means a planting process which utilizes a slurry of seed and mulch. The slurry is transported in a tank, either truck- or trailer-mounted, and sprayed over prepared ground in a uniform layer; helicopters may be used in cases where larger areas must be covered. Hydroseeding is an alternative to the traditional process of broadcasting or sowing dry seed. Hydroseeding promotes quick germination and inhibits soil erosion.

Interior landscape area means any landscape area within the perimeter of the vehicular use area excluding the building landscape area. Its primary purpose is to break up the mass of the vehicular use area and to channelize traffic circulation on the site.

Invasive plant species means plants that are not indigenous or native to a particular area and able to establish on many sites, grow quickly and speared to the point of disrupting plant communities and ecosystems, further identified as invasive in section 15-106.

Irrigation means an adequate supply of water which can be made available to landscape plant materials.

Land alteration is defined in chapter 29 of this Code.

Landscape area means that area within the boundaries of a lot or tract of land which consists of planting materials including, but not limited to, trees, shrubs, ground covers, grass, flowers, and native plant materials; also including, but not limited to, inorganic features such as concrete planters, stone, brick, and aggregate forms, water, and other landscape elements. Inorganic elements shall not predominate over the use of organic plant material. Artificial plants are not considered landscape materials.

Landscape and tree protection plan means a document approved by the city containing the landscaping, tree protection, buffers and other site requirements of a particular development project. This document may be referred to as the "landscape plan."

Lawn grass means all species normally grown as permanent lawns in Pulaski County. Grass sod shall be required in all required planting beds and planting strips where bark or other approved ground cover is not proposed. Grass sod shall be reasonably free of weeds and noxious pests or disease.

Massing, shrubs, means three (3) or more shrubs planted within close proximity.

Massing, trees, means existing contiguous tree groupings with the associated undergrowth.

Native plant species means one that occurs naturally in a particular region, ecosystem or habitat without direct or indirect human intervention. The plants present at the time Europeans arrived in North America are considered native to Arkansas.

Nursery stock means all plants, trees, shrubs, vines, cuttings and grafts, scions and buds grown or kept for, or capable of, propagation, distribution or sale; provided, that vegetable, grass and other soft-wood herbaceous plants shall not be considered nursery stock except when grown by a producer of hardwood plants. At that point, it becomes nursery stock and subject to fees based on acreage and other requirements that govern the sale of nursery stock.

Off-street parking space means a space on private land accessible from a usable street or alley, not less than nine (9) feet wide and twenty (20) feet long, with the necessary maneuvering room within the private property.

Perimeter landscape strip means a landscaped area which separates the vehicular use area from adjoining property or public right-of-way. Its purpose is to enhance the visual appearance of the site and to provide screening of the vehicular use area and certain other uses and activities from the public right-of-way and abutting properties.

Preserved tree means a tree selected for preservation by the responsible party and approved by the city. A tree is considered preserved if a minimum of seventy-five (75) percent of the critical root zone is maintained at undisturbed natural grade and not more than twenty-five (25) percent of the canopy is removed.

Property line means the legal boundary between two (2) lots or parcels of land. Property line shall also include property lease lines which separate independent uses or activities except:

(1) When abutting common driveways; or

(2) When abutting areas designed for interior circulation.

Protective fencing means colored fencing of vinyl or wire construction not less than four (4) feet in height.

Remove or *removal* means the taking from the property or causing damage to trees with DBH of six (6) inches or greater. This term shall not include responsible pruning of trees.

Replacement trees means trees that are planted to replace trees that have been severely damaged or have died or have been otherwise removed. Fifty (50) percent of replacement trees shall be a minimum of three (3) inches in caliper at planting and the balance shall be four (4) inches in caliper or greater at planting.

Required tree means a tree other than a preserved tree which is included in a landscape plan.

Responsible party means the following:

(1) The permit applicant who is the designated agent for development related activities for purposes of obtaining all required permits. The permit applicant relinquishes responsibility to the construction superintendent when all necessary permits have been issued by the city; or

(2) The construction superintendent who is that person designated as the on-site agent for the project and responsible for all construction related activities until the issuance of a final certificate of occupancy; or

(3) The lessee or any person or entity having control of the property subject to this chapter; or

(4) The owner, which is the person, firm, corporation or other entity holding current legal title to the property. The responsibility of the owner shall commence upon the date of issuance of the certificate of occupancy.

Rip rap means a foundation or sustaining wall of stones placed together without order on an embankment slope to prevent erosion. The riprap shall be covered from both the top and bottom with vegetative cover.

Screening means the use of natural or manmade topography, berms, fences, walls, trees, shrubs, ground cover or any combination thereof which partially or completely blocks the view of one (1) area from another.

Screening, opaque means a manmade device on, or a natural feature of, a property which restricts access or visibility the purpose of which is to provide privacy, separation of use, and to reduce the impact of automobile lights on an

adjacent use. Such screening shall be opaque in nature and prevent the passage of visible light frequencies.

Shrubs and hedges means self supporting, woody, evergreen species and shall have a minimum height of eighteen (18) inches at installation.

Soil means a medium in which plants will grow.

Stop work order means an order issued by the city official directing the parties involved in an activity to cease and desist all work on the development or to cease only that portion which is not in compliance, except such remedial work necessary to bring the project into compliance.

Street is defined in chapter 31 of this Code.

Tree means any self-supporting woody perennial plant of two (2) inches or more DBH reaching an overall height at maturity of at least fifteen (15) feet. The canopy of the mature tree shall be ten (10) feet or more above ground level with the height of the canopy of the immature tree being proportional to the current size of the tree. Large woody shrubs shall not constitute a tree.

Tree, multitrunk means a tree having three (3) or more trunks.

Tree topping means cutting the main vertical leader of the tree or the severe cutting back of limbs to stubs larger than two (2) inches in diameter within the crown of the tree to such an extent as to remove the normal canopy and disfigure the tree.

Undisturbed means the condition of a land area which remains in a natural state including topography, trees and vegetation, except that enhancements such as additional landscaping, replacement of underbrush and other treatments may be utilized within the land area when approved by the city official.

Vehicular use area means that area of private development subject to vehicle traffic, including access ways, driveways, loading and service areas used for parking, maneuvering, or storage of vehicles, boats, or portable construction equipment, and all land which vehicles travel over as a function of the primary use.

Vine means an herbaceous or semiwood plant requiring support upon which to grow. Vines are generally used to soften the effect of inorganic elements such as fences, walls, and arbors, as well as to provide screening or buffering effects.

Wall or *fence* means a structure of wire, posts, boards, pickets or rails commonly used to border, secure or delineate a yard, field, lot or other land area. All fences intended as screening fences to fulfill a code or site plan requirement shall be opaque and placed with the decorative or face side toward the subject to be protected.
(Ord. No. 20,181, § 1, 10-20-09; Ord. No. 22,252, §§ 1, 2, 4-18-23)

Sec. 15-7. Enforcement.

(a) *[Penalties.]* Any person convicted of a violation of any of the provisions of this chapter shall be punished as provided in section 1-9 of this Code.

(b) *[Approved landscape plan required.]* All property subject to the requirements of this chapter shall be developed in conformance with an approved landscape plan. The removal or improper preservation of each required tree shall be considered a separate violation. Each violation shall be considered a separate offense.

(c) *[Inspection, certification.]* No final certificate of occupancy shall be issued for any structure within a development requiring a landscape plan until the city official has conducted an inspection and has certified that the project is in conformance with the landscape plan.

(d) *[Notice of violation.]* When a violation of this chapter is determined to exist the city official shall issue a written notice of the violation to the responsible party. The notice shall specify those sections of this chapter which are determined to be violated and shall include the time and conditions under which the violation(s) shall be corrected. If the responsible party has been issued other notices within the preceding twelve-month period the notice may require the violation(s) to be corrected within twenty-four

(24) hours. If the city official determines that the current season of the year is not conducive to sustaining life for trees, the time for compliance with these provisions may be extended for not more than one hundred twenty (120) days.

(e) *[Stop work orders, citations.]* If the responsible party refuses to comply with the written notice of violation the city official may issue a stop work order and citation and revoke or withhold the issuance of all permits including the building permit and certificate of occupancy. Additionally, when the city official determines that an emergency exists an order to immediately cease and desist may be issued.

(f) *[Appeals.]* The responsible party shall have a maximum of thirty (30) days to appeal the issuance of the stop work order to the city beautiful commission. However, the appeal of a stop work order shall not stay the prosecution by the city of a violation in court.

(g) *Conflicts.* Where provisions of this chapter conflict with any other ordinance, regulation, or resolution of the city, the most stringent provision shall be enforced. The provisions of this chapter are considered minimum requirements.
(Ord. No. 20,181, § 1, 10-20-09)

Secs. 15-8—15-25. Reserved.

ARTICLE II. CITY BEAUTIFUL COMMISSION

Sec. 15-26. Created.

There is created a commission to be known as the "city beautiful commission."
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-27. Members.

(a) The city beautiful commission shall be composed of eleven (11) members who shall be qualified electors of the city. Two (2) members of the committee shall be chosen from any of the following professions:

(1) Professional civil engineer.

(2) Professional urban planner.

(3) Registered architect.

(4) Registered landscape architect.

(b) Members shall be appointed by the board of directors for terms of three (3) years each. Should any commission member fail to attend three (3) successive commission meetings, his term shall be automatically terminated and a new member appointed by the board of directors for the remainder of the unexpired terms.
(Ord. No. 20,181, § 1, 10-20-09; Ord. No. 20,395, § 1, 1-18-11)

Sec. 15-28. Officers.

Officers of the city beautiful commission shall be elected by full membership of the commission and shall include a chairman, vice-chairman and treasurer. Terms of officers shall be for one (1) year, and officers may succeed themselves.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-29. Meetings.

Meetings of the city beautiful commission shall be held monthly. A majority of the total membership of the commission shall constitute a quorum for the transaction of business, and the concurring vote of a majority of all members of the commission shall represent the action of the commission. The commission shall adopt bylaws for the conduct of its meetings.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-30. Aims and goals.

The city beautiful commission is accountable directly to the board of directors and under the general supervision of the city manager. The commission shall be responsible for the establishment and maintenance of plans to ensure a high level of visual aesthetic quality. The goal of the city beautiful commission shall be to raise the level of community expectations for the quality of its environment.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-31. Role, duties and responsibilities.

(a) The role of the city beautiful commission is to be responsible for the establishment and maintenance of plans to control litter, weeds,

abandoned vehicles and appliances and to otherwise ensure a high level of visual aesthetic quality, specifically including, but not limited to, the visual appearance of parks and open spaces, streams and other bodies of water, drainage ditches, structures, hillsides, riverfronts, utilities, signs, vehicle parking and sales lots, outdoor storage, trees and other natural vegetation, natural landscaping, streets and railroads.

(b) The commission has the following duties, responsibilities and powers:

(1) To promote public interest in the general improvement of the appearance of the city.

(2) To prepare and transmit to the board of directors recommended policies implementing the plans prepared by or for the commission.

(3) To establish, subject to approval of the board of directors, regulations of aesthetic quality for public and private lands and improvements.

(Ord. No. 20,181, § 1, 10-20-09; Ord. No. 21,867, § 1, 5-19-20)

Sec. 15-32. Fiscal procedure.

The city beautiful commission is subject to all fiscal procedures of the city.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-33. Funding.

The planning and development department shall be responsible for relaying budget requests of the city beautiful commission to the city manager and board of directors. The commission shall have the authority to accept any and all donations, and the city shall establish and maintain separate accounts to receive such funds.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-34. Committees.

The city beautiful commission may appoint any number of citizens to serve on committees as ex officio members.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-35. Article cumulative.

This article shall not in any manner supersede the authority or duties of any other commission, board or agency duly established by ordinances or resolutions of the board of directors, and shall not in any manner be interpreted to interfere with such duties that have been established by such ordinances or resolutions of any such commission, board or agency.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-36. Appeals.

(a) Any person aggrieved by a decision of the city official in the administration of this chapter shall have the right of appeal to the city beautiful commission. The city beautiful commission shall hear requests for variances from the provisions of this chapter upon written application. Following submission of a detailed development proposal the commission may grant variances only when it is demonstrated by the applicant that a variance will be in keeping with the purpose and intent of the provisions of this chapter. The commission may impose reasonable conditions upon the granting of a variance to ensure compliance and to protect surrounding property and the public interest.

(b) The commission shall also hear and decide appeals where it is alleged by the applicant there is error in any order, requirement, decision or determination made by a city official in the enforcement of this chapter.

(c) All applications for a hearing before the city beautiful commission shall be accompanied by a fee in the amount of one hundred fifty dollars ($150.00). The fee shall be paid to the city collector's office for which a receipt will be issued stating the purpose of the payment. The receipt shall be filed with the application as proof of payment of the fee.

(d) The applicant or objectors of record aggrieved by a decision of the commission have a right to appeal to the city board of directors. The content of the appeal filing shall consist of the following information delivered to the city clerk:

(1) A cover letter addressed to the mayor and board of directors setting forth the request;

(2) A copy of the city beautiful commission application indicating the action taken and properly executed by the staff.

This filing shall occur within thirty (30) calendar days of the action by the city beautiful commission. Certified mail notice of appeal hearing shall be provided not less than ten (10) days prior to the date of the hearing, and the affidavit and other supporting evidence of notice shall be filed not less than five (5) days prior to the date

of review. This notice shall be given to all parties of record whether for or against the request. The cost of this notice shall be borne by the applicant. (Ord. No. 20,181, § 1, 10-20-09; Ord. No. 21,867, § 1, 5-19-20)

Sec. 15-37. T.R.E.E fund.

(a) *Intent.* The board of directors of the city recognizes that from time to time variances from the tree requirements of this chapter will be granted by the city beautiful commission to the responsible party. In an effort to afford the citizens of the city the benefits they would have received from the trees required by this chapter but were lost through development of the site, the city enacts this section establishing a fund to be used for the replenishment of trees in the city entitled the "Tree Restoration for Environmental Enhancement" (T.R.E.E.) fund.

(b) *[Source of funds.]* The T.R.E.E. fund shall consist of cash contributions required of the responsible party in-lieu of tree improvements under the following circumstances:

(1) The city official determines in a specific written finding that the required minimum number of trees to be planted pursuant to this chapter is not obtainable without undue hardship on the responsible party; or

(2) A variance from the requirements of this chapter has been granted by the city beautiful commission which reduces the number of trees that will be planted or preserved from the minimum number of trees required by this chapter.

(c) The responsible party shall contribute to the city a cash payment equal to one hundred (100) percent of an estimate prepared by a registered professional landscape architect or certified arborist of the cost of the trees required by this chapter that will not be planted under the provisions of subsection (b) above. Such estimate shall also include the cost of installation of the trees.

(d) The city official shall determine annually the required per tree in-lieu cash payment amount. Such amount shall not exceed two hundred dollars ($200.00) per tree with annual CPI inflation adjustments commencing in 2001. Any in-lieu cash contribution required shall be limited to a maximum of ten (10) trees per site.

(e) When in-lieu contributions are required to be made, a responsible party's landscape plan shall not be approved until:

(1) The tree requirements pursuant to this section are waived or granted variance pursuant to subsection (b), above; and

(2) A copy of the receipt for the required cash contribution has been received by the city official.

(f) The city finance department shall be responsible for receiving, recording, depositing, reporting and reimbursing in-lieu cash contributions as determined by the city official. A receipt evidencing cash contributions made shall be provided to both the responsible party and to the city official.

(g) The finance department shall maintain a T.R.E.E account and shall maintain records of all in-lieu cash contributions. The finance department shall produce an annual report summarizing the tree improvement account and provide same to the city official and the city beautiful commission. This report shall include both the principal and the interest earned for the accounting period, and the annual tree plantings by section of the city.

(h) In-lieu contribution funds shall be dedicated to planting and maintaining trees on public property and rights-of-way within the area of the site where the trees were removed; within a one-mile radius of the site or as approved by city staff. The Little Rock City Beautiful Commission, in conjunction with city staff, shall advise about tree selection, planting guidelines and tree placement.
(Ord. No. 20,181, § 1, 10-20-09; Ord. No. 20,533, § 1, 2-7-12; Ord. No. 21,867, § 1, 5-19-20)

Secs. 15-38—15-50. Reserved.

ARTICLE III. TREE PROTECTION

Sec. 15-51. Tree cutting permit.

(a) Except for public utilities operating within the scope of a valid franchise agreement or otherwise authorized by law, it shall be unlawful to remove any tree located within the public rights-of-way or other city owned property without the appropriate permit. Such permit may be applied for in conjunction with the application for a building permit.

(b) Except for public utilities operating within the scope of a valid franchise agreement or as otherwise authorized by law, no permit for the cutting down and removal of trees in the public rights-of-way or on city property shall be granted unless the city official finds that one (1) or more of the following conditions exist:

(1) The tree is less than three (3) inches in caliper;

(2) The tree is diseased or injured and is unlikely to survive;

(3) The tree is within the area of a proposed structure on the property or so close as to render it dangerous to the structure or unlikely to survive;

(4) It is necessary that the tree be removed to protect existing or proposed public facilities.

(5) The area is within a driveway designated on an approved site plan.

(6) The area is included within an approved grading plan.

(c) Any tree removed from the areas described in this section shall be replaced with a tree meeting the specifications of article IV of this chapter within six (6) months of removal.

(d) No tree growing near a sidewalk shall be removed solely because of interference with the sidewalk unless the city official finds that the sidewalk cannot reasonably be constructed without removal of the tree. It is the intent of this section that sidewalks be reconstructed around trees and that trees are not to be removed solely to facilitate construction of sidewalks. (Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-52. Preservation, protection and planting.

(a) *[Compliance.]* There is no requirement under this chapter to preserve trees other than within a land use buffer. However, the responsible party may select certain trees to be preserved elsewhere on the site to comply with the provisions of this chapter and to accomplish passive sustainable energy conservation.

(b) *[Protection.]* Trees selected for preservation or planted shall have the area within the dripline fenced with protective fencing and protected from development activities in accordance with the design standards contained within this chapter. For each existing tree preserved and incorporated into the landscape design, the following credits shall be applied to the minimum tree requirements:

TREE CREDIT CHART

Preserved Tree DBH	*Credits Toward*
4—5 inches	2 required trees
6—12 inches	3 required trees
13—18 inches	4 required trees
19—24 inches	6 required trees
25—32 inches	8 required trees
32—48 inches	10 required trees
Above 48 inches	12 required trees

(c) *Continuous maintenance.* Once a landscape plan has been approved, a digital and hard copy of the approved plan shall be provided to the city and also kept on file with the owner/management company. The plan shall remain on file with the city, and the site shall be maintained in conformance with the landscape plan. Any landscaping materials or preserved or required trees that die within one year of planting shall be replaced one (1) for one (1) by the responsible party unless additional trees are required to be planted to meet the spacing requirements of this chapter in effect on the date of the most recent approved landscape plan.

After one (1) year of planting, any trees that die shall be replaced in accordance with the tree credits set forth in this section. Trees that are destroyed or removed by act or consent of the responsible party shall be replaced in accordance with the tree credits set forth in this section. Replacement shall occur as soon as reasonably possible in accordance with the approved landscape plan and good horticultural practices and in compliance with this chapter.

(d) *[Standards for compliance.]* Plant material used for compliance with the provisions of this chapter shall conform to the "American Standards for Nursery Stock, I-73", grade no. 1, American Association of Nurserymen, Inc., or equivalent. This article specifically prohibits the use of artificial plants or trees in landscaping to satisfy the requirements of this chapter.

(e) *[Land use buffers.]* Within land use buffers, a minimum of seventy (70) percent of the land area shall be undisturbed.

(f) *[Supervision.]* Land alteration work shall be properly supervised in accordance with chapter 29.

(g) *Prohibited activities.* It shall be unlawful to allow any of the following activities to occur in protected trees or groups of trees or any area designated "undisturbed" or "preserved" on the landscape plan:

(1) *Material storage.* No storage of any kind is permitted within the critical root zone, including, but not limited to, construction materials, waste storage, and excess materials from excavation.

(2) *Equipment cleaning and liquid disposal.* Equipment shall not be cleaned nor liquids, including, but not limited to, paint, oil, solvents, asphalt, concrete, and mortar, shall be deposited or allowed to flow within the limits of the critical root zone.

(3) *Tree attachments.* No signs, wires, or other attachments shall be attached.

(4) *Vehicular traffic.* No vehicular or construction equipment traffic or parking shall be permitted within the critical root zone other than on an existing street pavement except as provided for buffers in chapter 36.

(5) *Grade changes.* No grade changes shall be permitted within the limits of the critical root zone unless adequate construction methods are approved by the city official.

(6) *Impervious paving.* No paving with asphalt, concrete or other impervious materials in a manner which may reasonably be expected to kill a tree shall be placed within the limits of the critical root zone, except as provided for in chapter 36.

(h) *Tree protection measures.* Tree protection measures shall be in place prior to the arrival of any heavy equipment on the site or the beginning of any construction including land alteration except as necessary to install tree protection. Such measures shall remain in place until commencement of final landscaping and shall include:

(1) Protective fencing located around the perimeter of the critical root zone, and

(2) Flagging with brightly colored vinyl tape wrapped around the main trunk at a height of four (4) feet or more such that the tape is clearly visible to workers on foot or operating equipment.

(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-53. Tree pruning.

(a) *Required pruning.* The owners of all trees adjacent to public roadways shall be required to maintain a minimum clearance of fourteen (14) feet above the public street and eight (8) feet above sidewalks. Owners shall also prune and maintain trees so that they do not interfere with traffic signals or signs, street lighting, or roadway line of sight requirements. Owners shall remove all dead, diseased or dangerous trees, and broken or decayed limbs.

Pruning shall be done in accordance within accepted industry standards that maintain both the appearance and health of the tree. "Tree topping" is specifically prohibited by this section.

Crape myrtles shall not be trimmed lower than six (6) feet in height above grade to be classified as a tree.

(b) *Construction pruning.* In a case where a low-hanging limb may be broken during construction, the limb may be cut. In no instance shall the pruning involve a portion of the trunk or more than ten (10) percent of the canopy.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-54. Standards for preserved trees.

The city official may visit each site and review photographs of each site for which there is a plan in order to verify that the trees to be preserved pursuant to the plan are of sufficient size, quantity and quality to warrant preservation. Trees that do not warrant preservation shall not qualify as preserved trees as determined by the city official.
(Ord. No. 20,181, § 1, 10-20-09)

Secs. 15-55—15-80. Reserved.

ARTICLE IV. LANDSCAPING OF VEHICULAR USE AREAS AND PUBLIC RIGHTS-OF-WAY

DIVISION I. GENERALLY

Sec. 15-81. Permit requirements; landscape plan.

(a) *Landscape permit.* A landscape permit shall be obtained from the city before constructing or expanding a vehicular use area and before expanding or rehabilitating a building if landscaping is required under this chapter.

(b) *Landscape plan.* Before a landscape permit is issued, the applicant shall submit the required number of copies of a landscape plan to the city. When the vehicular use area is accessory to a building or structure, the landscape plan should be submitted concurrently with the building and site plans of the proposed structure. The landscape plan may be shown on the building site plan and need not be a separate drawing. However, development of two (2) acres or more requires the landscape plan be affixed with the seal of a registered landscape architect. Development of sites two (2) acres or less requires the landscape plan be prepared by a design professional.

(c) *Information required.* The landscape plan shall provide at a minimum the following information:

(1) Names, addresses and telephone numbers of all responsible parties;

(2) A separate document showing all dimensions, property lines and lease lines;

(3) North arrow, scale and date of preparation;

(4) The location, species and size of all existing trees six (6) inches or more diameter at breast height (DBH) to be designated preserved trees and the outline of all tree masses and shrub masses to be preserved including corresponding critical root zones and areas being preserved. The tree credit chart for each preserved tree as described in section 15-52;

(5) The location of all proposed plant materials and the common and botanical names, together with the quantity, spacing and size of all plant materials;

(6) Tree fencing and other methods of protection during construction;

(7) Extent of irrigation or water sources;

(8) Phasing lines if development is to be constructed in phases;

(9) Existing and proposed structures, mechanicals, parking spaces, driveways, sidewalks, dumpster locations and screening, wheel stops and curbing or other vehicular use controls;

(10) Existing and proposed utility easements and whether the utilities will be above ground or below ground, fire hydrants, and storm sewers (this would include those in the adjacent right-of-way);

(11) The location of cuts or fills, drainage, wet or dry detention basins;

(12) Planting specifications including soil preparation, staking and necessary measures to ensure plants thrive;

(13) A graphic elevation illustration of proposed opaque screening;

(14) Procedures and methods to be followed concerning slopes or cuts and associated trees within hillside benches;

(15) An overlay identifying the outline of existing tree masses and the predominate tree species, the average DBH and condition of the trees in each mass that are to be preserved;

(16) Identification of trees, vegetation and soils that are to be protected or removed;

(17) All buffer areas;

(18) A statement indicating timetable for commencing and completing work.

(Ord. No. 20,181, § 1, 10-20-09; Ord. No. 21,867, § 1, 5-19-20)

Sec. 15-82. Surety for deferred improvements.

(a) Upon request of the responsible party the city official may issue a temporary certificate of occupancy prior to completion of the landscape plan. In such case a final certificate of occupancy shall not be issued until the city official certifies completion of the requirements of the landscape plan.

(b) When the city official determines that the current season of the year is not conducive to sustaining life or [of] trees and plants required hereunder, compliance with these provisions may be deferred for not more than six (6) months. Either cash, surety bond or letter of credit in favor of the city (collectively referred to as "surety") in an amount equal to the estimated cost of the deferred improvements shall be provided to the city by the responsible party. The responsible party may choose the form of the surety. A temporary certificate of occupancy may be issued conditioned upon such provision.

(c) Estimates of the cost of deferred improvements shall be prepared by the project architect, engineer, landscape architect or landscape contractor.

(d) Failure to complete the deferred improvements within the one-year deferral shall effect an automatic forfeiture of the surety. A forfeiture shall not relieve the responsible party of payment of any excess expenses required to complete the approved landscape plan.

(e) At the option of the city official the forfeited surety shall be used by the city or by the responsible party to complete the landscape plan.

(f) The forfeiture may be deferred for not more than two (2) years if it is determined by the city official that such delay is excusable or justified. It is incumbent upon the responsible party to demonstrate sufficient reason for this deferral.

(g) Only one (1) two-year extension shall be permitted by the city official. Extended deferrals may be granted by the city beautiful commission.

(Ord. No. 20,181, § 1, 10-20-09; Ord. No. 21,867, § 1, 5-19-20)

Sec. 15-83. Maintenance.

(a) All property subject to the requirements of this chapter shall be maintained by regular weeding, irrigating, fertilizing, mowing, and pruning of the plant materials, all in conformance with good horticultural practices.

(b) Plant materials which are installed or preserved within private property and within the adjacent public right-of-way which exhibit evidence of pest infestation, disease or damage shall be appropriately treated and replaced as determined by the city official.

(c) The neglect or refusal to maintain as described in this section, after ten (10) days' written notice by the city, shall be considered a violation.

(d) Trees contained in an approval landscape plan that have been removed or which die shall be replaced in accordance with section 15-52.

(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-84. Nursery stock tree caliper requirements.

(a) Developments with fewer than one hundred fifty (150) parking spaces shall have:

(1) Single-trunk trees with a minimum caliper of two (2) inches measured twelve (12) inches above grade at planting; or

(2) Multitrunk trees with a minimum of three (3) canes with a minimum caliper of one (1) inch each measured twelve (12) inches above grade at planting.

(b) Developments with one hundred fifty (150) or more parking spaces shall have:

(1) Single-trunk trees with a minimum caliper of three (3) inches measured twelve (12) inches above grade at planting to satisfy fifty (50) percent of the requirement. The remaining minimum caliper requirement may be reduced to two (2) inches measured twelve (12) inches above grade at planting.

(2) Multitrunk trees shall have three (3) trunks or canes with a minimum caliper of one and one-half (1½) inches measured twelve (12) inches above grade at planting to satisfy fifty (50) percent of the requirement. The remaining caliper requirement may have three (3) trunks or canes with a minimum caliper of one (1) inch measured twelve (12) inches above grade at planting.

(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-85. Remodeling and expansion projects.

(a) All vehicular use areas which were in existence prior to the effective date of this article may continue as nonconforming until such time a building permit is issued to rehabilitate a structure on the property exceeding fifty (50) percent of the current replacement cost of the structure. At such time fifty (50) percent of the existing vehicular use area shall be brought into compliance with this chapter and shall continue to full compliance on a graduated scale based upon the percentage of rehabilitation cost.

(b) Additionally, all vehicular use areas which were in existence prior to the effective date of this article may continue as nonconforming until such time as a building permit is granted to enlarge or reconstruct a structure on the property exceeding ten (10) percent of the existing gross floor area. At such time ten (10) percent of the existing vehicular use area shall be brought into compliance with this chapter and shall continue to full compliance on a graduated scale.

(c) The city official may waive not more than twenty-five (25) percent of the requirements of this section when it is demonstrated by the responsible party that compliance with this section will create an undue hardship.

(Ord. No. 20,181, § 1, 10-20-09)

DIVISION 2. PLANT MATERIAL SELECTION REQUIREMENTS

Sec. 15-86. Generally.

Plant material used for compliance with the provisions of this article shall conform to the "American Standards for Nursery Stock, 1-73," Grade No. 1, American Association of Nurserymen, Inc., or equivalent. Plant material which may be installed in vehicular use areas are defined and should be selected from applicable lists. It is the intent of this division to be flexible; thus the responsible party may select plants not listed in this division for landscaping vehicular use areas other than the public rights-of-way as long as the substitute plants can withstand harsh weather conditions, comply with all other provisions of this chapter, are not listed as invasive in section 15-106, and are approved by the city official.

(Ord. No. 20,181, § 1, 10-20-09; Ord. No. 22,252, § 3, 4-18-23)

Sec. 15-87. Tree species and hillside plantings.

(a) *Recommended list.* The following list of trees represents those which have been found to be best suited to this area and require the least amount of maintenance. The following list of trees is recommended for planting in the required landscaped area. For any site, trees from two (2)

different genuses are required. At least twenty-five (25) percent of the trees on the site outside of those required for screening purposes are to be of evergreen variety.

(b) *[Street, parking lot.]* Street and parking lot (may also be used as interior plantings):

	BOTANICAL NAME	*COMMON NAME*
(1)	Deciduous—Large (average height 60' × 40' width)	
	Celtis laevigata	Sugar Hackberry
	Fagus grandifolia	American Beech
	Fraxinus pennsyvanica	Green Ash
	Liriodendron tulipfera	Tulip Poplar Tree
	Magnolia acuminata	Cucumber Magnolia
	Platanus occidentalis	Sycamore
	Quercus acutissima	Sawtooth Oak
	Quercus alba	White Oak
	Quercus falcata	Southern Red Oak
	Quercus michauxii	Swamp Chestnut Oak
	Quercus nigra	Water Oak
	Quercus nuttallii	Nuttall Oak
	Quercus palustris	Pin Oak
	Quercus phellos	Willow Oak
	Quercus shumardii	Shumard Oak
(2)	Deciduous—Medium Trees (average height 40' × 30' width)	
	Acer rubrum "Drummondii"	Swamp Red Maple
	Acer rubrum "Red Sunset"	Red Sunset Maple
	Betula nigra	River Birch
	Ginkgo biloba	Ginkgo (male)
	Koelreuteria paniculata	Golden Rain Tree
	Pistacia chinensis	Pistachio
	Taxodum distichum	Cypress
	Ulmus parvifolia	Chinese Elm
(3)	Trees to be planted under utility lines shall be selected from the following species:	
	Deciduous—Small Trees (average height 20' × 15' width)	
	Acer palmatum	Japanese Maple
	Cercis canandensis	Redbud
	Cercis chinensis	Chinese Redbud
	Cornus florida	Flowering Dogwood
	Crataegus marshallii	Parsley Hawthorn
	Crataegus opaca	Mayhaw
	Crataegus viridis	Green Hawthorn
	Ilex decidua	Deciduous Holly
	Magnolia soulangiana	Saucer Magnolia
(4)	Evergreen—Large Trees (average height 60' × 30' width)	
	Magnolia grandiflora	Southern Magnolia
	Pinus taeda	Loblolly Pine
	X cupressocyparis leylandii	Leyland Cypress
(5)	Evergreen—Medium Trees (average height 40' × 30' width)	
	Ilex opaca	American Holly
	Juniperus virginiana	Eastern Red Cedar
	Magnolia virginiana	Sweet Bay Magnolia
	X cupressocyparis leylandii	Leyland Cypress
(6)	Evergreen—Small Trees (average height 20' × 15' width)	
	Camellia japonica	Camellia
	Camellia sasanqua	Sasanqua Camellia
	Ilex attenuata "Fosteri"	Foster's Holly
	Ilex cornuta "Burfordii"	Burford Chinese Holly
	Ilex vomitoria	Yaupon Holly
	Juniperus virginiana "Canaertii"	Canaert Red Cedar
	Juniperus virginiana "Glauca"	Silver Red Cedar

(c) *Trees for terraces on hillside cuts.*

	BOTANICAL NAME	*COMMON NAME*
(1)	Large (average height 60' × 40' width)	
	Celtis laevigata	Sugar Hackberry
	Pinus taeda	Loblolly Pine
	X cupressocyparis leylandii	Leyland Cypress
(2)	Medium (average height 40' × 30' width)	
	Koelreuteria paniculata	Golden Rain Tree

(d) *Shrubs for terraces on hillside cuts.*

BOTANICAL NAME	*COMMON NAME*
Baccharis Halimifolia	Groundsel Bush
Callicarpa Ameriana	American Beautyberry
Cornus Racenosa	Gray Dogwood
Euonymus Americanus	American Strawberry Bush
Forsythia Intermedia	Forsythia
Ilex Cornuta "Burfordii Nana"	Dwarf Buford Holly
Itea Virginica	Virginia Sweetspire
Lagerstroemia Indica	Crape Myrtle
Myrica Cerifera	Southern Wax Myrtle
Rhus Aromatice	Fragrant Sumac
Viburnum Prunifolium	Blackhaw Virburnum

(e) *Ground covers for terraces on hillside cuts.*

	BOTANICAL NAME	*COMMON NAME*
(1)	Vines	
	Asarum Candadense	Wild Ginger
	Bignonia Capreolata	Crossvine
	Campsis Radicans	Trumpet Creeper
	Carex Pensylvancia	Pennsylvania Sedge
	Gelsemium Sempervirens	Carolina Yellow Jessamine
	Lonicer Sempervirens	Coral Honeysuckle

	BOTANICAL NAME	*COMMON NAME*
	Parthenocissus Quinquefolia	Virginia Creeper
(2)	Hydroseed Mix	
	Cynodon Dactylon	Bermuda Grass
	Eragrostis Curvula	Weeping Love Grass
	Sporobolus Heterolepsis	Prairie Dropseed

(Ord. No. 20,181, § 1, 10-20-09; Ord. No. 22,252, §§ 4, 5, 4-18-23)

Sec. 15-88. Trees and shrubs in public rights-of-way.

All tree and shrub species listed in this division may be used in the public right-of-way.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-89. Shrub species.

(a) *Recommended list.* The following list of shrubs are those which have been found to be best suited to this area and require the least amount of maintenance. This list includes those shrubs which may be planted in the required landscaping area. For any site, shrubs from two (2) different genuses are required. At least 25% of the shrubs on the site outside of those required for screening purposes are to be of evergreen variety.

BOTANICAL NAME	*COMMON NAME*
Evergreen—Shrubs	
Ilex Cornuta "Burfordii"	Burford Chinese Holly
Ilex Cornuta "Rotunda"	Burford Chinese Holly
Ilex Crenata "Compacta"	Burford Chinese Holly
Ilex Verticillate	Winterberry Holly
Ilex Vomitoria "Nana"	Dwarf Yaupon
Jasminum Mesnyi	Primrose Jasmine
Ternstroemia Gymnanthera	Cleyera

(Ord. No. 20,181, § 1, 10-20-09; Ord. No. 22,252, § 6, 4-18-23)

Sec. 15-90. Grasses.

The following grasses are commonly installed adjacent to vehicular use areas and may be used to satisfy the requirements of this chapter:

Mayer Z-52 Zoysia;

Emerald Zoysia;

Bermuda grass;

Bermuda grass hybrids;

Centipede;

St. Augustine.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-91. Ground cover; recommended list.

The following list of ground covers are those which have been found to be best suited to this area and require the least amount of maintenance. This list includes other species of ground cover which may be planted in the required landscaped area.

BOTANICAL NAME	*COMMON NAME*
Asarum Canadense	Wild Ginger
Gelsemium Sempervirens	Carolina Jessamine (Hillside)
Juniperus Species	Junipers
Liriope Muscari	Liriope
Lonicera Sempervirens	Coral Honeysuckle (Hillside)
Mitchella Repens	Partridgeberry
Ophiopogon Japonicus	Mondo Grass
Parthenocissus Quinquefolia	Virginia Creeper
Phlox Spp	Phlox
Trachelospermum Asiaticum	Asian Jasmine

(Ord. No. 20,181, § 1, 10-20-09; Ord. No. 22,252, § 7, 4-18-23)

Sec. 15-92. Earth berms.

Earth berms shall be protected from erosion with suitable plant material, ground cover or grass. Earth berms shall not be installed in designated preserved tree zones or designated undisturbed areas within the site.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-93. Height of tree trunks.

Tree trunk limbs at maturity shall be a minimum of eight (8) feet above ground.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-94. General site development.

Landscaping treatment should be fully integrated into the overall site development, first taking into account requirements for grading, drainage, stormwater detention, buffers, utilities, buildings and retention of existing trees.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-95. Screening requirements.

The grading and landscaping of a site shall be accomplished in such a way as to visually screen the vehicular use area and certain other activities external to buildings on the site from the street and adjacent more restrictive land uses subject to vehicle sight distance requirements of chapter 30. The use of berms is encouraged in all landscape plans. Existing and planted vegetation, berms, fences, walls and other landscaping devices may be used to achieve the required screening in accordance with the following minimum standards which may be exceeded at the option of the responsible party:

(1) *Abutting properties.* Where development which requires screening abuts land use of a more restrictive nature at least eighty (80) percent of the view of the vehicular use area and parked vehicles shall be screened so as to not be visible when viewed from the adjacent property. A wooden fence may satisfy sixty-five (65) percent of the requirement and evergreen trees may be used to satisfy the balance.

(2) *Special screening.* Dumpsters, loading docks, heating and air conditioning units, external storage of materials, communications equipment and similar outside activities and appurtenances shall be screened from abutting properties and streets. Special screening of dumpsters within industrial sites is not required. The screen shall exceed the height of the dumpster or trash containment areas by at least two (2) feet not to exceed eight (8) feet total height.

(3) *Plant growth.* In determining the extent of screening to be provided, consideration shall be given to normal growth characteristics associated with each type of plant material used. Screening standards shall be satisfied based on the following plant conditions: (1) the size of each plant at installation; (2) the size of each plant three (3) years after the landscape plan is completed; and (3) the size of each plant at maturity.

(4) *Species and spacing requirements.* Screening standards are intended to apply during all seasons of the year. A minimum of fifty (50) percent of the trees and a minimum of seventy-five (75) percent of the shrubs to be used for screening purposes shall be evergreen varieties. Maximum spacings of fifteen (15) feet for trees and three (3) feet for shrubs should normally be utilized in order to provide continuous full screening of the view.

(5) *Security and esthetic concerns.* Breaks may be incorporated in the screen for esthetic or security reasons as determined by the city official.

(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-96. Perimeter planting strips.

(a) A perimeter planting strip is required along any side of a vehicular use area that abuts adjoining property or the right-of-way of any street, highway or freeway. This strip shall be at least nine (9) feet wide. The perimeter planting strip adjacent to freeways or expressways shall be at least thirty (30) feet wide except within mature areas.

(b) Trees shall be planted with an average linear spacing of not less than thirty (30) feet within the required landscape or buffer area. Three (3) shrubs or vines for every thirty (30) linear feet shall be planted in the perimeter planting strip. Massing is permitted as long as trees are spaced not more than one hundred (100) linear feet apart including width of driveway.

(c) Where a fence or wall is utilized in a perimeter planting strip adjacent to a street, three (3) shrubs or vines shall be planted each thirty (30) linear feet along both sides of the fence or wall.

(d) Where a fence or wall is utilized in a perimeter planting strip, the fence or wall shall be constructed with the face toward the adjacent property with any supporting structural members screened from view of the adjoining property.

(e) Where the perimeter strip is part of a wide buffer area which is to be maintained in a natural state with dense undergrowth, up to one hundred (100) percent of the required shrubs may be waived.
(Ord. No. 20,181, § 1, 10-20-09; Ord. No. 20,533, § 2, 2-7-12)

Sec. 15-97. Interior landscape areas.

(a) Interior landscape areas shall comprise at least eight (8) percent of any vehicular use area containing twelve (12) or more parking spaces.

(b) In order to apply toward the required eight (8) percent landscape area, the minimum size of an interior landscape area shall be one hundred fifty (150) square feet for developments with one hundred fifty (150) or fewer parking spaces. For developments with more than one hundred fifty (150) parking spaces the minimum size of an interior landscape area shall be three hundred (300) square feet.

(c) Trees shall be included in the interior landscape areas at the rate of one (1) tree for every twelve (12) parking spaces.

(d) Flexibility is permitted with placement of interior landscape islands, however, interior landscaping should be generally distributed throughout the vehicular use areas.

(e) Interior planting island width shall be not less than seven and one-half (7½) feet in order to receive credit under this section.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-98. Building landscape areas.

(a) Landscape areas may be installed in the area immediately adjacent to the building or elsewhere on the site at the discretion of the responsible party. However, landscape areas shall be provided between the vehicular use area used for public parking and the general vicinity of the building, excluding truck loading or service areas not open to public parking. These areas shall be equal to an equivalent planter strip three (3) feet wide along the vehicular use area.

(b) One (1) tree and four (4) shrubs shall be planted in the building landscape areas for each forty (40) linear feet of vehicular use area abutting the building.

(c) For buildings greater than forty (40) feet in height at least one-third (⅓) of the trees to be placed in the building landscape area shall be of a species with a mature height greater than thirty (30) feet.

(d) The size and location of planter areas and the placement of trees and shrubs within these planter areas should be freely adapted to meet local site conditions.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-99. Exceptions.

Industrial sites shall meet the landscape requirements with the following exceptions:

(1) Industrial yards and compounds used for storing materials, manufactured products, equipment, truck loading and unloading are excluded from interior landscape requirements.

(2) Industrial sites adjacent to other industrial sites are not required to provide perimeter planting strips outside of the front yard setback.

(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-100. Protection of landscaping.

(a) Raised concrete curbing or other approved devices shall be placed around the base of each landscaped area to protect plantings from automobile and pedestrian traffic. Such curbing should be offset two (2) feet from planting areas abutting parked vehicles in order to protect plantings from vehicle front end overhang and vehicle doors opening into planter areas.

(b) The soil within the landscape areas shall be properly prepared prior to plant installation in accordance with acceptable horticultural practices.

(c) Massing of shrubs is permitted only in mulch beds and not in grass or turf areas.

(d) An irrigation system shall be required for developments of one (1) acre or larger. Developments of less than one (1) acre shall have a water source within seventy-five (75) feet of the plants to be irrigated.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-101. Use of live plant material.

At least fifty (50) percent of landscape areas shall be covered by live plant material at the time of plant maturity.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-102. Treatment of land use buffers.

(a) Requirements for landscaping in land use buffers shall be the same as perimeter landscaping. Buffer width shall be determined by the zoning ordinance.

(b) Natural vegetation and undergrowth may be approved by the city official to satisfy landscaping requirements. Each site shall be evaluated on an individual basis.

(c) A minimum of seventy (70) percent of the land use buffer shall be undisturbed. The right-of-way of any utility easement shall not be used in computing the depth or area of a land use buffer in developments abutting property used or zoned for single-family or two-family use under R-1, R-2, R-3, R-4, PRD and PDR.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-103. Treatment of hillside cuts and slopes.

(a) Hillside cuts shall be reviewed on an individual basis for ground cover requirements and for conformance with chapter 29.

(b) Existing trees and ground covers shall be protected when feasible and vegetation shall be reestablished within six (6) months of project completion to avoid erosion and siltation.

(c) Vines may be used as ground cover around exposed large rock formations.

(d) The following procedures shall be followed according to finished grade of slope:

(1) Zero (0) percent to thirty (30) percent grade requires vegetation with sod or ground cover.

(2) Thirty-one (31) percent to sixty (60) percent requires vegetation with netting and ground cover either hydroseeded or in containers to be hydroseeded with an erosion control blanket.

(3) Over sixty (60) percent requires native field stone or riprap with soil separating fabric. If riprap is used, twenty-five (25) percent of the riprap shall be covered throughout with (1) live plant material or (2) evergreen seedlings. Facing stone or block may be utilized as an option.

(e) Trees shall be planted along terraces used in hillside cuts and fills. The average spacing between trees shall not be greater than twenty (20) feet. Dense evergreen seedlings may be used to satisfy tree planting requirements.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-104. Protection of existing vegetation.

(a) Care shall be exercised during construction to avoid damage to trees and the surrounding ground surface area especially within the critical root zone in order to protect the feeder root system of existing trees.

(b) Prohibited construction practices include:

(1) Compaction of the root system;

(2) Scarring or defacing of tree bark;

(3) Disturbing surrounding soil by trenching;

(4) Modifying elevation of surrounding soil;

(5) Placing impervious surfaces such as asphalt or concrete over the root system or drastically modifying the existing drainage system.

(c) Adequate drainage and aeration of the root system such as installation of tree wells shall be provided when modifying soil elevation around trees.

(d) Construction practices may include barricading of root system areas and providing a track surface for heavy equipment circulation.

(e) When damage has occurred to the root system, the same percentage of tree canopy as the root system destroyed should be selectively pruned and trimmed back. Root stimulators, deep watering and fertilization should then be implemented to enhance the recovery process.
(Ord. No. 20,181, § 1, 10-20-09)

Sec. 15-105. Flexibility in applying standards.

(a) It is the intent of these provisions to allow reasonable and appropriate flexibility for adapting landscaping design standards described in this chapter to the specific conditions of an individual site as approved by city officials.

(b) Areas established for zoning buffers, hillside buffers, stormwater detention basins and utility easements may be used and counted as satisfying landscape area requirements stipulated by this chapter.

(c) Up to twenty-five (25) percent of the perimeter planter area and associated trees and shrubs may be shifted from one area of the site to another for the purpose of improving visual aesthetics or for other appropriate environmental concerns. Street tree requirements are not included in this flexibility.

(d) Up to two-thirds (⅔) of the building landscape area and associated trees and shrubs can be shifted to another area of the site for the purpose of improving visual aesthetics or for other appropriate environmental concerns.

(e) Where a vehicular use area is devoted strictly to access or loading or commercial loading, up to two-thirds (⅔) of the landscape area, trees, and shrubs associated with the vehicular use area may be shifted to other areas on the site.

(f) Landscape areas located within thirty (30) feet of the right-of-way line may be counted as part of the street side landscape planter strip rather than as interior planting.

(g) Up to twenty-five (25) percent of the number of trees or shrubs may be reduced for any given landscape area by compensating at the equivalent of one (1) tree for every eight (8) shrubs except within street landscaping areas.
(Ord. No. 20,181, § 1, 10-20-09; Ord. No. 21,867, § 1, 5-19-20)

Sec. 15-106. Invasive plant species.

Ailanthus Altissima Tree of Heaven	*Lythrum Salicaria* Purple Loosestrife	*Vinca Minor* Littleleaf Periwinkle
Albizia Julibrissin Mimosa	*Mahonia Bealei* Leatherleaf Mahonia	*Wisteria Spp* Wisteria
Celastrus Orbiculatus Oriental Bittersweet	*Melia Azedarach* Chinaberry Tree	
Elaeagnus Pungens Silverthorn	*Nandia Domestica* Heavenly Bamboo	
Elaeagnus Umbellate Autumn Olive	*Paulownia Tomentosa* Princess Tree	
Euonymus Alatus Burning Bush	*Persicaria Perforliata* Mile-a-Minute	
Euonymus Fortune Winter Creeper	*Perilla Frutescens* Beefsteak Plant	
Fstuca Arundinacea Tall Fescue	*Phontinia Serratifolia* Chinese Photinia	
Hedera Helix English Ivy	*Phyllostachys Spp* Bamboo	
Hesperis Atronalis Dame's Rocket	*Polygonum Cuspidatum* Japanese Knotweed	
Lespedeza Bicolor Shrubby Lespedeza	*Pueraria Montana Var. Lobata* Kudzu	
Lespedeza Cuneata Sericea Lespedeza	*Pyrus Calleryana* Callery or Bradford Pear	

Ligustrum Spp Privet	*Triadica Sebifera* Chinese Tallow Tree	
Liriope Spicata Running Monkey Grass	*Rosa Multiflora* Multiflora Rose	
Lonicera Spp Non-Native Honeysuckle	*Vinca Major* Bigleaf Periwinkle	

(Ord. No. 22,252, § 8, 4-18-23)

[The next page is 909]

Chapter 16

LIBRARY*

Art. I.	**In General, §§ 16-1—16-25**
Art. II.	**Central Arkansas Library System, §§ 16-26—16-28**

***Cross reference**—Parks, recreation and cultural affairs, Ch. 22.

State law references—Municipal authority to establish library, A.C.A. § 13-2-501; authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

ARTICLE I. IN GENERAL

Sec. 16-1. Library fund; disbursement.

All moneys received for library purposes from any source whatever shall be paid into the city treasury to the credit of the library fund, which shall be kept separate from all other funds of the city. Such moneys shall be deposited by the city clerk in some bank authorized by law to act as depository for city funds, and shall be disbursed only on vouchers or checks issued by the library board of trustees, or by one (1) more of its authorized members.
(Code 1961, § 20-4)

State law reference—Similar provisions, A.C.A. § 13-2-503.

Sec. 16-2. Donations.

All donations to the library, whether of money or of real or personal property, shall be held by the board of library trustees in trust according to the terms of the gift, devise or bequest of the donor.
(Code 1961, § 20-5)

State law reference—Similar provisions, A.C.A. § 13-2-505.

Secs. 16-3—16-25. Reserved.

ARTICLE II. CENTRAL ARKANSAS LIBRARY SYSTEM*

Sec. 16-26. Election to participate.

The City of Little Rock Arkansas, hereby elects to participate as a public agency in the public body corporate and politic to be known as "Central Arkansas Library System."
(Ord. No. 17,875, § 1, 11-17-98)

Sec. 16-27. Participating public agencies; number of director's.

The names of the participating public agencies, and the number of directors required from each agency to serve on the public body's board of directors, are as follows:

Public Agency	*Number of Directors*
City of Little Rock, Arkansas	7
City of Jacksonville, Arkansas	1
City of Maumelle, Arkansas	1
City of Sherwood, Arkansas	1
City of Pulaski, Arkansas	2
County of Perry, Arkansas	1

Each director shall have one vote on all matters coming before the board of directors.
(Ord. No. 17,875, § 2, 11-17-98)

Sec. 16-28. Powers.

Central Arkansas Library System, as a public body corporate and politic, shall have powers ascribed to it by Arkansas law, and by the terms and provisions of the Application to Create a Public Body Corporate and Politic of Central Arkansas Library System, and the Agreement for Joint Cooperative Action for Central Arkansas Library System.
(Ord. No. 17,875, § 3, 11-17-98)

*Editor's note—Section 6 of Ord. No. 17,875, adopted Nov. 17, 1998, repealed §§ 16-26—16-31 which pertained to the library board of trustees and derived from the 1961 Code, §§ 20-1—20-3, and 20-6. Sections 1—5 of said ordinance provided for participation in the "Central Arkansas Library System." At the editor's discretion, §§ 1—3 have been set out herein as new §§ 16-26—16-28.

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Chapter 17

LICENSES, TAXATION AND MISCELLANEOUS BUSINESS REGULATIONS*

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State law references—Municipal taxation, A.C.A. § 26-73-201 et seq.; occupational licenses and taxes, A.C.A. § 26-77-101 et seq.; authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

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ARTICLE I. IN GENERAL

Sec. 17-1. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 17-2. Records and reports by persons renting rooms.

(a) Any person who rents a room shall keep a record showing the signature of the person renting the room and the names of the occupants of the rooms written in ink with the street and home address of each person temporarily residing in the building. Erasures and alterations on this list shall not be permitted to be made for any purpose and the names and addresses shall be retained for a period of not less than one (1) year.

(b) The register or list shall be open for police inspection by any proper officer at any time. All persons renting rooms shall report to the police any suspicious character who may apply for rooms and shall report all suspicious acts of any person to whom rooms have been rented.
(Code 1961, § 25-113)

State law reference—Records of hotels, A.C.A. § 20-26-206.

Sec. 17-3. Reserved.

Editor's note—Section 1(a) of Ord. No. 18,569, adopted Sept. 18, 2001, repealed § 17-3, which pertained to prohibiting the practice of phrenology, and derived from § 25-100 of the 1961 Code.

Sec. 17-4. Reserved.

Editor's note—Section 1(b) of Ord. No. 18,569, adopted Sept. 18, 2001, repealed § 17-4, which pertained to prohibiting fortunetelling for pecuniary gain or reward, and derived from § 25-34 of the 1961 Code.

Sec. 17-5. Mobile canteen units.

(a) In this section "mobile canteen unit" means a vehicle offering for sale to consumers food products or beverages.

(b) No mobile canteen unit shall under any circumstances dispense any food or drink when legally parked within the right-of-way of any public street in the city, except ice cream mobile units, which shall be restricted to the licensing and operating rules set forth by the finance department of the city.

(c) No mobile canteen unit shall dispense any food or drink when parked on any other public property without first obtaining written authority therefor from the city manager or his duly authorized representative.
(Code 1961, §§ 14-20(a), 14-28; Ord. No. 19,122, § 1, 6-1-04)

Sec. 17-6. Unlisted telephone numbers to be furnished to police.

Any person engaged in providing public telephone services in the city shall at the request of the police chief furnish the chief in writing the name, address and telephone number of each subscriber of any private or unlisted telephone in the city, together with the location of such telephone or telephones. When such information is received by the chief, he shall maintain it as confidential to be used solely by him or at his direction in emergency situations or when he has reasonable grounds to believe that the telephone is being used for unlawful purposes.
(Code 1961, § 31-11)

Sec. 17-7. Used car dealer regulations.

All automobile dealers in the city shall furnish to the police department a list of all used cars sold by the dealer, setting forth such information as is prescribed by the police department.
(Code 1961, § 39-148)

Sec. 17-8. Parking garages parking vehicles on city streets prohibited.

Parking of an automobile upon the streets of the city by the operator or employee of a parking lot or automobile garage, after such car has been brought in for storage, is hereby prohibited. Any person operating a parking lot or any person employed at a parking lot, or the operator or employee of an automobile garage in the city parking an automobile upon the streets of the city in violation of the provisions of this section shall be guilty of a misdemeanor.
(Code 1961, § 39-190)

Secs. 17-9—17-35. Reserved.

ARTICLE II. BUSINESS TAX*

Sec. 17-36. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

State law reference—Limitation on penalty, A.C.A. § 26-77-101.

Sec. 17-37. Responsibilities of owners, partners, officers, etc., of businesses and corporations.

Each owner, partner, officer and/or firm member of any business or corporation required by this article to be licensed will be jointly and severally responsible for the following:

(1) Timely payment of business license due to the city. In those cases in which the amount of the business license is based upon the number of employees, the employer (not the employee) will be responsible for payment of the license.

(2) (a) Preparation and provision of all information required for computation of the amount of the business license due including, but not limited to, number of employees, number of business locations, and amount of average inventory. Only owners, partners, officers or firm members or their expressly authorized agent will be authorized to certify the information required from a business under this article.

(b) Reserved.

(Code 1961, § 21-13.01; Ord. No. 15,741, § 1, 9-5-89; Ord. No. 16,263, § 3, 8-18-92; Ord. No. 18,128, § 1, 11-2-99; Ord. No. 19,655, § 1, 12-15-06)

Sec. 17-38. Payment required.

The carrying on of any business, profession or occupation of whatever kind or nature within the city is a privilege subject to an annual business license. Any person who maintains a business location within the city or engages in any business, profession or occupation, regardless of whether or not all functions peculiar to the business are affected within the city, shall pay an annual business license. The business license shall apply to all and shall not be limited to those businesses, professions or occupations as classified specifically by this article.

(Code 1961, § 21-1; Ord. No. 18,128, § 1, 11-2-99; Ord. No. 19,655, § 2, 12-15-06)

State law reference—Privilege taxes authorized, A.C.A. § 26-77-102.

Sec. 17-39. Exemptions.

The following shall be exempt from the provisions of this article:

(1) Any individual employed full time on a salary or commission basis by one (1) employer not offering his/her services to the public. This exemption applies to the employees only and does not affect the license amount due by employer whose fee is based on the number of employees.

(2) Charitable or eleemosynary nonprofit businesses and organizations and where no profit accrues to the benefit of any officer or employee. Such businesses and organizations may be required to furnish to the city manager proof of nonprofit status in the form of a state charter or other documentation deemed appropriate by the city manager.

(Code 1961, § 21-2; Ord. No. 19,655, § 3, 12-15-06)

Sec. 17-40. Definition.

In this article "city manager" means the city manager or the person to whom the city manager designates the responsibility. At the time this section was adopted, it meant treasury services manager.

(Ord. No. 19,655, § 4, 12-15-06)

Sec. 17-41. Persons engaging in multiple businesses—Responsibility for licensing; fees.

(a) Where the principal business, occupation, or profession is located within the city and is licensed by the city manager to operate within the

*__State law reference—__Privilege taxes, A.C.A. § 26-77-101 et seq.

city limits, the principal location shall be responsible for licensing all other city locations, considered to be secondary locations or substations.

(b) Each location of the principal business, occupation or profession shall constitute a separate unit of such principal business, occupation or profession. The city manager shall collect a separate fee for each location of the principal business, occupation or profession within the city. The fee charged shall be determined according to the classification schedule, with the appropriate charge applying to each location and not only the principal location. The city manager shall issue separate business licenses for the principal location and each additional location.

(c) When more than one (1) business activity is engaged in at the same location and the business activity falls into a classification other than that for which the original business license was issued, the business shall pay the higher of the classifications.

(Code 1961, § 21-3.1; Ord. No. 15,913, § 1, 8-7-90; Ord. No. 16,969, §§ 1, 2, 9-19-95; Ord. No. 18,128, § 2, 11-2-99; Ord. No. 19,655, § 5, 12-15-06; Ord. No. 20,263, § 1, 5-4-10)

Sec. 17-42. Lessees; list to be filed with city manager; liability for license.

Every person operating a business who shall lease to another any department, space or facility on the premises shall file with the city manager on or before January 1 of each year or at the time of leasing, a list of all such lessees, except residential lessees. Each such lessee shall be liable for the business license herein provided for the business, occupation or profession of such lessee.

(Code 1961, § 21-4; Ord. No. 18,128, § 1, 11-2-99; Ord. No. 19,655, § 6, 12-15-06)

Sec. 17-43. Determination of number of employees.

(a) (1) In this article, "employee" means any person who performs services and is paid wages or salary by any business, or is engaged in a profession or occupation under any appointment, agency, contract of hire, or apprenticeship, expressed or implied, oral or written. Employees leased from an employee leasing company are deemed employees of the lessee company for purposes of computing the business license fee due.

(2) A "part-time employee" is any person who performs services within the City of Little Rock and is paid quarterly wages or salary less than two hundred thirty-five (235) times the hourly minimum wage.

(3) In this article, "hourly minimum wage" shall mean the per hour minimum wage in effect for the State of Arkansas as set forth in A.C.A. § 11-4-210(a) on January 1 of current calendar year, to the extent such wage meets or exceeds the minimum wage set forth in the Federal Fair Labor Standards Act.

(b) (1) Where the amount of business license due under this article is computed on the number of employees, the responsible person shall report to the city manager the number of employees employed during the first three (3) quarters of the previous fiscal year. The number of employees reported for each quarter shall be in agreement with the number of employees reported on IRS Form 941. The information required shall be furnished to the finance department treasury management division on an employee report form provided by the treasury management division. The license amount due will be based and computed upon the average number of all employees reported. Employees whose quarterly earnings shown on the IRS Form 941 are less than two hundred thirty-five (235) times the hourly minimum wage and employees who worked exclusively outside the city shall be excluded from computation.

(2) Businesses that begin operations after the beginning of the current fiscal year shall pay a business license based on the number of employees at the time the business begins operations.

(c) Where the business license amount due is based on specific amounts for certain designated types of employees rather than the total number of employees, the amount there designated will be the applicable charge. The number of designated employees who are employed during the first three (3) quarters of the previous fiscal year shall be furnished to the treasury management division on a designated employee report form, which form will be provided by the treasury management division for such purpose. Those designated employees who worked exclusively outside the city shall not be subject to such charge.

(Code 1961, § 21-5; Ord. No. 15,393, § 1, 12-9-87; Ord. No. 15,913, § 2, 8-7-90; Ord. No. 16,085, §§ 1, 2, 8-20-91; Ord. No. 16,969, § 3, 9-19-95; Ord. No. 17,840, §§ 1, 2, 10-6-98; Ord. No. 18,128, §§ 1, 2, 11-2-99; Ord. No. 19,655, § 7, 12-15-06; Ord. No. 19,839, § 1, 10-16-07; Ord. No. 21,297, § 1, 9-6-16)

Sec. 17-44. Inventory operations.

(a) In this article "inventory" means the quantity of goods or materials on hand, and includes all goods, wares, and merchandise, as maintained by the business, including inventory on consignment and work in process which is located within the city.

(b) Businesses paying a city business license based on a stock or inventory variable will pay the annual base charge, as otherwise specified, plus a charge based on the gross value of an average of the stock or inventory of the business for the preceding year. The value of the stock or inventory shall be determined as the price paid by the business. The stock or inventory information shall be furnished to the city manager in a signed statement on a form furnished by the city manager setting forth the amount of such average stock or inventory. In the initial year of operation, the beginning inventory amount shall be used.

(c) The business license fee is calculated by multiplying the average of stock or inventory, or the beginning inventory amount for a new business, by twenty-four hundredths of one (0.24) percent.

(Code 1961, § 21-6; Ord. No. 15,393, § 1, 12-9-87; Ord. No. 16,969, § 4, 9-19-95; Ord. No. 18,128, § 1, 11-2-99; Ord. No. 18,612, § 2, 12-18-01; Ord. No. 18,771, § 1, 11-4-02; Ord. No. 19,655, § 8, 12-15-06)

Sec. 17-45. Calendar year basis of license; due date; exceptions.

The annual business license shall be paid on the basis of the calendar year of January 1 through December 31, and all such licenses shall be payable on January 1 for the ensuing year, except:

(1) Officers of a corporation shall have the option of paying the annual license in two (2) equal installments on January 1 and July 1, respectively, each year. An administrative fee of twenty-five dollars ($25.00) is required to pay in installments. Only businesses whose license fee amount is five thousand dollars ($5,000.00) or above qualify to pay in installments.

(2) Where the business is operated on a fiscal year different than the calendar year, a request may be made in writing for paying the license amount due on the same fiscal year instead of the calendar year.

(3) Businesses beginning on other than the first of the calendar year must pay the license on a pro rata quarterly basis to the end of the year.

(Code 1961, § 21-7; Ord. No. 16,969, § 5, 9-19-95; Ord. No. 18,128, § 1, 11-2-99; Ord. No. 18,612, § 3, 12-18-01; Ord. No. 18,771, § 2, 11-4-02; Ord. No. 18,976, § 2, 11-4-03; Ord. No. 19,655, § 9, 12-15-06)

Sec. 17-46. Delinquent license; penalty.

(a) (1) If the business license provided for in this article is not paid within thirty (30) days after such becomes annually due, it is hereby declared as delinquent and a penalty of ten (10) percent will be added to the total outstanding balance;

(2) In the event the license is not paid within sixty (60) days, an additional ten (10) percent penalty will be added to the total outstanding balance;

(3) In the event the license is not paid within ninety (90) days, an additional thirty (30) percent penalty will be added to the total outstanding balance.

(b) In addition to the penalties set out in herein, if the business license provided for in this article is not paid within ninety (90) days after such becomes due, the treasury manager shall prepare a list of delinquent business license names and amounts. The city manager or his designee shall deliver a copy of the list of delinquent business license names and amounts to a newspaper having general circulation in the city and have the list published by the newspaper, publish the list on the city's website, and/or publish the list on the city's local access television station in an effort to enhance compliance.
(Code 1961, § 21-8; Ord. No. 16,723, § 1, 8-2-94; Ord. No. 16,969, § 6, 9-19-95; Ord. No. 18,128, § 1, 11-2-99; Ord. No. 19,655, § 10, 12-15-06; Ord. No. 20,263, § 2, 5-4-10)

Sec. 17-47. License.

(a) It shall be the duty of the treasury services manager, upon receipt of the amount of the business license required by this article, to issue a license to the person(s) liable therefore. The license shall reflect the amount paid, the period of time covered, the name of the person to whom issued the location by street address where the person plans to conduct business and the nature of the business, occupation or profession involved. The treasury services manager will not issue a business license to any person who is delinquent in the payment of business license for preceding years, nor shall a business license be issued to any person whose place of business does not conform with city zoning laws or Pulaski County laws. Mistakes in computation or incorrect information given verbally as to the amount of license due shall not prevent or prejudice the collection by the city of what is actually provided for as due under the provisions of this article.

(b) Each license when issued shall be posted in a conspicuous place where such business, occupation or profession is carried on. The license shall not be transferable from one (1) person to another and such shall be reflected in the license. The license shall not be transferable from one (1) location to another without prior approval of the department [of] planning and development (zoning).

(c) In cases of transfer of license in which principals, officers and stockholders of a business remain the same as they were before the sale, exchange or renaming of the business, the existing business license will remain in effect until normal expiration.

(d) (1) The city manager shall be responsible for collecting the designated business license fee from each contractor required by the City Code to obtain building, electrical, plumbing, or mechanical permits to do work within the city. A business license shall be issued to the principal contractor along with a contractor card for each type of contract work licensed.

(2) Where the contractor is currently licensed by another city within the state and has no place of business within the city limits, the city manager shall require the contractor to provide a copy of the license by another Arkansas city before the city manager shall issue a contractor card for each type of contract work licensed.

(3) Where the contractor is currently licensed outside the state and has no place of business within the state, the business license shall be based upon the estimated length of the project as stated on the building permit obtained from the planning and development department. For instance, if a project is estimated to take eighteen (18) months, the business license would be issued for eighteen (18) months and the amount would be one and one-half (1½) times the annual amount ($\frac{18 \text{ months}}{12 \text{ months}} \times$ annual fee).

(e) If a state license or permit is required to carry on a type of business activity, the license or permit must be presented when applying for a business license. A copy of the license or permit must be kept on file in the treasury management division.
(Code 1961, § 21-9; Ord. No. 15,913, § 3, 8-7-90; Ord. No. 16,723, § 2, 8-2-94; Ord. No. 16,969,

§§ 7, 8, 9-19-95; Ord. No. 17,700, 3-17-98; Ord. No. 18,128, §§ 1, 2, 11-2-99; Ord. No. 19,655, § 11, 12-15-06; Ord. No. 19,839, § 2, 10-16-07)

Sec. 17-48. Refund of fee.

(a) A refund not to exceed one-half (½) of the annual license fee actually paid may be made if a business is closed or sold on or before June 13 of any calendar year and a written notification of closure or a sale as required under [subsection] (d) is filed on or before the date of closure. A fifteen-dollar administrative fee shall be charged for processing such request for refund, except in those cases in which a refund is required due to error caused by the city.

(b) The city manager is authorized to approve, in writing, a refund of a business license up to five hundred dollars ($500.00). All business license refunds in excess of five hundred dollars ($500.00) require written approval of the finance department director. The city manager is authorized to issue a credit in lieu of a refund to be applied to the future license payments due from a business.

(c) (1) No business license fee refund shall be made for more than one (1) year. A business is responsible for review of the license for accuracy upon receipt.

(2) Where a business license fee is due but not paid, the city manager shall collect not more than three (3) years in arrears, plus the current year.

(d) Any business that is closing operation or is sold shall submit a written notification of closure on or before the date of the closing or sale. The notification shall include the anticipated date of closure, the reason for closure and signature of the business owner. No refund under subsection (a) or (b) shall be made unless a written notification of closure is filed with the treasury management division of the city.
(Code 1961, § 21-10; Ord. No. 15,741, § 2, 9-5-89; Ord. No. 15,913, § 4, 8-7-90; Ord. No. 16,474, § 1, 8-17-93; Ord. No. 18,128, § 1, 11-2-99; Ord. No. 19,655, § 12, 12-15-06; Ord. No. 20,263, § 3, 5-4-10; Ord. No. 21,297, § 2, 9-6-16)

Sec. 17-49. Examination of books and records by the city manager.

The city manager or his duly authorized agent shall have the right to check and/or audit the stocks, inventory records, books or records, including documents showing the inventory reported to the state and federal governments for income tax purposes for the past three (3) years of any person subject to the license provided for in this article. The city manager may by mandatory injunction or other civil action require the production of the records and books. In addition hereto the refusal by any person to allow the city manager or his authorized agent to make such checks, examination and/or audits is a misdemeanor.
(Code 1961, § 21-11; Ord. No. 19,655, § 13, 12-15-06)

Sec. 17-50. Reporting.

(a) It shall be unlawful for any person to willfully make a false report to the city relative to any provision or requirement of any article as affects the obligation for paying a business fee or the amount thereof.

(b) For 2007 business licenses and beyond, any business that fails to return an updated assessment form by November 1 (businesses without inventory) or January 31 (businesses with inventory) shall have their assessment information (number of employees, inventory, trucks, and other variable information) increased by ten (10) percent over the prior year's assessment information. Fractions will be rounded up to the next whole number. Base amounts will remain the same as provided in the ordinance.
(Code 1961, § 21-12; Ord. No. 18,128, § 1, 11-2-99; Ord. No. 19,391, § 10, 9-6-05; Ord. No. 19,655, § 14, 12-15-06)

Sec. 17-51. Adjustment of fee.

(a) It shall be unlawful for the city manager or any of his/her agents, or for any other individual within the city who is charged with the responsibility of collecting fees established in this article, to change the amount of the business license to be paid, except that in instances where collection of the prescribed amount would clearly create an

inequitable hardship, the city manager may, in writing, waive the penalty or adjust the amount charged for the license.

(b) The city manager shall review the quarterly earnings allowance for part-time employees every five (5) years to insure a more commensurate update relative to business and economic trends and changes.

(c) Businesses paying a city business license after a citation or warrant has been issued shall be charged a processing fee of not more than fifty dollars ($50.00) by the treasury management division or city personnel.

(Code 1961, § 21-13.01; Ord. No. 17-51, § 3, 8-20-91; Ord. No. 18,128, § 1, 11-2-99; Ord. No. 19, 239, § 1, 11-23-04; Ord. No. 19,655, § 15, 12-15-06)

Sec. 17-52. Schedule of license taxes.

The following license taxes are due and payable in advance on January 1 of each year except as otherwise provided by this article:

			Annual Charge Base and Variable	
A				
(1)	ABSTRACT AND TITLE COMPANY			
	All companies which furnish abstracts for, or guarantee, warrant or insure land titles		$ 314.00	$35.00 per employee
(2)	ADJUSTERS FOR INSURANCE AND CLAIM AGENTS		139.00	135.00 per adjuster
				above 1
(2.5)	ADMINISTRATIVE OFFICE		139.00	20.00 per employee
(3)	ADVERTISING AGENCY (each person engaged in contracting for advertising or conducting an advertising bureau or agency)		314.00	35.00 per employee
(4)	ADVERTISING, AIRPLANE		206.00	20.00 per employee
(5)	ADVERTISING ON CITY BUSES		278.00	20.00 per employee
(6)	ADVERTISING, DISPLAY ADVERTISING		206.00	35.00 per employee
(7)	ADVERTISING, DISTRIBUTING CIRCULARS OR SAMPLES		206.00	20.00 per employee
(8)	ADVERTISING SIGNS. The tax for this classification shall be the cumulative total of the categories that are applicable below:			
	a.	Outdoor advertising	417.00	20.00 per employee
	b.	Electric or neon signs	175.00	20.00 per employee
	c.	Billboards	196.00	20.00 per employee
	d.	Sign hanging	103.00	20.00 per employee
	e.	Sign painting	103.00	20.00 per employee
	f.	Computer graphics	103.00	20.00 per employee
(8.1)	AGRICULTURAL PRODUCTS		417.00	
	Plus cumulative amounts per employee:			
	a.	1-50		8.00 each
	b.	51-200		7.00 each
	c.	201—400		6.00 each
	d.	Over 400 employees		5.00 each
(9)	AIRPLANE RADIO SALES AND SERVICE		206.00	0.24% stock
(10)	AIRPLANE SALES, SERVICE & RENTAL		314.00 base plus	35.00/employee
	a.	Plus aircraft servicing	139.00 base plus	35.00/employee
	b.	Plus equipment sales	314.00 base	
	c.	Plus interior maintenance	103.00 base	
	d.	Plus retrieval/salvage	278.00 base	
	e.	Plus aircraft sales	314.00 base plus	0.24% inventory
(11)	AIR CONDITIONING AND HEATING DEALERS, SALES AND INSTALLATION		206.00	20.00 per employee, plus 0.24% stock, if applicable
(12)	AIR CONDITIONING WHOLESALE DISTRIBUTOR		206.00	0.24% stock
(13)	AIR PRODUCTS MANUFACTURERS AND DISTRIBUTORS		206.00	0.24% stock
(14)	AMUSEMENTS:			
	a.	Pool halls	139.00	70.00 per table
		Plus additional services:		
		1. Restaurant	52.00	
		2. Groceries	52.00	0.24% stock
		3. Confectionery, beverages, retail	62.00	
		4. Recreation room	278.00	plus 20.00 per employee
	b.	Bowling alleys	139.00	plus 50.00 per lane

			Annual Charge Base and Variable	
		Plus additional services:		
		1. Restaurant	52.00	
		2. Amusement machines (coin-operated)	5.00 per machine	
		3. Private schools	206.00	25.00 per employee
		4. Clothing	52.00	0.24% stock
	c.	Circus, including street parade: Per day		200.00
		Minimum per circus		400.00
	d.	Music and amusement machines (Each automatic coin-operated amusement device, and each automatic music machine, not including counter boxes), per year	5.00 per machine	
		State law reference—Limitation on tax on coin-operated amusement devices, A.C.A. § 26-77-302.		
	e.	Recreation room	278.00	20.00 per employee
		Plus additional services:		
		1. Amusement machines (coin-operated)	5.00 per machine	
		2. Confectionery	62.00	
		3. Rentals—Household communications e sporting equipment, etc.	206.00	
		4. Vending machines	21.00	
		5. Laundromats	52.00	plus 2.00 per machine
		6. Books and/or stationery, retail	103.00	plus 0.24% stock
		7. Restaurant	52.00	
	f.	Rides, concessions, amusements:		
		1. Major rides—First 4 weeks, per ride, per week	46.00 (4 week maximum per year)	
		Per year	350.00	
		2. Kiddie rides—First 4 weeks, per ride, per week	31.00 (4 week maximum per year)	
		Per year	206.00	
		3. Concessions—First 4 weeks, per concession, per week	31.00 (4 week maximum per year)	
		Per year	206.00	
	g.	Rides, coin-operated, each	5.00	
		State law reference—Limitations on fee on coin-operated rides, A.C.A. § 26-77-302.		
	h.	City convention centers, shows and exhibitions, including but not limited to seminars, special sales, musical concerts or activities, athletic events or carnivals, by any group, organization or company		
		sponsoring a function including, but not limited to, a public-attended, profit-making, ticketed function while in city convention centers are subject to the following charge:		
		1. Music hall rental—First day	135.00	
		Each day thereafter	65.00	
		2. Exhibition space rental	½ cent per sq. ft. gross space occupied first day—35.00 minimum. per sq. ft. gross space occupied each additional day—35.00 minimum.	
		3. For shows and exhibitions, etc., staged in the city convention center by any nonprofit organizations which provide an IRS nonprofit charter number, or other sufficient evidence of nonprofit status	No charge	

			Annual Charge Base and Variable	
	h.l.	Locations outside city convention centers, shows or exhibitions, including but not limited to seminars, special sales, musical concerts or activities, athletic events or carnivals, by any group, organization or company sponsoring a function including, but not limited to, a public attended, profit-making, ticketed function will be subject to the following charge:		
		1. Music hall rental	135.00 first day 65.00 each day thereafter	
		2. Exhibition space rental	½ cent per sq. ft. gross space occupied first day—35.00 minimum %C per sq. ft. gross space occupied each additional day—35.00 minimum	
		3. For shows and exhibitions staged by any nonprofit organization which provides an IRS nonprofit charter number, or other sufficient evidence of nonprofit status	No charge	
	i.	Sightseeing coaches	206.00	plus 35.00 per vehicle
	j.	Skating rinks	278.00	plus 20.00 per employee
(15)	AMBULANCE		103.00	plus 35.00 per vehicle
(15.1)	ANNOUNCEMENT SERVICES		103.00	plus 20.00 per employee
	Includes but not limited to:			
	a.	Stork services		
	b.	Graduation		
	c.	Weddings		
	d.	Parties		
	e.	Reunions		
	f.	Birthdays		
	g.	Partygrams		
	h.	Male and female dancers delivering announcements any such		
(16)	ANTIQUES, DEALERS IN		139.00	20.00 per employee
(16.1)	ANTIQUE & CRAFT MALLS		139.00	13.50 per booth, first
				100 booths 6.75 per booth, all booths over 100
(16.5)	APPLIANCE DEALERS, SALES		206.00	plus 0.24% stock
	Plus additional services:			
	a.	Repair	103.00	20.00 per employee
	b.	Rental/lease	278.00	
(17)	ARMATURE WINDING		206.00	20.00 per employee
(18)	ARMORED CAR SERVICE		139.00	20.00 per employee
(19)	ART SHOP		206.00	plus 0.24% stock
(20)	ARTIFICIAL LIMBS		206.00	20.00 per employee
(21)	AUCTIONEER, LOCAL		100.00 (maximum per state law)	
	State law reference—Limitations on fee on auctioneer, A.C.A. § 26-77-204.			
(22)	AUCTION HOUSE		417.00	35.00 per employee
(23)	AUTOMATIC SPRINKLERS:			
	a.	Contractor or dealer	206.00	plus 20.00 per employee
	b.	Stock, if applicable		plus 0.24% stock
(24)	RESERVED			
(25)	AUTOMOTIVE CAR WASHING:			
	a.	Automatic car wash	350.00	
	b.	Manual	103.00	plus 20.00 per employee
				plus 15.00 per stall
	c.	Mobile or truck washers	258.00	25.00 per vehicle
(25.5)	AUTOMOBILE DETAILING		206.00	20.00 per employee

			Annual Charge Base and Variable	
(26)	AUTOMOBILE FINANCE AGENCY OR DEPARTMENT		206.00	20.00 per employee
(26.1)	AUTOMOBILES FOR HIRE (profit)		139.00	30.00 per vehicle
(26.5)	AUTOMOBILE PAINT/BODY SHOP		139.00	20.00 per employee
	Plus additional services:			
	a.	Damage appraisers		50.00 each
(27)	AUTOMOBILE, PARTS DEALERS, NEW, retail and wholesale per location		206.00	plus 0.24% stock
	Plus additional services:			
	a.	Repair	103.00	20.00 per employee
(28)	AUTOMOBILE, PARTS DEALERS, SECONDHAND		206.00	20.00 per employee
	Plus additional services:			
	a.	Wrecker service		35.00 per wrecker
(28.2)	AUTOMOBILE REPOSSESSION		206.00	20.00 per employee
	Plus additional services:			
	a.	Wrecker service	103.00	35.00 per wrecker
(28.4)	AUTOMOBILE SALVAGE		206.00	20.00 per employee
	Plus additional services:			
	a.	Wrecker service		plus 35.00 per wrecker
(29)	AUTO SERVICE STATION		206.00	35.00 per fueling position 35.00 per mechanic 20.00 per employee
	Plus additional services:			
	a.	Parking		3.00 per space
	b.	Confectionery	62.00	
	c.	Reserved		
	d.	Vending machines	21.00	
	e.	Ice machine	10.00	
	f.	Repair	52.00	
	g.	Wrecker	103.00	plus 35.00 per wrecker
(30)	AUTOMOBILE TIRES:			
	a.	Sales (new)	206.00	plus 0.24% stock
	b.	Retreading	139.00	20.00 per employee
	Plus additional services:			
	c.	Tire repair	103.00	20.00 per employee
(31)	AUTOMOBILE AND TRUCK DEALERS NEW AND USED SALES		206.00 base plus	0.24% inventory
	NOTE: Where the average cost of items included in a dealer's inventory equals or exceeds $4,000.00; computation of the tax will include units below the average at actual cost; and those above it, at the average unit cost. A separate average computation must be made for every classification of cars and trucks, new and used. Plus additional services:			
	a.	Automobiles and trucks, rental/lease	139.00 base plus	69.25/vehicle
	b.	Wrecker service	139.00 base plus	35.00/wrecker
(32)	Reserved			
(33)	Automobile/Truck Rental/Lease			
	a.	Automobile/truck rental/lease	139.00 base	69.25/vehicle
	b.	Automobile sales	206.00 base	.024% of inventory
(33.1)	AUTOMOBILE WINDOW TINT		139.00	20.00 per employee
(34)	AWNINGS, SALES		206.00	plus 0.24% stock
	Plus additional services:			
	a.	Installation and service	103.00	plus 20.00 per employee
	B			
(35)	BAKERIES, WHOLESALE		206.00	plus 20.00 per employee
(36)	BAKERIES, WHOLESALE/RETAIL (including branch where no truck routes)		139.00 base plus	20.00 / employee

			Annual Charge Base and Variable	
(37)	Reserved			
(38)	BANKRUPT STOCKS, FIRE DAMAGE STOCKS AND SALVAGED OR DAMAGED MERCHANDISE		695.00	
(38.1)	BANKS		1,391.00	135.00 ea. branch (first 5 br.) 100.00 ea. add. br. (applies only to branches located within the city)
	Limited to Arkansas Chartered Banks, and National Chartered Banks having their principal place of business within the State of Arkansas. Base charge includes any drive-in bank at main location.			
(39)	BARBERS/BEAUTY OPERATORS (base included proprietor)		77.00 base plus	20.00/operator plus 35.00/manicurist
	a.	plus day spa	103.00 base	
	b.	plus inventory plus	0.24% inventory	
(40)	BARBERSHOPS AND BEAUTY PARLOR SUPPLY HOUSE		206.00	plus 0.24% stock
(41)	Reserved			
(42)	BICYCLE AGENCY		206.00	0.24% stock
(43)	BILLIARD AND POOL TABLE DISTRIBUTOR		206.00	0.24% stock
(43.2)	BILL PAYMENT CENTER		206.00	20.00 each employee
(44)	BLUEPRINTS		206.00	0.24% stock
(44.2)	BOARDING HOME OR ROOMING HOUSE:			
	a.	Up to 50 patrons	206.00	20.00 per employee
	b.	Over 50 patrons	278.00	20.00 per employee
(45)	BOAT DOCKS AND STORAGE STALLS		103.00	10.00 per stall
				plus 0.24% stock, if applicable
(46)	BONDSMEN, per bondsman		139.00	
(47)	Reserved			
(48)	BOOKKEEPERS AND NONLICENSED ACCOUNTANTS		139.00	50.00 per employee
(49)	BOOKS AND/OR STATIONERY, RETAIL		206.00	0.24% stock
	Plus additional services:			
	a.	Printing, linotype, bookbinding, or ruling, multilithing	206.00	20.00 per employee
(50)	BOTTLERS OF SOFT DRINKS/WATER		139.00	
	[Base charge] plus cumulative amounts per employee:			
	1—50 employees			8.00 per employee
	51—200 employees			7.00 per employee
	201—400 employees			6.00 per employee
	Over 400 employees			5.00 per employee
(51)	BROKERS (Base charge is per broker, unless otherwise specified):			
	a.	Auto broker (Any person not licensed as a new or used car or truck dealer offering for sale more than 2 cars per year):		
		1. Where principal business, each location, per broker	200.00	35.00 per employee
		2. When operated in connection with another business, per broker	100.00	35.00 per employee
	b.	Bond, stock and securities brokers and/or salesmen, per broker	200.00	35.00 per employee
	c.	Cotton broker, per broker	200.00	35.00 per employee
	d.	Food broker, per broker	200.00	35.00 per salesman
				20.00 per employee
	e.	Reserved		
	f.	Brokers not otherwise classified herein, per broker	200.00	35.00 per employee
	g.	All brokers maintaining an inventory shall also be liable for an inventory tax in addition to above fees		plus 0.24% stock (if applicable)

			Annual Charge Base and Variable	
(52)	BUILDING ERECTION SERVICE (Each person engaged in the business of providing building erection services in the construction, alteration or repair of buildings, towers, tanks, bridges, viaducts, roadways and all other structures, including, but not limited to metal, concrete, and other forms of construction)		278.00	20.00 per employee
(53)	BUILDING AND PLUMBING MATERIALS, BRICK AND TILE SALES		206.00	0.24% stock
	Plus additional services:			
	a.	Manufacturers	139.00	20.00 per employee
	b.	Printers, linotype, bookbinding	206.00	20.00 per employee
	c.	Furniture and appliance dealer, new	139.00	
	d.	Repair	103.00	20.00 per employee
	e.	Heavy equipment rental	278.00	
(53.5)	BUS COMPANY		278.00	6.75 (per) bus
	The variable charge applies to all buses operated within city limits regardless if the buses are owned or leased by the company.			
(54)	Reserved			
(55)	BUSINESS MACHINES, DATA PROCESSING AND OFFICE MACHINES, PHOTOCOPYING EQUIPMENT SALES AND SERVICE:			
	a.	The unit retail list price of which does not exceed $1,000.00	350.00	
		1. Each salesman and/or marketing representative, additional		35.00 per
		2. Each repairman and/or installation and maintenance technician, additional		13.50 per
	b.	The unit retail list price of which exceeds $1,000.00 or having the capability to store files for subsequent automatic retrieval	484.00	
		1. Each salesman, field systems or marketing representative, additional		50.00
		2. Each programmer		20.00 per
		3. Each repairman and/or installation and maintenance technician, additional		20.00
	c.	Capable of being programmed by the user (computer), or identified in subparagraph b. of the paragraph above and having a retail list price between $25,000 and $100,000	623.00	
		1. Each salesman, systems analyst, systems engineer or marketing representative, additional		65.00
		2. Each programmer, additional		40.00
		3. Each repairman, and/or installation and maintenance technician, additional		30.00
	d.	Having a retail list price in excess of $100,000	834.00	
		1. Each salesman, systems engineer or marketing representative, additional		65.00
		2. Each programmer, additional		40.00
		3. Each repairman, and/or installation and maintenance technician, additional		30.00
	e.	Rental:		
		1. Including calculators, cash registers, typewriters, office machines and photocopying equipment where no unit rented exceeds $2,500 in value	139.00	20.00 per service employee
		2. Office machines, computers, other data processing equipment and photocopying equipment, where the unit exceeds $2,500 in value	278.00	35.00 per service employee
	f.	Stock, or supplies	206.00	plus 0.24% stock
	g.	Secondhand machines	103.00	20.00 per employee
	h.	Plus business schools, private	278.00	20.00 per employee

			Annual Charge Base and Variable	
(56)	RESERVED			
(57)	BUSINESS SCHOOLS, PRIVATE		278.00	20.00 per employee
	a.	Plus recreation room or parlor	278.00	
(58)	BUTANE GAS DISTRIBUTORS		206.00	20.00 per employee
(58.2)	BUYERS CLUBS		206.00	0.24% stock or $1.35 per membership, whichever is greater
C				
(59)	CABINETMAKER AND CARPENTER SHOPS		206.00	20.00 per employee
(60)	CANDY, RETAIL SHOP		206.00	0.24% stock
(61)	CARPET, DRAPERY, RUG, MATTRESS CLEANING		103.00	20.00 per employee
(62)	CARPET DEALERS			
	a.	Sales	206.00	plus 0.24% stock
	b.	Installation	72.00	plus 20.00 per employee
(63)	CATERING SERVICE		139.00	35.00 per vehicle
	Plus additional services:			
	a.	Restaurant	103.00	20.00 per employee
(64)	CHECK CASHING SERVICE (includes payday advance companies)		206.00	plus 30.00 per employee
(65)	CHEMICAL AGENTS OR SALESMEN, each		200.00	plus 0.24% stock
(66)	CLOTHING, RETAIL		206.00	plus 0.24% stock
	Plus additional services:			
	a.	Fur storage	278.00	
	b.	Dry cleaning service	103.00	20.00 per employee
	c.	Shoe cleaning/repair	103.00	
	d.	Seamstress, each	35.00	
(67)	CLUBS:			
	a.	Private	417.00	20.00 per employee
	b.	Social	417.00	20.00 per employee
(68)	COLD STORAGE PLANT		206.00	20.00 per employee
	Plus additional services:			
	a.	Locker rental	36.00	
(69)	COLLECTING AGENCY		206.00	20.00 per employee
	Plus additional services:			
	a.	Wrecker service		plus 35.00 per wrecker
(70)	COMMERCIAL ARTIST (Any person who paints portraits or scenery, sketches or draws cartoons or the like for profit)		139.00	20.00 per employee
(70.1)	COMPUTER GAME DESIGN AND DEVELOPMENT		206.00	
	a.	Game design and development		50.00 per programmer 30.00 per technician
	b.	Design and development (non-game related)		50.00 per programmer 30.00 per technician
	c.	Website design and development		30.00 per employee
(70.2)	COMPUTER HARDWARE SALES, NEW OR USED		258.00	plus 0.24% stock
(70.4)	COMPUTER SERVICES, HOME BASED		103.00	30.00 per employee
	Plus additional services:			
	a.	Computer graphics	103.00	30.00 per employee
	b.	Service/repair	103.00	30.00 per employee
	c.	Software and services	103.00	30.00 per employee
	d.	Computer training specialist	103.00	30.00 per employee
	e.	Networking/interconnecting computing resources	103.00	30.00 per employee
(71)	CONCRETE, READY-MIX:			
	Sewer pipe, lime, chert, crushed rock, asphalt, delivered to the job		139.00	65.00 per vehicle

			Annual Charge Base and Variable	
(72)	CONFECTIONERY STORE (A place exclusively devoted to the purpose of selling candies, gum, cakes, ice cream and/or soft drinks; this classification shall not include the manufacturing or the making thereof)		77.00	
(73)	CONTRACTORS:			
	a.	General building (any person who engages in the business of supervising construction, alteration, or repairs of buildings and who has the general direction and control over tradesmen and/or subcontractors, shall be classified as a "general building contractor"):		
		1. Class 1—(Remodeling only) Permit from $0.00 to $25,000.00, and all subcontractors	206.00	20.00 per employee
		2. Class 2—Any contractor obtaining a building permit from $0.00 to $150,000.00	309.00	20.00 per employee
		3. Class 3—Any contractor obtaining a building permit in excess of $150,000.00 but less than $500,000.00	515.00	20.00 per employee
		4. Class 4—Any contractor obtaining a building permit greater than $500,000.00 but less than $1,000,000.00	824.00	20.00 per employee
		5. Class 5—Any contractor obtaining a building or construction permit in excess of $1,000,000.00	1,648.0 0	20.00 per employee
(74)	CONTRACTORS, ASPHALT PAVING		278.00	20.00 per employee
(74.1)	CONTRACTOR—EXCAVATING		278.00 base plus	20.00/employee
(74.2)	CONTRACTOR—UTILITY		515.00 base plus	20.00/employee
(75)	CONTRACTORS, HOUSE WRECKERS AND MOVERS		206.00	20.00 per employee
(75.5)	CONTRACTOR, MASONRY		206.00	20.00 each employee
(76)	CONTRACTORS, ROAD		556.00	
	Base charge, plus cumulative amounts per employee:			
	a.	1-50		8.00 each
	b.	51-200		7.00 each
	c.	201-400		6.00 each
	d.	Over 400 employees		5.00 each
(76.1)	CONTRACTORS, ROOFING OR PAINTING		206.00	20.00 per employee
(76.2)	CONVENIENCE MARTS		623.00	
	Plus additional services:			
	a.	Gas		35.00 per fueling position
	b.	Restaurant		103.00
	c.	Video rental		103.00
	d.	Ride, coin operated		5.00 each
(77)	COSMETICS, RETAIL		206.00	Plus 0.24% stock
(78)	COURIER SERVICES:			
	a.	'A ton up to 1 ton truck		35.00 each
	b.	Over 1 ton and up to 2% ton truck		65.00 each
	c.	Over 2'A ton truck		135.00 each
(79)	COUPONS, CARD, CHECK ORDERS AND/OR OTHER TRADE STIMULATORS, DISTRIBUTORS		278.00	
(79.1)	CRAFTS:			
	a.	Full-time business outside the home	103.00	
	b.	Home-based	77.00	
	c.	Part-time	52.00	
(79.2)	CREDIT CARD, PROCESSING AND OBTAINING		139.00	20.00 per employee
(80)	CREDIT RATING AGENCY OR BUREAU		391.00	20.00 per employee
	D			
(80.1)	DAIRIES/MILK DISTRIBUTORS		206.00	plus 0.24% stock
(81)	DANCING SCHOOL		139.00	20.00 per employee

			Annual Charge Base and Variable	
(82)	DATA PROCESSING SERVICE (Any person involved in sales of automatic data processing services including software development (systems analysis and programming), machine processing of client data, and consultant services)		484.00	
	a.	Each client contact, marketing and systems analyst employee, additional		55.00
	b.	Each programmer, additional		40.00
	c.	Each machine operator, additional		20.00
(82.1)	DATA PROCESSING SERVICE (includes home-based time)	and part-	278.00 base	
(82.2)	Reserved			
(82.3)	DATING SERVICES		139.00	
(83)	DENTAL LABORATORIES		206.00	20.00 per employee
				plus 0.24% stock, if applicable
(84)	Reserved			
(85)	DEPARTMENT, DISCOUNT AND VARIETY STORES		206.00	0.24% stock
(85.2)	DEPARTMENT STORE, MAJOR CHAIN, sells a variety of wide goods and services		206.00	0.24% stock
	Plus additional services:			
	a.	Optical	160.00	
	b.	Restaurant	103.00	
	c.	Pharmacy	206.00	0.24% stock
	d.	Beauty salon	139.00	
	e.	Training class	206.00	
	f.	Florist	139.00	
	g.	Shrubbery, potted plants	206.00	
	h.	Video sales	139.00	
	i.	Recreation room	139.00	
	j.	Gun dealer	139.00	
	k.	Service technician (on-call)		35.00 per technician
	1.	Gas pumps		35.00 per fueling position
(85.4)	DIAPER SERVICE (includes pickup and delivery)		139.00	20.00 per employee
				35.00 per vehicle
(86)	DIRECTORIES, printing and distribution		417.00	20.00 per employee
(86.1)	DISTRIBUTION CENTER (A facility which is associated with an out-of-state company whose products are received and then redistributed to retailers or wholesalers within the state)			
	a.	%-ton up to 1-ton truck		35.00 each
	b.	Over 1 ton and up to 2%-ton truck		65.00 each
	c.	Over 2%-ton truck		135.00 each
(87)	DRAFTSMEN AND/OR DESIGNERS		139.00	35.00 per employee
(88)	DRESSMAKER/SEAMSTRESS		52.00	20.00 per employee
(89)	DRIVING SCHOOL		103.00	20.00 per employee
(90)	DRY CLEANING AND PRESSING ESTABLISHMENTS, their services to dry cleaning or pressing restricting		103.00	20.00 per employee
	E			
(91)	ELECTRIC CONTRACTOR		206.00	20.00 per employee
				plus 0.24% stock, if applicable
(92)	ELECTRIC REFRIGERATION REPAIRS		206.00	20.00 per employee
				plus 0.24% stock, if applicable
(93)	ELECTROLOGIST (Each person engaged in providing electrolysis (hair removal services))		139.00	

			Annual Charge Base and Variable	
(94)	ELEVATORS (Each person selling or installing hydraulic, steam, electric, or handpower elevators or repairing same, as principal or agent)		417.00	20.00 per employee
(95)	EMPLOYMENT AGENCY		139.00	20.00 per employee
(96)	ENGRAVERS, LITHOGRAPHERS, MONOGRAMMERS, SILK SCREENING		206.00	35.00 per employee
(97)	ESCORT SERVICE, MOTOR VEHICLE		77.00	13.50 per vehicle over 1
(97.2)	ESTATE SALES		139.00	35.00 per employee
(97.4)	EVENT PROMOTER		206.00	
(98)	EXTENDED HEALTH CARE FACILITY		278.00	4.00 per bed
(99)	EXTERMINATORS, PEST CONTROL		139.00	20.00 per employee
F				
(99.2)	FINANCE AGENCY OR DEPARTMENT		206.00	20.00 per employee
(99.4)	RESERVED			
(100)	FLEA MARKET:			
	a.	Operator	103.00	
	b.	Each booth or stall in which merchandise is displayed or sold		13.50
	(Operator is responsible for insuring payment of per-stall fees)			
(101)	FLORISTS		206.00	plus 0.24% stock
(101.1)	FREELANCERS		103.00	20.00 per employee
	Encompasses any business which cannot be classified.		otherwise	
(102)	FUNERAL DIRECTORS AND/OR UNDERTAKERS		350.00	20.00 per employee
	Plus additional services:			
	a.	Mortician	155.00	
(103)	FUR STORAGE, exclusive, or where operated in connection with other business		278.00	
(104)	FURNITURE AND APPLIANCE DEALER, NEW		206.00	plus 0.24% stock
	Plus additional services:			
	a.	Furniture and/or appliance repair	103.00	20.00 per employee
	b.	Carpet, drapery, rug, mattress cleaning	103.00	20.00 per employee
	c.	Service technician (on-call)		35.00 each
	d.	Interior designers		155.00 each
(105)	FURNITURE DEALERS, SECONDHAND		206.00	20.00 per employee
	Plus additional services:			
	a.	Repair/refinishing/upholstery	103.00	20.00 per employee
(106)	FURNITURE REPAIRING AND UPHOLSTERING		103.00	20.00 per employee
G				
(107)	GASOLINE AND OIL DEALERS, WHOLESALE		582.00	65.00 per truck
	Plus additional services:			
	a.	Manufacturer's in-transit distribution center operations	270.00	
(108)	GIFT SHOP		206.00	plus 0.24% stock
	Plus additional services:			
	a.	Rentals	103.00	
	b.	Repair	103.00	
(108.1)	GLASS COMPANY, AUTO AND BUILDING MATERIAL		206.00	plus 0.24% stock
				20.00 per employee
	Plus additional services:			
	a.	Repair	103.00	
	b.	Service technicians (on-call)		35.00 each
(109)	GOLF COURSE, MINIATURE		139.00	20.00 per employee
	Plus additional services:			
	a.	Driving range	139.00	
(110)	GOLF COURSE, PUBLIC:			

			Annual Charge Base and Variable	
	a.	9-hole	175.00	
	b.	18-hole	278.00	
	Plus additional services:			
	c.	Pro shop, retail	206.00	plus 0.24% stock
	d.	Driving range		139.00
	e.	Golf professional	155.00 each professional	
	f.	Lesson/schooling		206.00
	g.	Restaurant/snack bar		103.00
(111)	GOLF DRIVING RANGE, EXCLUSIVE		139.00	
(112)	GROCERIES, RETAIL (Independently owned)		206.00	plus 0.24% stock
	Plus additional services:			
	a.	Gas		35.00 per fueling position
	b.	Video rentals		100.00
	c.	Restaurant/snack bar (If more than 2 fuel nozzles, see Class 76.2)		100.00
(113)	GROCERIES, WHOLESALE		206.00	plus 0.24% stock
(114)	GUN DEALERS		206.00	plus 0.24% stock
	H			
(115)	HARDWARE STORE		206.00	plus 0.24% stock
	Plus additional services:			
	a.	Gun dealer	103.00	
	b.	Building/plumbing materials	139.00	
(116)	RESERVED			
(117)	HAULERS, DELIVERY COMPANIES, COMMERCIAL HAULERS:			
	a.	% ton up to 1 ton truck, each	35.00	
	b.	Over 1 ton and up to 2% ton truck, each	65.00	
	c.	Over 2% ton truck, each	135.00	
(117.2)	HAZARDOUS COMMERCIAL OR MEDICAL DISPOSAL FACILITIES (per ton of waste disposed of during the calendar year)		35.00 per ton/$5,000.00 bond required	
(118)	HEALTH SPA/FITNESS CENTER		278.00	20.00 per employee
(118.8)	HOBBY SHOP		206.00	plus 0.24% stock
	Plus additional services:			
	a.	Repair	103.00	20.00 per technician
(119)	HEARING AID AGENCY		206.00	plus 0.24% stock
(119.1)	HORSE-DRAWN VEHICLES		206.00	20.00 per employee
(119.2)	HOSPITALS (for profit)		278.00	20.00 per employee
(120)	HOUSEHOLD SUPPLIES		206.00	plus 0.24% stock
	I			
(121)	RESERVED			
(122)	ICE DEALER, RETAIL, no delivery, operating from an established place of business		52.00	
(123)	ICE DEALER, RETAIL, sold exclusively from trucks, each truck		50.00	
(123.2)	ICE CREAM MOBILE UNIT (per vehicle)		50.00	
(124)	ICE CREAM/FROZEN YOGURT STORE		139.00	
	Plus additional services:			
	a.	Carry-out	36.00	
	b.	Drive-through	36.00	
(124.1)	(HOME) INSPECTION SERVICES		103.00	20.00 per employee
(124.2)	RESERVED			
(125)	INSULATION, WATERPROOFING AND WEATHERPROOFING, each location		206.00	20.00 per employee
				0.24% stock, if applicable
(125.5)	INTERIOR DECORATORS AND DESIGNERS		103.00	20.00 per employee
	Plus additional services:			

			Annual Charge Base and Variable	
	a.	Draperies/wallcovering	103.00	
	b.	Professional interior decorator		155.00 each
	c.	Plant/floral arrangements	103.00	
(125.6)	INTERNET COMPANIES AND INTERNET SERVICE PROVIDERS		206.00	plus cumulative amounts
	Rate Schedule:			
	Number of Subscribers:			
	0-1,000		200.00	
	1,001-10,000		500.00	
	10,001-25,000		750.00	
	25,001-50,000		1,000.0 0	
	50,001-75,000		1,250.0 0	
	Each additional 25,000 or fraction thereof		250.00	
(125.7)	INTERNET SALES		206.00	20.00 per employee
				0.24% stock, if applicable
(126)	INVENTORY SERVICE		206.00	20.00 per employee
(127)	INCOME TAX PREPARATION		139.00	50.00 per employee
	J			
(128)	JANITOR SUPPLIES, WHOLESALE OR RETAIL		206.00	0.24% stock
(129)	JANITORIAL SERVICES		103.00	20.00 per employee
(129.1)	JEWELRY MANUFACTURERS/STORE		206.00	0.24% inventory
	a.	plus repair	103.00 base plus	20.00 per employee
(129.2)	RESERVED			
(130)	JUNK, WASTE MATERIAL (Hides, furs, wool, paper, rags, scrap iron, brass, rubber, copper, used building materials)		448.00	20.00 per employee
	K			
(131)	KINDERGARTEN, NURSERY SCHOOL AND BOARDING HOME:			
	a.	Up to 50 children/persons	139.00	20.00 per employee
	b.	Over 50 children/persons	278.00	20.00 per employee
	L			
(132)	LABORATORIES, X-RAY, TESTING, etc.		206.00	20.00 per employee
(133)	LANDSCAPING			
	a.	Landscaping	139.00	20.00 per employee 2.00 per vehicle *
	b.	Lawn care, maintenance, and/or mowing	103.00	20.00 per employee 2.00 per vehicle *
	* NOTE: The treasury management division shall, upon receipt of payment of the business license fee, provide a hangtag for each vehicle assessed, to be displayed on the rear-view mirror of vehicles in use during operating hours.			
(134)	LAUNDRIES, LINEN, UNIFORMS AND TOWEL SUPPLY		139.00	20.00 per employee
(135)	LAUNDRIES AND DRY CLEANING ESTABLISHMENTS, SUBSTATIONS:			
	Where no machinery is operated		103.00	
(135.1)	LAUNDROMAT		103.00	3.00 per machine
(135.2)	LEGAL SERVICES AGENCY.		206.00	20.00 per employee
(136)	LIMOUSINE SERVICE		139.00	30.00 per employee
(136.5)	LIQUOR STORE (NON-ALCOHOL ITEMS)		77.00	
(137)	LIVESTOCK MARKET SALES		417.00	35.00 per employee
(138)	LOAN$, PERSONAL		206.00	20.00 per employee
(139)	LOANS, REAL ESTATE:			

			Annual Charge Base and Variable	
	a.	Loans, real estate	278.00	20.00 per employee
	b.	Mortgage banking	278.00	20.00 per employee
(140)	LOCKSMITHS, SAFE AND VAULT SALES AND REPAIRS		206.00	plus 0.24% stock
(141)	LUMBER AGENTS			135.00 per agent
	M			
(142)	MACHINE SHOP:			
	a.	Shop only, including, but not limited to, precision work to rebuild motors, make new parts, weld parts, press metal parts with hydraulic or mechanical presses and grind motor parts	139.00	20.00 per employee
	Plus additional services:			
	b.	Sale of parts	206.00	plus 0.24% stock
(143)	MACHINERY DEALER:			
	Plus additional services:			
	a.	Sales and service:		
		1. Light equipment, where no unit retail price exceeds $20,000	206.00	plus 0.24% stock
		2. Heavy equipment, where unit price of equipment exceeds $20,000	258.00	plus 0.24% stock
		3. Repair	103.00	
	b.	Rental:		
		1. Light equipment, where unit retail price of equipment does not exceed $20,000	278.00	
		2. Heavy equipment, where unit price of equipment exceeds $20,000	417.00	
		3. Repair	103.00	
	c.	Sale of used machinery	417.00	
		1. Repair	103.00	
	d.	Sale of parts	206.00	plus 0.24% stock
(143.1)	MAIDS, HOUSEKEEPING AND CLEANING SERVICES		77.00	20.00 per employee
(143.3)	MAIL SUBSTATIONS		103.00	
	Plus additional services:			
	a.	Telecommunications services	103.00	
(144)	MANICURIST, each		75.00	
(145)	MANUFACTURERS		139.00	
	All types of manufacture including, but not limited to, baskets, blinds or shades, cooperage, ice, jewelry, lumber, potato chips, candy, canning factories, chemicals, cosmetics, sawmills, etc. Each location requires a separate license.			
	Base charge, plus cumulative amounts per employee:			
	a.	1—50 employees	8.00 each	
	b.	51—200 employees	7.00 each	
	c.	201—400 employees	6.00 each	
	d.	401—700 employees	5.00 each	
	e.	701—1000 employees	4.00 each	
	f.	Over 1000 employees	3.00 each	
(146)	MANUFACTURER'S AGENT, each		200.00	plus 0.24% stock
(146.5)	MARKETING (including but not limited to direct mail & internet)		206.00	30.00 per employee
(146.6)	MARKET RESEARCH		206.00	30.00 per employee
(147)	MANUFACTURERS IN-TRANSIT DISTRIBUTION CENTER OPERATION (A facility which operates [as] a separate entity, or in connection with, or as an extension of a local manufacturing firm, in which a majority of the products are distributed outside the state, shall be taxed on the inventory of goods and products distributed in the state)		206.00	

			Annual Charge Base and Variable	
	Plus inventory, first $4,000,000		0.25% of the average annual dollar inventory level, 10,000.00 maximum	
	Plus inventory above $4,000,000		0.125% of the average annual dollar inventory level	
(148)	MASSAGES AND BATHS		206.00	68.00 per employee
	(Requires State Recertification every six months—Issue % year only each time)			
	Plus additional services:			
	a.	School, private 1. Under 50 pupils	206.00	35.00 per employee
		2. Over 50 pupils	278.00	35.00 per employee
(149)	MEATS, PACKINGHOUSE COMPANIES		139.00	
	Base charge plus cumulative amounts per employee:			
	a.	1—50 employees	8.00 each	
	b.	51—200 employees	7.00 each	
	c.	201—400 employees	6.00 each	
	d.	401—700 employees	5.00 each	
	e.	701—1,000 employees	4.00 each	
	f.	Over 1,000 employees	3.00 each	
(150)	MEATS, RETAIL, where principal stock		206.00	plus 0.24% stock
(151)	MEATS, WHOLESALE DEALERS in green meats and/or butchering cattle, hogs, or other animals and offering same for sale		206.00	20.00 per employee
(151.1)	MEDICAL CONSULTING SERVICE		206.00	20.00 per employee
	Each person, firm or corporation which charges to process claims, audit bills, make payments, audit inventories, counsel regarding billing procedures, or conduct medical specialist training courses in hospitals and clinics.			
(152)	METAL PROCESSORS (Each person engaged in the business of processing steel, iron and other metals for sale, including, but not limited to, smelting, welding, shaping and fabricating of metal products), employing:			
	a.	Up to 50 employees	278.00	20.00 per employee
	b.	51 or more employees	556.00	20.00 per employee
(153)	METAL, SHEET METAL AND TIN WORK		139.00	20.00 per employee
(153.1)	MICROFILMING SERVICE/PHOTO FINISHING:			
	a.	Pick-up station (separate location)	103.00	20.00 per employee
	b.	Processing plant (separate location)	103.00	20.00 per employee
(153.3)	MINNOW DEALER OR BAIT MARKETS per year, or any part thereof		103.00	
(154)	MOBILE CANTEEN (per vehicle per year or part thereof)		100.00	
(154.1)	MOBILE COMMUNICATION SERVICES		139.00	plus cumulative
				amounts
	Rate Schedule:			
	Number of Subscribers:			
	0-1,000		340.00	
	1,001-10,000		675.00	
	10,001-25,000		1,350.0 0	
	25,001-50,000		2,025.0 0	
	50,001-75,000		2,700.0 0	
	Each additional 25,000 or fraction thereof		675.00	
(155)	MOBILE HOME PARKS OR MANUFACTURED HOME PARKS:			
	a.	Each location	206.00	
	b.	Each mobile home space or manufactured home space, additional	15.00 per space	

			Annual Charge Base and Variable	
(155.1)	MOBILE HOME SALES, RECREATIONAL VEHICLES, CAMPERS		206.00	plus 0.24% stock
				20.00 per employee
(156)	MOTELS, HOTELS, AND MOTOR LODGES		139.00	4.00 per room
	Plus additional services:			
	a.	Laundry, dry cleaning	103.00	
	b.	Restaurant	103.00	20.00 per employee
	c.	Limousine rental	35.00 per vehicle	
	d.	Convention/meeting room rentals	139.00	
(157)	MOTION PICTURE SUPPLY AND/OR FILM EXCHANGE		139.00	20.00 per employee
(158)	MOTORCYCLE DEALERS		206.00	plus 0.24% stock
	Plus additional services:			
	a.	Repair	103.00	20.00 per employee
(158.1)	MUSIC EDUCATORS/HOME BASED			
		1—20 students		No license required
		21 or more students	$103	$20 per employee
(159)	MUSIC SUPPLIES (sheet music, records, musical instruments)		206.00	plus 0.24% stock
	a.	Rentals	103.00	
(159.1)	MUSIC AND/OR SOUND CONTRACTOR		206.00	plus 20.00 per employee
	Music video sounds; track tapes; disc jockeys for hire			plus 0.24% stock
	Plus additional services:			
	a.	Video productions	103.00	
N				
(160)	NANNY SERVICE		139.00	
(161)	NEWSPAPER/MAGAZINE PUBLISHERS, daily, weekly, monthly publications accepting paid advertising		139.00	
	Base charge, plus cumulative amounts per group of employees:			
	a.	1—50 employees		8.00 per employee
	b.	51—200 employees		7.00 per employee
	c.	201—400 employees		6.00 per employee
	d.	Over 400 employees		5.00 per employee
	Note: Publication sponsored by a public or private educational institution and not engaged in such business for profit are not subject to the tax levied by this section.			
(162)	NEWSSTANDS, RETAIL		103.00	20.00 per employee
(163)	NURSERY, SHRUBBERY:			
	a.	Nursery, shrubbery, plants, sales of	206.00	20.00 per employee
	b.	Nursery, shrubbery, plants, leasing of	103.00	
	c.	Nursery, shrubbery, plants, sales and leasing	278.00	
(164)	NURSING HOMES		139.00	3.00 per bed
(164.2)	NURSING SERVICES, IN-HOME		206.00	20.00 per employee
	(a)	Adult care	103.00	
O				
(165)	OFFICE AND/OR AGENCY OPERATIONS. (Each person maintaining an office or agency with personnel (to include corporate branch, regional or division offices), where all other functions peculiar to the business may be affected outside the city, not to include office where business is located in city and licensed), cumulative amounts per group of employees:			
	a.	1—5 employees	100.00	
	b.	6—10 employees	115.00	
	c.	11—25 employees	135.00	
	d.	26—50 employees	200.00	

			Annual Charge Base and Variable	
	e.	Over 50 employees	270.00	
(166)	OPINION SURVEYS (Each person engaged in conducting opinion surveys or polls per year or any part thereof)		206.00	
(167)	OPTICAL MANUFACTURERS		206.00	plus 0.24% stock
				155.00 per optician
	P			
(168)	PAGER COMPANIES:			
	a.	Sales	206.00	plus 0.24% stock
	b.	Rental, lease	350.00	20.00 per employee
	c.	Sales, rental, lease	258.00	plus 0.24% stock
(168.1)	PAINTERS, CURBSIDE ADDRESSES (not prorated or discounted)		35.00 per employee	
(169)	PAPER COMPANIES		206.00	plus 0.24% stock
(170)	PARKING LOTS AND DECKS		15.00	4.00 per space
(171)	PAWNBROKERS (not prorated)		834.00	
	Plus additional services:			
	a.	Sale of precious metals	417.00	
	b.	Sale of used wearing apparel	103.00	
(172)	PEDDLERS ON FOOT, CONFECTIONS AND KINDRED LINES, DRY GOODS AND MERCHANDISE (not prorated)		75.00 per peddler	
(172.5)	PERSONAL SHOPPING SERVICE		139.00	20.00 per employee
(173)	PET CARE (including boarding, grooming, and breeding		139.00 base plus	20.00/employee
(174)	Reserved			
(175)	PET SHOPS AND SALES		206.00	plus 0.24% stock
(176)	PHARMACY		206.00	plus 0.24% stock
(177)	PHOTO DEVELOPERS		103.00	20.00 per employee
(178)	PHOTOGRAPHERS AND/OR PORTRAIT PAINTERS:			
	a.	Maintaining an established studio in the city	139.00	20.00 per employee
	b.	Itinerant photographers not having a permanent, established place of business in the city, per year or any part thereof	278.00	
(179)	PLASTIC PRODUCTS		206.00	
	Plus additional services:			
	a.	Fabricating, finishing, decorating	103.00	20.00 per employee
	b.	Laminating	103.00	20.00 per employee
	c.	Tubing	103.00	20.00 per employee
	d.	Distributing	103.00	20.00 per employee
(179.2)	PLASTIC PRODUCTS, WHOLESALE MANUFACTURERS		206.00	plus 0.24% stock
(180)	PLUMBING AND GASFITTER CONTRACTOR		206.00	20.00 per employee
				plus 0.24% stock
(180.1)	PRECIOUS METAL DEALERS		135.00 per day or 405.00 for 1 year at the option of the purchaser	
	This paragraph shall not apply if the person pays privilege license tax under another classification set out in this section, provided the tax is paid for the privilege of conducting a business, occupation or profession which routinely and customarily includes the buying of precious metals.			
(181)	PREMIUM STAMP DISTRIBUTION		695.00	
(182)	PREMIUM STAMP REDEMPTION STORE		206.00	0.24% stock
(183)	PRINTING, LINOTYPE, BOOKBINDING OR RULING, MULTILITHING (Each person operating a job, printing office or linotype machine, with or without printing press)		206.00	20.00 per employee
				0.24% stock, on supply

			Annual Charge Base and Variable	
(184)	PRODUCE MARKET. Each operator of a farmer's market or produce market occupying:			
	a.	Not more than 1 city lot (50 feet by 150 feet) or equivalent	52.00	
	b.	Less than % of a city block, or equivalent	77.00	
	c.	Less than % of a city block, or equivalent	103.00	
	d.	Less than % of a city block, or equivalent	139.00	
	e.	14 of a city block or more	278.00	
	Each license will be issued for 1 year and will not be prorated.			
(185)	PRODUCE, RETAIL, each car or truck		50.00	
(186)	PRODUCE, WHOLESALE		206.00	plus 0.24% stock
(187)	PROFESSIONALS, including, but not limited to the following, per firm member, associate or staff professional			155.00 per professional 50.00 per paraprofessional employee * (see notes at the end of this paragraph)
	a.	Appraisers, including real estate		
	b.	Accountants and auditors, licensed		
	c.	Architects		
	d.	Attorneys		
	e.	Chiropractors		
	f.	Consultants (One who is hired to give professional advice or services in their area of expertise. A person who advertises himself or herself as a consultant will be presumed to fall within this category.)		
	g.	Dentists		
	h.	Engineers		
	hl.	Financial consultants		
	i.	Geologists		
	j.	Resident athletic professionals		
	k.	Interior decorators		
	1.	Landscape architects		
	m.	Medical doctors (excludes interns and residents; includes any other physician who treats private patients)		
	n.	Morticians		
	o.	Optometrists		
	p.	Opticians		
	q.	Psychologists		
	r.	Veterinarians		
	s.	Court reporters		
	t.	Medical services without staff physicians		
	u.	Therapists		
	v.	Psychiatrists		
	w.	Reserved		
	x.	Reserved		
	y.	Reserved		
	z.	Professionals, licensed, not otherwise classified—Each, except as otherwise herein provided		
		* Note 1: "Paraprofessional employee" shall be defined as each person engaged in or aiding in what is commonly known as a paraprofessional career, including, but not limited to, paralegal personnel, registered nurses, dental hygienists, bookkeepers, nonlicensed accountants, laboratory, X-ray technologists, draftsmen, surveyors, real estate salesmen, and interior designers.		

			Annual Charge Base and Variable	
		* Note 2: A business license shall not be issued where only paraprofessional(s) are assessed for a license, and where no professionals are assessed for that same license. In instances where all employees of a business can be classified as paraprofessionals and no employees can be classified as professionals, a different classification must be used.		
(188)	RESERVED			
(189)	PUBLIC RELATIONS		206.00	35.00 per employee
(189.4)	PURCHASING AGENT(S)		206.00	20.00 per employee
	R			
(190)	RADIO BROADCAST STATIONS		417.00	20.00 per employee
(190.1)	REAL ESTATE			
	190.1 (A) PROPERTY FOR LEASE OR RENTAL			
(a)	For purposes of this classification, dwelling unit means any room or group of rooms within a dwelling that forms a single habitable unit with facilities which can be used, or are intended to be used, for living, sleeping, cooking, and eating, whether such unit is occupied or vacant. The term "dwelling unit" shall be construed as if followed by the words "or any part thereof."			
	For example, a dwelling unit which consists of individual single-family housing is considered one (1) dwelling unit; a duplex is considered two (2) dwelling units; a triplex is considered three (3) dwelling units; and, so on. The term dwelling unit does not include temporary residential facilities such as hotels, motels, or treatment centers.			
(b)	Only one (1) base charge is required from an individual or entity that owns four (4) or more units of real estate for rental, provided one (1) or more additional charges may be required for employees, or other activities;			
(c)	Any square footage calculation in this classification figure. For example, a calculation of one thousand (1,000) square feet means one thousand (1,000) square feet or any part of that figure. So, if the square footage is one thousand two hundred fifty (1,250) feet, the fee is the same as if the square footage was two thousand (2,000) square feet.			
(d)	The owner of property is responsible for the per unit fee of property available for rent, even though this amount may actually be paid by a property services company. The property services classification is not responsible for the base charge of an owner, nor for the charge per dwelling unit; however, no such dwelling unit may be rented or managed if the base charge and per unit fees are not paid to the city.			
(e)	The following real estate classifications and charges are as follows:			
	(1)	OWNERSHIP ONLY (less than four (4) units)		36.00
	(2)	OWNERSHIP ONLY (more than four (4) units		206.00
		—Plus dwelling unit fee (up to one hundred (100) units)	7.00 per dwelling unit	
		—Plus dwelling unit fee (over one hundred (100) units)	3.50 per dwelling unit	
	(3)	ADDITIONAL FEES FOR LEASED OR RENTED PROPERTY		
	(A)	Over one thousand (1,000) square feet for vehicular parking	2.00 per square foot	
	(B)	Each one thousand (1,000) square feet of warehouse or industrial space	2.00 per square foot	
	(4)	UNRENTED SPACE If the owner or manager can establish the space has not been rented for an entire previous calendar year	2.00 per one thousand (1,000) square feet	
	(5)	OWNER OCCUPIED dwelling unit, commercial, office, industrial or warehouse space	No fee	
	(6)	WAREHOUSE, INDUSTRIAL OR COMMERCIAL SPACE	2.00 per one thousand (1,000) square feet	
190.1 (B)	REAL ESTATE SALES		Base fee	206.00
		—Plus per employee fee	35.00	
		—Plus per sales person fee	50.00	
190.1 (C)	REAL ESTATE PROPERTY MANAGEMENT		Base fee	$206.00
		—Plus per employee fee	35.00	
		—Plus per sales person fee	50.00	
190.1 (D)	REAL ESTATE DEVELOPMENT		Base fee	206.00
		—Plus per employee fee	20.00	

			Annual Charge Base and Variable	
		—Plus per salesperson fee	50.00	
190.1 (E)	Additional fees for leased or rented property			
	a.	Over 1,000 square feet for vehicle parking	$2.00 per 1,000 square feet or any part thereof	
	b.	Each 1,000 square feet of warehouse or industrial space	$2.00 per 1,000 square feet or any part thereof	
(191)	Reserved			
(192)	RECORDING SERVICE		103.00	20.00 per employee
(192.1)	RECORDING STUDIO		206.00	30.00 per employee
	(Including, but not limited to, compact discs, digital audio, and tapes)			
(192.2)	RECYCLING COMPANIES		350.00	20.00 per employee
(193)	RENTALS, per location. Each person engaged in the rental of the following, whether incidental to or connected with any other business or not:			
	a.	Clothing, including, but not limited to, tuxedos, costumes and wedding apparel	139.00	
	b.	Household items, including but not limited to, dinnerware, furniture, light lawn, garden and floor care equipment or tools, televisions, communications equipment, small business machines, hospital equipment, sporting and camping equipment and the like	278.00	
	c.	Machinery, implements and heavy equipment not included in subparagraph b. of this paragraph. Such items as air compressors, front end loaders, back hoes, cranes, lifts or hoists, trenching machines, concrete mixers, pumps, forklifts, generators, scaffolding and the like	417.00	
	Plus additional services:			
		1. Trailer rentals	103.00	plus 7.00 per trailer
		2. Mobile home and recreational vehicle	206.00	plus 20.00 per employee
(194)	REPAIR SHOPS/SERVICES		103.00	20.00 per employee
(194.1)	REPAIR-MOBILE MECHANIC		103.00 base plus	20.00/employee
(195)	RESTAURANTS, CAFETERIAS, CAFES, LUNCH STANDS, LUNCH COUNTERS, DRIVE-IN FOODS AND DRINK SERVICE		103.00	20.00 per employee
	Plus additional services:			
	a.	Catering service	139.00	20.00 per employee
				35.00 per vehicle
(196)	RUBBER STAMPS OR STENCIL DEALERS		206.00	plus 0.24% stock
	S			
(197)	SANDWICHES, MANUFACTURER AND/OR WHOLESALE		139.00	plus 35.00 per truck
(198)	SCHOOLS, PRIVATE:			
	a.	Under 50 pupils	206.00	35.00 per employee
	b.	Over 50 pupils	278.00	35.00 per employee
(198.1)	a.	SCHOOLS, TUTORING SERVICE	$206	30 per employee
	b.	Schools, tutoring service/home-based		
		1—20 students		No license required
		21 or more students	$103	20 per employee
(198.2)	SEASONAL VENDORS (Operative 3 months or less)		103.00	
	Includes, but not limited to, produce, woodcutters, Christmas tree sales, holiday merchants.			
(198.4)	SCREEN PRINTING		103.00	
(199)	SECONDHAND WEARING APPAREL:			
	a.	Secondhand apparel	103.00	
	b.	Secondhand, used other	103.00	
	c.	Secondhand apparel and used other	139.00	

			Annual Charge Base and Variable	
(200)	SECRETARIAL SERVICES AND MIMEOGRAPH		103.00	20.00 per employee
(201)	RESERVED			
(202)	SEWER CLEANERS		206.00	20.00 per employee
(203)	SEWING MACHINE:			
	a.	Sales	206.00	plus 0.24% stock
	b.	Repair	103.00	
	c.	Sales and repair	206.00	plus 0.24% stock
	(203.01) SHOES, RETAIL		206.00	plus 0.24% stock
	Plus additional services:			
	a.	Repair/cleaning	103.00	20.00 per employee
(203.1)	SPORTING GOODS COMPANIES		206.00	plus 0.24% stock
	Plus additional services:			
	a.	Gun dealer	103.00	
	b.	Repair, sports equipment	103.00	20.00 per employee
(203.11)	SKATEBOARDING AND/OR BIKING FACILITY		103.00	20.00 per employee
(204)	STONE AND MONUMENTS		206.00	20.00 per employee
(204.1)	STONE, SAND AND GRAVEL, MINING, SALE, DELIVERY		139.00	20.00 per employee
				35.00 per vehicle
(204.2)	SUPERMARKET, MAJOR CHAIN		135.00 per register, plus 0.24% stock	
	(a)	Gas pumps		35.00 per fueling position
(205)	SURVEYORS, self-employed, each owner, firm member or partner		200.00	35.00 per employee
	T			
(206)	TAILOR, EXCLUSIVE, where stock of materials measurements taken and clothing made is carried,		206.00	plus 0.24% stock
(207)	TAILOR, where charge is made for clothing repairs or alterations		103.00	20.00 per employee
(207.1)	TANNING SALON		103.00	20.00 per employee
(207.2)	TATTOO/PIERCING SERVICES		206.00	30.00 per employee
(208)	TAXICAB		206.00	20.00 per employee
(208.3)	TAXIDERMIST		139.00	20.00 per employee
(209)	TELEGRAPH COMPANIES		973.00	
(210)	TELEPHONE ANSWERING AND WAKE-UP SERVICE		103.00	20.00 per employee
(210.1)	TELEPHONE EQUIPMENT SALES, MOBILE OR CELLULAR:			
	a.	Sales	206.00	plus 0.24% inventory
	b.	Installation/repair/maintenance	139.00	20.00 per employee
(210.2)	TELEMARKETING, MAIL ORDER AGENT		139.00	20.00 per employee
(210.3)	TELECOMMUNICATIONS AGENT		206.00	30.00 per employee
	(Including, but not limited to, prepaid phone service and general communications services)			
(211)	TELEVISION, RADIO, STEREO AND SOUND EQUIPMENT SALES		206.00	0.24% inventory
	Plus additional services:			
	a.	Repair (in-house)	103.00	20.00 per employee
				plus 0.24% inventory
	b.	Service technician (on-call) (if same employee does both, count as technician)		35.00 each
	INSTALLATION		100.00	
(211.1)	TELEVISION CABLE COMPANIES, SALES AND INSTALLATION		417.00	20.00 per employee
(212)	TELEVISION STATIONS		695.00	20.00 per employee
(212.1)	TELEVISION RADIO PRODUCTION SERVICES		314.00	20.00 per employee
(213)	THEATERS		139.00	
	a.	Up to 400 seats		3.00 per seat
	b.	Each over 400		2.00 per seat

			Annual Charge Base and Variable	
	Plus additional services:			
	c.	Confectionery sales	77.00	
	d.	Amusement machines		7.00 per machine
(214)	RESERVED			
(215)	THEATRICAL AGENT		139.00	
(216)	TRAILER RENTALS		77.00	7.00 per trailer
(217)	TRAVEL BUREAUS		139.00	35.00 per employee
(218)	TREE SERVICE OR PRUNING		103.00	20.00 per employee
(218.2)	TREE AND SOD FARMING		139.00	20.00 per employee
(219)	TRUCKS/VEHICLES, SALES FROM (peddling food products, confections, tobacco and/or other merchandise) (not prorated)		100.00 per vehicle, per year, or any part thereof	
	U			
(219.5)	UPHOLSTERERS		77.00	20.00 per employee
	Plus additional services:			
	a.	Draperies	77.00	
	b.	Auto interior	77.00	
	c.	Home furniture	77.00	
	V			
(220)	VACUUM CLEANERS, DEALER		206.00	plus 0.24% stock
(221)	VENDING MACHINES		52.00	
		State law reference—Maximum fee on vending machines, A.C.A. § 26-77-301.		
(221.1)	VIDEO RENTAL AND SALES:			
	a.	Rentals	139.00	
	b.	Sales plus varieties (Includes, but is not limited to, blank tapes, confectionery, miscellaneous electronic supplies, etc.)	206.00	plus 0.24% inventory
	c.	If both sales and rental charge for sales	206.00	plus 0.24% inventory
(221.2)	VIDEO PRODUCTIONS		103.00	20.00 per employee
	W			
(222)	WAREHOUSE KEEPERS/MINI STORAGE, public warehouse, dry storage space rented, and storage of all kinds		7.00 per 1,000 sq. ft. for the first 20,000 sq. ft. 6.00 per 1,000 sq. ft. over 20,000 sq. ft.	
	Minimum		135.00	
	Plus additional services:			
	a.	Haulers, delivery companies, commercia garbage/ trash 1. %-ton to 1-ton trucks	I haulers,	35.00 each
		2. 1-ton to 2%-ton trucks		75.00 each
		3. Over 2%-ton trucks		135.00 each
(223)	RESERVED			
(224)	WELDING SHOP		103.00	20.00 per employee
(224.1)	WHOLESALE INVENTORY OPERATIONS		206.00	plus 0.24% stock
	Plus additional services:			
	a.	Rentals, including, but not limited to, household items, communications or small business machines, hospital equipment, sports equipment, etc.	278.00	
	b.	Repair	103.00	
	c.	Manufacturing	139.00	
	d.	Manufacturer's in-transit distribution center operation	278.00	
	e.	Gasoline and oil dealers, wholesale	587.00	plus 75.00 per truck
	f.	Photo developers	103.00	
	g.	Printing, linotype, bookbinding, multilithing	206.00	
	h.	Machine shop	206.00	
	i.	Armature winding	206.00	

			Annual Charge Base and Variable	
(225)	RESERVED			
(226)	WIRED BACKGROUND MUSIC		103.00	20.00 per employee
(227)	WRECKER SERVICE		103.00	35.00 per wrecker
	Plus additional services:			
	a.	Automobile/truck repair	103.00	20.00 per employee
(228)	WORD PROCESSING SERVICES (Each person engaged in the preparation, processing, duplicating or mailing of letters and other related printed matters and printing and/or reproduction of items in connection with above)		103.00	20.00 per employee
(229)	RETAIL INVENTORY OPERATIONS		206.00	plus 0.24% stock
	Plus additional services:			
	a.	Repair (in-house)		20.00 per employee
	b.	Service technician (on-call) (if same employee count as technician)	does both,	35.00 each technician
(230)	Businesses not covered by present classifications may be charged a rate equal to a similar business license or a minimum of two hundred dollars ($200.00) plus stock, if applicable, at the discretion of the city collector.		206.00	30.00 per employee
				0.24% of stock or inventory, if applicable

The term "Plus additional services" means that these amounts are added to the base amount for that business category.

(Code 1961, § 13.01; Ord. No. 15,220, §§ 1—8, 12-2-86; Ord. No. 15,360, §§ 1—3, 10-6-87; Ord. No. 15,393, § 1, 12-9-87; Ord. No. 15,514, §§ 1—5, 7-19-88; Ord. No. 15,741, §§ 3—5, 9-5-89; Ord. No. 15,789, § 1, 12-19-89; Ord. No. 15,913, §§ 5—7, 8-7-90; Ord. No. 15,931, §§ 1, 2, 9-4-90; Ord. No. 16,085, §§ 4—12, 8-20-91; Ord. No. 16,518, § 1, 1-21-92; Ord. No. 16,263, §§ 1, 2, 8-18-92; Ord. No. 16,474, §§ 2—4, 8-17-93; Ord. No. 16,723, §§ 3—5, 8-2-94; Ord. No. 16,969, §§ 9—14, 9-19-95; Ord. No. 18,612, § 1(Att. A), 12-18-01; Ord. No. 18,771, § 3, 11-4-02; Ord. No. 18,841, § 1, 3-18-03; Ord. No. 18,976, § 1, 11-4-03; Ord. No. 19,239, § 2, 11-23-04; Ord. No. 19,391, §§ 1—9, 9-6-05; Ord. No. 19,839, §§ 3, 4, 10-16-07; Ord. No. 20,263, §§ 4—14, 5-4-10; Ord. No. 20,347, § 1, 10-19-10; Ord. No. 21,297, §§ 4—6, 9-6-16; Ord. No. 22,699, § 4(Exh. A), 12-16-25)

Sec. 17-53. Revocation of business license.

In addition to the penalties provided in section 1-9 upon conviction, the court may revoke a licensee's business license if the licensee or their representative made false statements on the license application or used the business premises for nonpermitted business purposes. Such revocation shall be in effect for one (1) year. During that period, no new business license shall be issued to the former licensee, and, the former licensee, their heirs, successors and assigns, shall not operate the same or similar business within the city for a period of one (1) year. Additionally, upon notification by Pulaski County, that licensee is in a delinquent status, licensee will have sixty (60) days to offer proof of payment. At this time, if no proof of payment is forthcoming, the finance director may suspend the business license until such time as licensee provides proof of payment.

(Ord. No. 16,474, § 5, 8-17-93; Ord. No. 17,700, 3-17-98; Ord. No. 18,128, § 2, 11-2-99)

Sec. 17-54. Display of state food establishment permit.

All persons, firms, individuals, or corporations required to obtain a state food establishment permit from the Division of Sanitarian Services of the Department of Health under Ark. Code Ann. § 20-57-204 shall prominently display said permit or an exact facsimile thereof at each address or location of operation.

(Ord. No. 16,600, § 1, 2-15-94)

Editor's note—Ord. No. 16,600, § 1, adopted February 15, 1994, amended the Code by adding new §§ 17-53—17-59. In order to avoid duplicating section numbers, the sections have been renumbered as §§ 17-54—17-60.

Sec. 17-55. Receipt for all food deliveries require permit number.

To verify appropriate licensure, the receipt for all food deliveries by entities required under this article to have a business license shall reflect the State Department of Health permit number.
(Ord. No. 16,600, § 1, 2-15-94; Ord. No. 18,128, § 2, 11-2-99)
Editor's note—See editor's note to § 17-54.

Sec. 17-56. Food establishments to maintain current address and name of manager with city collector.

Each food establishment address or location of operation shall maintain a current address of each such location and the name of the manager of each location with the city collector.
(Ord. No. 16,600, § 1, 2-15-94)
Editor's note—See editor's note to § 17-54.

Sec. 17-57. Display of city business license.

Each food establishment address and kitchen location shall obtain and prominently display a city business license or an exact facsimile thereof.
(Ord. No. 16,600, § 1, 2-15-94; Ord. No. 18,128, § 2, 11-2-99)
Editor's note—See editor's note to § 17-54.

Sec. 17-58. City business license required for establishments required to obtain state permits.

(a) All nonprofit and for-profit food service establishments, including, but not limited to, restaurants, mobile canteens, and caterers now or hereafter required to obtain a state department of health food establishment permit shall also be required to obtain a city business license.

(b) The required state permit must be presented to the treasury manager before the business license can be issued.

(c) The fee for the business license shall be waived for all nonprofit food service establishments with the exception of nonprofit corporations that operate as private clubs and have acquired a permit from the state alcoholic beverage control board.

(d) Any nonprofit corporation that operates as a private club and has acquired a permit from the state alcoholic beverage control board shall be responsible for payment of the business license as set forth in this chapter.
(Ord. No. 16,600, § 1, 2-15-94; Ord. No. 18,128, § 2, 11-2-99; Ord. No. 20,122, § 1, 6-16-09)
Editor's note—See editor's note to § 17-54.

Sec. 17-59. Revocation of state permit to constitute revocation of city business license.

The revocation of the State Department of Health food establishment permit shall constitute automatic revocation of the city business license. The business license shall be reinstated only if the State Department of Health permit is reissued.
(Ord. No. 16,600, § 1, 2-15-94; Ord. No. 18,128, § 2, 11-2-99)
Editor's note—See editor's note to § 17-54.

Sec. 17-60. Presentation of license or permit.

Failure to present a state food establishment permit or a city business license when requested by a city code enforcement officer upon request each shall be deemed a violation by the owner and manager and shall be punished as provided in section 1-9. In addition thereto, failure to present a state food establishment permit or a city business license when requested by a city code enforcement officer upon request shall be deemed a failure to be properly licensed as a food service establishment. Under those circumstances, the city code enforcement officer is hereby granted the authority to seize all food at such food establishment address or kitchen location of operation until such time as the proper state food establishment permit and city business license has been produced for that location.
(Ord. No. 16,600, § 1, 2-15-94; Ord. No. 18,128, § 2, 11-2-99)
Editor's note—See editor's note to § 17-54.

Sec. 17-61. License to sell tobacco products.

(a) All businesses that sell tobacco products directly to individuals shall obtain a special city license to do so. This license shall only be available to businesses that limit the sale of these products to persons eighteen (18) years of age or older. No business shall be permitted to sell any tobacco products within the city if it does not possess a current and valid license issued pursuant to this section.

(b) *Tobacco product* means any product that contains tobacco including, but not limited to, pipe tobacco, cigars, cigarettes, snuff and chewing tobacco.

(c) *Point of sale* means any area, including the area surrounding a cash register, which serves as a location for the public to purchase tobacco products directly from store service personnel.
(Ord. No. 17,514, § 1, 7-1-97)

Sec. 17-62. License fee for sale of tobacco products.

Any person operating a business that sells tobacco products to adults, whether exclusively or in addition to another business, shall pay one hundred dollars ($100.00) as a business license fee for the sale of such products.
(Ord. No. 17,514, § 2, 7-1-97; Ord. No. 18,128, § 2, 11-2-99)

Sec. 17-63. Penalties and suspension of license to sell tobacco products.

(a) No business shall be granted a license to sell tobacco products to adults if that business permits any person or employee to sell any tobacco products to any person under the age of eighteen (18).

(b) In addition to any penalties that this code permits to be imposed for the offense of selling tobacco products to a minor, any business that is found to violate this section shall be subject to a civil penalty as follows:

(1) A fine of one hundred dollars ($100.00) for a first violation within the previous twenty-four (24) months.

(2) A fine of up to two hundred dollars ($200.00) for a second violation within the previous twenty-four (24) months;

(3) A fine of up to five hundred dollars ($500.00) for a third or subsequent violation within the previous twenty-four months.

(4) Suspension of the city license to sell tobacco products to adults:

a. For a period not to exceed one (1) week for a first violation;

b. For a period not to exceed one (1) month for a second violation within the previous twenty-four (24) months;

c. For a period not to exceed three (3) months for a third violation within the previous twenty-four (24) months;

d. For a period of one year for a fourth violation within the previous twenty four months.

(c) [Reserved.]

(d) Any business that is subject to suspension of a city license to sell tobacco products to adults shall be able to avoid suspension for a first and second offense provided:

(1) The business demonstrates that it has a comprehensive training program available to its personnel about federal, state and local regulations and ordinances governing the sale of tobacco products; and

(2) The business demonstrates that it has enforced its internal rules prohibiting the sale of tobacco products to minors; and

(3) The business demonstrates by a preponderance of the evidence that the particular action for which suspension is a possibility is the result of intentional employee misconduct intended to damage the business, the owner, or a supervisor employed by the business.

(e) *Suspension.*

(1) A city official, upon obtaining evidence that an entity has violated its license to sell tobacco products to an adult, shall send by certified mail, return receipt requested, or shall hand deliver, a notice of suspension. Upon conclusion of the hearing set forth from this subsection, a city police officer, or person authorized by the city manager to enforce city code provisions, shall be permitted to seize a business's license to sell tobacco products to adults if it has been concluded that suspension is appropriate.

(2) When a suspension occurs because of an action viewed by city police officer, or person authorized by the city manager to enforce city code provisions, the entity shall be granted a hearing before the city manager, or the manager's designee, within forty-eight (48) hours or, if city offices are closed for a weekend or holiday within that time period, on the first city business day after a holiday or weekend. No suspension shall occur under this section until a hearing before the city manager, or the manager's designee.

(3) At this hearing, the city officer shall produce any evidence as to why the license was seized. The representative of the licensed entity shall produce any evidence in defense. Upon hearing all the evidence, the city manager, or manager's designee, shall determine if the city has shown by a preponderance of the evidence that the entity violated its license to sell tobacco products to adults. If so, the license shall be suspended or revoked for the appropriate period as set forth in section 17-63(b). If the city fails to meet its burden of proof on the merits, the license shall be returned. The city hearing officer, to assure that a decision is made upon the merits of a complaint, may reschedule a hearing one time because of the unavailability of a witness.

(4) In addition to the suspension of a license, unless it is determined that the business is not subject to a suspension for the reasons set forth in section 17-63, a sign shall be placed in a conspicuous place within the entity which reads, "NOTICE: THIS STORE HAS VIOLATED LITTLE ROCK ORDINANCES PROHIBITING THE SALE OF TOBACCO PRODUCTS TO MINORS."

(Ord. No. 17,514, § 3, 7-1-97)

Secs. 17-64—17-75. Reserved.

ARTICLE III. AMUSEMENTS

Sec. 17-76. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 17-77. Carnivals, merry-go-rounds, etc.—Separate licenses required.

No carnival, ferris wheel, roller coaster, merry-go-round, loop-o-plane, or any other similar amusement device or exhibition, other than theaters and motion picture shows exclusively operated as such and separately licensed, and carnivals or amusement devices operated in city public parks, shall be operated within this city unless and until a license therefor has been obtained.
(Code 1961, §§ 6-2, 6-5)

Secs. 17-78—17-95. Reserved.

ARTICLE IV. HOTEL AND RESTAURANT TAX*

Sec. 17-96. Levied.

(a) There is hereby levied a tax of four (4) percent upon the gross receipts or gross proceeds derived and received from the renting, leasing or otherwise furnishing of hotel, motel, house, cabin,

*__State law reference—__Hotel, restaurant, etc., tax, A.C.A. § 26-75-601 et seq.

bed and breakfast, campground, condominium, or apartment accommodations, or other similar rental accommodations for sleeping, meeting, or party or banquet use for profit in the city, provided that such levy shall not apply to the rental or leasing of such accommodations for a period of thirty (30) days or more; and

(b) There is hereby levied a tax of two (2) percent upon the gross receipts or gross proceeds received by:

(1) Restaurants,

(2) Cafes,

(3) Cafeterias,

(4) Delicatessens,

(5) Drive-in restaurants,

(6) Caterers,

(7) Carry-out or delivery restaurants,

(8) Concessions stands,

(9) Convenience stores,

(10) Grocery store-restaurants,

(11) Mobile retail food establishments,

(12) Bars,

(13) Taverns,

(14) Private clubs,

(15) Private chefs,

(16) Private residences, and

(17) Any platform, online or offline, which (i) advertises and offers to a purchaser prepared food and beverage and (ii) accepts payment from the purchaser for such prepared food and beverage to be furnished to the purchaser or the purchaser's designated recipient engaged in the city in the selling of prepared foods and beverages for on-premises or off-premises consumption, provided that such levy shall not apply to such gross receipts or gross proceeds of organizations qualified under 26 U.S.C. § 501(c)(3). For purposes of this article, "prepared foods and beverage" means:

a. Food sold in a heated state or heated by or on behalf of the seller;

b. Two (2) or more food ingredients mixed or combined by or on behalf of the seller for sale as a single item; or

c. Food sold with an eating utensil provided by or on behalf of the seller, including a plate, knife, fork, spoon, glass, cup, napkin, or straw. However, a "plate" does not include a container or packaging used to transport the food.

"Food" and "food ingredients" shall mean that defined in the Arkansas Gross Receipts Act, A.C.A. § 26-52-101 et seq., as amended.

(Code 1961, § 2-75(a); Ord. No. 18,992, § 1, 11-25-03; Ord. No. 21,551, § 1, 2-20-18)

Sec. 17-97. Title, purpose.

The tax levied by this article shall be paid by the person, firm, corporation, partnership, limited liability company, venture, association, trust or estate (or other such business entity of whatever nature) liable therefor. Such taxpayer shall remit to the advertising and promotion commission on or before the 20th day of each month all collections of the tax for the preceding month, as directed by the commission and accompanied by such reports and forms as are prescribed by the commission from time to time.

(Ord. No. 18,529, § 1(1), 8-7-01; Ord. No. 18,992, § 2, 11-25-03; Ord. No. 21,551, § 2, 2-20-18)

Sec. 17-98. Application of ordinance and construction with other laws.

The rules, regulations, forms of notice, assessments, procedures and the enforcement and collection of the tax under the Arkansas Gross Receipts Act of 1941, A.C.A. § 26-52-101 et. seq., and the Arkansas Tax Procedure Act, A.C.A. § 26-18-101 et seq., so far as is practicable, as well as the ordinances of the city including Ordinance No. 18,529 and the rules and regula-

tions adopted by the commission from time to time, shall be applicable with respect to the enforcement and collection of the tax.
(Ord. No. 18,529, § 1(2), 8-7-01; Ord. No. 18,992, § 3, 11-25-03)

Sec. 17-98.1. Definitions.

The following words and phrases, except where the context clearly indicates the application of a different meaning, when used in this article shall have the following meanings:

A&P tax means the gross receipts tax levied by Ordinance Nos. 12,353, 13,527, 18,992, 21,140, 21,141, as amended from time to time.

Assessment means a tax is assessed when it is recorded as the liability of a taxpayer on the commission's records. The assessment becomes a first assessment following the decision of the commission or a hearing officer, if the assessment is protested.

Business entity means a corporation, association, partnership, joint venture, limited liability company, limited liability partnership, trust or other legal business entity.

City means the City of Little Rock, Arkansas.

Commission means the City Advertising and Promotion Commission of Little Rock, Arkansas, and any agent or representative designated by the commission to perform any function hereunder.

Delinquency date means the A&P tax is delinquent and subject to penalty on the first day of the month following the month it was due.

Due date means the A&P tax is due no later than the 20th calendar day of the month following the month the tax is imposed on gross receipts.

Person means any natural person, firm, corporation or other business entity.

Taxpayer means any person liable to remit the A&P tax.
(Ord. No. 18,529, § 1(3), 8-7-01; Ord. No. 21,551, § 3, 2-20-18)

Sec. 17-98.2. Administration and regulations.

The administration of sections 17-97—17-98.23 is vested in the commission and the commission shall promulgate rules and regulations and prescribe all forms as are necessary or required for the enforcement and collection of the A&P Tax.
(Ord. No. 18,529, § 1(4), 8-7-01)

Sec. 17-98.3. Permits.

(a) It shall be unlawful for any person subject to the A&P Tax to transact business within the city prior to the issuance and receipt of an A&P Tax permit from the commission.

(b) A separate A&P Tax permit must be obtained from the commission for each location whereat the person conducts a business which is subject to the A&P Tax.

(c) An A&P Tax permit shall have no stated term.
(Ord. No. 18,529, § 1(5), 8-7-01)

Sec. 17-98.4. Application for permit.

Any person subject to the A&P Tax transacting business in the city shall file with the commission an application for an A&P Tax permit to conduct that business, the form and contents of which application shall be as prescribed by the commission from time to time.
(Ord. No. 18,529, § 1(6), 8-7-01)

Sec. 17-98.5. Permits not assignable, display required and expiration.

(a) The A&P Tax permit shall not be assignable and shall be valid only for the person in whose name it is issued and for the location thereon designated.

(b) The A&P Tax permit shall at all times be conspicuously displayed at the location thereon designated.

(c) The A&P Tax permit shall expire at the time of cessation of the business of the person at the location designated thereon.
(Ord. No. 18,529, § 1(7), 8-7-01)

Sec. 17-98.6. Discontinuance of business—Unpaid taxes.

(1) Any person operating under an A&P Tax permit, upon discontinuance of the business at the location designated thereon, shall return the A&P Tax permit to the commission for cancellation together with remittance of any unpaid and accrued A&P Taxes.

(2) Failure to surrender the A&P Tax permit and pay any and all accrued A&P Taxes shall be sufficient cause for the commission, through its designated representative, to refuse the issuance of any A&P Tax Permit in the future to the person.

(3) In the case of the sale of any business which is subject to the A&P Tax, the A&P Tax shall be deemed to be due and payable at the time of the sale of fixtures and equipment incident to business and shall constitute a lien against the said fixtures and equipment in the hands of the purchaser of the business until all A&P Taxes have been paid.
(Ord. No. 18,529, § 1(8), 8-7-01)

Sec. 17-98.7. Revocation or suspension—Renewal.

(a) Whenever a person to whom an A&P Tax permit has been issued fails to comply with any provision of sections 17-97—17-98.23, including any rule or regulation prescribed by the commission from time to time, the commission, through its designated representative, shall give notice to the person of an intention to revoke the A&P [Tax] permit.

(b) (1) The person may, within ten (10) days after receipt of the notice of intent to revoke the A&P Tax permit, apply to the commission for a hearing.

(2) The hearing shall be conducted at a time and place to be designated by the commission before such person as is designated by the commission to conduct such hearing, and the person requesting the hearing shall be entitled to introduce testimony and be represented by counsel, and the designated representative of the commission shall determine at the hearing whether the person's A&P Tax permit should be revoked.

(3) Failure of the person to appear at the hearing shall be grounds for the commission, acting through its designated representative, to revoke the taxpayer's A&P Tax permit.

(c) The person shall be entitled, within thirty (30) days from the date of the revocation of the A&P Tax permit, to appeal to the circuit court of Pulaski County, Arkansas, where the action shall be tried de novo.

(d) An appeal shall lie from the circuit court to the Supreme Court of Arkansas as in other cases provided by law.

(e) Any revoked or suspended permit may be renewed upon the filing of proper returns and the payment of all A&P taxes due or removal of any other cause of revocation or suspension.
(Ord. No. 18,529, § 1(9), 8-7-01)

Sec. 17-98.8. Preparation of returns—Payment of A&P Tax.

(a) The A&P Tax shall be due and payable as of the first day of each calendar month by the person liable for the payment of the A&P Tax (taxpayer) and shall be delinquent if not paid on or before the first day of the next calendar month.

(b) (1) It shall be the duty of the taxpayer on or before the twentieth day of each calendar month to deliver to the commission, upon forms prescribed and furnished by the commission, returns under oath showing the total combined gross receipts which are subject to the A&P Tax for the preceding calendar month and the amount of tax due. The tax due shall be remitted with the return.

(2) The returns shall contain such further information as the commission may require and, once the taxpayer has become liable for the payment of the A&P Tax, the taxpayer must continue to file a

return, even though no tax may be due, until such time has the taxpayer surrenders the A&P Tax permit.

(c) If not paid on or before the twentieth day of each calendar month, the full amount of the A&P Tax shall be due from that date; provided, however, no penalty for delinquency shall be assessed if payment thereof is made on or before the first day of the calendar month next following.
(Ord. No. 18,529, § 1(10), 8-7-01)

Sec. 17-98.9. Discount for prompt payment.

(a) If the return is delivered on or before the twentieth day of the calendar month, the taxpayer may remit therewith to the commission ninety-eight (98) percent of the A&P Tax due on or before the twentieth of that calendar month. A return is "delivered" on the date it is postmarked if it is delivered by U.S. Postal Service.

(b) Failure of the taxpayer to remit the A&P Tax on or before the twentieth of each calendar month shall cause the taxpayer to forfeit his claim to the discount and the taxpayer must remit to the commission one hundred (100) percent of the amount of the A&P Tax due, plus any penalty and interest accrued thereon.
(Ord. No. 18,529, § 1(11), 8-7-01)

Sec. 17-98.10. Additional penalties and tax.

If a taxpayer shall fail to comply with certain provisions of sections 17-97—17-98.23, then the following penalties and additions to tax shall be applicable:

(1) In the case of a taxpayer's failure to file the A&P Tax return and pay the tax due on or before the date prescribed, determined with regard to any extension of time for filing thereof, unless it is shown that the failure is due to reasonable cause and not to willful neglect, there shall be added to the amount required to be shown as tax on the A&P Tax return five (5) percent of the amount of the A&P Tax if the failure is not more than one (1) month, with an additional five (5) percent for each additional month or fraction thereof during which the failure continues, not to exceed thirty-five (35) percent in the aggregate;

(2) In addition to any penalty assessed hereunder, simple interest on any unpaid A&P Tax shall be assessed at the rate of ten (10) percent per annum from the delinquency date.
(Ord. No. 18,529, § 1(12), 8-7-01)

Sec. 17-98.11. Examinations and investigations.

(a) In the administration of sections 17-97—17-98.23, the commission or its designated representatives, for the purpose of determining the accuracy of a return or fixing any liability hereunder, may make an examination or investigation of the place of business, the tangible personal property, equipment, and facilities, and the books, records, papers, vouchers, accounts, and documents of any taxpayer or other person. Every taxpayer or other person and his agents and employees shall exhibit to the commission its designated representative these places of business and items and facilitate any examination or investigation.

(b) No taxpayer shall be subjected to unnecessary examinations or investigations, and only one (1) inspection of a taxpayer's books of account may be made for each taxable year unless the taxpayer requests otherwise or unless the commission or the executive director, after investigation, notifies the taxpayer in writing that an additional inspection is necessary.

(c) (1) When conducting an investigation or an audit of any taxpayer, the commission or its designated representatives may, in its discretion, examine the records and files of any person, except where privileged by law, any other business, institution, financial institution, the records of any state agency, agency of the United States Government, or agency of any other state where permitted by agreement or reciprocity.

(2) The commission or its designated representative may compel production of

these records by summons. A summons may be served directly by the commission or its designated representatives.

(d) In the administration of sections 17-97—17-98.23, the commission, the executive director or his designated representatives may:

(1) Administer oaths, conduct hearings, and compel by summons the attendance of witnesses, testimony, and the production of any books, records, papers, or other data of any person or taxpayer; or

(2) a. Examine under oath any person regarding the business of any taxpayer concerning any matter incident to the administration of sections 17-97—17-98.23.

b. The fees of witnesses required by the commission, the executive director or his designated representatives to attend any hearing shall be the same as those allowed to the witnesses appearing before circuit courts of this state. The fees shall be paid in the manner provided for the payment of other expenses incident to the administration hereof.

(e) (1) The investigation may extend to any person that the commission or its designated representative determines has access to information which may be relevant to the examination or investigation.

(2) When any summons requiring the production of records as described in subsection (c) of this section is served on a third-party record keeper, written notice of the summons shall be mailed to the taxpayer that his records are being summoned, at least fourteen (14) days prior to the date fixed in the summons as the day for the examination of the records.

(3) Notice to the taxpayer required by this section is sufficient if it is mailed by certified mail to the last address on record with the commission.

(f) When the commission or its designated representatives have the power to issue a summons for its own investigative or auditing purposes, then the commission shall honor any reasonable request by any taxpayer to issue a summons on the taxpayer's behalf.

(g) (1) The commission or the taxpayer may apply to a court of competent jurisdiction in Pulaski County, Arkansas, for an order compelling the production of the summoned records.

(2) Failure to comply with the order of the court for the production of records may be punished by the court as for contempt.

(h) (1) The cost of producing records of a third party required by a summons shall be borne by the taxpayer if he requests the summons to be issued.

(2) If the commission or its designated representatives initiate the summons for third-party records, the commission shall bear the reasonable cost of producing the records. The commission or its designated representatives may later assess the cost against any delinquent or deficient taxpayer as determined by the records.

(Ord. No. 18,529, § 1(13), 8-7-01)

Sec. 17-98.12. Time limitations for assessments, collection, refunds, and prosecution.

(a) Except as otherwise provided in sections 17-97—17-98.23, no assessment of the A&P Tax shall be made after the expiration of three (3) years from the date the return was required to be filed or the date the return was filed, whichever period expires later. The commission shall not begin court proceedings after the expiration of the three-year period unless there has been a previous assessment for the collection of the tax.

(b) Upon written agreement of the commission and the taxpayer, the time within which the commission may make a final assessment, as provided herein, may be extended to a date mutually agreed upon in the written agreement.

(c) Where, before the expiration of the time prescribed for the assessment of the tax or of extensions thereof, both the commission and the taxpayer have consented in writing to an assessment after that time, then the A&P Tax may be assessed at any time prior to the expiration of time agreed upon.

(d) In the case of a fraudulent return or failure to file a report or return required hereunder, the commission may compute, determine, and assess the estimated amount of A&P Tax due from any information in its possession or may begin an action in court for the collection of the tax without assessment, at any time.

(e) Whenever a taxpayer requests an extension of time for filing any return required hereunder, the limitation of time for assessing any tax shall be extended for a like period.

(f) Where the assessment of the A&P Tax has been made within the period of limitation properly applicable thereto, the A&P Tax may be collected by levy or proceeding in court, but only if the levy is made or the proceeding is begun within ten (10) years after the date of the assessment of the tax.

(g) No person shall be prosecuted, tried, or punished for any of the various criminal offenses arising under the provisions of sections 17-97—17-98.23, unless the indictment of the taxpayer is instituted within six (6) years after the commission of the offense.
(Ord. No. 18,529, § 1(14), 8-7-01)

Sec. 17-98.13. Notice requirements.

(a) (1) The commission shall give a taxpayer notice of any assessment, demand, decision, or hearing before the commission or its designated representative which directly involves that taxpayer.

(2) All notices required to be given by the commission to a taxpayer shall be either served by personal service or sent by mail to the taxpayer's last address on record with the commission. If this mail is returned unclaimed or refused, then proper notice shall have been served and given, and the commission may take any action permitted by sections 17-97—17-98.23, or otherwise by law.

(3) All notices of final assessment hereunder shall be sent by certified mail, return receipt requested.

(b) The taxpayer, when giving notice to the commission, shall give notice either by mail or by personal service on the commission. The notice the taxpayer gives shall be effective when postmarked or, in case of personal service, when so served.

(c) The commission and any taxpayer may, by written agreement, provide for any other reasonable means of giving notice.

(d) All notices shall be in writing.
(Ord. No. 18,529, § 1(15), 8-7-01)

Sec. 17-98.14. Assessment and collection of taxes generally.

(a) (1) The commission or its designated representatives are authorized and required to make the inquiries, determinations, and assessments of the A&P Tax, including interest, additions to taxes, and assessable penalties, imposed hereby.

(2) The assessment shall be made by recording the liability of the taxpayer in the offices of the commission in accordance with rules or regulations prescribed by the commission.

(3) Upon request of the taxpayer, the commission shall furnish the taxpayer a copy of the record of the assessment.

(b) (1) The commission shall collect all A&P Taxes imposed by law.

(2) As soon as practicable after the making of assessment of the A&P Tax, the commission shall give notice to each person liable for the unpaid tax, stating the amount and demanding payment within ten (10) days.

(3) Upon receipt of notice and demand from the commission, the person liable for the tax shall pay the stated amount includ-

ing any interest, additions to tax, and assessable penalties at the place and time stated in the notice and demand.

(Ord. No. 18,529, § 1(16), 8-7-01)

Sec. 17-98.15. Proposed assessments.

(a) (1) If any taxpayer fails to file any return as required hereunder, the commission, from any information in its possession or obtainable by it, may determine the correct amount of tax for the taxable period. If a return has been filed, the commission or its designated representatives shall examine the return and make any audit or investigation that is considered necessary.

(2) When no return has been filed and the commission determines that there is an A&P Tax due for the taxable period or when a return has been filed and the commission determines that the A&P Tax disclosed by the return is less than the tax disclosed by its examination, the commission shall propose the assessment of additional tax plus penalties, as the case may be, and shall give notice of the proposed assessment to the taxpayer. The notice shall explain the basis for the proposed assessment and shall state that a final assessment, as provided for herein, will be made if the taxpayer does not protest such proposed assessment as provided hereby. The taxpayer does not have to protest the proposed assessment to later be entitled to exercise the right to seek a judicial review of the assessment.

(b) Any demand for additional payment of the A&P Tax which is made as the result of a verification of a mathematical error on the return shall not be deemed to be a proposed assessment under the provisions of this section and shall not be subject to the hearing or appeal provisions of this section.

(Ord. No. 18,529, § 1(17), 8-7-01)

Sec. 17-98.16. Taxpayer relief.

(a) Any taxpayer who wishes to seek administrative relief from any proposed assessment of taxes or proposed notice of disallowance of a claim for refund by the commission shall follow the procedure provided by this section.

(b) (1) A taxpayer may at his option either request the commission to consider his request for relief solely upon written documents furnished by the taxpayer or upon the written documents and any evidence produced by the taxpayer at a hearing.

(2) A taxpayer who requests the commission to render its decision based on written documents is not entitled by law to any other administrative hearing prior to the commission's rendering of its decision and, if necessary, the issuing of a final assessment and demand for payment or issuing of a certificate of indebtedness.

(c) Within thirty (30) days after service of notice of the proposed assessment, the taxpayer may file with the commission a written protest under oath, signed by himself or his authorized agent, setting forth the taxpayer's reasons for opposing the proposed assessment.

(d) The commission may, in its discretion, extend the time for filing a protest for any period of time not to exceed an additional ninety-day period.

(Ord. No. 18,529, § 1(18), 8-7-01)

Sec. 17-98.17. Hearing on proposed assessments.

(a) (1) The executive director or his designee shall serve as hearing officer to review all written protests submitted by taxpayers, hold all hearings, and make written findings as to the applicability of the proposed assessment.

(2) Decisions of the hearing officer shall be final unless revised by the commission.

(3) The hearing on written and oral protests and determinations made by the hearing officer shall not be subject to the provisions of the Arkansas Administrative Procedure Act, § 25-15-201 et seq.

(b) The actual hearing on the written protest shall be held in the commission's offices.

(c) (1) The hearing officer shall set the time and place for hearing on the written protest and shall give the taxpayer reasonable notice thereof.

(2) At the hearing, the taxpayer may be represented by an authorized representative and may present evidence in support of his position.

(3) After the hearing, the hearing officer shall render his decision in writing and shall serve copies upon both the taxpayer and the commission.

(4) a. If the proposed assessment is sustained, in whole or part, the taxpayer may request in writing, within twenty (20) days of the mailing of the decision, that the commission revise the decision of the hearing officer.

b. If the commission refuses to make a revision or if the taxpayer does not make a request for revision, then a final assessment shall be made upon the final determination of the hearing officer or the commission.

c. A taxpayer may seek relief from the final decision of the hearing officer or the commission on a final assessment of a tax deficiency by following the procedure set forth in this section.

d. 1. In addition to the hearing procedures set out in subsections a.—c. of this subsection, the commission or the hearing officer may hold administrative hearings by telephone, video conference, or other electronic means if the commission or the hearing officer determines that conducting the hearing in such a manner:

(i) Is in the best interest of the taxpayer and the commission;

(ii) Is agreed to by both parties;

(iii) Is not fiscally unsound or administratively burdensome; and

(iv) Adequately protects the confidentiality of the taxpayer's information.

2. The commission is authorized to contract with third parties for all services necessary to conduct hearings by telephone, video, or other electronic means.

3. Any person who enters into a contract with the commission to provide services necessary to conduct hearings by telephone, video, or other electronic means shall be subject to the laws providing for the confidentiality of taxpayer records.

(Ord. No. 18,529, § 1(19), 8-7-01)

Sec. 17-98.18. Judicial relief.

(a) Within thirty (30) days after the issuance and service on the taxpayer of the notice and demand for payment of a deficiency in tax established by (1) an audit determination that is not protested by the taxpayer, or (2) a final determination of the hearing officer or the commission, a taxpayer may seek judicial relief from the final determination by either:

(1) Within thirty (30) days of the date of the final assessment, paying the entire amount of the A&P Tax due, including any interest or penalties, for any taxable period or periods covered by the final assessment and filing suit to recover that amount within one (1) year of the date of payment. The commission may proceed with collection activities, including the filing of a certificate of indebtedness as authorized hereunder, within thirty (30) days of the issuance of the final assessment for any assessed but unpaid A&P Taxes, penalties, or interest owed by the taxpayer for other taxable periods covered by the final assessment, while the suit for refund is being pursued by the taxpayer for other taxable periods covered by the final assessment; or

(2) a. Within thirty (30) days of the issuance and service on the taxpayer of the notice and demand for payment, filing with the commission a bond in double the amount of the tax deficiency due and by filing suit within thirty (30) days thereafter to stay the effect of the commission's determination.

b. The bond shall be subject to the condition that the taxpayer shall file suit within thirty (30) days after filing the bond, shall faithfully and diligently prosecute the suit to a final determination, and shall pay any deficiency found by the court to be due and any court cost assessed against him.

c. A taxpayer's failure to file suit, diligently prosecute the suit, or pay any tax deficiency and court costs, as required by subparagraph a. of this subsection, shall result in the forfeiture of the bond in the amount of the assessment and assessed court costs.

(b) Jurisdiction for a suit to contest a determination of the commission under this section shall be in a circuit court in Pulaski County, where the matter shall be tried de novo.

(c) The methods provided in this section shall be the sole alternative methods for seeking relief from a written decision of the commission or the hearing officer establishing a deficiency in the A&P Tax. No injunction shall issue to stay proceedings for assessment or collection of any A&P Taxes.

(d) In any court proceeding under this section, the prevailing party may be awarded a judgment for court costs.
(Ord. No. 18,529, § 1(20), 8-7-01)

Sec. 17-98.19. Issuance of certificates of indebtedness and execution.

(a) (1) [Indebtedness.]

a. If a taxpayer does not timely and properly pursue his remedies seeking relief from a decision of the commission or hearing officer and a final assessment is made against the taxpayer, or if the taxpayer fails to pay the deficiency assessed upon notice and demand, then the commission through its authorized representatives shall, as soon as practicable thereafter, issue to the circuit clerk of any county of the state in which the taxpayer's business is located a certificate of indebtedness certifying that the person named therein is indebted to the commission for the amount of the tax established by the commission as due.

b. If a taxpayer has a delinquent A&P Tax liability to the commission of less than one thousand dollars ($1,000.00), the commission or its hearing officer may enter into an agreement with the taxpayer to allow the taxpayer to pay the delinquency in installments. The commission or its hearing officer may choose not to issue a certificate of indebtedness during the period of the installment agreement if it determines that it is in the best interest of the commission.

(2) The circuit clerk shall enter immediately upon the circuit court judgment docket:

a. The name of the delinquent taxpayer;

b. The amount certified as being due;

c. The name of the tax; and

d. The date of entry upon the judgment docket.

(3) a. The entry of the certificate of indebtedness shall have the same force and effect as the entry of a judgment rendered by the circuit court. This entry shall constitute the commission's lien upon the title of any real and personal property of

the taxpayer in the county where the certificate of indebtedness is recorded.

b. This lien is in addition to any other lien existing in favor of the commission to secure payment of taxes, applicable interest, penalties, and costs. The lien is superior to other liens of any type or character attaching to the property after the date of entry of the certificate of indebtedness on the judgment docket. This lien is superior to all claims of unsecured creditors.

c. The certificate of indebtedness authorized by this subsection shall continue in force for ten (10) years from the date of recording and shall automatically expire after the ten-year period has run. Actions on the lien on the certificate of indebtedness shall be commenced within ten (10) years after the date of recording of the certificate, and not afterward.

(b) (1) After entry of the certificate, the circuit clerk shall issue a writ of execution directed to the commission, authorizing the commission to levy upon and against all real and personal property of the taxpayer.

(2) The commission shall have all remedies and may take all proceedings for the collection of the tax which may be taken for the recovery of a judgment at law.

(3) The writ shall be issued, served, and executed in the same manner as provided for in the issuance and service of executions rendered by the circuit courts of this state, except the commission shall act in the place of the county sheriffs.

(c) (1) Nothing in this chapter shall preclude the commission from resorting to any other means provided by law for collecting delinquent taxes.

(2) The issuance of a certificate of indebtedness, entry by the clerk, and levy of execution as provided in this section shall not constitute an election of remedies with respect to the collection of the tax.

(3) The taxes, fees, interest, and penalties imposed or levied hereby may be collected in the same way as a personal debt of the taxpayer.

(4) The commission may sue to the same effect and extent as for the enforcement of a right of action for debt.

(5) All provisional remedies available in these actions are available to the commission in the enforcement of the payment of the A&P Tax.

(d) (1) In addition to the remedies provided in subsections (b) and (c) of this section, the commission may direct the circuit clerk to issue a writ of execution directed to the sheriff of any county authorizing the sheriff to levy upon and against all real and personal property of the taxpayer. The writ shall be issued, served, and executed in the same manner as provided for in the issuance and service of executions rendered by the circuit courts of this state.

(2) The circuit clerks and sheriffs shall be entitled to receive the same fees provided by law in these matters. These fees shall be collected from the taxpayer by either the commission or the sheriff in addition to the tax, penalties, and interest included in the certificate of indebtedness. If the sheriff is unable, after diligent effort, to collect the tax, interest, penalties, and costs, the commission may pay such fees as are properly shown to be due to the clerk and sheriff.

(e) The commission may contract with persons inside or outside the state to help the commission collect delinquencies of resident or nonresident taxpayers.
(Ord. No. 18,529, § 1(21), 8-7-01)

Sec. 17-98.20. Injunction proceedings.

When a return required hereunder has not been filed or does not furnish all the information

required by the commission or when the A&P Taxes imposed by law have not been paid or when any required license or permit has not been secured, the commission may institute any necessary action or proceeding in a court of competent jurisdiction in Pulaski County to enjoin the person or taxpayer from continuing operations until the report or return has been filed, required licenses or permits secured, or taxes paid as required. The injunction shall be issued without a bond being required from the commission.
(Ord. No. 18,529, § 1(22), 8-7-01)

Sec. 17-98.21. Settlement or compromise of liability controversies.

(a) The commission may enter into an agreement to compound, settle, or compromise any controversy relating to the A&P Tax when:

(1) The controversy is over the amount of tax due; or

(2) The inability to pay results from the insolvency of the taxpayer.

(b) The commission may waive or remit the interest or penalty, or any portion thereof, ordinarily accruing because of a taxpayer's failure to pay the A&P Tax within the statutory period allowed for its payment:

(1) If the taxpayer's failure to pay the tax is satisfactorily explained to the commission; or

(2) If the failure results from a mistake by the taxpayer of either the law or the facts subjecting him to such tax; or

(3) If the inability to pay the interest or penalty results from the insolvency or bankruptcy of the taxpayer.

(c) In settling or compromising any controversy relating to the liability of a person for the A&P Tax for any taxable period, the commission is authorized to enter into a written closing agreement concerning the liability. When the closing agreement is signed by the commission, it shall be final and conclusive, and except upon a showing of fraud or misrepresentation of a material fact, no additional assessment or collection shall be made by the commission, and the taxpayer shall not institute any judicial proceeding to recover such liabilities as agreed to in the closing agreement.

(d) The commission shall promulgate rules and regulations establishing guidelines for determining whether a proposed offer in compromise is adequate and is acceptable to resolve a tax dispute.
(Ord. No. 18,529, § 1(23), 8-7-01)

Sec. 17-98.22. Release of property from lien.

(a) Upon written application by any person, the commission may release any property from the lien imposed by any assessment, order, judgment, or certificate of indebtedness obtained by or from any levy made by it if:

(1) Either full payment is made to the commission of the sum it considers adequate consideration for the release; or

(2) Adequate security deposit is made with the commission to secure the payment of the debt evidenced by the lien.

(b) When the commission determines that its assessment, certificate of indebtedness, or judgment is clouding the title of property because of an error in the description of properties or similarity in names, the commission may issue a release without the payment of any consideration.

(c) The commission's release shall be given under its seal and filed in the office of the circuit clerk in the county in which the lien is filed, or it shall be recorded in any office in which conveyances of real estate may be recorded.
(Ord. No. 18,529, § 1(24), 8-7-01)

Sec. 17-98.23. Criminal penalties.

Sanctions for any taxpayer who willfully attempts to evade or defeat the payment of the A&P Tax, or who assists a taxpayer to evade or defeat the payment, or otherwise fails to file a report, fails to pay the tax, or makes a false or fraudulent report, return, statement, claim, application or other instrument required by the commission in connection with the A&P Tax, or knowingly makes a false answer to any question

from the commission or its designated representative concerning any A&P Tax, neglects to answer an subpoena to appear and answer questions about records for the A&P Tax, or fails to obtain an A&P Tax permit as required, or who acts, or fails to act, in conformance with the provisions of the Arkansas Tax Procedure Act, as that Act applies to the A&P Tax, shall be subject to the penalties set forth in Ark. Code Ann. §§ 26-18-101 to 26-18-105; 26-10-201 to 26-10-212 (Michie Repl. 1997 and Supp. 1999), as they exist on the date of the passage of sections 17-97—17-98.23, or as they may be amended by the General Assembly and are in effect on the date of any such violation.
(Ord. No. 18,529, § 1(25), 8-7-01)

Sec. 17-99. City advertising and promotion fund.

(a) (1) There is hereby created the city advertising and promotion fund, to which fund there shall be credited all collections of the tax levied by this article. Except as provided in (2) infra, all funds credited to the city advertising and promotion fund shall be used for advertising and promoting the city and its environs or for the construction, reconstruction, extension, equipment, improvement, maintenance, repair and operation of a convention center, convention centers, advertising and promotion facilities and facilities necessary for, supporting, or otherwise pertaining to, a convention center or convention centers, or for the payment of the principal of, interest on, and fees and expenses in connection with, bonds issued under state Law as shall be determined by the city advertising and promotion commission (hereinafter referred to as the "commission"). The commission may also engage such personnel and agencies and incur such administrative costs that it deems necessary to conduct its business.

(2) All collections of the one (1) percent tax levied by Ordinance No. 21,141, shall be transferred by the commission to the parks and recreation department to be used for the promotion and development of city parks and recreation areas, or for the payment of the principal of, interest on, and fees and expenses in connection with, bonds authorized by A.C.A. § 26-75-6 and A.C.A. § 14-164-3, or for any appropriate combination of such uses.

(3) The commission is the body that determines the use of the city advertising and promotion fund.

(b) The commission is authorized to use or pledge all, or any part of, the revenues derived from the tax levied hereunder, for the purposes prescribed herein.
(Code 1961, §§ 2-76, 2-77; Ord. No. 17,100, §§ 1, 2, 1-16-96; Ord. No. 21,551, § 4, 2-20-18)

Sec. 17-100. City advertising and promotion commission.

(a) There is hereby created the city advertising and promotion commission. The commission shall have the powers and duties prescribed by the Advertising and Promotion Commission Act, A.C.A. § 26-75-601 et seq. as now or hereafter amended. The commission shall be composed of seven (7) members, each of whom shall reside within the city unless otherwise provided, as follows:

(1) Four (4) members shall be owners or managers of businesses in the tourism industry, at least three (3) shall be owners or managers of hotels, motels, or restaurants, and shall serve for staggered terms of four (4) years; and

(2) Two (2) members shall be members of the board of directors of the city and selected by the board and shall serve at the will of the board; and

(3) One (1) member shall be from the public at-large who shall reside in Little Rock or Pulaski County and shall serve for a term of four (4) years.

(b) Vacancies on the commission, whether resulting from expiration of a regular term or otherwise, in any of the four (4) tourism positions provided for in (a)(1) or in the at-large

position provided for in (a)(3) shall be filled by appointment made by the remaining members of the commission with the approval of the board.

(c) The commission is subject to all fiscal procedures of the city.

(d) All funds credited to the City Advertising and Promotion Fund, pursuant to Ordinance No. 12,353, shall be used for advertising and promoting the city and its environs or for the construction, reconstruction, extension, equipment, improvement, maintenance, repair and operation of a convention center, convention centers, advertising and promotion facilities and facilities necessary for, supporting, or otherwise pertaining to, a convention center or convention centers, or for the payment of the principal of, interest on, and fees and expenses in connection with, bonds issued under state law as shall be determined by the commission. The commission may also engage such personnel and agencies and incur such administrative costs that it deems necessary to conducts its business. The commission is the body that determines the use of the City Advertising and Promotion Fund. The commission is authorized to use or pledge all or any part of the revenues derived from the tax levied hereunder, for the purposes prescribed herein.
(Code 1961, § 2-78; Ord. No. 16,488, § 1, 9-7-93; Ord. No. 18,992, § 5, 11-25-03; Ord. No. 21,551, § 5, 2-20-18)

Cross reference—Boards and commissions generally, § 2-261 et seq.

State law reference—Advertising and promotion commission, A.C.A. § 26-75-605.

Secs. 17-101—17-125. Reserved.

ARTICLE V. PEDDLERS, SOLICITORS, CANVASSERS, ETC.*

Sec. 17-126. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

*__State law references—__Authority to define, license, tax and regulate transient or itinerant dealers or vendors, A.C.A. § 14-54-1407; municipal authority to license, tax and regulate peddlers, solicitors, etc., A.C.A. § 14-54-103; Transient Merchant Licensing Act of 1983, A.C.A. § 17-42-101 et seq.; authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

Sec. 17-127. Bond for solicitors, peddlers, hawkers, etc.

(a) Solicitors of book and magazine subscriptions, itinerant peddlers, hawkers, and any person engaged in selling or offering for sale merchandise or services at retail within the city to the ultimate consumers and not having a regular permanent place of business in the city shall, prior to engaging in any such activity, execute a bond with good and sufficient surety payable to the city for the use and benefit of any person damaged by a breach thereof. The bond shall ensure performance of services, delivery of merchandise and proper application of moneys received therefor.

(b) The bond shall be in an amount, approved by the chief of police, which amount is found, after considering the money likely to be involved or the value of services to be rendered or merchandise delivered, to be adequate to protect the public against fraud or dishonest dealing. The bond shall not be in an amount less than five hundred dollars ($500.00).

(c) A fee of five dollars ($5.00) shall be paid to the city by each person executing such a bond in order to defray the cost of administering this section. The fee so collected shall be deposited in the general fund.

(d) A person damaged by a breach of the bond is entitled to recover on the bond the amount of his damages proved, plus costs in a civil action in any court having jurisdiction.

(e) The chief of police shall administer the provisions of this section.
(Code 1961, § 28-1)

Sec. 17-128. Charitable solicitations on streets.

(a) No person shall solicit donations on the streets for charitable, religious or other bona fide nonprofit purposes without a permit from the city.

(b) To obtain such a permit, a person shall submit in writing to the city an application giving the name and headquarters address of the organization they represent and solicit for, and

the names and addresses of any and all solicitors and any and all other information which may be required by the city.

(c) The city manager shall administer the provisions of this section and promulgate regulations governing the procedure for application and issuance of permits.
(Code 1961, §§ 28-2—28-4)

Sec. 17-129. Soliciting along major or minor arterial streets.

Soliciting on or along major or minor arterial streets of the city is prohibited.
(Code 1961, § 28-9)

Sec. 17-130. Permit for charitable solicitors for hire.

A person soliciting funds for charitable purposes either by means of the sale of tickets or otherwise where such person receives remuneration for such services or is in any manner financially interested in the results of such ticket sale, shall, before engaging in such business, secure a permit therefor from the city collector's office. Before the city collector shall issue any such permit he shall cause the chief of police to investigate the objects of charity involved and shall approve the objects as being bona fide projects.
(Code 1961, § 28-6)

Sec. 17-131. [Ban on the solicitation of any item within streets or from medians.]

(a) Except as set forth in subsection (e) below, no person shall stand in or enter upon a roadway, a median of 60" or less width, or a portion of a public street, for the purpose of distributing anything to the occupant of any vehicle;

(b) No person shall stand in or enter upon a roadway, a median of 60" or less width, or a portion of a public street, for the purpose of soliciting any item, including but not limited to, money, from the occupant of any vehicle;

(c) The prohibition on the distribution of anything contained in subsection (a) above does not apply to distribution to the occupant of a non-moving vehicle on a roadway adjacent to a sidewalk if the person who makes the distribution remains on the sidewalk, and if the occupant of the non-moving vehicle voluntarily accepts the distribution;

(d) Nothing contained in this section is intended to prohibit solicitation or distribution by any person on a sidewalk to another person on the same sidewalk;

(e) The basic requirements for any person who desires to use medians for any purpose as follows:

(1) The median is at least 60" or more in width to be considered an appropriate median;

(2) The person, or persons, engaged in such activity are at least nineteen (19) years of age;

(3) The person, or persons, registers at no charge with the Little Rock Police Department and identifies the location where such activity will occur and to the extent known the names of the persons who will engage in such activity on their behalf;

(4) No such activity on an appropriate median shall before at least one (1) hour after sunrise, and in any event shall cease one (1) hour before sunset, as these times are provided by the National Oceanic and Atmospheric Administration for Little Rock, Arkansas; and

(5) No activity will occur if it is raining, or if for any other reason the roadway or the median at the time of such use is slick.

(Ord. No. 21,071, §§ 1—4, 6, 7-14-15; Ord. No. 21,245, § 1, 5-17-16; Ord. No. 22,649, § 1, 8-19-25)

Editor's note—At the discretion of the editor, the provisions of Ord. No. 21,071, §§ 1—4, 6, adopted July 14, 2015, have been codified as a new § 17-131.

Secs. 17-132—17-150. Reserved.

ARTICLE VI. USED OR SECONDHAND GOODS

DIVISION 1. GENERALLY

Secs. 17-151—17-175. Reserved.

DIVISION 2. PAWNBROKERS AND DEALERS IN SECONDHAND GOODS*

Sec. 17-176. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Dealer in secondhand goods means any person who:

(1) Buys, sells or otherwise deals principally in used or secondhand goods; or

(2) Buys for resale any used or secondhand goods, whether or not as a principal vocation or business, and without regard to whether or not such person maintains a place of business for such purpose.

"Dealer in secondhand goods" does not include a licensed retailer of new goods who shall, in the ordinary course of business, receive used or secondhand goods only as a "trade-in" or as part consideration for purchases of new goods. "Dealer in secondhand goods" does not include a person who sells or exchanges coins, tokens, metals, or goods of any other nature, if such activity is conducted as part of an approved exhibit at an approved convention held in a facility subject to the regulation of the advertising and promotion commission.

Goods means any tangible chattel or personalty capable of physical delivery, except furniture and motor vehicles. "Furniture" does not include radios, television sets, appliances or other items with mechanical, electrical or electronic works.

Pawnbroker means a person engaged in the business of lending money upon the security of goods deposited with it or left in pawn, with or without a fixed period of redemption, whether or not a fixed place of business is maintained for such purposes.
(Code 1961, § 21-14)

*__State law reference—__Municipal authority to regulate pawnbrokers, A.C.A. § 14-54-103.

Sec. 17-177. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 17-178. Records and reports.

(a) Every person engaged in the business of a pawnbroker or as a dealer in secondhand goods shall keep a well-bound record book or register which shall contain a copy of every pawn ticket or contract or bill of sale issued by the pawnbroker or dealer in secondhand goods. The chief of police or his duly authorized agents shall be entitled to inspect the book or register at any reasonable time.

Each and every owner or operator of a pawnshop, pawnbroker and dealer in secondhand goods doing business in the city shall, within one (1) year of the adoption of Ordinance No. 18,952 [Oct. 7, 2003], maintain an electronic inventory-tracking system which is capable of delivery and transmission of all statutorily-required information via computer to the entity designated by the Little Rock Police Department.

The failure on the part of any owner or operator of a pawnshop, pawnbroker or dealer in secondhand goods to comply with the provisions of Ordinance No. 18,952 shall be deemed a misdemeanor. Upon conviction, the offender shall be punished by a fine of not more than twenty-five dollars ($25.00) for each separate offense. Each day of noncompliance with this article shall be deemed a separate offense.

(b) Every pawnbroker or secondhand dealer shall daily enter on forms supplied by the chief of police, in chronological order, all transactions involving the receipt of goods by pawn or pledge or purchases secondhand or used goods and shall provide all pertinent information pertaining to the transaction to the chief of police. Each page or sheet aforementioned shall contain columns appropriately entitled for the recording of such information as shall be required herein, and, specifically, shall contain columns entitled "Amount Loaned," "Ticket Number," "Article,"

"Description of Article," "Marks," "Name of Party Pledging or Selling," "Method of Identification," "Address" and "Description of Person."

(c) The information to be entered under the column titles shall be as follows:

(1) *Amount loaned.* In this column shall be entered the amount loaned against the article by the pawnbroker or paid for the article by a pawnbroker or dealer in secondhand goods. If the transaction is a purchase of goods the letter "P" shall be entered in the upper right hand corner of the block in this column used in recording the transaction.

(2) *Ticket number.* The entry in this column shall be the pawn ticket number or redemption number issued to the pawnor and assigned to and tagged onto the goods. Dealers in secondhand or used goods shall tag all items purchased with consecutively numbered tags and the number of such tags shall be entered in this column.

(3) *Article.* The entry in this column shall be a description of the class of goods within which the pawned or purchased item belongs. Examples are: projector, camera, shoes, revolver, typewriter, watch, ring, television, etc. It shall not be necessary to give a detailed description of such item or goods in this column.

(4) *Description of article.* Here a concise description of the goods shall be given. In the case of all goods the size, color and descriptive characteristics most pertinent shall be entered. Serial numbers of all appliances or mechanical, electrical, electronic or other manufactured goods shall be entered if such is available on said goods. Model or chassis numbers shall not be entered in lieu of a serial number unless there be no serial number. In the case of watches, the outside case number shall be sufficient if the watch is waterproof, but otherwise both the case number and movement number shall be given, if both are present.

(5) *Marks.* In this column any identifying marks, initials, monograms or personalized features shall be entered to further describe the goods.

(6) *Name of party pledging or selling.* Here shall be entered the name of the person presenting the goods for pawn or for sale. The name entered shall be substantiated and verified by the pawnbroker or dealer in secondhand or used goods by examination of the driver's license or social security card of the pawnor or seller, unless the seller or pawnor shall be personally known by the pawnbroker or dealer in secondhand goods, in which event an entry shall be made with the letters "pk" in the column described in paragraph (7) of this subsection.

(7) *Method of identification.* The entry here shall be the number appearing on the driver's license, social security card or other identification source of the person pawning or selling goods, used for identification under paragraph (6) of this subsection.

(8) *Address.* The address of the person pawning or selling goods shall be placed in this column.

(9) *Description of person.* A description of the person pawning or selling goods shall be made in this column indicating sex, race, age, height and weight.

(Code 1961, §§ 21-15—21-17; Ord. No. 18,952, §§ 1, 2, 10-7-03))

State law reference—Records of pawnbrokers, A.C.A. § 12-12-101 et seq.

Sec. 17-179. Duty to retain goods.

No bond, security or goods of any kind whatsoever received on deposit, purchased or pledged to or by any pawnbroker or dealer in secondhand goods shall be sold or permitted to be redeemed or removed from the place of business of such pawnbroker or dealer in secondhand goods for a period of thirty-six (36) hours from the time of receiving same.

(Code 1961, § 21-18)

Sec. 17-180. Notification to police of altered serial numbers.

In the event any goods are pawned, pledged or sold, or tendered for pawn or sale to any pawnbroker or dealer in secondhand goods, which normally carry or have a serial number or numbers or means of identification which shall have been removed, mutilated, defaced or destroyed, such fact shall be immediately reported by the pawnbroker or dealer in secondhand goods to the chief of police or his duly authorized agent.
(Code 1961, § 21-19)

Secs. 17-181—17-195. Reserved.

DIVISION 3. PRECIOUS METALS*

Sec. 17-196. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Precious metal dealer means a person engaged in the business of buying precious metals, whether for cash or trade, and whether or not a fixed place of business is maintained for such purposes.

Precious metals means any form of gold, silver or platinum.
(Code 1961, § 21-21)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 17-197. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

***State law reference—**State licensing and regulation of dealers in precious metals, A.C.A. § 17-20-101 et seq.

Sec. 17-198. Exemptions.

This division does not apply to:

(1) Financial institutions chartered under state or federal banking laws.

(2) Security firms duly licensed under federal or state law.

(3) Transactions between such institutions or firms and their customers.

(4) Transactions involving loose teeth.

(5) Purchase of coins except that when coins are purchased, the precious metal dealer must verify the seller's identification by taking down his name, address, driver's license number and retain a complete description of the coins.

(Code 1961, § 21-28)

Sec. 17-199. Records and reports.

(a) Every person engaged in the business of buying precious metals, whether for cash or trade, shall keep a well-bound record book or register which shall contain a copy of every bill of sale issued by the dealer. The chief of police or his duly authorized agent shall be entitled to inspect the book or register at any reasonable time.

(b) Every person engaged in the business of buying precious metals, whether for cash or trade, shall daily enter on forms supplied by the chief of police, in chronological order, all transactions wherein and whereby it receives precious metals and shall provide all pertinent information pertaining to each transaction to the chief of police. Each page or sheet aforementioned shall contain columns appropriately entitled for the recording of such information as shall be required herein, and, specifically shall contain columns entitled "Amount Paid," "Article," "Description of Article," "Marks," "Name of Party Selling," "Method of Identification," "Address," "Description of Person" and "Thumbprint of Person Selling the Goods."

(c) The information to be entered under the column titles shall be as follows:

(1) *Amount paid.* In this column shall be entered the amount paid for the article or articles by a dealer in precious metals.

(2) *Article.* The entry in this column shall be a description of the class of goods within which the purchased items belong. Examples are coins, rings, silverware, etc.

(3) *Description of article.* Here a concise description of the goods shall be given.

(4) *Marks.* In this column any identifying marks, initials, monograms, brand name or personalized features shall be entered to further describe the goods.

(5) *Name of party selling.* Here shall be entered the name of the person presenting the goods for sale. The name shall be substantiated and verified by the dealer by examination of the driver's license or Social Security card of the seller.

(6) *Method of identification.* The entry here shall be the number appearing on the driver's license, Social Security card or other identification source of the person selling the articles.

(7) *Address.* The address of the person selling the goods shall be placed in this column.

(8) *Description of person.* A description of the person selling the goods shall be made in this column indicating sex, race, height and weight.

(9) *Thumbprint of person selling the goods.* In this space, the dealer shall require the seller to place a legible print of his right thumb.

(10) *Photograph.* In this space the dealer shall attach a photograph of the goods received. This paragraph shall not apply to purchases of gold rings which have no mountings.

(Code 1961, §§ 21-22—21-24)

State law reference—Required records and reports, A.C.A. §§ 17-20-206, 17-20-207.

Sec. 17-200. Duty to retain goods.

No precious metals of any kind whatsoever received by the dealer shall be sold or permitted to be removed from the place of business of the dealer for a period of thirty-six (36) hours from

the time of receiving same. All such goods shall be retained in the original condition in which they were received during such period.
(Code 1961, § 21-25)

State law reference—Holding period, A.C.A. § 17-20-207.

Sec. 17-201. Notification to police of altered goods.

In the event any articles sold to any precious metal dealer have had the serial number or other means of identification removed, mutilated, defaced or destroyed or melted down, such fact shall be immediately reported by the dealer to the chief of police or his duly authorized agent.
(Code 1961, § 21-26)

DIVISION 4. SCRAP METAL DEALERS

Sec. 17-202. Records.

(a) Effective November 1, 2008, all scrap metal recyclers that are located and do business within the corporate limits of the city shall file daily electronic records of scrap metal purchases made that day by the end of the business day and into a database maintained by LEADS Online (law enforcement automated database search), or similar database as designated by the chief of police.

(b) The purchase of catalytic converters as scrap metal, or by scrap metal recyclers is prohibited, provided that this prohibition shall not apply:

(1) To situations in which the scrap metal recycler has purchased an entire motor vehicle that contains a catalytic converter.

(2) The seller makes an affirmative statement, in writing, that the automobile, or the catalytic converter, is seller's private property, or is a catalytic converter previously purchased by the seller.

(3) For purposes of this subsection, an entire motor vehicle shall be considered one in which the engine compartment, chassis, and substantial portion of the frame or cab of the motor vehicle is still intact at the time of the purchase.

(c) The purchase of air conditioning parts as scrap metal, or by scrap metal recyclers is prohibited, provided that this prohibition shall not apply:

(1) To parts being sold by a contractor, plumber, or electrician; and:

a. The HVAC license of the contractor, plumber, or electrician license is provided at the time of the sale; and

b. A copy of the HVAC license and number is recorded by the purchaser of the scrap metal; or

(2) The parts are being sold by an individual who provides:

a. Documentation that the parts were removed by an individual with a current and valid HVAC license; and

b. Evidence of ownership of the parts by providing an:

1. Invoice for the purchase of the unit from which the parts were removed;

2. Invoice for the purchase of a unit which replaced the unit from which the parts were removed;

3. Affidavit from the dealer who sold the unit from which the parts were removed; or

4. Affidavit from the dealer who sold and installed a unit which replaced the unit from which the parts were removed; and

c. A copy of the documentation required under this subsection (c)(2) is recorded by the purchaser of the scrap metal.

(d) The record shall contain at a minimum:

(1) The name, address, gender, birth date, and identifying number from the seller's driver's license, military identification card, passport, or other form of government-issued photo identification taken at the time of the sale and kept on record;

(2) The digital fingerprints of the seller taken at the time of sale and kept on record;

(3) The type of scrap metals and materials so purchased;

(4) The weights of the materials;

(5) The license plate number of the vehicle used in transporting the materials to the place of business; and

(6) If, and only if, the metals sold are air conditioning parts, copies of the documents required under subsection (c) of this section.

(e) These records shall:

(1) Be kept for a period of one (1) year by the scrap metal recycler;

(2) Be made available to any law enforcement officer of the state or of any municipality; and

(3) Be made available for use in any legal proceeding should such become necessary.

(f) This section shall not apply to:

(1) Sales in a series of scrap metal purchase transactions made pursuant to a contract;

(2) Transactions in which a scrap metal recycler purchases, transfers, or otherwise conveys scrap metal to another scrap metal recycler if the purchaser or transferee obtained a bill of sale or similar document at the time of transfer; or

(3) Purchases involving only beverage containers; or

(4) Ferrous metals.

(Ord. No. 15,646, § 1, 2-21-89; Ord. No. 20,013, § 2, 8-4-08; Ord. No. 20,523, §§ 2—4, 12-20-11)

Sec. 17-203. Penalty.

Any person convicted of a violation of any of the provisions of this division shall be punished as provided in section 1-9.
(Ord. No. 15,646, § 1, 2-21-89)

Secs. 17-204—17-210. Reserved.

ARTICLE VII. SEXUALLY ORIENTED BUSINESSES*

Sec. 17-211. Purpose and intent.

It is the purpose of this article to regulate sexually oriented businesses to promote the health, safety and general welfare of the citizens of the city, and to establish reasonable and uniform regulations to prevent the continued concentration of sexually oriented businesses within the city. The provisions of this article have neither the purpose, nor effect of imposing a limitation or restriction on the content of any communicative materials, including sexually oriented materials. Similarly, it is not the intent nor effect of this article to restrict or deny access by adults to sexually oriented entertainment to their intended market, unless otherwise restricted by law.
(Ord. No. 15,629, § 1, 1-17-89)

Sec. 17-212. Definitions.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:]

(1) *Adult arcade.* Any place to which the public is permitted or invited wherein coin-operated or slug-operated or electronically, electrically, or mechanically controlled image-producing devices are maintained to show images to five (5) or fewer viewers at one time, and where the images so displayed are distinguished or characterized by the depicting or describing of "specified sexual activities" or "specified anatomical areas."

(2) *Adult bookstore* or *adult video store.* A commercial establishment which, as one of its principal business purposes, offers for sale or rental for any form of consideration any one (1) or more of the following:

a. Books, magazines, periodicals or other printed matter, or photographs, films,

*__Editor's note—__Ord. No. 15,629, §§ 1—6, adopted Jan. 17, 1989, did not specifically amend the Code; hence, codification as Art. VII, §§ 17-211—17-216, was at the discretion of the editor.

motion pictures, videocassettes, or video reproductions, slides or other visual representations which depict or describe "specified sexual activities," or "specified anatomical areas;" or

b. Instruments, devices, or paraphernalia which are designed for use in connection with "specified sexual activities."

(3) *Adult cabaret.* A nightclub, bar, restaurant, or similar commercial establishment which regularly features:

a. Persons who appear in a state of nudity; or

b. Live performances which are characterized by the exposure of "specified anatomical areas" or by "specified sexual activities;" or

c. Films, motion pictures, videocassettes, slides or other photographic reproductions which are characterized by the depiction of "specified sexual activities" or "specific anatomical areas."

(4) *Adult motion picture theater.* A commercial establishment where, for any form of consideration, films, motion pictures, videocassettes, slides, or similar photographic reproductions are regularly shown which are characterized or distinguished by an emphasis on matter depicting, describing or relating to "specified sexual activities" or "specified anatomical areas."

(5) *Adult theaters.* A theater, concert hall, auditorium, or similar commercial establishment, which regularly features persons who appear in a state of nudity or live performances which are characterized by the exposure of "specified anatomical areas" or "specified sexual activities."

(6) *Nudity* or *state of nudity.*

a. The appearance of the bare human buttock, anus, male genitals, female genitals, or female breast.

b. A state of dress which fails to opaquely cover a human buttock, anus, male genitals, female genitals, or areola of the female breast.

(7) *Person.* An individual, proprietorship, partnership, corporation, association, or other legal entity.

(8) *Semi-nude.* A state of dress in which clothing covers no more than the genitals, pubic region and/or the female breast, as well as portions of the body covered by supporting straps or devices.

(9) *Sexually oriented business.* An adult arcade, adult bookstore or adult video store, adult cabaret, adult motion picture theater, or adult theater which:

a. Devotes a significant or substantial portion of its stock-in-trade or interior floor space to;

b. Receives a significant or substantial portion of its revenues from; or

c. Devotes a significant or substantial portion of its advertising expenditures to the promotion of;

the sale, rental, viewing (for any form of consideration) of inventory, merchandise, or performances that are characterized by "specific sexual activities" or "specified anatomical areas." An establishment may have other principal business purposes that do not involve the offering for sale, rental or viewing of materials, or performances, depicting or describing "specified sexual activities" or "specified anatomical areas", and still be categorized as an adult arcade, adult bookstore or adult video store, adult cabaret, adult motion picture theater, or adult theater. Such other business purposes will not serve to exempt such establishment form being categorized as a sexually oriented business so long as the provisions of this definition are otherwise met.

(10) *Specified sexual activities.*

a. Human genitals in a state of sexual stimulation or arousal;

b. Acts of human masturbation, sexual intercourse, or sodomy;

c. Fondling or other erotic touching of human genitals, public region, buttock or female breast.

(11) *Specified anatomical areas.*

a. Less than completely and opaquely covered human genitals, public region, buttock, and female breast below a point immediately above the top of the areola; and

b. Human male genitals in a discernable turgid state, even if completely and opaquely covered.

(12) *Residential district.* Any land within the city limits of Little Rock zoned as R-1, R-2, R-3, R-4, MF-6, MF-12, MF-18, MF-24, R-5, R-6, R-7, R-7A, HR, MR, HDR or PRD, as defined by this Code.

(Ord. No. 15,629, § 2, 1-17-89; Ord. No. 18,791, § 1, 12-3-02)

Cross reference—Establishment of zoning districts, § 36-176 et seq.

Sec. 17-213. Classification.

Sexually oriented businesses are classified as follows:

(1) Adult arcade;

(2) Adult bookstores or adult video stores;

(3) Adult cabarets;

(4) Adult motion picture theaters;

(5) Adult theaters.

(Ord. No. 15,629, § 3, 1-17-89)

Sec. 17-214. Location of sexually oriented businesses.

(a) A person commits an offense if he operates or causes to be operated a sexually oriented business within seven hundred fifty (750) feet of:

(1) A church or other religious facility;

(2) A public or private elementary, secondary or post-secondary school, or daycare center;

(3) A boundary of a residential zone (R-1, R-2, R-3, R-4, MF-6, MF-12, MF-18, MF-24, R-5, R-6, R-7, HR, MR, HDR or PRD) or any single-family or multiple-family residential use;

(4) A public park;

(5) A hospital or other medical facility; or

(6) Properties listed on the National Register of Historical Places or local historic districts as identified by the Arkansas Historic Preservation Program.

(b) A person commits an offense if he causes or permits the operation, establishment, or maintenance of a sexually oriented business within seven hundred fifty (750) feet of another sexually oriented business.

(c) For the purpose of subsection (a), measurement shall be made in a straight line, without regard to intervening structures or objects, from the nearest portion of the building or structure used as part of the premises where a sexually oriented business is conducted, to the nearest property line of the premises of a church or public or private elementary or secondary school, or to the nearest boundary of an affected public park, residential district, residential lot, hospital or other medical facility, or properties listed on the National Historic Register or local historic districts as identified by the Arkansas Historic Preservation Program.

(d) For the purposes of subsection (b) of this section, the distance between any two (2) sexually oriented businesses shall be measured in a straight line without regard to intervening structures or objects, from the closest exterior wall of the structure in which each business is located.

(Ord. No. 15,629, § 4, 1-17-89; Ord. No. 18,906, § 1, 8-4-03)

Sec. 17-215. Nonconforming sexually oriented businesses.

(a) Any sexually oriented business lawfully operating on January 18, 1989, that is in violation of section 17-214 of this article shall be deemed a nonconforming use. The nonconforming use will be permitted to continue for a period not to exceed three (3) years, unless sooner terminated for any

reason or discontinued for a period of ninety (90) days or more. However, those sexually oriented businesses obligated by a written lease (executed prior to the passage of this article) that exceeds three (3) years from the effective date of this article, or whose activity involves the investment of money in leasehold or improvements such that a longer period is necessary to prevent undue financial hardship, are eligible for review by the planning commission for a reasonable extension.

Such nonconforming uses shall not be increased, enlarged, extended or altered except that the use may be changed to a conforming use. If two (2) or more sexually oriented businesses are within seven hundred fifty (750) feet of one another and otherwise in a permissible location, the sexually oriented business which was first established and continually operating at a particular location is the conforming use and the later-established business(es) is nonconforming.

(b) A sexually oriented business lawfully operating as a conforming use is not rendered a nonconforming use by the subsequent location of a church, public or private elementary or secondary school, public park, residential district or residential lot within seven hundred fifty (750) feet of the sexually oriented business. This provision applies only to an ongoing sexually oriented business, not to a sexually oriented business that has been terminated for any reason or discontinued for a period of ninety (90) days or more subsequent to the location of the church, public or private elementary or secondary school, public park, residential district, or residential lot.

(c) Any sexually oriented business that is annexed into the city, or that is operating lawfully prior to the effective date of an amendment to the provisions of section 17-214 but violates section 17-214 after the effective date of such amendment, shall be deemed a nonconforming use. The nonconforming use will be permitted to continue for a period not to exceed ninety (90) days. However, any sexually oriented business covered by this subsection whose activity involves the investment of money in leasehold or improvements that cannot be used for any other purpose than those defined in section 17-212, and a longer period of time to operate is necessary to prevent undue financial hardship, are eligible for a prompt review by the planning commission for a reasonable extension of the nonconforming status, provided that the extension shall not be increased by more than a period of two (2) years from the effective date of the annexation, or of the amendment to section 17-214 which rendered the business nonconforming. To obtain such review, the sexually oriented business must file its request for review during the initial ninety-day amortization period, and it shall be permitted to operate until the request for an extension is decided by the planning commission, provided that this period of operation shall not exceed two (2) years from the effective date of the annexation, or of the amendment to section 17-214 which rendered the business nonconforming.
(Ord. No. 15,629, § 5, 1-17-89; Ord. No. 18,791, § 2, 12-3-02)

Sec. 17-216. Enforcement.

(a) Any person violating any part of this article, upon conviction, is punishable by a fine not to exceed five hundred dollars ($500.00).

(b) If the violation is, in its nature, continuous in respect to time, the penalty for allowing the continuance thereof is a fine not to exceed two hundred fifty dollars ($250.00) for each day that the same is unlawfully continued.

(c) A person who operates or causes to be operated a sexually oriented business in violation of section 17-214 of this article will be subject to a suit for injunction as well as prosecution for criminal violations.
(Ord. No. 15,629, § 6, 1-17-89)

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Chapter 17.5

MINORS*

Art. I. In General, §§ 17.5-1—17.5-20
Art. II. Curfew, §§ 17.5-21—17.5-40
Art. III. Suspension of Special Activities, §§ 17.5-41—17.5-46

*Cross references—Youth home fire department inspection fees, § 12-51; throwing or placing of objects injurious to children, § 18-104; airtight container nuisance abatement provisions, § 20-1 et seq.

ARTICLE I. IN GENERAL

Secs. 17.5-1—17.5-20. Reserved.

ARTICLE II. CURFEW*

Sec. 17.5-21. Short title.

This article shall be known as the Minor Curfew Ordinance.
(Ord. No. 16,564, § 2, 1-4-94)

Sec. 17.5-22. Findings and purpose.

The board of directors of the city finds that special circumstances exist within the city that call for the special regulation of minors within the city in order to protect them from each other and from other persons on the street during the nocturnal hours and during normal school hours, whether public, private or home schooling, to aid in crime prevention, to promote parental supervision and authority over minors and to decrease nocturnal crime rates and crime rates during school hours.
(Ord. No. 16,564, § 3, 1-4-94; Ord. No. 16,825, § 1, 1-3-95)

Sec. 17.5-23. Definitions.

For purposes of the Minor Curfew Ordinance, the following terms, phrases, words and their derivations shall have the meanings [ascribed to them by this section]:

(a) *City* is the City of Little Rock, Arkansas.

(b) *Emancipated minor* means a minor who no longer has a parent-child relationship as a result of marriage, or as a result of being recognized as an adult by order of a court of competent jurisdiction.

(c) *Legitimate parentally approved errand* means a minor performing a necessary task at the direction of the minor's parent, and that the nonperformance of the errand, or delay of performance until after curfew hours have abated, would result in injury or undue hardship.

(d) *Minor* is any unemancipated or unmarried person under the age of eighteen (18) years of age.

(e) *Parent* is any person having legal custody of a minor (i) as a natural parent, (ii) as an adoptive parent, (iii) as a legal guardian, (iv) as a person to whom legal custody has been given by order of the court.

(f) *Public place* means a publicly or privately owned place to which the public or substantial numbers of people have access. A public place does not include the residence of a minor or, the residence of a minor's parent or a responsible adult.

(g) *Responsible adult* means a person at least twenty-one (21) years of age to whom a parent has expressly given permission to accompany a minor.
(Ord. No. 16,564, § 4, 1-4-94)

Sec. 17.5-24. Curfew for minors.

(a) (1) It shall be unlawful for any minor to be upon the streets, sidewalks, parks, playgrounds, public places, vacant lots, or to ride in or upon, drive or otherwise operate or be a passenger of any automobile, bicycle, or other vehicle in, upon, over or through the streets, or other public places between the hours of 10:00 p.m. and 5:00 a.m., Sunday through Thursday, or 12:00 midnight and 5:00 a.m., Friday and Saturday;

(2) It shall be unlawful for any minor to be upon the streets, sidewalks, playgrounds, public places, vacant lots, or to ride in or upon, drive or otherwise operate or be a passenger of any automobile, bicycle, or other vehicle, over or through or the streets or other public places within parks which abut a temporary entertainment district, or a permanent entertainment district authorized by ordinance of the board of directors and operating as an

*__Editor's note—__Ord. No. 16,564, §§ 1—10, adopted January 4, 1994, amended Art. II to read as herein set out in §§ 17.5-21—17.5-27. Prior to inclusion of said ordinance, §§ 17.5-21—17.5-30 pertained to similar subject matter and derived from Ord. No. 16,219, §§ 1—10, adopted May 19, 1992.

entertainment district, Sunday through Saturday between the hours of 9:00 p.m., or 5:00 a.m.

(b) It shall be unlawful for any minor to be upon the streets, sidewalks, parks, playgrounds, public places and vacant lots, or to ride in or upon, drive or otherwise operate or be a passenger of any automobile, bicycle, or other vehicle in, upon, over or through the streets, or other public places:

(1) Between the hours of 9:00 a.m. and 3:45 p.m., when the public schools are in session; or

(2) If the hours in subsection (1) are different from the hours of a regular school day at the school where the minor is registered to attend, the time between the normal start time and normal dismissal time for students at the school where the minor is registered to attend.

(c) It shall be unlawful for any parent to permit a minor to be upon the streets, sidewalks, parks, playgrounds, public places and vacant lots, or to ride in or upon, drive or otherwise operate, a vehicle in, upon, over or through the streets, or other public places as set forth in subsections (a) or (b). The fact that a minor is in violation of the provisions of subsections (a) or (b) hereinabove, without a defense as set forth in section 17.5-25, shall create a rebuttable presumption that a parent is in violation of this subsection.

(d) Notwithstanding any other provision of this Code, from the date of passage of this section until September 2, 2025, it shall be unlawful for any minor to be upon the streets, sidewalks, parks, playgrounds, public places and vacant lots, or to ride in or upon, drive or otherwise operate or be a passenger of any automobile, bicycle, scooter, or other vehicle in, upon, over or through the streets, or other public places between the hours of 10:00 p.m. and 5:00 a.m.

(Ord. No. 16,564, § 5, 1-4-94; Ord. No. 16,825, § 2, 1-3-95; Ord. No. 18,629, § 1, 1-2-02; Ord. No. 22,265, § 1, 6-13-23; Ord. No. 22,640, § 1, 7-15-25)

Sec. 17.5-25. Exceptions to curfew.

(a) Notwithstanding the provisions of section 17.5-24, the Minor Curfew Ordinance does not apply:

(1) At any time a minor that is accompanied by a parent, or by a responsible adult authorized by a parent to take the parent's place to accompany the minor for a designated period of time and purpose within a specified area.

(2) If the minor is employed, for a period of time forty-five (45) minutes after work, provided that circumstances suggest the minor is returning from work to a place of residence.

(3) When a minor is returning home from an activity that is supervised by adults and sponsored by the city, a civic organization, a public or private school, or any entity that takes responsibility for the minor, provided that the activity has not concluded for more than forty-five (45) minutes.

(4) At any time the minor is on a legitimate parentally approved errand.

(5) At any time the minor is on a trip in interstate commerce.

(6) At any time the minor is required to leave a residence because of an emergency.

(7) At any time the minor is engaged in an activity that is protected by the First Amendment to the United States Constitution, or the freedom of speech, religion or expression provisions in Article II of the Arkansas Constitution.

(b) If a minor being questioned about the possible violation of the Minor Curfew Ordinance provides a law enforcement officer with sufficient reason to believe that the minor is entitled to an exemption under subsection (a) above, the law enforcement officer shall take no more enforcement actions under this article, provided the officer may make a report of the minor's identity,

the exemption claimed, and other necessary information to note the possible violation of this article.
(Ord. No. 16,564, § 6, 1-4-94)

Sec. 17.5-26. Penalties and law enforcement.

(a) A minor found to be in violation of this article shall be subject to penalties provided in section 1-9 of the Little Rock, Arkansas, Revised Code of Ordinances, or to such other disposition including suspension, probation, or conditions for suspension for probation, as determined by the judge of the district court in accordance with Arkansas law.

(b) A parent of a minor charged with violation of this article may be notified of such violation and required to appear before the district court for any hearing which involves the minor.

(c) At the discretion of the law enforcement officer, any minor arrested or cited for violation of the Minor Curfew Ordinance may be released to immediately return home or to school, may be escorted to their home or school, or may be taken into custody and delivered to an appropriate location, or juvenile authority, to be held until a parent can be located to take custody of the minor.

(d) Nothing in this section shall preclude a law enforcement officer from taking any or all appropriate actions for a minor's violation of any other local or state law.
(Ord. No. 16,564, § 7, 1-4-94; Ord. No. 16,602, § 1, 2-15-94; Ord. No. 18,548, § 1, 8-21-01)

Sec. 17.5-27. Curfew for minors driving vehicles.

(a) It shall be unlawful for any minor to operate, or be in actual physical control, of a motor vehicle upon the streets, public places, or private drives, within the city between the hours of 10:00 p.m. and 5:00 a.m. Sunday through Thursday, or 12:00 a.m. and 5:00 a.m. Friday and Saturday. Pursuant to this provision no minor shall be permitted to operate a motor vehicle in violation of the provisions of this article. In addition to any other criminal or traffic penalties that may be imposed, or any other actions available under section 17.5-26(c) of this article, unless a minor has a defense available to it under section 17.5-25 of this article, a law enforcement officer with sufficient reason to believe that a minor has violated the provisions of this article shall attempt to contact the registered owner of the motor vehicle operated by the minor for purposes of having the registered owner retrieve the vehicle. If no contact can be made, or if the registered owner refuses to immediately come and retrieve the vehicle, the officer may take any necessary action to protect the vehicle including having the vehicle impounded at a facility selected by the city. Any such impoundment shall be at the sole expense of the registered owner.

(b) It shall be unlawful for any parent to permit a minor to operate a motor vehicle in violation of the provisions of this article. In addition to any other criminal or traffic penalties that may be imposed, unless a minor has a defense available to it under section 17.5-25 of this article, a law enforcement officer with sufficient reason to believe that a minor has violated the provisions of this article may take any action set forth in section 17.5-26(c) of this article. The fact that a minor is in violation of the provisions of subsection (a) hereinabove, without a defense as set forth in section 17.5-25 of this article, shall create a rebuttal presumption that the parent is in violation of this subsection.
(Ord. No. 16,602, § 2, 2-15-94)

Sec. 17.5-28. Defense from school-hour curfew violation.

With respect to the hours between 9:00 a.m. and 2:30 p.m. on Monday, Tuesday, Wednesday, Thursday or Friday only, it is a defense that the public or private school which the minor attends was not in session, that the minor is being home schooled in accordance with Arkansas law and a recess has been declared by the home school teacher, that the minor is a high school graduate or has an equivalent certification, or that the minor is on an excused absence from his or her

place of schooling, provided that a disciplinary suspension or expulsion is not deemed an excused absence for the purposes of this article.
(Ord. No. 16,825, § 3, 1-3-95)

Editor's note—Ord. No. 16,825, § 1, adopted January 3, 1995, did not specifically amend the Code; hence, inclusion herein as § 17.5-28 was at the discretion of the editor.

Secs. 17.5-29—17.5-40. Reserved.

ARTICLE III. SUSPENSION OF SPECIAL ACTIVITIES*

Sec. 17.5-41. Purpose.

The purpose of this article is to provide for a temporary ban on identifiable marketing activities directed toward minors commonly referred to as "teen night" when such activities have resulted in the use or threat of deadly physical force or death or serious physical injury to another person.
(Ord. No. 16,220, § 1, 5-19-92)

Sec. 17.5-42. Cessation of activities contributing to the need for imposition of a curfew for minors.

In the event that businesses located in the city engage in commercial activities specifically directed primarily toward minors, and such activities result in deadly force or physical force resulting in serious physical injury or riot, the chief of police may issue an order banning such activities for a period not to exceed ninety (90) days. The business may continue its normal operations, but cannot resume the banned activities until applying for and receiving a permit from the chief of police.
(Ord. No. 16,220, § 2, 5-19-92)

*__Editor's note—__Ord. No. 16,220, §§ 1—6, adopted May 19, 1992, did not specifically amend the Code; hence, its inclusion herein as §§ 17.5-41—17.5-46 was at the discretion of the editor.

Sec. 17.5-43. Definitions.

For the purposes of this article, the following words, terms and phrases shall have the meanings ascribed to them by this section, unless the context clearly indicates a different meaning:

Activities specifically directed toward minors means organized commercial events, sometimes referred to as "teen nights," which are marketed and advertised with the intent of encouraging primarily minors to attend.

Deadly physical force means physical force that under the circumstances in which it is used is readily capable of causing death or serious physical injury.

Minor means any person under the age of eighteen (18).
(Ord. No. 16,220, § 3, 5-19-92)

Sec. 17.5-44. Application for permit.

At the end of the ninety-day period referred to in section 17.5-42 hereinabove, businesses may apply to the chief of police for a permit to continue activities specifically directed toward minors. The chief of police cannot refuse to issue a permit for such activities unless he is in possession of reliable and credible evidence that the activity for which an application is sought presents a clear and present danger of a threat of death or serious physical injury to any person. Unless such evidence is present, the chief of police shall issue the permit within three (3) working days of the receipt of an application.
(Ord. No. 16,220, § 4, 5-19-92)

Sec. 17.5-45. Appellate process.

In the event that an application for a permit to resume activities specifically directed toward minors is denied by the chief of police, the applicant may appeal the denial of such action to the Little Rock Board of Directors. The appeal must be filed within five (5) days of notice of cessation of activities and will be addressed at the next scheduled board meeting.
(Ord. No. 16,220, § 5, 5-19-92)

Sec. 17.5-46. Penalties.

Any business found to have carried on an activity specifically directed toward minors, after being directed to cease such activities by an order from the chief of police, shall be liable for a fine of up to five hundred dollars ($500.00) for each occurrence of such activity.
(Ord. No. 16,220, § 6, 5-19-92)

Chapter 18

MISCELLANEOUS PROVISIONS AND OFFENSES*

Article I. In General

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Sec. 18-2. State offenses adopted.
Sec. 18-3. Bad checks uttered to city.
Sec. 18-3.1. Collection of worthless checks under $200.00.
Sec. 18-4. Keeping of bees.
Sec. 18-5. Unlawful to take grocery carts from stores.
Sec. 18-6. County Ordinance 09-OR-22 adopted.
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Article II. Offenses Involving Public Peace and Order

Sec. 18-51. Penalty.
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Article III. Offenses Involving Public Safety

Sec. 18-101. Penalty.
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Sec. 18-118. Hate offense.
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*__State law reference—__Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

ARTICLE I. IN GENERAL

Sec. 18-1. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 18-2. State offenses adopted.

All offenses under state law that are not felonies that municipal officers and employees may enforce are adopted by reference.
(Code 1961, § 25-1)

Sec. 18-3. Bad checks uttered to city.

(a) It shall be unlawful for any person to procure any article or thing of value from the city or to make payment to the city of any taxes, licenses, or fees, or any fine or court costs, with the intent to defraud, by any check, draft, or order for the payment of money upon any in-state or out-of-state bank or person, knowing at the time of such making, drawing, uttering, or delivering, that the maker or drawer has no sufficient funds in or on deposit with such bank or person for the payment of such check, draft, or order, in full, and all other checks, drafts, or orders upon such funds then outstanding.

(b) It is prima facie evidence that the maker or drawer intended to defraud and knew at the time of the making, drawing, uttering, or delivering that the check, draft, or order would not be honored if:

(1) The maker or drawer had no account with the drawee at the time the check, draft, or order was made, drawn, uttered, or delivered; or

(2) The check, draft, or order bears the endorsement or stamp of a collecting bank indicating that the instrument was returned because of insufficient funds to cover the value; or

(3) Payment was refused by the drawee for lack of funds, upon presentation within thirty (30) days after delivery, and the maker or drawer shall not have paid the city the amount due, together with a service charge not to exceed twenty-five dollars ($25.00), within ten (10) days after receiving written notice that payment was refused upon the check, draft, or order. Nothing in this section shall impair the city attorney's power to immediately file charges after the check has been returned prior to the sending of the notice as described in this section.

(c) The check, draft, or order bearing an "insufficient" stamp or "no account" stamp from the collecting bank shall be received as evidence that there insufficient funds or no account at trial. Nothing herein shall be deemed to abrogate a defendant's right of cross-examination of banking officials provided notice of intention to cross-examination is given five (5) days prior to the date of hearing or trial.
(Ord. No. 19,230, § 1, 11-1-04)

Sec. 18-3.1. Collection of worthless checks under $200.00.

(1) The city attorney and director of finance be and hereby are authorized to implement the collection of worthless checks, orders, or drafts ("hot checks") which do not exceed two hundred dollars ($200.00), for prosecution in Little Rock Municipal Court.

(2) It shall be unlawful for any person:

(a) To procure any article or thing of value, or to secure possession of any personal property to which a lien has attached or to make payment of rent or to make payment for any other purpose to make or draw or utter or deliver, with the intent to defraud, any check, draft, or order for the payment of money upon any in-state or out-of-state bank, person, firm, or corporation, knowing at the time of such making, drawing, uttering, or delivering that the maker or drawer has not sufficient funds in, or on deposit with, such bank, person, firm, or corporation for the payment of such check, draft, or order in full, and all other checks, drafts, or orders upon such funds then outstanding.

(b) To make, draw, utter, or deliver or to cause or direct the making, drawing, uttering, or delivering of any check, draft, or

order for the payment of money on any in-state or out-of-state bank, person, firm, or corporation in payment of wages or salaries for personal services rendered, knowing that the maker, drawer, or payor does not have sufficient funds in or on deposit with such bank person firm, or corporation for the payment in full of such check, draft, or order, as well as all other then-outstanding checks, drafts, or orders upon such funds, and with no good reason to believe the check, draft, or order would be paid upon presentation to the person or bank upon which same was drawn.

(c) After he has made, drawn, uttered, or delivered a check, draft, or order for the payment of money upon any in-state or out-of-state bank to withdraw or cause to be withdrawn, with intent to defraud, the funds or any part thereof that have been deposited in the bank before presentment of the check, draft, or order for payment, without leaving sufficient funds in the bank for payment in full of the check, draft, or order and all other checks, drafts, or orders upon the funds then outstanding.

(3) It is prima facie evidence that the maker or drawer intended to defraud and knew at the time of the making, drawing, uttering, or delivering that the check, draft, or order would not be honored if:

(a) The maker or drawer had no account with the drawee at the time the check, draft, or order was made, drawn, uttered, or delivered; or

(b) The check, draft, or order bears the endorsement or stamp of a collecting bank indicating that the instrument was returned because of insufficient funds to cover the value; or

(c) Payment was refused by the drawee for lack of funds, upon presentation within thirty (30) days after delivery, and the maker or drawer shall not have paid the holder the amount due, together with a service charge not to exceed twenty dollars ($20.00), within ten (10) days after receiving written notice that payment was refused upon the check, draft, or order. Nothing in this section shall impair the city attorney's power to immediately file charges after the check has been returned prior to the sending of the notice as described in this section.

(4) The check, draft, or order bearing an "insufficient" stamp or "no account" stamp from the collecting bank shall be received as evidence that there were insufficient funds or no account at trial. Nothing herein shall be deemed to abrogate a defendant's right of cross-examination of banking officials provided notice of intention to cross-examine is given ten (10) days prior to the date of hearing or trial.

(5) Any person convicted of a violation of any of the provisions of this section shall be punished as provided in section 1-9.

(6) In addition to the fines and costs provided by law, the city attorney may collect a fee, pursuant to A.C.A 21-6-416 and A.C.A. 14-43-410, from any person issuing a hot check as described in this section for all prosecutions tried in municipal court, as follows:

(a) Five dollars ($5.00) if the face amount of the check, order or draft does not exceed ten dollars ($10.00);

(b) Ten dollars ($10.00) if the face amount of the check, order or draft is greater than ten dollars ($10.00) but does not exceed one hundred dollars ($100.00);

(c) Thirty dollars ($30.00) if the face amount of the check, order or draft is greater than one hundred dollars ($100.00) but does not exceed two hundred dollars ($200.00).

Such fees shall be deposited in the Hot Check Fund and used to defray the costs of the Hot Check Program.

(7) The director of finance and the city attorney are hereby directed to report annually to the board of directors on the status of this service to Little Rock citizens.
(Ord. No. 17,794, §§ 1—7, 8-11-98)

Sec. 18-4. Keeping of bees.

(a) *Definitions.* For the purposes of this section the following definitions shall apply.

(1) *Colony* means the bees in any hive, including queens, workers and drones.

(2) *Hire [hive]* means a frame hive, box hive, barrel, logs, gum skep or any other receptacle or container, natural or artificial, or any part thereof which may be used as a domicile for bees.

(3) *Super* means a removable upper story of a beehive.

(b) *Regulation.* It shall be unlawful for any person to establish or maintain any hive where bee colonies are kept, or keep any bees in or upon any premises within the corporate limits of the city unless the bees are kept in accordance with the following provisions:

(1) The keeping of bees for commercial purposes shall be permitted only in areas zoned AF Agriculture and Forestry District. There are no limitations on the number of hives that may be kept in an AF District.

(2) The keeping of bees for hobby purposes shall be restricted to R-1, R-2, and R-3 single-family districts with lots of at least fifty by one hundred (50 × 100) feet dimension. The number of hives and supers shall be limited to two (2) hives per residence and four (4) supers per hive, provided, however, that those residences situated on lots larger than five thousand (5,000) square feet may have one (1) additional hive per additional five thousand (5,000) square feet of land.

(3) Fresh, clean watering facilities for the bees shall be provided on the premises where the hives are located.

(4) All hives and supers in which bees are kept shall be located at least twenty-five (25) feet from any dwelling, business, sidewalk, alley or roadway.

(5) If bees are kept within fifty (50) feet of any exterior boundary of the property, a barrier that will prevent bees from flying through it, no less than six (6) feet high, shall be installed and maintained along said exterior boundary. Said barrier may be either plant or artificial.

(6) The bees and equipment shall be kept in accordance with the provisions of the state statutes regulating beekeeping.

(7) Nothing in this section shall be deemed or construed to prohibit the keeping of bees within a school or university building for the purpose of study or observation.

(c) *Enforcement.* Any person violating any part of this section shall be fined not more than five hundred dollars ($500.00), plus costs, for each violation. Each hive in excess of the number permitted in paragraph (b)(2) shall constitute a separate violation. Any person convicted of violating any part of this section shall be also subject to an additional penalty of one hundred dollars ($100.00) per day for each day he remains out of compliance with this section after the date of conviction.

(d) *Public hazard.* Nothing in this section shall be deemed or construed to permit the keeping of any bees which by their actions constitute a public hazard by repeatedly attacking and stinging animals or persons without provocation. In such instances, notices shall be given to the owner of the property where the bees are located of the nature of the attacks. The owner shall abate the hazard within five (5) days or be subject to the penalties set forth in subsection (c), above.

(Ord. No. 15,566, §§ 1—4, 9-20-88)

Editor's note—Ordinance No. 15,566, §§ 1—4, adopted Sept. 20, 1988, did not specifically amend the Code; hence, codification as § 18-4 was at the editor's discretion.

Sec. 18-5. Unlawful to take grocery carts from stores.

It shall be unlawful for any person to take or exercise control of a grocery shopping cart away from the store location providing the cart without the express permission of the store manager or owner. For purposes of this section, a "grocery shopping cart," is any vehicle provided by the management or owner of a store to be used by a

customer to temporarily hold items to be purchased while the customer shops the store, or while the person takes the just purchased items from the store to a waiting vehicle in a parking lot immediately adjacent to the store.
(Ord. No. 17,455, § 1, 4-1-97)

Editor's note—Ord. No. 17,455, § 1, adopted April 1, 1997, did not specifically amend the Code; hence, inclusion herein as § 18-5 was at the discretion of the editor.

Sec. 18-6. County Ordinance 09-OR-22 adopted.

(a) Pulaski County, Arkansas, Ord. No. 09-OR-22 which imposes a twenty-dollar ($20.00) fine for certain defendants in district courts and city courts of the county is ratified and shall apply to the Little Rock District Courts.

(b) The city manager and city treasurer are directed to work with the Little Rock District Courts and Pulaski County to ensure a smooth and effective implementation of the county ordinance.
(Ord. No. 20,131, §§ 1, 2, 7-7-09)

Sec. 18-7. Fine to defray cost of incarceration.

(a) Pursuant to Act 209 of 2009 of the 87th Arkansas General Assembly, a fine of twenty dollars ($20.00) is hereby to be imposed by each division of the Little Rock District Court on each defendant in a Little Rock District Court, on each conviction, plea of guilty, plea of nolo contedere, or each bond forfeiture.

(b) The revenues that result from this additional fine provision shall be deposited in the city treasury in a fund to be used exclusively to help defray the cost of incarcerating prisoners, and payments to other entities for incarcerating prisoners.

(c) All sums collected from the additional fine authorized in subsection (a) shall be used for one of the following purposes at the discretion of the board of directors:

(1) The construction, maintenance, and operation of a jail, or the Pulaski County Regional Detention Facility;

(2) To defray the costs of incarcerating county prisoners held by the city;

(3) The transportation and incarceration of prisoners;

(4) The purchase and maintenance of equipment for a jail, or for the Pulaski County Regional Detention Facility;

(5) The training, salaries, and any necessary certificates, required for persons who staff the incarceration facilities set forth in this section.

(d) Nothing in this section should be deemed to conflict with the city's position that a person arrested for a state criminal offense is a county prisoner.
(Ord. No. 20,232, §§ 1—4, 3-16-10)

Sec. 18-8. Statute of limitations for ordinance violations.

The statute of limitations for any city ordinance violation shall be three (3) years from the date of the violation.
(Ord. No. 20,482, § 1, 10-3-11)

Secs. 18-9—18-50. Reserved.

ARTICLE II. OFFENSES INVOLVING PUBLIC PEACE AND ORDER

Sec. 18-51. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 18-52. Noises prohibited generally.

(a) The creating of any unreasonably loud, disturbing and unnecessary noise of such character, intensity or duration as to be detrimental to the life or health of any individual, or in disturbance of the public peace and welfare is prohibited.

(b) The following acts, among others, are declared to be loud, disturbing and unnecessary noises unlawful, but this enumeration shall not be deemed to be exclusive:

(1) The sounding of any horn or signal device on any automobile, motorcycle, bus, streetcar or other vehicle while not in motion, except as a danger signal if another vehicle is approaching apparently out of control, or if in motion only as a danger signal after or as brakes are being applied and deceleration of the vehicle is intended; the creation by means of any such signal device of any unreasonably loud or harsh sound; and the sounding of such devices for an unnecessary and unreasonable period of time.

(2) The playing of any radio, phonograph, any type of audio equipment, or any musical instrument in such a manner or with such volume, particularly during the hours between 10:30 p.m. and 7:00 a.m. as to annoy or disturb the quietness, comfort or peace of any persons in or around any office, hospital, or any dwelling, hotel or other type of residence. Except that the amphitheater located in the River Market will refrain from the playing of such instruments and audio equipment during the hours between 12:00 a.m. and 7:30 a.m.

(3) Any group yelling, hooting, shouting out or the playing of any type of audio equipment on the public streets, at any time or place, in such a manner as to annoy or disturb the quiet, comfort or peace of persons in any hospital, dwelling, hotel or other type of residence or otherwise creates an annoyance or problem.

(4) The keeping of any animal, bird, or fowl which by causing frequent or long continued noise shall disturb the comfort or repose of any person in the vicinity.

(5) The use of any automobile, motorcycle, or vehicle so out of repair, so loaded, or in such a manner as to create loud and unnecessary grating, grinding, rattling or other noise.

(6) The blowing of any steam whistle attached to any stationary boiler except to give notice of the time to begin or stop work or as a warning of fire or danger, or upon request of proper city authorities.

(7) To discharge into the open air of the exhaust of any steam engine, stationary internal combustion engine, motor vehicle or motorboat engine except through a muffler or other device which will effectively prevent loud or explosive noises therefrom.

Cross reference—Muffler cutouts prohibited, § 32-9(b)(4).

(8) The creation of any excessive noise on any street adjacent to any school, institution of learning, church or court while the same is in session, or adjacent to any hospital, which unreasonably interferes with the workings or sessions thereof or adjacent to or near any residence; provided, however, that in case of emergencies when the public health, safety or general welfare is in danger, necessary work may be done immediately by first securing a permit from the building inspector, if this is obtainable, or if it is not first obtainable, the necessary work may be done and at the first opportunity reported to the building inspector, who shall issue a permit effectively retroactively to the beginning of the emergency, provided also that where underground repair or construction work is necessary adjacent to or in the vicinity of a school, an institution of learning, a church, a court, or hospital, the building inspector may issue a permit for same, the work to be done at reasonable hours to be designated by the building inspector.

(9) The creation of loud and excessive noise in connection with unloading or loading any vehicle or the opening and destruction of bales, boxes, crates and containers.

(10) The use of any drum, loudspeaker or other instrument or device for the purpose of attracting attention by creation of noise to any performance, show or sale or display of merchandise.

(11) The use of mechanical loudspeakers or amplifiers on trucks or other moving or standing vehicles for advertising or other purposes.

(12) 1. *[Construction allowed.]* Commercial and residential exterior and interior construction work including erection, excavation, demolition, or repair of any building and its components shall be allowed between the hours of 6:00 a.m. to 6:00 p.m., Monday through Saturday and 1:00 p.m. to 6:00 p.m. on Sunday. Additional interior construction work shall be allowed to be performed between the hours of 6:00 p.m. to 10 p.m., Monday through Saturday provided that all exterior openings are completely covered. These construction hours shall be adhered to except in the case of urgent emergency in the interest of public health and safety and then only with written permission from the building codes division, which permission may be granted for a period not to exceed (30) thirty days while the emergency continues. If an emergency arises when permission is not obtainable, the necessary work may be done and reported to the building codes division at the earliest date that the office is open after the emergency arises and may grant permission retroactively to the beginning of the emergency. If the building codes division should determine that the public health and safety will not be impaired by the erection, demolition, excavation, alteration or repair of any building within the designated hours and if they shall further determine that loss of inconvenience would result to any party in interest, they may grant permission for such work to be done within such hours upon application being made at the time permit for the work is obtained. The building codes division may stop construction work at anytime when the work disrupts or causes excessive disruptions of adjoining businesses or residential occupancies or is found to be detrimental to the health, safety and welfare of citizens.

2. *Working hours permit.* In cases where construction-related work can only be performed other than the hours listed in 8-4(1) and 18-52(b)(12)1., a temporary work permit may be issued by the building codes division. Applicant must obtain permit prior to commencement of work and all referenced job construction permits must be obtained. If approved the permit may be issued from one (1) to seven (7) days. Applicant must take all precautions to avoid disturbing other adjacent occupancies. The building codes division reserves the right to revoke any temporary work permit if work disrupts or causes excessive disruptions of adjoining businesses or residential occupancies or is found to be detrimental to the health, safety and welfare of citizens.

(c) This section does not apply to:

(1) Any vehicle of the city while engaged upon necessary public business.

(2) Excavations or repairs of bridges, streets or highways by or on behalf of the city, county, or state, when the public welfare and convenience renders it impossible to perform such work during the day.

(3) The reasonable use of amplifiers or loudspeakers in the course of public addresses which are noncommercial in character.

(4) Necessary warning signals given by an ambulance operator or licensed physician while answering an emergency call for medical assistance.

(5) Construction work between the hours of 6:00 a.m. and 8:00 p.m. on weekdays and Saturdays in areas declared by resolu-

tion of the board of directors to be disaster areas. For purposes of this subsection, construction work means the erection, including excavation, demolition, alteration or repair of any building in a residential district. Any resolution to declare an area a disaster area shall include a map of the area and a time period during which such designation shall be effective.

(Code 1961, §§ 25-71—25-73; Ord. No. 18,070, § 1, 7-20-99; Ord. No. 18,867, § 2, 5-20-03; Ord. No. 21,793, § 1, 10-15-19)

Editor's note—At the request of the city, § 25-72(h) of the 1961 Code has been included herein with the publication of Supplement No. 10 as having been inadvertently omitted from this Code. Designation as § 18-52(b)(12) was at the discretion of the editor.

State law reference—Municipal authority to prevent noise, A.C.A. § 14-54-103.

Sec. 18-53. Conduct in drive-in restaurants.

(a) In this section "drive-in restaurant" means any restaurant where meals, sandwiches, ice cream, or other food, is served directly to or is permitted to be consumed by patrons in automobiles, motorcycles or other vehicles parked on the premises.

(b) It shall be unlawful for any person while on or adjacent to the premises of a drive-in restaurant to race the motor of any car, to suddenly start or stop any car, or to make or cause to be made, any other loud or unseemly noise. It shall be unlawful for any other person parked on the premises of a drive-in restaurant, to blow or cause to be blown any automobile horn or motorcycle horn at any time while parked.

(c) It shall be unlawful for any patron or other person on the premises of a drive-in restaurant to drink any beer, unless purchased on the premises. It shall be unlawful for any patron or other person on the premises of a drive-in restaurant to create a disturbance or a breach of the peace in any way whatsoever, including but not limited to loud and offensive talk, the making of threats or attempting to intimidate, or in any other conduct which causes a disturbance or a breach of the peace or threatened breach of peace. No person shall drive a motor vehicle onto the premises of a drive-in restaurant and leave the premises without parking such motor vehicle, unless there is no unoccupied parking space available on the premises.

(d) It shall also be unlawful for any person to leave any unoccupied motor vehicle on any drive-in restaurant parking lot and leave the premises thereof except with the knowledge and consent of the operator of the restaurant.

(e) It shall be the duty of each drive-in restaurant operator to post on the premises, in a conspicuous location, one (1) or more signs bearing the following legend:

> "Cruising in a motor vehicle is unlawful. Loud and offensive talk and other disturbance or breach of peace is prohibited. No unoccupied vehicle may be left on these premises without the consent of the restaurant operator."

(Code 1961, §§ 25-156—25-158)

Sec. 18-54. Sounding of horns at sandwich shops.

No person shall sound the horn on a vehicle at any place where cold drinks or sandwiches are served after 9:00 p.m.
(Code 1961, § 25-74)

Sec. 18-55. Parking or lingering near closed businesses after closing.

It shall be unlawful for any person to park motor vehicles, linger, assemble, congregate, or collect in any closed drive-in establishment or to loiter, assemble, congregate, or collect upon the streets in front of any closed establishment in the city between 12:00 midnight and 6:00 a.m.
(Code 1961, § 25-30)

Sec. 18-56. Fishing or littering near port facility dock.

(a) No person shall fish from the bank of the Arkansas River for a distance of fifteen hundred (1500) feet on either side of the port facility's dock on lands, owned by the city and operated by the port authority, or its lessees or littering along said area is hereby declared to be unlawful.

(b) No person shall litter in the area specified in subsection (a) of this section.
(Code 1961, § 25-122(a))

Secs. 18-57—18-100. Reserved.

ARTICLE III. OFFENSES INVOLVING PUBLIC SAFETY

Sec. 18-101. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 18-102. Discharge of firearms, air guns, etc.

The discharging or firing of any weapon, bow instrument where the pull of the bow is forty (40) pounds or more, compound bow, crossbow, recurved bow, long bow, air rifle, pellet gun, or firearm of any description within the city is prohibited with the following exceptions:

(1) When discharged or fired by a duly certified law enforcement officer when necessary in the performance of his duty.

(2) The chief of police may issue a permit to a licensed and qualified pest exterminator with the state authorizing the use of either an air rifle, air gun, or pellet gun for the purpose of eradicating pests causing injury or damage to property, or the existence of which creates a health hazard within this city. Such permit will restrict the use of such weapon to a designated area, for a limited period of time and to a specific person, and shall identify specifically the weapon to be used.

(3) The discharge of any weapon by a certified law enforcement or regulatory officer of any local, state or federal agency if the discharge is necessary to the performance of the officer's duty.

(4) The discharge of any bow instrument where the pull of the bow is forty (40) pounds or more, compound bow, crossbow, recurved bow, long bow, or firearm on any public or private archery, rifle or pistol range, or shooting gallery, approved for use in writing by the chief of police.

(5) The discharge of any bow instrument where the pull of the bow is forty (40) pounds or more, compound bow, crossbow, recurved bow, long bow, at a stationery target on the person's property, or upon property for which the person has the owner's permission to practice, if the stationery target is set up in such a way that it poses no significant risk of harm to any person or property.

For purposes of this section, a weapon is defined as: (a) A firearm or anything manifestly designed, made or adapted for the purpose of inflicting death or serious physical injury; or (b) Anything

that in the manner of its use or intended use is capable of causing death or serious physical injury.
(Code 1961, § 25-119; Ord. No. 17,884, § 1, 12-1-98)

Sec. 18-103. Fireworks.

No person shall possess, sell, manufacture or use fireworks except in accordance with the fire prevention code.

Sec. 18-104. Throwing or placing articles injurious to children.

It shall be unlawful for any person to scatter, throw or place, or cause to be scattered, thrown or placed, in any yards or on the porch of residences in the city for advertising or for any other purpose of any package or envelope containing any preparation, substance or drug, or any other article that is injurious to small children if accidentally partaken of by them.
(Code 1961, § 25-21)

Secs. 18-105—18-110. Reserved.

ARTICLE IV. GRAFFITI*

Sec. 18-111. Purpose and intent.

It is the purpose and intent of the city board of directors, through the adoption of this chapter, to provide additional enforcement tools to protect public and private property from acts of vandalism and defacement; especially, but not limited to, graffiti on privately and publicly owned walls, which is inimical and destructive to the rights of private property owners as well as the total community. It is further the intent of the city board of directors, through the adoption of this article, to serve notice upon all of those who disregard the property rights of others, that the enforcement agencies of the city, both the police department and the city codes department, will strictly enforce the law and pursue prosecution against those persons engaging in the defacement of public and private properties.
(Ord. No. 16,436, § 1, 6-1-93)

Sec. 18-112. Definition.

As used in this article "graffiti" means any inscription, word, figure, or design that is marked, etched, scratched, drawn, painted, pasted or otherwise affixed to or on any structural component of any building, structure, or other permanent facility regardless of the nature of the material of that structural component, or the nature of the inscription, to the extent that the same was not authorized in advance by the owner, or, is otherwise deemed to be a public nuisance.
(Ord. No. 16,436, § 2, 6-1-93)

Sec. 18-113. Unlawful to apply graffiti.

It shall be unlawful for any person to apply graffiti on any public or privately owned structure located on public or privately owned real property within the city. The existence of graffiti within the city limits of the City of Little Rock is hereby declared to be a public and private nuisance, and may be abated according to the provisions and procedures contained herein pursuant to state law.

(1) *Right of city to require removal by property owner.* It shall be unlawful for any person who is the owner or who has primary responsibility for control of property or who has primary responsibility for the repair or maintenance or property ("responsible party") to permit property which is defaced with graffiti to remain so defaced for a period of seven (7) days after notice by the city that the property is defaced with graffiti.

(2) *Right of city to use public funds to remove.*

a. *Right of entry on private property.* If after proper notice a responsible party fails to remove graffiti within the time specified in this article, the city shall have the right to enter upon any property for the limited purpose of removing graffiti that is within the public view.

***Editor's note—**Ord. No. 16,436, §§ 1—5, adopted June 1, 1993, did not specifically amend the Code; hence, its inclusion herein as Art. IV, §§ 18-111—18-115 was at the discretion of the editor.

Cross reference—Park rules concerning graffiti, § 22-21 et seq.

b. *Use of public funds.* Whenever graffiti located on public or privately owned property is viewable from a public place within the city, the city manager, or his designee, may direct the use of public funds for the removal of same, or for the painting or repairing of same, provided that the city manager shall not authorize or undertake to provide for the painting or repair of any more extensive area than that where the graffiti is located. If the city manager, or his designee, determines in writing that a more extensive area is required to be repainted or repaired in order to avoid an aesthetic disfigurement to the neighborhood or community and the responsible party deposits monies to pay for the costs of repainting or repairing, a more extensive area may be repainted or repaired.

c. *Lien against the property.* Expenses incurred by the city under this section shall be charged to the owner of the premises involved and shall be collected in the manner as provided in section 20-3 of the Little Rock, Arkansas, Revised Code.

(Ord. No. 16,436, § 3, 6-1-93; Ord. No. 19,115, § 1, 5-18-04)

Sec. 18-114. Penalties for violation.

Any person convicted of a violation of any of the provisions of this chapter shall be punished as provided in section 1-9, in addition, the person shall be required to pay the actual costs of graffiti removal, or five hundred dollars ($500.00) whichever is greater.

(Ord. No. 16,436, § 4, 6-1-93)

Sec. 18-115. Emergency clause.

The ability to expeditiously remove graffiti, especially gang-related graffiti, is essential to protection of the public health, safety and welfare. An emergency is therefore declared to exist and this article shall be in full force and effect from and after the date of its adoption.

(Ord. No. 16,436, § 5, 6-1-93)

Sec. 18-116. Reserved.

ARTICLE V. HATE INTIMIDATION

Sec. 18-117. Definitions.

As used in this article:

Deadly weapon means:

(a) A firearm or anything manifestly designed, made, or adapted for the purpose of inflicting death or serious physical injury; or,

(b) Anything that in the manner of its use or intended use is capable of causing death or serious physical injury.

Motor vehicle means a self-propelled, motorized vehicle capable of being operated on a roadway upon or in which a person or property is or may be transported or drawn upon a public or private road or public or private land.

(a) "Motor vehicle" includes without limitation:

(1) An all-terrain vehicle; or,

(2) A vehicle designed to be used for agricultural purposes, such as a tractor; or,

(3) A motor vehicle designed to assist a person with a physical disability with walking; or,

(4) A motorized scooter or other vehicle designed to be used as a toy by a child; or,

(5) A bicycle equipped with a small motor designed to assist the bicycle operator and that is not operated at a speed of greater than twenty (20) miles per hour (MPH); or,

(6) A riding lawnmower that is not operated on a public roadway; or,

(7) An electric personal assistive mobility device that is designed to not be capable of a speed of more than twenty (20) miles per hour (MPH).

(b) "Motor vehicle" does not include a device moved by human power or used exclusively upon stationary rails or tracks.

Negligent or an equivalent term such as "negligence" or "with negligence" means:

(a) A person acts negligently with respect to attendant circumstances or a result of his or her conduct when the person should be aware of a substantial and unjustifiable risk that the attendant circumstances exist or the result will occur.

(b) The risk must be of such a nature and degree that the actor's failure to perceive the risk involves a gross deviation from the standard of care that a reasonable person would observe in the actor's situation considering the nature and purpose of the actor's conduct and the circumstances known to the actor.

Occupiable structure means a vehicle, building, or other structure:

(a) In which any person, including one (1) or more individuals under eighteen (18) years old, lives or carries on a business or other calling; or,

(b) In which people assemble for a purpose of business, government, education, religion, entertainment, or public transportation; or,

(c) That is customarily used for overnight accommodation of any person, including one (1) or more individuals under eighteen (18) years old, whether or not a person is actually present.

Occupiable structure includes each unit of an occupiable structure divided into a separately occupied unit.

Person means an individual eighteen (18) years old or older.

Physical injury means the:

(a) Impairment of physical condition; or,

(b) Infliction of substantial pain; or,

(c) Infliction of bruising, swelling, or a visible mark associated with physical trauma.

Premises means an occupiable structure and any real property.

Property means real property or tangible or intangible personal property, including money or any paper or document that represents or embodies anything of value.

Public building means a structure owned, operated, or occupied by any agency of the State of Arkansas or its political subdivisions or by any agency of the United States Government.

Purposely or an equivalent term such as "purpose", "with purpose", "intentional", "intentionally", "intended", or "with intent to" means that a person acts purposely with respect to his or her conduct or a result of his or her conduct when it is the person's conscious object to engage in conduct of that nature or to cause the result.

Vehicle means any craft or device designed for the transportation of a person or property across land or water or through the air.

Vital public facility means a facility maintained for use for:

(a) Public communication, transportation, or supply of water, gas, or power;

(b) Law enforcement;

(c) Fire protection;

(d) Civil or national defense; or,

(e) Other public service.

(Ord. No. 21,888, § 1, 7-7-20)

Sec. 18-118. Hate offense.

A person eighteen (18) or older violates this article by reason of the actual or perceived race, color, creed, religion, ancestry, gender, gender identity, sexual orientation, physical or mental disability, or national origin of another individual or group of individuals, regardless of the existence of any other motivating factor or factors, the

person commits any of the following misdemeanors under state law within the city limits of Little Rock:

(a) With the purpose of causing physical injury to a person, the person causes physical injury to any person;

(b) The person recklessly causes physical injury to another person;

(c) The person causes physical injury to another person by means of a deadly weapon;

(d) The person purposely causes stupor, unconsciousness, or physical or mental impairment or injury to another person by administering to the other person, without the other person's consent, any drug or other substance;

(e) The person, with the purpose of terrorizing another person, threatens to cause physical injury or property damage to another person;

(f) The person recklessly destroys or damages property and the actual damage or destruction is one thousand dollars ($1,000.00), or more, but less than five thousand dollars ($5,000.00);

(g) The person:

(1) Starts a fire or causes an explosion with the purpose of destroying or otherwise damaging:

a. An occupiable structure or motor vehicle that is the property of another person and causes damage of five hundred dollars ($500.00) or less; or,

b. Any property, whether it belongs to the person, or is property of another person, for the purpose of collecting insurance of five hundred dollars ($500.00) or less for the destroyed or damaged property; or,

c. Any property, whether it belongs to the person, or is the property of another person, and negligently creates a risk of death or serious physical injury to any person; or,

d. A vital public facility and causes damage of five hundred dollars ($500.00) or less; or,

e. Dedicated church property used as a place of worship exempt from taxes pursuant to Arkansas state law and causes damage of five hundred dollars ($500.00) or less; or,

f. Any public building or occupiable structure that is either owned or leased by the state or any political subdivision of the state and causes damage of five hundred dollars ($500.00) or less; or,

g. An area of real property being used for commercial growth of timber or other agricultural product, if:

1. Timber or other agricultural product is destroyed or made commercially nonviable and, has a value that is less than five thousand dollars ($5,000.00).

(h) The person purposely:

(1) Defaces, mars, desecrates, or otherwise damages:

a. A public monument; or,

b. A work of art on display in any public place; or,

c. A place of worship, cemetery or burial monument; or,

d. Removes a broken or unbroken, commercial or rock, grave marker for any reason except for cleaning or repair by a family member, care taker, or preservation organization; and,

(2) The value of repairing or replacing the damaged object does not exceed five hundred dollars ($500.00).

(i) The person recklessly destroys or damages property and the actual damage or destruction is less than one thousand dollars ($1,000.00); or,

(j) The person purposely apprehension of imminent physical injury in another person.

(Ord. No. 21,888, § 1, 7-7-20)

Sec. 18-119. Penalties.

(a) A person convicted of, or who pleads guilty or *nolo contendere* to, a violation of sections 18-118(a), (b),(c),(d),(e),(f),(g), or (h), shall be subject to:

(1) A fine up to:

a. One thousand dollars ($1,000.00) for a first such offense; or,

b. Two thousand dollars ($2,000.00) for a second such offense; or,

c. Four thousand dollars ($4,000.00) for a third offense or any offense after a third offense; and; or,

(2) A sentence of up to one (1) year of imprisonment in the county jail; or,

(3) A combination of a fine and imprisonment; and,

(4) Mandatory supervised release for a period of up to one (1) year, regardless of how many days have been served in the county jail, which may include the payment of a probation fee, and participation in counselling or other court-ordered programs;

(b) A person convicted of, or who pleads guilty or *nolo contendere* to, a violation [of] Section 18-118(i) shall be subject to:

(1) A fine up to:

a. Seven hundred fifty dollars ($750.00) for a first such offense; or,

b. One thousand five hundred dollars ($1,500.00) for a second such offense; or,

c. Two thousand five hundred dollars ($2,500.00) for a third offense or any offense after a third offense; or,

(2) a sentence of up to ninety (90) days in the county jail; or,

(3) A combination of a fine and imprisonment; and,

(4) Mandatory supervised release for a period of up to one (1) year, regardless of how many days have been served in the county jail, which may include the payment of a probation fee, and participation in counselling or other court-ordered programs;

(c) A person convicted of, or who pleads guilty or *nolo contendere* to, a violation Section 18-118(j), shall be subject to:

(1) A fine up to:

a. Five hundred dollars ($500.00) for a first such offense; or,

b. One thousand dollars ($1,000.00) for a second such offense; or,

c. Two thousand dollars ($2,000.00) for a third offense or any offense after a third offense; or,

(2) A sentence of up to thirty (30) days in the county jail; or,

(3) A combination of a fine and imprisonment.

(d) Notwithstanding Paragraphs (a), (b), and (c) of this section, a court may deviate from the minimum penalties specified within this section under the following conditions:

(1) The court determines that there are mitigating circumstances and states them on the record; and,

(2) The court concludes that the punishment for the ordinance violation, in addition to the penalty for the state misdemeanor violation would be excessive under the circumstances, and state why on the record.

(e) If any part of a sentence of imprisonment pursuant to Subsections (a), (b), or (c), of this section are suspended, the court may also require a mandatory supervised release for a period of up to one (1) year, regardless of how many days have been served in the county jail, which may

include the payment of a probation fee, and participation in counselling or other court-ordered programs.
(Ord. No. 21,888, § 1, 7-7-20)

Sec. 18-120. Data collection.

The Little Rock Police Department, to the maximum extent possible, shall provide the Federal Bureau of Investigation, or any other division of the U.S. Department of Justice that collects crime statistics, and the Arkansas State Police, the Office of the Attorney General, or the Office of the Prosecuting Attorney for the Sixth Judicial District, upon request, data concerning the commission of a crime motivated by hate, in part, to assure compliance with the guidelines established pursuant to the Federal Hate Crime Statistics Act.
(Ord. No. 21,888, § 1, 7-7-20)

Chapter 19

MUNICIPAL COURT*

Art. I. **In General, §§ 19-1—19-20**
Art. II. **Bondsmen , §§ 19-21—19-84**
Div. 1. Generally, §§ 19-21—19-55
Div. 2. License, §§ 19-56—19-80
Div. 3. Permit, §§ 19-81—19-84

*Cross references—General penalty for ordinance violations, § 1-9; persons authorized to issue ordinance violation citations, § 2-114.

State law reference—Municipal courts, A.C.A. § 16-17-101 et seq.

ARTICLE I. IN GENERAL

Sec. 19-1. Continued in existence.

The municipal court, as it exists and operates on the adoption date of this Code, is continued.

Sec. 19-2. Probation fees authorized; amount.

The Little Rock Municipal Court, traffic and criminal divisions, are hereby authorized to levy fees to be paid by probationers, either supervised or unsupervised, during the probationary period set by the respective court. Payment of the fee may be made a condition of granting or continuing probation.

The fees shall be no less than fifteen dollars ($15.00), nor more than fifty dollars ($50.00) per probationer.

(Ord. No. 15,649, §§ 1, 2, 3-7-89)

Editor's note—Ord. No. 15,649, §§ 1, 2, adopted March 7, 1989, did not expressly amend the Code; inclusion as § 19-2 was at the editor's discretion.

Sec. 19-3. Third division of municipal court created; assignment of responsibilities.

(a) The third division of the Little Rock Municipal Court is hereby created as authorized by Act 39 of 1992, Acts of Arkansas.

(b) The annual salary of the judge shall comply with A.C.A. 16-17-108(ccc), as amended. The salaries of the court staff will be subject to those laws providing for the salaries of administrators, clerks, probation officers, and other municipal employees. Said employees shall be subject to city employment policies.

(c) The judge of the third division shall appoint a sufficient number of administrators, clerks, probation officers and other employees for the proper functioning of the court. Said employees shall perform the same duties as provided for by general law for other employees similarly situated. The judges of all three (3) divisions are hereby empowered by agreement to generally divide the duties among their individual court reporters, administrators, probation officers, and clerks on an equal and fair basis as they may determine to be in the best interest of the operation of all divisions to reduce duplicative services.

(d) It is the primary responsibility of the third division to assume jurisdiction of alleged violations of the Little Rock City Code, as revised. Provided, however, that the first, second, and third divisions may, by agreement, divide the assignment of any and all cases filed in Little Rock Municipal Court, as authorized by state law.

(e) Venue and jurisdiction of the third division of the Little Rock Municipal Court shall be as permitted by law.

(Ord. No. 16,601, §§ 1—5, 2-15-94)

Editor's note—Ord. No. 16,601, §§ 1—5, enacted Feb. 15, 1994, did not specifically amend the Code; hence, inclusion herein as § 19-3 was at the discretion of the editor.

Secs. 19-4—19-20. Reserved.

ARTICLE II. BONDSMEN*

DIVISION 1. GENERALLY

Sec. 19-21. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Agent, solicitor or *runner* means any person other than a licensed professional bondsman, who solicits or seeks business for a professional bondsman.

Compensation means any emolument, fee, commission, salary, gift, loan, entertainment, or other thing of value whatsoever, paid, donated, given, offered or promised in connection with providing or furnishing, or offering to provide or furnish appearance or appeal bonds, or similar obligations, for any person charged with any offense in the municipal court.

*Cross reference—Licenses, taxation and miscellaneous business regulations, Ch. 17.

State law references—Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.; state regulation of bail bondsmen, A.C.A. § 17-17-101 et seq.

Conducting or engaging in the business of a professional bondsman means any act for compensation or becoming surety upon, or providing or furnishing or offering to provide or furnish appearance or appeal bonds, or any similar obligation, for any person or persons charged with any offense in the municipal court generally designated as bail bonds.

Professional bondsman means any person who for compensation conducts or engages in the business of becoming surety upon, or providing or furnishing, or offering to provide or furnish appearance or appeal bonds in the municipal court constituting bail for appearance in court, or any similar obligation, for any person or persons charged with any offense. "Professional bondsman" includes any representative or attorney-in-fact of any surety company authorized to do business in the state, or any surety company who shall provide or furnish or offer to provide or furnish such bonds for a compensation in excess of, or other than charged by any surety company.
(Code 1961, § 8-1)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 19-22. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9. If any officer or employee violates this article, the matter shall be immediately reported to the chief of police and the civil service commission. A second conviction of a professional bondsman of a violation of this article shall automatically bar such person or firm from further engaging in the business as such in the city.
(Code 1961, § 8-17)

Sec. 19-23. Exemption.

This article does not apply to any surety companies authorized to do business in the state and representatives of such companies if they are not professional bondsmen.
(Code 1961, § 8-1(f))

Sec. 19-24. Rules and regulations.

The judges of the municipal court may adopt and promulgate rules and regulations in connection with the business of acting as a professional bondsmen. Such rules and regulations may not be inconsistent with law or the provisions of this article.
(Code 1961, §§ 8-6, 8-8)

Sec. 19-25. Execution of bail bonds.

Bail bonds for compensation, if executed by a person, shall be executed by and in the name of such person. If the bail bond is executed by a firm, it shall be executed by a member of the firm in the name of the firm.
(Code 1961, § 8-4)

State law reference—Bail, A.C.A. § 16-84-101 et seq.

Sec. 19-26. Acceptable bonds.

Each professional bondsman making bond for any person taken into custody by the police of the city shall post cash, travelers' checks, or cashier's checks, property bond, or surety bond by a surety company duly authorized to do business in the state with the police officer in charge of the police desk for transmittal to the city collector.
(Code 1961, § 8-14(k))

Sec. 19-27. Schedule of fees and charges.

(a) A professional bondsman shall adopt an itemized schedule of fees and charges, as compensation, for services rendered in connection with the execution of bail bonds, and file such schedule, properly typed, with the judge of the municipal court and chief of police. The schedule shall be sworn to as the true fees to be charged by such bondsman. If any charge or amendment is made in or to such schedule, notice and copies thereof must be given to the judge and chief of police immediately and to all other officers and officials to whom copies of the original schedule are furnished. Such amendments shall also be sworn to.

(b) A professional bondsman shall file typed copies of such schedule with the clerk of the municipal court and the chief of police.

(c) A professional bondsman shall post a printed copy, in large type, of such schedule in a conspicuous place in his place of business, and note thereon any changes or amendment thereof.

(d) A professional bondsman shall furnish printed copies, in large type, of such schedule to the officer in charge of each police precinct or station, jail, and every other place in the city in which persons in custody of the law are detained, which copies shall be conspicuously posted in each such place. Any change or amendment thereof shall be noted thereon.

(e) No professional bondsman shall make any charge for his services as such except in accordance with the schedule.
(Code 1961, § 8-14(a)—(d), (h))

Sec. 19-28. Receipts.

A professional bondsman shall furnish each person, for whom a bail bond is executed, with an itemized receipt showing the character of the service or services rendered and the true itemized amount of money or other thing of value, paid or given for or in connection with each item of service rendered. Copies of such receipt shall be promptly filed with the clerk of the municipal court, and one (1) copy thereof shall be retained on file in the bondsman's office for inspection.
(Code 1961, § 8-14(g))

Sec. 19-29. Posting of lists of professional bondsmen; changes in lists, etc.

(a) The chief of police shall cause to be printed on or before February 1 of each year a list alphabetically arranged of the persons licensed to conduct or engage in the business of a professional bondsman and furnish copies thereof to the judge and the clerk of the municipal court. He shall also furnish five (5) copies thereof to the officer in charge of each police precinct or station, jail, and every other place in the city in which persons in custody of the law are detained, one (1) of which copy shall be conspicuously posted in each such place. The additional copies of such list shall be kept on hand for the purpose of being shown upon request to such persons as are detained in custody.

(b) When a person in custody in any such place of detention requests any police officer to furnish

him the name of a bondsman, such list shall be shown to the person and such officer within a reasonable time shall put the person so detained or his authorized representative in communication with the bondsman selected by him. The officer shall contemporaneously make a record in the blotter or book of record kept in the place of detention for such purpose, showing the name of the person detained, and the name of his authorized representative, if any, requesting the bondsman, the offense with which the person is charged, the time at which the request and communication was made, the name of the bondsman requested, and the name of the person by whom the bondsman was called, which record shall be preserved as a public and permanent record in the book or blotter in which entered.

(c) The chief of police shall notify promptly each official or officer of the city to whom he furnishes lists of professional bondsmen, of any change or correction therein by reason of the issuance of additional licenses or the suspension or revocation of existing licenses. Such officials and officers shall make proper corrections and notations of such changes on the copies of such lists.
(Code 1961, §§ 8-12, 8-13)

Sec. 19-30. Locations where soliciting business, etc., prohibited; identification at police station.

(a) A professional bondsman shall not enter a police precinct or station, jail, or other place where persons in the custody of the law are detained in the city for the purpose of obtaining employment as a bondsman without having been previously called by a person so detained or by some relative or other person or officer authorized by and acting for and on behalf of the person so detained. Whenever any person engaged in the bonding business shall enter a police precinct or station, jail, or other place where persons in the custody of the law are detained, he shall forthwith state to the officer in charge thereof his mission there, and the name of the person requesting him to come to such place. The same shall be recorded by the officer or employee in charge of said place of detention and preserved in a public record maintained for that purpose.

(b) A professional bondsman shall not personally or otherwise solicit business in, at or near any courtroom or corridor leading thereto.
(Code 1961, § 8-14(e), (f))

Sec. 19-31. Restrictions on dealing with third parties.

(a) A professional bondsman shall not receive directly or indirectly for his or its services any compensation from any lawyer or other third person, other than the fee and charge, if any, for executing a bail bond. It shall be unlawful for any lawyer or third person to compensate any professional bondsman or any other person, except to pay a bond charge or fee charged and receipted for as provided in this article.

(b) A professional bondsman shall not directly or indirectly pay or give, or promise to pay or give, to any person any sum of money or other thing of value to secure or for securing or sending or referring bail bond business or clients either to him or to any other professional bondsman.

(c) It shall be unlawful for any person directly or indirectly to receive or take from any professional bondsman any money or other thing of value as compensation, or as a gift, for securing or sending or referring bail bond business or clients in any way to or for a professional bondsman.
(Code 1961, § 8-14(h)—(j))

Sec. 19-32. Restriction on city employees suggesting bondsmen.

It is unlawful for a police officer or any other city employee to suggest to any person in custody of the city a particular bondsman or influence in any way the choice of a bondsman.
(Code 1961, § 8-12)

Sec. 19-33. Influencing cases, witnesses, etc.; practicing law.

A professional bondsman shall not directly or indirectly influence or promise or attempt in any way to influence, any court or any public official or any witness in any case. No professional bondsman shall directly or indirectly practice law and

this extends to requesting the court to continue a case or making a motion of any type in the municipal court.
(Code 1961, § 8-14(j))

Sec. 19-34. Furnishing information concerning proposed raids or arrests.

It shall be unlawful for any police officer or other public official, in advance of any raid by police or other peace officer or public official or the execution of any search warrant or warrant of arrest, to give or furnish either directly or indirectly, any information concerning such proposed raid or arrest to any professional bondsman or any attorney-at-law except that a police or other peace officer, in conducting any raid or in executing any search warrant or warrant of arrest may communicate to any attorney-at-law or professional bondsman any fact necessary to enable such officer to obtain information necessary to enable such officer to carry out such raid or execute such process.
(Code 1961, § 8-16)

Sec. 19-35. Nolle prosse or commutation of sentence.

In order to more completely supervise the activities of bail bondsmen, it shall be unlawful for any nolle prosse or commutation of sentence imposed by the municipal court of the city to be had or made, except at a regular session of the court or except in cases of illness or extreme emergencies.
(Code 1961, § 8-18)

Secs. 19-36—19-55. Reserved.

DIVISION 2. LICENSE

Sec. 19-56. Required.

It shall be unlawful for any person to engage in the business of a professional bondsman in the municipal court without a license issued by the city collector.
(Code 1961, §§ 8-2, 8-8)

Sec. 19-57. Persons eligible.

(a) A license to engage in the business of a professional bondsman shall not be issued to any individual unless he is:

(1) A citizen and resident of the city or the county.

(2) Twenty-one (21) years of age or over, with legal capacity to answer for the default or misdoing of another.

(3) Of good moral character and reputation.

(b) A license to engage in the business of a professional bondsman shall not be issued to a firm unless each member of the firm possesses the qualifications required of an individual under subsection (a) of this section.
(Code 1961, § 8-3)

Sec. 19-58. Classifications.

Licenses for professional bondsmen shall be classified as follows:

(1) A license for an individual;

(2) A license for a "firm" which shall be in the name of the firm.

(Code 1961, § 8-9(a))

Sec. 19-59. Fee.

The annual fee to be paid for a license for a professional bondsman shall be as established in section 17-52, paragraph (a)(46).
(Code 1961, § 8-11)

Sec. 19-60. Contents.

Each license for a professional bondsman shall show, among other items, the following:

(1) The classification of the license.

(2) The name and business address of the licensee. If the license is a firm, the names of the members thereof shall also be shown.

(3) The dates of issue and expiration.

(Code 1961, § 8-9(b))

Sec. 19-61. Expiration and renewal.

A license for a professional bondsman shall expire at the end of the calendar year for which it was issued unless sooner suspended or revoked. Application for renewal of license shall be filed with the chief of police and the judges of the

municipal court not less than thirty (30) days prior to the expiration date of the license.
(Code 1961, § 8-10)

Sec. 19-62. Other prerequisites to issuance.

No license for a professional bondsman shall be issued or renewed unless and until the applicant therefor:

(1) Presents to and files with the judges of the municipal court all necessary forms, affidavits, surety bonds or any other papers that are provided for in this article; and

(2) Pays all required fees and charges.
(Code 1961, § 8-8)

Sec. 19-63. Suspension or revocation.

(a) The chief of police, whenever he has knowledge or it is brought to his attention that a professional bondsman has violated or is violating any of the provisions of this article shall bring the matter to the attention of the municipal judge. The municipal judge shall cite such bondsman to appear before him on a day certain to show cause why his license should not be suspended or revoked. The citation shall state the reason and grounds for its issuance and the date, hour and place of the hearing, and shall be served on the bondsman personally.

(b) It shall be the duty of the bondsman cited to appear personally at the time and place of the hearing named in the citation. He shall have the right at such hearing to be represented by counsel, to introduce witnesses on his behalf, and at his own expense have the testimony given at such hearing transcribed.

(c) The municipal judge may summon witnesses to appear at such hearings, and to administer oaths.

(d) If after such hearing the municipal judge determines that there is a good and sufficient reason for the suspension or revocation of the license, he shall enter an order effective immediately to such effect and so notify the bondsman, either personally or by registered mail with a return receipt requested. The municipal judge shall give notice of the suspension or revocation of such license, as the case may be, to the city.
(Code 1961, § 8-15)

Secs. 19-64—19-80. Reserved.

DIVISION 3. PERMIT

Sec. 19-81. Required.

No license to engage in the business as a professional bondsman shall be issued until a permit has been issued by the judges of the municipal court or by the authorized agent thereof.
(Code 1961, §§ 8-5, 8-7(a))

Sec. 19-82. Application.

(a) The application for the permit required by this division shall be in such form as may be prescribed by the municipal judges. The application shall be in writing, filed in duplicate, signed and sworn to by the applicant and filed with the chief of police. If the applicant is a firm, the application shall be signed and sworn to by all the members thereof.

(b) Accompanying the application shall be a written statement by the applicant, signed and verified under oath, setting forth:

(1) The name, age and business and home addresses of the applicant, if a person. If the applicant is a firm, the name, date of organization, and business address of the firm and the names, ages, and business and home addresses of the members thereof shall be stated.

(2) The name, age and residence of each person employed by the bondsman, as clerk or otherwise in the bonding business. It shall be the duty of each such person to file an affidavit with the chief of police stating that he will abide by the terms and provisions of this article.

(3) The applicant has never been convicted of a felony or any offense involving moral turpitude.

(4) An affidavit on the part of the applicant to perform well and faithfully the duties of a professional bondsman according to law and the provisions of this article.

(5) A certificate as to the moral character and reputation of the person or persons signing the application, executed under oath and by not less than three (3) reputable citizens of the city or county.

(Code 1961, §§ 8-6, 8-7(a), (c))

Sec. 19-83. Surety bond.

(a) The application for the permit required by this division shall embody or there shall be attached thereto a surety bond in the sum of five thousand dollars ($5,000.00) in favor of the city. The obligors on any such surety bond shall be the applicant and a responsible surety company duly qualified under the laws of the state. In lieu of a surety bond, the applicant for the permit may as to all or any part of the bond, deposit with the city collector an equivalent amount of cash. The city collector shall deposit any cash so received in the general fund.

(b) The conditions of the surety bond and security required shall be substantially as follows:

"Whereas, the said __ (Professional Bondsman) has been duly licensed for the year _____ in accordance with the provisions of the chapter on PROFESSIONAL BONDSMEN by the City of Little Rock, as a professional bondsman, authorized to become surety or provide surety for compensation, on any bail bond, recognizance bond, appeal bond, or other bond required to be filed in the City of Little Rock in any action or proceeding in the Municipal Courts of the City of Little Rock wherein the City of Little Rock is a plaintiff, or any appeal therefrom, and any criminal proceeding in the Municipal Court of Little Rock, or any appeal therefrom.

"NOW, THEREFORE,

"(1) If _____ (Professional Bondsman) shall, in the case of every bond executed by him during the year _____, as to which a judgment of forfeiture is rendered against him, pay such judgment within thirty (30) days after the entry of same; and,

"(2) If there has been deposited with _____ (Professional Bondsman) any sum of money or any other property by any principal upon any bail bond, recognizance bond, appeal bond, or other court bond required to be filed in the City of Little Rock in any court with jurisdiction in the City upon which _____ (Professional Bondsman) appears as surety, and the sum of money or other property less lawful charges only is returned by _____ (Professional Bondsman) to the principal thereon; and

"(3) If _____ (Professional Bondsman) satisfies all fines and penalties imposed upon him for violations of chapter 19, article II of the Little Rock City Code.

"Then this obligation shall be void;

"Otherwise, it shall be in full force and effect."

(Code 1961, § 8-7(b))

Sec. 19-84. Issuance.

A permit to engage in the business of a professional bondsman shall be granted and issued to an applicant if and when the applicant complies with the conditions and requirements of this chapter and the rules and regulations adopted by the judges of the municipal court.

(Code 1961, § 8-7)

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Chapter 20

NUISANCES*

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Sec. 20-3. Trash, weeds, etc.
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Article II. Unsafe Buildings, Structures, Manufactured Homes and Mobile Homes

Sec. 20-24. Violation.
Sec. 20-25. Jurisdiction.
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Sec. 20-27. Penalty.
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Sec. 20-29. Abatement by city.
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Article IV. Substandard Maintenance of Mobile Homes and Manufactured Homes

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***Cross references—**Animals, Ch. 6; fences, walls, etc., § 8-35; health and sanitation, Ch. 14; solid waste, Ch. 28; certain violations of solid waste ordinance declared nuisance, § 28-5.

State law references—Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.; authority to define and abate nuisances, A.C.A. § 14-54-104.

Sec. 20-77. Notice of violation.
Sec. 20-78. Tenant responsibility.
Sec. 20-79. Repairs.
Sec. 20-80. Registration of mobile homes and manufactured homes.
Sec. 20-81. Prohibition on mobile homes.
Sec. 20-82. Inspection; required notification of move into or within the city.
Sec. 20-83. Razing, removal.

ARTICLE I. IN GENERAL

Sec. 20-1. Penalty.

Unless otherwise set out in a specific section, any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9 except as set forth below:

(1) a. Parking a vehicle in a residential yard in violation of section 36-513 is a nuisance subject to an immediate citation;

b. Any vehicle illegally parked in a residential yard may be cited for the violation of this article, and the owner shall be responsible for any penalties imposed.

(2) a. Allowing any person to park a vehicle in a residential yard in violation of section 36-513 is a nuisance subject to an immediate citation;

b. Any owner or occupant of a residence who permits any person to park illegally any vehicle in a residential yard may be cited for the violation of this article, and the owner or occupant shall be responsible for any penalties imposed.

(3) Any person who pleads guilty or nolo contendere, or who is found guilty at trial of parking a vehicle in a residential yard, or allowing any vehicle to be parked in a residential yard, shall be fined fifty dollars ($50.00) and any applicable court costs.

(4) a. The presence of grass, weeds, or any other plant that is not cultivated, which has grown to a height greater than ten (10) inches on an individual lot, tract, parcel, or grown in rank profusion upon the premises or in, along, upon, or across the abutting sidewalk, parkway or alley in violation of section 20-2 is a nuisance subject to an immediate citation;

b. Any owner or occupant of a property who permits grass, weeds, or any other plant that is not cultivated, to grow to a height greater than ten (10) inches on an individual lot, tract, parcel, or to grow in rank profusion upon the premises or in, along upon, or across the abutting sidewalk, parkway or alley in violation of section 20-2 may be cited for the violation of this article, and the owner or occupant shall be responsible for any penalties imposed.

(5) a. Any person who pleads guilty or nolo contendere, or who is found guilty at trial of permitting grass, weeds, or any other plant that is not cultivated, to grow to a height greater than ten (10) inches on an individual lot, tract, parcel, or to grow in rank profusion upon the premises or in, along upon, or across the abutting sidewalk, parkway or alley in violation of section 20-2 shall be fined as follows:

(i) Fifty dollars ($50.00) and any applicable court costs for the first violation within a calendar year;

(ii) One hundred dollars ($100.00) and any applicable court costs for the second violation at the same individual lot, tract, or parcel within a calendar year;

(iii) Two hundred dollars ($200.00) and any applicable court costs for the third and all subsequent violations at the same individual lot, tract, or parcel within a calendar year.

b. A calendar year is defined as a twelve-month period that begins on January 1 and ends on December 31.

(Ord. No. 20,540, §§ 1, 2, 2-7-12; Ord. No. 22,597, § 1, 4-1-25)

Sec. 20-2. Prohibited generally; abatement.

(a) It shall be unlawful for any person having supervision or control of any lot, tract, parcel of land or portion thereof, within the corporate limits of the city to suffer or permit any of the following:

(1) Grass, weeds, or any other plant that is not cultivated, to grow to a height greater than ten (10) inches on an individual lot, tract, parcel, or to grow in rank profusion upon the premises or in, along upon, or across the abutting sidewalk, parkway or alley.

(2) Solid or liquid household, yard, commercial, industrial, construction or demolition waste, including but not limited to, rubbish, trash, brush and litter, whether dumped, spilled, burned or abandoned; dead trees; building materials; openly stored appliances or furniture; stagnant pools of water or vessels in which water might accumulate where mosquitoes or other insects may breed; or any other objection able, unsightly, unsanitary or unsafe matter of whatever nature to be present upon any lot or parcel of land, including in or along a stream or drainage way and any adjacent right-of-way or alley, with the following exceptions:

a. Building materials may only be stored openly on the premises if they are covered and not deteriorated so as to be unusable for their ordinary purpose; stored at least eighteen (18) inches off the ground; and are so stored in conjunction with an active building permit, a project on said premises not requiring a building permit, or a business enterprise that operates under a current, exhibited privilege license.

b. No liquid or solid shall be placed in or along any stream or drainage way and no otherwise illegal dumping of any waste, furniture, appliances, or building materials shall be allowed on any parcel of land, including all adjacent rights-of-way and alleys, unless required permits have been obtained.

c. Open storage of appliances or furniture shall only be permitted where such storage is in connection with an appliance sales or service business that is operated under a current and exhibited privilege license and located on a properly zoned parcel and if all doors, latches and locks are removed or made inoperable in a manner to ensure the safety of all citizens.

d. Rain barrels are allowed in the City of Little Rock for the purpose of collecting and storing rainwater from roofs and other nonpermeable surfaces that would otherwise be lost to runoff and diverted to storm drains and streams. Equipment for rain barrels shall be screened from view of adjacent properties and the public right-of-way through fencing, landscaping or a combination of the two. Rain barrels must be covered by a lid; if no lid is used, then rain barrels must be covered with a screen that allows water to get in, but prevents the breeding of mosquitoes. The lid or screen, whichever is used, must be securely attached with some form of lock in order to prevent the barrel from being opened and accessed by anyone not authorized by the owner of the barrel. If the barrel has an overflow on the side, it must have screening as well.

(3) The open storage of an abandoned automobile unless such storage is in connection with an automotive sales or repair business enterprise which operates under a duly licensed and exhibited privilege license and located on a properly zoned parcel. In this subsection "abandoned automobile" means any motor vehicle or part thereof that is in a state of disrepair or incapable of being moved under its own power.

(4) Trees, shrubs, bushes or any other plant or object impeding the flow of a public right-of-way or pedestrian traffic on any sidewalk, or in any other manner causing an unauthorized obstruction of the public enjoyment of a sidewalk or public right-of-way.

(5) Any actor condition constituting a nuisance under A.C.A., or common law.

(b) The occupant or owner of each residential dwelling or business shall provide an approved container with tight-fitting cover for the holding and storage of garbage. The container shall be placed at a point on the premises where the garbage collector can conveniently have access to same. Approved garbage containers shall have handles suitable as aids for lifting the container.

(c) Whenever a city employee designated by the city manager or his duly authorized agent or representative determines that there are reasonable grounds to believe that there has been a violation of any provision of this section, he shall give notice of such alleged violation to the person responsible therefor, that such alleged violation shall constitute a nuisance. Such notice shall:

(1) Be in writing.

(2) Include a statement of the reasons why it is being issued, and the section of the Code that is alleged to be in violation.

(3) Allow no more than seven (7) days for performance of any act the notice requires to be completed.

(4) State that if the alleged violation is not corrected within the time set forth in the notice, the city employee designated by the city manager or his duly authorized agent or representative shall institute legal proceedings, charging the person with a violation of this section.

(5) State that no further notice, warning or grace period will be given for any repeat alleged violation of the same subsection of this section 20-2 within the remainder of the same calendar year.

(d) With the exception noted in subsection (e) below, the person responsible for the violation shall be notified by one (1) or more of the following methods:

(1) By delivery to the owner, agent or responsible party, personally.

(2) By leaving the notice at the usual place, abode or business of the owner, agent or responsible party, with a person of suitable age and discretion.

(3) By depositing the notice in the United States mail, addressed to the owner, agent or responsible party, at his last known address by certified mail, postage prepaid thereon.

(4) By posting and keeping posted for a period of not less than twenty-four (24) hours, a copy of the notice in a conspicuous place on the premises alleged to be in violation.

(5) By depositing the notice in the United States mail, addressed to the owner, agent or responsible party, at his last known address by regular mail with a notarized affidavit stating date mailed, postage prepaid thereon. This form of notice shall only be used in conjunction with one (1) or more other forms of notice permitted by this subsection.

(6) Notice under this section shall not apply to a nuisance that is subject to immediate citation under section 20-1.

(e) No further notice, warning, or grace period is required to be given for any alleged repeat violation of the same subsection of this section for a period of three hundred and sixty-five (365) days after a notice has been issued.

(f) Violation of the provisions of this section may be prosecuted by the issuance of a criminal information or by the issuance of a citation by a law enforcement officer.

(Code 1961, §§ 33-1, 33-2, 33-4; Ord. No. 15,098, §§ 1—6, 5-20-86; Ord. No. 15,712, 7-18-89; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 18,904, § 1,

7-15-03; Ord. No. 19,114, § 1, 5-4-04; Ord. No. 20,254, §§ 12, 13, 4-20-10; Ord. No. 20,580, § 1, 5-1-12; Ord. No. 22,597, § 2, 4-1-25)

Sec. 20-3. Trash, weeds, etc.

(a) The head of the city department designated by the city manager may order the owner of any real property within the city to cut weeds, remove garbage, rubbish and other unsightly and unsanitary articles and things that may be upon the property; and to eliminate, fill up or remove stagnant pools of water or any unsanitary thing, place or condition which becomes a breeding place for mosquitoes, flies or germs harmful to the health of the community. The order shall be in writing and shall be issued to the owner of the real property involved. If the owner of any real property is unknown or his whereabouts is not known or he is a non-resident of this state, then a copy of the written notice shall be posted upon the premises in some prominent place.

(b) If the owner of any real property within the city neglects or refuses to remove, abate or eliminate any such condition as provided for in subsection (a) of this section after having been given a minimum of seven (7) days' notice in writing by regular mail and certified mail, return receipt requested, to do so, the city department designated by the city manager may do whatever may be necessary to correct the condition and charge the cost thereof to the owner of the real property. The city shall have a lien against such property for the cost.

(c) The lien may be enforced and collected at any time within ten (10) years after a lien has been filed in either one of the following manners:

(1) By an action for foreclosure in circuit court; or

(2) The amount of the lien may be determined at a hearing before the board of directors held after thirty (30) days' written notice by certified mail, return receipt requested, to the owner of the property if the name and address of the owner are known and to the lienholders of record. If the name of the owner cannot be determined, the public hearing may be held only after publication of notice of the hearing in a newspaper having a bona fide circulation in the county for one (1) insertion a week for four (4) consecutive weeks. The amount so determined at the public hearing, plus ten (10) percent penalty for collection, shall be certified by the board of directors to the county tax collector to be placed on the tax books and collected accordingly. The amount, less three (3) percent, shall be paid to the city by the county tax collector.

(d) The determination of the board of directors that confirms the amount of the lien is subject to appeal by the owner of the property, or by any lienholder of record, in the circuit court filed within forty-five (45) days after the determination is made. If the owner or lienholder fails to appeal in this time, the lien amount is fully perfected and not subject to further contest or appeal. The city shall file its lien with the circuit clerk no later than sixty (60) days after the board of directors confirms the lien amount or, if the lien is appealed, within sixty (60) days after the city prevails on appeal.

(Code 1961, §§ 15-18, 15-19; Ord. No. 15,916, § 1, 8-7-90; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 18,904, § 2, 7-15-03; Ord. No. 20,254, § 14, 4-20-10; Ord. No. 20,313, § 1, 9-7-10)

State law reference—Lot clearing, A.C.A. § 14-54-901 et. seq.

Secs. 20-4—20-23. Reserved.

ARTICLE II. UNSAFE BUILDINGS, STRUCTURES, MANUFACTURED HOMES AND MOBILE HOMES*

Sec. 20-24. Violation.

It shall be a violation of this article for any owner, as defined herein, to permit, allow to remain, fail to take action to demolish, remove or correct, or fail to board and secure any dangerous, dilapidated, substandard or unsafe building, structure, manufactured home or mobile home as directed by the city pursuant to section 20-28.
(Ord. No. 15,630, § 10(20-27), 1-17-89; Ord. No. 16,154, § 1, 1-21-92: Ord. No. 20,882, § 2, 6-3-14)

Sec. 20-25. Jurisdiction.

In every case in which any person shall be prosecuted and found guilty of a violation of any of the provisions of this chapter or any other ordinance of the city in relation to nuisances, it shall be competent for, and shall be the duty of the municipal court, if the circumstances of the case require it, to make an order requiring the removal, abatement or discontinuance of the nuisance shown in such case, and to order and direct that if within a reasonable and given time therein named, the same shall not be removed, abated or discontinued by the person or persons proceeded against therefor, such nuisance shall be abated or removed by the building official with such assistance as he may deem necessary to call to his aid for that purpose, and in such case the person proceeded against shall be responsible for all the costs and expenses incurred in the removal or abatement of such nuisance by the building official.
(Ord. No. 15,630, § 11(20-27), 1-17-89)

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*__Editor's note—__Section 1 of Ord. No. 20, 882 renamed art. to from "Unsafe Buildings or Structures", to "Unsafe Buildings, Structures, Manufactured Homes and Mobile Homes", as set out herein.

__Editor's note—__Ord. No. 15,630, §§ 10 and 11, adopted Jan. 17, 1989, added sections to the beginning of Art. II, designated as §§ 20-26 and 20-27; and § 12 of said ordinance provided for the renumbering of the existing sections of Art. II to provide for the inclusion of the two new sections. In order to avoid the renumbering of existing sections of Art. II and the resultant obsolescence of internal Code and index references to same, the two new sections have been added as §§ 20-24 and 20-25, at the editor's discretion.

Sec. 20-26. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Building official means the person responsible for enforcing the provisions of this article.

Dangerous means, with reference to a building, structure, manufactured home or mobile home, that it:

(1) Is so damaged, decayed, dilapidated, unsanitary, unsafe or vermin-infested that it creates a serious hazard to the health or safety of the occupants or of the public;

(2) Lacks illumination, ventilation, or sanitation facilities adequate to protect the health or safety of the occupants or the public;

(3) Is a dilapidated building, structure, manufactured home or mobile home;

(4) Is a substandard building, structure, manufactured home or mobile home; or

(5) Is an unsafe building, structure, manufactured home or mobile home.

Dilapidated building or structure means a building, structure, dwelling, dwelling unit, multiple dwelling, apartment, apartment house, or a garage, shed or other accessory structure, which by reason of inadequate maintenance, dilapidation, obsolescence, or abandonment, is unsafe, unsanitary, or that constitutes a fire hazard, or that is otherwise dangerous to human life and is no longer adequate for the purpose for which it was originally intended.

Owner means the holder of the title in fee simple and any person in whose name tax bills on property are submitted. "Owner" also means any person who, alone or jointly or severally with others:

(1) Has legal title to any building or structure, with or without accompanying actual possession thereof; or

(2) Has charge, care or control of any building or structure, as owner, executor,

executrix, administrator, trustee, guardian of the estate of the owner, mortgagee or vendee in possessions, assignee of rents, lessee, or other person in control of a building or structure, or his duly authorized agents. Any such person thus representing the actual owner shall be bound to comply with the provisions of this chapter, and of rules and regulations adopted pursuant thereto, to the same extent as if he were the owner.

Substandard dwelling or structure means a dwelling unit, multiple dwelling, apartment, apartment house or any other space used or intended to be used as a habitable living space in any building or structure that does not meet the requirements of chapter 8 of the Little Rock Code of Ordinances.

Substandard manufactured home or mobile home means a manufactured home or mobile home that is maintained as a substandard MH-unit, contrary to the prohibitions in article IV, chapter 20 of the Little Rock Code of Ordinances.

Unsafe building, structure, manufactured home or mobile home means a building, structure, manufactured home, mobile home, dwelling, apartment house, rooming house or building or structure used as a dwelling, that is unsafe, unsanitary, unfit for human habitation, or not provided with adequate egress, or that constitutes a fire hazard, or is otherwise dangerous to human life, or that in relation to its existing use constitutes a hazard to safety or health by reason of inadequate maintenance, dilapidation, obsolescence or abandonment.

(Code 1961, §§ 18-10, 18-10(a), 18-16(10), (12), (32), (45), 18-20(a), 18-70(a); Ord. No. 20,254, §§ 7, 8, 4-20-10; Ord. No. 20,882, §§ 3—6, 6-3-14)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 20-27. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Cross references—Violation, § 20-24; abatement of nuisance by building official, responsibility for costs therefor, § 20-25.

Sec. 20-28. Abatement notice, notice to vacate and time to repair.

(a) Whenever the building official declares a building, structure, manufactured home or mobile home to be dangerous or unfit for human habitation, the official shall give notice of such declaration to the owner by placarding the building, structure, manufactured home or mobile home.

(b) Service of the written notice shall be sent by regular mail and by certified mail, return receipt requested. Additional notice may be provided by delivery to the owner personally, or by leaving the notice at the usual place of abode of the owner with a responsible adult.

(c) The owner shall initiate repairs within fifteen (15) days of the notice and shall complete repairs within ninety (90) days of the notice.

(d) The placard and written notice shall state the following:

(1) That further occupancy is prohibited for reasons of public health, safety, or welfare; and on what date residents are ordered to vacate;

(2) The section of the Little Rock Revised Code of Ordinances, the Arkansas Fire Prevention Code, or both;

(3) That by order of the city, the building, structure, manufactured home, or mobile home, has been declared dangerous or unfit for human habitation by the department of housing and neighborhood programs or fire marshal; and what section of the Little Rock Revised Code of Ordinances upon which the determination was made;

(4) That the owner of the building, structure, manufactured home, or mobile home, and any resident thereof, has the right to appeal the decision of the building official to the Little Rock Construction Board of Adjustment and Appeals by submitting such a request in writing to the building code manager within fifteen (15) days for

abatements under sections 20-28 and 2-29 and within five (5) days for emergency abatements under section 20-32.

(Code 1961, §§ 18-10(a), (b), 18-70(b)(1)—(b)(4), (c); Ord. No. 15,630, § 8, 1-17-89; Ord. No. 16,154, § 2, 1-21-92; Ord. No. 20,195, § 1, 12-1-09; Ord. No. 20-254, §§ 9, 10, 4-20-10; Ord. No. 20,882, § 7, 6-3-14; Ord. No. 22,598, § 1, 4-1-25)

Cross reference—Jurisdiction, § 20-25.

Sec. 20-29. Abatement by city.

(a) If the owner, agent or person in control of property subject to a notice served pursuant to this article cannot be found within the stated time limit, or if the owner, agent, or person in control fails, neglects, or refuses to comply with the notice to repair, rehabilitate, secure, or demolish and remove, or failure to remove the building, structure, manufactured home or mobile home, the building official, after having ascertained the cost, may cause such building, structure, manufactured home or mobile home to be abated, demolished, or secured as provided for by order of the city board of directors. The building official shall require that the building, structure, manufactured home or mobile home remain vacant during the pendency of the action or until the nuisance is abated.

(b) Expenses incurred by the city under this section shall be charged to the owner of the property involved and shall be collected in the manner as provided in section 20-3, as applicable, or by any other method permitted by law.

(Code 1961, § 18-70(b)(5), (b)(6); Ord. No. 15,630, § 9, 1-17-89; Ord. No. 15,916, § 2, 8-7-90; Ord. No. 20,254, § 11, 4-20-10; Ord. No. 20,882, § 8, 6-3-14)

Sec. 20-30. Vacating of building, structure, manufactured home or mobile home.

(a) Any building, structure, manufactured home or mobile home that has been ordered to be vacated under this article shall be vacated within thirty (30) days after notice to do so has been given by the building official to the owner or occupant of the building, structure, manufactured home or mobile home.

(b) No building, structure, manufactured home, or mobile home that has been ordered vacated pursuant to this article and so placarded shall be used for human habitation without approval of the building official and the unfit placard is removed by the building official. The building official shall remove such placard whenever the defect or defects upon which the placarding action were based have been eliminated.

(Code 1961, §§ 18-71, 18-72; Ord. No. 20,882, § 9, 6-3-14)

Sec. 20-31. Removal of placard notice.

No person shall deface or remove a placard posted pursuant to this article unless authorized to do so.

(Code 1961, § 18-73)

Sec. 20-32. Emergency abatement.

(a) Any building wall or partial wall or any portion thereof, chimney, or other structure, manufactured home, or mobile home in the city that from fire, excavation, improper erection or construction, or from any other cause, which at any time becomes unsafe or dangerous to life and limb, shall be razed an removed, or made secure by the building official, if within twenty-four (24) hours from the time of service of notice the owner of record fails to commence rehabilitation or removal of the same and if within seventy-two (72) hours, the owner of record shall fail to complete the rehabilitation or removal. Any owner of a building, wall, partial wall or any portion thereof, chimney other structure, manufactured home, or mobile home that has been deemed unsafe or dangerous to life and limb shall have the right to an administrative appeal of the building official's determination.

(b) Service of written notice shall be sent by the building official by regular and certified mail, return receipt requested to the owner of the building, structure, manufactured home or mobile home. Additional notice shall be provided by delivery to the owner personally, or by leaving the notice at the usual place of abode of the owner with a responsible adult. The notice shall state that the owner of the building, partial wall or any portion thereof, chimney, or other structure

manufactured home, or mobile home has the right to an administrative appeal of the emergency abatement by submitting a request for a hearing to the city manager, if such request is submitted within five (5) working days from the date of receipt of the notice.

(c) Once the emergency abatement notice is served, the building, partial wall or any portion thereof, chimney, or other structure, manufactured home, or mobile home shall be considered unsafe or dangerous to human life unless and until such a time as the declaration is overruled by the city manager or appointed designee after an administrative appeal hearing.

(d) Hearings requested by the owner shall be held no more than five (5) working days from the date of receipt of the request. The city manager, or appointed designee, shall act as the appeal hearing officer and shall make his or her ruling on the basis of a preponderance of the evidence presented at the hearing. The hearing shall be an informal proceeding, and each party shall have the right to call and examine witnesses, to introduce exhibits, to cross-examine opposing witnesses on any matter relevant to the issues even though that matter was not covered in the direct examination, to impeach any witness regardless of which party first called the witness to testify, and to rebut the evidence against the party. Each party may be represented by counsel that party so chooses. Either party may call the owner/custodian of the building, wall, partial wall, chimney, other structure, manufactured home, or mobile home as a witness. The decision of the hearing officer can be appealed to the City Little Rock Construction Board of Adjustment and Appeals.

(e) Whenever the building official declares a building, structure, manufactured home, or mobile home to be dangerous or unfit for human habitation notice of such emergency abatement declaration shall be given to any persons residing in said building structure, manufactured home, or mobile home by placarding the building, structure, manufactured home, or mobile home. The placard notice shall contain the following:

(1) That by order of the city, the building, structure, manufactured home, or mobile home, has been declared dangerous or unfit for human habitation by the Department of Housing and Neighborhood Programs and what section of the Little Rock Revised Code of Ordinances upon which the determination was made;

(2) That further use and occupancy are prohibited effective immediately;

(3) That any resident who is ordered to vacate the building, structure, manufactured home, or mobile home, shall have the right to appeal the emergency abatement declaration to the City Little Rock Construction Board of Adjustment and Appeals;

(4) Any non-owner resident can request an expedited hearing before the Little Rock Construction Board of Adjustment and Appeals if written request for such a hearing is submitted to building codes manager for the Little Rock Construction Board of Adjustment and Appeals or any such other official who can accept applications for hearings before the Little Rock Construction Board of Adjustment and Appeals within five (5) working days of the posting of the emergency abatement notice and placard; and

(5) Provide the name, mailing and physical address, phone number and email address of the building codes manager for Little Rock Construction Board of Adjustment and Appeals or any such other official who can accept applications for hearings before the Little Rock Construction Board of Adjustment and Appeals.

(f) Any non-owner resident of a building, structure, manufactured home, or mobile home which is the subject of an emergency abatement order shall have the right to appeal the determination that any building, structure, manufactured home in which they reside is so dangerous or unfit for human habitation that they must vacate immediately to the Little Rock Construction Board of Adjustment and Appeals.

(g) Review hearings before the Little Rock Construction Board of Adjustment and Appeals of Emergency Abatement actions can request an expedited hearing before the Little Rock Construction Board of Adjustment and Appeals within five (5) working days from the posting of the emergency abatement notice by submitting such a request in writing to the building code manager. Such hearings shall then be held no more than five (5) working days from the last date on which an expedited hearing may be requested.
(Code 1961, § 25-92; Ord. No. 15,286, § 1, 5-5-87; Ord. No. 20,882, § 10, 6-3-14; Ord. No. 22,598, § 2, 4-1-25)

Secs. 20-33—20-49. Reserved.

ARTICLE III. ILLEGAL DRUG LABORATORY NUISANCE AND CLEANUP CODE

Sec. 20-50. Title.

This chapter shall be known as the illegal drug laboratory nuisance and cleanup code.
(Ord. No. 19,509, § 1, 3-21-06)

Sec. 20-51. Definitions.

(a) *City manager* means the city manager or designee.

(b) *Controlled substance* or *controlled substance analog* means a substance declared to be illegal in the Arkansas Uniform Controlled Substances Act.

(c) *Decontamination* means the process of cleanup of a property or structure declared to be a drug laboratory nuisance which is subsequently rendered safe for habitation or use.

(d) *Drug laboratory nuisance* means a property or structure which is currently used for the manufacture of a controlled substance or which has previously been so utilized in violation of the Arkansas Uniform Controlled Substances Act and not decontaminated pursuant to subsection 20-55(d) and section 20-57.

(e) *Nuisance per se* means a property or structure at which law enforcement officials have located the manufacture of a controlled substance or controlled substance analog in violation of the Arkansas Uniform Controlled Substances Act which poses an imminent danger to public health and safety which may include of death, serious physical or mental injury, serious disease, or all three (3).

(f) *Manufacture* means the production, preparation, propagation, compounding, conversion, or processing of a controlled substance or controlled substance analog as defined in Arkansas Uniform Controlled Substances Act.
(Ord. No. 19,509, § 2, 3-21-06)

Sec. 20-52. Declaration of policy.

No structure or property within the corporate limits of the city shall be used to make, or attempt to make, a controlled substance or a controlled substance analog in violation of the Arkansas Uniform Controlled Substances Act.
(Ord. No. 19,509, § 1, 3-21-06)

Sec. 20-53. Declaration of drug laboratory nuisance.

Any structure or property within the corporate limits of the city is a drug laboratory nuisance if, in violation of the Arkansas Uniform Controlled Substances Act, it:

(1) Is used to make, or attempt to make, a controlled substance or a controlled substance analog; or

(2) Contains evidence of a laboratory which could be used to make, or attempt to make, a controlled substance or a controlled substance analog.

(Ord. No. 19,509, § 4, 3-21-06)

Sec. 20-54. Actions taken upon discovery of a drug laboratory nuisance.

If any law enforcement agent finds evidence of an illegal laboratory pursuant to this article, the following actions shall be taken:

(a) *Notice.* City personnel shall immediately and conspicuously post notice on the structure or property stating that:

1. The structure or property is a drug laboratory nuisance which poses an

imminent danger to public health and safety which may include death, serious injury, or serious disease;

2. The owner, lessee, or their designated agent shall be given notice by one (1) or more of the following methods:
   a. By delivery to the owner, designated agent or responsible party, personally;
   b. By posting the drug laboratory nuisance notice at the property or structure; or
   c. By U.S. mail or other commercial mail service sent to the billing address provided by the Pulaski County Tax Assessor for that property.
3. The notice shall not be removed until a certificate for right of reentry has been issued unless removal is necessary for the testing or the decontamination process, in which case the notice shall immediately be reposted until the structure or property meets the criteria set forth in sections 20-55 and 20-57.

(b) *Security of drug laboratory nuisance site, disconnection of utilities.*

1. *Single-family residence, freestanding office, commercial, or industrial structure.* Immediately after posting of the structure or property and once law enforcement has agreed and concluded its preliminary investigation at the structure or property:
   a. All utilities shall be disconnected and the structure or property shall be secured to the extent the city believes necessary to prevent use or occupation;
   b. If the owner, lessee or their designated agent:
      (i) Is notified, then said person shall immediately commence securing the structure or property as soon as the law enforcement agency has agreed and concluded its preliminary investigation;
      (ii) Has not been notified or does not immediately begin the securing of the structure or property upon the agreement and conclusion of the law enforcement agency's preliminary investigation, any city personnel so designated by the city manager shall immediately begin securing the structure or property and the costs of such action will be pursued as a lien against the property in accordance with state law.
2. *Duplex, triplex, and quadraplex residences.* Immediately after posting of the structure or property and once law enforcement has no objection and concluded its preliminary investigation at the structure or property:
   a. All utilities shall be disconnected and the structure or property shall be secured to the extent the city believes necessary to prevent use or occupation;
      (i) Except common utilities may remain connected if disconnection would interfere with usage by other units that were not the site of the manufacture;
      (ii) The laboratory site unit shall be secured to the extent it does not interfere with the use and enjoyment of the remaining units.
3. *One (1) or more units of a multifamily residence (for the purpose of this article defined as more than four (4) units) or an office, commercial, or industrial complex.* After securing

the unit(s) or property and once law enforcement has no objection and has concluded its preliminary investigation at the structure or property:

a. All utilities may remain connected unless it is determined that the site of the illegal laboratory shares a contiguous contaminated area, such as, but not limited to, common duct work, with at least one (1) other site contained within the residence or the complex:
   (i) If the site shares contiguous contaminated area, then the utilities to any contaminated unit(s) shall be disconnected;
   (ii) The owner, lessee, or their designated agent may file a petition with the city manager for the reconnection of the utilities:
      (a) Within seventy-two (72) hours of the securing;
      (b) By establishing that any contaminated unit(s) meets the acceptable levels as established in the Arkansas Health Department's Methamphetamine Cleanup Guidelines, or any Arkansas state or federal law enacted which establishes procedures for abatement and cleanup of property contaminated during the illegal manufacture of drugs; and
      (c) By securing the site of the illegal laboratory and any contaminated unit(s) that do not meet the ADH Methamphetamine Cleanup Guidelines within the required timeframe.

b. The structure or property shall be secured to the extent necessary to prevent use or occupation;

c. If the owner, lessee or their designated agent:
   (i) Is notified, then said person shall immediately commence securing of the structure or property as soon as the law enforcement agency has agreed and concluded its preliminary investigation;
   (ii) Has not been notified, or does not immediately begin securing the structure or property upon the agreement and conclusion of the law enforcement agency's preliminary investigation, any city personnel so designated by the city manager shall immediately begin securing the structure or property and the costs of such action will be pursued as a lien against the property in accordance with state law.

(Ord. No. 19,509, § 5, 3-21-06)

Sec. 20-55. Reentry.

Upon a declaration of a drug laboratory nuisance and until such time as the city manager has issued a certificate for right of reentry:

(a) *Occupation or use strictly prohibited.* The structure or property shall not be occupied or used for any purpose, except as authorized in (b)—(d) below.

(b) *Entry prior to decontamination.* Nothing shall be removed from the structure or property prior to decontamination unless the removal is necessary for testing to

determine the level of contamination or disposal needed during the decontamination process in subsection (d), or limited reentry as provided in subsection (c).

1. Any items removed for disposal from the structure or property must be in conformance with the Arkansas Department of Health's Clandestine Methamphetamine Laboratory Cleanup Guidelines.
2. Nothing in this article shall prohibit law enforcement agency conducting an investigation from seizing and removing any item related whatsoever to the investigation.

(c) *Limited entry to retrieve noncontaminated items.* Once the structure or property has been secured:

1. The owner, lessee, or their designated agent, no later than two (2) business days of securing, may petition the city manager to reenter the property for a limited period of time to retrieve noncontaminated items by setting forth in writing, with a copy to the chief of police,
   a. The purpose for the request;
   b. Items to be retrieved;
   c. The date decontamination will begin and is expected to conclude;
   d. The name, address, telephone number, and any available email address, mobile phone number, or website, of the company or individual hired to enter the contaminated site and retrieve the noncontaminated item.
2. The next business day after receiving the request, the city manager will hold an administrative hearing to determine if, without endangering the public or interfering in the criminal investigation, any reasonable grounds exist to permit the owner, lessee, or their designated agent to remove the security measures of the structure or property and reenter. In deciding whether to grant the request, the city manager may consider, among other things, compliance with items a.—d. above, and the risk to the public health and safety in granting the request.

(d) *Entry to perform decontamination procedures.* Once the structure or property has been secured to the extent the city believes necessary:

1. The owner, lessee, or their designated agent, no later than two (2) business days after notice the property has been declared a drug laboratory nuisance, may petition the city manager to reenter the property by setting forth in writing, with a copy to the chief of police,
   a. The purpose for the request;
   b. The date decontamination will begin and is expected to conclude;
   c. The name, address, telephone number, and any available email address, mobile phone number, or website, of the company that will perform the decontamination, and
   d. Their intent to follow the Arkansas Health Department's Methamphetamine Cleanup Guidelines or any state or federal law enacted which establishes guidelines or protocols for such cleanup.
2. The next business day after receiving the request, the city manager will hold an administrative hearing to determine if, without endangering the public or interfering in the criminal investigation, any reasonable grounds exist to permit the owner, lessee, or their designated agent to remove the security measures of the structure or property and reenter.

(e) *Issuance of certificate for right of reentry.* The city manager will issue to the owner or lessee a certificate for right of reentry after:

1. The structure or property, and any affected structure and property, have been decontaminated in accordance with the Arkansas Department of Health's Clandestine Methamphetamine Laboratory Cleanup Guidelines, or Arkansas state, or federal laws requiring a decontamination process;

2. The owner or lessee submits a written certification by a qualified company or individual, as required in section 20-56, that the property or structure, and any affected structure and property, is habitable, has been tested, and is in compliance with the current version of the Arkansas Department of Health's Clandestine Methamphetamine Laboratory Cleanup Guidelines, or Arkansas state, or federal laws requiring a decontamination process.

(f) *Reoccupation or use.* After the city manager has issued to the owner or lessee a certificate for right of reentry, the owner or lessee shall be permitted reoccupation or use of the structure or property.

(g) *Forfeiture laws.* Nothing in this article prohibits the structure or property from being subject to forfeiture under state and federal laws.

(Ord. No. 19,509, § 6, 3-21-06)

Sec. 20-56. Qualifications.

(a) A company, laboratory, or individual qualified to obtain the representative samples submitted for testing to determine the presence of contamination shall possess:

(1) A certification by a recognized professional association or an accreditation agency for an indoor environmental or an industrial hygienist; or

(2) Certifications, licensures, or registrations required by state or federal law for the purpose of determining the presence of contamination from controlled substances, including, but not limited to, methamphetamine contamination.

(b) A company, laboratory, or individual qualified to perform the testing of environmental samples to determine the level of contamination shall possess:

(1) A registration by the United States Drug Enforcement Administration to handle controlled substances; or

(2) Certifications, licensures, or registrations required by state or federal law to determine the level of controlled substance(s) contamination including, but not limited to, methamphetamine contamination.

(Ord. No. 19,509, § 7, 3-21-06)

Sec. 20-57. Decontamination.

Once a structure or property has been declared a drug laboratory nuisance, the owner or lessee shall:

(a) Begin the decontamination process within thirty (30) days of the structure or property being posted as a drug laboratory nuisance. The owner, lessee or their designated agent may apply for temporary use of such utility services as may be deemed necessary during the decontamination process.

(b) Keep the structure or property secured during the decontamination process and testing to prevent occupation or use prior to the issuance of a certificate for right of reentry;

(c) Complete the decontamination process and submit the certification to the city manager as required in subsection 20-55(e) within thirty (30) days after beginning the process;

(d) The owner or lessee may be granted an extension to complete the decontamination process not to exceed one hundred twenty (120) days:

1. By submitting a written request for an extension to the city manager before the first thirty (30) days have elapsed; and

2. If the city manager determines:
   a. Good cause has been shown for an extension; and
   b. The extension can be granted without endangering the health and safety of the public.
3. The city manager will issue a written notice granting or denying the request for an extension within two (2) business days of receipt of the written request.

(Ord. No. 19,509, § 8, 3-21-06)

Sec. 20-58. Secondary public notice.

Any property or structure declared a drug laboratory nuisance shall be listed on a website owned, operated, and maintained by the city:

(a) If the owner fails to begin the decontamination process required in section 20-57; and

(b) Will remain on the website until such time as the city manager issues a certificate for right of reentry.

(Ord. No. 19,509, § 9, 3-21-06)

Sec. 20-59. Revocation of special use permit.

(a) *Administrative procedure.* When a structure or property holding a special use permit is declared a drug laboratory nuisance:

(1) Revocation.
   a. The special use permit is revoked if the drug laboratory nuisance is found in a day care family home or a family care facility;
   b. Is subject to revocation by the board of directors for all other uses if:
      (i) The owner or manager fails to cooperate with law enforcement or other city officials with the criminal investigation surrounding the discovery of an illegal laboratory; or
      (ii) The owner or manager fails to cooperate with law enforcement or other city officials with the security of the drug laboratory nuisance site, the provisions for disconnection of utilities, reentry, and the subsequent decontamination provisions contained in sections 20-54, 20-55, and 20-57; or
      (iii) The illegal laboratory was created by the owner, owner's manager, corporate director or officer, or allowed to exist on the site with their knowledge and consent.

(b) *Interim business operations.* Provided that the owner or manager begins or continues to cooperate with law enforcement and other city officials in the criminal investigation and the provisions of sections 20-54, 20-55, and 20-57, the owner may continue to operate the business on the site if:

(1) Such operation can occur without endangering the public health and safety; and

(2) The owner or manager submits a letter from a qualified individual or agency as set forth in section 20-56 stating that the contamination from the affected area will not spread to other areas if operation of the business continues or resumes; and

(3) The site of the illegal laboratory is posted and secured as required by this article.

(Ord. No. 19,509, § 10, 3-21-06)

Sec. 20-60. Revocation of conditional use permit.

(a) *Administrative procedure.* When a structure or property holding a conditional use permit is declared a drug laboratory nuisance:

(1) *Revocation.*
   a. The conditional use permit is revoked if the illegal laboratory was created by the owner, owner's manager, corporate director or officer, or allowed to exist on the site with their knowledge and consent; or

b. The conditional use permit is subject to revocation by the board of directors if:

(i) The owner or manager fails to cooperate with law enforcement or other city officials with the criminal investigation surrounding the discovery of an illegal laboratory; or

(ii) The owner or manager fails to cooperate with law enforcement or other city officials with the security of the drug laboratory nuisance site, the provisions for disconnection of utilities, reentry, and the subsequent decontamination provisions contained in sections 20-54, 20-55, and 20-57.

(b) *Interim business operations.* Provided that the owner or manager begins or continues to cooperate with law enforcement and other city officials in the criminal investigation and the requirements of sections 20-55, 20-55, and 20-57, the owner may continue to operate the business if:

(1) Such operation can occur without endangering the public health and safety; and

(2) The owner or manager submits a letter from a qualified individual or agency as set forth in section 20-56 stating that the contamination from the affected area will not spread to other areas if operation of the business continues or resumes; and

(3) The site of the illegal laboratory is posted and secured as required by this article.

(Ord. No. 19,509, § 12, 3-21-06)

Sec. 20-61. Exemption from posting.

For a hotel, motel, apartment complex, or residential condominium, securing the site does not require external signage that the unit was the site of a drug laboratory nuisance so long as the owner or manager complies with section 20-60.
(Ord. No. 19,509, § 14, 3-21-06)

Sec. 20-62. Revocation of nonconforming use.

Administrative procedure. When a structure or property bearing a nonconforming use status is declared a drug laboratory nuisance:

(1) *Abandonment.* The nonconforming use status shall be deemed abandoned upon written notice of abandonment to the owner by U.S. mail or other commercial mail service sent to the billing address provided by the Pulaski County Tax Assessor for that property.

(2) *[City manager declaration.]* Owner's notification to city of illegal laboratory, notwithstanding subsection (1), the city manager may decide not to declare the nonconforming use status abandoned if the owner of the structure or property otherwise complies with sections 20-54, 20-55, and 20-57.

(Ord. No. 19,509, § 15, 3-21-06)

Sec. 20-63. Annual review.

The various departments of the city, including but not limited to, the city attorney's office, the Little Rock Police Department, the Little Rock Fire Department, the department of housing and neighborhood programs, public works, and planning and development will meet to annually review the provisions of this article with local, state, and federal law, and to suggest any possible amendments to the board of directors, this review shall include a report to the board of directors and the city manager as to how the article has functioned and whether it has accomplished its purposes. Before any report or suggested modifications are presented to the board of directors, the review group shall post its report on the city website for forty-five (45) days and receive public comment, This comment period does not preclude emergency amendments that need to be made.
(Ord. No. 19,509, § 16, 3-21-06)

Secs. 20-64—20-70. Reserved.

ARTICLE IV. SUBSTANDARD MAINTENANCE OF MOBILE HOMES AND MANUFACTURED HOMES

Sec. 20-71. Application.

The provisions of this article shall apply to the maintenance and condition of mobile homes and manufactured homes wherever in the city they are located, whether within or outside of parks for such dwellings, and shall apply to mobile home parks and the installations for supplying fuel gas, water, and electricity to, and the disposal of sewage from, mobile homes and manufactured homes.
(Ord. No. 20,093, § 1, 3-31-09)

Sec. 20-72. Definitions.

As used in this article, the following terms have the stated meaning:

Life safety violation means a violation of this maintenance article that is deemed by the code enforcement officer to constitute an unsafe condition that presents an immediate danger to human health, safety or welfare.

Life-threatening violation means a violation of this maintenance article which is deemed by the fire marshal or the director of the department of housing and neighborhood programs or the director's designee to pose an imminent danger of death, serious injury or serious disease.

Maintenance violation means a violation of this article discovered during a maintenance inspection performed pursuant to this article.

Manufactured home means a factory-assembled detached dwelling unit with the following characteristics:

(a) Designed for full-time occupancy and containing sleeping, bathroom, and kitchen facilities, and

(b) Has connections for utilities systems that are provided on the intended site, and

(c) Designed for highway transport with wheels, chassis, tongue, and other features related to transportability, and

(d) Conformance with the minimum construction standards of the federal manufactured home regulations of 42 U.S.C. 5401-5426.

MH-unit means a mobile home or manufactured home.

MH park means any mobile home park having one or more mobile homes or manufactured homes within its boundaries.

Mobile home means a factory-assembled detached dwelling unit with the following characteristics:

(a) Designed for full-time occupancy and containing sleeping, bathroom, and kitchen facilities, and

(b) Has connections for utility systems that are provided on the intended site, and

(c) Designed for highway transport with wheels, chassis, tongue, and other features related to transportability, and

(d) Constructed prior to the adoption of the National Manufactured Housing Construction and Safety Standards on June 15, 1976.

New manufactured home means a manufactured home that is under the manufacturer's initial one-year warranty period.

Nonlife safety violation means a violation of this maintenance ordinance [section] that is deemed by the code enforcement officer to constitute a condition that does not present an immediate danger to human health, safety, or welfare.

Owner means the holder of the title to the MH-unit and any person shown in tax records to be the title holder or owner of the MH-unit.

Responsible party means either of the following:

(a) For MH-park-owned property or facilities, the park owner or operator or an available person employed by the MH park as a manager of the MH park, and

(b) An owner of an MH-unit.

(Ord. No. 20,093, § 1, 3-31-09; Ord. No. 20,254, § 1, 4-20-10)

Sec. 20-73. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.
(Ord. No. 20,093, § 1, 3-31-09)

Sec. 20-74. Substandard MH-unit.

It shall be unlawful for any owner, as defined herein, to permit, or allow to remain, any substandard MH-unit or to fail to take action to demolish, remove, or correct, any substandard MH-unit. Every substandard MH-unit is declared to be a nuisance and shall be abated by repair, rehabilitation, demolition or removal outside the city. An MH-unit shall be deemed substandard and a nuisance when any of the following conditions exist that endanger the life, limb, health, property, safety, or welfare of the occupants or the public:

(a) Health hazards or inadequate sanitation that include, but are not limited to, the following:

(1) Lack of, inoperable, or malfunctioning water closet, toilet, lavatory, bathtub or shower, and

(2) Lack of, inoperable, or malfunctioning kitchen sink, and

(3) Lack of hot and cold running water to plumbing fixtures, and

(4) Dampness of habitable rooms, and

(5) Infestation of insects, vermin, or rodents, and

(6) General dilapidation or improper maintenance, and

(7) Obstructions in or lack of or improper connection of plumbing fixtures to a sewage disposal system, and

(8) Lack of or malfunctioning of a required smoke detector.

(b) Structural hazards include, but are not limited to, the following:

(1) Deteriorated or inadequate foundation or stabilizing devices, and

(2) Deteriorated flooring or floor supports, and

(3) Members of walls, partitions, or other vertical supports that split, lean, list, or buckle, and

(4) Members of ceilings, roofs, ceiling and roof supports or other horizontal members which sag, split or buckle.

(c) Electrical hazards include, but are not limited to, the following:

(1) All electrical wiring that has not been maintained in good and safe condition or is not being used in a safe manner, and

(2) Metallic boxes, fittings, or equipment in an electrical wiring system that are not grounded to prevent shock, and

(3) Lack of electrical lighting, or electrical lighting that is not maintained in safe condition.

(d) Plumbing hazards include, but are not limited to, the following:

(1) Plumbing that has not been maintained in good or safe condition, and

(2) Lack of effective traps providing a water seal for each plumbing fixture, and

(3) Lack of effective venting of plumbing drain piping or hot water heaters, and

(4) Broken, unsanitary or leaking plumbing pipe or fixtures, and

(5) Any fixture, fitting, device or connection installed in such a manner as to permit contamination of the potable water supply.

(e) Hazardous mechanical equipment shall include, but not be limited to, the following:

(1) Mechanical equipment that has not been maintained in good and safe condition, or is not being used in a safe manner, and

(2) Unvented fuel-burning heating appliances unless their use is permitted by all applicable laws and regulations, and

(3) Heating or fuel-burning equipment, including its vent, without adequate clearance from combustible material, and

(4) Unsupported, loose, or leaking fuel supply piping, and

(5) Lack of, inoperable or malfunctioning heating.

(f) Faulty weather protection shall include, but not be limited to the following:

(1) Deteriorated or ineffective waterproofing of exterior walls, roof, or floors, including broken windows or doors, and

(2) Missing or deteriorated skirting or underpinning. All skirting and underpinning materials shall consist of nondecaying, noncorroding materials that completely enclose the underside of the structure.

(g) Any MH-unit or portion thereof, device, apparatus, equipment, or combustible material that is in a condition posing a fire hazard or explosion hazard or provide a ready fuel to augment the spread and intensity of fire or explosion arising from any cause.

(h) Materials or construction that have not been adequately maintained in good and safe condition.

(i) All MH-units having a blocked exit or not having adequate or safe exit facilities, including doors and properly constructed steps to allow a safe exit of inhabitants.

(Ord. No. 20,093, § 1, 3-31-09)

Sec. 20-75. Process.

When a complaint alleging violation of this article is referred to the city, the code enforcement division of the department of housing and neighborhood programs will do the following:

(a) Make reasonable efforts to contact the complainant to discuss the complaint, and

(b) Investigate allegations of violations representing an immediate risk to life, heath, or safety or an unreasonable risk to health or safety.

(c) Nothing in this section shall operate to prohibit the city from initiating action to enforce the provisions of this article without a formal or informal complaint made to the city, a park owner, or to any other person.

(Ord. No. 20,093, § 1, 3-31-09)

Sec. 20-76. Requirement to abate violation.

The owner of the MH-unit, or MH park owner, MH park operator or responsible party for an MH-unit or utility connection under the owner's, operator's or responsible party's ownership or control, that is altered, converted, used, or maintained in a manner that constitutes a violation of this article, is required to abate the violation.

(Ord. No. 20,093, § 1, 3-31-09)

Sec. 20-77. Notice of violation.

(a) Whenever a city employee designated by the city manager or his duly authorized representative determines that there are reasonable grounds to believe that there has been a violation of any provision of this article, he shall give notice of such alleged violation to the person responsible therefore, that such alleged violation shall constitute a nuisance. Such notice shall:

(1) Be in writing, and

(2) Include a statement of the reasons why it is being issued and the section of the code that is alleged to be in violation, and

(3) State the action to be taken, which may include repair, correction, replacement or removal of the hazardous condition, and

(4) State that if the alleged violation is not corrected within the time set forth in the notice, the city employee designated by the city manager or his representative shall institute legal proceedings, charging the owner or responsible party with a violation of this article.

(b) The owner or responsible party or agent for such person shall be notified by one or more of the following methods:

(1) By delivery to the owner, agent or responsible party, personally, or

(2) By leaving the notice at the usual place, abode or business of the owner, agent or responsible party, with a person of suitable age and discretion, or

(3) By depositing the notice in the United States mail, addressed to the owner, agent or responsible party, at such person's last known address by certified mail, postage prepaid thereon, or

(4) By depositing the notice in the United States mail, addressed to the owner, agent or responsible party, at his last known address by regular mail with a notarized affidavit stating date mailed, postage prepaid thereon.

(c) Written notice shall be considered to have been served if delivered at, or sent by certified mail to, the last business or residential address known to the party giving the notice.
(Ord. No. 20,093, § 1, 3-31-09)

Sec. 20-78. Tenant responsibility.

(a) It is a violation of this article for any person having care, custody or control of a rental MH-unit to damage, destroy or tamper with the MH-unit or its utility connections thereby causing noncompliance with this article.

(b) Before the city can issue a citation under this section, the owner shall provide the code enforcement officer with written documentation signed and dated by the tenant indicating that the condition causing noncompliance did not exist when the tenant took possession of the MH-unit. This document shall be in a form approved by the city manager or his designee. Furthermore, the code enforcement officer shall determine that the tenant in possession of the MH-unit damaged, destroyed or tampered with the MH-unit or its utility connections, thus causing noncompliance with this article.
(Ord. No. 20,093, § 1, 3-31-09)

Sec. 20-79. Repairs.

Needed repairs, including replacements, identified by the code officer shall be made within the following time frames and in compliance with the following requirements:

(a) Within the time set forth in the notice of a life-threatening violation, the owner or owner's agent shall make the required repairs.

(b) The owner or owner's agent shall complete code compliance for all life safety violations within seven (7) days of the notification by the city. A certificate of compliance shall not be issued until all violations in the notice are corrected.

(c) Within thirty (30) days of the issuance of the notice of violation of a nonlife safety violation, the owner or owner's agent shall complete such repairs, except that if a good faith effort is demonstrated, all life safety violations were corrected within seven (7) days of the notification by the city, and there is consistent and continuous progress shown on the remaining items, the building official may grant an extension for repair of all nonlife safety violations to a time not to exceed sixty (60) days from the notification of violation.

(d) If the owner has completed all repairs to correct life-threatening and life safety violations and has initiated repairs for the nonlife safety violations, an extension, not to exceed sixty (60) additional days, may be granted if the request is submitted in writing to the director of the department of housing and neighborhood programs outlining the reasons for a request for extension.

(e) If a life-threatening or a life safety violation is resolved by the property becoming vacant and the utilities having been removed, the violation shall be corrected within the time frame established for a nonlife safety violation. The unit shall not be reoccupied until all life-threatening or life safety violations have been corrected.

(f) Unless determined otherwise by the inspecting code officer, any electrical repairs or electrical fixture replacement shall be performed only by a state-licensed master electrician or, when the home is under manufacturer's warranty, by a person authorized under the warranty to perform repairs. Compliance with the required repairs shall be established by a written receipt showing the required work was performed by a state-licensed master electrical contractor or that the work was accomplished according to the warranty.

(g) Unless determined otherwise by the inspecting code officer, any plumbing repairs or plumbing fixture replacement shall be performed only by a state-licensed master plumber, or, when the home is under manufacturer's warranty, by a person authorized under the warranty to perform repairs. Compliance with the required repairs shall be established by a written receipt showing the required work was performed by a state-licensed master plumbing contractor or that the work was accomplished according to the warranty.

(h) Unless determined otherwise by the inspecting code officer, any structural repairs or replacement of structural components shall be performed only by a city or state-licensed contractor or, when the home is under manufacturer's warranty, by a person authorized under the warranty to perform repairs. Compliance with the required repairs shall be established by a written receipt showing the required work was performed by a city or state-licensed contractor or that the work was accomplished according to the warranty.

(i) Unless determined otherwise by the inspecting code officer, any mechanical repairs or replacement of heating, ventilation and air conditioning components shall be performed only by a state-licensed mechanical contractor or, when the home is under manufacturer's warranty, by a person authorized under the warranty to perform repairs. Compliance with the required repairs shall be established by a written receipt showing the required work was performed by a city or state-licensed mechanical contractor or that the work was accomplished according to the warranty.

(j) This article does not require a city building permit and building codes inspection for mobile home or manufactured home repairs or replacements, except for the following:

(1) Connection to water or gas service up to the MH-unit; installation of an electricity meter loop; or connection of an outside heating or cooling unit, such as a condenser;

(2) Where the value of labor and materials exceeds five hundred dollars ($500.00) for steps, decks, ramps, outside storage units, accessory buildings, foundations, underpinning, skirting, fencing and screening.

(k) The failure of an owner to correct the maintenance deficiencies prohibited by this article within the established time period may result in the declaration of such structure to be unsafe pursuant to the procedures established in article II of chapter 20. Upon a declaration that an MH-unit is unsafe and before an order is issued to raze or remove the structure, any lien holders of record shall be notified and shall have an opportunity to be heard.

(Ord. No. 20,093, § 1, 3-31-09; Ord. No. 20,254, § 2, 4-20-10; Ord. No. 20,882, §§ 11, 12, 6-3-14)

Sec. 20-80. Registration of mobile homes and manufactured homes.

(a) *Registration procedure.*

(1) *[Registration required.]* No later than July 19, 2010, all manufactured homes and mobile homes currently existing within the city limits, with the exception of those in transit through the city and those unoccupied MH-units being held for sale by a licensed dealer of such homes, shall be registered with the city by completion of the registration form available at the city's planning and development department and

payment of the registration fee by the owner of the home. The registration form shall require descriptive information about the MH-unit and a current property tax assessment by Pulaski County, Arkansas. Beginning January 1, 2012, annual registrations of MH-units shall be due no later than January 1 of each year, with a ten (10) percent penalty for delinquent renewals assessed after January 31 of each year.

(2) To offset the administrative costs to prepare and maintain the MH-unit registry and the costs to assure compliance with the registry and with the requirements of this article, the city manager shall establish an appropriate fee schedule and may review and adjust such fees periodically to offset applicable costs.

(3) The registration permit shall be issued by the planning and development department immediately upon presentation of a complete application and payment of the required registration fee.

(4) The registration permit provided by the city shall be placed and maintained in the window nearest to the main entry of the mobile home or manufactured home so that it will be visible and readable from the outside.

(b) *[Deadline.]* Any manufactured home brought into the city after the date of passage of this section shall be registered by the owner by the later of July 19, 2010, or ten (10) days after being located in the city.

(c) *Relocation.* Relocation of an MH-unit that has already been registered with the city shall require a new registration and payment of the established fee within ten (10) days of the relocation.
(Ord. No. 20,254, § 3, 4-20-10)

Sec. 20-81. Prohibition on mobile homes.

As of the effective date of this section [April 20, 2010], mobile homes are prohibited from being brought into the city for residential purposes. This prohibition does not affect mobile homes used for residential purposes and in existence within the city as of the date of passage of this section.
(Ord. No. 20,254, § 4, 4-20-10)

Sec. 20-82. Inspection; required notification of move into or within the city.

(a) *Inspection.* After the date of passage of this section, all MH-units moved onto a city lot, or moved within a lot, where the home is to be used for residential purposes shall be inspected within ten (10) days of being moved to ensure their compliance with the maintenance requirements in this article and to ensure proper utility connections, footings or tie-downs as applicable. New manufactured homes are exempt from the maintenance inspection requirement. All MH-units, including new manufactured homes, moved onto a different home site, whether to a city lot or within the same lot, are required to have satisfactory inspections for utility connections, footings and tie-downs, as applicable.

(b) *Notice of move.* Owners of all manufactured homes moved into the city and owners of all MH-units moved within the city to another location, including within the same lot, are required to notify the permit section of the planning and development department of the move no later than three (3) days after the relocation.
(Ord. No. 20,254, § 5, 4-20-10)

Sec. 20-83. Razing, removal.

An MH-unit that has been ordered to be razed or removed due to the existence of violations or a nuisance shall be razed or removed in a manner consistent with law.
(Ord. No. 20,254, § 6, 4-20-10)

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Chapter 21

PARKING AUTHORITY*

*Cross reference—Boards and commissions generally, § 2-261 et seq.
State law reference—Parking authority, A.C.A. § 14-304-101 et seq.

Sec. 21-1. Definition of parking facilities.

In this article, "public off-street automobile parking facilities" means accommodations procured or provided, or both, by public authority for the parking of motor vehicles off the street or highway, and open to public use with or without charge. Parking facilities may consist of lots, garages or other structures and accessories; they may be surface facilities or facilities above or below the ground.
(Code 1961, § 39-172)

Cross reference—Definitions and rules of construction generally, § 1-2.

State law reference—Similar provisions, A.C.A. § 14-304-102.

Sec. 21-2. Declaration of policy.

The board of directors determines and declares that excessive curb parking of motor vehicles on roads and streets within the city and the lack of adequate off-street parking facilities create congestion, obstruct the free circulation of traffic, diminish property values, and endanger the health, safety and general welfare of the citizens of the city; that the provision of conveniently located public off-street automobile parking facilities is therefore necessary to alleviate such conditions.
(Code 1961, § 39-171)

State law reference—Similar provisions, A.C.A. § 14-304-101.

Sec. 21-3. Created.

There is created the Little Rock Municipal Parking Authority for the purpose of establishing, operating or causing to be operated public off-street automobile parking facilities.

State law reference—Authority to create parking authority, A.C.A. § 14-304-103.

Sec. 21-4. Members.

The parking authority shall consist of five (5) members appointed by the city manager and approved by the board of directors. Members shall be qualified electors residing within the city and cannot hold any elective office of the city, county or state. The members of the authority shall be appointed for terms of five (5) years and until their successors have been appointed and qualified. Members shall receive no compensation for their services.
(Code 1961, § 39-173)

State law reference—Membership, A.C.A. § 14-304-104.

Sec. 21-5. Authority to establish parking facilities.

(a) The parking authority shall have joint jurisdiction with the board of directors of the city in the planning, designation, location and financing of parking facilities and the concurrence of the board of directors of the city shall be required before the parking authority shall proceed to execute, accomplish, fulfill or pursue the establishment of any parking facility. The parking authority, subject to the concurrence and approval of the board of directors of the city may act alone or in cooperation with other parking facilities, or with any federal, state or other local public agency in the financing, acquisition and ownership of property, construction, alteration, enlargement, use, maintenance and operation or leasing out for operation of parking facilities and services to the extent that such facilities and services are concurred in by the board of directors of the city.

(b) The parking authority and the board of directors of the city shall designate the location, size and general specifications for needed parking facilities and make same known to the public. It is the intent of the city and the parking authority that all such facilities as are needed shall be owned and operated by private citizens or entities. If, however, private citizens or entities fail, within a reasonable period of time as fixed by the board of directors, to provide and operate such facilities as the parking authority and the board of directors of the city prescribe, then the parking facilities, with the approval of the board of directors of the city may be owned, operated, leased out or sold, or any combination thereof, by the parking authority.
(Code 1961, § 39-174)

State law reference—Establishment, etc., of parking facilities, A.C.A. § 14-304-106.

Sec. 21-6. Planning for parking facilities.

The parking authority shall cooperate with other planning agencies for the formulation of a master plan and may adopt a master plan for automobile parking facilities as a guide for the future provision of parking facilities, properly integrated with present and proposed parking facilities, subject to

alteration as necessary, and including a program of construction and method of financing.
(Code 1961, § 39-175)

State law reference—Planning for parking facilities, A.C.A. § 14-304-108.

Sec. 21-7. Design of parking facilities.

The parking authority may so design and locate off-street parking facilities as to best serve the public purpose for which such facilities are intended. Such facilities may consist of lots, improved or unimproved, single or multilevel garages, and other structures and accessories.
(Code 1961, § 39-176)

State law reference—Similar provisions, A.C.A. § 14-304-108.

Sec. 21-8. Fiscal procedures.

The parking authority is subject to all fiscal procedures of the city.

Sec. 21-9. Financing of parking facilities.

After the master plan of parking facilities has been adopted by the parking authority, such facilities, when approved as provided in section 21-5, may be financed by the issuance of revenue bonds in accordance with the authority granted by A.C.A. tit. 14, ch. 304, subch. 2 [A.C.A. § 14-304-201 et seq.].
(Code 1961, § 39-177)

Sec. 21-10. Acquisition of property and property rights.

The parking authority may acquire private or public real or personal property and property rights, above, at or below the surface of the earth necessary for off-street parking facilities, by purchase, eminent domain, gift, lease or otherwise.
(Code 1961, § 39-178)

State law reference—Similar provisions, A.C.A. § 14-304-109.

Sec. 21-11. Construction of parking facilities.

The parking authority may construct or cause to be constructed, or otherwise acquire public off-street parking facilities above, at or below the surface of the earth, including buildings, structures, equipment, entrances, exits, fencing and other accessories necessary for the safety or convenience of persons using the facilities. The contracts for any of the above are to be awarded to the lowest responsible bidder in the same manner as contracts are now authorized by law.
(Code 1961, § 39-179)

State law reference—Similar provisions, A.C.A. § 14-304-110.

Sec. 21-12. Records and reporting.

The parking authority shall maintain proper accounting and financial records of all transactions and provide and file an annual financial statement with the city clerk.
(Code 1961, § 39-180)

State law reference—Similar provisions, A.C.A. § 14-304-111.

Sec. 21-13. Employees.

The parking authority may employ such persons as it deems necessary in furtherance of its duties hereunder. The employees herein authorized shall be chosen by the civil service commission in the manner now required by law.
(Code 1961, § 39-181)

State law reference—Similar provisions, A.C.A. § 14-304-105.

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Chapter 22

PARKS, RECREATION AND CULTURAL AFFAIRS*

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Art. IX.	**Urban Forestry, §§ 22-221—22-237**

*__Cross references—__Library, Ch. 16; parks, playgrounds and recreational areas plan, § 23-51 et seq.

__State law references—__Municipal parks and recreational programs, A.C.A. § 14-54-1301 et seq.; authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

ARTICLE I. IN GENERAL

Sec. 22-1. Department of parks and recreation.

The department of parks and recreation is hereby created. The department shall have jurisdiction over all the city's recreational facilities and activities including parks, playgrounds, community centers, municipal golf courses, swimming pools, and tennis facilities, the Natural History Museum, Fine Arts Museum, and the municipal zoo.
(Code 1961, § 26-1)

Cross references—Departments generally, § 2-131 et seq.; parks and recreation department to coordinate budget requests for city beautiful commission, § 15-33.

Sec. 22-2. Lands along river front to be retained for parks.

No leases or sales shall be made, or extended, of any land belonging to or controlled by the city on the riverfront, and all city lands on the riverfront shall be held for public parks, to be improved, beautified and made into parks for the use and benefit of the citizens of the city.
(Code 1961, § 26-2)

Sec. 22-3. Adoption of master plan.

The Little Rock Parks and Recreation Master Plan of July 17, 2001, as set forth in exhibit A to Ordinance No. 18,528, is hereby adopted by the board of directors of the City of Little Rock, Arkansas, and shall be known as the "Little Rock Master Parks Plan."
(Ord. No. 18,528, § 1, 7-17-01)

Sec. 22-4. Repeal of previous plan.

Ordinance No. 14,517 ([adopted] October 4, 1983), and the parks system master plan of 1983 created in that ordinance, and any amendments to that ordinance which have occurred since its adoption, are hereby repealed.
(Ord. No. 18,528, § 2, 7-17-01)

Sec. 22-5. Definition of a park.

As used in Ordinance No. 18,528 and the above referenced Little Rock Master Parks Plan, the term "park" means any area within the jurisdiction of the city which by reason of location, natural features, scenic beauty, or historical interest, possesses, in the opinion of the governing body, distinctive physical, aesthetic, intellectual, creative or social values. Any further definitions of parks contained in said ordinance are supplemental to, and complimentary of, this definition.
(Ord. No. 18,528, § 3, 7-17-01)

Sec. 22-6. Additional definitions.

As used in Ordinance No. 18,528 and the Little Rock Master Parks Plan, the following terms have these listed meanings:

(a) *Aquatic center.* An indoor facility, and any associated outdoor water facilities, which includes a variety of water-related recreational facilities and programs for multiple age groups.

(b) *Community park.* A park that serves community-based recreational needs and may also preserve unique landscapes and open spaces. Typically larger in size than neighborhood parks, community parks serve several neighborhoods and may include facilities which are too large to be sited in neighborhood parks. Generally, a community park is between twenty (20) and fifty (50) acres in size.

(c) *Community center.* A center that facilitates a diverse range of recreational and educational opportunities and is available for use by the general public.

(d) *Community garden.* A parcel of land that is designated for the common use of nearby residents to propagate ornamental plants, or crops, or a combination of such flora.

(e) *Competition field.* A sports field that is suitable for competition play in an identified sport. Such fields should have regular maintenance and appropriate parking available, and may have lighting for nighttime competitions, practices, or play. The term "competition field," may be used interchangeably with the term "game field."

(f) *Cultural resource.* Any structure or area with historic, archaeological, architec-

tural, artistic, or entertainment significance to a particular community or culture.

(g) *Equestrian center.* A facility oriented toward the care, exercise, and recreation of horses. Such a facility may include boarding, training, or even [event] facilities, and may permit the rental of horses, or horse rides. An equestrian center, if large enough, may also provide equestrian trails.

(h) *Facility.* Any structure or equipment designed, constructed, or required for participation in recreational activities.

(i) *Greenway.* A natural or relatively undeveloped linear area which links parks and open space. Greenways are intended to tie park systems components together to form a cohesive park environment. Greenways are ideal for trial development.

(j) *Horticultural center.* Any facility or kiosk that presents information of an educational or interpretative type to explain its surroundings.

(k) *Linkage.* A connection, generally between two (2) or more parcels of land, which allows for easy movement from one (1) point to another.

(l) *Minipark.* The smallest park classification for the type of park that typically addresses limited or isolated recreational needs. A minipark is sometimes referred to as a "pocket park." Miniparks may be founding (sic) residential or commercial areas, and may include active or passive recreational opportunities, or a combination of such activities.

(m) *Natural amenity.* Any natural resource that may be considered to have recreational, conservational, or scenic value.

(n) *Neighborhood park.* A park that serves the basic recreational needs of an identified neighborhood. A neighborhood park is developed for both active and passive recreational activities and is specifically programmed for those persons who live within the its immediate service area. A neighborhood park is generally a minimum of five (5) acres in size, and usually is anticipated to be no larger than twenty (20) acres.

(o) *Open space.* Land, water, and atmosphere, private or public that is predominately natural and undeveloped.

(p) *Programs.* The organization of events, activities, or facilities associated with particular forms of recreation, or particular parks. The programming of a park is to create, organize, modify, or implement, such events, activities, [or] facilities for recreational or other park purposes.

(q) *Regional park.* A regional park is one that serves the entire city, or a larger region. A regional park is typically built around a unique landscape, natural area, or specialized recreational opportunity. Regional parks are generally in excess of fity (50) acres in size, and could easily be more than one hundred (100) or two hundred (200) acres in size. Such parks may include areas for typical active recreation, but are largely focused upon passive recreational opportunities.

(r) *Riparian.* Something that is of, on, or pertaining to the bank of a natural course of water.

(s) *Senior center.* A center that includes recreational facilities and programs for mature, and usually older, adults.

(t) *Tournament field.* A sports field, or competition field, that is suitable to accommodate tournament play within a particular classification for a sport. A tournament field includes night lighting, parking, and seating for spectators. A tournament field may be located within a large sport complex.

(u) *Trail.* Any path, passage, or route specifically designated, developed, and managed for trail activities.

(v) *Urban plaza.* A publicly-accessible open area located within an urban context. An urban plaza is generally designed for the

use of a large number of people for a short period of time. Such use may be very formal in nature.

(w) *Water-related park.* A park that contains any number of water-related recreational facilities. Such facilities may include, but are not limited to, spray pools, swimming pools, marinas, beaches, or interactive fountains.

(Ord. No. 18,528, § 4, 7-17-01)

Sec. 22-7. Vision and goals.

The vision and goals of the parks and recreation master plan shall be focused upon an overall desire to create a "city in a park," and shall include three (3) major components:

(a) The creation of a citywide system of parks, open spaces and natural areas;

(b) The provision of facilities and programs to serve all user groups, communities, and age groups within the city;

(c) The advocacy, creation and maintenance of the "city in a park" vision through partnerships, creative financing mechanisms, and education programs.

(Ord. No. 18,528, § 5, 7-17-01)

Sec. 22-8. Four-point strategy.

The four-point strategy to articulate the goals of the parks and recreation master plan and to guide specific actions necessary to create a "city in a park" is as follows:

(a) Creation of an interconnected multifunctional open-space system comprised of parks, greenways, riparian areas and floodplains, streets, sidewalks, and trails to link public and private facilities, and to provide an ecologically responsible green infrastructure for the "city in a park";

(b) Construction of signature parks and facilities that will be regional banner parks and facilities which provide new and expanded recreational opportunities to the citizens of Little Rock, and which will also provide opportunities for the citizens of central Arkansas;

(c) Provision of neighborhood services through a park or green space within an eight-block radius of each resident of the city which will accommodate the recreational needs of the citizens at the neighborhood level;

(d) Creation of a diversity in recreational programs that will be capable of serving a city resident's interests from childhood through maturity.

(Ord. No. 18,528, § 6, 7-17-01)

Sec. 22-9. Park and recreational uses.

(a) City parks and recreational facilities may be used for any purpose set forth in the master plan, city ordinance, state statute, or such purposes as used in recognized parks and recreational facilities in other parts of the State of Arkansas, or the United States, that are consistent with this Little Rock Parks and Recreation Master Plan and any applicable planning and zoning ordinances or state law provisions.

(b) If the planning commission has referred to the board of directors the question of compliance of a particular property with the Little Rock Parks and Recreation Master Plan in accordance with section 36-322 (b)(4), the board of directors shall hold a public hearing to address the questions raised by the planning commission. After the board considers the comments of the planning commission, it may be [by] majority vote:

(1) Disagree with the planning commission and permit further development of the proposed plan; or

(2) Agree with the planning commission and:

a. Send the matter back to the involved city departments for additional review by the departments and the planning commission;

b. Seek advice from the planning commission as to what modifications to the proposed plan would bring the

matter into compliance with the Little Rock Parks and Recreation Master Plan; or

c. Order modifications to the proposed plan that the board of directors believes will bring the matter into compliance with the Little Rock Parks and Recreation Master Plan.

(Ord. No. 18,528, § 7, 7-17-01; Ord. No. 18,630, § 6, 1-15-02)

Sec. 22-10. Amendments.

The governing body may, by resolution, amend certain parts of the Little Rock Parks and Recreation Master Plan by resolution as long as such change does not amend a formal section of Ordinance No. 18,528.
(Ord. No. 18,528, § 8, 7-17-01)

Secs. 22-11—22-20. Reserved.

ARTICLE II. PARK RULES

Sec. 22-21. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 22-22. Scope.

This article applies to all city parks and recreation facilities.

Sec. 22-23. Facility use permits.

(a) It shall be unlawful to use any facility or building for the following purposes without first obtaining permission from the director of parks and recreation or a designee:

(1) Recreational buildings for any purpose;

(2) Special events on park property;

(3) Lectures, concerts, political rallies, speeches or addresses.

(b) Any person or group of persons with a permit shall have priority in the use of the facility for the time indicated on the permit, to the exclusion of all persons who do not hold a permit.

(c) Facility use permits may be revoked for a violation of this chapter.
(Code 1961, § 26-5(27.1), (27.2); Ord. No. 16,115, § 1, 11-5-91)

Sec. 22-24. Fees.

(a) No person shall enter or participate in or on those parks and recreation facilities or programs which have a fee schedule established by the board of directors or a lessee without paying the required fee.

(b) Reserved.

(e) Reserved.
(Code 1961, §§ 26-5(28), 26-11.1; Ord. No. 18,621, §§ 1, 2, 12-18-01)

Sec. 22-25. Reserved.

Editor's note—Ord. No. 16,115, § 7, adopted Nov. 5, 1991, amended the Code by deleting provisions contained in § 22-25 in their entirety. Said provisions pertained to the operating hours of city parks and derived from the Code of 1961, § 26-6; Ord. No. 15,758, § 1, adopted Oct. 3, 1989.

Sec. 22-26. Clothing.

No person shall use beach areas, swimming pools and other public areas unless properly attired.
(Code 1961, § 26-5(30))

Sec. 22-27. Commercial activities.

(a) It shall be unlawful for any person, firm or corporation to sell, peddle, rent, or otherwise distribute any article in city parks without first obtaining a permit from the parks and recreation department of the city.

(b) The sponsors of festivals or special events approved by the city and who have first obtained a permit may be granted exclusive right to determine the vendors authorized to participate in such events.

(c) The city manager shall be responsible for determining the cost of permit fees under this section.
(Code 1961, § 26-5(6), (19); Ord. No. 15,689, § 1, 5-16-89)

Sec. 22-28. Construction.

No person shall construct or erect any building or structure, run or install any public service utility, except on special approval by the board of directors.
(Code 1961, § 26-5(20))

Sec. 22-29. Soliciting alms or contributions.

No person shall solicit money (alms) or contributions.
(Code 1961, § 26-5(26))

Sec. 22-30. Camping.

No person shall stay after hours, camp, sleep, or lodge within a public park except by special written permission granted by the parks and recreation department. In addition to any other sanction that may be assessed for the violation of this provision, any person in violation of this ordinance shall be subject to the immediate removal from the park of their person and belongings.
(Code 1961, § 26-5(10); Ord. No. 18,101, § 1, 9-21-99)

Sec. 22-31. Picnics.

No person shall picnic or lunch in a place other than those designated for that purpose, or leave a picnic area before the fire is completely extinguished and before all trash in the nature of boxes, papers, cans, bottles, and other refuse is placed in the disposal receptacles where provided.
(Code 1961, § 26-5(23))

Sec. 22-32. Games.

It shall be unlawful to participate in sports and games involving thrown, kicked or otherwise or otherwise propelled objects other than in areas designated for such activities. Hazardous sports such as football, soccer, baseball, golf and archery are allowed only on fields and courses provided therefor.
(Code 1961, § 26-5(24); Ord. No. 16,115, § 2, 11-5-91)

Sec. 22-33. Swimming, bathing, etc.

(a) It shall be unlawful to swim, bathe or wade in any lake, pond or fountain in the city parks.

(b) It shall be unlawful for any person to swim in the Arkansas River within the boundaries of city parks.

(c) "Swim" is defined as entering into the water above the waist or propelling oneself in the water by the use of arms or legs, with or without the use of flotation devices.
(Code 1961, § 26-5(3), (29); Ord. No. 16,115, § 3, 11-5-91)

Sec. 22-34. Restrooms.

Any child under the age of six (6) years may use any restroom facility within the city if accompanied by a parent, guardian, or person designated by a parent or guardian to do so.
(Code 1961, § 26-5(22); Ord. No. 21,996, § 1, 5-18-21)

Sec. 22-35. Disorderly conduct.

No person shall indulge in riotous, boisterous, threatening, or indecent conduct; or abusive, threatening, profane or indecent language.
(Code 1961, § 26-5(9))

State law reference—Disorderly conduct, A.C.A. § 5-71-207 et seq.

Sec. 22-36. Alcoholic beverages.

No person shall consume or have on his person alcoholic beverages within the confines of any Little League Baseball Park located on city park property.
(Code 1961, § 26-5(35))

Sec. 22-37. Property damage.

(a) No person shall write upon, or mark, or deface in any manner, or use in any improper way any water closet, park seat, fence or building, or anything pertaining to a city park.

(b) No person shall place objects on train tracks or any other piece of amusement equipment.

(Code 1961, § 26-5(2),(34))

State law reference—Property damage, A.C.A. §§ 5-38-203, 5-38-204.

Sec. 22-38. Reserved.

Editor's note—Ord. No. 18,596, § 1(1), adopted Nov. 20, 2001, repealed § 22-38, which pertained to disturbing trees, shrubs, etc. and derived from Code 1961, § 26-4.

Sec. 22-39. Animals.

(a) It shall be unlawful to chase, snare, catch, tease, molest, injure or to antagonize animals in any way in parks.

(b) It shall be unlawful to throw or fire any projectile at or toward animals in parks or the zoo.

(c) Horses may be ridden in parks only on designated bridal trails.

(d) It shall be unlawful to permit a dog to run loose within a park unless (1) in an area identified as a park dog run, (2) under supervision of the owner or other caretaker, and (3) the owner or caretaker of the dog adheres to all rules established for such dog run area. At all other times, dogs shall be restrained on adequate leashes not longer than five (5) feet in length.

(e) No pets of any kind, other than animals trained for handicapped persons, are allowed inside the zoo confines or at Julius Breckling Riverfront Park during Riverfest.

(f) It shall be unlawful to cross guard rails, fences, or barricades in any park area confining animals, displays or exhibits.

(g) It shall be unlawful to poison or feed animals spoiled food.

(h) It shall be unlawful to feed animals where signs have been posted forbidding such practice, or to feed any animal within the zoo confines. This provision shall not apply to zoo personnel.
(Code 1961, § 26-5(4), (17), (18), (25), (31)—(33); Ord. No. 16,115, § 4, 11-5-91; Ord. No. 18,596, § 1(2), 11-20-01; Ord. No. 18,924, § 1, 8-19-03)

Sec. 22-40. Fireworks or firearms.

No person shall discharge any firearms or fireworks in the city parks.
(Code 1961, § 26-5(1))

Sec. 22-41. Pollution.

(a) No person shall allow any substance to pollute the land or streams within the parks.

(b) No person shall throw stones, sticks or rubbish of any kind into the lakes or ponds within the city parks, nor bathe nor wade therein.
(Code 1961, § 26-5(3), (18))

Sec. 22-42. Litter.

No person shall throw or leave paper or other rubbish anywhere except in the receptacles provided for the purpose or the placing of any refuse therein brought from private property.
(Code 1961, § 26-5(21))

Cross reference—Solid waste, Ch. 28.

Sec. 22-43. Handbills.

(a) It shall be unlawful to paste, affix or inscribe any handbill, poster, card, device, message, symbol or advertisement anywhere in city parks without prior approval of the city manager.

(b) Distribution of handbills and the gathering of signatures on petitions are allowed by permit obtained from the director of parks and recreation. Such activity shall be allowed during regular park hours and may be required to locate in such a manner as not to impede pedestrian and vehicular traffic within the park.
(Code 1961, § 26-5(5); Ord. No. 16,115, § 5, 11-5-91; Ord. No. 18,569, § 2, 9-18-01)

Sec. 22-44. Music, speeches, etc.

No person shall render any music, vocal or instrumental, or deliver any oration, speech, address or lecture, in said parks, without a permit from the superintendent of parks and recreation.
(Code 1961, § 26-5(7))

Sec. 22-45. Fires.

No person shall make or kindle a fire for any purpose except in places provided therefor.
(Code 1961, § 26-5(8))

Sec. 22-46. Traffic.

(a) No person shall fail to comply with A.C.A. tit. 27 [A.C.A. § 27-1-101 et seq.] in all park areas.

(b) No person shall drive on any area except the paved park roads or parking areas. This includes all types of powered motor vehicles, except those engaged in work on the golf course or in the parks.

(c) No person shall park in other than an established or designated parking area.

(d) No person shall ride a bicycle, motor bicycle, motorcycle, or any other like piece of equipment on other than a paved vehicular road or path designated for that purpose.

(e) No person shall drive or operate any motor vehicle in excess of twenty-five (25) miles per hour unless otherwise posted.

(f) When signs are erected giving notice thereof, it shall be unlawful for any person to drive or cause to be driven any truck larger than three-fourths of a ton or any tractor on any of the roads within any public park, unless the vehicle is on a delivery to or from said park, or is engaged in work actually being done within the park.

(g) No person shall repair or wash vehicles within a city park.

(h) It shall be unlawful for any person to cross guard rails, fences or barriers or drive a vehicle across or through barricades in city parks, including the Little Rock Zoo, which are placed there by the city for the health, safety and welfare of its citizens.
(Code 1961, §§ 26-3, 26-5(11)—(16); Ord. No. 15,689, § 2, 5-16-89)

Cross references—Traffic, Ch. 32; parking in public parks, § 32-376.

Secs. 22-47—22-60. Reserved.

ARTICLE III. MUNICIPAL GOLF COURSES

Sec. 22-61. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 22-62. Payment of user fees required.

(a) It shall be unlawful to play on a municipal golf course without having paid the proper use fee for such privilege.

(b) User privileges may be revoked for a violation of this chapter.
(Code 1961, § 26-7; Ord. No. 16,115, § 6, 11-5-91

Sec. 22-63. Riding or driving over greens.

All persons, except those engaged in work on the golf course, are forbidden to ride or drive any animals or vehicles on or over the tees, greens or fairways of a municipal golf course.
(Code 1961, § 26-8)

Sec. 22-64. Property damage.

No person shall break, damage or carry away any flag, sandbox, tool, implement, equipment, bridge or other property of a municipal golf course or mar, damage or destroy any shed, house, out-house, or other property belonging to or located on a municipal golf course.
(Code 1961, § 26-9)

State law reference—Property damage, A.C.A. §§ 5-38-203, 5-38-204.

Sec. 22-65. Loitering or parking vehicles on greens.

No person shall loiter or park vehicles on or about the tees, greens, fairways, grounds or woods next to and within one hundred (100) feet of the tees, greens or fairways on municipal golf courses. This section shall not apply to any public driveway.
(Code 1961, § 26-10)

Secs. 22-66—22-85. Reserved.

ARTICLE IV. ARTS AND HUMANITIES PROMOTION COMMISSION*

Sec. 22-86. Established.

There is hereby established a Little Rock Arts and Humanities Promotion Commission to promote and encourage public awareness and interest in the artistic and cultural development of the city.
(Ord. No. 15,194, § 1(27-1), 10-21-86)

Sec. 22-87. Members.

The said commission shall consist of thirteen (13) members who shall be qualified electors of the city. The commission members shall be appointed by the mayor and confirmed by a majority of the members of the board of directors. The term of appointment shall be for three (3) years, or until a successor is appointed and qualified. Five (5) members of the commission shall be representatives of cultural institutions located within the city.
(Ord. No. 15,194, § 1(27-2), 10-21-86; Ord. No. 16,063, § 1, 6-4-91; Ord. No. 18,107, § 1, 10-5-99; Ord. No. 20,490, § 1, 10-18-11)

Sec. 22-88. Officers and meetings.

The arts and humanities promotion commission shall organize and select the officers as specified in the bylaws. The commission shall adopt such bylaws as may be necessary to accomplish the purposes for their organization. Bylaws shall be

*__Cross reference—__Boards and commissions generally, § 2-261 et seq.

effective upon adoption by the commission and approval by the board of directors.
(Ord. No. 15,194, § 1(27-3), 10-21-86)

Sec. 22-89. Fiscal procedures.

The arts and humanities promotion commission is subject to all fiscal procedures of the city.

Sec. 22-90. Powers and duties.

The arts and humanities promotion commission shall have the following duties and powers:

(1) To hold regular public meetings and keep a written record of its proceedings which shall be public records.

(2) To annually review the promotional needs of programs enhancing the artistic and cultural development of the city and to submit a proposed budget therefor to the board of directors.

(3) To make expenditures in accordance with the annual budget adopted by the city.

(4) To initiate, sponsor or conduct, alone or in cooperation with other public or private agencies, public programs to further the public awareness of, and interest in the fine arts, performing arts and cultural and historical activities.

(5) To advise and assist the city in connection with such other artistic activities as may be referred to it by the city.

(6) To serve as a clearinghouse for scheduling exhibits, concerts, recitals, lectures and other cultural events that may occur in the community.

(7) To generally stimulate, facilitate, coordinate and cooperate with existing organizations for the development of the fine arts and the historical traditions of the city and to initiate programs and proposals of encouragement for promotion and development of the arts, culture, heritage, beauty and tradition of the city.

(Ord. No. 15,194, § 1(27-4), 10-21-86)

Secs. 22-91—22-110. Reserved.

ARTICLE V. ARKANSAS MUSEUM OF SCIENCE AND HISTORY

DIVISION 1. GENERALLY

Sec. 22-111. Created.

The Museum of Science and History, which now and for many years past has been located and housed in the Old Arsenal Building, MacArthur Park, in the City of Little Rock, is hereby renamed "The Arkansas Museum of Science and History" and shall become incorporated under the laws of the state as a nonprofit corporation to be known as the "The Arkansas Museum of Science and History, Inc."
(Code 1961, § 26-12)

Sec. 22-112. Location of the Arkansas Museum of Science and History, Inc.; meetings of board of trustees.

The Arkansas Museum of Science and History shall be initially located in the Old Arsenal Building located in MacArthur Park in the City of Little Rock and all meetings of the board of trustees of the Arkansas Museum of Science and History, Inc., shall be held in such building unless a different place of meeting is designated in the notice therefor.
(Code 1961, § 26-17; Ord. No. 15,781, § 1, 11-21-89)

Secs. 22-113—22-135. Reserved.

DIVISION 2. BOARD OF TRUSTEES*

Sec. 22-136. Generally.

The management and control of the Arkansas Museum of Science and History and its historical and scientific program is hereby vested in the board of trustees which shall have not less than nine (9) nor more than thirty (30) members, to be appointed by the board of directors. Neither the articles of incorporation nor bylaws nor any policy of the board of trustees of the Arkansas Museum

*Cross reference—Boards and commissions generally, § 2-261 et seq.

of Science and History, Inc., or its trustees shall be inconsistent with the ordinances of the city and the statutes of the state. After the initial election of the trustees to the board, the trustees shall thereafter be elected to serve for a term of three (3) years. No trustee may serve more than two (2) consecutive terms. The mayor shall serve as ex officio member of the board of trustees. The board of trustees from time to time with the consent and approval of the board of directors of the city may elect honorary life members as it deems expedient.
(Code 1961, § 26-1; Ord. No. 15,099, § 1, 5-20-86; Ord. No. 15,781, § 2, 11-21-89; Ord. No. 17,207, § 1, 6-4-96)

Sec. 22-137. Fiscal procedures.

The board of trustees of the Arkansas Museum of Science and History, Inc., is subject to all fiscal procedures of the city.
(Code 1961, § 26-13; Ord. No. 15,099, § 1, 5-20-86)

Sec. 22-138. Compensation; officers; annual report.

The members of the board of trustees of the Arkansas Museum of Science and History, Inc., shall serve without pay or commission in any form. The board of trustees shall biannually elect from its membership to serve as its managing officers a chairman, a vice chairman, a secretary and a treasurer and such other officers as the members of the board of trustees may deem necessary. The board of trustees shall render an annual report to the board of directors of the city.
(Code 1961, § 26-14; Ord. No. 15,781, § 3, 11-21-89)

Sec. 22-139. Powers and duties.

The board of trustees of the Arkansas Museum of Science and History, Inc., is hereby granted the necessary authority to proceed forthwith to plan, design and have constructed and equipped a new museum building and such additional improvements as shall be necessary or convenient to finance and complete the same, subject to the zoning and planning codes of the city, and to continue to operate the present museum located in the Old Arsenal Building in MacArthur Park or to recommend to the city alternate uses therefor and to use and occupy such additional ground or properties as may be necessary or convenient to accommodate the activities of the Arkansas Museum of Science and History, Inc. The city exempts itself from all liability and expense which might arise by virtue of the construction and equipping of facilities as above described, it being expressly understood that said construction and equipping are to be completed without any cost to the city; provided nothing in this article is intended nor shall it be construed so as to relieve the city of its previous commitment for capital funds and operating funds as from year to year the governmental body of the city may deem by ordinance appropriate.
(Code 1961, § 26-15; Ord. No. 15,781, § 4, 11-21-89)

Sec. 22-140. Solicitation of funds.

The provisions of this article do not restrict or limit the authority of the board of trustees of the Arkansas Museum of Science and History, Inc., to accept, solicit, invest and expend funds separate and apart from its funds provided pursuant to the budget of the city.
(Code 1961, § 26-16)

Secs. 22-141—22-160. Reserved.

ARTICLE VI. THE ARKANSAS ARTS CENTER

DIVISION 1. GENERALLY

Sec. 22-161. Created.

The institution heretofore known and designated as the museum of fine arts shall henceforth be known and designated as "The Arkansas Arts

Center." The museum of fine arts shall continue to exist as a department within and under the Arkansas Arts Center and its board of trustees.
(Code 1961, § 26-26)

Sec. 22-162. Fine Arts Club of Arkansas; use and maintenance of Arkansas Arts Center building.

The Arkansas Arts Center building shall continue to be the home and meeting place of the Fine Arts Club of Arkansas at all times. In the event of the City of Little Rock failing, for any reason, to provide necessary funds to pay for the maintenance of the Arkansas Arts Center then after the expiration of thirty (30) days' notice to the board of directors of the city that such failure has occurred, the maintenance of the building may be assumed and taken over by the Fine Arts Club of Arkansas.
(Code 1961, § 26-31)

Secs. 22-163—22-180. Reserved.

DIVISION 2. BOARD OF TRUSTEES*

Sec. 22-181. Generally.

The management and control of the Arkansas Arts Center and its cultural and educational programs is vested in a board of trustees, which shall have not less than nine (9) nor than twenty-seven (27) members, to be appointed pursuant to the provisions of Act No. 99 of the Acts of Arkansas of 1929, as amended by Act No. 8 of the Acts of Arkansas of 1967. The policy of the board of trustees of the Arkansas Arts Center shall not be inconsistent with the ordinances of the city and the statutes of the state. After the initial appointment of the trustees to the board, trustees shall thereafter be appointed to serve for a term of four (4) years. The mayor and the president of the Fine Arts Club shall serve as ex officio members of the board of trustees. The board from time to time may elect honorary life members as it deems expedient.
(Code 1961, § 26-27)

*__Cross reference—__Boards and commissions generally, § 2-261 et seq.

Sec. 22-182. Officers; annual report.

The members of the board of trustees of the Arkansas Art Center shall serve without pay or compensation in any form. The board of trustees shall annually elect from its membership to serve as its managing officers a chairman, a president, a vice-president, a secretary and treasurer, and such other officers as the members of the board may deem necessary. The board of trustees shall render an annual report to the board of directors.
(Code 1961, § 26-28)

Sec. 22-183. Fiscal procedures.

The board of trustees of the Arkansas Art Center is subject to all fiscal procedures of the city.

Sec. 22-184. Powers and duties.

The board of trustees of the Arkansas Arts Center has full authority to proceed forthwith to plan, design, and have constructed and equipped additions to and modifications of the Museum of Fine Arts building in Douglas MacArthur Park and to use and occupy such additional ground adjoining the museum building as may be necessary to accommodate such additions. The additions and modifications shall be so constructed as to present a harmonious architectural design when completed. The city expressly exempts itself from all liability and expense which might arise by virtue of the construction and equipping of the facilities as above described, it being expressly understood that said construction and equipping are to be completed without any cost to the city.
(Code 1961, § 26-29)

Sec. 22-185. Solicitations of funds.

The provisions of this article do not limit the authority of the board of trustees of the Arkansas Art Center to accept, solicit, invest and expand funds separate and apart from its funds provided pursuant to the budget of the city.
(Code 1961, § 26-30)

Secs. 22-186—22-200. Reserved.

ARTICLE VII. SISTER CITIES COMMISSION*

Sec. 22-201. Created.

The city hereby authorizes a commission to be known as the Little Rock Sister Cities Commission to fulfill the purposes of this article.
(Ord. No. 16,306, § 1, 11-17-92)

Sec. 22-202. Members of commission.

The commission shall consist of thirteen (13) members who shall be appointed by the board of directors upon the recommendation of the city manager. Members of the commission may include employees of the city and members of the board of directors. The initial commission will be chosen as follows: Two (2) members for a term of one (1) year, two (2) members for a term of two (2) years, three (3) members for a term of three (3) years, three (3) members for a term of four (4) years, and three (3) members for a term of five (5) years. After the initial appointment, all appointments shall be for a period of five (5) years, or until a successor is qualified, provided no person shall be appointed for more than two (2) consecutive full terms.
(Ord. No. 16,306, § 2, 11-17-92; Ord. No. 16,345, § 1, 1-19-93; Ord. No. 18,199, § 1, 2-1-00; Ord. No. 18,817, § 1, 2-18-03)

Sec. 22-203. Commission to adopt bylaws.

The commission shall adopt such bylaws as may be necessary to accomplish the purposes for its organization. These bylaws shall be effective upon adoption by the commission and approval by the board of directors of the City of Little Rock. The commission shall then organize and select officers as specified in the bylaws.
(Ord. No. 16,306, § 3, 11-17-92)

Sec. 22-204. Duties and powers.

The Little Rock Sister Cities Commission shall have the following duties and powers:

(1) To draft a set of bylaws for such a commission and to periodically review said bylaws for any necessary changes;

(2) To develop guidelines and a program for a sister city relationship with other cities throughout the world;

(3) To prepare an annual report of the activities of the sister city commission for the City of Little Rock and to compare the commission's activities to those of similar commissions in comparable cities throughout the country;

(4) To develop a budget as necessary for sister city commission projects to be considered by the board of directors;

(5) To initiate, sponsor or conduct, alone or in conjunction with other cities or agencies, public programs to further public awareness of and interest in communities throughout the world emphasizing such things as the cultural, historical, and economic aspects of the city's adopted sister cities;

(6) To advise and assist the city in connection with such other activities as may be referred to the commission by the board of directors;

(7) To generally stimulate, facilitate, coordinate and cooperate with existing organizations throughout the country for the promotion and development of sister city relationships.

(Ord. No. 16,306, § 4, 11-17-92)

Secs. 22-205—22-210. Reserved.

ARTICLE VIII. ZOO DEPARTMENT

Sec. 22-211. Statement of policy.

The City of Little Rock shall maintain an efficient parks and recreation system which, among other things, shall include parks, open space, athletic fields, tennis facilities, swimming pools, a zoological museum, fitness centers, golf courses, senior adults centers, and other facilities dedicated to enhancing the quality of life for the citizens and visitors to the city. The operation of these programs, and the maintenance of these facilities, shall be assigned to two (2) city departments: a parks and recreation department, with

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*__Editor's note—__Nonamendatory Ord. No. 16,306, §§ 1—4, adopted Nov. 17, 1992, has been included herein as Art. VII to Ch. 22, §§ 22-201—22-204, at the discretion of the editor.

__Cross reference—__Boards and commissions generally, § 2-261 et seq.

supervisory authority for the operation and maintenance of the facilities and programs of the parks and recreation system other than the zoo; a zoo department, with supervisory authority for the operation and maintenance of the facilities and programs at the Little Rock Zoo.
(Ord. No. 17,927-X, § 1, 1-26-99)

Sec. 22-212. Zoo department.

The zoo department shall be a separate department of the city with a department head known as the director of the zoo who shall be the person immediately responsible for the continued and efficient operation of the facilities, structures, and programs at the Little Rock Zoo.
(Ord. No. 17,927-X, § 2, 1-26-99)

Sec. 22-213. Little Rock Zoo Board of Governors.

A Little Rock Zoo Board of Governors is created to review, consult and advise the City on matters concerning the operation and maintenance of the Little Rock Zoo.

(a) The board of governors shall consist of nine (9) members, appointed by the board of directors, eight (8) of whom shall serve for staggered terms of three (3) years after the initial cycle of terms. One member of the board of governors shall be a sitting member of the board of directors and shall serve at the pleasure of the board of directors. The initial eight (8) members of the board of governors, other than the board of directors member, shall draw lots to see which three (3) members shall serve an initial term of three (3) years, which three (3) shall serve an initial term of two (2) years, and which two (2) shall serve an initial term of one year. Except for the board member, no person shall be allowed to serve on the commission for more than two (2) consecutive three-year terms, nor in any event, more than eight (8) continuous years.

(Ord. No. 17,927-X, § 3, 1-26-99; Ord. No. 17, 949, § 1, 3-2-99; Ord. No. 18,153, § 1, 12-7-99)

Sec. 22-214. Authority and duties of the commission.

The zoo board of governors shall have the following authority and duties:

(a) To hold periodic meetings not less than once a month, which are open to the public and for which minutes shall be maintained, to perform the other duties required by this article;

(b) To consult with and advise the director of the zoo, and to recommend policies and plans for the operation, maintenance, or expansion of zoo facilities and programs to the city;

(c) To consider, and if desired to interview, applicants for the position of zoo director, whenever there is a vacancy in that position, and to recommend a list of three (3) finalists, in order of preference if so desired, to the city manager from which a new zoo director shall be hired;

(d) To appoint members to the Friends of the Zoo, Inc., board of directors, a not-for-profit corporation which solicits donations for the sole purpose of making improvements to the Little Rock Zoo and, that has amended its bylaws to permit the board of governors to exercise such appointment power;

(e) To consult with and advise the director of the zoo annually to determine the financial needs for the zoo and to report these budget needs for the next year to the city manager for inclusion in the city's budget process, provided that any budget recommendation will assure that the city's covenants pursuant to any outstanding parks and recreation revenue bond issues are met;

(f) To authorize the expenditure of monies donated to the city, for the use and benefit of the zoo department, to the extent permitted by the city manager, provided these expenditures shall be for the operation, maintenance, enhancement of the collection, or capital improvements of the zoo;

(g) To submit to the city an annual report that addresses the state of the operations, facilities, and programs at the Little Rock Zoo.

(h) To have all authority, subordinate to that of the city board of directors, or the city manager, which is not specifically enumerated in this article to operate and improve the Little Rock Zoo, provided that such authority does not violate or conflict with state law, subject the city or any of its employees to liability, or is contrary to the covenants of any outstanding bond issues.

(i) To determine the appropriate rates for admission to the zoo, and to adopt any policies for admission rates deemed appropriate including, but not limited to, discount or group rates, reciprocal zoo membership programs, whether to have special days for free admission, or whether to establish categories of membership fees for the zoo. Before any increase in admission fees, cancellation of special days for free admission, or the establishment of any new category of membership, the Little Rock Zoo board of governors shall conduct a survey of similar charges at zoos in surrounding states, or in similarly situated cities, to determine how the increase for the Little Rock Zoo compares.

(Ord. No. 17,927-X, § 4, 1-26-99; Ord. No. 18,613, § 3, 12-18-01; Ord. No. 18,613, §§ 3, 4, 12-18-01)

Secs. 22-215—22-220. Reserved.

ARTICLE IX. URBAN FORESTRY*

Sec. 22-221. Short title.

This article shall be known and may be cited as the "Urban Forestry Ordinance" of the City of Little Rock, Arkansas. This article shall hereafter be cited if referred to for purposes of amendment or otherwise by said title.
(Ord. No. 18,596, § 2, 11-20-01)

*__Cross reference—__Landscaping and tree protection, ch. 15.

Sec. 22-222. Purpose and intent.

It is the purpose of this article to promote and protect the public health, safety, and general welfare by providing for the development of an urban forestry management plan to address the planting, maintenance, and removal of public trees and woodlands in order to promote, maintain, and improve the unique benefits of the urban forest resource of the City of Little Rock. This article provides for the care of trees on city-managed property and aids in the proper growth of a landscape program to enhance the beauty of the city.
(Ord. No. 18,596, § 2, 11-20-01)

Sec. 22-223. Exemption.

(a) In accordance with related city ordinances, state law or franchise agreements, public utilities may be exempt from certain provisions of this article.

(b) In case of emergencies, or when necessary for the protection of public safety and welfare, any or all requirements of this article may be waived, suspended or modified by the mayor or the city manager in the mayor's absence.
(Ord. No. 18,596, § 2, 11-20-01)

Sec. 22-224. Definitions.

For the purpose of this article, certain words or terms applicable hereto are defined as hereinafter provided. Words and terms used in this article but not defined in this article shall have the meanings ascribed elsewhere in this Code. Words used in the present tense shall include the future, words used in the singular number shall include the plural number and words used in the plural shall include the singular. Rules of construction of terms are designated in chapter 1 of this Code.

Aboriculture means the art and science of tree care including, but not limited to planting, pruning, fertilization, pest control, support, protection and removal.

City-managed property includes medians, street rights-of-way, alleys, parks, building grounds, parking areas, trails, greenways, easements, and other properties owned, managed or controlled by the City of Little Rock.

Hazardous tree means any part of a tree that is diseased, damaged, decayed or located so as to be dangerous to public safety, health or welfare.

Public tree means any tree located on city-managed property.

Topping means the severe cutting back of limbs to stubs larger than three (3) inches in diameter within the crown of the tree.
(Ord. No. 18,596, § 2, 11-20-01)

Sec. 22-225. Authority and power to plant, maintain and remove trees on public property.

(a) The City of Little Rock shall have the authority to regulate, conduct and oversee the planting, maintenance and removal of trees on city-managed property to ensure public safety, and to preserve the aesthetics, health and environmental benefits of public trees.

(b) The city shall have the authority to cause the removal of any dead, diseased or hazardous tree or tree parts when potential hazard to public safety and welfare exists.

(c) Each city department shall have the authority to implement this article on properties for which it is responsible.
(Ord. No. 18,596, § 2, 11-20-01)

Sec. 22-226. Urban forestry division.

(a) An urban forestry division is established and shall be administered by Little Rock Parks and Recreation and managed by the urban forester.

(b) The urban forestry division shall maintain an urban forestry management plan and develop guidelines and specifications for aboricultural operations conducted on city-managed property.

(c) The urban forestry division may seek support, review plans and coordinate its program with other city departments, neighborhood associations, community organizations, businesses and individuals.

(d) The urban forestry division may consult with other city departments involved with the planting, maintenance or removal of trees under their responsibility in conjunction with the urban forestry management plan and related city ordinances, and serve as a liaison to tree service contractors, vendors and community organizations.
(Ord. No. 18,596, § 2, 11-20-01)

Sec. 22-227. Permit requirements.

(a) *[Permit required.]* Planting and removal of trees on city-managed property shall require a permit.

(b) *[Review authority.]* The urban forestry division shall have the authority to review all requests for permits and to attach reasonable conditions to permits for tree planting and removal of trees on any city-managed property. The city official designated in chapter 15 of this Code or his designee shall have the authority to grant or deny applications for permits under this article.

(c) *Appeals.* Any person aggrieved by an administrative decision under this article shall have the right of appeal to the city beautiful commission as provided in section 15-36 of this Code.
(Ord. No. 18,596, § 2, 11-20-01)

Sec. 22-228. Arboricultural standards for trees.

Planting, maintenance and removal activities on public trees should meet current arboricultural practices described in the American National Standards Institute ASC A300 standards for tree care operations, as amended. City departments, contractors, community organizations and individuals performing tree related activities on city-managed property are encouraged to adhere to these standards.
(Ord. No. 18,596, § 2, 11-20-01)

Sec. 22-229. Tree topping.

The practice of topping is prohibited on public trees and is strongly discouraged as a practice for trees on private property.
(Ord. No. 18,596, § 2, 11-20-01)

Sec. 22-230. Hazardous trees.

(a) When the urban forester determines that a tree or limb presents a condition which is hazardous to the safety or welfare of the community, it shall be removed or pruned immediately.

(b) It shall be the duty of any person or persons owning or occupying real property bordering city-managed property upon which there may be trees, to prune such trees in such a manner that they will not obstruct or shade street lights, obstruct the passage of pedestrians on sidewalks, obstruct the passage of vehicles on any street or alley, obstruct vision of traffic signs, or obstruct view of any street or alley intersection.

(c) The city shall have the right to cause the removal of any dead, diseased or hazardous trees or tree parts on public or private property within the city when such trees constitute a hazard to life and property or harbor insects or disease which constitute a potential threat to other trees within the city. If the tree is on private property, the owner may be held responsible and liable for the costs of removal.
(Ord. No. 18,596, § 2, 11-20-01)

Sec. 22-231. Damage, abuse or mutilation of public trees.

(a) Public trees shall not be removed without the appropriate or required permission of the City pursuant to chapters 15 and 22 of this Code.

(b) It is unlawful to attach to public trees any rope, wire, sign, structure or harmful device.

(c) It is unlawful to expose or subject any public tree to chemicals or any substances which are injurious to the health, growth and vitality of any public tree.
(Ord. No. 18,596, § 2, 11-20-01)

Sec. 22-232. Protection from utilities.

Public utilities should exercise reasonable care and utilize best management practices to avoid damage and injury to public trees during the installation and maintenance of its facilities.
(Ord. No. 18,596, § 2, 11-20-01)

Sec. 22-233. Protection from vehicles and equipment.

No person or business shall allow vehicles or equipment to cause damage or injury to public trees by physical damage, land alteration, or chemical contamination.
(Ord. No. 18,596, § 2, 11-20-01)

Sec. 22-234. Permit application for tree planting and removal.

It shall be unlawful for any person or business to plant, prune, remove, spray, or otherwise treat public trees without evidence of applicable certification, license or permit.
(Ord. No. 18,596, § 2, 11-20-01)

Sec. 22-235. Permit for work near trees.

(a) No person or business shall perform any grading, excavation, place any fill, compact the soil or construct any building structure, street, sidewalk, driveway, pavement or public utility within twenty-five (25) feet of any public tree without first notifying and consulting with the urban forestry division. Any such work shall be conducted in accordance with this article.

(b) Any public utility constructing or maintaining any overhead wires or underground pipes or conduits within twenty-five (25) feet of public trees shall consult with the urban forestry division prior performing work which may cause injury to public trees.
(Ord. No. 18,596, § 2, 11-20-01)

Sec. 22-336. Required licensing.

It shall be unlawful for any person to engage in the business of planting, cutting, trimming, pruning, removing, spraying, or otherwise treating trees within the City of Little Rock without first producing evidence of appropriate certification or license as required by the City of Little Rock.
(Ord. No. 18,596, § 2, 11-20-01)

Sec. 22-237. Violations.

(a) Violations of this article, including failure to comply with any notice or directive pursuant to this article, shall be punishable as provided in section 1-9 of this Code.

(b) If, as the result of violation of this article, the injury, mutilation, or death of a public tree is caused, the actual cost of repair, replacement, or the appraised dollar value of such public tree shall be borne by the party in violation. The value of public trees shall be appraised in accordance with the Council of Tree and Landscape Appraisers Guide for Plant Appraisal, 9th edition, as amended.

(c) Each public tree affected and each action or inaction taken in noncompliance with this article shall constitute a separate violation.
(Ord. No. 18,596, § 2, 11-20-01)

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Chapter 23

PLANNING AND DEVELOPMENT*

Art. I. **In General, §§ 23-1—23-25**
Art. II. **Little Rock Planning Commission, §§ 23-26—23-50**
Art. III. **Parks, Playgrounds, and Recreational Areas Plan, §§ 23-51—23-75**
Art. IV. **Historic Preservation, §§ 23-76—23-160**
Div. 1. Generally, §§ 23-76—23-95
Div. 2. Historic District Commission, §§ 23-96—23-125
Div. 3. Historic District, §§ 23-126—23-160
Art. V. **Reserved, §§ 23-161—23-170**
Art. VI. **Department of Neighborhoods and Planning, §§ 23-171, 23-172**

*__Cross references__—Adams Field airport zoning, § 7-51 et seq.; buildings and building regulations, Ch. 8; landscaping and tree protection, Ch. 15; street names and property numbers, § 30-301 et seq.; subdivisions, Ch. 31; zoning, Ch. 36.

__State law references__—Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.; municipal planning, A.C.A. § 14-56-401 et seq.

ARTICLE I. IN GENERAL

Sec. 23-1. Comprehensive plan, etc., not affected by Code.

Nothing in this Code or the ordinance adopting this Code shall affect the master plan or any ordinance adopting a comprehensive plan or other similar plan. All such provisions are recognized as continuing in full force and effect to the same extent as if set out at length in this Code.

Sec. 23-2. Planning jurisdiction.

Such jurisdiction is the corporate limits of the City of Little Rock Arkansas:

This amended section includes a deletion of each map included in Little Rock, Ark., Rev. Code Chapter 23-2.
(Ord. No. 15,443, 3-1-88; Ord. No. 18,488, § 1, 5-15-01; Ord. No. 20,638, § 1, 10-1-12; Ord. No. 20,754, § 1, 8-6-13; Ord. No. 22,651, § 2, 9-2-25)

Cross reference—Design overlay district—highway 10 scenic corridor, § 23-161 et seq.

Sec. 23-3. Fees.

(a) *Rezoning.* The filing fees for submitting rezoning applications to the department of planning and development shall be as follows:

	Parcel Size (Acres)						
Zoning District	**0—½**	**Over ½—1**	**Over 1—5**	**Over 5—10**	**Over 10—20**	**Over 20—40**	**Over 40**
R1, R2, R3	100	110	200	250	275	300	325
R4, R4A, R5, R6, MF6 thru 24, R7, R7A	140	180	210	275	325	400	475
O1, O2, O3	220	250	300	330	420	500	550
C1, C2, C3, C4, UU	250	300	350	400	480	540	600
I1, I2, I3, M	250	310	370	450	500	550	610
FP, AF, OS, PR	No Fee						

Fees for rezoning applications involving multiple parcels and mixed rezonings shall be determined by totaling up charges for individual parcels according to the above schedule.

(b) *Subdivision applications.* The filing fees for submitting subdivision applications to the department of planning and development shall be as follows:

Parcel Size (Acres)				
0—5	**Over 5 to 10**	**Over 10 to 20**	**Over 20 to 40**	**Over 40**
$200.00 plus $5.00 per lot or acre whichever larger	$350.00 plus $5.00 per lot or acre whichever larger	$450.00 plus $5.00 per lot or acre whichever larger	$550.00 plus $5.00 per lot or acre whichever larger	$660.00 plus $5.00 per lot or acre whichever larger

(c) *Site plan applications, etc.* The filing fees for submitting site plan applications and other matters listed below to the department of planning and development shall be as follows:

(1) Subdivision site plan:

a. One hundred fifty dollars ($150.00) for residential sites under five (5) acres.

b. Two hundred seventy-five dollars ($275.00) for residential sites from five (5) acres to ten (10) acres (inclusive).

c. Four hundred dollars ($400.00) for residential sites over ten (10) acres.

d. Three hundred dollars ($300.00) for nonresidential sites under five (5) acres.

e. Three hundred fifty dollars ($350.00) for nonresidential sites from five (5) acres to ten (10) acres (inclusive).

f. Four hundred dollars ($400.00) for nonresidential sites over ten (10) acres.

(2) Zoning site plan:

a. One hundred fifty dollars ($150.00) for residential sites under five (5) acres.

b. Two hundred seventy-five dollars ($275.00) for residential sites from five (5) acres to ten (10) acres (inclusive).

c. Four hundred dollars ($400.00) for residential sites over ten (10) acres.

d. Three hundred dollars ($300.00) for nonresidential sites under five (5) acres.

e. Three hundred fifty dollars ($350.00) for nonresidential sites from five (5) acres to ten (10) acres (inclusive).

f. Four hundred dollars ($400.00) for nonresidential sites over ten (10) acres.

(3) Conditional use permits:

a. One hundred seventy-five dollars ($175.00) for residential sites up to one-half (½) acre.

b. Two hundred dollars ($200.00) for residential sites over one-half (½) acre and less than three (3) acres.

c. Two hundred seventy-five dollars ($275.00) for residential sites three (3) acres and larger.

d. Two hundred fifty dollars ($250.00) for nonresidential sites under three (3) acres.

e. Three hundred fifty dollars ($350.00) for nonresidential sites from three (3) acres to ten (10) acres (inclusive).

f. Four hundred dollars ($400.00) for nonresidential sites over ten (10) acres.

(4) Board of adjustment: Seventy-five dollars ($75.00) for administrative appeals and interpretations, one hundred dollars ($100.00) for single-family and two-family variance applications, two hundred fifty dollars ($250.00) for multi-family (more than two (2) dwelling units) and nonresidential variance applications and sixty dollars ($60.00) for sign variance applications.

(5) Special use permit: One hundred seventy-five dollars ($175.00) for all sites.

(6) Tower use permits:

a. Two hundred dollars ($200.00) for all sites up to one-half (½) acre in area.

b. Three hundred dollars ($300.00) for all sites between one-half (½) acre and five (5) acres in area.

c. Four hundred dollars ($400.00) for all sites five (5) acres and larger.

The land area of the ownership within which the tower lease site is placed shall be the acreage used for determining the fee.

(7) Land use plan amendments and other appeal, waiver or requests to modify a master plan element shall be assessed a fee of seventy-five dollars ($75.00).

(8) Street name change applications: Two hundred dollars ($200.00).

(9) Easement abandonment applications: Two hundred dollars ($200.00).

(10) Wireless communication facility application plan review: One hundred fifty dollars ($150.00)

(11) Historic district commission certificate of appropriateness: One hundred dollars ($100.00).

(d) *Planned zoning district applications.* The filing fees for submitting planned zoning district applications to the department of planning and development shall be as follows:

Parcel Size (Acres)							
Zoning District	0—½	Over ½—1	Over 1—5	Over 5—10	Over 10—20	Over 20—40	Over 40
PRD, PD-R	150	175	200	225	300	350	400
POD, PD-O	175	200	225	275	350	400	450
PCD, PD-C	200	275	275	325	400	450	500
PID, PD-I	225	300	325	375	450	500	550

(e) *Right-of-way abandonment and improvement district applications.* The filing fee of submitting right-of-way abandonment and improvement district applications to the department of planning and development shall be one hundred twenty-five dollars ($125.00) for each application.

(f) *Annexation requests.* The filing fee for submitting annexation requests to the department of planning and development shall be two hundred fifty dollars ($250.00) for each application.

(g) *Refunds and refilings.* The following provisions shall apply to all applications submitted to the department of planning and development:

(1) Amounts to be refunded for applications withdrawn prior to planning commission action shall be as follows:

a. Seventy-five (75) percent of the fee paid if the application is withdrawn during the first week after docket closing.

b. Fifty (50) percent of the fee paid if the application is withdrawn during the second week after docket closing.

c. Twenty-five (25) percent of the fee paid if the application is withdrawn during the third week after docket closing.

(2) The date of receipt of written notice of withdrawal of the application shall be the date used to determine refund.

(3) There shall be no refunds of any portion of the fees paid if an application is amended during, or denied in, the review process.

(4) Refiling of the same, an amended or a completely different application on the same, or any portion of the same property, after previous action or withdrawal, shall be considered a completely new application and new fees shall be charged accordingly.

(h) *Public notice sign fees.* All rezoning, subdivision, board of adjustment, site plan, planned zoning district, tower use permit and conditional use permit applications are to be furnished a sign for posting. The fee for provision of the sign shall be as follows:

(1) All four-foot × four-foot signs for ten-acre and larger sites shall be assessed a twenty-five dollar ($25.00) fee. (Nonrefundable)

(2) All signs twelve-inch × eighteen-inch, eighteen-inch × twenty-four-inch or any other sign less than four (4) feet × four (4) feet square shall be assessed a fee of five dollars ($5.00). (Nonrefundable)

(3) All applications filed for appeal, variance or waiver of master plan elements shall be assessed a fee of five dollars ($5.00) for each sign. (Nonrefundable)

(4) These fees are due and payable at the time the application fee is paid.

(Ord. No. 15,218, § 7, 12-2-86; Ord. No. 15,776, §§ 1—3, 11-7-89; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,015, § 1, 3-5-91; Ord. No. 17,065, §§ 1—4, 12-26-95; Ord. No. 17,133, § 1, 2-27-96; Ord. No. 17,971, § 1, 4-6-99; Ord. No. 18,622, §§ 1—5, 12-18-01; Ord. No. 21,676, §§ 1—4, 12-11-18; Ord. No. 21,867, § 1, 5-19-20)

Sec. 23-4. Tax increment financing districts.

The city, pursuant to amendment 78 and state statute, will encourage redevelopment or tax increment financing (TIF) districts, pursuant to the following guidelines:

(1) Redevelopment or TIF districts shall be established for projects, or in areas, that demonstrate a clear ability to create jobs, expand the tax base and stimulate other development and investment for the city.

(2) Tax increment financing shall be utilized to leverage and attract other financing, in tandem with federal, state, local and private investment.

(3) The board of directors will support only proposed districts for which development, or redevelopment, likely would not have occurred except for the benefits emanating from tax increment financing and associated incentives.

(4) To obtain board of directors' approval, the planning process for redevelopment or TIF districts should be as inclusive as possible. Input should be gathered from area property owners—i.e., office, commercial and residential—other interested parties and the general public.

(5) Prior to the submission of a redevelopment or TIF district proposal to the city the applicant shall meet with a representative of each affected taxing jurisdiction. Redevelopment or TIF districts shall be accomplished in collaboration with the affected public school districts—Little Rock, Pulaski County, or both.

(6) A redevelopment district advisory board shall be formed, by ordinance, which includes representation from the district, any affected public school district, and appropriate representation from other taxing jurisdictions, and the community.

(7) Prior to the collection of any incremental tax revenues the applicant, or a representative of the redevelopment or TIF district, shall prepare a "project plan" as defined in section 2 of Act 1197 of 2001, as may be amended, and as required by section 7 of Act 1197 of 2001, as may be amended. (These provisions are presently codified as A.C.A. 14-168-301 (10) (Michie Supp. 2003) and A.C.A. 14-168-306 (Michie Supp. 2003).

(8) A proposed redevelopment or TIF district shall consider sharing a portion of the captured tax increment with other overlay taxing districts so as to lessen any short-term negative impact. The city will comply with section 7 of Act 1197 of 2001 on this matter which currently provides:

If less than all of the tax increment is to be used for project costs or pledged to secure tax increment financing as provided in the plan for the redevelopment project, the assessor shall account for such fact in distributing the ad valorem tax revenues.

(9) The city will develop and execute binding agreements with benefiting developers to lessen the risk of withdrawal or non-participation in the case of slow occurring incremental tax benefits.

(10) The city will support those potential districts and projects for which a sound, well thought out multi-year implementation plan is developed.

(11) A redevelopment or TIF district can be specific to a project or it can be specific to an area in an effort to bring in a new project.

(12) The plan for each potential redevelopment or TIF district or project should include public infrastructure improvements—e.g., streets, traffic lights, drainage, parks, schools, fire protection—to be funded by the TIF.

(13) When possible, plans for potential redevelopment or TIF districts or projects should include the use of funds for residential development and redevelopment, particularly home ownership.

(14) The city shall set up a monitoring and reporting system that annual evaluates each redevelopment or TIF district and

report to the board of directors as to the benefits of each district. This analysis shall include a measurement of growth of those areas adjacent to the redevelopment or TIF district. Each redevelopment district advisory board shall work with city staff to facilitate this reporting system.

(Ord. No. 19,003, § 1, 12-2-03)

Secs. 23-4—23-25. Reserved.

ARTICLE II. LITTLE ROCK PLANNING COMMISSION*

Sec. 23-26. Created.

In order to secure the benefits to the public of a coordinated, adjusted and harmonious development of the city and its environs and to promote the health, safety, morals, order, convenience, prosperity, and general welfare of the citizens thereof there is hereby created a commission which shall be known and styled as the Little Rock Planning Commission.

(Code 1961, § 29-1)

State law reference—Authority to create planning commission, A.C.A. § 14-56-104.

Sec. 23-27. Members.

(a) The planning commission shall consist of a total of eleven (11) members who shall be appointed by the board of directors of the city.

(b) The citizen members shall be qualified by knowledge and experience in matters pertaining to the physical, social, economic and cultural development of the city and shall hold no other appointive or elective office in the city government except membership in the board of adjustment and shall be residents of the city. All members shall serve without compensation.

(c) Each appointed member shall serve for a term of three (3) years and until his successor is appointed and qualified. The anniversary date of each term shall be November 1, except that appointments to fill vacancies shall be for unexpired terms only, and except that any member whose term expires shall continue to serve until his successor is appointed and qualified.

(Code 1961, §§ 29-2, 29-3; Ord. No. 15, 782, § 1, 12-5-89; Ord. No. 19,781, § 1, 7-17-07; Ord. No. 22,651, § 2, 9-2-25)

State law reference—Planning commission membership, A.C.A. §§ 14-56-404, 14-56-405, 14-56-409.

Sec. 23-28. Administrative powers and duties.

(a) At the first regular meeting in January of each year, the planning commission shall elect a chairman and vice-chairman. The commission shall adopt rules and regulations to govern its proceedings and provide for a regular meeting date, at least once each month. It may create such committees as may be necessary to the proper exercise of its functions and prescribe the duties therefor. Special meetings may be called from time to time. According to the rules of the commission a majority of the membership shall constitute a quorum.

(b) The commission shall make recommendations and an annual report to the city manager and board of directors concerning the operation of the commission and the status of planning within its jurisdiction.

(c) The commission shall prepare and submit an annual budget in the same manner as regular departments of the city government.

(d) If deemed advisable, the commission may establish an advisory committee or committees.

(Code 1961, § 29-4)

State law reference—Meetings, A.C.A. § 14-56-407.

Sec. 23-29. Staff.

(a) In the conduct of its work, the planning commission shall utilize the services of the secretary of the planning commission and the staff of the department of planning and development authorized by ordinance. The employment of personnel shall be in conformity with the civil service rules and regulations.

(b) The director of the planning and development department shall serve as secretary of the commission. They shall maintain in his office all

*__Cross reference—__Boards and commissions generally, § 2-261 et seq.

documents and records of the commission, including a record of the minutes of meetings, the current membership, the organization and the rules and regulations of the commission. They shall set the commission's agenda, coordinate city staff as needed, and provide final recommendations for the commission.
(Code 1961, § 29-5; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 21,867, § 1, 5-19-20)

Sec. 23-30. Planning powers and duties.

The planning commission is vested with the powers and charged with the duties prescribed in A.C.A. tit. 14, ch. 56, subch. 4 [A.C.A. § 14-56-401 et seq.].
(Code 1961, § 29-6)

Sec. 23-31. Fiscal procedures.

The planning commission is subject to all fiscal procedures of the city.

Secs. 23-32—23-50. Reserved.

ARTICLE III. PARKS, PLAYGROUNDS, AND RECREATIONAL AREAS PLAN

Sec. 23-51. Plan adopted.

The "Park System Master Plan 1983," along with all maps, charts, and explanatory notes included therein is hereby approved and adopted as the plan for parks and recreational areas for the city planning area.
(Code 1961, § 26-40)

State law reference—Community facilities plan, A.C.A. § 14-56-512(d).

Sec. 23-52. Classifications established.

(a) For the purpose of the park system master plan, there are hereby established five (5) classifications of park, playground, and recreational sites, designated as follows:

Name	*Identifying Symbol*
Metropolitan Park	M
Community Park	C
Neighborhood Park	N
Regional Park	R
Open space (where shown on map, and described in plan)	

(b) Within each general classification, the sites are identified as follows:

Name	*Identifying Symbol*
Existing facility	E
Proposed facility	P

(Code 1961, § 26-41)

Sec. 23-53. Functions of areas.

The parks, playgrounds, and recreational areas shown on the park system master plan presently serve, or shall be planned to serve, their functions according to the planning concepts and park system standards listed in the plan.
(Code 1961, § 24-42)

Secs. 23-54—23-75. Reserved.

ARTICLE IV. HISTORIC PRESERVATION*

DIVISION 1. GENERAL

Sec. 23-76. Findings; purpose.

It is found and determined that certain areas, improvements, and districts within the city have a special character or special historic or aesthetic interest or value and represent architectural products of distinct periods in the history of the city, and that the areas, improvements and districts are in danger of being uprooted or having their distinctiveness destroyed without adequate consideration of the irreplaceable loss of the aesthetic, cultural, and historic values represented by such areas, improvements and districts, and therefore the preservation thereof is both feasible and desirable to the people of this city. It is declared as a matter of public policy that the protection, enhancement, perpetuation, and use of such areas, improvements and districts of special character or special historic or aesthetic interest or value is a public necessity and is required in the interest of the health, prosperity, safety and welfare of the people of this city. The purpose of this division is to:

(1) Effect and accomplish the protection, enhancement, and perpetuation of such areas and improvements and of districts which represent or reflect elements of the city's cultural, social, economic, political, and architectural history.

(2) Safeguard the city's historic, aesthetic and cultural heritage, as embodied and reflected in such areas, improvements and districts.

(3) Stabilize and improve property values in such districts.

(4) Foster civic pride in the beauty and accomplishments of the past.

(5) Protect and enhance the city's attractions to tourists and visitors and the support and stimulus to business and industry thereby provided.

(6) Strengthen the economy of the city.

(7) Promote the use of historic districts and landmarks for the education, pleasure, and welfare of the people of the city.

(Ord. No. 19,755, § 2, 5-15-07)

Sec. 23-77. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alteration means any project involving change of or addition to an existing building.

Area of influence means the affected area to be notified for a public hearing as determined by a specific type of construction, alteration, restoration, moving or demolition as described in the individual categories found in the guidelines for review adopted by the historic district commission.

*__Editor's note__—Ord. No. 19,755, §§ 1—10, adopted May 15, 2007, amended art. IV in its entirety and enacted similar provisions as set out herein. The former art. IV derived from Code 1961, §§ 2-89(a) and 2-89—2-92; and Ord. No. 14,042, §§ 1—7, adopted May 5, 1981.

State law reference—Historic Districts Act, A.C.A. § 14-172-201 et seq.

Building means any structure having a roof supported by columns or walls for the housing or enclosure of persons, animals or chattels.

Detailing means architectural aspects that, due to particular treatment, draw attention to certain parts or features of a building.

Entrance area means the area of access to the interior of the building including the design, location, and materials of all porches, stairs, doors, transoms, and sidelights.

Exterior architectural features means the architectural style, general design and arrangement of the exterior of a structure, including the kind and texture of the building material, and the type and style of all windows, doors, light fixtures, signs and other appurtenant features.

Facade means a face of a building.

Height means the vertical distance as measured through the central axis of the building from the elevation of the lowest finished floor level to the highest point of the building.

Massing means volume, magnitude or overall size of a building.

Ordinary maintenance means those improvements which do not change but simply upgrade a structure, including but not limited to: replacing deteriorated porch flooring, stairs, siding or trim in the same material and texture, or replacing screens, gutters or downspouts.

Pitch means the degree of inclination.

Proportion means the relationship of height to width of the building outline as well as individual components.

Rhythm means a harmonious or orderly recurrence of compositional elements at regular intervals, including the location of doors and the placement of windows, symmetrically or asymmetrically and their relative proportion.

Roof area means the outside covering of a building or structure extending above the vertical walls including the form, material, and texture of the roof, and including the slope and pitch, spacing of roof covering; size, design, number and location of dormers, the design and placement of cornices, and the size, design, material and location of chimneys.

Scale means the relative dimension, size, degree or proportion of parts of a building to each other or group of buildings.

Sidelight means a narrow window flanking a door.

Siting means the location of a building in relationship to the legal boundaries and setbacks, adjacent properties, and the natural conditions of the site.

Structure means any improvement on the land which extends above ground level.

Texture means the visual or tactile surface characteristics created by shape, arrangement and distribution of the component materials.

Wall areas means the vertical architectural member used to define and divide space including the kind and texture and exposure of wall sidings and trims, and the location, number and design of all window and door openings.

(Ord. No. 19,755, § 2, 5-15-07)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 23-78. Violations and penalties.

(a) Pursuant to Arkansas law, any person who violates any of the provisions of this article shall be guilty of a misdemeanor and, upon conviction, shall be fined not less than ten dollars ($10.00) nor more than five hundred dollars ($500.00).

State law reference—Similar provisions, A.C.A. 14-172-204.

(b) Each day that a violation continues to exist shall constitute a separate offense.

State law reference—Similar provisions, A.C.A. 14-172-204.

(c) When, in the judgment of the enforcing officer, a violation of this article exists, the enforcing officer shall issue a written order to the alleged violator. The order shall specify those sections of this article of which the person may be in violation and shall state that the person has a maximum of thirty (30) days from the date of the order in which to abate the alleged violation or to

appear before the historic district commission and show cause why enforcement action should not be taken by the city.

(d) In this section, a "violation" does not include the failure of a city officer or city employee to perform an official duty unless it is provided that the failure to perform such duty is to be punished under this section.
(Ord. No. 19,755, § 2, 5-15-07)

Sec. 23-79. Authority to issue citations.

(a) The administrator or administrator's designee is hereby empowered to appoint and authorize qualified inspectors for the issuance of citations for violations of the Little Rock Historic Preservation Code and regulations promulgated pursuant thereto.

(b) The administrator or administrator's designee is hereby empowered to appoint and authorize qualified individuals from other governmental departments or entities to issue citations for violations of the Little Rock Historic Preservation Code and regulations promulgated pursuant thereto.

(c) The administrator or the administrator's designee shall designate in writing the individuals who are authorized to issue citations. This list shall be filed of record with the city clerk.
(Ord. No. 19,755, § 2, 5-15-07)

Sec. 23-80. Equitable relief.

(a) The imposition of a penalty does not prevent the simultaneous granting of equitable relief in appropriate cases.

(b) The circuit court having jurisdiction over the property in question shall have jurisdiction in equity to enforce the provisions of this chapter and may restrain by injunction violations of it.

State law reference—Similar provisions, A.C.A. 14-172-205.

(c) The imposition of a penalty does not prevent the denial of or revocation of a building permit for failure to comply with the provisions of the Little Rock Historic Preservation Code.
(Ord. No. 19,755, § 2, 5-15-07)

Sec. 23-81. Appeals.

Any applicant aggrieved by the determination of the historic district commission made pursuant to the provisions of this division may, within thirty (30) days after the making of such decision, appeal the determination of the commission to the circuit court of the county wherein the property is located. The court shall hear all pertinent evidence and shall annul the determination of the commission if it finds the reasons given for such determinations to be unsupported by the evidence or to be insufficient in law, and may make such other decree as justice and equity may require. The remedy provided by this section shall be exclusive; but the applicant shall have all rights of appeal as in other equity cases.
(Ord. No. 19,755, § 2, 5-15-07)

State law reference—Similar provisions, A.C.A. 14-172-212.

Secs. 23-82—23-95. Reserved.

DIVISION 2. HISTORIC DISTRICT COMMISSION*

Sec. 23-96. Established.

The historic district commission is established.
(Ord. No. 19,755, § 4, 5-15-07)

Sec. 23-97. Members.

(a) The historic district commission shall consist of seven (7) members who shall be electors of the city holding no salaried or elective municipal office. Each member shall be appointed by the board of directors to fill one (1) of the following positions:

Position 1: Owner of property located in the MacArthur Park Historic District.

Position 2: Owner and occupant of a structure located in the MacArthur Park Historic District.

Position 3: Architect.

***Cross reference—**Boards and commissions generally, § 2-261 et seq.

State law reference—Historic district commission generally, A.C.A. § 14-172-206.

Position 4: Quapaw Quarter Association representative selected from a list of three (3) candidates submitted by the Quapaw Quarter Association board of directors.

Position 5: At large.

Position 6: Owner and occupant of a structure located in a National Register Historic District other than the MacArthur Park Historic District.

Position 7: Owner and occupant of a structure located in a National Register Historic District other than the MacArthur Park Historic District.

(b) Members shall be appointed for terms of three (3) years each and until their successors are appointed and qualified. Vacancies shall be filled for the balance of the unexpired terms. Members shall serve without compensation.
(Ord. No. 19,755, § 4, 5-15-07; Ord. No. 20,414, § 1, 3-1-11)

Sec. 23-98. Officers, meetings and staff.

The historic district commission shall elect a chairman and vice-chairman annually from its own number. The commission may adopt rules and regulations not inconsistent with the provisions of this article and may, subject to appropriation, employ clerical and technical assistance or consultants and may accept money, gifts or grants, and use the same for such purpose.
(Ord. No. 19,755, § 4, 5-15-07)

Sec. 23-99. Fiscal procedures.

The historic district commission is subject to all fiscal procedures of the city.
(Ord. No. 19,755, § 4, 5-15-07)

Sec. 23-100. Duties generally.

(a) *Historic district guidelines.*

(1) The historic district commission shall adopt design review guidelines for each local ordinance historic district established pursuant to this article. The guidelines should provide the commissioners with an objective standard for decisions concerning the appropriateness of a project in relation to the architectural and historical character of the district.

(2) Design review guidelines shall be reviewed periodically by the historic district commission for needed revision to ensure that the guidelines are well adapted to the respective local ordinance historic district.

(b) *Architectural surveys.* The historic district commission shall work with planning and development staff to ensure that periodic architectural surveys are conducted for each local ordinance historic district as required by the Arkansas Historic Preservation Program.

(c) *Proposed local ordinance historic districts.*

(1) *Investigation and report.* The historic district commission shall make an investigation and report on the historic significance of the buildings, structures, features, sites, or surroundings included in any proposed historic district and shall transmit copies of its report to the Arkansas Historic Preservation Program ("AHPP"), a division of the Department of Arkansas Heritage and to the Little Rock Planning Commission for their consideration and recommendation.

(2) *Recommendations.* The AHPP and the planning commission shall give their recommendation to the historic district commission within sixty (60) days from the date of receipt of the report. Recommendations shall be read in full at the required public hearing to be held by the historic district commission. Failure to make recommendations within sixty (60) days after date of receipt shall be taken as approval of the report of the historic district commission.

(3) *Public hearing.* The historic district commission shall hold a public hearing on the establishment of a proposed local ordinance historic district after giving notice of such hearing by publication in a newspaper of general circulation in the city once a week for three (3) consecutive

weeks, the first such publication to be at least twenty (20) days prior to the public hearing. Such notice shall include the time and place of the hearing, specify the purpose and describe the boundaries of the proposed local ordinance historic district.

(4) *Final report.* The historic district commission shall submit a final report with its recommendations and a draft of a proposed ordinance to the governing body of the city within sixty (60) days after the public hearing. The report shall contain the following:

(i) A complete description of the area or areas to be included in the historic district or districts. Any single historic district may embrace non-contiguous lands.

(ii) A map showing the exact boundaries of the area or areas to be included within the proposed district or districts.

(iii) A proposed ordinance designed to implement the provisions of the Historic Districts Act.

State law reference—Similar provisions, A.C.A. 14-172-201 et seq.

(iv) Such other matters as the commission may deem necessary and advisable, including a statement of purpose and policy.

(d) *Determination of appropriateness—Generally.* Upon receipt of an application for a certificate of appropriateness, required pursuant to the provisions of this article, the historic district commission shall study the proposal and hold a public hearing to determine the appropriateness of the proposed change in relation to the significant architectural and historic character of the local ordinance historic district.
(Ord. No. 19,755, §§ 5, 6, 5-15-07)

Secs. 23-101—23-114. Reserved.

DIVISION 3. CERTIFICATE OF APPROPRIATENESS

Sec. 23-115. Certificate of appropriateness required.

(a) *Certificate of appropriateness required.* No building or structure, including stone walls, fences, light fixtures, steps and paving or other appurtenant fixtures shall be erected, altered, restored, moved, or demolished within the historic district created by this division until after an application for a certificate of appropriateness as to the exterior architectural changes has been submitted to and approved by the historic district commission. A certificate of appropriateness shall have been issued by the commission prior to the issuance of a building permit or other permit granted for purposes of constructing, altering, restoring, moving or demolishing structures. A certificate of appropriateness shall be required whether or not a building permit is required. Each certificate of appropriateness shall be issued to a specific owner of real property and cannot be transferred from the property owner to whom it was issued to another person. Each certificate of appropriateness shall be issued for a specific parcel of real property and cannot be transferred for use on another parcel of real property.

(b) *Conditions.* The historic district commission may impose conditions upon a certificate of appropriateness. The conditions must be stated within the historic district commission's motion of approval and approved as such as provided in this chapter.

(1) *Expirations and extensions.* Conditions shall include time limits for the validity of the certificate of appropriateness. If permits issued by the building code division relevant to the certificate of appropriateness expire following the period of validity, the certificate of appropriateness shall be null and void.

a. All certificates of appropriateness, except for those for new construction and additions, shall expire one (1) year from the date of issuance unless the work pursuant to that certificate of appropriateness has

been commenced within that one-year period or the permits required by the city and to be issued by the city's building code division have been applied for within that one-year period.

b. Certificates of appropriateness for new construction and additions shall expire three (3) years from the date of issuance unless the work pursuant to that certificate of appropriateness has been commenced within that three-year period or the permits required by the city and to be issued by the city's building code division have been applied for within that three-year period.

c. A six-month extension of a certificate of appropriateness may be granted administratively. If an additional extension is requested, the historic district commission may grant a second extension for up to one (1) year based on good cause. Any request for an extension of a certificate of appropriateness must be submitted in writing to the historic district commission at least one (1) month prior to its expiration. After a certificate of appropriateness, and any extensions thereof, has expired, the certificate of appropriateness shall be null and void.

d. An extension of a certificate of appropriateness shall not be granted if there are changes to the plans and specifications of such work approved by the issued certificate of appropriateness and in the case of a certificate of appropriateness issued for demolition.

(c) *Enforcement and violations.* All work performed pursuant to a certificate of appropriateness issued shall conform to the conditions expressly stated in the certificate or reasonably implied therefrom. In the event any condition or requirement included in the certificate of appropriateness has not been met, or work requiring a certificate of appropriateness occurs in the absence of certificate of appropriateness, a citation for violation shall be issued pursuant to section 23-78 of this division and all work shall immediately cease until such violations have been remedied. If changes occur to the scope of work of an issued certificate of appropriateness that are not a violation of a condition, as determined by staff, a citation will not be issued.

(d) *Placement of certificate of appropriateness.* The certificate of appropriateness or copy shall be posted on the site of the work at the front of the property to be seen from the street until the completion of the project.

(e) *Administrative review*. The commission shall have the authority to determine when work is an appropriate improvement which constitutes ordinary maintenance and does not materially affect properties within the area of influence of the property for which the work is to be performed and the special character of the district. The commission shall have the authority to delegate to administrative staff the ability to issue a certificate of appropriateness, without public hearing and notice, when not prohibited by other law.

(1) All project requirements and conditions for work delegated to administrative review must have been previously approved by the commission.

(2) The type of work delegated to administrative review must be specifically identified in the guidelines adopted for the local ordinance district.

(Ord. No. 19,755, § 9, 5-15-07; Ord. No. 22, 338, § 1, 11-21-23; Ord. No. 22,506, § 1, 9-3-24)

Sec. 23-116. Exemptions.

Nothing in this division shall:

(1) Prevent the ordinary maintenance or repair of any exterior architectural feature in the historic district created by this division, which does not involve a change in design, material, or outer appearance thereof;

(2) Prevent the construction, reconstruction, alteration, restoration, or demolition of any exterior architectural feature in the historic district, which is not visible from a public or private street;

(3) Prevent the construction, reconstruction, alteration, restoration, or demolition of any exterior architectural feature in the historic district which the building inspector or other agent of the city shall certify is required to correct an unsafe or dangerous condition; or

(4) Prevent the construction, reconstructions, alteration, restoration or demolition of any exterior architectural feature in the historic district under a permit issued by a building inspector or similar agent of the city prior to the effective date of the establishment of the historic district.

(Ord. No. 19,755, § 9, 5-15-07; Ord. No. 20,423, § 1, 4-19-11)

Sec. 23-117. Notice of public hearing.

Upon receipt of an application for a certificate of appropriateness pursuant to provisions of this division, the historic district commission shall make a preliminary determination as to the properties, if any, which will be materially affected by any of the changes proposed in the application, which shall include all properties located within the area of influence of the property which is the subject of the application, as defined in the review guidelines adopted by the historic district commission. The commission shall forthwith send by mail, postage prepaid, to the applicant and to the owners of all such affected properties, a notice of hearing to be held by the commission on the application. Notices of the public hearing shall be mailed at least ten (10) days prior to the hearing, and a notice of such hearing shall be published at least one (1) time in a newspaper having circulation throughout the city at least fifteen (15) days prior to the hearing. The cost of such notices shall be paid by the applicant.

(Ord. No. 19,755, § 9, 5-15-07)

Sec. 23-118. Public hearings and deferrals.

At the public hearing, the commission shall hear all persons desiring to present information regarding the application. After such public hearing, the historic district commission shall make its determination as to the appropriateness of the proposed change. The commission may immediately announce its decision or defer the matter to its next regularly scheduled commission meeting or reschedule the application for future consideration at such other public hearings as are deemed necessary or desirable in order to fully develop the facts and circumstances surrounding any one (1) particular application. No application for a certificate of appropriateness for a purpose other than demolition shall be deferred at the insistence of the historic district commission longer than one hundred (100) days from the date of the first public hearing without consent of the applicant. If the commission has rendered no decision on the application for a purpose other than demolition within one hundred (100) days from the time of the first public hearing, unless the applicant has agreed to a further deferral or extension of time, the commission shall consider the application as having been approved and shall issue a certificate of appropriateness.

(Ord. No. 19,755, § 9, 5-15-07; Ord. No. 20,423, § 2, 4-19-11)

Cross reference—Alternatives to demolition, § 23-121.

Sec. 23-119. Prohibited considerations.

In its deliberations under this article, the commission shall not consider interior arrangement or use and shall take no action hereunder except for the purpose of preventing the construction, reconstruction, alteration, restoration, moving or demolition of buildings, structures or appurtenant fixtures, in the district, which are deemed by the commission to be obviously incongruous with the historic aspects of the district.

(Ord. No. 19,755, § 9, 5-15-07)

Sec. 23-120. General criteria.

In making its determination, the commission shall consider without being limited to the following criteria:

(a) Proposed repairs, alterations, new construction, moving or demolition in the

historic district shall respect and relate to the special character of the district. Changes shall be evaluated on basis of:

(1) The purpose of this division.

(2) The architectural or historic value or significance of a building and its relationship to the surrounding area.

(3) The general compatibility of proposed changes.

(4) Any other factor, including visual and aesthetic considered pertinent.

(b) The commission shall encourage proposed changes which reflect the original design of the structure, based on photographs, written description or other historical documentation, and be guided by the following preferences:

(1) It is preferable to preserve by maintenance rather than to repair original features of the building.

(2) It is preferable to repair rather than to reconstruct if possible.

(3) It is preferable to restore by reconstruction of original features rather than to remove or remodel.

(c) When evaluating the general compatibility of alterations to the exterior of any building in the historic district, the commission shall consider, but not be limited to, the following factors within the building's area of influence:

(1) Siting.

(2) Height.

(3) Proportion.

(4) Rhythm.

(5) Roof area.

(6) Entrance area.

(7) Wall areas.

(8) Detailing.

(9) Facade.

(10) Scale.

(11) Massing.

(d) Additions to existing buildings shall be judged in the same manner as new construction and shall complement the design of the original building, including exterior window sizes, door heights and ceiling heights, and should not interfere with any outstanding architectural feature. Decoration of the exterior should blend with existing exterior features such as window casements, gable trim, roofline, siding material, foundation materials and types of windows.

(e) Generally, new construction shall be judged on its ability to blend with the existing neighborhood and area of influence. The commission shall consider, but not be limited to the factors listed for alterations in paragraph [subsection] (c).

(Ord. No. 19,755, § 9, 5-15-07; Ord. No. 22,506, § 2, 9-3-24)

Sec. 23-121. Alternatives to demolition.

If the application for a certificate of appropriateness involves the demolition of a building which the commission initially determines to be an inappropriate demolition, then notwithstanding the determination the commission may defer the matter until such time as the commission has had an opportunity to consider the following alternatives to the demolition of subject property:

(a) Sources of funding for preservation and restoration activities, if lack of such funds is the reason for the request to demolish.

(b) Adaptive use changes, if there are conditions under which the required preservation of a historic landmark would cause undue hardship to the owner or owners, so long as such changes are in keeping with the spirit and intent of this division.

(c) An attempt to find a purchaser for the property who would maintain the landmark in a suitable and acceptable manner within the limits of this division.

(d) The feasibility of moving the structure to another appropriate location.

(e) Any such other solution as may be deemed advisable and in keeping with the spirit and intent of this division.

During the time the commission is considering any one (1) of the alternatives hereinabove set out, progress reports shall be made by the commission or its staff at each regularly scheduled commission meeting. If at the expiration of six (6) calendar months from the date of the first public hearing of an application for demolition, the commission has not found a viable alternative to the demolition of the property, the commission shall reschedule the matter for public hearing requiring notices as aforesaid, and upon said public hearing, make its final determination as to the application. In such cases, the public hearing for final determination shall be held within one (1) calendar month after the expiration of the six (6) months from the date of the first public hearing, and at the second public hearing, the commission may hear such matters as are considered necessary or desirable to fully advise the commission of all facts and circumstances as then exist as they pertain to the proposed demolition. At the second public hearing the commission may immediately announce its decision or take the matter under advisement to its next regularly scheduled commission meeting for the purpose of announcing its decision, but in no event longer than two (2) calendar months after the expiration of the six-month period after the first public hearing. If the commission has rendered no decision on the application for demolition within two (2) calendar months after the expiration of the six (6) months following the first public hearing, the commission shall consider the application as having been approved and shall issue the certificate of appropriateness.
(Ord. No. 19,755, § 9, 5-15-07)

Sec. 23-122. Substantial hardship.

In addition to considering the matters brought to the commission's attention and the criteria set out in section 23-120, the commission may determine that failure to issue a certificate of appropriateness will involve a substantial hardship to the applicant, and notwithstanding that it may be inappropriate, owing to conditions especially affecting the structure but not affecting the historic district generally. Such certificate may be issued without substantial detriment to the public welfare and without substantial derogation from the intent and purpose of this division, and the commission may approve such application and grant a certificate of appropriateness for the activity proposed.
(Ord. No. 19,755, § 9, 5-15-07)

Sec. 23-123. Reasons for denial.

If the commission determines that a certificate of appropriateness should not be issued, it shall place upon its record the reasons for such determination and may include recommendations respecting the proposed construction, reconstruction, alteration, restoration, moving, or demolition.
(Ord. No. 19,755, § 9, 5-15-07)

Secs. 23-124—23-128. Reserved.

DIVISION 4. MacARTHUR PARK HISTORIC DISTRICT

Sec. 23-129. Created; boundaries.

The MacArthur Park historic district is created and shall consist of that area of the city shown on exhibit "1" which is attached to Ordinance No. 19,755 and made a part of this division and more particularly described as follows:

Beginning at a point which is the intersection of the centerlines of Ferry Street and Fifth (Capitol Avenue); from such point run south along the centerline of Ferry Street as platted, to the centerline of Ninth Street; thence run east along the centerline of Ninth Street to the centerline of the west frontage road of Interstate 30; thence run southeast along the centerline of the west frontage road of Interstate 30 to the centerline of McGowan Street; thence run south along the centerline of McGowan Street to the centerline of Thirteenth Street; thence run west along the centerline of Thirteenth Street to the centerline of McAlmont Street (McMath Avenue); thence run south along the centerline of

McAlmont Street as platted to the centerline of Sixteenth Street; thence run west along the centerline of Sixteenth Street as platted to the centerline of Bragg Street; thence run north along the centerline of Bragg Street to the centerline of Fifteenth Street; thence run west along the centerline of Fifteenth Street to the centerline of an alley between Scott Street and Main Street; thence run north along the centerline of the alley between Main Street and Scott Street to the centerline of Ninth Street; thence run east along the centerline of Ninth Street to the centerline of Cumberland Street; thence run north along the centerline of Cumberland Street to the centerline of Fifth Street (Capitol Avenue); thence run east along the centerline of Fifth Street (Capitol Avenue) to the point of beginning, which is, the intersection of the centerlines of Ferry Street and Fifth Street (Capitol Avenue).

(Ord. No. 19,755, § 11, 5-15-07)

Secs. 23-130—23-160. Reserved.

ARTICLE V. RESERVED*

Secs. 23-161—23-170. Reserved.

ARTICLE VI. DEPARTMENT OF NEIGHBORHOODS AND PLANNING†

Sec. 23-171. Created; duties; responsibilities.

There is hereby created a department which shall be known as the department of neighborhoods and planning to perform the city staff responsibilities and duties concerning zoning and subdivisions, advance planning, building codes, neighborhood programs including environmental code enforcement, community development block grants and affordable housing.

(Ord. No. 15,988, § 1, 12-18-90)

Sec. 23-172. Authority of city manager.

The city manager is hereby given such authority to establish and staff the new department and to approve such organization of the department as he determines is appropriate within the budget or such future budgets as are approved by the board of directors.

(Ord. No. 15,988, § 2, 12-18-90)

*__Editor's note—__Ord. No. 16,861, § 1(hh), adopted March 21, 1995, recodified former Art. V, §§ 23-161—23-166, as a new Art. V, Div. 7, §§ 36-343—36-348.

†__Editor's note—__Ord. No. 15,988, §§ 1 and 2, adopted Dec. 18, 1990, did not specifically amend the Code; hence, its inclusion herein as Ch. 23, Art. VI, §§ 23-171, 23-172 was at the discretion of the editor.

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Chapter 24

POLICE*

Art. I. In General, §§ 24-1—24-20
Art. II. Police Department, §§ 24-21—24-40
Art. III. Abandoned Property, §§ 24-41—24-44

*Cross reference—Alarm systems, Ch. 3.
State law reference—Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

ARTICLE I. IN GENERAL

Secs. 24-1—24-20. Reserved.

ARTICLE II. POLICE DEPARTMENT*

Sec. 24-21. Fee for accident reports.

A charge of five dollars ($5.00) shall be made for each accident report issued by the police department. Upon payment of such a fee a receipt shall be issued, and all funds derived therefrom shall be paid to the city collector and deposited in the general fund of the city.
(Code 1961, § 31-10)

Cross reference—Accidents and accident reports, § 32-101 et seq.

Secs. 24-22—24-40. Reserved.

ARTICLE III. ABANDONED PROPERTY†

Sec. 24-41. Definition.

In this article "abandoned property" means all personal property, except motor vehicles, found on the streets of the city and in the possession of the police department, and any other personal property, except motor vehicles, rightfully coming into the possession of the police department, which has not been claimed and retaken by any person claiming to be the owner, within a period of sixty (60) days after coming into the possession of the police department.
(Code 1961, § 31-2)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 24-42. Advertisement and sale.

Whenever, in the opinion of the city manager and the chief of police, it is desirable to make a disposition of abandoned property the chief of police may advertise the same for public sale at auction. The advertisement shall be published in a newspaper having a general circulation in the city for a period of three (3) consecutive days, the last notice to be published not less than two (2) days prior to the date of the sale. The sale shall be held in some suitable place open to the public. If, for any reason, in the opinion of the chief of police, it is desirable to postpone the sale, notice shall be given to those who have assembled for the sale, and it shall not be necessary to advertise the sale again. This sale shall be conducted by the police department. The department may receive bids for individual items, groups of items or for the entire list of abandoned property being offered for sale. The official conducting the sale is further authorized to reject all bids if, in his opinion, it is desirable to do so.
(Code 1961, § 31-3)

Sec. 24-43. Records.

A description of all articles offered for sale pursuant to this article shall be kept in a book maintained by the police department, which book shall reflect when and where each article was offered for sale, and the price received therefor.
(Code 1961, § 31-4)

Sec. 24-44. Disposition of proceeds of sale.

The proceeds received from any sale of abandoned property shall be turned in to the city collector to be held by him in a separate account for a period of six (6) months. During this period, any person claiming to be the owner of the property may claim the proceeds of the sale. If the person successfully establishes ownership, he shall be paid the amount realized from the sale less the expenses of the sale. Any sums remaining in the hands of the city collector and not claimed within the six-month period, shall be paid into the general fund of the city.
(Code 1961, § 31-5)

***Cross reference**—Departments generally, § 2-131 et seq.

State law reference—Police department generally, A.C.A. § 14-52-101 et seq.

†**State law reference**—Abandoned motor vehicles, A.C.A. § 27-50-1101 et seq.

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Chapter 25

PORT AUTHORITY*

*Cross references—Boards and commissions generally, § 2-261 et seq.; fishing or loitering near port authority docks, § 18-56.

State law references—Ports generally, A.C.A. § 14-186-101 et seq.; authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

Sec. 25-1. Created.

There is hereby created a port authority to be known as the Little Rock Port Authority.
(Code 1961, § 32-1)

State law reference—Authority to create port authority, A.C.A. § 14-186-203.

Sec. 25-2. Members.

(a) The port authority shall consist of and be governed by a board of five (5) members who are qualified electors residing in the city. Board members shall be appointed by the mayor. The members of the board shall initially be appointed for periods of one (1), two (2), three (3), four (4), and five (5) years respectively. Successor board members shall hold office for a term of five (5) years and shall serve until their successor has been appointed and qualified. The members of the board shall receive no compensation for their services. No member of the board shall engage financially in any navigational or river port enterprise while a member of the board.

(b) Any member of the board may be removed by the mayor, provided such removal is approved by the board of directors.
(Code 1961, §§ 32-1—32-3; Ord. No. 18,573, § 1, 10-2-01)

State law reference—Memership, A.C.A. § 14-186-203.

Sec. 25-3. Meetings.

The board of the port authority shall meet upon the call of its chairman, but not less than monthly, or upon call of the board of directors of the city.
(Code 1961, § 32-11; Ord. No. 18,573, § 2, 10-2-01)

Sec. 25-4. Officers.

If the mayor is a member of the port authority, the mayor shall be chairman of the board. If the mayor is not a member of the port authority, the chairman shall be elected by the membership of the authority. The board shall elect one (1) of their number as vice chairman, and shall elect a secretary and a treasurer, who need not necessarily be members of the board. The authority shall require a surety bond of the person appointed treasurer in such amount as the authority may fix, and the premiums thereon shall be paid by the authority as a necessary expense of the authority.
(Code 1961, § 32-2; Ord. No. 18,573, § 3, 10-2-01)

Sec. 25-5. Powers generally.

The port authority has the powers provided by state law.

State law reference—Powers of port authority generally, A.C.A. § 14-186-204 et seq.

Sec. 25-6. Fiscal limitations and procedures.

(a) All revenue derived from the operation of the port authority, after paying operation expenses and maintenance, shall be set aside and used for additional improvements, reserves for depreciation, or for the retirement of bonds and interest thereon issued by the board of directors of the city in the manner now provided by law. All authority funds shall be deposited in a bank or banks designated by the authority. No funds of the authority shall be disbursed except for a purpose authorized by law and only when the account or expenditure for which the same is to be given in payment has been approved by the authority.
(Code 1961, § 32-8; Ord. No. 17,474, § 1, 5-6-97; Ord. No. 18,573, § 4, 10-2-01)

State law reference—Similar provisions, A.C.A. § 14-186-214.

Sec. 25-7. Financial reports required; publications.

The port authority shall keep a record of all revenues and expenditures of the port authority, its related properties and facilities, and shall submit monthly reports to the board of directors of the city. It shall be the duty of the board of the port authority to prepare and file an annual report of the financial affairs and conditions of the port authority, its related properties and facilities, annually between January 15 and the first Monday in February thereafter. The report shall be filed in the office of the city clerk and shall be published in some newspaper published in the city. The report shall show a complete financial statement of all moneys received and disbursed by the authority during the preceding year. Such statement shall show the several sources from

which funds were received, the balance on hand at the time of publishing the statement, and the complete financial condition of the authority.
(Code 1961, § 32-9)

State law reference—Financial statements, A.C.A. § 14-186-215.

Sec. 25-8. Annual budget.

The port authority shall submit to the city annually before the city prepares its budget, the amount of funds necessary for maintenance, operation, and management of the port authority, its related properties and facilities, above the estimated revenue and the funds remaining on hand.
(Code 1961, § 32-10)

Sec. 25-9. Civil service laws inapplicable.

The civil service laws shall not apply to the employees of the port authority or to its related properties and facilities.
(Code 1961, § 32-12)

Chapter 26

(RESERVED)

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Chapter 27

(RESERVED)*

*Editor's note—Ord. No. 16,000, § 1(r), adopted Feb. 5, 1991, amended the Code by vacating Ch. 27, §§ 27-1—27-29, in its entirety, and restructuring Ch. 27 as Ch. 36, Art. X, §§ 36-530—36-558.

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Chapter 28

SOLID WASTE*

Article I. Miscellaneous Provisions

Sec. 28-1. Definitions.
Sec. 28-2. Powers and duties of the city manager.
Sec. 28-3. Solid waste responsibility.
Sec. 28-4. Hauling solid waste.
Sec. 28-5. Illegal disposal of solid waste.
Sec. 28-6. Animal waste.
Sec. 28-7. Composting of solid waste.
Sec. 28-8. Unobstructed access.
Sec. 28-9. Variances.
Sec. 28-10. Commercial, industrial and institutional solid waste containment.
Sec. 28-11. Depositing solid waste other than in authorized containers.
Sec. 28-12. Use of solid waste container(s) assigned to another person.
Sec. 28-13. Liquids to be drained.
Sec. 28-14. Lids or covers on containers.
Sec. 28-15. Disturbing contents of containers.
Sec. 28-16. Solid waste containment and disposal requirements.
Sec. 28-17. Solid waste collection service; service units.
Sec. 28-18. Mechanical solid waste collection system.
Sec. 28-19. Manual solid waste collection system.
Sec. 28-20. Disposal in designated areas.
Sec. 28-20a. Disposal of drill cuttings.
Sec. 28-21. City manager policies.
Sec. 28-22. Landfill user requirements.
Sec. 28-23. Hazardous waste.
Sec. 28-24. Friable asbestos materials.
Sec. 28-25. Landfill fees.
Sec. 28-26. Surcharge for dumping solid waste at the city landfill.
Sec. 28-27. Necessity for collection fees.
Sec. 28-28. Collection fees.
Sec. 28-29. Inspection of containers.

***Editor's note—**Ord. No. 17,262, §§ 1—31, adopted August 20, 1996, amended the Code by repealing Ch. 28, §§ 28-1—28-9, 28-26—28-28 and 28-46—28-48, and added a new Ch. 28, §§ 28-1—28-31. Former Ch. 28 pertained to similar subject matter, and derived from the Code of 1961, §§ 15-1—15-5, 15-7, 15-8, 15-10, 15-11, 15-13, 15-16, 15-17, 15-17.1 and 15-20, and the following ordinances:

Ord. No.	Date	Ord. No.	Date
15,219	12- 2-86	16,138	12-17-91
15,380	11-17-86	16,330	12-21-92
15,390	12- 9-87	16,410	4-20-93
15,392	12- 9-87	16,455	7- 6-93
15,572	11- 1-88	16,523	11- 2-93
15,761	10- 3-89	16,552	11- 2-93
15,988	12-18-90	16,900	6- 6-95
16,069	7-16-91		

Cross references—Hazardous waste disposal, § 11-4(11); trash burning, § 12-3; health and sanitation, Ch. 14; nuisances, Ch. 20; litter in parts, § 22-42; water, sewers and sewage disposal, Ch. 35.

State law references—The Water, Sewer, and Solid Waste Management Systems Finance Act of 1975, A.C.A. § 14-230-101 et seq.; solid waste disposal generally, A.C.A. § 14-232-101 et seq.; Joint County and Municipal Solid Waste Disposal Act, A.C.A. § 14-233-101 et seq.; Arkansas Solid Waste Management Act. A.C.A. § 8-6-201 et seq.; Litter Control Act, A.C.A. § 8-6-401 et seq.; unlawful dumping, A.C.A. § 8-6-501 et seq.; authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

Sec. 28-30. Issuance of citations.
Sec. 28-31. Penalty for violations of this chapter.
Sec. 28-32. Conflict with other ordinances.
Secs. 28-33—28-55. Reserved.

Article II. Recycling

Sec. 28-56. Purpose.
Sec. 28-57. Definitions.
Sec. 28-58. Recycling participation.
Sec. 28-59. Recycling program information and education.
Sec. 28-60. Frequency of collection service.
Sec. 28-61. Location and maintenance of containers.
Sec. 28-62. Recyclable collection services report.
Sec. 28-63. Right to visit and inspect.
Sec. 28-64. Service provider delivery.
Sec. 28-65. Penalty provisions.
Sec. 28-66. Compliance.
Secs. 28-67—28-90. Reserved.

ARTICLE I. MISCELLANEOUS PROVISIONS

Sec. 28-1. Definitions.

(a) *Waste component.* The following definitions identify the various components of the waste stream:

(1) *Animal waste:* Includes waste from stables, kennels, pet pens, chicken coops, veterinary establishments and others of a similar nature.

(2) *Ashes:* All tangible residue from the burning of wood, coal, coke and other combustible material in dwelling units including fireplaces, incinerators and barbecue pits for the purposes of heating, cooking and disposing of combustible material, but does not include ashes from medical waste, hazardous waste or special materials waste.

(3) *Bulk waste:* Includes manufactured items such as appliances, furniture and other household generated waste that is not expressly prohibited from collection by this chapter. Bulk waste includes, but is not limited to, like items with weight or volumes greater than allowed in approved containers.

(4) *Combustible waste:* Consists of miscellaneous burnable materials and is the organic component of solid waste.

(5) *Commercial solid waste:* All types of solid waste generated by stores, offices, restaurants, warehouses and other non-manufacturing activities, excluding household, industrial and institutional waste.

(6) *Construction waste:* All solid waste building materials including, but not limited to, dirt, rocks, concrete and brick, asphalt, lumber and processed wood products, roofing, sheetrock and plaster, doors and windows that result from construction, remodeling and repair of commercial, institutional and industrial establishments, dwelling units, garages, pavements, streets, alleys, trenches, ditches, underground utilities, excavations and other structures.

(7) *Contained solid waste:* All garbage and yard waste generated by a household that is placed in the prescribed container for collection.

(8) *Demolition waste:* Solid waste material resulting from the demolition or razing of buildings, and other man-made structures, excluding friable asbestos materials or other materials excluded by federal or state environmental laws and regulations.

(9) *Friable asbestos material:* Any material containing more than one (1) percent asbestos by content that hand pressure can crumble, pulverize or reduce to powder when dry, or has the potential to become friable when broken, crushed, sanded, sawed or cut.

(10) *Garbage:* Solid wastes from the domestic and commercial preparations, cooking and disposal of food, and from the handling, storage and sales of produce.

(11) *Hazardous waste:* Any chemical, compound, mixture, substance, product or other material which is hazardous waste pursuant to the Arkansas Hazardous Waste Management Act of 1979, as amended and Arkansas Department of Pollution Control and Ecology ("ADPC&E") Regulation 23, Sections 260.10 and 261.3, as may be amended.

(12) *Hot load:* Any vehicle carrying solid waste observed to be smoldering, smoking, on fire, giving off toxic odor or leaking a caustic substance.

(13) *Household hazardous waste:* Household waste that is excluded as a hazardous waste pursuant to ADPC&E Regulation 23, Section 261.4(b)(1), as may be amended.

(14) *Household waste:* Any solid waste (garbage, trash and sanitary wastes in septic tanks) derived from households, including single and multiple residences,

hotels and motels, bunkhouses, ranger stations, crew quarters, campgrounds, picnic grounds and day-use recreation areas.

(15) *Industrial solid waste:* Solid waste generated by manufacturing or industrial processes that is not a hazardous waste regulated under Subtitle C of the Resource Conservation and Recovery Act ("RCRA") or as defined by ADPC&E Regulation 23, Sections 260.10 and 261.3, as may be amended. Such waste may include, but is not limited to, waste resulting from the following manufacturing processes: Electric power generation; fertilizer or agricultural chemicals; food and related products or related by-products; inorganic chemicals; iron and steel manufacturing; leather and leather products; nonferrous metals manufacturing or foundries; organic chemicals; plastics and resins manufacturing; pulp and paper industry; rubber and miscellaneous plastic products; stone, glass, clay, and concrete products; textile manufacturing; transportation equipment; and water treatment. This term does not include mining waste or oil and gas waste.

(16) *Infectious solid waste:* Laboratory wastes, including pathological specimens (i.e., all tissues, specimens of blood elements, excreta and secretions obtained from patients and laboratory animals) and disposal fomites (any substance which may harbor or transmit pathogenic organisms) attendant thereto. Such term also means surgical operating room pathologic specimens and disposal fomites attendant thereto and similar disposal materials from outpatient areas and emergency rooms, including equipment, instruments, utensils and fomites of a disposal nature from the rooms of patients who are suspected to have, or have been diagnosed as having, a communicable disease and must, therefore, be isolated, as required by public health agencies.

(17) *Institutional solid waste:* Any solid waste as defined in this chapter produced by schools, churches, prisons and other entities not categorized as commercial or industrial.

(18) *Medical solid waste:* A waste from health care related facilities which if improperly treated, handled or disposed of may serve to transmit an infectious disease(s) as defined in Ark. Code Ann. § 20-32-101, as may be amended.

(19) *Obnoxious materials:* Any solid waste that, when exposed to open air, is unpleasant or offensive to the senses due to its odor or condition.

(20) *Oversize yard waste* means tree debris, limbs, or other natural debris that includes one (1) or individual pieces in excess of six (6) feet in length, or a diameter that is larger than six (6) inches, or the combined weight of the items exceeds fifty (50) pounds.

(21) *Putrescible solid waste:* Solid waste which contains organic matter capable of being decomposed by microorganisms and of such a character and proportion as to be capable of attracting or providing food for birds and other potential disease vectors.

(22) *Recyclables:* Any solid waste including, but not limited to, metals, glass or paper products that can be recovered from other solid waste for the purpose of being collected and recycled under the city's recycling program. Recyclables include such materials from the solid waste stream that can be recovered for reuse in present or reprocessed form.

(23) *Recovered materials:* Includes, but is not limited to, metal, paper, glass, plastic, textile, yard trimmings or rubber materials that have known recycling potential, can be feasibly recycled, and have been diverted and source separated or have been removed from the solid waste stream for sale, use or reuse as raw materials, whether or not the materials require

subsequent processing or separation from each other, but does not include materials destined for any use that constitutes disposal. Recovered materials as described above are not solid waste for purposes of this chapter.

(24) *Recycling:* The systematic collection, sorting, decontaminating and returning of waste materials to commerce as commodities for use or exchange by separating or diverting an item or items from the solid waste stream for the purpose of processing it or causing it to be processed into a material product, including compost, in order to provide for the final disposition of the material product in a manner other than landfilling or incineration.

(25) *Sludge:* Any solid, semisolid or liquid waste generated from a municipal, commercial or industrial wastewater treatment plant, water supply treatment plant or air pollution control facility exclusive of the treated effluent from a wastewater treatment plant.

(26) *Solid waste:* Any garbage or refuse, sludge from a wastewater treatment plant, water supply treatment plant, or air pollution control facility, and other discarded material, including dead animals weighing less than one hundred (100) pounds. Solid waste also includes solid, liquid, semisolid, or contained gaseous material resulting from industrial, commercial, mining, and agricultural operations and from community activities, but does not include solid or dissolved materials in domestic sewage, or solid or dissolved materials in irrigation return flows or industrial discharges that are point sources subject to permit under U.S.C. § 1342, or source, special nuclear, or by-product material as defined by the Atomic Energy Act of 1954, as amended (68 Stat. 923).

(27) *Special materials waste:* Any materials that require special handling precautions and disposal procedures by the landfill owner or operator beyond the normal activities associated with landfill operations. Special materials waste includes those items listed in ADPC&E Regulation 22, Chapter 7, as amended, and other process wastes and conditionally exempt small quantity generator wastes requiring special handling procedures.

(28) *Tires:* An item that in its primary form is, or was, a continuous solid or pneumatic rubber covering which is used for encircling the wheel of any vehicle.

(29) *Uncontained solid waste:* Yard waste and bulk waste too large for placement in prescribed containers for collection.

(30) *Vehicle parts:* Includes automobile body panels, chassis, engines, transmissions or any other large components of vehicles.

(31) *Wood waste:* Includes sawdust, wood chips, boards, posts and other materials generated by or a waste by-product of wood construction, demolition and wood-using manufacturing operations.

(32) *Yard waste* means grass clippings, leaves, shrubbery trimmings, tree branches, and other natural debris from grass, plants or shrubs provided that individual pieces are no longer than six (6) feet in length, are six (6) inches or smaller in diameter, and the combined weight the items does not exceed fifty (50) pounds.

(b) *Solid waste containers.* The following definitions identify the various solid waste containers:

(1) *Degradable bag:* A bag made of paper with a chemical additive used for containing solid waste and which can be composted.

(2) *Plastic bag:* A disposable plastic sack of sufficient strength that will safely handle solid waste materials.

(3) *Recycling container:* A container owned by the city or its designee and made available to residents for their usage as part of the city's recycling program.

(4) *Roll-off bin:* A rectangular metal container varying in size available upon request for

special clean-ups. Bins are designed so that they can be loaded and unloaded by a truck equipped with a tilt frame and hoist mechanism.

(5) *Solid waste container:*

a. A city-owned supercart made available to each household for its usage as part of the city's mechanical contained solid waste collection system.

b. A privately owned plastic or galvanized container not to exceed thirty-two (32) gallons capacity with handles and approved for collection of solid waste.

(6) *Supercart:* A city-owned plastic solid waste container with attached lid, wheels and integral pick-up attachments for utilization with semi-automated or fully automated collection systems.

(c) *Solid waste collection system* means the following definitions that identify the solid waste collection systems:

(1) *Manual solid waste collection system* is one that utilizes manual labor to load solid waste, for which materials may not exceed a combined weight of fifty (50) pounds weight, including the container.

(2) *Mechanical solid waste collection system:* A solid waste collection system utilizing city specified or city provided containers for collection by solid waste vehicles equipped with lifting devices.

(3) *Private solid waste collection system:* Solid waste collection operations owned and operated by private individuals or corporations holding a privilege tax license issued by the city.

(4) *Recycling collection system:* A solid waste collection system utilizing automated collection vehicles to load designated recyclables from city-provided recycling containers.

(d) *Solid waste generating units.* The following definitions identify the various solid waste generating units:

(1) *Apartments:* Any building or portion thereof which is designed, built, rented, leased, let or hired out to be occupied, or which is occupied as the home or residence of more than two (2) families living independently of each other and doing their own cooking in said building. Such term shall include flats.

(2) *Churches:* Any building clearly identified and used as a place of religious worship.

(3) *Commercial, industrial or institutional establishments:* Includes any building, structure or premises not defined as a dwelling unit in this section. The term "commercial establishment" includes, but is not limited to, apartment complexes and manufactured home parks.

(4) *Condominiums:* A single real property parcel with all the unit owners having a right in common to use the common elements with separate ownership confined to the individual units which are serially designated.

(5) *Dwelling* or *dwelling units:* Any room or group of rooms located within a structure forming a single habitable unit with facilities that are used or intended to be used for living, sleeping, cooking, eating and sanitation by one (1) family. A dwelling or dwelling unit includes, but is not limited to, a single habitable unit in a house, apartment building, townhouse, condominium, multi-dwelling unit, mobile home, or manufactured home.

(6) *Family:* In addition to customary domestic servants, either:

a. An individual or two (2) or more persons related by blood, marriage or adoption, maintaining a common household in a dwelling unit; or

b. A group of not more than four (4) persons who need not be related by

blood, marriage or adoption, living together as a common household in a dwelling unit; or

c. Two (2) or more persons with a handicap as defined in the Fair Housing Act Amendments of 1988, 42 U.S.C. § 3601 (1994), as amended, living as a single housekeeping unit.

(7) *Multi-dwelling units:* Any building, or portion thereof, which is designed, built, rented, leased, let or hired out to be occupied, or which is occupied as the home or residence of two (2) or more living groups that reside independently of each other and doing their own cooking in the building. "Multi-dwelling unit" includes, but is not limited to, flats and apartments, as well as the following:

a. *Duplex:* Any building or structure under one (1) roof that contains two (2) separate dwelling units, usually with individual egress or ingress.

b. *Triplex:* Any building or structure under one (1) roof that contains three (3) separate dwelling units. Usually with individual egress or ingress.

c. *Fourplex:* Any building or structure under one (1) roof that contains four (4) separate dwelling units. Usually with individual egress or ingress.

d. *Rooming, lodging and boarding facility:* A building or establishment which provides for more than four (4) but fewer than sixteen (16) persons and may provide meal service. The building or facility shall be so arranged as to permit passage between all living elements such as dining, kitchen and bathrooms. Detached units or private access accommodations are not permitted.

e. *Group care facility:* A facility providing shelter, counseling and other rehabilitative services to more than six (6) but fewer than sixteen (16) residents and not more than three (3) staff or supervisory personnel. The facility shall be licensed or approved by the State of Arkansas.

(8) *Nonprofit agencies:* Any entity organized or incorporated for purposes other than generating profit, such as a charitable, scientific or literary organization. Such entities include, but are not limited to, Goodwill Industries, Union Rescue Mission and the Salvation Army.

(9) *Premises:* Land, buildings or other structures, or parts thereof, where solid waste is stored or accumulated.

(10) *Public buildings:* All structures or buildings owned by governmental agencies.

(11) *Public housing:* All buildings owned or operated by a governmental agency to provide living quarters to eligible residents.

(12) *Residence:* A building or part of a building containing one (1) or more dwelling units or rooming units. Residences does not include:

a. Such transient accommodation as a transient hotel, motel, tourist home or similar establishment; or

b. A dormitory, fraternity or sorority house, monastery or convent or similar establishment containing group living or sleeping accommodations; or

c. Nurses' residence, sanitarium, nursing home, convalescent home, rest home or other sleeping or living accommodations in a community facility building or portion of a building used for community facility use.

(13) *Rooming unit:* Any room or group of rooms forming a single habitable unit used for, or intended to be used for, living and sleeping, but not for cooking or eating purposes. "Rooming unit" shall be construed as if followed by the words "or part thereof."

(14) *Schools:* All public and private buildings used for pre-school, elementary, junior high school, high school, specialized or higher education purposes.

(15) *Single dwelling unit:* A dwelling designed for and occupied by not more than one (1) family.

(16) *Townhouses:* All individually owned dwelling units with five (5) or more units normally having two (2), but sometimes three (3), stories; usually connected to a similar structure by a common wall, and commonly sharing and owning in common the surrounding grounds.

(e) *Miscellaneous definitions.* The following are miscellaneous terms that are used within this solid waste ordinance:

(1) *Alley:* A public or private right-of-way primarily designed to serve as a secondary access to the side of or rear of properties whose principal frontage is on some other street.

(2) *Chapter:* Chapter 28, Solid Waste, contained in the City of Little Rock, Ark. Revised Code of Ordinances.

(3) *City:* City of Little Rock, Arkansas.

(4) *City disposal facility:* A landfill, disposal site, disposal facility or material recovery site or facility owned by the city or owned and operated by another person under contract with the city at which solid waste is dumped, abandoned, accepted or disposed of for final disposition by incineration, landfilling, composting or any other method.

(5) *Class I landfill:* A solid waste facility that accepts nonhazardous household, commercial and industrial solid waste as defined herein; and small quantities of conditionally exempt hazardous wastes.

(6) *Class IV landfill:* A solid waste facility that accepts nonhazardous bulky, inert, nonputrescible solid wastes that do not degrade, or degrade very slowly. Class IV wastes include, but are not limited to, construction and demolition waste, appliances, furniture, stumps, limbs and other bulky wastes that are not normally collected with other household or commercial waste.

(7) *Composting:* The deliberate aerobic, biological decomposition of yard waste or other solid waste, resulting in a stable humus-like product.

(8) *Composting facility:* A facility that accepts yard waste or other solid waste for an aerobic, biological decomposition of such waste.

(9) *Disposal:* Abandoning, depositing, releasing, dumping, spilling, leaking or placing of any solid waste into or on any land or water so that such solid waste or any constituent thereof may enter the environment or be emitted into the air or discharged into any water. Disposal does not including composting.

(10) *Disposal facility:* Any place to which solid waste is dumped, abandoned, or accepted or disposed of for final disposition by incineration, landfilling, composting or any other method.

(11) *Hauler:* A person engaged in the collection or transportation of solid waste for disposal or storage. "Hauler" does not include a person transporting his or her household waste to a permitted disposal facility.

(12) *Illegal dumpsite:* Any place at which wastes defined in this chapter are placed, deposited, abandoned, dumped or otherwise disposed of in a manner that is prohibited by this chapter or other statues, rules or regulations, and which constitute one (1) or more of the following:

a. Attractive nuisance;

b. Public or private nuisance;

c. Fire, health or safety hazard;

d. Potential sources of surface or groundwater contamination; or

e. Other contamination that is hazardous to the public health or endangers the environment.

(13) *Imminent health or safety hazard:* A condition of real property, uncontained solid waste, solid waste container or recycling container that places a persons' life, health, safety or property in high risk of peril when such condition is immediate, impending on the point of happening and menacing.

(14) *Incineration:* A controlled process by which solid waste is burned and changed into gases and residue produced which is relatively free of combustible materials.

(15) *Incinerator:* All enclosed devices intended or used for the reduction or destruction of solid waste.

(16) *Landfill:* A discrete area of land or an excavation that is permitted by ADPC&E that receives solid waste for disposal, and that is not a land application unit, surface impoundment, injection well or waste pile, as those terms are defined under 40 C.F.R. § 257.2, as amended.

(17) *Material recovery facility:* A solid waste handling facility that provides for the extraction from mixed solid waste of recoverable materials, materials suitable for use as a fuel or soil amendment or any combination of such materials.

(18) *Material processing facility:* A composting facility, transfer station, solid waste material recovery facility or other facility that handles or processes solid waste, but does not otherwise provide for the ultimate disposal of the solid waste by landfilling, composting or incineration.

(19) *Person:* Any individual, corporation, company, firm, partnership, association, trust, state agency, government instrumentality or agency, institution, county, city, town, municipal authority or trust, venture or other legal entity, however organized.

(20) *Public works department:* The department of the city charged with the responsibility of administering all federal, state and municipal laws, regulations and ordinances pertaining to the utilization of public right-of-way.

(21) *Public works director:* The chief administrator of the public works department.

(22) *Pulaski County Regional Solid Waste Management District:* A regional solid waste management district formed pursuant to A.C.A. § 8-6-701, as may be amended, comprised of representatives from each separate governmental entity within Pulaski County charged with regulating all solid waste operations within its boundaries.

(23) *Responsible party:* An owner, operator, occupant, resident, lessor, manager, licensee or other person having control over a structure or parcel of land.

(24) *Right-of-way:* An area of land deeded, reserved by plat or otherwise accepted and maintained by the city, the county or the state for public use, including, but not limited to, a street, sidewalk, alley, crosswalk, railroad or utility service.

(25) *Solid-waste fee:* A fee assessed by the city for any solid waste services provided by the city manager or designee.

(26) *Transport:* The movement of wastes from the point of generation to any intermediate points, and finally to the point of ultimate storage or disposal.

(27) *Vehicle:* Every device capable of being moved upon a public highway and in, upon, or by which any persons or property is or may be transported or drawn upon a public highway, excepting devices moved by human or animal power or used exclusively upon stationary rails or tracks.

(Ord. No. 17,262, § 1, 8-20-96; Ord. No. 20,509, §§ 1, 2, 12-6-11; Ord. No. 20,562, § 1, 3-27-12; Ord. No. 21,780, § 1, 9-17-19)

Sec. 28-2. Powers and duties of the city manager.

(a) The city manager or designee is empowered to implement and enforce the provisions of this chapter. The city manager or designee is further

authorized and directed to provide public solid waste disposal facilities for solid waste originating within the city, so that the usual types and quantity of solid waste can be safely and expeditiously handled.

(b) The city manager or designee may impose operational regulations on the disposal processes, such as determining character and kinds of solid waste authorized for disposal at a city disposal facility, routing of traffic, and designating time and location that dumping may occur at city disposal facilities. Any such regulations shall be conspicuously displayed or shall be published as a part of this chapter. Nothing in this chapter is intended or shall be construed so as to infringe or supplant the authority of the Pulaski County Regional Solid Waste Management District, the ADPC&E or the United States Environmental Protection Agency.

(c) Rules and regulations imposed by the city manager or designee which are consistent with and supplementary to this chapter may be changed or amended from time to time by the city manager or designee and shall become a part of this chapter.
(Ord. No. 17,262, § 2, 8-20-96)

Sec. 28-3. Solid waste responsibility.

The responsible party of any dwelling unit or commercial establishment shall be responsible for the sanitary condition of said premises and for the proper storage, containment and placement for collection of all wastes as defined in this chapter. For purposes of this chapter, commercial establishments that shall be responsible for the proper storage, containment and placement for collection of all wastes on their premises and from any dwellings on their premises, including household waste, as such wastes are defined in this chapter shall include, but not be limited to:

(1) Apartments with five (5) or more units, unless such apartments have received solid waste collection services from the city continuously since March 3, 1983; and

(2) Manufactured home parks, except those in which the city provides solid waste collection services to all occupied dwelling units individually.

(Ord. No. 17,262, § 3, 8-20-96; Ord. No. 20,509, § 3, 12-6-11)

Sec. 28-4. Hauling solid waste.

(a) It shall be in violation of this chapter for any person engaged in the business of collecting, transporting or disposing of solid waste to haul such waste along any public street, alley or right-of-way in the city unless the materials are contained in vehicles or receptacles so constructed so as to prevent the waste from falling, leaking, blowing, dropping, spilling, or otherwise departing from the vehicle. Solid waste that could depart from a vehicle shall be transported in an enclosed vehicle or be completely covered. The solid waste shall be suitably enclosed or covered so as to prevent roadside littering, attraction of disease vectors or creation of other nuisances.

(b) Care shall be taken in the loading and transportation of solid waste so that none of the material is left either on private property or on the streets or alleys. The city recognizes that an occasional emergency or hot load may require the unloading of solid waste from a solid waste collection vehicle. Solid waste may be unloaded for emergency purposes if, and only if all solid waste unloaded is recollected within two (2) hours of the unloading, unless prohibited by emergency response personnel. The area must be litter free after the recollection, and the unloading shall not obstruct traffic.

(c) All solid waste haulers shall be duly licensed in accordance with A.C.A. § 8-6-721, as may be amended, and ADPC&E Regulation 22, as amended.
(Ord. No. 17,262, § 4, 8-20-96)

Sec. 28-5. Illegal disposal of solid waste.

It shall be a violation of this chapter for any person to illegally dispose, or cause to be illegally disposed, any wastes as defined in this chapter:

(1) In or upon any public or private highway or road, including any portion of the right-of-way thereof;

(2) In or upon any private property into or upon which the public is admitted by easement or license, or any private property;

(3) In or upon any public park, or other public property, other than the property designated or set aside for waste disposal by the governing board or body having charge thereof; or

(4) Upon any property for which a waste disposal permit has not been issued by the ADPC&E.

(Ord. No. 17,262, § 5, 8-20-96)

Sec. 28-6. Animal waste.

Animal waste shall be disposed of in the following manner:

(1) Animal waste from small animals or pets shall be placed in a plastic bag, securely tied, and then placed in an approved solid waste container.

(2) Animal waste from larger animals, such as horses and other livestock, may be placed out for collection provided such waste is completely dry, placed in a plastic bag, securely tied and placed in an approved solid waste container.

All animal waste shall be removed from pens, stables, yards, cages and other enclosures and disposed of as described in this section or by composting as often as necessary to prevent the occurrence of a public nuisance, public health or safety hazard or an environmental hazard.

(Ord. No. 17,262, § 6, 8-20-96)

Sec. 28-7. Composting of solid waste.

(a) All composting activities shall be conducted in accordance with ADPC&E Regulation 22, as amended. Small composting operations

conducted by a person treating yard waste, organic wastes or animal waste taken solely from that person's personal residence or property shall be conducted in a manner not to constitute a public or private nuisance to other persons or property owners either adjacent to or in the vicinity of the composting operation.

(b) Animal waste or garbage shall be covered with a layer of soil of sufficient quantity to avoid being a nuisance.
(Ord. No. 17,262, § 7, 8-20-96)

Sec. 28-8. Unobstructed access.

(a) It is the responsibility of the responsible party to trim trees, brush and shrubbery on their property and in the adjacent right-of-way when such vegetation interferes with the movement of pedestrians or vehicles, specifically solid waste collection vehicles.

(b) There shall be no street obstruction in any manner within three (3) feet on either side of a city provided solid waste container placed out for collection, nor shall there be any obstruction between the solid waste container handle and the street.

(c) The solid waste collection section shall receive notice of any excavation, construction, repairs or utility work that will necessitate the closure of any street or alley, with dates and locations of closure, at least twenty-four (24) hours prior to commencing work. In emergency situations, the solid waste collection section shall be notified the next working day of locations and length of expected closure.

(d) Recycling containers shall be placed no closer than three (3) feet from either side of city-provided solid waste supercarts.
(Ord. No. 17,262, § 8, 8-20-96; Ord. No. 20,562, § 2, 3-27-12)

Sec. 28-9. Variances.

The city manager or designee may grant exceptions to any section of this chapter based on circumstances such as, but not limited to, physical limitations, terrain difficulties or right-of-way accessibility. All requests for variances will be considered on a case-by-case basis.
(Ord. No. 17,262, § 9, 8-20-96)

Sec. 28-10. Commercial, industrial and institutional solid waste containment.

(a) Each commercial, industrial and institutional establishment shall contract with any licensed hauler for the storage, collection and disposal of all solid waste. Each such establishment shall have on location storage containers of sufficient capacity to contain all solid waste between collection cycles. Containers shall be constructed of durable, nonabsorbent, noncombustible material with suitable watertight covers. Covers shall be kept closed except when containers are being loaded or emptied. All containers shall be maintained in a sanitary condition. Containers shall not be stored or maintained in such a manner as to institute a public nuisance, public health or safety hazard or environmental hazard. The containers shall be placed in such a manner as to minimize visibility from streets or pedestrian walkways.

(b) All solid waste generated by commercial, industrial and institutional establishments is prohibited from being deposited, or disposed of, in any city provided container unless collection service is being provided to such establishment by the city or its designee.

(c) An apartment complex or a manufactured home park that has no storage containers on-site for collection of solid waste from the occupied dwelling units therein, and for which no contract with a licensed hauler for the storage, collection and disposal of all solid waste exists, shall constitute a nuisance per se, unless the city provides solid waste collection for all occupied dwelling units in the apartment complex or manufactured home park, paid for by individual residents of the dwelling units. For purposes of this chapter, an apartment complex consists of apartments that share an identity, are in the same general location, and have the same ownership.
(Ord. No. 17,262, § 10, 8-20-96; Ord. No. 20,509, § 4, 12-6-11)

Sec. 28-11. Depositing solid waste other than in authorized containers.

It shall be unlawful for any person to keep solid waste or animal waste unless the waste is kept as prescribed in this chapter or is being composted as prescribed by this chapter and ADPC&E Regulation 22, as may be amended. No person or entity shall be permitted to bury, dump or deposit, or cause to be buried, dumped or deposited, solid waste of any kind whatsoever upon any street, alley or property for which a permit has not been issued by the ADPC&E.
(Ord. No. 17,262, § 11, 8-20-96)

Sec. 28-12. Use of solid waste container(s) assigned to another person.

It shall be a violation of this chapter for any person to utilize a solid waste container(s) assigned to another person for disposal of solid waste without the other person's permission.
(Ord. No. 17,262, § 12, 8-20-96)

Sec. 28-13. Liquids to be drained.

Putrescible solid waste shall be drained of all liquids and placed in waterproof bags that are securely tied before being placed in solid waste containers.
(Ord. No. 17,262, § 13, 8-20-96)

Sec. 28-14. Lids or covers on containers.

The lids or covers of any solid waste container shall be kept secure in such a manner so as to prevent intrusion of moisture, insects, rodents and the littering or scattering of solid waste.
(Ord. No. 17,262, § 14, 8-20-96)

Sec. 28-15. Disturbing contents of containers.

It shall be a violation of this chapter for:

(1) Any person not authorized by the city to utilize, for other than its intended purpose, any supercart provided by the city.

(2) Any person not authorized by the responsible party to remove, collect or disturb any solid waste stored in containers placed out for collection by the city or its designee.

(3) Any person to scatter, litter, drop, deposit, discard or otherwise dispose of solid waste upon any private or public property.

(4) Any person not authorized by the city to remove or disturb any recyclables placed out for collection by the city or its designee.

(Ord. No. 17,262, § 15, 8-20-96)

Sec. 28-16. Solid waste containment and disposal requirements.

(a) All responsible parties using or occupying any dwelling unit, commercial, industrial or institutional establishment, or grounds, within the corporate limits of the city shall contain all putrescible solid waste in bags that are securely tied prior to depositing into a city-provided supercart.

(b) All loose yard waste including, but not limited to, grass, weeds, leaves and vegetation clippings must be: (1) placed in any approved solid waste container other than a city-provided supercart provided the container and contents do not exceed sixty (60) pounds or be: (2) bagged and securely tied before being placed at the designated collection site.

(c) Explosives of any kind, such as small arms ammunition, black powder, blasting agents, compressed gas cylinders or any kind of flammable materials shall not be placed in any solid waste container.

(d) Construction and demolition waste resulting from the construction, reconstruction, demolition, remodeling or repair of premises will not be collected by the city. All such materials shall not be placed with other solid waste. Such debris and solid waste is the responsibility of the dwelling units' responsible party for removal and proper disposal.

(e) Wood waste, tires and vehicle parts will not be collected by the city. Such materials shall not be placed with other solid waste and is the responsibility of the dwelling units' responsible party for removal and proper disposal.

(f) Ashes will be collected if they have been soaked with water to extinguish any live embers and are then securely tied in bags before deposit-

ing into a solid waste container. Ashes from medical waste, hazardous waste or special materials waste will not be collected by the city.

(g) It is the container users' and responsible parties' responsibility to keep the area around the solid waste container continuously free and clear of all debris. If the property has alley collection service, then the term area includes that portion of the alley adjacent to the property. This alley clearance requirement shall be in addition to any other responsibilities the property owner has with respect to alleys.

(h) All boxes and large pieces of cardboard shall be broken down or cut up prior to placement in solid waste containers.

(i) No bulk waste shall be placed in solid waste containers.

(j) No yard waste shall be placed in city-provided supercarts.

(k) No yard waste, bulk waste, medical waste, household waste or garbage shall be placed into recycling containers.

(l) No medical waste, infectious waste, sharps, needles or lancets will be collected by the city.
(Ord. No. 17,262, § 16, 8-20-96)

Sec. 28-17. Solid waste collection service; service units.

The city will provide solid waste collection service to the following:

(1) Single dwelling units.

(2) All apartments, including group care facilities, with less than five (5) units.

(3) Upon request, apartments with five (5) or more units which have been receiving city solid waste collection services continuously since March 3, 1983.

(4) Upon request, apartments converted to condominiums.

(5) Commercial, industrial and institutional establishments upon request and approval of the city manager or designee.

(6) A carry-out service for persons with disabilities residing in dwelling units receiving city solid waste collection and recycling service. This service is provided at no additional charge to an individual(s) who is disabled and is thus incapable of conveying their solid waste or recycling container to the designated collection location. The city manager or designee shall verify that an individual(s) meets the aforementioned criteria upon receipt of a request for carry-out service. Prior to receiving this service, the requester may be required to produce reasonable evidence of disability. This service does not include collection personnel entering the dwelling unit to provide such service.

(7) Curbside recycling service will be provided to all dwelling units that are provided solid waste collection service by the city or its designee.

(Ord. No. 17,262, § 17, 8-20-96)

Sec. 28-18. Mechanical solid waste collection system.

(a) Except as designated by the city manager or designee, the mechanical solid waste collection system will be the method of collection for household waste collection service provided to citizens in the city. Where it is impractical for city collection vehicles to operate due to terrain or other conditions, an alternate collection method will be provided.

(b) The city will specify and purchase solid waste containers for each dwelling unit. Containers may be used only for the storage of solid waste materials collected by the city.

(c) Only city provided supercarts shall be used for collection of household waste. Only items placed within the supercart will be collected. Additional cans, or bags separate from the supercart, will not be collected.

(d) A single container will be issued to each dwelling unit. An additional container may be issued upon request.

(e) All city provided containers shall remain the property of the city. The city is responsible for repairs to city-owned containers when damage is a result of proper disposal of solid waste pursuant to this chapter.

(f) Containers shall be stored between collections so as not to impede pedestrian or vehicular traffic along sidewalks, alleys, streets, and other rights-of-way.

(g) All recyclables shall be placed in approved recycling containers only. Materials shall be prepared in accordance with instructions outlined on the recycling container.
(Ord. No. 17,262, § 18, 8-20-96; Ord. No. 20,562, § 3, 3-27-12)

Sec. 28-19. Manual solid waste collection system.

(a) Except as specified by the city manager or designee, the manual solid waste collection system shall be the collection system utilized for the collection of yard waste.

(b) City provided supercarts shall not be used for yard waste storage and collection.

(c) Limbs, branches and other vegetation will be collected, provided individual pieces are no longer that six (6) feet in length, are six (6) inches or smaller in diameter, and weigh no more than sixty (60) pounds.

(d) No yard waste or containers shall be placed so as to impede pedestrian or vehicular traffic along sidewalks, alleys, streets and other public rights-of-way.
(Ord. No. 17,262, § 19, 8-20-96; Ord. No. 20,562, § 4, 3-27-12)

Sec. 28-20. Disposal in designated areas.

(a) Persons, businesses, firms or corporations under contract with the city for the hauling and disposal of construction, demolition or other solid waste shall dispose of the solid waste in a legally permitted solid waste disposal facility.

(b) Persons, businesses, firms, corporations and governmental agencies shall be permitted to dispose of authorized solid waste at the city landfill facility upon payment of a tipping fee.
(Ord. No. 17,262, § 20, 8-20-96)

Sec. 28-20a. Disposal of drill cuttings.

No person shall dispose of, in any manner whatsoever, drill cuttings originating from drilling operations that use oil-based drilling fluids ("drilling shale") in a disposal facility within one (1) mile of an occupiable structure, including, but not limited to, a residence; dwelling; single-dwelling unit; multidwelling unit; public building; public housing; rooming unit; apartment; school; church; commercial, industrial or institutional establishment; business establishment; condominium; townhouse; or restaurant.
(Ord. No. 20,106, § 1, 5-5-09)

Sec. 28-21. City manager policies.

The city manager, or designee, shall develop policies to facilitate the orderly collection of solid waste and recyclables. These policies shall be reviewed at least annually and any proposed amendments to this article shall be recommended. In addition to any other matters, the policies should include the following:

(1) Solid waste containers should be placed within five (5) feet of the street edge for collection.

(2) Containers should not be placed out for collection prior to 4:00 p.m. the day preceding the normal collection day. The containers should be removed by midnight the day of completion of solid waste collection.

(3) The responsible party at each dwelling unit is responsible for maintaining the sanitary condition of solid waste containers.

(4) All loose materials may be placed in either heavy-duty plastic bags that do not exceed forty (40) pounds, including contents, or in approved solid waste containers with handles that do not exceed thirty-two (32) gallons in capacity, nor weigh more than sixty (60) pounds, including the container.

(5) All yard waste materials and containers should be placed within five (5) feet of the street edge for collection.

(6) Yard waste and yard waste containers may be placed out for collection with no restriction on the day or time of such placement.

(7) Unless otherwise indicated, all recyclables will be collected utilizing a mechanical collection system.

(8) Recycling containers should be placed out for collection within five (5) feet of the street edge.

(9) Recycling containers should not be placed out for collection prior to 4:00 p.m. the day preceding the normal collection day. Recycling containers should be removed by midnight the day of completion of recycling collection.

(10) Unless otherwise approved, all recyclables should be collected from the street in front of each dwelling unit.

(Ord. No. 17,262, § 21, 8-20-96; Ord. No. 20,562, § 5, 3-27-12)

Sec. 28-22. Landfill user requirements.

(a) Landfill users must obey all traffic signs and stay on designated roadways at all times.

(b) Landfill users are to follow all instructions given to them by any landfill personnel.

(c) Landfill personnel will determine the weight of solid waste for calculating applicable tipping fees.

(d) Landfill users will dump solid waste only in the designated area as directed by landfill personnel.

(e) No alcohol beverages are permitted on the landfill site.

(f) All users of the landfill facility must be dressed in appropriate attire (i.e., no thongs, sandals or bare feet) for public health and safety reasons.

(g) Landfill personnel have the right to inspect any load and may disallow dumping of nonauthorized solid waste.

(h) Children and pets must remain in the vehicle at all times.

(i) No person engaged in the business of hauling and disposing of solid waste will be allowed access to the city landfill until such time that they have been issued a hauler's license by the Pulaski County Regional Solid Waste Management District and have affixed the annual permit visibly on the driver's side door of the solid waste collection vehicle.

(j) Access to the city landfill is permitted only during the hours when landfill operating personnel are on the site.

(k) Violation of these requirements may lead to permanent expulsion from the city landfill facility.

(Ord. No. 17,262, § 22, 8-20-96)

Sec. 28-23. Hazardous waste.

Pursuant to ADPC&E Regulation 22, Section 22.701(b), as amended, materials known to be hazardous waste are restricted from disposal at the City of Little Rock's Sanitary Landfill Facility.

(Ord. No. 17,262, § 23, 8-20-96)

Sec. 28-24. Friable asbestos materials.

Asbestos material wastes shall be handled in accordance with Federal National Emission Standards for Hazardous Air Pollutants (NESHAP) regulations in the removal, containerizing, storage and transporting of the materials. Such wastes shall also be handled, contained, stored, transported and disposed according to the requirements of ADPC&E Regulation 22, 40 C.F.R. § 61, Subparts A and M, as amended, and C.F.R. § 1910, as amended.

(Ord. No. 17,262, § 24, 8-20-96)

Sec. 28-25. Landfill fees.

(a) The following tipping fees shall be charged for disposal of approved solid waste at the city landfill facility:

Effective Date	2/1/ 2026	1/1/ 2027	1/1/ 2028	1/1/ 2029	1/1/ 2030
Class I Waste per Ton	$57.00	$59.00	$61.00	$63.00	$65.00
Class I Waste Minimum Charge per Load	$41.00	$42.00	$43.00	$44.00	$45.00
Class IV Waste per Ton	$57.00	$59.00	$61.00	$63.00	$65.00

Effective Date	2/1/ 2026	1/1/ 2027	1/1/ 2028	1/1/ 2029	1/1/ 2030
Class IV Waste Minimum Charge per Load	$41.00	$42.00	$43.00	$44.00	$45.00
Yard Waste per Ton	$52.00	$54.00	$56.00	$58.00	$60.00
Yard Waste Minimum Charge per Load	$41.00	$42.00	$43.00	$44.00	$45.00
Asbestos per Ton	$160.00	$162.00	$164.00	$166.00	$168.00
Asbestos Minimum Charge per Load	$102.00	$104.00	$106.00	$108.00	$110.00

(b) The mayor is hereby authorized to negotiate volume discount agreements with city landfill customers; however, all volume discount agreements and amounts shall be approved in advance by the board of directors.
(Ord. No. 17,262, § 25, 8-20-96; Ord. No. 17,335, § 1, 12-3-96; Ord. No. 20,541, § 1, 2-7-12; Ord. No. 21,823, § 1, 12-17-19; Ord. No. 22,398, § 1, 2-20-24; Ord. No. 22,700, § 1, 12-16-25)

Sec. 28-26. Surcharge for dumping solid waste at the city landfill.

All applicable state and solid waste district surcharge fees will be added to existing fees and charges assessed at the city landfill.
(Ord. No. 17,262, § 26, 8-20-96)

Sec. 28-27. Necessity for collection fees.

In order to provide for the protection of the public health, safety and welfare of the citizens of Little Rock, a schedule of fees for the recovery of costs associated with solid waste management is established.
(Ord. No. 17,262, § 27, 8-20-96)

Sec. 28-28. Collection fees.

(a) Each dwelling unit will be charged without exception a monthly fee as listed in the schedule to this section. Rate increases will be charged for bills rendered on and after the effective date as listed in the schedule to this section. Each billing unit will be provided a single city-owned solid waste container (Supercart). Fees shall be collected monthly and may be billed on the statement for water for said premises, or some other similar system approved by the city manager and shall be the debt and obligation of the person, firm or corporation in whose name the water meter is listed or the dwellings unit's responsible party.

Effective Date	2/1/ 2026	1/1/ 2027	1/1/ 2028	1/1/ 2029	1/1/ 2030
Per Dwelling Unit	$40.07	$42.07	$44.07	$46.07	$48.07

(b) The city will provide four (4) bulky item collections per year to city residential customers, additional collections of bulky items will be charged at a minimum rate of twenty-five dollars ($25.00) per collection for up to two (2) cubic yards and an additional ten dollars ($10.00) per cubic yard for debris in excess of the two (2) cubic yard minimum.

(c) Oversize yard waste and uncontained solid waste will be charged a minimum rate of twenty-five dollars ($25.00) per collection for up to two (2) cubic yards and an additional charge of ten dollars ($10.00) per cubic yard for debris in excess of the two (2) cubic yard minimum.

(d) Contamination of recycling container shall result in fifty dollars ($50.00) fee or forfeiture of the right to curbside recycling service and removal of recycling container by the city or its designee. Forfeiture will be for a minimum of one (1) year, or until fee is paid, and will continue until return of service is requested by the dwelling units responsible party.

(e) *Non-residential charges.* Commercial, industrial and institutional establishments utilizing city collection services will be charged pursuant to the following schedule. Such fees will be collected monthly and be billed on the statement for water for the premises served and shall be the debt and obligation of the person, firm or corporation in whose name the water meter is listed. Rate increases will be charged for bills rendered on and after the effective date as listed in the schedule to this section.

Effective Date	2/1/ 2026	1/1/ 2027	1/1/ 2028	1/1/ 2029	1/1/ 2030
Per Cart	**$53.93**	**$56.62**	**$59.32**	**$62.01**	**$64.70**

(f) *Additional containers.*

(1) *Solid waste containers (garbage supercarts).* Individual dwelling units including commercial, industrial and institutional establishments may request one (1) or more additional city-provided solid waste containers. Any additional solid waste containers will be billed at the rate of ten dollars ($10.00) per month, per container and will be billed for a minimum of three (3) months.

(2) *Recycling containers.* Individual dwelling units may request additional recycling containers. Any additional recycling containers will be billed at the rate of three and 11/100 dollars ($3.11) per month, per container and will be billed for a minimum of three (3) months.

(g) *Services.* The services to be provided for the rate set forth in subsection (a) of this section shall include the collection of garbage which is placed in city-provided containers, bulky items (four (4) times per year), and yard waste collection. Materials located in the right-of-way in front of vacant lots, vacant and boarded-up houses may be collected by [the] city or its designee, but is the responsibility of the adjacent property owner.
(Ord. No. 17,262, § 28, 8-20-96; Ord. No. 17,334, § 1, 12-3-96; Ord. No. 17,608, §§ 1, 2, 11-4-97; Ord. No. 18,685, §§ 1, 2, 5-28-02; Ord. No. 19,087, § 1, 4-20-04; Ord. No. 20,562, § 6, 3-27-12; Ord. No. 20,670, § 1, 12-18-12; Ord. No. 21,780, § 2, 9-17-19; Ord. No. 21,892, § 1, 7-21-20; Ord. No. 22,097, § 1, 2-15-22; Ord. No. 22,700, § 2, 12-16-25)

Sec. 28-29. Inspection of containers.

Provision shall be made for regular inspections of solid waste containers by the city manager or designee to insure compliance with this chapter with reference to containment of solid waste. A notice of violation shall be issued by the city manager or designee, to the responsible party of the property upon which violations occur. Notification shall consist of tagging the solid waste container with clear indication as to the nature of the violation.
(Ord. No. 17,262, § 29, 8-20-96)

Sec. 28-30. Issuance of citations.

The city may issue a notice of violation to any person, business, firm, corporation or governmental agency violating any provisions of this chapter. If the violation has not been corrected within the specified time period, a citation may be issued.
(Ord. No. 17,262, § 30, 8-20-96)

Sec. 28-31. Penalty for violations of this chapter.

In addition to any civil penalties that may be authorized by law, any person, business, firm, corporation or governmental agency found in violation of any provisions of this chapter shall be subject to the penalties in accordance with section 1-9.
(Ord. No. 17,262, § 31, 8-20-96)

Sec. 28-32. Conflict with other ordinances.

If any provision of this chapter is in conflict with any portion of other city ordinances, this chapter shall prevail with respect to any matters relating to solid waste.
(Ord. No. 17,262, § 32, 8-20-96)

Secs. 28-33—28-55. Reserved.

ARTICLE II. RECYCLING

Sec. 28-56. Purpose.

The purpose of this article is to ensure that all existing and future multifamily communities in the City of Little Rock are provided access to convenient recycling containers, so that residents of those communities can recycle the same materials that are collected by the City of Little Rock's single-family curbside recycling program.
(Ord. No. 20,854, § 1, 3-4-14)

Sec. 28-57. Definitions.

The following definitions shall apply to standards dealing with this article:

City means the City of Little Rock, Arkansas, a municipal corporation in the State of Arkansas.

Multifamily housing means any community that is not subject to a solid waste user fee that is designated by the city collector as a single-family residence, and consists of one hundred (100) or more dwelling units including, but not limited to, apartments, townhouses, condominiums, public housing communities, dormitories and mobile home parks.

Multifamily housing staff means the owner, developer, person, firm, corporation, company, management, or other group, association, or personnel responsible for providing solid waste collection services directly or through a contract hauler and for the furnishing and maintenance of containers for solid waste, garbage, and refuse disposal for its residents.

Recyclables means items included in the city's approved recycling program that includes, but is not limited to, newsprint and accompanying inserts; brown, clear, and green glass containers; aluminum cans, clean aluminum foil, and clean aluminum food trays; steel cans; plastic bottles and jugs; all cardboard; magazines; office paper; residential mixed paper (office paper, junk mail, catalogs, and paper board such as cereal/food boxes); and other local recyclable processor agreed upon materials.

Recycling means the process by which recovered materials are collected, separated, processed, and reused as materials for the manufacturing of new consumer products.

Recycling collection means a receptacle, including, but not limited to, a container or dumpster, designed for the purpose of collecting recyclable materials, with sufficient capacity to provide collection without overflowing or spilling.

Service provider means the person, corporation, partnership, or entity awarded the contract by the multifamily housing community's authorized management agent which provides cart or dumpster services and/or recyclable materials collection, hauling and delivery.
(Ord. No. 20,854, § 2, 3-4-14)

Sec. 28-58. Recycling participation.

The owner and or manager of each multifamily housing residence of one hundred (100) or more dwelling units shall provide recycling and encourage participation by the tenants, renters, or owners of each living unit in such multifamily residence.
(Ord. No. 20,854, § 3, 3-4-14)

Sec. 28-59. Recycling program information and education.

Information and education shall be provided by multifamily housing staff to the tenants, renters or owners about the recycling program and the items that are recyclable. The information shall include, but is not limited to, flyers or other forms of communication. Information shall be provided to all existing tenants at the start of the program and shall be provided to all new tenants at the time of occupancy. Information shall include materials accepted, recycling containers, locations and service frequency. Multifamily management shall document in writing that the recycling program information has been provided to tenants and employees.
(Ord. No. 20,854, § 4, 3-4-14)

Sec. 28-60. Frequency of collection service.

The recycling program at each multifamily residence shall ensure that each living unit has access to a sufficient container or containers suitable for the collection of recyclables as defined in this article. The type and frequency of collection service, and the type, number and size of recyclable containers, shall be determined based on the disposal needs of the particular multifamily residence location. Collection shall be frequent enough so as to prevent the containers from overflowing. A contract with a licensed private service provider, or copies of receipts from a facility duly licensed for the disposal of recyclables, shall be evidence the recyclables are being col-

lected in accordance with this section. Such documentation shall be presented by the licensed service providers, no less than annually, to the city's sustainability officer.
(Ord. No. 20,854, § 5, 3-4-14)

Sec. 28-61. Location and maintenance of containers.

(a) Recycling, including containers, shall not be placed in a location that obstructs pedestrian or vehicular traffic patterns within the development.

(b) Recycling containers shall be well-maintained by the service provider and the containers provided shall be visually distinct and identified for the deposit of recyclables so as to differentiate recycling containers from trash containers.

(c) Recycling containers shall be located within close proximity of trash collection containers or collection points and provide continuous access for tenants and facility maintenance personnel. Multifamily housing staff may request a modification from the City of Little Rock's Public Works Department on the location of exterior containers by requesting a waiver in writing on a form provided by the city so long as the placement or servicing issue meets one (1) of the following conditions:

(1) Site plan limitations, obstructions, physical layout or topography.

(2) Violation of one (1) or more other city codes.

(3) Vehicle parking space limitations.

(4) Vehicle access limitation.
(Ord. No. 20,854, §§ 6—8, 3-4-14)

Sec. 28-62. Recyclable collection services report.

Each licensed private service provider providing recyclable collection services to multifamily residences within the city shall report, on a form provided by the city, the total number of living units served for such multifamily residences and the total number of tons of recyclable materials collected. reports from such collection shall be provided to the city on a quarterly basis.
(Ord. No. 20,854, § 9, 3-4-14)

Sec. 28-63. Right to visit and inspect.

The City of Little Rock has the right to visit and inspect the premises to evaluate whether an ordinance violation has occurred or to investigate a complaint.
(Ord. No. 20,854, § 10, 3-4-14)

Sec. 28-64. Service provider delivery.

Each licensed service provider shall deliver all residential recyclables to facilities in accordance with existing laws and city ordinances.
(Ord. No. 20,854, § 11, 3-4-14)

Sec. 28-65. Penalty provisions.

Failure to comply with any of the requirements of sections 28-58—28-62 shall be subject to the penalty provisions as set forth in section 1-9 of the Little Rock City Code of Ordinances.
(Ord. No. 20,854, § 12, 3-4-14)

Sec. 28-66. Compliance.

(a) All multifamily housing, regardless of the number of dwelling units, is encouraged to comply with the provisions of this article as soon as is practical from and after its passage.

(b) Notwithstanding the provisions of subsection (a) of this section, all multifamily housing consisting of one hundred (100) units or more shall have until January 1, 2015, to come into compliance with the provisions of this article. Following successful implementation, it is the intention of the City of Little Rock to expand the provisions of this article to additional multifamily housing. The public works department may grant a modification of the compliance date required in this section upon a showing of good cause.
(Ord. No. 20,854, § 13, 3-4-14)

Secs. 28-67—28-90. Reserved.

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Chapter 29

STORMWATER MANAGEMENT AND DRAINAGE*

Art. I. **In General, §§ 29-1—29-35**

Art. II. **Stormwater Management and Drainage System, §§ 29-36—29-60**

Art. III. **Stormwater Management and Drainage Plans, §§ 29-61—29-85**

Art. IV. **Design Criteria and Performance Standards, §§ 29-86—29-145**

Div. 1. Generally, §§ 29-86—29-95

Div. 2. Design Criteria, §§ 29-96—29-125

Div. 3. Performance Standards, §§ 29-126—29-145

Art. V. **Bonds, Maintenance Assurances and Drainage Approvals, §§ 29-146—29-165**

Art. VI. **Land Alteration Regulations, §§ 29-166—29-197**

Div. 1. Generally, §§ 29-166—29-185

Div. 2. Grading Permit and Grading and Drainage Plan, §§ 29-186—29-197

Art. VII. **Industrial Stormwater Discharge Monitoring Program, §§ 29-198—29-214**

*__Cross references—__Buildings and building regulations, Ch. 8; landscaping and tree protection, Ch. 15; fills for storm sewers, drains, etc., § 30-166; subdivisions, Ch. 31; zoning, Ch. 36.

__State law reference—__Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

ARTICLE I. IN GENERAL

Sec. 29-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Agriculture means all farm enterprises such as crop land, forage production, animal husbandry, dairy and poultry, and floriculture.

Base flood means the flood profile used as the basis for the National Flood Insurance Program ("NFIP") regulations. The federal government has selected the one (1) percent chance flood as the base flood.

Bond means any form of security for the completion or performance of the stormwater management and drainage plan or the maintenance of drainage improvements, including surety bond, collateral, property or instrument of credit, or escrow deposit in an amount and form satisfactory to the department of planning and development.

Building means any structure built for the support, shelter or enclosure of persons, animals, chattels or movable property of any kind.

Channel means a course of perceptible extent which periodically or continuously contains moving water, or which forms a connected link between two (2) bodies of water, and which has a definite bed and banks.

Clear cutting means removing of substantially all merchantable standing trees.

Clearing means the act of cutting, harvesting, removing from the ground, burning, damaging or destroying trees, stumps, hedge, brush, roots, logs, or scalping existing vegetation.

Conduit means any open or closed device for conveying flowing water.

Control means the hydraulic characteristic which determines the stage-discharge relationship in a conduit. The control is usually critical depth, tailwater depth, or uniform depth.

Detention means the temporary detaining or storage of floodwater in reservoirs, on parking lots, on rooftops and other areas under predetermined and controlled conditions accompanied by controlled release of the stored water.

Detention basins means any manmade area which serves as a means of controlling and temporarily storing stormwater runoff. The facility normally drains completely between spaced runoff events, e.g., parking lots, rooftops, athletic fields, dry wells, oversized storm drain pipes.

Detention pond means a stormwater detention facility which maintains a fixed minimum water elevation between runoff events except for the lowering resulting from losses of water due to infiltration or evaporation.

Developer means a person engaged in land alteration activities which are not excluded by section 29-187.

Development means any change of land use or improvement on any parcel of land.

Differential runoff means the volume and rate of flow of stormwater runoff discharged from a parcel of land or drainage area which is or will be greater than the volume and rate which pertained prior to proposed development or redevelopment existed.

Drainage approval means approval given by the department of planning and development in coordination with appropriate departments, based upon an approved final stormwater management and drainage plan. The final stormwater management and drainage plan must accompany the building permit application or be submitted with the proposed construction plans.

Drainage easement means authorization by a property owner for use by another party for all or any portion of his land for a drainage and adjoining utility purposes.

Engineer of record means a registered professional engineer in the state who shall supervise the design and construction of the project.

Erosion means the wearing away of land by action of wind, water or gravity.

Floodplain means any land area susceptible to inundation by floodwaters from any source. For the purposes of this Code, floodplain refers to the land area susceptible to being inundated by the base flood.

Floodway means the channel of a river or other watercourse and the adjacent land areas that must be reserved in order to discharge the base flood without a cumulative increase of the water surface elevation more than a designated height.

Forestry operation means an operation conducted on land owned or leased by a major forestry industry corporation for the systematic harvest of timber.

Freeboard means a factor of safety expressed as the difference in elevation between the top of the detention basin dam, levees, culvert entrances and other hydraulic structures, and the design flow elevation.

Frequency means the reciprocal of the exceedance probability.

Grading and drainage plan means the plan required before a grading permit can be issued.

Grading permit means the permit issued for grading, clearing, harvesting, filling, excavating, quarrying, tunneling, trenching, construction, or similar activities in the city.

Habitable dwelling unit means a dwelling unit intended and suitable for human habitation.

Imminent construction means the installation of a foundation or erection of a structure within six (6) months following land-alteration activities or as approved by the department of planning and development in coordination with appropriate departments.

Land alteration means the process of grading, clearing, filling, excavating, quarrying, tunneling, trenching, construction or similar activities.

Major storm easement means a privately maintained area designed to carry the one-hundred-year storm with no obstructions allowed such as fill or fences that would impede floodwater flow. Properly designed landscaping that does not impede floodwater or endanger adjacent property may be allowed.

Minor storm easement means a publicly maintained area designed to carry the twenty-five-year (or fifty-year for a central business district (CBD) area) storm, provide access for maintenance and prevent channel obstructions.

Mulching means the application of plant or other suitable materials on a soil surface to conserve moisture, reduce erosion, and aid in establishing plant cover.

Off-stream detention means temporary storage accomplished off-line, i.e., not within a principal drainage system.

One-hundred-year peak flow means the peak rate of flow of water at a given point in a channel, watercourse or conduit resulting from the base flood.

One-hundred-year storm means a rainstorm of a specified duration having a one (1) percent chance of occurrence in a given year.

On-site detention means temporary storage of runoff on the same land development site where the runoff is generated.

On-stream detention means temporary storage of runoff within a principal drainage system, i.e., in the receiving streams or conduits.

Permittee means a person to whom a permit is granted.

Plat means a legally recorded plat of a parcel of land subdivided into lots with streets, alleys, easements and other land lines drawn to scale.

Project means any development involving the construction, reconstruction or improvement of structures and/or grounds.

Rational method means an empirical formula for calculating peak rates of runoff resulting from rainfall.

Responsible party means any person or entity having control of the property subject to this chapter.

Retention facility means any type of detention facility not provided with a positive outlet.

Sediment means rock, sand, gravel, silt, clay or other material deposited by action of wind, water or gravity.

Sedimentation basin means the storage area created by a barrier or dam built across a waterway or at other suitable locations to retain rock, sand, gravel, silt, clay or other material.

Stormwater management and drainage manual or *drainage manual* means the set of drainage policies, analysis methods, design charts, stormwater runoff methods, and design standards used by the city as the official design guidelines for drainage improvements consistent with this chapter.

Stormwater runoff means water that results from precipitation which is not absorbed by the soil, evaporated into the atmosphere or entrapped by ground surface depressions and vegetation, which flows over the ground surface.

Structure means any object constructed above or belowground. Pipes, manholes and certain other utility structures which exist underground may be excluded from this definition.

Swale means a shallow waterway.

Time of concentration means the estimated time in minutes required for runoff to flow from the most remote section of the drainage area to the point at which the flow is to be determined.

Tributary area means all of the area that contributes stormwater runoff to a given point.

Undisturbed perimeter strip means a perimeter or boundary strip around land areas which have been cleared, cut or filled, which is required to remain in a natural state, including topography, trees and vegetation. Enhancements such as additional landscaping or other treatments may be used if approved by the department of planning and development.

Uniform channel means a channel with a constant cross section and roughness.

Watercourse means any surface stream, creek, brook, branch, depression, reservoir, lake, pond or drainageway in or into which stormwater runoff flows.

Wet bottom basin means a detention basin intended to have a permanent pool.

(Code 1961, § 35A-6; Ord. No. 15,243, § 1(5A-14), 2-17-87; Ord. No. 15,833, § 1, 4-3-90; Ord. No. 18,361, § 1, 9-26-00; Ord. No. 19,353, § 1, 7-19-05; Ord. No. 21,867, § 1, 5-19-20)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 29-2. Penalty.

Any person convicted of a violation of any of the provisions of this chapter shall be punished as provided in section 1-9.

Sec. 29-3. Purpose.

In order to promote the public health, safety and general welfare of the citizens of the city, the provisions of this chapter are intended to:

(1) Reduce property damage and human suffering.

(2) Minimize the hazards of personal injury and loss of life due to flooding, to be accomplished through the approval of a stormwater management and drainage plan that:

a. Establish the major and minor stormwater management systems.

b. Define and establish stormwater management practices and use restrictions.

c. Establish guidelines for handling increases in volume and peak discharges of runoff.

(Code 1961, § 35A-5)

Sec. 29-4. Interpretation and conflict.

(a) In their interpretation and application, the provisions of this chapter shall be held to be the minimum requirements for the promotion of the public health, safety and general welfare.

(b) This chapter is not intended to interfere with, abrogate, or annul any other ordinance, rule or regulation, statute or other provision of law. Where any provision of this chapter imposes restrictions different from those imposed by any other provision of this chapter or any other ordinance, rule or regulation, or other provision of law, whichever provisions are more restrictive or impose higher standards shall control.

(c) This chapter is not intended to abrogate any easement, covenant or any other private agreement or restriction; provided, that where the provisions of this chapter are more restrictive or impose higher standards than such easement, covenant or other private agreement or restriction, the requirements of this chapter shall govern. Where the provisions of the easement, covenant or private agreement or restriction imposed duties and obligations more restrictive, or higher standards than the requirements of this chapter, and such private provisions are inconsistent with this chapter or determinations thereunder, then such private provisions shall be operative and supplemental to this chapter and determinations made under this chapter.
(Code 1961, § 35A-7)

Sec. 29-5. Amendments.

For the purpose of providing for the public health, safety and general welfare, the board of directors may amend the provisions of this chapter. The planning and development department, in coordination with the public works department, has the responsibility for updating on a continuing basis the drainage manual.
(Code 1961, § 35A-9; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-6. Appeals.

Any person aggrieved by a decision of the department of planning and development may appeal any order, requirement, decision or determination to the planning commission. Should a person be aggrieved by the decision of the planning commission, he may appeal to a court of competent jurisdiction in accordance with law.
(Code 1961, § 35A-10; Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-7. Disclaimer of liability.

The performance standards and design criteria set forth in this chapter and in the drainage manual establish minimum requirements which must be implemented with good engineering practice and workmanship. Use of the requirements contained herein shall not constitute a representation, guarantee or warranty of any kind by the city, or its officers and employees, of the adequacy or safety of any stormwater management structure or use of the land. The approval of the stormwater management and drainage plan does not imply that the land uses permitted will be free from damages caused by stormwater runoff. The degree of protection required by this chapter is considered reasonable for regulatory purposes and is based on historical records, engineering and scientific methods of study. Larger storms may occur or stormwater runoff heights may be increased by manmade or natural causes. This chapter, therefore, shall not create liability on the part of the city or any officer or employee with respect to any legislative or administrative decision lawfully made hereunder.
(Code 1961, § 35A-11)

Sec. 29-8. Enforcement generally.

(a) It shall be the duty of the department of planning and development to bring to the attention of the city attorney any violation or lack of compliance herewith.

(b) The department of planning and development, in coordination with appropriate departments, shall be responsible for determining whether the stormwater management and drainage plan is in conformance with the requirements specified in the stormwater management and drainage manual. The department of planning and development shall be responsible for determining whether the development plan is proceeding in accordance with the approved drainage plan. Periodic inspection of the development site shall be made by the department of planning

and development to ensure that the stormwater management and drainage plan is properly implemented and that the improvements are maintained.
(Code 1961, §§ 35A-23, 35A-24; Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-9. Remedial work.

If it is determined through inspection that the development is not proceeding in accordance with the approved stormwater management and drainage plan, and drainage and/or building permit, the department of planning and development shall issue written notice to the permittee and the surety of the nature and location of the alleged noncompliance, accompanied by documentary evidence demonstrating noncompliance and specifying what remedial work is necessary to bring the project into compliance. The permittee so notified shall immediately, unless weather conditions or other factors beyond the control of the permittee prevent immediate remedial action, commence the recommended remedial action and shall complete the remedial work within a reasonable time as determined in advance by the department of planning and development. Upon satisfactory completion of remedial work, the department of planning and development shall issue a notice of compliance and the development may proceed.
(Code 1961, § 35A-25; Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-10. Revocation of permits or approvals; stop orders.

The department of planning and development, in coordination with appropriate departments, after giving seven (7) days' written notice may revoke the permit issued for any project or portion thereof which is found upon inspection to be in violation of the provisions of this chapter, and for which the permittee has not agreed to undertake remedial work as provided in section 29-9. Drainage permits may also be revoked if remedial work is not completed within the time allowed. Upon revocation of a permit or approval, the department of planning and development shall issue a stop work order. Such stop work order shall be directed to the permittee and he shall immediately notify persons owning the land, the developer and those persons actually performing the physical work of clearing, grading and developing the land. The stop work order shall direct the parties involved to cease and desist all or any portion of the work on the development or a portion thereof which is not in compliance, except such remedial work necessary to bring the project into compliance.
(Code 1961, § 35A-26; Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-11. Modifications to stormwater management and drainage manual.

Any modifications to the stormwater management and drainage manual will be made by the department of planning and development. All modifications will be coordinated with the public works department. Modifications must be consistent with stated policies and the intent of this chapter.
(Code 1961, § 35A-6; Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Secs. 29-12—29-35. Reserved.

ARTICLE II. STORMWATER MANAGEMENT AND DRAINAGE SYSTEM

Sec. 29-36. Generally.

This article establishes the stormwater runoff management system of the city which shall be composed of a major system and a minor system, management controls and management practices. This article shall apply in the minor system.
(Code 1961, § 35A-40)

Sec. 29-37. Major system.

The major system is the area in any drainageway within the limits of flow of a one-hundred-year storm.
(Code 1961, § 35A-41)

Sec. 29-38. Minor system.

The minor system shall be composed of all watercourses and drainage structures, both public and private, that are not part of the major system, because of lower design storm frequencies.
(Code 1961, § 35A-42)

Sec. 29-39. Management controls.

Management controls are requirements applicable to the major system under the provisions of this chapter. Such controls shall limit any activity which adversely affect hydraulic function of open channels, drainage swales, detention facilities or enclosed stormwater conveyance systems. The drainage manual shall be the official document used for designing stormwater management controls and drainage systems.
(Code 1961, § 35A-43)

Sec. 29-40. Management practices.

The following practices may be used on approval by the department of planning and development.

(1) *Storage.* Runoff may be stored in temporary or permanent detention basins, or through rooftop, parking lot ponding, or percolation storage, or by other means in accordance with the design criteria and performance standards set forth in this chapter.

(2) *Open channels.* Maximum feasible use shall be made of existing drainageways, open channels and drainage swales that are designed and coordinated with the design of building lots and streets in accordance with the design criteria and performance standards set forth in the drainage manual.

(3) *Curbs.* Streets, curbs and gutters shall be an integral part of the stormwater runoff management system. To the maximum extent possible, drainage systems, street layout and grades, plotting patterns and the location of curbs, inlets and site drainage and overflow swales shall be concurrently designed in accordance with design criteria and performance standards set forth in the drainage manual.

(4) *Enclosed conveyance systems.* Enclosed conveyance systems consisting of inlets, conduits and manholes may be used to convey stormwater runoff. Where used, such systems must be designed and performance standards set forth in the drainage manual.

(5) *Other practices.* The stormwater runoff management practices enumerated herein shall not constitute an exclusive listing of available management practices. Other generally accepted practices and methods may be approved by the department of planning and development, if the purposes, design criteria and minimum performance standards of this chapter are complied with.

(Code 1961, § 35A-44; Ord. No. 17,697, § 1a, b, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-41. Public responsibilities.

Administration of this chapter shall be the responsibility of the department of planning and development, which shall review the stormwater management plans to determine the approval, disapproval or modification of these plans as provided herein. The public works department shall be responsible after construction for the operation and maintenance of all drainage structures and improved courses which are part of the stormwater runoff management system under public ownership and which are not constructed and maintained by or under the jurisdiction of any state or federal agency.
(Code 1961, § 35A-45(a); Ord. No. 15,988, § 4, 12-18-90; Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-42. Private responsibilities.

(a) Each developer of land within the city has a responsibility to provide on the developer's property all approved stormwater runoff management facilities to ensure the adequate drainage

and control of stormwater on the developer's property both during and after construction of such facilities.

(b) Each developer or owner has a responsibility and duty before and after construction to properly operate and maintain any on-site stormwater runoff control facility which has not been accepted for maintenance by the public. Such responsibility is to be transmitted to subsequent owners through appropriate covenants.
(Code 1961, § 35A-45(b))

Sec. 29-43. Unpermitted discharges of dry and wet weather overflows from sanitary sewers into the city's municipal separate storm sewer system.

The operator of the Little Rock Water Reclamation Authority shall eliminate unpermitted discharges of dry and wet weather overflows from sanitary sewers into the city's municipal separate storm sewer system.
(Ord. No. 19,497, § 1, 3-7-06; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-44. Infiltration from sanitary sewers into the city's municipal separate storm sewer system

The operator of the Little Rock Water Reclamation Authority shall limit the infiltration from sanitary sewers into the city's municipal separate storm sewer system.
(Ord. No. 19,497, § 2, 3-7-06; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-45. Discharge of nonstormwater to the city's municipal separate storm sewer system.

(a) Except as provided in paragraph (b) below, it shall be unlawful to discharge nonstormwater to the city's municipal separate storm sewer system.

(b) Unless identified by the city, the U.S. Environmental Protection Agency, or the state as significant sources of pollutants to waters of the state, it shall not be unlawful to discharge the following nonstormwater into the city's municipal separate storm sewer system:

(1) Water line flushing;

(2) Landscape irrigation;

(3) Diverted stream flows;

(4) Rising ground waters;

(5) Uncontaminated ground water infiltration [as defined at 40 CFR 35.2005(20)] to separate storm sewers;

(6) Uncontaminated pumped ground water;

(7) Discharges from potable water sources;

(8) Foundation drains;

(9) Air conditioning condensate;

(10) Irrigation water;

(11) Springs;

(12) Water from crawl space pumps;

(13) Footing drains;

(14) Lawn watering;

(15) Individual residential car washing;

(16) Flows from riparian habitats and wetlands;

(17) Dechlorinated swimming pool discharges;

(18) Street wash waters; and

(19) Discharges or flows from emergency firefighting activities.

(Ord. No. 19,497, § 3, 3-7-06)

Sec. 29-46. Discharge of used motor vehicle fluids and household hazardous wastes into the city's municipal separate storm sewer system.

It shall be unlawful to discharge used motor vehicle fluids and household hazardous wastes into the city's municipal separate storm sewer system.
(Ord. No. 19,497, § 1, 3-7-06)

Secs. 29-47—29-60. Reserved.

ARTICLE III. STORMWATER MANAGEMENT AND DRAINAGE PLANS

Sec. 29-61. Generally.

(a) Any person proposing to construct buildings or develop land within the city's planning jurisdiction shall submit drainage plans to the department of planning and development for approval of a stormwater management and drainage plan before building permits are issued or subdivisions are approved. No land shall be developed except upon approval by the department of planning and development, in coordination with appropriate departments.

Cross reference—Planning area, § 23-2.

(b) All construction subdivision approvals or remodeling activities shall have a stormwater management and drainage plan approved before a building permit is issued or subdivision is approved except for the following:

(1) One (1) new or existing single-family structure.

(2) One (1) new or existing duplex family structure.

(3) One (1) new commercial or industrial structure located on less than a one-acre individual lot.

(4) One (1) existing commercial or industrial structure where additional structural improvements are less than five hundred (500) square feet.

(Code 1961, §§ 35A-3, 35A-4; Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-62. Preparation.

The stormwater management and drainage plan shall be prepared by the engineer of record. No building permits or subdivision approvals shall be issued until and unless the stormwater management and drainage plan has been approved by the department of planning and development.

(Code 1961, § 35A-55; Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Editor's note—Ord. No. 21,867, § 1, adopted May 19, 2020, changed the title of § 29-62 from preparation and approval to preparation.

Sec. 29-63. Pre-preliminary drainage plan review.

A pre-preliminary drainage plan review with staff is suggested before preliminary platting for the purpose of overall general drainage concept review.

(Code 1961, § 35A-56; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-64. Review of preliminary stormwater and drainage plan.

A preliminary stormwater and drainage plan, and accompanying information, shall be submitted at the time of preliminary plat submittal. If needed, a review meeting will be scheduled by the department of planning and development with representatives of the developer, including the engineer of record, to review the overall concepts included in the preliminary stormwater and drainage plan. The purpose of this review shall be to jointly agree upon an overall stormwater management concept for the proposed development and to review criteria and design parameters which shall apply to final design of the project.

(Code 1961, § 35A-57; Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-65. Final stormwater management and drainage plan.

Following the preliminary stormwater management and drainage plan review, the final stormwater management and drainage plan shall be prepared for each phase of the proposed project as each phase is developed. The final plan shall constitute a refinement of the concepts approved in the preliminary stormwater and drainage plan with preparation and submittal of detailed information as required in the drainage manual. This plan shall be submitted at the time construction drawings are submitted for approval. No final plat is to be approved until the drainage structures approved on the construction plans are in place and approved by the department of planning and development.

(Code 1961, § 35A-58; Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-66. Review and approval of final stormwater management and drainage plans.

(a) Final stormwater management and drainage plan shall be reviewed by department of planning and development. If it is determined according to present engineering practice that the proposed development will provide control of stormwater runoff in accordance with the purposes, design criteria, and performance standards of this chapter and will not be detrimental to the public health, safety and general welfare, the department of planning and development shall approve the plan or conditionally approve the plan, setting forth the conditions thereof.

(b) If it is determined that the proposed development will not control stormwater runoff in accordance with this chapter, the department of planning and development shall disapprove the final stormwater management and drainage plan.

(c) If disapproved, the application and data shall be returned to the applicant for resubmittal.

(d) Time frames for filing, review and approval of stormwater management and drainage plans shall coincide with time periods applicable in chapter 31.
(Code 1961, § 35A-59; Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Secs. 29-67—29-85. Reserved.

ARTICLE IV. DESIGN CRITERIA AND PERFORMANCE STANDARDS

DIVISION 1. GENERALLY

Secs. 29-86—29-95. Reserved.

DIVISION 2. DESIGN CRITERIA

Sec. 29-96. Generally.

The drainage manual shall be the accepted design document. Unless otherwise provided, the provisions of this division shall govern the design and improvements with respect to managing stormwater runoff.
(Code 1961, § 35A-70)

Sec. 29-97. Method of determining stormwater runoff.

(a) Methods for determining stormwater runoff shall be those designated by the latest City of Little Rock Stormwater Management and Drainage Manual.

(b) All such development proposals shall be prepared by a professional engineer licensed in the state.
(Code 1961, § 35A-70(a); Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-98. Development design.

Streets, lots, depths of lots, parks, and other public grounds shall be located and laid out in such a manner as to minimize the velocity of overland flow, allow maximum opportunity for infiltration of stormwater to the ground, and to preserve and utilize existing and planned streams, channels, extension basins, and include, wherever possible, streams and floodplains within parks and other public grounds.
(Code 1961, § 35A-70(b))

Sec. 29-99. Detention.

Developments also shall include temporary detention of stormwater runoff in order to minimize downstream flooding conditions. The following design criteria shall govern the design of temporary drainage facilities:

(1) *Storage volume.* The volume of storage provided in the detention basin shall be sufficient to control the differential runoff from the twenty-five-year storm frequency of six-hour duration. The differential runoff is the volume and rate of flow of stormwater runoff discharged from a parcel of land or drainage area which is or will be greater than the volume and rate which pertained prior to proposed development for redevelopment.

(2) *Freeboard.* Detention storage areas shall have adequate capacity to contain the storage volume of tributary stormwater runoff with at least six (6) inches of freeboard above the water surface of flow and the emergency spillway in a twenty-five-year storm. The entire structure should be designed for discharging the major storm.

(3) *Outlet control works.* Outlet works shall be designed to limit peak out-flow rates from detention storage areas to or below peak flow rates for a twenty-five-year storm that would have occurred prior to the proposed development. Outlet works shall not include any mechanical components or devices and shall function without requiring attendance or control during operation. Size and hydraulic characteristics shall be such that all water and detention storage is released to the downstream storm sewer systems within twenty-four (24) hours after the end of the design rainfall. Normal time for discharge ranges from three (3) to twenty-four (24) hours.

(4) *Spillway.* Emergency spillways shall be provided to permit the safe passage of runoff generated from a one-hundred-year storm or greater, if appropriate because of downstream high hazard, such as loss of life or damage to high-value property.

(5) *Design data submittal.* In addition to complete plans, all design data shall be submitted as required in the detention design data submittal section of the drainage manual.

(6) *Detention methods.* Depending upon the detention alternatives selected by the engineer of record, the design criteria for detention ponds shall follow those given in the drainage manual.

(Code 1961, § 35A-70(e))

Sec. 29-100. Reductions in coefficient of runoff.

If an existing site with an existing coefficient of runoff of 1.0 (totally impervious) is developed, no on-site detention or in-lieu fee for detention is required. Also, if an existing site is developed whereby the coefficient of runoff is reduced to a lesser value, no on-site detention or in-lieu fee is required.

(Code 1961, § 35A-70(f))

Sec. 29-101. Enclosed systems and open channels.

Enclosed systems and open channels shall be designed using the design drainage manual.

(Code 1961, § 35A-70(c))

Sec. 29-102. Evaluation of downstream flooding.

The engineer of record should evaluate whether the proposed plan will cause or increase downstream flooding conditions. This evaluation should be made on the basis of existing downstream development and an analysis of stormwater runoff with and without the proposed development. When it is determined that the proposed development will cause or increase downstream flooding conditions, provisions to minimize such flooding conditions should be included in the design of storm management improvements. Such provisions may include downstream improvements and/or detention of stormwater runoff and its regulated discharge to the downstream storm drainage system.

(Code 1961, § 35A-70(d))

Sec. 29-103. Alternatives to on-site detention.

Alternatives to on-site detention are as follows:

(1) *Generally.* Where on-site detention is deemed inappropriate due to local topographical or other physical conditions, alternate methods for accommodating increases in stormwater runoff shall be permitted. The methods may include:

a. Off-site detention or comparable improvements.

b. In-lieu monetary contributions for channel improvements or off-site detention improvements by the city

within the same watershed. Channel improvements shall only be used if they are an integral part of a detailed watershed study.

(2) *In-lieu contributions to regional or subregional detention.* An owner may contribute to the construction of a regional or subregional detention site constructed or to be constructed in lieu of constructing on-site detention. However, no in-lieu contributions are allowed when existing flooding occurs downstream from the development, or if the development will cause downstream flooding.

(3) *In-lieu fees.* The in-lieu fee contribution shall be based upon an amount of ten thousand dollars ($10,000.00) per acre-foot of stormwater storage.

(4) *Excess stormwater storage credit.* An owner may receive credit for excess stormwater storage (in acre-feet) created on one (1) site that may be applied to another site within the same watershed. The transfer of storage volume credit (in acre-feet) shall not be allowed if the site where credited storage is proposed to be transferred has an existing flooding condition downstream or the proposed development will produce downstream flooding.

(5) *Regional or subregional detention sites.* The acquisition of regional or subregional detention sites and construction of facilities thereon will be financed by the city. Monies contributed by the owners as above provided shall be used for regional and subregional detention site studies, land acquisition and facility construction thereof in the watershed in which the development is located.

(6) *Watershed boundaries.* The boundaries of watersheds and priority of acquisition of regional and sub-regional detention sites in construction of detention facilities and location thereof shall be established by the department of planning and development and approved by the planning commission.

(Code 1961, § 35A-70(g); Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Secs. 29-104—29-125. Reserved.

DIVISION 3. PERFORMANCE STANDARDS

Sec. 29-126. Stormwater channel location.

Generally acceptable locations of stormwater runoff channels in the design of a subdivision may include, but not be limited to, the following:

(1) In a depressed median of a double roadway, street or parkway provided the median is wide enough to permit maximum three (3) to one (1) side slopes.

(2) Along the roadway, street or parkway.

(3) Located along lot lines or entirely within the rear yards of a single row of lots or parcels.

(4) In each of the foregoing cases, a drainage easement to facilitate maintenance and design flow shall be provided and shown on the plat. Drainage easement required dimensions are shown in the drainage manual and shall conform to the dimensions given. No structures shall be constructed within or across stormwater channels without the approval of the public works department.

Sec. 29-127. Easements.

(a) Drainage easements required to facilitate maintenance, detention and conveyance of stormwater shall be provided and shown on the preliminary and final plat. There are two (2) types of easements that are to be determined by the engineer of record and shown on the preliminary final plat. These are:

(1) *Minor storm easements.* Easements designed to carry the minor storm (twenty-five-year design frequency). The minor storm easements are primarily for carrying flow from the twenty-five-year storm, maintenance access, utility locations and are to be kept clear of any obstructions.

(2) *Major storm easements.* Privately maintained easements designed to carry the major storm (one hundred-year design frequency). The major storm easements

shall be kept free of obstructions, such as fill or fences that would impede the flow of the one hundred-year design storm. Properly designed landscaping that does not impede the flow of floodwater or endanger adjacent property is acceptable.

(b) Drainage easements shall be dedicated to the city when required through the development review and approval process.
(Code 1961, §§ 35A-6, 35A-71(b); Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-128. Storm sewer outfall.

The storm sewer outfall shall be designed so as to provide adequate protection against downstream erosion and scouring.
(Code 1961, § 35A-71(c))

Sec. 29-129. Lot lines.

Whenever the plans call for the passage and/or storage of floodwater, surface runoff or stormwater along lot lines involving the major storm system, grading of all such lots shall be prescribed and established for the passage and/or storage of waters. No structure may be erected which will obstruct the flow of stormwater, no fences, shrubbery, or trees planted, or changes made to the prescribed grades and contours of the specified floodwater or stormwater runoff channels.
(Code 1961, § 35A-71(d))

Sec. 29-130. Manholes.

All sanitary sewer manholes constructed in a floodplain or in an area designed for the storage or passage of flood or stormwater shall be provided with either a watertight manhole cover or be constructed with a rim elevation of a minimum one (1) foot above the high water elevation of the base flood, whichever is applicable to the specific area.
(Code 1961, § 35A-71(e))

Sec. 29-131. Floor elevations.

The floor elevation of any occupied residence or commercial building shall be a minimum of twelve (12) inches above the land immediately surrounding the building. The minimum floor elevation for a structure located on the uphill side of a street shall be at or above the crown of the adjacent street.
(Code 1961, § 35A-71(f))

Secs. 29-132—29-145. Reserved.

ARTICLE V. BONDS, MAINTENANCE ASSURANCES AND DRAINAGE APPROVALS

Sec. 29-146. Maintenance agreement.

(a) A maintenance agreement, assuring perpetual maintenance of stormwater management improvements shall be agreed upon by the city and the applicant.

(b) Maintenance of detention ponds (wet type) shall be the responsibility of the owner of record and/or the property owners' association.

(c) Maintenance of detention basins (dry type) shall be the responsibility of the owner of record and/or property owners' association. The city shall have the primary right to remove sediment when the basin's function is impaired. The owner of record and/or property owners' association shall be responsible for all other maintenance, plantings, reseeding or resodding. The owner shall also be responsible for removing and replacing any landscaping, playground equipment or other facilities within the basin.
(Code 1961, § 35A-80; Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-147. Maintenance bond.

A one-year maintenance bond against defects in workmanship shall be required for any portion of the stormwater management improvements dedicated to the public.
(Code 1961, § 35A-81; Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-148. Drainage permits and/or approvals.

Upon approval of the final stormwater management and drainage plan, and acceptance and the applicant's assurances of performance and

maintenance as provided in this chapter, the department of planning and development, in coordination with appropriate departments, shall approve the plan. Project approval shall be issued in the name of the applicant who shall then be known and thereafter be referred to as the permittee. An approved permit shall set forth the terms and conditions of the approved stormwater management and drainage plan.
(Code 1961, § 35A-82; Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-149. Engineer of record.

Should the original engineer of record be prevented from completing the project, the permittee shall employ another qualified engineer and notify the department of planning and development immediately.
(Code 1961, § 35A-83; Ord. No. 17,697, § 1a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Secs. 29-150—29-165. Reserved.

ARTICLE VI. LAND ALTERATION REGULATIONS*

DIVISION 1. GENERALLY

Sec. 29-166. Penalty.

Any person convicted of a violation of any of the provisions of this chapter shall be punished as provided in section 1-9.
(Ord. No. 19,353, § 2, 7-19-05)

Sec. 29-167. Findings.

The city has experienced development activity causing the displacement of large amounts of earth and tree cover. Significant problems resulting from such development include flooding, soil erosion and sedimentation, unstable slopes, and impaired quality of life. These problems are a concern because of their negative effects on the safety and general welfare of the community.
(Ord. No. 19,353, § 2, 7-19-05)

Sec. 29-168. Purpose.

The purposes of this chapter are to:

(1) Prohibit the indiscriminate clearing of property.

(2) Prevent excessive grading, clearing, filling, cutting or similar activities.

(3) Substantially reduce flooding, erosion and sediment damage within the city.

(5) Safeguard the safety and welfare of citizens.

(6) Establish reasonable standards and procedures for development which prevent potential flooding, erosion and sediment damage.

(7) Prevent the pollution of streams, ponds and other watercourses by sediment.

(8) Minimize the danger of flood loss and property loss due to unstable slopes.

(9) Preserve natural vegetation which enhances the quality of life of the community.

(10) To conceal hillside scars.

(11) To preserve the contours of the natural landscape and land forms.

(Ord. No. 19,353, § 2, 7-19-05)

Sec. 29-169. General requirements.

Persons engaged in land alteration activities regulated by this chapter shall take measures to protect neighboring public and private properties from damage by such activities. The requirements of this chapter, however, are not intended to prevent the reasonable use of properties as permitted by chapter 36 of this Code.
(Ord. No. 19,353, § 2, 7-19-05)

*__Editor's note—__Ord. No. 19,353, § 2, adopted July 19, 2005, amended Art. VI in its entirety and enacted similar provisions as set out herein. The former Art. VI derived from Ord. No. 18,361, § 2, adopted Sept. 26, 2000.

__State law reference—__Buffers and screening, § 36-520 et seq.

Sec. 29-170. Violation, enforcement and penalties.

(a) Violations of any provisions of this chapter shall be punishable as provided in section 1-9 of this Code, except that the continuing violation provisions of subsection 1-9(c) shall not apply unless:

(1) An approved plan for correction of the violation(s) has not been implemented by the responsible party within the time specified in the plan, or

(2) The responsible party fails to submit a required plan within the time specified.

(b) The responsible party shall be liable for all fines levied and remedial action required under this chapter. Each tree removed or improperly preserved or any other activity proscribed by this chapter shall be a separate violation. Each violation shall be considered a separate offense.

(c) Any person who engages in land alteration activities regulated by this chapter without obtaining a grading permit shall be required to restore the land to the maximum extent practicable to its original condition in accordance with section 29-196.

(d) When a violation of this chapter is determined to exist, the city official shall issue written notice of violation to the responsible party. The notice shall specify those sections of this chapter which are determined to be violated and shall include the time and conditions under which the violation(s) shall be corrected. If it is determined that the restoration is not feasible due to imminent construction, (1) a citation may be issued and fines may be levied; (2) the site shall be graded to obtain positive drainage; and (3) the site shall be stabilized with vegetation and the addition of erosion controls. If the responsible party has been issued either a notice of violation or stop work order within the previous twelve-month period, the notice may require the violation(s) to be corrected within twenty-four (24) hours.

(e) The responsible party shall have a maximum of ten (10) calendar days from the date of the written notice to appeal the finding of the violation(s) to the planning commission as provided in section 29-172.

(f) If the responsible party fails to comply with the written notice of violation the city official may issue a stop-work order and citation, as provided in section 29-10 and revoke all permits including the grading permit, building permit, and certificate of occupancy. Additionally, when the city official determines that trees to be protected are in the process of being removed or damaged or other emergencies exist, a stop work order to immediately cease and desist may be issued.

(g) The permit applicant shall have on the project site at all times an agent who is a competent superintendent capable of reading and thoroughly understanding the plans, specifications and requirements for areas of tree protection for the type of work being performed. The superintendent shall have full authority to issue orders or direction to employees working on site, without delay and to promptly supply such materials, labor, equipment, tools, and incidentals as may be required to complete the work in a proper manner. If no superintendent is on site, the city official may issue the notice of violation and stop work order to the person conducting the violation.

(h) Removal of trees with a diameter of six (6) inches or greater measured four and one-half (4.5) feet above the ground that have been removed without a grading permit or trees required in an approved plan that have been removed or which die shall be considered a violation.

(i) If a land alteration activity causes damage to off-site property or water, the responsible party shall be required to mitigate the damage and install such additional erosion controls, as approved by the city official, to prevent further damage.

(j) Damage to private or public property due to hauling operations or operation of construction related equipment from a nearby construc-

tion site shall be repaired by the responsible party prior to issuance of a certificate of occupancy. (Ord. No. 19,353, § 2, 7-19-05)

Sec. 29-171. Conflicts.

Where provisions of this chapter conflict with any other ordinance, regulation, or resolution of the city, the most stringent provision shall be enforced. The provisions of this chapter are considered minimum requirements.
(Ord. No. 19,353, § 2, 7-19-05)

Sec. 29-172. Hearing before planning commission.

Appeals of a notice of violation as provided for in subsection 29-170(e), a grading and drainage plan decision, or a restoration plan requirement as provided in section 29-196 shall be heard by the planning commission provided an appeal is filed by the applicant within ten (10) calendar days after the date of the notice of violation, administrative fee(s) are paid and proper public notice is given. Any hearing before the planning commission regarding such appeal will be conducted in the following manner:

(a) The appellant shall submit an application and fee as provided in section 29-193 to the department of planning and development within the time limits provided for in subsection 29-170(e). The appellant shall provide:

(1) A cover letter that clearly sets forth the provisions of the article that are being appealed; and

(2) A copy of all pertinent graphic materials or correspondence.

Appealable issues are as follows:

1. For a notice of violation, appealable issues are the determination that a violation has occurred, the time frame for correcting the violation, and the corrective action to be required.

2. For a grading and drainage plan decision, appealable issues are the denial of a grading permit and the terms of a grading permit.

3. For a restoration plan, appealable issues are any requirements of section 29-196.

(b) Certified mail notice of all appeals shall be given by the applicant to adjacent property owners, including those across a street or alley from the subject property, at least ten (10) days prior to the planning commission meeting at which the appeal is to be considered. At least three (3) business days prior to the hearing, the appellant shall provide proof of notice to the director of the planning and development department. Failure to provide the required notice will cause the appeal to the planning commission to be dismissed, although minor irregularities in the giving of notice may be waived by the commission.

(c) At the conclusion of questioning and statements, the chairman will call the appeal to a vote as follows:

1. For an appeal of the finding of a violation, either to affirm or overturn the finding of violation; upon affirmation of a finding of violation, a citation may be issued to the appellant;

2. For an appeal of the time to correct the violation, either to affirm the time or determine a new time;

3. For an appeal of the corrective action, either to affirm, determine a new corrective action, or decide that a corrective action is not feasible. A finding that a corrective action is not feasible or appellant's refusal to comply with the commission's decision may result in a citation being issued to the appellant.

4. For an appeal of a grading and drainage plan decision, either affirm or overturn the decision to deny a grading permit, either affirm the permit term or establish a new permit term.

5. For an appeal of a restoration plan or plan provision, either to affirm,

determine a new provision or provisions, or decide that restoration is not feasible. A citation may be issued after finding that restoration is not feasible or upon appellant's refusal to fully comply with the restoration measures required by the planning commission.

(d) Decisions by the commission shall be final and are not appealable to the city board of directors.

(Ord. No. 19,353, § 2, 7-19-05; Ord. No. 21,867, § 1, 5-19-20)

Secs. 29-173—29-185. Reserved.

DIVISION 2. GRADING PERMIT AND GRADING AND DRAINAGE PLAN

Sec. 29-186. Grading permit required.

(a) Any person proposing to engage in clearing, filling, cutting, harvesting, quarrying, construction or similar activities regulated by this chapter shall apply for a Grading Permit by means of a grading permit application obtained from the city as specified in this chapter. The city shall review the submitted documentation within ten (10) working days. Grading permits shall not be issued while applications are incomplete. A landscape permit as required in chapter 15 shall be obtained from the city before constructing or expanding a vehicular use area. Additionally, a permit is required when expanding or rehabilitating a building and landscaping is required under this chapter. Except as otherwise provided in chapter 15, the responsible party shall not allow the removal of more than seven (7) trees within any given twelve-month period without first obtaining a grading permit. No land shall be altered or cleared to the extent regulated in this chapter unless approved by a permit.

(b) No land alteration shall be permitted until all necessary city approval of all plans and permits, except building permit, have been issued and construction is imminent. Clearing and grading for streets and drainage improvements may be done on residential subdivisions provided the preliminary plat has been approved. In those cases where filling or cutting in areas with seven (7) or fewer trees is to be done, the area is to be graded suitable for mowing and shall be revegetated within twenty-one (21) calendar days of grading completion. If building construction has not commenced and been diligently pursued within six (6) months of grading permit issuance or as approved by appropriate city officials, then all disturbed areas must be restored in accordance per the approved landscape plan. Landscaping and tree requirements in the buffers shall be installed, unless the city official determines that the existing buffers on the site meet the landscape planting requirements of chapter 15 and zoning requirements of chapter 36 of this Code.

(c) A grading permit is required for land alteration activities specified in this section. All construction work shall include appropriate drainage and erosion control measures to protect neighboring properties. All land alteration on properties within the designated floodplain requires a grading permit without exception.

(d) Grading permits, which may be obtained as part of a building permit, shall be required for any of the following activities:

(1) A top of hill or hillside cuts or fills greater than ten (10) feet vertical.

(2) Any construction activity where the total volume of cut or fill is equal to or greater than one thousand (1,000) cubic yards.

(3) Clearing or cutting of trees on property in the city except for:

i. Those districts zoned agriculture and forestry (AF);

ii Mining (M); and

iii. Properties abutting on a collector street of two (2) acres or less zoned single- or two-family districts R1, R2, R3, R4, or R7A, and residentially zoned properties of five (5) acres or less fronting on a residential street.

(e) Prior to issuance of a grading permit, a grading and drainage plan shall be submitted to and approved by the city for activities specified in subsections (d)(1), (2) and (3).

(f) When the application is for a planned zoning district, conditional use permit or subdivision, a sketch grading and drainage plan shall be required in the application to the planning commission only if any of the activities specified in subsection (d) are involved.

(g) Utility organizations may obtain a one-time approval from the city for all routine tree trimming and installation, maintenance, replacement and repair of fence and sign posts, telephone poles and other kinds of posts or poles and overhead or underground electric, water, sewer, natural gas, telephone or cable facilities. The approval will include a utility organization and its contractors, agents or assigns and will be permanent in nature as long as the original approved procedures are followed. However, large-scale utility projects involving clearing of areas over twenty-five (25) feet in width shall not be authorized by one-time approval of all projects. In such cases, a separate grading permit must be obtained for each project.

(h) One-time approval may be obtained by public or private entities for the stockpiling of construction spoil material and concrete and asphalt rubble at particular locations for a limited time period, not to exceed six (6) months. Grading and replanting of grassed areas and trees is required upon removal of stockpile.
(Ord. No. 19,353, § 2, 7-19-05; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-187. Exemptions and variances.

(a) A grading permit shall not be required for:

(1) Construction on properties in the city. All properties two (2) acres or less zoned single- or two-family districts, R1, R2, R3, R4 or R7A, and residentially zoned property five (5) acres or less fronting on a residential street. All grading and erosion control requirements for these properties will fall under the building permit.

(2) Emergency work or repairs to protect health, safety and welfare of the public. Removal of damaged or diseased trees will be permitted by staff upon certification by the appropriate city official of the condition of the trees sought to be removed; and

(3) Mining and mining operations because these activities are covered by the Arkansas Open Cut Land Reclamation Act [A.C.A. § 15-57-301, et seq., as amended], which is regulated by the state department of environmental quality.

These exemptions from obtaining a permit do not relieve the property owner and/or applicant from taking measures to protect neighboring public and private properties from damage by exempted activities. If a land alteration activity causes damage to off-site property or water, the responsible party shall mitigate the damage and install such additional erosion controls, as approved by the appropriate city official, to prevent further damage.

(b) The planning commission may grant variances from the standards set forth in this article provided that a variance request is filed by the applicant, fee(s) are paid, and proper public notice is given. The applicant shall submit a variance request application and fee as provided in section 29-193 to the director of the department of planning and development. As part of the application, the applicant shall provide:

(1) A cover letter that clearly sets forth the provisions of the code from which a variance is requested and

(2) A copy of all pertinent graphic materials or correspondence.

(c) Certified-mail notice of all variance requests shall be given by the applicant to adjacent property owners, including those across a street or alley from the subject property, at least ten (10) days prior to the planning commission meeting at which the variance is to be considered. At least three (3) business days prior to the hearing, the applicant shall provide proof of proper notice to the director of public works. Failure to provide the required notice will cause the variance request to the planning commission to be dismissed, although minor irregularities in the giving of notice may be waived by the commission.

(d) Appeals from the variance decision of the planning commission shall be filed with the appropriate court of jurisdiction within thirty (30) calendar days of the decision of the planning commission.

(e) Variances may be granted, to the extent that the change will not be contrary to the purposes set forth in section 29-168:

(1) To clear and grade a multi-lot or multi-phase development where construction is not imminent on all phases of the development;

(2) To harvest timber on land not otherwise allowed under this section in accordance with a reasonable staff approved forestry management plan which is determined to be reasonable and prepared by a registered forester or certified arborist using best management practice guidelines for silviculture in urban areas, that complies with the purposes and requirements of this article; however, clear cutting or total harvests shall not be allowed;

(3) To exceed the cut, fill, and slope requirements of section 29-190;

(4) From the restoration requirements of section 29-196;

(5) To clear and grade property where building construction is not imminent provided that the clearing and grading is performed in accordance with the provisions of section 29-197.

(f) The planning commission may impose conditions on the approval of variances. Where variances are granted, applicants shall otherwise comply with all other provisions of the ordinance including, but not limited to, obtaining a grading permit prior to construction or tree removal, meeting the standards for grading, drainage, tree removal, maintaining buffer zones, erosion controls, and establishing of vegetative cover following grading activities.
(Ord. No. 19,353, § 2, 7-19-05; Ord. No. 20,588, § 1, 6-5-12; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-188. Contents of grading and drainage plans.

(a) The sketch grading and drainage plan shall identify the following:

(1) Acreage of the proposed project.

(2) Land areas to be disturbed.

(3) Stages of grading showing the limits of sections to be graded and indicating the approximate order of development.

(4) The height and slope of cuts and fills. Cross sections may be required every fifty (50) feet on property where the depth of excavation or fill exceeds ten (10) feet, showing original and final grades and will include visual aids to show how the final development, including planting, and landscaping will look.

(5) Provisions for collecting and discharging surface water.

(6) Erosion and sediment measures, including structural and vegetative measures for permanent slopes and bank stability.

(7) Seal and signature of a registered engineer, architect, or landscape architect, qualified under state regulations to certify that the sketch grading and drainage plan complies with this chapter. However, plans for less than two (2) acres, or residentially zoned areas less than five (5) acres, where cuts or fills are not greater than ten (10) feet in height or where only tree clearing activities are to be undertaken, may be prepared by a contractor or the property owner upon city approval.

(b) A final grading and drainage plan shall include the following information prior to issuance of grading and special flood hazard development permits:

(1) Seal of a registered engineer, architect or landscape architect qualified under state regulations to certify that the grading and drainage plan complies with this chapter.

(2) A vicinity drawing showing location of property lines, location and names of all existing or platted streets or other public ways within or immediately adjacent to the tract.

(3) Location of all known existing sewers, water mains, culverts and underground utilities within the tract and immediately adjacent thereto; location of existing permanent buildings on or immediately adjacent to the site if right of entry can be obtained to locate the utilities.

(4) Identification of rights-of-way or easements affecting the property.

(5) Soil-loss calculations as contained in the stormwater management and drainage manual.

(6) A plan of the site at a minimum scale of one (1) inch equals one hundred (100) feet.

(7) Such other information required by city officials, including, but not limited to:

a. Address and telephone number of owner, permit applicant and the designated agent responsible for maintenance of erosion and sediment control measures.

b. The approximate location and width of existing and proposed streets.

c. The locations and dimensions of all proposed or existing lots.

d. The locations and dimensions of all parcels of land proposed to be set aside for parks, playgrounds, natural condition perimeters, public use, or for the use of property owners in the proposed development.

e. Existing and proposed topography at a maximum of five-foot contour intervals for steep terrain; two-foot contour intervals for ten (10) percent or less grade terrain.

f. An approximate timing schedule, indicating the anticipated starting and completion dates of the development; a timing schedule for the sequence of grading and application of erosion and sediment control measures.

g. Acreage of the proposed project.

h. Identification of unusual material or soils in land areas to be disturbed. If any surface indications of unusual materials or soils that would cause street or lot instability, such as nonvertical tree growth, old slides, seepage, or depressions in the soil are visible before grading, they should be noted and accompanied by the engineer's, architect's, landscape architect's, or contractor's recommendation for correcting such problem areas.

i. Identification of suitable material to be used for fills shall be accomplished before actual filling begins. If there are any surface indications that local material is not suitable for fills, those areas to be filled with outside material should be identified and the type and source of the fill noted.

j. Specification of measures to control runoff, erosion and sedimentation during the process of construction, noting those areas where control of runoff will be required during construction and indicating what will be used, such as straw bales, sediment basins, silt dams, brush check dams, lateral hillside ditches, catch basins, etc.

k. Measures to protect neighboring built-up areas and city property during process of construction, noting work to be performed, such as cleaning existing ditches, storm culverts and catch basins or raising existing curbs in neighboring areas.

l. Provisions to stabilize soils and slopes after completion of streets, sewers and other improvements, noting on the grading plan when and where groundcover will be

planted, also noting any other means to be used such as placement of reinforced turf, staked sod, stone embankments, and riprap or construction of retaining walls.

(8) The grading and drainage plan shall include areas of tree protection, erosion and sediment control provisions meeting standards established by the city in the stormwater management and drainage manual. Tree lines and individual trees may be required to be shown.

(Ord. No. 19,353, § 2, 7-19-05; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-189. Issuance procedure.

(a) The following procedure shall be implemented for the issuance of a grading permit:

(1) The city official shall approve, disapprove or recommend modification of the grading and drainage plan in writing within ten (10) working days after the date of the submittal of a completed application.

(2) Applications for which planning commission approval is required shall be placed on the next available planning commission agenda following city staff review. Sketch grading and drainage plans shall be reviewed by the city and a report prepared by the time of the applicable subdivision subcommittee meeting, if possible, but not later than the applicable planning commission meeting.

(3) Except for residential subdivision work, the approval of a sketch grading and drainage plan shall not eliminate the need to submit and have approved a final grading and drainage plan prior to issuance of a building permit or the initiation of land alteration activities.

(4) For residential subdivision work, only a sketch grading and drainage plan shall be required, and clearing and grading work may proceed upon approval of the preliminary plat and issuance of a grading permit. The sketch plan for residential subdivisions shall indicate how runoff, erosion, and sedimentation will be controlled.

(b) Upon approval of the final plan, the city shall issue a grading permit contingent upon the approval of other governing agencies as applicable. A superintendent capable of understanding the plans and with authority to issue orders to employees performing the land alteration shall properly supervise the land alteration activities.

(c) The city official may issue a stop work order if, upon inspection, it is determined that the work is not progressing in accordance with the approved plan.

(d) Groups of trees and individual trees that are not to be removed or that can be preserved with reasonable effort in site design or are located within required undisturbed buffer areas shall be protected during construction by protective fencing. The buffer and any preservation areas shall not be used for material storage or for any other purpose. The fencing shall be placed and maintained by the owner until all exterior construction except landscaping has been completed. Individual trees or groups of trees to be preserved outside the buffer area shall be fenced at no less than seventy-five (75) percent of the area within the drip line of the critical root zone and shall be flagged with bright orange vinyl tape wrapped around the main trunk at a height of four (4) feet or more such that the tape is clearly visible to workers on foot or operating equipment.

(e) The city official may allow minor modifications of the plan to alleviate particular problems during the process of construction. In reviewing a request for modifications, the city official may require from the applicant's engineer, architect, or landscape architect appropriate reports and data sufficient to make a decision on the request.

(f) Substantial changes to plans as determined by the appropriate city official in sketch or final form shall only be permitted by the planning commission.

(Ord. No. 19,353, § 2, 7-19-05; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-190. Grading and drainage plan requirements.

Preparation of grading and drainage plans shall follow the stormwater management and drainage manual and shall be designed on the basis of the following considerations:

(1) A maximum of thirty (30) vertical feet of fill or excavation (such as three (3), ten-foot vertical terraces or two (2), fifteen-foot vertical terraces) is permitted; however, additional development areas may be constructed a minimum of one hundred fifty (150) feet in width and at a slope of no more than eight (8) percent. The maximum of thirty (30) feet of fill or excavation may again be utilized.

a. The depth of fill or excavation shall be measured from the finish grade elevation to the original ground line elevation.

b. If a terrace is in a straight line more than two hundred (200) feet, a breakup of the terrace is required for each two hundred (200) feet. The break can be achieved by means of a curved section, jog, or visual aesthetic as approved by staff.

c. For excavations or fills constructed with slopes flatter than 3:1 (three horizontal to one vertical), terraces are not required nor is there a limit on the height of cut or fill. Planting requirements on these 3:1 slopes shall be the same as required for terraces and shall be spaced uniformly over the slope.

d. Cuts or fills shall be limited to ten (10) feet in height or to fifteen (15) feet if architectural stone is included to protect the vertical face. A series of smaller cuts or fills with terraces, preserving portions of natural vegetation and providing areas for planting, shall be used in situations where more than ten (10) feet of cut or fill is needed.

e. Terracing width shall be at a ratio of at least one (1) foot of horizontal terrace for every one (1) foot of vertical height, up to a maximum of ten (10) feet. Terraces shall be landscaped with dense evergreen plantings sufficient to screen the cut or fill slope. The terrace may be sloped to drain up to one (1) foot in ten (10) feet of width.

f. If the slope of the cut or fill is faced with an architectural stone wall, the terrace plantings are to consist of a minimum of two (2) rows of trees four (4) feet between the rows, staggered not more than twenty (20) feet on centers or as approved by the appropriate city official.

g. Shrubs and groundcover shall be required in accordance with chapter 15 of this Code.

h. Slopes steeper than 3:1 may be allowed for street improvements in the right-of-way due to rock outcropping or extreme slope intercepts if approved by the appropriate city official.

(2) Development shall be planned to fit topography, soils, geology, hydrology, and other existing site conditions.

(3) Provisions shall be made for safety against unstable slopes or slopes subject to erosion and deterioration. The city official may require certified geotechnical analysis for sliding and global stability safety. New cuts and fills forming channel banks may require permanent provisions for erosion control upon determination by the city official.

(4) Grading shall complement natural landforms.

(5) After grading, all paving, seeding, sodding, or mulching shall be performed in accordance with a reasonable schedule approved by the city official.

(6) Open areas not planned for immediate use shall be seeded or sodded. Soil which

is exposed for more than twenty-one (21) days with no construction activity shall be seeded, mulched or revegetated in accordance with this Code.

(7) Areas not well suited to development, as evidenced by existing competent soils, geology, hydrology investigations and reports, should be allocated to open space and recreational uses.

(8) The potential for soil loss shall be minimized by retaining natural vegetation wherever possible.

(9) Appropriate provisions such as those in the stormwater management and drainage manual shall be used to accommodate stormwater runoff and soil loss occasioned by changed soil and surface conditions during and after development, including the use of vegetation and limitations on soil exposure. If staff determines upon visual inspection that excessive silt from the construction has migrated on- or off-site, additional measures to reduce erosion may be required.

(10) Permanent improvements such as streets, storm sewers, curb and gutters, and other features for control of storm runoff shall be scheduled as soon as economically and physically feasible before removing vegetation cover from the area, so that large areas are not left bare and exposed for long periods of time beyond the capacity of temporary control measures.

(11) A temporary or permanent sediment basin, debris basin, desilting basin or silt trap shall be installed and maintained to substantially reduce sediment from water runoff upon determination by the city official. The volume of the sediment basin shall be three thousand six hundred (3,600) cubic feet per acre for property with average slope steeper than five (5) percent, or one thousand eight hundred (1,800) cubic feet per acre for property with an average slope five (5) percent or flatter. A properly sized sediment basin is required for each separate drainage area within the property being developed.

(12) Construction access shall be limited to locations as approved by the city official. Construction access points shall be paved in uniformly graded stone without fines for a minimum length of twenty (20) percent of the lot depth or fifty (50) feet, whichever is greater, up to a maximum of one hundred (100) feet to prevent tracking onto the city street.

(13) Appropriate provisions such as the addition of water or dust retardants shall be utilized to prevent excessive particulate matter from becoming airborne.

(14) A perimeter buffer strip shall be temporarily maintained around disturbed areas for erosion control purposes and shall be kept undisturbed except for reasonable access for maintenance. The width of the strip shall be six (6) percent of the lot width and depth. The minimum width shall be twenty-five (25) feet and the maximum shall be forty (40) feet. In no event shall these temporary strips be less than the width of the permanent buffers required for the development.

(15) A minimum strip twenty-five (25) feet wide, undisturbed except for reasonable access, shall be provided along each side of streams having a ten-year storm of greater than one hundred fifty (150) cubic feet per second. The twenty-five-foot strip shall be measured from the top of the bank. An exception to this requirement is allowed where the only work being done on the site is public street construction.

(16) Care shall be exercised to minimize the risk of damage from or to pedestrian and vehicular traffic in the vicinity of a cut or fill by placement of handrails, guardrails, fencing or landscaping.

(17) Additional landscape treatment shall be provided in accordance with chapter 15 of this Code.

(Ord. No. 19,353, § 2, 7-19-05; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-191. Unified plan and permit.

One (1) plan may be submitted incorporating all provisions for compliance with the applicable city zoning, landscaping, drainage detention, grading, clearing, filling, cutting, quarrying, and construction requirements.
(Ord. No. 19,353, § 2, 7-19-05)

Sec. 29-192. Reserved.

Sec. 29-193. Fees.

A fee for each grading permit shall be paid to the city as follows:

Total Project Area	*Fee*
Less than ½ acre	$100.00
½ to 1 acre	$200.00
Greater than 1 acre	$200.00 for first acre, $100.00 for each additional acre.

Fees for each grading permit will double if the grading permit is issued after a notice of violation(s) has been issued for violation(s) of the land alteration regulations that have occurred on the subject property.

A fee for each appeal and variance shall be paid to the city as follows:

Flat fee	$50.00 plus $5.00 per acre of the total project area

(Ord. No. 19,353, § 2, 7-19-05; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-194. Inspection and compliance.

(a) The department of planning and development shall be responsible for determining whether construction is proceeding according to the approved grading and drainage plan.

(b) City officials shall perform inspections of the development site. In applying for a grading permit, the applicant shall be deemed to have consented to such inspections.

(c) The city official, through such periodic inspections, shall ensure that all erosion control measures are implemented within one (1) week after cessation or completion of all or portions of authorized work. The city official may where necessary, order remedial work or issue a stop work order in accordance with this chapter.
(Ord. No. 19,353, § 2, 7-19-05; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-195. Reserved.

Sec. 29-196. Land restoration requirements.

All land restoration corrective action activities resulting from land alteration violations shall comply with following conditions:

(1) Submit site restoration and erosion control plans to department of planning and development. Prior to any restoration work, a release of affected departments will be obtained.

(2) All restoration work must be begin within ten (10) calendar days of plans approval and conclude within thirty (30) calendar days of commencement unless otherwise provided by the approved plan or other uncontrollable conditions.

(3) Prior to commencing restoration activities, erosion controls such as silt fence, hay bales, and rock check dams shall be installed and shall remain in place until restoration activities are complete.

(4) Return all ground surface contours to those in existence prior to land alteration violation while maintaining positive drainage. All slopes must be 3:1 or flatter. Terraces are prohibited.

(5) All spoil materials and debris including tree debris must be removed from the property.

(6) Replant one (1) tree for every seven hundred fifty (750) square feet of the area of violation, as determined by the city official, with an average linear spacing of not less than thirty (30) feet with at least two-inch caliper nursery- or farm-grown trees of the same species as those cleared, harvested, removed or damaged. Planting specifications shall be provided on the plan including soil preparation,

staking and other necessary measures to ensure trees thrive. If the city official determines the current season of the year is not conducive to sustaining life for trees, the time compliance with these provisions may be extended for not more than one hundred eighty (180) days.

(7) Establish a permanent vegetative cover of perennial grasses with the addition of fertilizer mixes conducive to site conditions.

(8) For one (1) year, restored trees shall be watered once per month and additionally every ten (10) calendar days during the months of June, July, August, and September.

(9) Final inspection and approval is required following completion of required restoration activities. All incomplete items or additional work identified during the final inspection must be completed within seven (7) calendar days following the final inspection.

(10) All restoration work is to be guaranteed by the responsible party in the form of cash, surety bond or letter of credit as referenced in subsection 31-431(2) for two (2) years following its installation and approval by the department of planning and development.

(11) All permits and approvals must be obtained from all federal, state, and local agencies prior to commencing work.

(12) All restoration work shall be required as stated above unless approved otherwise by the city official.

(Ord. No. 19,353, § 2, 7-19-05; Ord. No. 21,867, § 1, 5-19-20)

Sec. 29-197. Advanced grading plan requirements.

(a) All advanced grading projects shall be performed under plans approved in conformance with the requirements of this section or as approved by the commission.

(b) Once clearing and grading operations commence, the work described in the plan shall be expeditiously completed in the time frame set forth in the plan unless specifically limited by the grading permit and shall not exceed one (1) year in duration from the time work commences to installation of all final erosion control measures and vegetation.

(c) A survey, grading and drainage plan, storm water detention basin design and line of sight illustrations from adjacent streets and properties must be provided to the planning commission for review.

(d) Plans shall provide for visual screening of the completed area by providing undisturbed perimeter buffer strips and earthen berms. In cases where maintenance of an undisturbed buffer is deemed not practical to provide screening, earthen berms, tree plantings or other suitable measures may be required.

(e) Undisturbed areas designated for temporary buffers shall be kept undisturbed except for reasonable access to the site. The width of the temporary buffer strip shall be six (6) percent of the lot width and depth. The minimum width shall be fifty (50) feet where the subject property is adjacent to other properties, residential streets, collector streets and industrial streets. The minimum width shall be eighty (80) feet where the subject property is adjacent to city parks, and arterial streets. In no event shall these temporary strips be less than the width of the permanent buffers required for the development. The minimum required width shall not exceed one hundred (100) feet.

(f) All buffers required in conjunction with an advanced grading project shall be considered temporary and shall be maintained until the property is developed.

(g) Construction access points through the perimeter buffer zones shall be limited in number and constructed to the minimum width needed to facilitate access. A curved or angled road design should be provided to limit the visibility of the interior grading work from adjacent streets.

(h) If the property has seven (7) or fewer trees per acre, screening of the site with berms, undisturbed buffer zones, and tree plantings may be omitted if a suitable vegetative soil cover is provided.

(i) Stormwater detention must be constructed on-site in accordance with chapter 29, article IV. Design criteria and performance standards and maintained following the completion of grading activities.

(j) At the completion of land alteration activities, a minimum of six (6) inches of suitable topsoil shall be placed over all disturbed areas and permanent vegetative cover shall be established. Topsoil shall be suitable clay or silt loam soil capable of supporting perennial vegetation. If on-site soil is suitable, the topsoil may be stripped from the site prior to grading, or suitable soil may be brought in from off-site.

(k) A permanent vegetative cover of suitable perennial grass shall be established over all disturbed areas. Where indicated by soil tests, ph adjustment and the addition of fertilizer may be required.

(l) All erosion and stabilization controls, including permanent vegetation and plantings, and stormwater detention systems, are to be maintained by the responsible party for a period of two (2) years following the completion of site grading. Periodic mowing, generally twice per year or more often if required by the City of Little Rock Code or Ordinances, shall be provided to encourage perennial grass growth.

(m) Maintenance for the two-year period shall be guaranteed through posting of cash, surety bond or letter of credit as referenced in subsection 31-431(2) at the time of final inspection of the grading activities.

(n) All required federal, state and local permits and approvals shall be obtained prior to commencement of land alteration activities.
(Ord. No. 20,588, § 1, 6-5-12)

ARTICLE VII. INDUSTRIAL STORMWATER DISCHARGE MONITORING PROGRAM

Sec. 29-198. Definitions.

The following words, terms, and phrases, when used in this article, shall have the meanings ascribed to them in this article, except where the context clearly indicates a different meaning.

Best management practices (BMPs) means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to prevent or reduce discharge of pollutants to waters of the United States. BMPs also include treatment requirements, operating procedures and practices to control facility site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw material storage. All industrial facilities and high-risk facilities are required to implement appropriate structural and nonstructural BMPs to prevent the discharge of pollutants to the municipal separate storm sewer system (MS4), at their own expense. BMPs described in the facility's permit shall be part of the industrial facility's storm water pollution prevention plan (SWPPP), unless the facility has adequate justification in their SWPPP explaining why the BMP does not apply to the facility's stormwater discharges.

City means the City of Little Rock, Arkansas.

Contiguous zone means the entire zone established by the United States under article 24 of the Convention of the Territorial Sea and the Contiguous Zone.

Control measure means any BMPs or other method(s) used to prevent or reduce the discharge of pollutants to the waters of the United States.

Discharge, when used without qualification, includes a discharge of a pollutant, or a discharge of pollutants. A discharge may occur by spilling, leaking, emitting, or any other process that enables the material to escape its container and enter the environment.

Discharge of a pollutant means:

(1) Any addition of any pollutant or combination of pollutants to waters of the United States from any point source, or

(2) Any addition of any pollutant or combination of pollutants to the waters of the contiguous zone or the ocean from any point source other than a vessel or other floating craft which is being used as a means of transportation.

This definition includes additions of pollutants into waters of the United States from: surface runoff which is collected or channeled by man; discharges through pipes, sewers, or other conveyances owned by a state, municipality, or other person which do not lead to a treatment works; and discharges through pipes, sewers, or other conveyances, leading into privately owned treatment works. This term does not include an addition of pollutants by any indirect discharger.

Director of public works means the duly appointed director of the public works department of the City of Little Rock or his or her designated representative.

Division of environmental quality (DEQ) means a branch of the Arkansas Department of Energy and Environment (ADEE).

Environmental Protection Agency or *EPA* means the United States Environmental Protection Agency or, where appropriate, the term may also be used as a designation for the administrator or other duly authorized official of the EPA.

Hazardous materials and *hazardous waste* mean any materials, waste, or combination of wastes of a solid, liquid, contained gaseous, or semisolid form which, because of its quantity, concentration, or physical, chemical, or infectious characteristics, may:

(1) Cause or significantly contribute to an increase in mortality or an increase in serious irreversible or incapacitating reversible illness; or

(2) Pose a substantial present or potential hazard to human health or the environment when improperly treated, stored, transported, or disposed of, or otherwise improperly managed.

Hazardous waste includes, but is not limited to, those which are radioactive, toxic, corrosive, flammable, irritants, or strong sensitizers, or those which generate pressure through decomposition, heat, or other means.

High-risk facility means a facility that uses or stores hazardous materials.

Illicit discharge means a discharge to an MS4 that is not composed entirely of stormwater. Exceptions for illicit discharges are set forth in section 29-45.

Indirect discharger means an industrial facility whose waste flows into a publicly owned treatment works (POTW).

Industrial materials or *industrial activities* includes but are not limited to: material handling equipment or activities; industrial machinery; raw materials; industrial production and processes; and intermediate products, by-products, final products, and waste products.

Industrial facility or *facility* means any entity which has obtained coverage under the industrial general stormwater discharge permit (IGP) or the industrial individual stormwater discharge permit.

Industrial general stormwater discharge permit (IGP) ARR000000 is a permit issued by DEQ that authorizes stormwater discharges associated with industrial activities that enter the waters of the United States or the MS4.

Individual industrial stormwater discharge permit means a stormwater discharge permit issued by DEQ which reflects the facility's unique permit conditions and limits.

Industrial waste means liquid waste from industrial manufacturing processes, trade, or business, as distinct from sanitary sewage.

Material handling activities includes the storage, loading and unloading, transportation, or conveyance of any raw material, intermediate product, final product or waste product.

Measurable storm event means a rainfall event with greater than 0.1 inch of rainfall and occurs at least seventy-two (72) hours (three (3) days) from the previous measurable (greater than 0.1 inch) rainfall event.

Municipal separate storm sewer system (MS4) means a conveyance or system of conveyances (including roads, streets, curbs and gutters, drainage systems, catch basins, ditches and any man-made channels or storm drains) owned or operated by a municipality, designed or used for collecting or conveying stormwater, which is neither a publicly owned treatment facility nor a combined sewer system.

MS4 permit means the permit issued by DEQ to the City of Little Rock and the Arkansas Department of Transportation for their stormwater discharges to the MS4 and the waters of the United States.

National pollution discharge elimination system (NPDES) permit means a permit issued by the EPA pursuant to section 402 of the Clean Water Act (33 U.S.C. section 1342). This includes the industrial general stormwater discharge permit (IGP) ARR000000 and the individual industrial stormwater discharge permit.

Notice of intent (NOI) means a document submitted to DEQ for industrial facilities that intend to seek coverage for stormwater discharges under either the industrial general stormwater discharge permit (IGP) or the individual industrial stormwater discharge permit.

Notice of coverage (NOC) means a document issued by DEQ that demonstrates IGP coverage. If the NOC has not been received by the facility within ten (10) business days after the date the NOI is deemed complete by DEQ, the NOI may be posted at the facility until the NOC is received.

No exposure means that all industrial materials and activities are protected by a stormresistant shelter to prevent exposure to rain, snow, snowmelt, and runoff.

Permit means the industrial general stormwater discharge permit (IGP) ARR000000 or the individual industrial stormwater discharge permit.

Person means any individual, partnership, co-partnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity, or any other legal entity, or their legal representatives, agents, or assigns. This definition includes all federal, state, and local governmental entities.

Point source means any discernible, confined, and discrete conveyance, including but not limited to, any pipe, ditch, channel, tunnel, conduit, well, discrete fissure, container, rolling stock, concentrated animal feeding operation, landfill leachate collection system, vessel or other floating craft from which pollutants are or may be discharged. This term does not include return flows from irrigated agriculture or agricultural storm water runoff.

Pollutant means dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt and industrial, municipal, and agricultural waste discharged into water.

Qualified personnel means those individuals who are knowledgeable in the principles and practices of industrial stormwater controls and pollution prevention and who possess the education and ability to assess conditions at the industrial facility that could impact stormwater quality, and the effectiveness of BMPs selected and installed to meet the requirements of the permit.

Standard industrial classification (SIC) code means a four-digit numerical code assigned by the U.S. government to categorize industries by their business activities.

Stormwater runoff is rain or snowmelt that flows over land and is not absorbed by the soil.

Stormwater discharge associated with industrial activity and stormwater discharge means the discharge from any conveyance which is used for collecting and conveying stormwater and which is directly related to manufacturing, processing or raw materials storage areas at an industrial facility. The term does not include discharges from facilities or activities excluded

from the NPDES program. For the categories of industries identified in subparagraphs (1) through (11) of this definition, the term includes, but is not limited to, stormwater discharges from industrial facility yards; immediate access roads and rail lines used or traveled by carriers of raw materials, manufactured products, waste material, or by-products used or created by the facility; material handling sites; refuse sites; sites used for the application or disposal of process waste waters (as defined at 40 C.F.R. 401); sites used for the storage and maintenance of material handling equipment; sites used for residual treatment, storage, or disposal; shipping and receiving areas; manufacturing buildings; storage areas (including tank farms) for raw materials, and intermediate and finished products; and areas where industrial activity has taken place in the past and significant materials remain and are exposed to stormwater. For the purposes of this paragraph, material handling activities include the storage, loading and unloading, transportation, or conveyance of any raw material, intermediate product, finished product, by-product, or waste product. The term excludes areas located on facility lands separate from the facility's industrial activities, such as office buildings and accompanying parking lots as long as the drainage from the excluded areas is not mixed with stormwater drained from the above-described regulated areas. Industrial facilities include those facilities designated under 40 C.F.R. 122.26 (a)(l)(v) [including industrial facilities that are federally, state, or municipally owned or operated that meet the description of the facilities listed in subparagraphs (1)—(11)].

The following categories of facilities are considered to be engaging in "industrial activity" for purposes of this definition:

(1) Facilities subject to stormwater effluent limitations guidelines, new source performance standards, or toxic pollutant effluent standards under 40 C.F.R. Subchapter N (except facilities with toxic pollutant effluent standards which are exempted under subparagraph (11) of this definition). The phrase toxic pollutant effluent standards refers to standards codified at 40 C.F.R. 129 which apply only to manufacturers of six (6) specific pesticide products that are defined as toxic pollutants. The phrase does not apply to facilities subject to effluent limitation guidelines for toxics under 40 C.F.R. Subchapter N;

(2) Facilities classified as standard industrial classifications 24 (except 2434), 26 (except 265 and 267), 28 (except 283), 29, 311, 32 (except 323), 33, 3441, 373;

(3) Facilities classified as standard industrial classifications 10 through 14 (mineral industry) including active or inactive mining operations [except for areas of coal mining operations that meet the definition of a reclamation area under 40 C.F.R. 434.11(1)] and oil and gas exploration, production, processing, or treatment operations, or transmission facilities that discharge stormwater contaminated by contact with or that has come into contact with, any overburden, raw material, intermediate products, finished products, by-products, or waste products located on the site of such operations. Inactive mining operations are mining sites that are not being actively mined, but which have an identifiable operator;

(4) Hazardous waste treatment, storage, or disposal facilities, including those that are operating under interim status or a permit under subtitle C of the Resource Conservation and Recovery Act (RCRA).

(5) Landfills, land application sites, and open dumps that have received any industrial wastes (waste that is received from any of the facilities described under this subsection) including those that are subject to subtitle D of RCRA;

(6) Facilities involved in the recycling of materials, including junkyards, battery reclaimers, salvage yards, and automobile junkyards, including but not limited to those classified as standard industrial classification 5015 and 5093;

(7) Steam electric power generating facilities, including coal handling sites;

(8) Transportation facilities classified as standard industrial classifications 40, 41, 42 (except 4221—4225), 43, 44, 45 and 5171 which have vehicle maintenance shops, equipment cleaning operations, or airport deicing operations. Only those portions of the facility that are either involved in vehicle maintenance (including vehicle rehabilitation, mechanical repairs, painting, fueling, and lubrication), equipment cleaning operations, airport deicing operations, or which are otherwise identified under subparagraphs (1)—(7), or (9)—(11) of this definition are associated with industrial activity;

(9) Treatment works that treat domestic sewage or any other sewage sludge or wastewater treatment device or system, used in the storage, treatment, recycling, and reclamation of municipal or domestic sewage, including land dedicated to the disposal of sewage sludge that are located within the confines of the facility, with a design flow of 1.0 MGD or more, or required to have an approved pretreatment program under 40 C.F.R. 403. Not included are farmlands, domestic gardens, or lands used for sludge management where sludge is beneficially reused and which are not physically located in the confines of the facility, or areas that are in compliance with 40 C.F.R. 405;

(10) Construction activity including clearing, grading and excavation, except operations that result in the disturbance of less than five (5) acres of total land area. Construction activity also includes the disturbance of less than five (5) acres of total land area that is a part of a larger common plan of development or sale if the larger common plan will ultimately disturb five (5) acres or more; and

(11) Facilities under standard industrial classifications 20, 21, 22, 23, 2434, 25, 265, 267, 27, 283, 285, 30, 31 (except 311), 323, 34 (except 3441), 35, 36, 37 (except 373), 38, 39, and 4221—4225.

Stormwater pollution prevention plan (SWPPP/SWP3) means a site-specific, written document, prepared by an industrial facility, and approved by DEQ, that identifies potential sources of stormwater pollutants and describes BMPs to reduce pollutants in stormwater discharges and eliminate water quality problems associated with stormwater discharges and daily runoff from the site. The SWPPP includes a site plan and identification of facility activities that could cause pollutants in stormwater and outlines preventative measures or practices to control pollutants in stormwater discharges, commonly known as BMPs. Reduction of pollutants is often achieved by controlling the volume of stormwater runoff (e.g., taking steps to allow stormwater to infiltrate into the soil). SWPPPs are a component of the permit.

Stormwater pollution prevention team means the person or group of persons responsible for the development, modification, and implementation of the facility's SWPPP. Each member of the stormwater pollution prevention team shall have ready access to either an electronic or paper copy of the applicable permit, the most updated copy of the SWPPP, and other relevant documents or information that must be kept with the SWPPP.

Waters of the United States or waters of the U.S. means the term as it is defined in 40 CFR 120.2.

(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-199. Purpose.

The purpose of the industrial stormwater discharge monitoring program is to verify and ensure that industrial facilities comply with permit requirements and the City of Little Rock Codes and Ordinances.

The department of public works is responsible for updating the procedures and practices of the industrial stormwater discharge monitoring program on a continuing basis to conform with the requirements of the city's MS4 permit.

(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-200. Applicability.

This article applies to all facilities located within the corporate city limits that have stormwater discharges associated with industrial activity.

Any facility subject to compliance with any state or federally issued industrial stormwater discharge permit shall comply with the issued permit conditions and requirements. Facilities with newly issued or modified permits shall provide a copy of such permit to the director of public works no more than thirty (30) days after issuance, and prior to any stormwater discharge to the MS4. Industrial facilities with an existing permit are required to furnish to the director of public works any information requested to determine permit compliance.
(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-201. Good housekeeping practices.

It shall be unlawful for any industrial facility to discharge pollutants from any commercial area to the MS4. Industrial facilities shall employ good housekeeping practices to prevent debris, including, but not limited to, cigarette butts, paper, bottles, cans, and plastic, from entering the MS4 from surrounding areas, which include parking lots, loading zones, sidewalks, trash cans and dumpster sites.
(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-202. Additional sampling.

The director of public works may require industrial facilities to perform additional sampling and monitoring as necessary to verify permit compliance. When the director of public works requires a sample from a possible illicit discharge or measurable storm event, samples shall be obtained in the manner required by the applicable permit(s) of the facility. The facility's sampling and monitoring equipment shall be maintained by the facility at its own expense and shall at all times be in safe and proper operating condition. It is prohibited for any person to interfere in any way with the proper sampling and monitoring operations of any equipment or device. To ensure accuracy, all devices used to measure stormwater flow and quality shall be calibrated by a certified technician. Calibration and maintenance records and monitoring data shall be made available to the director of public works upon request.
(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-203. Industrial illicit discharges.

The director of public works is authorized to investigate complaints of violations of this article, including but not limited to possible illicit discharges to the MS4 and possible violations of the city's MS4 permit. Sources of illicit discharges include, but are not limited to, discharges of sanitary wastewater, septic tank discharges, car wash wastewaters, improper oil disposals, radiator flushing disposals, laundry wastewaters, spills from roadway accidents and improper disposal of auto and household toxics. Exceptions from illicit discharges are set forth in section 29-45.

Any person aware of any discharge from an industrial facility of a substance which, if otherwise disposed of would be considered hazardous waste under this article or 40 C.F.R. 261 shall notify the director of public works, the EPA regional waste management division director, and DEQ within five (5) days in writing of the discharge. Such notification shall include the name of the hazardous waste, the EPA hazardous waste number, and the type of discharge (i.e., continuous, batch, or other). Notification shall not relieve the facility of any expense, loss, damage, or other liability which may be incurred as a result of damage to the natural resources, persons or property; nor shall such notification relieve the facility of any fines, civil penalties, or other liability which may be imposed. If the illicit discharges from the facility may cause imminent and substantial threat to human health or the environment, the facility shall immediately notify the director of public works in writing. This notification does not relieve the facility of its obligations to perform corrective actions.

Within five (5) business days of any illicit discharge, including any reportable release or spill, industrial facilities shall submit a detailed written report describing the cause of the discharge and the preventative measures taken by the facility relative to the discharge.
(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-204. No exposure exclusion.

An industrial facility may request a no exposure exclusion (NEE) under 40 C.F.R. § 122.26(g) by submitting a no exposure certificate (NEC) to

DEQ. The NEE conditions are met when all industrial materials and activities are protected by a storm resistant shelter to prevent exposure to rain, snow, snowmelt, and runoff and applies to the entire industrial facility. Facilities with an NEE are exempt from preparing a SWPPP.

Industrial facilities with an NEE shall submit a copy to the director of public works. Any facility operating under an NEE shall be subject to periodic facility inspections not less than once per the term of the city's MS4 permit.
(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-205. Notice of industrial facility inspection.

The city's MS4 permit requires that all industrial facilities, including NEE facilities, are subject to site inspections no less than once over the term of the city's MS4 permit to verify the facility's permit compliance. The director of public works will notify each industrial facility of routine facility inspections and will issue a document submittal request to the facility prior to the intended inspection date. A notice of inspection will be provided to the facility at least seven (7) calendar days prior to the scheduled inspection date.

In the event the director of public works reasonably believes that discharges from any facility may cause imminent and substantial threat to human health or the environment, the director has the right to inspect the facility without prior notice.
(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-206. Document submittal prior to industrial facility inspection.

Industrial facilities shall submit all requested documents and information within thirty (30) days of the date of the request, or as determined by the director of public works. All submittals shall be in a digital file format. New NOIs and recertification NOIs for IGP holders, permit applications and renewal packages for individual permit holders shall be submitted to the director of public works at the same time they are submitted to DEQ. Failure to submit documents, or incomplete or late submissions that delay site inspections, may result in a referral to DEQ.
(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-207. Right of entry.

As provided by the permit, the director of public works has the right to access any and all parts of the facility's premises as may be necessary for the purpose of inspecting, observing, measuring, sampling, testing and copying of records, as often as may be necessary, to determine the facility's permit compliance. The facility shall allow authorized personnel under the authority of the director of public works immediate entry to the facility for the purposes of this article.

Denial of access to a permitted facility is a violation of the facility's permit and of this article. If the director of public works reasonably believes there are unsafe or hazardous conditions within the facility, and has been denied entry to the facility, the director shall have the authority to call upon the Little Rock Police Department for aid and assistance in securing warrants for the right to enter and inspect such premises.
(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-208. Industrial facility inspection.

The director of public works has the right to perform inspections at any industrial facility or any other premises which is or may be the source of a stormwater discharge associated with industrial activity, or the source of a discharge from a high-risk facility, or the source of an illicit discharge, into the MS4. The director of public works has the authority to inspect, sample, photograph, videotape, examine and copy any and all records that are required to document permit compliance. The director of public works also has the right to request monitoring and sampling records from any facility.

When an industrial facility is notified of a site inspection, a representative from the facility's pollution prevention team shall meet with the director of public works, prior to and during the inspection. The director of public works will

document findings of the inspection in a summary of findings. The director of public works retains the right to visit an industrial facility as many times as deemed necessary to complete the inspection of the facility for permit compliance and to ensure permit violations are fully addressed.
(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-209. Summary of findings.

Whenever the director of public works conducts an inspection of an industrial facility, the findings of the inspection will be recorded. The summary of findings and a copy of the inspection report will be provided to the facility. The facility shall maintain the summary of findings and the inspection report in accordance with permit document retention policies.
(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-210. Corrective action plan.

Whenever the director of public works determines that a discharge of pollutant(s) to the MS4 has the potential to negatively impact water quality or public safety, the industrial facility responsible for the discharge is required to mitigate or terminate the discharge of such pollutants to the MS4. The director of public works has the authority to request corrective actions to remedy any acts determined to be non-compliant or in violation of the facility's permit, specific to the occurrence and violation.

The summary of findings may require the industrial facility to prepare, submit, and implement a corrective action plan (CAP) within a timeframe appropriate to the severity of any non-compliance issue(s) or stormwater discharge violation(s) found as a result of the inspection. The CAP shall be submitted to the director of public works within thirty (30) calendar days of the date of the summary of findings, unless otherwise stated.

The proposed actions listed in the CAP shall be measurable, timely, accountable, and divided into specific steps with details of implementation. The CAP shall include a schedule containing progress increments, or milestones, in the form of dates of completion of activities for phased corrective actions.

When there is an immediate threat to the public health, safety and welfare, the director of public works may require immediate corrective actions be implemented by the facility, followed by the submittal of a CAP to document corrective measures. The CAP shall also identify proposed changes that will prevent recurrence of permit violation(s).

The director of public works may request industrial facilities submit periodic compliance progress reports at least every thirty (30) calendar days while the facility is under the CAP. An industrial facility may also be required to submit periodic compliance progress reports and discharge monitoring reports when the inspection by the director of public works determines that water quality standards are not met; or effluent limitations have been exceeded, and long-term remedial action is required for mitigation. All periodic compliance progress reports shall be signed, dated and certified by a duly authorized representative of the facility.

The CAP shall be completed within six (6) months of the date of submission to the director of public works. Failure to timely complete the CAP may result in a referral to DEQ.
(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-211. Record retention.

Every industrial facility shall retain all records and information required to be submitted under this article and shall make such records available for inspection and copying. The facility shall retain such records according to the requirements contained in the permit.
(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-212. Enforcement.

It shall be unlawful for any person or facility to violate or fail to comply with any of the requirements of this article. Any person or facility who violates the provisions of this article may be referred to DEQ for enforcement action. Failure

to submit documents, or incomplete or late submissions that may delay site inspections, may also result in a referral to DEQ.
(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-213. Industrial stormwater discharge inspection fees.

To offset the administrative costs for the monitoring and inspection of industrial facilities and the costs to assure compliance with this article, the board of directors shall establish an appropriate fee schedule and may review and adjust such fees periodically to offset applicable costs.
(Ord. No. 22,544, § 1, 11-4-24)

Sec. 29-214. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.
(Ord. No. 22,544, § 1, 11-4-24)

Chapter 30

STREETS AND SIDEWALKS*

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*__Cross references—__Subdivisions, Ch. 31; traffic, Ch. 32; buffers and screening, 336-520 et seq.

__State law references—__Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.; general authority relative to streets and sidewalks, A.C.A. §§ 14-54-104, 14-54-601 et seq.

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ARTICLE I. IN GENERAL

Sec. 30-1. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 30-2. Review of plans.

All plans concerning engineering, construction or maintenance work within the public rights-of-way, except for emergencies, shall be submitted to the department of planning and development for review and review and approval by appropriate department. Work done as emergency work shall be reported to the department of planning and development and in matters of existing public easements or right-of-way, the public works department, no later than the first working day following the work.
(Code 1961, § 36-36(a); Ord. No. 15,988, § 4, 12-18-90; Ord. No. 21,867, § 1, 5-19-20)

Editor's note—Ord. No. 21,867, § 1, adopted May 19, 2020, changed the title of § 30-2 from department of public works to review plans to review of plans.

Sec. 30-3. Programming data and preliminary plans required prior to major construction project within the public rights-of-way.

A person who plans a major construction project or an extensive maintenance-replacement project which is located upon, in, under or above the public rights-of-way of an arterial or collector street, as defined by the most current master street plan, shall submit programming data and preliminary plans for the project to the department of planning and development for coordination and review with the public works department prior to beginning any work within the rights-of-way. Implementation of the review procedures ordinance will be done with each utility consistent with existing franchise agreements and will be documented in a memorandum of understanding between each utility and the public works department.
(Code 1961, § 36-36(b); Ord. No. 15,988, § 4, 12-18-90; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-4. Notice of vacating or closing streets or alleys.

Before the board of directors shall consider an ordinance to vacate, close and abandon a portion of a platted street or alley in any given block or parcel of land, the petitioner for such closure shall first give not less than ten (10) days' written notice of the time, place and date of public hearing thereon to the record owners of all the property situated within the block or parcel of land which abuts or abutted the street or alley as originally platted. The notice shall be sent by certified or registered mail to the last known addresses of the record owners. The petitioner shall execute and file with the city clerk an affidavit showing compliance with this section attaching as exhibits official evidence that notices have been mailed to and received.
(Code 1961, § 36-35)

Cross reference—Fee for request to abandon right-of-way, § 23-3.

State law reference—Vacating streets and alleys, A.C.A. §§ 14-54-104, 14-301-110 et seq.

Sec. 30-5. Blocking generally.

(a) In this section "street" means the right-of-way or right of passage dedicated to the public. "Street" includes space actually used as a thoroughfare and sidewalks and other ways dedicated as public thoroughfares, including alleys.

(b) It is unlawful for any person to block any part of any of the streets or alleys of the city by placing or storing thereon any articles, tires, boxes, bales, crates, cases, cartons, etc., or by suffering any of such articles or things that are subject to the control of such person to be placed on the street so as to block it or to allow such articles or things to remain on the street or alley so as to block same.

(c) The provisions of subsection (a) of this section do not apply to temporary deposits of articles and items mentioned herein when such articles are temporarily placed in the street or on the sidewalks for not longer than is necessary to load and unload same in the customary and usual conduct of the business. In no event shall such articles be suffered to remain in or upon said streets for a longer period than twelve (12) consecutive hours in any twenty-four-hour period.

(d) It is unlawful to place any sports equipment and any other article in the public rights-of-way of the city. Any such article found to be encroaching in the right-of-way shall be posted with a notice by the city displaying the following information:

(1) The placement in the right-of-way constitutes a violation of the Little Rock Code;

(2) The article shall be permanently removed from the right-of-way within three (3) days of the notice date;

(3) If the article is not removed from the right-of-way within the specified time the article shall be deemed abandoned and seized by the city.

(e) If the article in the right-of-way poses an imminent hazard to traffic safety the city may employ whatever steps are necessary to seize or remove the hazard.

(f) If the city removes or seizes the article, the owner of the article shall be charged a fee of one hundred fifty dollars ($150.00) per article or the actual cost of removal, whichever is greater. If the article is of such size or nature that it cannot be readily removed by the city, the city may employ the services of a private contractor to remove the article, in which case the owner shall be charged the cost of the service.

(g) Failure to pay the fee in full within thirty (30) days after notice to the owner shall constitute an additional violation and shall be punishable as provided in section 1-9 of this Code.

(h) If any article is replaced in the right-of-way within six (6) months of a previous notice to remove the article, the owner, in addition to responsibility to pay the cost of removal by the city, shall be issued a citation for violation of this section of the Code.

(i) (1) Notwithstanding the provisions set forth above, the department of public works may issue a permit to allow the placement of not more than one (1) basketball goal to be placed on a cul-de-sac, or a dead-end street, if the following criteria are met:

(A) An application to place a basketball goal in the area is made to the department of public works and is signed by the owners of all of the properties located within the cul-de-sac, or within one hundred (100) feet of the dead-end street and which identifies where the basketball goal will be located;

(B) If the application is for a dead-end street, the street is not one that will be completed in the foreseeable future, or if it is scheduled for completion, the permit will automatically expire upon the issuance of a building permit to complete the street;

(C) The owner of the property where the basketball goal is to be located gives express written approval to have the goal on public right-of-way immediately in front of the person's property;

(D) The department of public works has reviewed the area to determine traffic counts, interference with city vehicles including emergency equipment, and a safe placement of the basketball goal, and has determined that the location is acceptable; or, has determined an acceptable location that meets these safety criteria and the owner of the property immediately in front of that location agrees to the placement of the basketball goal;

(E) Only one (1) such application shall be approved for any one cul-de-sac or dead-end street;

(F) All persons wishing to play on the basketball goal will be permitted to do so;

(G) The applicants agree that if the application is revoked for any reason that they will be responsible for the

removal of the basketball goal, or the cost for removal of the goal; and

(H) The application shall remain in effect as long as the permitted property owner is willing to let the basketball goal remain in the approved location, and the goal is maintained in a stable and safe condition.

(2) Failure to comply with any provision of the permit shall be grounds for the removal of the basketball goal at the expense of the applicant unless the noncompliance can be, and is, corrected within three (3) days of notice of noncompliance;

(3) Revocation of the permit shall occur at any time it is deemed necessary as a matter of public safety, because of continued interference with city vehicles, or because the property owners in the vicinity object to the continued placement of the basketball goal;

(4) Use of any permitted goal shall cease at 8:00 p.m. during the period of Central Standard Time and 9:00 p.m. during the period of Central Daylight time.

(Code 1961, § 36-32; Ord. No. 18,844, § 1, 3-18-03; Ord. No. 18,975, § 1, 10-21-03)

Sec. 30-6. Obstruction of sidewalks by merchants.

Merchants occupying property in a business district may display in the sidewalk and/or walk areas in front of or on the side of their property, goods, wares and merchandise for the purpose of sale, advertisement or giveaway only after obtaining a written permit from the city manager. The merchant shall not cause personal injury or property damage to persons utilizing any of the street right-of-way, including the sidewalk and/or walk areas. No permit shall be issued for a display of goods, wares and merchandise less than six (6) feet from the curbline, or as approved by the city manager, of any given street.
(Code 1961, § 36-29(b))

Sec. 30-7. Littering.

(a) It shall be unlawful for any person, firm or corporation to cast, throw, drop, place, or otherwise cause or permit to be located upon, in, or about any public street, sidewalk, alley or public thoroughfare, or any private or public property adjacent thereto, any litter, refuse or debris.

(b) It shall be unlawful for any person hauling, by any type vehicles, dirt, trash, refuse, junk, garbage or litter and to allow or permit such or any portion thereof to fall, drop, be tracked, or otherwise placed, left, or deposited upon any street or sidewalk of this city.
(Code 1961, §§ 36-33, 36-33.1)

State law references—Litter Control Act, A.C.A. § 8-6-401 et seq.; unlawful dumping, A.C.A. § 8-6-501 et seq.

Secs. 30-8—30-25. Reserved.

ARTICLE II. CONSTRUCTION OF CURBS, DRIVEWAYS, SIDEWALKS, ETC.

Sec. 30-26. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Abutting property has the meaning provided in section 30-37, subsection (b).

Inner curbing means the portion of required curbing that does not border and mark the margin of the street designated and constructed for vehicular traffic.

Street curb means the portion of concrete curbing and structure that borders and marks the margin of the street designated and constructed for vehicular traffic.
(Code 1961, § 36-1(f))

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 30-27. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 30-28. Scope.

(a) The provisions of this article shall not apply to the construction of public works by the city on public property. It shall be the policy of the city to construct all public works consistent with the provisions of this article except in those cases where the board of directors finds it necessary in the public interest to vary therefrom.

(b) The provisions of this article shall apply only to the street abutting the lot on which the improvement or set of improvements comprising the component unit of a separate individual house, apartment or business, including all appurtenant structures and areas used in connection therewith and as a part thereof, are located.
(Code 1961, § 36-10(a), (b))

Sec. 30-29. Application of article to alleys.

Whenever a public alley is used to provide access to a vehicular parking area, the alley shall be improved, reconstructed or repaired as provided in this article.
(Code 1961, § 36-3(j))

Sec. 30-30. Appeals.

Any interested person aggrieved by a decision of any administration official of the department of planning and development in administering the provisions of this article may appeal to the board of directors.
(Code 1961, § 36-11; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-31. Compliance.

It shall be unlawful for any person to construct, reconstruct, alter, remove or replace any curb, curb and gutter, sidewalk, or driveway on public property within the city except under the supervision of department of planning and development, and in matters of construction of public projects contracted with or performed by public works, the public works department and in accordance with the provisions of this article.
(Code 1961, § 36-1(a); Ord. No. 15,988, § 4, 12-18-90; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-32. Waivers.

The department of planning and development and in matters of construction of public projects contracted with or performed by public works, the public works department may waive any of the provisions of this article. A record of the waiver and the reasons therefor shall be retained by the department.
(Code 1961, § 36-1(e); Ord. No. 15,988, § 4, 12-18-90; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-33. Civil liability.

The person doing work under a permit issued pursuant to this article shall indemnify and hold harmless the city from actions, claims, costs, damages and expense to which the city may be subjected by reason of any injury or alleged injury to any person or property resulting or alleged to result from or to be occasioned by any act, negligence, carelessness or want of skill in connection with or in the conduct of the work, or in guarding same, or from any improper methods, tools, implements or materials used in its prosecution or by or on account of any alleged act or omission whatever of the contractor or his agents, employees or servants. The contractor doing the work under the permit shall pay all sums so recovered against the city in any suit on account of such alleged injuries to which the city may be made a party, together with all such costs, damages and expenses as may be suffered by the city, all in a manner as to hold the city harmless from all such actions or claims.
(Code 1961, § 36-7(a))

Sec. 30-34. General authority.

(a) The representative of the department of planning and development and public works department may suspend work pursuant to this article when necessary to ensure good work or when in the public interest. No such suspension shall ordinarily extend longer than one (1) week.

(b) The department may give all notices and instruction with reference to the work either to contractor or his agent or to any person in charge of the work on the ground.

(c) The decision of the department with reference to materials shall be binding on all parties.

(d) If the street, curb and gutter, corner radius, or sidewalk has not been constructed, is inadequate, or is in a state of disrepair, and an application for the permit required by this article is made, the city may, if the location and grade of such street curb and gutter or sidewalk can be established, require the construction or reconstruction of such street curb and gutter, corner radius, or sidewalk according to the provisions of this article.

(e) In those cases where the grade and location of the street curb and gutter cannot be established because of existing conditions, the street curb and gutter may be omitted until the remaining street curb and gutter along the block is constructed by or at the instance of the city. Construction of temporary curbs and driveways may be authorized pending establishment of grades and location of permanent curbs and gutters. The department may secure on behalf of the city an agreement binding the owner of a subject property to construct off-site improvements as required by this article at such time as uniform grades can be established. Such agreements shall not exceed a term of two (2) years. (Code 1961, §§ 36-1(g), (h), 36-5; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 21,867, § 1, 5-19-20)

Editor's note—Ord. No. 21,867, § 1, adopted May 19, 2020, changed the title of § 30-34 from general authority of the city department designated by the city manager to general authority.

Sec. 30-35. Preparation of plans, etc.; supervision of work.

The preparation of all plans and specifications and the supervision of installations pursuant to this article shall be done by a registered professional engineer licensed to practice in the state. (Code 1961, § 36-3(i))

Sec. 30-36. Duties of abutting property owners to construct, maintain, etc.

(a) Upon notice from the public works department the owners of each lot abutting on any street shall build, construct, and maintain in a safe condition a sidewalk along the portion of the lot that abuts upon the street. All sidewalks, curbs, and gutters and curb cuts and any paved area therein shall be maintained and repaired at the proper grade at all points where the sidewalks and curbs are deteriorated, broken, lifted or shifted from proper position by age, usage, roots, or other reasons. Such parts or sections of sidewalks, curbs, or gutters which are in an unusable or unsafe condition shall be removed and relaid to grade by the property owner.

(b) Upon inspection or receipt of information that a sidewalk, curb, gutter, or curb cut is in an unsafe or dangerous condition, the public works department shall cause an inspection to be made of such condition and if such condition exists, he shall serve or cause to be served on the owner or owners of such property, or their agents, a written notice containing a description of the sidewalk, curb, or gutter deemed unsafe or dangerous, a statement of particulars in such case and order such sidewalk, curb, or gutter to be repaired according to the provisions of this section. If the person to whom such order or notice is addressed cannot be found or located after a diligent search, then the notice or order shall be posted in a conspicuous place on the premises to which it relates. If any unnecessary curb cuts exist in the opinion of the public works department, a similar notice shall be served by the public works department to replace the curb.

(c) A record of all notices and orders relative to unsafe sidewalks, curbs, gutters, and curb cuts ordered replaced, and all appurtenant action in connection therewith shall be kept in the public works department. If the person served with a warning notice, and ordered by the public works department to repair unsafe or dangerous sidewalks, curbs, gutters, or curb cuts or to replace an unnecessary curb cut fails within ten (10) days to comply with the notice and order and has not assured the public works department that the notice and order will be complied with promptly, the public works department shall cause a summons to be served upon the owner of the property alleging that such person has violated the provisions of this section. In any case where there is actual and immediate danger to the lives and property of the citizens of the city, the public works department may take such action as he

deems necessary to temporarily alleviate the condition and shall report such action as is necessary to the city manager.
(Code 1961, § 36-31; Ord. No. 17,697, § 2a, c, 3-17-98)

Sec. 30-37. Permit.

(a) It shall be unlawful for any person to construct, reconstruct, alter, remove or replace any curb, curb and gutter, sidewalk, or driveway on public property without a permit issued from the department of planning and development, in coordination with the public works department.

(b) Before a permit may be issued, the abutting property owner, or his duly authorized agent, shall submit an application therefore in writing with a plan which is made a part of such application showing the location, design and layout of the proposed improvement. Where an application for a permit is made for improvements on land, or for addition(s) or alteration(s) to improvements already situated on land, which have been not subdivided or platted into the desired ultimate divisible units or lots thereof, the applicant shall show on the plan submitted with the application the proposed boundaries of the individual tract of land on which such improvements shall be constructed with all appurtenant structures and areas which will comprise the whole of the separate house, apartment, or business. Such tract as shown on the plan shall constitute the "abutting property" within the meaning of this article.

(c) When the written application and plan has been approved and the fee required paid, the department shall issue a permit, provided the plan conforms with the provisions of this article.

(d) A permit fee in the following amount shall be paid to the city for a permit; provided however, that the minimum fee paid shall be thirty dollars ($30.00): Residential drives, four dollars ($4.00) per cut; commercial drives, seven dollars ($7.00) per cut.

The fee shall be paid when the permit application is filed. The fee shall be paid into the general fund. Where a general contractor constructs and pours his own drives or sidewalks, no separate permit fee is required but construction plans and specifications shall be submitted and approved and forms shall be inspected by the department prior to the pouring.

(e) No permit shall be issued for any construction on private property, or for alteration of a parkway or public right-of-way for other than single- and two-family residences within the city, unless the applicant has complied with the provisions of this article.
(Code 1961, §§ 36-1(a)—(e), 36-10(b); Ord. No. 15,391, § 1, 12-9-87; Ord. No. 15,777, § 1(I)M), 11-7-89; Ord. No. 17,066, § 1.I.L., 12-26-95; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-38. Bond.

(a) The department of planning and development shall not issue any permit pursuant to this section until the applicant has posted a bond with the city clerk.

(b) The bond shall be in the principal sum of not less than one thousand dollars ($1,000.00) and made payable to the city. It shall be conditioned that the principal or obligator on the bond shall furnish all proper materials, tools and appliances, and perform, execute, construct and complete all work within the scope of this article; and will comply with all the rules, regulations, specifications, and other requirements of all city ordinances. Such bond must be approved by the city attorney before it shall be deemed as having been filed with the city clerk.

(c) After the department declares in writing that the contractor has failed or refused to construct and complete work in accordance with the permit for such work and in accordance with the provisions of this article, either the city or the contracting property owner injured on such construction agreement may recover damages upon the bond. Such bond shall be a corporate surety bond and shall be executed by any corporate surety company permitted under state law to act as sureties on bonds. Each bond shall continue in effect for and during a period of one (1) year. No surety may cancel his obligations on a bond without having first given ten (10) days' written notice to the department. When a bond has been

canceled the contractor who was the principal shall not begin or complete any work until a new bond has been filed with the city clerk.
(Code 1961, § 36-7(a), (b); Ord. No. 15,922, § 4, 12-18-90; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-39. General responsibilities of person doing work.

(a) It shall be unlawful for any person to lay, construct, build, repair, rebuild or in any manner work on any of the sidewalks, curbs, gutters, streets, alleys or public thoroughfares within the city without first having obtained city review and approval and any necessary permits.

(b) Work performed by a contractor shall, in addition to the above, obtain a permit from the city to perform each separate job of construction of any sidewalk, curb, gutter or driveway.

(c) Each person in charge of work within the scope of this article shall familiarize himself with all provisions of the article covering such work, and may, upon request, receive explanations and instructions pertaining to the provisions of this article from the department.

(d) Whenever during the excavation for any construction under provisions of this article, the person doing such work discovers a city monument or survey mark, he shall notify the department and use all possible caution to protect such monument or survey mark.

(e) Work must begin in all cases within one hundred twenty (120) days after the permit for such work is issued, and shall be prosecuted continuously until the work is completed unless unavoidably delayed by weather conditions or other cause not within the control of the person doing the work. The permit is subject to renewal with the approval of the department.
(Code 1961, § 36-6; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-40. General specifications.

(a) For the purposes of this article improvements within the public right-of-way and street shall include street construction, reconstruction and improvements, construction replacement and/or repair of sidewalks, curbs, gutters and appurtenant drainage facilities including catch basins, and driveways connecting private property to public streets. All construction and improvements performed under the authority of this article shall comply with the City of Little Rock Technical Specifications as contained within the Contract Conditions and Specifications, latest edition. The required widths for all improvements under this article shall be according to the adopted master street plan of the city.

(b) All work under this article shall be done in accordance with the city's standard plans and specifications for the construction of street curbs and gutters. All construction shall be done under the supervision and inspection of the appropriate department.
(Code 1961, §§ 36-3(h), 36-4; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-41. Cleanup of work site.

After all work is completed under this article the person in charge of the work shall remove all rubbish, waste and excess materials and have the land used for construction purposes and the street and right-of-way area in a neat and clean appearing condition.
(Code 1961, § 36-3(b))

Sec. 30-42. Barriers and other safeguards.

At all times and periods during which any work under this article is being performed and until such work is completed and accepted and approved by the inspector, the contractor shall place and maintain, in accordance with article IV of this chapter, all necessary and proper barriers and other safeguards, including watchmen, if necessary, upon and around the work for the prevention of accidents, and at night he shall place, maintain and keep suitable and sufficient lights and flares to warn of the obstructions and hazards.
(Code 1961, § 36-7(c))

Sec. 30-43. Layout and design generally.

(a) The design, layout and plans for the construction, reconstruction, alteration or replacement of all sidewalks, curbs and gutters, driveways, both private and commercial, shall

conform and be constructed according to the design and layout as described below and as permitted by department of planning and development.

(1) All curb radii shall be a minimum of five (5) feet and a maximum of fifty (50) feet. A point of tangency shall not extend beyond a line drawn from the point of intersection of a property line with the right-of-way line of a street and perpendicular to the centerline of the street. All curb radii shall be tapered to meet the grade of the outer edge of the sidewalk as provided.

(2) Driveways:

a. No driveway shall be constructed within five (5) feet of a line drawn from the point of intersection of a property line with the right-of-way line of a street and perpendicular to the centerline of the street, except where property abuts an alley the minimum distance shall be ten (10) feet. The width of a residential driveway is to be forty (40) percent of the lot's street frontage, but shall not exceed thirty-two (32) feet in width. The maximum opening of a commercial driveway shall not exceed forty (40) feet.

b. Construction of residential driveways within the public right-of-way on cul-de-sac lots shall be contained within the lot lines extended to the radius point of the cul-de-sac.

c. The minimum distance between a driveway and an exterior lot corner shall be twenty-five (25) feet measured from the nearest point of the driveway to the exterior lot line.

d. No driveway shall be constructed less than a forty-five (45) degree angle to the property line.

(3) No pump island shall be constructed closer than fifteen (15) feet to the property line.

(4) Expansion joints shall be installed at the property line and made in accordance with accepted engineering practices, as approved by the department.

(5) The maximum cross slope of sidewalk shall be as allowed per the Americans with Disabilities Act of 1990.

(6) The standard finish for concrete sidewalks shall be a smooth trowel finish with a final light brooming for a nonslip surface texture.

(7) Other finishes and materials for sidewalks are authorized as follows:

a. Exposed aggregate. Exposed aggregate sidewalks may be constructed and maintained, provided any such exposed aggregate concrete shall have an average relief of aggregate of one-eighth inch with a maximum depth not to exceed three-sixteenth inch. Thickness of concrete shall be at least four (4) inches at all points. No wood divider strips or spacers shall be installed. No sharp or jagged aggregate edges shall be exposed in the surface of the sidewalk.

b. Colored concrete. Colored concrete sidewalks may be installed and maintained if installed as standard finish. The introduction of coloring material shall be in accordance with procedures set forth in the current Portland Cement Association bulletin.

c. Brick or flagstone. Brick or flagstone sidewalks may be installed if laid on a concrete slab in such a manner that the total strength of the sidewalk shall be equivalent to a four-inch, three-thousand-pound per square inch sidewalk. Relief at joints in the surface shall be no greater than one-eighth inch. Used brick is prohibited.

(b) All retaining walls shall be constructed on private property.

(c) Driveways constructed to serve commercial, office, industrial and multifamily projects shall be subject to the design provisions contained in section 31-210 of this Code.
(Code 1961, § 36-2; Ord. No. 16,577, § 1a, 1-18-94; Ord. No. 16,862, § 1, 3-21-95; Ord. No. 21,867, § 1, 5-19-20; Ord. No. 22,239, § 1, 3-21-23)

Sec. 30-44. Corner lots.

On property situated at the corner of intersecting streets, sidewalks shall extend to the street curbline of the intersecting street. Sidewalks may be required on both the side and front streets when the need thereof for pedestrian traffic is apparent.
(Code 1961, § 36-3(a))

Sec. 30-45. Curbs for off-street parking areas.

When an off-street parking area adjoins public right-of-way inner curbing shall be provided as follows:

(1) When no sidewalk exists or is proposed in the right-of-way the inner curb may be located on the property line.

(2) If the proposed parking is to be parallel to the right-of-way line the inner curbing may be located on the property line.

(3) If there is an existing or proposed sidewalk and the proposed parking stalls are to be oriented into the sidewalk, the inner curbing shall be located two and one-half (2½) feet inside the property line.

(4) The inner curb shall be at least four (4) inches in width and extend a minimum of four (4) inches above the driving surface and a minimum of six (6) inches below the driving surface.

(5) A reinforced precast curb or fence equivalent to this curb may be used upon approval by the department of planning and development.

(Code 1961, § 36-3(c); Ord. No. 15,988, § 4, 12-18-90; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-46. Sidewalk steps or offsets.

No step or offset shall be constructed in any sidewalk outside property lines.
(Code 1961, § 36-3(d); Ord. No. 15,988, § 4, 12-18-90; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-47. Driveways.

All driveways into private property must be concrete from the street curbline to property line on approved grades. Single-and two-family driveways may be constructed of asphalt except where there is a sidewalk adjacent to the property. In such cases the driveway shall be concrete to the back edge of the sidewalk.
(Code 1961, § 36-3(e))

Sec. 30-48. Sidewalk width and driveway aprons.

The width of all sidewalks shall be a minimum of five (5) feet and inner edge shall be one (1) foot from the property line. Greater widths may be required where necessary due to pedestrian needs. No driveway apron shall extend out into the street further than the face of the curb, nor into the gutter area; provided, however, the apron area shall be paved from the sidewalk to the street pavement where no curb or gutter section is established.
(Code 1961, § 36-3(f); Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-49. Blocking top surface of sidewalk; sidewalk corners.

The top or wearing surface of the sidewalk shall be blocked off with a trowel or tool made for that purpose. All corners must be rounded so as not to leave any square edges or sharp projections.
(Code 1961, § 36-3(g))

Sec. 30-50. Provisions for disabled persons.

In order to provide adequate and reasonable access for the safe and convenient movement of disabled persons, the design, layout, and plans for the construction, reconstruction, alteration and/or replacement of all curb cuts, walks and

sidewalks, ramps and driveways, both private and commercial, shall conform and be constructed according to the design and layout as described in design standards which shall comply with the Americans with Disabilities Act of 1990 and shall be approved by the department of planning and development. In particular, curb cuts and access ramps should be provided at the following locations:

(1) All corners of street intersections where there are existing or proposed sidewalks and curbs.

(2) Midblock points in the vicinities of hospitals, medical centers, athletic stadiums and any other major internal pedestrian paths that intersect the sidewalk but where a driveway is not abutting.

(Code 1961, § 36-3(k); Ord. No. 21,867, § 1, 5-19-20)

Editor's note—Ord. No. 21,867, § 1, adopted May 19, 2020, changed the title of § 30-50 from provisions for physically handicapped persons to provisions for disabled persons.

Cross reference—Accessibility standards for buildings for physically handicapped or disabled persons, § 8-51 et seq.

Secs. 30-51—30-75. Reserved.

ARTICLE III. STANDARDS FOR CONSTRUCTION OF STREETS, STORM SEWERS, ETC.

DIVISION 1. GENERALLY

Sec. 30-76. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 30-77. Design classification.

Flexible and rigid pavement design shall be done in accordance with the American Association of State Highway and Transportation Officials (AASHTO) Guide for Design of Pavement Structures, latest edition.

(Code 1961, § 36-12(a); Ord. No. 21,867, § 1, 5-19-20)

Secs. 30-78, 30-79. Reserved.

Editor's note—Ord. No. 21,867, § 1, adopted May 19, 2020, repealed §§ 30-78 and 30-79, which pertained to thickness requirements for rigid pavements and thickness requirements for flexible pavements, and derived from the Code of 1961, §§ 36-12(b), (c); and Ord. No. 17,697, § 2a, adopted Mar. 17, 1998.

Sec. 30-80. General requirements for storm sewers.

The capacity of all storm sewers shall be determined by using a rational approach, giving due consideration to rainfall intensity, soil characteristics, proper runoff coefficients, slope, and the hydraulic properties of the pipes used. Interceptors should be placed at intervals not to exceed six hundred (600) liner-feet, except under special conditions as approved by the department of planning and development and in matters of construction of public projects contracted with or performed by public works, the public works department. The designed rainfall intensity shall be based on four (4) inches per hour except in new subdivisions, where the rainfall intensity shall be based on a time of concentration of at least a once in ten-year expectancy as determined from local rainfall records. The minimum design velocity shall not be less than two and one-half (2½) feet per second. The maximum design velocity shall not exceed ten (10) feet per second.

(Code 1961, § 36-12(d); Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-81. Approval of plans and specifications.

(a) In this section "specifications" means all terms and stipulations contained in the written portion of information furnished. Documentation shall be submitted to the department of planning and development by the owner's engineer

prior to receiving contractors' bids on the proposed improvements regulated by the provisions of this article. The main body of the specifications shall include such information and requirements as is necessary to produce and define a first-class, workmanlike job. Attached to each of the three (3) copies of the specifications submitted shall be the soil analysis report of a reputable testing laboratory, if applicable.

(b) The plan shall be defined collectively as all of the drawings pertaining to the contract and made a part thereof, and also such supplementary drawings as the engineer may issue from time to time in order to clarify the drawings, or for the purpose of showing changes in the work, or for showing details not previously shown. Documents shall be submitted to the department of planning and development prior to receiving contractors' bids on the proposed improvements. The plan shall show the plan, profile and cross-section of the proposed improvement, and shall specifically show, by dimensions, alignment, and right-of-way widths, the gradient and vertical curve data, and shall indicate drainage structures as to location, size, material and gradients.

(c) The department of planning and development has the option to require from the owner's engineer, copies of all notes and calculations pertaining to any information or drawings contained in the plans and specifications. The department of planning and development shall send documentation of approval for the plans and specifications when the plans and specifications meet the requirements of the city. Once a submittal is complete, the director of the department of planning and development shall approve or disapprove these plans and specifications within ten (10) days or they shall be automatically approved.
(Code 1961, § 36-13; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-82. Bonds, insurance, etc.

Contractors submitting bids for work regulated by this article must be licensed under the terms of A.C.A. tit. 17, Chapter 25 [A.C.A. § 17-25-101 et seq.] and furnish satisfactory proof of all insurance, statutory performance bonds, and maintenance bonds as specified below:

(1) *Public liability and property damage insurance.* The contractor shall furnish public liability insurance in an amount of not less than one hundred thousand dollars ($100,000.00) for injuries, including accidental death, to any one (1) person, and subject to the same limit for each person, and for an amount of not less than two hundred thousand dollars ($200,000.00) for any one (1) accident. Property damage insurance shall be in an amount of not less than twenty thousand dollars ($20,000.00) to forty thousand dollars ($40,000.00).

(2) *Statutory performance bonds.* A statutory performance bond shall be optional except with improved districts. The statutory performance bonds shall be in accordance with A.C.A. tit. 18, ch. 44, subch. [A.C.A. § 18-44-501 et seq.]. The bond must be made by a satisfactory surety company, organized in conformity with the laws and doing business in the state. The bond shall be in an amount of one hundred (100) percent of the contract price and shall be as surety for the faithful performance of all work done under the contract, and for payment of all persons performing labor or furnishing materials in connection with the work.

(3) *Maintenance bonds.* The contractor shall furnish a one-year maintenance bond, in the amount of fifty (50) percent of the total cost price, which shall be in full force and effect from the date of the appropriate city official's documentation of approval of construction. Prior to the end of the one-year period covered by the maintenance bond, the public works department shall make an inspection of the work, and shall notify the owner's engineer or contractor of all defects which must be corrected prior to the city's acceptance of full maintenance of the work. When the work meets the require-

ments of the city, the public works department shall provide documentation of approval and acceptance for city maintenance.

(Code 1961, § 36-17; Ord. No. 21,867, § 1, 5-19-20)

Secs. 30-83—30-100. Reserved.

DIVISION 2. RIGID PAVEMENTS

Sec. 30-101. Scope.

This division applies to the construction of rigid pavement.

Sec. 30-102. Concrete generally.

(a) Portland cement concrete shall have a minimum compressive strength of three thousand (3,000) pounds per square inch in twenty-eight (28) days, and its maximum slump when placed shall not exceed four (4) inches. Concrete shall be mixed in accordance with current A.S.T.M. requirements.

(b) Portland cement shall conform to current American Society for Testing Materials (A.S.T.M.) standards.

(c) Sand shall be clean, sound, properly graded, and free from organic materials that might seriously reduce the strength of the concrete. Sand shall be uniformly graded from one hundred (100) percent passing the three-eighths-inch sieve to not more than eight (8) percent passing the No. 100 sieve. Sands containing at least twelve (12) percent to fifteen (15) percent passing the No. 50 sieve are preferred. Colorimetric tests shall show not darker than a very light amber. Fine aggregate consisting of cubicle particles is desired, and will produce concrete of the required workability. A fineness modulus of two and seventy-nine hundredths (2.79) is recommended.

(d) Aggregate shall be of hard, durable rock or gravel, and shall be free from shale, chert, or organic material. Rock shall conform to A.S.T.M. Designation 2, and gravel shall conform to A.S.T.M. Designation D289. Coarse aggregate consisting of rounded or cubicle particles is preferred. The gradation shall be uniform, between the limits of one and one-half-inch and one-fourth-inch-size particles. In no case shall the maximum size aggregate exceed one-third of the design depth of the pavement. A fineness modulus of seven and two-tenths (7.2) is recommended.

(e) Water to be used shall be potable, i.e., drinkable and shall be clean and free from oils, salts, and other injurious substances.

(Code 1961, § 36-14(A)(1))

Sec. 30-103. Reinforcement.

(a) All reinforcing shall meet current American Association of State Highway Officials' (A.A.S.H.O.) specifications for welded steel wire fabric, billet steel bars, rail steel bars, or axle steel bars, all for concrete reinforcement. Deformed bars shall comply with current A.A.S.H.O. designation M31, 42, 53 and 55.

(b) "Starlug" and transmission connectors or equal are permissible.

(Code 1961, § 36-14(A)(2))

Sec. 30-104. Joint filler.

(a) Joint filler shall consist of premolded, poured, deformed metal plates, or structural grade redwood planks.

(b) Premolded joint filler shall be of the non-extruding type, shall be from three-fourths inch to one and one-half (1½) inches thick, and shall be of the same height as the slab in which it is placed.

(c) Poured joint filler shall be bituminous material of an approved type, conforming to A.A.S.H.O. designation M-18 or rubber-base compound conforming to federal specification SS-F-336, or asphalt with mineral filler as defined by special provision 701 of the state highway department.

(d) Deformed metal plate joints shall be of an approved type.

(e) Structural grade redwood planks shall be used as joint filler when load transmission connectors are utilized in making transverse joints. The planks shall be three-fourths inch thick and

shall have a minimum width of one-half inch less than the slab thickness at any point. Joint filler shall be poured into the one-half inch recess.
(Code 1961, § 36-14(A)(3))

Sec. 30-105. Curing compounds.

While clear curing membranes with a fugitive dye is acceptable, the white pigmented curing membrane is preferred.
(Code 1961, § 36-14(A)(4))

Sec. 30-106. Placing reinforcing.

All pavements in classes 1 and 2 may be reinforced with No. 3 deformed bars at twenty-four-inch centers both directions. Welded wire mesh may be used as an alternate if an equal amount of steel is installed. Mats of reinforcement shall be lapped twelve (12) inches. Slab reinforcement should be placed about two (2) inches below the finished surface of the pavement unless otherwise directed by the owner's engineer.
(Code 1961, § 36-14(B)(1))

Sec. 30-107. Joints.

(a) Transverse joints fall into two (2) general classes: Expansion joints and contraction joints. Joints shall be of the type and dimensions shown on the approved plan, and shall be constructed perpendicular and at right angles to the centerline of the pavement.

(b) Concrete curb and concrete combination curb and gutter expansion joints shall be installed at stationary structures such as catch basins, drop inlets, etc., at ends of curb returns, and at intervals approved by the city. Where curb and gutter is constructed adjacent to or on rigid pavements, the location and width of joints shall coincide with those in the pavement, where practicable. Variations shall be approved by the city. Curb and gutter expansion joints shall have a thickness of not less than one-half inch, and shall be filled with an approved preformed joint filler shaped to the cross section of the curb, and constructed at right angles to the curbline.

(c) Contraction joints shall be spaced at a maximum of twenty (20) feet when crushed stone is used in the mixture. The maximum of fifteen (15) feet spacing shall be used when gravel is used. All contraction joints shall be cut to a minimum of twenty (20) percent of the total thickness of the slab including sawed joints.

(d) Expansion joints other than transverse joints shall be formed about all features projecting through or into the pavement, such as poles, hydrants, manholes, and storm sewer appurtenances, and shall be formed between the pavement slab and existing curbs, buildings, or other structures. Unless otherwise designated, such joints shall be constructed one-half inch in width and may be of either premolded or poured type.

(e) Longitudinal joints shall be placed perpendicular and parallel to the centerline of the pavement and shall be keyed in multilane pavement. Longitudinal joints shall be free or tied, as determined by the owner's engineer.
(Code 1961, § 36-14(B)(2))

Sec. 30-108. Forms.

Forms shall be of steel and/or of wood, two (2) inches thick, dressed on the top and inside. Battered, bent, twisted or broken forms shall not be used. All forms used shall be cleaned and oiled before concrete is placed against them, and when staked and placed, shall have rigid, tight connections at the joints.
(Code 1961, § 36-14(B)(3))

Sec. 30-109. Placing of concrete.

(a) No pouring of concrete on any street shall begin without notifying the public works department at least twelve (12) hours prior to beginning operations. If the department of planning and development and in matters of construction of public projects contracted with or performed by public works, the public works department does not inspect the base within the twelve-hour period, the base shall be deemed approved. Concrete shall not be placed until the subgrade has been checked and accepted by the engineer. All forms shall be set and securely staked to the lines and grades established by the owner's

engineer. The concrete shall be deposited on a thoroughly wetted subgrade in such a manner as to minimize rehandling, and shall be deposited in one (1) course. Spading or vibrating shall be required adjacent to all forms and joints. Placing shall be a continuous operation without bulkheads as nearly as is practical. Concreting operations will not be permitted when a descending air temperature falls below forty (40) degrees Fahrenheit, nor resumed until an ascending air temperature reaches thirty-five (35) degrees Fahrenheit. The city will not accept any pavement which has been damaged by frost. Under no circumstances shall the placing of concrete on a frozen subgrade be permitted.

(b) Screeding, spreading, and finishing machines shall be preferred. If the scope of the work does not permit the use of this machine, the following procedure shall be followed. After the concrete has been deposited, it shall be approximately levelled and struck off to such depth below the finish grade as required to place reinforcing mats or wire mesh, and shall be properly consolidated prior to placing the reinforcing mats or mesh, when applicable, as the case may be. Additional concrete shall be deposited and struck off to a depth above the finish grade when properly consolidated, the surface shall conform to the line and grade desired. The strike-off board shall be straight, free from warp, and shod on the striking surface with a steel strip, and shall be shaped to the required curvature and crown. The strike-off board shall be moved forward with a combined longitudinal and transverse motion and without raising either end above the side forms during the strike-off process. A slight excess of material must be kept in front of the cutting edge at all times. The entire area of the pavement shall be tamped in such a manner as to secure maximum compaction and to reduce voids to a minimum.

(c) The cross-section of the integral curb shall conform to the city's standard, and the concrete mix used shall be the same as that used in the concrete pavement, and shall be poured as one-course construction, with special attention being given to spading and tamping, to ensure adequate compaction and surfaces free from honeycomb. All integral curb sections shall make allowance for driveway openings in accordance with city standards. The concrete for integral curb may be left high on the outside form by a notch in the screed, or it may be carried back from the paver after the pavement surface has been struck off. The integral curb shall be shaped by a "mule" or by a straight-edge guided by templets of proper shape, temporarily inserted in the concrete at regular intervals. Joint spacing shall be the same as required in the pavement. The final finish shall match the texture of the adjoining pavement. Designed low points and flat grades shall be checked by pouring a small amount of water into the gutter at some distance from the inlet before the final finishing operations are completed.

(d) Immediately following screeding and compaction operations, the slab surface shall be tested for trueness with a straight-edge. Any depressions found shall be filled with freshly mixed concrete, struck off, consolidated, and refinished. Longitudinal floating shall be done in conjunction with checking with the straight-edge. The float shall not be less than twelve (12) inches in length, and from eight (8) inches to ten (10) inches in width and shall be properly stiffened to prevent flexibility and warping. The straight-edge testing and floating operation shall continue until the entire surface is found to be free from observable departures from the straight-edge, and until the surface of the slab has the required grade and contour.

(e) The pavement shall be finished by two (2) applications of a soft, flexible belt of approved composition, from eight (8) inches to twelve (12) inches in width. The belt shall be moved forward with a combined transverse and longitudinal motion, the longitudinal advances being very slight for the first belting, but with a sweeping motion for the final belting. Care should be exercised that the belting operation does not work the crown out of the pavement. Prior to the concrete attaining its initial set, the surface shall be given a final belting to produce a uniform surface of roughened texture. Excess water, laitance, or foreign matter brought to the surface during the course of the finishing operation shall be removed immediately by means of a squeegee drawn from the center of the slab

toward either edge. Brooming may be required by the owner's engineer to provide a surface of roughened texture if the final belting does not accomplish the result required. Forms shall not be removed for at least twelve (12) hours after placing of concrete. All holes, voids, or honeycomb shall be moistened and filled with 1:2 mortar, and floated smooth.

(f) After the concrete has hardened, the surface of the pavement shall be tested with a ten-foot straight-edge as previously described. Ordinates measured from the face of the straight-edge to the surface of the pavement shall not exceed one-sixteenth inch per foot from the nearer point of contact, and the maximum variation in ten (10) feet shall not exceed one-fourth inch. The contractor shall be required to remedy any deviation in excess of the above tolerance as directed by the owner's engineer.
(Code 1961, § 36-14(B)(4); Ord. No. 17,697, § 2a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-110. Curing.

As soon as the pavement has been finished and has attained sufficient set to prevent marring the surface, it shall be cured by an approved, moist curing method or by spraying with an approved compound. Extreme care shall be exercised during the early curing period to prevent extreme reductions in the surface temperature of the slab. No edge of the slab shall be exposed to the air during the curing period. The length of the curing period depends upon the rate at which the concrete hardens, normally from three (3) to ten (10) days.
(Code 1961, § 36-14(B)(5))

Sec. 30-111. Opening to traffic.

The normal period of time for keeping the pavement closed to traffic shall be fourteen (14) days. This period may be shortened subject to the results of suitable tests to determine the quality and strength of the concrete, and only then with the consent of the public works department, and in no case shall pavement be opened before the longitudinal and transverse joints are properly poured and the pavement cleaned of all foreign substances. The public works department shall be notified at least seven (7) days in advance of opening any pavement to traffic.
(Code 1961, § 36-14(B)(6); Ord. No. 17,697, § 2a, c, 3-17-98)

Sec. 30-112. Tests.

(a) Tests as outlined in this section shall be made during and after paving is completed in order to determine the consistency, air content, strength, thickness, and surface variations for each strength, of concrete placed. All tests except slump and air content tests when they are performed by the engineer shall be made by a reputable testing laboratory and shall be at the contractor's expense. Results shall be sent directly to the owner's engineer and the department of planning and development and in matters of construction of public projects contracted with or performed by public works, the public works department by the laboratory.

(b) Slump shall be checked to test the consistency of the mix by the method described in ASTM Standard C143.

(c) Air content of concrete may be determined by any of the following ASTM methods: Air Content Designations C138, C173, and C231.

(d) Flexural strength of concrete shall be determined in accordance with ASTM Standard method of test, Designations C31 and C78. When compressive test cylinders are required, they shall be taken in accordance with ASTM Designation C31. Three (3) test cylinders shall be taken for each day's run, one (1) of which shall be broken at seven (7) days and two (2) of which shall be broken at twenty-eight (28) days.
(Code 1961, § 36-14(C)(1); Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-113. Final inspection.

Prior to final inspection, the contractor shall be required to make a general cleanup of the construction area. The pavement, curbs, and all appurtenances shall be properly backfilled, and shall be clean and free from fractures, spalling, or defects. Providing all construction meets the requirements of the city, a letter of approval of

construction shall be written by the department of planning and development and in matters of construction of public projects contracted with or performed by public works, the public works department. The city's acceptance for maintenance shall be in accordance with required maintenance bonds.
(Code 1961, § 36-14(C)(2); Ord. No. 17,697, § 2a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Secs. 30-114—30-135. Reserved.

DIVISION 3. FLEXIBLE PAVEMENTS

Sec. 30-136. Scope.

This division applies to the construction of flexible pavements.

Sec. 30-137. Portland cement concrete for curb and gutter.

The concrete mix used shall meet the requirements specified in division 2 of this article.
(Code 1961, § 36-15(A)(1))

Sec. 30-138. Base course material.

Base course material shall be composed of crusher run, and shall conform to the current state highway specifications, base course material, designation SB-2.
(Code 1961, § 36-15(A)(2))

Sec. 30-139. Bituminous material for prime coat.

Prime coat shall be a cutback asphalt meeting current ASTM specifications, and shall be free from water.
(Code 1961, § 36-15(A)(3))

Sec. 30-140. Asphaltic concrete hot mix wearing surface.

(a) Asphaltic concrete hot mix wearing surface shall be composed of a compacted mixture of mineral aggregate and asphalt cement, and shall be the product of an approved mixing plant of the separate weight batch type or continuous-mixing type. Asphaltic concrete hot mix wearing surface shall conform to the compositions specified herein. The materials forming the mixture shall in all cases be measured separately by weight, and shall be heated before entering the mixer to a temperature between two hundred seventy-five (275) degrees Fahrenheit to three hundred seventy-five (375) degrees Fahrenheit.

(b) The hot asphaltic concrete shall conform to the standard specifications set forth by the Asphalt Institute for dense graded hot mix and hot laid asphalt material.

(c) Mineral aggregate shall conform to the following gradations:

Total retained	*Percent by weight*	*Tolerance (percent)*
On 1" sieve	0	
On ¾" sieve	0	
On ½" sieve	0	7
On No. 4 sieve	20—40	or—5
On No. 10 sieve	45—60	or—5
Total passing		
No. 40 sieve	15—35	or—5
No. 80 sieve	8—20	or—3
No. 200 sieve	4—8	or—2.5

At least one-half of the material passing the 200 sieve shall be limestone dust.

(d) Asphaltic cement shall comply with the following:

Penetration grade	*Percent by weight*	*Tolerance (percent)*
50—100 penetration	6—9	or—0.3

Asphaltic cement shall meet current ASTM specifications tested by the latest revised methods for fifty-one hundred (5,100) penetration.
(Code 1961, § 36-15(A)(4))

Sec. 30-141. Forms.

Forms shall be of steel and/or of wood, two (2) inches thick, dressed on the top and insides. Battered, bent, twisted, or broken forms shall not be used. All forms used shall be cleaned and

oiled before concrete is placed against them, and when staked and placed, shall have rigid, tight connections at the joints.
(Code 1961, § 36-15(B)(1))

Sec. 30-142. Pouring portland cement concrete curb and gutter.

All curbs and gutters shall be poured as one-course construction. Concrete shall be placed in the forms on a compacted, wetted subgrade and shall be tamped and spaded until mortar covers the entire surface. Tamping and spading shall be given special attention to ensure adequate compaction and surfaces free from honeycomb. The cross-section of the curb and gutter shall conform to the city's standard. The surface shall be struck off smooth between templets, shaped to the required cross section, and it shall be finished with a wooden float and steel trowel and broomed to produce a uniform surface of roughened texture. Joint spacing shall be the same as required in division 2 of this article. Expansion joints shall be used behind or at the ends of the curb whenever it abuts sidewalks, driveways, or other structures. The curb and gutter shall be grooved one (1) inch deep with an approved grooving tool at intervals as specified in section 30-107. All curb and gutter sections shall make allowance for driveway openings in accordance with city standards.
(Code 1961, § 36-15(B)(2))

Sec. 30-143. Placing crushed stone base course.

The base course shall be placed in courses not to exceed six (6) inches in compacted thickness, each course having compacted thickness as directed by the owner's engineer. The base material shall be spread the same day it is hauled, and shall be thoroughly mixed by approved mechanical equipment to secure a uniform distribution of the fine and course particles. Proper compaction shall be ninety-five (95) percent modified Proctor with one (1) field density test required per one thousand (1,000) square yards of base compaction. If the crushed stone meeting the gradation requirements specified is deficient in material passing the No. 40 sieve after it has been processed and shaped as above outlined, additional binder or filler material shall be furnished and applied in the amounts directed by the owner's engineer. The department of planning and development and in matters of construction of public projects contracted with or performed by public works, the public works department shall be notified at least twelve (12) hours prior to placing prime to permit checking the base for stability, line grade, and crown. If the department of planning and development and in matters of construction of public projects contracted with or performed by public works, the public works department fails to make an inspection after proper notification within the such twelve-hour period, the base will be deemed approved.
(Code 1961, § 36-15(B)(3); Ord. No. 17,697, § 2a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-144. Preparation of base course for receiving asphaltic concrete surface.

Prior to the arrival of the surface course mixture on the work, the prepared base shall be cleaned of all loose and foreign materials, and shall be primed with bituminous material specified. The prime coat shall be applied with an approved type, self-propelled asphalt distributor with minimum pressure of forty (40) pounds at the rate of five-hundredths (0.05) to four-tenths (0.4) gallon per square yard of surface. The specific rate of application shall be as directed by the owner's engineer. The prime coat shall, in any case, be placed sufficiently in advance of laying the wearing surface as to permit thorough curing. Contact surfaces of curbs, gutters, manholes, and other structures adjacent to the paving area shall be painted with a thin, uniform coating of hot asphaltic cement, cutback, or emulsified asphalt before the surface mixture is applied against them.
(Code 1961, § 36-15(B)(4))

Sec. 30-145. Transporting and placing asphaltic concrete hot mix wearing surface.

(a) The methods employed in performing the placement of asphaltic concrete hot mix wearing surface and all equipment, tools and machinery

used in handling materials and in executing any part of the work, shall be subject to the approval of the owner's engineer before the work is started, and whenever found unsatisfactory, shall be changed or improved as required by the owner's engineer.

(b) The mixture shall be transported from the paving plant to the work in tight vehicles with metal bottoms, previously cleaned of all foreign substances, and lightly lubricated with a thin oil or soap solution. Excessive lubricant will not be permitted. When directed by the owner's engineer, the vehicles shall be suitably insulated, and each load shall be covered with a canvas or other suitable material. Care shall be exercised by truck drivers so as not to disturb or loosen the prepared base course when entering or leaving the project area.

(c) The mixture shall be laid only upon a base which is dry, or at least free from standing water, and only when weather conditions are suitable and the mixture shall have a temperature range of from two hundred seventy-five (275) degrees Fahrenheit to three hundred twenty-five (325) degrees Fahrenheit. Prior to the delivery of the mixture on the work, the prepared base shall be cleaned of all loose or foreign material. No asphaltic concrete material shall be mixed or placed when a descending air temperature reaches forty (40) degrees Fahrenheit, or shall not be started until an ascending air temperature reaches thirty-five (35) degrees Fahrenheit.

(d) All asphaltic concrete mixture shall be unloaded into a mechanical, self-powered paver which is capable of spreading the mixture true to the line, grade, and crown set by the owner's engineer. Care shall be exercised to ensure the mixture being unloaded into the mechanical paver so that no material will fall between the truck and the paver onto the prepared base course. Such deposits shall be removed immediately. Hand spreading shall be allowed in areas inaccessible to the paving machine, and/or such areas as directed by the owner's engineer. The laying process shall be continuous as nearly as is practicable. Care shall be exercised by the contractor not to destroy or loosen the base course material during the laying operations.

(e) The asphaltic concrete mixture shall be compressed while in a plastic condition and as soon after being raked as it will bear the rollers without undue displacement or haircracking. All rollers used shall be an approved type in the eight-ton to twelve-ton class, self-propelled, and in good condition. Each roller shall be manned by a competent, experienced operator, and shall be kept in continuous operation as nearly as is practicable. The rolling surface of the wheels shall be properly moistened with water, but an excess of such moisture will not be permitted. Along curbs, headers, and similar structures, and all places not accessible to the roller, the surface mixture shall be thoroughly compacted with hot tampers to produce sealed joints.

(f) The roller shall pass over the unprotected and freshly laid mixture when laying of the course is to be discontinued for such length of time as to permit the mixture to become chilled. In all such cases, provision shall be made for a proper bond with new surface mixture by cutting back the joint so as to expose an unsealed, granular surface for the full specified depth of the course. The exposed edge of the cut joint shall be painted with a thin coat of hot asphaltic cement, cut-back or emulsified asphalt and the hot mixture shall be raked against the joint, thoroughly tamped with hot tampers, and rolled. Hot smoothing irons may be used for sealing joints, but in such cases extreme care shall be exercised to avoid burning the surface.

(g) Before the completion of rolling, the surface shall be tested for thickness and contour and corrected as necessary while still hot by properly adding or removing material, and by reshaping and rerolling until the finished surface complies with the best requirements. The finished surface shall show no deviation from the general surface in excess of one-sixteenth inch per foot. Ordinates measured from the face of a ten-foot straight-edge to the surface of the pavement shall not exceed one-sixteenth inch per foot in distance from the nearer point of contact, with the further provision that the maximum variation in ten (10) feet shall not exceed one-fourth inch. Such portions of the completed surface course found

defective in compression or finish shall be removed and replaced with suitable material by the contractor.
(Code 1961, § 36-15(B)(5))

Sec. 30-146. Opening to traffic.

The normal period of time for keeping the pavement closed to traffic is the period required for the finished pavement to cool to atmospheric temperature; however, upon completion of the work, the contractor or owner's engineer shall so notify the public works department in order that traffic-control signs and devices may be installed prior to general traffic use.
(Code 1961, § 36-15(B)(6); Ord. No. 17,697, § 2a, 3-17-98)

Sec. 30-147. Tests.

(a) Tests of all materials used in the base course and wearing surface shall be made during and after paving is completed in order to control and determine the quantity, quality, and thickness of the various materials placed. All tests shall be made by a reputable testing laboratory and shall be at the contractor's expense. Results shall be mailed directly to the owner's engineer and the department of planning and development and in matters of construction of public projects contracted with or performed by public works, the public works department by the laboratory. The laboratory report shall show the sieve analysis in percent passing, batch weight in pounds for the various materials used, temperatures of mixture, and an analysis of the surface course mixture leaving the plant. Only current American Society for Testing and Materials (ASTM) Standard Methods shall be employed. At least one (1) test shall be taken for each four hundred (400) tons of asphaltic material but not less than one (1) per day.

(b) Tests of all materials used in the base course and wearing surface shall be made during and after paving is completed in order to control and determine the quantity, quality, and thickness of the various materials placed. All tests shall be made by a reputable testing laboratory and shall be at the contractor's expense. Results shall be mailed directly to the owner's engineer and the public works department by the laboratory. The laboratory report shall show the sieve analysis in percent passing, batch weight in pounds for the various materials used, temperatures of mixture, and an analysis of the surface course mixture leaving the plant. Only current ASTM standard methods shall be employed. At least one (1) test shall be taken for each four hundred (400) tons of asphaltic material but not less than one (1) per day.
(Code 1961, § 36-15(C)(1), (C)(2); Ord. No. 17,697, § 2a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-148. Final inspection.

Prior to final inspection, the contractor shall be required to make a general cleanup of the construction area. The pavement, curbs, and all appurtenances shall be properly backfilled, and shall be clean and free from fractures, spalling or defects. Providing all construction meets the requirements of the city, a letter of approval of construction shall be written by the planning and development department and in matters of construction of public projects contracted with or performed by public works, the public works department. The city's acceptance for maintenance shall be in accordance with required maintenance bonds.
(Code 1961, § 36-15(C)(3); Ord. No. 17,697, § 2a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Secs. 30-149—30-165. Reserved.

DIVISION 4. STORM SEWERS, DRAINS, SIDEWALKS, ETC.*

Sec. 30-166. Fills.

Materials used in the construction of compacted fills for roadways, storm sewers, sidewalks, etc., shall be composed of earth, sand, gravel, or other suitable material meeting the approval of the owner's engineer.
(Code 1961, § 36-16(A)(1))

*__Cross reference—__Stormwater management and drainage, Ch. 29.

Sec. 30-167. Pipe.

Drainage pipe used in construction of culverts and storm sewers shall be of the types of material as specified in Section 13, Pipe Culverts and Storm Drainage Piping, of the City of Little Rock Technical Specifications, Latest Edition.
(Code 1961, § 36-16(A)(2); Ord. No. 17,697, § 2a, 3-17-98; Ord. No. 17,716, § 1a, 4-21-98)

Sec. 30-168. Rings and covers, and grates and frames.

(a) Cast iron shall be of good quality and of such character that it shall make the metal of the castings strong, tough, and of even grain. All castings shall be smooth, free from scale and cracks and other defects that might render them unsuitable for the use for which they are intended.

(b) Rings and covers. Rings and covers shall be of two (2) main types: Sidewalk and street type. The combined weight of the standard sidewalk type shall be approximately one hundred twenty-five (125) pounds total, and the standard combined weight of the street type shall be approximately two hundred fifty (250) pounds total.
(Code 1961, § 36-16(A)(3))

Sec. 30-169. Brick or six-inch vertical cell tile.

Brick or six-inch vertical cell tile shall be clean, whole, free from cracks or warpage, and shall produce a ringing sound when two (2) bricks are struck together.
(Code 1961, § 36-16(A)(4))

Sec. 30-170. Subdrain tile.

Subdrain tile shall conform to current ASTM specifications and shall pass standard methods of testing A.A.S.H.O.
(Code 1961, § 36-16(A)(5))

Sec. 30-171. Filter medium.

Filter medium shall meet current state highway specifications for filter rock.
(Code 1961, § 36-16(A)(6))

Sec. 30-172. Portland cement concrete for sidewalks and appurtenances.

(a) Portland cement concrete for sidewalks and appurtenances shall have a minimum compressive strength of not less than two thousand (2,000) pounds per square inch in twenty-eight (28) days. Its maximum slump in place shall not exceed four (4) inches. Concrete shall be mixed in accordance with current ASTM requirements.

(b) Portland cement shall conform to current ASTM standards.

(c) Sand shall be clean, sound, properly graded, and free from organic materials that might seriously reduce the strength of the concrete, and shall meet all requirements in division 2 of this article.

(d) Aggregate shall be of hard, durable rock or gravel, and shall be free from shale, chert, or organic material. The aggregate shall be well graded in size between one-fourth inch and one (1) inch.

(e) Water used in mix shall be potable, i.e., drinkable, and shall be clean and free from oils, salts, and other injurious substances.
(Code 1961, § 36-16(A)(7))

Sec. 30-173. Excavation and fills in the right-of-way.

(a) Excavation in the right-of-way shall consist of clearing and grubbing, site grading, and excavation and fills as outlined in this section.

(b) Clearing and grubbing shall consist of the entire removal and satisfactory disposal of any trees, stumps, logs, and other vegetation, and all debris within the right-of-way, or as indicated on the plans, and/or as directed by the owner's engineer. Where stumps are at least two (2) feet under this subgrade, they may be sawed off flush with the ground.

(c) Site grading shall conform to the slopes and grades specified for the intent and purpose for which the work is required. The work may be executed by any approved method and by the use of any excavating and transporting equipment adapted to the work. The finished graded surface

shall present a neat, smooth surface, free from all obstructions, except trees designated to be left in place.

(d) Excavation shall consist of all cutting in the roadway and adjacent areas, and the cutting and removal of all unsuitable material, regardless of character, from the subgrade, all in conformity with the lines and grade shown on the plans. Unless directed by the owner's engineer, excavation shall not be carried below the elevations indicated on the drawings except when soft or otherwise unsuitable material is encountered. This material shall be removed and replaced with suitable material in accordance with the procedure specified for fills, with the further provision that all loose rock or boulders found in the subgrade shall be broken off and removed to a depth of not less than six (6) inches below the surface of the subgrade. Suitable material shall consist of earth, sand, gravel, or other satisfactory materials.

(e) Fills shall be built up with suitable materials from excavation which is free from mulch, trees, tree boles, rubbish, and frozen materials. Earth or friable materials used in constructing fills shall be placed in successive horizontal layers of loose material not more than eight (8) inches in depth. Each layer shall be spread uniformly and shall be wetted and rolled with a sheepsfoot roller, pneumatic tired roller, and other approved equipment, until thoroughly compacted to ninety (90) percent of maximum density obtained at optimum moisture content, as determined by the modified Proctor compaction test.

(f) Where rock is to be incorporated in fills composed largely of earth or friable materials, the rock shall be reduced to a maximum size of six (6) inches with the further provision that no rock of six-inch maximum size be within six (6) inches of the finished subgrade. Subgrade compaction shall extend a minimum distance of one (1) foot beyond the outside edges of the pavement and/or curb and gutter, and a maximum distance as determined by the width of right-of-way. Except as otherwise provided, the top six (6) inches of subgrade in every area shall be compacted to ninety-five (95) percent of maximum density obtained at optimum moisture content, as determined by the modified Proctor compaction test. The owner's engineer shall notify the department of planning and development and in matters of construction of public projects contracted with or performed by public works, the public works department at least twelve (12) hours prior to placing any material on the completed subgrade in order that the appropriate department may check the line, grade, and crown of the subgrade. If the appropriate department does not make the inspection after proper notification within the twelve-hour period the subgrade shall be deemed approved.

(g) In those instances where more than one (1) inspection by the department of planning and development and in matters of construction of public projects contracted with or performed by public works, the public works department is necessary due to what is determined by the first inspection to be unsatisfactory construction an inspection fee of twenty-five dollars ($25.00) shall be assessed against the contractor for each such additional inspection. Provided; however, where there is evidence that such unsatisfactory construction resulted by reason of an Act of God, or through no fault of the contractor or owner then no such inspection fee shall be assessed regardless of the number of inspections necessary.

(h) Upon completion of all excavation and fill within the right-of-way, the planning and development department and in matters of construction of public projects contracted with or performed by public works, the public works department may require additional proctor density tests at any given location to determine the compaction of the subgrade. The costs of all tests shall be borne by the contractor.

(i) All utility lines under any improvement shall be laid prior to setting any forms for construction. As soon as the joints of the utility lines have hardened to such an extent that they will not be damaged by backfilling, suitable materials from the spoil bank shall be brought up in compacted layers not exceeding eight (8) inches in depth of loose material. The first layer shall not extend above the spring line of the pipe

in any case. Compaction of backfill shall be carefully and thoroughly done so as not to displace utility lines from their original positions. All the backfill materials shall be at optimum moisture, and shall meet density requirements outlined in this section. Every subdivision or improvement district installing utility lines underground within the right-of-way of the public streets in this city and all public utilities, including municipal-owned utilities, shall post with the city collector, a surety bond of five thousand dollars ($5,000.00), approved by the city attorney, conditioned so as to guarantee compliance with the specifications provided for in this division, which shall include the costs of tests and repairs. If the engineer of the project or the department of planning and development and in matters of construction of public projects contracted with or performed by public works, the public works department questions the matter of compliance with specifications, then he shall direct that a density test be made, the findings of which shall be conclusive.
(Code 1961, § 36-16(B)(1); Ord. No. 17,697, § 2a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-174. Pipe culverts and storm sewers.

The installation of culverts and storm sewer shall be in accordance with Section 13, Pipe Culverts and Storm Drainage Piping, of the City of Little Rock Technical Specifications, Latest Edition.
(Code 1961, § 36-16(B)(2); Ord. No. 17,716, § 1b, 4-21-98)

Sec. 30-175. Catch basins, drop inlets, and junction boxes.

(a) Concrete floors for catch basins, drop inlets, and junction boxes shall be poured at least twenty-four (24) hours prior to beginning construction on the walls. Floors shall be constructed to the full outside dimensions indicated in the plans. Walls shall be so constructed as to form a tight joint with the floor and around all inlet and the outlet pipes. Walls may be constructed of plain concrete or reinforced concrete meeting requirements outlined in section 30-102, or brick masonry, as required by the owner's engineer. Forms for concrete walls shall be smooth on the inside face and shall be securely staked to conform with the lines and grades established by the owner's engineer.

(b) They shall be set in such a way to prevent springing when concrete is placed against them. All forms shall be cleaned and oiled before concrete is placed against them. No concrete shall be poured until the owner's engineer has inspected the forms, the placing of reinforcing steel and castings, and has given his approval to proceed with the work. All castings shall be set accurately to the finished elevations. They shall be set in full mortar belts with firm bearing on the walls or securely fastened to the forms so that no movement will occur when concrete is poured around them.

(c) In construction of brick masonry walls, the brick shall be thoroughly wetted immediately before being laid, and they shall be laid in full courses in full and close mortar joints. At least one (1) course in every seven (7) courses shall be composed of headers. No spalls or bats shall be used except for shaping around irregular openings. All joints shall be completely filled with mortar. Portland cement mortar shall be proportioned one (1) part of cement to two (2) parts of sand. Retempering of mortar will not be permitted.
(Code 1961, § 36-16(B)(3))

Sec. 30-176. Subdrain tile.

The owner's engineer shall determine areas where subdrain tile will be required. All trench excavation for the installation of subdrain tile shall be carried to the depth and width deemed necessary by the owner's engineer. Trenches shall be inspected and approved by the engineer prior to placing any filter stone or subdrain tile. The uniform layer of filter stone at least four (4) inches deep shall be placed in the bottom of the approved trench prior to installing subdrain tile. The subdrain tile shall be laid to the lines and grades established by the engineer. The joints between successive tiles shall be opened approximately one-fourth inch, and the upper half of the joint shall be covered with building

felt or other approved material. The tile shall then be covered with filter stone to the required elevation.
(Code 1961, § 36-16(B)(4))

Sec. 30-177. Construction of sidewalks.

(a) All sidewalks shall be constructed to the grades heretofore established for the streets on which sidewalks are to be laid. Sidewalks shall be constructed with a flat surface and shall be pitched toward the curb at the rate of one-quarter (¼) inch per foot, unless otherwise directed by the appropriate city official. The width of sidewalks in all residential areas shall be five (5) feet except in the case of repairs to existing sidewalks, in which case the repairs shall conform to the present width.

(b) Transverse expansion joints not less than one-half inch thick of the premolded, nonextruding type shall be placed every sixty (60) feet along sidewalks, and at all points where walks bear against curbs, buildings, or other structures. All concrete shall be cut at least twenty (20) percent of the full depth of the sidewalk at intervals equal to the width of the walk. All corners shall be rounded so as not to leave any square edges or sharp projections.
(Code 1961, § 36-16(B)(5); Ord. No. 17,697, § 2a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-178. Adjusting manholes, etc., to proper grade.

The paving contractor shall see that all valve boxes, manhole covers, cleanouts, etc., are set to the proper grade as established by the owner's engineer, and shall carefully finish all pavement to them. The contractor and utility company shall be responsible for all valve boxes, manhole covers, and cleanouts, etc., which might be sealed shut during construction operations. Any boxes or covers damaged by the contractor shall be repaired by him before paving, and he shall bring such damages to the owner's engineer's attention.
(Code 1961, § 36-16(B)(6))

Sec. 30-179. Tests.

(a) Tests for compaction of fills and subgrade shall be run by a reputable testing laboratory and shall be made in accordance with procedures outlined by modified Proctor by the A.A.S.H.O.

(b) Tests of concrete shall be in accordance with section 30-112.

(c) Tests of pipe and subdrain tile shall be in accordance with latest revised standard methods of ASTM.
(Code 1961, § 36-16(C)(1)—(C)(3))

Sec. 30-180. Final inspection.

Prior to final inspection, the contractor shall be required to make a general cleanup of the construction area. All backslopes of cut and fill areas and backfills of storm sewers, catch basins, drop inlets, junction boxes, subdrain tiles, sidewalks, and other structures shall be properly dressed to a firm, neat, and clean surface, free from defects of any kind. Providing all construction meets the requirements of the city, the department of planning and development and in matters of construction of public projects contracted with or performed by public works, the public works department shall issue approval.
(Code 1961, § 36-16(c)(4); Ord. No. 17,697, § 2a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-181. Amendments.

For the purpose of providing for the public health, safety and general welfare, the board of directors may amend the provisions of this chapter. The public works department has the responsibility for updating on a continuing basis the City of Little Rock Technical Specifications for Public Works and Facilities Improvements.
(Ord. No. 17,716, § 2, 4-21-98; Ord. No. 21,867, § 1, 5-19-20)

Secs. 30-182—30-195. Reserved.

DIVISION 5. RESERVED*

Secs. 30-196—30-215. Reserved.

*__Editor's note—__Ord. No. 21,867, § 1, adopted May 19, 2020, repealed div. 5, which pertained to diagrams, and derived from the original Code.

ARTICLE IV. BARRICADING OF CONSTRUCTION IN PUBLIC RIGHTS-OF-WAY

Sec. 30-216. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 30-217. Article supplemental to building code.

The provisions of this article are as supplemental to the building code.
(Code 1961, § 36-47)

Sec. 30-218. Submission of barricade plan.

Any person who shall undertake to perform any work upon, in, under, above or about any street, alley, curb, gutter, sidewalk, or any public right-of-way within the city shall, as a condition upon the issuance and continuation of a permit for such work, furnish to the department of public works, prior to the issuance of any permit for the work, a scale plat or sketch on forms furnished by the city showing the work area, the space within the right-of-way required for the work and a proposed barricade plan for the use of barricades, signals, signs, flags, flares and other traffic-control and safety devices about the work area. The barricade plan shall conform to this article and any regulations or standards established by the department and shall be deemed a part of the permit. This section shall not apply to utility companies or the city when engaged in work involving overhead signals, communications and/or electric circuits. However, adequate warning devices shall be used in the performance of this work.
(Code 1961, § 36-44)

Sec. 30-219. Requirements of barricade plan.

The public works department shall have the power to make reasonable regulations for the barricading of construction areas within the right-of-way. The city may require, as a part of any barricade plan, that the applicant maintain such barricades, signals, signs, or other traffic-control or safety devices according to such regulations. The city may require that work be done only at certain hours during the day or night, that materials or equipment used in such work and dirt and materials removed from any excavation be located other than adjacent to the work area where feasible, and that any excavation be covered with materials of sufficient strength and construction to permit vehicular traffic to pass over such excavation at peak traffic hours, where such requirements are necessary in the interests of safety and to avoid traffic congestion.
(Code 1961, § 36-45; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-220. Fee.

The area of public property on which fees shall be paid shall be that space, enclosed within and occupied by any barricade, fence, covered walkway or tunnel. Fee may be waived in conjunction with application for new building permit. Charges shall be made for the day, and any fraction of a day, on the following basis: for public space occupied, one cent ($0.01) per square foot, with a minimum fee of thirty dollars ($30.00) per day.
(Ord. No. 15,391, § 1, 12-9-87; Ord. No. 15,777, § 1(I)(C), 11-7-89; Ord. No. 17,066, § 1.I.C., 12-26-95)

Sec. 30-221. Action by city to correct deficiencies.

In the event a stop order is issued, the person holding the permit and engaging in the work shall restore the work area to its proper condition as called for in the barricade plan and permit upon demand by the city and in the event such is not done within twenty-four (24) hours from receipt of notice to do so, the city shall be authorized to and may, at its election, take charge of the work and restore the premises to the condition called for in the barricade plan and permit and shall be entitled to receive from the contractor by civil action twice the actual expense incurred by the city in so acting including, but not limited to, cost of labor, materials, overhead, and reasonable rental of any equipment used by the city in restoring the site, and for such purposes, the city shall have a right of action against any bond in effect running from the

holder of the permit to the city conditioned upon compliance with the ordinances of the city in the performance of the work.
(Code 1961, § 36-46)

Secs. 30-222—30-240. Reserved.

ARTICLE V. RESTORATION OF EXCAVATIONS AND CUTS IN STREETS OR ALLEY RIGHTS-OF-WAY*

Sec. 30-241. Definitions.

Applicant means any person, firm, corporation, partnership, or association of any nature whatsoever, including any governmental entity, seeking a permit to make, or cause to be made, any excavation, cut or boring in any city street, alley, or other public property.

City manager means the city manager, or designee, responsible for enforcing the terms of this article.

Minor maintenance work means work done by a permit holder that involves four hundred (400) continuous linear feet or less of the paved portion of the public right-of-way.

Permit holder means any applicant that has been granted a permit pursuant to the terms of this article.

Public right-of-way means any city street, alley or other public property.
(Ord. No. 17,512, § 1, 7-1-97)

Sec. 30-242. Findings and purpose.

The board of directors finds that the city has experienced development, construction and maintenance operations by utilities and other entities which require excavations and cuts in public streets, alleys, and other properties. These excavations or cuts occur because of such things as the installation of water lines, sanitary sewers, drainage structures, other utilities, or the replacement, improvement or maintenance of such systems. When these excavations or cuts occur, significant problems face the city because of the vast number of cuts, the occasional poor restoration techniques, or the multiple cuts in the same area by different entities because there is no need to contact other utilities. As a result, there is a real potential for serious deterioration of the paved rights-of-way and, on occasion, a possible hidden threat to the public safety. As a result, an ordinance is required that sets forth in detail the responsibilities of any entity that uses the public rights-of-way, through franchise or other legal authority, and in the course of, or in furtherance of, that use, causes excavations or cuts to occur.
(Ord. No. 17,512, § 2, 7-1-97)

Sec. 30-243. General permit requirement.

(a) Except as set forth in subsection (b), it shall be unlawful for applicant, to make or cause to be made any excavation or cut in the public right-of-way without having first obtained a written permit.

(b) A written permit is not required prior to an excavation, cut or boring of any public right-of-way if, and only if:

(1) The excavation, cut or bore is made as a result of an emergency situation in which the destruction of life or property is imminent or is necessary to restore basic service, and

(2) The city manager is notified at the earliest possible moment, but in any event, no later than the first business day after the excavation, cut or bore is made.

(c) The provision of this article that requires notice to other utilities or entities before a permit can be granted shall not apply to minor maintenance work.
(Ord. No. 17,512, § 3, 7-1-97)

*__Editor's note—__Ord. No. 17,512, §§ 1—9, adopted July 1, 1997, amended Art. V of Ch. 30 with new provisions as set out herein. Former Art. V pertained to similar subject matter and derived from the Code of 1961, §§ 36-81; 36-82(a)—(e), (g)—(m); 36-83(a)—(d); 36-84—36-88; and Ord. No. 15,988, § 4, adopted Dec. 18, 1990.

Sec. 30-244. General standards.

(a) The public works department shall direct that a process for obtaining permits to make excavations, cuts or bores in the public [right of way] is established and published. This process shall include, among other things:

(1) The name of the appropriate city department to contact in order to obtain a permit, or to report an emergency excavation or cut;

(2) The city department that will be responsible for the day to day administration and enforcement of this article;

(3) The process for notifying other public utilities of an intent to make an excavation or cut in the public right-of-way in order to participate in the excavation or cut;

(4) The time frame for submitting plans to the appropriate department for the work to be done, including the restoration work required, with notice that no permit shall be issued until the review process has been completed;

(5) The city department responsible for approving the barricade plan to be in place while the excavation, cutting or boring occurs;

(6) The temporary and permanent restoration requirements to be met during the course of, or the completion of, the excavation, cutting or boring including, but not limited to, the type and grade of materials that shall be required.

(b) *Boring preferred.* Notwithstanding any other provision of this article, it is the preference of the city that boring or pushing of utility services under city streets, alleys, or other public property, occur instead of excavations or cuts. Even so, the permitting process set forth in this article shall be met, and all tunneling plans shall be subject to approval of the city manager.

(c) *Surety bond.* If the bond is not required by the applicant's franchise agreement, the city manager shall determine the amount of any surety bond that is appropriate to ensure the completion of a project and fulfillment of all requirements set forth in this article and the procedures adopted pursuant to this article:

(1) The applicant shall post the required bond as an additional condition to the issuance of a permit to excavate, cut or bore in the public right-of-way; and,

(2) The failure to post this bond in a timely manner shall be the basis for denying a permit, or the basis for revoking a permit previously issued; and,

(3) This surety bond shall remain in place at least for the period of time necessary to complete the work set forth in the permit and, may be required for such additional period of time as deemed appropriate by the city manager.

(4) Notwithstanding the above listed requirements, if the permit application is only for minor maintenance work, a permit may be issued without further review to an applicant who has a ten thousand dollar ($10,000.00) corporate surety bond on file with the city clerk, provided that after the issuance of the permit, additional surety may be required if the city manager determines that such security is necessary to ensure the completion of the project.

(d) *Fees.* The applicant for a permit to excavate, cut or bore in the public right-of-way shall, as a condition of any permit, pay a fee according to the provisions of sections 30-245 and 30-246 of this article.

(e) *Limitations on application by mail.* The city manager may permit applications for permits to be made by mail, provided that no mail-in permit request shall be accepted in the following instances:

(1) Excavations, cuts or bores in street intersections for which there are traffic signals in place or under construction;

(2) Excavations, cuts or bores in a part of the public right-of-way that is the subject of

a major construction, maintenance, or replacement project currently under review by the city; or

(3) Excavations, cuts or bores in an arterial or collector street, as defined in the master street plan, if at anytime during the construction process, the work requires a total street closure.

(f) *Paint or marking compounds.* No permanent paint or marking compound shall be used to locate the right-of-way, or for any other purpose associated with the boring, excavation or cut of the public streets, alleys, or public property. Any temporary paint or marking compound used shall be of a type that will deteriorate over time, but in any event, will not be discernible thirty (30) days after it is applied regardless of the date that work under any permit is completed.

(g) *City signs, conduits or facilities to be undisturbed.* No work done under a permit issued pursuant to this article shall disturb any city signs, conduits, or other facilities unless expressly permitted by the city manager.

(h) *Minimum width.* All excavations or cuts in paved surfaces shall have a minimum uniform width of twelve (12) inches unless a different width is expressly authorized by the city manager. All excavations, or cuts in paved surfaces shall be smoothly cut or sawed and shall have a neat appearance.
(Ord. No. 17,512, § 4, 7-1-97; Ord. No. 17,697, § 2a, e, 3-17-98)

Sec. 30-245. Restoration.

(a) *Restoration required.* Any boring, excavation, or cut, made pursuant to the terms of this article shall be restored. Temporary restoration shall occur immediately upon completion of the work that required the boring, excavation or cut. Permanent restoration shall be completed by the applicant or, if agreed to in writing with the city manager, shall be completed by the city.

(b) *Resurfacing.* The applicant shall resurface the full width of any street lane and replace pavement markings in the public right-of-way where there has been an excavation or cut. If the city has scheduled a resurfacing project which includes the applicant's permitted area, the applicant and the city manager may contractually agree for the applicant to pay a proportionate share of the city's costs of resurfacing rather than requiring the applicant to resurface the area. Resurfacing shall not be required for minor maintenance.

(c) *Temporary restoration.*

(1) No materials removed from boring, excavation, or cut, shall be used as backfill material. This limitation applies to pieces of broken concrete or asphalt.

(2) The top six (6) inches of backfill material shall be compacted to ninety-five (95) percent of maximum density as determined by the modified Proctor compaction test.

(3) The surface course shall consist of a two inch application of cold mix asphalt for asphalt streets, concrete streets or streets with single or double penetration surface treatments. For gravel streets and alleys, the top six (6) inches of backfill material shall meet Class 7 of the most current Arkansas State Highway Commission Standard Specifications, and shall be compacted to conform to the surrounding surface.

(4) The applicant is permitted to use any or all of the following as backfill material:

a. Crushed rock and natural fines uniformly mixed and so proportioned as to meet the specifications for Class 7 as reflected in the most recent edition of the Arkansas State Highway Commission Standard Specifications;

b. Crushed rock, or other selected material approved by the city manager or his designee, that is free of debris and excess moisture, when compacted to a minimum of ninety (90) percent density as determined by the modified Proctor compaction test;

c. Compacted river sand or lean mix concrete if the use of this material has been previously approved by the city manager.

(5) The applicant is wholly responsible for making temporary restorations consistent with the standards set forth in this article. Any temporary restoration must be of sufficient quality, as determined by the city manager, to bring the city street, alley, or public property, back to its original usefulness and must be capable of supporting normal traffic use for a period of thirty (30) days.

(6) Inspections shall be made by the city of any temporary restoration. If the temporary restoration does not meet the standards of this article, then the permit holder shall be required to correct the situation within forty-eight (48) hours.

(7) Any temporary restoration shall be replaced by the applicant with the appropriate permanent restoration within thirty-five (35) days of the date of issuance of permit. Any temporary restorations remaining after that time shall be repaired by the city and the cost of such repair shall be paid by the permit holder or shall be claimed from the surety bond required pursuant to this article. The city manager shall grant an extension of the thirty-five (35) days if a delay is caused by inclement weather. In such case, the applicant will be responsible for temporary repairs until permanent restoration is in place.

(d) *Permanent restoration.*

(1) Unless otherwise agreed to in writing by the city manager and the applicant, the applicant shall make all permanent restorations of any street or alley pavement in which there has been a boring, excavation, or cut made pursuant to this article.

(2) Arterials and collectors. Permanent restoration of concrete or asphalt streets designated as arterials or collectors by the master street plan shall be as follows:

a. Except as set forth in this subsection, all backfill and compaction requirements shall comply with subsection 30-245(c) concerning temporary restorations; and

b. Backfill material shall be removed to a depth of eight (8) inches for concrete streets and ten (10) inches for asphalt streets. Further,

1. If the street is concrete, eight (8) inches of three thousand (3,000) pound per square inch P.C. concrete, meeting the specifications of the Arkansas Highway Department, shall be placed to provide the final restored surface;

2. If the street is asphalt, eight (8) inches of three thousand (3,000) psi P.C. concrete shall be placed to within two (2) inches of the street surface and, as soon as the concrete has cured, a bituminous tack coat shall be applied to the concrete and the sides of the cut, and then two (2) inches of hot mix asphaltic concrete, meeting Arkansas State Highway specifications, shall be applied.

(3) Streets and surfaces other than arterial and collector streets. The permanent restoration of surfaces other than those of arterial and collector streets shall be made as follows:

a. Except as set forth in this subsection, all backfill and compaction requirements shall comply with subsection 30-245(c) concerning temporary restorations;

b. If the surface is concrete, the top six (6) inches of backfill shall be removed and replaced with six (6) inches of

three thousand (3,000) psi concrete, and then finished to conform with the surrounding surface;

c. If the surface is asphalt or single or double penetration surface treatment, the top eight (8) inches of backfill shall be removed and replaced with six (6) inches of hot binder asphaltic concrete in two (2) inch lifts, with the final two (2) inches consisting of asphaltic concrete surface course to conform with the surrounding surface;

d. If the surface is gravel, gravel shall be added as required and compacted to conform with the surrounding surface.

(e) *Notice.* Applicants authorized, or required, to make permanent restorations pursuant to this article shall notify the city manager on the first business day after the completion of the permanent restoration for each permit.

(f) *Sidewalks, driveways or curbs.* All removed or undercut sidewalks, driveways and curbs shall be restored by the permit holder in accordance with this article and any other applicable ordinance. The applicant shall be responsible for protecting any shoulders, ditches, and other drainage structures in the work area and, if damaged in any way whatsoever during the time of the permit, shall make all necessary repairs. Notification of completion shall be in compliance with the standards established by the city manager.

(g) *Grasses and vegetation.* To the extent possible, the applicant shall restore or replace all planted grasses and vegetation, including trees of the same height and character. The city manager shall permit modifications to this aspect of the restoration plan in appropriate cases. Notification of completion shall be in compliance with the standards established by the city manager.

(h) *Excess material or debris.* When any temporary or final restoration is completed, all excess material, debris, mud, or other foreign materials shall be removed from the street, alley, or other public property involved in the permit, and the surface shall, to the satisfaction of the city manager, be restored to its original condition.

(i) *Agreements for final restoration not prohibited.* Nothing in this article shall prohibit the city manager from entering into written agreements with any permit holder concerning the final restorations, provided that the terms of any such agreements shall comply with the requirements of this article or shall be determined by the city manager to utilize new procedures that comply with the purposes of this article, and, provided further, that the city shall receive a reasonable inspection fee for the final inspection of any work done pursuant to such an agreement.
(Ord. No. 17,512, § 5, 7-1-97)

Sec. 30-246. Permits and fees—Basis for assessment.

(a) The department of public works shall issue all permits for boring, excavations, or cuts in the public right-of-way as follows:

(1) Any work involving extensive longitudinal cuts for the purpose of installing, maintaining or repairing trunk or main lines shall require multiple permits;

(2) Separate permits shall be required for all service lines;

(3) Permit limits shall be determined by existing or planned features such as manholes, hand holes, junction boxes, directional changes, and street intersections, but in any event shall not exceed five hundred (500) linear feet.

(b) Permit fees for the boring, excavation or cut, shall be two dollars ($2.00) per foot for the first fifty (50) feet of the boring, excavation or cut, or any fraction thereof, and one dollar ($1.00) per foot for each additional foot, or any fraction thereof.

(c) Inspection fees, except for boring, shall be twenty-five dollars ($25.00) for the first three hundred (300) feet, or fraction thereof, of restoration, and fifteen dollars ($15.00) for each additional three hundred (300) feet, or fraction thereof.

(d) For boring that does not break the surface, the maximum inspection fee shall be twenty-five dollars ($25.00). If the boring does break the surface, the fees shall be those delineated in subsections 30-246(c).

(e) If the applicant does not do the final restorations, then in addition to any other fee set forth in this article, the city shall bill the permit holder the actual cost of such restoration and payment shall be due upon receipt of this bill.
(Ord. No. 17, 512, § 6, 7-1-97; Ord. No. 18,425, § 1, 2-6-01)

Sec. 30-247. Shared excavations or cuts.

The city has a vested interest in assuring that any disruption of the flow of traffic, or the digging of any trench, excavation, or cut, in the paved portion of the public right-of-way, be kept to a minimum. In order to facilitate this interest, the city shall provide notice to any other utility or entity known to seek permits under this article that an application for a permit for other than minor maintenance has been made. Final approval of any permit shall be withheld for fifteen (15) calendar days so any other utility or entity that desires to do so may make arrangements to simultaneously excavate, cut, lay conduit, or place equipment in the paved portion of the public right-of-way.
(Ord. No. 17,512, § 7, 7-1-97)

Sec. 30-248. Premiums.

For minor maintenance only, in addition to any other cost for fees set forth in this article, whenever an applicant seeks a permit pursuant to the terms of this article that involves the excavation or cut in the paved portion of the public right-of-way that has been improved by paving, reconstruction, or resurfacing within the immediately preceding five-year period, the applicant shall be required to pay the city the larger sum of two hundred dollars ($200.00) per square yard of excavation, or cut, or a minimum fee of five hundred dollars ($500.00) for each excavation or cut made within twelve (12) months of the date the surface was paved, reconstructed, or resurfaced. In the subsequent twelve month periods, this premium shall be:

Period	*Basic fee per square yard*	*Minimum fee*
13-24 months	$160.00	$400.00
25-36 months	120.00	300.00
37-48 months	80.00	200.00
49-60 months	40.00	100.00

(Ord. No. 17,512, § 8, 7-1-97)

Sec. 30-249. Penalties.

The failure of any person, firm, corporation, governmental entity, or association of any kind to comply with this article, shall result in a penalty of five thousand dollars ($5,000.00) and a premium fee equal to twice the amount of any permit fee required by this article. Failure to comply means that a person, firm, corporation, governmental entity, or association of any kind, fails to seek a permit to bore, excavate, lay conduit, or place equipment in any public right-of-way prior to beginning such activity.
(Ord. No. 17,512, § 9, 7-1-97)

Secs. 30-250—30-275. Reserved.

ARTICLE VI. BOUNDARY STREET IMPROVEMENTS AND RIGHT-OF-WAY DEDICATIONS

Sec. 30-276. Definitions.

The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning. Definitions not expressly prescribed herein are to be construed in accordance with customary usage in municipal planning and engineering practice.

Alignment means the designated or optimal engineered location for the centerline of the street or roadway consistent with proper grade and curvature criteria.

Boundary street means an existing street abutting on only one (1) side of the parcel of land to be subdivided.

Boundary street improvement means all improvements required by this article in the public right-of-way which abut either the subdivision or construction project.

Handicapped access ramps means ramps and supporting structural features required for safe access in the public right-of-way by handicapped persons as defined by section 30-50.

In-lieu contribution means a cash contribution for required boundary street improvements instead of immediate construction. (In lieu contributions may be used with approval of the public works department for street construction, reconstruction, widening, alignment and/or realignment (both vertical and horizontal), curb and gutter, curb and gutter alignment and realignment (both vertical and horizontal), standard drainage structures and piping, driveways, excavation for cuts and/or fill sections, extensive drainage structures and all other associated permanent construction.

Master street plan means the official street plan for the city.

One-half street section means the area to the legal centerline of the required roadway and all of the required roadway facilities. (The right-of-way centerline shall be deemed to be the plat boundary. Where a clearly defined right-of-way does not exist, the public works department shall establish the centerline location.)
(Code 1961, § 36-101; Ord. No. 17,697, § 2f, 3-17-98)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 30-277. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 30-278. Findings and purpose.

(a) Land development in the city frequently requires right-of-way dedications and boundary street improvements for public streets. Development within the public right-of-way may include: Street construction or reconstruction; street widening; street alignment and realignment (both vertical and horizontal); curb and gutter; curb and gutter alignment and realignment (both vertical and horizontal); standard drainage structures and piping; driveways; extension excavation for cuts or fill sections; extensive drainage structures (such as bridges or large culverts); and similar development that results in permanent construction.

(b) Significant engineering design, utility, and construction problems have resulted when development has occurred without associated right-of-way dedication and roadway and drainage improvements. Lack of right-of-way dedication and associated roadway and drainage improvements can result in costly relocation of utilities, and costly redesign and reconstruction of roadway and drainage improvements. Lack of roadway and drainage improvements may result in inadequate access to abutting property, traffic congestion, unsafe traffic operations, and otherwise adversely affect the safety and general welfare of the city.

(c) Therefore, this article is intended to establish requirements for boundary street improvements within rights-of-way; to establish holding accounts for in-lieu contributions for construction of off-site improvements; to establish requirements for dedication of rights-of-way for boundary street improvements; and to assure proper engineering design and construction of boundary street improvements in the public right-of-way.
(Code 1961, § 36-102)

Sec. 30-279. Administration.

(a) The planning commission shall be responsible for requiring improvements in the public right-of-way consistent with chapter 31.

(b) The department of planning and development shall be responsible for requiring improvements in the public rights-of-way for all other construction.

(c) The finance department shall be responsible for receiving, recording, depositing and reporting in-lieu cash contributions as determined by the planning commission or the department of planning and development. The finance department

shall maintain a boundary street improvement account and shall furnish a yearly report summarizing the account to the public works department. This report shall include both the principal and the interest earned for the accounting period.

(d) The public works department shall maintain records of in-lieu cash contributions and shall prepare a yearly summary report.
(Code 1961, § 36-104; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 17,697, § 2a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-280. Appeals.

Any person aggrieved by an action or omission of the department of planning and development in administering the provisions of this article shall have the right of appeal. Subdivision matters shall be appealed to the planning commission. All other construction project matters shall be appealed to the mayor.
(Code 1961, § 36-108; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-281. General requirements.

(a) No person shall construct, reconstruct, alter, remove or replace any curb, curb and gutter, section of street, sidewalk, handicapped access ramp, drainage structure, or driveway on public property within the city without first having obtained a permit from the department of planning and development. All construction, reconstruction, alteration, removal or replacement required by this article shall conform to the approved design standards of the department. The developer or owner shall dedicate rights-of-way and construct boundary street improvements as required in the master street plan and chapter 31.

(b) Boundary street improvements shall include, but not be limited to, the following:

(1) Reconstruction of one-half section of the abutting street if the existing street not up to city standards.

(2) Widening of one-half section of the abutting street to city standards.

(3) Reconstruction or construction of the entire street section of the street if the existing street is not up to city standards and is located wholly within one (1) development.

(4) Curb and gutter for the length of the project boundary that adjoins the street.

(5) Sidewalks.

(6) Standard drainage piping and drainage structures.

(7) One hundred (100) percent bridge and box culvert construction on streets other than arterial streets.

(8) One hundred (100) percent bridge or box culvert construction on arterial streets for the initial fifteen (15.0) feet of span length. (Span lengths are measured perpendicular from supporting walls. The city shall be responsible for the additional cost of bridge or box culverts in which the total structure length exceeds fifteen (15) linear feet. The city shall determine when its participation begins. Project priorities will be chosen by the public works department based upon public benefit and engineering considerations. Project selection will not be based on a chronological listing, such as the plan approval date.)

(9) Other standard roadway or drainage improvements required by ordinance.

(c) For the purposes of requiring sidewalk construction within the industrial used or zoned areas of the City of Little Rock, there shall be three (3) exclusion zones. These zones shall not be assessed sidewalk construction requirements except as follows:

(1) Entirely new streets with pavement, curb and gutter, serving newly platted lots and tying to existing sidewalk.

The boundary of each of the three (3) exclusion zones shall be as provided in section 31-175(11) of the Little Rock subdivision regulations. They are: West 65th industrial area, Little Rock Port industrial area, and airport industrial area.
(Code 1961, § 36-103; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,374, § 1(a), 3-2-93; Ord. No. 17,697, § 2a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-282. In-lieu requirements.

In-lieu cash contributions may be allowed if:

(1) The horizontal alignment of the existing street pavement or right-of-way is such that the required minimum radius centerline alignment is not obtainable without participation of adjacent properties not being developed, or, where the alignment would result in an unreasonable burden, as determined by the appropriate department. Maximum width of construction shall be one-half (½) of the street.

(2) The proposed horizontal centerline alignment of the existing pavement does not coincide with either the existing centerline of right-of-way, or the land line, the discrepancy being so large as to:

a. Necessitate the construction of more than one-half street width.

b. Necessitate construction of new curb within the projected edge of the existing pavement.

(3) The vertical alignment of the existing pavement is such that:

a. The required safe stopping sight distance is not obtainable without extension of construction past the limits of the project;

b. A reasonably smooth pavement or a properly crowned and shaped cross section is not obtainable within the length and width requirements of the project; or

c. Maximum permissible centerline grades or minimum permissible gutter grades cannot reasonably and feasibly be obtained within the length and width limits of the project.

(4) The location of the existing or proposed street in the one-hundred-year floodplain precludes the construction of street and drainage facilities.

(5) A subdivision or building permit site is so located that the presence of a drainageway necessitates construction of a drainage structure which would be unfeasible as half street construction.

(6) The state of adjacent land development along the street precludes further acquisition of improvements through plat processes.

(7) The length of the property boundary along the right-of-way is less than three hundred (300) linear feet and is not located at an intersection.

(8) In lieu of constructed improvements, the developer shall contribute to the city a cash payment equal to one hundred (100) percent of a registered professional estimate of cost of construction, minus any temporary construction for site access or drainage that may be incorporated in future permanent construction, as approved by the department of planning and development. The department of planning and development shall determine the required cash payment. When no major construction or reconstruction is proposed, the developer may contribute a cash payment equal to a linear-foot cost as determined by the department of planning and development, utilizing mean averages construction cost determined by the public works department. In lieu of cash contributions shall be required only on projects listed in the most current master street plan. In lieu contributions shall be reimbursed with interest, as determined by the finance department, when not expended within ten (10) years from the date of permit approval. Those contributions placed in lieu as a requirement of chapter 31 or 36 shall be released to the owner of record or his assigns only after review and authorization by the planning commission, the board of directors, or both.

(Code 1961, § 36-105; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 17,697, § 2a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-283. Permit requirements.

(a) No permit shall be issued by the department of planning and development for any construction on private property, or for altera-

tions of a parkway or public right-of-way within the city unless the applicant has complied with the provisions of this article. The following property classifications shall comply with this article:

(1) Subdivisions.

(2) Commercial or other than private residence driveways.

(3) Commercial building permits.

(4) Shopping centers.

(5) Schools.

(6) New construction or alterations other than for single-family or two-family residences.

(b) The permit application shall be in writing accompanied by a professional engineer's plan in triplicate showing the location, design, and layout of the proposed improvement.

(c) If in-lieu contributions are to be used for subdivisions, the final plat shall not be approved until:

(1) A copy of the receipt for the required cash contribution has been received by the subdivision administrator; or

(2) Improvements are waived by the planning commission.

(d) If in-lieu contributions are to be used for projects other than subdivisions, a certificate of occupancy will not be issued until:

(1) A copy of the receipt for the required cash contribution has been received by the protective inspections section; or

(2) Improvements are waived by the public works department.

(e) Where a public project is planned, construction of improvements or in-lieu cash contributions shall be required until the day of bid opening for public improvement. On or after the day of the bid opening, the owner of unplatted property abutting the project shall not be responsible for boundary street improvements unless planned improvements do not meet the master street plan requirements.
(Code 1961, § 36-106; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 17,697, § 2a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-284. Financial hardship.

Projects other than subdivisions may require off-street improvements that constitute a substantial portion of total project cost. The department of planning and development may determine that a project involves a financial hardship and require an in-lieu cash contribution not to exceed fifteen (15) percent of the estimated total development cost.
(Code 1961, § 36-107; Ord. No. 17,697, § 2a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Secs. 30-285—30-287. Reserved.

Editor's note—Ord. No. 21,867, § 1, adopted May 19, 2020, repealed §§ 30-285—30-287, which pertained to deferral—Frazier Pike, deferral—Hilaro Springs Road, and deferral—Lile Avenue, and derived from Ord. No. 20,128, §§ 1a., 1b., adopted July 7, 2009; Ord. No. 20,144, §§ 1a., 1b., adopted Aug. 18, 2009; and Ord. No. 20,433, §§ 1a., 1b., adopted May 17, 2011.

Sec. 30-288. Deferral—Arch Street and West 28th Street.

(a) Chapter 30, article VI, requiring property owners to construct roadway improvements and dedicate right-of-way to the requirements of the master street plan be waived for the proposed development to West 28th Street adjacent to the property at 2727 South Arch Street. The specific deferral is for street widening, construction of sidewalks and right-of-way dedication on West 28th Street.

(b) Chapter 30, article VI, requiring property owners to construct roadway improvements and dedicate right-of-way to the requirements of the master street plan be waived for the proposed development to Arch Street adjacent to the property at 2727 South Arch Street. The specific request is for the deferral of the replacement of damaged or missing curb, gutter, sidewalk and access ramps and right-of-way dedication on Arch Street.

(c) If the property at 2727 South Arch Street is redeveloped or expands in the future, the owner will be required to comply with the requirements of chapter 30, article VI, to reconstruct, widen and dedicate right-of-way to the requirements of the master street plan on Arch Street and West 28th Street adjacent to the property at 2727 South Arch Street.
(Ord. No. 21,243, § 1, 5-17-16; Ord. No. 21,867, § 1, 5-19-20)

Editor's note—Ord. No. 21,867, § 1, adopted May 19, 2020, repealed §§ 30-285—30-287, which pertained to deferral—Frazier Pike, deferral—Hilaro Springs Road, and deferral—Lile Avenue. At the editor's discretion, § 30-288 has been retitled from same—Arch Street and West 28th Street to deferral—Arch Street and West 28th Street.

Sec. 30-289. Same—West Charles Bussey Avenue.

(a) Chapter 30, article VI requiring developers to construct roadway improvements to the requirements of the master street plan will be deferred for a period of five (5) years, or until adjacent development along West Charles Bussey Avenue occurs. The specific deferral is for improving West Charles Bussey Avenue as part of The United Methodist Children's Home Campus longform POD along the frontage of the property at 2002 South Fillmore Street to residential street standards including widening of thirteen (13) feet from centerline, curb, gutter, sidewalk and access ramps.

(b) On West Charles Bussey Avenue, a twenty-five-foot right-of-way dedication from centerline along the frontage of the property at 2002 South Fillmore Street will be required prior to the issuance of the certificate of occupancy for the proposed campus facility approved by the reference application.
(Ord. No. 21,412, § 1, 6-6-17)

Sec. 30-290. Same—West Markham Street.

Chapter 30, article VI requiring developers to dedicate right-of-way to the requirements of the master street plan will be deferred for a period of five (5) years, until a future phase of development, until adjacent property is developed, or until a street project is proposed to widen West Markham Street adjacent to the property, or whichever occurs first. The specific deferral is for dedication of right-of-way of width from five (5) to seven (7) feet for approximately seven hundred fifteen (715) linear-feet on West Markham Street for the frontage of the property which is part of the Markham Center Square Subdivision Site Plan Review (S-1312-A), located at 9101 West Markham Street.
(Ord. No. 21,510, § 1, 11-21-17)

Sec. 30-291. Waiver—Portion of Kanis Road.

(a) Chapter 30, article VI, requiring developers to construct roadway improvements to the requirements of the master street plan will be waived along Kanis Road. The specific waiver is from the required street improvements for approximately three hundred seven (307) linear-feet of Kanis Road adjacent to 17301 Kanis Road, as part of the West Kanis Storage PD-C (Z-5502-I), to minor arterial standards including widening, curb, gutter, sidewalk and street lights.

(b) On Kanis Road, a forty-five-foot right-of-way dedication from centerline along the frontage of the property on the south side of Kanis Road located at 17301 Kanis Road will be required prior to any construction taking place on the site.
(Ord. No. 22,091, § 1, 1-18-22)

Secs. 30-292—30-300. Reserved.

ARTICLE VII. STREET NAMES AND PROPERTY NUMBERS

DIVISION 1. GENERALLY

Sec. 30-301. Penalty.

Any person convicted of a violation of any of the provisions of this article shall be punished as provided in section 1-9.

Sec. 30-302. Technical manual adopted.

The publication entitled "Street Naming and Property Numbering Systems" prepared by Metroplan and dated September, 1985 is adopted by reference. In the event of a conflict between such publication and this article, this article controls.

Secs. 30-303—30-320. Reserved.

DIVISION 2. STREET NAMES

Sec. 30-321. Generally.

(a) There is hereby established a uniform system of street naming in the address service area of the city and all streets, avenues, and other public and private ways shall be named in accordance with the provisions of this division. A street or other public roadway running in the same direction and having an angular deviation of not more than ninety (90) degrees for a distance of not more than three hundred fifteen (315) feet, shall carry the same name unless special circumstances make such a plan impracticable or not feasible. Street names shall not be duplicated within the address service area. The part of any street ending in a permanent deadend, or cul-de-sac, shall not carry the designation street, avenue, or road but may carry the designation place, cove, trail, etc.

(b) The city may adopt further designations or any additional rules and regulations which may be required from time to time upon recommendations of the planning commission by amending this section.

Sec. 30-322. Plan.

For the purpose of clarifying and systematizing the present street naming pattern in the address service area and to implement this division, there is hereby adopted the following plan.

(1) The planning commission is authorized to prepare and present to the department of planning and development, a recommendation for the naming of all unnamed streets, avenues, and public and private ways within the address service area of the city and to propose new names to eliminate duplications and sound-alike street names. The proposals for new names to eliminate duplications and sound-alike street names that occur in unincorporated parts of the address service area shall be reviewed with the director of county operations in accord with the letter of agreement.

(2) The following guidelines for renaming existing streets may be used as criteria when considering the changing of a duplicate or sound-alike street name:

a. Does one (1) street have any historical reason for its name?

b. Which street has the least number of structures on it and thus would require the least number of address changes?

c. Which street has had its name for the longest period of time?

d. Is the name and thoroughfare designation suffix appropriate according to other street names in the neighborhood?

e. Which street name is used for the longest distance or the most traveled section?

Priorities can be established by numerically weighing the importance of these items. Streets with the highest total number would be given priority for name retention.

(3) Developers of property are encouraged to propose street names on plats containing new streets under the guidelines of this division. All such names are subject to review by the planning commission for compliance with this article, the letter-of-agreement and the procedural manual.

(Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-323. Plats.

Every subdivision plat submitted to the department of planning and development for approval shall bear upon its face, the report of the planning commission of the proper names of any and all streets, avenues, and public ways proposed for public use including private streets within the jurisdiction of the city.

(Ord. No. 17,697, 2d, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 30-324. Changing names, etc.

The board of directors may by resolution change, rename, or name an existing or newly established street within the limits of the basing system upon recommendation of the planning commission, and after consultation with the county director of operations, and any other municipality directly affected thereby.

Sec. 30-325. Signs.

(a) Street name signs should be erected in urban areas at all street intersections regardless of other route marking that may be present, i.e., state and county route numbers. In rural parts of the addressing service area street name markers should be installed to identify important roads and at the intersection of all streets created through plats of addition for nonagriculture, forestry or mining purposes.

(b) The developers of property, when the property development is required to undergo the subdivision review process, shall erect at the developers' expense all street name signs at the intersection of any new streets and at the intersections of new streets with existing streets. The signs shall be in conformance with the specifications as administered by the public works department or when beyond the planning area of the city, the specifications as administered by the director of county operations.

(c) In nonurban areas of the county and in instances when street names are changed to eliminate duplications, whether urban or rural, and

all future streets it shall be appropriate to include the address block number on street name markers.

Secs. 30-326—30-340. Reserved.

DIVISION 3. PROPERTY NUMBERS

Sec. 30-341. System established; compliance.

There is hereby established a uniform system for numbering the property frontage on all streets, avenues, and public and private ways in the city and a part of unincorporated county as described in the letter-of-agreement pertaining thereto. All houses and other buildings shall be numbered in accordance with the provisions of this article.

Sec. 30-342. Administration and enforcement.

It shall be the duty of the public works department to inform any party applying for address numbers therefore of the number or numbers belonging to or embraced within the limits of any said lot or property as provided in this article. In case of conflict as to the proper number to be assigned to any building, the public works department shall determine the number of such building.
(Ord. No. 17,697, § 2a, 3-17-98)

Sec. 30-343. Records.

For the purpose of facilitating correct numbering, a plat book of all streets, avenues, and public ways within the city and county service area showing the proper numbers of all houses or other buildings fronting upon all streets, avenues, public or private ways shall be kept on file in the office of the public works department. These plats shall be open to inspection of all persons during the office hours of the manager. Duplicate copies of such plats shall be furnished to the public works department, building inspector and other appropriate offices or persons of the city's office staff.
(Ord. No. 17,697, § 2a, 3-17-98)

Sec. 30-344. Baseline.

(a) Main Street shall constitute the baseline for numbering buildings along all streets running northerly and southerly, and Markham Street shall constitute the baseline for numbering buildings along all streets running easterly and westerly.

(b) Each building north of Markham Street and facing a street running in a northerly direction shall carry a number and address indicating its location north of the base street. Each building south of Markham Street and facing a street running in a southerly direction shall carry a number and address indicating its location south of the base street.

(c) Each building east of Main Street and facing a street running in an easterly direction shall carry a number and address indicating its location east of the base street. Each building west of Main Street and facing a street running in a westerly direction shall carry a number and address indicating its location west of the base street.

(d) All buildings on diagonal streets shall be numbered the same as buildings on northerly and southerly streets if the diagonal runs more from the north to the south, and the same rule shall apply on easterly and westerly streets if the diagonal runs more from the east to the west. All buildings on diagonal streets having a deviation of exactly forty-five (45) degrees, shall be numbered the same as buildings on northerly and southerly streets.

Sec. 30-345. Numbering scheme.

(a) The numbering of buildings on each street shall be based on its block number. The block numbering for each street shall have begun at the baseline. All numbers assigned to property and buildings shall be assigned on the basis of one (1) for each twenty-five (25) feet of street frontage. Where a lot of record is in excess of twenty-five (25) feet of street frontage, with single building occupancy, the building shall be the nearest number within the sequence of twenty-five-foot assignment.

(b) All buildings on the south and east sides of each street shall bear odd numbers. All buildings on the north and west sides of each street shall bear even numbers. Where any building has more than one (1) entrance serving separate occupants, a separate number shall be assigned to each entrance serving a separate occupant providing said building occupies a lot, parcel, or tract having a frontage equal to twenty-five (25) feet for each such entrance. If the building is not located on a lot, parcel, or tract which would permit the assignment of one (1) number to each such entrance, numerals and letters shall be used, as set forth in section 30-346.

(c) All buildings facing streets not extending through to the baseline shall be assigned the same relative block numbers derived from the block grid system as if the street had extended to the baseline.

Sec. 30-346. Assignment of numbers; display.

(a) There shall be assigned to each house and other residential, commercial, industrial, or public building located on or gaining access to any street, avenue, or public way, its respective number under the uniform system provided for in this article.

(b) The owner or agent proposing to locate any house, building or structure in need of an address in the address service area of the city shall apply to the public works department for the assignment of the correct number or numbers. In building permit issuing area, no building permit shall be issued for structures in need of an address and no mail shall be delivered until the owner or agent has been assigned the correct address. The applicant is encouraged to post a temporary sign displaying the assigned address number at the construction site until such time the permanent number can be displayed.

(c) In those parts of the address service area where building permits are not issued, the owner or agent shall apply to the public works department for the assignment of the correct address. The address must be known by the owner or agent before electrical service is extended to the proposed building site. Final approval of any structure erected, repaired or altered for occupancy shall be withheld by the public works department and no mail shall be delivered until permanent and proper numbers have been affixed within thirty (30) days to the structure or otherwise in accord with the procedures of this article.

(d) The owner, occupant, or agent of the affected house or building shall place or cause to be placed upon each house or building, the number assigned under the address system as provided in this article. The cost of the number shall be paid for by the property owner and may be procured either from the public works department at the unit price for the same. Such price shall be the cost of such units to the city, or from any other source. Replacement of numbers shall be procured and paid for by the owner. The numbers used shall not be less than three (3) inches in height for residential structures and shall not be less than six (6) inches in height for nonresidential structures. The numbers shall be of a durable reflective material on a color-contrasting background to promote enhanced visibility.

(e) The numbers shall be conspicuously placed immediately above, on or at the side of the proper door of each building so that the number can be seen plainly from the street on which the number is based. Whenever any building is situated so that the number is not clearly discernible from the street line or vision of the building from the street is otherwise obscured, the number or numbers assigned shall be placed near the walk, driveway or common entrance to such buildings, and affixed upon a gate post, fence, mailbox, post, or other appropriate place so as to be easily discernible. Numbers painted or stenciled on the curb shall not be a lawful substitute for the display of address numbers prescribed by this article.

(f) Where only one (1) number can be assigned to any house or building and the owner, occupant, or agent of such house or building, desires distinctive numbers for the upper and lower portion of any house or building, or for any part of any such house or building fronting on any street, such owner, occupant, or agent shall be assigned the

suffix (A), (B), (C), etc., as may be required. Fractional numbers shall not be used as an alternative to alphabetical designations.

(g) Distinctive names such as 1st Place, Plaza One, or the like, may be used by owners to name business locations. However, businesses so named shall also display the correct assigned address number or numbers in accord with this article. (Ord. No. 17,697, § 2a, d, 3-17-98)

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Chapter 31

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ARTICLE I. IN GENERAL

Sec. 31-1. Short title.

This chapter may be referred to as the "subdivision regulations" or as the "subdivision ordinance." (Code 1961, § 37-1)

Sec. 31-2. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Accessory building means a building which:

(1) Is subordinate to and serves a principal building or principal use.

(2) Is subordinate in area, extent or purpose to the principal building or principal use served.

(3) Contributes to the comfort, convenience or necessity of occupants of the principal building or principal use.

(4) Is located on the same zoning lot as the principal building or principal use.

(5) Does not contain a use that would constitute a principal use of the land if separately sited.

Alley means a public or private right-of-way primarily designed to serve as a secondary access to the side of or rear of properties whose principal frontage is on some other street.

Applicant means the owner of land proposed to be subdivided or his representative.

Bill of assurance means a legal document specifying the covenants and restrictive conditions applicable to a particular property.

Block means a tract of land entirely bounded by streets, or by a combination of streets and public parks, cemeteries, railroad rights-of-way, shorelines, waterways or boundary lines of municipalities.

Buffer means a permanently natural or landscaped area serving to separate two (2) different land uses or developments.

Building line means the line within a property which defines a minimum horizontal distance to be provided between a building and the adjacent property line.

Capital improvement program means a proposed schedule of all future projects listed in order of construction priority, together with cost estimates and anticipated means of financing each project. All projects require the expenditure of public funds, over and above the annual local government's operating expenses, for the purchase, construction or replacement of the community's physical assets.

Commercial subdivision means a division of a tract or parcel of land into two (2) or more building sites for commercial uses as defined in the zoning ordinance.

Crosswalk means a strip of land dedicated for public use which is reserved across a block for the purpose of providing a pedestrian access to adjacent areas.

Cul-de-sac means a local street with one (1) outlet and having an area for turning movement or reversal of traffic at the terminus.

Director of the department of planning and development means the city official as having planning authority and authorized to administer this chapter.

Easement means authorization by a property owner for the use by another, and for a specified purpose, of any designated part of his property.

Engineer means a professional engineer registered to practice in the state.

Engineering division means the engineering staff of the department of planning and development.

Expressway means any divided street or highway with no access from abutting property and which has either separated or at-grade access from other public streets and highways.

Freeway means any divided street or highway with complete access control and grade-separated interchanges with all other public streets and highways.

Frontage road means a street parallel to and adjacent to an expressway, freeway or arterial, which provides access to abutting properties.

Grade means the slope of a road, street or other public way, specified in percentage terms.

Health department means the county health department and/or the state board of health.

Industrial subdivision means a division of a tract or parcel of land into two (2) or more building sites for industrial uses as defined in the zoning ordinance.

Loop street means a street with a continuous centerline which terminates on both ends at the same street.

Lot means a parcel of land legally defined in a recorded deed or a recorded plat, fronting on a public dedicated right-of-way or other approved private drive. The lot shall establish one (1) building site.

Lot, corner means a lot abutting upon two (2) or more streets at their intersection.

Lot, double frontage means a lot fronting on two (2) parallel streets but not including a corner lot.

Lot of record means any tract, lot, parcel or legally describable ownership existing prior to December 19, 1978. In order to qualify, a public record such as a deed or plat shall be required.

Lot, pipestem means a tract of land which is served for access, legally and physically by a narrow strip of land less than the ordinance required minimum lot width. The body of a pipe stem lot is typically an elongated figure or a polygon capturing a difficult building site behind another lot. For purposes of a variance of subdivision design for a pipe stem lot the following minimum dimensions will control:

(1) The minimum width of the stem at the street right-of-way shall be thirty (30) feet.

(2) The maximum depth of a pipe stem lot, including the stem shall be limited to three hundred (300) feet.

(3) The minimum width of the lot body shall be sixty (60) feet.

(4) The minimum lot area shall be ten thousand (10,000) square feet.

Lot, reverse frontage means a lot designed to be developed with the rear yard abutting a major street and with primary means of ingress and egress provided on a minor street.

Lot split means the dividing or redividing of a lot or lots in a recorded plat of a subdivision into not more than two (2) tracts.

Maintenance bond means a bond furnished by the subdivider or contractor to the city for a one-year period, to cover the cost of repairs resulting from defects in materials and workmanship of public improvements installed by the subdivider or his contractor.

Manufactured home subdivision means the division of a tract or parcel of land into two (2) or more manufactured home lots for the placement of manufactured homes.

Master parks plan means the official parks plan for the city, denoting proposed park sites, establishing park classifications and standards.

Master street plan means the official street plan for the city denoting street classifications, alignments and their design standards.

Minor subdivision means a subdivision of less than four (4) lots, intended for residential use, and with no required dedication.

Municipal plan means the city's adopted comprehensive plan incorporating land use, circulation, and other plans and policies as deemed appropriate by the city and as provided in state law.

Neighborhood means a number of residential units united by a network of residential and collector streets forming a loosely cohesive community characterized by individual features that together established a distinctive appearance and atmosphere.

Off-site means any premises not located within the area of the property to be subdivided, whether or not in the same ownership of the applicant.

Owner means the owner of record for all the land in a subdivision or authorized agent thereof.

PAGIS means Pulaski Area Geographic Information System, a computerized geographic information system developed and maintained by the city, the municipal water works and the wastewater utility.

PAGIS geodetic control network means a group of survey monuments dispersed within the planning jurisdiction of the city for which horizontal and/or vertical positions have been determined and which have been approved by the city for use as ground control for surveying and engineering projects within the planning jurisdiction of the city.

PAGIS monument means a cast in place or prefabricated monument which shall consist of similar construction described as a six-inch diameter steel-reinforced concrete post with a stamped survey cap (see section 31-380).

Pavement width (back-to-back) means that portion of a street measured from the back of a curb on one (1) side of the street to the back of the curb on the other side of the street.

Performance bond means a bond posted by the developer to the city to guarantee completion of the necessary improvements within a subdivision.

Planned zoning development means a proposal for development as a single entity and which may include dwelling units, commercial, office, industrial uses or any combination thereof under the provisions of article V of the zoning ordinance.

Planning area means the area within which these regulations are enforced, which includes the corporate limits of the city.

Cross reference—Planning area, § 23-2.

State law reference—Extraterritorial jurisdiction, A.C.A. § 14-56-413.

Planning director means the city official designated by the city manager as having planning authority and authorized to administer this chapter.

Plat, final means a finished drawing showing completely and accurately all legal and engineering information required herein and including the bill of assurance.

Plat, preliminary means the preliminary drawing or drawings indicating the proposed manner or layout of the subdivision to be submitted to the planning commission for review, and including the preliminary bill of assurance.

Principal subdivision boundary means the property boundary (edge) of the total ownership being the approved preliminary plat boundary.

Resubdivision means a change in a map of an approved or recorded plat and required approval by the planning commission.

Right-of-way, public means a strip of land dedicated or deeded to the public, occupied by a street, crosswalk, railroad or utility service, and delineated on the final plat.

Service easement means a recorded easement used by public utilities for the purpose of installation and maintenance of facilities or used by the public as a means of vehicular access to commercial, office, industrial and multifamily developments.

Staff means the planning department.

Street, arterial means any street designed primarily to accommodate major traffic movements between cities or between various sections of the city, which forms part of a network of through streets and which provides service and access to abutting properties only as a secondary function.

Street, boundary means an existing or proposed public street or street right-of-way abutting or sharing a common property line with a tract of land to be developed or subdivided.

Street, collector means any street designed primarily to gather traffic from local or residential streets and carry it to the arterial system.

Street, minor commercial means a commercial cul-de-sac not greater than three hundred (300) feet in length.

Street, minor residential means loop streets that shall not exceed fifteen hundred (1,500) feet in length and provide access to not more than thirty-five (35) single-family lots. An intersecting minor residential cul-de-sac street may occur along the one thousand five hundred-foot segment as long as the maximum measured centerline segment of the minor residential portion from a single access does not exceed seven hundred fifty (750) linear feet and the total number of lots served by the loop street including the cul-de-sac addition does not exceed thirty-five (35) lots.

Street, private means a cul-de-sac or loop street built to public street standards, but specifically allowed as a private street by the planning commission.

Street, public means a dedicated and accepted right-of-way for vehicular traffic which affords the principal means of access to abutting property.

Street, residential means a street designed to provide circulation within a residential subdivision and to individual lots.

Subdivider means any person dividing or proposing to divide land so as to constitute a subdivision as herein defined, and including any agent of the subdivider.

Subdivision means all divisions of a tract or parcel of land in one (1) or more lots, building sites, or other divisions for the purpose, whether immediate or future, for sale or building development, and shall include all divisions of land involving the need for new access, a new street or a change in existing streets; provided, however, that the following shall not be included within this definition, nor be subject to the subdivision rules and regulations of this municipality:

(1) The combination or recombination of previously platted lots where the total number of lots is not increased and the resultant lots are equal to or exceed the standards or ordinance of the municipality;

(2) The division of land into parcels greater than five (5) acres provided each newly created lot or parcel has minimum lot frontage on legal and physical access;

(3) The public acquisition by purchase or dedication of parcels of land for the widening or opening of streets or other public improvements.

Surveyor means a professional surveyor registered in the state.

Townhouse means two (2) or more attached dwelling units under condominium or corporate ownership.

Variance means a modification of design standards that will not reduce the requirement at issue to less than an acceptable level as determined by the planning commission after review and recommendation by the public works department. A deferral for a specified period of time shall be considered to be a variance when applied to construction of physical improvements, streets, drainage, etc.

Vehicular access easement means a vehicular easement authorized by the planning commission to provide primary access in hillside areas, and not more than three hundred (300) feet in length, nor serving more than five (5) lots.

Waiver means an exception to an ordinance provision that is permanent and in the instance of physical improvements transfers assurance or responsibility to another person organization or the public.

Zero-lot-line development means a residential development concept eliminating the normal side yard requirement on one (1) side of a lot and providing for more usable open space for the other side yard. Final plats involving this concept shall reflect a buildable area on each lot so as to provide for proper placement of the units and assured that no lot will be adversely affected by placement of adjoining units.

Zoning ordinance means chapter 36 of the Code of Ordinances of the city providing for land use regulation within the planning jurisdiction of the city as provided by state law.

(Code 1961, § 37-11; Ord. No. 15,929, § 1(a), (o), 9-4-90; Ord. No. 15,971, §§ 1(a), (c), (h), 12-4-90; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,116, § 1(ww), 11-19-91; Ord. No. 10,341, § 1(oo), 1-19-93; Ord. No. 18,031, § 1(c), (d), (q), (r),

(t)—(w), 6-1-99; Ord. No. 20,326, § 1(a), 9-21-10; Ord. No. 20,534, § 1, 2-7-12; Ord. No. 21,867, § 1, 5-19-20; Ord. No. 22,651, § 2, 9-2-25)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 31-3. Penalty.

Any person convicted of a violation of any of the provisions of this chapter shall be punished as provided in section 1-9.

Sec. 31-4. Legislative purpose and intent.

The subdivision of land is the first step in the process of urban development. The arrangement of land parcels in the community for residential, commercial and industrial uses and for streets, alleys, schools, parks and other public purposes will determine to a large degree the conditions of health, safety, economy and amenity that prevail in the urban area. The quality of these conditions is of public interest. This chapter incorporates standards designed to ensure proper development of land for urban use. The specific purposes of this chapter are:

(1) To protect and provide for the health, safety and general welfare of the public.

(2) To guide the future growth and development of the city in accordance with the municipal plan.

(3) To provide for adequate light, air and privacy; to secure safety from fire, flood and other danger; and to prevent overcrowding of the land and undue congestion of population.

(4) To protect and conserve the value of buildings and improvements, and to minimize adverse impact on adjoining or nearby properties.

(5) To establish a beneficial relationship between the uses of land and buildings, and the municipal street system; to require the proper location and design of streets and building lines; to minimize traffic congestion; and to make adequate provision for pedestrian traffic circulation.

(6) To establish reasonable standards of design and procedures for subdivision and resubdivisions, in order to further the orderly layout and use of land; and to ensure proper legal descriptions and monumenting of subdivided land.

(7) To encourage the wise use and management of natural resources; to provide adequate and safe recreational areas; to maintain the natural beauty and topography of the municipality and to ensure appropriate development with regard to these natural features; to minimize the pollution of air, ponds and streams; to ensure the adequacy of drainage facilities.

(8) To encourage subdivision of land in accordance with the capital improvements program, provided with adequate public facilities and improvements including streets, storm drainage, water, sewerage, school sites and park areas.

(Code 1961, § 37-2)

Sec. 31-5. Jurisdiction and application.

(a) It is the policy of the city to consider the subdivision of land and the subsequent development of the subdivided plat as subject to the control of the city pursuant to the municipal plan and the master street plan for the orderly, planned, efficient and economical development of the city.

(b) This chapter shall be applicable to all lands within the city and its planning jurisdiction except lots of record prior to December 19, 1978. Lots which were not in compliance with prior subdivision regulations shall be deemed to be in violation of this chapter. The planning area map is hereby included in this chapter by reference and is titled Map A-1.

Cross reference—Planning area, § 23-2.

State law reference—Planning jurisdiction, A.C.A. § 14-56-413.

(c) This chapter shall apply to the subdivision of land as follows:

(1) All divisions or platting of a tract or parcel of land into one (1) or more lots, building sites or other divisions for the purpose, whether immediate or future,

for sale or building development shall be considered a subdivision and subject to this chapter.

(2) The dedication or vacation of any street or alley through any tract of land, regardless of the area involved as may be desired by the owner or if necessary to achieve conformance with the master street plan, shall be considered a subdivision and subject to this chapter.

(3) The reduction in width or depth of a lot or tract of land through public acquisition for right-of-way, street or drainage purposes shall not be deemed to create nonconformity, provided, that, the resultant land area and configuration is sufficient to meet minimum bulk and area standards of the zoning ordinance, chapter 36 of the Code of Ordinance.

(Code 1961, § 37-4; Ord. No. 16,116, § 1(xx), 11-19-91; Ord. No. 16,341, § 1(pp), 1-19-93; Ord. No. 18,031, § 1(g), 6-1-99)

Sec. 31-6. Amendments.

This chapter may be amended at any time after the planning commission as held a public hearing on the proposed amendments. At, on or after such public hearing, the planning commission may recommend to the board the adoption of such amendments.

(Code 1961, § 37-6)

State law reference—Amendment of subdivision ordinances, A.C.A. §§ 14-56-420, 14-56-422.

Sec. 31-7. Enforcement.

It shall be the duty of the director of the department of planning and development to enforce this chapter and to bring to the attention of the city attorney any violations or lack of compliance herewith. The director of the department of planning and development may delegate his administrative responsibilities under this chapter to designated staff.

(Code 1961, §§ 37-11(45), 37-39(b); Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-8. Types of subdivisions.

(a) Recognizing that subdivision regulations must be applied to various land development types, and because of the special conditions pertaining to each, this chapter hereby provides for the establishment of four (4) subdivision types: Commercial/office, industrial, mobile home park, and residential. Design standards applicable to each of these four (4) types are outlined in article III of this chapter.

(b) Prior to the approval of any preliminary plat, the planning commission shall classify and evaluate each subdivision according to its planned future use, it being the responsibility of the applicant to identify the type of proposed plat. Where a proposed plat incorporates more than one (1) use of the type specified in this chapter, either the different land use types shall be clearly delineated on the submitted plat, or separate plats shall be filed for each land use type together with a scale drawing illustrating the proposed layout as a totality.

(c) The purpose and intent of each subdivision type shall be generally as follows:

(1) Commercial or office subdivisions are intended to accommodate one (1) or more commercial building sites on either single or multiple lots in a carefully planned configuration designed to protect and enhance the viability of each separate structure and ownership. Commercial and office uses shall be those defined as such in the zoning ordinance.

(2) Industrial subdivisions are intended to fulfill a two-fold objective:

a. To provide both opportunity and flexibility for industrial activities to take place at appropriate locations in a compatible manner with adjacent nonmanufacturing areas.

b. To require the application of sound design principles and the orderly development of industrial parcels involving the creation of one (1) or more building sites or lots.

Industrial uses shall be those defined as such in the zoning ordinance.

(3) Mobile home subdivisions are intended to ensure proper layout and development of areas for mobile home occupancy by establishing appropriate standards for density, spacing and placement and by requiring off-street parking, storage facilities and open space. This chapter is intended to facilitate location of mobile homes within the jurisdiction of this chapter by making available appropriate sites for such occupancy.

(4) Residential subdivisions are intended to ensure efficient, aesthetic and convenient designs for single-family zero-lot line, duplex and multifamily residential development, and to provide harmonious relationships with surrounding areas. Residential uses shall be those defined as such in the zoning ordinance.

(Code 1961, § 37-7; Ord. No. 16,861, § 1(aa), 3-21-95)

Sec. 31-9. Plat approval and improvements required.

(a) No plat of any tract of land within the planning area jurisdiction of the planning commission shall be accepted by the county recorder for filing of record until the plat has been approved by the planning commission.

(b) No building permit shall be issued for construction of any building or structure located on a lot or plat subdivided or sold in violation of the provisions of this chapter, nor shall any building permit be issued for the final ten (10) percent of lots in a subdivision, or if ten (10) percent be less than four (4) for the final four (4) lots of a subdivision until all required public improvements have been completed.

(Code 1961, § 37-39(a), (c))

Sec. 31-10. Resubdivision of land.

(a) Previously platted lots served by an existing street system may be recombined without replatting, provided that there is no increase in the number of lots and no increase in the number or extent of nonconformities of size, shape or open space.

(b) Previously platted lots or series of lots returned to acreage by court order or which were formerly provided access from rights-of-way which have been abandoned shall be resubdivided in conformance with these regulations prior to issuance of any permits for construction. The reduction to acreage or abandonment of street right-of-way shall constitute abandonment of the former lots of record.

(c) In those instances where a resubdivision, replatting or lot recombination does not result in requirements for construction of physical improvements, the placement of PAGIS monuments shall not be required. In all instances this exemption shall be limited to finished plats consisting of fewer than four (4) lots.

(Code 1961, § 37-8; Ord. No. 16,011, § 1, 2-19-91; Ord. No. 16,861, § 1(aa), 3-21-95)

Sec. 31-11. Vacation of plats.

(a) Any plat or any part of any plat lying within the city may be vacated by the owner at any time before the sale of any lot therein. Vacation of a plat shall be subject to the approval of the board of directors. The board of directors may reject any proposed plat vacation which abridges or destroys any public rights in any public use areas, improvements, streets or alleys.

(b) The owner of lands for which a request for vacation is filed and granted shall provide the appropriate documents to the county recorder to carry out the vacation order.

(c) Upon recordation, such vacation shall have the effect of divesting the public of all rights in the streets, alleys, public areas and dedications laid out for describing in such plat.

(d) When lots have been sold, the plat may be vacated in the manner established therein, provided the owners of all lots join the plat vacation application.

(Code 1961, § 37-9; Ord. No. 22,651, § 2, 9-2-25)

Sec. 31-12. Variances.

(a) *Generally.* The rules and regulations set forth in this chapter are the standard requirements of the city. Where the planning commission finds, however, that extraordinary hardships

or practical difficulties may result from strict compliance with these regulations, or the purpose of these regulations may be served to a greater extent by an alternative proposal, it may approve variances from the subdivision regulations so that substantial justice may be done and the public interest secured. The planning commission shall be empowered to grant variances with request to the improvements and the design standard relative to lot dimensions and arrangements, street location, alignment, the location and alignment of easements, building lines and similar standards. Such variances, however, shall not have the effect of nullifying the intent and purpose of these regulations. The following criteria shall be used to determine whether a variance shall be granted:

(1) The conditions upon which the request for variance is based are unique to the property and it is determined because of the particular physical surrounding, shape or topographic conditions of the property involved, strict application of these regulations would deprive the owner of reasonable use of the property.

(2) The granting of a variance will not be detrimental to the public safety, health or welfare, or injurious to other property.

(3) The variance will not in any manner vary the provisions of the zoning ordinance, the master street plan or the municipal plan.

(4) The variance is not based solely on pecuniary difficulties, but has other overriding hardships.

(b) *Building line variances.* In those instances where a recorded subdivision plat has established building setback lines in accordance with this chapter variances of those lines shall only be granted by the board of adjustment. That body shall review each building line variance request for hardship circumstances as required by chapter 36, article II, division 2. Those variances approved by the board of adjustment shall be reflected upon a replat of the subject lots which shall be recorded in the office of the circuit clerk of the county. A bill of assurance amendment shall not be required by the review process nor shall the administrator sign a bill of assurance. The owner or applicant shall be instructed to review the filing procedure with the circuit clerk should a revised bill of assurance be required by that office. Platting costs shall be born by the applicant or owner.

(c) *Appeals.* Appeals from the decision of the planning commission regarding a variance request may be presented to the board of directors within thirty (30) days of the commission's action. The content of the appeal filing shall consist of:

(1) A cover letter addressed to the mayor and the board of directors setting forth the request;

(2) A copy of the planning commission application indicating the action and properly executed by the staff.

Notification for the board of directors' hearing shall be as required for the planning commission.

Appeals from a decision of the board of directors regarding a variance request may be presented to the Pulaski County Chancery Court within thirty (30) days from the date the board's decision is filed in the city clerk's office.
(Code 1961, § 37-10; Ord. No. 15,246, § 1, 2-17-87; Ord. No. 15,512, §§ 1, 2, 7-19-88; Ord. No. 16,861, § 1(aa), (zz), 3-21-95; Ord. No. 19,713, § 1(j), 3-6-07)

Sec. 31-13. Reserved.

Editor's note—Ord. No. 21,867, § 1, adopted May 19, 2020, repealed § 31-13, which pertained to subdivision/multiple building site plan review, and derived from the Code of 1961, § 37-33; Ord. No. 15,971, § 1(b), adopted Dec. 4, 1990; Ord. No. 16,341, §§ 1(jj), (uu), adopted Jan. 19, 1993; Ord. No. 16,577, § 1f, adopted Jan. 18, 1994; Ord. No. 16,861, § 1(aa), adopted Mar. 21, 1995; Ord. No. 18,031, § 1(x), (y), adopted June 1, 1999; Ord. No. 19,713, § 1(g), adopted Mar. 6, 2007; and Ord. No. 20,839, § 1(a), adopted Feb. 11, 2014.

Secs. 31-14—31-35. Reserved.

ARTICLE II. PLAT APPROVAL AND REVIEW PROCESS*

DIVISION 1. GENERALLY

Sec. 31-36. General procedure.

The application procedure and approval process for subdivision development shall be accomplished in four (4) stages, as follows:

(1) The first step consists of a preapplication conference, optional for subdivisions ten (10) acres or less and mandatory for subdivisions larger than ten (10) acres. Such preapplication procedure shall involve an informal discussion with the staff and the submittal of a sketch plan.

(2) The second step involves preparation of a preliminary plat by the applicant and consideration for approval by the planning commission. This document is designed to show the proposed subdivision in sufficient detail to indicate its workability in all respects but not in final form with all the details fully computed. A subdivider proposing to subdivide within the jurisdiction of the city shall not proceed with any construction work on the proposed subdivision, including grading, before obtaining preliminary plat approval.

(3) The third step involves submittal of a final plat conforming to the preliminary plat. This step shall be initiated not later than twenty-four (24) months after approval of the preliminary plat by the planning commission unless construction work is actively progressing, in which case the preliminary approval remains valid. The final plat is a completed document incorporating engineering specifications in a form, required for legal record and sale of lots. No subdivision plat or any part thereof shall be recorded prior to obtaining final plat approval from the neighborhood revitalization and planning department, nor shall the subdivider convey title to any lot or lots before obtaining final plat approval and recording of the final plat by the city.

(4) The fourth step involves acceptance of all public dedications as prescribed in this chapter.

(Code 1961, § 37-12; Ord. No. 15,929, § 1(b), 9-4-90; Ord. No. 19,910, § 1(a), 1-15-08; Ord. No. 22,651, § 2, 9-2-25)

Sec. 31-37. Powers of planning commission.

The planning commission shall exercise the powers and authority to review, approve and disapprove plats for subdivisions and improvements in accordance with this chapter.
(Code 1961, § 37-3)

Secs. 31-38—31-60. Reserved.

DIVISION 2. PREAPPLICATION CONFERENCE

Sec. 31-61. Scope.

This division applies to the preapplication conference stage.

Sec. 31-62. Procedures.

(a) Any owner of land within the jurisdiction of this chapter seeking to plat a property larger than ten (10) acres in size shall submit sketch plans and data concerning existing conditions within the site and its vicinity to the staff. Submitted information shall convey the intentions of the subdivider as to the proposed layout and type of development. No fees shall be collected for preapplication review, its purpose being to acquaint the subdivider with plans and policies in effect that would be significant to the proposed subdivision.

(b) The preapplication procedure affords the subdivider the opportunity to obtain the advice and assistance of the staff early and informally in order to:

(1) Assist the subdivider in analyzing the development plan.

*__Cross reference—__Fee for subdivision applications, § 23-3.

(2) Give informal guidance to the development at a stage when potential points of difference can be more easily resolved, thus simplifying official actions and saving unnecessary expense and delay to the subdivider.

(3) Determine whether or not a combined preliminary and final plat procedure may be authorized under division 5 of this article.

(c) Advice of the staff shall be provided in either verbal or written form at the option of the subdivider within thirty (30) days of the sketch plan submittal. It is binding on neither the city nor the subdivider.
(Code 1961, § 37-13)

Sec. 31-63. Required information.

(a) In conjunction with a preapplication conference with the staff, whether optional or required, the subdivider shall provide the following information:

(1) A vicinity map, covering a radius of one-half mile of the proposed plat at a scale of one (1) inch equals two thousand (2,000) feet shall generally locate arterial streets and highways, section lines, railroads, schools, parks and other significant community facilities. Where possible, the north direction of the vicinity map shall correspond to the north direction of the plat.

(2) A sketch plan, on a current topographic survey, shall show in a simple sketch form the proposed layout of streets, lots and other features, and their relationship to the surrounding development patterns.

(3) Written information, informally submitted, shall generally include the following: The applicant's name and address, the agent, acreage in the tract, area located to each land use, proposed bills of assurance, cultural and natural features of the site, and anticipated subdivision characteristics including the approximate number of lots, average lot size, location of street rights-of-way and easements.

(b) No application fees or special forms are required.
(Code 1961, § 37-17)

Secs. 31-64—31-85. Reserved.

DIVISION 3. PRELIMINARY PLAT

Sec. 31-86. Scope.

This division applies to the preliminary plat stage.

Sec. 31-87. Application form.

The following information is to be included as supplemental information to the preliminary plat package. These criteria may be submitted in an information format as part of the cover letter and shall be filed with the required plat materials. They are:

(1) Proposed name and type of subdivision.

(2) Name and address of land owner with source of title. (Deed record book and page or instrument number required.)

(3) Name and address of subdivider.

(4) Linear feet of internal streets.

(5) Average size of lots and minimum lot size.

(6) Number of lots.

(7) Applicable existing covenants, and the proposed covenants on the land.

(8) Proposed source of water supply.

(9) Proposed means of wastewater disposal.

(10) Request for variances, waivers, or deferrals. (Completion of variance and waiver request form required.)

(11) Date of plat survey.
(Code 1961, § 37-18(a); Ord. No. 15,529, § 1e, 8-16-88; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 18,031, § 1(z), 6-1-99)

Sec. 31-88. Vicinity map.

A vicinity map shall be filed. It shall cover an area within a radius of one-half mile of the proposed subdivision at a scale of one (1) inch to two thousand (2,000) feet. The drawing shall generally locate arterial streets, highways, section lines, railroads, schools, parks and other significant community facilities; and, if possible, shall be incorporated on the preliminary plat. (Code 1961, § 37-18(b))

Sec. 31-89. Preliminary plat.

A preliminary plat shall be submitted in the number of copies as established by the planning staff. it shall be clearly and legibly drawn and shall be submitted in a format as directed by the planning staff. Plat scale shall be one (1) inch equals fifty (50) feet for plats up to and including ten (10) acres and one (1) inch equals one hundred (100) feet for plats larger than ten (10) acres, except where a smaller scale may be deemed appropriate by the staff. The preliminary plat shall be identified by the name of the subdivision, and shall include all information listed below. The preliminary plat shall also be submitted in an electronic format compatible with equipment in the department of planning and development of the city. Data shall be in Computer-Aided Design (CAD) compatible .DXF or .DWG (compatible with software available in the department of planning and development of the city) format containing the information listed below:

(1) Contours shown at intervals of not more than five (5) feet for terrain with an average slope exceeding ten (10) percent or more, and at an interval of two (2) feet for terrain with slopes less than ten (10) percent. The source of the contours along with the source from which all elevations were derived shall be clearly described.

(2) Proposed design including streets, alleys and sidewalks with proposed street names, lot lines with approximate dimensions, service easements, land to be reserved or dedicated for public uses and land to be used for purposes other than residential.

(3) Minimum building front yard setback lines for commercial or office, industrial, mobile home park and residential subdivisions, and all setback lines for zero-lot-line, apartment and townhouse development.

(4) Natural features within and surrounding proposed subdivision including drainage channels, bodies of water, wooded areas and other significant features. On all watercourses leaving the tract, the direction of flow shall be indicated, and for all watercourses entering the tract, the drainage area above the point of entry shall be noted.

(5) The storm drainage preliminary analysis showing drainage data for all watercourses entering and leaving the plat boundaries. The storm drainage analysis shall be prepared in sufficient detail to illustrate the proposed system's capability of accommodating storm events as required by the stormwater management and drainage manual.

(6) Date of survey, north point and graphic scale.

(7) Any portion of property within the floodway or the one-hundred-year floodplain, based upon the federal insurance administration's national flood insurance program provided for and adopted by the city.

(8) Features within and surrounding the proposed subdivision including existing and platted streets, bridges, culverts, utility lines, pipelines, power transmission lines, all easements, park areas, structures, city and county lines, section lines and other significant information.

(9) Preliminary storm drainage plan incorporating proposed easement dimensions and typical ditch sections.

(10) Names of recorded subdivisions abutting the proposed subdivision, with plat book and page number or instrument number.

(11) For residential plats, names of owners of unplatted tracts abutting the proposed subdivision and the names of all owners of platted tracts in excess of two and one-half (2½) acres.

(12) For commercial plats, names of owners of all land contiguous to the proposed subdivision.

(13) The names of all owners of landlocked parcels contiguous to or within the plat boundaries.

(14) Boundary survey information of the tract shall be as follows:

a. Boundary lines shall be indicated by a heavy line.

b. Adjusted bearings and distances shall be shown on all boundary lines and ties to all corners of record utilized. Where boundary lines are curves, sufficient curve data shall be provided to adequately describe the curve. As a minimum, curve data for each curve shall consist of radius, arc distance, delta angle and chord bearing and distance. Where boundary lines are common with previously platted properties, record bearings and distances shall also be shown.

c. Accurate locations and adequate physical descriptions of all monuments shall be shown indicating size, type of material and construction thereof.

d. Metes and bounds legal description of the tract boundary.

(15) Zoning classifications within the plat and abutting areas.

(16) Municipal boundaries that pass through or abut the subdivision.

(17) Certifications that the plat has been surveyed and duly filed for record in the offices of the state surveyor and the county circuit clerk and recorder within the last seven (7) years.

(18) A phasing plan outlining the boundaries for each phase.

(Code 1961, § 37-18(d); Ord. No. 15,929, § 1(c—f), 9-4-90; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,861, § 1(aa), (ss), 3-21-95; Ord. No. 18,031, § 1(j), (aa), 6-1-99; Ord. No. 18,902, § 1(m), 7-15-03; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-90. Engineering analysis.

An engineering analysis containing the following information shall be filed:

(1) At the option of the staff and where a street grade variance is being requested, the following information shall be provided:

a. Street cross sections of all proposed streets at one-hundred-foot stations as follows:

1. On a line at right angles to the centerline of the street.

2. Elevation points shall be at the centerline of the street, each property line and points twenty-five (25) feet inside each property line.

b. Street profiles showing existing and proposed elevations along centerlines of all roads drawn at a horizontal scale of one hundred (100) feet to the inch and a vertical scale of ten (10) feet to the inch, or as otherwise allowed by the public works department. Where required, such profiles shall be prepared by an engineer registered to practice in the state.

(2) An analysis of all stormwater conveyance for the one hundred-year storm event onto, within, and leaving the property to be provided to the staff for review. Such analysis shall be prepared by the engineer of record at owner's expense. The analysis shall determine to the best of the engineer's ability a safe building line, conveyance channels, and

drainage easements, and it shall be clearly and legibly drawn on the preliminary plat.

(Code 1961, § 37-18(e); Ord. No. 17,697, § 3d, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-91. Certificates.

Each preliminary plat submitted to the planning commission shall carry the following certificates as appropriate:

CERTIFICATE OF PRELIMINARY SURVEYING ACCURACY

I, _____, hereby certify that this plat correctly represents a boundary survey made or verified by me that all surveying requirements of the State of Arkansas and City of Little Rock Subdivision Rules and Regulations have been complied with and filed for record as required.

Date of Execution

Name
Professional Surveyor
No._____
Arkansas

CERTIFICATE OF PRELIMINARY ENGINEERING ACCURACY

I, _____, hereby certify that this plat correctly represents a plat made by me, and that engineering requirements of the Little Rock Subdivision Rules and Regulations have been complied with.

Signed,

_____
Date of Execution

_____
Name, Registered Engineer
No. ____, Arkansas

CERTIFICATE OF PRELIMINARY PLAT APPROVAL

All requirements of the Little Rock Subdivision Rules and Regulations relative to the preparation and submittal to a preliminary plat having been fulfilled, approval of this plat is hereby granted, subject to further provisions of said rules and regulations. This certificate shall expire

_____
Date

Signed,

_____
Date of Execution

_____
Name,
L.R. Planning Commission

(Code 1961, § 37-18(e)(1); Ord. No. 15,929, § 1(g), 9-4-90; Ord. No. 16,341, § 1(qq), 1-19-93; Ord. No. 20,326, § 1(b), 9-21-10)

Sec. 31-92. Fees.

Filing fees for preliminary plats shall be as established by ordinance.

(Code 1961, § 37-18(e)(2))

Cross reference—Fees for subdivision applications, § 23-3.

Sec. 31-93. Bill of assurance.

The draft submitted shall use the format provided within the sample draft provided by staff. This format will ensure that the proposed bill of assurance separates those provisions required in the plat by ordinance and those provisions desired by the developer.

(Code 1961, § 37-18(e)(3); Ord. No. 18,031, § 1(h), 6-1-99)

Sec. 31-94. Approval procedure.

(a) Whenever a subdivision is proposed or before any sale of lots located in said subdivision as a whole or any part thereof is made, within the corporate limits, the owner shall file a plan of the proposed subdivision with the planning commission for approval. The applicant shall submit all the necessary fees and meet all the submittal requirements at the time of the filing as described in section 31-63 of this chapter.

The city staff shall distribute copies of the preliminary plat to other city departments, utility companies, and county and state agencies as appropriate with the request that their recommendations for either approval or disapproval be provided in writing.

(b) The staff and other appropriate city and public agency staff shall review the proposed subdivision for conformance with this chapter.

In its review, staff shall take into consideration the requirements of the community and the use of the land being subdivided and may offer suggestions concerning changes they feel would enable the project to meet the purpose and intent of this chapter. Particular attention shall be given to width, arrangement and location of streets; utility easements; drainage; lot sizes and arrangements; and other facilities such as parks, playgrounds or school sites, public buildings, parking areas and arterial streets; and the relationship of the proposed subdivision to adjoining, existing, proposed and possible subdivision of lands.

The city staff shall distribute copies of the preliminary plat to other city departments, utility companies, and county and state agencies as appropriate with the request that their recommendations for either approval or disapproval be provided in writing. Such recommendations shall be forwarded to the subdivision committee along with the staff's own recommendation.

(c) Reserved.

(d) The planning commission shall review preliminary plats at its regularly scheduled monthly meeting at which time interested persons may appear and offer evidence in support of or against such preliminary plat. The planning commission shall then approve, conditionally approve, deny or defer the plat. Notification of decision and reason shall be provided in writing to the subdivider within five (5) days of the planning commission's meeting at which the public hearing was held.

(e) A preliminary plat approved by the planning commission shall be effective and binding upon the commission for two (2) years from the date of approval or as long as work is actively progressing, at the end of which time the final plat application for the subdivision must have been submitted to the planning staff. Any plat not receiving final approval within the period of time set forth herein or otherwise conforming to the requirements of this chapter shall be null and void, and the developer shall be required to submit a new plat of the property for preliminary approval subject to all zoning restrictions and this chapter.

The planning commission may extend the original preliminary approval, for a period not to exceed one (1) additional year, when it can be demonstrated that there are no changes in the plat design or neighborhood that warrant a complete review.

(f) Approval of the preliminary plat shall be accompanied by a certificate of preliminary plat approval executed by the planning director or designee. Such approval authorizes the subdivider to proceed with preparation of an application for final plat approval. The subdivider shall have a minimum of sixty (60) days to obtain from the planning staff a signed revised preliminary plat incorporating the changes and/or additions as authorized by the commission. Failure to obtain a properly executed preliminary plat within the specified time shall invalidate preliminary plat approval.

An extension beyond the sixty (60) days shall only be granted by the planning commission when the subdivider can document the cause for failure to perform. Cause shall be deemed to be one of the following:

(1) Financial failure;

(2) Litigation;

(3) Failure of planning staff to respond appropriately.

Preliminary plats approved with conditions shall be permitted an additional sixty (60) days upon request in writing to the planning director.

(g) Receipt by the subdivider of the executed certificate of preliminary plat approval is authorized to proceed with the preparation of necessary plans and specifications and the installation of required public improvements. The subdivider shall build all public street and drainage improvements to the specifications of the construction plans approved by the department of planning and development. Construction work shall be subject to on-site inspections by the city to verify conformance with the approved construction plans.

(h) If the application is conditionally approved by the planning commission, the planning director shall specify such conditions to the applicant

in writing within five (5) days of planning commission action, with a copy supplied to the engineer. Such conditions shall be agreed to by the applicant and necessary changes made to the preliminary plat before the certificate of preliminary plat approval can be executed by the planning director.

(i) Reasons for denial of an application by the planning commission shall be placed in writing and mailed to the applicant within five (5) days from the public hearing on such application. Within thirty (30) days of the commission action, a denied application may be resubmitted to the staff for review of the required modifications and resubmission to the planning commission. The failure to resubmit an application within the prescribed period of time shall invoke procedures required for the filing of a new application.

(j) The planning commission may defer, at the subdivider's request, action on a preliminary plat no more than twice in accordance with the provisions of the Bylaws of the Little Rock Planning Commission.

(Code 1961, § 37-14; Ord. No. 15,529, § 1a—d, 8-16-88; Ord. No. 15,616, § 1, 1-3-89; Ord. No. 16,861, § 1(ww), 3-21-95; Ord. No. 17,697, § 3c, 3-17-98; Ord. No. 18,031, § 1(bb), 6-1-992; Ord. No. 18,902, § 1(p), 7-15-03; Ord. No. 19,438, § 1(f), 11-15-05; Ord. No. 21,867, § 1, 5-19-20)

Secs. 31-95—31-115. Reserved.

DIVISION 4. FINAL PLAT

Sec. 31-116. Scope.

This division applies to the final plat stage.

Sec. 31-117. General requirements.

(a) Submission for certification of final plat approval shall consist of the document and two (2) transparent originals (one (1) shall be a Mylar), the number of prints as established by the planning staff, the certificates specified in section 31-118 executed and the original bill of assurance.

An acceptable storage device with the data in CAD compatible .DXF and/or .DWG format containing the state plane coordinates for all property boundary corners of plat (each phase), street centerline data as shown on the final plat. Storm drainage as-built information including pipe inverts, length of pipe, size of pipe, type of pipe, and type of inlets shall be provided in a separate .DXF and/or .DWG file and included on the submitted acceptable storage device.

The final plat shall be clearly and legibly drawn in black ink on suitable tracing material at the same scale and dimensions used for the approved preliminary plat. Upon approval and execution of the certificate of final plat approval, the owner's representative will file the plat for record at the circuit clerk's office and return a certified Mylar to the city within two (2) working days, unless another period of time is mutually agreed to by the owner's agent and city representative.

(b) The final plat shall indicate the following information:

(1) Name and address of owner of record and subdivider.

(2) Name of subdivision.

(3) Date of the plat, north point and graphic scale.

(4) Names of all streets.

(5) Boundary information of the tract shall be as follows:

a. Boundary lines shall be indicated by a heavy line.

b. Adjusted Arkansas State Plane Coordinates (north zone, NAD-83) shall be shown for all boundary corners and all corners of record utilized, along with a statement indicating the ratio error of closure of the field work.

c. Adjusted bearings and distances shall be shown on all boundary lines and ties to all corners of record utilized. Where boundary lines are curves, sufficient curve data shall be provided to establish or reestablish the curve. As a minimum, curve data for each curve shall

consist of radius, arc distance, delta angle and chord bearing and distance. Where boundary lines are common with previously platted properties, record bearings and distances shall also be shown.

d. Accurate locations and adequate physical descriptions of all monuments shall be shown indicating size, type of material and construction thereof, and size and type of survey disk utilized. Where found monuments are replaced with more permanent monuments, such replacement shall be noted and a description of the type of found monument indicated.

(6) Streets and alleys within and abutting the subdivision, with street names indicated and showing the source of dedication.

(7) Street centerlines shall be shown with the following information provided:

a. Bearings and distances along all line segments.

b. Angles of intersection.

c. Curve data for all curves indicating the following:

1. Radius.

2. Length of tangents.

3. Delta angle.

4. Chord bearing and distance.

Sufficient geometric data shall be provided along all rights-of-way to produce a closed polygon figure within the bounds of the tract being platted.

(8) Source of title giving deed record book and page number or instrument number.

(9) Sufficient geometric data shall be provided along all lot lines (bearings and distances and/or angles) to produce a closed polygon figure for each lot, with chord bearings and distances and radii of rounded corners.

(10) Building setback lines with dimensions.

(11) Lot and block numbers.

(12) Easement, buffer strips and public service utility right-of-way lines giving dimensions, locations and purposes.

(13) Sufficient geometric data shall be provided to produce a closed polygon figure along with a description of any areas to be dedicated or reserved for public use or acquisition with the purpose indicated thereon; and of any areas to be reserved by deed covenant for common use of all property owners.

(14) Accurate locations and descriptions of all monuments.

(15) Key map where more than one sheet is required to present the plat, and in all instances final plats shall have a location map illustrating an area within a radius of one-half mile of the proposed subdivision at a scale of one (1) inch to two thousand (2,000) feet. The drawing shall generally locate arterial streets, highways, section lines, railroads, schools, parks and other significant community facilities, plus, location within a developing plat.

(16) Location of tract by metes and bounds legal description giving acreage to the nearest one-thousandth of an acre.

(17) Any area or lot which may be prone to local flooding shall have the lowest allowable finished floor elevation indicated on the final plat. This elevation shall be compared to the one (1) in one hundred-year flood elevation shown on the flood insurance study or, if not available, any other applicable study in which the one (1) in one hundred-year flood elevation is depicted. The department of planning and development shall review an approved compliance with chapter 8, article IV.

(18) Storm drainage as-built information including pipe inverts, length of pipe, size of pipe, type of pipe, and type of inlets.

(c) Copies of all survey calculations and field notes shall be submitted for review when requested. When errors are suspected, the planning commission may cause a professional surveyor to check the final plat for correctness. Certification of approval of water supply and sanitary sewage disposal by the appropriate agency, when not connected to the municipal system, shall be submitted.
(Code 1961, § 37-19(a)—(c); Ord. No. 15,929, § 1(h—k), 9-4-90; Ord. No. 16,341, § 1(tt), 1-19-93; Ord. No. 16,861, § 1(tt), (vv), 3-21-95; Ord. No. 17,697, § 3d, 3-17-98; Ord. No. 18,031, § 1(k)—(m), 6-1-99; Ord. No. 20,326, § 1(c), 9-21-10; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-118. Certificates.

Each final plat submitted to the staff for approval shall carry the following certificates except that plats which do not require design of physical improvements or construction may omit the certificate of engineering accuracy.

CERTIFICATE OF OWNER

We, the undersigned, owners of the real estate shown and described herein, do hereby certify that we have laid off, platted and subdivided, and do hereby lay off, plat and subdivide said real estate in accordance with this plat.

(Signed)

_____ _____
Date of Execution Name
Address
Source of Title: D.R. Page _____
Instrument No. _____

CERTIFICATE OF RECORDING

This document, number _____ filed for record _____, 19____, in Plat Book _____, Page _____.

(Signed) _____

_____
(Name) Clerk

CERTIFICATE OF ENGINEERING ACCURACY

I, _____, hereby certify that this plat correctly represents a plan made by me, and that the engineering requirements of the Little Rock Subdivision Rules and Regulations have been complied with.

(Signed)

_____ _____
Date of Execution Name,
Registered, Professional
Engineer No. ____
Arkansas

CERTIFICATE OF SURVEYING ACCURACY

I, _____, hereby certify that this plat correctly represents a boundary survey made or verified by me, all monuments required actually exist and are correctly shown hereon and that all surveying requirements of the Little Rock Subdivision Rules and Regulations have been complied with.

_____ _____
Date of Execution Name,
Professional Surveyor
No. ____
Arkansas

CERTIFICATE OF FINAL APPROVAL

Pursuant to the Little Rock Subdivision Rules and Regulations, and all of the conditions of approval having been completed, this document is hereby accepted. This certificate is hereby executed under the authority of said rules and regulations.

(Signed)

_____ _____
Date of Execution L. R. Planning
Commission

(Code 1961, § 37-19(d)(1); Ord. No. 15,461, § 1, 4-19-88; Ord. No. 15,929, § 1(l), 9-4-90; Ord. No. 15,971, § 1(j), 12-4-90; Ord. No. 20,326, § 1(d), 9-21-10)

Sec. 31-119. Fees.

Filing fees for final plat shall be as established by ordinance.
(Code 1961, § 37-19(d)(2))

Cross reference—Fees for subdivision applications, § 23-3.

Sec. 31-120. Bill of assurance.

(a) Bill of assurance shall be submitted to the staff for review and approval with the final plat. This document shall incorporate the same provisions as those filed with the preliminary plat, including: offering dedications of streets and alleys, parks and other public lands; establishing easements; lot numbering, plat title and; setting forth procedures by which amendments to the bill of assurance can be made. The language within the bill of assurance shall be divided so as to specifically identify those provisions required by the subdivision ordinance and those provisions entered as covenants between the developer and owners.

The staff of the planning commission shall endorse for filing only those provisions required and as illustrated in the sample instrument provided at the time of preliminary plat review. The bill of assurance shall contain reference to the approval of the final plat.

(b) Where minimum floor elevations are required to be placed on the final plat, the source of the information by which the elevation was obtained shall be shown on both the plat and contained in the bill of assurance. The bill of assurance shall contain language advising the property owner to verify the most current information available on the status of flooding on the property.
(Code 1961, § 37-19(d)(3); Ord. No. 18,031, § 1(i), 6-1-99)

Sec. 31-121. Approval procedure.

(a) *Application.* An applicant seeking the approval of a final plat shall submit the necessary documents to the department of planning and development as having authority in regard to city planning. Such application shall conform to the submittal requirements described in this division.

(b) *Review of final plat.* The engineering division shall review final plats for conformance with drainage or construction plans approved in conjunction with the preliminary plat and for conformance with the survey requirements within this chapter. Comments will be forwarded to the department of the city having planning authority for use in final plat review.

(c) *Approval.* Responsibility for final plat approval shall reside with the planning director or designee, who shall approve or disapprove the final plat within thirty (30) days of the submission thereof, unless the subdivider agrees in writing to deferral. Within fifteen (15) days of the submittal of the final plat, the planning director, or designee, shall notify the applicant of the status of his plat. No final plat shall be approved until its conformance with the preliminary plat and the survey requirements within this chapter has been verified and the subdivider and the city have entered into an agreement assuring completion of all required improvements as specified in section 31-431. Approval of the final plat shall be accomplished when the planning director signs the certificate of final plat approval as shown in this division.

(d) *Denial.* Any plat submitted for final plat approval not in conformance with the preliminary plat as determined by the planning director shall be denied. If the final plat is denied, such decision shall be communicated to the subdivider in written form expressing the reasons therefor within five (5) days after such determination is made. Any plat applications denied by the planning director may be appealed to the planning commission for action.

(e) *Staging.* The subdivider may, and in conformance with the provisions of this division, seek final approval for only a portion of the property for which the preliminary plat was approved. For residential plats, however, such stages shall contain at least five (5) percent but in no case less than five (5) lots of the total number of lots contained within that phase of the approved preliminary plat seeking final plat approval. Plats containing fewer than six (6) lots shall not be phased unless specifically authorized by the planning commission.

In every instance where staging is proposed, the preliminary plat shall reflect the phases in a logical progression so as to preclude skipping lots or leaving streets without continuity. A subdivider shall not omit segments of streets from a phase that would be required to serve adjacent developing areas. All streets shall be constructed to the plat boundary as reflected on the approved preliminary plat. The filing of street dedication plats for purposes of scattered lot placement is expressly prohibited.

The planning commission may require that the security to assure completion of the public improvements be in such amount as is commensurate with the state of the plat being filed.
(Code 1961, § 37-15; Ord. No. 15,929, § 1(m, n), 9-4-90; Ord. No. 15,971, § 1(i), 12-4-90; Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 18,031, § 1(e), (cc), 6-1-99; Ord. No. 21,867, § 1, 5-19-20)

Secs. 31-122—31-140. Reserved.

DIVISION 5. COMBINED PRELIMINARY AND FINAL PLAT PROCEDURE

Sec. 31-141. Submission of combined application.

Based upon the preapplication procedure, and for minor subdivisions, lot splits and planned unit developments where no public purpose would be served by separate steps, a combined preliminary and final plat procedure may be authorized in the following circumstances and in conformance with the requirements and standards specified in this chapter.
(Code 1961, § 37-16(a))

Sec. 31-142. Minor subdivisions.

(a) The staff may authorize a combined preliminary and final review procedure for minor subdivisions. All plats submitted as minor subdivisions shall require review and approval by the planning commission.

(b) In order to qualify as a minor subdivision, a proposed subdivision must meet the following requirements:

(1) The proposed plat does not create more than four (4) lots, tracts or parcels of land.

(2) The proposed plat is intended for residential or commercial use only and is not more than five (5) acres in size.

(3) The proposed plat does not involve dedication of public street or access easement through rather than adjacent to the lot, tract or parcel proposed for subdivision.

(c) Request for minor subdivision approval shall be made by the owner of the land to the department of planning and development. Subdivision requirements shall be the same as those required for the final plat. The planning commission shall review the plat at their next regularly scheduled monthly meetings. If the final plat is in conformance with the objectives and standards of this chapter and all required information is contained thereon, the planning commission shall certify its approval of the plat, making proper notation on the original tracing of the plat, and permit the plat's recording in the office of the circuit clerk.
(Code 1961, § 37-16(b); Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-143. Lot splits.

(a) The planning commission hereby delegates to and designates the planning director the authority for approving or disapproving lot splits, where a single lot, tract or parcel is being split into two (2) lots. The minimum lot size shall be governed by the lot size specified by the zoning classification of the subject property.

(b) A request for lot split shall be made to the office of planning and development by the land owner or designated agent. The request shall consist of a cover letter and the number of plat copies as established by the planning commission. The initial draft of the plat shall reflect any existing or proposed structures with sufficient dimensions to make determinations as to proper placement as required by ordinance. A preliminary draft of the bill of assurance may be submitted for staff review and comment.

(c) Approval or disapproval of lot splits shall be given based on the following guidelines:

(1) No new street or alley is required.

(2) No vacation of streets, alleys, setback lines, access control or easements is required or proposed.

(3) Such action will not result in any significant increases in public service requirements, nor will interfere with maintaining existing public service levels.

(4) There is adequate street right-of-way as required by this chapter and the master street plan.

(5) All easement requirements have been satisfied.

(6) Both lots created by such split shall have direct access to a public street according to the provisions of this chapter.

(7) No substandard sized lots or parcels shall be created.

(8) Such action will not result in a lot being split into more than two (2) tracts.

(d) The director of the department of planning and development shall, in writing, either approve, conditionally approve or disapprove the proposed lot split within thirty (30) days of application. If approved, and after all conditions have been met, the director of the department of planning and development shall sign and furnish a certified copy thereof to the applicant and it shall be submitted by the applicant for recordation with the circuit clerk. One (1) copy of the final recorded plat shall be furnished by the applicant to the department of planning and development.

(e) A conditional waiver of boundary street requirements, including, but not limited to sidewalks, curb and gutter, street improvements, and drainage facilities, may be made if:

(1) The director of the department of planning and development and the public works department certifies that the lot split will not change the land use at the time of the split and it will not significantly or negatively impact the infrastructure needs of the area;

(2) There has no other conditional waiver granted to a lot split involving any parcel of property under consideration; and

(3) It is determined that to require boundary street improvements, or even a fifteen (15) percent hardship payment, would be an unnecessary hardship.

No conditional waiver of boundary street improvements will run with the land, nor will it be enforceable on any future lot split, subdivision, or rezoning request.
(Code 1961, § 37-16(d); Ord. No. 17, 270, § 1, 9-17-97; Ord. No. 18,031, § 1(dd), 6-1-99; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-144. Planned unit development.

The planned zoning district process is especially designed to combine preliminary and final plats into a single streamlined procedure as a means of facilitating the development approval process. The planning director may authorize the combination of preliminary plans for such projects in accordance with the provisions of chapter 36, article VII.
(Code 1961, § 37-16(d); Ord. No. 18,031, § 1(ee), 6-1-99)

Sec. 31-145. Submittals.

An applicant for plat approval pursuant to this division shall submit the information required by section 31-117.
(Code 1961, § 37-16(f))

Sec. 31-146. Plat specifications.

The final plat for minor subdivisions or lot splits shall be prepared on accepted tracing material or mylar film at a scale of one (1) inch to one hundred (100) feet or larger and shall conform to all requirements for submission of a regular final plat as outlined in section 31-117.
(Code 1961, § 37-16(e))

Sec. 31-147. Fee.

An applicant for plat approval shall pay to the city the fee established by ordinance.
(Code 1961, § 37-16(f))

Cross reference—Fees for subdivision applications, § 23-3.

Secs. 31-148—31-170. Reserved.

ARTICLE III. DESIGN STANDARDS

DIVISION 1. GENERALLY

Sec. 31-171. General principles.

In addition to the requirements for improvements and their design, the following considerations shall guide the staff, the planning commission in their review of proposed subdivision plats:

(1) *Conformance to rules and regulations.* All proposed subdivisions shall conform to the following laws, rules and regulations:

a. The municipal plan, master street plan and master parks plan as applicable within the planning area jurisdiction.

b. Municipal zoning ordinance and building and housing codes as applicable within the corporate limits.

c. The rezoning of any ownership may be required when the platting is proposed for change to a format which is incompatible with the existing zoning classification. The replatting of an ownership may be required when the zoning classification of an ownership is changed to a district which is incompatible with the existing platting of such property.

When rezoning is required to bring a proposed subdivision into conformance with the intended use, such action shall be initiated by the applicant prior to or simultaneously with the request for subdivision approval. If the zoning classification of property is changed subsequent to final approval, a replat of the property may be required by the planning commission.

d. For purposes of dedication of private streets to the public for maintenance, the standards set forth in section 31-208 shall apply. All plats submitted under this provision shall be reviewed with the standards provided being minimums. A higher level of improvements may be required as circumstances warrant.

(2) *Reservation of public facilities.* Where proposed community or public facilities of the municipal plan are located in whole or in part in a proposed subdivision, the planning commission, board or public body shall require that land for those public facilities be reserved as a condition of preliminary plat approval for a period of four (4) months following the date of notification of the developer's intent to develop as evidenced by submission of the preliminary plat or sketch plat. The public board, commission or body having jurisdiction or financial responsibility for the acquisition of the reserved facility or facilities shall be given an opportunity to execute a written contract to acquire by purchase or file suit for condemnation of the area reserved for such facility or facilities; provided further, however, said contract to acquire must be closed within twelve (12) Months following the date of the approval of the preliminary plat.

(3) *Subdivision and street names.* The proposed name of subdivisions and streets shall not duplicate or too closely approximate phonetically the name of any street or subdivision in the area covered by this chapter. The planning commission shall have final authority to designate street and subdivision names, where conflicts exist with other established subdivisions within the county.

Cross reference—Street naming system, § 30-321 et seq.

(4) *Approval of planned zoning districts.* Design standards outlined in article III of this chapter and in article VII of the zoning ordinance chapter 36 shall serve as overall guidelines for project approval through the PZD process.

(5) *Provisions of access to adjacent unplatted property.* Proper access in the form of

stub streets or temporary dead-end streets shall be provided to adjacent unplatted property unless alternate routes of access are, or will be, available in the future. The purpose of this provision is to ensure access to all property.

(6) Approval of a development by the planning commission constitutes approval of the planning commission for water and wastewater service to the property, including the installation of necessary water lines and sewer mains, subject to the policies and procedures of the municipal water works, the wastewater utility, and approval by the board of directors when necessary.

(Code 1961, 37-20; Ord. No. 15,529, § 1f—1, 8-16-88; Ord. No. 18,031, § 1(ff), 6-1-99; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-172. Easements.

(a) *Utility easements.* Utility easements for poles, wires, conduits, storm sewers, sanitary sewers, gas lines, water mains and lines, and similar purposes shall be provided where required by utilities or the engineering division. Easements shall be required only where demonstrated as a need to service the plat in consideration or transmission through the subject plat to serve a planned need. Easements shall not be requested for purposes without designed or planned intent. Transport or areawide distribution easements shall be made a subject for planning commission approval in concert with the plat. Where possible all easements shall accommodate the required buffer, retention and landscape areas within nonresidential lots in a fashion which will cause the least disruption or excavation. Such easements shall not be less than five (5) feet on either side of the lot lines. The specific location of easements not uniform in width and parallel to lot lines must be shown by dimensions.

(b) No building or structure may be erected over or in an easement.

(c) All vehicular access easements shall be clearly indicated on the plat and properly dimensioned according to the requirements of this chapter.

(Code 1961, § 37-22; Ord. No. 16,116, § 1(vv), 11-19-91)

Sec. 31-173. Alleys.

Alleys may be allowed at the rear of commercial lots, but shall not be permitted in residential blocks except as a means of secondary access. In the event a developer purposes platting of alleys in a residential development, evidence in support of need for alleys shall be filed with the plat and made a part of the application. Such need or circumstances shall be interpreted to include provision of access to lots on terrain with grades making frontal access impossible. For alley design standards see "Master Street Plan."

(Code 1961, § 37-23; Ord. No. 18,054, § 1(a), 7-6-99)

Sec. 31-174. Blocks.

(a) Blocks in residential subdivisions shall not exceed twenty-two hundred (2200) feet in length nor be less than four hundred (400) feet in length. Wherever practicable, blocks along major and minor arterial streets shall be not less than one thousand (1,000) feet in length.

(b) Blocks shall have sufficient width to provide for two (2) tiers of lots unless a different arrangement is required in the form of a single tier of lots of maximum depth for blocks adjacent to arterial streets, expressways, freeways, railroads or waterways.

(c) In blocks of nine hundred (900) feet or more in length the dedication of a public crosswalk for pedestrian travel may be required to provide access to public or private facilities such as schools or parks. Such crosswalks shall have a minimum right-of-way width of ten (10) feet and a pavement width of four (4) feet and extend entirely across such block at approximately the midpoint of the length of the block. Internalized circulation system in the form of pedestrian paths may be substituted in lieu of crosswalks upon the approval of the planning commission.

(Code 1961, § 37-26; Ord. No. 15,529, § 1u, 8-16-88)

Sec. 31-175. Sidewalks.

The minimum construction requirements for sidewalks are as follows:

(1) For sidewalk design requirements see "Master Street Plan."

(2) Sidewalks are required to be constructed at the same general grade and alignment as the street curb. Meandering the sidewalk is acceptable if alignment would damage trees.

(3) Sidewalks are not required to be constructed at the same grade as the street curb nor in a straight line if such straight line construction would damage trees.

(4) Sidewalks shall not be required on any street in the following described exclusion zones, except sidewalks will be required on new streets where the new street intersects with an existing street that has sidewalks.

a. *Exclusion area No. 1: West 65th Street Industrial Park.* An area of land described as parts of Section 19, 20, 21, 28, 29, 30 and 32 of T-1-N, R-12-W more particularly described as follows:

Beginning at the SE corner of Section 30, T-1-N, R-12-W; thence north along the east line of Section 30 to its point of intersection with the centerline of West 65th Street; thence west along the said centerline of West 65th Street to its intersection with the west line of the SE ¼ NE ¼ Section 30 extended; thence north along the west line of the SE ¼ NE ¼ and the NE ¼ NE ¼ of section 30 to a point on the centerline of Hoffman Road; thence east along the centerline of Hoffman Road to its intersection with the west line of Section 20, T-1-N, R-12-W, being the southwest corner of Section 20; thence north along the west line of Section 20, T-1-N, R-12-W to a point which is the NW corner of the SW ¼ of Section 20, T-1-N, R-12-W; thence east along the east to west centerline of Sections 20 and 21, T-1-N, R-12-W to a point on the centerline of Interstate Highway No. 30; thence southwesterly along the centerline of Interstate 30 to point which would be the centerline of West 60th Street if extended eastward; thence easterly along West 60th Street centerline extended to its point of intersection with the centerline of the former right-of-way for Chicago, Rock Island and Pacific Railroad; thence southwesterly along the centerline of the said former railroad right-of-way to its point of intersection with West 68th Street extended eastwardly; thence westerly along the extended centerline of West 68th Street to its point of intersection with the west line of Section 28, T-1-N, R-12-W; thence southerly along the west line of Section 28 and 33 to a point 600 ± feet south of the north line of Section 33, T-1-N, R-12-W; thence westerly along a line 600 feet south of and parallel to the south line of Section 29, T-1-N, R-12-W to a point on the centerline of Jamison Road; thence northerly and westerly along the centerline of Jamison Road to a point of intersection with the centerline of Interstate Highway 30; thence southerly and westerly along the centerline of Interstate Highway 30 to its point of intersection with the east line of Section 31, T-1-N, R-12-W; thence north along the east line of Section 31 to a common point with the SE corner of Section 30, T-1-N, R-12-W and the point of beginning.

b. *Exclusion Area No. 2: Airport Industrial Park.* An area of land described as parts of Sections 4, 5, 6, 7, 8, 9, 17, 18, and all in T-1-N, R-11-W and parts of Sections 1, 2, 12 and 13 of T-1-N, R-12-W Pulaski County, Arkansas more particularly described as:

Beginning at a point on the centerline of Interstate Highway 440 at its intersection with the centerline of Springer/Confederate Blvd.; thence north along the centerline of Springer and Confederate Blvd. to its point of intersection with the centerline of East 26th Street; thence easterly along the centerline of East 26th Street to its point of intersection with the west line of Section 12, T-1-N, R-12-W; thence northerly along the west line of Section 12, T-1-N, R-12-W to its point of intersection with the centerline of East 9th Street; thence west along the centerline of East 9th Street to its point of intersection with Miller Street; thence north along the centerline of Miller Street to its point of intersection with the centerline of East 6th Street; thence easterly along the centerline of East 6th Street to its point of intersection with the centerline of Bond Street; thence southerly and easterly along the centerline of Bond Street to its point of intersection with the centerline of East 8th Street;

thence easterly along the centerline of East 8th Street to its point of intersection with the centerline of Bannock Street; thence southerly along the centerline of Bannock Street to its intersection with the centerline of East 12th Street; thence easterly along the centerline of East 12th Street to its point of intersection with the centerline of Harrington Street; thence northerly along the centerline of Harrington Street to its point of intersection with the centerline of East 10th Street; thence easterly along the meanders of the centerline of East 10th Street to its point of intersection with the centerline of Rogers Street; thence northerly and easterly along the centerline of Rogers Street and that centerline extended northward to the south high water mark of the Arkansas River; thence easterly and southerly along the meanders of the south high water mark of the Arkansas River to its point of intersection with the east boundary line of Section 5, T-1-N, R-11-W; thence S45°0`0" west 4,000± feet to a point of intersection with the centerline of Kellet Road; thence westerly and southerly along the meanders of Kellet Road centerline to its point of intersection with the centerline of Fourche Dam Pike; thence easterly along the centerline of Fourche Dam Pike to its point of intersection with the centerline of Haven Road; thence southerly along a line which is the extension southward of Haven Road centerline approximately 1,300 feet to a point of intersection with the south line of Section 8, T-1-N, R-11-W; thence westerly along south line of Section 8, T-1-N, R-11-W to a point which is on the centerline of Fourche Dam Pike; thence south and westerly along the centerline of Fourche Dam Pike to its point of intersection with the east line of the West ½ NW ¼ Section 17, T-1-N, R-11-W; thence southerly along the aforesaid east line of the West ½ of the NW ¼ of Section 17 to its point of intersection with the centerline of Interstate 440; thence westerly along the meanders of the centerline of Interstate 440 to the point of beginning.

c. *Exclusion Area No. 3: Little Rock Port Industrial Park.* An area of land described as parts of Sections 10, 14, 15, 16, 17, 20, 21 and 22 T-1-N, R-11-W, Pulaski County, Arkansas more particularly described as:

Beginning at a point on the centerline of Interstate 440 at its point of intersection with the east line of the west ½ of the NW ¼ of Section 17, T-1-N, R-11-W; thence easterly along the meanders of the centerline of Interstate 440 to its point of intersection with the centerline of Fourche Dam Pike; thence north along the centerline of Fourche Dam Pike to a point on the south boundary of the Hermitage Homesites Subdivision; thence easterly along the south boundary of the Hermitage Homesites Subdivision to a point on the east boundary line of Section 16, T-1-N, R-11-W; thence northerly along the east line of Sections 16 and 9, T-1-N, R-11-W to the south high water mark of the Arkansas River; thence southerly and easterly along the meanders of the south high water mark of the Arkansas River to its point of intersection with the south line of Section 14, T-1-N, R-11-W; thence westerly along the south line of Section 14, T-1-N, R-11-W and Section 15, T-1-N, R-11-W to its point of intersection with the centerline of the East Little Rock Levee District levee; thence southeasterly along the centerline of the aforesaid levee to its point of intersection with the south line of the north ½ of the north ½ of Section 22, T-1-N, R-11-W (a.k.a. the centerline of Birdwood Road, a private street); thence westerly along the aforesaid south line of the north ½ north ½ Section 22 to its point of intersection with the centerline of Frazier Pike; thence southerly along the centerline of Frazier Pike to a point of intersection with the east-west centerline of Section 22, T-1-N, R-11-W; thence westerly along the east-west centerline of Sections 22 and 21 to a point of intersection with the north-south centerline of Section 21, T-1-N, R-11-W; thence north along the centerline of Section 21 to its point of intersection with the south line of the north ½ of the north ½ of Section 21; thence westerly along the south line of the north ½ north ½ of Sections 21 and 20 to a point of intersection with the east line of the west ½ west ½ of Section 20, T-1-N, R-11-W; thence northerly along the east boundary of the west ½ of the

west ½` of Sections 20 and 17, T-1-N, R-11-W to its point of intersection with the centerline of Interstate 440 and the point of beginning.

d. *Exclusion Area No. 4: Otter Creek Industrial Park.* An area of land described as parts of Section 9, T-1-S, R-13-W, more particularly described as follows:

Beginning at the intersection of the south right-of-way line of Mabelvale West Road and the east line of the west ½ of the northeast ¼ Section 9 T-1-S, R-13-W; thence run south along the aforesaid east line of the west ½ of the northeast ¼ to its point of intersection with the north right-of-way line of the Union Pacific Railroad main line (formerly the Missouri Pacific Railroad); thence run southwesterly along the said north right-of-way line to its point of intersection with the west line of Section 9, T-1-S, R-13-W; thence run north along the said west line of Section 9 to its point of intersection with the south right-of-way line of Interstate Highway 30; thence run northeasterly along the said south right-of-way line to its point of intersection with the south right-of-way line of Mabelvale West Road; thence run east along the said south right-of-way line to the point of beginning.
(Code 1961, § 37-27; Ord. No. 15,529, § 1v—x, 8-16-88; Ord. No. 16,374, § 1(b), 3-2-93; Ord. No. 16,861, § 1(aa), (aaa), 3-21-95; Ord. No. 18,054, § 1(b), 7-6-99; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-176. Storm drainage.

(a) Every subdivision shall make adequate provisions to accommodate or dispose of stormwater by means of drains, sewers, catch basins, culverts and other facilities deemed necessary by the department of planning and development.

(b) Facilities for storm drainage should be designed and constructed so as to minimize increases in the rate of storm runoff onto adjoining property over that which existed prior to development.

(c) Facilities for storm drainage shall be of adequate capacity, with rainfall design storm event as noted in "Master Street Plan."

(d) Breaks in the curb with concrete aprons may be allowed in lieu of inlets where discharge does not exceed four (4) cubic feet per second (CFS).

(e) Where a subdivision is traversed by a watercourse, channel or stream, a stormwater easement or drainage right-of-way shall be provided. Such easements or right-of-way shall conform substantially to the lines of the watercourse as it enters and leaves the property and shall be of sufficient width and construction to provide adequate stormwater drainage and access for maintenance thereof, but not less than twenty (20) feet in width.

(f) Valley gutters may be utilized at residential street intersections where surface water drainage to be accommodated is less than five (5) cubic feet per second (CFS).

(g) Box culverts and bridges which cross public streets need not extend from right-of-way line to right-of-way line, but shall be of sufficient width to accommodate vehicular and pedestrian traffic. Box culverts having a clear span of less than six (6) feet shall not qualify as box culverts in the above provision, but shall extend across the street from right-of-way line to right-of-way line.

(h) Stormwater may not be diverted from one (1) watershed to another within the plat boundaries.

(i) In order to protect the public interest, floodways in every subdivision shall be kept free of incompatible urban development. Floodways, as defined by the current flood hazard boundary maps or as modified by detailed engineering analysis accepted by the Army Corps of Engineers, shall be either designated on the plat as drainage easements or, at the option of the landowner, dedicated to the public.

(j) Vehicular access easements to allow public maintenance of drainageways shall be provided adjacent to floodways depicted on the city flood hazard boundary maps. Such easements shall be not less than twenty-five (25) feet wide, measured from the edge of the floodway on either side of the drainage channel.
(Code 1961, § 37-28; Ord. No. 17,697, § 3a, d, 3-17-98; Ord. No. 18,054, § 1(c), 7-6-99; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-177. Acquisition of park land.

(a) Chapter 23, article III applies to this section.

(b) Any subdivider of land within the planning area of the planning commission, who proposes to make or has made a subdivision of land, shall conform to the park system master plan by indicating on any plats or drawings submitted to the commission for its consideration any and all proposed park facilities which are located within the property, and shall plat the park lands to the dimensions and in the location determined by the commission. Such park lands shall be reserved for acquisition by the city. Such acquisition must be made within twelve (12) months from the date the subdivider's plat is presented to the planning commission. Acquisition shall be deemed as having been made when either an option to purchase is executed or litigation to condemn is filed by the city. No subdivider shall be denied the privilege of having a plat approved solely by reason of the issue of reserved park lands unless the city determines and advises the subdivider, within sixty (60) days from the date his plat is presented to the planning commission, that public funds for the acquisition of such park lands will be available within twelve (12) months from the date the plat is presented.

(c) Whenever the planning commission is presented with a request for consideration of a plat involving the expansion of any mapped existing facility, or a proposed facility, the commission shall require, in conjunction with the approval of the plat, reservation of the park land.

(d) No building permit shall be issued for any structure on any lot or parcel on which any proposed park lands are indicated unless it has first been determined that the proposed structure would not lie within the proposed bounds of the park lands, or unless otherwise authorized under the provisions of A.C.A. tit. 14, ch. 56, subch. 4 [A.C.A. § 14-56-401 et seq.]. Nothing herein contained, however, shall be construed to deny a permit for the use of such lot or parcel for purposes not involving the construction or relocation of buildings.

(e) The plan shall be duly considered prior to action on any matter related thereto which comes before the planning commission, the board of directors, or any of the departments, agencies, boards or commissions of this city.
(Code 1961, § 24-43)

Secs. 31-178—31-200. Reserved.

DIVISION 2. STREETS

Sec. 31-201. Generally.

(a) Streets shall be related appropriately to the topography so as to produce usable lots and streets of reasonable gradient. Street grades and alignment shall conform reasonably to the original topography. In steep areas, through streets should generally follow contour lines rather than cross them. Combinations of steep grades and curves shall be avoided. Sudden and frequent changes of grade along arterials shall be avoided. Sharp horizontal curvature should be avoided if possible at or near the high point of a crest, vertical curve or near the low point of a pronounced sag or vertical curve.

(b) The proposed street layout should be appropriate for the type of development proposed and properly integrated with the street system in the area adjoining the subdivision. The layout shall also conform to the existing and proposed land uses and the most advantageous development pattern for the surrounding area.

(c) Major traffic generators such as industries, business districts, schools, shopping centers and residential development with a density in excess of eighteen (18) units per gross acre shall obtain primary access from streets classified as collectors and above.

(d) Residential streets shall be laid out to discourage the use of through traffic, to permit efficient drainage and utility systems and to require the minimum length of pavement necessary to provide convenient and safe access to property. Curvilinear streets, culs-de-sac and loop streets shall be encouraged where such use will result in a more desirable layout.

(e) Proposed through streets shall be extended to the boundary lines of the tract to be subdivided, unless the planning commission has determined that such extension is not necessary or desirable for the coordination of the layout of the subdivision with the existing layout or the most advantageous future development of adjacent tracts.

(f) Every subdivision shall be served by an adequate system of publicly dedicated streets or their private counterparts as specified in this chapter. All public streets within the subdivision shall be located, platted and dedicated to the city in accordance with the master street plan and the standards and procedures outlined in this chapter.

(g) Land dedication shall be in accordance with chapter 30, article VI and the master street plan.

(h) New boundary streets shall be avoided except where a requirement of the master street plan provides a defined alignment. In that event, the development or plat proposed shall provide one-half of the master street plan's specified improvements and right-of-way. Whenever a proposed subdivision abuts a partially dedicated or constructed public street, the developer shall provide the minimum of one-half of the required improvements and right-of-way. The planning commission may authorize a new boundary street when the subdivider proposes to dedicate the entire right-of-way and construct all the required improvements. In no case shall a subdivider retain a parcel of land lying between a newly created boundary street and a former property line, the purpose of which would be to deny access by abutting owners.

(i) For purposes of determining the extent of required improvements on boundary streets, the right-of-way centerline shall be deemed to be the plat boundary. Where a clearly defined right-of-way does not exist, the appropriate city official shall establish the centerline location.
(Code 1961, § 37-21(a), (b)(1)—(b)(3.1); Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-202. Dead-end streets and culs-de-sac.

(a) Where a street does not extend to the boundary of a subdivision, and its continuation is not necessary for access to adjoining property, its terminus shall not be closer than fifty (50) feet to such boundary.

(b) A minor residential cul-de-sac street may have intersecting cul-de-sac streets as long as the total length of street measured along any centerline segment constructed to minor residential standards does not exceed master street plan length and the maximum number of lots served by a minor residential street segment does not exceed thirty-five (35) single-family lots.

(c) In the case of temporary dead-end streets, which are stub streets designed to provide future connections with unsubdivided adjacent areas, the planning commission may require a temporary easement for a turnaround of the type discussed in subsection (b) or an appropriate area for a backaround.

(d) In the case of temporary dead-end streets which are stub streets designed to provide future connection with unsubdivided adjacent areas, the developer shall at his expense provide an information sign with content and size to be determined by the public works department. It is the purpose of this sign to convey to adjacent owners and street users information as to continuation of the street and its intended classification. The initial erection of the sign and permanent maintenance will be the responsibility of the city.
(Code 1961, § 37-21(b)(4); Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 18,031, § 1(s), 6-1-99; Ord. No. 18,054, § 1(d), 7-6-99; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-203. Street grades.

For grades of streets see "Master Street Plan."
(Code 1961, § 37-21(b)(5); Ord. No. 17,697, § 3d, 3-17-98; Ord. No. 18,054, § 1(e), 7-6-99)

Sec. 31-204. Minimum horizontal radius at centerline.

For horizontal radius of centerline see "Master Street Plan."
(Code 1961, § 37-21(b)(6); Ord. No. 15,651, § 1, 3-21-89; Ord. No. 18,054, § 1(f), 7-6-99)

Sec. 31-205. Tangents.

For tangent lengths see "Master Street Plan."
(Code 1961, § 37-21(b)(7); Ord. No. 15,651, § 2, 3-21-89; Ord. No. 18,054, § 1(g), 7-6-99)

Sec. 31-206. Intersections and alignment.

(a) Street intersections shall be laid out as nearly at right angles as possible and may be curved to bring this about. The centerline of no more than two (2) streets shall intersect at any one (1) point. No intersection shall be at an angle of less than seventy-five (75) degrees.

(b) For curb radii at intersection see "Master Street Plan."

(c) Street jogs with centerline offsets of less than one hundred twenty-five (125) feet shall be avoided. Proposed new intersections along one (1) side of an existing street shall, whenever practicable, coincide with any existing intersections on the opposite side of the street.

(d) For approaching grades at intersections see "Master Street Plan."

(e) Additional street paving and right-of-way in the form of turning lanes shall normally be required by the engineering division along arterial streets at intersections with other arterial or collector streets.

(f) Property line corners at street intersections shall be rounded with a radius of at least twenty (20) feet.

(g) Where visibility at any proposed street intersection would be impeded by earthen berms or existing vegetation, the developer shall cut such ground and vegetation in conjunction with the grading of the street right-of-way sufficient to provide adequate site distance as specified in section 32-8.

(h) Street intersections shall be located to avoid creating hazardous driving conditions.
(Code 1961, § 37-21(b)(8); Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 18,054, § 1(h), (i) 7-6-99)

Sec. 31-207. New private streets.

(a) *Residential.* Private streets may be approved by the planning commission to serve isolated developments. The design standards shall conform to public street standards as specified in this chapter. Private streets are permissible only in the form of culs-de-sac and short loop streets and only when it has been determined that these streets can be adequately served by all public service vehicles. Such streets will not be permitted where there is a possibility of through traffic or eventual connection to another public street. It shall be incumbent upon the applicant to demonstrate that the private streets will not unreasonably limit access to adjacent parcels, hinder logical traffic patterns, or otherwise be contrary to the public interest. The subdivider shall provide for permanent maintenance of all private streets in the bill of assurance. This maintenance shall include water lines, fire hydrants, or other utility facilities.

The developer shall enter into contracts with Central Arkansas Water for the maintenance of all water mains and hydrants lying within the private street right-of-way.

(b) *Commercial, office and industrial.*

(1) Private street systems for nonresidential use shall be discouraged. However, the planning commission may approve limited use when the design standards of this chapter are used as a basis for review.

(2) Private streets shall be limited to short loop or cul-de-sac alignments where the development served contains less than five (5) acres. The developer shall demonstrate that the street system proposed can adequately serve the needs of public service vehicles for access, turning radius, and clearance of other improvements within the right-of-way.

(3) The design of nonresidential private streets shall provide for access into a public right-of-way as required for private driveways.

(4) The developer shall provide for permanent maintenance of private streets within the bill of assurance. This maintenance shall include water lines, fire hydrants, or other utility facilities. The developer shall enter into contracts with Central Arkansas Water for the maintenance of all water mains and fire hydrants lying within the private street right-of-way.

(5) Developers shall conform to the preliminary plat filing procedures in addition to the following:

a. A bill of assurance which shall contain covenants and restrictions to run with the title of the lots contained within the plat. The covenants shall provide for permanent access rights and maintenance responsibility.

b. Street construction plans submitted to the department of planning and development and review and release by appropriate department.

c. Construction plans for extension of water and sanitary sewer systems.

d. Plans for boundary fences, wall, guard houses, or other physical improvements unique to a private street system. However, such plans shall not include gates or entry barriers which are expressly prohibited.

(Code 1961, § 37-21(b)(9); Ord. No. 15,529, § 1n, 8-16-88; Ord. No. 18,031, § 1(gg), 6-1-99; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-208. Existing private streets.

(a) The planning commission shall review and determine acceptance of the dedication of existing private streets as provided in this section.

(b) Principal access right-of-way only is allowed. Alley dedications shall be discouraged.

(c) Streets and alleys which had been previously dedicated to the county will become city streets upon annexation; these streets and alleys will be maintained at or above their physical condition upon annexation.

(d) Streets and alleys which had been previously fully maintained by the county for which no dedication is on record will become city streets upon annexation only if a formal dedication is made. Such dedications shall be reviewed by the planning commission and accepted by the board of directors as prescribed by law. No improvements or construction shall be required, and these districts and alleys will be maintained at or above their physical condition upon annexation. Streets which have not been fully maintained by the county but have received periodic county maintenance, may receive the same periodic maintenance by the city upon annexation if an official of county operations or road and bridge department verifies in writing that the county did conduct periodic maintenance and specifies the nature of the maintenance.

(e) Streets or alleys which were private in every respect shall remain private after annexation. Owners of properties abutting such streets or alleys may request dedication by following the procedures outlined for submission of preliminary plats. Dedication of right-of-way for alleys shall provide a tie to the public street system at both ends.

(f) A review committee consisting of the director of the department of planning and development and the public works department shall evaluate each incidence whereby dedication is at issue. A recommendation in written form shall be made on each qualifying request and presented to the commission at a public hearing. This committee shall act in the capacity of technical advisor only to the planning commission. Appeals from decisions or actions of this committee may be filed with the planning commission.

(g) The planning commission shall determine that a need exists for a public street.

(h) Citizens desiring to dedicate private streets shall assume all costs to include platting, engineering, and construction.

(i) No street shall be offered nor reviewed for dedication where no structure abuts the right-of-way or where such action would circumvent the subdivision ordinance review for new streets or subdivisions.

(j) In those instances where a private road was created by land sales constituting a violation of this chapter or any previous subdivision ordinance, the property from which the road was derived shall be included in preliminary plat submissions.

(k) The review criteria shall be as follows:

(1) The street proposed will be located within a dedicated right-of-way of not less than forty (40) feet.

(2) The pavement surface shall be at least twenty (20) feet wide with adequate shoulders. The pavement must be of asphaltic concrete or portland concrete construction. The shoulders shall have a minimum of a single surface treatment.

(3) The pavement thickness must be equivalent to a minimum of six (6) inches of compacted, crushed stone (SB-2), base course plus two (2) inches of asphaltic concrete placed on an adequate subgrade.

(4) The planning commission may require proof of pavement base course and subgrade conditions during the technical review of the street, only after submission of a plat.

(5) Horizontal and vertical curves and other geometric conditions of the street must be judged safe for existing and future traffic conditions.

(6) Dead-end streets shall provide an adequate turnaround for sanitation and emergency vehicles both in dimension and improvements.

(7) The street shall have sufficient crown to permit normal drainage from the pavement surface.

(8) Street side drainage ditches shall be permitted except in those cases where the planning commission determines that curb and gutter and underground drainage is the only feasible method to handle the drainage.

(9) All drainage structures within the right-of-way shall be of sufficient size and type construction to meet other city ordinances or be judged adequate by the planning commission.

(10) Street grades and intersection approach grades shall meet other city ordinances or be judged satisfactory for existing and future traffic conditions.

(11) Utility alignment and depth shall meet all city policies or be judged satisfactory by the planning commission. The applicant shall show all existing or proposed utilities on the dedication application.

(12) The planning commission may designate drainage, utility or public use easements as required to maintain the street.

(Code 1961, § 37-21(b)(10); Ord. No. 15,529, § 1o, p, 8-16-88; Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 17,697, § 3a, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-209. Reserved.

Editor's note—Section 1(j) of Ord. No. 18,054, adopted July 6, 1999, deleted § 31-209 which pertained to residential street classification and standards and derived from Code 1961, § 37-21; Ord. No. 15,651, adopted Mar. 21, 1989; and Ord. No. 16,341, adopted Jan. 19, 1993.

Sec. 31-210. General access and circulation.

(a) The purpose of these standards is to provide for the safe and efficient movement of vehicles to, from and within sites developed or modified for use by significant numbers of vehicles. These standards provide for proper turning movement, lane width, spacing and relationships between on street movement and within a development site. The standards are intended to be compatible with developed areas and urbanizing segments of the community. The standards of this section are designed to complement the provisions of sections 30-1 through 30-48 of this Code by providing a uniform design standard for development regulations.

(b) Uses required to conform to these standards shall include but not be limited to: Industrial, commercial or office developments with multiple structures or lots; multifamily developments with multiple structures or lots; churches or other

religious organizations and institutions; recreational uses both public and private; educational institutions.

(c) Classifications of streets involved in the application of the standards shall include: Principal arterial; minor arterial; collectors (both commercial and residential); industrial streets.

(d) Development tract size for which these standards are applicable shall not have a minimum or maximum land area. For purposes of applying these standards to lots less than one hundred (100) feet in width and less than one (1) acre in area, located adjacent to or surrounded by developed lots; the director of the department of planning and development shall have approval authority. This authority shall be exercised through use of accepted engineering design and practice, while accommodating public safety and good business access.

(e) For the purpose of spacing requirements, the points of access to a boundary street are as follow according to street classification:

(1) *Arterial streets.* Driveway spacing shall be three hundred (300) feet. Driveway spacing shall be centerline to centerline or centerline to right-of-way of an intersecting collector street or street with a higher classification. Minimum spacing from the property line shall be one hundred fifty (150) feet. Maximum width of driveway is thirty-six (36) feet. A lot will require seven hundred fifty (750) feet of frontage for two (2) drives, if the lot is adjacent to an intersecting collector street or street of a higher classification. A lot will require six hundred (600) feet of frontage for two (2) drives, when a lot is adjacent to another lot, a residential street or a minor commercial street. For lots less than three hundred (300) feet in width shared access is recommended for proposed plats and existing plats recorded prior to January 1, 1999 are limited to one (1) driveway and the driveway location shall be as approved by the public works department and shall be considerate of adjacent lot access or conflicting turn movements from properties across the street. Commercial streets are considered collector streets unless they conform to the minor commercial street classification. Industrial streets are considered collector streets. Residential lots shall take access from other streets within the subdivision.

(2) *Collector streets.* Driveway spacing shall be two hundred fifty (250) feet. Driveway spacing shall be centerline to centerline or centerline to right-of-way of an intersecting collector street or street with a higher classification. Minimum spacing from the property line shall be one hundred twenty-five (125) feet. Maximum width of driveway is thirty-six (36) feet. A lot will require six hundred twenty-five (625) feet of frontage for two (2) drives, if the lot is adjacent to an intersecting collector street or street of a higher classification. A lot will require five hundred (500) feet of frontage for two (2) drives, when a lot is adjacent to another lot on both sides a residential street or a minor commercial street. For lots less than two hundred fifty (250) feet in width a property shared access is recommended for proposed plats and existing plats recorded prior to January 1, 1999 are limited to one driveway and the driveway location shall be as approved by the public works department and shall be considerate of adjacent lot access or conflicting turn movements from properties across the street. Commercial streets are considered collector streets unless they conform to the minor commercial street classification. Industrial streets are considered collector streets. Residential lots shall take access from other streets within the subdivision.

(3) *Other commercial streets.* Minor commercial streets, commercial cul-de-sac streets (greater than master street plan standard, when approved by the planning commission), and loop commercial streets (street does not connect two separate streets) the driveway spacing shall be two hundred (200) feet. Driveway

spacing shall be centerline or centerline to right-of-way line of an intersecting collector street or street with a higher classification. Minimum spacing from the property line shall be one hundred (100) feet. Maximum width of driveway is 26 feet. A lot will require five hundred (500) feet of frontage for two (2) drives, if the lot is adjacent to an intersecting collector street or street of a higher classification. A lot will require four hundred (400) feet of frontage for two (2) drives, when a lot is adjacent to a residential street or a minor commercial street. For lots less than two hundred (200) feet in width a shared access is recommended for proposed plats and existing plats recorded prior to January 1, 1999 are limited to one (1) driveway and the driveway location shall be as approved by the public works department and shall be considerate of adjacent lot access or conflicting turn movements from properties across the street. Commercial streets are considered collector streets unless they conform to the minor commercial street classification. Industrial streets are considered collector streets.

(4) *Residential streets.* Driveways for commercial uses approved to be located on a residential street shall be spaced the same as for other commercial streets. However, for properties that are located on existing platted residential lots of the same size and character as adjoining residential properties the driveway requirements are to be the same as listed in section 30-43: maximum width twenty (20) feet, the drive shall be five (5) feet from property line and twenty-five (25) feet from the right-of-way of an adjacent street.

(f) Intersections created by public streets and driveways or points of access shall be designed with the following minimum standards:

(1) In all instances the centerline of drives shall intersect the centerline of a street at a right angle. Variance up to fifteen (15) degrees may be granted, submitted to the department of planning and development for review and approval by appropriate department.

(2) Where practical the centerline of a drive shall align with existing drives immediately across the intersected street. The development plan shall show all existing drives adjacent to and across the street from the planned development.

(3) A centerline profile and horizontal layout is required on all streets where access is planned to ensure that adequate sight distance is provided at the street access point. Site plans that do not meet this requirement will not be approved.

(4) Properly designed curbing and pavement marking shall be installed to delineate the several traffic lanes.

(5) Medians, both painted and raised structure, are permitted with the specific design to be approved by the appropriate department.

(6) The minimum turnout radius on the curbing intersecting the street curb shall be determined for each project utilizing standard traffic engineering turning radius templates.

(7) Left-turn lanes may be required; if so, the need and required storage capacity shall be determined by the developer's engineer submitted to the department of planning and development for review and approval by appropriate department.

(8) The minimum width for a drive or access point providing a left-turn lane shall be thirty-six (36) feet for the full length of the left-turn lane and will include the necessary transition length. The channelized section and required storage lanes shall be separated from the parking areas using curb and gutter. The design will be submitted to the department of planning and development for review and approval by appropriate department.

(9) Driveway grade within the public street right-of-way and within fifty (50) feet of

the curb line of the public street is recommended not to exceed plus or minus five (5) percent. Upon a showing of proper documentation of unusual conditions and justification, submitted to the department of planning and development for review and approval by appropriate department, grades of up to plus or minus eight (8) percent within the first twelve (12) feet from the curb line, and plus or minus fourteen (14) percent from twelve (12) feet to fifty (50) feet from the curb line may be approved. Under no circumstances shall the elevation of a driveway surface at a point twelve (12) feet from the curb line of a public street be lower than the top of the adjacent curb.

The following shall be used for purposes of plat and plan design and may be required by the planning commission as part of the final design. The planning commission may consider variances from these requirements upon submittal of justification.

(g) Existing development conditions or commitments shall be considered in staff review and judgment as to placement of drives or access points and their design. The prevailing access mode for adjacent properties along the primary access street shall not control, but be given weight in the review if adverse safety conditions will not be created. Newly created out parcels within an existing developed site shall take access over or on the existing approved drives. This may be accomplished by means of common drives and easements. Plat and site plans shall reflect the approved interior circulation plan and the means of assuring permanent maintenance and access.

(h) A signage and striping plan shall be prepared and submitted to the department of planning and development for review and approval by appropriate department.

(i) Special design considerations, offsite include:

(1) The provision of acceleration and deceleration lanes may be required on minor arterial or higher classification of streets, where in the judgment of the public works department, they will facilitate the movement of vehicles.

(2) The provision of a median in any boundary street where identified by the master street plan or other city ordinance or agreement.

(j) The director of the department of planning and development may approve variances, subject to review and recommendations from appropriate department, from subsections 31-210(a) through (i) for building permit applications. The planning commission may approve variances from subsections 31-210(a) through (i) for applications before the commission. Appeal from decisions of the director of the department of planning and development and of the planning commission concerning the provisions of subsections 31-210(a) through (i) above may be filed with the Little Rock board of directors after final review and action by the director of the department of planning and development or the planning commission.

(Ord. No. 16,577, § 1b, 1-18-94; Ord. No. 17,697, § 3e, 3-17-98; Ord. No. 18,031, § 1(a), (b), (mm), 6-1-99; Ord. No. 19,910, § 1(b), 1-15-08; Ord. No. 21,867, § 1, 5-19-20)

Secs. 31-211—31-230. Reserved.

DIVISION 3. LOTS

Sec. 31-231. Generally.

Every lot shall abut upon a public street, except where private streets are explicitly approved by the planning commission.

(Code 1961, § 37-24(a); Ord. No. 15,529, § 1q, 8-16-88)

Sec. 31-232. Dimensions generally.

(a) Except as provided herein, the minimum lot dimensions shall conform to the requirements of the zoning ordinance for areas zoned within the jurisdiction.

(b) No residential lot shall be more than three (3) times as deep as it is wide, except lots approved under paragraph (g) or zero lot line lots in the R-2, R-3, PRD and PD-R zoning districts. No lot except lots designated for townhouse use shall average less than one hundred (100) feet in

depth. Lot width shall be measured at the building line except in the case of a lot abutting a cul-de-sac where the average width of the lot shall be used.

(c) Lots served by a public water system and proposed to be served by a septic tank system must submit at the time of preliminary plat filing a written certification of approval by the state department of health. The lot sizes allowed by this certification shall be indicated on the plat.

(d) Double frontage lots are prohibited. However, where a subdivision abuts or contains an existing or proposed arterial street, freeway, expressway, or railroad right-of-way, reverse frontage lots are permitted. Double frontage lots may also be used to facilitate residential development in hillside areas as defined in division 8, section 31-367 et seq., of this article.

(e) Corner lots for residential use shall have a minimum width of seventy-five (75) feet to accommodate the required building line on both streets and to assure adequate visibility for traffic safety.

(f) Pipestem lots shall be prohibited in residential subdivisions.

(g) In residential subdivisions where lots abut a freeway, expressway, or occupied mainline railroad right-of-way, such lots shall have an overall depth of not less than one hundred seventy-five (175) feet in order to ensure proper separation of residences from adjacent thoroughfare or railroad line.
(Code 1961, § 37-24(b)—(e), (g)—(i); Ord. No. 15,529, § 1r—t, 8-16-88; Ord. No. 15,971, § 1(d), 2-4-90; Ord. No. 18,031, § 1(f), (hh), 6-1-99; Ord. No. 18,902, § 1(d), 7-15-03; Ord. No. 20,326, § 1(l), 9-21-10; Ord. No. 22,651, § 2, 9-2-25)

Sec. 31-233. Townhouse lots.

Submission of a plat for a proposed subdivision creating lots for townhouse residences shall be accompanied by a generalized site plan showing the proposed location and dimensions of all buildings, accessory uses and other improvements. Such lots shall be not less than twenty-two (22) feet in width by eighty (80) feet in depth, and with overall size of two thousand (2,000) square feet. Platted building lines shall conform to building location shown in the generalized site plan.
(Code 1961, § 37-24(b)(1))

Sec. 31-234. Zero-lot-line residential lots.

Submission of a plat creating a zero-lot-line development shall be accompanied by a generalized site plan showing the proposed locations and dimensions of all buildings, accessory uses and other improvements. Platted building lines shall be shown on all sides of each lot for purposes of delineating the maximum buildable area of each lot and specify the zero-lot-line yard.
(Code 1961, § 37-24(b)(2); Ord. No. 15,971, § 1(e), 12-4-90)

Sec. 31-235. Angle of side lot lines.

Side lot lines shall be at right angles to street lines or radial to curving street lines unless a variation will give a better street or lot plan or allow better utilization of conservation of energy.
(Code 1961, § 37-24(i))

Secs. 31-236—31-255. Reserved.

DIVISION 4. PLATTED BUILDING LINES

Sec. 31-256. Building lines on residential lots.

Building lines for residential lots shall be at least twenty-five (25) feet from each street property line except in the following circumstances:

(1) Residential lots fronting on collector streets shall have a platted building line not less than thirty (30) feet from the right-of-way line.

(2) Residential lots fronting on a minor arterial street shall have a platted building line not less than thirty-five (35) feet from the right-of-way line.

(3) Lots fronting on culs-de-sac or curved portions of other streets may provide a front building line that is straight relative to the front property line. This line is to be established by placement of

dimensioned points on the side property lines at least thirty-two (32) feet from the street right-of-way line and connecting these points with a dimensioned straight line on the plat. This line shall not be less than twenty-five (25) feet from the street right-of-way line at any point.

(4) Residential lots defined in this chapter as "contemporary" shall have building lines provided that will delineate front, side and rear setbacks from property lines.

(Code 1961, § 37-25(a); Ord. No. 16,861, § 1(vv), (yy), 3-21-95)

Sec. 31-257. Double frontage lots.

Along arterial streets in proposed subdivisions where it is desirable to limit curb cut access, building lines shall be established on both frontages of double frontage lots. Along the line of lots abutting such traffic artery, a restricted access easement of at least ten (10) feet, across which there shall be no right-of-vehicle access permitted, shall be provided.

(Code 1961, § 37-24(b))

Sec. 31-258. Reserved.

Editor's note—Former § 31-258 pertained to buffers, was repealed by § 2 of Ord. No. 15,832, adopted Apr. 3, 1990, and originated from the 1961 Code, § 37-25(c).

Secs. 31-259—31-280. Reserved.

DIVISION 5. COMMERCIAL/ OFFICE SUBDIVISIONS

Sec. 31-281. Generally.

(a) The following standards shall be observed:

(1) The planning commission shall require the subdivider to file a proposed subdivision phasing plan providing for continuity of development and individual phases of reasonable proportions. Single-lot final plats and plats which create discontinuity within the development may be prohibited by the planning commission.

(2) For commercial and office plats all improvements on all streets abutting the plat phase shall be constructed with or assured for that phase. Improvements may be deferred, waived or assigned to another phase after review and approval by the Little Rock city board of directors.

(b) This division applies to proposed commercial/office subdivisions.

(Code 1961, § 37-29(a); Ord. No. 15,529, § 1y, 8-16-88; Ord. No. 15,832, § 2, 4-3-90; Ord. No. 16,341, § 1(nn), 1-19-93; Ord. No. 16,861, § 1(aa), 3-21-95)

Sec. 31-282. Right-of-way and pavement width.

Boundary streets abutting commercial/office properties shall be developed in accordance with the "Master Street Plan." Internal streets to the subdivision when required by the planning commission shall be designed to the same standards as the commercial street or minor commercial street standards in the "Master Street Plan."

(Code 1961, § 37-29(b); Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 18,054, § 1(k), 7-6-99)

Sec. 31-283. Vertical and horizontal alignment.

The standards for commercial or minor commercial streets are as required in the "Master Street Plan."

(Code 1961, § 37-29(c); Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 18,054, § 1(l), 7-6-99)

Sec. 31-284. Lots.

(a) The depth and width for lots within plats of commercial or office subdivisions located inside the city limits shall conform to the applicable zoning district.

(b) In all instances, no commercial or office lot shall have a depth exceeding three (3) times the width. Pipestem lots are prohibited in office or commercial subdivisions.

(Code 1961, § 37-29(d); Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 22,651, § 2, 9-2-25)

Sec. 31-285. Blocks.

In the interest of efficient traffic circulation, and to ensure a suitable relationship between the street system and the proposed commercial use, blocks in commercial and office subdivisions shall generally be not less than six hundred (600) feet or more than one thousand (1,000) feet in length. Culs-de-sac shall not be permitted as termination devices for commercial streets.
(Code 1961, § 37-29(e); Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 18,031, § 1(o), 6-1-99)

Sec. 31-286. Platted building lines.

(a) Building lines for lots within subdivision plats of commercial or office subdivisions located inside the city limits shall conform to the applicable zoning district.

(b) In all instances where a landscaped green area is substituted for parking and vehicular movement area between the building line and the street right-of-way, a twenty-five-foot front yard setback may be approved by the planning commission. Approval of the twenty-five-foot commercial building line shall be permitted on all lots fronting on streets as defined in this chapter and shall be contingent upon submission of both a site plan dimensioning the landscaping and a bill of assurance prohibiting use of the yard area for parking. Such landscaped areas may be traversed by not more than two (2) driveways providing access to the sides and rear of the lot.
(Code 1961, § 37-29(f); Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 22,651, § 2, 9-2-25)

Sec. 31-287. Reserved.

Editor's note—Section 1(ii) of Ord. No. 18,031, adopted June 1, 1999, deleted and reserved § 31-287 which had pertained to internal circulation and derived from the 1961 Code; Ord. No. 15,529, adopted Aug. 16, 1988; and Ord. No. 16,577, adopted Jan. 18, 1994.

Sec. 31-288. Reserved.

Editor's note—Ord. No. 16,577, § 1d, adopted Jan. 18, 1994, amended the Code by repealing provisions contained in § 31-288. Said provisions pertained to curb cut design and derived from the Code of 1961, § 37-29(h).

Secs. 31-289—31-310. Reserved.

DIVISION 6. INDUSTRIAL SUBDIVISIONS

Sec. 31-311. Generally.

The following standards shall be observed: In order to preclude the possibility of through traffic, industrial streets as defined in the chapter shall not be extended to the boundaries of adjacent existing or potential residential areas.
(Code 1961, § 37-30(a); Ord. No. 15,529, § 1cc—ee, 8-16-88; Ord. No. 15,832, § 2, 4-3-90)

Sec. 31-312. Street design.

(a) Industrial subdivisions shall conform to requirements of the "Master Street Plan."

(b) All industrial development shall conform to the provisions of section 31-210 for purposes of design of driveways, curb cuts and internal circulation.
(Code 1961, § 37-30(b); Ord. No. 16,577, § 1e, 1-18-94; Ord. No. 18,054, § 1(m), 7-6-99)

Sec. 31-313. Blocks and lots.

(a) In general, proposed industrial sites shall be suitable in area and dimension for the type of industrial development anticipated. The depth and width for lots within plats located inside the city limits shall conform to the applicable zoning district. The depth and width for lots within plats located outside the city limits but within the planning jurisdiction shall comply with the following:

(1) Minimum lot depth shall be two hundred (200) feet.

(2) Minimum lot width shall be one hundred fifty (150) feet.

(b) No lot shall have a depth greater than three (3) times its width. Pipestem lots are prohibited.
(Code 1961, § 37-30(c))

Sec. 31-314. Building lines and lot coverage.

Building lines for plats located within the city limits shall conform to the applicable zoning district.

(1) Building lines and setback lines shall be a minimum of fifty (50) feet from all

industrial street right-of-way lines and a minimum of seventy (70) feet from all arterial street right-of-way lines. A minimum of thirty (30) feet of setback shall be provided on all other property lines.

(2) One-half of any adjacent permanent open space or easement retained by the grantor for utility or other purposes or dedicated to the public shall be allowed as part of the required thirty (30) feet of setback except that in no case shall the total separation between buildings on adjacent tracts or lots be less than sixty (60) feet.

(Code 1961, § 37-30(d); Ord. No. 22,651, § 2, 9-2-25)

Sec. 31-315. Provision of open drainage.

The following improvements and requirements are alternatives in lieu of curb and gutter and underground drainage:

(1) Shoulders shall be designed to meet at least seventy-five (75) percent of the design requirements for pavement. A double surface treatment may be used for these shoulders.

(2) Open drainage ditches will be permitted at street rights-of-way or easements, provided they meet the following requirements:

a. The side slopes shall commence a minimum of four (4) feet from the edge of the paved shoulders.

b. The side slope for both slopes of an earthen ditch shall be at slope of three to one (3:1) or less. For concrete or riprap-lined ditches, a slope of one to one (1:1) or less is permissible with the approval of the public works department.

c. The maximum high water ditch elevation for designed capacity shall be a minimum of six (6) inches below the bottom of the base of the paved shoulder.

d. Street shoulder right-of-way width shall be a minimum of ten (10) feet beyond the top of the back slope requirements.

e. Concrete head walls riprap and/or flume-type structures as required by the public works department shall be required for all underground facilities.

f. Bills of assurance will require the adjoining property owners to mow and maintain the right-of-way and/or drainage easements adjacent to his property upon proper notice. If the property owner does not comply with the notice, the area may be mowed by the city and the property owner billed as per the procedure on vacant lots within the city.

g. All required drainage ditches shall be designed for appropriate erosion control (such as sodding, ditch checks, riprap, ditch paving or other accepted engineering practices).

h. In case of open drainage within the street right-of-way the following shall be the setback line from the centerline of the right-of-way:

1. Industrial street, seventy (70) feet.
2. Minor or principal arterial, one hundred twenty (120) feet.
3. Cul-de-sac, seventy (70) feet.
4. Cul-de-sac turnarounds, one hundred five (105) feet.

When street right-of-way requirements as set forth above are greater than normal requirements, the building line shall be a minimum of twenty (20) feet from the right-of-way line. In no case shall it be less than the requirements set forth immediately above.

(Code 1961, § 37-30(c); Ord. No. 17,697, § 3d, 3-17-98; Ord. No. 18,054, § 1(n), 7-6-99)

Secs. 31-316—31-335. Reserved.

DIVISION 7. MANUFACTURED HOME SUBDIVISIONS*

Sec. 31-336. Generally.

(a) In order to ensure proper placement of individual manufactured homes within manufactured home subdivisions, to provide for necessary off-street parking and storage facilities, and to integrate such developments appropriately with their surroundings, the design standards in this division shall be applied. For the purpose of this chapter, all divisions of land into two (2) or more lots for the placement of manufactured homes is a subdivision and shall be submitted to the planning commission for approval.

(b) Subdivisions designed to accommodate manufactured homes on separate lots for individual ownership shall conform to residential plat development standards.
(Ord. No. 20,534, § 2, 2-7-12)

Sec. 31-337. Minimum size.

Manufactured home parks shall be at least five (5) acres in size including open space.
(Ord. No. 20,534, § 2, 2-7-12)

Sec. 31-338. Design requirements.

(a) Each manufactured home lot in a manufactured home subdivision shall have a clearly defined minimum lot size of four thousand (4,000) square feet with a maximum density of eight (8) units per gross acre.

(b) The manufactured home subdivision shall have a minimum frontage on a dedicated public street of fifty (50) feet. The depth of the subdivision shall not be more than three (3) times the width of the subdivision. For pipestem lots, the pipestem shall not be more than three hundred thirty (330) feet in length. Manufactured home subdivisions with a pipestem lot configuration greater than three hundred thirty (330) feet in length must provide a dedicated street to provide access to the property.

(c) A twenty-five-foot side and rear yard shall be provided around the subdivision. For subdivisions abutting an expressway, freeway or occupied mainline railroad, a fifty-foot side and rear yard shall be provided.

(d) The minimum width of a manufactured home lot at the platted setback line shall be forty (40) feet, and the minimum depth shall be one hundred (100) feet. In the case of a corner lot the minimum width shall be sixty (60) feet.

(e) The minimum separation between individual manufactured homes shall be twenty (20) feet.

(f) The minimum setback from any service easement shall be twenty (20) feet.

(g) Open unenclosed awnings and carports may occupy only forty-five (45) percent of the required minimum spacing between manufactured homes.

(h) Each manufactured home lot shall be provided with a minimum of two (2) paved parking spaces, of at least nine (9) feet by twenty (20) feet each, located on the manufactured home lot.

(i) No mobile home space having double frontage shall take access on a dedicated public street.
(Ord. No. 20,534, § 2, 2-7-12)

Sec. 31-339. Service easement.

Design of streets and width of service easements shall be according to residential or minor residential standards in the "master street plan."
(Ord. No. 20,534, § 2, 2-7-12)

Sec. 31-340. Screening.

Manufactured home subdivisions shall be effectively screened on all sides by means of walls,

*__Editor's note—__Ord. No. 20,534, § 2, adopted Feb. 7, 2012, amended Div. 7 in its entirety to read as herein set out. Former Div. 7, §§ 31-336—31-344 was entitled "Mobile Home Park Subdivisions", and derived from: Code 1961, § 37; and Ord. No. 18,054, § 1, adopted July 6, 1999.

fences or plantings. Fences shall be of wood, masonry or metal construction having a height of four (4) feet if located between a required building setback line and a street right-of-way or, if located at the setback line or beyond, having a height of six (6) feet if adjacent to residentially zoned property. The fence or wall shall otherwise meet the standards set forth in section 36-516. In lieu of a wall or fence, a strip of land not less than ten (10) feet in width and planted and maintained with an evergreen hedge or dense planting of evergreen shrubs not less than four (4) feet in height may be substituted. Screening shall meet sight distance requirements in section 32-8.
(Ord. No. 20,534, § 2, 2-7-12)

Sec. 31-341. Recreation space.

Common recreation space in a manufactured home subdivision shall be provided at the rate of five hundred (500) square feet per manufactured home. The minimum size of any recreation space shall be five thousand (5,000) square feet. All required recreation areas shall be located back of the require setback lines. All recreation areas shall be used solely for recreational purposes.
(Ord. No. 20,534, § 2, 2-7-12)

Sec. 31-342. Storage facilities.

A paved storage area shall be provided at a central location in a manufactured home subdivision at the rate of fifty (50) square feet per manufactured home for the outdoor storage of boats, campers, and similar vehicles.
(Ord. No. 20,534, § 2, 2-7-12)

Sec. 31-343. Utility installations.

Each manufactured home lot in a manufactured home subdivision shall be provided with a wastewater outlet and a water connection. All utility installations shall meet the requirements established by this chapter and shall be provided for each manufactured home.
(Ord. No. 20,534, § 2, 2-7-12)

Sec. 31-344. Improvements.

Each subdivider shall be required to install at his own expense or have installed by the appropriate public utility, the following improvements in a manufactured home subdivision:

(1) All surfaces subject to vehicular traffic shall be paved, according to the standards of chapter 30, article III.

(2) Accommodations for on-site fire hydrants shall be provided for the installation of necessary mains, T's, and cut-off valves as required by the water department and Little Rock Fire Department.

(Ord. No. 20,534, § 2, 2-7-12)

Secs. 31-345—31-366. Reserved.

DIVISION 8. HILLSIDE SUBDIVISIONS

Sec. 31-367. Generally.

This division is designed to ensure proper integration of physical improvements in rugged topographical areas and is supplemental to other provisions in this chapter. This division shall apply to those portions of a subdivision plat that have an average slope of eighteen (18) percent or greater. Such areas of steep slope are recognized as requiring special subdivision development standards for vehicular access easements, lot dimensions, front and side yard setbacks, and cuts and fills.
(Code 1961, § 37-32(a))

Sec. 31-368. Calculation of average slope.

The average slope shall be calculated by the subdivider and indicated on the plat at the time of submittal. The hillside areas shall be divided into areas of generally similar slopes and an average for each of these similar areas shall be determined. These areas shall then be totalled and divided by the number of areas to obtain the average slope for the entire tract. A single average slope figure shall apply to that portion of the plat with slopes exceeding eighteen (18) percent.
(Code 1961, § 37-32(b))

Sec. 31-369. Calculation of total number of lots.

(a) The total number of lots shall be determined by first calculating the total square footage of the area and then dividing the minimum lot size into it to arrive at the total number of lots allowed.

(b) The total square footage of the area is determined by measuring the area and deleting eighteen (18) percent to cover all needed streets and then subtracting all park and open space from that subtotal.

(c) The minimum lot size is determined by using the minimum lot size requirement chart and applying to it the average slope.

(d) The minimum lot size shall be calculated to the closest one thousand (1,000) square feet from the lot size chart. No lot within any hillside area, however, shall be less than ten thousand (10,000) square feet in area. Following staff review and subdivision committee approval of the slope analysis, the subdivider shall prepare a preliminary plat conforming to the lot size established and submit it for approval in the conventional manner.
(Code 1961, § 37-32(c))

Sec. 31-370. Retaining walls.

Retaining walls may be required wherever topographic conditions warrant or where necessary to retain fill or cut slopes within the right-of-way. The retaining walls shall be constructed on private property to protect the streets from possible erosion and slides. Such improvements shall require the approval of the department of planning and development.
(Code 1961, § 37-32(e); Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-371. Front yard setbacks.

The minimum front yard setbacks shall conform to the zoning ordinance except for areas with slopes in excess of eighteen (18) percent, where they may be reduced to fifteen (15) feet.
(Code 1961, § 37-32(g))

Sec. 31-372. Cuts and fills.

Major cuts, excavation, grading and filling, where the same materially changes the site and its relationship with surrounding areas or materially affects such areas, shall not be permitted if such excavation, grading and filling will result in a slope exceeding a vertical rise of one (1) foot for each two and one-half (2½) feet of horizontal distance between abutting lots (sides and/or rear) or between adjoining tract of land, except where adequate provision is made to prevent slides and erosion by cribbing and retaining walls. Deviation from these standards may be authorized by the planning commission upon submission of an engineering analysis of the soil conditions and the conditions of the compacted fill showing that the area is suitable for building.
(Code 1961, § 37-32(h))

Sec. 31-373. Vehicular access easements.

Easements providing primary access to lots fronting on a public street may be granted by the planning commission. For design requirements, see alley standards for residential developments in the "master street plan."
(Code 1961, § 37-32(i); Ord. No. 15-529, § 1ff, 8-16-88; Ord. No. 18,054, § 1(p), 7-6-99)

Sec. 31-374. Soils analysis.

The planning commission may require a soil test of the streets and building sites where the buildability of the area is questionable.
(Code 1961, § 37-32(j))

Sec. 31-375. "T" turnarounds.

For minor residential streets, "T" type turnarounds may be allowed in conjunction with uphill and downhill slopes to minimize disturbance of the site while providing adequate vehicular access to individual lots. The "T" portion shall be of the same width and design standard as the minor residential street. The length of the "T" shall be a minimum of eighty (80) feet and shall be centered on the minor residential street with a minimum curb radius of twenty (20) feet. The right-of-way shall be that area to provide for the construction and as required to accommodate utilities, submitted to the department of plan-

ning and development for review and approval by appropriate department. Driveways which take access shall be constructed with minimum five-foot turn-out radii. A single turn-out (one-half (½) of the "T") may be provided when submitted to the department of planning and development for review and approval by appropriate department when the centerline of the turn-out is located forty (40) feet from the dead end portion of the street. The right-of-way of a "T" designed terminus shall not, at any point, be closer than fifty (50) feet to an adjoining property boundary.

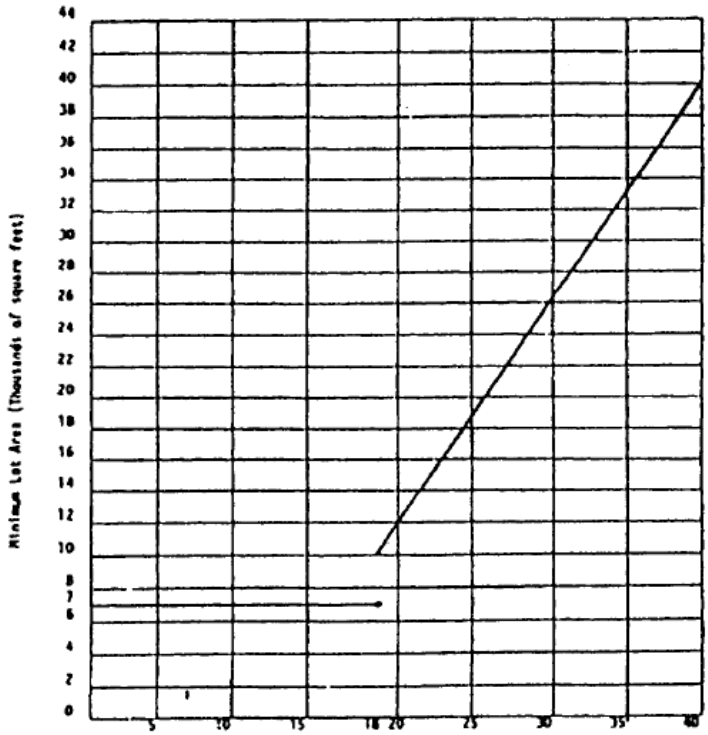
(Code 1961, § 37-32(k); Ord. No. 18,031, § 1(p), 6-1-99; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-376. Required lot size.

(a) At least eighty (80) percent of the lots of the sloped portions of the affected subdivision shall conform to the minimum required lot size. The average size of all lots of the hillside area shall conform to the minimum lot requirement.

(b) Hillside areas with an average slope in excess of forty (40) percent are considered extremely rugged and development shall be limited to lots not less than two (2) acres in size.

(c) The minimum lot size requirement based on slope is as follows:



Average Percent of Natural Ground Slope

(Code 1961, § 37-32(d), (f))

DIVISION 9. MINIMUM SURVEY STANDARDS

Sec. 31-377. Generally.

This division is provided to establish minimum standards for surveying work performed for the development of subdivisions within the jurisdiction of the planning commission. This division shall apply to all developments requiring the submittal of a preliminary or final plat to the planning commission for review and approval. All boundary surveys performed for the purpose of subdividing properties within the jurisdiction of the city shall conform to the "Arkansas Minimum Standards for Property Boundary Surveys and Plats," except where the standards contained within this chapter exceed those established by the state.
(Ord. No. 15,929, § 1(p), 9-4-90; Ord. No. 16,861, § 1(aa), 3-21-95)

Sec. 31-378. Horizontal control standards.

(a) The horizontal datum for all survey work performed shall be the Arkansas State Plane Coordinate System—North Zone—NAD-83 adjustment. All horizontal control work shall commence and end at a PAGIS geodetic control network monument or other approved monument.

(b) Horizontal positions for all subdivision boundary corners shall be determined to an accuracy standard equal to Urban Type A classification as defined by the Arkansas Minimum Standards for Property Boundary Surveys and Plats. All field techniques and procedures shall be compatible with the equipment utilized to insure that a true urban type A accuracy level is achieved.

(c) A minimum of two (2) subdivision boundary corners shall be tied to a PAGIS geodetic control monument by closed traverse. The two (2) corners shall be intervisible with each other. Position and reference information shall be provided on a standard control data form for each corner and submitted with the final plat. Forms may be obtained from the public works department. These monuments will be included in the PAGIS geodetic control network if, after their review by the public works department, they are determined to be suitable for inclusion into the network.

(d) All interior corners of the subdivision (lot corners, street center line control points, etc. . . .) shall be established and monumented to meet the minimum accuracy standards established by the Arkansas Minimum Standards for Property Boundary Surveys and Plats for Urban, Type A Property.
(Ord. No. 15,929, § 1(p), 9-4-90; Ord. No. 16,341, § 1(rr), 1-19-93; Ord. No. 17,697, § 3b, 3-17-98)

Sec. 31-379. Vertical control standards.

(a) The vertical datum for all survey work performed shall be the National Geodetic Vertical Datum 1929 Adjustment (NGVD29). All vertical control work shall commence and end at PAGIS geodetic control monument or other approved monument.

(b) Elevations for all concrete monuments shall be determined to an accuracy standard equal to third order classification as defined by the federal geodetic control committee. All field techniques and procedures shall be compatible with the equipment utilized to insure that a true third order accuracy level is achieved.

(c) Elevations shall be determined for all subdivision boundary corners.
(Ord. No. 15,929, § 1(p), 9-4-90)

Sec. 31-380. Monumentation.

(a) Two (2) monuments shall be set per phase of the subdivision as shown on the approved preliminary plat. These monuments may be cast in place or prefabricated and shall be of similar construction described as follows:

(1) Six-inch diameter steel reinforced concrete post set flush with ground.

(2) Monument shall be a minimum of thirty (30) inches in depth.

(3) Steel reinforcement shall consist of a minimum of two (2) thirty-four-inch long one-half-inch diameter steel bars. Bars shall be driven a minimum of six (6) inches into undisturbed soil.

(4) A brass or aluminum survey cap, a minimum of two (2) inches in diameter, shall be cast or grouted into the top of the concrete post. The following information shall be stamped into the survey cap:

a. A stamped "X" or "." to mark the precise location of point being monumented.

b. Registration number of the professional surveyor in charge.

c. Monument number as assigned by staff.

(b) All lot corners and boundary corners other than those described in paragraph (a), above, shall be monumented according to the specifications outlined with the "Arkansas Minimum Standards for Property Surveys and Plats" and any amendment made thereto.

(c) All street center line intersections and beginning and ending points of curves shall be monumented and shall be of a similar construction described as a one-half (½) inch or larger diameter steel rebar, a minimum of twenty-four (24) inches in length. The highest point shall be at least one-half (½) inch below the surface of the asphalt roadway. For concrete roads, the monuments shall be flush with the finished roadway. Test bore hole may be used to set pin.
(Ord. No. 15,929, § 1(p), 9-4-90; Ord. No. 16,341, § 1(ss), 1-19-93; Ord. No. 20,326, § 1(e), 9-21-10; Ord. No. 21,867, § 1, 5-19-20)

Secs. 31-381—31-395. Reserved.

ARTICLE IV. REQUIRED IMPROVEMENTS

DIVISION 1. GENERALLY

Sec. 31-396. Compliance.

In all subdivisions (including multiple building sites), the subdivider shall install, at his own expense, or to have installed by the appropriate public utility, certain specified improvements as specified in this division. No streets, drainage or utility construction work, exclusive of clearing, shall begin until construction plans have been reviewed and approved by the department of planning and development.
(Code 1961, § 37-34; Ord. No. 17,697, § 3d, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-397. Streets.

All streets shall be constructed in accordance with applicable city standards and specifications as provided in the master street plan of the city or other such standards and specifications adopted by the board of directors.
(Code 1961, § 37-34(a))

Sec. 31-398. Curb and gutters.

Curbs and gutters shall be installed on all streets in accordance with applicable city standards and specifications as adopted by the board of directors or the state highway department as applicable.
(Code 1961, § 37-34(b))

Sec. 31-399. Water supply.

All subdivisions shall be provided with water supply and distribution systems approved by the city and meeting the requirements of the state health department. Where a public water supply is within a reasonable distance of the subdivision, the subdivider shall install or have installed a system of water mains and connect to such supply. A connection to each lot shall be installed prior to the paving of the street, if possible.
(Code 1961, § 37-34(c))

Sec. 31-400. Sanitary sewage disposal.

(a) All subdivisions shall be provided with a sewage collection and treatment system approved by the wastewater utility and/or the state board of health. Where a public sanitary sewer is within a reasonable distance of any point of a subdivision, the subdivider shall connect with such sewer and provide a connection to each lot. Such sanitary sewage system shall be installed prior to the installation of the street pavement. The sewage collection system shall be designed to handle the anticipated flow of sewage from within the subdivision, including development of future sections of the same subdivision and

adjacent areas within the same drainage basin. Recognized engineering design criteria in accordance with the state department of health shall be used to design the system.

(b) For residential lots or development tracts not served by a public or community sanitary sewerage system whose disposal is approved by the state department of pollution control and ecology, the subdivider shall submit documentation with submission of the preliminary plat that the state department of health, or its delegated authority, will approve septic tank installations, or other individual wastewater disposal methods for service to the subdivision proposed to be platted.

(c) The subdivider shall either install the improvements referred to this section, or whenever a septic tank and absorption system or private water supply is to be provided, require as a condition in the bill of assurance of the subdivision, that those facilities shall be installed by the builders of the improvements of the lots in accordance with this section.
(Code 1961, § 37-34(d))

Sec. 31-401. Storm drainage.

Every subdivision shall be served by storm drainage facilities including drains, sewers, catch basins, culverts and other facilities designed and constructed to accommodate surface runoff originating within the subdivision or flowing across it. The improvements shall be installed in accordance with provisions adopted by the board of directors, but in no case shall be designed to accommodate less than a one (1) in twenty-five-year rainfall.
(Code 1961, § 37-34(e); Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-402. Sidewalks.

Construction plans shall show the location of all sidewalks in subdivisions. Installation shall be in accordance with these plans, but shall be the responsibility of the builder. No certificate of occupancy shall be issued for any property until the sidewalk is constructed.
(Code 1961, § 37-34(f); Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-403. Street lighting.

(a) Overhead street lighting facilities shall be designed and approved in advance of filing the final plat for the subdivision. All street lighting shall utilize poles and fixtures approved by the public works department. Standard street lighting designs utilizing wood poles and overhead wiring are designed and built at no charge to the developer by Entergy Corporation. The city will work with the developer to coordinate the design function with Entergy.

(b) Where underground electrical service is planned for the subdivision, the developer shall submit a lighting plan utilizing standard lighting fixtures submitted to the department of planning and development for review and approval by appropriate department. The plan shall include conduit locations, wire sizes and current photometric data for the proposed fixtures. Upon approval of plans by the city and Entergy Corporation, the developer will contract for the installation of the underground portion of the street light system. In the event the developer chooses to install a pole and fixture which is not an approved standard utilized by Entergy Corporation, the developer will be responsible for the initial installation of the pole and fixture. Further, the developer/property owners association will be responsible for any replacement parts needed to maintain the proposed street light system.

(c) The following applies to subdivisions outside the city's corporate boundaries:

(1) Within new developments outside the city limits but within the extraterritorial area, the developer must provide facilities that will enable standard lighting design to be installed at some future date, at no additional cost. These facilities shall include power service to the point of placement of poles and fixtures. The pole and fixture will be the responsibility of the power company or the City of Little Rock. The subdivision plan must include needed easements for the future street light system.

(2) In areas designated for underground service, plans must be submitted to the

department of planning and development for review and approval by appropriate department.

(3) If underground service is to be provided, it will be necessary for the developer to provide electrical service to the proposed pole locations. The proposed design must be submitted to the department of planning and development for review and approval by appropriate department.

(d) Where waivers or variances of this section are desired by a developer a request must be submitted at the time of filing the preliminary plat.
(Code 1961, § 37-34(g); Ord. No. 17,697, § 3d, 3-17-98; Ord. No. 18,031, § 1(n), 6-1-99; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-404. Other utilities.

Other utilities to be installed in a subdivision, including water, sewer, electricity, gas and telephone, shall be located within the public right-of-way or easement. If stubs to the property lines are not installed, then connections between lots and utility lines shall be made if possible, without breaking into the wearing surface of the street. When street cuts are necessary, such cuts shall be in accordance with public works department specifications. A permit for same shall be obtained from the public works department.
(Code 1961, § 37-34(h); Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-405. Monuments.

All permanent boundary, lot and street centerline control monuments shall be set in accordance with section 31-380 and shall be indicated on all plats. Removal of any monument by anyone not under the direct supervision of a professional surveyor registered under the laws of the state is prohibited.
(Code 1961, § 37-34(i); Ord. No. 15,929, § 1(q), 9-4-90; Ord. No. 20,326, § 1(f), 9-21-10)

Sec. 31-406. Fire hydrants.

Fire hydrants shall be spaced as required by current fire protection service requirements within all single-family residential subdivisions. This spacing is to be determined by the municipal waterworks in coordination with the fire department. In multifamily residential subdivisions, hydrant placement shall be based on the density and value of the property as determined by the fire chief. When streets and alleys are closed by a petitioner, he shall at his own expense install necessary fire hydrants to maintain the required fire hydrant coverage.
(Code 1961, § 37-34(j))

Sec. 31-407. Street name signs.

Street name signs shall be placed at intersections by the public works department at the developer's expense. Street signs shall meet standards and specifications of the public works department.
(Code 1961, § 37-34(k); Ord. No. 15,988, § 4, 12-18-90; Ord. No. 17,697, § 3d, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Secs. 31-408—31-430. Reserved.

DIVISION 2. ASSURANCES FOR COMPLETION; INSTALLATION; ETC.

Sec. 31-431. Assurance for completion.

(a) Upon final approval of construction plans for required improvements, the subdivider shall enter into an agreement with the city to install or ensure the completion of the improvements as outlined in this section. The city will accept the subdivision and issue the certificate of final plat approval subject to the assurance of installation of improvements.

(b) One of the following methods will be utilized by the developer to assure that improvements required by these regulations have been, can, or will be installed within the specified time and in accordance with the approved plans and specifications.

(1) *Certificate of completion of improvements.* The subdivider may submit for approval to the engineering division a certificate stating that all improvements and installations to the subdivision required for its approval under the terms

of this chapter have been made, added or installed in accordance with these specifications.

(2) *Security for completion of improvements.* An estimate by the engineer of record to complete improvements shall be submitted to the department of planning and development for review and approval by appropriate department. The subdivider may provide one (1) of the following instruments as assurance for completion of improvements.

a. *Cashier's check.* The subdivider may provide a cashier's check in the full amount as specified by the engineer of record and agreed to by the department of planning and development as sufficient to complete the improvements and installations required to comply with these rules and regulations.

b. *Certificate of deposit, treasury bond or other negotiable government security.* The subdivider may provide a certificate of deposit, treasury bond or other negotiable government security for the full amount estimated to complete the improvements. Any interest accruing prior to acceptance by the department of planning and development shall be forfeited and considered as an additional administrative expense of the city on improvements which are not completed in a timely manner. The instruments allowed to be provided by this section shall be drawn on a financial institution insured by the Federal Deposit Insurance Corporation and licensed to do business in Arkansas. Further, the instrument provided shall be in the name of the City of Little Rock, Arkansas, and shall be in increments no greater than one hundred thousand dollars ($100,000.00). The instrument will be returned to the subdivider once improvements are completed and accepted by the department of planning and development. All improvements shall be done in a timely manner as determined by the department of planning and development.

c. *Irrevocable letter of credit.* The subdivider is permitted to provide an irrevocable letter of credit to the city pursuant to the following conditions:

1. The letter of credit will be for an amount equal to the total estimated cost of the improvements as agreed upon by the subdivider and the department of planning and development.
2. The letter of credit will be irrevocable in accordance with Arkansas Code Annotated section 4-5-101 et seq. (1987), as amended, and will list the City of Little Rock, Arkansas, as the beneficiary of the irrevocable letter of credit.
3. The letter of credit will be in a form approved by the city attorney.
4. In the event the subdivider is in default, the city shall be entitled to payment upon making demand for payment under the terms of the credit; further, the city shall be entitled to use all of the monies secured by the letter of credit to assure the costs of completion of the work in the subdivision as determined by the department of planning and development.
5. The subdivider will not be entitled to any excess monies until the work in the subdivision has been completed.
6. The terms of the letter of credit shall be limited to the time estimate offered by the engineer of record and agreed upon by

the department of planning and development. During the estimated time, periodic status reports shall be made to the department of planning and development.

d. *Performance or security bond*. A performance bond or security bond, if provided, must be posted in the amount of one hundred (100) percent of the total cost of the improvements, as determined by the public works department, including the cost of a maintenance bond, plus an additional ten (10) percent for contingencies. The performance bond or surety bond must be issued by a company with an A.M. Best rating of A-VII or above and approved to do business in the state.

(c) In certain cases, the subdivider may be allowed to contribute funds to a holding account as specified by the off-site improvements ordinance.

(d) Where the subdivider has chosen the option of a cash deposit or certificate of completion of improvements the maintenance bond must be posted.

(Code 1961, § 37-35; Ord. No. 15,528, §§ 1, 2, 8-16-88; Ord. No. 15,529, § 1gg, 8-16-88; Ord. No. 15,754, §§ 1, 2, 10-3-89; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,116, § 1(uu), 11-19-91; Ord. No. 17,697, § 3a, 3-17-98; Ord. No. 18,031, § 1(jj)—(ll), 6-1-99; Ord. No. 20,500, § 1, 11-1-11; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-432. Time extensions.

In those instances where sufficient cause is established by the subdivider which may justify an extension of time, the subdivider may formally apply for an extension which shall only be granted by the planning commission. An application for an extension of time must be made by the subdivider prior to default.

(Ord. No. 15,754, § 3, 10-3-89)

Editor's note—Prior to amendment by section 3 of Ordinance No. 15,754, adopted Oct. 3, 1989, § 31-432 pertained to enforcement of improvement agreements, as derived from § 37-35.1 of the 1961 Code and Ord. No. 15,529, § 1hh, adopted Aug. 16, 1988.

Sec. 31-433. Inspection of improvements.

(a) All subdivision improvement projects shall be constructed according to the approved plans and specifications of a registered professional engineer. When the improvements required by this chapter have been completed and installed, the registered professional engineer shall submit a letter to the department of planning and development certifying improvements and installations have been made in accordance with approved construction plans, specifications, drawings and the standards established by the city or the county, and are functioning properly. Additional inspections shall be made in accordance with other applicable ordinances.

(b) The department of planning and development shall then inspect or facilitate the inspection of those facilities improvements and installations for conformance with plans and specifications. If such final inspection reveals that there are any defects or deficiencies in such improvements as installed or that the improvements differ from the final plans and specifications, the department of planning and development shall notify the subdivision engineer and contractor in writing of such defects, deficiencies or deviations. The subdivider shall, at his expense, correct such defects or deviations within six (6) months of the date of notification. When such defects, deficiencies or deviations have been corrected, the subdivider shall notify department of planning and development in writing that the improvements are again ready for final inspection.

(Code 1961, § 37-36; Ord. No. 17,697, § 3d, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-434. Maintenance bond.

(a) A maintenance bond shall be furnished by the contractors to cover all construction and improvements under review which has the approval of the department of planning and development with the appropriate department. All other public utilities installed in a development shall be subject to the administrative

review and bonding procedures as set out by the respective public utilities and shall not be subject to the provisions of this section.

(b) Contractors shall furnish a maintenance bond to the department of planning and development for review and approval by appropriate department and shall cover any defects in materials and workmanship for the required improvements installed by that contractor in the amount of fifty (50) percent of the total cost of those improvements. The bond shall be in full force and effect for not less than one (1) year from the date of the public improvements acceptance letter from the department of planning and development and appropriate department, certifying that all improvements have been completed and approved, and further stating that any and all defects in materials and workmanship shall be corrected by the contractor by the end of the bond period. Work performed under the terms of the maintenance bond shall be approved by the department of planning and development in coordination with the appropriate department.
(Code 1961, § 37-37; Ord. No. 17,697, § 3d, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

Sec. 31-435. Acceptance of public facilities dedications and recordation.

(a) All public dedications of streets and public facility sites must be accepted by the board of directors or county judge following execution of satisfactory guarantees for completion as described in section 31-431. This acceptance shall be accomplished in conjunction with final plat approval. The board of directors delegates the authority to accept public dedications as required by this chapter.

(b) Approval of final plats within the city limits by the director of the department of planning and development and filing of the plat of record with the circuit clerk and recorder of the county shall not constitute formal acceptance by the city of all approved public improvements covered by the plat. Those improvements not completed as of the date of approval of the final plat shall be accepted as public facilities when the department certifies that the construction has been approved, maintenance bonds furnished, and the plat filed of record.

(c) The final plat can be recorded only after the plat has received a certificate of final approval from the city. Submittal for recordation to the circuit clerk shall be the subdivider's responsibility. The subdivider shall provide both the public works department and the planning department with copies of the recorded plat to be retained in their files. Final plats shall be duly recorded within two (2) years of final plat approval by the staff or the plat shall be declared null and void.

(d) No building permits may be issued until proof of the recording of the approved final plat has been presented to the department of planning and development, giving plat book and page number, or instrument number.
(Code 1961, § 37-38; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 17,697, § 3d, 3-17-98; Ord. No. 21,867, § 1, 5-19-20)

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Chapter 32

TRAFFIC*

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*__Cross references—__Ambulances, ch. 5; traffic in parks, § 22-46; streets and sidewalks, ch. 30.

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ARTICLE I. IN GENERAL

Sec. 32-1. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Alley means a way which affords only a secondary means of access to abutting property and which is less than twenty-five (25) feet wide.

Authorized emergency vehicle means authorized emergency vehicles which shall include:

(1) Motor vehicles used by state, county, or city and municipal police agencies, all of which shall be equipped with blue rotating or flashing emergency lights.

(2) Motor vehicles used by state, county, city, or municipal fire departments, or motor vehicles owned and used by volunteer firefighters while engaged in official duties; motor vehicles used by privately owned fire departments; and ambulances used solely for ambulance purposes which are approved as ambulances in accordance with state and federal highway safety standards, all of which shall be equipped with red rotating or flashing emergency lights. Flashing emergency lights shall be used by volunteer firefighters solely while engaged in the performance of duties as volunteer firemen.

(3) Motor vehicles owned by state, county, and municipal agencies, whose use is determined by the state agency to be required for dangerous or hazardous services and motor vehicles owned by public service corporations or private individuals whose use is determined by the state commissioner of motor vehicles, in accordance with regulations established by the commissioner to prevent abuses thereof, to be for extra hazardous service, may be equipped with amber flashing or rotating emergency or warning lights which shall not qualify it as an emergency vehicle, but which shall, during hazardous uses thereof, display its amber flashing or rotating emergency or warning light in order that other motorists and the public may be aware of the special or hazardous use of the vehicle and shall exercise caution in approaching the vehicle at all times while the amber flashing or rotating emergency or warning light is in operation.

State law reference—Similar provisions, A.C.A. § 27-49-219(d).

Bicycle means every device propelled by human power upon which any person may ride, having two (2) tandem wheels either of which is over twenty (20) inches in diameter.

Business district means the territory contiguous to and including a highway when within any six hundred (600) feet along such highway there are buildings in use for business or industrial purposes, including but not limited to hotels, banks or office buildings, railroad stations and public buildings which occupy at least three hundred (300) feet of frontage on one (1) side or three hundred (300) feet collectively on both sides of the highway.

State law reference—Similar provisions, A.C.A. § 27-49-203(a).

Central business (or traffic) district means all streets and portions of streets within the area described as follows: all that area bounded by Cumberland Street on the east, Broadway on the west, Markham Street on the north and 8th Street on the south.

Commercial vehicle means every vehicle designed, maintained or used primarily for the transportation of property.

Controlled-access highway means every highway, street, or roadway in respect to which owners or occupants of abutting property or lands and other persons have no legal right of access to or from the same, except at such points only and in such manner as may be determined by the public authority having jurisdiction over such highway, street, or roadway.

Crosswalk means:

(1) That portion of a roadway ordinarily included within the prolongation or connection of the lateral lines of sidewalks at intersections; and

(2) Any portion of a roadway distinctly indicated for pedestrian crossing by lines or other markings on the surface.

State law reference—Similar provisions, A.C.A. § 27-49-204.

Curb loading zone means a space adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers or materials.

Driver means every person who drives or is in actual physical control of a vehicle.

State law reference—Similar provisions, A.C.A. § 27-49-208(c).

Freight curb loading zone means a space adjacent to a curb for the exclusive use of vehicles during the loading or unloading of freight or passengers.

Intersection means:

(1) The area embraced within the prolongation or connection of the lateral curblines, or, if none, then the lateral boundary lines of the roadways of two (2) highways which join one another at or approximately at right angles, or the area within which vehicles traveling upon different highways joining at any other angle may come in conflict.

State law reference—Similar provisions, A.C.A. § 27-49-206.

(2) Where a highway includes two (2) roadways thirty (30) feet or more apart, then every crossing of each roadway of such divided highway by an intersecting highway shall be regarded as a separate intersection. In the event such intersecting highway also includes two (2) roadways thirty (30) feet or more apart, then every crossing of two (2) roadways of such highways shall be regarded as a separate intersection.

State law reference—Similar provisions, A.C.A. § 27-49-206.

Laned roadway means a roadway which is divided into two (2) or more clearly marked lanes for vehicular traffic.

State law reference—Similar provisions, A.C.A. § 27-49-212(e).

Motorcycle means every motor vehicle having a saddle for the use of the rider and designed to travel on not more than three (3) wheels in contact with the ground, but excluding a tractor.

State law reference—Similar provisions, A.C.A. § 27-49-219(c).

Motor vehicle means every vehicle which is self-propelled.

State law reference—Similar provisions, A.C.A. § 27-49-219(b).

Official traffic-control devices means all signs, signals, markings, and devices not inconsistent with this chapter placed or erected by authority of a public body or official having jurisdiction, for the purpose of regulating, warning, or guiding traffic.

State law reference—Similar provisions, A.C.A. § 27-49-217(a).

Park, when prohibited, means the standing of a vehicle whether occupied or not, otherwise than temporarily for the purpose of and while actually engaged in loading or unloading.

Passenger curb loading zone means a place adjacent to a curb reserved for the exclusive use of vehicles during the loading or unloading of passengers.

Pedestrian means any person afoot.

State law reference—Similar provisions, A.C.A. § 27-49-208(b).

Police officer means every officer of the municipal police department or any officer authorized to direct or regulate traffic or to make arrests for violations of traffic regulations.

State law reference—Similar provisions, A.C.A. § 27-49-209.

Private road or driveway means every way or place in private ownership and used for vehicular travel by the owner and those having express or implied permission from the owner, but not by other persons.

State law reference—Similar provisions, A.C.A. § 27-49-212(b).

Railroad means a carrier of persons or property upon cars, operated upon stationary rails.

Railroad sign or signal means any sign, signal, or device erected by authority of a public body or official or by a railroad and intended to give notice of the presence of railroad tracks or the approach of a railroad train.

State law reference—Similar provisions, A.C.A. § 27-49-217(c).

Residence district means the territory contiguous to and including a highway not comprising a business district when the property on such high-

way for a distance of three hundred (300) feet or more is in the main improved with residences or residences and buildings in use for business.

State law reference—Similar provisions, A.C.A. § 27-49-203(b).

Right-of-way means the privilege of the immediate use of the roadway.

State law reference—Similar provisions, A.C.A. § 27-49-211.

Roadway means that portion of a street or highway improved, designed or ordinarily used for vehicular travel, exclusive of the berm or shoulder. In the event a highway includes two (2) or more separate roadways the term "roadway" as used herein shall refer to any such roadway separately but not to all such roadways collectively.

State law reference—Similar provisions, A.C.A. § 27-49-212(c).

Safety zone means the area or space officially set apart within a roadway for the exclusive use of pedestrians and which is protected or is so marked or indicated by adequate signs as to be plainly visible at all times while set apart as a safety zone.

State law reference—Similar provisions, A.C.A, § 27-49-213.

Sidewalk means that portion of a street between the curblines, or the lateral lines of a roadway, and the adjacent property lines intended for the use of pedestrians.

State law reference—Similar provisions, A.C.A. § 27-49-212(d).

Stop, when required, means complete cessation of movement.

Stop, stopping or *standing,* when prohibited, means any stopping or standing of a vehicle, whether occupied or not, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control sign or signal.

Street or *highway* means the entire width between the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

State law reference—Similar provisions, A.C.A. § 27-49-412(a).

Through highway means every street or highway or portion thereof at the entrances to which vehicular traffic from intersecting streets or highways is required by law to stop before entering or crossing the same and when stop signs are erected as provided in this chapter.

State law reference—Similar provisions, A.C.A. § 27-49-212(f).

Traffic means pedestrians, vehicles, and other conveyances either singly or together while using any street for purposes of travel.

State law reference—Similar provisions, A.C.A. § 27-49-216.

Traffic-control signal means any device, whether manually, electrically, or mechanically operated, by which traffic is alternately directed to stop and to proceed.

State law reference—Similar provisions, A.C.A. § 27-49-217(b).

Traffic division means the traffic division of the police department of this city, or in the event a traffic division is not established, then the police department of the city.

Vehicle means every device in, upon, or by which any person or property is or may be transported or drawn upon a highway, except devices moved by human power or used exclusively upon stationary rails or tracks.

State law reference—Similar provisions, A.C.A. § 27-49-219(a).

(Code 1961, §§ 39-1, 39-187)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 32-2. Penalty.

Any person convicted of a violation of any of the provisions of this chapter shall be punished as provided in section 1-9.

Sec. 32-3. Reserved.

Editor's note—Section 2 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-3, state law adopted, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. Tit. 27.

Sec. 32-4. Reserved.

Editor's note—Section 3 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-4, application of chapter to bicycles or animals, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-49-111.

Sec. 32-5. Reserved.

Editor's note—Section 4 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-5, application of chapter to public employees, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-49-108.

Sec. 32-6. Reserved.

Editor's note—Section 5 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-6, exceptions for drivers of authorized emergency vehicles, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-19-109.

Sec. 32-7. Reserved.

Editor's note—Section 6 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-7, obedience to police and fire department officials, inasmuch as there is a parallel state statute.

State law references—Similar provisions, A.C.A. § 27-49-107; authority to regulate traffic by means of police officers, A.C.A. § 27-49-106(b)(2).

Sec. 32-8. Obstructions to visibility at intersections.

(a) It shall be a misdemeanor for any person who owns real property located at intersecting streets to install, set out, or maintain, or to allow the installation, setting out, or maintenance of any sign, hedge, fence, shrubbery, natural growth, or other obstruction to the view higher than thirty (30) inches above the level of the center of the adjacent intersection within:

(1) That triangular area between the property line and a diagonal line joining points on the property line fifty (50) feet from the point of their intersection.

(2) In the case of rounded corners, the triangular area between the tangents to the curve and diagonal line joining points on said tangent fifty (50) feet from the point of their intersection. The tangents referred to are those at the beginning and at the end of the curve at the corner.

(3) In both the areas referred to in paragraphs (1) and (2) of this subsection, such area within the triangle as shall encroach within the interior of the setback lines applicable to any lot or parcel of real property shall be exempted from the application of this section and shall not be deemed a part of the visibility area.

(b) Subsection (a) does not apply to:

(1) Public utility poles.

(2) Small trees that do not exceed twelve (12) inches in diameter (trimmed to the trunk) to a line at least eight (8) feet above the level of the intersection.

(3) Saplings or plant species of open growth habits and not planted in the form of a hedge which are so planted and trimmed as to leave at all seasons a clear and unobstructed cross-view.

(4) Supporting members of appurtenances to permanent buildings existing on August 5, 1963.

(5) Official warning signs or signals at places where the contour of the ground is such that there can be no cross-visibility at the intersection.

(6) Signs mounted ten (10) feet or more above the ground and whose supports do not constitute an obstruction as provided in subsection (a).

(c) Embankments, retaining walls and other obstructions within the area described in subsection (a) of this section that obstruct the view so as to endanger life or property are a traffic safety hazard and shall be removed at the direction of the public works department. In order to do so the public works department may enter the real property and to take any necessary action to effect full compliance with provisions of this section. The owner of the real property shall be liable to city for the expenses of the city in removing the obstruction.

(d) No obstruction to cross-visibility shall be deemed to be excepted from the application of this section because of its being in existence at the time of the adoption hereof.

(e) Any person, persons or corporations violating this section shall be guilty of a misdemeanor and each day that the violation shall continue after notice to such person, persons or corporations shall constitute a separate offense.

(Code 1961, §§ 39-145, 39-145.1, 39-145.4; Ord. No. 15,630, § 1, 1-17-89; Ord. No. 17,697, § 4b, 3-17-98)

Sec. 32-9. Reserved.

Editor's note—Section 7 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-9, vehicle equipment and condition, inasmuch as there is a parallel state statute.

State law references—Size, weight and load limits, A.C.A. § 27-35-101 et seq.; vehicle equipment, A.C.A. §§ 27-36-101 et seq., 27-37-101 et seq.

Sec. 32-10. Reserved.

Editor's note—Section 8 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-10, use of safety (seat) belt, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. §§ 27-37-701 et seq., 27-34-101 et seq.

Sec. 32-11. Reserved.

Editor's note—Section 9 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-11, Obstruction to driver's view, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-1401.

Sec. 32-12. Reserved.

Editor's note—Section 10 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-12, Opening vehicle doors, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-1307.

Sec. 32-13. Boarding or alighting from vehicles.

No person shall board or alight from any vehicle while same is in motion.
(Code 1961, § 39-137)

Sec. 32-14. Unlawful riding.

No person shall ride on any vehicle upon any portion thereof not designed or intended for the use of passengers. This section shall not apply to an employee engaged in the necessary discharge of a duty, or to persons riding within truck bodies in space intended for merchandise.
(Code 1961, § 39-138)

Sec. 32-15. Railroad trains not to block streets.

It shall be unlawful for the directing officer or operator of any railroad train to direct the operation of or to operate the same in such a manner as to prevent the use of any street for purpose of travel for a period of time longer than fifteen (15) minutes.
(Code 1961, § 39-139)

Sec. 32-16. Zone of quiet.

Whenever authorized signs are erected indicating a zone of quiet, no person operating a motor vehicle within any such zone shall sound the horn or other warning device of the vehicle except in an emergency.
(Code 1961, § 39-153)

Secs. 32-17—32-35. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT

DIVISION 1. GENERALLY

Sec. 32-36. Police generally.

(a) The police department shall enforce the traffic laws of this city and all of the state vehicle laws applicable to street traffic in this city, to make arrests for traffic violations, to investigate accidents and to cooperate with the public works department and other officers of the city in the administration of the traffic regulations and in developing ways and means to improve traffic conditions.

(b) The police department may use auxiliary policemen designated by the chief of police in the administration and enforcement of parking ordinances.

(c) Police cadets designated by the chief of police may issue tickets charging persons with violations of city ordinances regulating the parking of motor vehicles. Such authority shall for such purpose be equal to that of regular law enforcement officers of the police department.
(Code 1961, §§ 39-2, 39-2.2, 39-105(e); Ord. No. 17,697, § 4b, 3-17-98)

Sec. 32-37. Traffic engineer generally.

The traffic engineer shall be a qualified engineer and shall be appointed by the city manager.

It shall be his duty to determine the installation and proper timing and maintenance of traffic-control devices, to conduct engineering analyses of traffic accidents and to devise remedial measures, to conduct engineering investigation of traffic conditions, to plan the operation of traffic on the streets and highways of this city, and to cooperate with other city officials in the development of ways and means to improve traffic conditions, and to carry out such additional powers and duties as may be imposed by ordinance.
(Code 1961, § 39-3)

Sec. 32-38. Records of traffic violations.

The police department shall keep a record of all violations of the traffic ordinances of this city or of the state vehicle laws of which any person has been charged, together with a record of the final disposition of all such alleged offenses. Such records shall be so maintained as to show all types of violations and the total of each. All such records shall be kept for a period of at least three (3) years, with the exception of convictions for driving while intoxicated, which shall be maintained for six (6) years. All forms or records of violations and notices of violations shall be serially numbered. For each month and year a written record shall be kept available to the public showing the disposal of all such cases. All such records and reports shall be public records.
(Code 1961, § 39-4; Ord. No. 16,101, § 1, 9-17-91)

Sec. 32-39. Drivers' records to be maintained; retention schedule.

The police department shall maintain a suitable record of all traffic accidents, warnings, arrests, convictions and complaints reported for each driver, which shall be filed alphabetically under the name of the driver concerned. Such records shall be kept for a period of three (3) years, with the exception of records of convictions for driving while intoxicated, which shall be maintained for six (6) years.
(Code 1961, § 39-7; Ord. No. 16,101, § 2, 9-17-91)

Sec. 32-40. Annual traffic safety report.

The police department shall annually prepare a traffic report which shall be filed with the city manager. Such report shall contain information on traffic matters including the following:

(1) The number of traffic accidents, the number of persons killed, number of persons injured, and other pertinent traffic data.

(2) The number of traffic accidents investigated and other pertinent data on the safety activities of the police.

(3) Plans and recommendations for future traffic safety activities.

(Code 1961, § 39-8)

Sec. 32-41. Emergency and experimental regulations.

The public works department may make regulations necessary to make effective the provisions of the traffic ordinances of this city and to make and enforce temporary or experimental regulations to cover emergencies or special conditions. The public works department may test traffic-control devices that are under actual conditions of traffic.
(Code 1961, § 39-9; Ord. No. 17,697, § 4b, 3-17-98)

Sec. 32-42. Authority of police and fire department officials.

It shall be the duty of the officers of the police department or such officers as are assigned by the chief of police to enforce all street traffic laws of this city and all of the state vehicle laws applicable to street traffic in this city. Officers of the police department or such officers as are assigned by the chief of police are hereby authorized to direct all traffic by voice, hand, or signal in conformance with the traffic laws. In the event of a fire or other emergency or to expedite traffic or to safeguard pedestrians, officers of the police department may direct traffic as conditions may require, notwithstanding the provisions of the traffic regulations. Officers of the fire department when at the scene of a fire, may direct or assist the police in directing traffic thereat or in the immediate vicinity.
(Code 1961, § 39-10)

Sec. 32-43. Authority to impound vehicles.

(a) The police department may remove a vehicle from a street or highway to the nearest garage or other place of safety, or to a garage designated or maintained by the police department, otherwise maintained by this city under any of the following circumstances:

(1) When any vehicle is left unattended upon any bridge, viaduct, or causeway, or in any tunnel where such vehicle constitutes an obstruction to traffic.

(2) When a vehicle upon a highway is so disabled as to constitute an obstruction to traffic and the person or persons in charge of the vehicle are by reason of physical injury incapacitated to such an extent as to be unable to provide for its custody or removal.

(3) When any vehicle is left unattended upon a street and is so parked illegally as to constitute a definite hazard or obstruction to the normal movement of traffic; when any vehicle is left continuously and unattended upon any street for a period of more than forty-eight (48) hours; and any time a vehicle is parked in a prohibited area that is so designated by signs or other official markings.

(b) Whenever the police department removes a vehicle from a street under this section it shall immediately give or cause to be given notice in writing to such owner of the fact of such removal and the reasons therefor and of the place to which such vehicle has been removed.

(c) Whenever the police department removes a vehicle from a street under this section and does not know and is not able to ascertain the name of the owner, or for any other reason is unable to give the notice to the owner as hereinbefore provided, and in the event the vehicle is not returned to the owner within a period of three (3) days, the police department shall give a written report of such removal to the state department whose duty it is to register motor vehicles. Such notice shall include a complete description of the vehicle, the date, time and place from which removed, the reasons for such removal, the name of the garage or place where the vehicle is stored.
(Code 1961, § 39-167)

Secs. 32-44—32-65. Reserved.

DIVISION 2. ARREST PROCEDURES

Sec. 32-66. Forms and records of traffic citations and arrests.

The city shall provide books to include traffic citation forms for notifying alleged violators to appear and answer to charges of violating traffic laws and ordinances in the municipal court. The officer in charge of traffic shall issue such books for the chief of police or his duly authorized agent and shall maintain a record of every book so issued. The chief of police shall be responsible for the issuance of such books to individual members of the police department. The chief of police shall maintain a record of each book and each set of citations contained therein.
(Code 1961, § 39-156)

Sec. 32-67. Disposition of records of traffic citations, warrants, and complaints.

(a) Every police officer upon issuing a traffic citation to an alleged violator of any provision of the motor vehicle laws of this state or of any traffic ordinance shall deposit the original and a duplicate copy of the citation at the direction of the chief of police, who shall cause the original to be delivered to the municipal court and the duplicate copy to the central records section of the police department.

(b) Upon the filing of the original citation in the municipal court, the citation may be disposed of only by trial or by other official action, including forfeiture of bail or by payment of a fine to the traffic violations bureau.

(c) The chief of police shall also maintain or cause to be maintained in connection with every traffic citation issued by a member of the police department a record of the disposition of the charge by the municipal court or its traffic violations bureau.

(d) The chief of police shall maintain or cause to be maintained a record of all warrants issued by the municipal court on traffic violation charges which are delivered to the police department for service and of the final disposition of all such warrants.

(e) It shall be unlawful and official misconduct for any member of the police department or other officer or public employee to dispose of, alter, or deface a traffic citation or any copy thereof, or the record of the issuance or disposition of any traffic citation, complaint, or warrant in a manner other than as required in this section. Nothing in this section shall prevent the city attorney from changing the charge in a citation.
(Code 1961, 39-158)

Sec. 32-68. Audit of records and reports.

Every record of traffic citations, complaints thereon, and warrants issued therefor shall be audited by the director of finance, who shall submit a report of such audit together with a summary thereof to the city manager and board of directors. Such reports shall be public records. For the purpose of this article the director of finance or his duly authorized representatives shall have access at all times to all necessary records, files and papers of the municipal court, its traffic violations bureau, and the police department.
(Code 161, § 39-160)

Sec. 32-69. Illegal cancellation of traffic citations.

It shall be unlawful for any person to cancel or solicit the cancellation of any traffic citation in any manner other than as provided by this article.
(Code 1961, § 39-159)

Sec. 32-70. Records and reports to state.

The municipal court shall keep or cause to be kept a record of every traffic complaint, traffic citation, or other legal form of traffic charge deposited with or presented to the court and shall keep a record of every official action by the court in reference thereto, including but not limited to a record of every conviction, forfeiture amount of fine or forfeiture resulting from bail, judgment of acquittal, and the traffic complaint or citation deposited with or presented to the court. The municipal court shall make reports to the state drivers' license registration bureau in accordance with law.
(Code 1961, § 39-165)

Sec. 32-71. Disposition of traffic fines and forfeitures.

All fines or forfeitures collected upon conviction or upon the forfeiture of bail of any person charged with a violation of any of the provisions of this chapter shall be paid over to the department of finance.
(Code 1961, § 39-166)

Sec. 32-72. Reserved.

Editor's note—Section 11 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-72, violations; procedure of police officers, inasmuch as there is a parallel state statute.

State law reference—When persons arrested must be taken before magistrate, A.C.A. § 27-50-602.

Sec. 32-73. Citations for illegally parked vehicles.

Whenever any motor vehicle without driver is found parked or stopped in violation of any of the restrictions imposed by this chapter, the officer finding such vehicle shall take its registration number and may take any other information displayed on the vehicle which may identify its user, and shall conspicuously affix to such vehicle a traffic citation, on a form provided by the city, for the driver or registered owner to answer the charge against him during the hours and at a place specified in the citation.
(Code 1961, § 39-162)

Sec. 32-74. Failure to comply with traffic citation attached to parked vehicle.

If a violator of the restrictions on stopping, standing, or parking under this chapter does not appear in response to a traffic citation affixed to such motor vehicle within the specified time of citation the traffic violations bureau shall send to the owner of the motor vehicle to which traffic

citation was affixed a notice by mail informing him of the violation and warning him that in the event such notice is disregarded for a period of five (5) days a warrant of arrest will be issued.
(Code 1961, § 39-163)

Sec. 32-75. When citation deemed lawful complaint.

A form of citation which provides information as required under the general laws of the state shall be deemed to be a lawful complaint.
(Code 1961, § 39-161)

Sec. 32-76. When warrant to be issued.

In the event any person fails to comply with a traffic citation given to him or attached to a vehicle belonging to him or fails to make appearance pursuant to a summons directing an appearance in municipal court, or if any person fails or refuses to deposit bail as required and within the time permitted by ordinance, the clerk of the municipal court shall secure and issue a warrant for his arrest.
(Code 1961, § 39-164)

Secs. 32-77—32-100. Reserved.

ARTICLE III. ACCIDENTS AND ACCIDENT REPORTS*

Sec. 32-101. Immediate notice to police.

The driver of a vehicle involved in an accident resulting in injury to or death of any person or property damage to an apparent extent of fifty dollars ($50.00) or more shall immediately by the quickest means of communication give notice of the accident to the police department.
(Code 1961, § 39-17)

Sec. 32-102. Reserved.

Editor's note—Section 12 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-102, written accident reports, inasmuch as there is a parallel state statute.

State law reference—Authority to so provide, A.C.A. § 27-53-205.

***Cross reference**—Fee for accident reports, § 24-21.

State law reference—Accidents, A.C.A. § 27-53-101 et seq.

Sec. 32-103. Reserved.

Editor's note—Section 13 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-103, when driver unable to report, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-53-101.

Sec. 32-104. Reserved.

Editor's note—Section 14 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-104, leaving the scene of an accident, inasmuch as there is a parallel state statute.

State law reference—Similar provisions constituting a felony, A.C.A. §§ 27-53-101, 27-53-103.

Sec. 32-105. Reports of damaged vehicles.

The person in charge of any garage or repair shop in the city to which is brought any motor vehicle which shows evidence of having been involved in a serious accident or struck by any bullet, shall report same to police headquarters within twenty-four (24) hours after such motor vehicle is received, giving the engine number, registration number and the name and address of the owner or operator of such vehicle.
(Code 1961, § 39-150)

Sec. 32-106. Wrecker services to clean accident scene of debris.

It is unlawful for any person acting for and on behalf of any wrecker company or wrecker service engaged in removing a damaged vehicle from the public rights-of-way, whether under public or private contract arrangement, to leave and allow to remain in the rights-of-way any debris, glass and metal parts of the vehicle being so removed.
(Code 1961, § 39-168(a))

Sec. 32-107. Traffic accident studies.

Whenever the accidents at any particular location become numerous, the police department shall cooperate with the public works department in conducting studies of such accidents and determining remedial measures.
(Code 1961, § 39-5; Ord. No. 17,697, § 4b, 3-17-98)

Sec. 32-108. Traffic accident reports.

The police department shall maintain a suitable system of filing traffic accident reports. Ac-

cident reports or cards referring to them shall be filed alphabetically by location. Such reports shall be available for the use and information of the traffic engineer.
(Code 1961, § 39-6)

Secs. 32-109—32-130. Reserved.

ARTICLE IV. TRAFFIC-CONTROL SIGNS, SIGNALS, DEVICES AND MARKINGS*

Sec. 32-131. When required for enforcement purposes.

No provision of this chapter for which signs are required shall be enforced against an alleged violation if at the time and place of the alleged violation an official sign is not in proper position and sufficiently legible to be seen by an ordinarily observant person. Whenever a particular section does not state that signs are required, such section shall be effective even though no signs are erected or in place.
(Code 1961, § 39-24)

Sec. 32-132. Authority to install.

The public works department shall place and maintain traffic-control signs, signals, and devices when and as required under the traffic ordinances. He may place and maintain such additional traffic-control devices as he may deem necessary to regulate traffic under the ordinances of this city or under state law, or to guide or warn traffic.
(Code 1961, § 39-21; Ord. No. 17,697, § 4b, 3-17-98)

Sec. 32-133. Signs to conform to state and federal standards.

Every traffic-control sign erected shall conform insofar as practicable to the design for uniform traffic-control devices currently approved by the public roads administration of the United States government and shall be placed in accordance with the regulations approved by the public roads administration, except where contrary to the state manual and specifications, in which event the latter shall control.
(Code 1961, § 39-63)

State law reference—Adoption of manual and specifications by state and compliance by local authorities, A.C.A. §§ 27-52-104, 27-52-106.

Sec. 32-134. Manual and specifications.

Traffic-control signs, signals and devices shall conform to the manual and specifications approved by the state highway commission. All signs and signals required for a particular purpose shall so far as practicable be uniform as to type and location throughout the city.
(Code 1961, § 39-22)

Sec. 32-135. Reserved.

Editor's note—Section 15 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-135, obedience to traffic-control devices, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-52-103.

Sec. 32-136. Driving through driveways on private property to avoid traffic-control devices prohibited.

No person shall drive any vehicle through any driveway or other private property for the purpose of avoiding the negotiation of any intersection or any other traffic regulation.
(Code 1961, § 39-23.1)

Sec. 32-137. Reserved.

Editor's note—Section 16 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-137, traffic-control signal legend, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-52-107.

Sec. 32-138. Reserved.

Editor's note—Section 17 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-138, pedestrian-control signals, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-52-107.

*__State law references__—Authority to regulate traffic by means of traffic-control signals, A.C.A. § 27-49-106(b)(2); traffic-control signs, signals, etc., A.C.A. § 27-52-101 et seq.

Sec. 32-139. Reserved.

Editor's note—Section 18 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-139, flashing signals, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-52-108.

Sec. 32-140. Reserved.

Editor's note—Section 19 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-140, stop signs and yield signs, inasmuch as there is a parallel state statute.

State law references—Similar provisions, A.C.A. § 27-51-601; authority to designate stop streets, A.C.A. § 27-49-106(b)(6).

Sec. 32-141. Reserved.

Editor's note—Section 20 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-141, display of unauthorized signs, signals, or markings, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-52-109.

Sec. 32-142. Reserved.

Editor's note—Section 21 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-142, interference with official traffic-control devices or railroad signs or signals, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-52-101.

Sec. 32-143. Authority to erect stop signs and yield right-of-way signs.

Whenever any ordinance designates and describes a through street it shall be the duty of the public works department to place and maintain a stop sign or yield right-of-way sign on each and every street intersecting such through street or intersecting that portion thereof described and designated as such, unless traffic at any such intersection is controlled at all times by traffic-control signals. At the intersection of two (2) such through streets stop signs or yield right-of-way signs shall be erected at the approaches of either of the streets as may be determined by the public works department upon the basis of traffic study.
(Code 1961, § 39-61; Ord. No. 17,697, § 4b, 3-17-98)

State law reference—Authority to designate stop streets, A.C.A. § 27-49-106(b)(6).

Sec. 32-144. Designation of intersections where stop required.

The public works department may determine and designate intersections where particular hazard exists upon other than through streets and determine whether vehicles shall stop at one (1) or more entrances to any such stop intersection, and shall erect a stop sign or yield right-of-way sign at every such place where a stop or yielding of right-of-way is required.
(Code 1961, § 39-62; Ord. No. 17,697, § 4b, 3-17-98)

State law reference—Authority to designate stop streets, A.C.A. § 27-49-106(b)(6).

Sec. 32-145. Erection of stop for pedestrians in crosswalk signs.

The public works department may place and maintain "Stop for Pedestrians in Crosswalk" signs at school crosswalk locations, as determined upon the basis of traffic study.
(Code 1961, § 39-665; Ord. No. 17,697, § 4b, 3-17-98)

Sec. 32-146. Designation of crosswalks, safety zones and traffic lanes.

The traffic engineer may:

(1) Designate and maintain by appropriate devices, marks, or lines upon the surface of the roadway, crosswalks at intersections where there is particular danger to pedestrians crossing the roadway, and at such other places as deemed necessary.

(2) Establish safety zones of such kind and character and at such places as he may deem necessary for the protection of pedestrians.

(3) Mark traffic lanes upon the roadway of any street where a regular alignment of traffic is desirable.

(Code 1961, § 39-129; Ord. No. 17,697, § 4b, 3-17-98)

Sec. 32-147. Designation of one-way streets and alleys.

The public works department may determine and designate one-way streets and alleys. The

public works department shall place and maintain signs giving notice thereof, and no such regulation shall be effective unless such signs are in place. Signs indicating the direction of lawful traffic movement shall be placed at every intersection where movement of traffic in the opposite direction is prohibited.
(Code 1961, § 39-131; Ord. No. 17,697, § 4b, 3-17-98)

State law reference—Authority to establish one-way streets, A.C.A. § 27-49-106(b)(4).

Sec. 32-148. Designation of truck routes.

The public works department may determine and designate streets, parts of streets or specific lanes as truck routes and when so designated all such trucks shall use routes to the closest point of the destination.
(Code 1961, § 39-134; Ord. No. 17,697, § 4b, 3-17-98)

Sec. 32-149. Authority to restrict direction of movement on streets during certain periods.

The public works department may determine and designate streets, parts of streets or specific lanes upon which vehicular traffic shall proceed in one (1) direction during one (1) period and the opposite direction during another period of the day and shall place and maintain appropriate markings, signs, barriers, or other devices to give notice thereof. The public works department may erect signs temporarily designating lanes to be used by traffic moving in a particular direction, regardless of the centerline of the roadway. It shall be unlawful for any person to operate any vehicle in violation of such markings, signs, barriers, or other devices so placed in accordance with this section.
(Code 1961, § 39-133; Ord. No. 17,697, § 4b, 3-17-98)

Secs. 32-150—32-170. Reserved.

ARTICLE V. GENERAL RULES FOR VEHICLE OPERATION

DIVISION 1. GENERALLY

Sec. 32-171. Reserved.

Editor's note—Section 22 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-171, driving without license, inasmuch as there is a parallel state statute.

State law reference—Operators' licenses, A.C.A. § 27-16-101.

Sec. 32-172. Reserved.

Editor's note—Section 23 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-172, operation on approach of authorized emergency vehicles, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-901.

Sec. 32-173. Reserved.

Editor's note—Section 24 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-173, reckless driving, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-50-308.

Sec. 32-174. Reserved.

Editor's note—Section 25 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-174, negligent and inattentive driving, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-104.

Sec. 32-175. Reserved.

Editor's note—Section 26 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-175, driving on right side of roadway, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-301.

Sec. 32-176. Reserved.

Editor's note—Section 27 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-176, driving on roadways laned for traffic, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-302.

Sec. 32-177. Slow-moving vehicles to keep right.

On streets having more than one (1) lane of traffic in a single direction, any vehicle proceeding at less than the normal speed of traffic thereon shall be driven in the right-hand lane for traffic or as close as practicable to the right-hand edge or curb, except as otherwise herein provided.
(Code 1961, § 39-33)

Sec. 32-178. Reserved.

Editor's note—Section 28 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-178, passing vehicles proceeding in same direction generally, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-306.

Sec. 32-179. Reserved.

Editor's note—Section 29 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-179, restrictions on passing on right, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-308.

Sec. 32-180. Blocking intersections.

No person shall enter an intersection or a marked crosswalk unless there is sufficient space on the other side of the intersection or crosswalk to accommodate the vehicle he is operating, notwithstanding any traffic-control indication to proceed.
(Code 1961, § 39-44)

Sec. 32-181. Reserved.

Editor's note—Section 30 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-181, following too closely, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-305.

Sec. 32-182. Driving across traffic markings or through barricades.

No person shall drive a vehicle across freshly painted street markings, when the same are marked by flags or traffic cones, or remove or drive through barricades placed by the city in streets or alleys.
(Code 1961, § 39-52)

Sec. 32-183. Reserved.

Editor's note—Section 31 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-183, operation on one-way streets and alleys, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-304(a).

Sec. 32-184. Reserved.

Editor's note—Section 32 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-184, driving through safety zones, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-1402.

Sec. 32-185. Play streets.

The public works department may declare any street or part thereof a play street. No person shall drive a vehicle upon any such street or portion thereof except drivers of vehicles having business or whose residences are within such area, and then any such driver shall exercise the greatest care. The public works department shall appropriately mark all such streets or parts of streets.
(Code 1961, § 39-130; Ord. No. 17,697, § 4b, 3-17-98)

Sec. 32-186. Reserved.

Editor's note—Section 1 of Ord. No. 18,169, adopted Dec. 20, 1999, deleted § 32-186 which derived from the 1961 Code and Ord. No. 17,697, and pertained to prohibited access of vehicles to certain streets.

Sec. 32-187. Driving on sidewalk or parkway.

No person shall drive a vehicle on a sidewalk or parkway, except where same is crossed by a driveway.
(Code 1961, § 39-45)

Sec. 32-188. Reserved.

Editor's note—Section 33 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-188, driving on right side of roadway, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-104

Sec. 32-189. Reserved.

Editor's note—Section 34 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-189, vehicles entering traffic, inasmuch as there is a parallel state statute.

State law reference—Starting of vehicles, A.C.A. § 27-51-1308.

Sec. 32-190. Reserved.

Editor's note—Section 35 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-190, following fire apparatus, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-902.

Sec. 32-191. Reserved.

Editor's note—Section 36 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-191, crossing fire hose, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-903.

Sec. 32-192. Reserved.

Editor's note—Section 37 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-192, use of headlights required, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-36-204.

Sec. 32-193. Reserved.

Editor's note—Section 38 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-193, littering from vehicles, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 8-6-406.

Sec. 32-194. Violating weight restrictions or prohibitions on truck or commercial traffic on certain roads.

(a) Through trucks or commercial vehicles categorized as Class 9, Class 10, Class 11, Class 12, or Class 13, as defined by the U.S. Department of Transportation Federal Highway Administration, Figure C- 1 FHWA 13 Vehicle Category Classification shall not be permitted on Frazier Pike and shall be punished as provided in subsection (b) of this section, so long as the prohibitions or limitations shall be designated by appropriate signs placed on such roadways. Each day or part of any day during which a violation is continued or repeated shall constitute a separate offense.

(b) The penalties provided for in this section shall not apply to:

(1) Farm tractors or equipment;

(2) Emergency vehicles or equipment that are used to transport personnel or to support the suppression of fire or mitigation of other hazardous situations; school buses; any commercial sanitation vehicle hauling putrescible or non-putrescible refuse or waste; commercial delivery vehicles making deliveries to local businesses or residences that cannot be made on another road;

(3) Operators of vehicles in possession of a hauling permit issued and approved by Pulaski County or City of Little Rock Public Works; or

(4) Local deliveries.

(c) The penalty for violation of the limitations or prohibitions described in subsection (a) of this section shall be a one hundred dollar ($100.00) fine. A second or subsequent offense within a year shall be a fine of two hundred fifty dollars ($250.00) for each offense.

(d) The public works department shall place and maintain appropriate signs indicating roadways which are subject to the provisions in this section.
(Ord. No. 22,678, § 1, 10-21-25)

Secs. 32-195—32-215. Reserved.

DIVISION 2. SPEED AND RELATED OFFENSES

Sec. 32-216. Reserved.

Editor's note—Section 39 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-216, speed and related offenses generally, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-201(a).

Sec. 32-217. Reserved.

Editor's note—Section 40 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-217, minimum speed, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-208.

Sec. 32-218. Maximum limits generally.

No person shall drive a vehicle at a speed in excess of thirty (30) miles per hour within this city. The traffic engineer may increase the speed limit up to forty-five (45) miles per hour on streets where by reason of distance from the center of population, width and conditions of roadways, and the amount of traffic thereon, a higher limit is reasonable and free from undue hazard. Adequate and clearly legible signs stating such increased speed limit shall be placed along all such streets and roadways. No person shall drive a vehicle at a speed in excess of the limits thereby designated.
(Code 1961, § 39-56)

State law references—Maximum limits, A.C.A. § 27-51-204; authority to alter speed limits, A.C.A. § 27-51-206.

Sec. 32-219. Limits on approach to certain intersections.

No person shall drive a vehicle at a speed in excess of twenty (20) miles per hour within one hundred (100) feet of intersections designated by the public works department and plainly marked with such speed limit signs.
(Code 1961, § 39-57; Ord. No. 17,697, § 4b, 3-17-98)

Sec. 32-220. Reserved.

Editor's note—Section 41 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-220, speed limits in school zones, inasmuch as there is a parallel state statute.

State law reference—Speed limits in school zones, A.C.A. § 27-51-212.

Secs. 32-221—32-240. Reserved.

DIVISION 3. RIGHT-OF-WAY

Sec. 32-241. Reserved.

Editor's note—Section 42 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-241, vehicles approaching or entering intersection, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-501.

Sec. 32-242. Reserved.

Editor's note—Section 43 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-242, turning left at intersection, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-502.

Sec. 32-243. Through streets.

(a) The driver of any vehicle shall stop as required by this section at the entrance to a through street and shall yield the right-of-way to other vehicles which have entered the intersection on the through street, or which are approaching so closely on the through street as to constitute an immediate hazard, but said driver having so yielded may proceed and the drivers of all other vehicles approaching the intersection shall yield the right-of-way to the vehicle so proceeding.

(b) No person shall drive a vehicle into a through street without first bringing such vehicle to a full stop at a stop sign or yielding the right-of-way at a yield right-of-way sign to vehicles on such through streets, except at those intersections at which an automatic traffic-control signal is in operation, in which event the vehicles entering or traveling upon said through avenue or street shall be controlled by such signal. Where two (2) through streets intersect and stop signs have been posted on both, the driver of the vehicle on the right, after complying with the stop sign, shall have the right to proceed first into the intersection.
(Code 1961, §§ 39-34(d), 39-64)

State law references—Authority to designate through streets, A.C.A. § 27-49-106(b)(6); conduct at through streets, A.C.A. § 27-51-503(b).

Sec. 32-244. Reserved.

Editor's note—Ord. No. 17,885, § 44, adopted Dec. 1, 1998, repealed § 32-244, yield intersections, inasmuch as there is a parallel state statute.

Sec. 32-245. Reserved.

Editor's note—Ord. No. 17,885, § 45, adopted Dec. 1, 1998, repealed § 32-245, emerging from driveway, inasmuch as there is a parallel state statute.

Sec. 32-246. Turns into driveways.

The driver of a vehicle intending to make a left turn into an alley or driveway shall yield the right-of-way to any vehicle approaching from the opposite direction when the making of such left turn would create a traffic hazard.
(Code 1961, § 39-34(f))

Secs. 32-247—32-270. Reserved.

DIVISION 4. TURNING MOVEMENTS AND STOPPING MOVEMENTS

Sec. 32-271. Reserved.

Editor's note—Ord. No. 17,885, § 46, adopted Dec. 1, 1998, repealed § 32-271, turning at intersections, inasmuch as there is a parallel state statute.

Sec. 32-272. Authority to limit turns.

The public works department may determine those intersections at which drivers of vehicles shall not make right or left turns and shall place proper signs so directing at intersections. Such regulation of turns may be limited to certain hours, at the discretion of the public works department. No person shall make a right or left turn where same is prohibited by a sign duly placed.
(Code 1961, § 39-37; Ord. No. 17,697, § 4b, 3-17-98)

Sec. 32-273. Reserved.

Editor's note—Ord. No. 17,885, § 47, adopted Dec. 1, 1998, repealed § 32-273, signals for turning, stopping, or decreasing speed required, inasmuch as there is a parallel state statute.

Sec. 32-274. Reserved.

Editor's note—Ord. No. 17,885, § 48, adopted Dec. 1, 1998, repealed § 32-274, signals to stop or turn, inasmuch as there is a parallel state statute.

Sec. 32-275. Reserved.

Editor's note—Ord. No. 17,885, § 49, adopted Dec. 1, 1998, repealed § 32-275, hand and arm signals, inasmuch as there is a parallel state statute.

Sec. 32-276. Reserved.

Editor's note—Ord. No. 17,885, § 50, adopted Dec. 1, 1998, repealed § 32-276, u-turns, inasmuch as there is a parallel state statute.

Sec. 32-277. Reserved.

Editor's note—Ord. No. 17,885, § 51, adopted Dec. 1, 1998, repealed § 32-277, obedience to signals at railroad crossings, inasmuch as there is a parallel state statute.

Secs. 32-278—32-300. Reserved.

ARTICLE VI. STOPPING, STANDING AND PARKING*

DIVISION 1. GENERALLY†

Sec. 32-301. Penalties.

The penalty for violation of overtime parking in all metered and time zone restricted parking areas shall be:

(a) Fifteen dollars ($15.00) if paid within thirty (30) days of the issuance of the ticket;

(b) Fifty dollars ($50.00) if paid after thirty (30) days of the issuance of the ticket, or after conviction in district court for violation of city parking ordinances.

A combination ticket and envelope shall be provided at the issuance of a violation citation for the convenience of motorists. The penalty shall be paid by placing such sum in the penalty box attached to the parking meters, or by paying the fine to the city.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-302. Handicapped parking citations.

The police department may issue citations for vehicles which do not legally display the special tag or certificate for a handicapped or disabled person provided for in the Handicapped Persons Access Act to Park Act of 1985 (A.C.A. § 27-15-301 et seq.) which are parked in areas designated in accordance with such act for the exclusive use of handicapped persons.

Any vehicle found to be parked in an area designated for the exclusive use of handicapped persons as provided for under A.C.A. § 27-15-301 et seq. or which is found to be parked in an area designated for the exclusive use of handicapped persons, if operated by a person who is not a handicapped person, while not being used for the actual transporting of a handicapped person, shall be subject to impoundment by the police department. In addition thereto, the owner of such vehicle shall upon conviction be subject to a fine of one hundred dollars ($100.00) for each offense, plus applicable towing, impoundment, and related fees as well as court costs.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-303. Suspension of certain sections.

The provisions of section 32-403 and sections 32-405 through 408, the portions therein pertaining to parking in alleys, shall be suspended to permit unlimited free parking, except for the Little Rock Municipal Airport, on the following days only:

(1) Saturday.

(2) Sunday.

(3) Memorial Day.

(4) Labor Day.

(5) Presidents' Day.

(6) Veterans' Day.

(7) July 4.

(8) Thanksgiving.

(9) Friday after Thanksgiving.

(10) December 25.

(11) New Year's Day.

(12) Dr. Martin Luther King, Jr.'s birthday and Robert E. Lee's birthday.

(Ord. No. 19,921, § 1, 2-19-08)

***State law reference—**Authority to regulate standing or parking of vehicles, A.C.A. § 27-49-106(b)(1).

†**Editor's note—**Ord. No. 19,921, § 1, adopted Feb. 19, 2008, amended Div. 1 in its entirety and enacted similar provisions as set out herein. The former Div. 1 derived from Code 1971, §§ 39-105(a)—(d), 39-67—39-77.2, 39-83(a)—(c), 39-146, 39-186, 39-187; Ord. No. 15,630, §§ 4, 5, adopted Jan. 17, 1989; Ord. No. 16,115, § 8, adopted Nov. 5, 1991; Ord. No. 16,307, § 1, adopted Nov. 17, 1992; Ord. No. 16,475, § 1, adopted Aug. 17, 1993; Ord. No. 17,697, § 4b, adopted march 17, 1998; Ord. No. 18,129, § 1, adopted Nov. 2, 1999; Ord. No. 18,611, §§ 1—3, adopted Dec. 18, 2001; Ord. No. 18,618, §§ 1—10, adopted Dec. 18, 2001; Ord. No. 18,644, § 1, adopted Feb. 5, 2002; Ord. No. 19,214, §§; 1, 2, adopted Oct. 18, 2004; Ord. No. 19,658, § 1, adopted Dec. 19, 2006; Ord. No. 19,784, §§ 1, 2, adopted July 17, 2007; Ord. No. 18,811, § 1, adopted ague. 28, 2007; Ord. No. 19,813, §§ 1, 2, adopted Sept. 18, 2007; and Ord. No. 19,899, § 1, adopted Dec. 21, 2007

Sec. 32-304. Manner of parking.

(a) Except as otherwise provided in this section, every vehicle stopped or parked upon a roadway where there are adjacent curbs shall be stopped or parked with the right-hand wheels of the vehicle parallel to and within eighteen (18) inches of the right-hand curb.

(b) Parking of vehicles with the left-hand wheels adjacent to and within eighteen (18) inches of the left-hand curb of a one-way roadway is allowed.

(c) In the case of angle or diagonal parking, no person shall stand or park a vehicle other than with the front of such vehicle directed toward the front or curb of the angle or diagonal parking space.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-305. Signs or marking indicating angle parking.

The city manager or the manager's designee shall determine upon what streets angle parking shall be permitted and shall mark or sign such streets. Such angle parking shall not be indicated upon any federal-aid or state highway within the city unless the state highway commission has determined by resolution or order entered in its minutes that the roadway is of sufficient width to permit angle parking without interfering with the free movement of traffic.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-306. Obedience to angle-parking signs or markings.

Upon those streets which have been sign marked by the city manager or the manager's designee for angle parking no person shall park or stand a vehicle other than at the angle to the curb or the edge of the roadway indicated by such signs or markings.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-307. Permit for loading or unloading at angle to curb.

The city manager or the manager's designee may issue special permits to permit the backing of a vehicle to the curb for the purpose of loading or unloading merchandise or materials subject to the terms and conditions of such permit. Such permits may be issued either to the owner or lessee of real property or to the owner of the vehicle and shall grant to such person the privilege as therein stated and authorized herein. No person shall back a vehicle to the curb for the purpose of loading or unloading except according to the terms of such a permit.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-308. Parking near walkways in parking lots; insurance required for parking lot operators.

(a) In this section "parking lot" means any building or area or space of ground in the city where vehicles of any nature are parked for a consideration paid to the person in the business of operating the parking lot.

(b) It shall be a misdemeanor for the owner or operator of any parking lot to permit parking of any vehicle on the lot so that the vehicle is closer than eighteen (18) inches to the sidewalk or the walkway used by pedestrians.

(c) Each person, firm or corporation operating a private parking lot within the city is hereby required to carry a policy or policies of insurance to indemnify any person or persons parking vehicles on the parking lot in question, against loss by fire or theft, or property damage to a vehicle occurring while the vehicle in question is parked on the parking lot.

It is hereby declared to be a misdemeanor for any person, firm, or corporation to operate a parking lot without securing and maintaining in force during the operation of said parking lot, the insurance as required above, and each separate day's operation in violation hereof shall constitute a separate offense.

(1) The insurance shall be written by some approved insurance company and shall be in an amount reasonably sufficient to indemnify persons parking vehicles on said parking lots as said amount may be fixed from time to time by the city collector provided that the minimum insurance carried shall be two thousand five hundred dollars ($2,500.00). Provided, however, that in lieu of insurance against loss

from property damage, any parking-lot operator may furnish to the city collector a surety bond written by an approved corporation in the minimum amount of two thousand five hundred dollars ($2,500.00); said surety bond to guarantee payment up to two thousand five hundred dollars ($2,500.00) of any judgment that may be recovered against said parking lot operator for property damages suffered by the owner of any vehicle which is parked in the custody of any parking lot operator.

(2) All such policies of insurance or authenticated copies, satisfactory to the city collector, shall be kept on file in the office of the city collector.

The insurance coverage required in the foregoing section shall apply only to those persons who park their vehicles on said parking lots for compensation to the parking-lot operator. The city collector is hereby directed to refuse to issue a parking-lot operators' license to any applicant until and unless such applicant furnishes to the collector an appropriate insurance policy in a sufficient amount as required by this chapter.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-309. Restrictions.

(a) No person shall stop, stand, or park a vehicle, except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic-control device, in any of the following places:

(1) On a sidewalk.

(2) In front of a public or private driveway.

(3) Within an intersection.

(4) Within fifteen (15) feet of a fire hydrant.

(5) On a crosswalk.

(6) Within twenty (20) feet of a crosswalk at an intersection.

(7) Within thirty (30) feet upon the approach to any flashing beacon, stop sign, or traffic-control signal located at the side of a roadway.

(8) Between a safety zone and the adjacent curb or within thirty (30) feet of points on the curb immediately opposite the ends of a safety zone, unless the local traffic authority indicates a different length by signs or markings.

(9) Within fifty (50) feet of the nearest rail of a railroad crossing.

(10) Within twenty (20) feet of the driveway entrance to any fire station and on the side of a street opposite the entrance to any fire station within seventy-five (75) [feet] of the entrance when properly sign posted.

(11) Alongside or opposite any street excavation or obstruction when stopping, standing, or parking would obstruct traffic.

(12) On a roadway side of any vehicle stopped or parked at the edge of a curb or street.

(13) Upon any bridge or other elevated structure upon a highway or within a highway tunnel.

(14) At any place where official signs prohibit stopping.

(b) No person shall move a vehicle not owned by the person into any such prohibited area or away from a curb a distance that is unlawful.

(c) The penalty for violation of overtime parking in unmetered restricted parking areas in this section shall be:

(1) Thirty dollars ($30.00) if paid within thirty (30) days of the issuance of the ticket;

(2) Forty-five dollars ($45.00) if paid after thirty (30) days of the issuance of the ticket, or after conviction in district court for violation of city parking ordinances.

A combination ticket and envelope shall be provided at the issuance of a violation citation for the convenience of motorists. The penalty shall be paid by placing such sum in the penalty box attached to the parking meters, or by paying the fine to the city.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-310. Obstructing traffic.

No person shall stop, stand or park any vehicle upon a street, other than an alley, in such a manner or under such conditions as to leave available less than ten (10) feet of the width of the roadway for free movement of vehicular traffic, except that a driver may stop temporarily during the actual loading or unloading of passengers or when necessary in obedience to traffic regulations or traffic signs, or signals of a police officer.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-311. Parking in alleys.

(a) It is hereby unlawful for any person to park, stand or stop a vehicle in any alley except an alley used for commercial purposes and then only for such time as necessary to load and unload the vehicle. Commercial vehicles parked in an alley for loading and unloading shall be clearly identified with permanent signage on the exterior of the vehicle indicating the name and address of the business. Under no circumstances shall a vehicle be parked or stopped in an alley in such a manner as to have less than ten (10) feet of available roadway width for the free movement of vehicular traffic, or to block the driveways of abutting properties.

(b) The penalty for violation of this provision shall be:

(1) Thirty dollars ($30.00) if paid within thirty (30) days of the issuance of the ticket;

(2) Forty-five dollars ($45.00) if paid after thirty (30) days of the issuance of the ticket, or after conviction in district court for violation of city parking ordinances.

A combination ticket and envelope shall be provided at the issuance of a violation citation for the convenience of motorists. The penalty shall be paid by placing such sum in the penalty box attached to the parking meters, or by paying the fine to the city.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-312. Parking for certain purposes prohibited.

No person shall park a vehicle upon any roadway for the principal purpose of:

(1) Displaying such vehicle for sale or advertising.

(2) Washing, greasing, or repairing such vehicle, except repairs necessitated by an emergency.

(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-313. Parking on narrow streets.

The city manager or manager's designee may erect signs indicating no parking upon either or both sides of any street when such parking would interfere with traffic or create a hazardous situation. When official signs prohibiting parking are erected upon streets as authorized herein, no person shall park a vehicle upon any such street in violation of any such sign.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-314. Standing or parking on one-way roadways.

In the event a highway includes two (2) or more separate roadways and traffic is restricted to one (1) direction upon any such roadway, no person shall stand or park a vehicle upon the left-hand side of such one-way roadway unless signs are erected to permit such standing or parking. The city manager or the manager's designee may determine when standing or parking may be permitted upon the left-hand side of any such one-way roadway and to erect signs giving notice thereof.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-315. Stopping, standing, or parking near hazardous or congested places.

The city manager or manager's designee may determine and designate by proper signs places in which the stopping, standing, or parking of vehicles would create an especially hazardous condition or would cause unusual delay in traffic. When official signs are erected at hazardous

or congested places as authorized herein no person shall stop, stand, or park a vehicle in any area or designated place.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-316. Parking on city-owned or city-controlled property prohibited.

(a) When signs are erected thereon giving notice thereof it shall be unlawful for any person to park or cause to be parked any vehicle upon any property owned by or under the control of the city or any board, agency or commission of the city, except in areas designated for public parking generally.

(b) Any vehicle parked in violation of the provisions of subsection (a) may be removed by the police department from the property in question to the nearest garage or other place of safety or to a garage designated or maintained by the police department.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-317. Fire lanes.

(a) The city manager or the manager's designee, upon the written recommendation of the chief of the fire department, is hereby authorized to designate fire lanes in any public street or facility and, or upon any private property by the proper placement of signs thereon. When such signs are erected giving notice thereof, no person shall stop, stand or park any vehicle within any fire lane so designated. Vehicles parked within the fire lane so designated are subject to impoundment by the police department.

(b) Any person violating the provisions of this section shall be guilty of a misdemeanor and upon conviction thereof shall be fined in a sum not less than ten dollars ($10.00) nor more than one hundred dollars ($100.00), plus applicable towing, impoundment, and related fees as well as court costs.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-318. Stopping, standing, parking of buses.

(a) Except in the operation of a charter or special bus, the operator of a bus shall not stop, stand or park any bus upon any street other than at a bus zone, or any other location commonly used to take on and discharge passengers.

(b) Except in the operation of a charter or special bus, the operator of a bus shall not stop such vehicle upon any street at any place for the purpose of loading or unloading passengers or their baggage other than at a bus stop, bus stand, or passenger loading zone or any other location commonly used for discharging and picking up passengers.

(c) The operator of a bus shall enter a bus stop, bus stand or passenger loading zone or other location where passengers are normally discharged or picked up in such manner that the bus, when stopped to load or unload passengers or baggage, shall be in a position as close to the curb as possible, so as not to impede unduly the movement of other vehicular traffic.

(d) This section does not authorize the use of Rock Region Metro bus stops, bus stands or other Rock Region Metro passenger loading zones by intercity, intracounty or interstate bus services that operated or regularly provide bus transportation services outside of Pulaski County, Arkansas.
(Ord. No. 19,921, § 1, 2-19-08; Ord. No. 22,281, § 1, 7-11-23)

Sec. 32-319. Unattended motor vehicles.

No person driving or in charge of a motor vehicle shall permit it to stand unattended without first stopping the engine, locking the ignition and removing the key, or when standing upon any perceptible grade without effectively setting the brake thereon and turning the front wheels to the curb or side of the highway.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-320. Obtaining parking accommodations by fraud.

(a) No person shall park a vehicle on any publicly owned parking lot or facility without paying for such parking accommodation, or after

parking a vehicle thereon remove the vehicle from such parking lot or facility without paying for such parking accommodation, with intent to defraud the operator thereof.

(b) Evidence that a person left the premises of a parking lot or facility referred to in subsection (a) hereof without paying or offering to pay for such parking accommodation shall be prima facie proof that such person obtained such parking accommodation with intent to defraud the operator of such parking lot or facility.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-321. Park closing hours.

(a) It shall be unlawful for any person to park a motor vehicle or to be on park grounds between 10:00 p.m. and 5:00 a.m., unless the hours are

otherwise posted. This provision shall not apply to through traffic on public streets within the parks.

(b) The director of parks and recreation shall have the authority to extend park hours for approved scheduled events.
(Ord. No. 19,921, § 1, 2-19-08)

Sec. 32-322. Immobilization of automobiles with delinquent fines.

(a) A motor vehicle, parked upon public property or public right-of-way, by or under the direction of a certified law enforcement officer, or by the mayor or city manager, or their designee also known as the "city designee", shall be immobilized in such a manner as to prevent its operation if:

(1) There is an amount owed to the city as a result of outstanding or otherwise unsettled parking violation notices for tickets that have been issued within the previous three (3) years which are over thirty (30) days old, and one (1) or more warrants have been issued for such a violation against the owner of such motor vehicle; or

(2) There is an amount equal to two hundred fifty dollars ($250.00) or more of unpaid parking violation fines, or costs, or both, that have been issued within the previous three (3) years, pending against the owner of such motor vehicle.

(b) Upon immobilization of such motor vehicle, the officer or employee shall cause to be placed on such vehicle, in a conspicuous manner, notice sufficient to warn any individual that the vehicle has been immobilized and that any attempt to move such vehicle might result in damage to such vehicle. In addition to any other notice the owner of the motor vehicle has received prior to the immobilization, as soon as practicable, the city shall inform the owner of the immobilized vehicle of the nature and circumstances of the prior outstanding or unsettled traffic violation notices or warrants for which, or on account of which, such vehicle was immobilized.

(c) The owner of such immobilized vehicle, or other authorized person, shall be permitted to secure release of the vehicle upon:

(1) Depositing:

a. The collateral required for his appearance in the appropriate court of competent jurisdiction to answer for each violation and the total amount of outstanding parking fines; or

b. The amount of the fine or penalty for each violation for which there is an outstanding or otherwise unsettled traffic violation notice or warrant in the even there is no outstanding collateral re-quired for appearance in the appropriate court; and

(2) The payment of the fees as required by this section.

(d) The owner of an immobilized vehicle, or a person with written authorization to do so, shall have the right to a post-immobilization hearing to determine the validity of such immobilization, towing, and any towing or storage charges. Such hearing must be requested within seventy-two (72) hours after the vehicle is immobilized and shall be conducted by a hearing officer appointed by the mayor to conduct such hearings within seventy-two (72) hours after receipt of the request. The post-immobilization hearing is civil in nature and will not be used to determine or adjudicate any citation issued relative to any immobilized vehicle and the reason it was immobilized. Procedures for the conduct of the hearing shall be established by the mayor and shall be provided to the owner, or the owner's authorized representative, upon receipt of the hearing request. The request for a hearing may be submitted in person, or electronically including e-mail, to the city address identified on the immobilization notice. If the seventy-two-hour period for a hearing falls on a weekend or holiday, or on a day when all but emergency personnel of the city are released from work because of inclement weather, natural disaster, or public safety threat, then the hearing shall be held either the first day the city is opened.

(e) Provided the motor vehicle is not parked in an emergency, handicapped, or otherwise specially-marked zone, including, but not limited to, lanes in which parking is prohibited during certain periods of time, the immobilizing device or mechanism shall remain in place where the vehicle has been immobilized for at least twenty-four (24) hours unless the owner has complied with subsection (c). If such compliance has not occurred within the twenty-four (24) hours, the vehicle shall be towed and impounded at the city impound lot.

(f) If the immobilization occurs when a vehicle is parked in an emergency, handicapped, or otherwise specially marked zone, including, but not limited to, lanes in which parking is prohibited during certain periods of time and no further delay in the city's consideration can be tolerated, towing may occur immediately, and the owner of such vehicle is subject to towing and impounding fees. City towing and storage fees shall be paid, along with any outstanding fines and fees specified in this section, before the owner of such vehicle, or the owner's authorized person or agent, shall be permitted to repossess or secure the release of the vehicle.

(g) Notwithstanding any other provision of this section, if the owner of the vehicle has had another vehicle immobilized within the previous twelve (12) months for failure to settle outstanding city parking violations, or amounts of fines and costs, as set forth in this division, the automobile shall be towed to the city impound lot at the owner's expense, and shall not be released until the owner has complied with all the provisions of this section including, but not limited, the payment of all outstanding fines, fees and costs.

(h) Fees and towing expenses.

(1) The owner of an immobilized vehicle shall be subject to a fee of one hundred dollars ($100.00) for such immobilization; and

(2) The owner of an immobilized vehicle that is towed shall be subject to any towing and storage fees and costs.

(i) A notice, printed on highly visible paper or other material shall be attached to the vehicle in a conspicuous place, and shall read substantially as follows:

WARNING!
DO NOT MOVE THIS VEHICLE

ATTEMPTS TO OPERATE THIS VEHICLE WHILE THE IMMOBILIZING DEVICE IS ATTACHED MAY RESULT IN SERIOUS DAMAGE TO THE VEHICLE OR SERIOUS BODILY INJURY TO THE PERSON ATTEMPTING TO OPERATE THE VEHICLE. This vehicle has been immobilized by the City of Little Rock for violations of the Municipal Code concerning parking violations.

To secure the release of the vehicle, payment shall be made for all outstanding parking violations, parking warrants, and the immobilization or impoundment fee, or both. An additional cost of Fifty Dollars ($50.00) shall be charged and paid for releases that occur after normal business hours and holidays.

Arrangements for release of this vehicle may be made by calling the:

(1) Parking Enforcement Section at (phone number) between 9:00 AM and 4:00 PM, Monday through Friday; or

(2) The Little Rock Police Department (Desk Sergeant) at (phone number) at all other hours and on Saturdays, Sundays, and holidays.

ATTENTION, VEHICLE OWNER: You are hereby advised of your rights to request a prompt hearing to determine the validity of the immobilization, tow, or both, and any related fees. Detailed information relative to obtaining such a hearing is provided on this immobilization receipt. The request must be made within seventy-two (72) hours of the immobilization. A hearing on the appeal is normally held within seventy-two (72) hours of the request. *The details of how to appeal a decision may be lift with this notice, but in any event are available at any time at www.littlerock.gov; or may be obtained by calling (phone number).*

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(j) In addition to the information set forth expressly above, the notice shall provide contact information necessary to perfect an appeal within the seventy-two-hour time frame.

(k) Notice of an intent to appeal is perfected if personally served on the city, or sent electronically. For purposes of this provision, notice is considered to be sent when placed in the mail, provided to a delivery service, or is registered as sent on an electronic platform, including e-mail, from an address which belongs to or is used by the owner of the vehicle.

(l) The city designee shall have the authority to implement the parking enforcement provisions of this section.

(m) Nothing in this section shall be construed to deprive any person of constitutional right to a hearing or trial as to the violations charged, but it is understood that this remedy shall not be available to the city until there has been a finding a guilt on a prior parking offense, or the owner of the vehicle has failed to appear and contest a prior parking offense.

(n) It is no defense to the enforcement remedy set forth in this section that the owner of the vehicle was not the person in control of the vehicle when a parking citation was issued; provided, if the owner of the vehicle at the time of mobilization can establish the lack of ownership, possession, or control, at the time the parking citations for the vehicle was issued, then such lack of ownership, possession, or control, is an absolute defense to such citation.

(o) If an appeal is successful, then the costs of immobilization and towing shall be paid by the city; however, the owner shall still be responsible to pay any outstanding fine amounts and court costs.
(Ord. No. 19,921, § 1, 2-19-08; Ord. No. 21,750, § 1, 6-18-19)

Sec. 32-323. Penalties.

The penalty for violation of overtime parking in unmetered restricted parking areas in [sections] 32-302 through 32-322, not specified within a particular section shall be:

(1) Thirty dollars ($30.00) if paid within thirty (30) days of the issuance of the ticket:

(2) Forty-five dollars ($45.00) if paid after thirty (30) days of the issuance of the ticket, or after conviction in district court for violation of city parking ordinances.

A combination ticket and envelope shall be provided at the issuance of a violation citation for the convenience of motorists. The penalty shall be paid by placing such sum in the penalty box attached to the parking meters, or by paying the fine to the city.
(Ord. No. 19,921, § 1, 2-19-08)

Secs. 32-324—32-340. Reserved.

DIVISION 2. LOADING ZONES*

Sec. 32-341. Designation of curb loading places.

The city manager or the manager's designee may determine the location of passenger and freight curb loading zones and shall place and maintain appropriate signs indicating the same.
(Ord. No. 19,921, § 2, 2-19-08)

Sec. 32-342. Permits for curb loading zones.

(a) The city manager or manager's designee shall not designate or sign any curb loading zone upon special request of any person unless such person makes application for a permit for such zone and for one (1) sign to indicate each zone.

*__Editor's note—__Ord. No. 19,921, § 2, adopted Feb. 19, 2008, amended Div. 2 in its entirety and enacted similar provisions as set out herein. The former Div. 2 derived from Code 1961, §§ 39-78—39-82, 39-84—39-86; Ord. No. 15,774, §§ 1, 2, adopted Nov. 7, 1989; Ord. No. 15,948, § 1, adopted Oct. 16, 1990; Ord. No. 17,697, § 4b, adopted March 17, 1998; and Ord. No. 18,129, § 2, adopted Nov. 2, 1999.

(b) Any person desiring passenger loading or unloading zones may make application in writing to the city manager or manager's designee and pay to the city four hundred dollars ($400.00) per year for one (1) metered space of twenty-two (22) feet.

(c) In the event the request is for a loading zone outside of the parking-meter district then such person making the request shall pay to the city an annual fee of ten dollars ($10.00) per foot or two hundred twenty dollars ($220.00) for a space of twenty-two (22) feet per year for the purpose of covering the expense of the city in painting, designating with appropriate signs, and otherwise maintaining the limited parking or unloading zones. Such payment shall be made to the city on or before July 1 of each year.

(d) The person owning property adjacent to any zone designated by the city manager or the manager's designee shall not be required to pay the maintenance fee as required by this section, provided such zone is designated by the city manager or the manager's designee for the convenience of the general public. Such zones shall be maintained and cared for at the expense of the city.

(e) It is unlawful for any person to paint the curb, sidewalk, or any part of the street of the city in any manner whatsoever. It shall be unlawful for any person to designate any part of any street of the city as being limited in any manner with respect to parking thereon.
(Ord. No. 19,921, § 2, 2-19-08)

Sec. 32-343. Standing in passenger curb loading zone.

No person shall stop, stand, or park a vehicle for any purpose or period of time other than for the expeditious loading or unloading of passengers in any place marked as a passenger curb loading zone during those hours that businesses adjacent thereto are open and conducting business.
(Ord. No. 19,921, § 2, 2-19-08)

Sec. 32-344. Standing in freight curb loading zone.

No person shall stop, stand, or park a vehicle for any purpose or length of time other than for the expeditious unloading and delivery or pickup and loading of materials in any place marked as a freight curb loading zone during those hours that businesses adjacent thereto are open and doing business. In no case shall the stop for loading or unloading of materials exceed thirty (30) minutes. Commercial vehicles shall be designated with signage as provided in section 32-311.
(Ord. No. 19,921, § 2, 2-19-08)

Sec. 32-345. Designation of public carrier stops.

The city manager or the manager's designee may establish bus stops, bus stands, taxicab stands and stands for other passenger common-carrier motor vehicles on the public streets in places that will be of the greatest benefit and convenience to the public. Bus stops, bus stands, taxicab stands, or other stands shall be designated by appropriate signs as necessary.
(Ord. No. 19,921, § 2, 2-19-08)

Sec. 32-346. Restricted use of bus and taxicab stands.

No person shall stop, stand, or park a vehicle other than a bus in a bus stop or other than a taxicab in a taxicab stand when such stop or stand has been officially designated and appropriately signed, except that the driver of a passenger vehicle may temporarily stop therein for the purpose of and while actually engaged in loading or unloading passengers when such stopping does not interfere with any bus or taxicab waiting to enter or about to enter such zone.
(Ord. No. 19,921, § 2, 2-19-08)

Sec. 32-347. Hotel loading zones.

The city manager or the manager's designee shall establish and mark hotel zones to be used solely for the loading and unloading of passengers and baggage. Standing or parking in such hotel zones shall be limited to fifteen (15) minutes. No person shall park a vehicle in a hotel zone except for the purpose of taking and discharging passengers and baggage destined for the hotel.
(Ord. No. 19,921, § 2, 2-19-08)

Sec. 32-348. Penalties.

The penalty for violation of overtime parking in unmetered restricted parking areas in sections 32-341 through 32-347 not specified within a particular section shall be:

(1) Thirty dollars ($30.00) if paid within thirty (30) days of the issuance of the ticket;

(2) Forty-five dollars ($45.00) if paid after thirty (30) days of the issuance of the ticket, or after conviction in district court for violation of city parking ordinances.

A combination ticket and envelope shall be provided at the issuance of a violation citation for the convenience of motorists. The penalty shall be paid by placing such sum in the penalty box attached to the parking meters, or by paying the fine to the city.
(Ord. No. 19,921, § 2, 2-19-08)

Secs. 32-349—32-370. Reserved.

DIVISION 3. RESTRICTIONS FOR SPECIFIC PLACES*

Sec. 32-371. Scope.

The provisions of this division prohibiting the standing or parking of a vehicle shall apply at all times or at those times herein specified or as indicated on official signs, except when it is necessary to stop a vehicle to avoid conflict with other traffic or in compliance with the directions of a police officer or official traffic-control device. The provisions of this division imposing a time limit on parking shall not relieve any person from the duty to observe other and more-restrictive provisions prohibiting or limiting the stopping, standing, or parking of vehicles in specified places or at specified times. Except where provisions of this Code or signs erected provide otherwise, the limitations on the standing or parking of a vehicle in this division shall not be applicable between the hours of 6:00 p.m. and 8:00 a.m. and on Sunday and public holidays.
(Ord. No. 19,921, § 3, 2-19-08)

Sec. 32-372. Parking prohibited at all times on certain streets.

When signs are erected on any street or part of street giving notice thereof, no person shall park a vehicle on the side or sides of any such street or part of street so designated for no parking.
(Ord. No. 19,921, § 3, 2-19-08)

Sec. 32-373. Parking prohibited during certain hours on certain streets.

When signs are erected on any street or part of street in each block giving notice thereof, no person shall park a vehicle on any such street or part of street in each block so designated between the hours specified by the signs, except Sunday and public holidays.
(Ord. No. 19,921, § 3, 2-19-08)

Sec. 32-374. Stopping, standing or parking prohibited during certain hours on certain streets.

When signs are erected on any street or part of street in each block giving notice thereof, no person shall stop, stand, or park a vehicle on any such street or part of street in each block so designated between the hours specified by the signs, except on Sundays and public holidays.
(Ord. No. 19,921, § 3, 2-19-08)

Sec. 32-375. Parking time limited on certain streets.

(a) When signs are erected on any street or part of street in each block giving notice thereof, no persons shall park a vehicle on any such street or part of street in each block so designated for longer than one (1) hour at any time between the hours of 8:00 a.m. and 6:00 p.m. of any day except Sundays and public holidays.

*__Editor's note—__Ord. No. 19,921, § 3, adopted Feb. 19, 2008, amended Div. 3 in its entirety and adopted similar provisions as set out herein. The former Div. 3 derived from Code 1961, §§ 39-87—39-91, 39-93—39-95; Ord. No. 15,778, § 1, adopted Nov. 7, 1989; Ord. No. 15,843, § 1, adopted April 17, 1990; and Ord. No.1 5,906, § 1, adopted July 17, 1990.

(b) Whenever by any provision of this chapter a parking time limit is imposed or parking is prohibited on any street or part of street, it shall be the duty of the traffic engineer to erect appropriate signs on such street or part of street giving notice thereof. No such regulations shall be effective unless said signs are erected and in place on the sides of the street or part of street where parking time is limited or prohibited at the time of any alleged offense.
(Ord. No. 19,921, § 3, 2-19-08)

Sec. 32-376. Parking in public parks.

No persons shall park a vehicle in any street, roadway, driveway or parking area that is marked for parking, in any public park at any time or in any manner, except as designated by lines or markings upon the pavement or ground. No person shall park any vehicle in front of or across any driveway or entranceway or within five (5) feet of any driveway or entranceway to any picnic area or filter building located in any public park. Nor shall any person park a vehicle at any place within a public park whereby, by signs duly erected, parking is prohibited.
(Ord. No. 19,921, § 3, 2-19-08)

Sec. 32-377. Parking of common carriers at night.

No person, firm or corporation shall park a truck, tractor, bus, trailer or semitrailer with a manufacturer's-rated capacity in excess of one (1) ton or greater on any public residential street except when such vehicle is actually engaged in the process of providing a direct public service. No person, firm or corporation shall use any public street for the purpose of repairing any such truck, tractor, bus, trailer or semitrailer or the chassis thereof except when such repairs are necessitated by an emergency.
(Ord. No. 19,921, § 3, 2-19-08)

Sec. 32-378. Restrictions during certain hours as designated by traffic engineer.

The traffic engineer is hereby authorized to determine the location of two-hour parking zones and to place and maintain appropriate signs indicating the same and stating the hours during which said limitations are applicable, provided that the installation of such zones shall be subject to the following conditions:

(1) All so-called "two-hour" zones heretofore designated and marked are designated as two-hour parking zones.

(2) No person shall park any vehicle in any two-hour parking zone located in the city for longer than two (2) hours at any time between the hours so designated and if the hours are not designated then not longer than two (2) hours at any time except on Sundays and holidays. All such two-hour parking zones shall be designated by signs.

(Ord. No. 19,921, § 3, 2-19-08)

Sec. 32-379. Penalties.

The penalty for violation of overtime parking in unmetered restricted parking areas in sections 32-371 through 32-379 not specified within a particular section shall be:

(1) Thirty dollars ($30.00) if paid within thirty (30) days of the issuance of the ticket:

(2) Forty-five dollars ($45.00) if paid after thirty (30) days of the issuance of the ticket, or after conviction in district court for violation of city parking ordinances.

A combination ticket and envelope shall be provided at the issuance of a violation citation for the convenience of motorists. The penalty shall be paid by placing such sum in the penalty box attached to the parking meters, or by paying the fine to the city.
(Ord. No. 19,921, § 3, 2-19-08)

Secs. 32-380—32-400. Reserved.

DIVISION 4. METERED PARKING*

Sec. 32-401. Installation of parking meters or parking meter technology.

The city manager or the manager's designee shall install parking meters upon the curb immediately adjacent to parking spaces or implement parking technology in parking meter zones. Parking meter technology means technology that allows payment for parking in parking meter zones without the use of mechanical parking meters, including, but not limited to telephone, smartphone applications, website, storefront payment, single or multi-space parking meters, or any other technology as deemed appropriate by the city to pay for parking. Parking meter technology may utilize parking space numbers, license plates, sticker numbers, or any other means designated by the specific parking meter technology to process parking payment.

(Ord. No. 19,921, § 4, 2-19-08; Ord. No. 21,785, § 1, 10-2-19)

Editor's note—Ord. No. 21,785, § 1, adopted Oct. 2, 2019, changed the title of § 32-401 from installation of parking meters to installation of parking meters or parking meter technology.

Sec. 32-402. Parking meter spaces and zones.

(a) The city manager or the manager's designee shall designate the parking space adjacent to each parking meter for which the meter is to be used by appropriate markings upon the curb or the pavement of the street. Parking meter spaces so designated shall be of appropriate length and width so as to be accessible from the traffic lanes of such street. No person shall park a vehicle in any such designated parking meter space during the restricted and regulated time applicable to the parking meter zone in which such meter is located so that any part of such vehicle occupies more than one (1) space or protrudes beyond the marking designating such spaces except that vehicle which is of a size too large to be parked within a single designated parking meter zone shall be permitted to occupy two (2) adjoining parking meter spaces when payment shall have been deposited in the parking meter for such space or payment for the parking space has been made using parking meter technology.

(b) The city manager or the manager's designee shall implement parking meter zones through the use of parking meters or parking meter technology. For any parking meter zone or space for which no meter is installed adjacent to the space, signage shall be installed in the area and visible from the space indicating that payment of the parking meter rates for that space, zone, or area shall be made using parking meter technology.

(Ord. No. 19,921, § 4, 2-19-08; Ord. No. 21,785, § 2, 10-2-19)

Editor's note—Ord. No. 21,785, § 2, adopted Oct. 2, 2019, changed the title of § 32-402 from parking meter spaces to parking meter spaces and zones.

Sec. 32-403. Deposit of coins and time limits.

(a) No person shall park a vehicle in any parking space upon a street alongside of and next to which a parking meter has been installed during the restricted and regulated time applicable to the parking meter zone in which such meter is located unless payment for the parking space has been made using parking meter technology or a coin or coins of the appropriate denomination as provided in this division shall have been deposited therein, or shall have been previously deposited therein for an unexpired interval of time, and the meter has been placed in operation.

(b) No person shall permit a vehicle under his control to be parked in any parking meter space during the restricted and regulated time applicable to the parking meter zone in which such meter is located while the parking meter for such space indicates by signal that the lawful parking time in such space is expired. This subsection does not apply to the act of parking or the necessary time which is required to deposit immediately

*__Editor's note—__Ord. No. 19,921, § 4, adopted Feb. 19, 2008, amended Div. 4 in its entirety and enacted similar provisions as set out herein. The former Div. 4 derived from Code 1961, §§ 39-96—39-98, 39-100—39-104; Ord. No. 15,630, § 6, adopted Jan. 17, 1989; Ord. No. 17,967, § 4b, adopted March 17, 1998; Ord. No. 18,611, § 4, adopted Dec. 18, 2001; Ord. No. 18,644, § 2, adopted Feb. 5, 2002; and Ord. No. 19,658, § 2, adopted Dec. 19, 2006.

thereafter a coin in the meter or if payment for parking has been made using parking meter technology.

(c) The penalty for violation of this provision shall be fifteen dollars ($15.00) for each consecutive period of time the motor vehicle is parked in the space without being moved if the ticket is paid within thirty (30) days of the issuance of a ticket. If the fine is not paid until after thirty (30) days of the issuance of the ticket, then the fine shall be fifty dollars ($50.00). A combination ticket and envelope shall be provided at the issuance of a violation citation for the convenience of motorists. The penalty shall be paid by paying the fine to the city.

(d) The provisions of this section shall not relieve any person from the duty to observe other provisions of this chapter.
(Ord. No. 19,921, § 4, 2-19-08; Ord. No. 21,785, § 3, 10-2-19)

Sec. 32-404. Use of slugs prohibited; tampering.

(a) No person shall deposit or attempt to deposit in any parking meter any slug, button, or any other device or substance as substitutes for coins of United States currency.

(b) No person shall deface, injure, tamper with, open or willfully break, destroy, or impair the usefulness of any parking meter, parking sign, parking sticker, or parking meter technology.
(Ord. No. 19,921, § 4, 2-19-08; Ord. No. 21,785, § 4, 10-2-19)

Sec. 32-405. Limited time zones.

The city manager or the manager's designee may determine the location of limited time parking-meter zones upon the streets within the jurisdiction of this city and place and maintain appropriate signs and parking meters indicating the same and stating the hours during which the limitations are applicable. The installation of such zones shall be subject to the following conditions:

(1) All time limited zones heretofore designated and marked are designated by signage to display the time limit for a parking zone.

(2) No person shall park any vehicle in a time limited parking meter zone for longer than the posted time limit at any time between the hours of 8:00 a.m. and 6:00 p.m. on Monday through Saturday except on days and holidays and only upon the minimum deposit of twenty-five cents ($0.25) in the parking meter located alongside such zone or payment for parking using parking meter technology.

(3) Notwithstanding any existing ordinance to the contrary, in any parking meter zone which limits the legal parking time, the legal parking time may be extended for additional time using parking meter technology, at an accelerated rate for each additional sixty (60) minutes as determined by the city manager or manager's designee.

(Ord. No. 21,785, § 5, 10-2-19)

Editor's note—Ord. No. 21,785, § 5, adopted Oct. 2, 2019, repealed the former § 32-405 and enacted a new § 32-405 as set out herein. The former § 32-405 pertained to twelve-minute zones and derived from Ord. No. 19,921, § 4, adopted Feb. 19, 2008.

Secs. 32-406—32-408. Reserved.

Editor's note—Ord. No. 21,785, § 6, adopted Oct. 2, 2019, repealed §§ 32-406—32-408, which pertained to thirty-minute zones, one-hour zones, and two-hour zones, and derived from Ord. No. 19,921, § 4, adopted Feb. 19, 2008.

Sec. 32-409. Banking zones.

Parking meters installed in banking zones shall be covered during banking hours and uncovered for use at other times. Banks shall pay the city for metered zones during the time they are covered a fee of one hundred fifty dollars ($150.00) per meter per year.
(Ord. No. 19,921, § 4, 2-19-08)

Sec. 32-410. Metered parking at the Bill and Hillary Clinton National Airport.

(a) The city manager or the manager's designee, upon request of the Little Rock Municipal Airport Commission, may locate various designated-minute parking-meter zones upon the streets within the jurisdiction of the municipal airport commission and place and maintain

appropriate signs and parking meters indicating the same and stating the hours during which parking limitations are applicable, if any. The minutes authorized for such parking-meter zones and the location of fine-collection boxes shall be designated by the municipal airport commission.

(b) The penalty for violation of this provision shall be fifteen dollars ($15.00) for each consecutive period of time the motor vehicle is parked in the space without being moved if the ticket is paid within thirty (30) days of the issuance of a ticket. If the fine is not paid until after thirty (30) days of the issuance of the ticket, then the fine shall be fifty dollars ($50.00). A combination ticket and envelope shall be provided at the issuance of a violation citation for the convenience of motorists. The penalty shall be paid by paying the fine to the city.
(Ord. No. 19,921, § 4, 2-19-08; Ord. No. 21,785, § 7, 10-2-19)

Editor's note—Ord. No. 21,785, § 7, adopted Oct. 2, 2019, changed the title of § 32-410 from metered parking at the Little Rock Municipal Airport to metered parking at the Bill and Hillary Clinton National Airport.

Sec. 32-411. Pay and display zone.

(a) No person shall park or permit to be parked any vehicle in a space controlled by a "Pay and Display" parking pay station without properly displaying proof of payment as described in this section or making payment for parking using parking meter technology. For parallel parking on one- and two-way streets, proper display of proof of payment requires affixing the receipt dispensed by the parking pay station inside the vehicle to the front seat's side window nearest the curb in such a manner that the expiration time and date are readily visible from the exterior. For motorcycles, receipts shall be affixed on the headlight cover. No more than one (1) receipt shall be displayed.

(b) No person shall stop, stand or permit a vehicle within his control to be parked in any parking space controlled by a "Pay and Display" parking pay station without displaying on the vehicle an unexpired proof of payment receipt issued by a parking pay station or making payment for parking using parking meter technology.

(c) No person shall stop, stand or permit a vehicle within his control to be parked in any parking space controlled by a "pay by space" parking pay station beyond the amount of time purchased for that space.

(d) No person shall park or permit to be parked any vehicle in a space controlled by a "pay-by-space" parking pay station without payment properly recorded as described by the instructions posted on the parking payment device.
(Ord. No. 20,726, § 1, 5-21-13; Ord. No. 21,785, §§ 8, 9, 10-2-19)

Sec. 32-412. Penalties.

The penalty for violation of overtime parking in all metered parking areas in sections 32-401 through 32-411 not specified within a particular section shall be:

(1) Fifteen dollars ($15.00) if paid within thirty (30) days of the issuance of the ticket;

(2) Fifty dollars ($50.00) if paid after thirty (30) days of the issuance of the ticket, or after conviction in district court for violation of city parking ordinances.

A combination ticket and envelope shall be provided at the issuance of a violation citation for the convenience of motorists. The penalty shall be paid by paying the fine to the city.
(Ord. No. 19,921, § 4, 2-19-08; Ord. No. 21,785, § 10, 10-2-19)

Editor's note—Formerly codified as § 32-411, renumbered by Ord. No. 20,726.

Secs. 32-413—32-430. Reserved.

ARTICLE VII. PEDESTRIANS

Sec. 32-431. Reserved.

Editor's note—Section 52 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-431, pedestrians generally, inasmuch as there is a parallel state statute.

Sec. 32-432. Reserved.

Editor's note—Section 53 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-432, right-of-way in crosswalks, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-1202.

Sec. 32-433. Reserved.

Editor's note—Section 54 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed § 32-433, use of right half of crosswalk, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-1203.

Secs. 32-434—32-436. Reserved.

Editor's note—Section 55 of Ord. No. 17,885, adopted Dec. 1, 1998, repealed §§ 32-434—32-436, crossing provisions, inasmuch as there is a parallel state statute.

State law reference—Similar provisions, A.C.A. § 27-51-1204.

Sec. 32-437. Walking along roadways.

Where sidewalks are provided no person shall walk along and upon an adjacent roadway.
(Code 1961, § 39-112)

State law reference—Similar provisions, A.C.A. § 27-51-1205.

Sec. 32-438. Darting into traffic.

No pedestrian shall suddenly leave the curb or other place of safety and walk or run into the path of a vehicle, which is so close that it is impossible for the driver to yield.
(Code 1961, § 39-106)

Sec. 32-439. Soliciting rides.

No person shall stand in a roadway for the purpose of soliciting a ride from the driver of any private vehicle.
(Code 1961, § 39-113)

Secs. 32-440—32-460. Reserved.

ARTICLE VIII. BICYCLES, MOPEDS, ETC.*

DIVISION 1. GENERALLY

Sec. 32-461. Riding on motorcycles.

A person operating a motorcycle shall ride only upon the permanent and regular seat attached thereto, and such operator shall not carry any other person nor shall any other person ride on a motorcycle unless such motorcycle is designed to carry more than one (1) person, in which case a passenger may ride upon the permanent and regular seat if designed for two (2) persons, or upon another seat to the rear of the operator.
(Code 1961, § 39-135)

Sec. 32-462. Parking of bicycles, mopeds and motorized bicycles.

No person shall park a bicycle or a moped or motorized bicycle upon a street other than upon the roadway against the curb or upon the sidewalk in a rack to support the bicycle or moped or motorized bicycle or against a building or at the curb in such a manner as to afford the least obstruction to pedestrian traffic.
(Code 1961, § 39-122)

Sec. 32-463. Use of bicycles, coasters, roller skates, and similar devices restricted.

(a) No person upon roller skates or riding in or by means of any coaster, toy vehicle, or similar device, shall go upon any roadway except while crossing a street on a crosswalk and when so crossing, such person shall be granted all of the rights and shall be subject to all of the duties applicable to pedestrian. This section shall not apply to a person on a shared scooter as defined in Section 32-592; further, this section shall not apply upon any street while it is set aside as a play street.

***State law reference—**Motorcycles, motor scooters and motor bicycles, A.C.A. § 27-20-101 et seq.

(b) No person riding upon any bicycle, coaster, roller skates, sled, toy vehicle, toy scooter, or shared scooter as defined in Section 32-592, shall attach the same or the person to any vehicle upon a public street, public property, or private property that is publicly accessible.
(Code 1961, § 39-12.1; Ord. No. 15,630, § 7, 1-17-89; Ord. No. 21,955, § 5, 1-19-21)

Secs. 32-464—32-485. Reserved.

DIVISION 2. BICYCLES

Sec. 32-486. Application of traffic laws.

(a) Every person riding a bicycle, or shared scooter as defined in Section 32-592, upon a roadway shall be granted all of the rights and shall be subject to all the duties applicable to the driver of a vehicle by the laws of this state declaring rules of the road applicable to vehicles or by the traffic ordinances of this city applicable to the driver of a vehicle, except as to special regulations in this article and except as to those provisions of laws and ordinances which by their nature can have no application.

(b) For purposes of this subsection, within the corporate limits of the city, a shared scooter, as defined in Section 32-592, is not classified as a toy, nor as a personal assistive mobility device.
(Code 1961, § 39-114; Ord. No. 21,955, § 5, 1-19-21)

Sec. 32-487. Obedience to traffic-control devices.

Any person operating a bicycle shall obey the instructions of official traffic-control signals, signs, and other control devices applicable to vehicles, unless otherwise directed by a police officer. Whenever authorized signs are erected indicating that no right or left or U-turn is permitted, no person operating a bicycle shall disobey the direction of any such sign, except where such person dismounts from the bicycle to make any such turn, in which event such person shall then obey the regulations applicable to pedestrians.
(Code 1961, § 39-115)

Sec. 32-488. Manner of riding.

A person propelling a bicycle shall not ride other than astride a permanent and regular seat attached thereto. No bicycle shall be used to carry more persons at one (1) time than the number for which it is designed and equipped.
(Code 1961, § 39-116)

Sec. 32-489. Riding on roadways and bicycle paths.

Every person operating a bicycle upon a roadway shall ride as near as to the right-hand side of the roadway as practicable, exercising due care when passing a standing vehicle or one proceeding in the same direction. Persons riding bicycles upon a roadway shall not ride more than two (2) abreast except on paths or parts of roadways set aside for the exclusive use of bicycles. Whenever a usable path for bicycles has been provided adjacent to a roadway bicycle riders shall use such path and shall not use the roadway.
(Code 1961, § 39-117)

Sec. 32-490. Speed.

No person shall operate a bicycle at a speed greater than is reasonable and prudent under the conditions then existing.
(Code 1961, § 39-118)

Sec. 32-491. Emerging from alley or driveway.

The operator of a bicycle emerging from an alley, driveway, or building, shall upon approaching a sidewalk or the sidewalk area extending across the alleyway, yield the right-of-way to all pedestrians approaching on the sidewalk or sidewalk area; and upon entering the roadway shall yield the right-of-way to all vehicles approaching on the roadway.
(Code 1961, § 39-119)

Sec. 32-492. Clinging to vehicles.

No person riding upon any bicycle shall attach the same or himself to any vehicle upon a roadway.
(Code 1961, § 39-120)

Sec. 32-493. Carrying articles.

No person operating a bicycle shall carry any package, bundle, or article which prevents the rider from keeping at least one (1) hand upon the handlebars.
(Code 1961, § 39-121)

Sec. 32-494. Riding on sidewalks.

(a) No person on a shared scooter as defined in Section 32-592 shall ride upon a sidewalk in a non-residential area, not specifically approved for which signage has been placed by the city.

(b) No person shall ride a bicycle upon a sidewalk within a business district. Whenever any person is riding a bicycle upon a sidewalk outside of business districts, such person shall yield the right-of-way to any pedestrian and shall give audible signal before overtaking and passing such pedestrian.

(c) This section shall not apply to police officers acting in the line of duty as part of a city bicycle patrol, except that police officers riding on sidewalks shall operate the bicycle in a safe manner, yielding to the right-of-way and warning pedestrians to the extent possible.
(Code 1961, § 39-123; Ord. No. 16,218, § 1, 5-19-92; Ord. No. 21,955, § 5, 1-19-21)

Sec. 32-495. Lamps.

(a) Every bicycle shall be equipped with a lamp on the front exhibiting a white light visible from a distance of at least five hundred (500) feet to the front and with a lamp on the rear exhibiting a red light visible from a distance of five hundred (500) feet to the rear.

(b) A red reflector meeting the requirements of law may be used in lieu of a rear light.
(Code 1961, § 39-124)

State law references—Similar provisions, A.C.A. § 27-36-220; reflectors, A.C.A. § 27-36-215.

Sec. 32-496. Other equipment.

No person shall operate a bicycle unless it is equipped with a bell or other device capable of giving a signal for a distance of at least one hundred (100) feet, except that a bicycle shall not be equipped with nor shall any person use upon a bicycle any siren or whistle. Every bicycle shall be equipped with a brake which will enable the operator to make the braked wheel skid on dry, level, clean pavement.
(Code 1961, § 39-124)

Secs. 32-497—32-520. Reserved.

ARTICLE IX. PARADES, PROCESSIONS, ETC.*

DIVISION 1. GENERALLY

Sec. 32-521. Driving through processions.

No person shall drive a vehicle between the vehicles comprising a funeral or other authorized procession while they are in motion and when such vehicles are conspicuously designated as required.
(Code 1961, § 39-48)

Sec. 32-522. Identification of vehicles.

No vehicle shall proceed in a funeral procession except with the headlights of the vehicle burning which for the purpose of this section designates such as a funeral vehicle.
(Code 1961, § 39-50)

Sec. 32-523. Drivers in a procession.

Each driver in a funeral or other procession shall drive as near to the right-hand edge of the street as practical and shall follow the vehicle ahead as close as is practical and safe.
(Code 1961, § 39-49)

Sec. 32-524. Driving or passing through funeral processions.

Any person driving any vehicle, public or private, who shall hereafter interfere, cut off, drive through or otherwise impede or disturb a funeral procession going through the streets of this city, shall be guilty of a misdemeanor.
(Code 1961, § 25-38)

*__State law reference—__Authority to regulate processions or assemblages on highways, A.C.A. § 27-49-106(b)(3).

Secs. 32-525—32-545. Reserved.

DIVISION 2. PARADES AND PUBLIC ASSEMBLY*

Sec. 32-546. Definitions.

City means the City of Little Rock, Arkansas.

City manager means the City Manager of the City of Little Rock, Arkansas, or the manager's designee, and for the determination of certain issues involved with the issuance of a permit may include the chief of police, the director of public works, or such other city employee that the manager designates, provided that the applicant for a permit is always able to obtain information as to a final determination from the city manager.

Parade means any march, demonstration, procession or motorcade consisting of persons, animals, or vehicles or a combination thereof upon the streets, parks or other public grounds within the city with an intent of attracting public attention that interferes with the normal flow or regulation of traffic upon the streets, parks or other public grounds and which does not otherwise constitute residential picketing as set forth in Division 3 this article.

Parade of public assembly permit means a permit as required by Ordinance No. 18,569 [this division].

Person means any person, firm, partnership, association, corporation, company or organization of any kind.

Public assembly means any meeting, demonstration, picket line, rally or gathering of more than twenty (20) persons for a common purpose as a result of prior planning that interferes with the normal flow or regulation of pedestrian or vehicular traffic or occupies any public area in a place open to the general public.

Sidewalk is any area or way set aside or open to the general public for purposes of pedestrian traffic, whether or not it is paved.

Street is any place or way set aside or open to the general public for purposes of vehicular traffic, including any berm or shoulder parkway, right-of-way, or median strip thereof.
(Ord. No. 18,569, § 4(a), 9-18-01; Ord. No. 21,006, § 1, 3-3-15)

Sec. 32-547. Permit required.

No person shall engage in or conduct any parade or public assembly unless a permit is issued by the city manager
(Ord. No. 18,569, § 4(b), 9-18-01)

Sec. 32-548. Exceptions.

This division shall not apply to the following:

(1) Funeral processions;

(2) Students going to and from school classes or participating in educational activities, provide that such conduct is under the immediate direction and supervision of the proper school authorities;

(3) A governmental agency acting within the scope of its functions; and

(4) Organized events occasioned by news or affairs coming into public knowledge within three (3) days of such event, provided that the organizer thereof gives written notice to the city manager at least twenty-four (24) hours prior to such event.

(Ord. No. 18,569, § 4(c), 9-18-01)

Sec. 32-549. Application.

(1) A person seeking a parade or public assembly permit shall file an application with the city manager on forms provided by the city and the application shall be signed by the applicant.

(2) For single, nonrecurring parades or public assemblies, an application for a permit shall be filed with the city manager at least five (5) and not more than one hundred eighty (180) days before the parade or public assembly is proposed

*__Editor's note—__Sections 3(a)—(h) of Ord. No. 18,569, adopted Sept. 18, 2001, repealed §§ 32-548—32-555. Section 4(a)—(p) of Ordinance No. 18,569 enacted similar provisions, which the editor has treated as superseding the remainder of the sections of Div. 2, and codified as §§ 32-546—32-561. Former Div. 2 derived from the 1961 Code § 39-51.

to commence. The city manager may waive the minimum ten-day filing period and accept an application filed within a shorter period if, after due consideration of the date, time, place, and nature of the parade or public assembly, the anticipated number of participants, and the city services required in connection with the event, the chief of police determines that the waiver will not present a hazard to public safety.

(3) For parades or public assemblies held on a regular or recurring basis at the same location, an application for a permit covering all such parades or assemblies during that calendar year may be filed with the city manager at least thirty (30) and not more than one hundred eighty (180) days before the date and time at which the first such parade or public assembly is proposed to commence. The city manager may waive the minimum thirty-day period after due consideration of the factors specified in subsection (2) above.

(4) The application for a parade or public assembly permit shall set forth the following information:

(a) The name, address and telephone number, if available, a pager number, mobile telephone number, and e-mail address of the person seeking to conduct such parade or public assembly;

(b) The names, addresses and telephone numbers and, if available, e-mail adddress of the headquarters of the organization for which the parade or public assembly is to be conducted, if any, and the authorized and responsible heads of the organization;

(c) The requested date of the parade or public assembly;

(d) The route to be traveled, including the starting point and the termination point;

(e) The approximate number of persons who, and animals and vehicles which, will constitute such parade or public assembly and the type of animals and description of the vehiclcs;

(f) A statement as to whether the parade or public assembly will occupy all or only a portion of the width of the streets proposed to be traversed;

(g) The location by street of any assembly areas for such parade or public assembly;

(h) The time at which units of the parade or public assembly will begin to assemble at any such area;

(i) The intervals of space to be maintained between units of such parade or public assembly;

(j) If the parade or public assembly is designed to be held by, or on behalf of, any person other than the applicant, the applicant for such permit shall file a letter from that person with the chief of police authorizing the applicant to apply for the permit on his behalf;

(k) The type of public assembly, including a description of activities planned during the event;

(l) A description of any recording equipment, sound amplification equipment, banners, signs, or other attention-getting devices to be used in connection with the parade or public assembly;

(m) The approximate number of participants expected to attend the parade or public assembly;

(n) The approximate number of spectators expected to be in attendance, understanding that a participant is not to be counted as a spectator;

(o) A designation of any public facilities or equipment, other than the public streets, that are expected to be utilized;

(p) Any additional information that the applicant reasonably believes would be helpful to the city manager in order to plan for any city services that may be required;

(q) Any additional information the city manager reasonably believes is necessary in order for the city to plan for any city services that may be required.

(Ord. No. 18,569, § 4(d), 9-18-01)

Sec. 32-550. Fee.

A nonrefundable fee of twenty-five dollars ($25.00) to cover the administrative costs of processing the permit shall be paid to the city collector by the applicant at the time the application is filed.

(Ord. No. 18,569, § 4(e), 9-18-01)

Sec. 32-551. Standards for issuance of permit.

(1) The city manager shall issue a permit pursuant to this division as requested by the applicant if after consideration of the information contained in the permit, and such other information as be otherwise be obtained, it is determined that:

(a) The conduct of the parade or public assembly will not substantially interrupt the safe and orderly movement of other pedestrian or vehicular traffic contiguous to its route or location;

(b) The concentration of persons, animals, and vehicles at public assembly points of the parade or public assembly will not unduly interfere with proper fire and po-

lice protection of, or ambulance service to, areas contiguous to such public assembly areas;

(c) The parade or public assembly is scheduled to move from its point of origin to its point of termination expeditiously and without unreasonable delays en route;

(d) Adequate sanitation and other required health facilities are or will be made available in or adjacent to any public assembly area;

(e) There is sufficient parking available near the site of the parade or public assembly to accommodate the number of vehicles reasonably expected at the time of the event;

(f) No parade or public assembly permit application for the same time and location has already been granted or, was previously received and will be granted;

(g) No parade or public assembly permit application for the same date, or within a time frame within twenty-four (24) hours of the same date, has been previously received and will be granted, which will require the use and deployment of public resources in such a manner that when combined with the subsequent application, it is reasonably determined that there would be an adverse effect upon the city's ability to provide such resources and to protect the welfare and safety of persons and property, provided that the mere expenditure of public funds for overtime payments for public employees shall not be deemed an adverse effect upon the city's ability to provide public services;

(h) No event is scheduled elsewhere in the city where the public resources required for that event are so great that the deployment of public services would have an immediate and adverse effect upon the welfare and safety of persons and property.

(2) No permit shall be granted that allows for the erection of placement of any structure, whether permanent or temporary, on a city street, sidewalk, or right-of-way unless advance approval for the erection or placement of the structure is obtained from the city manager.

(3) The city manager shall not deny any application for a permit upon the basis of race, creed, color, national origin, political viewpoint, disability, or gender.
(Ord. No. 18,569, § 4(f), 9-18-01)

Sec. 32-552. Notice of denial of application.

The city manager shall act promptly upon a timely filed application for a parade or public assembly permit but in no event shall grant or deny a permit less than forty-eight (48) hours prior to the event. If the city manager disapproves the application, the applicant shall be notified in writing as soon as possible, but in no event not less than forty-eight (48) hours prior to the event, and shall be provided the reasons for such denial. Notification in writing shall be deemed to have occurred when a letter is delivered in person, by telefacsimile with verification of delivery, by mail with some form of return receipt, or by e-mail with some indication that the message has been read.
(Ord. No. 18,569, § 4(g), 9-18-01)

Sec. 32-553. Alternative permit.

(1) The city manager, in denying an application for a parade or public assembly permit, may authorize the conduct of the parade or public assembly at a date, time, location, or route different from that named by the applicant. An applicant desiring to accept an alternate permit shall, within five (5) days after notice of the action by the city manager, submit a written notice of acceptance with the city manager.

(2) An alternate parade or public assembly permit shall conform to the requirements of, and shall have the effect of, a parade or public assembly permit issued pursuant to this division.
(Ord. No. 18,569, § 4(h), 9-18-01)

Sec. 32-554. Appeal procedure.

(1) Any applicant shall have the right to appeal the denial of a parade or public assembly permit to the board of directors. The denied

applicant shall make the appeal within five (5) days after receipt of the denial by filing a written notice with the city clerk. If there are less than five (5) days prior to the requested date for the parade or public assembly permit, the applicant shall make the appeal by filing as soon as possible before the scheduled date a written notice with the city clerk. The board of directors shall act upon the appeal at the next scheduled meeting following receipt of the notice of appeal, provided that if no scheduled meeting, or agenda session, will occur prior to the requested date of the parade or public assembly, the board of directors shall call a special meeting to decide the appeal.

(2) The issue on appeal shall be whether the application meets the criteria set forth in this division for the issuance of a permit for a parade or public assembly. The board of directors shall consider the information provided in the permit application.

(3) In the event the board of directors rejects an applicant's appeal, the applicant may file an immediate request for review with a court of competent jurisdiction. To the extent that a record of the action of the board of directors may be required as part of such an appeal pursuant to a rule of procedure, such record shall consist of a certification by the city clerk that the appeal was filed on a particular date, was heard by the board of directors on a particular date, and that the board of directors voted by a specified division of votes to deny the appeal.
(Ord. No. 18,569, § 4(i), 9-18-01)

Sec. 32-555. Notice of other officials of permit issuance.

Immediately upon the issuance of a parade or public assembly permit, the city manager shall have a copy of the permit sent to the following:

(1) The mayor;

(2) The city attorney;

(3) The heads of the city's respective emergency services departments including police, fire and ambulance;

(4) The director of the department of public works;

(5) The postmaster;

(6) The manager or responsible head of each public transportation agency, or utility, the regular routes of whose vehicles will be affected by the route of the proposed parade or public assembly;

(7) The directors of other governmental entities, or law enforcement agencies, whose departments may be affected by the attendance of persons at the proposed parade or public assembly.

(Ord. No. 18,569, § 4(j), 9-18-01)

Sec. 32-556. Contents of permit.

Each parade or public assembly permit shall state the following information:

(1) The scheduled starting and the anticipated ending time of the parade or public assembly;

(2) The proposed minimum speed of parade units if vehicles are used to transport any participants in the parade or public assembly;

(3) The maximum speed that will be allowed for parade units if vehicles are used to transport any participants in the parade or public assembly;

(4) The maximum interval of space to be maintained between units of the parade of public assembly;

(5) The portions of the streets that will be occupied by the parade or the public assembly;

(6) The maximum anticipated length of the parade in miles or fractions of miles;

(7) Such other information as the city manager shall find necessary for the enforcement of the provisions of this division.

(Ord. No. 18,569, § 4(k), 9-18-01)

Sec. 32-557. Duties of the permittee.

(1) A recipient of a permit for a parade or public assembly shall comply with all permit directions and conditions and with all applicable laws and ordinances.

(2) The recipient of a permit for a parade or public assembly shall designate a person who shall be in immediate possession of the parade or public assembly permit at all times during the parade or public assembly. The recipient of the permit shall provide the name of this person in writing to the city manager no less than three (3) hours prior to the start of the parade or public assembly.
(Ord. No. 18,569, § 4(l), 9-18-01)

Sec. 32-558. Prohibitions.

The following prohibitions shall apply to all parades and public assemblies:

(1) It shall be unlawful for any person to stage, present, or conduct any parade or public assembly without first having obtained a permit as required in this division;

(2) It shall be unlawful for any person to participate in a parade or public assembly for which the person knows that a permit has not been granted;

(3) It shall be unlawful for any person to participate in a parade or public assembly for which the person knows that a permit has been revoked;

(4) It shall be unlawful for any person to continue to participate in a parade or public assembly after being informed by a law enforcement officer that a permit for the event has not been granted;

(5) It shall be unlawful for any person to continue to participate in a parade or public assembly after being informed by a law enforcement officer that a permit for the event has been revoked;

(6) It shall be unlawful for any person in charge of, or responsible for the conduct of, a duly permitted parade or public assembly to knowingly fail to comply with any condition of the permit;

(7) It shall be unlawful for any person who participates in any parade or public assembly activity to carry or possess any length of lumber, or wood, or other non-metallic material, for purposes of displaying a sign, poster, plaque or notice unless such material is rounded on the ends, is one-fourth inch or less in thickness, and is two (2) inches or less in width;

(8) It shall be unlawful for any person who participates in any parade or public assembly activity to carry or possess any length of metal for purposes of displaying a sign, poster, plaque or notice;

(9) It shall be unlawful for any person to carry any sign, poster, plaque, or notice, whether mounted on a length of material as set forth in subsections (7) and (8) immediately above, unless such sign, poster, plaque or notice is constructed or made of cloth, paper, or cardboard material.

(10) It shall be unlawful for any person to ride, drive, or cause to be ridden or driven any animal or any animal-drawn vehicle upon any public street as a part of a parade or public assembly unless such transportation is specifically authorized by the permit.

(Ord. No. 18,569, § 4(m), 9-18-01)

Sec. 32-559. Public conduct during parades and public assemblies.

(1) No person shall unreasonably hamper, obstruct or impede, or interfere with any parade or public assembly or with any person, vehicle or animal participating or used in a parade or public assembly.

(2) No driver of a vehicle shall drive between the vehicles or persons comprising a parade or public assembly when such vehicles or persons are in motion and are conspicuously designated as a parade of public assembly, provided that this provision shall not prevent a law enforcement officer to permit traffic to pass through such an assembly if, in the judgment of the officer, such action can be taken without any danger to the driver and the persons participating in the parade or public assembly.

(3) The city manager shall have the authority, when reasonably necessary, to prohibit or restrict the parking of vehicles along a street constituting

a part of the route of a parade or public assembly. The city manager shall direct that signs be posted to that effect, and it shall be unlawful for any person to park or leave unattended any vehicle in violation of such posting. No person whose vehicle is otherwise legally parked shall be liable for parking on a street posted pursuant to this subsection that was not posted at the time the person parked the vehicle.
(Ord. No. 18,569, § 4(n), 9-18-01)

Sec. 32-560. Revocation of permit.

The city manager shall have the authority to revoke a parade or public assembly permit instantly upon violation of the conditions or standards for issuance as set forth in this division, or when a public emergency arises where the emergency services resources required for that emergency are so great that deployment of similar services for the parade or public assembly would have an immediate and adverse effect upon the welfare and safety of persons or property, provided that if such revocation occurs through no fault or misconduct of the applicant for the permit, or the persons participating in the parade or public assembly that is the subject of the permit, then the city manager shall issue a new permit, subject to the same conditions of the revoked permit, for a date acceptable to the applicant that is within a reasonable period of time after the public emergency has subsided.
(Ord. No. 18,569, § 4(o), 9-18-01)

Sec. 32-561. Penalties.

Any person convicted of violating the provisions of this division shall be subject to penalties provided in section 1-9 of the Little Rock, Arkansas, Revised Code of Ordinances.
(Ord. No. 18,569, § 4(p), 9-18-01)

Secs. 32-562—32-570. Reserved.

DIVISION 3. PICKETING OF A PRIVATE RESIDENCE

Sec. 32-571. Definitions.

Directed, focused, or targeted means that a particular private residence or any of its occupants has been made the sole object of picketing and that the picketing takes place directly in front of the particular private residence or the private residence on either side of the targeted residence.

Picket or *picketing* means the practice of standing, marching, or patrolling by one (1) or more persons inside of, in front of, or about any premises for the purpose of persuading an occupant of such premises or to protest some action, attitude or belief.

Private residence means a single-family, duplex, or other multifamily dwelling.

Public meeting means a gathering announced in advance to the public, or a portion of the public, which is held to discuss matters of public interest and which is attended by at least three (3) people who do not reside where the assembly is held.

Residential zoned district means a section of the city which the planning commission has designated for some type of residential zoning classification.
(Ord. No. 18,569, § 5(a), 9-18-01)

Sec. 32-572. Picketing of private residence prohibited.

It shall be unlawful for any person to engage in picketing which is directed, focused or targeted solely at a particular private residence located in a residential zoned district and which takes place directly in front of the particular private residence or the private residence on either side of the targeted residence.
(Ord. No. 18,569, § 5(b), 9-18-01)

Sec. 32-573. Exemptions.

Nothing in this division shall prohibit:

(1) The picketing of a residence which is also used as the occupant's sole place of business;

(2) The picketing of a residence used as a place of public meeting;

(3) A person or group of persons from marching in a residential zoned area without stopping at any particular private residence; or

(4) A person or group of persons from marching in a residential zoned area on a defined route without stopping at any particular private residence or residences.

(Ord. No. 18,569, § 5(c), 9-18-01)

Sec. 32-574. Time restrictions.

Picketing in residential zoned areas is permitted only during the following hours:

(1) Monday through Friday:

9:00 a.m. to 12:00 noon

1:00 p.m. to 4:00 p.m.

7:00 p.m. to 9:00 p.m.

(2) Saturday:

9:00 a.m. to 5:00 p.m.

(3) Sunday:

1:00 p.m. to 5:00 p.m.

(Ord. No. 18,569, § 5(d), 9-18-01)

Sec. 32-575. Warning.

Before a person may be arrested for violating section 32-572 above, the person must have been ordered to move, disperse, or otherwise remedy the violation by:

(1) A police officer;

(2) A member of the fire department; or

(3) A person with authority to control the use of the residence which is the focus or target of the picketing.

(Ord. No. 18,569, § 5(e), 9-18-01)

Sec. 32-576. Defenses.

It is a defense to any prosecution under this division that a person:

(1) Was not given a warning as provided in section 32-575; or

(2) Promptly obeyed a warning as provided in section 32-575.

(Ord. No. 18,569, § 5(f), 9-18-01)

Sec. 32-577. Penalty for violation.

Any person convicted of violating this division shall be subject to pay a fine not to exceed two hundred dollars ($200.00), or to be imprisoned for a period not to exceed six (6) months, or to both imprisonment and a fine.

(Ord. No. 18,569, § 5(g), 9-18-01)

Secs. 32-578—32-590. Reserved.

ARTICLE X. DOCKLESS MOBILITY TECHNOLOGY CODE

Sec. 32-591. Title.

This article shall be known as the Dockless Mobility Technology Code for the City of Little Rock, Arkansas.

(Ord. No. 21,955, § 1, 1-19-21)

Sec. 32.592. Definitions.

For the purposes of this Dockless Mobility Technology Code ("the Code") the following terms used within this Code shall have the following definitions:

Dockless mobility system shall mean a mobility system or service licensed by the City, and comprised of units to be used for the purpose of transportation or conveyance.

Dockless mobility unit shall mean a singular vehicle used in a greater, publicly offered, dockless mobility system for the conveyance of people, goods or services, that does not require fixed docking stations or apparatus to receive or return a unit.

Electric motorized scooter or *scooter*, for purposes of this Code, shall mean a device that:

(1) Weighs less than one hundred (100) pounds; and,

(2) Has two (2) or three (3) wheels; and,

(3) Has a handlebar; and,

(4) Is equipped with a floorboard that can be used to stand on while it is ridden; and,

(5) Is powered by an electric motor; and,

(6) Has a maximum speed of twenty (20) miles per hour (MPH) with or without human propulsion on a paved level surface, and,

"Electric motorized scooter" or "scooter", for purposes of this Code, does *not mean* a device that:

(1) A motorcycle, an electric bicycle, an electric personal assisted mobility device, a motor-driven cycle, a motorized bicycle as defined in A.C.A. § 27-20-101, a moped; or,

(2) An electric bicycle as defined in A.C.A. § 27-51-1702; or, mean a device that:

a. Weighs less than thirty (30) pounds; and,

b. Has two (2) or three (3) wheels; and,

c. Has a handlebar; and,

d. Is equipped with a floorboard that can be used to stand on while it is ridden; and,

e. Is powered by an electric motor; and,

f. Has a maximum speed of ten (10) miles per hour (MPH) with or without human propulsion on a paved level surface as certified by the manufacturer, or in accordance with the Consumer Product Safety Commission, ASTM F1447 as replaced by ANSI, or Snell B-90; and,

g. Is not equipped to be rented or sold by a scooter-share operator to other persons in accordance with the provisions of this Code;

Operator shall mean a person or entity who owns, operates, or both, a dockless mobility system.

Scooter-share operator means a person or company offering a shared scooter for hire; it is understood that there may be more than one (1) such provider within the city.

Scooter-share program means a service in which a shared scooter is made available to the public to use for hire.

Shared scooter means an electric motorized scooter offered for hire.

User shall mean a person who rents and uses, or allows another person to use, a dockless mobility unit from an operator. A user must be at least sixteen (16) years of age.
(Ord. No. 21,955, § 2, 1-19-21)

Sec. 32-593. Operation of a shared scooter.

A shared scooter shall not be operated:

(a) By a person under sixteen (16) years of age; and,

(b) By a person under the age of eighteen (18) unless that person is wearing an appropriate helmet; and,

(c) At a speed greater than fifteen (15) miles per hour (MPH); and,

(d) On a sidewalk in any area of the city, unless the area has been deemed by the city, and signage is in place, that the area is appropriate for sidewalk use; and,

(e) Outside a designated bicycle lane if such a lane is designated where the person is riding; and,

(f) After dark without a white lamp in front, and red lamp or reflector in the rear, or other front and rear illumination gear acceptable to the city, that is visible from a distance of five hundred (500) feet; and,

(g) By more than one (1) person, nor shall a shared scooter carry more than one (1) person at a time; and,

(h) *Penalty for violation:* Failure to comply with this section is punishable pursuant to Little Rock, Arkansas Rev. Code §§ 1-9.
(Ord. No. 21,955, § 3, 1-19-21)

Sec. 32-594. Insurance requirements.

(a) A shared scooter shall bear a unique alphanumeric identification number;

(b) The alphanumeric identification number shall be:

(1) Visible from a distance of five (5) feet and not be covered by a branding or other marking; and,

(2) Used throughout the state of Arkansas, including by a local authority, to identify the shared scooter.

(c) A scooter-share operator shall carry the following insurance coverage, in accordance with Arkansas state law, dedicated exclusively for operation of a shared scooter:

(1) Commercial general liability insurance coverage with a limit of no less than one million dollars ($1,000,000.00) for each occurrence and five million dollars ($5,000,000.00) aggregate; and,

(2) Umbrella or excise liability coverage with a limit of not less than five million dollars ($5,000,000.00) for each occurrence and five million dollars ($5,000,000.00) aggregate; and,

(3) Workers' compensation coverage as required by law.

(Ord. No. 21,955, § 4, 1-19-21)

Sec. 32-595. City access of scooter-shared operator records.

The city shall receive from a scooter-shared operator which has any shared scooters operating within the corporate limits of the city, anonymized fleet and ride activity data for all trips starting, including, or ending, within the corporate limits of the city and, all ride activity resulting in an accident report, provided that:

(a) To ensure the individual privacy, the anonymized fleet and ride activity is:

(1) Provided to a local authority through an application programming interface, subject to the scooter-share operator's license agreement for the interface, in compliance with a national data format standard such as the mobility data specifications; and,

(2) To the extent provided by law, the city shall treat such information as proprietary information, personally identifiable information, trade secrets, or information that could create an unfair competitive advantage for any entity that operates pursuant to this article;

(3) Is treated by the city as a trade secret and proprietary business information; and,

(4) Is considered personally identifiable information; and,

(5) Provided further, that for the limited purposes of the investigation into a state or federal criminal matter, as certified to the scooter-shared operator by a person with the rank of Major or above in the Little Rock Police Department, total, but discrete, non-anonymized information, about ride data, or user data, within a specifically identified area of the corporate limits of the city during a particular time frame, with a valid subpoena or other applicable court document.

(Ord. No. 21,955, § 6, 1-19-21)

Sec. 32-596. Future limitation of the number of shared scooters within the city.

Nothing within the provisions of this article shall be interpreted to mean that the city cannot limit the number of, the area where, or both, as to the use of shared scooters permitted to operate within the corporate limits of the city. Any such limitation shall be based upon demonstrable concerns for public safety.

(Ord. No. 21,955, § 7, 1-19-21)

Sec. 32-597. Modifications to city authority and imposition of business license and franchise fee.

(a) Any requirements imposed by this article which are different from any provision of Arkansas state law are enacted pursuant to the city's express legislative authority contained in 2019 Ark. Acts 1015, as amended as to the safe operation of an electric motorized scooter, and the presence of an electric motorized scooter on public property including, but not limited to, any public rights-of-way.

(b) Pursuant to the statutory authority granted to municipalities in A.C.A. §§ 26-77-101 to -103, as amended, the city hereby amends the appropriate of the city business license ordinances to impose a business license of seventy-five dollars ($75.00) per scooter that operates within the corporate limits of the city, uses city right-of-way, or both.

(c) In addition to any business license required, an annual franchise fee of ten thousand dollars ($10,000.00) shall be charged to an operator for the use of one (1) or more electric motorized scooters on public property.
(Ord. No. 21,955, § 8, 1-19-21)

Secs. 32-598—32-610. Reserved.

ARTICLE XI. VEHICULAR TRESPASS, CARAVANNING OF VEHICLES, AND DRAG RACING

Sec. 32-611. Definitions.

For the purposes of this article:

Drag race means:

(1) The operation of two (2) or more motor vehicles from a point side-by-side at accelerating speeds in a competitive attempt to outdistance each other; or,

(2) The operation of one (1) or more motor vehicles over a common selected course, from the same point to the same point, for the purpose of comparing the relative speeds or power of acceleration of the motor vehicle or motor vehicles within a certain distance or time limit.

Public highway means a public road, county road, city street, or any paved or unpaved roadway that is owned or maintained by the city, or is open to the use of the public for purposes of vehicular travel.

Race means the operation or use of one (1) or more motor vehicles traveling with excessive or at dangerous speeds in an attempt to:

(1) Outgain or outdistance another motor vehicle or motor vehicles; or,

(2) Arrive at a given destination ahead of another motor vehicle or motor vehicles; or,

(3) Test the physical stamina or endurance of drivers over long-distance driving routes.
(Ord. No. 21,987, § 1, 4-20-21)

Sec. 32-612. Vehicular trespass.

(a) A person commits vehicular trespass if he or she operates a vehicle with willful or wanton disregard for the safety of persons or property on parking lots or other paved or unpaved surfaces which belong to private businesses when the owner or holder of the lease estate, or person or entity under a management or other agreement for the space has posted notice in the form of a visible sign that contains the following language:

No Trespassing
No Access to Parking Lots After Close of Business
Violators Will Be Prosecuted

All such signs shall be a minimum size of eighteen (18) inches by twelve (12) inches in lettering that is not less than one (l) inch high.

(b) A sign on private property required by this article shall be placed at every entrance and exit on the premises;

(c) All signs required by this article shall be conspicuously displayed and clearly visible.

(d) Any person who commits vehicular trespass shall be punished pursuant to section 1-9 of this Code.
(Ord. No. 21,987, § 2, 4-20-21)

Sec. 32-613. Drag racing.

(a) Pursuant to A.C.A. § 27-50-309, a person commits drag racing on a public highway if he or she knowingly:

(1) Operates a motor vehicle in a race or drag race on a public highway and commits a violation of A.C.A. § 27-50-302(a)(l)—(8), i.e.,:

a. Racing on a public highway;

b. Reckless driving;

c. Driving with lights off to avoid detection, identification or apprehension;

d. Hazardous driving;

e. Leaving the scene of an accident involving property damage only;

f. Driving the wrong way on a one-way street;

g. Speeding in excess of fifteen (15) miles per hour over the posted speed limit; or

h. Using nitrous oxide in a motor vehicle or motorcycle on a street or highway as prohibited under A.C.A. § 27-37-803; or,

(2) Participates in, promotes, solicits or collects moneys at any location for any race or drag race on a public highway; or,

(3) Rides as a passenger in or on a motor vehicle in any race or drag race on a public highway.

(b) A person commits the crime of observing a drag race as a spectator on a public highway if he or she, with the purpose to observe a drag race on a public highway:

(1) Is knowingly present at, and purposely observes, the drag race or the preparation for the drag race; and,

(2) Purposely demonstrates through active encouragement, assistance, facilitation, urging or a request that the drag race commence.

(c) It shall be unlawful for any person to drive or observe as a spectator any motor vehicle in a race upon any street or public highway in the city and any person in violation thereof shall be punished pursuant to section 1-9 of this Code. (Ord. No. 21,987, § 3, 4-20-21)

Sec. 32-614. Careless driving.

Pursuant to A.C.A. § 27-51-104:

(a) It shall be unlawful for any person to drive or operate any vehicle in such a careless manner as to evidence a failure to keep a proper lookout for other traffic, vehicular or otherwise, or in such a manner as to evidence a failure to maintain proper control on public thoroughfares or private property in the State of Arkansas.

(b) It shall be unlawful for any person to operate or drive any vehicle on the public thoroughfares or private property in the State of Arkansas in violation of the following prohibited acts:

(1) Improper or unsafe lane changes on public roadways; or,

(2) Driving onto or across private property to avoid intersections, stop signs, traffic control devices or traffic lights; or,

(3) Driving in such a manner, or at such a speed, so as to cause a skidding, spinning or sliding of tires or a sliding of the vehicle; or,

(4) Driving too close to, or colliding with, parked or stopped vehicles, fixtures, persons or objects adjacent to the public thoroughfares; or,

(5) Driving a vehicle which has any part thereof, or any object, extended in such fashion as to endanger persons or property; or,

(6) To operate any vehicle in such a manner which would cause a failure to maintain control; or,

(7) To operate or drive a vehicle wherein or whereon passengers are located in such a manner as to be dangerous to the welfare of such passengers; or,

(8) To operate a vehicle in any manner, when the driver is inattentive, and such inattention is not reasonable and prudent in maintaining vehicular control.

(c) It shall be unlawful for any person to drive any motor vehicle in a careless or prohibited manner upon any street, public highway or private property in the City

of Little Rock as defined above and any person in violation shall be punished as set forth in A.C.A. § 27-51-104(c).

(Ord. No. 21,987, § 4, 4-20-21)

Sec. 32-615. Caravanning of vehicles.

(a) A person commits the act of illegal caravanning if he or she knowingly travels with any group of vehicles within the corporate limits of the City of Little Rock, Arkansas, in close proximity to one another, and any vehicle within the group commits two (2) or more traffic violations, such as, but not limited to, careless and prohibiting driving, improper lane usage, racing or reckless driving.

(b) It shall be unlawful for any person to engage in the act of an illegal caravan in the City of Little Rock and any person in violation shall be punished pursuant to section 1-9 of this Code.

(Ord. No. 21,987, § 5, 4-20-21)

Chapter 33

(RESERVED)

[The next page is 2149]

Chapter 34

TRANSPORTATION CODE*

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***Editor's note—**Ord. No. 19051, § 1, adopted Jan. 20, 2004, amended ch. 34 in its entirety and enacted similar provisions as set out herein. The former ch. 34 derived from Ord. No. 17,616, §§ 2A, 2B, 3—7, 9—16, 19—27, 29, 31—41, 43, 45, and 47, adopted Nov. 18, 1997; Ord. No. 17,647, §§ 1—3, adopted Dec. 16, 1997; Ord. No. 18,192, §§ 1—15, adopted Jan. 11, 2000; Ord. No. 18,259, §§ 1—4, adopted April 4, 2000; Ord. No. 18,451, §§ 1—6, adopted March 20, 2001; Ord. No. 18,483, § 1, adopted May 15, 2001; Ord. No. 18,614, § 1, adopted Dec. 18, 2001; and Ord. No. 18,820, §§ 1—3, adopted Feb. 18, 2003.

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ARTICLE I. IN GENERAL

Sec. 34-1. Short title.

This chapter shall be known and cited as the "Little Rock Transportation Code."
(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-2. Scope of chapter.

(a) This chapter shall govern all transportation of passengers for hire by motor vehicle and by certain other means between points within the corporate limits of the city subject to the validly exercised authority of state and federal agencies.

(b) No person, firm, or corporation may transport passengers for hire by motor vehicle or otherwise within the territorial jurisdiction of this chapter, other than pursuant to permit issued by the city under authority hereof. Nothing in this chapter shall prohibit any vehicle from obtaining a dual permit.

(c) Specifically excluded from this chapter are vehicles and drivers thereof provided for use in connection with, attending, or participation in any phase of a funeral or funeral services; vehicles and drivers thereof provided at no charge for use in connection with, attending, or participation in charitable activities; courtesy vehicles as defined herein; and any entity operating under the authority, license or contract granted or funded by the department of human services.

(d) This chapter shall also set forth the requirements necessary to ensure safe, reliable, and cost-effective transportation network services within the corporate limits of the city, and to preserve and enhance access to these for-hire transportation options for residents and visitors to the city even if a transportation network company does not maintain a place of business within the city as required for other forms of for-hire transportation.
(Ord. No. 19051, § 1, 1-20-04; Ord. No. 20,956, § 1, 11-18-14)

Sec. 34-3. Penalty.

Any person, firm or corporation found in violation of any provision of this chapter shall be subject to the penalties in accordance with section 1-9 [of the Code of Ordinances].
(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-4. Definitions.

As used in this chapter, the following terms shall have the following meanings, unless the context clearly indicates that a different meaning is intended:

ADA shall mean the Americans with Disabilities Act of 1990.

Administrator shall mean the city manager or the city manager's designated agent.

Airport shuttle schedule shall mean a fixed preapproved schedule, traveled by an airport shuttle service vehicle to and from the Little Rock National Airport with predetermined times of departure from the airport to a minimum of three (3) hotels and other listed places of business.

Airport shuttle service shall mean the operation of an airport shuttle vehicle over an airport shuttle schedule.

Airport shuttle vehicle shall mean a motor vehicle with a seating capacity minimum of eight (8) and a maximum of no more than fifteen (15) passengers, including the driver; shall be three (3) model years old or newer when initially inspected to be placed into service and shall be removed from service at the end of its eighth model year. Sedans shall be excluded for usage as an airport shuttle vehicle. The vehicle shall prominently display "Shuttle Service" on the front or rear sides of the vehicle. This marking must be permanent.

Airport terminal service is hereby defined to be the provision of public transportation service operated for the purpose of transporting passengers exclusively to and from the Little Rock National Airport terminal building and adjacent parking facilities.

Antique vehicle shall mean a vehicle that is twenty-five (25) years old or older or a vehicle that

is of limited production, outstanding design, or technical achievement, that is recognized nationally as a special interest vehicle.

Board of directors shall mean the city's elected board of directors and mayor.

City shall mean the City of Little Rock, Arkansas.

Controlled substance shall mean a drug, substance, or immediate precursor as listed or defined in schedules I through VI of the Uniform Controlled Substances Act, presently codified as A.C.A. § 5-64-101, as may be amended.

Courtesy vehicle shall mean any motor vehicle operating upon the public streets of the city which is owned or leased by a public or private courtesy vehicle service operator and operated exclusively to provide transportation services to patrons to and from the operator's place of business without charge or other consideration. Such services shall be incidental and complimentary to the operator's primary business endeavor.

Courtesy vehicle service shall mean the operation of a courtesy vehicle pursuant to this chapter. The courtesy vehicle shall be owned or leased by the courtesy vehicle service provider.

Demand-response shall mean a response to any call or hail by a passenger for a ride to a destination that has not been pre-arranged or prescheduled at least one hour in advance of the pick up.

Demand-response service shall mean the provision of a "for-hire" vehicle, which is equipped with a taximeter, responding to a call by a passenger for a ride to a destination, or, alternatively, a passenger being picked-up by a "for-hire" vehicle, which is equipped with a taximeter, and parked in a visible location where potential passengers are expected to congregate.

Director shall mean the department director of the fleet services department.

Driver shall mean any person duly licensed by the state who has registered as a ground transportation service driver with the city and has obtained a ground transportation service driver's permit as required by this chapter, and who has been permitted to drive a ground transportation service vehicle by an operator, or has entered into a written agreement for use of a ground transportation service vehicle with an operator, in accordance with the requirements of this article.

Driver's permit shall mean the permit granted by the city to a person to drive a ground transportation vehicle in the city The permits are to be issued for a specific term not to exceed two (2) years.

Exclusive ride shall mean a ride in which the passenger engaging the ground transportation service vehicle restricts the ride solely to the passenger, or the passenger's party, and the fare is charged at the ceiling rate.

Executive sedan shall mean a sedan vehicle that has a manufacturer's suggested base retail selling price of not less than that of a Cadillac Sedan de Ville, Lincoln Town Car sedan or similar vehicle, excluding the cost of any manufacturer installed options or of any modifications or conversions that were made by other persons following the original assembly of the vehicle by the manufacturer. An executive sedan shall be four (4) model years old or newer when initially inspected to be placed into service and shall be removed from service at the end of its tenth model year.

Extended van shall mean a van with a manufacturer's rated passenger capacity of fifteen (15) persons, including the driver. An extended van shall be four (4) model years old or newer when initially inspected to be placed into service and shall be removed from service at the end of the tenth model year.

Fleet operator shall mean a person operating two (2) or more ground transportation service vehicles.

Fleet operator permit shall mean a permit granted by the city to an operator to operate a ground transportation service providing two (2) or more ground transportation service vehicles.

For-hire shall mean a ground transportation service vehicle which is available for passenger transportation.

Ground transportation service shall mean the transportation of passengers in a for-hire by mo-

tor vehicle and by certain other means between points originating or terminating within the corporate limits of the city and shall include all persons providing taxicab service, limousine service, luxury vehicle service, airport shuttle service, courtesy vehicle service, medical transport service, special paratransit service, tour service, transportation network company service, and all other pre-arranged and demand-response ground transportation services.

Ground transportation service operator shall mean a person holding a ground transportation service permit or license and shall include a fleet operator.

Ground transportation service vehicle shall mean any "for-hire" vehicle operating in the city, including, without limitation, taxicabs, livery vehicles, premium taxicabs, limousines, luxury vehicles, executive sedans, SUVs, antique vehicles, extended vans, airport shuttles, medical transport vehicles, special paratransit vehicles, and tour service vehicles.

Hired shall mean a ground transportation service vehicle which is occupied with a passenger going to a destination requested by the passenger, and the fare is calculated based on mileage traveled or a fixed flat rate.

Holder shall mean a person to whom a ground transportation service operator or driver permit has been issued.

Limousine shall mean an unmarked, large, luxury motor vehicle driven by a chauffeur having a wheelbase of not less than one hundred twenty-five (125) inches, having a partition between the driver and passenger compartment and being of a class and condition commonly associated with luxury markets. An SUV having a wheelbase in excess of its original wheelbase at the time of its original assembly by its manufacturer shall be deemed a limousine for purposes of this chapter. The above vehicles shall be five (5) model years old or newer when initially inspected to be placed into service. Limousines which carry more than fifteen (15) passengers and which are required to satisfy federal safety laws, rules, and regulations shall be exempt from the age restrictions contained herein upon delivery to the administrator of proof that such federal safety laws, rules and regulations have been met with respect to such limousine.

Limousine service shall mean the business of renting or leasing a limousine, including the services of a driver, to a person, solely upon his or her request, or one acting for or on his or her behalf, to be used by the person or persons hiring the vehicle, or under their direction and authority, for the period of time the vehicle is rented or leased. Limousine service must be pre-scheduled at least one (1) hour in advance of the pick-up time.

Livery vehicle shall have the same meaning as premium taxicab.

Luxury vehicle shall mean an executive sedan, SUV, extended van or an antique vehicle and shall not include a limousine. The above vehicles, other than antique vehicles, shall be four (4) model years old or newer when initially inspected to be placed into service and shall be removed from service at the end of their tenth model year.

Luxury vehicle service shall mean the business of renting or leasing a luxury vehicle, including the services of a driver, to a person, solely upon his or her request, or one acting for or on his or her behalf, to be used by the person or persons hiring the vehicle, or under their direction and authority, for the period of time the vehicle is rented or leased. Luxury vehicle services must be prescheduled at least one (1) hour in advance of the pick-up time.

Manifest shall mean a daily record of all trips made by such driver's taxicab showing the time and place of origin of a call, time the call was dispatched and to what driver, and when possible, the address at which the passenger was dropped off.

Mayor shall mean the mayor of the city.

Medical transport service shall mean the business of providing for-hire passenger transportation services to special client groups, between places of residence and medical providers. Services shall be provided through reservation service, subscription service, or contract arrangement on a twenty-four-hour pre-arranged basis. An opera-

tor of such service shall acquire and operate a minimum of two (2) medical transport vehicles as defined in this article.

Medical transport vehicle shall mean any motor vehicle operated exclusively by its owner, or employee of such owner, on a twenty-four-hour pre-arranged schedule as a passenger carrier for hire over the public streets of the city other than a public transit bus and all other forms of ground transportation service vehicle. The requirement of a twenty-four-hour pre-arranged schedule does not preclude the use of such vehicles for medical emergencies. The motor vehicle shall be designed for seven (7) passengers or more, including the driver, shall be four (4) model years old or newer when initially inspected to be placed into service and shall be removed from service at the end of its eighth model year. Vehicles shall be clearly marked with the company name, address, telephone number, and type of service provided.

Operator shall mean the holder of a valid permit for the operation of a ground transportation service vehicle in the city.

Passenger for hire shall mean a person who engages a ride in a ground transportation service vehicle.

Permittee shall mean the person, firm or corporation holding the operator or driver permit issued by the city.

Person shall extend and be applied to firms, corporations, limited liability companies, partnerships, associations, joint ventures, organizations and bodies politic and corporate, or any combination thereof, as well as to individuals.

Preapproved schedule shall mean a ground transportation service operating on a predetermined schedule with fixed pickup and destination points located on a schedule preapproved by, and on file with the administrator.

Pre-arranged or *prescheduled,* shall mean an appointment made by a ground transportation service operator with a passenger to provide ground transportation service that was initiated by a person contacting the ground transportation service operator by telephone, correspondence, oral or written communication.

Premium taxicab or livery vehicle shall mean a sedan-type motor vehicle or SUV equipped with a taximeter and having a seating capacity not in excess of six (6) passengers including the driver and used for the transportation of persons for hire, recognized by the industry as luxury vehicles such as Cadillac and Lincoln, and operating at premium taxicab meter rates. The above vehicles shall be three (3) model years old or newer when initially inspected to be placed into service and shall be removed from service at the end of their eighth model year. The above vehicles shall be deemed to be demand-response service vehicles for purposes of this chapter.

Public transit system shall mean a passenger transportation service operated for the general public at a prescribed fare along established routes on a fixed schedule, and such other special routes and services as may be deemed necessary.

Rate card shall mean a card approved by the city to be displayed in each taxicab reflecting the rates of fare then in force.

Shall is mandatory, not directory.

Solicit or *solicitation,* shall mean to offer or make available in any way, or to communicate to any person, the availability of ground transportation services.

Special paratransit service shall mean the business of providing for-hire passenger transportation services to special client groups, either through reservation service, subscription service, or contract arrangement on a twenty-four-hour pre-arranged scheduled route. An operator of such service shall acquire and operate a minimum of two special paratransit vehicles as defined in this article.

Special paratransit vehicle shall mean any motor vehicle operated exclusively by its owner, or employee of such owner, on a twenty-four-hour pre-arranged schedule as a passenger carrier for hire over the public streets of the city, other than a public transit bus or other ground transportation service vehicle. The requirement of a twenty-four-hour pre-arranged schedule does not preclude the use of such vehicles for medical emergencies. The motor vehicle shall be designed for seven (7) passengers or more, including the driver, except

when such vehicle has been modified to meet the accessibility standards of the ADA, shall be four (4) model years old or newer when initially inspected to be placed into service and shall be removed from service at the end of its eighth model year. Vehicles shall be clearly marked with the company name, address, telephone number, and type of service provided.

Specialized transportation permit shall mean a permit issued by the city for operation of a specialized transportation service.

Specialized transportation service shall mean special paratransit service and medical transport service.

Specialized transportation service vehicle shall mean a vehicle used to provide specialized transportation service.

Specialty transportation shall mean the transportation of passengers for hire upon the public streets of the city by any vehicle which is drawn by horse, mule or other animal, or any other novelty-type vehicle which is not otherwise regulated by this chapter.

SUV shall mean a vehicle that is classified in the United States Environmental Protection Agency's Annual Fuel Economy Guide as a sport-utility vehicle that:

(1) Has a passenger capacity of not less than six (6) persons, nor more than nine (9) persons, including the driver; and

(2) Has a manufacturer's suggested base retail selling price of not less than that of a two-wheel drive Ford Expedition, Chevrolet Suburban, or similar vehicle, excluding the cost of any manufacturer installed options or of any modifications or conversions that were made by other persons following the original assembly of the vehicle by the manufacturer.

An SUV shall be four (4) model years old or newer when initially inspected to be placed into service and shall be removed from service at the end of its tenth model year. Limousines are excluded from the definition of SUV.

Taxi zone shall mean that curb space along the public streets of the city designated by the administrator for the exclusive parking of taxicabs by the proper placement of signs or markers reading "No Parking, Taxi Zone."

Taxicab shall mean motor-driven vehicles clearly marked as such, equipped with a taximeter and having a seating capacity not in excess of eight (8) passengers, including the driver, and used for the transportation of persons for hire. A taxicab shall be four (4) model years old, or newer, when initially placed into service and shall be removed from service at the end of its tenth model year. Taxicabs modified to meet the requirements of the Americans with Disabilities Act of 1990 (ADA), as amended may include motor vehicles designed for fifteen (15) passengers or less, including the driver. Such a vehicle so modified shall not have a seating capacity in excess of eight (8) passengers, including the driver. Unless the context otherwise requires, as used in this chapter, the term "taxicab" shall be deemed to include taxicabs, livery vehicles, premium taxicabs and all other demand-response vehicles not otherwise regulated by this chapter, provided that this definition does not apply to emergency medical health vehicles.

Taxicab service shall mean a passenger transportation service operated in a taxicab permitted pursuant to this article.

Taximeter, meter, or *other electronic device* shall mean a device which mechanically or electronically computes and registers in dollars and cents for viewing by the passenger the fare based upon mileage distance traveled.

Top Light shall mean an instrument or an accessory to be optionally attached to the outside top of a duly licensed taxicab and at a midpoint between the front doors and not more than thirty (30) inches to the rear of the topmost part of the windshield.

Tour service shall mean the transporting of passengers for hire between points within the city, upon a preapproved route or routes, for the purpose of providing sight seeing tours of the city, including stops at various points of public interest, and providing for eventual discharge of the passengers at the place of their point of origin upon completion of the tour.

Tour service vehicle shall mean a vehicle engaged in the business of transporting passengers for hire in accordance with a prearranged agreement between the tour service operator and the passenger, operated on a preapproved route or routes throughout any part of the city, when the primary purpose of the passenger riding in such vehicle is touring and sightseeing. Tour service vehicles shall have seating for ten (10) or more passengers, and shall be designed for ease of loading and unloading passengers. Seating and window configuration shall be arranged to provide good outside visibility to each tour patron.

Transportation network company or *TNC* shall mean an entity licensed or registered to do business within the State of Arkansas which holds a valid permit for a ground transportation service in the city, and which uses a digital network or software application to connect passengers to transportation network company services provided by transportation network company drivers. A transportation network company does not own or operate the vehicles used by its drivers, and is not a taxicab operator as defined in this chapter.

Transportation network company driver or *TNC driver* shall mean an individual who operates a motor vehicle that is:

(1) Owned, leased or otherwise authorized for for-hire use by the individual;

(2) Not a taxicab; and

(3) Used to provide transportation network company services.

Transportation network company services or *TNC services* shall mean transportation of a passenger between points chosen by the passenger and prearranged with a transportation network company driver through the use of a transportation network company digital network or software application. Transportation network company services shall begin when a TNC driver accepts a request for transportation received through the TNC's digital network or software application service, continues while TNC driver transports the passenger in the TNC driver's vehicle, and end when the passenger exits the TNC driver's vehicle. A transportation network company service is not a taxicab or street hail service.

Trip shall mean the origination or termination of a "for-hire" ride within the city limits by a ground transportation vehicle or service provider.

Trip Sheet shall mean a written directive on company stationery directing the driver of a pre-arranged ground transportation service vehicle to pick up a passenger at a predetermined location at a certain time.

Waiting time shall mean the time when a taxicab is not in motion and not engaged by a passenger. Waiting time also shall mean the time consumed while standing at the direction of a passenger or a person who has engaged such taxicab.
(Ord. No. 19051, § 1, 1-20-04; Ord. No. 20,044, §§ 1—19, 11-3-08; Ord. No. 20,814, § 1, 11-5-13; Ord. No. 20,880, §§ 1—4, 6-3-14; Ord. No. 20,956, § 2, 11-18-14; Ord. No. 21,336, §§ 1, 2, 12-6-16; Ord. No. 22,159, §§ 1—6, 8-2-22)

Sec. 34-5. Appointment and authority of inspectors.

(a) The administrator or administrator's designee is hereby empowered to appoint and authorize inspectors for the issuance of citations for violations of the Little Rock Transportation Code, and regulations promulgated pursuant thereto.

(b) The administrator is hereby empowered to appoint and authorize qualified individuals from other governmental departments or entities to issue citations for violations of the Little Rock Transportation Code, and regulations promulgated pursuant thereto.

(c) The administrator or the administrator's designee shall designate in writing the individuals who are authorized to issue citations. This list shall be filed of record with the city clerk.
(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-6. Operation of vehicles for hire on airport property.

(a) Except for airport terminal service, the city shall have exclusive jurisdiction over vehicles for hire operating between the airport facilities and a point or points within the city.

(b) Nothing in this section prohibits the city from contracting with the airport commission to permit the commission to oversee the operation of vehicles for hire on airport property.

(c) Unless the city manager elects to provide a taxicab starter, the airport commission may employ a taxicab starter to be responsible for the supervision of vehicles for hire on airport property, provided that this supervision is consistent with the terms of this chapter and, that any hearings required by this chapter shall be conducted by the city, unless such authority to conduct hearings is expressly delegated by ordinance to the airport commission by the city.

(d) A taxicab starter shall have authority to:

(1) Regulate which taxicab drivers may enter the line waiting to pick up passengers for transportation;

(2) Request any driver to leave the line;

(3) Refuse to place passengers; and

(4) Report violations to the administrator or to appropriate law enforcement officials.

(e) It shall be unlawful for any ground transportation service serving the airport to solicit patrons desiring ground transportation services. Inquiries for general assistance may be extended to patrons as a business courtesy.

(f) The airport commission shall have the authority to adopt and promulgate rules and regulations regarding vehicles for hire operating on airport property, provided that the rules and regulations are consistent with applicable law and the terms of this chapter. The airport commission is required to enforce said rules and regulations and shall provide the rules and regulations to the city manager, or the city manager's designee.
(Ord. No. 19051, § 1, 1-20-04; Ord. No. 20,044, § 20, 11-3-08; Ord. No. 22,159, § 7, 8-2-22)

Sec. 34-7. Prerequisites for ground transportation service at the airport.

No ground transportation service vehicle shall be eligible for service at the airport unless it is authorized to engage in a ground transportation service in keeping with the applicable laws of the state or the city and is plainly marked, numbered, kept clean in appearance and in good working condition. The drivers shall at all times act in a professional manner and practice good hygiene.

Sec. 34-8. Rules and regulations.

The city manager, or the city manager's designee, may adopt and promulgate rules and regulations in connection with the clear marking of taxicabs, trip sheets, vehicle inspections, annual fees for ground transportation service vehicles and courtesy vehicles, section 34-38(d)(5) and section 34-38(d)(6) of this chapter: Such rules and regulations shall not be inconsistent with applicable law or the provisions of this chapter.
(Ord. No. 22,159, § 8, 8-2-22)

Secs. 34-9—34-18. Reserved.

ARTICLE II. REQUIREMENTS

Sec. 34-19. General rules of operation.

(a) *Authorized operation.* No vehicle permitted pursuant to this chapter shall be operated by any person other than the owner of such vehicle or his or her duly licensed authorized agent.

(b) *Passengers limited.* No vehicle permitted pursuant to this chapter shall be operated with more passengers than the stated seating capacity of the vehicle. In addition, it shall be unlawful for the operator of any vehicle to permit any other person to occupy or ride in the vehicle when the same is occupied by a fare-paying passenger or by members of the party of the fare-paying passenger without the consent of such fare-paying passenger.

(c) *Compliance with laws.* All persons, firms or corporations permitted pursuant to this chapter shall comply with and be subject to all laws, rules and regulations of the city and the state. In this regard, said vehicles shall be operated with due respect for the safety, comfort and convenience of passengers and for the safe and careful transportation of property of passengers and the safety of the general public. All reasonable efforts shall be made to promote such safety at all times

and under all conditions. Provided further, no driver shall have authority to stop, block, direct or otherwise inhibit the flow of traffic when entering or departing a public street.

(d) *Loading or unloading passengers.* No person permitted pursuant to this chapter shall stop to load or unload any passenger while situated in an intersection or crosswalk, or in such a manner as to interfere with the orderly flow of traffic. Drivers of vehicles permitted under this chapter shall not receive or discharge passengers in the street, but shall pull up to the sidewalk or, in the absence of a side walk, to the extreme right side of the street, except on one-way streets, and there receive or discharge passengers. Double-parking shall be allowed only when the driver is actively engaged in the loading or unloading of passengers and such parking does not impede the flow of traffic. Every driver of a taxicab parked in a taxi zone shall at all times remain with his or her taxicab. All drivers shall, in the use of the public streets, give careful attention to the rights and needs of the public generally using such streets.

(e) *Solicitation of passengers.* It shall be unlawful for any person, permitted pursuant to this chapter to seek or solicit a passenger or passengers for any vehicle permitted under this chapter, whether or not such vehicle is identified as a ground transportation vehicle, at, in or near any passenger depot, hotel, airport, ship or ferry landing, bus stop or station, or upon any sidewalk or street, or any other place in the city. It shall be unlawful for any person permitted pursuant to this chapter to call "taxicab," "limousine," "hotel," or any other words or gestures that could be construed as soliciting a passenger-for-hire. A violation of this section shall be cause for suspension, for a period not exceeding fifteen (15) days, or revocation, of the driver's permit of the driver of such vehicle. It shall be unlawful for any person operating under a specialized transportation permit or a courtesy vehicle service permit issued pursuant to this chapter to solicit passengers in or upon any city street, area, building or other facility considered to be open to the general public, or to provide demand-response service, as defined in this chapter.

(f) With respect to taxicab operators, livery vehicle operators and premium taxicab operators, such place of business shall be open for a minimum of twenty-four (24) hours a day, seven (7) days a week. Each ground transportation service operator shall provide and keep current with the administrator, the address, telephone number and internet, e-mail or other digital access information, for use by the city.

(g) *Airport shuttle schedules.* There shall be established no more than three (3) airport shuttle schedules for an airport shuttle service. The minimum and maximum rates for this service shall be determined on a periodic basis by the board of directors after a hearing on the issue. Each airport shuttle schedule, and the predetermined departure times of an airport shuttle vehicle from each stop on the airport shuttle schedule, shall be pre-approved by the administrator and made an exhibit to this Code. (Ord. No. 19051, § 1, 1-20-04; Ord. No. 20,044, §§ 21, 22, 11-3-08; Ord. No. 20,956, § 3, 11-18-14; Ord. No. 22,159, § 9, 8-2-22)

Sec. 34-20. Insurance.

(a) *Insurance requirement.* No person, firm or corporation authorized by a permit to this chapter may operate a vehicle for the transportation of passengers within the city, without first securing, and maintaining in force at all times, a commercial auto liability policy insurance policy issued by a company licensed and regulated by the Arkansas Insurance Department or with a surplus lines insurer on the Arkansas Insurance Department maintained list of eligible surplus lines insurers covering each vehicle to be used for the transportation service and in the following amounts:

(1) For taxicab franchises, livery vehicles, premium taxicabs, and all executive sedans and antique vehicles: two hundred fifty thousand dollars ($250,000.00) for the injury or death of any one (1) person and subject to that limit for each person; five hundred thousand dollars ($500,000.00) total liability for any one (1) accident; and two hundred fifty thousand dollars ($250,000.00) for each accident regarding damage to property,

with a maximum of fifty thousand dollars ($50,000.00) deductible coverage per incident. Said insurance in effect shall be for demand-response service vehicles, not scheduled or routed service vehicles, and any vehicle used by a transportation network company driver. It is further provided that for the time period when TNC drivers have logged on to the TNC digital network or software application indicating they are available to receive ride requests until such time as the TNC driver accepts such a request, the TNC driver must be covered by insurance at least in the amount set forth in Arkansas Code 27-22-104. These requirements for coverage shall be satisfied by either: (A) insurance maintained by a TNC driver; (B) insurance maintained by a TNC in the event the insurance maintained by the TNC driver does not provide coverage, or the TNC driver does not otherwise maintain insurance covering this time period; or (C) any combination of (A) and (B).

(2) For SUVs, extended vans, airport shuttle vehicles, and limousines: two hundred fifty thousand dollars ($250,000.00) for the injury or death of any one (1) person and subject to that limit for each person; one million dollars ($1,000,000.00) total liability for any one (1) accident; and five hundred thousand dollars ($500,000.00) for each accident regarding damage to property, with a maximum of twenty-five thousand dollars ($25,000.00) deductible coverage per incident. Said insurance in effect shall be for scheduled or routed service vehicles, not demand-response service vehicles.

(3) For specialized transportation service vehicles and courtesy service vehicles, exclusive of those ground transportation service vehicles, described above: two hundred fifty thousand dollars ($250,000.00) for the injury or death of any one (1) person and subject to that limit for each person; five hundred thousand dollars ($500,000.00) maximum liability for each accident; and two hundred fifty thousand dollars ($250,000.00) for each accident regarding damage to property, with a maximum of twenty-five thousand dollars ($25,000.00) deductible coverage per incident.

(b) *Certificate of insurance.* The liability insurance coverage shall be evidence by a current certificate of insurance covering each vehicle permitted pursuant to this chapter filed annually with the administrator or designated agent. A fleet certificate is acceptable for all fleets operating two (2) more vehicles.

(c) *Notice of insurance policy cancellation to be sent to the city.* Each insurance certificate shall include a representation by the insurance carrier that notice of cancellation will be sent to the administrator or his designated agent at least ten (10) days prior to cancellation. Upon lapse or cancellation of such policy, the permit granted to the person, firm or corporation shall be temporarily suspended pending notice of hearing, and no for-hire transportation services will be provided until the conclusion of such hearing and reinstatement of any suspended permit.

(d) To the extent that the insurance of a transportation network company or a transportation network company driver may be found to cover actions of misconduct by the driver, neither the company nor the driver shall rely upon any language in any contract, corporate or business materials, that would expressly waive for any passenger or any person other than the driver involved in an incident, the right to seek any and all liability, claims or damages arising from or in any way related to the third party transportation provider; for purposes of this subsection, this lack of a waiver applies only to the transportation network company, and the transportation network company driver, and in no way applies to any digital or internet application company whose involvement with a particular ground transportation service is merely to facilitate the internet or software connection necessary to accomplish the for-hire transportation.

(e) *Additional insurance provisions for transportation network companies or transportation network company drivers.* If an accident occurs involving a motor vehicle while it is shown on a list on the software application of a transportation network company as available to provide transportation network company services as defined in this chapter, the transportation network company driver shall provide proof of insurance information to all parties involved in the accident regarding liability insurance for the driver's vehicle and the company at the time of the accident. This information shall include:

(1) The amount of insurance provided by the company, and the amount of insurance provided by the driver including, but not limited to, the name of the insurance company, its location, and contact information necessary to make a claim against the insurance;

(2) The name and address of a responsible person for the company with whom a person involved in an accident, or that person's representative, can discuss the claim with the company.

(Ord. No. 19051, § 1, 1-20-04; Ord. No. 20,044, § 23, 11-3-08; Ord. No. 20,956, § 3, 11-18-14; Ord. No. 20,958, § 1, 11-25-14; Ord. No. 22,159, § 10, 8-2-22)

Sec. 34-21. Americans with Disabilities Act.

All persons, firms or corporations permitted to transport passengers pursuant to this chapter shall comply with the provisions of the Americans with Disabilities Act of 1990, and regulations promulgated pursuant thereto. Specifically, but not inclusive, no private entity providing such transportation services shall discriminate against individuals with disabilities by actions including, but not limited to, refusing to provide service to individuals with disabilities who can use a standard passenger vehicle, refusing to assist with the storing of mobility devices and charging higher fares or fees for carrying individuals with disabilities and their equipment than are charged to other persons.

(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-22. Nontransferability.

No permit granted under this chapter may be sold, assigned, transferred, leased or mortgaged without the approval of the board of directors.

(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-23. Drivers and vehicles to be licensed.

Each driver and vehicle permitted pursuant to this chapter shall be licensed as required by Arkansas law. No driver under the age of twenty-one (21) shall operate such vehicle.

(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-24. Unlawful use.

No person, firm or corporation permitted pursuant to this chapter shall knowingly allow any ground transportation service vehicle or other vehicle permitted under this chapter to be used in the perpetration of a crime or misdemeanor.

(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-25. Driver conduct.

(a) It shall be unlawful for any driver permitted pursuant to this chapter while on duty to drink any intoxicating liquor or be under the influence of any controlled substance, to shout, solicit, or call to prospective passengers, or to disturb the peace in any way.

(b) It shall be unlawful for any driver permitted pursuant to this chapter to smoke in any permitted ground transportation service vehicle.

(Ord. No. 19051, § 1, 1-20-04; Ord. No. 20,044, § 24, 11-3-08)

Sec. 34-26. Apparel to be worn by drivers.

Each permit holder shall have company dress standards for drivers employed by or contracting with the permit holder. The driver shall adhere to the company dress standards. These standards shall be kept on file with the director and shall include the following:

(a) A driver may not wear:

(1) Cut-off pants, shorts, short sets, or sweat pants:

(2) Tank tops, halter tops, collarless shirts, or sleeveless shirts.

(3) Outer apparel made of fishnet or undergarment material.

(b) Shoes must be worn at all times in the manner for which they were designed. A driver may not wear shoes or sandals without socks or hosiery and may not wear beach or shower thongs.

(c) Shirts with shirt-tails must be tucked in.

(d) A driver and the drivers clothing shall conform to basic standards of hygiene and shall be neat, clean and sanitary at all times.

(Ord. No. 19051, § 1, 1-20-04; Ord. No. 20,044, § 25, 11-3-08)

Secs. 34-27—34-37. Reserved.

ARTICLE III. GROUND TRANSPORTATION SERVICE VEHICLES

Sec. 34-38. Authority of director and administrator; operator's and driver's permits, prerequisites; general prohibition; grounds for suspension or revocation of permit.

(a) *Authority of the administrator.*

(1) The administrator shall have jurisdiction over the recommendations for granting or denying operator and driver permits.

(2) Reserved.

(b) *Operator permit.*

(1) *[Vehicle permit required.]* No person shall operate a motor vehicle for the purpose of providing ground transportation services for hire in the city unless an appropriate permit for the vehicle has been issued.

(2) *[Operator permit] required.* No person shall operate or permit a ground transportation service vehicle owned, leased, or controlled by him or her to be operated in the city without having first obtained an operator permit. The operator permit shall be renewable under the provisions of this article. This permit shall be in addition to any licenses which may be required by other local, state and federal laws and regulations. This permit shall be in addition to any "business license" or "privilege license" otherwise required by the city.

(3) *[License required.]* No person not licensed under this article shall display a sign on a motor vehicle reading "taxi," "taxicab," or anything of the same meaning for the purpose of soliciting passengers for hire in the city.

(4) *Application.* No later than fifteen (15) days after receipt of a completed application for an operator permit, the administrator shall notify the applicant, each holder of a current operator permit, and all other interested persons in writing of the date of the hearing on the application, in accordance with A.C.A. §§ 14-57-307 and 14-57-308.

(5) *Permits.* Ground transportation service vehicle permits and courtesy vehicle service permits valid between January 1 and December 31 of any year shall be issued by the city upon approval after the applicant has filed an application for the permit and has shown that the operation of the ground transportation service or courtesy vehicle service will comply with this article and with all applicable laws, regulations and ordinances. The fleet size of any ground transportation service, except courtesy vehicle service, shall be a minimum of two (2) vehicles. No additional vehicles may be added to the fleet of any ground transportation service permit holder, except courtesy vehicle service, without the approval of the administrator. Ground transportation service permit holders shall submit a written request to the administrator for additional permits above the number of vehicle permits approved in the initial or renewal application. Upon approval of additional taxicab permits by the administrator, the administrator will present the request for additional taxicabs to

the board of directors. The board of directors will review each request and either approve or disapprove the request. No request for additional permits will be unreasonably denied.

(6) Nothing in this chapter shall be construed to prohibit discharge within the city limits of any passenger lawfully picked up in another city, municipality, or county and lawfully transported into the city. Notwithstanding any provision of this chapter to the contrary:

a. Any passenger lawfully picked up in another city, municipality, or county and transported to and discharged at any location within the City of Little Rock, may be picked up at the City of Little Rock discharge location and returned to the city, municipality, or county of origin, as long as the for-hire transportation is part of a pre-arranged, round-trip fare pursuant to a written contract and the ground transportation service operator has complied with all of the transportation regulatory requirements of the other city, municipality, or county; and

b. A ground transportation service operator from another city, municipality, or county may pick up a passenger at the Little Rock National Airport and transport said passenger directly to the ground transportation service operator's city, municipality, or county of origin, as long as the ground transportation service operator has complied with all of the regulatory requirements of Little Rock National Airport, the for-hire transportation is part of a pre-arranged, one-way continuous fare pursuant to a written contract, the passenger arrived at the Little Rock National Airport, and the ground transportation service operator has complied with all of the transportation regulatory requirements of the other city, municipality, or county.

(7) Operator permits issued other than the first of the calendar year will pay fees on a pro rata quarterly basis to the end of the year.

(c) *General provisions.* Before any operator permit may be issued, the applicant shall satisfy the following conditions:

(1) *[Compliance with laws, regulations.]* Every operator shall agree to abide by all laws and regulations now in force or hereafter promulgated relating to the conduct of the ground transportation service business in the city.

(2) *[Communication system.]* Every operator shall provide for each ground transportation service vehicle a communication system to be approved by the administrator and comply with FCC regulations.

(3) *[Dispatch system.]* Every fleet operator shall maintain a dispatch system in operation twenty-four (24) hours each day, capable of providing reasonably prompt service in response to requests received by telephone, the internet or other electronic means provided, however, the dispatch system for a specialized transportation service or a limousine service may include an after-hours answering or other call intake service that is available a minimum of twenty-four (24) hours a day, five (5) days a week. The dispatch system shall be approved by the administrator and comply with FCC regulations.

(4) *[Age requirement.]* An operator shall be at least twenty-one (21) years of age.

(5) *[Vehicle inspection, approval.]* The administrator is authorized to make spot inspections of ground transportation service vehicles. The operator shall present the requested vehicle(s) at the place named by the administrator. If the inspection reveals that any such vehicle is not in a reasonably good operating condition,

from the standpoint of the safety, health and comfort of passengers, the vehicle shall be ordered out of service until such time as remedial repairs and corrections have been made. Such vehicle shall be reinspected to determine whether or not proper repairs and corrections have been made. In no case shall the vehicle be permitted to resume its operation until such repairs and corrections have been made and an inspection has been conducted.

(6) *[Permit suspension, revocation.]* If any ground transportation service vehicle operated in the city does not comply with the provisions of this article and established federal, state and local laws, rules and regulations, a hearing may be called by the administrator to determine if the ground transportation service vehicle operator permit should be suspended or revoked. The nonconforming ground transportation service vehicle will be placed out of service until after such hearing has taken place.

(7) *Inspection.* The operator shall inspect ground transportation service vehicles once a week for compliance with all pertinent provisions of this chapter and rules and regulations promulgated pursuant hereto. The driver of the vehicle shall inspect his or her vehicle on a daily basis for compliance with all pertinent provisions of this chapter and rules and regulations promulgated pursuant hereto.

(8) *Accident reports.*

a. When a ground transportation service vehicle is involved in an accident with another vehicle of any kind whatsoever, or with a person, which results in any injury or damage to any person or property, including the ground transportation service vehicle, the driver of the ground transportation service vehicle, if a person other than the permittee, shall report the accident to the permittee without delay. The permittee shall also report the accident to the city within ten (10) business days of the accident and shall include the following information:

1. The owner of the ground transportation service vehicle;
2. The driver's name and his driver's permit number;
3. The date of the accident and a brief description; and
4. The names of any person the permittee or driver have reason to believe might claim personal or property damage as a result of the accident, or, if at the time of the report a claim has been made, the amount of any claim.

b. If the claim is insured or secured by a bond filed in accordance with Arkansas law, the report will also provide verification that the bond has been increased by an amount sufficient to address the claim and maintain the minimum bond required by.

c. When the claim is ultimately resolved, the permittee shall report that the claim has been resolved and if not prevented from doing so by a settlement agreement, any amount paid in resolution of the claim.

d. Any taxi company that maintains commercial insurance with a company licensed and regulated by the Arkansas Insurance Department may comply with subsections a. and b. by providing reports on forms normally used by the insurance company if these forms present substantially the same information required by these subsections.

e. The reports required by this subsection shall be filed as follows:

1. On January 1, April 1, July 1 and October 1 of each year if the permittee utilizes Arkansas law that merely requires the posting of a bond;

2. On January 1 and July 1 of each year if the permittee maintains commercial insurance with a company licensed by the Arkansas Insurance Department of less than the amounts set forth in subsection 3;

3. On January 1 of each year if the permittee maintains commercial insurance with a company licensed by the Arkansas Insurance Department of at least two hundred fifty thousand dollars ($250,000.00) for personal injury with an aggregate per accident of five hundred thousand dollars ($500,000.00), and two hundred fifty thousand dollars ($250,000.00) aggregate per accident for property damage.

f. The refusal of the permittee to provide the information required by this subsection shall be a basis for the revocation of the permittee's ground transportation service permit or franchise.

(9) *Identification.*

a. The administrator shall allocate a sequence of numbers to each operator for the purpose of identifying ground transportation service vehicles. From that sequence, an operator shall allocate a number for each of its ground transportation service vehicles. A list of operating vehicles and vehicles removed from service shall be forwarded to the administrator on a quarterly basis.

b. Both the number and name of the operator shall be affixed to taxicabs in contrasting colors. This number shall be at least three (3) inches in height; letters of the operator name shall be at least one and three-quarter (1¾) inches in height. Livery vehicles and premium taxicabs shall not be required to display the information required by this subsection.

c. The city shall issue a sticker for each ground transportation service vehicle and courtesy service vehicle permitted under this chapter. The sticker shall be attached to the vehicle, as designated by the administrator. Except for taxicabs, no ground transportation service vehicle or courtesy service vehicle permitted pursuant to this chapter shall display a sign, light or other markings on a motor vehicle reading "taxi," "taxicab," "for hire" or anything of the same meaning for the purposes of soliciting passengers on any public street.

(10) *Applications and fees.*

a. Applications for operator permits shall be filed with the administrator. The application shall contain information as required. The annual fee for existing ground transportation operator permits shall be five hundred dollars ($500.00). For new operator permit applications, a nonrefundable one hundred dollar ($100.00) application fee shall accompany the application. Upon approval by the administrator of the new operator permit application, the new operator permit applicant shall submit an additional four hundred dollars ($400.00) to the administrator before a permit may be issued.

b. No vehicle used by a permitted operator for any purpose for less than two (2) weeks is subject to this chapter.

The ground transportation service operator shall notify the director in writing of any such vehicle used by the operator.

(11) *Criteria.* If no transportation network companies are operating within the city, at the hearing on the application, such factors as the following shall be taken into consideration:

a. Financial responsibility and stability of the applicant;

b. Moral character of the applicant;

c. Number of vehicles to be operated;

d. Make, model, type and ownership of the vehicles to be used;

e. Color scheme to be used;

f. Whether taxes have been paid when due;

g. Whether the applicant proposes to own, rent or lease additional vehicles to be used in operating such service;

h. Total number of vehicles in operation;

i. Whether the applicant will operate, and continue to operate, during the time that the operator permit shall remain in effect.

(12) *Operation under one (1) business name.*

a. Only one (1) business name shall be used for any vehicle operating pursuant to a fleet operator permit, regardless of the number of vehicles listed and authorized under the permit, without the express written authorization of the administrator.

b. The administrator shall provide written authorization for a fleet operator to use an additional business name, from the primary name listed on the application for permits, if the operator provides proof that all personnel, drivers, and persons working with the business listed in the fleet operator permit have available to them forms that shall be immediately provided to any person who requests information about the company, and which set forth:

1. The name of the company;
2. The name and address of the agent for service of process, or if there is no agent for service of process, the name and address of the person(s) authorized to accept service of process for the company;
3. The address, telephone number, telefacsimile number and, if available, the e-mail address of the company; and
4. The name of the person(s) to whom a complaint, allegation of loss or injury, or statement of condemnation, can be directed.

(d) *Renewal; delinquent permits, penalty or change in terms of operator permit.*

(1) Operator and vehicle permit fees shall be paid on the basis of the calendar year of January 1 through December 31, and all such permit fees shall be payable on January 1 for the ensuing year.

a. If the permit fees provided for in this article are not paid within thirty (30) days after such becomes annually due, it is hereby declared as delinquent and a penalty of ten (10) percent will be added to the total outstanding balance;

b. In the event the permit fees are not paid within sixty (60) days, an additional ten (10) percent penalty will be added to the total outstanding balance;

c. In the event the permit fees are not paid within ninety (90) days, an additional thirty (30) percent penalty will be added to the total outstanding balance.

(2) Operators shall apply for renewal of their permits at least sixty (60) days before expiration of their permits. Permits shall

be issued for a period of one (l) year. The administrator shall send reminder notices for renewal of operator's permits to all permitted operators ninety (90) days before the expiration of the permit.

(3) An operator desiring a change in the terms or conditions of the permit must file with the administrator at least sixty (60) days before the permit expires a written request stating reasons for the requested changes.

(4) If the administrator determines that a denial of an operator permit renewal is appropriate, the operator can appeal this decision to the board of directors.

(5) If the permit expires through no fault of the holder before a ruling on the approval or denial of the renewal, the holder may continue to operate pending a final decision. The holder shall cease operation of the ground transportation service immediately upon denial of the request for renewal by the board of directors.

(6) Schedule of delinquent permit fees.

a. *Operator permit.*

Day	Balance	Percentage	Penalty Amount	Amount Due
31st day	$500.00	10%	$50.00	$550.00
61st day	$550.00	10%	$55.00	$605.00
91st day	$605.00	20%	$121.00	$726.00

b. *Vehicle permit.*

Day	Balance	Percentage	Penalty Amount	Amount Due
31st day	$50.00	10%	$ 5.00	$55.00
61st day	$55.00	10%	$ 5.50	$60.50
91st day	$60.00	20%	$12.00	$72.00

(e) *Driver's permit.*

(1) *Required.* No person shall operate a ground transportation service vehicle in the city, and no person who owns or controls a ground transportation service vehicle shall permit it to be so operated at any time for hire, unless the driver of said vehicle shall have first obtained and shall then have in force a driver's permit issued under the provisions of this chapter. Every driver holding a permit shall agree to abide by all laws and regulations now in force or hereafter promulgated relating to the conduct of the ground transportation service business in the city.

(2) *Qualifications.* No driver's permit shall be granted unless the applicant has an appropriate and valid driver's license as required pursuant to state law.

(3) *Application.* Any person desiring a driver's permit shall obtain and complete a driver-permit application. The form of such application shall be developed by the administrator and shall include, but not be limited to, the age, name and address of the applicant.

a. *Photographs.* Upon permit renewal or new application, each applicant shall report to the administrator so that a photograph may be taken. The photograph shall be affixed and displayed on the driver permit and kept on file with the administrator. Such photograph shall not be more than thirty (30) days old.

b. *Fee.* A fee of twenty dollars ($20.00) shall be paid to the city at the time the original application is filed.

c. *Temporary permit.* Upon receipt of the application materials, the

administrator may issue the applicant a temporary driver's permit if the information received from the applicant at such time is not sufficient to warrant the issuance of the annual permit, valid for a period of time to be determined by the administrator, but no longer than thirty (30) days after the date of issuance. This permit shall prominently display the words, "Temporary Driver's Permit, NOT VALID AFTER _____" followed by the expiration date of the permit and numbers of the same size. The temporary permit shall be posted in the manner specified below and shall be surrendered immediately to the administrator if the driver's permit is denied.

d. *Approval of application.* If the application is approved, the driver's permit shall be issued in card form designed by the administrator. The photograph of the driver shall be attached to the card. Each driver will be given a driver's permit number which will be on such permit. This card shall be posted in a prominent place in the ground transportation service vehicle as prescribed by the administrator and shall be shown to any passenger, police officer, inspector, airport official, or to the administrator upon request. Only one (1) driver's permit shall be posted in a vehicle at any time. In addition, the administrator may issue an identification tag to the driver containing the driver's photograph and other appropriate information. If issued, the driver shall wear the identification tag on the outside of the driver's clothing at all times while on duty. Drivers of limousines are excluded from the requirement to display the permit in the limousine, but must have the permit available for inspection upon request as stipulated herein.

e. *Acknowledgement of application.* The applicant shall acknowledge with any application that he understands that the driver's permit, if granted, will be for two (2) years from the date of issuance and that no rights or privileges extend past the time designated in the permit.

1. Except in the case of temporary permits, a driver's permit will expire after two (2) years.
2. If a permittee's state driver's license is suspended or revoked by the state, his driver's permit automatically becomes void. A permittee shall notify the administrator and the operator for whom he drives within three (3) days of a suspension or revocation of his driver's license by the state and shall immediately surrender his driver's permit to the administrator.

f. *Falsifying of a driver's permit.* No person, firm or corporation permitted pursuant to this article shall forge, alter or counterfeit a driver's permit or possess a forged, altered or counterfeited driver's permit.

g. *Additional qualifications for taxicab driver's permit.* As additional qualifications for obtaining a taxicab driver's permit, the administrator shall require each new applicant to attend a training course once a year which has been approved by the administrator that provides instruction in each of the following areas:

1. Ground transportation service vehicle rules and regulations;
2. Geography of the city and surrounding areas;
3. Public relations and communication with citizens.

h. *Additional training for taxicab drivers.* When the administrator has reason to believe that a taxicab

driver is in need of training in any area covered under this chapter, the taxicab driver may be required to successfully complete an approved training course. The decision to require a training course under this subsection may be appealed in accordance with section 34-41.

i. *Training cost.* Whenever a new taxicab driver applicant or a taxicab driver attends a training course under subsection h. above, the holder employing or contracting with the applicant or taxicab driver shall pay to the city the cost of the training course, if costs are incurred by the city.

(4) *Investigation.* The ground transportation service operator shall ensure that each driver-permit applicant obtain a criminal record check and a traffic record from each state of the driver applicant's previous and current residence for the thirty-six (36) months preceding the driver-permit application.

Each driver-permit applicant shall return the criminal record check(s) and traffic record(s) to the administrator. Drivers are responsible for reporting to the administrator any change in qualifications or other licensing or permitting information previously supplied within ten (10) days of the change. Failure to do so may lead to revocation of the driver's permit.

a. To qualify for a driver's permit, an applicant shall possess the required state driver's license.

b. A driver applicant shall not have been convicted of more than three (3) moving traffic violations, or involved in more than two (2) automobile accidents in which it could be reasonably determined that the applicant was at fault, within any twelve-month period during the preceding thirty-six (36) months.

c. A driver applicant shall not have been convicted under the laws of any jurisdiction of any of the following offenses and has not received a pardon or order of expungement from such conviction of the offense or offenses equivalent thereto as described in the Arkansas Criminal Code:

1. Criminal homicide as described in chapter 10; A.C.A. § 5-10-101 et seq.; or

2. Kidnapping as described in chapter 11; A.C.A. § 5-11-101 et seq.; or

3. Battery in the first degree or second degree or aggravated assault, as described chapter 13; A.C.A. § 5-13-201; § 5-13-2002; § 5-13-204; or

4. A sexual offense as described in chapter 14; A.C.A. § 5-14-101 et seq.; or

5. Robbery as described in A.C.A. § 5-12-102; § 5-12-103.

d. Additional criminal offenses not listed above shall disqualify a driver applicant if:

1. Less than two (2) years have elapsed since the date of conviction if the applicant was convicted of a misdemeanor offense;

2. Less than five (5) years have elapsed since the date of continuous release on parole, or otherwise, if the applicant was convicted of any felony offense;

e. A driver applicant shall not have been convicted of driving while intoxicated or driving while under the influence of a controlled substance:

1. Within the preceding three (3) years; or

2. More than one (1) time within the preceding five (5) years.

f. A driver applicant shall not be addicted to the use of alcohol or narcotics.

g. A driver applicant shall be subject to no outstanding warrants of arrest.

h. A ground transportation service operator shall report to the administrator any matter the operator is aware of that would disqualify a driver under this chapter.

(5) *Term, renewal.* A permit issued under this section shall be valid for a two-year period, commencing on the date of issue, and extending through the twelve (12) months past the date of issue. Permits shall be renewed in the following manner:

a. Submittal of a permit renewal application to the administrator.

b. Submittal of the required criminal background report(s) and the required traffic record(s).

c. Payment of a twenty dollar ($20.00) renewal fee at the time of submittal of the permit renewal application.

d. The permittee shall comply with all applicable ordinances and regulations of the city.

(6) *Duplicate driver's permit.* If a driver's permit has been lost or destroyed, the payment of ten dollars ($10.00) as a replacement fee shall be required, and the administrator shall issue a duplicate driver's permit.

(7) *Penalty for DUI or DWI.* Revocation of drivers' permits shall be for three (3) years for the conviction of driving while intoxicated or driving while under the influence of drugs or a controlled substance.

(f) *Emergency suspension; grounds for suspension or revocation of permit.* The director or administrator have the power to suspend a permit for three (3) days in the case of an emergency, for violation of rules and regulations as developed by the director or administrator, for violation of this chapter, for violation of any of the criminal laws set forth in subsection (e)(4)c., or for violation of the laws of the United States. The director or administrator shall hold hearings and make recommendations to the board of directors concerning the permanent suspension or revocation of operators' and drivers' permits.

(1) If the administrator determines that a permittee has failed to comply with this chapter, a regulation established under this chapter, the criminal laws of the state set forth in subsection (e)(4)c., or the laws of the United States, the administrator may suspend the permittee's permit for a period not to exceed three (3) days by serving the permittee with a written notice of the suspension. The written notice must include the reason for the suspension, date the suspension begins, the duration of the suspension and a statement informing the permittee of his right of appeal.

(2) A suspension under subsection 38-34(f)(1) may be appealed to the administrator if the permittee requests an appeal in writing at the time the director serves notice of suspension upon the permittee. The period of suspension begins on the date specified by the director, or in the case of an appeal, on the date ordered by the administrator.

(3) The administrator may order an expedited hearing under this section, to be held as soon as possible after the permittee requests an appeal. The administrator may affirm, reverse, or modify the order of the director. The decision of the administrator is final, notwithstanding the appeal provisions of section 34-39 of this chapter.

(4) Except as otherwise stated in this chapter, if the administrator determines that a permittee has failed to comply with this chapter, a regulation established under this chapter, the criminal laws of the state set forth in subsection 34-38(e)(4)b., or the laws of the United States, the

administrator may suspend the permittee's permit for a definite period of time not to exceed sixty (60) days.

(5) The administrator shall suspend the permittee's permit:

a. If at any time the administrator determines that a permittee is not qualified under section 34-38; or

b. By a preponderance of the evidence, the permittee has caused an accident with injury; or

c. By a preponderance of the evidence, the permittee has driven while intoxicated.

(6) A permittee whose permit is suspended shall not drive a ground transportation service vehicle inside the city during the period of suspension.

(7) The administrator shall notify the driver and the operator in writing of a suspension under subsections (f)(4) and (5) and include in the notice the reason for the suspension, the date the administrator orders the suspension to begin, the duration of suspension, and a statement informing the permittee of a right of appeal.

(8) The administrator, after a hearing, may revoke an operator's or driver's permit if the administrator determines by a preponderance of the evidence that the permittee:

a. Operated a vehicle inside the city during a period in which the operator's or driver's permit was suspended;

b. Made a false statement of a material fact in an application for an operator's or driver's permit;

c. Engaged in conduct that constitutes a ground for suspension under subsection 34-38(f), and received either a suspension in excess of three (3) days or a conviction for violation of this chapter, two (2) times within the twelve-month period preceding the occurrence of the conduct;

d. Engaged in conduct that could reasonably be determined to be detrimental to the public safety;

e. Failed to comply with a condition of a temporary permit; or

f. Was convicted of any felony offense while holding an operator's or driver's permit.

(9) A person whose operator's or driver's permit is revoked shall not:

a. Apply for another operator's or driver's permit before the expiration of twelve (12) months from the date the administrator revokes the permit or, in the case of an appeal, the date the board of directors affirms the revocation; or

b. Drive a ground transportation service vehicle inside the city limits.

(10) The administrator shall notify the permittee in writing of a revocation and include in the notice the reason for the revocation, the date the administrator orders the revocation, and a statement informing the permittee of his right of appeal pursuant to section 34-39.

(11) After receipt of notice of suspension, revocation, or denial of permit renewal, the permittee shall, on the date specified in the notice, surrender his operator's or driver's permit to the director and discontinue operating or driving a ground transportation service vehicle inside the city. Notwithstanding subsections (f)(3) and (8), if the permittee appeals the suspension or revocation of a permit under subsections (f)(4), (5), (8) pursuant to section 34-39 of this chapter, the permittee may continue to drive or operate a ground transportation service vehicle pending the appeal unless:

a. The driver is not in compliance with subsection (e)(2) regarding having an appropriate and valid driver's license; or

b. The administrator determines that continued operation by the permittee would impose an immediate threat to public safety.

(g) *Airport shuttle service.* Any person operating an airport shuttle service pursuant to this article shall be restricted to transporting passengers exclusively to or from a place, other than a residence, on a trip that originates or terminates at the Little Rock National Airport Administration Terminal over an airport shuttle schedule approved by the administrator pursuant to subsection 34-19(g). An airport shuttle service shall not accept or discharge passengers at any location other than the pre-approved locations on the airport shuttle schedule.

(h) *Use of scanners prohibited; monitoring of other operators' calls prohibited.* The use of scanners and the monitoring of other operators' calls is hereby prohibited.
(Ord. No. 19051, § 1, 1-20-04; Ord. No. 20,044, §§ 26—37, 11-3-08; Ord. No. 20,738, §§ 1—4, 6-18-13; Ord. No. 22,159, §§ 11—23, 8-2-22)

Sec. 34-39. Appeal.

(a) A person may appeal a denial of a driver's permit application, suspension of an operator's or driver's permit by the administrator, revocation of an operator's or driver's permit by the administrator, or a requirement to take a training course, if such person requests an appeal in writing delivered to the administrator not more than ten (10) business days after notice of the administrator's action is received.

(b) The board of directors shall hear the appeal under this section. The board of directors shall give the appealing party an opportunity to present evidence and make argument in his or her behalf. The formal rules of evidence do not apply to an appeal hearing under this section. The board of directors shall make their ruling on the basis of a preponderance of the evidence presented at the hearing.

(c) The board of directors may affirm, modify, or reverse all or part of the action of the administrator being appealed. The decision of the board of directors is final.
(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-40. Ground transportation service vehicles service.

(a) *Failure to provide service.* All persons engaged in the ground transportation service business in the city shall answer all calls received for services inside the corporate limits of the city and respond as soon as they can do so. Any holder who refuses to accept a call anywhere in the corporate limits of the city at any time the holder has vehicles available, or fails or refuses to provide service for any reason including to accept a more lucrative fare, shall be deemed to have failed to satisfy the public convenience and necessity requirements of the operator permit issued to such holder and shall be in violation of this chapter. It shall be the responsibility of the holder to service the airport terminal with the appropriate number of vehicles. The administrator shall investigate all complaints received regarding compliance with this section. After such investigation, if the administrator determines that any holder has failed to provide the service set forth herein, the holder's permit may be suspended or revoked as provided in subsection 34-38(f). Such suspension or revocation may be appealed pursuant to section 34-39 of this chapter. The foregoing provisions of this section shall not apply to operators of a specialized transportation service which are required by federal or Arkansas state law or regulation to follow different procedures in determining whether a passenger is eligible for service.

(b) *Duty to transport passengers by shortest route.* Each driver of a taxicab in the city shall transport his passengers to definite points designated by the passengers, and he shall take the most direct and shortest route to deliver such passengers safely and expeditiously to their destination.

(c) *Refusal to discharge passenger at designated place.* No driver shall refuse to discharge a passenger at any place designated by the passenger upon the streets of the city, except when the place so designated is at a point not easily accessible by reason of an obstruction, or there are conditions present that render the designated place or access to such designated place unreasonably hazardous.

(d) *Leaving vehicle while waiting at depot, airport, hotel or taxi stand.* No ground transportation service vehicle driver shall leave the vehicle for any purpose, except in emergencies, while the driver is waiting at a depot, airport, hotel or taxi stand. A violation of this section shall be cause for suspension of such driver's permit for a period of two (2) days for the first offense, fifteen (15) days for the second offense, and for the third offense his permit may be revoked. This paragraph is subject to the notice and hearing provisions of subsection 34-38(f) and the appeal provisions of section 34-39 of this chapter. This section does not prohibit a driver from assisting passengers in loading or unloading, or from using nearby restroom facilities.

(e) *Duty to inspect vehicle; procedure when passengers leave articles in ground transportation service vehicles.* Each ground transportation service vehicle driver shall inspect his vehicle before going on duty and after discharging each passenger to see that the vehicle is free of trash and debris, and anything that could cause offensive or objectionable odors. After each passenger reaches his destination, the driver shall check the interior of the vehicle and the trunk to see that no articles have been left in the vehicle. In the event a passenger should leave any article in the vehicle, the vehicle's dispatcher shall be notified immediately by the driver, and the driver shall immediately return the article to the owner, the company dispatcher, or a company representative, within a reasonable period of time before making another trip.

(f) *Manifests.* Every taxicab driver shall make and sign a manifest setting forth the following information. The manifest shall contain a record of all trips made by each taxicab showing the time and place of origin of a call, time the call was dispatched and to what taxicab driver, and when possible, the address of drop off. Taxicab drivers utilizing tablets that electronically record the above information are exempt from the above requirements.

(g) *Trip sheet.* Every pre-arranged ground transportation service vehicle driver shall have a trip sheet in their ground transportation service vehicle. The trip sheet shall contain the time and date the rental of the ground transportation service vehicle was arranged, a client pickup address, the scheduled time for client pickup, the client designation [destination] if possible, and the duration of time for the rental of the ground transportation service vehicle. The trip sheet shall be present in the ground transportation service vehicle during the rental time and shall be presented for inspection upon request by the administrator or any law enforcement agency. Every ground transportation service operator shall collect and file all trip sheets for each ground transportation service vehicle. Ground transportation service operators shall retain all trip sheets for one (1) year.

(Ord. No. 19051, § 1, 1-20-04; Ord. No. 20,044, § 38, 11-3-08; Ord. No. 22,159, §§ 24, 25, 8-2-22)

Sec. 34-41. Stopping, parking, and standing regulated.

(a) When a taxi zone is occupied by the full number of taxicabs or other demand-response service vehicles authorized for such zone, no taxicab or other authorized demand-response service vehicle driver shall loiter or wait near the taxi zone for the purpose of occupying space in such zone. No private vehicle shall, at any time, be permitted to occupy any taxi zone. No taxicab or other authorized demand-response service vehicle driver shall park his vehicle upon any street in any business district at any place other than a taxi zone, except that this provision shall not prevent the driver of any such vehicle from temporarily stopping in accordance with other stopping or parking regulations at any place for the purpose of, and while actually engaged in, loading or unloading passengers. No taxicab or other authorized demand-response service vehicle shall be placed in or shall occupy a taxi zone except for the purpose of being held forth for hire.

(b) Taxicabs or other authorized demand-response service vehicles shall be placed in taxi zones only at the rear (approach) end and shall be moved toward, and to the front of, taxi zones immediately if space is available or when space becomes available by the departure or movement of preceding vehicles. Nothing contained herein

shall prohibit a driver from removing his vehicle from a taxi zone regardless of the position or place of the vehicle in such zone.
(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-42. Rates of fare.

(a) An operator of a for-hire vehicle other than a taxi or a vehicle driven pursuant to the ordinances for transportation network services shall not charge a fare for operating a vehicle in the city except as provided for in this chapter. A holder may propose a change in the rates of fare by filing the proposal with the administrator for consideration by the board of directors.

(b) The board of directors shall hold a hearing to consider the proposed change in rates of fare. After the hearing, the board of directors may approve, disapprove, or modify the proposed change.

(c) For a vehicle operated pursuant to the ordinances for a transportation network company, the rates will be determined in accordance with those ordinances.

(1) For a taxi operator, a change in rates may occur after forty-eight (48) hours notice to the city manager and the administrator has been provided; and

(2) For a vehicle operated pursuant to the ordinances for a transportation network company, the rates will be determined in accordance with those ordinances.

(Ord. No. 19051, § 1, 1-20-04; Ord. No. 20,978, § 1, 12-16-14; Ord. No. 22,637, § 1, 7-15-25)

Sec. 34-43. Rates and additional charges.

(a) It shall be unlawful for any person owning, operating, driving or in charge of any ground transportation service vehicles for hire in the city to drive or operate such vehicle, or to use or advertise in connection therewith the word "taxi," "taxicab," "or "cab," unless such vehicle is equipped with a taximeter according to the provisions of this chapter.

(b) Meter rates shall be used exclusively by all taxicabs, or other demand-response service vehicles, except as otherwise provided in this section. The minimum or maximum rates (according to class of service) shall apply to all ground transportation service vehicles permitted or operating within the city limits effective as of the date of this chapter:

(1) Exclusive ride.

a. A taxicab ceiling rate may be charged if posted in the individual taxicab. The ceiling rate may be increased from the initial meter charge at increments established in accordance with this Code.

1. Initial meter charge ..... $ 3.25 to include the first one-eighth mile

2. Each additional one-eighth mile .. $0.32

b. Livery vehicle and premium taxicab minimum rate; not less than a minimum rate of:

1. Initial meter charge ..... $ 6.00

2. Charge per mile . $ 3.00

c. All other demand-response ground transportation service providers; Not less than a minimum rate of:

1. Initial meter charge ..... $ 6.00

2. Charge per mile . 3.00

(2) No more than two dollars ($2.00) per additional person shall be charged.

(3) Waiting-time ceiling rate shall not exceed twenty-two dollars ($22.00) per hour and shall be calculated on the meter.

(4) A surcharge of two dollars ($2.00) may be charged to each load for trips originating at the Little Rock National Airport only.

The meter shall be turned on once the passenger enters the vehicle and before the trip begins. Passengers shall pay only the fare which appears on the meter. If no fare appears on the meter, the passenger's ride shall be free.

(c) An airport shuttle service shall charge a minimum per person flat fare rate of thirteen dollars ($13.00). An airport shuttle service may charge a minimum per person flat rate of six dollars fifty cents ($6.50) for transportation service of a passenger traveling one mile or less to or from a place, other than a residence, on a trip that originates or terminates at the Little Rock National Airport administration terminal. The airport shuttle service may charge a group fare rate of thirty dollars ($30.00) for families of four (4) or more persons. The airport shuttle service fare structure shall apply to all passengers for hire transported by the airport shuttle service. Rates and maps of approved airport shuttle schedules and routes which show specific approved pickup and drop-off locations, and the approved departure times from each location shall be posted prominently at the Little Rock National Airport. Rates, specific time schedules, and routes, which show specific pickup and drop-off locations, shall also be posted at participating hotels or made available to passengers upon request. Rates, and any subsequent changes thereto, shall be approved by the board of directors and filed with the administrator. Schedules and routes, and any subsequent changes thereto, shall be approved by the administrator.

(d) The limousine fare shall be a minimum fee of fifty dollars ($50.00) per hour with a minimum of two (2) hours for rental of the vehicle and the service of its driver. Limousine fares shall be approved by the board of directors. No soliciting or street-side pickups of passengers are allowed.

(e) The luxury vehicle fare shall be a minimum fee of thirty dollars ($30.00) for the first hour and twenty-five dollars ($25.00) for each additional hour thereafter, with a minimum of one (1) hour for rental of the vehicle and the service of its driver. Luxury vehicle fares shall be approved by the board of directors. No soliciting or street-side pickups of passengers are allowed.

(f) At no time shall any person operating a courtesy vehicle collect a fare or other form of compensation from a passenger for transportation services. Courtesy vehicles shall prominently display in each vehicle a statement clearly indicating transportation of patrons is at no charge. Nothing in this article is intended to preclude voluntary tipping.

(g) Specialized transportation service operators may collect a fare based on a ten-dollar minimum charge. Such fares shall be approved by the board of directors. The owner may enter into fixed-rate, fixed-term contracts negotiated between any third party or parties, provided that such contracts have a term of not less than ninety (90) days. The contract shall be for the provision of transportation on a per-passenger flat-rate basis and shall be filed with the administrator as a matter of record.

(h) An operator may make special contractual arrangements with persons at fares other than those set forth by this article; provided, however, such fares shall not be less than ninety (90) percent of the rates required by this chapter. If the contract is for a period longer than thirty (30) days, the contract shall be in writing and a copy thereof filed with the administrator. Such contractual arrangements shall be entered into before leaving the point of departure.

(i) A ground transportation service operator providing ground transportation services pursuant to a contract with any local, state or federal government agency shall not be required to follow the rate provisions set forth in this section.

(Ord. No. 19051, § 1, 1-20-04; Ord. No. 19,411, § 1, 9-20-05; Ord. No. 19,966, § 1, 5-6-08; Ord. No. 19,983, § 1, 6-17-08; Ord. No. 20,044, § 39, 11-3-08; Ord. No. 20,978, § 2, 12-16-14; Ord. No. 22,493, § 1, 8-6-24)

Sec. 34-44. Display of rate schedule.

(a) A taxicab operator shall provide the driver of each taxicab operating under its authority a printed card or sticker containing the approved rates of fare. The form and content of the card or sticker are subject to regulation by the administrator.

(b) While operating a vehicle, the taxicab driver shall prominently display the rate card or sticker inside the taxicab in a manner approved by the administrator so that it can be easily read by passengers occupying the taxicab.

(c) These signs shall be displayed and shall be identical in all respect to those approved by the administrator. No signs or other matter shall be affixed to the windshield, windows or other parts of the taxicab except as may be authorized by the administrator or required by state or federal law.
(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-45. Fare collection procedures.

(a) It shall be the duty of the driver to call to the attention of passengers the amount registered on the taximeter or rate card for vehicles not equipped with a taximeter, and the taximeter, if the vehicle is so equipped, shall not be changed to the "vacant" position until after the fare is paid.

(b) Upon request by a person paying a fare, the driver shall give the person a legible receipt that indicates the name of the holder under whom the vehicle is operated, the driver's name, vehicle number, an itemized list of charges, total amount of fare paid and the date of payment.

(c) An operator shall provide each of its drivers with printed receipt forms adequate for providing the information required in subsection (b) of this section.
(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-46. Application for additional vehicles; hearing.

An operator operating ground transportation service vehicles in the city may file with the administrator an application for an increase in the number of vehicles operated by such operator in accordance with standards adopted in subsection 34-38(d)(3). The application shall set forth:

(1) That the applicant is in compliance with the statutes of the State of Arkansas and the United States, and the ordinances, rules and regulations of the city pertaining to the operation of ground transportation service vehicles;

(2) The number of ground transportation service vehicles operated by the applicant;

(3) The number of additional vehicles requested by the applicant;

Upon the filing of such application, a hearing regarding the application shall be conducted by the administrator. All persons interested in or affected by such application may appear in person or by representatives at such hearing and introduce evidence and be heard in support of, or in opposition to, such application. The administrator shall make a recommendation to the board of directors regarding the application. No request for an increase in the number of vehicles operated by such operator will be unreasonably denied.
(Ord. No. 19051, § 1, 1-20-04; Ord. No. 22,159, § 26, 8-2-22)

Sec. 34-47. Reserved.

Editor's note—Ord. No. 22,159, § 27, adopted Aug. 2, 2022, repealed § 34-47, which pertained to the increase in number of ground transportation service vehicles by ordinance or resolution; judicial review of necessity, and derived from Ord. No. 19051, § 1, adopted Jan. 20, 2004.

Sec. 34-48. Rules and regulations for transportation network companies and for transportation network company drivers.

(a) A transportation network company is not subject to the demand-response provisions of this chapter. In addition, the following are required:

(1) *Requirement for transportation network company permit.* A person shall not operate a transportation network company that conducts business within the corporate limits of the city without first having obtained a permit from the city.

(2) *Requirement for transportation network company driver permit.* A person shall not provide any ground transportation service as a transportation network company driver within the corporate limits of the city without having first obtained a permit from the city, provided within fourteen (14) days after simultaneous notice to the city and the driver by a transportation network company that the potential driver has fulfilled all company and city requirements, the driver shall physically obtain a driver's permit from

the city which will be maintained on the driver's person, and will receive city signage instruction for the automobile that designates it as an TNC vehicle.

(3) A transportation network company driver shall possess a valid Arkansas driver's license.

(b) *Criminal background check.*

(1) If a TNC does not have a local place of business in the city that is open twenty-four (24) hours a day, seven (7) days a week, then at least a criminal background check shall be conducted through the Arkansas State Police on any potential driver, and any driver who has a conviction, which has not received a pardon or order of expungement, for the offenses listed in subsection 34-38(e)(4)c of this Code;

(2) A TNC may maintain such a record at its own corporate location, provided that the record shall be made available to the city within one (1) day of a request by the city manager, administrator or chief of police;

(3) Nothing in this Code protects a TNC from any requirement to release documents pursuant to the Arkansas Freedom of Information Act, and failure to comply with the Public Records Act, as determined by the city or by an Arkansas court of competent jurisdiction, shall lead to the immediate suspension of the TNC permit, and all TNC driver permits for drivers who operate within the city.

(c) *Annual permit fee.* The city shall issue a permit to each applicant that meets the requirements for a transportation network company or transportation network company driver as set forth in this article, upon the fulfillment of all requirements within this chapter of the Little Rock Code, and upon the payment of the relevant annual permit fee of five thousand dollars ($5,000.00).

(d) *Agent for service of process.* The transportation network company shall maintain an agent for service of process within the State of Arkansas.

(e) *Fare charged for for-hire transportation network company services.* Notwithstanding any other provision of this Code, a transportation network company may charge a fare for the services provided to passengers; provided that, if a fare is charged, the TNC shall disclose to passengers the fare calculation method on its website or within the software application service. The TNC shall also provide passengers with the applicable rates being charged and the option to receive an estimated fare before the passenger enters the TNC driver's vehicle. The TNC shall disclose to the passenger prior to making a reservation if it is operating during a period of dynamic pricing. The TNC driver shall also provide the passenger an option to be notified when the time of dynamic pricing is no longer in effect. In addition to this notice, the TNC shall contact the passenger as soon as practicable of this same information.

(f) *Identification of transportation network company vehicles and drivers.* The TNC's software application or website shall display a picture of the TNC driver, and the license plate number of the motor vehicle utilized for providing the TNC service before the passenger enters the TNC driver's vehicle.

(g) *No cash trip; electronic receipt.* Because no cash trip is allowed to a TNC or a TNC driver, then within a reasonable period of time following the completion of a trip, a TNC shall transmit an electronic receipt to the passenger that lists:

(1) The origin and destination of the trip; and

(2) The total time and distance of the trip; and

(3) An itemization of the total fare paid, if any.

(h) A transportation network company shall adopt a policy of non-discrimination on the basis of destination, race, color, national origin, religious belief or affiliation, sex, disability, age, sexual orientation or sexual identity with respect to passengers and potential passengers and notify TNC drivers of such policy.

(i) TNC drivers shall comply with all applicable laws regarding non-discrimination against passengers or potential passengers on the basis of destination, race, color, national origin, religious belief or affiliation, sex, disability, age, sexual orientation or gender identity.

(j) TNC drivers shall comply with all applicable laws relating to accommodation of service animals.

(k) Neither a TNC, nor a TNC driver, shall impose additional charges for providing services to persons with physical disabilities because of those disabilities. A TNC shall provide passengers an opportunity to indicate whether they require a wheelchair-accessible vehicle. If a TNC cannot arrange wheelchair-accessible TNC service in any instance, it shall direct the passenger to an alternate provider of wheelchair-accessible service, if available.

(l) *Records.* A transportation network company shall maintain:

(1) Individual trip records for at least one (1) year from the date each trip was provided; and

(2) TNC driver records at least until the one (1) year anniversary of the date on which a TNC driver's activation on the TNC digital network has ended.

(m) *Transportation network company driver.* A TNC driver shall:

(1) Have submitted an application to the TNC which includes, but is not limited to, information as to age, address, Arkansas driver's license number, motor vehicle registration, and all automobile liability insurance required by this chapter; and

(2) Be at least twenty-one (21) years old; and

(3) Not knowingly allow any ground transportation service vehicle, or other vehicle permitted under this chapter, to be used in the perpetration of a crime or misdemeanor; and

(4) Not drink any intoxicating liquor or be under the influence of any controlled substance, or alcohol, while operating pursuant to a TNC driver's permit; and

(5) Shall not shout, solicit, or call to prospective passengers, or disturb the peace in any way; and

(6) Exclusively accept rides booked through a TNC's digital network or software application service and shall not solicit or accept street hails; and

(7) Not smoke, or allow any person to smoke, in a TNC driver's vehicle while it is used to provide ground transportation services; and

(8) Comply with the city dress code for for-hire drivers as set forth in section 34-26 of this Code; and

(9) Otherwise meet all the requirements and be subject to the provisions for a driver's permit set forth in section 34-38, provided that as to inspections, the TNC driver's vehicle is not subject to weekly operator inspections, but may be required to undergo an inspection in accordance with the provisions of this Code at any time the administrator believes it is appropriate to do so; and

(10) Not operate an automobile more than seven (7) years old pursuant to the provisions of this subsection; and

(11) Shall have the right to an appeal as set forth in section 34-39 of this Code.

(Ord. No. 20,956, § 5, 11-18-14)

Sec. 34-49. Access to information for law enforcement purposes.

Any ground transportation service allowed to provide for-hire transportation service within the corporate limits of the city, shall cooperate to the fullest extent possible with law enforcement to provide information about specific transportation incidents. If local, state or federal law enforcement asserts that access to such information must be immediate to prevent a reasonable threat of death, or serious physical injury, to a person, then the company, or any driver, shall

provide that information immediately. Any ground transportation company that is permitted by the city shall provide an emergency contact number to the Little Rock Police Department for such instances. In all other law enforcement situations, such information shall be provided promptly in response to the issuance of a prosecuting attorney's subpoena to review such records. Any failure to comply with this subsection shall result in the immediate suspension of both operator and driver permits for any ground transportation service.
(Ord. No. 20,956, § 6, 11-18-14)

Secs. 34-50—34-58. Reserved.

ARTICLE IV. TAXIMETERS

Sec. 34-59. Design and testing of taximeters.

(a) [Designation and approval.] The administrator shall designate and approve the type of taximeter to be used.

(b) [Accurate information.] A taximeter shall accurately register in legible figures total miles, paid miles, number of fare units, number of trips, total fares and extra units. Figures denoting each passenger's fare shall be illuminated when the taximeter is activated.

(c) [Status indicator.] A taximeter shall be equipped to indicate whether the taxicab is engaged or vacant.

(d) [Placement.] Taximeters shall be installed as approved by the administrator and shall be placed in the driver's compartment with the face of such taximeter upon which the fare is recorded directed toward the passenger compartment, so positioned as to be wholly visible and clearly discernible by a passenger sitting in any of the rear seats. The face of the dial of every taximeter shall be illuminated so that the figures may be read by any passenger.

(e) The meter mechanism shall be sealed within the case unless it is an electronic tablet meter.

(f) [Testing.] The administrator may order a taximeter to be tested at any time, and a holder shall make the vehicle available for testing when so ordered. The actual cost of such tests and inspections shall be borne by the holder.
(Ord. No. 19051, § 1, 1-20-04; Ord. No. 22,159, § 26, 8-2-22)

Sec. 34-60. Reserved.

ARTICLE V. TOUR SERVICE

Sec. 34-61. Tour service operator vehicle permits authorized; display of permit.

(a) *Permits authorized.* The number of tour service vehicle permits for each tour service operator shall not exceed five (5); provided, however, that as tour service vehicle permits are not renewed or applied for, the city board of directors, in its discretion, may reduce the number of tour service vehicle permits from time to time. Tour service operators shall provide to the administrator a schedule of tour service vehicles showing the model, type and make of each tour service vehicle the operator desires to permit and place into operation.

(b) *Permits to be displayed in tour service vehicle.* A permit issued under this section shall be displayed in the tour service vehicle where the permit will be in clear view of the passengers at all times. Alternatively, the permit may be displayed on the person of the tour guide in such a manner as to be in clear view of the public.
(Ord. No. 20,044, § 40, 11-3-08)

Sec. 34-62. Tour service driver's permit.

(a) *Required.* No person shall operate a tour service vehicle in the city, and no person who owns or controls a tour service vehicle shall permit it to be so operated at any time for hire, unless the driver of said vehicle shall have first obtained and shall then have in force a driver's permit issued under the provisions of this chapter. Every driver holding a permit shall agree to abide by all laws and regulations now in force or hereafter promulgated relating to the conduct of the tour service business in the city.

(b) *Qualifications.* No driver's permit shall be granted unless the applicant has an appropriate and valid driver's license as required pursuant to state law.

(c) *Application.* Any person desiring a driver's permit shall obtain and complete a driver permit application. The form of such application shall be developed by the administrator and shall include, but not be limited to, the age, name and address of the applicant.

(1) *Photographs.* Upon permit renewal or new application, each applicant shall report to the administrator so that a photograph may be taken. The photograph shall be affixed and displayed on the driver permit and kept on file with the administrator. Such photograph shall not be more than thirty (30) days old.

(2) *Fee.* A fee of twenty dollars ($20.00) shall be paid to the city at the time the original application is filed.

(3) *Temporary permit.* Upon receipt of the application materials, the administrator may issue the applicant a temporary driver's permit if the information received from the applicant at such time is not sufficient to warrant the issuance of the annual permit, valid for a period of time to be determined by the administrator, but no longer than thirty (30) days after the date of issuance. This permit shall prominently display the words, "'Temporary Driver's Permit, NOT VALID AFTER _____" followed by the expiration date of the permit and numbers of the same size. The temporary permit shall be posted in the manner specified below and shall be surrendered immediately to the administrator if the driver's permit is denied.

(4) *Approval of application.* If the application is approved, the driver's permit shall be issued in card form designed by the administrator. The photograph of the driver shall be attached to the card. Each driver will be given a driver's permit number which will be on such permit. This card shall be posted in a prominent place in the tour service vehicle as prescribed by the administrator and shall be shown to any passenger, police officer, inspector, airport official, or to the administrator upon request. Only one (1) driver's permit shall be posted in a tour service vehicle at any time. In addition, the administrator may issue an identification tag to the driver containing the driver's photograph and other appropriate information. If issued, the driver shall wear the identification tag on the outside of the driver's clothing at all times while on duty.

(5) *Acknowledgment of application.* The applicant shall acknowledge with any application that he understands that the driver's permit, if granted, will be for one (1) year from the date of issuance and that no rights or privileges extend past the time designated in the permit.

a. Except in the case of temporary permits, a driver's permit will expire after one (1) year.

b. If a permittee's state driver's license is suspended or revoked by the state, his driver's permit automatically becomes void. A permittee shall notify the administrator and the operator for whom he drives within three (3) days of a suspension or revocation of the applicant's driver's license by the state and shall immediately surrender his driver's permit to the administrator.

(6) *Falsifying of a driver's permit.* No person, firm or corporation permitted pursuant to this article shall forge, alter or counterfeit a driver's permit or possess a forged, altered or counterfeited driver's permit.

(d) *Investigation.* The tour service operator shall ensure that each driver permit applicant obtain a criminal record check and a traffic record from each state of the driver applicant's previous and current residence for the thirty-six (36) months preceding the driver permit application. The driver permit applicant shall return the criminal record check(s) and traffic record(s) to the administrator. Drivers are responsible for reporting to the ad-

ministrator any change in qualifications or other licensing or permitting information previously supplied within ten (10) days of the change. Failure to do so may lead to revocation of the driver's permit.

(1) To qualify for a driver's permit, an applicant shall possess the required state driver's license.

(2) A driver applicant shall not have been convicted of more than three (3) moving traffic violations, or involved in more than two (2) automobile accidents in which it could be reasonably determined that the applicant was at fault, within any twelve-month period during the preceding thirty-six (36) months;

(3) A driver applicant shall not have been convicted of any of the following offenses and has not received a pardon or order of expungement from such conviction:

a. Criminal homicide as described in chapter 10 of the Arkansas Criminal Code; A.C.A. § 5-10-101.

b. Kidnapping as described in chapter 11 of the Arkansas Criminal Code; A.C.A. § 5-11-101.

c. A sexual offense as described in chapter 14 of the Arkansas Criminal Code; A.C.A. § 5-14-101.

d. An assault or battery offense as described in chapter 13 of the Arkansas Criminal Code; A.C.A. § 5-13-201.

e. Robbery as described in chapter 12 of the Arkansas Criminal Code; A.C.A. § 5-12-101.

f. Burglary as described in chapter 39 of the Arkansas Criminal Code; A.C.A. § 5-39-101.

g. Theft as described in chapter 36 of the Arkansas Criminal Code, A.C.A. § 5-36-101.

h. Fraud as described in chapter 37 of the Arkansas Criminal Code, A.C.A. § 5-37-101.

i. Tampering with a governmental record as described in chapter 54 of the Arkansas Criminal Code, A.C.A. § 5-54-101.

j. Public indecency, prostitution or obscenity as described in chapters 68 and 70 of the Arkansas Criminal Code, A.C.A. § 5-68-401, and A.C.A. § 5-70-101.

k. The transfer, carrying, or possession of a weapon in violation of chapter 73 of the Arkansas Criminal Code, A.C.A. § 5-73-101.

l. Criminal attempt to commit any of the offenses listed in subsections a. through k.

(4) Additional criminal offenses not listed above shall disqualify a driver applicant if:

a. Less than two (2) years have elapsed since the date of conviction if the applicant was convicted of a misdemeanor offense;

b. Less than five (5) years have elapsed since the date of conviction if the applicant was convicted of a felony offense; or

c. Less than five (5) years have elapsed since the date of the last conviction if, within any twenty-four-month period, the applicant has two (2) or more convictions of any misdemeanor offenses.

(5) A driver applicant shall not have been convicted of driving while intoxicated or driving while under the influence of a controlled substance:

a. Within the preceding three (3) years; or

b. More than one (1) time within the preceding five (5) years.

(6) A driver applicant shall not be addicted to the use of alcohol or narcotics.

(7) A driver applicant shall be subject to no outstanding warrants of arrest.

(8) A tour service operator shall report to the administrator any matter the operator is aware of that would disqualify a tour service driver under this chapter.

(e) *Term, renewal.* A driver permit issued under this section shall be valid for a one-year period commencing on the date of issue, and extending through the twelve (12) months past the date of issue. Driver permits shall be renewed in the following manner:

(1) Submittal of a driver permit renewal application to the administrator;

(2) Submittal of the required criminal background report(s) and the required traffic record(s);

(3) Payment of a twenty dollar ($20.00) renewal fee at the time of submittal of the permit renewal application.

(4) The permittee shall comply with all applicable ordinances and regulations of the city.

(f) *Duplicate driver's permit.* If a driver's permit has been lost or destroyed, the payment of ten dollars ($10.00) as a replacement fee shall be required, and the administrator shall issue a duplicate driver's permit.

(g) *Penalty for DUI or DWI.* Revocation of drivers' permits shall be for three (3) years for the conviction of driving while intoxicated or driving while under the influence of drugs or a controlled substance.

(h) *Emergency suspension; grounds for suspension or revocation of permit.* The director or administrator have the power to suspend a permit for three (3) days in the case of an emergency, for violation of rules and regulations as developed by the director or administrator, for violation of this chapter, for violation of any of the criminal laws set forth in subsection (d)(3), or for violation of the laws of the United States. The director or administrator shall hold hearings and make recommendations to the board of directors concerning the permanent suspension or revocation of operators' and drivers' permits.

(1) If the director determines that a permittee has failed to comply with this chapter, a regulation established under this chapter, the criminal laws of the state set forth in subsection (d)(3), or the laws of the United States, the director may suspend the permittee's permit for a period not to exceed three (3) days by serving the permittee with a written notice of the suspension. The written notice must include the reason for the suspension, date the suspension begins, the duration of the suspension, and a statement informing the permittee of his right of appeal.

(2) A suspension under subsection (h)(1) may be appealed to the administrator if the permittee requests an appeal in writing at the time the director serves notice of suspension upon the permittee. The period of suspension begins on the date specified by the director, or in the case of an appeal, on the date ordered by the administrator.

(3) The administrator may order an expedited hearing under this section, to be held as soon as possible after the permittee requests an appeal. The administrator may affirm, reverse, or modify the order of the director. The decision of the administrator is final, notwithstanding the appeal provisions of section 34-63.

(4) Except as otherwise stated in this chapter, if the administrator determines that a permittee has failed to comply with this chapter, a regulation established under this chapter, the criminal laws of the state set forth in subsection (d)(3), or the laws of the United States, the administrator may suspend the permittee's permit for a definite period of time not to exceed sixty (60) days.

(5) The administrator shall suspend the permittee's permit:

a. If at any time the administrator determines that a permittee is not qualified under this article; or

b. By a preponderance of the evidence, the permittee has caused an accident with injury; or

c. By a preponderance of the evidence, the permittee has driven while intoxicated.

(6) A permittee whose permit is suspended shall not drive a tour service vehicle inside the city during the period of suspension.

(7) The administrator shall notify the driver and the operator in writing of a suspension under subsections (h)(4) and (5) and include in the notice the reason for the suspension, the date the administrator orders the suspension to begin, the duration of suspension, and a statement informing the permittee of a right of appeal.

(8) The administrator, after a hearing, may revoke an operator's or driver's permit if the administrator determines by a preponderance of the evidence that the permittee:

a. Operated a tour service vehicle inside the city during a period in which the operator's or driver's permit was suspended;

b. Made a false statement of a material fact in an application for an operator's or driver's permit;

c. Engaged in conduct that constitutes a ground for suspension under this subsection, and received either a suspension in excess of three (3) days or a conviction for violation of this chapter, two (2) times within the twelve-month period preceding the occurrence of the conduct;

d. Engaged in conduct that could reasonably be determined to be detrimental to the public safety;

e. Failed to comply with a condition of a temporary permit; or

f. Was convicted of any felony offense while holding an operator's or driver's permit.

(9) A person whose operator's or driver's permit is revoked shall not:

a. Apply for another operator's or driver's permit before the expiration of twelve (12) months from the date the administrator revokes the permit or, in the case of an appeal, the date the board of directors affirms the revocation; or

b. Drive a tour service vehicle inside the city limits.

(10) The administrator shall notify the permittee in writing of a revocation and include in the notice the reason for the revocation, the date the administrator orders the revocation, and a statement informing the permittee of his right of appeal pursuant to section 34-63.

(11) After receipt of notice of suspension, revocation, or denial of permit renewal, the permittee shall, on the date specified in the notice, surrender his operator's or driver's permit to the director and discontinue operating or driving a tour service vehicle inside the city. Notwithstanding subsections (h)(3) and (8), if the permittee appeals the suspension or revocation of a permit under subsections (f)(4), (5), and (8) pursuant to section 34-63 of this chapter, the permittee may continue to drive or operate a tour service vehicle pending the appeal unless:

a. The driver is not in compliance with subsection 34-62(b) regarding having an appropriate and valid driver's license; or

b. The administrator determines that continued operation by the permittee would impose an immediate threat to public safety.

(Ord. No. 20,044, § 40, 11-3-08)

Sec. 34-63. Appeal.

(a) A person may appeal a denial of a driver's permit application, suspension of an operator's or driver's permit by the administrator, or revocation of an operator's or driver's permit by the administrator, if such person requests an appeal in writing delivered to the administrator not more than ten (10) business days after notice of the administrator's action is received.

(b) The board of directors shall hear the appeal under this section. The board of directors shall give the appealing party an opportunity to present evidence and make argument in his or her behalf. The formal rules of evidence do not apply to an appeal hearing under this section. The board of directors shall make their ruling on the basis of a preponderance of the evidence presented at the hearing.

(c) The board of directors may affirm, modify, or reverse all or part of the action of the administrator being appealed. The decision of the board of directors is final.
(Ord. No. 20,044, § 40, 11-3-08)

Sec. 34-64. Route submission; published literature.

(a) *Route submission.* Each tour service operator shall submit to the administrator a map or maps clearly showing tour service vehicle routes to be utilized by the tour service. If a tour service changes its route(s) during the year, updated map(s) shall be submitted to the administrator. For purposes related to public safety, the administrator, in consultation with other appropriate city departments, will consider the traffic impact of proposed vehicle size, routes, and time in the approval process.

(b) *Published literature.* Published literature provided by tour service operators and tour guides shall describe specifically any and all tour services offered and the rates to be charged therefore on regularly scheduled tours. In the event any tour is offered for hire during which a tour guide will, for any period of time, leave the immediate premises of the tour which he or she is conducting during the conduct of the tour, the published literature provided by tour service operators and tour guides shall specifically state same and shall disclose that the tour guide will be replaced by a different tour guide. Tour descriptions shall specify if unguided, live or automated guides are furnished. Description of tours shall be prominently posted at the tour service business location and readily available in printed form to the public.
(Ord. No. 20,044, § 40, 11-3-08)

Sec. 34-65. Rates of fare; rate card required.

(a) *Rates of fare generally.* Tour service operators may collect a prearranged, "per-passenger" fee or "per-hour" fee for a specifically defined tour. Routes, times, and rates shall be submitted to the administrator for approval prior to implementation. Tour service operators shall notify the administrator in writing within forty-eight (48) hours of any changes in the rate schedule filed with the administrator.

(b) *Rate card required.* Applicable approved rates shall be prominently posted at the tour service business location, readily available in printed form to the public. No operator or driver of a tour service vehicle shall charge a greater sum for the use of the tour service vehicle than in accordance with the published and advertised rates; provided, however, that the provisions of this subsection shall not apply to customized or specialized tours which are not a part of regularly scheduled tours of the tour service, but for which are separately contracted.

(c) *[Meters, etc.]* Tour service operators shall not use or install meters or any other electronic device in tour service vehicles to calculate fares.
(Ord. No. 20,044, § 40, 11-3-08)

Sec. 34-66. Stands generally.

(a) *Nonexclusive stands.* In the discretion of the board of directors, upon the recommendation of the city manager, non-exclusive tour service vehicle stands may be designated for the parking of tour service vehicles within the corporate limits of the city. Whenever any such stand is established, the stand may be used by tour service vehicles on a rotation basis of first-come-first-served. Time limitations for parking at stands established by the board of directors shall be designated in each individual case as ordinances are passed designating the stands.

(b) *[Stopping, parking.]* Tour service vehicles shall not stop or park in taxi stands or bus stops.
(Ord. No. 20,044, § 40, 11-3-08)

Sec. 34-67. Limitations on engines running; idling.

(a) *Limitations on engines running.* No tour service vehicle may stop or park with engines idling except to load and unload passengers.

(b) *Idling.* No person driving or in charge of a tour service vehicle shall permit a tour service vehicle to stand unattended without first stopping the engine, locking the ignition, effectively setting the brakes, and, when the vehicle is standing upon any grade, turning the front wheels to the curb or side of the highway.
(Ord. No. 20,044, § 40, 11-3-08)

Sec. 34-68. Prohibitions of tour service drivers and tour guides.

(a) *[Diversion of passengers, customers.]* It shall be unlawful for any driver of a tour service vehicle or any tour guide to attempt to divert passengers or tour guide customers from one hotel, restaurant or business to another, or to use a tour service vehicle while for hire for any purpose other than as a tour and sightseeing vehicle.

(b) *Driver not to leave vehicle while waiting to be hired; tour guide not to leave tours during conduct of same.* It shall be unlawful for any driver of any tour service vehicle to leave the immediate premises of the tour service vehicle while the vehicle is parked in a tour service vehicle stand or while waiting to be hired. It shall be unlawful for any tour guide to leave the immediate premises of the tour which he or she is conducting during the conduct of said tour unless and until said tour guide is replaced by another tour guide. Published literature provided by tour service operators and tour guides shall specifically describe said conduct as provided in this subsection.
(Ord. No. 20,044, § 40, 11-3-08)

Sec. 34-69. Property left in tour service vehicle by passenger.

Any tour service vehicle driver or tour guide discovering any personal property in the tour service vehicle which was lost or left therein by a passenger of such tour service vehicle shall report the loss and shall deliver all of the property to the office of the tour service operator within twelve (12) hours after the discovery of the property. A written report of the property lost or left in the tour service vehicle shall include brief particulars to enable the tour service operator to identify the owner of the property. The tour service operator shall retain the property on behalf of the owner for at least sixty (60) calendar days.
(Ord. No. 20,044, § 40, 11-3-08)

Sec. 34-70. Safe mechanical condition of tour service vehicles required.

Every tour service vehicle operated on the streets of the city shall be maintained in a safe mechanical condition, with all safety equipment remaining intact and operative at all times when the tour service vehicle is in service. No vehicle shall be permitted as a tour service vehicle except fully enclosed, self-propelled vehicles.
(Ord. No. 20,044, § 40, 11-3-08)

Sec. 34-71. Safety equipment required; speaker system.

(a) *Lights.* Each tour service vehicle shall be equipped with electronically powered lights and reflectors when operating during the hours of darkness.

(b) *Fire extinguisher and first aid kit.* Each tour service vehicle shall have on board at all times a four-pound all-purpose fire extinguisher and a first aid kit.

(c) *Portable/stationary speaker system.* Each tour service vehicle shall have available a suitable speaker system for tour lectures.

(d) *Loudspeakers.* It shall be unlawful to operate loudspeakers outside tour service vehicles within the city. Loudspeakers may be operated within the confines of tour service vehicles for the sole benefit of the passengers within the confines of the vehicle.
(Ord. No. 20,044, § 40, 11-3-08)

Sec. 34-72. Tour service vehicle seating capacity.

No tour service vehicle shall exceed the passenger capacity of such vehicle, and the tour service operator shall register such vehicle passenger capacity with the administrator.
(Ord. No. 20,044, § 40, 11-3-08)

Sec. 34-72.1. Discharge of passengers from tour service vehicle.

It shall be unlawful for passengers to be discharged from the tour service vehicle at points other than those at which the passengers are picked up; provided, however, that should a tour service operator have preapproved routes under which "pickups" are made at several points within the city, then passengers who are picked up and carried over an entire sightseeing route of not less than ten (10) miles in length may be discharged at any of the scheduled discharge points within the city without constituting a violation of this section.

(Ord. No. 20,044, § 40, 11-3-08)

Editor's note—Ord. No. 20,044, § 40, adopted Nov. 3, 2008, added §§ 34-73 and 34-74 to the Code as part of a new Art. V. Inasmuch as said sections already had been assigned to the existing Art. VI, the new sections were redesignagted as 34-72.1 and 34-72.2 at the editor's discretion.

Sec. 34-72.2. Traffic and operating rules.

(a) *Rules of the road.* Tour service vehicles shall operate on the streets of the city in accordance with the rules of the road as provided by the laws of the state and the ordinances of the city. Tour service vehicles shall be operated in a manner which maintains a lawful speed consistent with the normal flow of traffic upon the city's streets. Tour service drivers shall have no authority to stop, block, direct or otherwise inhibit the flow of traffic when entering or departing a public street or highway within the city and shall otherwise comply with all traffic and parking regulations. Tour service vehicles shall move to the edge of the street pavement before stopping, standing, parking, loading or unloading passengers. It shall be unlawful for tour service vehicles to operate at such speeds or motions as to obstruct traffic within the city; provided, however, that this section shall not be construed to require the violation of any state, federal, or municipal traffic law or regulation.

(b) *Operating rules.* No tour service vehicle driver shall collect fares, make change, or take on or discharge passengers while the tour service vehicle is in motion. No tour service vehicle may pause or stop for the sole purpose of narrating a tour.

(Ord. No. 20,044, § 40, 11-3-08)

Editor's note—See editor's note following § 34-72.1.

ARTICLE VI. AIRPORT TERMINAL SERVICE

Sec. 34-73. Control and jurisdiction.

The Little Rock Municipal Airport Commission is hereby granted administrative control and jurisdiction over airport terminal service as defined in this chapter.

(Ord. No. 19051, § 1, 1-20-04)

Secs. 34-74—34-84. Reserved.

ARTICLE VII. PUBLIC TRANSIT SYSTEM

Sec. 34-85. Control and jurisdiction.

The Central Arkansas Transit Authority (the "authority") is hereby granted the sole and exclusive control and jurisdiction over the public transit system.

(Ord. No. 19051, § 1, 1-20-04)

Secs. 34-86—34-96. Reserved.

ARTICLE VIII. SPECIALTY TRANSPORTATION

Sec. 34-97. Control and jurisdiction.

The board of directors may grant by resolution one or more franchises for the operation of specialty transportation as defined by this article. Said specialty transportation shall operate for the purpose of transporting passengers for hire along a specified route(s); provided, that the duration, terms, rates, conditions and procedures for granting and operating such franchise(s) are clearly stated in the franchise agreement and are fair, reasonable and in the public interest as determined by the board of directors.

(Ord. No. 19051, § 1, 1-20-04)

Secs. 34-98—34-100. Reserved.

ARTICLE IX. HORSE-DRAWN VEHICLES

Sec. 34-101. Short title.

The City Transportation Code shall be amended to add this article which shall be known as the "Horse-Drawn Vehicles Code."
(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-102. Definitions.

The following words and phrases, when used in this article, shall have the following meanings:

Certificate holder means any person holding one (1) or more certificates of convenience and necessity issued by the board of directors for the operation of horse-drawn vehicles.

Director means the director of the fleet services department or his designee.

For hire means the provision of services, or the offering of the services, of a horse-drawn vehicle for the payment of money or other consideration.

Horse-drawn vehicle means a wagon, coach or other vehicle which is powered in whole or in part by one (1) or more equine animals, but does not include such a vehicle that is used only as part of a properly permitted parade.

Person means any person, firm, corporation, partnership, entity, or association of persons of any kind.
(Ord. No. 19051, § 1, 1-20-04; Ord. No. 20,044, § 41, 11-3-08)

Sec. 34-103. Application for certificate of convenience and necessity—Requirements.

Unless otherwise authorized by the board of directors, there shall only be three (3) certificates of convenience and necessity granted for the operation of horse-drawn carriages in the city. Any person desiring to secure a certificate of convenience and necessity shall submit an application addressed to the director and shall pay a one-hundred-dollar nonrefundable application fee. This application shall be in writing, verified by the affidavit of the applicant, or if the applicant is a corporation, partnership, entity, or association of persons of any kind, by its duly authorized officer or agent, and shall provide the following facts and any other information required by regulations promulgated by the director:

(1) The full name and address of:

   a. The applicant if the applicant is an individual.

   b. Each partner if the applicant is a partnership.

   c. Each officer and director if the applicant is a corporation, entity, or association of persons of any kind.

(2) What, if any, previous experience the individual applicant, or if the applicant is a partnership, the partners, or if the applicant is a corporation or other association of persons, the officer and directors have had in horse-drawn vehicle operations.

(3) The number of such vehicles the applicant desires to operate.

(4) The passenger capacity of each vehicle.

(5) The insurance to be carried, the amount of the insurance and the name and address of the company issuing the policy.

(Ord. No. 19051, § 1, 1-20-04; Ord. No. 20,044, § 42, 11-3-08)

Sec. 34-104. Issuance of a certificate of convenience and necessity.

(a) The director may issue any or all of the three (3) certificates of convenience and necessity authorized by this article if it is determined that the application is in compliance with the terms and conditions set forth in section 34-113, as long as once a year the director submits a resolution for board approval that ratifies the issuance or renewal of the certificate. If the certificate is issued prior to the adoption of such a resolution, the applicant may operate at its own peril if it is otherwise in compliance with all terms and conditions of this article and the attached rules and regulations, as long as the applicant agrees immediately to cease operations should the board of

directors fail to ratify the issuance, or the renewal, of a certificate of convenience and necessity.

(b) If the director denies an application for a certificate of convenience and necessity, the applicant may appeal to the board of directors by filing an appeal with the city clerk no later than three (3) days after receipt of notice from the director that the application has been denied. The board shall hold a public hearing on whether to grant the certificate, and shall determine whether the applicant has met all of the criteria set forth in this article. Notice of the public hearing shall be provided to the applicant at least three (3) business days before the hearing, and shall be noted on the agenda for the board meeting at which it is scheduled. The time and place of the hearing, and the manner by which it shall be conducted, shall be determined by the board of directors. The board may deny the application for a certificate of convenience and necessity if it determines that:

(1) The applicant is not in compliance with the terms and conditions of this article;

(2) The applicant has failed to comply with the terms and conditions of similar ordinances, rules or regulations in other cities;

(3) The applicant has ever been convicted of any federal, state, or local law or regulation designed to prevent cruelty to animals, even if such conviction has been expunged because of the successful completion of a period of probation;

(4) The applicant has ever failed to fulfill any financial obligations associated with the operation of a horse-drawn carriage attraction, the care of the horses, the payment of license or inspection fees, or the payment of legitimate claims against the applicant arising out of the operation of a horse-drawn carriage; or

(5) The board determines that at the time of the application, an additional certificate of convenience and necessity would not be in the best interests of the city.

(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-105. Procedure to increase the number of certificates.

(a) Only the board of directors has the authority to increase the number of certificates of convenience and necessity authorized by this article. Upon an application for such an increase, the board shall first direct the city manager, after consultation with the director, to determine if a need exists for additional certificates. If the city manager concludes that an increase in certificates is appropriate, the board shall be provided with a report to that effect which sets forth the manager's findings. If the board agrees that additional certificates are appropriate, then it shall schedule a public hearing to discuss the issue. The time, place and manner of the hearing, and the manner in which the hearing is conducted, shall be determined by the board of directors provided the hearing must have been advertised at least once in a daily newspaper no less than seven (7) nor more than fourteen (14) days prior to the date set for the hearing.

(b) If the city manager concludes that an increase in certificates is not appropriate, the board shall be provided with a report to that effect which sets forth the basis for the manager's conclusions. This report shall be made during a regular meeting of the board of directors and notice that the report is being presented shall be advertised at least once in a daily newspaper no less than seven (7) nor more than fourteen (14) days prior to the presentation of the report. Copies of the report shall be available to the public no less than two (2) business days prior to the hearing. After receiving the report, the board shall permit time for interested parties to comment upon the manager's conclusions. If the board, after receiving the report and any comments, decides to consider the issuance of additional certificates, then it shall set an additional public hearing, to be held during a regular meeting of the board of directors, to discuss the following issues:

(1) Whether the demands of the public require the proposed or additional horse-drawn vehicle service within the city, or in any particular part of the city.

(2) Whether the existing service is sufficient to properly meet the demands and needs of the public.

(3) Whether any identified applicant for an additional certificate is financially responsible.

(4) Whether increased traffic congestion on the streets will result by the increase of additional certificates, or whether the safe use of the streets by the public, both vehicular and pedestrian, will be preserved by the grant of any additional certificate.

(5) Whether any other factor, deemed relevant by the board of directors, suggests that the issuance of, or refusal to issue, additional certificates is advisable or necessary.

(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-106. License fees and requirement to display license.

The annual license fee for a certificate of convenience and necessity is seventy-five dollars ($75.00) for each horse-drawn vehicle owner and fifty dollars ($50.00) for each horse-drawn vehicle in use.

This license and attachments shall be in the possession of the operator of the horse-drawn vehicle at all times when the vehicle is on a public right-of-way. This license fee shall be due and payable on the first day of January of each year, and shall expire one (1) year thereafter, but the license may be renewed from year to year, upon the payment of the required fee.

(Ord. No. 19051, § 1, 1-20-04; Ord. No. 20,044, § 43, 11-3-08)

Sec. 34-107. Discontinuance of service—Transfer of certificates.

(a) Any person licensed to operate horse-drawn vehicles who intends to discontinue the use of any or all vehicles with a certificate of convenience and necessity shall immediately file with the director a statement, verified by affidavit, of the number of vehicles to cease operation, and the reasons for such action. The failure to file this statement within one (1) business day from the day use of the horse-drawn vehicle is discontinued shall lead to suspension of any other permits issued to the certificate holder. The withdrawal of any vehicle from operation, for the purpose of conditioning, overhauling or repairing shall not be considered discontinuing operation under this section. If proper notice is given that use of a particular horse-drawn vehicle will be discontinued, and if a substitute vehicle complies with the provisions of this article, then the director shall transfer the certificate of convenience and necessity to the new vehicle.

(b) No holder of a certificate of convenience and necessity may sell, assign, lease or otherwise transfer the rights and privileges granted thereunder to any other person without first having been granted written permission to do so by the board of directors.

(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-108. Revocation or suspension of certificate of convenience and necessity, licenses and horse-drawn vehicle driver permits.

(a) Any certificate of convenience and necessity, horse-drawn vehicle licenses and horse-drawn vehicle driver permits which have been issued to any person may be suspended by the director upon a reasonable belief that there is good cause for such a suspension, and may be revoked after a public hearing on the issue has been held. Except for suspension because of issues of public safety, any revocation shall be effective upon the expiration of three (3) days after the mailing of such notice to the certificate, license or permit holder. For revocations based upon public-safety violations, the revocation shall be effective immediately upon such a finding by the director, provided written notice is promptly mailed to the certificate, license or permit holder. In addition to public safety concerns, and the other reasons set forth in this article, the director may revoke a certificate of convenience and necessity if the certificate holder has failed, or shall fail, to file with the secretary of state any report required by Arkansas law.

(b) Any person whose certificate of convenience and necessity, horse-drawn vehicle license or horse-drawn vehicle driver permit has been revoked by the director may appeal such revocation to the board of directors by giving notice in writing to the director within ten (10) days of the date of mailing of such notice to the certificate, license or permit holder as set out above, provided that the holder shall not be permitted to operate during the pendency of an appeal if the revocation is based upon a public safety violation.

(c) Notice of suspension shall be sent by registered mail, return receipt requested, to the listed office of the certificate, license or permit holder. A copy of the suspension shall be provided to the chief of police, and shall be publicly posted at the office of the director. In addition, the director shall attempt to contact the certificate, license or permit holder by telephone, or telefacsimile, on the date the suspension is issued.
(Ord. No. 19051, § 1, 1-20-04; Ord. No. 20,044, § 44, 11-3-08)

Sec. 34-109. Safety and health.

(a) All carriages shall display the international sign for slow-moving vehicles on the rear of such vehicle.

(b) All restrictions and requirements for motorized vehicles contained in city ordinances and state statutes shall apply to horse-drawn vehicles except those which by the nature of horse-drawn vehicles, could have no application.

(c) No horse-drawn vehicle shall operate during non-holiday weekday rush hours of 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m.

(d) No child under the age of twelve (12) years old may ride in a horse-drawn vehicle unless there is also in that vehicle a supervising adult (a person at least eighteen (18) years of age who has charge of the child or children). The supervising adult is responsible for maintaining control over the child at all times; failure to do so will be grounds for the operator of the vehicle to stop the vehicle at the nearest safe place and require the adult and all children accompanying that person to leave the vehicle.

(e) Each certificate holder is required to have and maintain an office within Pulaski County to which can be directed any reports of lost articles, complaints, inquiries, and related matters, and shall maintain a listing in such business directories as are commonly available to the public.
(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-110. Insurance required—Accident/incident report.

(a) Every applicant for a license to operate a horse-drawn vehicle, whether the vehicle is to be operated by the owner or some other person, in addition to the other requirements of this chapter shall maintain and file with the director for each vehicle to be operated a policy of commercial general liability insurance which meets the requirements of this chapter and any applicable regulations promulgated by the director.

(b) Insurance required by this part shall be carried in a firm which has been duly licensed or permitted to do an insurance business in the state, and shall be kept and maintained continually in force and effect so long as the applicant shall be licensed to operate vehicles on the streets of the city.

(c) Insurance as required herein shall be a policy of liability insurance in the sum of three hundred thousand dollars ($300,000.00) because of bodily injury per person in any one (1) accident, with an aggregate of six hundred thousand dollars ($600,000.00) per incident.

(d) There shall be attached to all liability insurance policies issued pursuant to the requirements of this part, the following endorsement, or its equivalent:

> "In consideration of the premium stated in the policy to which this endorsement is attached, the company hereby waives a description of the vehicles to be insured hereunder and agrees to pay any final judgment for personal injury, including death, resulting therefrom, or damage to property, caused by any and all vehicles or equine animals operated by the assured pursuant to the horse-drawn vehicle license issued by the City of Little Rock, within the limits set forth in the schedule shown hereon, and further agrees that upon its failure to pay

any such final judgment, the judgment creditor may maintain an action in any courts of competent jurisdiction to compel such payment. Nothing contained in the policy or any endorsement thereon, nor the violation of any of the provisions thereof by the assured, shall relieve the company from liability hereunder or from the payment of such judgment. The policy to which this endorsement is attached shall not expire, nor shall cancellation take effect until after ten days' notice in writing by the company shall have been given to the Director of the Parks Department in the City of Little Rock at its office in City Hall, said ten days notice to commence to run from the date notice is actually received at the office of the Director. Attached to and forming a party of policy number _____, issued by Company to _____."

(e) The certificate holder, on or before the fifth day of each month, shall file with the director a report showing the number of accidents or incidents, if any, in the preceding month, in which any horse-drawn vehicle or equine animal owned and/or operated by him was involved, the nature of the damage, if any, to person or property resulting therefrom, the name and address of all persons who have outstanding claims because of any horse-drawn vehicle accident, or because of any incident in which a person was kicked, bitten, or stepped on by the equine animal in such a manner as to cause injury to the person, and whether any claims were settled during the preceding month.

(f) The failure to file the required report within the time provided for, or the filing or causing or intentionally permitting the filing or causing the filing of a false report, shall be a violation of this article and shall also be grounds for suspension and revocation of the certificate holder's certificate of convenience and necessity.

(g) If any policy of insurance covering any or all of the vehicles, authorized to be operated under a certificate of convenience and necessity expires, and the operator fails to replace it immediately with another policy of insurance fully complying with the provisions of this article, the certificate of convenience and necessity and the licenses issued thereunder shall be ipso facto suspended. The certificate of convenience and necessity may be reinstated by the board of directors upon application, with or without a hearing, upon compliance in full with all the provisions of this article. If the board of directors reinstates the certificate of convenience and necessity, the director, upon notice from the board, shall reinstate the license.

(h) It shall be unlawful for any person to operate or cause to be operated any horse-drawn vehicle for hire upon any public street in the city unless the required policy of insurance for the vehicle shall have been filed with the director, and shall be in full force and effect.

(i) In the event of any final judgment against the owner or operator of any horse-drawn vehicle for injury to or death of, any person, or damage to property from the negligence of the owner or operator or for any reason regardless of fault, remaining unsatisfied for a period of thirty (30) days, the board of directors, upon complaint of the owner of the judgment, or of any other person shall forthwith revoke the certificate of convenience and necessity and all vehicle licenses of the owner or operator.
(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-111. Stops and stands.

(a) The director, with the approval of the director of the public works department, parking division, if in the public right-of-way, is authorized and empowered to establish designated stops and stands for horse-drawn vehicles, and to issue permits for such stands.

(b) For the purpose of taking on and discharging passengers, a horse-drawn vehicle shall stop at the far corner of all intersections, and while so stopped shall keep as close to the right-hand curb as practicable, and shall take on and discharge passengers as quickly as possible, so as not to unreasonably interfere with traffic.
(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-112. Teasing or harassment of equine animals prohibited.

It shall be unlawful for any person to tease, torment, or otherwise harass any equine animal

being used as a draft animal under the terms of this article. Prohibited activity shall include, but not be limited to, striking, kicking, or throwing objects of any type at the animal, or taking any action with the purpose of spooking, stampeding or startling the animal.
(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-113. Special provisions for specialty horse-drawn vehicles.

(a) A certificate of convenience and necessity is not required for a horse-drawn carriage that is used only for specialty rides. A specialty ride is a ride that occurs on a special occasion, such as a wedding, and the operator of the vehicle does not operate more than four (4) times a week in any given week. Notwithstanding the fact a certificate is not required, a horse-drawn vehicle operator who provides specialty rides shall:

(1) Comply with all other provisions of this article, including but not limited to insurance requirements, and the applicable rules and regulations for horse-drawn vehicles;

(2) Be accompanied by a following vehicle that protects the horse-drawn vehicle from traffic;

(3) Obtain a city business license for this service; and

(4) Agree immediately to cease operations if the director, upon reasonable belief, notifies the operator that the right to operate on the streets of the city has been suspended because of a violation of the applicable regulations approved by this article.

(b) If a person operating under this section is notified by the director to cease operations, and the person wishes to appeal that decision, the procedure set forth in section 34-108 shall be followed.
(Ord. No. 19051, § 1, 1-20-04)

Sec. 34-114. Initial rules and regulations.

(a) The initial set of regulations shall be according to the attachment to this article. Nothing in the inclusion of these initial regulations prohibits the director from amending, deleting, or adopting additional regulations as set forth in this article, provided that before the end of any year in which such changes have been made, the board of directors shall, by ordinance, incorporate these changes as a part of this Code.

(b) The initial rules and regulations are as follows:

CITY OF LITTLE ROCK DEPARTMENT OF PARKS AND RECREATION
REGULATIONS FOR HORSE-DRAWN CARRIAGES

Section 1. General. The director of the fleet services department shall promulgate, administer and enforce these rules and regulations. The purpose of these rules and regulations is to aid in the implementation, interpretation and enforcement of the ordinance to permit operation of horse-drawn carriages in Little Rock.

Section 2. Definitions. The following words and phrases, when used in this chapter, shall have the following meanings:

A. *Certificate holder* means any person holding one (1) or more certificates of convenience and necessity issued by the board of directors for the operation of horse-drawn vehicles.

B. *Director* means the director of the fleet services department, or his designee.

C. *For hire* means the provision of services, or the offering of the services, of a horse-drawn vehicle for the payment of money or other consideration.

D. *Horse-drawn vehicle* means a wagon, coach or other vehicles which are powered in whole or in part by one (1) or more equine animals, but does not include such a vehicle that is used only as part of a property permitted parade.

E. *Leather diaper* means a manure bag, often made of synthetic leather, that is attached to the shafts on one (1) end and to the breeching on the horse harness on the other end. Most of weight of the diaper is borne by the shafts rather than the horse.

F. *Person* means any person, firm, corporation, partnership or association of persons of any kind.

Section 3. Applicability. These regulations shall apply to horse-drawn vehicles for hire in the City of Little Rock.

Section 4. Application for certificate of convenience and necessity. An application for a certificate of convenience and necessity shall be addressed to the director. This application shall be in writing, verified by the affidavit of the applicant, or if the applicant be a corporation, partnership or association of persons of any kind by its duly authorized officer or agent, and shall state the following facts:

A. The full name and address of:

(1) The applicant, if the applicant is an individual;

(2) Each partner, if the applicant is a partnership; or

(3) Each officer and director, if the applicant is a corporation, entity or association of persons of any kind.

B. What, if any, previous experience the individual applicant, or if the applicant is a partnership, the partners therein have had, or if the applicant is a corporation or other association of persons, the officer and directors have had in horse-drawn vehicle operations;

C. The number of such vehicles the applicant desires to operate;

D. The passenger capacity of each vehicle;

E. The amount of insurance to be carried and the company issuing the policy;

F. A full-color photograph of the horse and carriage.

Section 5. Safety and health.

A. All animals used to draw vehicles for hire in the city shall be made available for examination by a veterinarian experienced in the treatment of horses and mules upon reasonable demand by the director. Failure to allow such examination shall be grounds for suspension of the operating permit issued hereunder.

B. Horse-drawn vehicles shall not operate during the nonholiday weekday rush hours of 7:00 a.m. to 9:00 a.m. and 4:00 p.m. to 6:00 p.m. except upon approval of the board of directors. Horse-drawn vehicles shall not operate in the River Market area of downtown on July 4, December 31, or upon specific days as indicated to certificate holders by the director.

C. Each certificate holder is required to have and maintain an office to which can be directed any reports of lost articles, complaints, inquiries, and related matters, and shall maintain a listing in all such business directories as are commonly available to the public.

D. Each certificate holder shall maintain an emergency telephone number where the owner or manager may be contracted in case of an emergency.

E. The holder of the certificate of convenience and necessity shall have a veterinarian readily available to assist and come to the aid of any injured horse or mule.

F. No equine animal teams shall be used in the downtown area for normal rides for hire.

G. Each certificate holder shall maintain records of the date and hours worked by each equine animal.

H. No equine animal shall work at a pace faster than a walk; a slow trot will be allowed on inclines.

Section 6. Horse-drawn vehicles—Mandatory equipment.

A. Each horse-drawn vehicle shall be equipped with electric turn (or emergency flashing lights), tail lights and front lights (or side mounted lights with housings of the type that illuminate from the front and rear simultaneously), which are visible for a distance of 500 feet.

B. Each horse-drawn vehicle shall have brakes.

C. Each horse-drawn vehicle shall be equipped with the international sign for slow-moving vehicles attached to the rear of the vehicle.

D. Each harness shall be equipped with a leather diaper.

E. Each operator of a horse-drawn vehicle shall ensure that any feces or urine deposited on the public right-of-way or any private property within the city is cleaned up immediately after such deposit or as soon thereafter as is reasonable.

F. No horse-drawn vehicle may carry more passengers than was originally intended. No horse-drawn vehicle shall exceed three times the animal's weight, including the weight of the vehicle and all passengers.

Section 7. Horse-drawn vehicle stands.

A. The certificate holder shall keep their horse-drawn vehicle stand clean, free of manure and urine at all times. Urine should be diluted with water or water with disinfectant as it occurs.

B. Water for the equine animals shall be maintained in full view and all times.

C. Stands should have a sign posting the hours of operation whenever possible.

D. For the purpose of taking on and discharging passengers, a horse-drawn vehicle shall stop at the far corner of all intersections, and while so stopped shall keep as close to the right-hand curb as practicable, and shall take on and discharge passengers as quickly as possible, so as not to unreasonably interfere with traffic.

Section 8. Care and shelter of equine animals.

A. Equine animals should be wormed regularly, vaccinated for tetanus, eastern/western sleeping sickness and have a negative Coggins test on file with the certificate holder on an annual basis.

B. No equine animal may be used to draw horse-drawn vehicle unless the animal is in good health and the following requirements are met:

(1) The equine animal may not have any open sores or wounds, nor may such equine animal be lame or have any other ailments, unless the driver has in the driver's possessions a written statement by a veterinarian that the equine animal is fit for such work, notwithstanding such condition.

(2) The hoofs of equine animal must be properly shod. Borium-tipped, hard-tack, rubber shoes or rubber pads should be utilized to help prevent slipping.

C. A veterinarian knowledgeable in the treatment of equine animals shall examine and shall certify the fitness of the equine animal to perform such work prior to its use to draw a horse-drawn vehicle. After the initial examination, the certificate holder will be required to provide the results of annual veterinary examinations to the director. The equine animal shall be examined for its general physical condition, which is to include inspection of teeth, legs, hooves and shoes, cardiovascular exam and for its physical ability to perform the work or duties required of it. The exam shall also include a record of any injury, disease, or deficiency observed by the vet at that time, together with any prescription or humane correction of the same. A health certificate signed by the examining vet shall be kept by the certificate holder and contain the name, age and condition of the equine animal.

D. Equine animals used to pull horse-drawn vehicles shall have water made available to them during their work period.

E. No equine animal shall work more than eight (8) consecutive hours on pavement for more than five (5) consecutive days.

Following each sixty (60) minutes of continuous work the animal shall have a fifteen-minute rest period.

F. No animal shall be subject to cruel or harassing treatment.

G. An equine animal shall not be sold or disposed of except in a humane manner.

H. If a horse exhibits signs of a treatable condition making him unfit for work, he shall be placed on rest until the operator can produce such certificates from an approved veterinarian and farrier.

Section 9. Harnesses.

A. No animal will be worked with a harness or bit that is not safe and humane.

B. Harnesses, bridles, bits and padding must be properly fitted and kept in clean and good repair at all times. The harness shall be kept free of makeshifts like wire, rope, and rusty chain.

Section 10. Weather conditions.

A. Owners and drivers shall use caution when working equine animals in adverse weather conditions such as snow, ice, heavy rain or other slippery conditions.

B. Horse-drawn vehicles shall not operate when temperature exceeds ninety-three (93) degrees Fahrenheit, nor in temperature below thirty-two (32) degrees Fahrenheit. Equine animals shall not be worked when the combined total of temperature (in degrees Fahrenheit) and humidity (in percent) less wind speed (in m.p.h.) is above one hundred fifty (150), only when the temperature is above eighty (80) degrees Fahrenheit.

C. During winter months, equine animals stationed outdoors while awaiting passengers shall be covered with a blanket when the temperature is below thirty-six (36) degrees Fahrenheit. All blankets shall be kept clean at all times.

Section 11. Feeding and care.

A. Equine animals must receive adequate and substantial feeding daily, which is free from contamination. The feed should be sufficient quantity, nutritive value, and frequency to meet normal daily requirements for the condition and size of animal so as to maintain a healthy flesh. Each stall must contain a clean block of salt at all times. Electrolytes will be added as a daily supplement when the temperature is above seventy-five (75) degrees Fahrenheit.

B. Clean drinking water must be in the stalls and available to the equine animal at all times.

C. Box stalls shall be large enough for equine animals to lie down and turn around. The minimum size shall be no less than 12 × 12 feet for draft horses; no tie stalls shall be allowed.

D. The operator must make available, upon request by the director, the premises used to house the horses under the certificate.

Section 12. Driver qualifications and conduct. No person shall operate a horse-drawn vehicle for hire upon the streets of the city, and no certificate holder who owns or controls a horse-drawn vehicle for hire shall permit the horse-drawn vehicle to be driven, unless the driver of the horse-drawn vehicle shall have first obtained a current horse-drawn vehicle driver permit which has been approved and issued as designated under this article.

A. *Horse-drawn vehicle driver qualifications.*

(1) Each applicant must be at least eighteen (18) years of age.

(2) The applicant shall have an appropriate and valid driver's license as required pursuant to state law.

(3) The applicant must have experience in working with horses.

B. *Horse-drawn vehicle driver permit application.* Any person desiring a horse-drawn vehicle driver's permit shall obtain and complete a horse-drawn vehicle driver permit application. The form of such application shall be developed by the direc-

tor and shall include, but not be limited to, the age, name and address of the applicant.

C. *Investigation.* The horse-drawn vehicle operator shall ensure that each driver permit applicant obtain a criminal record check and a traffic record from each state of the driver applicant's previous and current residence for the thirty-six (36) months preceding the driver permit application. The horse-drawn vehicle driver permit applicant shall return the criminal record check(s) and traffic record(s) to the administrator. Drivers are responsible for reporting to the administrator any change in qualifications or other licensing or permitting information previously supplied within ten (10) days of the change. Failure to do so may lead to revocation of the driver's permit.

D. *[Operator reporting.]* A horse-drawn vehicle operator shall report to the administrator any matter the operator is aware of that would disqualify a horse-drawn vehicle driver under this chapter.

E. *Fee.* Each applicant for a horse-drawn vehicle driver permit shall pay to the city a nonrefundable fee of twenty dollars ($20.00) at the time the original application is filed.

F. *Duplicate horse-drawn vehicle driver permit.* If a horse-drawn vehicle driver's permit has been lost or destroyed, the payment of five dollars ($5.00) as a replacement fee shall be required, and the director shall issue a duplicate horse-drawn vehicle driver's permit.

G. *Horse-drawn vehicle driver permit term, renewal.* A permit issued under this section shall be valid for a one-year period commencing on the date of issue, and extending through the twelve (12) months past the date of issue. Permits shall be renewed in the following manner:

(1) Submittal of a horse-drawn vehicle driver permit renewal application to the director;

(2) Submittal of the required criminal background report(s) and the required traffic record(s);

(3) Payment of a twenty dollar ($20.00) renewal fee at the time of submittal of the permit renewal application.

(4) The permittee shall comply with all applicable ordinances and regulations of the city.

H. *Horse-drawn vehicle driver conduct.*

(1) The horse-drawn vehicle driver shall obey all traffic laws and regulations of the city and state.

(2) No horse-drawn vehicle driver shall operate a horse-drawn vehicle while under the influence of alcohol or narcotic drugs.

(3) No horse-drawn vehicle driver shall permit passengers in excess of the passenger capacity design of the horse-drawn vehicle.

(4) No horse-drawn vehicle driver shall permit passengers to stand on any part of the horse-drawn vehicle while in motion. Horse-drawn vehicle drivers shall take all necessary precautions to prohibit such activity. The horse-drawn vehicle driver shall ensure that all passengers are seated except when loading or unloading.

(5) The horse-drawn vehicle driver shall at all times be responsible for the proper and humane care and treatment of the equine animal under his or her direct supervision and control.

(6) Horse-drawn vehicle drivers shall be in the driver's seat and have the driving lines in hand before loading or unloading passengers.

(7) The driver of each horse-drawn vehicle, during travel from one-half (½) hour after sunset and one-half (½) hour before sunrise and at all times as conditions for poor visibility exist, shall cause the front and tail lights (or the side-mounted lights

with housings of the type that illuminate from the front and rear simultaneously) of the horse-drawn vehicle to be in operation.
(Ord. No. 19051, § 1, 1-20-04; Ord. No. 20,044, §§ 45—48, 11-3-08)

Sec. 34-115. Penalty for violation.

In addition to the possible suspension or revocation of a certificate of convenience and necessity, any person who violates or fails to comply with, or who permits or causes any person in his or its employ to violate or fail to comply with any of the provisions of this part, shall be deemed guilty of a misdemeanor, and upon conviction thereof shall be fined in accordance with section 1-9 of this Code.
(Ord. No. 19051, § 1, 1-20-04)

ARTICLE X. PEDICAB SERVICE

Sec. 34-116. Short title.

This article shall be known as the "pedicab code".
Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-117. Scope.

Holders of certificates of convenience and necessity to operate a pedicab service shall be governed by the provisions of this article.
(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-118. Definitions.

The following words and phrases, when used in this article, shall have the following meanings:

Administrator means the city manager or the city manager's designated agent.

Certificate holder, holder, or *operator* means any person holding a certificate of convenience and necessity issued by the board of directors for the operation of a pedicab service.

Director means the director of the fleet services department, or designee.

For hire means the provision of services, or the offering of the services, of a pedicab for the payment of money or other consideration.

Pedicab means a bicycle with three (3) or more wheels, operated by one (1) person, capable of transporting passengers in seats on a platform made a part of the pedicab.

Person means any person, firm, corporation, partnership, entity, or association of persons of any kind.
(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-119. Powers of the director.

The director of the fleet services department is authorized to make and enforce such additional rules and regulations, not in conflict with the provisions of this article, as the director may deem proper to regulate the operation of pedicabs for hire under a certificate of convenience and necessity issued pursuant to this article.
(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-120. Office required.

Each pedicab service operator shall maintain a central place of business, in an area zoned for such, for the purposes of receiving calls and dispatching pedicabs. Said person shall file and keep current with the director the address and telephone number of such place of business.
(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-121. Certificate of convenience and necessity required.

No person shall operate or permit a pedicab service vehicle owned, leased, or controlled by said person to be operated in the city without having first obtained a certificate of convenience and necessity.
(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-122. Certificate of convenience and necessity; allotment, issuance, and denial.

(a) Unless otherwise authorized by the board of directors, there shall only be three (3) certificates of convenience and necessity granted for the operation of pedicabs in the city.

(b) The director may issue any or all of the three (3) certificates of convenience and necessity authorized by this article if it is determined that the application is in compliance with the terms and conditions set forth in this article, as long as once a year the director submits a resolution for board approval that ratifies the issuance or renewal of the certificate. If the certificate is issued prior to the adoption of such a resolution, the applicant may operate at its own peril if it is otherwise in compliance with all terms and conditions of this article and with any rules and regulations promulgated by the director, as long as the applicant agrees immediately to cease operations should the board of directors fail to ratify the issuance, or the renewal, of a certificate of convenience and necessity.

(c) If the director denies an application for a certificate of convenience and necessity, the applicant may appeal the director's decision to the board of directors by filing an appeal with the city clerk no later than three (3) days after receipt of notice from the director that the application has been denied. The board shall hold a public hearing regarding whether to grant the certificate, and shall determine whether the applicant has met all of the criteria set forth in this article. Notice of the public hearing shall be provided to the applicant at least three (3) business days before the hearing, and shall be noted on the agenda for the board meeting at which it is scheduled. The time and place of the hearing, and the manner by which it shall be conducted, shall be determined by the board of directors. The board may deny the application for a certificate of convenience and necessity if it determines that:

(1) The applicant is not in compliance with the terms and conditions of this article;

(2) The applicant has failed to comply with the terms and conditions of similar ordinances, rules or regulations in other cities;

(3) The applicant has failed to fulfill any financial obligations associated with the operation of a pedicab, the payment of license or inspection fees, or the payment of legitimate claims against the applicant arising out of the operation of a pedicab; or

(4) The board determines that, at the time of the application, an additional certificate of convenience and necessity would not be in the best interests of the city.

(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-123. Procedure to increase the number of certificates of convenience and necessity.

(a) Only the board of directors has the authority to increase the number of certificates of convenience and necessity authorized by this article. Upon an application for such an increase, the board shall first direct the city manager, after consultation with the director, to determine if a need exists for additional certificates. If the city manager concludes that an increase in certificates is appropriate, the board shall be provided with a report to that effect which sets forth the manager's findings. If the board agrees that additional certificates are appropriate, then it shall schedule a public hearing to discuss the issue. The time, place and manner of the hearing, and the manner in which the hearing is conducted, shall be determined by the board of directors, provided the hearing shall have been advertised at least once in a daily newspaper no less than seven (7) nor more than fourteen (14) days prior to the date set for the hearing.

(b) If the city manager concludes that an increase in certificates is not appropriate, the board shall be provided with a report to that effect which sets forth the basis for the manager's conclusions. This report shall be made during a regular meeting of the board of directors and notice that the report is being presented shall be advertised at least once in a daily newspaper no less than seven (7) nor more than fourteen (14) days prior to the presentation of the report. Copies of the report shall be available to the public no less than two (2) business days prior to the hearing. After receiving the report, the board shall permit time for interested parties to comment upon the manager's conclusions. If the board, after receiving the report and any comments, decides to consider the issuance of additional

certificates, then it shall set an additional public hearing, to be held during a regular meeting of the board of directors, to discuss the following issues:

(1) Whether the demands of the public require the proposed or additional pedicab service within the city.

(2) Whether the existing service is sufficient to properly meet the demands and needs of the public.

(3) Whether any identified applicant for an additional certificate is financially responsible.

(4) Whether increased traffic congestion on the streets will result by the increase of additional certificates, or whether the safe use of the streets by the public, both vehicular and pedestrian, will be preserved by the grant of any additional certificate.

(5) Whether any other factor, deemed relevant by the board of directors, suggests that the issuance of, or refusal to issue, additional certificates is advisable or necessary.

(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-124. Certificate of convenience and necessity; application.

Any person desiring to secure a certificate of convenience and necessity shall submit an application addressed to the director and shall pay a one-hundred-dollar nonrefundable application fee. This application shall be in writing, verified by the affidavit of the applicant, or if the applicant is a corporation, partnership, entity, or association of persons of any kind, by its duly authorized officer or agent. The application shall provide the following facts and any other information required by regulations promulgated by the director:

(1) Trade name and address of the applicant.

(2) Telephone number, telefacsimile number and, if available, the e-mail address of the applicant.

(3) The name of the agent for service of process for the applicant.

(4) If the applicant is a corporation, the name of the corporation and the date and state of incorporation.

(5) The names and addresses of all shareholders, officers and directors of the corporation.

(6) The experience and the qualifications of the applicant, or if the applicant is a partnership, the partners therein have had, or if the applicant is a corporation or other association of persons, the officers and directors have had, in pedicab passenger transportation service.

(7) The number of pedicabs the applicant desires to operate.

(8) The passenger capacity of each pedicab.

(9) A current certificate of liability insurance listing each pedicab covered in the amounts designated in section 34-131 and listing the city as certificate holder.

(10) A full-color photograph of each pedicab.

(11) Name and telephone number of an emergency contact person.

(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-125. License fees.

(a) The annual license fee for a certificate of convenience and necessity for each pedicab owner shall be seventy-five dollars ($75.00).

(b) The annual license fee for each pedicab in use shall be fifty dollars ($50.00).

(c) The certificate of convenience and necessity shall be issued on the first day of January of each year, and shall expire one (1) year thereafter.

(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-126. Number of pedicabs authorized upon city streets.

No more than four (4) pedicabs per each certificate holder shall be permitted to operate upon the streets of the city. Once this maximum number of pedicabs has been permitted, no applications for additional pedicab licenses will be ac-

cepted. Should the number of permitted pedicabs drop below the maximum number allowed in this section, the director will consider applications for additional pedicab licenses in the order in which the applications are filed with the director.
(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-127. Requirement to display certificate of convenience and necessity.

The certificate of convenience and necessity, and attachments, shall be displayed in the pedicab at all times when the pedicab is on a public right-of-way.
(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-128. Expiration of certificate of convenience and necessity.

A certificate issued under this article shall expire on December 31 of each year at midnight and may be renewed from year to year at the existing level of pedicabs upon the payment of the required fee, as long as the pedicab operator is in compliance with this article and any pedicab regulations promulgated by the director.
(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-129. Renewal of certificate of convenience and necessity.

(a) Owner applications for the renewal of a certificate of convenience and necessity shall be made by January 1 of each year and shall include payment of a seventy-five-dollar renewal fee and a fifty-dollar pedicab permit renewal fee for each pedicab in use.

(b) If the director denies the request for certificate renewal, the director, or designee, shall advise the applicant in writing of the reasons for such denial. The applicant may appeal the director's decision to the board of directors by filing an appeal with the city clerk no later than three (3) days after receipt of notice from the director that the renewal application has been denied. The board shall hold a public hearing regarding whether to grant the certificate renewal, and shall determine whether the applicant has met all of the criteria set forth in this article. Notice of the public hearing shall be provided to the applicant at least three (3) business days before the hearing, and shall be noted on the agenda for the board meeting at which it is scheduled. The time and place of the hearing, and the manner by which it shall be conducted, shall be determined by the board of directors. The board may deny the renewal application for a certificate of convenience and necessity if it determines that:

(1) The applicant is not in compliance with the terms and conditions of this article;

(2) The applicant has failed to comply with the terms and conditions of similar ordinances, rules or regulations in other cities;

(3) The applicant has failed to fulfill any financial obligations associated with the operation of a pedicab, the payment of license or inspection fees, or the payment of legitimate claims against the applicant arising out of the operation of a pedicab; or

(4) The board determines that, at the time of the application, an additional certificate of convenience and necessity would not be in the best interests of the city.

(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-130. Business license required.

(a) Each pedicab service operator shall possess and maintain a current business license.

(b) Each pedicab service operator shall maintain an emergency telephone number where the owner or manager of the pedicab service may be contacted in case of an emergency.
(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-131. Insurance required; accident/incident report.

(a) Every applicant for a license to operate a pedicab, whether the pedicab is to be operated by the owner or some other person, in addition to the other requirements of this article, shall maintain and file with the director for each pedicab to be operated a policy of commercial general liability insurance which meets the requirements of this article and any applicable regulations promulgated by the director.

(b) Insurance required by this section shall be carried by a firm which has been duly licensed or permitted to conduct an insurance business in this state, and said insurance shall be kept and maintained continually in force and effect so long as the applicant shall be licensed to operate pedicabs on the streets of the city.

(c) Insurance as required herein shall be a policy of liability insurance in the sum of three hundred thousand dollars ($300,000.00) for bodily injury per person in any one (1) accident, with an aggregate of six hundred thousand dollars ($600,000.00) per incident.

(d) The certificate holder, on or before the fifth day of each month, shall file with the director a report showing the number of accidents or incidents, if any, in the preceding month, in which any pedicab owned and/or operated by the certificate holder was involved, the nature of the damage, if any, to person or property resulting therefrom, the name and address of all persons who have outstanding claims because of any pedicab accident, and whether any claims were settled during the preceding month.

(e) The failure to file the required report within the time provided, or the filing or causing or intentionally permitting the filing of a false report, shall be a violation of this article and shall also be grounds for suspension and revocation of the certificate holder's certificate of convenience and necessity.

(f) If any policy of insurance covering any or all of the pedicabs authorized to be operated under a certificate of convenience and necessity expires, and the operator fails to replace it immediately with another policy of insurance fully complying with the provisions of this article, the certificate of convenience and necessity and the licenses issued thereunder shall be ipso facto suspended. The certificate of convenience and necessity may be reinstated by the board of directors upon application, with or without a hearing, upon compliance in full with all the provisions of this article. If the board of directors reinstates the certificate of convenience and necessity, the director, upon notice from the board, shall reinstate the license.

(g) It shall be unlawful for any person to operate or cause to be operated any pedicab upon any public street in the city unless the required policy of insurance for the pedicab shall have been filed with the director, and shall be in full force and effect.

(h) In the event of any final judgment against the owner or operator of any pedicab for injury to or death of, any person, or damage to property from the negligence of the owner or operator, or for any reason regardless of fault, remains unsatisfied for a period of thirty (30) days, the board of directors, upon complaint of the owner of the judgment, or of any other person, shall forthwith revoke the certificate of convenience and necessity and all pedicab licenses of the owner or operator.
(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-132. Pedicab inspection and approval.

(a) *Pedicab inspection; approval.* No operator shall permit a pedicab to be operated in the city until the pedicab has been inspected and approved by the administrator. The administrator is authorized to make spot inspections of pedicabs.

(b) *Inspections.*

(1) It shall be the duty of the administrator to cause to be inspected each and every pedicab for which a license has been issued pursuant to this article at least once each year, or at any other time that the administrator deems advisable. The inspection fee shall be included in the annual pedicab fee.

(2) Such inspection shall be made to determine that a pedicab is in a reasonably good state of repair, is clean, and that the pedicab is equipped and is being operated in compliance with all requirements of this article.

(3) The inspection shall be made at a place designated by the administrator. The administrator shall cause the record of such inspection to be reduced to writing and a

permanent record made thereof. Such record shall be kept for a period of at least three (3) years.

a. If the inspection reveals that any such pedicab is not in a reasonably good operating condition, from the standpoint of the safety, health and comfort of passengers, the pedicab shall be ordered out of service until such time as remedial repairs and corrections have been made.

b. Such pedicab shall be reinspected to determine whether or not proper repairs and corrections have been made. In no case shall the pedicab be permitted to resume its operation until such repairs and corrections have been made and an inspection has been conducted.

(4) The inspection shall include, but not be limited to, the following required items:

a. Head lights;

b. Tail lights;

c. Turn signals;

d. Flashing lights;

e. A braking system (front and back);

f. Standard bell;

g. Reflectors on wheels and carriage;

h. Rubber on all wheels;

i. A rearview mirror;

j. A safety flag; and

k. A slow moving vehicle sign attached to the rear of the pedicab.

(c) *Identification.*

(1) The administrator shall issue a sticker for each pedicab licensed under this article. The sticker shall be attached to the pedicab as designated by the administrator.

(2) The name of the company operating the pedicab and the telephone number of that company shall be conspicuously posted on the rear of each pedicab in letters not less than two (2) inches high.

(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-133. Safety and health.

All restrictions and requirements for motorized vehicles contained in city ordinances and state statutes shall apply to pedicabs except those which, by the nature of pedicabs, could have no application.

(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-134. Pedicab permitted zones of operation and preapproved fixed routes; hours of service.

(a) Permitted zone of operation. Pedicabs may only operate and carry passengers within designated entertainment districts. The director may prohibit the operation of pedicabs on streets if, in the opinion of the fleet director, conditions warrant such prohibition.

(b) No pedicab shall be parked on any sidewalk or walkway.

(c) Pedicabs shall not operate during the non-holiday weekday rush hours of 7:00 a.m. to 9:00 a.m.

(Ord. No. 20,044, § 49, 11-3-08; Ord. No. 22,066, § 1, 11-16-21)

Editor's note—Ord. No. 22,066, § 1, adopted Nov. 16, 2021, amended the title of § 34-134 to read as herein set out. The former § 34-134 title pertained to designated pedicab service area; hours of service.

Sec. 34-135. Pedicab service area exception permit.

(a) If a holder of pedicab certificate of convenience and necessity desires to provide pedicab service in areas other than the designated entertainment districts, the holder shall obtain a pedicab service area exception permit from the director at least twenty-four (24) hours before use of the permit. Such permit shall not be issued without the submission of a written application for the director's review and approval. The application shall state the need for the permit, identify the pedicabs to be used and identify the desired route and time of the pedicab service.

(b) Upon approval of the application and issuance of the pedicab service area exception permit. The director may condition the permit upon any requirement that the director deems to be in the interest of public safety, including, but not limited to, requiring the holder to have a vehicle escort following the pedicab on major thoroughfares or requiring additional temporary lighting on the pedicab.
(Ord. No. 20,044, § 49, 11-3-08; Ord. No. 22,066, § 2, 11-16-21)

Sec. 34-136. Fares.

(a) A certificate holder shall file with the director a schedule of fares to be charged for pedicab services provided. A holder shall notify the director within forty-eight (48) hours of any changes in the fare schedule filed by the holder.

(b) The schedule of fares shall be conspicuously posted on each pedicab at a location designated by the director.

(c) The use of any type of meter or measuring device to calculate the rate of fare is prohibited.
(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-137. Pedicab passenger restrictions.

No pedicab shall be operated transporting more than the manufacturer-recommended maximum number of passengers.
(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-138. Standing.

No pedicab shall stand or park on any public roadway for longer than is necessary to load or unload passengers. All loading and unloading of passengers from a roadway shall be from a curb lane.
(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-139. Discontinuance of pedicabs; transfer of certificate of convenience and necessity.

(a) Any certificate holder who intends to discontinue the use of any or all licensed pedicabs shall immediately file with the director a statement, verified by affidavit, of the number of pedicabs to cease operation and the reasons for such action. The failure to file this statement within one (1) business day from the day the use of a pedicab is discontinued shall lead to suspension of any other pedicab licenses issued to the certificate holder. The withdrawal of any pedicab from operation, for the purpose of conditioning, overhauling or repairing the pedicab, shall not be considered discontinuing operation under this section. If proper notice is given that use of a particular licensed pedicab will be discontinued, and if a substitute pedicab complies with the provisions of this article, then the director shall transfer the license to the new pedicab.

(b) No holder of a certificate of convenience and necessity may sell, assign, lease or otherwise transfer the rights and privileges granted thereunder to any other person without first having been granted written permission to do so by the board of directors.
(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-140. Revocation or suspension of certificate of convenience and necessity, pedicab licenses, or pedicab driver permit.

(a) Any certificate of convenience and necessity, pedicab licenses, or pedicab driver permit which have been issued to any person may be suspended by the director upon a reasonable belief that there is good cause for such a suspension, and may be revoked after a public hearing on the issue has been held by the director. Except for suspension because of issues of public safety, any revocation shall be effective upon the expiration of three (3) days after the mailing of such notice to the certificate or permit holder. For suspensions based upon public safety violations, the suspension shall be effective immediately upon such a finding by the director, provided written notice is promptly mailed to the certificate or permit holder. In addition to public safety concerns, and the other reasons set forth in this article, the director may suspend or revoke a certificate of convenience and necessity if the certificate holder has failed, or shall fail, to file with the Secretary of State any report required by Arkansas law.

(b) Any person whose certificate of convenience and necessity, pedicab license or permit has been suspended or revoked by the director may appeal such suspension or revocation to the board of directors by giving notice in writing to the director within ten (10) calendar days of the date of mailing of such notice to the certificate or permit holder as set out above, provided that the certificate or permit holder shall not be permitted to operate during the pendency of an appeal if the suspension or revocation is based upon a public safety violation.

(c) Notice of suspension or revocation shall be sent by registered mail, return receipt requested, to the listed office of the certificate or permit holder. A copy of the suspension or revocation shall be provided to the chief of police, and shall be publicly posted at the office of the director. In addition, the director shall attempt to contact the certificate or permit holder by telephone, or telefacsimile, on the date the suspension or revocation is issued.
(Ord. No. 20,044, § 49, 11-3-08)

Sec. 34-141. Pedicab drivers.

(a) *[Pedicab driver permit required.]* No person shall operate a pedicab for hire upon the streets of the city, and no certificate holder who owns or controls a pedicab for hire shall permit such pedicab to be so driven, unless the driver of the pedicab shall have first obtained a current pedicab driver permit which has been approved and issued by the director or the director's designee.

(b) *Pedicab driver qualifications.*

(1) The applicant shall be at least eighteen (18) years of age.

(2) The applicant shall have an appropriate and valid driver's license as required pursuant to state law.

(3) The applicant must have experience in operating a pedicab.

(c) *Pedicab driver permit application.* Any person desiring a pedicab driver permit shall obtain and complete a pedicab driver permit application. The form of such application shall be developed by the administrator and shall include, but not be limited to, the name, address, and age of the applicant.

(d) *Investigation.* The pedicab operator shall ensure that each driver permit applicant obtain a criminal record check and a traffic record from each state of the driver applicant's previous and current residence for the thirty-six (36) months preceding the driver permit application. Each pedicab driver permit applicant shall return the criminal record check(s) and traffic record(s) to the administrator. Drivers are responsible for reporting to the administrator any change in qualifications or other licensing or permitting information previously supplied within ten (10) days of the change. Failure to do so may lead to revocation of the driver's permit.

(e) *[Operator reporting.]* A pedicab operator shall report to the administrator any matter the operator is aware of that would disqualify a pedicab driver under this chapter.

(f) *Pedicab driver permit fee.* Each applicant for a pedicab driver permit shall pay to the city a nonrefundable fee of twenty dollars ($20.00) at the time the application is filed.

(g) *Duplicate pedicab driver permit.* If a pedicab driver's permit has been lost or destroyed, the payment of ten dollars ($10.00) as a replacement fee shall be required, and the director shall issue a duplicate pedicab driver's permit.

(h) *Pedicab driver permit term; renewal.* A permit issued under this section shall be valid for a one-year period commencing on the date of issue, and extending through the twelve (12) months past the date of issue. Permits shall be renewed in the following manner:

(1) Submittal of a pedicab driver permit renewal application to the director;

(2) Submittal of the required criminal background report(s) and the required traffic record(s);

(3) Payment of a twenty-dollar renewal fee at the time of submittal of the permit renewal application;

(4) The permittee shall comply with all applicable ordinances and regulations of the city.

(i) *Pedicab driver conduct.*

(1) The driver shall obey all traffic laws and regulations of the city and state.

(2) No driver shall operate a pedicab while under the influence of alcohol or narcotic drugs.

(3) No driver shall permit passengers in excess of the manufacturer recommended passenger capacity design of the pedicab.

(4) Drivers shall wear a safety helmet while the pedicab is in operation.

(5) Drivers shall be in the driver's seat and shall have control over the pedicab before loading or unloading passengers.

(6) No driver shall permit passengers to stand on any part of the pedicab while in motion. Drivers shall take all necessary precautions to prohibit such activity.

(Ord. No. 20,044, § 49, 11-3-08)

ARTICLE XI. PEDAL CARRIAGE SERVICE

Sec. 34-142. Short title.

This article shall be known as the "Pedal Carriage Code."
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-143. Scope.

Holders of certificates of convenience and necessity to operate a pedal carriage service shall be governed by the provisions of this article.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-144. Definitions.

The following words and phrases, when used in this article, shall have the following meanings:

Administrator means the city manager or the city manager's designated agent.

Board of directors or board means the board of directors of the City of Little Rock, Arkansas.

Certificate holder, holder, or operator means any person holding a certificate of convenience and necessity issued by the board of directors for the operation of a pedal carriage service.

Director means the director of the fleet services department, or designee.

Driver means an individual who actually physically controls, or is responsible for the actual physical control of, any vehicle regulated by this article.

For hire means the provision of services, or the offering of the services, of a pedal carriage for the payment of money or other consideration.

Pedal carriage means a bicycle-type vehicle with four (4) or more wheels operated by one (1) or more persons for the purpose of, or capable of, transporting additional passengers in seats or on a platform made a part of or otherwise attached to the pedal carriage.

Person means any person, firm, corporation, partnership, entity, or association of persons of any kind.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-145. Powers of the director.

The director is authorized to make and enforce such additional rules and regulations, not in conflict with the provisions of this article, as the director may deem proper to regulate the operation of pedal carriages for hire under certificates of convenience and necessity issued pursuant to this article. The director shall have the authority to temporarily suspend the operation of pedal carriages on city streets when conditions for such operations become unsuitable or unsafe.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-146. Office required.

Each pedal carriage service operator shall maintain a central place of business, in an area zoned for such, for the purposes of receiving calls and dispatching pedal carriages. Said person

shall file and keep current with the director the address, telephone number, and e-mail address of such place of business.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-147. Certificate of convenience and necessity required.

No person shall operate or permit a pedal carriage service vehicle owned, leased, or controlled by said person to be operated in the city without having first obtained a certificate of convenience and necessity.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-148. Certificate of convenience and necessity; allotment, issuance, and denial.

(a) Unless otherwise authorized by the board of directors, there shall only be three (3) certificates of convenience and necessity granted for the operation of pedal carriage in the city.

(b) The director may issue any or all of the three (3) certificates of convenience and necessity authorized by this article if it is determined that the application is in compliance with the terms and conditions set forth in this article, as long as once a year the director submits a resolution for approval by the city's board of directors that ratifies the issuance or renewal of the certificate. If the certificate is issued prior to the adoption of such a resolution, the applicant may operate at its own peril if it is otherwise in compliance with all terms and conditions of this article and with any rules and regulations promulgated by the director, as long as the applicant agrees immediately to cease operations should the board of directors fail to ratify the issuance or the renewal of a certificate of convenience and necessity.

(c) If the director denies an application for a certificate of convenience and necessity, the applicant may appeal the director's decision to the board of directors by filing an appeal with the city clerk no later than three (3) business days after receipt of notice from the director that the application has been denied. The board shall hold a public hearing regarding whether to grant the certificate, and shall determine whether the applicant has met all of the criteria set forth in this article. Notice of the public hearing shall be provided to the applicant at least three (3) business days before the hearing, and shall be noted on the agenda for the board meeting at which it is scheduled. The time and place of the hearing and the manner by which it shall be conducted shall be determined by the board of directors. The board may deny the application for a certificate of convenience and necessity if it determines that:

(1) The applicant is not in compliance with the terms and conditions of this article; or

(2) The applicant has failed to comply with the terms and conditions of similar ordinances, rules, or regulations in other cities; or

(3) The applicant has failed to fulfill any financial obligations associated with the operation of a pedal carriage, the payment of license or inspection fees, or the payment of legitimate claims against the applicant arising out of the operation of a pedal carriage; or

(4) The board determines that, at the time of the application, an additional certificate of convenience and necessity would not be in the best interests of the city.

(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-149. Procedure to increase the number of certificates of convenience and necessity.

(a) Only the board of directors has the authority to increase the number of certificates of convenience and necessity authorized by this article. Upon an application for such an increase, the board shall first direct the city manager, after consultation with the director, to determine if a need exists for additional certificates. If the city manager concludes that an increase in certificates is appropriate, the board shall be provided with a report to that effect which sets forth the city manager's findings. If the board agrees that additional certificates are appropriate, then it shall schedule a public hearing to discuss the issue. The time, place, and manner of

the hearing, and the manner in which the hearing is conducted, shall be determined by the board of directors, provided the hearing shall have been advertised at least once in a daily newspaper no less than seven (7) days, nor more than fourteen (14) days prior to the date set for the hearing.

(b) If the city manager concludes that an increase in certificates is not appropriate, the board shall be provided with a report to that effect which sets forth the basis for the city manager's conclusions. This report shall be made during a regular meeting of the board of directors and notice that the report is being presented shall be advertised at least once in a daily newspaper no less than seven (7) days, nor more than fourteen (14) calendar days prior to the presentation of the report. Copies of the report shall be available to the public no less than two (2) business days prior to the hearing. After receiving the report, the board shall permit time for interested parties to comment upon the city manager's conclusions. If the board, after receiving the report and any comments, decides to consider the issuance of additional certificates, then it shall set an additional public hearing, to be held during a regular meeting of the board of directors, to discuss the following issues:

(1) Whether the demands of the public require the proposed or additional pedal carriage service within the city.

(2) Whether the existing service is sufficient to properly meet the demands and needs of the public.

(3) Whether any identified applicant for an additional certificate is financially responsible.

(4) Whether increased traffic congestion on the streets will result by the increase of additional certificates, or whether the safe use of the streets by the public, both vehicular and pedestrian, will be preserved by the grant of any additional certificate.

(5) Whether increased traffic congestion on the streets will result by the increase of additional certificates, or whether the safe use of the streets by the public, both vehicular and pedestrian, will be preserved by the grant of any additional certificate.

(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-150. Certificate of convenience and necessity; application.

Any person desiring to secure a certificate of convenience and necessity shall submit an application addressed to the director and shall pay a one hundred dollar ($100.00) nonrefundable application fee. This application shall be in writing, verified by the affidavit of the applicant, or if the applicant is a corporation, partnership, entity, or association of persons of any kind, by its duly authorized officer or agent. The application shall provide the following facts and any other information required by regulations promulgated by the director:

(1) Trade name and address of the applicant.

(2) Telephone number, telefacsimile number, and the e-mail address of the applicant.

(3) The name of the agent for service of process for the applicant.

(4) If the applicant is a corporation, the name of the corporation and the date and state of incorporation.

(5) If the applicant is a corporation, the names and addresses of all shareholders, officers, and directors of the corporation.

(6) The experience and the qualifications of the applicant, or if the applicant is a partnership, the experience the partners therein have had, or if the applicant is a corporation or other association of persons, the experience the officers and directors have had in pedal carriage passenger transportation service.

(7) The number of pedal carriages the applicant desires to operate.

(8) The passenger capacity of each pedal carriage the applicant desires to operate.

(9) A current certificate of liability insurance listing each pedal carriage covered

in the amounts designated in section 34-131 and listing the city as certificate holder.

(10) A full-color photograph of each pedal carriage.

(11) The name and telephone number of an emergency contact person.

(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-151. License fees.

(a) The annual license fee for a certificate of convenience and necessity for each pedal carriage owner shall be two hundred fifty dollars ($250.00).

(b) The annual license fee for each pedal carriage in use shall be fifty dollars ($50.00).

(c) The certificate of convenience and necessity shall be issued on the first day of January of each year, and shall expire one (1) year thereafter.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-152. Number of pedal carriages authorized upon city streets.

No more than four (4) pedal carriages per each certificate holder shall be permitted to operate upon the streets of the city. Once this maximum number of pedal carriages has been permitted, no applications for additional pedal carriage licenses will be accepted. Should the number of permitted pedal carriages drop below the maximum number allowed in this section, the director will consider applications for additional pedal carriage licenses in the order in which the applications are filed with the director.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-153. Requirement to display certificate of convenience and necessity.

The certificate of convenience and necessity and attachments shall be displayed in the pedal carriage at all times when the pedal carriage is on a public right-of-way.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-154. Expiration of certificate of convenience and necessity.

A certificate of convenience and necessity issued under this article shall expire on December 31 of each year at midnight and may be renewed from year to year at the existing level of pedal carriages upon the payment of the required fee, as long as the pedal carriage operator is in compliance with this article and any pedal carriage regulations promulgated by the director.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-155. Renewal of certificate of convenience and necessity.

(a) Owner applications for the renewal of a certificate of convenience and necessity shall be made by January 1st of each year and shall include payment of a two hundred fifty dollar ($250.00) renewal fee and a fifty dollar ($50.00) pedal carriage permit renewal fee for each pedal carriage in use.

(b) If the director denies the request for certificate renewal, the director shall advise the applicant in writing of the reasons for such denial. The applicant may appeal the director's decision to the board of directors by filing an appeal with the city clerk no later than three (3) business days after receipt of notice from the director that the renewal application has been denied. The board shall hold a public hearing regarding whether to grant the certificate renewal, and shall determine whether the applicant has met all of the criteria set forth in this article. Notice of the public hearing shall be provided to the applicant at least three (3) business days before the hearing, and shall be noted on the agenda for the board meeting at which it is scheduled. The time and place of the hearing, and the manner by which it shall be conducted, shall be determined by the board of directors. The board may deny the renewal application for a certificate of convenience and necessity if it determines that:

(1) The applicant is not in compliance with the terms and conditions of this article; or

(2) The applicant has failed to comply with the terms and conditions of similar ordinances, rules or regulations in other cities or states; or

(3) The applicant has failed to fulfill any financial obligations associated with the operation of a pedal carriage, the payment of license or inspection fees, or the payment of legitimate claims against the applicant arising out of the operation of a pedal carriage; or

(4) The board determines that, at the time of the application, an additional certificate of convenience and necessity would not be in the best interests of the city.

(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-156. Business license required.

(a) Each pedal carriage service operator shall possess and maintain a current business license.

(b) Each pedal carriage service operator shall maintain an emergency telephone number where the owner or manager of the pedal carriage service may be contacted in case of an emergency.

(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-157. Insurance required; accident/ incident report.

(a) Every applicant for a license to operate a pedal carriage, whether the pedal carriage is to be operated by the owner or some other person, in addition to the other requirements of this article, shall maintain and file with the director for each pedal carriage to be operated a policy of general liability insurance which meets the requirements of this article and any applicable regulations promulgated by the director.

(b) Insurance required by this section shall be carried by a firm which has been duly licensed or permitted to conduct an insurance business in this state, and said insurance shall be kept and maintained continually in force and effect so long as the applicant shall be licensed to operate pedal carriage on the streets of the city.

(c) Insurance as required herein shall be a policy of liability insurance in the sum of three hundred thousand dollars ($300,000.00) for bodily injury per person in any one (1) accident, with an aggregate of six hundred thousand dollars ($600,000.00) per incident.

(d) The certificate holder, on or before the fifth day of each month, shall file with the director a report showing the number of accidents or incidents, if any, in the preceding month, in which any pedal carriage owned and/or operated by the certificate holder was involved, the nature of the damage, if any, to person or property resulting therefrom, the name and address of all persons who have outstanding claims because of any pedal carriage accident, and whether any claims were settled during the preceding month.

(e) The failure to file the required report within the time provided, or the filing or causing or intentionally permitting the filing of a false report, shall be a violation of this article and shall also be grounds for suspension and revocation of the certificate holder's certificate of convenience and necessity.

(f) If any policy of insurance covering any or all of the pedal carriage authorized to be operated under a certificate of convenience and necessity expires, and the operator fails to replace it immediately with another policy of insurance fully complying with the provisions of this article, the certificate of convenience and necessity and the licenses issued thereunder shall be *ipso facto* suspended. The certificate of convenience and necessity may be reinstated by the board of directors upon application, with or without a hearing, upon compliance in full with all the provisions of this article. If the board of directors reinstates the certificate of convenience and necessity, the director, upon notice from the board, shall reinstate the license(s) thereunder.

(g) It shall be unlawful for any person to operate or cause to be operated any pedal carriage upon any public street in the city unless the required policy of insurance for the pedal carriage has been filed with the director and is in full force and effect.

(h) In the event of any final judgment against the owner or operator of any pedal carriage for injury to or death of any person, or damage to property from the negligence of the owner or

operator, or for any reason regardless of fault, remains unsatisfied for a period of thirty (30) days, the board of directors, upon complaint of the owner of the judgment, or the legitimate complaint of any other person, shall forthwith revoke the certificate of convenience and necessity and all pedal carriage licenses of the owner or operator.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-158. Pedal carriage inspection and approval.

(a) *Pedal carriage inspection; approval.* No operator shall permit a pedal carriage to be operated in the city until the pedal carriage has been inspected and approved by the administrator. The administrator is authorized to make spot inspections of pedal carriage.

(b) *Inspections.*

(1) It shall be the duty of the administrator to cause to be inspected each and every pedal carriage for which a license has been issued pursuant to this article at least once each year, or at any other time that the administrator deems advisable. The inspection fee shall be included in the annual pedal carriage fee.

(2) Such inspection shall be made to determine that a pedal carriage is in a reasonably good state of repair, functions properly, is clean, and that the pedal carriage is equipped and is being operated in compliance with all requirements of this article.

(3) The inspection shall be made at a time and place designated by the administrator. The administrator shall cause the record of such inspection to be reduced to writing and a permanent record made thereof. Such record shall be kept for a period of at least three (3) years.

a. If the inspection reveals that any such pedal carriage is not in a reasonably good operating condition, from the standpoint of the safety, health, and comfort of passengers, the pedal carriage shall be ordered out of service until such lime as remedial repairs and corrections have been made.

b. Such pedal carriage shall be reinspected to determine whether or not proper repairs and corrections have been made. In no case shall the pedal carriage be permitted to resume its operation until such repairs and corrections have been made and an inspection has been conducted.

(4) The inspection shall include, but not be limited to, the following required items:

a. *Headlights, tail lights, mirrors, turn signals, and other requirements.* Every pedal carriage shall be equipped with the operational equipment set forth in the subsections below:

i. A headlight capable of projecting a beam of white light for a distance at a minimum of 300 feet which shall be clearly visible from one-half (½)-hour after sunset and one-half (½)-hour before sunrise and at all times when conditions for poor visibility exist, and must be illuminated at all such times.

ii. A side-mounted mirror or a wide-angle rear-view mirror affixed to the pedal carriage to reflect to the pedal carriage driver a view of the street for a distance of at least 200 feet from the rear of the pedal carriage.

iii. A red light and brake light affixed to the rear of the pedal carriage which must be visible for a distance of at least 200 feet from the rear of the pedal carriage. The red light must be illuminated from one-half (½)-hour after sunset and one-half (½)-hour before sunrise and at all times when condi-

tions for poor visibility exist. Turn signals must be affixed to the front and rear of the vehicle.

b. *Flashing lights*;

c. *Braking system* (front and back);

d. *Tires*; and

e. *Sound-warning device.* A fully operational horn or bell.

(c) If, upon any inspection, a pedal carriage is found to be unsafe, not to work property, or to be unclean or unsightly, the administrator may direct that the pedal carriage be taken out of service until such condition is corrected. Such pedal carriage shall be reinspected and approved by the administrator before returning to service.

(d) *Identification.*

(1) The administrator shall issue a sticker for each pedal carriage licensed under this article. The sticker shall be attached to the pedal carriage as designated by the administrator.

(2) The name of the company operating the pedal carriage and the telephone number and e-mail address of that company shall be conspicuously posted on the rear of each pedal carriage in letters not less than two (2) inches high.

(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-159. Safety and health.

All restrictions and requirements for motorized vehicles contained in city ordinances and state statutes shall apply to pedal carriages except those which, by the nature of pedal carriages, could have no application.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-160. Alcohol.

(a) Pedal carriage drivers and owners shall not sell nor in any way provide alcoholic beverages to pedal carriage passengers.

(b) Passengers of pedal carriages may only consume alcoholic beverages on a pedal carriage which he or she purchased in an entertainment district.

(c) No glassware of any kind shall be allowed on a pedal carriage including, but not limited to, bottles, receptacles, or drinking glasses.

(d) Passengers of pedal carriages shall consume alcoholic beverages in accordance with all local, state and federal laws.

(e) An operator or driver of a pedal carriage commits an offense if he or she provides an alcoholic beverage to a passenger for a fee or as part of the passenger transport service.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-161. Pedal carriage drivers.

(a) *Pedal carriage driver permit required.* No person shall operate a pedal carriage for hire upon the streets of the city, and no certificate holder who owns or controls a pedal carriage for hire shall permit such pedal carriage to be so driven, unless the driver of the pedal carriage shall have first obtained a current pedal carriage driver permit which has been approved and issued by the director.

(b) *Pedal carriage driver qualifications.*

(1) The applicant shall be at least eighteen (18) years of age.

(2) The applicant shall have an appropriate and valid driver's license as required pursuant to Arkansas state law.

(3) The applicant must have experience in operating a pedal carriage.

(c) *Pedal carriage driver permit application.* Any person desiring a pedal carriage driver permit shall obtain and complete a pedal carriage driver permit application. The form of such application shall be developed by the administrator and shall include, but not be limited to, the name, address, and age of the applicant.

(d) *Investigation.* The pedal carriage operator shall ensure that each pedal carriage driver permit applicant obtain a criminal record check and a traffic record check from each state of the

driver applicant's previous and current residence for the thirty-six (36) months preceding the pedal carriage driver permit application. Each pedal carriage driver permit applicant shall return the criminal record check(s) and traffic record check(s) to the administrator. Pedal carriage drivers are responsible for reporting to the administrator any change in qualifications or other licensing or permitting information previously supplied within ten (10) calendar days of the change. Failure to do so may lead to revocation of the pedal carriage driver's permit.

(e) *Operator reporting.* A pedal carriage operator shall report to the administrator any matter the operator is aware of that would disqualify a pedal carriage driver under this article.

(f) *Pedal carriage driver permit fee.* Each applicant for a pedal carriage driver permit shall pay to the city a nonrefundable fee of twenty dollars ($20.00) at the time the application is filed.

(g) *Duplicate pedal carriage driver permit.* If a pedal carriage driver's permit has been lost or destroyed, the payment of ten dollars ($10.00) as a replacement fee shall be required, and the director shall issue a duplicate pedal carriage driver's permit.

(h) *Pedal carriage driver permit term; renewal.* A permit issued under this section shall be valid for a one (1)-year period commencing on the date of issue, and extending through the twelve (12) months past the date of issue. Permits shall be renewed in the following manner:

(1) Submittal of a pedal carriage driver permit renewal application to the director;

(2) Submittal of the required criminal background report(s) and the required traffic record report(s);

(3) Payment of a twenty dollar ($20.00) renewal fee at the time of submittal of the permit renewal application.

(i) The permittee shall comply with all applicable ordinances and regulations of the city. (Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-162. Duties and conduct of drivers.

(a) A pedal carriage driver shall obey all traffic laws and regulations of the city and the state.

(b) No pedal carriage driver shall consume any alcoholic beverages while on duty or operate a pedal carriage while impaired in any manner to any threshold provided by Arkansas state law.

(c) No pedal carriage driver shall permit passengers in excess of the manufacturer recommended passenger capacity design of the pedal carriage.

(d) pedal carriage drivers shall be in the driver's seat and shall have control over the pedal carriage before loading or unloading passengers.

(e) No pedal carriage driver shall permit passengers to stand on any part of the pedal carriage while in motion. Drivers shall take all necessary precautions to prohibit such activity.

(f) A pedal carriage driver shall not permit a person other than another employee of the pedal carriage service with a valid pedal carriage driver's permit to operate a pedal carriage under his or her control.

(g) Pedal carriage driver shall:

(1) Transport passengers in a safe and prudent manner;

(2) Keep the interior of the pedal carriage clean;

(3) Inspect the pedal carriage and its equipment at least once daily to ensure mechanical fitness and good-working order;

(4) Report all accidents as required by this chapter, as well as report each accident to the owner of the pedal carriage;

(5) Upon request, deliver a written receipt to any passenger who has paid a fare, stating the amount paid; and

(6) Be clean in dress and in person while on duty.

(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-163. Pedal carriage permitted zones of operation and preapproved fixed routes; hours of service.

(a) *Permitted zone of operation.* Pedal carriages may only operate and pickup, carry and discharge passengers within designated entertainment districts unless otherwise authorized by the director. The director may prohibit the operation of pedal carriages on streets if, in the opinion of the director, conditions warrant such prohibition.

(b) The director may designate passenger pick-up and discharge points for pedal carriages.

(c) Pedal carriage drivers shall not stop to load or unload passengers or their belongings in the intersections of any street or crosswalk or in any manner or other location that would be considered unsafe. No pedal carriage shall load or unload passengers in any such manner that would in any way impede or interfere with the orderly flow of traffic on the streets.

(d) No pedal carriage shall be parked on any sidewalk or walkway.

(e) No pedal carriage shall use any public street or other public property as a waiting area unless such area is a legal motor vehicle parking area or as permitted.

(f) Pedal carriages shall not operate during the non-holiday weekday rush hours of 7:00 a.m to 9:00 p.m.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-164. Pedal carriage service area exception permit.

(a) If a holder of pedal carriage certificate of convenience and necessity desires to provide pedal carriage service in areas other than the designated entertainment districts or other areas authorized by the director, the holder shall obtain a pedal carriage service area exception permit from the director at least twenty-four (24) hours before use of the permit. Such permit shall not be issued without the submission of a written application for the director's review and approval. The application shall state the need for the permit, identify the pedal carriages to be used, and identify the desired route and time of the pedal carriage service.

(b) Upon approval of the application and issuance of the pedal carriage service area exception permit, the director may condition the permit upon any requirement that the director deems to be in the interest of public safety, including, but not limited to, requiring the holder to have a vehicle escort following the pedal carriage on major thoroughfares or requiring additional temporary lighting on the pedal carriage.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-165. Operating restrictions and conditions.

(a) All pedal carriages shall be clean and maintained in a good state of repair. All pedal carriages shall be maintained by the pedal carriage operator so as to be well painted and have an appearance free of damage or deterioration, and a safe operational condition. Pedal carriages shall be, at all reasonable times, subject to inspection by director.

(b) All pedal carriages shall have the trade name and phone number of the owner conspicuously displayed on the pedal carriage.

(c) Pedal carriage drivers shall have in their possession Proof of Insurance and a valid state driver's license while in control of any pedal carriage and shall operate the pedal carriage in compliance with all applicable federal, state and local traffic laws, ordinances, or other applicable regulations and in a manner so as to assure the safety of persons and property. These documents shall be made available upon request of law enforcement or the director.

(d) All pedal carriage drivers shall obey and comply with any lawful order or direction of any police other law enforcement officer, and shall refrain from interference with such officials while in the performance of their duties.

(1) No pedal carriage driver shall permit more passengers to be carried in a pedal carriage than the pedal carriage's normal seating capacity.

(2) No pedal carriage driver shall allow a passenger or other individuals to drive his or her pedal carriage unless in the event of an emergency.

(3) Pedal carriage drivers and passengers shall at all times keep the peace, refrain from making excessive noise, and comply with the city's noise ordinance at section 18-52 of the city code.

(4) Pedal carriage drivers shall properly dispose of all trash on the pedal carriages they drive.

(5) It shall be unlawful for any pedal carriage driver to allow or cause to be operated a pedal carriage in any unsafe manner or operating condition.

(6) Any pedal carriage not in compliance with the minimum requirements of this section may be cited and placed immediately out-of-service. Any vehicle which has been so removed from service shall not be returned to service until such vehicle has been approved by the director for resumption of service.

(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-166. Fares.

(a) A certificate holder shall file with the director a schedule of fares to be charged for pedal carriage services provided. A holder shall notify the director within forty-eight (48) hours of any changes in the fare schedule filed by the holder.

(b) The schedule of fares shall be conspicuously posted on each pedal carriage at a location designated by the director.

(c) The use of any type of meter or measuring device to calculate the rate of fare is prohibited.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-167. Pedal carriage passenger restrictions.

No pedal carriage shall be operated transporting more than the manufacturer-recommended maximum number of passengers.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-168. Standing.

No pedal carriage shall stand or park on any public roadway for longer than is necessary to load or unload passengers. All loading and unloading of passengers from a roadway shall be from a curb lane.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-169. Discontinuance of pedal carriages; transfer of certificate of convenience and necessity.

(a) Any certificate holder who intends to discontinue the use of any or all licensed pedal carriages shall immediately file with the director a statement, verified by affidavit, of the number of pedal carriages to cease operation and the reasons for such action. The failure to file this statement within one (1) business day from the day the use of a pedal carriage is discontinued shall lead to suspension of any other pedal carriage licenses issued to the certificate holder. The withdrawal of any pedal carriage from operation, for the purpose of conditioning, overhauling, or repairing the pedal carriage, shall not be considered discontinuing operation under this section. If proper notice is given that use of a particular licensed pedal carriage will be discontinued, and if a substitute pedal carriage complies with the provisions of this article, then the director shall transfer the license to the new pedal carriage.

(b) No holder of a certificate of convenience and necessity may sell, assign, lease, or otherwise transfer the rights and privileges granted thereunder to any other person without first having been granted written permission to do so by the board of directors.
(Ord. No. 22,258, § 1, 5-16-23)

Sec. 34-170. Revocation or suspension of certificate of convenience and necessity, pedal carriage licenses or pedal carriage driver permit.

(a) Any certificate of convenience and necessity pedal carriage license, or pedal carriage driver permit which have been issued to any person may be suspended by the director upon a

reasonable belief that there is good cause for such a suspension, and may be revoked after a public hearing on the issue has been held by the director. Except for suspension because of issues of public safety, any revocation shall be effective upon the expiration of three (3) business days after the mailing of such notice to the certificate or permit holder. For suspensions based upon public safety violations, the suspension shall be effective immediately upon such a finding by the director, provided written notice is promptly mailed to the certificate or permit holder. In addition to public safety concerns, and the other reasons set forth in this article, the director may suspend or revoke a certificate of convenience and necessity if the certificate holder has failed, or shall fail, to file with the secretary of state any report required by Arkansas state law.

(b) Any person whose certificate of convenience and necessity, pedal carriage license, or permit has been suspended or revoked by the director may appeal such suspension or revocation to the board of directors by giving notice in writing to the director within ten (10) calendar days of the date of mailing of such notice to the certificate or permit holder as set out above, provided that the certificate or permit holder shall not be permitted to operate during the pendency of an appeal if the suspension or revocation is based upon a public safety violation.

(c) Notice of suspension or revocation shall be sent by registered mail, return receipt requested, to the listed office of the certificate or permit holder. A copy of the suspension or revocation shall be provided to the chief of police, and shall be publicly posted at the office of the director. In addition, the director shall attempt to contact the certificate or permit holder by telephone, telefacsimile, or e-mail on the date the suspension or revocation is issued.
(Ord. No. 22,258, § 1, 5-16-23)

Chapter 35

WATER, SEWERS AND SEWAGE DISPOSAL*

Art. I. **In General, §§ 35-1—35-25**

Art. II. **Water, §§ 35-26—35-100**

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*__Editor's note—__Section 11.1 of Ord. No. 17,965, adopted March 16, 1999, repealed Ord. No. 15,344, arts. I—V, X—XII; and section 17 of Ord. No. 17,966, also adopted March 16, 1999, repealed arts. VI—IX of Ord. No. 15,344. These articles had been codified as art. III, §§ 35-101—35-133 and 35-176—35-187, the amendatory history for which can be found in the Code Comparative Table at the back of this Code. The new provisions enacted by Ord. No. 17,965 have been set out as a new div. 2 of art. III and the provisions of Ord. No. 17,966 have been set out as a new art. IV.

__Cross references—__Buildings and building regulations, Ch. 8; solid waste, Ch. 28.

__State law reference—__Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

ARTICLE I. IN GENERAL

Secs. 35-1—35-25. Reserved.

ARTICLE II. WATER*

DIVISION 1. GENERALLY

Sec. 35-26. Reserved.

Editor's note—Ord. No. 19,236, § 3, adopted Nov. 23, 2004, repealed § 35-26, which pertained to waterworks commission—created and derived from Code 1961, § 41-1; and Ord. No. 19,961, § 1, adopted Sept. 5, 1995.

Sec. 35-27. Reserved.

Editor's note—Ord. No. 19,236, § 3, adopted Nov. 23, 2004, repealed § 35-27, which pertained to same—authority; extension of water service outside of corporate limits and derived from Ord. No. 15,557, § 1, adopted Sept. 20, 1988.

Secs. 35-28—25-40. Reserved.

DIVISION 2. RATES AND CHARGES†

Sec. 35-41. Established; effective.

(a) *Rates schedule established.* The following schedule of rates is hereby established for the Little Rock Municipal Water Works: Rate Schedule No. 10.

(b) *Effective dates.* This schedule shall become effective for water billed on or after January 1, 2000, and January 1, 2001, as hereinafter set forth.
(Ord. No. 18,171-A, § 2, 1-4-00)

*__State law reference—__Municipal waterworks and water supply, A.C.A. § 14-234-101 et seq.

†__Editor's note—__Section 1 of Ord. No. 18,171-A, adopted Jan. 4, 2000, repealed Ord. No. 18,171 which had amended §§ 35-41—35-48. At the discretion of the editor, Ord. No. 18,171-A, is being treated as superseding the ordinances from which §§ 35-41—35-48 originally derived and were carried over in the 1988 recodification from § 41-3 of the 1961 Code. The editor has designated the new provisions of section 2 of Ord. No. 18,171-A as §§ 35-41—35-49.

__Cross reference—__Approval of utility rate increases, § 2-170.

Sec. 35-42. Meter measurement.

Except for public and private fire services, all water used shall be measured through meters. The size of each meter shall be determined by the waterworks commensurate with its estimate of the amount of water to be used for the premises. One (1) cubic foot of water is equal to seven and forty-eight one-hundredths (7.48) gallons weighing sixty-two and five-tenths (62.5) pounds avoirdupois.
(Ord. No. 18,171-A, § 2, 1-4-00)

Sec. 35-43. Minimum monthly charge.

The minimum monthly charge includes payment for the first two hundred (200) cubic feet of water used:

Effective January 1, 2000:

Meter Size (inches)	*Inside City*	*Outside City*
5/8	$ 3.60	$ 5.40
3/4	4.65	7.00
1	6.60	9.90
1 1/2	11.20	16.80
2	18.10	27.20
3	33.50	50.50
4	54.50	82.00
6	107.50	161.50
8	171.00	257.00
10	245.00	368.00
12	447.00	671.00

Effective January 1, 2001:

Meter Size (inches)	*Inside City*	*Outside City*
5/8	$ 3.60	$ 5.40
3/4	4.65	7.00
1	6.60	9.90
1 1/2	11.20	16.80
2	18.10	27.20
3	33.50	50.50
4	54.50	82.00
6	107.50	161.50
8	171.00	257.00
10	245.00	368.00
12	447.00	671.00

(Ord. No. 18,171-A, § 2, 1-4-00)

Sec. 35-44. Additional monthly charge.

In addition to the minimum monthly charge, the following rates shall apply to the amount of water used in excess of two hundred (200) cubic feet per month:

Effective January 1, 2000:

Cu. ft.	*Inside City Charges Per 100 C.F.*	*Outside City Charges Per 100 C.F.*
The next 1,800 or less	$0.780	$1.270
The next 98,000 or any part thereof	0.580	0.840
All over 100,000 or any part thereof	0.400	0.650

Effective January 1, 2001:

Cu. ft.	*Inside City Charges Per 100 C.F.*	*Outside City Charges Per 100 C.F.*
The next 1,800 or less	$0.860	$1.350
The next 98,000 or any part thereof	0.490	0.770
All over 100,000 or any part thereof	0.430	0.670

(Ord. No. 18,171-A, § 2, 1-4-00)

Sec. 35-45. Master meter customers.

(a) All outside city customers purchasing water through a master meter shall pay the above minimum monthly charge for the first two hundred (200) cubic feet of water used, and an additional amount determined by the following rates for all water used in excess of two hundred (200) cubic feet per month effective the dates stated:

Effective January 1, 2000:

Outside City Customers	*Per 100 C.F.*
North Little Rock	$0.515
Other master metered customers including City of Bryant and City of Shannon Hills	0.704

Effective January 1, 2001:

Outside City Customers	*Per 100 C.F.*
North Little Rock	$0.637
Other master metered customers including City of Bryant and City of Shannon Hills	0.874

(b) The term "outside city" used in the foregoing rates refers to any consumer, except the City of Little Rock, receiving service outside the municipal boundaries and to nonresident consumers who purchase water within the municipal boundaries, which water is then transported to a point outside the municipal boundaries for use or resale.
(Ord. No. 18,171-A, § 2, 1-4-00)

Sec. 35-46. Private fire service.

Private fire service connections for private premises shall pay the following annual fire service charges:

Effective January 1, 2000:

	Inside City Charges	*Outside City Charges*
Private fire hydrants, each	$ 59.50	$ 89.25
Fire connection, minimum charge	69.00	103.50
Automatic sprinkler system—minimum charge (1,000 heads)	69.00	103.50
Additional heads, each at	0.07	0.11
Standpipe, openings 1¼" diameter, (or smaller), each	13.50	20.25
Standpipe, openings 1½" diameter, each	21.00	31.50
Standpipe, openings 2" diameter, each	34.50	51.75
Standpipe, openings 2½" diameter, each	69.00	103.50

Effective January 1, 2001:

	Inside City Charges	*Outside City Charges*
Private fire hydrants, each	$ 59.50	$ 89.25
Fire connection, minimum charge	69.00	103.50
Automatic sprinkler system—minimum charge (1,000 heads)	69.00	103.50
Additional heads, each at	0.07	0.11
Standpipe, openings 1¼" diameter,		

	Inside City Charges	*Outside City Charges*
(or smaller), each	13.50	20.25
Standpipe, openings 1½" diameter, each	21.00	31.50
Standpipe, openings 2" diameter, each	34.50	51.75
Standpipe, openings 2½" diameter, each	69.00	103.50

(Ord. No. 18,171-A, § 2, 1-4-00)

Sec. 35-47. Billing and payment.

Bills for service shall be rendered and paid monthly except as follows:

Payments for private fire service shall be due in semiannual installments in advance on the first day of January and July of each year.

(Ord. No. 18,171-A, § 2, 1-4-00)

Sec. 35-48. Penalty and discontinuance of service.

A penalty of ten (10) percent shall be added to any bill not paid before the twentieth day following the billing date. If a bill is not paid within thirty (30) days after the billing date, service for the affected premises, or customer, may be discontinued; in such event, the waterworks may levy a reconnection charge.

(Ord. No. 18,171-A, § 2, 1-4-00)

Sec. 35-49. Unaffected services.

The schedules set out in this division do not apply to raw water sales or to other special contracts that are deemed to be contracts for the sale of surplus water, terminable at will, at prices to be fixed by the water works commission.

(Ord. No. 18,171-A, § 2, 1-4-00)

Secs. 35-50—35-100. Reserved.

ARTICLE III. SEWERS AND SEWAGE DISPOSAL*

DIVISION 1. GENERALLY

Sec. 35-101. Condemnation of property.

(a) The committee shall have the authority to act on behalf of the city to condemn any works to be acquired and any land, rights, easements, franchises, and other property, real or personal, deemed necessary or convenient for the construction of any works, or for any extensions, improvements, or additions to them as follows:

(1) For properties less than three (3) acres in size, the committee may proceed on behalf of the city with a condemnation action in the name of the city and the committee upon delivering to the city manager a property adopted committee resolution to condemn the property which sets forth the property to be condemned, the reason for the condemnation, and the assurance that the property shall be condemned in the name of the city for the use and benefit of the committee;

(2) For properties three (3) acres in size or larger, the committee may proceed on behalf of the city with a condemnation action in the name of the city:

a. Upon delivering to the city manager a property [properly] adopted committee resolution to condemn the property which sets forth the property to be condemned, the reason for the condemnation, and the assurance that the property shall be condemned in the name of the city for the use and benefit of the committee, and

b. After receipt from the city manager of a written confirmation that the issue has been presented to the board of directors and there has

*__Cross reference—__Hazardous waste disposal, § 11-4(11).

__State law reference—__Municipal sewage systems, A.C.A. § 14-235-101 et seq.

been no request that the matter be included as an agenda item at a public meeting of the board of directors.

(b) Nothing in this section prohibits the city board of directors from adopting an express resolution to grant the committee authority to proceed on its behalf on any particular condemnation.
(Ord. No. 19,368, § 1, 8-1-05)

Sec. 35-102. Reserved.

Sec. 35-103. Sanitary sewer committee.

(a) The sanitary sewer committee shall consist of seven (7) members, appointed in accordance with state law, for terms of five (5) years each.

(b) The five (5) members of the committee serving on the effective date of Ordinance No. 20,412 [March 1, 2011] shall complete their regular term, and any reappointment or appointment of a successor shall be a full five-year regular term.

(c) The two (2) new members first appointed after the effective date of Ordinance No. 20,412 [March 1, 2011] shall serve for staggered terms so that in no year will more than two (2) members be appointed to a full five (5)-year term.

(d) Each member shall be an elector citizen of the city.

(e) The committee shall perform all the duties of the sanitary sewer committee as set forth in state law and this Code of Ordinances.

(f) The name of the committee shall be the Little Rock Water Reclamation Commission.
(Code 1961, § 35-1; Ord. No. 20,412, § 1, 3-1-11; Ord. No. 21,040, § 1, 5-19-15)

Cross reference—Boards and commissions generally, § 2-261 et seq.

State law reference—Sewer committees, A.C.A. § 14-235-206 et seq.

Secs. 35-104—35-120. Reserved.

DIVISION 2. SEWER USE

Sec. 35-121. Title, purpose and policy.

This division shall be known as the "General Sewer Use Ordinance" and sets forth uniform general requirements regulating the use of the public sewers for the City of Little Rock, Arkansas. The objectives of this Ordinance are:

(a) To regulate the general use of both public and private sewers within the jurisdiction of the City of Little Rock, Arkansas;

(b) To regulate private sewage disposal within the jurisdiction of the City of Little Rock, Arkansas;

(c) To regulate the installation, construction, maintenance, connection, and protection of building sewers within the jurisdiction of the City of Little Rock, Arkansas;

(d) To regulate the disconnection and sealing of building sewers within the jurisdiction of the City of Little Rock, Arkansas;

(e) To repeal all existing ordinances in conflict therewith.
(Ord. No. 17,965, § 1.1, 3-16-99)

Sec. 35-122. Definitions.

Unless a provision explicitly states otherwise, the following terms and phrases, as used in this division, shall have the meanings hereinafter designated:

And/or shall mean one item or the other or a combination of both or all.

Building drain shall mean that part of the lowest horizontal piping of a drainage system which receives the discharge from all drains which carry waste or water-born waste inside the walls of a building and conveys it to the building sewer, beginning five (5) feet outside the inner face of the building.

Building sewer shall mean the extension from the building drain to the public sewer or other place of disposal.

Manager shall mean the manager of Little Rock Wastewater Utility, or his authorized deputy, agent, or representative.

Natural outlet shall mean any outlet, including storm sewers and combined sewer overflows, into a water course, ditch, lake, or other body of surface or ground water.

Objectionable waste shall mean any wastes that can harm either the sewers, sewer treatment processes or equipment, have an adverse effect on the receiving stream or otherwise endanger life, health, or property, or constitutes a nuisance.

Person shall mean any individual, firm, company, association, society, corporation, or group.

POTW shall mean publicly owned treatment works.

Private sewage disposal system shall mean that facility owned, operated, and maintained by any person for the purpose of collecting and disposing of sewage within the property of said person.

Public sewer shall mean a common sewer in which all owners of abutting properties have equal rights, and is controlled by public authority.

Sanitary sewer shall mean a sewer in which sewage is carried, and to which storm, surface, and ground water are not intentionally admitted.

Sewage shall mean a combination of the water-carried wastes from residences, business buildings, institutions, commercial establishments, and industries.

Sewer shall mean a pipe or conduit for carrying sewage.

Sewer committee shall mean the Little Rock Sanitary Sewer Committee of the City of Little Rock Wastewater Utility.

Sewer system shall mean the City of Little Rock Wastewater Utility as operated by the sewer committee of the City of Little Rock, Arkansas.

Shall is mandatory; *may* is permissive.

Storm drain shall mean a drain or sewer for conveying water, ground water, subsurface water, or unpolluted water from any source.

Utility shall mean the Little Rock Sanitary Sewer Committee.

User shall mean a source of indirect discharge.

Wastewater shall mean the spent water of a community, including the combination of the liquid and water carried wastes from residences, commercial establishments, industrial plants, and institutions, together with any ground water, surface water, and storm water that may be present.

Water course shall mean a channel in which a flow of water occurs, either continuously or intermittently.
(Ord. No. 17,965, § 1.2, 3-16-99)

Sec. 35-123. Use of public sewers required.

(a) *Unsanitary conditions.* It shall be unlawful for any person to place, deposit, or permit to be deposited in any unsanitary manner on public or private property within the City of Little Rock, Arkansas, or in any area under the jurisdiction of said city, any human or animal excrement, or other objectionable wastes.

(b) *Stormwater discharge.* No person shall discharge or cause to be discharged any stormwater, surface water, groundwater, roof runoff, subsurface drainage, noncontact cooling water or other such waters into any sanitary sewer.

(c) *Discharge to natural outlets.* It shall be unlawful to discharge to any natural outlet within the City of Little Rock, Arkansas, or in any area under the jurisdiction of said city, any sewage or other polluted waters, except where suitable treatment has been provided as required by law.

(d) *Septic tanks, privies, cesspools.* Except as herein provided under section 35-124 below, it shall be unlawful for any person to construct or maintain any privy, privy vault, septic tank, cesspool, or other facility intended to be used for the disposal of sewage.

(e) *Connection to public sanitary sewer required.* The owner of all houses, buildings, or properties used for human occupancy, employment, recreation, or other purposes, situated within the City of Little Rock and abutting on any street, alley, or right-of-way in which there is now located or may in the future be located a public

sanitary sewer of the city, is hereby required, at his expense, to install suitable toilet facilities therein, and to connect such facilities directly with the proper public sewer in accordance with the provisions of this division, within thirty (30) days after date of official notice to do so, provided that said property is within three hundred (300) feet of any accessible public sanitary sewer.

(f) *Dischargers outside city.* All dischargers to the City of Little Rock POTW, who are outside the jurisdiction and are not part of another incorporated city, shall be required to agree by written contract to abide by the conditions set forth in this division, subsequent revisions and amendments to this division, and any rules and/or regulations promulgated by the sewer committee of the City of Little Rock in accordance with this division. All incorporated cities which discharge to the City of Little Rock POTW shall agree by written contract to adopt an ordinance which meets the requirements of 40 CFR 403, General Pretreatment Regulations, and will be at least as stringent as the conditions set forth in this division. This agreement must also contain a provision that allows for the adoption of any and all rules and/or regulations promulgated by the provisions of the sewer committee of the City of Little Rock in accordance with this article and shall delegate to the City of Little Rock the powers to enforce the provisions of all laws, rules and/or regulations adopted in accordance with this section.
(Ord. No. 17,965, §§ 2.1—2.6, 3-16-99)

Sec. 35-124. Private sewage disposal.

(a) *Private sewage disposal systems allowed.* Where a public sanitary sewer is not available, under the provisions of section 35-123(d), the building sewer shall be connected to a private sewage disposal system complying with the provisions of this section.

(b) *Permits required.* Before commencement of construction of a private sewage disposal system, the owner shall first obtain a written permit from the office of the Arkansas Department of Health and/or the Arkansas Department of Environmental Quality. The application for such permit(s) shall be supplemented by such plans, specifications, test results, and other information as deemed necessary by the permitting authority.

(c) *Compliance with regulations.* The type, capacities, locations, and layout of private sewage disposal systems shall comply with all requirements and recommendations of the Arkansas Department of Health and/or the Arkansas Department of Environmental Quality.

(d) *Connection to public sewer required.* When a public sewer becomes available, the building sewer shall be connected to said sewer within thirty (30) days after date of official notice to do so, and the private sewage disposal system shall be cleaned of all sludge and solids, and filled with suitable materials.

(e) *Owner responsibilities.* The owner shall operate and maintain the private sewage disposal facilities in a sanitary manner at all times, at no expense to Little Rock Wastewater Utility.

(f) *Additional requirements govern.* No statement contained in this section shall be construed to supersede any additional requirements that may be imposed by the Arkansas Department of Health or the Arkansas Department of Environmental Quality, and in the event of any conflict between this section and any such additional requirements, the latter shall govern.
(Ord. No. 17,965, §§ 3.1—3.6, 3-16-99)

Sec. 35-125. Building sewers and connections.

(a) *Authorizations required.* No unauthorized person shall uncover, make any connection with or opening into, use, alter, or disturb, a public sewer or appurtenance thereof without first obtaining a written permit from the manager of the Little Rock Wastewater Utility.

(b) *Building sewer permits/fees required.* A building sewer permit shall be required for all residential, commercial, and industrial connections to the sanitary sewer system. The owner or agent shall make application on a special form provided by the utility. The permit application shall be supplemented by any plans, specifications, or other information considered pertinent in the judgment of the manager. A permit and

inspection fee for residential, commercial, and industrial building sewer connections shall be paid to the Little Rock Wastewater Utility at the time the application is filed. Coincident with application for a permit, a connection fee shall be paid to the Little Rock Wastewater Utility. Said fee shall be in proportion to the sewage treatment capacity required by the connected facility in accordance with a schedule adopted by the sewer committee of Little Rock Wastewater Utility.

(c) *Costs, expenses, and indemnification.* All costs and expenses incident to the installation and connection of the building sewer shall be borne by the owner. The owner shall indemnify the city from any loss or damage that may directly be occasioned by the installation of the building sewer.

(d) *Separate building sewers required.* A separate and independent building sewer shall be provided for every building except as follows:

(1) Where multiple buildings are constructed in an apartment complex or condominium on a single lot or tract of land which cannot be subsequently subdivided and sold in parcels, the individual buildings may be connected to a collector building sewer provided that only one person is responsible for maintenance of the building sewer.

(2) Temporary buildings, mobile homes, or similar portable structures may be connected to a building sewer installed to serve a previously constructed permanent building provided that both the permanent and temporary buildings are located on the same lot.

(e) *Use of old building sewers.* Old building sewers may be used in connection with new buildings only when they are found, upon examination and testing by the manager, to meet all requirements of this division and other rules and regulations of the Little Rock Wastewater Utility.

(f) *Construction requirements and specifications.* The size, slope, alignment, and materials of construction of a building sewer and the methods to be used in excavating, placing of pipe, joining, testing, and backfilling the trench, shall all conform to the rules and regulations of the Little Rock Wastewater Utility, the building and plumbing codes, or other applicable rules or regulations of the City of Little Rock, Arkansas. In the absence of code provisions or in amplification thereof, the materials and procedures set forth in appropriate specifications of the American Standard Testing Material (A.S.T.M.) and the Water Environment Federation (W.E.F.) Manual of Practice No. 9 shall apply.

(g) *Building sewer elevations/lift stations.* Whenever possible, the building sewer shall be brought to the building at an elevation below the basement floor. In all buildings in which any building drain is too low to permit gravity flow to the public sewer, sanitary sewage carried by such building drain shall be lifted by a means approved by the manager and discharged to the building sewer.

(h) *Prohibited connections.* No person shall make, permit to be made, own, use or be in possession of a connection of roof drains, downspouts, exterior foundation drains, areaway drains, or other sources of surface runoff or groundwater to a building sewer or building drain which is directly or indirectly connected to a public sanitary sewer. If such connection is found to exist, the owner shall be notified and given thirty (30) days to disconnect the prohibited cross connection. If disconnection is not made, sewer service will be discontinued until such repair is made.

(i) *Conformance to rules and regulations.* The connection of a building sewer into a public sewer shall conform to the rules and regulations of the Little Rock Wastewater Utility, the building and plumbing codes or other applicable rules of the City of Little Rock, Arkansas, or the procedures set forth in appropriate specifications of the A.S.T.M. and W.E.F. Manual of Practice No. 9. All such connections shall be made gas tight and water tight. Any deviation from the prescribed procedures and materials must be approved by the manager before installation.

(j) *Notification—Inspection and connection.* The applicant for the building sewer permit shall notify the manager of the Little Rock Wastewater Utility when the building sewer is ready for inspection and connection to the public sewer. All

portions of the building sewer from the foundation to the connection to the public sewer shall be inspected and approved by the manager before backfilling.

(k) *Protection of the public.* All excavations for building sewer installation shall be adequately guarded with barricades and lights so as to protect the public from hazard.

(l) *Restoration of public property.* Streets, sidewalks, parkways, and other public property disturbed in the course of the work shall be restored in a manner satisfactory to the City of Little Rock Public Works Department.

(m) *Operation and maintenance requirements.* The owner of any building or buildings which is (are) connected to the public sanitary sewer shall be required to operate and properly maintain the building drains and building sewer in accordance with all provisions of this article at no expense to the Little Rock Wastewater Utility.
(Ord. No. 17,965, §§ 4.1—4.13, 3-16-99)

Sec. 35-126. Protection from damage.

(a) *Damage, destruction, and tampering.* No person shall maliciously, willfully, or negligently break, damage, destroy, uncover, deface, or tamper with any structure, appurtenance, or equipment which is a part of the sewage works.

(b) *Unauthorized covering.* No unauthorized person shall cover any manhole on a public sewer with earth or paving, or otherwise render it inaccessible.

(c) *Removal of cover.* No unauthorized person shall remove the earth cover from a public sewer so that less than two (2) feet of earth cover remains over the pipe bells. Approval to remove subsequent cover shall require written consent from the manager of the Little Rock Wastewater Utility.

(d) *Applicable penalties.* Violation of any provision of this section is a Class C misdemeanor.
(Ord. No. 17,965, §§ 5.1—5.4, 3-16-99)

Sec. 35-127. Disconnecting sewers.

(a) *Disconnection and sealing required.* Before any dwelling or other building being served by the public sewer is moved or demolished, the building sewer serving said building shall be disconnected from the public sewer at the property line and the remaining building sewer sealed to prevent the entrance of stormwater, groundwater, and debris into the public sewer. The manager shall inspect all disconnect and seals.

(b) *Application and fee required.* Prior to the demolition or moving of any building served by a public sewer, application shall be made to the office of the Little Rock Wastewater Utility for disconnect and seal of the building sewer by the Utility and the sewer seal fee, as set by the sewer committee, shall be paid to the utility at that time.

(c) *Notification requirements.* At least three (3) days before the building is moved or demolished, but after it is no longer occupied, the party making the application outlined in subsection (b), above, shall notify the utility that the building sewer is ready for inspection of disconnection and sealing.
(Ord. No. 17,965, §§ 6.1—6.3, 3-16-99)

Sec. 35-128. Power and authority of inspectors.

(a) *Right of entry.* The manager and other duly authorized employees of the Little Rock Wastewater Utility bearing proper credentials and identification shall be permitted to enter all properties connected to the sanitary sewer system for the purposes of inspection, observation, measurement, sampling, and testing in accordance with the provisions of this division. The manager or other duly authorized employee of the Little Rock Wastewater Utility bearing proper credentials and identification shall be permitted to enter all private properties through which the city holds a duly negotiated easement for the purposes, but not limited to, inspection, observation, measurement, sampling, repair, and maintenance of any portion of the sewage works lying within said easement. Any entry in and subsequent work on any such easement shall be done in full accor-

dance with the terms of the duly negotiated easement pertaining to the private property involved.

(b) *Adoption of rules and regulations pertaining to services.* In addition to the provisions of this division, the sewer committee of the City of Little Rock is specifically authorized to make such other reasonable rules and regulations in regard to the construction, use, and operation of sanitary sewers to be connected to, or connecting into, the mains of the Little Rock Wastewater Utility system. Such rules and regulations so made and adopted at a regular meeting of the sewer committee shall become effective as follows:

(1) A public notice of intent to enact and intention of proposed rules and regulations shall be placed in a daily newspaper in the City of Little Rock, Arkansas, one (1) day for each of two (2) successive weeks with a brief summary of the proposed rules and regulations.

(2) The proposed rules and regulations shall be available for inspections and reproduction at the office of the manager of the wastewater utility for thirty (30) days following the first publication of the public notice.

(3) A correct copy of those rules and regulations shall be filed for permanent record with the city clerk of the City of Little Rock together with any written objections to the proposed rules and regulations at the end of the thirty (30) day public review period.

(4) Said rules and regulations shall become effective on the filing of said copy for permanent record with the city clerk.

(Ord. No. 17,965, §§ 7.1, 7.2, 3-16-99)

Sec. 35-129. Administrative enforcement remedies.

(a) *Enforcement procedure.* Whenever the manager finds that any person has violated or is violating any provision of this division, or any prohibition, limitation, or requirement contained herein, he shall serve upon such person a written notice via certified mail or personal service stating the nature of the violation and providing a reasonable time, not to exceed thirty (30) days, for the satisfactory correction thereof.

(b) *Show cause hearing.*

(1) If the violation is not corrected by timely compliance, the manager shall order any person who violates any provision of this division or causes or allows an unauthorized discharge to show cause before the manager why service should not be terminated. A notice shall be served on the offending party, specifying the time and place of a hearing to be held by the manager regarding the violation, and directing the termination of service. The notice of the hearing shall be served personally or by registered or certified mail (return receipt requested) at least ten (10) days before the hearing. Service may be made on any agent or officer of a corporation.

(2) The manager shall conduct the hearing, take the evidence, and the manager is further authorized to do any and all of the following:

a. Issue notices of hearings requesting the attendance and testimony of witnesses and the production of evidence relevant to any matter involved in any such hearings and conduct such hearing for the purpose of making a determination of the existence of violations and recommendation to the sewer committee for appropriate action.

b. Transmit a report of the evidence and hearing, including transcripts and other evidence, together with the recommendations and/or findings of the manager to the sewer committee for final action by the sewer committee subject to any further information which the sewer committee may request or any party to the action may desire to submit for further consideration.

c. At any public hearing, testimony taken before the manager must be under oath and recorded by cassette tape or stenographically. The transcript, so recorded, will be made available to any member of the public or any party to the hearing upon payment of the cost of production.

(3) After the sewer committee has reviewed the evidence, and the manager's recommendation it may issue an order to the party responsible for the discharge or violation directing that, following a specified time period, the sewer service be discontinued unless adequate treatment facilities, devices, or other related appurtenances shall have been installed or existing treatment facilities, devices, or other related appurtenances are properly operated or the violation is corrected, and such further orders and directives as are necessary and appropriate. Such order shall be subject to review by appeal to the Circuit Court of Pulaski County, Arkansas, in accordance with the law of Arkansas.

(4) A discharge in violation of the provisions of this division shall be considered a public nuisance. In addition to the procedures outlined in sections 35-127 and 35-128, nothing herein shall be deemed to prevent the sewer committee and/or the utility from seeking appropriate legal and/or equitable relief in the Courts of Arkansas in the event of a violation or discharge in violation of the provisions of this division.

(c) *Emergency suspension of service.* The sewer committee may for good cause shown, after notice, suspend the receipt of wastewater discharge to the POTW, subject to a hearing within five (5) days, and, thereafter, revoke the wastewater discharge permit of a discharger when it appears to the sewer committee that an actual or threatened discharge presents or threatens an imminent and substantial danger to the health or welfare of persons, substantial danger to the environment, interferes with the operation of the POTW, or violates any of the provisions of this division. Any discharger notified of the suspension of service and/or discharge permit, shall within a reasonable period of time, as determined by the sewer committee or its representative, cease all discharges. In the event of failure of the discharger to comply voluntarily with the suspension order within the time specified, the sewer committee shall take all lawful actions necessary to immediately suspend the access of the user to the POTW. The sewer committee shall reinstate the service and/or discharge permit upon proof by the discharger of the elimination of the non-complying discharges or conditions creating the threat of imminent or substantial danger as set forth above. The discharger shall be charged with reimbursing the LRWU all costs incurred in the suspension of service before the service will be reinstated.
(Ord. No. 17,965, §§ 8.1—8.3, 3-16-99)

Sec. 35-130. Judicial enforcement remedies.

(a) *Injunctive relief.* Whenever a user has violated any provision of this division or continues to violate any provision of this division, wastewater discharge permits or orders issued hereunder, the sewer committee may commence action for appropriate legal and/or equitable relief in any court of competent jurisdiction for the issuance of a temporary or permanent injunction, as appropriate, which restrains or compels compliance, performance of a sewer committee order, or other requirement imposed by this division on activities of the user. A petition for injunctive relief need not be filed as a prerequisite to taking any other action against a user.

(b) *Civil penalties.*

(1) Any person or other entity found to be violating any provision of this division or regulations promulgated by the sewer committee shall be subject to a fine in an amount of not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for any one (1) specified offense or violation of such ordinance, and not less than one hundred dollars ($100.00) nor more than one thousand dollars ($1,000.00) for each repetition of such offense or violation. If a thing prohibited or rendered unlawful is, in its

nature, continuous in respect to time, the fine or penalty for allowing the continuance thereof shall not exceed two hundred fifty dollars ($250.00) per day for each continuing offense or violation.

(2) Any person or other entity who knowingly makes any false statements, representations or certification of any record, report, plan, or other document filed or required to be maintained pursuant to this division, regulations, or laws referred to herein, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this division, regulations or laws referred to herein, shall be subject to a fine in an amount not less than one hundred dollars ($100.00) nor more than five hundred dollars ($500.00) for any one (1) specified offense or violation of such ordinance, and not less than one hundred dollars ($100.00) nor more than one thousand dollars ($1,000.00) for each repetition of such offense or violation. If a thing prohibited or rendered unlawful is, in its nature, continuous in respect to time, the fine or penalty for allowing the continuance thereof, in violation of such ordinance, shall not exceed two hundred fifty dollars ($250.00) per day for each offense or violation.

(3) Any person or other entity violating any of the provisions of this division shall become liable to the utility for any expense, loss, or damage occasioned the utility by reason of such violation.

(4) In addition to the civil penalties provided for herein, the sewer committee may recover, on behalf of the utility, from a person or other entity(ies) determined to be in violation of the provisions of this division any damages suffered, costs, and other expenses of litigation in an action at law or equity which may be permitted by the laws of Arkansas.

(5) The sewer committee shall petition a court of competent jurisdiction to impose, assess and recover all civil penalties, legal fees, and costs together with damages if appropriate. In determining the amount of the penalty, the sewer committee in its recommendation for civil penalties, the city board of directors and the court may take into account all relevant circumstances, including, but not limited to, the extent of harm caused by the violation, the magnitude and duration of the violation, any economic benefit gained by the user in allowing the violation, the timing and nature of any corrective actions taken by the user, the compliance history of the user, and any other facts as justice requires.

(6) Filing a suit for civil penalties shall not be a prerequisite for taking any other action against a user.

(c) *Criminal prosecution.*

(1) The sewer committee may criminally prosecute in a court of competent jurisdiction any user who knowingly or negligently violates any provision of this division, its wastewater discharge permit or any orders issued hereunder. If so prosecuted the User shall, upon conviction, be guilty of a misdemeanor, and be punished by a fine not to exceed five hundred dollars ($500.00) per violation or imprisonment for such term as allowed by law.

(2) The sewer committee may criminally prosecute in a court of competent jurisdiction any user who knowingly or negligently makes any false statement, representation or certification in any application, record, report, plan or other document filed or required to be maintained pursuant to this division or its wastewater discharge permit, or who falsifies, tampers with, or knowingly or negligently renders inaccurate any monitoring or sampling device, wastewater sample or other methods required by this division. If so prosecuted, the user shall, upon conviction, be guilty of a misdemeanor, and be punished by a fine of not more than five hundred

dollars ($500.00) per violation or by imprisonment for such term as allowed by law.

(3) Each day on which a violation shall occur or continue shall be a separate and distinct offense. In the case of monthly or other long-term average discharge limits, penalties shall accrue for each business or operational day during the period of violation.

(d) *Remedies nonexclusive.* The provisions in sections 35-128 through 35-130 are not exclusive remedies. The utility reserves the right to take any, all, or any combination of these actions against a noncompliant user. The utility shall be authorized to take other action against any user when the circumstances warrant. Further, the utility is empowered to take more than one (1) enforcement action against any noncompliant user. These actions may be taken concurrently.

(e) *Initiation of criminal or civil action.* Any criminal or civil action for violation of this division may be initiated only after a majority vote of the sewer committee resolves to pursue such action.

(1) For users with properties located within the corporate limits of the City of Little Rock, no suit to collect civil or criminal penalties or fines may be initiated until after such time that a resolution authorizing the suit is duly adopted by the sewer committee, as the governing body.

(2) For users with properties located outside the corporate limits of the City of Little Rock, the Board of Directors of the City of Little Rock hereby delegates authority to the sewer committee to be the governing body to authorize, by resolution, legal actions to collect civil or criminal penalties or fines.

(Ord. No. 17,965, §§ 9.1—9.5, 3-16-99)

Sec. 35-131. Supplemental enforcement action.

(a) *Performance bonds.* The manager may decline to issue a wastewater discharge permit to any user who has failed to comply with the provisions of this division, any orders, or a previous wastewater discharge permit issued hereunder, unless such User first files a satisfactory bond, payable to the Little Rock Sanitary Sewer Committee or the utility, in a sum not to exceed a value determined by the manager to be necessary to achieve compliance.

(b) *Liability insurance.* The manager may decline to issue a wastewater discharge permit to any user who has failed to comply with the provisions of this division, or violated any order, or a previous wastewater discharge permit issued hereunder, unless that user first submits proof that it has obtained financial assurances sufficient to restore or repair damage to the POTW caused by its discharge.

(c) *Public nuisances.* Any violation of this division, wastewater discharge permit, or orders issued hereunder, is declared a public nuisance and shall be corrected or abated as directed by the manager or his designee. Any person(s) creating a public nuisance shall be subject to the provisions of the City Code section 20-2 governing such nuisances, including reimbursing the utility for any costs incurred in removing, abating, or remedying said nuisance. Any discharger which makes, causes, or allows a prohibited discharge which causes additional expense or costs to handle and treat such discharge or to correct damages caused by such discharge shall be required to reimburse the utility for such cost or expense.

(Ord. No. 17,965, §§ 10.1—10.3, 3-16-99)

Secs. 35-132—35-150. Reserved.

DIVISION 3. RATES AND CHARGES*

Sec. 35-151. Generally.

(a) The sewer committee shall compute separately for each customer (customer being hereby defined as any landowner, lessee, or tenant whose buildings or premises are connected with and use the sewer system or otherwise discharge sanitary sewage, industrial waste, water or other approved

*__Cross reference—__Approval of utility rate increases, § 2-170.

__State law reference—__Sewer rates and charges, A.C.A. § 14-235-223 et seq.

wastewater sources, either directly or indirectly into the sewerage system) a monthly bill for each class of customer.

(b) In case of customers obtaining water exclusively from Central Arkansas Water, the computation shall be based upon the water consumption records of Central Arkansas Water.

(c) In the case of customers obtaining water from sources other than Central Arkansas Water, the sewer committee shall determine the amount of water obtained by such customers from other sources and the amount so determined shall be used (together with the amount reflected by Central Arkansas Water's records, if any said customer also obtained water from Central Arkansas Water) in making the computation.

(d) In the case of customers whose water use is such that an appreciable quantity does not reach the sewer system, then the customer may be permitted by the utility, upon written request to the utility, to have a meter installed for the purpose of determining the amount of such quantity not reaching the sewer system, provided, however, the meter shall be inspected and approved by the utility. Upon written application to the sewer committee, if a customer can show by such an approved and inspected meter that an appreciable quantity of the water used by the customer did not reach the sewer system, then the computation upon which that customer's sewage charge is based shall be adjusted and determined in accordance with the measurement as indicated by the meter, but the burden of showing that an appreciable quantity of water usage does not reach the sewer system shall be upon the customer, and in no event shall the customer be entitled to any adjustment for such water usage beyond twelve (12) months from the date of the written application to the sewer committee.

In the case of water used for irrigation or lawn sprinkling purposes, the customer shall have an additional service meter installed by Central Arkansas Water to deliver the water in such a way that the water is billed separately without a sewer charge being computed.

(e) For residential customers (defined as single family residences or multimetered, multifamily residences or apartments all of which utilize meters less than one (1) inch) only, the sewer charge each month will be based on the average monthly consumption for the months of October, November, December, January, February, and March (winter month period). (In the case of residential users which were not on a meter during the previous winter month period, the rates shall be computed on class average water usage until such time as an average monthly winter usage can be calculated.) In the case of other users not on a metered basis, the city shall establish water consumption based on a comparison of the nonmetered users with a metered user of a similar class.

(Code 1961, § 35-2(a)-(d); Ord. No. 16,018, § 4, 3-5-91; Ord. No. 16,456, §§ 1, 4, 7-6-93; Ord. No. 18,232, § 1(a)—(d), 3-21-00; Ord. No. 18,752, § 1(a)—(e), 9-17-02)

Sec. 35-152. General rates.

The following rates shall be effective September 17, 2010, and shall be applied to each customer, unless modified by contract recommended by the sewer committee and approved by ordinance by the city board of directors if the facility provides its own conveyance directing its waste stream to the digester or other specialty treatment process which does not commingle with the influent at the headworks of the wastewater treatment plant, and which does not adversely impact the fair and reasonable rate structure applicable to all customers, as above determined, to arrive at the monthly charge for each customer.

(1) *Service availability charge.*

	Rates	
	Effective September 17, 2002	
Size Water Meter Furnishing Water	*Inside City Limits*	*Outside City Limits*
5/8"	$ 9.00	$ 13.50
3/4"	10.65	16.00

	Rates	
	Effective September 17, 2002	
Size Water Meter Furnishing Water	*Inside City Limits*	*Outside City Limits*
1"	14.25	21.40
1 ½"	23.35	35.05
2"	34.20	52.35
3"	59.55	89.30
4"	95.75	143.65
6" or larger	$186.30	$279.40

(2) *Volumetric charge (for all water consumed over two hundred (200) cubic feet per month).*

	Effective September 17, 2002	
Volume of Water Consumed	*Inside City Limits*	*Outside City Limits*
Per 100 cu. ft	$ 1.83	$ 2.75

The following rates shall be effective June 1, 2003, and shall be applied to each customer, as above determined, to arrive at the monthly charge for each customer:

(1) *Service availability charge.*

	Rates	
	Effective June 1, 2003	
Size Water Meter Furnishing Water	*Inside City Limits*	*Outside City Limits*
⅝"	$ 11.00	$ 16.50
¾"	12.90	19.40
1"	17.25	25.85
1½"	28.25	42.40
2"	41.40	63.35
3"	72.00	108.00
4"	115.85	173.80
6" or larger	225.40	338.10

(2) *Volumetric charge (for all water consumed over two hundred (200) cubic feet per month):*

	Effective June 1, 2003	
Volume of Water Consumed	*Inside City Limits*	*Outside City Limits*
Per 100 cu. ft	$ 2.21	$ 3.32

(3) *Billing charge.* Customers whose usage requires rendering a bill shall pay a service charge as determined by the utility's schedule of fees.

(4) *Service line replacement fee.* Residential customers shall pay a service line replacement fee as determined by the utility's schedule of fees.

(5) *Vacant property.* Vacant, unoccupied but metered property, whether or not using the system, shall be subject to a service charge equal to the minimum monthly charge for the respective class of properties. Vacant, unoccupied and unmetered property not actually using the system shall not be subject to a charge, but the burden of demonstrating vacancy, nonuse and lack of meter to the utility, shall rest upon the customer.

(6) *Delinquent accounts.* All accounts for sewer service not paid within thirty (30) days of the billing date shall bear interest at the maximum rate permitted by law until paid in full.

(7) *Adjustments.* Any customer who feels that his charge is unjust and inequitable may make written application to the utility requesting a review of his charge. Said written request shall, when necessary, show the actual or estimated average flow and/or strength of his wastewater in comparison with the values upon which the charge is based, including how the measurements or estimates were made. Review of the request shall be made by the utility and if substantiated, the charges for that customer shall be recomputed based on the revised flow and/or strength data and the new charges shall be applicable to the next billing cycle/period.

(8) *Wastewater rate subsidy program.* A customer may qualify for payment of sewer rates payable according to the wastewater rate subsidy program by submitting a written application, as provided by the city department of public works, solid waste division for the solid waste fee increase subsidy program, and if approved by Little Rock Wastewater Utility, such customer will pay the minimum service availability charge for the size water meter located at the customer's residence.

(Code 1961, § 35-2(e); Ord. No. 15,242, § 1, 2-3-87; Ord. No. 16,018, § 1, 3-5-91; Ord. No. 16,080, § 1, 8-6-91; Ord. No. 16,456, § 1, 7-6-93; Ord. No. 18,232, § 1(e), 3-21-00; Ord. No. 18,752, § 1(f), (g), 9-17-02; Ord. No. 20,311, § 1, 9-7-10)

Sec. 35-153. Surcharge for discharge of certain wastes.

(a) The discharge of wastewaters having an excessive biochemical oxygen demand (BOD) or total suspended solids (TSS) or oil and grease (O&G) or pH constitute an added expense in the operation and maintenance of the utility's treatment facilities and should be accompanied by payment of an extra strength surcharge to compensate for this added expense. Excessive BOD and/or TSS is hereby defined as in excess of two hundred fifty (250) mg/L, for either parameter, excessive O&G is hereby defined as in excess of fifty (50) mg/L, and pH outside the range of ≥5.0 and ≤12.0 (standard pH units) as determined in accordance with test methods approved under 40 CFR Part 136. (When, in the opinion of the utility, the strength of a nondomestic wastewater discharge is best characterized by a chemical oxygen demand (COD) concentration, the utility may substitute the COD for BOD for the purpose of surcharge billing. The COD surcharge will be based on strengths in excess of four hundred (400) mg/L.) The extra strength surcharge shall be ten cents ($0.10) per pound of BOD in excess of two hundred fifty (250) mg/L, nine cents ($0.09) per pound of TSS in excess of two hundred fifty (250) mg/L, ten cents ($0.10) per pound of O&G in excess of fifty (50) mg/L, 10 cents per pound of COD in excess of four hundred (400) mg/L, and one dollar thirty-eight cents ($1.38) per CCF for pH outside the range of ≥5.0 and ≤12.0 (standard pH units). The extra strength surcharge shall be computed separately for BOD (or COD), TSS, pH, and O&G on the total discharge (consumption).

(b) There shall be a charge paid on all approved sources of landfill leachate delivered to the Adams Field or pumped into the collection system of ten cents ($0.10) per gallon.

(c) The following parameters are limited in concentration by the sanitary sewer committee through regulation and/or significant industrial users discharge permits: arsenic, cadmium, chromium, copper, cyanide, lead, pH, mercury, nickel, selenium, silver, TTO, zinc, and any other parameter limited by a discharge permit issued to the user.

(Code 1961, § 35-2.1; Ord. No. 15,242, § 2, 2-3-87; Ord. No. 16,018, § 2, 3-5-91; Ord. No. 16,456, § 2, 7-6-93; Ord. No. 18,232, § 2, 3-21-00; Ord. No. 18,752, § 2, 9-17-02)

Sec. 35-154. Vacant property.

Vacant, unoccupied property not actually using the sewer system shall not be subject to a charge, but the burden of showing vacancy and nonuse shall rest upon the owner of the property.

(Code 1961, § 35-3)

Sec. 35-155. Billing; enforcement.

All bills for sewer service shall be rendered monthly. Under the provisions of A.C.A. § 14-235-223, if any sewer charge is not paid within thirty

(30) days after same is due, there shall be a ten (10) percent penalty on the amount due, for which suit may be brought to collect all sums due, together with a reasonable attorney's fee.
(Code 1961, § 35-4; Ord. No. 15,242, § 3, 2-3-87; Ord. No. 16,018, § 3, 3-5-91; Ord. No. 16,456, § 3, 7-6-93; Ord. No. 18,232, § 3, 3-21-00; Ord. No. 18,752, § 3, 9-17-02)

Sec. 35-156. Notification of rate and user charges.

Each user of the sewer system shall be notified, at least annually by publication in a newspaper having wide circulation in Pulaski County, Arkansas, in conjunction with a regular bill, of the rate and the portion of the user charges which are attributable to waste water treatment services, in compliance with 40 C.F.R. § 35.929-2(f).
(Ord. No. 18,232, § 4, 3-21-00; Ord. No. 18,752, § 4, 9-17-02)

Secs. 35-157—35-160. Reserved.

ARTICLE IV. PRETREATMENT*

DIVISION 1. GENERAL PROVISIONS

Sec. 35-161. Title, purpose, and policy.

This article shall be known as "the pretreatment ordinance" and sets forth uniform requirements for users of the publicly owned treatment works for the City of Little Rock and enables Little Rock Wastewater, hereafter LRW, to comply with all applicable state and federal laws, including the Clean Water Act (33 United States Code section 1251 et seq.) and the General Pretreatment Regulations (40 Code of Federal Regulations Part 403). The objectives of this article are:

(a) To prevent the introduction of pollutants into the publicly owned treatment works that will interfere with its operation, contaminate the resulting biosolids, or interfere with the use and disposal of wastewater or biosolids in compliance with applicable statutes and regulations;

(b) To prevent the introduction of pollutants into the publicly owned treatment works that will pass through the publicly owned treatment works, inadequately treated, into receiving waters, or otherwise be incompatible with the publicly owned treatment works;

(c) To protect both publicly owned treatment works personnel who may be affected by wastewater and sludge in the course of their employment and the general public;

(d) To promote reuse and recycling of wastewater and biosolids from the publicly owned treatment works;

(e) To enable LRW to comply with its National Pollutant Discharge Elimination System permit conditions, biosolids use and disposal requirements, and any other federal or state laws to which LRW is subject.

(f) It is in the best interest of LRW to clarify and update the provisions of the existing sewer use ordinance (17,966) to achieve compliance with the Clean Water Act and regulations pursuant to 40 CFR 403 (General Pretreatment Regulations) as amended October 14, 2005.

(g) To promote and encourage pollution prevention and waste minimization and waste reduction at industrial users prior to their recycling, treatment, or disposal options.

This article shall apply to all users of the publicly owned treatment works. The article authorizes the issuance of wastewater discharge permits; provides for monitoring, compliance, and enforcement activities; establishes administrative review procedures; requires user reporting; and provides for the setting of such fees as necessary for the equitable distribution of costs resulting from the program established herein.
(Ord. No. 19,895, § 1.1, 12-21-07)

Sec. 35-162. Administration.

Except as otherwise provided herein, the CEO shall administer, implement, and enforce the provisions of this Ordinance. Any powers granted to or duties imposed upon the CEO may be delegated by the CEO to other LRW personnel.
(Ord. No. 19,895, § 1.2, 12-21-07)

Sec. 35-163. Abbreviations.

The following abbreviations, when used in this article, shall have the designated meanings:

BMP—Best management practice.

BOD— Biochemical oxygen demand.

BTEX—Benzene, toluene, ethylbenzene, xylene.

CFR—Code of Federal Regulations.

CIU—Categorical industrial user.

COD—Chemical oxygen demand.

EPA— U.S. Environmental Protection Agency.

Gpd—Gallons per day.

*__Editor's note__—Ord. No. 19,895, §§ 1—18, adopted Dec. 21, 2007, amended art. IV in its entirety and enacted similar provisions as set out herein. The former art. IV derived from Ord. No. 17,966, §§ 1.1—1.4, 2.1—2.6, 3.1—3.4, 4.1—4.6, 5.1—5.7, 6.1—6.14, 7.1, 7.2, 8, 9, 10.1—10.3, 11.1—11.4, 12.1—12.3, 13.1—13.3, 14.1, 14.2, and 15.1, adopted March 16, 1999.

IU—Industrial user.

mg/L—Milligrams per liter.

NPDES—National Pollutant Discharge Elimination System.

O&G—Oil and grease.

POTW— Publicly owned treatment works.

RCRA—Resource Conservation and Recovery Act.

SIC—Standard industrial classification.

SIU—Significant industrial user.

SNC—Significant noncompliance.

TSS—Total suspended solids.

U.S.C.— United States Code.
(Ord. No. 19,895, § 1.3, 12-21-07)

Sec. 32-164. Definitions.

Unless a provision explicitly states otherwise, the following terms and phrases, as used in this article, shall have the meanings hereinafter designated.

A. *Act* or "*the Act.*" The Federal Water Pollution Control Act, also known as the Clean Water Act, as amended, 33 U.S.C. § 1251 et seq.

B. *And/or* shall mean one item or the other or a combination of both or all.

C. *Approval authority.* The Arkansas Department of Environmental Quality.

D. *Authorized representative of the user.*

(1) If the user is a corporation:

(a) The president, secretary, treasurer, or a vice president of the corporation in charge of a principal business function, or any other person who performs similar policy or decision-making functions for the corporation; or

(b) The manager of one (1) or more manufacturing, production, or operating facilities, provided the manager is authorized to make management decisions which govern the operation of the regulated facility including having the explicit or implicit duty of making major capital investment recommendations, and initiate and direct other comprehensive measures to assure long-term environmental compliance with environmental laws and regulations; can ensure that the necessary systems are established or actions taken to gather complete and accurate information for individual wastewater discharge permit requirements; and where authority to sign documents has been assigned or delegated to the manager in accordance with corporate procedures.

(2) If the user is a partnership or sole proprietorship: a general partner or proprietor, respectively.

(3) If the user is a federal, state, or local governmental facility: a director or highest official appointed or designated to oversee the operation and performance of the activities of the government facility, or their designee.

(4) The individuals described in subsections (1) through (3), above, may designate another authorized representative if the authorization is in writing, the authorization specifies the individual or position responsible for the overall operation of the facility from which the discharge originates or having overall responsibility for environmental matters for the company, and the written authorization is submitted to the manager or CEO.

E. *Batch discharge.* The discharge of wastewater to a POTW on an intermittent basis.

F. *Best management practices* or *BMPs* means schedules of activities, prohibitions of practices, maintenance procedures, and other management practices to implement the prohibitions listed in subsection 35-175A. and B. [40 CFR 403.5(a)(1) and (b)]. BMPs include treatment requirements, operating procedures, and practices to control plant site runoff, spillage or leaks, sludge or waste disposal, or drainage from raw materials

storage. BMPs also include alternative means (i.e., management plans) of complying with, or in place of certain established categorical pretreatment standards and effluent limits.

G. *Biochemical oxygen demand* or *BOD.* The relative oxygen requirements of water and wastewater as determined by generally accepted standard laboratory procedures. The test measures the quantity of oxygen utilized in the biochemical oxidation of organic matter and inorganic matter such as sulfides, ferrous iron, and reduced forms of nitrogen. The test is conducted under standard laboratory procedures for five (5) days at twenty (20) degrees Centigrade, usually expressed as a concentration (e.g., mg/L).

H. *BTEX.* The sum of the milligram-per-liter concentrations of benzene, toluene, ethylbenzene, and xylene.

I. *BTEX waters.* Those waters associated with underground petroleum storage tanks. This may include water inside the tanks, water within the excavation pit upon removal of such tanks, or contaminated groundwater in the immediate vicinity of such a tank.

J. *Categorical pretreatment standard* or *categorical standard.* Any regulation containing pollutant discharge limits promulgated by EPA in accordance with sections 307(b) and (c) of the Act (33 U.S.C. § 1317) which apply to a specific category of users and which appear in 40 CFR chapter I, subchapter N, parts 405-471.

K. *CEO.* The chief executive officer of Little Rock Wastewater, or his duly authorized deputy, agent or representative.

L. *City.* The City of Little Rock, Arkansas.

M. *Composite sample.* A series of individual grab samples collected over a known period of time or proportional to flow and combined to make one sample.

N. *Chemical oxygen demand* or *COD.* A measure of the oxygen required to oxidize all compounds, both organic and inorganic, in water.

O. *Control authority.* Little Rock Wastewater.

P. *Environmental Protection Agency* or *EPA.* The U.S. Environmental Protection Agency or, where appropriate, the regional water management division director, or other duly authorized official of said agency.

Q. *Existing source.* Any source of discharge, the construction or operation of which commenced prior to the publication by EPA of proposed categorical pretreatment standards, which will be applicable to such source if the standard is thereafter promulgated in accordance with section 307 of the Act.

R. *Extra strength surcharge* or *surcharge.* The additional monthly sewer charge assessed to persons discharging wastewater exceeding the average domestic concentrations for BOD, COD, TSS, and/or oil and grease. The surcharge is based on the pounds of pollutant discharged and reflects the additional cost of treating high strength discharges.

S. *Garbage.* The solid wastes from the domestic and commercial preparation, cooking and disposing of food, and from the handling, storage, and sale of produce.

T. *Grab sample.* A sample which is taken from a waste stream without regard to the flow in the waste stream and over a period of time not to exceed fifteen (15) minutes.

U. *Indirect discharge* or *discharge.* The introduction of pollutants into the POTW from any non-domestic source regulated under section 307(b), (c), or (d) of the Act.

V. *Industrial user* or *user.* A source of indirect discharge.

W. *Interference.* A discharge, which alone or in conjunction with a discharge or discharges from other sources, inhibits or disrupts the POTW, its treatment processes or operations or its biosolids processes, use or disposal; and therefore is a cause of a violation of the POTW's NPDES permit or of the prevention of biosolids use or disposal in compliance with any of the following statutory/regulatory provisions or permits issued thereunder, or any more stringent state or local regulations: section 405 of the Act; the Solid Waste Disposal Act, including Title II commonly referred

to as the Resource Conservation and Recovery Act (RCRA); any state regulations contained in any state biosolids management plan prepared pursuant to subtitle D of the Solid Waste Disposal Act; the Clean Air Act; the Toxic Substances Control Act; and the Marine Protection, Research, and Sanctuaries Act.

X. *Landfill leachate.* Those waters collected from the under drainage collection system of a sanitary landfill.

Y. *Medical waste.* Isolation wastes, infectious agents, human blood and blood products, pathological wastes, sharps, body parts, contaminated bedding, surgical wastes, potentially contaminated laboratory wastes, dialysis wastes, pharmaceutical medications, and wastes containing radioactive isotopes.

Z. *Maximum allowable discharge limit.* The maximum amount of a pollutant (either in concentration or mass) that is allowed to be discharged to the POTW.

AA. *NPDES.* The National Pollutant Discharge Elimination System.

BB. *New source.*

(1) Any building, structure, facility, or installation from which there is (or may be) a discharge of pollutants, the construction of which commenced after the publication of proposed pretreatment standards under section 307(c) of the Act which will be applicable to such source if such standards are thereafter promulgated in accordance with that section, provided that:

(a) The building, structure, facility, or installation is constructed at a site at which no other source is located; or

(b) The building, structure, facility, or installation totally replaces the process or production equipment that causes the discharge of pollutants at an existing source; or

(c) The production or wastewater generating processes of the building, structure, facility, or installation are substantially independent of an existing source at the same site. In determining whether these are substantially independent, factors such as the extent to which the new facility is integrated with the existing plant, and the extent to which the new facility is engaged in the same general type of activity as the existing source, should be considered.

(2) Construction on a site at which an existing source is located results in a modification rather than a new source if the construction does not create a new building, structure, facility, or installation meeting the criteria of subsection (1)(b) or (c) above but otherwise alters, replaces, or adds to existing process or production equipment.

(3) Construction of a new source as defined under this paragraph has commenced if the owner or operator has:

(a) Begun, or caused to begin, as part of a continuous on-site construction program

(i) Any placement, assembly, or installation of facilities or equipment; or

(ii) Significant site preparation work including clearing, excavation, or removal of existing buildings, structures, or facilities which is necessary for the placement, assembly, or installation of new source facilities or equipment; or

(b) Entered into a binding contractual obligation for the purchase of facilities or equipment which are intended to be used in its operation within a reasonable time. Options to purchase or contracts which can be terminated or modified without substantial loss, and contracts for feasibility, engineering, and design studies do not constitute a contractual obligation under this subsection.

CC. *Noncontact cooling water.* Water used for cooling which does not come into direct contact with any raw material, intermediate product, waste product, or finished product.

DD. *Nonsignificant industrial user.* Any industrial or commercial facility with pollutant levels above domestic background.

EE. *Oil and grease* or *O&G.* A group of substances with similar physical characteristics are determined quantitatively on the basis of their common solubility in an organic extracting solvent. These substances including fats, waxes, free fatty acids, calcium and magnesium soaps, mineral oils, and certain other nonfatty materials. It includes other materials recovered by the solvent from an acidified sample (such as sulfur compounds, certain organic dyes, and chlorophyll) and not volatilized during the test. At the discretion of the CEO, the oil and grease test may be determined by the latest approved listing in 40 CFR, part 136.

FF. *Pass through.* A discharge which exits the POTW into waters of the United States in quantities or concentrations which, alone or in conjunction with a discharge or discharges from other sources, is a cause of a violation of any requirement of the POTW's NPDES permit, including an increase in the magnitude or duration of a violation.

GG. *Person.* Any individual, partnership, copartnership, firm, company, corporation, association, joint stock company, trust, estate, governmental entity, or any other legal entity; or their legal representatives, agents, or assigns. This definition includes all federal, state, and local governmental entities.

HH. *pH.* A measure of the hydrogen-ion concentration in a solution, expressed in standard units as the logarithm (base ten) of the reciprocal of the hydrogen-ion concentration in gram moles per liter (g/mole/L). On the pH scale (zero (0) to fourteen (14)), a value of seven (7) at twenty-five (25) degrees (seventy-seven (77) degrees) represents a neutral condition. Decreasing values indicate increasing hydrogen-ion concentration (acidity); increasing values indicate decreasing hydrogen-ion concentration (alkalinity).

II. *Pollutant.* Dredged spoil, solid waste, incinerator residue, filter backwash, sewage, garbage, sewage sludge, munitions, medical wastes, chemical wastes, biological materials, radioactive materials, heat, wrecked or discarded equipment, rock, sand, cellar dirt, municipal, agricultural and industrial wastes, and certain characteristics of wastewater (e.g., TSS, turbidity, color, BOD, COD, cyanide, oil and grease, heavy metals, toxicity, or odor).

JJ. *POTW treatment plant.* That portion of the publicly owned treatment works (POTW) designed to provide treatment to wastewater.

KK. *Pretreatment.* The reduction of the amount of pollutants, the elimination of pollutants, or the alteration of the nature of pollutant properties in wastewater prior to, or in lieu of, introducing such pollutants into the POTW. This reduction or alteration can be obtained by physical, chemical, or biological processes; by process changes; or by other means, except by diluting the concentration of the pollutants unless allowed by an applicable pretreatment standard.

LL. *Pretreatment program.* LRW's EPA and/or Arkansas Department of Environmental Quality-approved program to administer the requirements of 40 CFR 403, the General pretreatment regulations, and associated national categorical standards as adopted into section 4 of Regulation No. 6: Regulations for State Administration of the National Pollutant Discharge Elimination System.

MM. *Pretreatment requirement.* Any substantive or procedural requirement related to pretreatment, other than a national pretreatment standard, imposed on an industrial user.

NN. *Pretreatment standards* or *standards.* Pretreatment standards shall mean prohibited discharge standards, categorical pretreatment standards, and local limits.

OO. *Prohibited discharge standards* or *prohibited discharges.* Absolute prohibitions against the discharge of certain substances; these prohibitions appear in section 35-175.

PP. *Publicly owned treatment works* or *POTW.* A "treatment works," as defined by section 212 of the Act (33 U.S.C. section 1292) which is owned by the city. This definition includes any devices or systems used in the collection, storage, treatment, recycling, and reclamation of sewage or industrial wastes of a liquid nature and any conveyances which convey wastewater to a treatment plant.

QQ. *Sampling/inspection manhole.* An approved access point to a building sewer which is used for the purpose of collecting a wastewater sample.

RR. *Sanitary sewer.* A sewer in which sewage is carried, and to which storm, surface, and ground water are not intentionally admitted.

SS. *Secure sample point.* Any access point to a building sewer which is used for the purpose of collecting a wastewater sample where LRW is required to maintain custody of the sample and can be secured via approved structure by LRW.

TT. *Septic tank waste.* Any domestic sewage from holding tanks such as vessels, campers, trailers, and septic tanks.

UU. *Sewage.* The spent or used water of a community or industry containing dissolved and suspended matter.

VV. *Sewer.* A pipe or conduit for carrying sewage.

WW. *Sewer committee.* The City of Little Rock Sanitary Sewer Committee of Little Rock Wastewater.

XX. *Shall* is mandatory; *may* s permissive.

YY. *Significant industrial user.*

(1) A user subject to categorical pretreatment standards; or

(2) A user that:

(a) Discharges an average of twenty-five thousand (25,000) gpd or more of process wastewater to the POTW (excluding sanitary, noncontact cooling, and boiler blow down wastewater);

(b) Contributes a process waste stream which makes up five (5) percent or more of the average dry weather hydraulic or organic capacity of the POTW treatment plant; or

(c) Is designated as such by the CEO on the basis that it has a reasonable potential for adversely affecting the POTW's operation or for violating any pretreatment standard or requirement.

ZZ. *Slug load* or *slug discharge.* Any discharge at a flow rate or pollutant concentration which could cause a violation of the prohibited discharge standards in section 35-175. A slug discharge is any discharge of a nonroutine, episodic nature, included but not limited to an accidental spill or a noncustomary batch discharge, which has a reasonable potential to cause interference or pass through, or in any way violate the POTW's regulations, local limits or permit conditions.

AAA. *Standard industrial classification (SIC) code.* A classification pursuant to the North American Industry Classification System—United States, (1997) issued by the United States Office of Management and Budget's Economic Classification Policy Committee.

BBB. *State.* The State of Arkansas.

CCC. *Stormwater.* Any flow occurring during or following any form of natural precipitation, and resulting from such precipitation, including snow melt.

DDD. *Total suspended solids* or *TSS.* The total suspended solids are wastewater residues removed by laboratory filtering and retained on a standard glass-fiber filter with a nominal pore size of 2.0 um (or smaller) and dried to a constant weight at a temperature of one hundred three (103) degrees to one hundred five (105) degrees Centigrade.

EEE. *Toxic pollutant.* Any pollutant or combination of pollutants listed as toxic in regulations promulgated by the administrator of the Environmental Protection Agency under the provisions of the Clean Water Act 307(a) or other acts.

FFF. *Upset.* An exceptional incident in which a discharger unintentionally and temporarily is in a state of noncompliance with the standards set forth in this article or the discharger's industrial wastewater discharge permit, due to forces beyond the reasonable control of the discharger, and excluding noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation thereof.

GGG. *User* or *industrial user.* A source of indirect discharge.

HHH. *Wastewater.* Liquid and water-carried industrial wastes and sewage from residential dwellings, commercial buildings, industrial and manufacturing facilities, and institutions, whether treated or untreated, which are contributed to the POTW.
(Ord. No. 19,895, § 1.4, 12-21-07)

Secs. 35-165—35-174. Reserved.

DIVISION 2. GENERAL SEWER USE REQUIREMENTS

Sec. 35-175. Prohibited discharge standards.

A. *General prohibitions.* No user shall introduce or cause to be introduced into the POTW any pollutant or wastewater which causes pass through or interference, or in any way contaminates the POTW biosolids, scum, or residues to such a level as to render them unacceptable for economical reuse or reclamation. These general prohibitions apply to all Users of the POTW whether or not they are subject to categorical pretreatment standards or any other National, State, or local pretreatment standards or requirements.

B. *Specific prohibitions.* No user shall introduce or cause to be introduced into the POTW the following pollutants, substances, or wastewater:

(1) Liquids, solids, or gases which by reason of their nature and quantity are, or may be, sufficient either alone or by interaction with other substances to cause a fire or explosion hazard or be injurious in any other way to the POTW or the operation of the POTW. Such materials include, but are not limited to, gasoline, diesel, benzene, naphtha, fuel oils, kerosene, toluene, xylene, ethers, alcohols, ketones, aldehydes, peroxides, chlorates, perchlorates, bromates, carbides, hydrides, or sulfides, or any waste stream with a closed cup flash point of less than one hundred forty (140) degrees Fahrenheit or sixty (60) degrees Centigrade using the test methods specified in 40 CFR 261.21;

(2) Water or wastes having a pH lower than 5.0 S.U. or greater than 12.0 S.U. or having any other corrosive property capable of causing damage or a hazard to the structures, equipment, and personnel of the POTW. In no case shall waters or wastes be discharged at such a flow rate and/or pH which will cause the influent at the POTW treatment plant to be lower than 6.0 S.U. or greater than 9.0 S.U.;

(3) Solid or viscous substances in quantities or of such size capable of creating a stoppage, plugging, breakage, or any reduction in sewer capacity or any other damage to the POTW such as, but not limited to, commercial food service oil and grease, ashes, cinders, sand, plastic, wood, unground garbage, whole blood, hair and fleshings, entrails, and paper dishes, cups, milk containers, etc. Any additional sewer or sewerage maintenance expenses caused by such a discharge, or any other expenses attributable thereto will be charged to the user by LRW. Any refusal to pay the additional maintenance expense duly authorized by the CEO shall constitute a violation of the provisions contained herein;

(4) Pollutants, including oxygen-demanding pollutants (BOD, COD, etc.), released in a discharge at a flow rate and/or pollutant concentration which, either singly or by interaction with other pollutants, will cause interference, upset, or loss of efficiency at POTW. In no case shall a slug load have a flow rate or contain a concentration or quantity of pollutants that exceed for any time period longer than fifteen (15) minutes more than five (5) times the average

twenty-four-hour concentration, quantity, or flow during normal operation of the discharger;

(5) Waters, wastes, or vapors discharged at such a volume or temperature which will inhibit biological activity in the treatment plant resulting in interference, but in no case any such waters or wastes which will cause the POTW influent or pumping station wet-well temperature to exceed one hundred four (104) degrees (forty (40.0) degrees). Any liquid or vapor having a temperature higher than 130? (54.4?) at the point of discharge;

(6) Petroleum oil, nonbiodegradable cutting oil, or products of mineral oil origin, in amounts that will cause interference or pass through;

(7) Waters or wastes containing toxic or poisonous solids, liquids, or gases, or oxygen-demanding wastes, in sufficient quantity, either singly or by interaction with other wastes, to injure or cause interference with any sewage treatment process, to contaminate the POTW sludges, scum, or residue to such a level to render them unacceptable for economical reuse or reclamation, to pass through the POTW and cause a violation of the POTW's NPDES Permit or create a toxic effect in the receiving stream, to cause a public nuisance, or to constitute a hazard or an acute health or safety problem to the POTW workers or the public;

(8) Noxious or malodorous liquids, gases, solids, or other wastewater which, either single or by interaction with other wastes, are sufficient to create a public nuisance or a hazard to life, or to prevent entry into the sewers for maintenance or repair;

(9) Wastewater which imparts color which cannot be removed by the treatment process, such as, but not limited to, dye wastes and vegetable tanning solutions, which consequently imparts color to the treatment plant's effluent, thereby violating the NPDES permit;

(10) Unusual concentrations of inert suspended solids such as, but not limited to, Fuller earth, lime slurries, and lime residues, or dissolved solids such as, but not limited to, sodium chloride and sodium sulfate.

(11) Wastewater containing any radioactive wastes or isotopes except in compliance with applicable state or federal regulations;

(12) Stormwater, surfacewater, groundwater, artesian well water, roof runoff, subsurface drainage, swimming pool drainage, condensate, deionized water, noncontact cooling water, and unpolluted wastewater;

(13) Sludges, screenings, or other residues from the pretreatment of industrial wastes;

(14) Medical wastes, no discharge of any pharmaceutical medications, prescription or "over-the-counter", unused or expired;

(15) Wastewater causing, alone or in conjunction with other sources, the treatment plant's effluent to fail a toxicity test;

(16) Detergents, surfactant, or other substances which may cause excessive foaming in the POTW; or

(17) Wastewater causing two (2) successive readings on an explosion hazard meter at the point of discharge into the POTW, or at any point in the POTW, of more than ten (10) percent or any single reading over twenty (20) percent of the lower explosive limit of the meter.

(18) Hauled or trucked liquid wastes, except at the specific discharge point(s) designated by LRW.

Pollutants, substances, or wastewater prohibited by this section shall not be processed or stored in such a manner that they could be discharged to the POTW.
(Ord. No. 19,895, § 2.1, 12-21-07)

Sec. 35-176. National categorical pretreatment standards.

The categorical pretreatment standards found at 40 CFR chapter I, subchapter N, parts 405

through 471 are hereby incorporated. Those standards, if more stringent than the limitations imposed by the latest approved "technically based local limits development document" for sources in that subcategory, shall supersede the limitations imposed by the local limits.

A. Where a categorical pretreatment standard is expressed only in terms of either the mass or the concentration of a pollutant in wastewater, the CEO may impose equivalent concentration or mass limits in accordance with 40 CFR 403.6(c).

B. When the limits in a categorical pretreatment standard are expressed only in terms of mass of pollutant per unit of production, the CEO may convert the limits to equivalent limitations expressed either as mass of pollutant discharged per day or effluent concentration for purposes of calculating effluent limitations applicable to individual industrial users in accordance with 40 CFR 403.6(c)(2).

C. When wastewater subject to a categorical pretreatment standard is mixed with wastewater not regulated by the same standard, the CEO shall impose an alternate limit using the combined waste stream formula in 40 CFR 403.6(e).

(Ord. No. 19,895, § 2.2, 12-21-07)

Sec. 35-177. State pretreatment standards.

State pretreatment standards located in section 4 of Regulation No. 6: Regulations for State Administration of the National Pollutant Discharge Elimination System for a particular industrial subcategory, if more stringent than the requirements of this article, shall supersede the requirements of this article, are hereby incorporated by reference and will be imposed where applicable and shall include, but is not limited to, discharge limitations and reporting requirements. This shall include those regulations currently promulgated or which will be promulgated in the future including any amendments, and shall be recognized as part of this article.

(Ord. No. 19,895, § 2.3, 12-21-07)

Sec. 35-178. Local limits.

No person shall discharge any waters or wastes at a concentration that would exceed the concentration of pollutants, including, but not limited to, those identified in the "technically based local limits development document" and adopted by the CEO of Little Rock Wastewater and approved by the Arkansas Department of Environmental Quality and the Little Rock Sanitary Sewer Committee.

LRW will develop and assign specific discharge permit limitations, or best management practice (BMP), when deemed appropriate by the CEO, for pollutants for permitted users based on criteria approved by the CEO. The specific permit limits or BMP shall ensure that local limit pollutant concentrations will protect the wastewater treatment plant from upset. The local limits shall apply to the total flow or total process discharge from the industrial users. In developing specific permit limits, the CEO may impose mass limitations in addition to, or in place of, specific concentration-based limits. In addition, LRW may develop specific discharge limitations, or BMP for any other toxic pollutants which the CEO of LRW may determine to be of sufficient quantity to cause POTW interference and/or pass through, endanger the health and safety of the POTW personnel or the public health, cause a POTW permit violation or render the POTW sludges unacceptable for economic reuse or reclamation.

The CEO may develop best management practices (BMPs), by ordinance or in individual wastewater discharge permits or general permits, to implement local limits and the requirements of section 35-175.

(Ord. No. 19,895, § 2.4, 12-21-07)

Sec. 35-179. Right of revision.

LRW shall at all times have the right to establish, by ordinance or in individual wastewater discharge permits, more stringent standards or requirements on discharges to the POTW, consistent with the purpose of this article, than may be specified in this article or the "technically based local limits document".

(Ord. No. 19,895, § 2.5, 12-21-07)

Sec. 35-180. Dilution.

No user shall ever increase the use of process water, or in any way attempt to dilute a discharge, as a partial or complete substitute for adequate treatment to achieve compliance with a discharge limitation unless expressly authorized by an applicable pretreatment standard or requirement. The CEO may impose mass limitations on users who are using dilution to meet applicable pretreatment standards or requirements, or in other cases when the imposition of mass limitations is appropriate.
(Ord. No. 19,895, § 2.6, 12-21-07)

Secs. 35-181—35-189. Reserved.

DIVISION 3. PRETREATMENT OF WASTEWATER

Sec. 35-190. Pretreatment facilities.

Users shall provide wastewater treatment as necessary to comply with this article and shall achieve compliance with all categorical pretreatment standards, local limits, and the prohibitions set out in section 35-175 within the time limitations specified by EPA, the state, or the CEO, whichever are more stringent. Any facilities necessary for compliance shall be provided, operated, and maintained at the user's expense. Detailed plans describing such facilities and operating procedures shall be submitted to the CEO for review, and shall be acceptable to the CEO before such facilities are constructed. The review of such plans and operating procedures shall in no way relieve the user from the responsibility of modifying such facilities as necessary to produce a discharge acceptable to LRW under the provisions of this article.
(Ord. No. 19,895, § 3.1, 12-21-07)

Sec. 35-191. Additional pretreatment measures.

A. If any waters or wastes which are discharged or which are to be discharged into the public sewers contain or possess any of the characteristics enumerated in sections 35-175(A) and (B), 35-178, and/or 35-389 and in the judgment of the CEO, may have a deleterious effect upon the sewage works, processes, equipment, sludges, or receiving waters, or which otherwise creates a hazard to life or constitutes a public nuisance, the CEO may (a) reject the wastes, (b) require pretreatment to an acceptable condition for discharge to the public sewer, and/or (c) require control over the quantities and rate of discharge.

If the CEO requires the pretreatment or equalization of waste flows, the design and installation of the plants and equipment shall be subject to the review and approval of the CEO and subject to all applicable codes, ordinances, and laws. Where pretreatment or flow equalization facilities are provided for any waters or wastes, they shall be continuously maintained in satisfactory and effective operation by the owner or occupant at his own expense.

B. Whenever deemed necessary, the CEO may require users to restrict their discharge during peak flow periods, designate that certain wastewater be discharged only into specific sewers, relocate and/or consolidate points of discharge, separate sewage waste streams from industrial waste streams, and such other conditions as may be necessary to protect the POTW and determine the user's compliance with the requirements of this article.

C. The CEO may require any person discharging into the POTW to install and maintain, on their property and at their expense, a suitable storage and flow-control facility to ensure equalization of flow. A wastewater discharge permit may be issued solely for flow equalization.

D. Grease, oil, and sand interceptors shall be provided when, in the opinion of the CEO, they are necessary for the proper handling of wastewater containing excessive amounts of grease and oil, any flammable wastes, or sand; except that such interceptors shall not be required for residential users. All interception units shall be of type and capacity approved by the CEO and shall be so located to be easily accessible for cleaning and inspection. Such interceptors shall be inspected, cleaned, and repaired regularly, as needed, by the user at their expense. Storage, handling, transportation, and disposal of all wastes generated from such interceptors shall be performed in

accordance with all applicable federal, state, and local regulations that pertain to that type and/or class of waste.

E. Users with the potential to discharge flammable substances may be required to install and maintain an approved combustible gas detection meter.

F. When required by the CEO, the owner of any property serviced by a building sewer carrying industrial waste shall provide a secure sample point or sampling/inspection manhole which is constructed in accordance with the latest revision of the Little Rock Wastewater Specification Requirements for Sanitary Sewers. The secure sample point or sampling/inspection manhole shall be safely located and accessible to duly authorized employees and/or representatives of LRW at all times. When deemed necessary by the CEO, the secure sample point or sampling/inspection manhole shall be provided with meters or other appurtenances to facilitate the monitoring of the wastewater. The cost of the installation and maintenance of a secure sample point or sampling/inspection manhole shall be borne by the owner. Any construction and/or alteration of a secure sample point or sampling/inspection manhole shall be approved by the CEO before any construction has begun.

Any secure sample point or sampling/inspection manhole located in a parking lot or other area where any vehicles may reasonably be expected to be parked must be protected by a permanent barrier, railing, or other means if it is determined necessary by the CEO to ensure continued and uninterrupted access to the secure sample point or sampling/inspection manhole by LRW personnel.

G. Whenever deemed necessary, the CEO may require the pretreatment system operator(s) to be licensed in accordance with State of Arkansas Regulation Number 3, including all amendments thereto, for the operation of industrial wastewater treatment systems.
(Ord. No. 19,895, § 3.2, 12-21-07)

Sec. 35-192. Accidental discharge/slug control plans.

The CEO shall evaluate whether each significant industrial user needs an accidental discharge/slug control plan or other action to control slug discharges. The CEO may require any user to develop, submit for approval, and implement such a plan or take such other action that may be necessary to control slug discharges. Alternatively, the CEO may develop such a plan for any user. An accidental discharge/slug control plan shall address, at a minimum, the following:

A. Description of discharge practices, including non-routine batch discharges;

B. Description of stored chemicals;

C. Procedures for immediately notifying the CEO of any accidental or slug discharge, as required by section 35-256; and

D. Procedures to prevent adverse impact from any accidental or slug discharge. Such procedures include, but are not limited to, inspection and maintenance of storage areas, handling and transfer of materials, loading and unloading operations, control of plant site runoff, worker training, building of containment structures or equipment, measures for containing toxic organic pollutants, including solvents, and/or measures and equipment for emergency response.

(Ord. No. 19,895, § 3.3, 12-21-07)

Sec. 35-193. Hauled wastewater.

A. Septic tank waste originating from domestic sources may be introduced into the POTW only at locations designated by the CEO, and at such times as are established by the CEO. Such waste shall not violate division 2 or any other requirements established by the CEO. The CEO may require septic tank waste haulers to obtain wastewater discharge permits.

B. Other hauled liquid wastes may be introduced into the POTW also, with prior approval of the CEO. These other wastes may include, but are not limited to, landfill leachate and waters associated with the removal of underground petroleum storage tanks (BTEX waters). The acceptance of such waters for introduction to the POTW shall comply with Little Rock Wastewater current policies on the acceptance of landfill leachate and BTEX.

The CEO may require haulers of industrial waste to obtain individual or general wastewater discharge permits. The CEO also may prohibit the disposal of hauled industrial waste. The discharge of hauled industrial waste is subject to all other requirements of this article.

Industrial waste haulers may discharge loads only at locations designated by the CEO. No load may be discharged without prior consent of the CEO. The CEO may collect samples of each hauled load to ensure compliance with applicable standards. The CEO may require the industrial waste hauler to provide a waste analysis of any load prior to discharge.

C. The CEO shall require all haulers of liquid wastes discharged into the POTW to use the LRW manifest system for each load of hauled liquid waste. This form must contain, at a minimum, the name and address of the waste hauler, permit number, truck identification, names and addresses of sources of waste, and volume and characteristics of waste. The form shall identify the type of waste and state whether any wastes are RCRA hazardous wastes.

D. Waste haulers of waste materials removed from grease interceptors, solids traps or other such devices shall not, at any time, discharge any material retained by such devices back into the sanitary sewer collection system.
(Ord. No. 19,895, § 3.4, 12-21-07)

Secs. 35-194—35-209. Reserved.

DIVISION 4. WASTEWATER DISCHARGE PERMITS

Sec. 35-210. Wastewater survey.

When requested by the CEO, all industrial users must submit information on the nature and characteristics of their wastewater by completing a wastewater survey prior to commencing their discharge. The CEO is authorized to prepare a form for this purpose and may periodically require industrial users to update the survey. Failure to complete this survey shall be reasonable grounds for terminating service to the industrial user and shall be considered a violation of this article.
(Ord. No. 19,895, § 4.1, 12-21-07)

Sec. 35-211. Permit requirements.

A. All significant industrial dischargers are required to have a valid class "C" or class "S" industrial wastewater discharge permit. A class "C" industrial wastewater discharge permit will be issued to any industrial user with processes subject to a categorical pretreatment standard and a class "S" industrial discharge permit will be issued to all other significant industrial dischargers. A class "N" industrial wastewater discharge permit or general control permit may be issued to any nonsignificant industrial or commercial customer when it is deemed necessary by the CEO. All industrial wastewater discharge permits issued by the CEO to Industrial Users or dischargers will have a specific discharge permit number corresponding to the type of permit issued, e.g., C-04, S-32, N-15.

No significant industrial user shall discharge wastewater into the POTW without first obtaining an individual wastewater discharge permit from the CEO, except that a significant industrial user that has filed a timely application pursuant to section 35-212 may continue to discharge for the time period specified therein.

B. The CEO may also require any other users to obtain wastewater discharge permits as necessary to carry out the purposes of this article.

C. Any violation of the terms and conditions of a wastewater discharge permit shall be deemed a violation of this article and subjects the wastewater discharge permittee to the sanctions set out in divisions 10 through 12. Obtaining a wastewater discharge permit does not relieve a permittee of its obligation to comply with all federal and state pretreatment standards or requirements or with any other requirements of federal, state, and local law.
(Ord. No. 19,895, § 4.2, 12-21-07)

Sec. 35-212. Permitting—Existing connections.

Any existing industrial user identified by LRW and required by the CEO to obtain an industrial

wastewater discharge permit shall be notified by the CEO in writing and shall complete and return an industrial wastewater discharge permit application within the time established by the CEO. The CEO may deny or condition the contribution of pollutants by such user in the industrial wastewater discharge permit.
(Ord. No. 19,895, § 4.3, 12-21-07)

Sec. 35-213. Permit—New connections.

Any user required by the CEO to obtain an individual wastewater discharge permit or a general permit who proposes to begin or recommence discharging industrial wastes into the POTW must obtain a discharge permit prior to the beginning or recommencing of such discharge. An application for this wastewater discharge permit must be filed at least ninety (90) days prior to the date upon which any discharge will begin or recommence. The CEO may deny or condition the contribution of pollutants by such user in the industrial wastewater discharge permit.
(Ord. No. 19,895, § 4.4, 12-21-07)

Sec. 35-214. Application contents.

All users required to obtain an individual wastewater discharge permit or general permit by the CEO shall submit an industrial wastewater discharge permit application to LRW, the form for which shall be provided by LRW. The information required in the permit application shall, where requested or appropriate, include, but is not limited to:

A. Name, address, and location of the industrial user or discharger and the name of the operator and owner with contact information.

B. Standard industrial classification number (SIC code).

C. The nature and concentrations of any pollutants or materials prohibited or regulated by this article, including the EPA's priority pollutant listing for each pollutant or material.

D. The time of day and duration of each discharge.

E. The average daily and maximum daily flow rates including any daily, monthly, or seasonal variations. Information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from regulated process streams and other streams, as necessary, to allow use of the combined waste stream formula set out in subsection 35-176C. (40 CFR 403.6(e)).

F. Site plans and details showing all plumbing including storm and sanitary sewers, sewer connections, manholes, sampling/inspection manholes, the location and description of any pretreatment equipment, and the appropriate location for monitoring all wastes covered by the permit.

G. A description of facilities, activities, and plant processes including all materials which are or may be discharged to the public sewer.

H. A list of all raw materials used at the facility including MSDS (material safety data sheets) for all chemicals that are used or stored at the facility which are, or could accidentally or intentionally be, discharged to the POTW.

I. Compliance schedules, where applicable, which meet applicable requirements of the federal regulations.

J. Any other information as may be deemed necessary by the CEO to evaluate the wastewater discharge permit application.

K. Environmental permits. A list of any environmental control permits held by or for the facility.

L. Measurement of pollutants.

a. The categorical pretreatment standards applicable to each regulated process and any new categorically regulated processes for existing sources.

b. The results of sampling and analysis identifying the nature and concentration, and/or mass, where required

by the standard or by the CEO, of regulated pollutants in the discharge from each regulated process.

c. Instantaneous, daily maximum, and long-term average concentrations, or mass, where required, shall be reported.

d. The sample shall be representative of daily operations and shall be analyzed in accordance with procedures set out in section 35-260. Where the standard requires compliance with a BMP or pollution prevention alternative, the user shall submit documentation as required by the CEO or the applicable standards to determine compliance with the standard.

e. Sampling must be performed in accordance with procedures set out in section 35-261.

Incomplete or inaccurate applications will not be processed and will be returned to the User for revision. This could result in a delay in the issuance to the discharge permit.
(Ord. No. 19,895, § 4.5, 12-21-07)

Sec. 35-215. Application signatories and certification.

All wastewater discharge permit applications and User reports must be signed by an authorized representative (defined in subsection 35-164D.) of the user and contain the following certification statement:

"I certify under penalty of law that this document and all attachments were prepared under my direction or supervision in accordance with a system designed to assure that qualified personnel properly gather and evaluate the information submitted. Based on my inquiry of the person or persons who manage the system, or those persons directly responsible for gathering the information, the information submitted is, to the best of my knowledge and belief, true, accurate, and complete. I am aware that there are significant penalties for submitting false information, including the possibility of fine and imprisonment for knowing violations."

A. If the designation of an authorized representative is no longer accurate because a different individual or position has responsibility for the overall operation of the facility or overall responsibility for environmental matters for the company, a new written authorization satisfying the requirements of this section must be submitted to the CEO prior to or together with any reports to be signed by an authorized representative.
(Ord. No. 19,895, § 4.6, 12-21-07)

Secs. 35-216—35-229. Reserved.

DIVISION 5. WASTEWATER DISCHARGE PERMIT ISSUANCE PROCESS

Sec. 35-230. Wastewater discharge permit duration.

A wastewater discharge permit shall be issued for a specified time period, not to exceed five (5) years from the effective date of the permit. A wastewater discharge permit may be issued for a period less than five (5) years, at the discretion of the CEO. Each wastewater discharge permit will indicate a specific date upon which it will expire.
(Ord. No. 19,895, § 5.1, 12-21-07)

Sec. 35-231. Same—Contents.

A wastewater discharge permit shall include such conditions as are deemed reasonably necessary by the CEO to prevent pass through or interference, protect the quality of the water body receiving the treatment plant's effluent, protect worker health and safety, facilitate sludge management and disposal, and protect against damage to the POTW.

A. Wastewater discharge permits must contain:

(1) A statement that indicates wastewater discharge permit duration, which in no event shall exceed five (5) years;

(2) A statement that the wastewater discharge permit is nontransferable without prior notification to the CEO in accordance with section 35-233, and provisions for furnishing the new owner or operator with a copy of the existing wastewater discharge permit;

(3) Effluent limits, including best management practices, based on applicable pretreatment standards;

(4) Self monitoring, sampling, reporting, notification, and record-keeping requirements. These requirements shall include an identification of pollutants (or best management practices) to be monitored, sampling location, sampling frequency, and sample type based on federal, state, and local law; and

(5) A statement of applicable civil and criminal penalties for violation of pretreatment standards and requirements, and any applicable compliance schedule. Such schedule may not extend the time for compliance beyond that required by applicable federal, state, or local law.

(6) Requirements to control slug discharge, if determined by the CEO to be necessary

B. Individual wastewater discharge permits may contain, but need not be limited to, the following conditions:

(1) Limits on the average and/or maximum rate of discharge, time of discharge, and/or requirements for flow regulation and equalization;

(2) Requirements for the installation of pretreatment technology, pollution control, or construction of appropriate containment devices, designed to reduce, eliminate, or prevent the introduction of pollutants into the treatment works;

(3) Requirements for the development and implementation of spill/slug control plans or other special conditions including management practices necessary to adequately prevent accidental, unanticipated, or nonroutine discharges;

(4) Development and implementation of waste minimization plans to reduce the amount of pollutants discharged to the POTW;

(5) The unit charge or schedule of user charges and fees for the management of the wastewater discharged to the POTW;

(6) Requirements for installation and maintenance of inspection and sampling facilities and equipment, including flow measurement devices;

(7) A statement that compliance with the wastewater discharge permit does not relieve the permittee of responsibility for compliance with all applicable federal and state pretreatment standards, including those which become effective during the term of the wastewater discharge permit; and

(8) Other conditions as deemed appropriate by the CEO to ensure compliance with this article, and state and federal laws, rules, and regulations.

(Ord. No. 19,895, § 5.2, 12-21-07)

Sec. 35-232. Same—Modification.

The CEO may modify a wastewater discharge permit for good cause, including, but not limited to, the following reasons:

A. To incorporate any new or revised federal, state, or local pretreatment standards or requirements;

B. To address significant alterations or additions to the user's operation, processes, or wastewater volume or character since the time of wastewater discharge permit issuance;

C. A change in the POTW that requires either a temporary or permanent reduction or elimination of the authorized discharge;

D. Information indicating that the permitted discharge poses a threat to the POTW and/or its personnel, the receiving waters, or the beneficial use of biosolids;

E. Violation of any terms or conditions of the wastewater discharge permit;

F. Misrepresentations or failure to fully disclose all relevant facts in the wastewater discharge permit application or in any required reporting;

G. Revision of or a grant of variance from categorical pretreatment standards pursuant to 40 CFR 403.13;

H. To correct typographical or other errors in the wastewater discharge permit; or

I. To reflect a transfer of the facility ownership or operation to a new owner or operator.

(Ord. No. 19,895, § 5.3, 12-21-07)

Sec. 35-233. Same—Transfer.

Wastewater discharge permits may be transferred to a new owner or operator only if the permittee gives at least sixty (60) days' advance notice to the CEO and the CEO approves the wastewater discharge permit transfer. The notice to the CEO must include a written certification by the new owner or operator which:

A. States that the new owner and/or operator has no immediate intent to change the facility's operations and processes;

B. Identifies the specific date on which the transfer is to occur; and

C. Acknowledges full responsibility for complying with the existing wastewater discharge permit.

Failure to provide advance notice of a transfer renders the wastewater discharge permit void as of the date of facility transfer.

(Ord. No. 19,895, § 5.4, 12-21-07)

Sec. 35-234. Same—Revocation.

The CEO may revoke a wastewater discharge permit for good cause subject to following the procedure set forth in division 10 hereinafter, including, but not limited to, the following reasons:

A. Failure to notify the CEO of significant changes to the wastewater prior to the changed discharge;

B. Failure to provide prior notification to the CEO of changed conditions pursuant to section 35-255;

C. Misrepresentation or failure to fully disclose all relevant facts in the wastewater discharge permit application;

D. Falsifying self-monitoring reports and certification statements;

E. Tampering with monitoring equipment;

F. Refusing to allow the CEO timely access to the facility premises and records;

G. Failure to meet effluent limitations;

H. Failure to pay fines;

I. Failure to pay sewer charges;

J. Failure to meet compliance schedules;

K. Failure to complete a wastewater survey or the wastewater discharge permit application;

L. Failure to provide advance notice of the transfer of business ownership of a permitted facility; or

M. Violation of any pretreatment standard or requirement, or any terms of the wastewater discharge permit or this article.

Wastewater discharge permits shall be void upon cessation of operations or transfer of business ownership. All wastewater discharge permits issued to a particular user are void upon the issuance of a new wastewater discharge permit to that user.

(Ord. No. 19,895, § 5.5, 12-21-07)

Sec. 35-235. Same—Permit reissuance.

A user with an expiring wastewater discharge permit shall apply for wastewater discharge permit reissuance by submitting a complete permit application, in accordance with section 35-214, a minimum of sixty (60) days prior to the expiration

of the user's existing wastewater discharge permit. The CEO will notify the user of his responsibility to reapply for reissuance of the permit at least ninety (90) days prior to the reapplication date.
(Ord. No. 19,895, § 5.6, 12-21-07)

Sec. 35-236. Regulation of waste received from other jurisdictions.

A. All dischargers to the city POTW which are outside the jurisdiction and are not part of another incorporated city shall be required to agree by written contract to abide by the conditions set forth in this article, subsequent revisions and amendments to this article, and any rules and/or regulations promulgated by the sewer committee of the city in accordance with subsection 35-280F.

B. All incorporated cities which discharge to the city POTW shall agree by written contract to adopt an ordinance which meets the requirements of 40 CFR 403, General Pretreatment Regulations, and will be at least as stringent as the conditions set forth in this article. This agreement must also contain a provision that allows for the adoption of any and all rules and/or regulations promulgated by the sewer committee of the city in accordance with subsection 35-280F. and shall delegate to the city the powers to enforce the provisions of all laws, rules, and/or regulations adopted in accordance with this section.
(Ord. No. 19,895, § 5.7, 12-21-07)

Secs. 35-237—35-249. Reserved.

DIVISION 6. REPORTING REQUIREMENTS

Sec. 35-250. Baseline monitoring reports.

A. Within either one hundred eighty (180) days after the effective date of a categorical pretreatment standard, or the final administrative decision on a category determination under 40 CFR 403.6(a)(4), whichever is later, existing categorical users currently discharging to or scheduled to discharge to the POTW shall submit to the CEO a report which contains the information listed in subsection B., below. At least ninety (90) days prior to commencement of their discharge, new sources, and sources that become categorical users subsequent to the promulgation of an applicable categorical standard, shall submit to the CEO a report which contains the information listed in subsection B., below. A new source shall report the method of pretreatment it intends to use to meet applicable categorical standards. A new source also shall give estimates of its anticipated flow and quantity of pollutants to be discharged.

B. Users described above shall submit the information set forth below:

(1) *Identifying information.* The name and address of the facility, including the name of the operator and owner.

(2) *Environmental permits.* A list of any environmental control permits held by or for the facility.

(3) *Description of operations.* A brief description of the nature, average rate of production, and standard industrial classifications of the operation(s) carried out by such user. This description should include a schematic process diagram which indicates points of discharge to the POTW from the regulated processes.

(4) *Flow measurement.* Information showing the measured average daily and maximum daily flow, in gallons per day, to the POTW from regulated process streams and other streams, as necessary, to allow use of the combined waste stream formula set out in 40 CFR 403.6(e).

(5) *Measurement of pollutants.*

(a) The categorical pretreatment standards applicable to each regulated process.

(b) The results of sampling and analysis identifying the nature and concentration, and/or mass, where required by the standard or by the CEO, of regulated pollutants in the discharge from each regulated process.

(c) Instantaneous, daily maximum, and long-term average concentrations, or mass, where required, shall be reported.

(d) The sample shall be representative of daily operations and shall be analyzed in accordance with procedures set out in section 35-260. Where the standard requires compliance with a BMP or pollution prevention alternative, the user shall submit documentation as required by the CEO or the applicable standards to determine compliance with the standard.

(e) The user shall take a minimum of one representative sample to compile that data necessary to comply with the requirements of this subsection.

(f) Samples should be taken immediately downstream from pretreatment facilities if such exist or immediately downstream from the regulated process if no pretreatment exists. If other wastewaters are mixed with the regulated wastewater prior to pretreatment the user should measure the flows and concentrations necessary to allow use of the combined waste stream formula in 40 CFR 403.6(e) to evaluate compliance with the pretreatment standards. Where an alternate concentration or mass limit has been calculated in accordance with 40 CFR 403.6(e) this adjusted limit along with supporting data shall be submitted to the control authority;

(g) The CEO may allow the submission of a baseline report which utilizes only historical data so long as the data provides information sufficient to determine the need for industrial pretreatment measures;

(h) The baseline report shall indicate the time, date and place of sampling and methods of analysis, and shall certify that such sampling and analysis is representative of normal work cycles and expected pollutant discharges to the POTW.

(6) *Compliance certification.* A statement, reviewed by the user's authorized representative as defined in subsection 35-164D. and certified by a qualified professional, indicating whether pretreatment standards are being met on a consistent basis, and, if not, whether additional operation and maintenance (O&M) and/or additional pretreatment is required to meet the pretreatment standards and requirements.

(7) *Compliance schedule.* If additional pretreatment and/or O&M will be required to meet the pretreatment standards, the shortest schedule by which the user will provide such additional pretreatment and/or O&M must be provided. The completion date in this schedule shall not be later than the compliance date established for the applicable pretreatment standard. A compliance schedule pursuant to this section must meet the requirements set out in section 35-251.

(8) *Signature and certification.* All baseline monitoring reports must be signed and certified in accordance with section 35-215 by an authorized representative as defined in subsection 35-164D.

(Ord. No. 19,895, § 6.1, 12-21-07)

Sec. 35-251. Compliance schedule progress reports.

The following conditions shall apply to the compliance schedule required by subsection 35-250B.(7) and/or any compliance schedule issued by the CEO under section 35-304:

A. The schedule shall contain progress increments in the form of dates for the commencement and completion of major events leading to the construction and operation of additional pretreatment required for the user to meet the applicable pretreatment standards. Such events include, but are not limited to, hiring an engineer, completing preliminary and final plans, executing contracts for major compo-

nents, commencing and completing construction, and beginning and conducting routine operation;

B. No increment referred to above shall exceed nine (9) months;

C. The user shall submit a progress report to the CEO no later than fourteen (14) days following each date in the schedule and the final date of compliance including, as a minimum, whether or not it complied with the increment of progress, the reason for any delay, and, if appropriate, the steps being taken by the User to return to the established schedule; and

D. In no event shall more than nine (9) months elapse between such progress reports to the CEO.

(Ord. No. 19,895, § 6.2, 12-21-07)

Sec. 35-252. Reports on compliance with categorical pretreatment standard deadline.

Within ninety (90) days following the date for final compliance with applicable categorical pretreatment standards, or in the case of a new source following commencement of the introduction of wastewater into the POTW, any user subject to such pretreatment standards and requirements shall submit to the CEO a report containing the information described in subsections 35-250B.(4) through (6). For users subject to equivalent mass or concentration limits established in accordance with the procedures in section 35-176; 40 CFR 403.6(c), this report shall contain a reasonable measure of the user's long-term production rate. For all other users subject to categorical pretreatment standards expressed in terms of allowable pollutant discharge per unit of production (or other measure of operation), this report shall include the user's actual production during the appropriate sampling period. All compliance reports must be signed and certified in accordance with section 35-215.

(Ord. No. 19,895, § 6.3, 12-21-07)

Sec. 35-253. Periodic compliance reports.

A. All significant industrial users shall, at a frequency determined by the CEO, but in no case less than twice per year (in June and December), submit a report indicating the nature and concentration of pollutants in the discharge which are limited by pretreatment standards and the measured or estimated average and maximum daily flows for the reporting period. In cases where the Pretreatment standard requires compliance with a best management practice (BMP) or pollution prevention alternative, the user must submit documents required by the CEO or the pretreatment standard necessary to determine the compliance status of the user. All periodic compliance reports must be signed and certified in accordance with section 35-215.

B. When LRW conducts the sampling and flow data collection for the significant industrial user, the reporting requirements listed under subsection A. above shall be waived.

C. All wastewater samples must be representative of the user's discharge. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of a user to keep its monitoring facility in good working order shall not be grounds for the User to claim that sample results are unrepresentative of its discharge.

D. If a user subject to the reporting requirement in this section monitors any pollutant more frequently than required by the CEO, using the procedures prescribed in section 35-260, the results of this monitoring shall be included in the report.

E. All significant industrial users required by the CEO to submit periodic compliance reports shall use the form supplied by the CEO or other approved form.

(Ord. No. 19,895, § 6.4, 12-21-07)

Sec. 35-254. Monthly self-monitoring reports.

A. When required by the CEO, all industrial users subject to a national categorical pretreatment standard shall submit a monthly self-monitoring report indicating the nature and concentration and/or mass of pollutants in the discharge which are limited by pretreatment standards and the measured or estimated average and maximum daily flows for the reporting pe-

riod. All monthly self-monitoring reports must be signed and certified in accordance with section 35-215.

B. All wastewater samples must be representative of the user's discharge. Wastewater monitoring and flow measurement facilities shall be properly operated, kept clean, and maintained in good working order at all times. The failure of a user to keep its monitoring facility in good working order shall not be grounds for the user to claim that sample results are unrepresentative of its discharge.

C. If a user subject to the reporting requirement in this section monitors any pollutant more frequently than required by the CEO, using the procedures prescribed in section 35-260, the results of this monitoring shall be included in the report.

D. All categorical industrial users required by the CEO to submit monthly self-monitoring reports shall use the form supplied by the CEO or other approved form.
(Ord. No. 19,895, § 6.5, 12-21-07)

Sec. 35-255. Reports of changed conditions.

Each user must notify the CEO of any planned significant changes to the user's operations or system which might alter the nature, quality, or volume of its wastewater at least sixty (60) days before the change.

A. The CEO may require the user to submit such information as may be deemed necessary to evaluate the changed condition, including the submission of a wastewater discharge permit application under section 35-214.

B. The CEO may reissue a wastewater discharge permit under section 35-235 or modify an existing wastewater discharge permit under section 35-232 in response to changed conditions or anticipated changed conditions.

C. For purposes of this requirement, significant changes include, but are not limited to, flow increases of twenty (20) percent or greater, and the discharge of any previously unreported pollutants.

D. No user shall implement the planned change condition(s) until and unless the CEO has responded to the user's notice.
(Ord. No. 19,895, § 6.6, 12-21-07)

Sec. 35-256. Reports of potential problems.

A. In the case of any discharge, including, but not limited to, accidental discharges, discharges of a nonroutine, episodic nature, a noncustomary batch discharge, a slug discharge or a slug load, that may cause potential problems for the POTW, the user shall immediately telephone and notify the CEO of the incident. This notification shall include the location of the discharge, type of waste, concentration, and volume, if known, and corrective actions taken by the user.

B. Within five (5) days following such discharge, the user shall, unless waived by the CEO, submit a detailed written report describing the cause(s) of the discharge and the measures to be taken by the user to prevent similar future occurrences. Such notification shall not relieve the user of any expense, loss, damage, or other liability which may be incurred as a result of damage to the POTW, natural resources, or any other damage to person or property; nor shall such notification relieve the user of any fines, penalties, or other liability which may be imposed pursuant to this article.

C. A notice shall be permanently posted on the user's bulletin board or other prominent place advising employees who to call in the event of a discharge described in subsection A., above. Employers shall ensure that all employees, who could cause such a discharge to occur, are advised of the emergency notification procedure.

D. Significant industrial users are required to notify the CEO immediately of any changes at its facility affecting the potential for a slug discharge.
(Ord. No. 19,895, § 6.7, 12-21-07)

Sec. 35-257. Other reports—Permitted and unpermitted users.

All users shall provide appropriate reports to the CEO as the CEO may require. Such reports may request, but are not limited to, the nature

and characteristics of the user's wastewater (industrial waste survey). Failure to complete requested reports or survey shall be considered a violation of this section and considered reasonable grounds for legal action as provided by this article.
(Ord. No. 19,895, § 6.8, 12-21-07)

Sec. 35-258. Notice of violation/repeat sampling and reporting.

If sampling performed by a user indicates a violation, the user must notify the CEO within twenty-four (24) hours of becoming aware of the violation. The user shall also repeat the sampling and analysis and submit the results of the repeat analysis to the CEO within thirty (30) days after becoming aware of the violation. The user is not required to resample if the CEO monitors at the user's facility at least once a month, or if the CEO samples between the user's initial sampling and when the user receives the results of this sampling.

If the city performed the sampling and analysis in lieu of the industrial user, the city will perform the repeat sampling and analysis unless it notifies the user of the violation and requires the User to perform the repeat sampling and analysis.
(Ord. No. 19,895, § 6.9, 12-21-07)

Sec. 35-259. Notification of the discharge of hazardous waste.

A. Any user who commences the discharge of hazardous waste shall notify the POTW, the EPA regional waste management division director, and state hazardous waste authorities, in writing, of any discharge into the POTW of a substance which, if otherwise disposed of, would be a hazardous waste under 40 CFR part 261. Such notification must include the name of the hazardous waste as set forth in 40 CFR part 261, the EPA hazardous waste number, and the type of discharge (continuous, batch, or other). If the user discharges more than one hundred (100) kilograms of such waste per calendar month to the POTW, the notification also shall contain the following information to the extent such information is known and readily available to the user: an identification of the hazardous constituents contained in the wastes, an estimation of the mass and concentration of such constituents in the waste stream discharged during that calendar month, and an estimation of the mass of constituents in the waste stream expected to be discharged during the following twelve (12) months. All notifications must take place no later than one hundred eighty (180) days after the discharge commences. Any notification under this subsection need be submitted only once for each hazardous waste discharged. However, notifications of changed conditions must be submitted under section 35-255. The notification requirement in this section does not apply to pollutants already reported by users subject to categorical pretreatment standards under the self-monitoring requirements of sections 35-250, 35-252, 35-253, and 35-254.

B. Dischargers are exempt from the requirements of subsection A., above, during a calendar month in which they discharge no more than fifteen (15) kilograms of hazardous wastes, unless the wastes are acute hazardous wastes as specified in 40 CFR 261.30(d) and 261.33(e). Discharge of more than fifteen (15) kilograms of nonacute hazardous wastes in a calendar month, or of any quantity of acute hazardous wastes as specified in 40 CFR 261.30(d) and 261.33(e), requires a one-time notification. Subsequent months during which the user discharges more than such quantities of any hazardous waste do not require additional notification.

C. In the case of any new regulations under section 3001 of RCRA identifying additional characteristics of hazardous waste or listing any additional substance as a hazardous waste, the user must notify the CEO, the EPA regional waste management waste division director, and state hazardous waste authorities of the discharge of such substance within ninety (90) days of the effective date of such regulations.

D. In the case of any notification made under this section, the user shall certify that it has a program in place to reduce the volume and toxicity of hazardous wastes generated to the degree it has determined to be economically practical.

E. This provision does not create a right to discharge any substance not otherwise permitted to be discharged by this article, a permit issued thereunder, or any applicable federal or state law. (Ord. No. 19,895, § 6.10, 12-21-07)

Sec. 35-260. Analytical requirements.

All pollutant analyses, including sampling techniques, to be submitted as part of a wastewater discharge permit application or report shall be performed in accordance with the techniques prescribed in 40 CFR part 136 and amendments thereto, unless otherwise specified in an applicable categorical pretreatment standard. If 40 CFR part 136 does not contain sampling or analytical techniques for the pollutant in question, sampling and analyses must be performed in accordance with procedures approved by EPA. All samples shall be collected at the secure sample point, sample/inspection manhole, or process sampling point as designated by the CEO.

All independent laboratories performing analyses for industrial users, including, but not limited to, self-monitoring reports, periodic reports on continuing compliance, baseline monitoring reports, and/or split sample verification, shall be certified by the Arkansas Department of Environmental Quality Laboratory Certification Program for the specific analysis being performed. The CEO reserves the right to reject any analysis performed by an independent laboratory that is not duly certified for a particular analysis.
(Ord. No. 19,895, § 6.11, 12-21-07)

Sec. 35-261. Sample collection.

A. If as a result of any sampling and analyses authorized by the CEO, or due to the existence of any other information, the CEO may have sufficient reason to suspect the presence of toxic or prohibited substances as limited or prohibited by this article to exist in the wastewater discharge of a facility, the CEO may direct the owner or operator of said facility to have a representative of that facility's wastewater subjected to the appropriate physical, chemical, and biological tests performed by a qualified laboratory acceptable to the CEO. The purpose of such tests shall be to determine the conformance of the wastewater characteristics to this article. A prompt report shall be made in writing to the CEO by the laboratory stating the results of the tests. The costs associated with the sampling and testing required by this section shall be borne by the owner or operator.

B. Any sampling, testing, and/or sample delivery associated with duplicate sample analysis in excess of the regularly scheduled sampling and analysis performed by LRW that is requested by an industrial customer for the purpose of assessing a surcharge or enforcement of this article will be borne by the owner or operator of the facility. The owner or operator of the facility which has a duplicate analysis performed by an independent laboratory will submit a prompt report in writing from the laboratory giving the results of the analyses and all quality assurance information relative to the analyses.

C. Except as indicated in subsections D. and E. below, the user must collect wastewater samples using twenty-four-hour flow-proportional composite sampling techniques, unless time-proportional composite sampling or grab sampling is authorized by the CEO. Where time-proportional composite sampling or grab sampling is authorized by LRW, the samples must be representative of the discharge. Using protocols (including appropriate preservation) specified in 40 CFR part 136 and appropriate EPA guidance, multiple grab samples collected during a twenty-four-hour period may be composited prior to the analysis as follows: for cyanide, total phenols, and sulfides the samples may be composited in the laboratory or in the field; for volatile organics and oil and grease, the samples may be composited in the laboratory. Composite samples for other parameters unaffected by the compositing procedures as documented in approved EPA methodologies may be authorized by LRW, as appropriate. In addition, grab samples may be required to show compliance with instantaneous limits.

D. Samples for oil and grease, temperature, pH, cyanide, phenols, sulfides, and volatile organic compounds must be obtained using grab sample collection techniques.

E. For sampling required in support of baseline monitoring and 90-day compliance reports required in sections 35-250 and 35-252 [40 CFR 403.12(b) and (d)], a minimum of four (4) grab samples must be used for pH, cyanide, total phenols, oil and grease, sulfide and volatile organic compounds for facilities for which historical sampling data do not exist; for facilities for which historical sampling data are available, the CEO may authorize a lower minimum. For the reports required by sections 35-253 (40 CFR 403.12(e) and 403.12(h)) and 35-254, the industrial user is required to collect the number of grab samples necessary to assess and assure compliance by with applicable pretreatment standards and requirements.

F. Sampling and testing shall be performed in accordance with the techniques prescribed in 40 CFR part 136 and amendments thereto. The sampling methods performed shall include at a minimum procedures for sample chain of custody, preservation techniques, and holding times.
(Ord. No. 19,895, § 6.12, 12-21-07)

Sec. 35-262. Timing.

Written reports will be deemed to have been submitted on the date postmarked. For reports which are not mailed, postage prepaid, into a mail facility serviced by the United States Postal Service, the date of receipt of the report shall govern.
(Ord. No. 19,895, § 6.13, 12-21-07)

Sec. 35-263. Record keeping.

Users subject to the reporting requirements of this article shall retain, and make available for inspection and copying, all records of information obtained pursuant to any monitoring activities required by this article, any additional records of information obtained pursuant to monitoring activities undertaken by the user independent of such requirements, and documentation associated with best management practices established under section 35-178. Records shall include the date, exact place, method, and time of sampling, and the name of the person(s) taking the samples; the dates analyses were performed; who performed the analyses; the analytical techniques or methods used; and the results of such analyses. These records shall remain available for a period of at least three (3) years. This period shall be automatically extended for the duration of any litigation concerning the user or LRW, or where the user has been specifically notified of a longer retention period by the CEO.
(Ord. No. 19,895, § 6.14, 12-21-07)

Secs. 35-264—35-279. Reserved.

DIVISION 7. POWER AND AUTHORITY OF INSPECTORS

Sec. 35-280. Right of entry: inspection and sampling.

The CEO shall have the right to enter the premises of any user to determine whether the user is complying with all requirements of this article and any wastewater discharge permit or order issued hereunder. Users shall allow the CEO ready access to all parts of the premises for the purposes of inspection, sampling, records examination and copying, and the performance of any additional duties. The CEO may conduct inspection and sampling tasks at a minimum of once a year for every User.

A. Where a user has security measures in force which require proper identification and clearance before entry into its premises, the user shall make necessary arrangements with its security guards so that, upon presentation of suitable identification, the CEO will be permitted to enter without delay for the purposes of performing specific responsibilities.

B. The CEO shall have the right to set up on the user's property, or require installation of, such devices as are necessary to conduct sampling and/or metering of the user's operations.

C. The CEO may require the user to install monitoring equipment as necessary. The facility's sampling and monitoring equipment shall be maintained at all times in a safe and proper operating condition by the user at its own expense. All devices

used to measure wastewater flow and quality shall be calibrated at least annually to ensure their accuracy.

D. Any temporary or permanent obstruction to safe and easy access to the facility to be inspected or sampled shall be promptly removed by the user at the written or verbal request of the CEO and shall not be replaced. The costs of clearing such access shall be born by the user.

E. Unreasonable delays and/or refusals in allowing the CEO access to the user's premises for the purpose of making an inspection authorized by this section shall be a violation of this article.

F. In addition to the provisions of this article, the sewer committee of the city is specifically authorized to make such other reasonable rules and regulations in regard to the construction, use, and operation of sanitary sewers to be connected to, or connecting into, the mains of the Little Rock Wastewater system. Such rules and regulations so made and adopted at a regular meeting of the sewer committee shall become effective as follows:

(1) A public notice of intent to enact and intention of proposed rules and regulations shall be placed in a daily newspaper in the city one (1) day for each of two (2) successive weeks with a brief summary of the proposed rules and regulations.

(2) The proposed rules and regulations shall be available for public inspection and reproduction at the office of the CEO of Little Rock Wastewater for thirty (30) days following the first publication of the public notice.

(3) A correct copy of those rules and regulations shall be filed for permanent record with the City Clerk of the City of Little Rock together with any written objections to the proposed rules and regulations at the end of the thirty (30) day public review period.

(4) Said rules and regulations shall become effective on the filing of said copy for permanent record with the city clerk.

(Ord. No. 19,895, § 7.1, 12-21-07)

Sec. 35-281. Search warrants.

If the CEO has been refused access to a building, structure, or property, or any part thereof, and if the CEO is able to demonstrate probable cause to believe that there may be a violation of this article, or that there is a need to inspect and/or sample as part of a routine inspection and sampling program of LRW designed to verify compliance with this article or any permit or order issued hereunder, or to protect the overall public health, safety and welfare of the community, then upon application and affidavit by the Little Rock Sanitary Sewer Committee by its attorney, the appropriate municipal court judge of the city may issue a search and/or seizure warrant describing therein the specific location subject to the warrant. The warrant shall specify what, if anything, may be searched and/or seized on the property described. Such warrant shall be served at reasonable hours by the CEO or the Little Rock Sanitary Sewer Committee attorney in the company of a uniformed police officer of the city. In the event of an emergency affecting public health and safety, inspections shall be made without the issuance of a warrant.

(Ord. No. 19,895, § 7.2, 12-21-07)

Secs. 35-282—35-289. Reserved.

DIVISION 8. CONFIDENTIAL INFORMATION

Sec. 35-290. Confidentiality.

Information and data on a user obtained from reports, surveys, wastewater discharge permit applications, wastewater discharge permits, and monitoring programs, and from the CEO's inspection and sampling activities, shall be available to the public without restriction, unless the user specifically requests, and is able to demonstrate to the satisfaction of the CEO, that the release of such information would divulge information, pro-

cesses, or methods of production entitled to protection as trade secrets under applicable state law. Any such request must be asserted at the time of submission of the information or data. When requested and demonstrated by the user furnishing a report that such information should be held confidential, the portions of a report which might disclose trade secrets, secret processes, or proprietary information shall not be made available for inspection by the public, but shall be made available immediately upon request to governmental agencies for uses related to the NPDES program or pretreatment program, and in enforcement proceedings involving the person furnishing the report subject to the provisions of the Arkansas Freedom of Information Act, A.C.A. § 25-19-101 et seq. Wastewater constituents and characteristics and other "effluent data" as defined by 40 CFR 2.302 will not be recognized as confidential information and will be available to the public without restriction.
(Ord. No. 19,895, § 8, 12-21-07)

Secs. 35-291—35-294. Reserved.

DIVISION 9. PUBLICATION OF USERS IN SIGNIFICANT NONCOMPLIANCE

Sec. 35-295. Publication of users in significant noncompliance.

The CEO shall publish annually, in a newspaper of general circulation that provides meaningful public notice within the jurisdiction served by the POTW, a list of the users which, during the previous twelve (12) months, were in significant noncompliance with applicable pretreatment standards and requirements. The term significant noncompliance shall be applicable to all significant industrial users (or any other industrial user that violates subsection C., D., or H. of this section) and shall mean:

A. Chronic violations of wastewater discharge limits, defined here as those in which sixty-six (66) percent or more of all the measurements taken for the same pollutant parameter taken during a six-month period exceed (by any magnitude) a numeric pretreatment standard or requirement, including instantaneous limits as defined in division 2;

B. Technical review criteria (TRC) violations, defined here as those in which thirty-three (33) percent or more of wastewater measurements taken for each pollutant parameter during a six-month period equals or exceeds the product of the numeric pretreatment standard or requirement including instantaneous limits, as defined by division 2 multiplied by the applicable criteria (1.4 for BOD, TSS, fats, oils and grease, and 1.2 for all other pollutants except pH);

C. Any other violation of a pretreatment standard or requirement as defined by division 2 (daily maximum, long-term average, instantaneous limit, or narrative standard) that the CEO determines has caused, alone or in combination with other discharges, interference or pass through, including endangering the health of POTW personnel or the general public;

D. Any discharge of pollutants that has caused imminent endangerment to the public or to the environment, or has resulted in the CEO's exercise of its emergency authority to halt or prevent such a discharge;

E. Failure to meet, within ninety (90) days of the scheduled date, a compliance schedule milestone contained in a wastewater discharge permit or enforcement order for starting construction, completing construction, or attaining final compliance;

F. Failure to provide within forty-five (45) days after the due date, any required reports, including baseline monitoring reports, reports on compliance with categorical pretreatment standard deadlines, periodic self-monitoring reports, and reports on compliance with compliance schedules;

G. Failure to accurately report noncompliance; or

H. Any other violation(s), which may include a violation of best management practices,

which the CEO determines will adversely affect the operation or implementation of the local pretreatment program.

(Ord. No. 19,895, § 9, 12-21-07)

Secs. 35-296—35-299. Reserved.

DIVISION 10. ADMINISTRATIVE ENFORCEMENT REMEDIES.

Sec. 35-300. Noncompliance incident.

Whenever the CEO or his designated agent finds that any User has violated or is violating this article, a wastewater discharge permit or order issued hereunder, or any other requirement, the CEO or his agent may notify the user of noncompliance. This notification may be oral or written. Within thirty (30) days of the receipt of the notice of noncompliance incident, the user must notify LRW of the reason for the noncompliance and the steps taken to prevent any recurrence. Submission of this information in no way relieves the user of liability for any violation occurring before or after receipt of the notice of the noncompliance incident. Nothing in this section shall limit the authority of LRW to take any action, including emergency actions or any other enforcement action, without first issuing a notice of a noncompliance incident.

(Ord. No. 19,895, § 10.1, 12-21-07)

Sec. 35-301. Notice of violation.

When the CEO finds that a user has violated, or continues to violate, any provision of this article, a wastewater discharge permit or order issued hereunder, or any other pretreatment standard or requirement, the CEO shall serve upon that user a written notice of violation. Within thirty (30) days of the receipt of this notice, an explanation of the violation and a plan for the satisfactory correction and prevention thereof, to include specific required actions, shall be submitted by the user to the CEO. Submission of this plan in no way relieves the user of liability for any violations occurring before or after receipt of the notice of violation. Nothing in this section shall limit the authority of the CEO to take any action, including emergency actions or any other enforcement action, without first issuing a notice of violation.

(Ord. No. 19,895, § 10.2, 12-21-07)

Sec. 35-302. Consent orders.

The CEO is authorized to enter into consent orders, assurances of voluntary compliance, or other similar documents establishing an agreement with any user responsible for noncompliance. Such orders, assurances, or other similar documents will include specific action to be taken by the user to correct the non-compliance within a time period specified by the document. Such order, assurances, or other similar documents shall have the same force and effect as the administrative orders issued pursuant to sections 35-303 and 35-304 and shall be judicially enforceable.

(Ord. No. 19,895, § 10.3, 12-21-07)

Sec. 35-303. Show-cause hearing.

A. The CEO may order any user which causes or contributes to violation(s) of this article, wastewater discharge permits, or orders issued hereunder, or any other pretreatment standard or requirement, to appear before the sewer committee and show cause why a proposed enforcement action should not be taken. Notice shall be served on the user specifying the time and place for the hearing, the proposed enforcement action, the reasons for such action, and a request that the user show cause why this proposed enforcement action should not be taken. The notice of the meeting shall be served personally or certified mail (return receipt requested) at least ten (10) days prior to the hearing. Such notice may be served on any authorized representative of the user. Whether or not the user appears as ordered, immediate enforcement action may be pursued following the hearing date. A show-cause hearing shall not be a prerequisite for taking any other enforcement action.

B. The sewer committee may itself conduct the show-cause hearing and take the evidence or the sewer committee or its chairman may designate the CEO to:

(1) Issue in the name of the sewer committee notices of hearings requiring attendance,

testimony of witnesses and the production of evidence relevant to any matter involved in such hearings;

(2) Take the evidence; and

(3) Transmit a report of the evidence and hearing, including transcripts and other evidence together with recommendations to the sewer committee for action thereon.

C. At any hearing held pursuant to this Ordinance, any testimony taken must be under oath and be recorded by cassette tape. Any party desiring stenographic recording may provide the same at its own expense. A copy of a cassette tape or of the stenographic recorded transcript will be made available to any member of the public or any party to the hearing upon payment of the usual charges thereof (such as postage, printing, copying expense, etc.). Any decision made as a consequence of any hearing held pursuant to this article shall be subject to review by appeal to the Circuit Court of Pulaski County, in accordance with the law of Arkansas.

D. Following the show cause hearing, the hearing officer, if other than the sewer committee, shall within ten (10) days after the hearing submit his findings and recommendations to the members of the sewer committee. Following receipt of the recommendations, the sewer committee shall consider the findings and recommendations at its next regularly scheduled meeting or at any special meeting called for that purpose at which meeting the sewer committee shall take such action as it deems necessary. Within fifteen (15) days after consideration of the matter, the sewer committee shall have served on all parties the action recommended. If the sewer committee finds that legal action should be brought against the user for the violation(s), the sewer committee may institute such action to seek such civil and/or equitable relief including, but not limited to, injunctive relief, as may be appropriate; provided, however, that no suit to collect civil or criminal penalties may be initiated until after such time that a resolution authorizing such suit is duly adopted by the sewer committee pursuant to A.C.A. §§ 8-4-103(g)(1) and [8-4-103(a)](2).

Additionally, the sewer committee, through the CEO, may issue to any user in violation, notice that following a specified period of time, the sewer service will be discontinued unless its pretreatment facility shall have installed adequate devices or other related appurtenances are properly operated. Other orders and directives as necessary and appropriate may be issued.

An order directing the cessation of sewer service shall not preclude legal or equitable action as the sewer committee may deem appropriate under the circumstances.
(Ord. No. 19,895, § 10.4, 12-21-07)

Sec. 35-304. Compliance orders and schedules.

When the CEO finds that a user has violated, or continues to violate, any provision of this article, a wastewater discharge permit or order issued hereunder, or any other pretreatment standard or requirement, the CEO may issue an order or schedule to the user responsible for the discharge directing that the user come into compliance within a specified time. If the user does not come into compliance within the time provided, sewer service may be discontinued subject to notice and right to a hearing as provided herein unless adequate treatment facilities, devices, or other related appurtenances are installed and properly operated. Compliance orders also may contain other requirements to address the noncompliance, including additional self-monitoring and management practices designed to minimize the amount of pollutants discharged to the sewer. A compliance order may not extend the deadline for compliance established for a pretreatment standard or requirement, nor does a compliance order relieve the user of liability for any violation, including any continuing violation. Issuance of a compliance order shall not be a bar against, or a prerequisite for, taking any other action against the user.
(Ord. No. 19,895, § 10.5, 12-21-07)

Sec. 35-305. Cease-and-desist orders.

When the CEO finds that a user has violated, or continues to violate, any provision of this article, a wastewater discharge permit or order issued hereunder, or any other pretreatment standard or requirement, or that the user's past

violations are likely to recur, the CEO may issue an order to the user directing it to cease and desist all such violations and directing the user to:

A. Immediately comply with all requirements; and,

B. Take such appropriate remedial or preventive action as may be needed to properly address a continuing or threatened violation, including halting operations and/or terminating the discharge.

Issuance of a cease-and-desist order shall not be a bar against, or a prerequisite for, taking any other action against the user.
(Ord. No. 19,895, § 10.6, 12-21-07)

Sec. 35-306. Administrative fines.

A. When the CEO finds that a user has violated, or continues to violate, any provision of this article, a wastewater discharge permit or order issued hereunder, or any other pretreatment standard or requirement, the CEO may fine such user in an amount not to exceed one thousand dollars ($1,000.00). Such fines shall be assessed on a per-violation basis. In the case of monthly or other long-term average discharge limits, fines shall be assessed for each day during the period of violation. Each day of a continuing violation shall be deemed a separate violation.

B. Users desiring to dispute such fines must file a written request for the CEO to reconsider the fine along with full payment of the fine amount within ten (10) days of being notified of the fine. Where a request has merit, the CEO may convene a hearing on the matter. In the event the user's request is granted, the payment, together with any interest accruing thereto, shall be returned to the user. The CEO may add the costs of preparing administrative enforcement actions, such as notices and orders, to a fine. Collection of a fine can only be effected in a court of competent jurisdiction.

C. Issuance or pursuit of an administrative fine shall not be a bar against, or a prerequisite for, taking any other action against the user, and in no event shall legal proceedings be initiated to collect said fine or penalty without a resolution of the sewer committee authorizing such court action.
(Ord. No. 19,895, § 10.7, 12-21-07)

Sec. 35-307. Emergency suspensions.

The CEO may immediately suspend a user's discharge, after notice to the user and a hearing within five (5) days of the suspension, whenever such suspension is necessary to stop an actual or threatened discharge which reasonably appears to present or cause an imminent or substantial endangerment to the health or welfare of persons. The CEO may also immediately suspend a user's discharge, after notice and opportunity to respond, that threatens to interfere with the operation of the POTW, or which presents, or may present, an endangerment to the environment.

A. Any user notified of a suspension of its discharge shall immediately stop or eliminate its contribution. In the event of a user's failure to immediately comply voluntarily with the suspension order, the CEO may take such steps as deemed necessary, including immediate severance of the sewer connection, to prevent or minimize damage to the POTW, its receiving stream, or endangerment to any individuals. The CEO may allow the user to recommence its discharge when the user has demonstrated to the satisfaction of the CEO that the period of endangerment has passed, unless the termination proceedings in section 35-308 are initiated against the user.

B. A user who is responsible, in whole or in part, for any discharge presenting imminent endangerment shall submit a detailed written statement describing the causes of the harmful contribution and the measures taken to prevent any future occurrence to the CEO prior to the date of any show-cause or termination hearing under sections 35-303 or 35-308.

Nothing in this section shall be interpreted as requiring a hearing prior to any emergency suspension under this section.
(Ord. No. 19,895, § 10.8, 12-21-07)

Sec. 35-308. Termination of discharge.

In addition to the provisions in section 35-234, any user who violates the following conditions of this article, wastewater discharge permits, or orders issued pursuant to any provision of this article may be subject to discharge permit termination:

A. Violation of wastewater discharge permit conditions;

B. Failure to accurately report the wastewater constituents and characteristics of its discharge;

C. Failure to report significant changes in operations or wastewater volume, constituents, and characteristics prior to discharge;

D. Refusal of reasonable access to the user's premises for the purpose of inspection, monitoring, or sampling; or

E. Violation of the pretreatment standards in division 2. Such user will be notified of the proposed termination of its discharge and be offered an opportunity to show cause under section 35-303 why the proposed action should not be taken. Exercise of this option by the CEO shall not be a bar to, or a prerequisite for, taking any other action against the user.

(Ord. No. 19,895, § 10.9, 12-21-07)

Secs. 35-309—35-324. Reserved.

DIVISION 11. JUDICIAL ENFORCEMENT REMEDIES

Sec. 35-325. Injunctive relief.

When the CEO finds that a user has violated, or continues to violate, any provision of this article, a wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, the sewer committee may commence proceedings for the issuance of a temporary or permanent injunction, as appropriate, which restrains or compels the specific performance of the wastewater discharge permit, order, or other requirement imposed by this article on activities of the user. The sewer committee may also seek such other action as is appropriate for legal and/or equitable relief, including a requirement for the user to conduct environmental remediation. A complaint for injunctive relief shall not be a bar against, or a prerequisite for, taking any other action against a user.

(Ord. No. 19,895, § 11.1, 12-21-07)

Sec. 35-326. Civil penalties.

A. A user who has violated, or continues to violate, any provision of this article, a wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement shall be liable to LRW for a maximum civil penalty of one thousand dollars ($1,000.00) per violation. In the case of a monthly or other long-term average discharge limit, penalties shall accrue for each day during the period of the violation; and, each day of a continuing violation may be deemed a separate violation.

B. The CEO may recover all costs recoverable under the law of Arkansas, and other expenses associated with enforcement activities, including sampling and monitoring expenses, and the cost of any actual damages incurred by LRW.

C. In determining the amount of civil liability, a court of competent jurisdiction may take into account all relevant circumstances, including, but not limited to, the extent of harm caused by the violation, the magnitude and duration of the violation, any economic benefit gained through the user's violation, corrective actions by the user, the compliance history of the user, and any other factor as justice requires.

D. Filing a suit for civil or criminal penalties shall not be a bar against, or a prerequisite for, taking any other action against a user, provided, that no such suit to collect civil or criminal penalties shall be commenced without a resolution of the sewer committee authorizing such court action.

(1) For users with properties located within the corporate limits of the city, no suit to collect civil or criminal penalties or fines may be initiated until after such time that a resolution authorizing the suit is duly

adopted by the sewer committee, as the governing body pursuant to A.C.A. § 8-4-103.

(2) For users with properties located outside the corporate limits of the city, the board of directors of the city hereby delegates authority to the sewer committee to be the governing body to authorize, by resolution, legal actions to collect civil or criminal penalties or fines.

(Ord. No. 19,895, § 11.2, 12-21-07)

Sec. 35-327. Criminal prosecution.

A. A user who willfully or negligently violates any provision of this article, a wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement shall, upon conviction, be guilty of a misdemeanor, punishable by a fine of not more than one thousand dollars ($1,000.00) per violation or imprisonment for such term as allowed by law or both; provided that no criminal prosecution may be commenced without a prior resolution of the sewer committee authorizing such prosecution.

B. A user who willfully or negligently introduces any substance into the POTW which causes personal injury or property damage shall, upon conviction, be guilty of a misdemeanor and be subject to a penalty of at least one hundred dollars ($100.00) but not more than five hundred dollars ($500.00) for any one (1) specified offense or violation thereof, and not less than one hundred dollars ($100.00) but not more than one thousand dollars ($1,000.00) for each repetition of such event or violation, or be subject to imprisonment for such term as allowed by law, or both. This penalty shall be in addition to any other cause of action for personal injury or property damage available under State law.

C. A user who knowingly makes any ales statements, representations, or certifications in any application, record, report, plan, or other documentation filed, or required to be maintained, pursuant to this article, wastewater discharge permit, or order issued hereunder, or who falsifies, tampers with, or knowingly renders inaccurate any monitoring device or method required under this article shall, upon conviction, be punished by a fine of at least one hundred dollars ($100.00) but not more than five hundred dollars ($500.00) for any one (1) specified offense or violation thereof, and not less than one hundred dollars ($100.00) but not more than one thousand dollars ($1,000.00) for each repetition of such event or violation, or be subject to imprisonment for such term as allowed by law, or both. This penalty shall be in addition to any other cause of action for personal injury or property damage available under state law.

(Ord. No. 19,895, § 11.3, 12-21-07)

Sec. 35-328. Remedies nonexclusive.

The remedies provided for in this article are not exclusive. The CEO may take any, all, or any combination of these actions against a noncompliant user. Enforcement of pretreatment violations will generally be in accordance with LRW's enforcement response plan. However, the CEO may take other action against any user when the circumstances warrant. Further, the CEO is empowered to take more than one (1) enforcement action against any noncompliant user.

(Ord. No. 19,895, § 11.1, 12-21-07)

Secs. 35-329—35-344. Reserved.

DIVISION 12. SUPPLEMENTAL ENFORCEMENT ACTION

Sec. 35-345. Performance bonds.

The CEO may decline to issue or reissue a wastewater discharge permit to any user who has failed to comply with any provision of this article, a previous wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, unless such user first files a satisfactory bond, payable to the sewer committee, in a sum not to exceed a value determined by the CEO to be necessary to achieve consistent compliance.

(Ord. No. 19,895, § 12.1, 12-21-07)

Sec. 35-346. Liability insurance.

The CEO may decline to issue or reissue a wastewater discharge permit to any user who has failed to comply with any provision of this article,

a previous wastewater discharge permit, or order issued hereunder, or any other pretreatment standard or requirement, unless the user first submits proof that it has obtained financial assurances sufficient to restore or repair damage to the POTW caused by its discharge.
(Ord. No. 19,895, § 12.2, 12-21-07)

Sec. 35-347. Public nuisances.

A violation of any provision of this article, an individual wastewater discharge permit, a general permit, or order issued hereunder, or any other pretreatment standard or requirement is hereby declared a public nuisance and shall be corrected or abated as directed by the CEO. Any person(s) creating a public nuisance shall be subject to the provisions of the City Code for the City of Little Rock governing such nuisances, including reimbursing the city and/or the sewer committee for any costs incurred in removing, abating, or remedying said nuisance.
(Ord. No. 19,895, § 12.3, 12-21-07)

Sec. 35-348. Payment of outstanding fees and penalties.

The CEO may decline to issue or reissue an individual wastewater discharge permit or a general permit to any User who has failed to pay any outstanding fees, fines, or penalties incurred as a result of any provision of this article, a previous individual wastewater discharge permit, or a previous general permit or order issued hereunder.
(Ord. No. 19,895, § 12.4, 12-21-07)

Secs. 35-349—35-364. Reserved.

DIVISION 13. AFFIRMATIVE DEFENSES TO DISCHARGE VIOLATIONS

Sec. 35-365. Upset.

A. For the purposes of this section, "upset" means an exceptional incident in which there is unintentional and temporary noncompliance with categorical pretreatment standards because of forces beyond the reasonable control of the user. An upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation.

B. An upset shall constitute an affirmative defense to an action brought for noncompliance with categorical pretreatment standards if the requirements of subsection C., below, are met.

C. A user who wishes to establish the affirmative defense of upset shall demonstrate, through properly signed, contemporaneous operating logs, or other relevant evidence that:

(1) An upset occurred and the user can identify the cause(s) of the upset;

(2) The facility was at the time being operated in a prudent and workmanlike manner and in compliance with applicable operation and maintenance procedures; and

(3) The user has submitted the following information to the CEO within twenty-four (24) hours of becoming aware of the upset. If this information is provided orally, a written submission must be provided within five (5) days:

(a) A description of the indirect discharge and cause of non-compliance;

(b) The period of noncompliance, including exact dates and times or, if not corrected, the anticipated time the noncompliance is expected to continue; and

(c) Steps being taken and/or planned to reduce, eliminate, and prevent recurrence of the noncompliance.

D. In any enforcement proceeding, the user seeking to establish the occurrence of an upset shall have the burden of proof.

E. Users will have the opportunity for a judicial determination on any claim of upset only in an enforcement action brought for noncompliance with categorical pretreatment standards.

F. Users shall control production of all discharges to the extent necessary to maintain compliance with categorical pretreatment standards upon reduction, loss, or failure of its treatment

facility until the facility is restored or an alternative method of treatment is provided. This requirement applies in the situation where, among other things, the primary source of power of the treatment facility is reduced, lost, or fails.
(Ord. No. 19,895, § 13.1, 12-21-07)

Sec. 35-366. Prohibited discharge standards.

A user shall have an affirmative defense to an enforcement action brought against it for noncompliance with the general prohibitions in subsection 35-175A. or the specific prohibitions in subsections 35-175B.(3) through (18) if it can prove that it did not know, or have reason to know, that its discharge, alone or in conjunction with discharges from other sources, would cause pass through or interference and that either:

A. A local limit exists for each pollutant discharged and the user was in compliance with each limit directly prior to, and during, the pass through or interference; or

B. No local limit exists, but the discharge did not change substantially in nature or constituents from the user's prior discharge when LRW was regularly in compliance with its NPDES permit, and in the case of interference, was in compliance with applicable sludge use or disposal requirements.

(Ord. No. 19,895, § 13.2, 12-21-07)

Sec. 35-367. Bypass.

A. For the purposes of this section,

(1) "Bypass" means the intentional diversion of waste streams from any portion of a user's treatment facility.

(2) "Severe property damage" means substantial physical damage to property, damage to the treatment facilities which causes them to become inoperable, or substantial and permanent loss of natural resources which can reasonably be expected to occur in the absence of a bypass. Severe property damage does not mean economic loss caused by delays in production.

B. A user may allow any bypass to occur which does not cause pretreatment standards or requirements to be violated, but only if it also is for essential maintenance to assure efficient operation. These bypasses are not subject to the provision of subsections C. and D.

C. (1) If a user knows in advance of the need for a bypass, it shall submit prior notice to the CEO at least ten (10) days before the date of the bypass, if possible.

(2) A user shall submit oral notice to the CEO of an unanticipated bypass that exceeds applicable pretreatment standards within twenty-four (24) hours from the time it becomes aware of the bypass. A written submission shall also be provided within five (5) days of the time the User becomes aware of the bypass. The written submission shall contain a description of the bypass and its cause; the duration of the bypass, including exact dates and times, and, if the bypass has not been corrected, the anticipated time it is expected to continue; and steps taken or planned to reduce, eliminate, and prevent reoccurrence of the bypass. The CEO may waive the written report on a case-by-case basis if the oral report has been received within twenty-four (24) hours.

D. (1) Bypass is prohibited, and the CEO may take an enforcement action against a user for a bypass, unless

(a) Bypass was unavoidable to prevent loss of life, personal injury, or severe property damage;

(b) There were no feasible alternatives to the bypass, such as the use of auxiliary treatment facilities, retention of untreated wastes, or maintenance during normal periods of equipment downtime. This condition is not satisfied if adequate backup equipment should have been installed in the exercise of reasonable engineering judgment to prevent a bypass which occurred during normal periods of equipment downtime or preventive maintenance; and

(c) The user submitted notices as required under subsection C.

(2) The CEO may approve an anticipated bypass, after considering its adverse effects, if the CEO determines that it will meet the three conditions listed in subsection D(1).

(Ord. No. 19,895, § 13.3, 12-21-07)

Secs. 35-368—35-384. Reserved.

DIVISION 14. EXTRA STRENGTH SURCHARGE RATES

Sec. 35-385. General.

The CEO may at any time collect appropriate samples from any industrial or commercial user's discharge and conduct analyses to determine the concentrations of BOD/COD, TSS, pH, and oil and grease (O&G). If the sampling and analyses performed by the CEO or his designated assistant indicates concentrations of BOD/COD, TSS, and O&G exceeding the limits set forth in section 35-386 below, he shall compute an extra strength surcharge as set by the existing sewer rate ordinance, and the owner shall be liable for payment of the amount thereof. The collection of an extra strength surcharge is not a penalty, but rather allows LRW to defray the costs of treating industrial wastewater concentrations that are above average domestic wastewater concentrations. The surcharge shall be considered a sewer charge for which the owner shall be liable in accordance with the applicable law of the state, as amended and upon default in such payment, LRW shall be entitled to those remedies set forth in said statute.

(Ord. No. 19,895, § 14.1, 12-21-07)

Sec. 35-386. Computations.

The extra strength surcharge shall be calculated in accordance with the provisions of the applicable rate ordinance (the same being incorporated by reference) using the following limits and calculations:

(1) BOD in excess of two hundred fifty (250) mg/L

(2) COD in excess of four hundred (400) mg/L

(3) TSS in excess of two hundred fifty (250) mg/L

(4) O&G in excess of fifty (50) mg/L

SURCHARGE = $[(BOD_x - 250\ mg/L)\ (8.34)\ (V)\ (A)]$ or
$[(COD_x - 400\ mg/L)\ (8.34)\ (V)\ (A)]$ +
$[(TSS_x - 250\ mg/L)\ (8.34)\ (V)\ (B)]$ +
$[(O\&G_x \times 50\ mg/L)\ (8.34)\ (V)\ (C)]$

Where:

BOD_x	=	concentration of BOD in mg/L
COD_x	=	concentration of COD in mg/L
TSS_x	=	concentration of TSS in mg/L
$O\&G_x$	=	concentration of O&G in mg/L
8.34	=	weight of one gallon of water, pounds
V	=	flow in million gallons per month
A	=	unit charge for BOD/COD
B	=	unit charge for TSS
C	=	unit charge for O&G

(Ord. No. 19,895, § 14.2, 12-21-07)

Secs. 35-387—35-389. Reserved.

DIVISION 15. MISCELLANEOUS PROVISIONS

Sec. 35-390. Pretreatment charges and fees.

The CEO may adopt fees for reimbursement of costs of setting up and operating the Little Rock Wastewater Pretreatment Program which may include, but are not limited to the following:

(a) Fees for wastewater discharge permit applications including the cost of processing such applications and reviewing construction plans;

(2) Fees for monitoring, inspection, and surveillance procedures including the cost of sample collection and analyzing a user's discharge, and reviewing monitoring reports or BMPs and certification statements submitted by users;

(3) Fees for reviewing and responding to accidental discharge, including reasonable costs incurred for labor, materials, and proper disposal of incompatible wastes not subject to treatment by the POTW treatment plant;

(4) Fees for reviewing written requests for discharge of special wastes;

(5) Fees for filing appeals; and

(6) Other fees as the CEO may deem necessary to carry out the requirements contained herein. These fees relate solely to the matters covered by this article and are separate from all other fees, fines and penalties chargeable by the city.

(Ord. No. 19,895, § 15.1, 12-21-07)

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Chapter 36

ZONING*

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__State law references—__Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.; municipal zoning, A.C.A. § 14-56-416.

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ARTICLE I. IN GENERAL

Sec. 36-1. Title.

This chapter may be cited as "The Zoning Ordinance of the City of Little Rock, Arkansas." (Code 1961, Ch. 43, § 1-101)

Sec. 36-2. Definitions—Generally.

Words in the text or tables of this chapter shall be interpreted in accordance with the provisions set forth in this section and section 36-3. Where words have not been defined, the standard dictionary definition shall prevail. In any case, the planning director or his designated agent shall have the right to interpret the definition of the word.

Abutting means having property or district lines in common. Since zoning district lines fall to the centerline of a street, alley or waterways, lots which appear physically separated abut at the district line.

Access means the way or means by which a piece of property is approached or entered.

Accessory building or use means a building or use which:

(1) Is located on the same zoning lot as the principal building or principal use;

(2) Serves the principal building or principal use;

(3) In other than a residentially-zoned district, is subordinate in area, extent or purpose to the principal building or principal use served. Accessory structures in residentially-zoned districts shall be subordinate in area, extent and purpose to the principal building and residential use; and

(4) Contributes to the comfort, convenience or necessity of occupants of the principal building or principal use.

Accessory dwelling unit means a self-contained and independently accessed living unit that includes its own cooking, sleeping, and sanitation facilities, and that is a subordinate accessory unit to a primary or principal structure of a greater square footage on the same lot or parcel. Such accessory dwellings shall comply with the bulk and area provisions of section 36-156 and section 36-252, unless applicable to regulations set forth in section 36-204.

Addition means any construction which increases the size of a building such as a porch, attached garage or carport, or a new room or wing.

Alley means a permanent public service way which affords only a secondary means of access to abutting property.

Authorized agent means a person authorized by the landowner to act in his behalf.

Basement means a story partly underground and having at least one-half its height above the average level of the adjoining ground. A basement shall be counted as a story if subdivided and used for dwelling or business purposes.

Buffer, land use means a device in the form of a strip of land lying parallel and adjacent to a property line common to a dissimilar use of a more restrictive nature. The plantings, existing and proposed, shall be as provided within the landscape ordinance of the city, section 15-81 et seq. The purpose of this buffer is to provide for minimum livability and maximum required visual screening and physical separation of uses of a dissimilar nature.

Buffer, street means a device in the form of a strip of land lying parallel and adjacent to a public street right-of-way. The plantings, existing and proposed, shall be as provided within the landscape ordinance of the city, section 15-81 et seq. The purpose of this buffer is to provide for minimum livability, a separation of the traffic movements, both on and off the site, and a visual screening and spatial separation of certain uses and/or activities from the public right-of-way.

Buildable area means the space remaining for construction on a lot after the minimum area requirements (yards, setbacks, coverage) have been met.

Building means a constructed edifice designed to stand more or less permanently, covering a space of land, covered by a roof and enclosed by

walls, and serving as a shelter for the intended occupancy. For the purposes of this definition, all porches, carports, patios or other similar attachments to a building shall be deemed to be a part of the building.

Building, attached means a building which shares a continuous wall, roof, floor or other structural element with other adjacent building.

Building, detached means a building having no wall, roof, floor or other structural element in common with another building.

Building, enclosed means a structure which by design and construction provides a solid roof, and walls on all sides.

Building facade means the area of a single building elevation which encompasses all of such elevation from ground or grade level to the top, and from one (1) side to the other side of the building.

Building height means the vertical distance as measured through the central axis of the building from the elevation of the lowest finished floor level to the highest point of ceiling of the top story in the case of a flat roof; to the deck line of a mansard roof; and to the mean height level between the eaves and ridge of a gable, hip or a gambrel roof. This definition shall not be deemed to include church steeples, bell towers, antennas, chimneys, or other similar structural embellishments.

Building lines means a line, usually fixed parallel to a lot line, beyond which a building cannot extend under the terms of the zoning ordinance. It is equivalent to the setback or yard line.

Building, nonconforming means an existing building which fails to comply with the regulations (for height, size, areas, yards and location) set forth in this chapter applicable to the district in which this building is located.

Building, principal means a building in which is conducted the main or principal use of the lot on which the building is situated.

Build-to-line means the line where the exterior facade of a building is to be located excluding any projections.

Certificate of occupancy means official certification that a premises conforms to provisions of the zoning ordinance (and building code) and may be used or occupied. Such a certificate is granted for new construction or for alteration or additions to existing structures. Unless a certificate is issued, a structure cannot be occupied.

Commercial surface parking lot means a surface parking lot, which has spaces for lease or sale on an hourly, daily, monthly or annual basis.

Commercial vehicle means any bus, trailer, van, truck, tractor other vehicle and/or trailer which has a current license and safety inspection, the purposes of which are the transport of people, merchandise, the moving of furniture or other goods, hauling or towing of equipment or other vehicles. This definition shall include backhoes, bulldozers or other wheeled or tracked vehicles engaged in construction or land development occurring off-site, whether or not properly licensed.

City means the City of Little Rock, Arkansas.

Commission means the Little Rock Planning Commission.

Common usable open space means that portion of land or an area of water or a combination of land and water within the site designated for a planned unit development and designed and intended for use and enjoyment of residents and owners of the planned unit development, and easily accessible to all the residents. Common open space may contain such complementary structures and improvements as are necessary and appropriate for the benefit and enjoyment of residents and owners of the planned unit development, but shall not include parking lots, streets and other areas designed primarily for other than common recreational or open space use.

Conditional use means a use permitted in zones where they are specifically listed as

conditional uses and are subject to special conditions as determined by the planning commission as outlined in this chapter.

Corner lot means a lot located at the intersection of two (2) streets not sharing the common centerline.

County means Pulaski County, Arkansas.

Drive-through means an establishment which by design of physical facilities or by the type of service offered, the customer conducts business from a motor vehicle.

Dwelling, attached means adjoining dwelling units, each of which is separated from the others by one (1) or more unpierced common walls extending from ground to roof.

Dwelling, multiple-family means a dwelling designed for or occupied by more than two (2) families.

Dwelling, single-family detached means a dwelling designed for and occupied by not more than one (1) family.

Dwelling, two-family means a building designed for and occupied by not more than two (2) families in separate dwelling units, living independent of each other.

Dwelling or *dwelling unit* means any room or group of rooms located within a structure forming a single habitable unit with facilities which are used or intended to be used for living, sleeping, cooking, eating and sanitation by one (1) family.

Easement means a right-of-way or parcel of land specified or set aside for a specific use, normally used for access, utilities, and other public or private usages given by the owner of land to another party.

Eave means the weather-protective overhanging lower edge of a roof.

Family means, in addition to customary domestic servants, the following:

(1) An individual or two (2) or more persons related by blood, marriage or adoption, maintaining a common household in a dwelling unit; or

(2) A group of not more than four (4) persons who are not related by blood, marriage or adoption, living together as a common household in a dwelling unit.

This definition of family is established for the purpose of preserving the character of residential neighborhoods by controlling population density, noise disturbance and traffic congestion, and shall not be applied so as to prevent the city from making reasonable accommodation where the city determines it necessary to afford handicapped persons living together in a household equal access to housing pursuant to the federal Fair Housing Amendments Act of 1988.

Fence, height means the vertical measurement of a fence from the finished yard grade at the bottom of a fence to the top line or edge of the fence. Fence posts or columns may be erected to a height not to exceed two (2) feet above the allowable fence height, provided the columns or posts do not exceed twenty-four (24) inches in width and the spacing between columns or posts is not less than eight (8) feet. For purposes of fences erected upon any wall, the height shall include the vertical dimension of the wall.

Fence, opaque means a manmade barrier constructed to provide privacy and visual separation between dissimilar uses. Such fences shall be impervious to rays of visible light.

Flood hazard boundary map (FHBM) means an official map of a community, issued by the federal insurance administration, where the areas within the boundaries of special flood hazards have been designated as zone A.

Flood insurance rate map (FIRM) means an official map of a community, on which the federal insurance administration has delineated both the areas of special flood hazards and the risk premium zones applicable to the community.

Flood insurance study means the official report provided by the federal insurance administration. The report contains flood profiles, the water surface elevation of the base flood, as well as the flood hazard boundary-floodway map.

Floodway means the channel of a river or other watercourse and the adjacent land areas

that must be reserved in order to discharge the base flood without cumulatively increasing the water surface elevation more than one (1) foot.

Floor area means the total area of all floors of a building measured to the outside surfaces of exterior walls and including halls, stairways, elevator shafts, attached garages, porches and balconies.

Greenhouse means a building or structure, temporary or permanent, that provides a controlled environment for the placement of plants for sale, the planting and raising of plants or the display of plants for education, entertainment or artistic endeavor.

Gross acreage means the total acreage of the proposed development including areas designated for internal streets and other public facilities.

Gross leasable area means the revenue-producing portion of a structure.

Handicapped persons shall mean those so defined in the Fair Housing Amendments Act of 1988, as may be amended from time to time, and shall include persons with a physical or mental impairment which substantially limits one (1) or more of such person's major life activities, or who have a record of having such an impairment, or who are regarded as having such an impairment. This definition does not include current, illegal use of or addiction to a controlled substance as the latter term is defined by Arkansas law.

Home occupation means an accessory use of a dwelling that shall constitute either partially or entirely the livelihood of a person living in the dwelling. Such use shall in every respect be subordinate to the principal use as a single-family residence. These accessory uses shall be subject to the accessory use permit provisions of the various districts.

Load carrying capacity means the total weight of all cargo, mechanical equipment, housings or other appurtenances; erected, mounted or otherwise affixed to a vehicle above or outside of the primary vehicle frame or chassis.

Loading space (off-street) means an unobstructed, hard-surfaced area no part of which is located in any street or public right-of-way and the principal use of which is for the standing, loading or unloading of trucks and trailers.

Lot means a parcel of land legally defined in a recorded deed or a recorded plat, fronting on a public dedicated right-of-way or other approved private drive. The lot shall establish one (1) building site and comply with chapter 31.

Lot area means the total horizontal area included within the lot.

Lot coverage means the percentage of lot area occupied by the ground area of principal and accessory buildings on such lot.

Lot depth means the mean horizontal distance between the front lot line and the rear lot line, or the distance between the midpoint of the front lot and the midpoint of the rear lot line.

Lot, double frontage means a lot having frontage on two (2) nonintersecting streets.

Lot, interior means a lot other than a corner lot.

Lot line, front means the property boundary line that runs common with and adjacent to a street frontage or right-of-way separating such lot from such street; in the case of a double frontage lot or a corner lot, each line separating such lot from the street shall be considered a front lot line. For purposes of the front yard requirements established by this chapter, only one (1) street front yard setback shall be required unless it is specifically stated in the district provisions that a front yard setback is required for all street frontages.

Lot line, rear means that property boundary line which is generally parallel to and most distance from the front lot line of the lot.

Lot line, side means a property line which in most instances connects the front and rear property lines and may consist of a single line or bearing or may take the form of a curve or compound alignment. All property lines shall be considered side lot lines except for the required street front or rear lines.

Lot lines means the property boundary lines.

Lot of record means a parcel of land that is a lot in a subdivision recorded on the records of the county recorder's office, or that is described by a metes and bounds description which has been so recorded prior to the subdivision regulations in effect, or lots exempt from those regulations.

Lot width means the mean horizontal distance between the side lot lines of a lot measured at right angles to the depth; measurements shall be made at the front building line.

Natural state is the condition of a land area which is intended to remain undisturbed including topography, trees and vegetation. Enhancements such as landscaping, replacement of underbrush and other treatments may be made if approved as part of a site development plan.

Nonconforming building or structure means any building or structure lawfully existing on the effective date of this chapter, as amended, which does not comply with all of the regulations of this chapter for governing parking, or bulk and area requirements for the zoning district in which such building or structure is located; provided, however, any building containing more than one (1) dwelling unit in addition to the number permitted by the district regulations in the district where it is located shall be deemed to be a nonconforming use rather than a nonconforming building.

Nonconforming use means any use lawfully being made of any land, building or structure, on the effective date of this chapter, as amended, which does not comply with all the regulations of this chapter governing use for the zoning district in which such land, building or structure is located.

Off-site means a circumstance whereby a tract of land is physically separated from another by the intervention of a public street, alley or an unrelated ownership.

Parking means the act of or a state wherein motion has completely ceased. The vehicle involved, whether trailer or self-propelled, has been disconnected from its power source or the engine has been turned off; the driver or operator has left the vehicle unattended.

Parking lot means any area subject to wheeled traffic including access areas used for parking, except for single-family or two-family development.

Parking space, off-street means a space for the parking of a motor-driven vehicle within a parking lot and having a permanent means of access to a street right-of-way without requiring passage through another parking space. Such space shall meet all dimension and angle criteria in article VIII of this chapter.

Pedestrian "urban" oriented means a development pattern designed at a human (pedestrian) scale and orientation. This includes provision of visual items of interest for the pedestrian; window displays, streetscape amenities.

Plan means a fully dimensioned drawing which illustrates in detail all elements of a development proposal including, but not limited to, property lines, streets, easements, structural elements and landscaping. A plan is prepared by a professional surveyor, architect or engineer, appropriately certified.

Plan, final means a fully dimensioned drawing which illustrates in detail all elements of a development proposal including, but not limited to, property lines, streets, easements, structural elements and landscaping. A final plan is prepared by a professional surveyor, architect or engineer. A final plan further contains proper certification for accuracy and deletes natural land features. Natural land features and elements illustrated on a preliminary plat are replaced in the final plan by structural elements such as walls, ditches and other drainage facilities intended to alter land forms.

Plan, preliminary means a fully dimensioned drawing which illustrates in detail all elements of a development proposal including, but not limited to, property lines, streets, easements, structural elements and landscaping. A preliminary plan is prepared by a professional surveyor, architect or engineer. A preliminary plan further includes all development phase lines providing construction stages, topography, drainage and other natural land features.

Plat means an engineering drawing which provides for all data related to a development of land and certified as to accuracy by a professional surveyor or engineer.

Plat, final means an engineering drawing which provides for all data related to development of land certified as to accuracy by a professional surveyor or civil engineer, illustrating details necessary, conveying ownership, dedication, etc. However, no information as to physical features or use is reflected. A final plat is prepared in a form suitable for recording.

Plat, preliminary means an engineering drawing which provides for all data related to a development of land certified as to accuracy by a professional surveyor or civil engineer, illustrating the details as necessary to establish a development format with physical land features and usage.

Primary streets means Capitol Avenue, Broadway Street, Byrd Street, Center Street, Chester Street, Commerce Street, Cross Street, Cumberland Street, Louisiana Street, Main Street, Markham Street, 9th Street, President Clinton Avenue, River Market Avenue, Scott Street, 7th Street (west of Center Street), Spring Street and State Street.

Principal use means the use which fulfills the primary function of an establishment, institution, household or other entity.

Private passenger vehicle means a vehicle which has a current safety inspection and license plate, the primary purpose being to provide transportation for fewer than nine (9) people, a secondary purpose being to provide transport for small personal items, such as luggage, groceries, clothing, etc. This definition shall include all recreational vehicles, ATVs, race cars, hobby vehicles and vehicles authorized for use in association with a home occupation.

Reclassification means an amendment to or a change reflecting a change or revision or modification of the zoning district boundary map.

Residence means a building or part of a building containing one (1) or more dwelling units or rooming units. "Residence" does not include:

(1) Such transient accommodation as a transient hotel, motel, tourist home or similar establishment; or

(2) A dormitory, fraternity or sorority house, monastery or convent, or similar establishment containing group living or sleeping accommodations; or

(3) Nurses' residence, sanitarium, nursing home, convalescent home, rest home, or other sleeping or living accommodation in community facility building or portion of a building used for community facility use.

Right-of-way, public means an area of land deeded, reserved by plat, or otherwise accepted and maintained by the city, the county or the state for public use.

Satellite, television, signal receiving dishes, ground-mounted means a device commonly parabolic in shape, mounted at a fixed point on the ground for the purpose of capturing television signals transmitted via satellite communications facilities and serving the same or similar function as the common television antenna. Such devices are defined in this chapter as accessory structures.

Screening is the use of natural or manmade topography, berms, fences, walls, trees, shrubs, ground cover or any combination thereof which partially or completely blocks the view of one area from another.

Screening, opaque means a manmade device on or a natural feature of a property which restricts access or visibility, the purpose of which is to provide privacy, separation of use and lessen the impact of automobile lights on an adjacent use. Such screening shall be opaque in nature and disallow the passage of visible light frequencies.

Site plan review means the process whereby the planning commission and staff review the

site plans and maps of a developer to assure that they meet the stated purposes and standards of article II, division 5 of this chapter.

Street means a publicly maintained right-of-way, other than an alley, which affords a primary means of access to property.

Structural alteration means any external change either in the supporting members of a building, such as a bearing wall, column, beam or girder; or in the dimension or configuration of the roof or other exterior wall.

Structural tie means a physical connection between buildings or structures whose design intent is to create a single principal building or structure. Such connections shall be limited to closed constructions that are heated or cooled common to the structures tied. Covered walks, patios and similar constructions attaching buildings or structures are expressly exempted.

Structure means anything constructed or erected or installed by man, the use of which requires more or less permanent location on the ground or attached to something, or attached to something having a permanent location on the ground, including but not limited to, buildings, towers and smokestacks.

Use means a purpose to which land is committed.

Variance means an exception from the strict application of the provisions of this chapter.

Wall, decorative means a structure the design of which is intended to visually or physically separate one area from another; to extend a building feature; in all instances a free standing structure except as may be attached to another structure at the ends.

Wall, structural means a structure the design of which is intended to provide vertical or horizontal foundation or support for another structure or land form.

Yard, exterior means any yard which is adjacent or parallel to a public right-of-way or designated floodway, as specified on the flood insurance rate maps.

Yard, front means the required area of open space extending across the full width of the lot, the depth of which shall be the least distance between the front lot line and the nearest point of the main building or of any open, unenclosed porch or paved terrace as measured from the exterior face of the building foundation.

Yard, interior means any yard which does not run adjacent to or parallel with a public right-of-way or a designated floodway.

Yard, rear means the required area of open space extending across the full width of the lot between the rearmost main building and the rear lot line, the depth of which shall be the least distance between the rear lot line and the rear of such building.

Yard, side means the required area of open space between the main building and the side lot line, extending from the front yard or front lot line where no front yard is required, to the rear yard, the width of which shall be the least distance between the side lot line and the nearest point of the main building.

Zoning district means a section of a city designated in this chapter in which requirements for the use of land and building and development standards are prescribed.

Zoning district boundary means that boundary line which separates unlike zoning districts.

Zoning lot means a parcel of land that is designated by its owner or authorized agent as a tract, all of which is to be used, developed or built upon as a unit under a single ownership. A zoning lot may consist of any standard lot or a combination of a lot and any legally recorded portion of a lot that existed prior to the passage of this chapter. When determining the front, rear and side yard setbacks for a zoning lot, the required distance shall be measured from the exterior boundaries of the zoning lot.

(Code 1961, Ch. 43, § 2-102(a), (b); Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,553, § 1n, uu, xx, 9-20-88; Ord. No. 15,571, § 1i, 11-1-88; Ord. No. 15,615, § 1a, 1-3-89; Ord. No. 15,832, § 1b, 4-3-90; Ord. No. 15,841, § 1, 4-17-90; Ord. No. 16,341, § 1(t), (x), (bb), (ee), 1-19-93; Ord. No. 16,861, § 1(o), (aa), 3-21-95; Ord. No. 18,228, § 2,

3-7-00; Ord. No. 18,324, § 1(c), (z), 8-1-00; Ord. No. 19,052, § 1, 2-3-04; Ord. No. 19,395, § 1(a), 9-6-05; Ord. No. 19,910, § 1(e), 1-15-08; Ord. No. 20,326, § 1(g), 9-21-10; Ord. No. 21,017, § 1(c), 4-7-15; Ord. No. 22,647, § 1, 8-19-25)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 36-3. Same—Uses.

The following definitions and explanatory notes supplement, restrict, and define the meaning and intent of the use regulations in this chapter. The first eighteen (18) uses listed are residential in nature and have been grouped at the top of the list. Other uses follow in alphabetical order:

Agricultural products processing means a facility which involves the operation of processing, preparing or packaging agricultural products which are not grown on the site.

Aircraft means any contrivance now known or hereafter invented for use in or designed for navigation of or flight in air.

Airport or *landing field* means any area of land or water designated, set aside, continuously used, or intended for use, for the landing and takeoff of aircraft, and any appurtenant areas designated, set aside, used, or intended for use, for airport buildings or other airport facilities, rights-of-way, or approach zones, together with all airport buildings and facilities located thereon.

Ambulance service, headquarters post means a facility established to transport infirm or injured persons from one (1) place to another by means of the appropriate vehicle or aircraft. This use consists of all services related to provision of ambulance service including but not limited to: Administration, operations, dispatch, communications, vehicle maintenance, eating facilities and storage and crew sleeping quarters.

Ambulance service post means a facility for the posting of crews and ambulance units only in various sections of the city. The post may consist of sleeping quarters for crew and parking of ambulances and employee vehicles.

Amusement, commercial (inside) means an amusement enterprise wholly enclosed in a building, including, but not limited to, a bowling alley, billiard parlor, or a facility intended for dancing whether or not a fee is charged for admittance.

Amusement, commercial (outside) means any amusement enterprise offering entertainment or games of skill to the general public for a fee or charge where any portion of the activity takes place in the open, including but not limited to a golf driving range, archery range or miniature golf course.

Animal clinic (enclosed) means a facility, without outside runs, for the diagnosis and treatment of pets and other animals including, but not limited to, dogs, cats, birds and horses. No outdoor boarding of these animals shall be allowed overnight.

Animal pound or *kennel* means a public or private facility including outside runs for enclosure of animals, especially stray or unlicensed pets, or for pets being boarded for short period of time.

Antique shop with repair means an establishment offering for sale articles such as glass, china, furniture or similar furnishing or decorations which have value and significance as a result of age, design or sentiment. This use shall include as an ancillary activity, the refinishing, repair or reupholstery of furniture or other antiques sold or displayed for sale on the premises. Enclosure of use required. Limited to ten (10) percent of gross floor area.

Antique shop without repair means an establishment offering for sale articles such as glass, china, furniture or similar furnishing or decorations which have value and significance as a result of age, design or sentiment. No refinishing, repair or upholstery work permitted.

Appliance repair means a shop for the repair of household and home equipment, such as electrical appliances, lawn mowers, tools and similar items.

Auction, general merchandise means the public sale of merchandise, equipment, or other physical goods to the highest bidder. This use is not restricted to closed buildings and may be conducted parttime or open air provided all other provisions of this chapter are met.

Auto auction means a facility for the sale of automobiles to the highest bidder.

Auto glass or muffler shop means a facility for installation or replacement of auto glass and mufflers.

Auto or truck rental and leasing means a facility which for a fee provides automobiles, trucks and trailers for rent or lease. This may include ancillary activities, such as: repair, maintenance, washing and sales of used units.

Auto painting or body rebuilding shop means a facility for restoring auto bodies, painting or refinishing.

Auto parts and accessory sales means a facility having auto parts, accessories and tools for sale.

Auto parts, sales with limited motor vehicle part installation means a facility primarily for the sale of auto parts with the accessory function of installation of parts. Part installation is limited to such functions as tire mounting and other periodic parts maintenance. Engine rebuilding or major repair work is prohibited.

Auto rental or leasing (no service, sales or repair) means a facility limited to an office space, with display of automobiles which for a fee are rented or leased.

Auto repair garage means a facility for major motor vehicle repair, excluding body rebuilding.

Automobile or motorcycle display, sales or service means a facility for display, service and sale of new or used automobiles, motorcycles, recreational vehicles and trailers.

Bakery or confectionery shop (retail) means a place for baking or selling baked goods, or a place for preparing, cooking, making or selling candy or other sweets.

Bank or *savings and loan* means a facility which has as its primary purpose the custody, loan, exchange or issue of money, the extension of credit and the transmission of funds, including drive-in facilities and automatic teller machines.

Bar, lounge or *tavern* means an establishment, the primary activity of which is the sale and consumption on the premises of beer, wine or other alcoholic beverages, and where any food service is secondary to the sale of beer, wine or other alcoholic beverages. This use may include a facility for dancing.

Barber or beauty shop means a facility licensed by the state where hair cutting, hair dressing, shaving, trimming beards, facials, manicures or related services are performed.

Bed and breakfast house/short-term rental type 1 (STR-1) means an owner-occupied, single-family, two (2)-family or multi-family dwelling unit which contains not more than nine (9) bedrooms or guest rooms, no more than one (1) of which may be located in an approved accessory dwelling, which for a fee may be occupied by a guest for no longer than twenty-nine (29) consecutive days. Bed and breakfast house/short-term rental type 1 (STR-1) are a land use allowed only where the planning commission has granted a special use permit in accordance with chapter 36, article 11, section 36-54 special use permits.

Bed and breakfast house/short-term rental type 2 (STR-2) means a non-owner occupied single-family, two (2)-family or multi-family dwelling unit which contains not more than nine (9) bedrooms or guest rooms, which for a fee may be occupied by a guest for no longer than twenty-nine (29) consecutive days. Bed and breakfast house/short-term rental type 2 (STR-2) are a land use allowed only where a planned zoning district has been approved in accordance with chapter 36, article VII, planned zoning district.

Beverage store means a facility for the sale of beer, wine or liquor not for on-premises consumption.

Book and stationery store means a facility for the sale of books, pamphlets, paper, pens, ink and associated items; not involving wholesale distribution.

Bottled gas, bulk storage nonflammable or nonhazardous means a facility for the warehousing or storage of any quantity of gases above or below ground for purposes of filling canisters or tanks for the retail sale to end users.

Bottled gas, sales and service means a facility for the marketing of gases of any type for medical, manufacturing, welding or similar activities with no bulk storage or filling of tanks.

Brewery means an establishment operated under the definitions, terms and provisions of Arkansas Code Title 3 (A.C.A. § 3-1-101 et seq.) which manufactures beer, malt and hard cider up to forty-five thousand (45,000) barrels per year and which may sell products produced on-site for on-premises and off-premises consumption. The establishment may include a restaurant (eating place inside as defined in this chapter).

Building material sales means a facility for the sale of materials and hardware to be used for the construction, renovation, remodeling or other alteration of primary or accessory buildings.

Bulk storage of highly flammable and/or hazardous materials means all materials and substances which are designated or defined as hazardous or flammable by law or regulation of this state or by law or regulation of the federal government.

Bus or truck storage or garage means a facility in which currently licensed buses or trucks are stored or repaired.

Bus station and terminal means a facility on a common carrier line for bus docking, freight storage, and passenger loading and unloading. This shall not be construed to include passenger shelters which may be located on a local bus route.

Butcher shop means a facility for dressing and preparing animal carcasses for sale as smaller unit purchases. This use is entirely enclosed.

Cabinet and woodwork shop means a shop for the repair or creation of individual items of furniture and wooden home furnishings on a custom basis, not a factory, planing mill or similar woodworking plant.

Camera shop means a retail shop which sells photography items including cameras, film, photographic paper, auxiliary lenses, photo finishing, photo finishing material, projection equipment and other related items.

Car wash means a facility for washing or steam cleaning passenger automobiles (including a self-service operation), operating either as a separate facility or when installed and operated in conjunction with another use, and which installation includes equipment customarily associated with a car wash and which is installed solely for the purpose of washing and cleaning automobiles.

Catering, commercial means the preparation of foods, condiments and associated utensils or containers used in such activities. This definition shall include the serving and consumption of specialty food items and meals, both on and off-site. Enclosure of the use is required.

Catering/home cooking means the preparation, delivery and serving of foods, condiments and the utensils or containers used in such activities. This use shall provide for the serving and consumption of the prepared meals off-site. Enclosure of use is required.

Cemetery or *mausoleum* means a place or ground designated for burial of the dead. A mausoleum is a building with places for entombment of the dead.

Church means a place of worship and religious training and including accessory housing facilities such as a rectory.

Cigar, tobacco and candy store means the retail sale of cigars, cigarettes, pipe tobacco, candies and related items.

Clinic (medical, dental, optical) means a facility for examining, consulting with and treating patients, including offices, laboratories and outpatient facilities but not including hospital beds for overnight care or treatment.

Clothing manufacturing means operations involving cutting, sewing, forming and packing of garments and similar items, including the making of millinery and clothing accessories.

Clothing store means a retail facility for selling male or female apparel.

College dormitory means a college residence hall providing sleeping rooms.

College fraternity or sorority means an organization formed chiefly for social purposes which may have secret rites and a name usually consisting of Greek letters.

College, university or *seminary* means a college or university is an academic institution of higher learning beyond the level of public, parochial, elementary or secondary schools. A seminary is an institution for the training of candidates for the priesthood, ministry or rabbinate.

Communications, receiving or transmitting means a facility for the relay of audio or video communications where the principal function is receiving and channeling communication obtained from or originating at another location.

Community, welfare or health center means a community service facility where social, recreational, welfare, health or child care assistance is provided by a public quasi-public, tax exempt, church or municipal agency.

Contractor maintenance yard means an open storage yard for supplies and operational equipment, but not constituting a junk or salvage yard.

Convenience food store with gas pumps means a small food store whose primary function is the sale of convenience food items such as bread, milk, etc. Operational gas pumps and petroleum sales are provided on the site. No automobile parts, sales or service is allowed.

Convent or *monastery* means dwelling units of a religious order or congregation for persons under religious vows.

Correctional facility means a staffed and supervised community based transitional facility for housing persons serving all or part of a sentence or probation, for violation or conviction of a criminal offense, and which may also provide structured programs and services such as counseling and job placement to the residents. This definition excludes jails, prisons and detention centers operated by any local, county, state or federal government, and facilities operated by any state agency subject to statutory notice provisions.

Country club, private membership means an area of twenty (20) acres or more containing a golf course and a clubhouse available only to the membership. Such a club may contain as adjacent facilities a private club and dining room, swimming pool, tennis courts and similar service and recreational facilities.

Crematory, crematorium or *crematories* means an establishment for the reduction of bodies to ash by fire either directly or in ovens or by a retort. This use shall be conducted entirely within an enclosed area.

Custom sewing and millinery means custom making of apparel and millinery, not involving a factory.

Day camp means a recreational facility or area maintained under private or public auspices with open air or structural involvement which provides for recreational activities, overnight lodging, counseling or other activities sponsored by a nonprofit, charitable, or religious organization.

Day care center means any facility conducted under public or private auspices on a profit or nonprofit basis providing a planned child development program or giving direct care and protection for children which requires licensing by the state except as a licensed day care family home.

Day care center, adult means any facility conducted under public or private auspices on a profit or nonprofit basis providing a planned care program giving direct care and protection for adults which requires licensing by the state. This use is limited to the numbers of adults and hours per day set forth within state licensing guidelines.

Day care family home means any facility which provides child care in a family setting within a care giver's family residence in accordance with provisions of licensing procedures established by the State of Arkansas. This use is intended to fill that level of child care between unregulated babysitting and day care center.

Drugstore or *pharmacy* means a facility for preparing, preserving, compounding and dispensing drugs and medicines; and may include the display and sale of other merchandise such as cosmetics, notions, fountain service and similar items.

Duplication shop means a facility for the reproduction and copying of printed material or drawings.

Eating place inside means an establishment where food is available to the general public for consumption within a building on the premises.

The design of the building shall not include provision for the sale of foods by the use of a drive-through window, nor the consumption of foods by customers within vehicles parked on-site.

Eating place with drive-in service means an establishment which by design of physical facilities or by the type of service and packaging permits or encourages the purchase of prepared, ready-to-eat foods for consumption on or off the premises and which does permit consumption on the premises in motor vehicles.

Eating place without drive-in service means an establishment where food is available to the general public primarily for consumption within a structure on the premises or which by design of physical facilities or by type of service and packaging permits or encourages the purchase of prepared, ready-to-eat foods intended for consumption off the premises, and where the consumption of food in motor vehicles on the premises is neither permitted, nor encouraged.

Establishment of a religious, charitable or philanthropic organization means the offices and activities sponsored by or operated by organizations established for religious or philanthropic purposes, including training and educational facilities and similar establishments, but not including group residential uses.

Establishment for care of alcoholic, narcotic or psychiatric patients means an establishment offering residence for outpatient treatment to alcoholic, narcotic or psychiatric patients.

Estate sales means a retail sales use that is typically located on the premises of a person or persons desirous of disposing of household possessions. This use shall be limited to the sales of furniture or household possessions from that residence. The accumulation of articles from more than one (1) household shall not be offered for sale at a single residential location.

Event center means any privately owned property, building or portion of a building, the primary purpose of which is to be rented or leased for parties, entertainment functions, conventions, conferences, seminars, assemblies or meetings. This definition shall not include those facilities, banquet halls or meeting facilities which are an ancillary use to a permitted use within a zoning district.

Family care facility means a facility which provides resident service in a family-like environment to six (6) or fewer individuals and not more than two (2) staff personnel. These individuals require a minimal level of supervision and are provided service and supervision in accordance with their individual needs.

Feed store means a facility for the sale of grain, prepared feed and forage for pets, livestock and fowl, but not involving the grinding, mixing or commercial compounding of such items.

Fire station means a building specifically constructed to house fire fighting apparatus, firemen and living accommodations for full-time occupancy.

Florist shop means a facility for the retail sale of cut or uncut flowers and ornamental plants and accessory items. Enclosure of use required.

Food store means an establishment where foods and associated items are kept and displayed for retail sales.

Foundry or *metalworks* means a facility for the melting, smelting, molding or otherwise processing or manufacturing of metallic minerals.

Furniture repair store means a facility for repairing and reupholstering furniture, including specialized equipment.

Furniture store (new) means a retail facility for displaying and selling new furniture, and may also include appliances such as radios, televisions, stereos, refrigerators, stoves and lawn furniture.

Glass/glazer, (installation, repair and sales) means a business whose principal activity is the cutting, setting and finishing of glass for residential or business buildings and the sales of glass and appurtenances.

Grain elevator or *feed mill* means a facility for the storage or mixing or grinding of grains or other prepared foods to be used for pets, livestock or fowl.

Group care facility means a facility providing shelter, counseling and other rehabilitative services to more than six (6) but fewer than sixteen (16) residents and not more than three (3) staff or supervisory personnel. The individuals require some level of supervision or care, however, no medical or nursing care shall take place on the site. The facility shall be licensed and/or approved by the State of Arkansas.

Group home means a facility that does not fall within another defined facility category within this section and which provides housing in a family-like environment to more than four (4) handicapped individuals. This use is permitted only as a special use as designated in this chapter.

Handicraft, ceramic, sculpture or similar art work means a facility to individually create objects such as leather goods; jewelry; oven-fired, nonmetallic mineral products or carved three-dimensional works of art, not a factory.

Hardware or sporting goods store means a retail facility for selling cutlery, tools, utensils, screws, nails and similar items; or athletic uniforms, sport clothing and sporting equipment.

Hauling and storage company means a facility for warehousing, transferring or keeping goods.

Health studio or spa means a facility other than a regularly licensed hospital, operating for a profit to promote physical fitness or weight control, and where manipulated massage or manipulated exercises are practiced upon the human body by anyone not a duly licensed physician or chiropractor, whether with or without use of mechanical or therapeutic devices.

High rise, multifamily means any structure housing residential units (public or private) which exceeds a height of thirty-five (35) feet.

Hobby shop means a facility for the sale of hobby supplies such as model kits, art equipment and materials.

Home center means a facility which retails appliances, fixtures, building materials and other similar items for the maintenance and improvement of residential structures.

Homeless shelter means a facility providing temporary housing to indigent, needy, homeless or transient persons. Such a facility shall be permitted to also provide ancillary services such as meals, counseling and vocational training.

Hospital means an institution which is licensed by the state where sick or injured patients are given medical or surgical treatment intended to restore them to a healthy and active life or where persons suffering from generally permanent types of injury, illness, deformity or age are given care and treatment on a prolonged or permanent basis.

Hotel or motel means a temporary abiding place containing ten (10) or more guest rooms or units furnishing customary hotel services such as linen, maid service, service and the use of, and upkeep of furniture.

Housing, elderly means three (3) or more dwelling units specifically designed and intended for occupancy by the elderly. This use typically provides ancillary services on-site, such as transportation, recreation, and common dining facilities. Density of development shall be the measure of private sleeping accommodations or beds. In no instance shall the unit density per acre exceed that provided in the R-5 district.

Industrial uses not listed (enclosed) means any completely enclosed industrial use which is not specifically listed in this chapter.

Institution for special education means an educational institution licensed by the state, whether private, public or religious which provides special training or care for children suffering learning disabilities such as dyslexia, autism, mental retardation or brain damage.

Jewelry store means a facility which retails watches, rings, bracelets, necklaces and similar items.

Job printing; lithographer; printing or blueprinting plant means a plant or facility for commercial reproduction of material or drawings on a job order or bulk basis utilizing lithography, offset printing or other purposes.

Junk or salvage yard means any establishment maintained, used or operated for the storing, keeping, dismantling, salvaging, buying or selling of:

(1) Scraps or discarded pieces of metal, paper, rags, tires, bottles and other materials.

(2) Inoperable, wrecked, scrapped, ruined or discarded automobiles, automobile parts, machinery or appliances.

A junk or salvage yard shall not include premises on which such uses are conducted entirely within a completely enclosed building, nor shall a junk or salvage yard include premises used primarily for the sale or storage of operable automobiles or for the overhaul or full repair thereof, so long as no inoperable junk or wrecked automobile remains outside more than thirty (30) days. Any premises on which there remains outside more than thirty (30) days an inoperable, partially dismantled, wrecked or junked automobile shall be deemed for the purpose of this chapter, a junk or salvage yard.

Key shop means a facility for the sale or duplication of keys.

Laboratory means a facility for testing and analyzing problems of general health or which performs a scientific test, analysis or experimental study.

Laboratory, manufacturing means operations involving the compounding of products such as perfumes, pharmaceuticals and the development and assembly of instruments and similar items.

Landscape service means a facility for the design and implementation of design of residential and business landscaping. This facility may include the storage of landscape materials in bulk form as well as the required machinery or equipment for installation.

Laundromat means a coin-operated facility designed for use by the general population for the cleaning and/or dry cleaning of domestic laundry items.

Laundry, domestic cleaning means a facility for the cleaning or dry cleaning of domestic laundry items. These items are, but not limited to, personal clothing, towels and linens.

Laundry, industrial means a facility for the cleaning of commercial or industrial bulk items from retail, industrial or other business activities. These items are, but not limited to, uniforms, towels and linens and floor mats.

Laundry pickup station means a facility for the collection and return of domestic laundry items. This use is to be totally enclosed.

Lawn and garden center, enclosed means a facility for the sale and rental of plants and other landscape or gardening supplies and the equipment used in the installation or maintenance thereof. This use shall be restricted to the enclosed portions of buildings. Outside display is expressly prohibited.

Lawn and garden center, open display means a facility for the sale or rental of plants and other landscaping or gardening supplies and the equipment used in the installation or maintenance thereof. Open display shall be permitted outside of closed buildings provided such display does not occupy required off-street parking spaces and is screened as required by the commercial district's criteria.

Library, art gallery, museum or similar public use means an establishment for the loan or display of books, or objects of art or science which is sponsored by a public or quasi-public agency and which institution is open and available to the general public.

Light fabrication and assembly process means the manufacture and assembly of items not involving an excessive generation of noise, odor, vibration, dust or hazard.

Lodge or *fraternal organization* means a private, nonprofit organization whose primary purpose is to promote the fellowship of its members and which may conduct business associated with philanthropy or civic awareness.

Lumberyard means a facility which stores and sells cut lumber and other associated or accessory building materials.

Machine or welding shop means a facility in which metallic materials are processed by machining, cutting, grinding or welding.

Machinery sales and service means a facility for repairing equipment, selling and servicing of machinery.

Manufactured home means a factory-assembled detached dwelling unit with the following characteristics:

(1) Designed for full-time occupancy and containing sleeping, bath and kitchen facilities.

(2) Connections for utilities systems provided on the intended site.

(3) Designed for highway transport with wheels, chassis, tongue and other features related to transportability.

(4) Conformance with the minimum construction standards of the Federal Mobile Home Regulations of Title VI of Public Law 93-383, USC 5401.

This structural type is required to be placed upon permanent foundation supports with anchorage complying with the city's building codes. This definition shall be deemed to include modular homes that are factory assembled. This structural type is expressly prohibited in all zoning districts except R-7 and R-7A where it is a use by right subject to site plan review, and the R-2, R-3 and R-4 districts where it is allowed by conditional use permit.

Manufactured home, multisectional means a manufactured home with the additional characteristic of modular delivery to the permanent homesite. This structural type shall consist of two (2) or more modules designed for permanent attachment to make one (1) dwelling unit.

Medical appliance fittings and sales means a facility specializing in special purpose devices related to medical treatment.

Medical marijuana cultivation facility means an entity which has been licensed by the medical marijuana commission and operated in compliance with all applicable state rules that cultivates, prepares, manufactures, processes, packages, sells and delivers usable marijuana to a dispensary.

Medical marijuana dispensary means an entity that has been licensed by the medical marijuana commission and operated in compliance with all applicable state rules that sells medical marijuana. This term also includes cultivating dispensaries.

Microbrewery or *microbrewery restaurant* means an establishment operated under the definitions, terms and provisions of Arkansas Code Title 3 (A.C.A. § 3-1-101 et seq.) which manufactures beer, malt and hard cider up to twenty thousand (20,000) barrels per year and which may sell products produced on-site for on-premises and off-premises consumption. The establishment may include a restaurant (eating place inside as defined in this chapter).

Mini-warehouse means a warehouse facility which is utilized for the storage of personal possessions such as boats, trailers and furniture, and is available for rent to the general public.

Mobile canteen unit means a vehicle, including mobile food trucks, mobile food trailers, and push carts, offering food products or beverages for sale to consumers.

Mobile home, preregulation means a factory-assembled detached dwelling with the following characteristics:

(1) Designed for full-time occupancy and containing sleeping, bath and kitchen facilities;

(2) Connections for utility systems provided on the intended site;

(3) Designed for highway transport with wheels, chassis, tongue and other features related to transportability.

This unit type is required to be placed on foundation supports with anchorage complying with the city building codes. This unit type is also recognized as having been constructed prior to the adoption of the National Manufactured Home Construction and Safety Standards on June 15, 1976. This structural type is expressly prohibited, whether for

permanent or temporary occupancy, in all zoning districts except the R-7 manufactured home park district. This type of structure is also subject to the restrictions in sections 20-81 and 36-153.

Mobile home sales means a facility for the sale of mobile residences.

Mortuary or *funeral home* means a facility in which deceased bodies are prepared for burial and kept until burial, and in which funeral services may be conducted. A crematorium may be part of the services included within a full-service funeral home operation if a conditional use permit is properly obtained.

Motor freight terminal means a facility for freight loading and freight storage.

Multifamily means three (3) or more dwelling units, each occupied by not more than one (1) family.

Nursing home or *convalescent home* means a facility providing care and minor treatment under the direction of a physician licensed by the state or a facility providing services to patients for the purpose of achieving rapid recovery, may furnish basic provisions of food and laundry.

Office equipment sales and service means a facility for the display, sales, service or repair of equipment, machines or computers typically utilized in daily activities of general or professional offices.

Office, general or *professional* means a place for the regular transaction of business, but not to include the occupation by retail sales, transfer of manufactured goods or storage of commodities.

Office, showroom and warehouse means a facility for mixed use with the following characteristics:

(1) A showroom for display of product line which does not include items for user purchase, except within C-3 general commercial district.

(2) A storage or warehouse facility which occupies not more than sixty (60) percent of the gross floor area of the structure(s).

(3) The principal office of the business;

(4) Sales to contractors or other businesses installing or delivering to consumer and user.

Office, warehouse means a facility, combining office and warehouse functions in a single structure.

Optical shop means a facility for a dealer in optical items or for correcting vision.

Orphanage means a residential housing facility for homeless, abused or neglected children. This definition shall be deemed to include the provision of shelter, meals, clothing and counseling for on-site residents only. Accessory uses shall in every respect be subordinate to the principal use.

Paint and wallpaper store means a facility for selling paints, painting equipment and wallpaper.

Parking, commercial lot or garage means a facility for temporary storage of motorized or wheeled vehicles.

Pawnshop means a facility for loaning money on the security of personal property; unclaimed property may be sold on-premises.

Pet shop means a facility for the display and sale of small animals, fish and birds as pets, such as dogs, cats, parakeets, goldfish, tropical fish or canaries, without involving commercial boarding or treating of any animal, fish or bird.

Petroleum products, storage and wholesale means a facility for the storage and sale of petroleum products.

Photography studio means a facility for taking and processing pictures, not a bulk processing plant.

Plant nursery means an enterprise devoted to the planting and raising of vegetables, flowers and ornamental plants intended for transport to off-site locations for sale. On-site sale of products shall be permitted as set forth by subsection 36-338(b) of this Code. Enclosure of use shall not be required.

Plant nursery, wholesale and producer means a facility for the planting and raising of flowers

and ornamental plants intended for transport to off-site locations for retail sales. Enclosure of use shall not be required.

Plumbing, electrical, air conditioning and heating shops means a facility providing supplies, repair, installation and sales of plumbing, electrical, air conditioning and heating equipment.

Private club with dining or bar service means a group of people associated or formally organized for a common purpose, interest or pleasure. Facilities include dining or bar accommodations, none of which are available except to members or their guests.

Racetrack means a facility for races, including closed course, straight-away or acceleration runs.

Railroad freight terminal means a facility on a railroad for freight classifying, docking and storage.

Railroad passenger station means a facility for loading and discharging of passengers.

Recycling and reclamation facility means a facility for receiving, storage and sorting of paper, glass, metals and other reusable materials or objects including the crushing, rendering or dismemberment of vehicles, containers or structures.

Recycling facility, automated means an accessory commercial structure and use which is intended for the receiving, storage and payment for receipt of metal cans. The activity is typically untended and occupies less than one hundred forty-four (144) square feet of land area. All functions of the use are fully enclosed, representing a vending characteristic only.

Recycling facility, materials recycling facility (MRF) means a facility for the receiving, sorting and processing of recyclable materials for reuse. This use receives metal, glass, paper or other recyclable materials typically collected by recycling programs of government or private business. This use processes and ships the materials to industry or businesses involved in reuse. This definition expressly excludes the receiving or processing of vehicles, building materials, petroleum products or flammable liquids. Enclosure of use required except as may be authorized by the zoning district.

Rendering plant means a facility for the reduction of slaughterhouse by-products into various meal or liquid products for use as animal foods, etc.

Retail uses not listed (enclosed) means any completely enclosed retail sales outlet which is not specifically listed in this section.

Retail uses not listed (with outside display) means any retail sales outlet which utilizes outdoor display of merchandise and is not specifically listed in this section.

Rooming, lodging and boarding facility means a building or establishment which provides for more than four (4) but fewer than sixteen (16) persons and may provide meal service. The building or facility shall be so arranged as to permit passage between all living elements such as dining, kitchen and bathrooms. Detached units or private access accommodations are not permitted.

Sand, gravel or earth sale and storage means a facility for storing and marketing sand, gravel and earth.

Sanitary landfill means a site for the accumulation of refuse or other discarded materials. However, this use shall not be construed to be a junk or salvage yard which is maintained, used or operated for storing, keeping, dismantling, salvaging, buying or selling of inoperable, wrecked, scrapped, ruined or discarded automobiles, automobile parts, machinery or appliances.

Sawmill means a facility having power-driven machinery for the purpose of sawing logs. Also, accessory facilities for the drying and storage of wood materials or by-products.

School, business means a business enterprise, not a public or private school, offering instruction and training in a service or art, such as secretary, barber and commercial artist, but not including commercial trades or crafts.

School, commercial, trade or craft means a business enterprise, not a public, private or

business school, offering instruction and training in a trade such as welding, brick laying, machinery operation and other similar manual trades.

School, public, private or denominational means an educational institution operated under the auspices of either the Little Rock School Board or the Pulaski County School Board, or an educational institution operated by private or religious agencies which provide elementary or secondary education comparable to that which is offered by the public schools.

Seasonal and temporary sales, outside means an activity conducted on a zoning lot involving sales of merchandise customarily sold within the principal structure and those sales by transient users permitted in the district.

This activity shall be deemed to be an extension of the principal use of the land and subject to bulk, area and parking regulations. Displays may be located within approved temporary structures or as open display.

Secondhand store, used furniture or rummage shop means a facility for the sale of secondhand or used items in which there is no outside display.

Service station means a facility for furnishing gasoline or lubricating oils or materials for use in motor vehicles.

Service station with limited motor vehicle repair means a facility for the dispensing of oil and gas for motor vehicles as well as periodic engine maintenance and repair. Motor vehicles must be kept intact on the premises. No body or engine rebuilding is allowed.

Shoe repair means a facility for repair or reconditioning of footgear, handbags and other leather articles such as shoes, boots, sandals, wallets, purses and other similar products.

Shopping center means a group of unified commercial establishments built on a site which is planned, developed, owned, and managed as an operating unit related in its location, size, and type of shops to the trade area that the unit serves. The unit provides on-site parking in definite relationship to the types and total size of the stores.

Single-family means a single dwelling unit occupied by not more than one (1) family. It shall be detached in the R-1 through R-3 districts.

Slaughterhouse, closed facility means a facility for the killing and butchering of animals for their meat and various by-products. This use is entirely enclosed and does not have open holding pens or outside activity with the exception of loading docks.

Slaughterhouse, open facility means a facility for killing and butchering animals for their meat and various by-products. This use consists of open holding pens and activities limited by applicable state and federal regulations.

Sleeping quarters for drivers or crew means a housing facility for transient or temporary personnel such as long haul truck drivers and crews. This facility must be totally contained within the principal building on the site or if detached, must be authorized by the board of adjustment. This use is limited to bunks and showers only.

Small engine repair means a facility for the repair and servicing of internal combustion engines with a horsepower rating of ten (10) or less. This use must be totally enclosed. No outside display or storage.

Stable (commercial) means a facility which boards or rents horses to the public but not including a sales barn, auction or similar trading activity.

Stone, sand or gravel extraction means a site where stone, sand or gravel is mined or extracted for a profit.

Street sweepers and vehicle-mounted vacuum devices means self-propelled or towed mechanical systems that are utilized for vacuuming or sweeping dirt, trash or other debris from parking and drive surfaces. This includes but is not limited to parking and loading areas, driveways, streets public and private or other areas devoted to vehicle use.

Studio (art, music, speech, drama, dance or other artistic endeavors) means a facility for instruction, counselling or coaching in the arts, and for the development of personal skills or talents. This includes, but is not limited to, graphic, performing and literary arts. This activity is expressly limited to instruction, counseling or coaching.

Studio (broadcasting or recording) means a facility for broadcasting live or prerecorded programs by radio or television, or recording of records, tapes, videotapes or other recording media. Such facility may perform activities necessary for recording, programming and receiving of radio or television signals. Such facility shall not engage in mass production.

Swimming pool, sales and supply means a facility for display and retail sales of swimming pools, related supplies and service.

Tailor means a shop to alter, repair, fabricate or fashion garments.

Tannery means a facility for the processing of raw animal hides into leathers or other hide products through the use of various chemical processes.

Taxicab means a vehicle to carry a passenger between two (2) points for a fare based upon a meter, zone or other authorized system.

Taxi office means the general office of a for hire vehicle service with dispatch and parking of in service vehicles.

Taxi service facility means the operational facilities for repair, maintenance and storage of out of service vehicles.

Taxidermist means a facility for preparing, stuffing and mounting the skins of animals, birds or fish.

Theater, drive-in type means a facility arranged so that patrons can view the screen and receive the sound in the privacy of their cars, or while seated outside.

Theater, not drive-in type means a facility for showing motion pictures to an audience inside an enclosed structure.

Tire retreading or recapping means the installation of a new tread or wear surface on a vehicle tire carcass by cementing, molding, vulcanizing or other mechanical or chemical means. This use must be totally enclosed.

Tool and equipment rental (inside display only) means a facility for renting tools and equipment to the public with no outside display.

Tool and equipment rental (with outside display) means a facility for renting tools and equipment to the public where outside display is permitted.

Travel bureau means an agency engaged in selling or arranging transportation, trips or tours for individuals or groups.

Truck or trailer rental or leasing (no service, sales or repair) means a facility limited to an office space, with display of trucks or trailers which for a fee are rented or leased. This use shall not permit the installation of hitches or other towing apparatus.

Trucks or tractor sales or repair means a facility for the sales and repair of trucks, tractors or similar motorized vehicles. Any display or sales area must be paved.

Two-family means two (2) attached dwelling units on one (1) lot, each occupied by not more than one (1) family.

Upholstery shop, auto means a facility which performs repair or replacement of automobile coverings, fabric, springs and padding. This use must be totally enclosed.

Upholstery shop, furniture means a facility which performs repair or replacement of furniture coverings, fabric, springs and padding. This use shall be totally enclosed with all wood or material stains, paints or stripping processes in conformance with building and fire codes.

Utility storage yard means a facility either open or enclosed where a utility may store equipment or materials not in use or waiting for use.

Utility substation means a station which is subsidiary to a central station and at which a utility from the central station is converted or passed on to another area.

Vehicle maintenance or repair means a facility designed and operated as an ancillary activity. This activity is limited to vehicles or equipment stored, used or otherwise employed in the principal use of the land.

Warehouse or *wholesaling* means a facility for commodities stored or wholesaled. No outside storage is allowed in conjunction with a warehouse or wholesaling operation.

Water or sewage treatment plant and related facilities means a facility for the systematic collection and treatment and dispersal of water and waste materials.

Wood products manufacturing means a facility which cuts, trims, planes or otherwise finishes wood products on an industrial scale.
(Code 1961, Ch. 43, § 2-102(c); Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,438, § 1, 2-16-88; Ord. No. 15,553, § 1f, m, s, t, x, nn, pp, qq, ww, yy, 9-20-88; Ord. No. 15,702, § 1, 7-5-89; Ord. No. 15,703, §§ 1j, 1, 7-15-89; Ord. No. 15,835, § 1b, 4-3-90; Ord. No. 16,116, § 1(b), (h), (ee), (ii), (ss), 11-19-91; Ord. No. 16,341, § 1(a), (k), (u), (ii), 1-19-93; Ord. No. 16,437, § 2, 6-9-93; Ord. No. 16,861, § 1(h), (p), (aa), (dd), 3-21-95; Ord. No. 17,305, § 1(e), (m)—(q), (u), (v), (dd), (gg), 11-7-96; Ord. No. 17,409, § 1, 3-4-97; Ord. No. 18,324, § 1(e), (g), (x), (y), (bb), (mm), (nn), (ss), 8-1-00; Ord. No. 18,682, § 1(a), 5-21-02; Ord. No. 18,939, § 1, 9-16-03; Ord. No. 19,395, §§ 1(d)—1(f), 9-6-05; Ord. No. 19,910, § 1(c), 1-15-08; Ord. No. 20,255, § 1, 4-20-10; Ord. No. 20,281, § 1, 6-1-10; Ord. No. 20,326, § 1(n), 9-21-10; Ord. No. 20,396, § 1(f), 2-1-11; Ord. No. 20,407, § 1(f), 2-15-11; Ord. No. 20,568, §§ 1, 2, 4-3-12; Ord. No. 20,894, § 1, 6-17-14; Ord. No. 20,920, § 1, 8-19-14; Ord. No. 21,168, §§ 1(a), 1(j), 2-2-16; Ord. No. 21,469, § (a), 8-15-17; Ord. No. 22,274, § 2, 6-20-23)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 36-4. Violations and penalties.

(a) Violations of any provisions of this chapter shall be considered as misdemeanors; each day's violation shall be considered a separate offense.

(b) Any person who violates, disobeys, omits, neglects or refuses to comply with or who resists the enforcement of any of the provisions of this chapter shall be fined not less than fifty dollars ($50.00), nor more than five hundred dollars ($500.00) for each offense or violation. If the offense or violation is continuous in respect to time, the maximum penalty or fine shall not exceed two hundred fifty dollars ($250.00) for each day the offense or violation may be unlawfully continued.

(c) In case any building or structure is erected, constructed, reconstructed, altered, repaired, converted, or maintained, or any building, structure or land is used in violation of this chapter, the proper authorities of the city, in addition to other remedies, may institute any appropriate action or proceedings to prevent such unlawful erection, maintenance or use, to restrain, correct or abate such violation, to prevent the occupancy of said building, structure or land, or to prevent any illegal act, conduct, business, or use in or about such premises.

(d) When, in the judgment of the enforcing officer, a violation of this chapter exists, the enforcing officer shall issue a written order to the alleged violator. The order shall specify those sections of this chapter of which the person may be in violation and shall state that the person has a maximum of seven (7) days from the date of the order in which to abate the alleged violation or to appeal to the appropriate board, or commission provided, however, that in the case of the alleged violation to whom the enforcing officer has issued such an order within the preceding twelve-month period, the notice may require the person to abate the alleged violation within twenty-four (24) hours.
(Code 1961, Ch. 43, § 1-107; Ord. No. 15,247, § 1, 2-17-87; Ord. No. 19,438, § 1(d), 11-15-05)

Sec. 36-5. Interpretation.

The provisions of this chapter shall be held to be minimum requirements to meet the intent expressed in section 36-9. Where the provisions of this chapter impose greater restrictions than those of any other ordinance or regulation, the provisions of this chapter shall prevail. Where the provisions of any other ordinance or local regulation impose greater restrictions than those of this chapter, the provision of such other

ordinance or local regulation shall prevail. When referring to this chapter, the following rules of interpretation shall be applied, except when the context clearly requires otherwise:

(1) The particular shall control the general.

(2) In the case of any difference of meaning or implication between the text of this chapter and any chart, graph, illustration or table, the text shall control.

(3) The word "shall" is always mandatory and not discretionary. The word "may" is permissive.

(4) Words used in the present tense shall include the future and words used in the singular include the plural and the plural the singular, unless the context clearly indicates the contrary.

(5) The word "permitted" or words "permitted by right" means permitted without meeting the requirements for a conditional use permit or site plan.

(6) The words "permitted by conditional use" mean permitted subject to the requirements for a conditional use pursuant to article II, division 4 of this chapter.

(7) The words "building" and "structure" are synonymous and include any part thereof, with the exception of the following accessory structures:

a. Freestanding poles or pedestals for recreational equipment, utilities, lighting, or identification purposes.

b. Fences.

c. Decorative walls or other landscaping elements without structural design for support of other site features.

d. Playground equipment of any nature.

e. Any asphalt, concrete, masonry or wood surfacing such as patio, deck or walk that does not exceed one (1) foot above the existing natural grade of the yard at any point.

(8) The person "person" includes individuals, firms, corporations, associations and any other similar entities.

(9) The words "lot," "parcel," "site," "tract" or other unit of ownership are synonymous and may be used interchangeably.

(10) The word "city" means the area of jurisdiction of the City of Little Rock, Arkansas, which includes the corporate limits of the City of Little Rock, Arkansas.

(11) All public officials, bodies and agencies to which reference is made are those of the City of Little Rock, Arkansas.

(12) All yards required by this chapter shall be open and unobstructed by structures from the lowest level of the lot to the sky except as specifically regulated in this chapter.

(Code 1961, Ch. 43, § 2-101; Ord. No. 16,341, § 1(w), 1-19-93; Ord. No. 17,305, § 1(d), 11-7-96; Ord. No. 22,651, § 2, 9-2-25)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 36-6. Repeal of conflicting ordinance; effective date.

(a) The provisions of the zoning ordinance of the City of Little Rock, Arkansas as originally adopted March 17, 1937, (Ord. No. 5420, § 2) and subsequently amended, are hereby repealed as of the effective date of this zoning ordinance, except the provisions of Ord. No. 12,700, § 3, codified as article VI of [former] chapter 43 of the Code of Ordinances of the City of Little Rock, Arkansas, and except that all terms, actions and conditions attached to variances, and special exception as approved by the board of adjustment, planning commission and board of directors as adopted shall remain in effect.

(b) This chapter shall become effective on January 1, 1980, and such date shall be referred to as the effective date.

(Code 1961, Ch. 43, § 1-106)

Sec. 36-7. Conversion of previous zoning classifications or districts.

Those zoning classifications or districts which were created and existed under the previous

zoning ordinance, Ord. No. 5420, as amended, are hereby converted into the zoning classifications or districts which are created and established herein, under the terms of this chapter, according to the following conversion table. The table reflects the zoning classifications or districts under Ord. No. 5420, as amended, and the corresponding zoning classification or district that same will be classified as under this chapter:

Classification Under Ord. No. 5420, as Amended	*Classification Under This Chapter*
A one-family	R-2 single-family
B residence	R-3 single-family
C two-family	R-4 two-family
MF (6, 12, 18 and 24) multi-family	MF (6, 12, 18 and 24) multi-family
D apartment	R-5 urban residence
E apartment	R-6 high-rise apartment
MH mobile home	R-7 mobile home
E-1 and E-1-A quiet business	O-3 general office
F and G commercial	C-3 general commercial
G-1 commercial	C-4 open display
H, I and J light industrial	I-2 light industrial
K heavy industrial	I-3 heavy industrial

(Code 1961, Ch. 43, § 1-106.1)

Sec. 36-8. Severability.

(a) If a court of competent jurisdiction finds any provision of this chapter to be invalid or ineffective in whole or in part, the effect of such decision shall be limited to those provisions which are expressly stated in the decision to be invalid or ineffective, and all other provisions of this chapter shall continue to be separately and fully effective.

(b) If a court of competent jurisdiction finds the application of any provision of this chapter to any lot or structure, or tract of land, to be invalid or ineffective in whole or in part, the effect of such decision shall be limited to the property or situation immediately involved in the controversy, and the application of any such provision to other property or situation shall not be affected.
(Code 1961, Ch. 43, § 1-105)

Sec. 36-9. Purpose.

It is hereby declared to be the purpose and intent of the board of directors in enacting this chapter that the zoning regulations and districts as herein established have been made for the purpose and general welfare of the city. This chapter and the districts have been designed to provide adequate light and air; to secure safety from fire, flood and other catastrophic dangers; to prevent the overcrowding of land; to avoid undue concentration or wasteful scattering of population; to lessen the congestion in streets; and to facilitate the adequate provision of water, sewer, schools, transportation, parks, open space and other public necessities. They have been made with reasonable consideration for, among other things, the character of the district, its particular suitability for the particular uses specified, and with a view to conserve the value of buildings and property and encourage the most appropriate use of land throughout the city consistent with a comprehensive plan.
(Code 1961, Ch. 43, § 1-102)

Sec. 36-10. Applicability.

(a) *General scope.*

(1) This chapter shall apply to all buildings, structures, land and uses within the corporate limits of the city.

(2) *Continuance.* After the effective date of this chapter, all buildings and structures erected, remodeled, altered and relocated and any use of land, buildings or structures established shall comply with the applicable provisions as required herein. Existing buildings, structures, lots or uses of land not complying with the provisions of this chapter may continue, subject to the provisions of the nonconformities section of this chapter.

(3) *Other laws and regulations.* The provisions of this chapter shall be considered the minimum requirements for the promotion of the public health, safety, comfort, moral and general welfare. Where the provisions of this chapter impose greater restrictions than those of any statute, other ordinance or regulation, the provisions of this chapter shall be controlling. Where the provisions of any statute, other ordinance or regulation impose

greater restrictions than this chapter, the provisions of such statute, other ordinance or regulation shall be controlling.

(b) *Specific application.*

(1) *Existing variances and special permits.* Variances granted and special permits issued prior to the effective date of this chapter shall remain valid. Buildings, structures or uses allowed by variances or special permits which cannot be issued under the provisions herein may continue subject to the provisions of article III of this chapter.

(2) *Building permits issued prior to effective date.* This chapter shall not invalidate any building permits properly issued prior to the effective date of passage; provided however, that if any building, structure or use constructed or established pursuant to such building permit does not comply with the provisions herein, such building, structure or use shall be subject to the provisions of article III of this chapter.

(3) *Pending applications.* From and after the effective date of this chapter, the provisions herein shall apply to all pending applications upon which no final decision has been made; provided, however, that where a public hearing has been held by the planning commission or board of adjustment, such pending application shall be processed in accordance with and decided pursuant to the law existing on the date of the public hearing on such application.

(Code 1961, Ch. 43, § 1-104; Ord. No. 22,651, § 2, 9-2-25)

Sec. 36-11. Compliance.

(a) No building shall be erected, converted, reconstructed or structurally altered, nor shall any building or land be used for any purpose other than is permitted in the district in which such building or land is located.

(b) No building shall be erected, converted, reconstructed or structurally altered to exceed the height or bulk limit therein established for the district in which such building is located.

(c) No building shall be erected, converted, reconstructed or structurally altered so as to intrude upon the area required by this chapter for the front, side, rear, interior or exterior yards. No yard or open space on adjoining property shall be considered as providing a yard, open space or access for a lot wherever a building is to be erected.

(d) No lot area shall be so reduced or diminished that the yards or other open spaces shall be smaller than prescribed by this chapter, nor shall the density of population be increased in any manner except in conformity with this chapter.

(e) Every building hereafter erected shall be located on a lot, and in no case shall there be more than one (1) building on one (1) lot except as otherwise provided.

(f) No building or structure as defined in this chapter shall be erected, converted, reconstructed or structurally altered that encroaches on, over or into any easement. This includes drainage, utility access or use easements within the boundary of any lot of record, platted or otherwise established. For purposes of fence placement within easements, fences shall not be construed to be a building or structure.

(Code 1961, Ch. 43, § 6-102(b); Ord. No. 18,324, § 1(a), 8-1-00)

Secs. 36-12—36-50. Reserved.

ARTICLE II. ADMINISTRATION AND ENFORCEMENT

DIVISION 1. GENERALLY

Sec. 36-51. Membership of boards, commissions, etc.

The membership of the various boards and commissions in effect prior to the effective date

of this chapter shall remain in office and serve the duration of their term, unless otherwise relieved of duty.
(Code 1961, Ch. 43, § 1-103)

Sec. 36-52. General functions of planning commission.

The planning commission is authorized pursuant to the provisions of A.C.A. tit. 14, ch. 56, subch. 4 [A.C.A. § 14-56-401 et seq.] to secure the benefits to the public of a coordinated, adjusted and harmonious development of the city, to promote the health, safety, morals, order, convenience, prosperity and general welfare of

the citizens thereof and shall make recommendations on planning issues and report to the mayor and board of directors concerning the operation of the commission and the status of planning within its jurisdiction.
(Code 1961, Ch. 43, § 1-103(b); Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-53. General function of the department of planning and development.

The city department having planning authority and responsibility shall prepare and make recommendations on comprehensive plans to the board of directors, as well as review and make recommendations to the planning commission and to the board of directors on applications for amendments to the text or official map of the zoning ordinance, and for subdivision, planned unit development, site plan and conditional use approval. The office may conduct studies it deems appropriate in performing these functions.
(Code 1961, Ch. 43, § 1-103(c); Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,861, § 1(pp), 3-21-95; Ord. No. 18,902, § 1(t), 7-15-03)

Sec. 36-54. Special use permits.

(a) *General purpose.* The purpose of this section is to provide a method of control over certain types of land uses which, while not requiring the full review process of the conditional use permits, do require some review procedure which allows for determination of their appropriateness within the neighborhood for which they are proposed and for public comment. Provided that an applicant having a prior conviction for violation of the Arkansas Uniform Controlled Substances Act is ineligible to apply for a special use permit for a daycare family home or a family care facility unless the applicant has received a pardon or can establish in writing that the conviction has been expunged.

(b) *Application procedure.* The property owner or an authorized agent shall apply for a special use permit under the guidelines provided by the department of planning and development. A public hearing on the special use permit will be held by the planning commission which shall have final authority. The planning commission shall consider, but shall not be bound by, the lawful provisions of a valid bill of assurance for the subdivision within which the subject property is located when determining the appropriateness of the proposed special use. Appeals from the action of the planning commission shall be filed with the board of directors. The content of the appeal filing shall consist of:

(1) A cover letter addressed to the mayor and board of directors setting forth the request; and

(2) A copy of the planning commission application indicating the action and properly executed by the staff.

This filing shall occur within thirty (30) calendar days of the action by the planning commission. Certified mail notice of appeal hearing shall be provided by the appellant not less than ten (10) days prior to the date of the hearing and the affidavit and other supporting evidence of notice shall be filed not less than five (5) days prior to the date of review. This notice shall be given to all record parties in interest whether for or against the request. The cost of this notice shall be borne by the appellant. No activity which requires said permit shall be conducted prior to final approval.

(c) *Uses requiring special use permits.* Uses which are determined to require special use permits will be designated in the section 36-3 when such uses are included within this chapter.

(d) *Transfer of permits and initiation of permits.* Special use permits shall not be transferable in any manner. Permits cannot be passed from owner to owner, location to location or use to use. The special use approved by the commission must be initiated within one (1) year of the date of approval, unless an extension of time is granted by the commission. Otherwise, the commission's approval of the special use permit shall be considered void.

(e) *Development criteria.* The site and location criteria for uses requiring special use permits are as follows:

(1) Bed and breakfast house/short-term rental type 1 (STR-1).

a. See article Xlll, bed and bed and breakfast house/short-term rentals for development standards and submittal requirement.

b. The owner must provide one (1) paved off-street parking space per guest room and one (1) additional for the residence use.

c. Allowable signage is that permitted by the single-family residential standard.

d. No receptions, private parties or tours for a fee are allowed.

(2) Family care facility.

a. This use may be located only in a single-family dwelling.

b. Medical or counseling needs must be provided off-site.

c. No physical changes in the residence are permitted which would provide other than sleeping accommodations.

d. Drives and parking shall not exceed that required by ordinance for a single-family residence.

e. The number and spacing of existing similar facilities in the neighborhood.

f. Existing zoning and land use patterns.

g. Area-wide availability of facilities providing like services.

h. Provision for readily accessible public or quasi-public transportation.

i. The fire marshal must approve use of the residence for the proposed family care facility.

(3) Day care family home:

a. This use may be located only in a single-family home, occupied by the caregiver and which is the full-time residence of the caregiver.

b. Must be operated within licensing procedures established by the State of Arkansas. State regulations shall control the number of employees residing off premises.

c. The use is limited to ten (10) children including the care givers.

d. The minimum to qualify for special use permit is six (6) children from households other than the care givers.

e. This use must obtain a special use permit in all districts where day care centers are not allowed by right.

f. After the effective date of this subsection, no special use permit will be approved for a day care family home proposed to be located within three hundred (300) feet of a licensed day care center or an operating day care family home for which a special use permit has previously been approved. For the purposes of this subsection, the distance between properties shall be measured in a straight line without regard to intervening structures or objects, from property line to property line.

g. All day care family homes located in the city are required to obtain a city business license and to pay an annual business tax as specified in chapter 17 of the Code.

h. A copy of the day care family home's current state license must be submitted to the city collector's office each year at the time of payment of the annual business tax.

i. All vehicles must be parked on an on-site paved surface.

j. All vehicles located on the site must be operational.

k. All pick-up and drop-off of children shall be on the property's driveway and not on the public right-of-way unless otherwise approved by the planning commission.

l. Special use permits for day care family homes shall be reviewed by staff every three (3) years for compliance with the development criteria and planning commission approval.

m. The fire marshal must approve use of the residence for the proposed day care family home.

(4) Family care facility, group care facility, group home, parolee or probationer housing facility, rooming, lodging and boarding facility:

a. Separation, spacing and procedural requirements for family care facilities, group care facilities, group homes, parolee or probationer housing facilities and rooming, lodging and boarding facilities will be determined by the planning commission so as not to adversely impact the surrounding properties and neighborhood. Unless the commission determines that a different area is more appropriate, a neighborhood shall be defined as an area incorporating all properties lying within one thousand five hundred (1,500) feet of the site for which the permit is requested.

b. There shall be a presumption that a special use permit for a group home of five (5), six (6), seven (7), or eight (8) handicapped persons will be granted if all ordinance requirements are met, except that individuals whose tenancy would constitute a direct threat to the health or safety of other individuals or whose tenancy would result in substantial physical damage to the property of others shall not be allowed in such a home.

c. Issues that the planning commission will consider during its review of a family care facility, group care facility, group home, parolee or probationer housing facility, or rooming, lodging and boarding facility include, but are not limited to:

1. Spacing of existing similar facilities.

2. Existing zoning and land use patterns.

3. The maximum number of individuals proposed to be served, the number of employees proposed and the type of services being proposed.

4. The need and provision for readily accessible public or quasi-public transportation.

5. Access to needed support services such as social services agencies, employment agencies and medical service providers.

6. Availability of adequate on-site parking.

d. The fire marshal must approve the use of any structure proposed as a family care facility, group care facility, group home, parolee or probation housing facility or rooming, lodging and board facility.

e. Family care facilities, group care facilities, group homes and parole or probation housing facilities shall be operated within any and all applicable licensing and procedural requirements established by the state.

f. Community-based, state-licensed, and supervised residential homes providing a single family environment for developmentally disabled persons (as defined in A.C.A. § 20-48-603) are exempt from any require-

ment to obtain a conditional use permit or special use permit as follows:

1. Homes for not more than eight (8) such persons are permitted in all residential zones.
2. Homes for more than eight (8) but fewer than sixteen (16) such persons are permitted in all zoning districts where multi-family uses are allowed.

(f) *Development review standards.* Separation/spacing requirements for family care facilities will be determined by the planning commission so as not to adversely impact the surrounding properties and neighborhood. Issues that the planning commission will consider during its review include:

(1) The total number of similar facilities and their spacing within the neighborhood.

(2) Existing zoning and land use patterns.

(3) Area wide availability of facilities providing like services.

(4) Provision for readily accessible public or quasi-public transportation.

(g) *Revocation procedure.* Any approved special use permit may, upon review and action by the planning commission, be revoked. Revocation proceedings may be initiated by staff or upon receipt by staff of a petition signed by the residents of no less than twenty-five (25) percent of the properties located within two hundred (200) feet of the property for which a special use permit has been approved. For the purposes of this subsection, the distance between properties shall be measured in a straight line without regard to intervening structures or objects, from property line to property line. The planning commission may revoke the special use permit if it is determined that the use approved under the special use permit is being conducted contrary to the original approved application or contrary to any laws of the city or that there has been substantial change in circumstance since the approval of the special use permit to the extent that the use has become detrimental to the residential character of the neighborhood. Appeals from the action of the planning commission shall be as set forth in subsection 36-54(b).

(h) *Accommodation.* Should an applicant believe that circumstances make it necessary to seek an accommodation from the requirements of this section, the applicant is responsible for submitting a request to the city's planning staff setting forth in detail the needed accommodation. The request shall subsequently be referred to the planning commission for a decision on the request.

(Code 1961, Ch. 43, § 4-102.1; Ord. No. 16,116, § 1(n), (pp), 11-19-91; Ord. No. 16,341, § 1(b), (j), 1-19-93; Ord. No. 17,305, § 1(kk) 11-7-96; Ord. No. 18,881, § 1(a), 6-3-03; Ord. No. 18,902, § 1(a), 7-15-03; Ord. No. 19,065, §§ 1(a)—(d), 3-16-04; Ord. No. 19,395, §§ 1(h), 1(i), 9-6-05; Ord. No. 19,438, § 1(c), 11-15-05; Ord. No. 19,509, § 11, 3-21-06; Ord. No. 20,326, § 1(i), 9-21-10; Ord. No. 20,326, § 1(i), 9-21-10; Ord. No. 21,867, § 1, 5-19-20; Ord. No. 22,274, § 3, 6-20-23)

Cross reference—Fee for special use permit, § 23-3.

Sec. 36-55. Accessory use permits.

(a) *General purpose.* The purpose of this section is to provide a method of control over certain types of land uses which, while not requiring the full review process of the conditional use permits, do require some review procedure which allows for determination of their appropriateness within the neighborhood for which they are proposed and for public comment.

(b) *Application procedure.* The property owner or an authorized agent shall apply for an accessory use permit under the guidelines provided by the department of planning and development.

An administrative hearing on the accessory use permit will be held by the department in the manner provided by the guidelines. Appeals from the administrative judgement of the staff shall be filed with the board of adjustment. The content of the filing shall consist of: (1) A cover letter addressed to the chairman and members of the board of adjustment setting forth the request; (2) a copy of all pertinent graphic materials or correspondence. This filing shall occur within

thirty (30) calendar days of the action by the staff. No activity which requires an accessory use permit shall be conducted prior to issuance of the permit.

(c) *Uses requiring accessory use permits.* Uses which are determined to require accessory use permits will be designated in "R-1" and "R-3" single-family districts; the "R-4" two family district; the "MF-6" and "MF-12"; the "MF-18" and "MF-24" multifamily districts; the "R-5" urban residence district; the "R-6" high rise apartment district; the "R-7" and "R-7A" mobile home districts.

(d) *Transfer of permits.* Accessory use permits shall not be transferable in any manner. A permit can not be passed from owner to owner, location to location or use to use.
(Code 1961, Ch. 43, § 4-102.2; Ord. No. 15,615, § 1b, 1-3-89; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,116, § 1(o), 11-19-91; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-56. Certificate of occupancy.

(a) *Purpose.* Certificates of occupancy are required to ensure that completed structures and the development of property of which such structures are a part comply with the provisions of this chapter, as well as any site plans or conditional approvals for such structures and development.

(b) *Authority.* The building official shall have the authority and responsibility to issue and keep records of certificates of occupancy in accordance with the requirements set forth in this chapter, chapter 31 and chapter 8, article II.

(c) *Certificate of occupancy required.* No new structure or addition to an existing structure shall be occupied and no use of a building shall be changed unless a certificate of occupancy is issued therefor by the building official.

(d) *Procedure.*

(1) *Application.* A certificate of occupancy shall be applied for coincident with the application for a building permit and will be issued before occupancy and connection of utilities to such building.

(2) *Action on application.* The building official or his designated agent shall inspect the property which is the subject of an application within a reasonable time, after a completed application has been filed, and shall issue a certificate of occupancy if the premises of the property comply in all respects with the applicable development regulations in effect. If the premises do not so comply, the building official shall deny the application in a written notice mailed to the applicant within five (5) days after the inspection of the property, specifying the provisions of which ordinance with which the structure or development does not comply.

(3) *Contents of certificate of occupancy.* Information required for submission to obtain a certificate of occupancy shall include:

a. Name of applicant.

b. Nature and extent of the applicant's ownership interest in the subject property.

c. Address of the property for which a certificate is requested.

d. A legal description of the property, the zoning classification for the property, and a statement that the use of the property is allowed or permitted in the zoning classification for the property.

e. If a site plan or other conditional approval for the structure or the development of which such structure is a part was required, a copy of any document granting such approval and any plans approved in connection therewith.

f. Such other information as requested by the building official to ensure conformance with applicable development regulations.

(4) *Temporary certificates of occupancy.* A temporary certificate of occupancy may be issued for a portion or portions of a building which may safely be occupied prior to final completion of the building. It may also be used for a transient use which, due to its nature, is not required to comply with permanent construction regulations. A temporary certificate of occupancy shall be valid for a period not exceeding six (6) months. Such temporary certificate shall not be construed as in any way altering the respective rights, duties or obligations of the owners or of the city relating to the use or occupancy or any other matter required by this section.

(5) *Certificates for existing buildings.* A record of all certificates of occupancy shall be maintained on file in this office of the building official and copies shall be furnished for an inspection fee of ten dollars ($10.00) on written request to any person having a proprietary or tenancy interest in the building or land affected.

(Code 1961, Ch. 43, § 4-104)

Secs. 36-57—36-65. Reserved.

DIVISION 2. BOARD OF ZONING ADJUSTMENT*

Sec. 36-66. Established.

A board of zoning adjustment is established.

(Code 1961, Ch. 43, § 3-101(a))

Sec. 36-67. Members.

(a) The board of zoning adjustment shall consist of five (5) members who are appointed by the city board of directors. One (1) member of the board shall be an architect/planner, one (1) member of the board shall be a civil engineer, one (1) member of the board shall be a member of the Little Rock Realtors Association, two (2) members of the board shall be from the citizenry at large. The term of office for the members of the board shall be for three (3) years.

(b) Vacancies shall be filled for the unexpired term of the member whose place has become vacant by the mayor subject to the approval of the city board of directors. Any member whose term expires shall continue to serve until his/her successor is appointed and qualified. The appointing authority shall have the power to remove any member of this board for cause and after public hearing provided, however, any member of the board who shall be absent from three (3) or more consecutive regular meetings shall be removed from office without hearing upon certification of such fact by the secretary of the board to the mayor.

(c) Any member of the board who shall have an economic interest in any property or in the decision relating to such property, which shall be the subject matter of a decision of the board, shall be disqualified from participating in the discussion, decision or proceeding of the board in connection therewith. In the event that any member of the board is uncertain as to whether or not a conflict exists, that member should obtain an opinion from the office of the city attorney before either participating in the discussion, or voting on the matter.

(Code 1961, Ch. 43, § 3-101(a); Ord. No. 15,553, § 1mm, 9-20-88; Ord. No. 16,000, § 1(c), 2-5-91; Ord. No. 17,667, § 1, 2-3-98; Ord. No. 17,963, § 1, 3-16-99; Ord. No. 19,438, § 1(b), 11-15-05; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-68. Officers and meetings.

(a) The board of zoning adjustment shall elect its own chairman and vice-chairman who shall serve for one (1) year. The director of the department of the city having planning authority and responsibility shall serve as secretary to the board. The board shall adopt rules for the conduct of its business, establish a quorum and procedure, and keep a public record of all findings and decisions.

(b) The board shall establish regular meeting dates, and special meetings shall be held at the call of the chairman and at such other times as the board may determine. The chairman, or in his absence the acting chairman, may administer oaths and compel the attendance of witnesses. Each session of the board of zoning adjustment shall be a public meeting with public notice of said meeting and business to be carried or published in a newspaper of general circulation in the city, at least one (1) time, seven (7) days prior to the meeting. The board shall keep minutes of its proceedings, showing the vote cast upon each specific issue.

(Code 1961, Ch. 43, §§ 1-103(a), 3-101(a), (b))

Sec. 36-69. Functions.

(a) *Generally.* The board of zoning adjustment is authorized, in accordance with the provisions of this chapter, to hear appeals from the decision

*__Cross reference—__Boards and commissions generally, § 2-261 et seq.

of the administrative officers in respect to the enforcement and application of this chapter; and may affirm or reverse, in whole or in part, said decision of the administrative officer. In addition, the board is responsible for hearing requests for variances from the literal provisions of this chapter in instances where strict enforcement of this chapter would cause undue hardship due to circumstances unique to the individual property under consideration, and grant such variances only when it is demonstrated that such action will be in keeping with the spirit and intent of the provisions of this chapter. The board of zoning adjustment shall not permit, as a variance, any use in a zone that is not permitted under this chapter. The board of zoning adjustment may impose conditions in the granting of a variance to ensure compliance and to protect adjacent property. In carrying out the purpose and intent of this chapter, the board shall be governed by the specific powers and prohibitions provided in this section, and may impose conditions in the granting of a variance to ensure compliance and protect adjacent properties.

(b) *Powers.* The board has the following powers:

(1) *Interpretation.*

a. To interpret the application of the provisions of this chapter in such a way as to carry out its stated purpose and intent.

b. To interpret boundary lines for districts in this chapter where the street layout actually on the ground varies from the street layout shown on the accompanying map.

c. To hear and decide appeals where it is alleged there is error in any order, requirement, decision, determination or interpretation made in the administration or enforcement of this chapter.

In exercising the above-mentioned powers, the board may, in conformity with the provisions of the law, reverse or affirm, wholly or partly, or may modify the order, requirement, decision or determination appealed from and may make such order, requirement, decision or determination as ought to be made.

(2) *Hardship.*

a. The board may grant, as a hardship variance, relief to any property owner who has a vested interest in a previously devised plan which conformed to the ordinance in effect prior to the passage of this chapter. The owner must show proof of the previous intent including, but not limited to, development plans and specifications for that specific site. The board will not allow as a part of this process any use in any zone which is not allowed within that zone.

b. The board may hear requests for variances from the literal provisions of this chapter in instances where strict enforcement of this chapter would cause undue hardship due to circumstances unique to the individual property under consideration, and grant such variance only when it is demonstrated that such action will be in keeping with the spirit and intent of the provisions of this chapter.

(3) *Mobile homes.* The board may review and approve or deny applications for the location of mobile homes or other structures in existing mobile home sites or on nonresidential sites. The use of these structures shall be limited to one (1) single-family dwelling unit for on-site security purposes only.

(4) *Height.* Any person desiring to erect any structure including chimneys, towers or similar structures in excess of a height prescribed for the property according to the zoning classification shall make application to the board of adjustment for permission to erect such structure.

(5) *Parking.* The board may grant a variance for the number of required parking spaces where a hardship exists. Any detached parking facilities or satellite parking shall

be located on a lot which is zoned to allow the principal use which this parking will serve.

(c) *Prohibitions.* The board shall not permit as a variance any use in a district that is not permitted in this chapter, nor shall the board make any changes in this chapter. The concurring vote of three (3) members of the board shall be necessary to reverse any order, requirement, decision or determination of the administrator, or to decide in favor of the applicant on any matter upon which it is required to pass under this chapter, or to affect any variation in this chapter.
(Code 1961, Ch. 43, §§ 1-103, 3-101(c); Ord. No. 16,000, § 1(d), 2-5-91; Ord. No. 19,438, § 1(n), 11-15-05; Ord. No. 19,713, § 1(d), 3-6-07)

Sec. 36-70. Appeals.

Appeals from the decision of the board of adjustment shall be filed with the appropriate court of jurisdiction. This filing must occur within thirty (30) calendar days of the action by the board of adjustment.
(Code 1961, Ch. 43, § 3-101(d); Ord. No. 16,116, § 1(p), 11-19-91)

Cross reference—Fee for appeals, § 23-3.

Secs. 36-71—36-80. Reserved.

DIVISION 3. AMENDMENTS*

Sec. 36-81. Generally.

The board of directors may enact amendments to this chapter or the zoning map in accordance with the provisions of this division. Before taking action on any proposed amendment, supplement or change, the planning commission shall have reviewed the same and provided a recommendation.
(Code 1961, Ch. 43, § 4-101(a))

Sec. 36-82. Purpose.

The amendment process is designed to accommodate those changes in the map (rezoning) which will not have an adverse impact on surrounding property. It is also established to consider the review of amendments or supplements to the text of this chapter where such change is in keeping with the purpose and intent of this chapter.
(Code 1961, Ch. 43, § 4-101(d))

Sec. 36-83. Guidelines for decision.

In determining whether to grant a requested amendment, the board of directors may consider, among other things, the recommendations from the planning commission and the designated department of the city having planning responsibility and authority and use the provisions of the comprehensive plan, master street plan, master parks plan, and community facilities plan, as well as any other appropriately approved document created to provide the required public facilities necessary to protect the public interest. The planning commission shall consider, but shall not be bound by, the lawful provisions of a valid bill of assurance for the subdivision within which the subject property is located when determining the appropriateness of the proposed special use. No identical or substantially identical application for the redistricting of a specific parcel or parcels of land which has been denied by the board of directors may be made for a period of one (1) year.
(Code 1961, Ch. 43, § 4-101(c); Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 18,881, § 1(b), 6-3-03)

Sec. 36-84. Initiation.

An amendment may be initiated by the board of directors, the designated department of the city having planning responsibility and authority, or by any other person or group of persons having a proprietary or contractual interest in the building or land affected.
(Code 1961, Ch. 43, § 4-101(d); Ord. No. 15,988, § 4, 12-18-90)

Sec. 36-85. Procedures.

(a) Any petitioner for rezoning who is aggrieved by a denial recommendation of the planning commission may have his petition reviewed by the board of directors of the city provided he files

*__Cross reference—__Fee for rezoning applications, § 23-3.

a written request therefor with the city clerk within thirty (30) days after the negative vote of the commission. The request for review shall be accompanied by a copy of the original rezoning petition and shall contain a brief statement of facts in support thereof. The board of directors may hear the appeal at any regular meeting thereof, but not later than one (1) year from the date of the planning commission action. The provisions in this section for appeal to the board of directors are exclusive and failure to perfect an appeal under this section shall constitute a forfeiture of further rights under the rezoning application in question; subject, however, to refiling under section 36-83.

(b) No petition shall be reviewed by the board of directors unless and until the petitioner has filed with the city clerk an affidavit reflecting the names and last known addresses of the owners of record of all property situated within two hundred (200) feet of the property described in the petition who were registered as objectors at the initial planning commission hearing, and further reflecting that all the owners have been notified in writing by registered or certified mail of the time, place and date the petition is to be reviewed by the board of directors. The notice shall be given not less than ten (10) days prior to the date the petition is to be reviewed, and the affidavit and/or waivers evidencing and supporting such notice shall be filed not less than five (5) days prior to the date of review. Postponement of action on the petition by the board of directors for one (1) or more meetings shall not require any additional notice. Action on the petition by the board of directors shall be in a public hearing.

(c) Before the board of directors shall consider the rezoning of any property on its own motion, the city clerk shall first give notice by a one-time publication in a newspaper of general circulation in the city of the time, place and date of hearing on the proposed rezoning and shall publicize therewith a legible rezoning map accompanied by an entitlement describing the general area under consideration and giving street boundaries or otherwise describing the boundaries of the area proposed for rezoning so that such area shall be readily identifiable. Accompanying the map shall be a legal description of the properties proposed to be rezoned. The notice is to be published at least fifteen (15) days prior to the public hearing.

(d) The board of directors may require, as a condition of rezoning, the reasonable dedication of land for public street or floodway purposes, based upon the land use or master plan elements currently in effect at the time of said rezoning, or may require other conditions necessary to protect and promote the health, safety and welfare of its citizens.

In the event that an applicant fails to provide city staff the required dedication instrument within ninety (90) days of the commission action the case file may be closed and recommendations of approval rescinded.

(e) If it is determined in the course of review of an amendment that certain conditions requested by the applicant may be appropriate in order to affect a change in zoning of the property, the application may be amended. In such cases, the planning commission or the board of directors shall determine the need for deferral of the application for further notice or review of the design elements to be incorporated into the ordinance reclassifying the property.
(Code 1961, Ch. 43, § 4-101(e); Ord. No. 15,435, § 1, 2-16-88; Ord. No. 15,694, § 1, 6-6-89; Ord. No. 16,799, § 1, 12-20-94; Ord. No. 17,305, § 1(jj), 11-7-96; Ord. No. 18,324, § 1(u), 8-1-00)

Secs. 36-86—36-100. Reserved.

DIVISION 4. CONDITIONAL USE REVIEW

Sec. 36-101. General purpose.

The purpose of this division is to set forth procedures for processing conditional uses and to establish standards by which conditional uses can be evaluated. The planning commission shall hear and approve or disapprove, in accordance with provisions of this division, all requests for conditional use permits. Only those uses which are specifically listed as conditional uses in the respective zoning classifications may be requested for conditional use authorization.

In all instances, accessory structures or uses such as ball fields, tennis courts, pavilions and parking lots must receive review under the provisions of this section. The planning commission shall consider, but shall not be bound by, the lawful provisions of a valid bill of assurance for the subdivision within which the subject property is located when determining the appropriateness of the proposed conditional use. After detailed review of its compatibility with the area and the specific treatment of screening, landscaping and other amenities provided to protect the integrity of the neighborhood, the planning commission shall have final authority except that petitioners or record objectors aggrieved by an action of the commission shall file appeals with the city clerk. The content of the appeal filing shall consist of: (1) a cover letter addressed to the mayor and board of directors setting forth the request; (2) a copy of the planning commission application indicating the action and properly executed by the staff. This filing shall occur within thirty (30) calendar days of the action by the planning commission. Certified mail notice of appeal hearing shall be provided not less than ten (10) days prior to the date of the hearing and the affidavit and other supporting evidence of notice shall be filed not less than five (5) days prior to the date of review. This notice shall be given to all record parties in interest whether for or against the request. The cost of this notice shall be borne by the appellant.
(Code 1961, Ch. 43, § 4-102(a); Ord. No. 15,247, § 1, 2-17-87; Ord. No. 16,116, § 1(q), 11-19-91; Ord. No. 16,861, § 1(c), 3-21-95; Ord. No. 18,881, § 1(c), 6-3-03)

Sec. 36-102. Application procedure.

Application for conditional use approval shall be made by the property owner or authorized agent for the owner. The application may accompany a rezoning request or may be applied for by itself as long as the use is recognized as a conditional use in the existing zoning classification. The application shall be submitted to the designated department of the city having planning responsibility and authority which will collect the filing fee and process all applicable surveys, site plans and other supporting information pertinent to this review process. The application shall be accompanied by a fee, the amount of which shall be determined by ordinance.
(Code 1961, Ch. 43, § 4-102(b); Ord. No. 15,988, § 4, 12-18-90)

Cross reference—Fee for conditional use application, § 23-3.

Sec. 36-103. Submission requirements.

The submission requirements for a conditional use permit shall be as directed by the "instructions for filing" outline provided the applicant by the planning commission staff, the content of which has been approved by the planning commission. In addition, such application shall include a generalized graphic representation of what is proposed, including screening, landscaping, parking, access and location of buildings. A general statement as to the intent of the use shall also be submitted. In addition to the graphic and supporting documentation required for filing, the owner shall provide a graphic or narrative outline of methods to be employed to protect permanent undisturbed buffers. The outline or plan shall be filed for review by the planning commission not later than the filing date set by calendar.
(Code 1961, Ch. 43, § 4-102(c); Ord. No. 16,116, § 1(i), 11-19-91; Ord. No. 16,861, § 1(aa), 3-21-95)

Sec. 36-104. Uses exclusively conditional or otherwise restricted.

(a) Due to their nature and impact on properties in the general vicinity, correctional facilities and homeless shelters shall require a conditional use permit in all zoning classifications.

(b) Certain public and quasi-public uses due to their nature and impact on adjacent properties shall be permitted by right only in the industrial classifications established by this ordinance. These uses may be permitted in all other classifications by conditional use permit. They are:

(1) Utility storage yard for vehicles, maintenance equipment and materials.

(2) Utility substation for distribution of services or products or bulk storage thereof.

(3) Water or sewer treatment plant or ancillary facilities.

(4) Communications, receiving or transmitting facilities other than wireless communication facilities as provided within article XII, section 36-590 of this chapter.

(5) Cemeteries and all associated ancillary uses and activities relating thereto.

(6) Airport or landing field.

(Code 1961, Ch. 43, § 4-102(d); Ord. No. 17,409, § 2, 3-4-97; Ord. No. 18,324, § 1(t), (kk), 8-1-00; Ord. No. 18,939, § 2, 9-16-03; Ord. No. 19,395, § 1(b), 9-6-05; Ord. No. 19,910, § 1(d), 1-15-08)

Sec. 36-105. Site plan review.

The subdivision committee of the planning commission shall review the conditional use along with comments from staff and other reviewing agencies. The committee shall pass the conditional use issue to the full commission for final action with any comments determined necessary to expedite review of the conditional use.

(Code 1961, Ch. 43, § 4-102(f); Ord. No. 17,305, § 1(aa), 11-7-96; Ord. No. 19,438, § 1(g), 11-15-05)

Sec. 36-106. Planning commission action.

(a) The planning commission shall review conditional use applications at its regular scheduled monthly meeting at which time interested persons may appear and offer information in support of or against the proposed conditional use. The planning commission shall then take one (1) of the following actions:

(1) Approve the conditional use as submitted.

(2) Approve the conditional use with modifications.

(3) Defer the conditional use.

(4) Deny the conditional use.

(b) The planning commission may impose conditions and restrictions upon the use permitted by or the premises benefited by the conditional use permit as may be necessary to reduce or minimize the injurious effects of the conditional use. The conditional use must ensure compatibility with the surrounding property to better carry out the general intent of this chapter.

(Code 1961, Ch. 43, § 4-102(g); Ord. No. 15,247, § 1, 2-17-87; Ord. No. 18,682, § 1(i), 5-21-02)

Sec. 36-107. Development standards and review guidelines.

In carrying out the purpose of this division, the following development standards and design specifics shall be subject to conditional review and approval. The appropriateness of these standards shall be determined at the discretion of the planning commission for each specific conditional use location.

(1) The proposed use is so designed, located and proposed to be operated that the public health, safety and welfare will be protected.

(2) The proposed land use is compatible with and will not adversely effect other property in the area where it is proposed to be located.

(3) The proposed use is an allowable conditional use for the property.

(4) The proposed use conforms to all applicable provisions of this chapter for the district in which it is to be located and the use facilitates public convenience at that location.

(5) The size and shape of the site including the size, shape and arrangement of proposed structures is in keeping with the intent of this chapter.

(6) The internal street system ingress and egress of proposed off-street parking, loading and pedestrian ways are sufficiently adequate and conform to the design standards of section 31-210 of the subdivision regulations of this Code.

(7) Safeguards proposed to limit noxious or offensive emissions including lighting, noise, glare, dust and odor are addressed.

(8) Proposed landscaping and screening is in accordance with chapter 15, article IV and buffer standards as provided for within chapter 36, article IX.

(9) Open space will be maintained by owner/developer.

(10) Proposed signage will be in accordance with the provisions of chapter 36, article X, of this Code.

(11) The site plan will reflect the access provisions and parking space required to conform with section 508 of the Arkansas Fire Prevention Code.

(12) Separation or spacing requirements for group care facilities or group homes will be determined by the planning commission so as not to adversely impact the surrounding properties and neighborhood. Issues that the planning commission will consider during its review of a group care facility include:

a. Total number of similar facilities located in the neighborhood.

b. Spacing of existing similar facilities.

c. Existing zoning and land use patterns.

d. The number of individuals and type of services being proposed.

e. The availability of facilities providing like services.

f. Provisions for readily accessible public or quasi-public transportation.

(13) Separation, spacing, and procedural requirements for correctional facilities shall be determined by the planning commission so as not to adversely impact the neighborhood. Correctional facilities are subject to the following additional requirements:

a. Before a conditional use permit for a correctional facility can be granted, the applicant shall clearly establish the following:

1. All property owners or persons operating a business within five hundred (500) feet of the property line of a proposed correctional facility have received notice by certified mail of the exact location of the property and its intended use;

2. This required notice was sent to each person before any contract for operation of the facility was granted, that this notice properly sets forth the exact procedure and time frame for the person notified to register objections with the appropriate governmental agency, and that proof of such notice is provided as required for conditional use permits;

3. The facility is not located within five hundred (500) feet of the property line of any school, any facility that operates programs for youth, or another correctional facility;

4. The applicant has conducted two (2) public hearings after having first advertised the meetings and location prominently not less than five (5) nor more than seven (7) days prior to each meeting; that such advertisement was prominently displayed and not a mere legal advertisement, in a newspaper with seven (7) days a week county-wide circulation;

5. Procedures are in place should the permit be granted that the chief of police shall be notified within one (1) hour that a resident of the facility has escaped or failed to return when required;

6. Adequate security measures are in place to prevent any resident of the correctional facility from violating subsection (5) more than once in a thirty-day period.

b. These requirements for correctional facilities are in addition to any other provisions required for a conditional use permit under this code. These requirements are mandatory and not directory. In the event of a conflict with the other provisions of the code, these requirements shall control. Substantial compliance is not sufficient. Failure to comply with these requirements shall be a basis to deny the permit. Within one hundred twenty (120) days of granting the permit, the permit may be rescinded upon presentation to the planning commission of clear and convincing evidence that the applicant failed to comply with subsections (1) through (4) above. Failure to comply with subsections (5) and (6) two (2) times within a ninety-day period, or the commission of a violent felony by a resident of the correctional facility, shall be a basis for determining that security is inadequate and such determination shall be a cause for immediate revocation of the permit. The planning commission shall establish procedures for presentation of such evidence and for placement of the matter on its agenda for public hearing.

c. The terms "group care facility", "rooming or boarding", "community, welfare or health care", "establishment for a religious, charitable or philanthropic organization", "governmental or private recreational uses", and "rooming, lodging or boarding facilities", shall not include a correctional facility as a permitted use.

d. Any correctional facility in operation on the effective date of this section shall be required to come into compliance with this section and obtain a conditional use permit within four (4) years of the effective date of this section.

(14) Due to their scale of development and their impact on nearby residential properties, churches and other religious institutions with a seating capacity of greater than five hundred (500) persons in the sanctuary or main activity area that are proposed to be located on residentially zoned property shall be subject to the following additional requirements:

a. Before a conditional use permit for such churches or religious institutions can be granted the applicant shall clearly establish the following:

1. All owners of property located within five hundred (500) feet of the property line of the proposed facility have received notice by certified mail of the exact location of the property and its intended use. The notice shall also include the date, time and location of a public hearing to be conducted by the applicant prior to the hearing before the planning commission. This public hearing shall be held no later than fifteen (15) days prior to the hearing before the planning commission.

2. This required notice is to be sent within seven (7) days of filing an application for a conditional use permit and proof of such notice is to be filed with staff.

b. These requirements are in addition to any other provisions required for a conditional use permit under this code.

(15) Separation, spacing and procedural requirements for homeless shelters will be determined by the planning commission so as not to adversely impact the surrounding properties and neighborhood. Unless the commission determines that a different area is more appropriate, a neighborhood shall be defined as an

area incorporating all properties lying within one thousand five hundred (1,500) feet of the site for which the permit is requested. In addition to the development standards and review guidelines established in section 36-107 of this chapter, issues that the planning commission will consider during its review of such facilities include, but are not limited to:

a. Spacing of existing similar facilities.

b. Existing zoning and land use pattern.

c. The maximum number of individuals proposed to be served, the number of employees proposed and type of services being proposed.

d. Provisions for readily accessible public or quasi-public transportation.

e. Access to support services such as social services agencies, employment agencies and medical service providers.

(16) Separation requirements for event centers shall be determined by the planning commission so as not to adversely impact the neighborhood. Event center review shall consider the following additional requirement:

(a) An event center shall not be located within seven hundred fifty (750) feet of the following:

(1) A church or other religious facility.

(2) A sexually-oriented business as defined by chapter 17 of the Code of Ordinances.

(3) A public or private elementary, secondary or postsecondary school, a day care center or any facility that operates programs for children or youth.

(4) Any single-family or multifamily residential use, except a hotel or motel, or a residential use that is within a unified development that contains both the event center and the residential use.

(b) For the purposes of subsection (a), measurement shall be made in a straight line, without regard to intervening structures or objects, from the nearest portion of a building or structure proposed for occupancy as an event center to the nearest property line of any use listed in subsection (a).

(17) Separation requirements for private clubs shall be determined by the planning commission so as not to adversely impact the neighborhood. Private club review shall consider the following additional requirement:

(a) A private club shall not be located within seven hundred fifty (750) feet of the following:

(1) A church or other religious facility.

(2) A sexually-oriented business as defined by chapter 17 of the Code of Ordinances.

(3) A public or private elementary, secondary or postsecondary school, a day care center or any facility that operates programs for children or youth.

(4) Any single-family or multifamily residential use, except a hotel or motel, or a residential use that is within a unified development that contains both the private club and the residential use.

(b) For the purposes of subsection (a) of this section, measurement shall be made in a straight line, without regard to intervening structures or objects, from the nearest portion of a building or structure proposed for

occupancy as a private club to the nearest property line of any use listed in subsection (a).

(Code 1961, Ch. 43, § 4-102(g); Ord. No. 15,247, § 1, 2-17-87; Ord. No. 16,341, § 1(l), 1-19-93; Ord. No. 16,577, § 1g, 1-18-94; Ord. No. 16,861, § 1(a), (b), (aa), 3-21-95; Ord. No. 17,409, § 3, 3-4-97; Ord. No. 18,682, § 1(h), 5-21-02; Ord. No. 18,939, § 3, 9-16-03; Ord. No. 19,395, § 1(c), 9-6-05; Ord. No. 20,396, § 1(j), 2-1-11; Ord. No. 20,407, §§ 1(j), 1(k), 2-15-11)

Editor's note—Ord. No. 20,396, § 1(j), added subsection (15) to § 36-107. Inasmuch as said subsection already existed, the new provision was renumbered as (16) at the editor's discretion.

Subsequently, Ord. No. 20,497, § 1(k) added subsection (16), which was redesignated as (17), also at the editor's discretion.

Sec. 36-108. Conditions.

(a) Once any portion of the conditional use authorization is utilized, all such conditions pertaining to such authorization shall become immediately operative. The violation of any condition so imposed shall constitute grounds for revocation of the conditional use authorization.

(b) The planning commission may authorize a variance from ordinance standards by specific inclusion within their motion for approval. However, no conditional use authorized by the planning commission shall be subsequently applied for a variance to the board of zoning adjustment. Amendments or changes as to the use authorized by the conditional use process must follow the same process as the original conditional use application. Expansions or additions to structures associated with conditional uses may be approved by the director of the department having planning responsibility and authority without further conditional use authorization under the following circumstances:

(1) The proposed expansion is limited to a structural addition to an existing building not to exceed ten (10) percent of the gross floor area within the existing structure to be expanded.

(2) The proposed expansion is limited to one (1) time subsequent to the original conditional use authorization.

(3) The proposed expansion is reviewed and approved by the director of the department having planning responsibility and authority with the determination that such expansion does not violate any of the conditions set forth in the original conditional use authorization, does not require further imposition of new conditions and does not adversely impact surrounding properties.

(c) Conditions may include time limits for exercise of authorization. However, the maximum allowable time shall be three (3) years from the date of approval. Required permits must be obtained within the allotted period, unless an extension of time is granted by the commission. Otherwise, the conditional use permit approval shall be considered void.

In an approved multiple-phased development, any phases for which the required permits have not been obtained within three (3) years of the date of approval must be reviewed and approved by the planning commission in the same manner as established for the initial conditional use review.

(Code 1961, Ch. 43, § 4-102(h); Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,341, § 1(ll), (mm), 1-19-93; Ord. No. 19,910, § 1(f), 1-15-08; Ord. No. 20,839, § 1(b), 2-11-14)

Sec. 36-109. Right of appeal.

Appeals from a decision of the board of directors may be filed with the appropriate court of jurisdiction. This filing shall occur within thirty (30) calendar days of the action by the board of directors.

(Code 1961, Ch. 43, § 4-102(i); Ord. No. 15,247, § 1, 2-17-87; Ord. No. 16,116, § 1(r), 11-19-91)

Sec. 36-110. Revocation of conditional use permit by the board of directors.

Nothing in this division shall limit the authority of the board of directors to revoke a conditional use permit for violation of the drug laboratory nuisance and cleanup code.

(Ord. No. 19,509, § 13, 3-21-06)

Secs. 36-111—36-125. Reserved.

DIVISION 5. SITE PLAN REVIEW*

Sec. 36-126. General purpose and review guidelines.

(a) The purpose of this division is to set forth procedures for processing site plans and to establish standards for development within those districts which require compliance with this division.

(b) Site plan review is a development review process that provides for case by case consideration of project particulars including the provision of parking and landscaping, site of buildings and the compatibility of the proposed development with adjacent uses.

(c) All development shall be designed in such a way as to minimize any potential deleterious impact on the surrounding area. Special attention shall be given to buffering multifamily, commercial and industrial developments from adjacent single-family areas. Design of the internal street system, ingress and egress, off-street parking, loading and pedestrian ways shall be sensitive to such conditions as safety, convenience, separation of vehicular and pedestrian traffic, general attractiveness, areas of dwelling units and the proper relationship of different land uses. Such design shall conform to the standards set forth in section 31-210 of the subdivision regulations of this Code. Landscaped areas shall be provided to reduce erosion, heat and glare and said areas shall be maintained in an attractive condition. Existing trees on a development site shall be retained where possible. Screening, open space or other buffer may be required to give adequate separation between uses which are not compatible and shall also be provided for the beautification and enhancement of the property. The requirements of Arkansas State Fire Code, section 508, providing for handicapped parking and accessibility shall be indicated on the plan.

(d) For purposes of development sites that are nonconforming with the landscape ordinance the following apply: All such sites shall be reviewed by the planning commission for a determination as to the level of compliance appropriate. In those instances where physical constraints or conflict with other regulations restrict full compliance, emphasis shall be given to the street sides of the property. In no instance shall a redevelopment plan be approved which permits continuance of full nonconformity.
(Code 1961, Ch. 43, § 4-103(a); Ord. No. 15,247, § 1, 2-17-87; Ord. No. 16,341, § 1(hh), 1-19-93; Ord. No. 16,577, § 1h, 1-18-94)

Sec. 36-127. Applicable districts.

The site plan review process shall apply to all applications for the following zoning districts:

(1) R-6 high-rise apartment district.

(2) R-7 mobile home district.

(3) O-2 office and institutional district.

(4) C-2 shopping center district.

(5) I-1 industrial park district.

(6) R-7A mobile home subdivision district.
(Code 1961, Ch. 43, § 4-103(b))

Sec. 36-128. Procedure and authority.

(a) The procedure for the zoning of property to one (1) of the classifications listed in section 36-127 shall be the same as for any other zoning application. The planning commission may outline special parameters or special concerns which will apply to the site plan when such are identified through the zoning process.

(b) The city planning department, the subdivision committee and the planning commission shall review site plans prior to the issuance of a building permit. At that time, the plan will be assessed for compatibility with standards and criteria provided herein. Public review of a site plan proposal shall take place at regularly scheduled meetings at which time interested persons may appear and offer information in support of or against the proposed site plan. The city planning department shall make recommendations on each plan submitted. The subdivi-

*__Cross reference—__Fee for site plan application, § 23-3.

sion committee shall review each plan and pass the request to the full commission adding any comment determined necessary to expediting the hearing on the application. The commission may either approve the site plan with modifications as necessary, defer the site plan or deny the site plan.

(c) In addition to the special requirements of this section, the planning commission may impose on a site plan such additional requirements as are necessary to safeguard the public health, safety and general welfare. The planning commission may require the applicant to submit a revised site plan incorporating the imposed requirements and modifications. Such revised site plans shall have priority over new applications in the review process. The planning commission may deny a site plan and recommend reducing the zoning classification of any parcel which is required a site plan if it does not carry out the general purpose of this division. In those instances where a variance from district standards is requested as a part of the submittal request, the planning commission may modify or waive standards. A variance may be allowed only after demonstration of a hardship unique to the development proposal filed. Pecuniary difficulties shall not be deemed to constitute a hardship.

(d) *Screening and landscaping.* In order to enhance the integrity and attractiveness of the development, and when deemed necessary to protect adjacent properties, the planning commission shall require landscaping and screening as a part of a site plan review. The nature and extent of screening and landscaping required shall be determined by the planning commission in relation to the overall character of the development and its specific location. In no instance, however, shall landscaping materials and placement be less than that required by chapter 15, article IV. This shall especially apply to circumstances where a change to a more intense use is proposed and there are existing buildings and improvements.
(Code 1961, Ch. 43, § 4-103(c); Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,341, § 1(vv), 1-19-93; Ord. No. 17,305, § 1(c), 11-7-96)

Sec. 36-129. Initiation.

Any application for a zoning classification which involves site plan review may be initiated by the owner or other person having a contractual interest in the property for which site plan approval is requested or by the authorized agent of such owner or person.
(Code 1961, Ch. 43, § 4-103(d))

Sec. 36-130. Submission requirements.

(a) *Zoning submission.* The submission requirements for the zoning of any lot, parcel or tract of land which includes site plan review shall be the same as for any other zoning application to the city. An applicant may submit a site plan in support of the application, provided the plan is submitted as required by section 36-130 of this chapter. In the event a site plan is approved in conjunction with the rezoning the applicant/owner shall conform to the specifics of that plan unless and until changes are authorized by the planning commission with notice given to adjacent property owners.

(b) *Site plan submission.* The submission requirements for the review of a site plan preceding the receipt of the building permit shall include the following:

(1) A site plan to be submitted on white paper no larger than twenty-four (24) inches by thirty-six (36) inches, and no smaller than eleven (11) inches by seventeen (17) inches, and including all information listed below.

A site plan shall also be submitted in an electronic format compatible with equipment in the planning and development department of the city. The data shall be in CAD compatible .DXF or .DWG (compatible with software available in the planning and development department of the city) format containing all information listed below in separate layers.

(2) A topographical cross-section map of the site.

(3) Quantitative data including the following information:

a. Proposed building coverage of principal and accessory buildings.

b. Parcel size.

c. Proposed floor area of principal and accessory buildings.

d. Proposed number of parking spaces.

(4) A registered land survey showing the exact property or boundary lines, including a legal description of the total site proposed for development, including a statement of present and proposed ownership.

(5) In addition to the graphic and supporting documentation required for filing, the owner shall provide a graphic or narrative outline of methods to be employed to protect permanent undisturbed buffers. The outline or plan shall be filed for review by the planning commission not later than the filing date set by calendar.

(Code 1961, Ch. 43, § 4-103(e); Ord. No. 16,116, § 1(j), 11-19-91; Ord. No. 16,341, § 1(aa), 1-19-93; Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 18,902, § 1(n), 7-15-03)

Sec. 36-131. Reserved.

Editor's note—Ord. No. 17,305, § 1(bb), adopted November 7, 1996, amended the Code by repealing § 36-131. Former § 36-131 pertained to standards for site plan disapproval, as derived from the Code of 1961, Ch. 43, § 4-103(f); and Ord. No. 15,247, adopted February 17, 1987.

Sec. 36-132. Effect of approval.

(a) An approved site plan shall be binding on the applicants and their successors and assignees.

(b) No building permit shall be issued for any building or structure not in conformance with the site plan. The construction, location, use or operation of all land and structures within the site shall be in accordance with all conditions and limitations set forth in the site plan. No structure, use or other element of an approved site plan shall be eliminated, altered or provided in another manner unless an amendment is approved in accordance with this division; provided, however, that the director of the city department having planning authority and responsibility may approve such minor changes in the site plan as will not cause any of the following circumstances to occur:

(1) Any change in the allowable use of the development.

(2) An increase of greater than five (5) percent in the number of dwelling units, but not to exceed the total allowable dwelling units in the respective zoning classification.

(3) Any modification compounding the problems of vehicular circulation, safety and provision of public utilities.

(4) Any modification having an adverse impact on adjacent property.

(5) Any appreciable reduction of the approved building setback lines.

(6) Any reduction of the off-street parking and loading requirements below those specified in this chapter.

(7) Any change in the allowable size, lighting or orientation of signs.

(c) Whenever the building permit official reasonably believes that any proposed construction or occupancy will not comply with the approved site plan, the planning director shall have final review authority.

(d) *Term of approval.* Any applicant receiving approval of a site plan shall be limited to a maximum of three (3) years from the date of approval to obtain all required permits unless an extension of time is granted by the planning commission. Otherwise, the site plan approval shall be considered void.

In an approved multiple-phased development, any phases for which the required permits have not been obtained within three (3) years of the date of approval must be reviewed and approved

by the planning commission in the same manner as established for the initial zoning site plan review.
(Code 1961, Ch. 43, § 4-103(g); Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,341, § 1(kk), 1-19-93; Ord. No. 16,861, § 1(y), 3-21-95; Ord. No. 20,839, § 1(c), 2-11-14)

Sec. 36-133. Amendments and modifications.

The holder of an approved site plan may request modification of the site plan or the conditions of approval by submitting an amended site plan which shall be filed and processed in the same manner as the original application.
(Code 1961, Ch. 43, § 4-103(h))

Sec. 36-134. Appeals.

Appeals from the action of the planning commission shall be filed with the board of directors. The content of the appeal filing shall consist of:

(1) A cover letter addressed to the mayor and board of directors setting forth the request; and

(2) A copy of the planning commission application indicating the action and properly executed by the staff.

This filing shall occur within thirty (30) calendar days of the action by the planning commission. Certified notice of appeal hearing shall be provided by the appellant not less than ten (10) days prior to the date of the hearing and the affidavit and other supporting evidence of notice shall be filed not less than five (5) days prior to the date of review. This notice shall be given to all record parties in interest whether for or against the request. The cost of this notice shall be borne by the appellant. No activity which requires said permit shall be conducted prior to final approval.
(Code 1961, Ch. 43, § 4-103(i); Ord. No. 16,116, § 1(s), 11-19-91; Ord. No. 20,326, § 1(r), 9-21-10)

Secs. 36-135—36-150. Reserved.

ARTICLE III. NONCONFORMITIES AND EXCEPTIONS

Sec. 36-151. Purpose.

The purpose of this division is to establish regulations and limitations for exceptions to the continued existence of uses, lots and structures which were established prior to the effective date of this chapter which do not conform to the provisions of this chapter. Such nonconformities may continue, but the provisions of this division are designed to curtail enlargement or expansion of such nonconformities and to encourage their eventual elimination in order to preserve the integrity of the zoning districts and the regulations by this chapter.
(Code 1961, Ch. 43, § 5-101(a))

Sec. 36-152. Continuance.

(a) Any nonconforming use, structure or lot that legally existed prior to the effective date of this chapter or any use, structure or lot that has been rendered nonconforming by the provisions of this chapter may continue to be utilized in the same fashion as existed prior to the adoption of this chapter. A property owner who seeks acknowledgment from the city of the continuing nature of the nonconforming status of a property shall provide proof that the nonconforming use of the property has not been abandoned within the past five (5) years and shall provide descriptions of the use both as it has existed and as proposed in the future.

(b) Any conforming use, structure or lot legally existing under the provisions of this chapter shall not be rendered nonconforming by action of the city, county, or state in the acquisition of property for street or drainage right-of-way.

(c) Any rezoning of a property occupied by a nonconforming use shall be accomplished only through a planned development process. If the planned development is approved but is not developed, the property shall not revert to its former nonconforming use status or be utilized as a nonconforming use.
(Code 1961, Ch. 43, § 5-101(b); Ord. No. 18,324, § 1(v), 8-1-00; Ord. No. 20,288, § 1, 7-6-10)

Sec. 36-153. Nonconforming uses.

(a) *Expansions.* A nonconforming use shall not be extended, expanded, enlarged or increased in intensity to any structure or land area other than that occupied by such nonconforming use on the effective date of this chapter, or any amendment hereto which causes such use to become nonconforming.

(b) *No change in use.*

(1) A nonconforming use of a building or lot may not be changed to another nonconforming use, whether or not the uses are in the same zoning classification.

(2) Any time there is a proposed change in occupancy of a nonconforming property, where the property is nonconforming to the underlying zoning, the determination of planning staff that the nonconforming use may continue shall be posted on the site. The notice shall be posted continuously for seven (7) days at the owner's expense on signage provided by the planning department. Any person may appeal the determination to the board of zoning adjustment. Any appeal of the determination must be filed no later than ten (10) days after the date the property was first posted.

(c) *Abandonment or discontinuance.* A nonconforming use that has been discontinued or abandoned for a period of six (6) months shall not be reestablished or resumed. Any subsequent use or occupancy of such land or structure shall comply with the regulations of the zoning district in which such land or structure is located.

(d) *Preregulation mobile homes and manufactured homes.* A preregulation mobile home or a manufactured home lawfully placed prior to annexation or the effective date of Ordinance No. 15,438 shall be a nonconforming use. Except as provided below, when removed, a nonconforming preregulation mobile home shall not be returned or replaced by a preregulation mobile home. A preregulation mobile home or manufactured home may be replaced, however, by a manufactured home within a manufactured home park. In order to replace a nonconforming mobile home or manufactured home with a manufactured home, when such home is not located within a manufactured home park, the property must be rezoned to the R-7A district and site plan review approval obtained or a conditional use permit obtained as required by this chapter.

(e) *Amortization of certain standards.* For purposes of automobile salvage yards and similar uses which are nonconforming with respect to the standards set forth in section 36-321, the following standards shall apply:

(1) All areas of land utilized in the storage, processing, dismantling or transport of auto bodies or similar vehicle bodies shall be brought into compliance with the provision of section 36-321 within four (4) calendar years beginning January 30, 1992.

(2) Once compliance has been gained with the provisions of section 36-321, the boundaries of the then occupied salvage or storage area shall not be expanded to any existing owned land or adjacent lands.

(f) Crematoria in existence on the effective date of this subsection are declared to be nonconforming. Such crematoria shall not be required to obtain a conditional use permit so long as the use is not expanded, changed, abandoned or discontinued as provided in this section.

(Code 1961, Ch. 43, § 5-101(c); Ord. No. 15,438, § 1, 2-16-88; Ord. No. 16,116, § 1(c), 11-19-91; Ord. No. 16,341, § 1(t), 1-19-93; Ord. No. 16,441, § 4, 7-6-93; Ord. No. 16,861, § 1(h), 3-21-95; Ord. No. 20,255, § 2, 4-20-10; Ord. No. 20,288, §§ 2, 3, 7-6-10)

Sec. 36-154. Nonconforming structures.

(a) *Repair or alterations.* Any nonconforming structure may be maintained, repaired or altered; provided, however, that no such maintenance, repair or alteration shall create an additional nonconformity, increase the degree of the existing nonconformity of all or any part of such structure or increase the intensity of the use of the structure.

(b) *Damage or destruction.* In the event that any structure that is devoted in whole or in part to a nonconforming use is destroyed by fire, explosion or other casualty, or the public enemy, to the extent of more than fifty (50) percent of the current replacement value immediately prior to such damage, such structure shall not be restored unless such structure and use thereof shall thereafter conform to all regulations of the zoning district in which such structure and use are located. When such damage or destruction is fifty (50) percent or less of the reasonable replacement value of the structure immediately prior to such damage, such structure may be repaired and reconstructed and used for the same purposes as it was before the damage or destruction; provided that such repair or reconstruction is commenced and completed within twelve (12) months of the date of such damage or destruction.

Structures which were developed prior to the passage of this chapter that complied with the then-existing standards for development and which now have been rendered substandard by these new regulations shall be termed "preexisting conforming structures" and, in the event of damage or destruction, may be allowed to build back to their original placement.

(c) *Relocation.* No nonconforming structure shall be relocated in whole or in part to any other location on the same or any other lot unless the entire structure shall thereafter conform to the regulations of the zoning district in which such structure is located after being relocated.

[(d) *Reserved.]*

(e) [*Car washes.*] For purposes of this section, the use "car wash" shall be treated as follows: Those car washes in operation as principal uses on November 1, 1988 and are conforming uses within the "C-2" shopping center district and "C-3" general commercial district, shall not be deemed to require a conditional use permit for reconstruction if damaged by storm or fire to any degree. These car washes shall be treated as if appropriate conditional use permits have been issued except in the event of a building expansion which shall require planning commission approval.
(Code 1961, Ch. 43, § 5-101(d); Ord. No. 15,571, § 1k, 11-1-88; Ord. No. 20,288, § 4, 7-6-10)

Sec. 36-155. Nonconforming lots.

Owners of lots that have been rendered unbuildable by the size and area provisions of this chapter may request, as a hardship variance, relief from the strict application of this chapter. The property owner must show to the board of adjustment that the subject property is so restricted that the buildable area is not sufficient for reasonable construction. Platted lots or lots of record prior to the effective date of this chapter may be rezoned to a particular zoning classification even though the minimum lot width, depth and area requirements are not in conformance with the requested zoning district.

When an existing platted lot is reduced in size by dedication of right-of-way to allow the city to construct street or drainage improvements, a property owner may use an existing platted building line or existing building face, whichever creates the greater setback, to construct improvements. Where current zoning building setback requirements create a building line closer to the right-of-way than the existing structure or existing platted building line, this zoning building line may be used as the setback to construct improvements. This may be done as long as there is not a request for change in use to a more intense zoning classification.

If an application is made for rezoning, the applicant must submit a planned development unless agreeing to satisfy building setbacks and needed right-of-way to current city ordinance and master street plan standards. However, when property is vacant at the time of dedication or purchase, current subdivision building setback requirements will apply, unless an application to the planning commission or board of adjustment for a variance is approved. For accessory buildings, the provisions of subsection 36-156(a)(2)c. shall apply.
(Code 1961, Ch. 43, § 5-101(e); Ord. No. 18,324, § 1(w), 8-1-00; Ord. No. 20,288, § 5, 7-6-10)

Sec. 36-156. Height and area exceptions.

(a) *Purpose.* The purpose of this section is to establish certain conditional exceptions to various district standards.

Exceptions. The requirements of height and area in the zoning districts shall be subject to the following exceptions and regulation:

(1) *Height.*

a. In the thirty-five-foot and forty-five-foot height districts, public or semi-public buildings, hospitals, sanitariums or schools may be erected to a height not exceeding seventy-five (75) feet when each of its front, side and rear yards are increased an additional foot for each foot such buildings exceed thirty-five (35) and forty-five (45) feet respectively in height.

b. One-family dwellings in the thirty-five-foot height districts may be increased in height by not more than ten (10) feet when two (2) side yards of not less than fifteen (15) feet each are provided. Such dwellings, however, shall not exceed three (3) stories in height.

c. Any person desiring to erect church steeples, chimneys, or similar ornamental structures in excess of a height prescribed for the property according to the zoning classification shall be permitted to do so provided the structure does not exceed twice the height permitted in the classification.

d. For purposes of structural height regulation applicability, section 36-201, titled "Television and radio towers," shall control all placement of towers and antenna associated with broadcasting or communication both public and private.

(2) *Area.*

a. Every part of a required yard, except as provided herein, shall be open from its lowest point to the sky unobstructed, except for the ordinary projection of sills, cornices, buttresses, ornamental features, and eaves, provided, however, that none of the above projections shall project into a minimum side yard more than thirty (30) inches. This shall be deemed to include chimneys or similar structural elements which are a permanent feature of a building. The planning director shall have specific authority to grant a variance from this provision provided the encroachment will not extend into a required yard setback more than ten (10) percent of the ordinance requirement.

For purposes of construction of ramps or other devices, within a required setback area, enabling access for the disabled, the following shall apply: Applications for building permits shall be reviewed by city staff. Staff shall assure that proposed construction meets standards set forth within the traffic code and does not impact access or visibility for adjoining property. Staff shall in all instances assure compliance with the Americans with Disabilities Act.

b. All single- and two-family residences shall be separated from accessory structures by a distance of not less than six (6) feet.

c. Accessory buildings or structures in the R-1 through R-4A districts shall not be located closer than sixty (60) feet to the front property line, fifteen (15) feet from a street side line and may not occupy more than thirty (30) percent of the required rear yard area. For purposes of double front lots, accessory buildings shall conform to front yard setback requirements on both streets. Accessory buildings or structures shall in all instances be subordinate to the principal structure on the lot and

contain less gross floor area. Accessory dwellings shall not exceed the permitted land coverage allowed by the district regulations. Swimming pools and all appurtenant structures both above ground and below grade of adjacent yard area shall be construed to be accessory structures and conform to the standards of this section. The planning director may authorize the encroachment of structures into a required yard setback except when more than one (1) encroachment is proposed. The encroachment shall be limited to ten (10) percent.

d. Accessory buildings or structures may be permitted in the C-1 through C-4 districts which are used exclusively as product or equipment storage shall not be located closer than forty (40) feet to the front property line or side street property line. They shall not occupy more than thirty (30) percent of the required rear yard setback, nor shall they be located closer than six (6) feet to a side property line. In no instance shall the accessory building floor area exceed that of the principal building.

e. Satellite receiving dishes in office and commercial districts whether portable or permanently sited shall not be located on any lot between the principal structure and a street right-of-way line unless such location is approved by the board of zoning adjustment. For purposes of this provision, an interstate highway shall not be considered a local access street.

f. Accessory buildings shall maintain at least a three-foot setback from any side or rear yard property line except where said rear yard abuts on a dedicated alley. No setback shall be required for an accessory building upon the alley.

g. Where the developed lots in a block comprise forty (40) percent or more of the frontage of the said block and the buildings on those lots have an average variation in depth of not more than six (6) feet, the average of those depths on said lots shall be the standard depth for the balance of the block and provided further that in case of a subdivision having been approved by the planning commission and recorded with a front building line less than that required by this chapter, then the requirements of this chapter shall be waived and the recorded building line shall be accepted.

(Code 1961, Ch. 43, § 5-102; Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,553, § 1a, b, o, cc, dd, 9-20-88; Ord. No. 15,617, § 1, 1-3-89; Ord. No. 16,341, § 1(y), (gg), 1-19-93; Ord. No. 16,861, § 1(z), 3-21-95; Ord. No. 17,305, § 1(a), (b), 11-7-96; Ord. No. 18,228, § 3, 3-7-00; Ord. No. 18,324, § 1(rr), 8-1-00)

Secs. 36-157—36-175. Reserved.

ARTICLE IV. ESTABLISHMENT OF ZONING DISTRICTS AND ZONING MAP

Sec. 36-176. Districts established.

In order to protect the general public from the obnoxious and intrusive usage of land by adjacent or nearby uses, the city divides the area within its jurisdiction into zoning classifications or districts. Within these districts, certain development regulations and restrictions shall apply, such as the location of buildings and other structures; the allowable usage; the height and bulk of buildings; and the setbacks and areas of yards and other open spaces. The city, with the exception of the state capitol zoning districts and the Central Little Rock Zoning Area, is hereby divided into the following zones:

R-1 single-family district.

R-2 single-family district.

R-3 single-family district.

R-4 two-family district.

R-4A low density residential district.

MF-6 multifamily district.

MF-12 multifamily district.

MF-18 multifamily district.

MF-24 multifamily district.

R-5 urban residence district.

R-6 high-rise apartment district.

R-7 manufactured home park district.

R-7A manufactured home district.

O-1 quiet office district.

O-2 office and institutional district.

O-3 general office district.

C-1 neighborhood commercial district.

C-2 shopping center district.

C-3 general commercial district.

C-4 open display commercial district.

I-1 industrial park district.

I-2 light industrial district.

I-3 heavy industrial district.

PR Park and recreation district.

AF agriculture and forestry district.

M mining district.

OS open space district.

FP floodplain district.

DOD design overlay district.

PRD planned residential district.

POD planned office district.

PCD planned commercial district.

PID planned industrial district.

PD residential district.

PD office district.

PD commercial district.

PD industrial district.

UU urban use district.

(Code 1961, Ch. 43, §§ 6-101, 6-102(a); Ord. No. 15,764, § 1, 10-17-89; Ord. No. 16,116, § 1(yy), 11-19-91; Ord. No. 16,861, § 1(bbb), 3-21-95; Ord. No. 18,228, § 4, 3-7-00; Ord. No. 18,419, § 1(b), 1-16-01; Ord. No. 20,255, § 3, 4-20-10)

Sec. 36-177. Zoning map—Adopted.

The boundaries of the zoning districts shall be delineated on the official zoning maps. The maps, maintenance of which shall be the responsibility of the office of comprehensive planning, are hereby declared to be a part of this chapter.

(Code 1961, Ch. 43, § 6-103)

Sec. 36-178. Same—Interpretation of district boundaries.

Where uncertainty exists with respect to the boundaries of the various districts as shown on the zoning map the following rules shall apply:

(1) The district boundaries are either streets or alleys unless otherwise shown; and where the districts designated on the district map are bounded approximately by street or alley lines, the street or alley shall be construed to be the boundary of the district.

(2) Where the district boundaries are not otherwise indicated and where the property has been or may hereafter be divided into blocks and lots, the district boundaries shall be construed to be the lot lines, and where the districts designated on the district map are bounded approximately by lot lines, said lot line shall be construed to be the boundary of such districts unless the boundaries are otherwise indicated on the map.

(3) In subdivided property, the district boundary lines on the district map shall be determined by use of the scale contained on the map.

(Code 1961, Ch. 43, § 6-104)

Sec. 36-179. Annexation.

(a) Territory which may hereafter be annexed to the city shall be classified in the R-2 single-family district immediately upon acceptance by the city unless or until a zoning plan for the area is prepared or adopted. Annexed territory which is located within an adopted plan area may, upon acceptance by the city, be reclassified one (1) or more zoning classifications which are generally compatible with those depicted on the plan.

(b) The board of directors shall proceed diligently to study newly annexed areas and may zone the newly annexed territory following a public hearing, due notice of which has been given in accordance with established procedures.

(c) In the absence of either an adopted zoning plan for said area or an initiative petition from the property owner, said property may be developed in a single-family format utilizing the R-2 single-family district standards where the average slope of any platted parcel does not exceed eighteen (18) percent.
(Code 1961, Ch. 43, § 1-108)

Secs. 36-180—36-200. Reserved.

ARTICLE V. DISTRICT REGULATIONS

DIVISION 1. GENERALLY

Sec. 36-201. Broadcast media and amateur radio towers.

(a) *Definition.* In this section "tower" means any mast, brace, or other structure used for the support of amateur radio, radio, television or broadcast media, specifically exempting wireless communication facilities which are covered in article XII of this chapter.

(b) *Building code applicable.* No provision of this section shall be construed so as to relieve compliance with all other requirements of the building code.

(c) *Permits.* It is unlawful to construct, erect or install any tower without first obtaining a permit therefor. The permit shall be granted pursuant to the provisions of this section. No permit shall be issued for the erection of a tower which will in any way constitute a hazard to air travel as recommended or required by the federal government. A building permit shall be required for the construction of all towers except for the erection of any tower which is:

(1) Constructed of steel or other metal which is less than twenty-five (25) feet in height above the adjacent ground.

(2) Constructed of steel or other metal which is less than fifteen (15) feet above the roofline of the building on which mounted.

(3) Constructed of wood under the provisions of this section.

A permit fee will be charged for the erection of towers as provided by ordinance.

(d) *Specifications and plans.* All towers shall be erected in strict compliance with the manufacturer's specifications for construction, or in the event there are no manufacturer's specifications towers shall be constructed in accordance with plans and specifications prepared by a registered professional engineer licensed in this state. The manufacturer's specifications or plans and specifications prepared by said registered professional engineer shall be filed with the city prior to the issuance of the building permit.

(e) *Height restrictions—Generally.*

(1) *Ground-mounted towers.*

a. No steel or other metal ground-mounted tower shall exceed seventy-five (75) feet in height above the adjacent ground.

b. No wood ground-mounted tower shall exceed twenty (20) feet in height above the adjacent ground.

(2) *Attached towers.*

a. No steel or other metal tower mounted on the roof of any commercial or industrial structure shall exceed fifty (50) feet in height above the roof line of the structure on which it is mounted.

b. No steel or other metal tower mounted on the roof of any residential structure shall exceed twenty-five (25) feet in height above the roof line of the building on which it is mounted.

c. No wood roof-mounted tower shall exceed twenty (20) feet in height above the adjacent ground.

(f) *Same—Exceptions.* The board of adjustment may grant a waiver of the height limitations of this chapter upon the filing of a proper application. The height restrictions set forth in subsection (e) of this section shall in all instances supersede the building height limits set forth in the various zoning districts.

(g) *Inspections.* It is unlawful to pour or otherwise construct any foundation, footing or pad for a tower without the prior approval of the city building codes official of the excavation or ditch in which the foundation, footing or pad will be constructed. Two (2) inspections shall be made. A foundation site inspection shall be made by the city within twenty-four (24) hours after being notified by the permittee that the excavation or ditch in which the foundation, footing or pad for the support of a tower is about to be poured. Final inspection shall be made by the building inspector upon completion of construction. The permittee shall notify the building inspector within twenty-four (24) hours of completion.

(h) *Guying.* All guying used to support a tower should be located on the property upon which the tower is constructed. If it is necessary that guying extend onto adjacent property the permittee shall obtain and provide to the city proper authorization of the adjacent property owner prior to issuance of the building permit.
(Code 1961, §§ 38-1—38-7; Ord. No. 17,305, § 1(ii), (ccc), 11-7-96; Ord. No. 17,697, § 6a, 3-17-98; Ord. No. 17,774, § 1, 7-7-98; Ord. No. 18,682, § 1(f), 5-21-02)

Sec. 36-202. Temporary buildings, etc.

(a) The director of the city planning department may allow a temporary building or manufactured home for commerce or industry in any district where such building is used:

(1) Incidental to construction on a site or development of a residential subdivision; or

(2) As a temporary office, store, or other facility while the primary structure on the same site is being remodeled or constructed.

(b) Such temporary building or manufactured home may be allowed for any period of time up to one (1) year, after which a requested extension of time may only be granted by the board of zoning adjustment.

(c) Appeals from the decision of the director or the city department having planning authority and responsibility shall be the board of adjustment. In making decisions, the director of the city department having planning authority and responsibility and the board of adjustment shall evaluate the need for such temporary uses, compatibility with neighboring properties, parking, traffic, safety, and other factors related to the public health, safety, and general welfare.
(Code 1961, Ch. 43, § 3-101(c); Ord. No. 15,438, § 1, 2-16-88; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 20,255, § 4, 4-20-10)

Sec. 36-203. Temporary public school buildings and uses.

(a) *General purpose.* The purpose of this section is to provide procedures for the placement of accessory buildings and uses on properties owned by and for the Little Rock School District and to establish standards by which such buildings and uses can be evaluated. Only those structural types and uses identified may be placed on any school property in any zoning district where listed. In all instances, the specific site plan to be used for placement shall receive detailed administrative review.

The director of the department of planning and development shall have authority to approve placement of buildings and uses for a period of

up to five (5) years, after which said buildings and uses shall be removed. Appeals may be filed with the board of adjustment within thirty (30) days of a denial by the director.

(b) *Guidelines for decision.* In determining whether to approve a site location for a temporary school building and use, the director may consider, among other things, the recommendations of the Little Rock Fire Department, Little Rock Building Code Official, and the public works department. The director shall cause a field inspection to be made of the proposed site for purposes of evaluating the proposal. The adopted neighborhood land use plan, community facilities plan or other master plan components shall be considered.

(c) *Development standards.* In carrying out the purpose of this section, the following use and design standards shall be subject to the review and approval of the planning director. The appropriateness of these standards and compliance therewith shall be determined for each specific placement of a temporary school building and use.

(1) The proposed use is designed, located and proposed to be operated such that the public health, safety, welfare and convenience will be promoted.

(2) The proposed land use is compatible with, and will not adversely affect, other properties in the area where it is proposed to be located.

(3) The current zoning classification of the land permits a public school as a use by right or conditional use permit.

(4) The size and shape of the site and the size, shape and arrangement of proposed structures are in keeping with the intent of this chapter.

(5) The internal street system, ingress and egress, off-street parking, loading areas, and pedestrian ways are adequate.

(6) Safeguards proposed to limit noxious or offensive emissions, including lighting, noise, glare, dust and odor, are addressed.

(7) Proposed landscaping and screening are in accordance with the City of Little Rock Landscape Ordinance.*

(d) *Site plan submission.* The submission requirements for the review of a site plan by the director of the department of planning and development shall include the following:

(1) A site plan to be submitted digitally on accepted media and may also be on white paper no larger than thirty (30) inches by forty-two (42) inches and no smaller than eleven (11) inches by seventeen (17) inches and including:

a. Graphic scale and north arrow.

b. Lot lines.

c. Existing and proposed vehicular and pedestrian circulation systems, including streets, alleys, walkways, service areas and loading areas, the location and arrangement of off-street parking areas, and all points of vehicular ingress and egress.

d. Proposed perimeter treatment of the property indicating screening materials to be used including fences, walls and plant materials together with a description of the uses, setbacks and their relationship to surrounding areas.

e. Location and dimension of all existing and proposed utility and street easements and all existing public improvements within the site.

f. Proposed location of structures and structural dimensions, distances between buildings, and distances from structures to property lines.

(2) An application form properly executed.

(e) *Filing and administration procedure.* The review procedure occurs when initiated by an agent of the Little Rock School District. The application and supporting data shall be filed with the office of comprehensive planning. At that time, the plan will be assessed for compat-

*__Cross reference—__Landscaping and tree protection, Ch. 15.

ibility with standards and guidelines provided herein. The director shall cause copies of application material to be submitted to city departments or public agencies as necessary to obtain their comments on the proposal. The comments of the respondents will be received, assessed and made a part of the permanent record. The planning director will review the application and comments received and make a decision which shall be either: (1) approval, in which case a building permit shall be issued; (2) denial, in which case a revised plan may be submitted in response to efficiencies noted; or (3) conditional approval, in which instance the conditions set forth by the director shall be specifically reflected on the approved site plan. In no instance shall the initial review process exceed twenty-one (21) consecutive days from the filing date.

(f) *Use provisions.* The provisions of these regulations shall extend to accessory uses within temporary buildings utilized by the Little Rock School District. Approvals of buildings and uses shall be limited to up to a five-year period, as determined by the director. Each building and use authorized by the director shall be removed from the site after expiration of the approved time period.

(g) *Sunset provision.* The board of directors hereby extends the sunset provision of the zoning ordinance for an additional five (5) years to July 19, 2024, for portable school classrooms in the Little Rock School District.
(Ord. No. 15,710, § 1, 7-18-89; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,706, § 1, 7-19-94; Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 17,697, § 6a, 3-17-98; Ord. No. 18,028, § 1, 6-1-99; Ord. No. 19,126, § 1, 6-15-04; Ord. No. 20,102, § 1, 5-5-09; Ord. No. 20,899, § 1, 7-1-14; Ord. No. 21,760, § 1, 7-23-19; Ord. No. 21,867, § 1, 5-19-20)

36-204. Accessory dwelling units.

(a) *Purpose and intent.*

The purpose of this section is to establish clear standards for the development of one (1) accessory dwelling unit on single-family residential lots as a permitted use by right, in accordance with Act 313 of 2025 of the State of Arkansas.

(b) *Permitted use.*

(1) A maximum of one (1) accessory dwelling unit is allowed as a permitted use in all zoning districts when it is an accessory unit to a single-family dwelling of a greater square footage on the same parcel or lot, meeting the definition of an accessory dwelling unit and all applicable development standards outlined in [subsection (b)].

   a. A detached accessory dwelling unit shall not be erected or occupied before the primary single-family dwelling is erected on the same parcel or lot, unless approved for temporary use during construction by the director of the planning and development department.

   b. A will-serve letter is required from applicable water and wastewater utilities.

   c. No provision of this section shall be construed so as to relieve compliance with all other applicable requirements of the municipal code, not in contradiction with A.C.A. § 14-56-205.

(2) *Development standards.* The development standards shall apply to all accessory dwelling units allowed by-right per [section (b)(1)].

   a. *Location.* An accessory dwelling unit may be attached, detached, or internal to the single-family dwelling on the lot or parcel. Whether detached, attached, or internal, the unit shall conform to the setback requirements applicable to single-family dwellings of the applicable zoning district.

   b. *Area.* When detached or attached, the unit shall not be more than seventy-five percent (75%) of the gross floor area of the single-family dwelling or one thousand square feet (1,000 sq. ft.), whichever is less.

c. *Lot coverage.* The accessory dwelling unit shall conform to the lot coverage requirements for single-family developments of the applicable district where prescribed.

d. *Height.* No accessory dwelling shall exceed the permitted height of the respective applicable zoning district.

(c) *Variances.*

(1) Accessory dwelling units defined by [section (b)(1)] but which do not meet the development standards outlined in [section (b)(2)] shall be processed as a request for a variance as per section 36-69—70 of the Little Rock Municipal Code, through the Board of Adjustments.

(2) The mere fact that the placement of an accessory dwelling unit is to be placed on a location previously granted a variance for a non-residential use does not guarantee that any variance for an accessory dwelling unit will be granted.

(d) *Applicability.* Any regulation or restriction in chapter 36 that is more restrictive than this section shall not apply to accessory dwelling units defined by [section (b)(1)]. The regulations of this section for accessory dwelling units defined by [section(b)(l)] shall supersede any regulation in Chapter 36 that is more permissive than this section.

(e) *Additional units.* Any additional accessory dwelling units, beyond one (1) unit as defined by [section (b)(1)], or units accessory to non-single-family primary structures on a lot or parcel, shall conform to applicable regulations of the municipal code.

(f) *Short-term rentals.* No provision of this section shall be construed so as to relieve compliance with Sec. 36-601 of the Little Rock Municipal Code.
(Ord. No. 22,647, § 2, 8-19-25)

Secs. 36-205—36-250. Reserved.

DIVISION 2. RESIDENTIAL DISTRICTS

Sec. 36-251. General purpose.

The residential districts established by this chapter are designated to promote and protect the health, safety, morals, convenience, order, prosperity and other aspects of the general welfare. These general goals include, among others, the following more specific purposes:

(1) To provide sufficient space at appropriate locations for residential developments to adequately meet the housing needs of the present and expected future population of the metropolitan area, with due consideration to the need for a variety of choices in site selection.

(2) To permit improved movement on the public street system and efficiently utilize existing public streets, and, as far as possible, to mitigate the effects of heavy traffic and more particularly all though traffic, in residential areas.

(3) To protect residential areas against undue congestion, as far as possible, by regulating the density of population, intensity of activity, and the bulk of buildings in relation to the surrounding land and to each other.

(4) To provide for access of light and air to windows and for privacy, as far as possible, by controls of the height of buildings and other structures.

(5) To promote the most desirable use of land and building development, to protect the character of each district and its suitability for particular uses and to conserve the value of land and buildings.
(Code 1961, Ch. 43, § 7-101)

Sec. 36-252. Accessory buildings in certain districts.

(a) *[Area requirements.]* Accessory dwellings within the R-2, R-3, R-4 and R-7A districts shall conform to the following area requirements:

(1) No accessory dwelling shall exceed the permitted height of the district.

(2) In no instance shall the floor area of the accessory dwelling exceed that of the principal dwelling.

(3) In the R-2 and R-3 districts, one (1) of the dwelling units must be occupied by the landowner.

(4) In the R-4 district, an accessory dwelling is expressly prohibited when a duplex exists on the lot.

(5) In R-2, R-3, R-4 and R-7A districts, a single-family dwelling or manufactured home must be on the site prior to approval of location of an accessory dwelling.

(6) The two-story type of construction may be allowed for accessory dwellings when the ground floor is occupied as an automobile garage or accessory storage for the dwelling units on the lot.

(b) *Accessory buildings.* An accessory building shall be a constructed edifice designed to stand alone, more or less permanently. Only those buildings specifically designed and constructed for the purpose of serving as an accessory building shall meet the definition of an accessory building. The use of items such as cargo containers, truck boxes and trailers, train cars and cabooses, mobile homes, manufactured homes and recreational vehicles or trailers shall not be deemed appropriate to serve as an accessory building in a residentially-zoned district. Such items shall not be deemed to be nonconforming structures under article III of this chapter. Any such item not deemed by the planning director to be appropriate that was being used prior to the effective date of the ordinance codified in this section as an accessory structure in a residentially-zoned district shall be removed within six (6) months from notification by the city of the property owner.

(Code 1961, Ch. 43, § 5-102(f); Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,438, § 1, 2-16-88; 18,682, § 1(d), 5-21-02; Ord. No. 18,902, § 1(s), 7-15-03; Ord. No. 19,052, § 2, 2-3-04)

Sec. 36-253. R-1 Single-family district.

(a) *Purpose and intent.* The R-1 single-family district is established in order to provide areas in the city for development of single-family residences on lots not less than fifteen thousand (15,000) square feet in area. This section applies to such district. This district shall be located so as to facilitate the economical provision of appropriate urban services and to provide for the orderly expansion and maintenance of urban residential development throughout the metropolitan area. The R-1 district shall also be applied to areas where, because of topography or other physical constraints, lots larger than permitted in the R-2 and R-3 districts would be appropriate. The R-1 district is not intended to be subject to major alteration by future amendment except at the fringe of such district, where minor adjustment may become appropriate to permit the reasonable development of vacant tracts for gradual transition from other districts. Within the R-1 district, all buildings, structures or uses having commercial characteristics shall be excluded whether operated for profit or otherwise. Conditional uses and home occupations expressly provided for in this chapter, however, shall be allowed, provided they do not have objectionable characteristics and provided further that they otherwise conform to the provisions of this chapter.

(b) *Use regulations.*

(1) *Permitted uses.* Permitted uses are one (1) single-family dwelling on any lot or parcel.

(2) *Accessory uses.* The following accessory structures and land uses shall be permitted only where clearly incidental to the permitted primary use, except as otherwise permitted herein:

a. Servants' quarters, provided said quarters are used only by persons employed on the premises and not for commercial purposes.

b. Accessory buildings, including private garages, storage facilities and children's playhouses.

c. Private greenhouses and horticultural collections.

d. Flower and vegetable gardens.

e. The keeping of animals for private, noncommercial use in accordance with chapter 6.

f. Home occupations in compliance with this chapter.

g. Signs in compliance with chapter 36, article X.

h. Swimming pools, tennis courts and similar recreational facilities.

(3) *Temporary uses.* The following temporary buildings, structures and uses shall be permitted where such building, structure or use conforms to the height and yard requirements of this zone:

a. Facilities and storage incidental to a construction project and located on the project site. When such facilities or storage are used for construction on lots other than the lots used for such facilities or storage, such use shall maintain the setbacks required in this zone.

b. Model home or subdivision sales offices when located in model homes subject to the approval of the planning director, and subject to the following provisions:

1. Such model homes or subdivision sales offices shall be located in a subdivision which is owned by or held in trust with the subdivision developer proposing to erect a model home or proposing to operate the sales office.

2. Subdivision sales offices or model homes shall be permitted not to exceed thirty-six (36) months from the granting of such temporary use by the planning director.

3. The board of adjustment may grant not more than one (1) use permit to extend the time limit allowed in item 2, above, not to exceed an additional thirty-six (36) months.

4. The subdivision sales office shall be removed and the model homes shall be discontinued as a model home on or before the termination date set forth in item 2, above or upon expiration of the extension granted by the board of adjustment pursuant to item 3, above, or after six (6) months following sale or occupancy of all lots in the subdivision other than the model homes, whichever occurs first.

5. For the purpose of items 1, and 4, above, "subdivision" means all land included within a plat submitted to the city.

c. Garage sales (not to exceed two (2) a year and two (2) days for each event).

(4) *Conditional uses.* The following uses may be permitted in this zone subject to the approval of a condition use permit and all required showings and conditions thereof:

a. Churches and other religious institutions and their accessory buildings and uses.

b. Educational institutions, including but not limited to colleges, universities, public and private elementary, junior or senior high schools and their accessory buildings and uses.

c. Public utility buildings and facilities when necessary for serving the surrounding area, provided that no public business office and no repair or storage facility are maintained therein.

d. Municipal or governmental recreation use, including public parks, playgrounds, tennis courts, golf courses, community centers, fire stations, museums, libraries and other similar uses.

e. Country club, golf course, swimming pool or other private recreational uses usually associated with or incidental to a social country club or subdivision association operated for mutual recreation for the members, and not as a business for profit.

f. Group care facilities.

g. Fire station.

(5) *Special uses.* The following special uses may be permitted subject to the criteria contained in section 36-54 and approval of a special use permit by the planning commission:

a. Bed and breakfast house/short-term rental type 1 (STR-1).

b. Family care facility.

c. Day care family home.

d. Family care facility.

e. Group care facility.

f. Group home.

g. Parolee or probationer housing facility.

h. Rooming, lodging and boarding facility.

(6) *Home occupation.*

a. Home occupations shall be permitted that will not:

1. Change the outside appearance of the dwelling or provide product display visible from the street.

2. Generate traffic, parking, sewage or water use in excess of what is normal in the residential neighborhood.

3. Create a hazard to persons or property, result in electric interference or become a nuisance.

4. Result in outside storage or display of any material or product.

5. Involve accessory buildings.

6. Result in signage beyond that which may be required by other government agencies.

7. Limited to five hundred (500) square feet in area, but in no case more than forty-nine (49) percent of the floor area in a dwelling.

8. Stock in trade shall not exceed ten (10) percent of the floor area of the accessory use.

9. Require the construction of, or the addition to, the residence of duplicate kitchens.

10. Requirement or cause the use or consumption on the premises of any food product produced thereon.

11. Provide medical treatment, therapeutic massage or similar activities.

b. The following are permitted home occupations, provided they do not violate any of the provisions of the previous subparagraph a:

1. Dressmaking, sewing and tailoring.

2. Painting, sculpturing or writing (artistic endeavors).

3. Telephone answering service or radio monitoring service.

4. Home crafts such as model making, rug weaving and lapidary work.

5. Tutoring limited to two (2) students at a time.

6. Music instruction limited to two (2) students at a time.

7. Catering and home cooking.

8. Computer programming.

9. Clock or watch repair.

10. Personal or home care products marketing without stock in trade on premises.

c. The following are prohibited as home occupations:

1. Barbershops and beauty shops.

2. Animal hospitals.

3. Dance studios.

4. Mortuaries.

5. Nursery schools.
6. Private clubs.
7. Small appliance repair shops.
8. Restaurants.
9. Stables or kennels.
10. Animal grooming.
11. Engine or motor repair shops.
12. Paint shops.

d. Any proposed home occupation that is neither specifically permitted by subparagraph b., nor specifically prohibited by subparagraph c., shall require an accessory use permit and which shall be granted or denied by the department of planning and development upon consideration of those standards contained in this paragraph. Appeals from the administrative judgement of the department shall be filed with the board of adjustment. The content of the filing shall consist of:

1. A cover letter addressed to the chairman and members of the board of adjustment setting forth the request; and
2. A copy of all pertinent graphic materials or correspondence.

This filing shall occur within thirty (30) calendar days of the action by the department. No activity which requires an accessory use permit shall be conducted prior to issuance of the permit. Any proposed use requiring employees who are not residents of the dwelling shall be approved by the board of adjustment prior to the issuance of permits.

e. Revocation procedure.

1. Any approved home occupation may, upon review and action by the planning commission, be revoked. Revocation proceedings may be initiated by staff. The planning commission may revoke the home occupation if it is determined that the use approved under the home occupation is being conducted in a manner contrary to the original approved application, being conducted in a manner in violation of the provisions of this chapter or contrary to any other laws of the city.
2. Notice shall be delivered to the business operator, either by delivery in person or by certified mail, giving notice of the alleged violation and setting a time and date to appear before the planning commission. At the hearing before the planning commission, the burden is on the business operator to prove that the home occupation is in strict compliance with city ordinances in order to avoid revocation.
3. The planning commission shall have final authority. Appeals from the action of the planning commission shall be filed with the board of directors through the office of the city clerk. The content of the appeal filing shall consist of:
   (i) A cover letter addressed to the mayor and board of directors setting forth the request.

   This filing shall occur within thirty (30) days of the action by the planning commission. At any appeal before the board of directors, the burden is on the business operator to prove that the home occupation is in strict compliance with city ordinances in order to avoid revocation.
4. Once an approved home occupation is revoked, notice of the

revocation shall be sent to the city finance department and the business license shall be revoked.

(c) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of thirty-five (35) feet.

(d) *Area regulations.*

(1) *Front yard.* There shall be a front yard setback having a depth of not less than thirty-five (35) feet.

(2) *Side yard.* There shall be a side yard setback on each side of the building having a width of not less than ten (10) feet. Notwithstanding the above requirement, no conditional use in this district will be approved having a side yard setback of less than twenty-five (25) feet.

(3) *Rear yard.* There shall be a rear yard setback having a depth of not less than twenty-five (25) feet. In the case of a corner lot, however, when providing a twenty-five-foot exterior side yard, the rear yard may be reduced to not less than ten (10) feet.

(4) *Lot area regulations.* There shall be a lot area of not less than fifteen thousand (15,000) square feet. In addition, there shall be a minimum lot width of not less than eighty (80) feet and a minimum lot depth of not less than one hundred twenty (120) feet.

(e) *Lot coverage.* The main building and all accessory buildings on a lot shall not occupy more than thirty (30) percent of the total area of the lot.

(Code 1961, Ch. 43, § 7-101.1; Ord. No. 15,703, § 1k, p, 7-5-89; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,116, § 1(t), (qq), 11-19-91; Ord. No. 16,341, § 1(m), (ff), 1-19-93; Ord. No. 16,861, § 1(x), (aa), 3-21-95); Ord. No. 18,324, § 1(jj), (oo), 8-1-00; Ord. No. 18,682, § 1(e), 5-21-02; Ord. No. 19.395, § 1(g), 9-6-05; Ord. No. 21,168, § 1(x), 2-2-16; Ord. No. 21,867, § 1, 5-19-20; Ord. No. 22,274, § 4, 6-20-23)

Sec. 36-254. R-2 single-family district.

(a) *Purpose and intent.* The R-2 single-family district applies to a major portion of the city developed for single-family residences. It is the proper zoning classification for areas of undeveloped land within the city identified as appropriate for single-family residential use and may be applied to undeveloped areas annexed to the city in conjunction with the approval of a zoning plan by the board of directors. This section applies to such district. The purpose of this district is to protect single-family uses in established areas by promoting and encouraging a suitable environment for family life, by providing a reasonable standard for light, air and similar amenities, by minimizing traffic congestion, and by avoiding the overloading of utilities and public facilities designed to service only one-family residential uses. Within the R-2 district, all buildings, structures or uses having commercial characteristics shall be excluded, whether operated for profit or otherwise. Conditional uses, accessory uses and home occupations expressly provided for in these regulations, however, shall be allowed, provided they do not have objectionable characteristics, and provided further that they otherwise conform to the provisions of this chapter.

(b) *Use regulations.*

(1) *Permitted uses.* Permitted uses are one (1) single-family dwelling on any lot or parcel.

(2) *Other uses.* Accessory, home occupation, special use, conditional uses or temporary uses allowed within the R-2 single-family district shall be the same as those in the R-1 district except that day care centers, adult day care centers, accessory dwellings, and manufactured homes may be allowed as conditional uses.

(c) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of thirty-five (35) feet.

(d) *Area regulations:*

(1) *Front yard.* There shall be a front yard setback having a depth of not less than twenty-five (25) feet.

(2) *Side yard.* There shall be a side yard set-back on each side of the building having a width of not less than ten (10) percent of the average width of the lot, not to exceed eight (8) feet.

(3) *Rear yard.* There shall be a rear yard setback having a depth of not less than twenty-five (25) feet. In the case of a corner lot, however, when providing a twenty-five foot exterior side yard, the rear yard may be reduced to not less than eight (8) feet.

(4) *Lot area regulations.* There shall be a lot area of not less than six thousand (6,000) square-feet. In addition, there shall be a minimum lot width of not less than fifty (50) feet and a minimum lot depth of not less than one hundred (100) feet. For purposes of zero-lot-line lots, the minimum lot width may be reduced to not less than thirty-five (35) feet. The lot area shall not be less than four thousand (4,000) square-feet.

(5) *Other area regulations and siting standards.* The following minimum siting standards shall apply to all instances of placement of a manufactured home in the R-2 single-family district by conditional use permit:

a. A pitched roof of three (3) in twelve (12) or fourteen (14) degrees or greater.

b. Removal of all transport elements.

c. Permanent foundation.

d. Exterior wall finished so as to be compatible with the neighborhood.

e. Orientation compatible with placement of adjacent structures.

f. Underpinning with permanent materials.

g. All homes shall be multisectional.

h. Off-street parking per single-family dwelling standard.

(6) *Accessory structures and additions.* Accessory structures or principal building additions of conventional on-site construction are permitted by right.

(Code 1961, Ch. 43, § 7-101.2; Ord. No. 15,247, § 1, 2-15-87; Ord. No. 15,438, § 1, 2-16-88; Ord. No. 15,553, § 1vv, 9-20-88; Ord. No. 15,971, § 1(f), 12-4-90; Ord. No. 16,116, §§ 1(h), (rr), 11-19-91; Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 18,324, § 1(h), 8-1-00; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-255. R-3 Single-family district.

(a) *Purpose and intent.* The R-3 single-family district is established in order to provide an appropriate district for existing developed areas occupied by smaller scale single-family housing while at the same time maintaining reasonable standards of light, air and similar amenities for living. This section applies to such district. It is intended that this district be utilized for new construction only within the existing urban area and especially for infill development. Within the R-3 district, all buildings, structures or uses having commercial characteristics shall be excluded whether operated for a profit or otherwise. Accessory uses, conditional uses and home occupations specifically provided for in this chapter, however, shall be allowed provided they do not have objectionable characteristics and provided further that they otherwise conform to the provisions of this chapter.

(b) *Use regulations.*

(1) *Permitted uses.* Permitted uses are one (1) single-family dwelling on any lot or parcel.

(2) *Other uses.* Accessory, home occupation, special use, conditional uses or temporary uses allowed within the R-3 single-family district shall be the same as those in the R-1 and R-2 districts except that two-family residences, accessory dwellings, day camps, day nursery, day care centers, adult day care centers, and manufactured homes may be allowed as conditional uses in R-3 as specifically approved by the planning commission.

(c) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of thirty-five (35) feet.

(d) *Area regulations.*

(1) *Front yard.* There shall be a front yard setback having a depth of not less than twenty-five (25) feet.

(2) *Side yard.* There shall be a side yard on each side of the building having a width of not less than ten (10) percent of the average width of the lot, not to exceed five (5) feet.

(3) *Rear yard.* There shall be a rear yard setback having a depth of not less than twenty-five (25) feet. In the case of a corner lot, however, when providing a twenty-five foot exterior side yard, the rear yard may be reduced to not less than eight (8) feet.

(4) *Lot area regulations.* There shall be a lot area of not less than five thousand (5,000) square feet. In addition, there shall be a minimum lot width of not less than fifty (50) feet and a minimum lot depth of not less than one hundred (100) feet. In the case of a lot used for a two-family residence, the minimum lot area shall be seven thousand (7,000) square feet, with a minimum width of fifty (50) feet and a minimum depth of one hundred (100) feet. For purposes of zero-lot-line lots, the minimum lot width may be reduced to not less than thirty-five (35) feet. The lot area shall not be less than four thousand (4,000) square feet.

(5) *Other area regulations/siting standards.* The following minimum siting standards shall apply to all instances of placement of a manufactured home in the R-3 single-family district by conditional use permit:

a. A pitched roof of three (3) in twelve (12) or fourteen (14) degrees or greater.

b. Removal of all transport elements.

c. Permanent foundation.

d. Exterior wall finished so as to be compatible with the neighborhood.

e. Orientation compatible with placement of adjacent structures.

f. Underpinning with permanent materials.

g. All homes shall be multisectional.

h. Off-street parking per single-family dwelling standard.

(6) *Accessory structures and additions.* Accessory structures or principal building additions of conventional on-site construction are permitted by right.

(Code 1961, Ch. 43, § 7-101.3; Ord. No. 15,247, § 1, 2-15-87; Ord. No. 15,438, § 1, 2-16-88; Ord. No. 15,971, § 1(g), 12-4-90; Ord. No. 16,116, § 1(h), 11-19-91; Ord. No. 18,324, § 1(h), 8-1-00)

Sec. 36-256. R-4 two-family district.

(a) *Purpose and intent.* Two-family dwellings are an established development type in the city. Such areas are deserving of protection in the form of reasonable standards which will maintain and encourage two-family lot development at appropriate locations. The purpose of the R-4, two-family district, is two-fold: To provide areas for the development of two-family dwellings and lots in spacious surroundings; and to facilitate the conversion of one-family residences to two-family use in established developed areas. This section applies to such district. It is the intent of this chapter that the R-4 district be located in both developed and undeveloped areas of the city where an environment suitable for moderate-density residential use can be provided and in established medium-density residential areas where conversions may facilitate their continuation as desirable residential areas. Within the R-4 district, all buildings, structures or uses having commercial characteristics shall be excluded, whether operated for profit or otherwise. Accessory uses, conditional uses and home occupations specifically provided for in this chapter, however, shall be allowed provided they do not have objectionable characteristics and provided further that they otherwise conform to the provisions of this chapter.

(b) *Use regulations.*

(1) *Permitted uses.* Permitted uses are single-family and two-family residences and lots. Two-family dwellings shall be attached by wall, roof and/or foundation; however, subject to the area regulations and siting standards in subsection 36-256(d)(7) two single-family detached dwellings may be constructed as a two-family lot on a single lot or lot of record.

(2) *Other uses.* Accessory, home occupation, temporary, special and conditional uses allowed within the R-4 two-family district shall be the same as those in the R-1, R-2 and R-3 single-family districts except that day camps, day nursery, accessory dwellings, day care centers, adult day care centers, and manufactured homes may be allowed as conditional uses in R-4 as specifically approved by the planning commission.

(c) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of thirty-five (35) feet.

(d) *Area regulations.*

(1) *Front-yard.* There shall be a front-yard setback having a depth of the lesser of not less fifteen (15) feet from the front property boundary; or the average setback of the nearest structures on each side if either of those structures have a setback on the same block facing the same street of twenty-five (25) or fewer feet.

(2) *Side-yard.* There shall be a side-yard on each side of the building having a width of not less than ten (10) percent of the average width of the lot, not to exceed five (5) feet measured from the side boundaries of the property. Building overhangs, including but not limited to, sills, cornices, ornamental projections, or eaves, may extend into the required side yard setback provided that stormwater runoff is sufficiently collected or diverted so that it does not create a hazard or detriment to adjacent property. No building overhang or building feature may extend beyond the property boundary.

(3) *Rear-yard.* There shall be a rear-yard having a depth of not less than twenty-five (25) feet from the rear property boundary; except on lots that do not conform to the lot area regulations of subsections (d)(4) and having a depth of less than one hundred (100) feet, there shall be a rear-yard depth of not less than ten (10) percent of the depth of the lot. Building overhangs, including, but not limited to, sills, cornices, ornamental projections or eaves, may extend into the required rear yard setback provided that stormwater runoff is sufficiently collected or diverted so that it does not create a hazard or detriment to adjacent property. No building overhand or building feature may extend beyond the property boundary.

(4) *Lot area regulations.* There shall be a lot area of not less than seven thousand (7,000) square feet. In addition, there shall be a lot width of not less than seventy (70) feet and a lot depth of not less than one hundred (100) feet.

(5) *Other area regulations and siting standards.*

a. The following minimum siting standards shall apply to all instances of placement of a manufactured home in the R-4, two-family district, by conditional use permit:

1. A pitched roof of three (3) in twelve (12) or fourteen (14) degrees or greater.
2. Removal of all transport elements.
3. Permanent foundation.
4. Exterior wall finished so as to be compatible with the neighborhood.
5. Orientation compatible with placement of adjacent structures.

6. Underpinning with permanent materials.

7. All homes shall be multisectional.

8. Off-street parking per single-family dwelling standard.

b. All dwellings on two-family lots, including two-family dwellings, shall be constructed with separate, applicable utility connections unless it is expressly acknowledged by the lot owner and contractor to whom the construction permit is issued that an application for lot split shall be rejected by the director of planning and development, and will not be considered by the board of directors, unless: 1) the utilities serving the dwellings are reconstructed to provide for distinct utility service to each dwelling; or 2) the property is replatted as a horizontal property regime, pursuant to the Horizontal Property Act [A.C.A. § 18-13-101 et seq.].

c. Any storm-water drainage plan submitted pursuant to this district code shall provide sufficient information to enable the planning department to identify: 1) the general direction of anticipated water flow; 2) the methods to be employed in capturing or directing the flow of storm-water, including, not limited to, the use of gutters, buried drainpipes or rain swales; and 3) any other information necessary for the understanding of the general storm-water drainage concept on or for the benefit of the subject property to be employed for the mitigation and avoidance of injury to surrounding properties.

(6) *Accessory structures and additions.* Accessory structures or principal building additions of conventional on-site construction are permitted by right.

(7) *Area regulations and siting standards for two (2) single-family dwellings on one (1) lot.* The following minimum siting standards shall apply to all instances of construction or placement of two single-family dwelling units constructed on one (1) lot in the R-4, Two-Family District:

a. On corner lots:

1. Each dwelling shall front on a different street.

2. The front dwelling shall abide by front-yard area regulations in subsection 36-256(d)(1), and side-yard area regulations in subsection 36-256(d)(2). The separation between the front dwelling and the rear dwelling shall be not less than eight (8) feet unless appropriate fire protection standards are adequately depicted in construction documents and constructed to meet the standards set out in the appropriate building code.

3. The rear dwelling shall have a front-yard setback with a depth of the lesser of the side-yard setback of the front dwelling, or ten (10) feet from the property boundary nearest the front of the rear dwelling. The rear dwelling shall have a setback of not less than five (5) feet from the rear of the structure to the property boundary behind the rear dwelling. The side of the rear dwelling nearest the rear property boundary shall have a setback of at least five (5) feet. The rear dwelling may not occupy more than thirty (30) percent of the rear-yard area required by subsection 36-156(d)(3).

b. On double frontage lots:

1. Each dwelling shall front on a different street.

2. Both dwellings shall be treated as having front-yards, and shall abide by front yard area regulations in subsection 36-256(d)(1), and side-yard area regulations in subsection 36-256(d)(2). The separation between the dwelling units shall be not less than eight (8) feet unless appropriate fire protection standards are adequately depicted in construction documents and constructed to meet the standards set out in the applicable building code.

c. On lots that are neither corner lots or double frontage lots:

1. The front dwelling shall abide by front-yard area regulations in subsection 36-256(d)(1), and side yard area regulations in subsection 36-256(d)(2). The separation between the front dwelling and the rear dwelling shall be not less than eight (8) feet unless appropriate fire protection standards are adequately depicted in construction documents and constructed to meet the standards set out in the appropriate building code.

2. The rear dwelling resident shall be provided adequate, improved access from the street right-of-way or parking area by a gravel or paved path.

3. The rear dwelling may be constructed as a dwelling unit over a garage serving either dwelling, or as a stand-alone dwelling.

4. The rear dwelling may not occupy more than thirty (30) percent of the rear-yard area required by subsection 36-156(d)(3). The rear dwelling shall maintain at least a ten-foot setback from the rear-yard property line.

(Code 1961, Ch. 43, § 7-101.4; Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,438, § 1, 2-16-88; Ord. No. 16,341, § 1(c), 1-19-93; Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 18,324, § 1(h), 8-1-00; Ord. No. 22,304, §§ 1(a)—(e), 8-15-23)

Sec. 36-257. MF-6 and MF-12 multifamily districts.

(a) *Purpose and intent.* The MF-6 and MF-12 multifamily districts are established to provide suitable areas for medium-density residential development. It is the intent of this section that these districts be located in those areas of the city where adequate public facilities and environment exist or can be provided. This section applies to such districts.

(b) *Use regulations.*

(1) *Permitted uses.* Permitted uses are as follows:

a. Housing, elderly, at six (6) units per acre in MF-6 and twelve (12) units per acre in MF-12.

b. Structures utilizing townhouse development types not exceeding six (6) units per gross acre in the MF-6 district and twelve (12) per gross acre in the MF-12 district.

c. Multifamily residential structures not to exceed six (6) units per gross acre in the MF-6 district and twelve (12) units per gross acres in the MF-12 district.

d. Two-family residences.

e. Orphanage.

(2) *Accessory and temporary uses.* Accessory and temporary uses allowed within the MF-6 and MF-12 districts shall be the same as those in the R-1, R-2, R-3 and R-4 districts except that certain nonresidential uses such as laundry rooms and recreation rooms will be interpreted as accessory uses if they serve only the residents of a multifamily complex.

(3) *Conditional uses.* Conditional uses are as follows:

a. Same as in the R-1, R-2, R-3 and R-4 residential districts.

b. Rooming, lodging and boarding facilities.

(4) *Special uses.* Special uses are as follows:

a. Same as in the R-1, R-2, R-3 and R-4 districts.

(c) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of thirty-five (35) feet.

(d) *Area regulations:*

(1) *Exterior yards.* All exterior yards or yards which abut dedicated public streets shall have a depth of not less than twenty-five (25) feet.

(2) *Interior yards.* All interior yards or yards which abut interior property lines or any lot of record shall have a depth equal to the height of any proposed building or structure.

(3) *Detached building separation.* All detached buildings shall be separated by a distance of not less than ten (10) feet.

(4) *Lot area per family.* In the MF multifamily district, every building for single-family attached or multifamily use hereafter erected or structurally altered shall provide a minimum lot area per family as follows:

a. MF-6 district, seven thousand (7,000) square feet.

b. MF-12 district, three thousand six hundred (3,600) square feet.

(5) *Site area.* The minimum site area of the MF-6 and MF-12 districts shall be one (1) acre.

(e) *Landscape requirements.* All landscaping and screening of vehicular use areas shall be in accordance with chapter 15, article IV.

(Code 1961, Ch. 43, § 7-101.5; Ord. No. 15,553, § 1y, bbb, 9-20-88; Ord. No. 16,341, § 1(d), 1-19-93)

Sec. 36-258. MF-18 and MF-24 multifamily districts.

(a) *Purpose and intent.* The MF-18 and MF-24 multifamily districts are established in order to provide suitable areas in the city for medium-density residential uses and structures at a density of not more than eighteen (18) and twenty-four (24) units per gross acre respectively. It is the intent of this section that these districts be utilized in both the developed and urbanizing portions of the city. Both districts shall be restricted to sites abutting collector or arterial streets and may be developed either adjacent to or in conjunction with neighborhood commercial or shopping center developments. Adequate commercial facilities, public utilities and urban services shall either exist prior to development or be provided in conjunction with development. These districts may also be used as a transitional or buffer zone between single-family districts and other uses which are not compatible with a low density residential environment. Within the MF-18 and MF-24 districts, all buildings, structures or uses having commercial characteristics and not planned as an integral part of the total residential development shall be excluded, whether operated for profit or otherwise. Accessory and conditional uses and home occupations expressly provided for in this chapter, however, shall be allowed, provided they do not have objectionable characteristics, and provided further that they otherwise conform to the specific provisions of this chapter.

(b) *Use regulations.*

(1) *Permitted uses.* Permitted uses are as follows:

a. Housing, elderly, at eighteen (18) units per acre in MF-18 and twenty-four (24) units per acre in MF-24.

b. Multifamily residential structures not to exceed eighteen (18) units per gross acre in the MF-18 district and twenty-four (24) units per gross acres in the MF-24 district.

c. Two-family residences.

d. Rooming, lodging and boarding facilities.

e. Orphanage.

(2) *Accessory and temporary uses.* Accessory and temporary uses allowed within the MF-18 and MF-24 districts shall be the same as those allowed in the MF-6 and MF-12 districts.

(3) *Conditional uses.* Conditional uses are as follows:

a. Same as in the R-1, R-2, R-3, R-4, MF-6 and MF-12 districts.

b. Nursing homes.

c. Group care facility.

(4) *Special uses.* Special uses are as follows:

a. Same as in the R-1, R-2, R-3 and R-4 districts.

(c) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of thirty-five (35) feet.

(d) *Area regulations.*

(1) *Exterior yards.* All exterior yards or yards which abut dedicated public streets shall have a depth of not less than twenty-five (25) feet.

(2) *Interior yards.* All interior yards or yards which abut interior property lines or any lot of record shall have a depth equal to the height of any proposed building or structure.

(3) *Detached building separation.* All detached buildings shall be separated by a distance of not less than ten (10) feet.

(4) *Lot area per family.* In the MF multifamily districts, every building hereafter erected or structurally altered shall provide a minimum lot area per family as follows:

a. MF-18 district, two thousand four hundred (2,400) square feet.

b. MF-24 district, one thousand eight hundred (1,800) square feet.

(5) *Site area.* The minimum site area of the MF-18 and MF-24 districts shall be one (1) acre.

(6) *Platted lots.* Where an MF-18 or MF-24 tract is proposed to be developed into individual platted building sites, and where each structure is to contain three (3) or more residential units, the following minimum area regulations shall prevail:

a. Front yard, twenty-five (25) feet.

b. Side yard, fifteen (15) feet.

c. Rear yard, twenty-five (25) feet.

d. Site area, nine thousand six hundred (9,600) square feet.

(e) *Landscape requirements.* All landscaping and screening of vehicular use areas shall be in accordance with chapter 15, article IV.
(Code 1961, Ch. 43, § 7-101.6; Ord. No. 15,553, § 1z, 9-20-88; Ord. No. 16,341, § 1(e), (n), 1-19-93; Ord. No. 16,861, § 1(kk), 3-21-95)

Sec. 36-259. R-5 urban residence district.

(a) *Purpose and intent.* The R-5 urban residence district is established in order to provide for high-density residential uses and the conversion of existing residential structures at a density of not more than thirty-six (36) units per gross acre. It is the intent of this chapter that the district be located in or near the central portion of the city and other carefully selected areas where public utilities, community facilities and other services are adequate to support high-density residential development. In such situations, this district may be used as a transitional or buffer zone between lower-density residential districts and nonresidential development. Within the R-5 district, all buildings, structures or uses having commercial characteristics shall be

excluded, whether operated for profit or otherwise. Accessory uses, conditional uses and home occupations expressly provided for in this chapter, however, shall be allowed, provided they do not have objectionable characteristics, and provided further that they otherwise conform to the specific provisions of this chapter.

(b) *Use regulations.*

(1) *Permitted uses.*

a. Housing, elderly, not to exceed R-5 density.

b. Multifamily residential structures not to exceed thirty-six (36) units per gross acre.

c. Orphanage.

d. Reserved.

e. One (1) single-family dwelling on any lot or parcel.

f. One (1) two-family dwelling on any lot or parcel.

(2) *Accessory, temporary, special, and conditional uses.* Accessory, temporary, special and conditional uses allowed within the R-5 urban residence district shall be the same as those in the R-1, R-2, R-3, R-4, MF-6, MF-12, MF-18 and MF-24 districts.

(c) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of thirty-five (35) feet.

(d) *Area regulations.*

(1) *Front yard.* There shall be a front yard setback having a depth of not less than twenty-five (25) feet to the front line of a building.

(2) *Side yard.* There shall be a side yard on each side of the building having a width of not less than five (5) feet.

(3) *Rear yard.* There shall be a rear yard setback having a depth of not less than twenty-five (25) feet to the rear line of a building. In the case of a corner lot, where twenty-five (25) feet would be required on both street frontages, the rear yard relationship which abuts a rear yard may be reduced to fifteen (15) feet.

(4) *Detached building separation.* All detached buildings shall be separated by a distance of not less than ten (10) feet.

(5) *Lot area per family.* Every building hereafter occupied, erected or structurally altered for multifamily occupancy shall provide lot area per family as follows:

a. Lots ranging from zero to ten thousand (10,000) square feet in area shall provide two thousand five hundred (2,500) square feet of land area per dwelling.

b. Lots ranging from ten thousand (10,000) square feet through one (1) acre shall provide two thousand (2,000) square feet of land area per dwelling unit.

c. Lots in excess of one (1) acre shall provide one thousand two hundred (1,200) feet of land area per dwelling unit.

d. For purposes of determination of fractional unit allowance, the number of units permitted shall be rounded to the nearest whole number.

(6) *Site area.* The minimum site area for the R-5 district shall be five thousand (5,000) square feet. In addition, there shall be a lot width of not less than fifty (50) feet and a lot depth of not less than one hundred (100) feet.

(e) *Landscape requirements.* All landscaping and screening of vehicular use areas shall be in accordance with chapter 15, article IV.

(Code 1961, Ch. 43, § 7-101.7; Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,553, § 1aa, 9-20-88; Ord. No. 16,341, § 1(f), (g), 1-19-93; Ord. No. 19,713, §§ 1(e), 1(f), 3-6-07; Ord. No. 20,568, § 3, 4-3-12)

Sec. 36-260. R-6 high-rise apartment district.

(a) *Purpose and intent.* The R-6 high-rise apartment district is established in order to provide for the development of high-density multiple-story residential structures. This section applies to such district. This district shall be limited to arterial street locations in or near the central portion of the city and other carefully selected areas where public utilities, community facilities and other public services are adequate to support high-density residential development. Ancillary office and commercial uses compatible with the intensity of development permitted in the R-6 district and intended to serve the residents of the high-rise are permitted.

(b) *Development criteria.* Unless otherwise specifically provided in this section, the following development criteria shall apply to this district:

(1) All properties within this district shall be contiguous and shall be totally developed under a unified site plan. Criteria for submittal of the accompanying site plan shall follow the guidelines set forth in this chapter.

(2) All detached buildings shall be separated by a distance of not less than twenty (20) feet.

(3) Design provisions for ingress and egress for any site along with service drives and interior circulation shall be that required by section 31-210 of the subdivision regulations.

(4) The required twenty-five-foot front yard setback, measured from the property line, shall be landscaped with trees, grass and shrubs, provided with sidewalks, pedestrian walks to the front of the building and maintained in a neat and attractive condition. No parking or wheeled vehicles shall be allowed within this front yard setback.

(c) *Use regulations.*

(1) *Permitted uses.* Permitted uses are as follows:

a. Housing, elderly, not to exceed R-5 density.

b. Multifamily residential structures not to exceed seventy-two (72) units per gross acre.

(2) *Accessory uses.*

a. Accessory uses which are allowed in conjunction with multifamily development include:

1. Cabanas.
2. Maintenance buildings.
3. Parking.
4. Recreational facilities.
5. Swimming pools.
6. Home occupations.

b. Ancillary office and commercial uses are permitted in multistory residential structures (five (5) stories or more only) located in the R-6 high-rise apartment district provided such uses are located entirely within said structure to which they are an accessory. Such uses shall be located either on the top floor of the structure or contiguous to the lobby or mezzanine of the principal building. For ground floor level use, the main entry will be from the lobby or entrance halls. Ancillary uses shall include:

1. Barber and beauty shop.
2. Cigar, tobacco and candy store.
3. Drugstore or pharmacy.
4. Eating place without drive-in service.
5. Florist shop.
6. Health studio.
7. Offices.
8. Photography studio.
9. Private club, bar, lounge or tavern.
10. Travel bureau.

(3) *Temporary uses.* Temporary uses allowed within the R-6 high-rise apartment district

shall be the same as those allowed in the R-1, R-2, R-3, R-4, R-5, MF-6, MF-12, MF-18 and MF-24 districts.

(d) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height at the required setback line of seventy-five (75) feet; provided, however, that above the height permitted at the yard lines, one (1) foot may be added to the height of the building of each foot of the building or portion thereof as setback from the required yard lines. In no instance shall the maximum height of the building exceed one hundred twenty-five (125) feet.

(e) *Area regulations.*

(1) *Front, side and rear yards.* The front, side and rear yard setback shall be not less than twenty-five (25) feet.

(2) *Lot area per family.* In the R-6 high-rise apartment district every building hereafter erected or structurally altered shall provide a minimum lot area per family of six hundred (600) square feet.

(3) *Site area.* The minimum site area shall be one (1) acre.

(Code 1961, Ch. 43, § 7-101.8; Ord. No. 15,553, § 1bb, 9-20-88; Ord. No. 15,615, § 1c, 1-3-89; Ord. No. 15,832, § 1a, 4-3-90; Ord. No. 16,577. § 1m, 1-18-94; Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-261. R-7 manufactured home park district.

(a) *Purpose and intent.* The R-7 manufactured home park district recognizes a specific housing type that must be accommodated in the city. This section applies to such district. This zoning district is created for the specific purpose of establishing reasonable sites and providing for the development of manufactured home parks or courts at appropriate locations. It is the intent of this chapter that this district be located so as to not adversely affect the established residential development patterns and densities of the city. Such location, however, shall have necessary public utilities, community facilities and other public services, as well as a healthful living environment with the normal amenities associated with other residential districts of the city.

(b) *Development criteria.* Unless otherwise specifically provided in this section, the following development criteria shall apply to this district:

(1) All properties within this district shall be contiguous and shall be totally developed under a unified site plan. Criteria for submittal of the accompanying site plan shall follow the guidelines set forth in this chapter.

(2) All landscaping, screening, open space and other common facilities shall be provided and maintained by the manufactured home park.

(3) Common recreation space shall be provided at the rate of three hundred (300) square feet per manufactured home or mobile home. Minimum size of any recreation space shall be five thousand (5,000) square feet. All required recreational areas shall be used solely for recreational purposes.

(4) A storage area shall be provided at a central location, at the rate of fifty (50) square feet per manufactured home or mobile home for the storage of boats, campers, and other items.

(5) All utility installations shall meet the requirements established by the appropriate codes of the city.

(6) No manufactured home or mobile home space occupying a double frontage lot shall take access on a dedicated public street.

(7) When a manufactured home park adjoins an area zoned or used as residential, a permanent visual barrier shall be provided along the common property line or right-of-way line. The developer or owner shall file a plan for the barrier as a component of the plan and plat submitted for planning commission review. This provision

shall not apply to that portion of manufactured home parks adjacent to or facing across street right-of-way.

(c) *Use regulations.*

(1) *Permitted uses.* Permitted uses are single-family manufactured homes with self-contained sanitary facilities capable of being connected to a public or community sanitary sewage collection system. In addition, mobile homes that were in existence in an R-7 zoned district on April 20, 2010, are a permitted use.

(2) *Permitted accessory uses.*

a. Accessory buildings, including private garages, storage facilities, children's playhouses and greenhouses.

b. Laundromat, vending machine center, recreation facilities and related accessory uses incidental to the primary manufactured home use, provided that such structures be exclusively for the use of the residents of the manufactured home subdivision.

(3) *Temporary uses.* Temporary uses allowable in the R-7 manufactured home park district shall be the same as those in the R-1 single-family district.

(4) *Conditional uses.*

a. Single-family residential buildings.

(d) *Height regulations.* No manufactured home or mobile home or building hereafter located, erected or structurally altered shall exceed a height of fifteen (15) feet.

(e) *Area regulations.*

(1) *Site area.* The minimum site area shall be five (5) acres.

(2) *Exterior setback.* The minimum setback from any property line shall be twenty-five (25) feet.

(3) *Interior setback.* The minimum setback from any interior drive shall be twenty (20) feet.

(4) *Average tract width.* The average width of a manufactured home park tract shall be not less than fifty (50) feet.

(5) *Separation.* The minimum separation between homes, whether manufactured homes or mobile homes, shall be twenty (20) feet.

(6) *Density.* The maximum allowable density in any manufactured home park shall be eight (8) homes per gross acre.

(7) *Awnings and carports.*

a. May occupy only forty (40) percent of the required minimum spacing between homes, whether manufactured homes or mobile homes.

b. Must be open from the ground to the roof structure; and

c. Must be constructed of noncombustible materials.

(8) *Siting criteria.* The siting of a manufactured home or mobile home shall comply with the following siting criteria:

a. Removal of all transport elements;

b. Permanent foundation;

c. Underpinning with permanent materials;

d. Tie-downs and anchors as recommended by the manufacturer of the manufactured home or mobile home.

(Code 1961, Ch. 43, § 7-101.9; Ord. No. 15,832, § 1a, 4-3-90; Ord. No. 16,116, § 1(m), 11-19-91; Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 19,910, § 1(g), 1-15-08; Ord. No. 20,255, § 5, 4-20-16; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-262. R-7A manufactured home district.

(a) *Purpose and intent.* The R-7A manufactured home district recognizes a need for manufactured home placement within the city. This section applies to such district. This district provides for ownership of structure and lot for those homes approved by the Department of Housing and Urban Development under title VI of Public Law

93-383, 42 U.S.C. § 5401 et seq. All manufactured homes must have the data plate attached to the unit specifying it is designed to comply with federal manufactured home construction and safety standards at the time of manufacture. This district expressly provides for placement of a single manufactured home on a lot or tract zoned for such usage.

(b) *Use regulations.*

(1) One (1) manufactured home or one (1) on-site constructed dwelling per lot or parcel is allowed.

(2) Accessory home occupation, special use, temporary and conditional uses allowed within the R-7A manufactured home district shall be the same as those in the R-1 district except that day care centers and accessory dwellings may be conditional uses.

(c) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of thirty-five (35) feet.

(d) *Bulk and area regulations.*

(1) *Site area/minimum lot size:*

a. The minimum site area for the development of a subdivision for R-7A manufactured home development shall be five (5) acres.

b. The minimum lot area for home placement shall be five thousand (5,000) square feet whether located on one (1) lot or within a subdivision designed for manufactured home lots. The minimum width in either instance shall be fifty (50) feet at the front setback line.

(2) *Siting criteria.* The siting of a manufactured home on a separate lot outside of a manufactured home subdivision shall include the following design considerations:

a. A pitched roof of three (3) in twelve (12) or fourteen (14) degrees or greater.

b. Removal of all transport features.

c. Permanent foundation.

d. Exterior wall finished in a manner compatible with the neighborhood.

e. Underpinning with permanent materials.

f. Orientation compatible with placement of adjacent structures.

g. Off-street parking per single-family dwelling standards.

(3) *Front yard setback.* There shall be a front yard setback having a depth of not less than twenty-five (25) feet.

(4) *Side yard setback.* There shall be a side yard setback on each side of the building having a width of not less than ten (10) percent of the average width of the lot not to exceed five (5) feet.

(5) *Rear yard.* There shall be a rear yard setback having a depth of not less than twenty-five (25) feet. In the case of a corner lot, however, when providing a twenty-five-foot exterior yard, the rear yard may be reduced to not less than eight (8) feet.

(6) *Other area regulations.* Developers are required to submit a site plan for review at the time of their rezoning request.

(7) *Accessory structures and additions.* Accessory structures or principal building additions of conventional construction on-site are permitted by right.

(Code 1961, Ch. 43, § 7-101.9.1; Ord. No. 15,438, § 1, 2-16-88; Ord. No. 20,255, §§ 6, 7, 4-20-10; Ord. No. 21,867, § 1, 5-19-20)

Secs. 36-263—36-275. Reserved.

DIVISION 3. OFFICE DISTRICTS

Sec. 36-276. General purpose.

The financial, professional and managerial dominance of the city in this state as a capital city and business center has made office use a distinct, separate and significant form of land use. In order to provide zoning classifications designed to protect existing office use, and to

ensure and encourage a high standard of new development, the office districts are included as separate zoning classifications.
(Code 1961, Ch. 43, § 7-102(a))

Sec. 36-277. Districts.

The "O" office district is hereby subdivided into three (3) subordinate districts which are known as:

(1) O-1 quiet office district.

(2) O-2 office and institutional district.

(3) O-3 general office district.
(Code 1961, Ch. 43, § 7-102(b))

Sec. 36-278. General restrictions.

Unless otherwise specifically provided, the following restrictions shall apply to the O-1, O-2 and O-3 districts:

(1) Any lighting shall be placed so as to reflect light away from adjacent residential districts. No excessive or unusual noise, odor or vibration shall be emitted so that it constitutes a nuisance which substantially exceeds the general level of noise, odor or vibration emitted by uses adjacent to or immediately surrounding the site. Such comparisons shall be made at the boundary of the site.

(2) All trash receptacles and pickup shall be oriented away from the street side of the property and adequately screened from residential property.

(3) Landscaping of all vehicular use areas shall be in compliance with chapter 15, article IV.

(4) Accessory permanent structures that meet all setback requirements are allowed for the purpose of storage.
(Code 1961, Ch. 43, § 7-102(c); Ord. No. 15,832, § 1a, 4-3-90; Ord. No. 16,116, § 1(tt), 11-19-91; Ord. No. 19,910, § 1(h), 1-15-08)

Sec. 36-279. O-1 quiet office district.

(a) *Purpose and intent.* The O-1 quiet office district is established in order to provide for orderly conversion of older structures no longer useful, serviceable or desirable in their present uses to office use. This section applies to such district. The area standards provided in the O-1 quiet office district anticipate that office uses will be located in established areas of the city and in close proximity to apartments and other residential uses. Height area and off-street parking regulations are designed to assure that office uses will be compatible with adjacent residential districts. New construction designed to reinforce existing desirable characteristics of the neighborhood and not detrimental to the continued use of surrounding properties for residential purposes shall also be accommodated in this district.

(b) *Use regulations.*

(1) *Permitted uses.* Permitted uses are as follows:

a. Bank or saving and loan office.

b. Church.

c. Clinic (medical, dental or optical).

d. Day nursery or day care center.

e. Day care center, adult.

f. Establishment of a religious, charitable or philanthropic organization.

g. Reserved.

h. Fire station.

i. Reserved.

j. Library, art gallery, museum or similar public use.

k. Office (general and professional).

l. Orphanage.

m. Private school, kindergarten or institution for special education.

n. Reserved.

o. School (public or denominational).

p. Studio (art, music, speech, drama, dance or other artistic endeavors).

q. Travel bureau.

r. Single-family residences.

s. Two-family residences.

t. Mobile canteen units when operated in compliance with current planning department regulations for such vehicles.

(2) *Conditional uses.* Conditional uses are as follows:

a. Animal clinic (enclosed).

b. Barber and beauty shops.

c. Cemetery or mausoleum.

d. College dormitory.

e. College, university or seminary.

f. Community, welfare or health center.

g. Convent or monastery.

h. Establishment for care of alcoholic, narcotic or psychiatric patients.

i. Lodge or fraternal organization.

j. Mortuary or funeral home (with retail sales).

k. Multifamily dwellings (per R-5 district).

l. Nursing home or convalescent home.

m. Photography studio.

n. School (business).

o. Studio (broadcasting or recording).

p. [Reserved].

q. Antique shop.

(c) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of thirty-five (35) feet.

(d) *Area regulations.*

(1) *Front yard.* There shall be a front yard having a depth of not less than twenty-five (25) feet to the front line of the building. Where the two (2) adjacent buildings are farther than twenty-five (25) feet from the property line, the established setback line will prevail on subject property.

(2) *Side yard.* There shall be a side yard on each side of the building having a width of not less than ten (10) percent of the average width of the lot, not to exceed eight (8) feet.

(3) *Rear yard.* There shall be a rear yard having a depth of not less than twenty-five (25) feet. In the case of a corner lot providing a twenty-five-foot exterior side yard, however, the rear yard may be reduced to not less than eight (8) feet.

(4) *Lot area regulations.* There shall be a lot area of not less than seven thousand (7,000) square feet. In addition, there shall be a lot width of not less than sixty (60) feet and a minimum lot depth of not less than one hundred (100) feet.

(5) *Lot coverage.* Maximum lot coverage for all principal and accessory buildings shall be thirty-five (35) percent of the total area of the lot.

(Code 1961, Ch. 43, § 7-102.1; Ord. No. 15,553, § 1c, d, j. 9-20-88; Ord. No. 16,116, § 1(kk), 11-19-91; Ord. No. 16,341, § 1(h), (o), 1-19-93; Ord. No. 16,861, § 1(ll), 3-21-95; Ord. No. 18,324, § 1(i), (pp), 8-1-00; Ord. No. 20,568, § 4, 4-3-12; Ord. No. 20,894, § 6, 6-17-14)

Sec. 36-280. O-2 office and institutional district.

(a) *Purpose and intent.* The O-2 office and institutional district is established for a twofold purpose: To provide appropriate locations for well-designed office facilities on large tracts, generally not available in the built-up areas of the city, and to provide for unified orderly development of major cultural, educational, medical, governmental and religious facilities. This section applies to such district. In order to support and enhance their benefit to the community, height and area, standards are designed to assure the harmonious integration of such development with surrounding neighborhoods. The O-2 district may be applied to either existing developed areas to facilitate expansion of existing office and institutional uses or to undeveloped locations where such uses are also appropriate. Low intensity of land usage and a park-like setting are primary characteristics of this district. Where office buildings higher than forty-five (45) feet

are anticipated, greater setbacks are required in order to provide light and air to adjacent properties. Limited retail and service uses are permitted as accessories to the principal use.

(b) *Development criteria.* Unless otherwise specifically provided in this section, the following development criteria shall apply to this district:

(1) All properties within this district shall be contiguous and shall be totally developed under a unified site plan. Criteria for submittal of the accompanying site plan shall follow the guidelines set forth in this chapter.

(2) Customary accessory uses shall be permitted only when they are clearly incidental to the primary use. No accessory use or uses may utilize in excess of ten (10) percent of the gross floor area of the principal structure or structures except that appropriate city official may authorize an additional ten (10) percent in conjunction with the review of the site plan.

(3) All buildings shown on the required site plan shall cover an aggregate area of not more than forty (40) percent of the area of such site.

(4) All detached buildings shall be separated by a distance of not less than twenty (20) feet.

(5) Design provision for ingress and egress, service drives, interior circulation, both on and off site shall be that required by section 31-210 of the subdivision regulations.

(c) *Use regulations:*

(1) *Permitted uses.* Permitted uses are as follows:

a. Bank or savings and loan office.
b. Church.
c. Clinic (medical, dental or optical).
d. College dormitory.
e. College fraternity or sorority.
f. College, university or seminary.
g. Reserved.
h. Convent or monastery.
i. Daycamp.
j. Day nursery or day care center.
k. Day care center, adult.
l. Duplication shop.
m. Reserved.
n. Establishment for a religious, charitable or philanthropic organization.
o. Fire station.
p. Governmental or private recreational uses, including but not limited to golf courses, tennis courts, swimming pools, playgrounds, day camps and passive recreational open space.
q. Hospital.
r. Laboratory.
s. Library, art gallery, museum or similar public use.
t. Lodge or fraternal organization.
u. Mobile canteen units when operated in compliance with current planning department regulations for such vehicles.
v. Mortuary or funeral home.
w. Nursing home or convalescent home.
x. Office (general or professional).
y. Photography studio.
z. Private school, kindergarten or institution for special education.
aa. School (business).
bb. School (public or denominational).
cc. Studio (art, music, speech, drama, dance or other artistic endeavors).
dd. Studio (broadcasting and recording).
ee. Travel bureau.

(2) *Accessory uses.* The following accessory uses are permitted only in conjunction with an allowable use or uses in the O-2

district and shall not exceed ten (10) percent of the total floor area on the site.

a. Barber and beauty shop.
b. Bar, lounge, or tavern.
c. Beverage shop.
d. Book and stationery store.
e. Camera shop.
f. Drugstore or pharmacy.
g. Eating place without drive-in service.
h. Florist shop.
i. Health studio or spa.
j. Medical marijuana cultivation facility.
k. Medical marijuana dispensary.
l. Optical shop.

(3) *Conditional uses.* Conditional uses are as follows:

a. Ambulance service post.
b. Barber and beauty shops.
c. Cemetery or mausoleum.
d. Community welfare or health center.
e. Eating place without drive-in service.
f. Establishment for care of alcoholic, narcotic or psychiatric patients.
g. Health studio or spa.
h. High-rise multifamily, at a density not greater than thirty (30) units per gross acre.
i. Hotel or motel.
j. Job printing, lithographer, printing or blueprinting.
k. Parking, commercial lot or garage.
l. School (commercial, trade or craft).
m. Taxi office.

(d) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of forty-five (45) feet at the required front, side or rear yard setback lines. Building heights proposed in excess of forty-five (45) feet may be authorized by the planning commission in conjunction with the site plan review. However, the following formula shall rule: At the height permitted at said yard setback lines, one (1) foot may be added to the height of the building for each foot that the building or portion thereof is set back from the required yard lines. In no instance shall the maximum height of the building exceed one hundred twenty (120) feet.

(e) *Area regulations.*

(1) *Front, side and rear yard.* The front, side and rear yard setbacks shall be not less than twenty-five (25) feet.

(2) *Site area.* The minimum site area shall be two (2) acres. In addition, there shall be not less than two hundred (200) feet of frontage on at least one (1) abutting boundary street.

(Code 1961, Ch. 43, § 7-102.2; Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,553, § 1k,q, r, gg, 9-20-88; Ord. No. 15,571, § 1d, 11-1-88; Ord. No. 15,832, § 1a, 4-3-90; Ord. No. 16,116, § 1(kk), 11-19-91; Ord. No. 16,577, § 1, 1-18-94; Ord. No. 18,324, § 1(j), (cc), (pp), 8-1-00; Ord. No. 20,568, §§ 5, 6, 4-3-12; Ord. No. 20,894, § 7, 6-17-14; Ord. No. 21,469, § (b), 8-15-17; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-281. O-3 general office district.

(a) *Purpose and intent.* The O-3 general office district is established to accommodate offices and associated administrative, executive and professional uses in new and existing structures together with specified institutional and accessory uses. This section applies to such district. The O-3 district is characterized by freestanding buildings and ancillary parking, and shall be limited to arterial street locations in developed areas of the city and other carefully selected areas where public utilities, community facilities and other public services are adequate to support general office development.

(b) *Use regulations.*

(1) *Permitted uses.* Permitted uses are as follows:

a. Bank or savings and loan office.
b. Church.
c. Clinic (medical, dental or optical).

d. College dormitory.
e. College fraternity or sorority.
f. Reserved.
g. Convent or monastery.
h. Day nursery or day care center.
i. Day care center, adult.
j. Duplication shop.
k. Reserved.
l. Establishment of a religious, charitable or philanthropic organization.
m. Reserved.
n. Fire station.
o. Governmental or private recreational uses, including but not limited to golf courses, tennis courts, swimming pools, playgrounds, day camps and passive recreational open space.
p. Reserved.
q. Laboratory.
r. Library, art gallery, museum or similar public use.
s. Lodge or fraternal organization.
t. Mobile canteen units when operated in compliance with current planning department regulations for such vehicles.
u. Mortuary or funeral home.
v. Nursing home or convalescent home.
w. Office (general or professional).
x. Photography studio.
y. Private school, kindergarten or institution for special education.
z. Reserved.
aa. School (business).
bb. School (public or denominational).
cc. Studio (broadcasting and recording).
dd. Studio (art, music, speech, drama, dance or other artistic endeavors).
ee. Travel bureau.

(2) *Accessory uses.* The following accessory uses are permitted only in conjunction with an allowable use or uses in the O-3 district and shall not exceed ten (10) percent of the total floor area on the site.

a. Antique shop.
b. Barber and beauty shop.
c. Book and stationery store.
d. Camera shop.
e. Cigar, tobacco or candy store.
f. Clothing store.
g. Custom sewing or millinery.
h. Drugstore or pharmacy.
i. Eating place without drive-in service.
j. Florist shop.
k. Health studio or spa.
l. Hobby shop.
m. Jewelry store.
n. Key shop.
o. Laundry pickup station.
p. Medical marijuana cultivation facility.
q. Medical marijuana dispensary.
r. Tailor shop.

(3) *Conditional uses.* Conditional uses are as follows:

a. Ambulance service post.
b. Animal clinic (enclosed).
c. Barber and beauty shops.
d. Brewery.
e. Cemetery or mausoleum.
f. Community welfare or health center.
g. Establishment for care of alcoholic, narcotic or psychiatric patients.
h. Health studio or spa.
i. Job printing, lithographer, printing or blueprinting.
j. Microbrewery or microbrewery restaurant.

k. Multifamily dwellings (as per R-5 district).

l. Office, showroom/warehouse.

m. Orphanage.

n. Parking, commercial lot or garage.

o. School (commercial, trade or craft).

p. Taxi office.

(c) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height at the required front, side or rear yard setback lines of forty-five (45) feet; provided, however, that above the height permitted at said yard lines, one (1) foot may be added to the height of the building for each foot that the building or portion thereof is set back from the required yard lines. In no instance shall the maximum height of the building exceed sixty (60) feet.

(d) *Area regulations.*

(1) *Front yard.* There shall be a front yard having a depth of not less than twenty-five (25) feet.

(2) *Side yard.* There shall be a side yard on each side of the building having a width of not less than ten (10) feet.

(3) *Rear yard.* There shall be a rear yard having a depth of not less than fifteen (15) feet.

(4) *Lot area regulations.* There shall be a lot area of not less than fourteen thousand (14,000) square feet. In addition, there shall be a lot width of not less than one hundred (100) feet.

(Code 1961, Ch. 43, § 7-102.3; Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,553, § 1l, hh, zz, 9-20-88; Ord. No. 16,116, § 1(kk), 11-19-91; Ord. No. 16,341, § 1(r), 1-19-93; Ord. No. 16,861, § 1(mm), 3-21-95; Ord. No. 18,324, § 1(k), (dd), (pp), (vv), 8-1-00; Ord. No. 20,568, §§ 7, 8, 4-3-12; Ord. No. 20,894, § 8, 6-17-14; Ord. No. 21,168, § 1(k), 2-2-16; Ord. No. 21,469, § (c), 8-15-17)

Secs. 36-282—36-295. Reserved.

DIVISION 4. COMMERCIAL DISTRICTS

Sec. 36-296. General purpose.

The commercial districts established by this chapter are designed to promote and protect the health, safety, morals and convenience, order, prosperity and other aspects of the general welfare. These goals include among others, the following more specific purposes:

(1) To provide sufficient space, at appropriate locations and in proximity to established residential areas, for local retail and service trades catering specifically to the recurring shopping needs of the occupants of nearby residences.

(2) To protect both retail and service developments and nearby residences against congestion, by regulating the intensity of retail and service developments consistent with their marketing functions, by restricting those types of establishments which generate heavy traffic, and by providing for off-street parking and loading facilities.

(3) To provide sufficient and appropriate space, and in particular, sufficient area, to meet the city's anticipated future need for modern, planned commercial developments in central shopping districts, regional, community and neighborhood shopping centers.

(4) To provide off-street parking space in conjunction with the development of commercial areas, and to encourage commercial establishments to concentrate in integrated planned developments to the mutual advantage of both consumers and merchants.

(5) To provide appropriate locations for transitional uses separating commercial developments and residential areas, and thereby alleviating the frictions inherent between dissimilar activities.

(6) To provide sufficient space at appropriate locations for all types of commercial and miscellaneous service activities.

(7) To promote the most desirable use of land and direction of building development types, to promote the stability of commercial development, to strengthen the economic base of the metropolitan area, to protect the character of the districts and their peculiar suitability for particular uses and to conserve the value of land and buildings.

(Code 1961, Ch. 43, § 7-103(a))

Sec. 36-297. Districts.

The C commercial district is subdivided into four (4) subordinate districts which are known as:

C-1 neighborhood commercial district.

C-2 shopping center district.

C-3 general commercial district.

C-4 open display commercial district.

(Code 1961, Ch. 43, § 7-103(b))

Sec. 36-298. General district restrictions.

Unless otherwise specifically provided in this section, the following restrictions shall apply to the districts listed in section 36-297:

(1) Any lighting shall be so placed so as to reflect away from adjacent residential districts. No excessive or unusual noise, odor or vibration shall be emitted so that it constitutes a nuisance which substantially exceeds the general level of noise, odor or vibration emitted by uses adjacent to or immediately surrounding the site. Such comparison shall be made at the boundary of the site. For purposes of location of menu board speakers for drive-through windows of restaurants the following criteria apply:

a. Each speaker shall be so mounted that it is baffled on all sides in a manner which will direct the sound produced to the vehicle served.

b. Each speaker location shall be designed to provide for a solid wall at least six (6) feet in height and twenty (20) feet in length along the opposite lane line. This wall shall be constructed of masonry or wood with a textured finish to diminish sound deflection.

(2) Dumpsters and trash containment areas shall not be located within the front yard setback area or street side or exterior side yard setback area. Dumpsters and trash containment areas shall be screened as required by section 36-523.

(3) Landscaping of all vehicular use areas shall be in compliance with chapter 15, article IV.

(4) Seasonal and temporary sales, outside, shall be permitted a maximum of four (4) occasions per year with a maximum of thirty (30) days per event. These events shall be permitted, prior to initiation, by the staff of the department of planning and development. These events may be permitted consecutively or as desired by the owner or occupant.

Outside display of merchandise is allowed in an area equal to one-half of the facade area of the front of the building.

(5) Residential uses which are clearly incidental to the primary use are allowed. This use shall not occupy a floor area in excess of the gross floor area devoted to a business use in the principal structure on the property. This use shall in all instances be located in the principal structure with the use served.

(6) Accessory permanent structures which meet all setback requirements are allowed for the storage of sale items. Retail sales may not take place in an accessory structure.

(7) Sidewalk sales and daily display that is stored inside the principal business building during closed business periods, shall be allowed. However, these activities shall not obstruct pedestrian movement, fire lanes or areas designated for access by the physically impaired.

(8) Eating places (inside, with drive-in service and without drive-in service) shall be

permitted to have an area of outdoor dining subject to compliance with the following provisions:

a. The area of outdoor dining shall not be located in the public right-of-way nor shall it obstruct pedestrian movement, fire lanes, access to any business or areas designated for access by the physically impaired.

b. The number of seats in the area of outdoor dining shall not exceed fifty (50) percent of the number of seats within the eating place.

c. On-site parking shall be provided for the area of outdoor dining based on the parking space per square foot requirement for restaurants established in section 36-502.

d. Compliance with applicable state and county health regulations.

e. The area of outdoor dining shall not be located between the building occupied by the eating place and adjacent residentially zoned or used properties.

f. This subsection shall not be deemed to permit signage or structural alterations such as canopies or walls regulated elsewhere in this chapter.

(9) All premises shall be kept clear of all rubbish, trash, brush, litter and abandoned vehicles.

(Code 1961, Ch. 43, § 7-103(c); Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,832, § 1a, 4-3-90; Ord. No. 16,116, § 1(tt), 11-19-91; Ord. No. 16,861, § 1(q), 3-21-95; Ord. No. 17,305, § 1(k), 11-7-96; Ord. No. 18,902, § 1(o), 7-15-03; Ord. No. 19,438, §§ 1(o), 1(p), 11-15-05; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-299. C-1 neighborhood commercial district.

(a) *Purpose and intent.* The C-1 neighborhood commercial district is designed to accommodate limited retail developments within or adjacent to neighborhood areas for the purpose of supplying daily household needs of the residents for food, drugs and personal services. This section applies to such district. Commercial uses within this district should not depend on market areas larger than the neighborhood served. The district may also be used in conjunction with existing commercial developments as an extension of such established commercial district. The C-1 neighborhood commercial district shall generally be located at arterial or collector street intersections and within walking district of residential areas. Such developments shall be designed to accommodate between one (1) to fifteen (15) stores on a site not more than five (5) acres in size. This district also permits a limited admixture of residential uses to facilitate integration with existing development and to encourage development of multiuse projects under controlled conditions.

(b) *Development criteria.* Unless otherwise specifically provided in this section, the following development criteria shall apply to this district:

(1) Outdoor display prohibited in any yard.

(2) There shall be a maximum gross leasable area of five thousand (5,000) square feet per establishment, except that one (1) establishment may have not more than ten thousand (10,000) square feet.

(3) Off-premises outdoor advertising is prohibited.

(c) *Use regulations.*

(1) *Permitted uses.* Permitted uses are as follows:

a. Antique shop, without repair.

b. Bakery or confectionery shop.

c. Bank or savings and loan office.

d. Barber and beauty shop.

e. Book and stationery store.

f. Camera shop.

g. [Reserved].

h. Church.

i. Cigar, tobacco and candy store.

j. Clinic (medical, dental or optical).

k. Clothing store.

l. Reserved.
m. Customer sewing and millinery.
n. Day nursery or day care center.
o. Day care center, adult.
p. Drugstore or pharmacy.
q. Duplication shop.
r. Eating place inside.
s. Establishment of a religious, charitable or philanthropic organization.
t. Fire station.
u. Florist shop.
v. Food store.
w. Furniture store.
x. Reserved.
y. Handicraft, ceramic, sculpture or similar art work.
z. Hardware or sporting goods store.
aa. Hobby shop.
bb. Jewelry store.
cc. Key shop.
dd. Laundromat or pickup station.
ee. Library, art gallery, museum or similar public use.
ff. Lodge or fraternal organization.
gg. Medical appliance fittings and sales.
hh. Medical marijuana cultivation facility.
ii. Medical marijuana dispensary.
jj. Mobile canteen units when operated in compliance with current planning department regulations for such vehicles.
kk. Multifamily dwellings (as per the R-5 district).
ll. Office (general and professional).
mm. Optical shop.
nn. Paint and wallpaper store.
oo. Pet shop.
pp. Photography studio.
qq. Private school, kindergarten or institution for special education.
rr. School (public or denominational).
ss. Secondhand store, used furniture or rummage shop.
tt. Shoe repair.
uu. Single-family residences.
vv. Studio (art, music, speech, drama, dance or other artistic endeavors).
ww. Studio (broadcasting or recording).
xx. Tailor.
yy. Tool and equipment rental (inside display only).
zz. Travel bureau.
aaa. Two-family residences.

(2) *Conditional uses.* Conditional uses are as follows:

a. Amusement, commercial (inside).
b. Animal clinic (enclosed).
c. Appliance repair.
d. Brewery.
e. Cabinet or woodwork shop.
f. Catering, commercial.
g. Cemetery or mausoleum.
h. College dormitory.
i. Community welfare or health center.
j. Convenience food store with gas pumps.
k. College fraternity or sorority.
l. Convent or monastery.
m. Establishment for the care of alcoholic, narcotic, or psychiatric patients.
n. Food store under five thousand (5,000) square feet gross floor area, with sales of beer or wine.
o. Furniture repair store.
p. Health studio or spa.
q. Microbrewery or microbrewery restaurant.

r. Nursing home or convalescent home.

s. Parking, commercial lot or garage.

t. Retail uses not listed (enclosed).

u. School (business).

v. Service station.

w. Theater (not drive-in).

x. Upholstery shop, furniture.

(d) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of thirty-five (35) feet.

(e) *Area regulations.*

(1) *Front yard.* There shall be a front yard having a depth of not less than twenty-five (25) feet to the front line of the building.

(2) *Side yard.* A side yard is not required, except where abutting residential districts; then there shall be a side yard on that side of the building having minimum width of ten (10) percent of the average width of the lot, not to exceed eight (8) feet.

(3) *Rear yard.* There shall be a rear yard having a depth of not less than twenty-five (25) feet. In the case of a corner lot, however, when providing a twenty-five-foot exterior side yard, the rear yard may be reduced to not less than eight (8) feet.

(4) *Lot area regulations.* There shall be a lot area of not less than seven thousand (7,000) square feet or more than ten (10) acres. In addition, there shall be a lot width of not less than sixty (60) feet and a lot depth of not less than one hundred (100) feet.

(5) *Lot coverage.* Maximum lot coverage for all principal and accessory buildings shall be thirty-five (35) percent of the total area of the site.

(Code 1961, Ch. 43, § 7-103.1; Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,553, § 1e, 9-20-88; Ord. No. 15,703, § 1m, 7-5-89; Ord. No. 16,116, § 1(kk), 11-19-91; Ord. No. 16,341, § 1(q), 1-19-93; Ord. No. 16,861, § 1(nn), 3-21-95; Ord. No. 17,305, § 1(r), (w), 11-7-96; Ord. No. 18,324, § 1(d), (f), (l), (ll), (pp), 8-1-00; Ord. No. 20,568, §§ 9, 10, 4-3-12; Ord. No. 20,894, § 2, 6-17-14; Ord. No. 21,168, § 1(l), 2-2-16; Ord. No. 21,469, § (d), 8-15-17; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-300. C-2 shopping center district.

(a) *Purpose and intent.* The C-2 shopping center district is established in order to provide for well-designed neighborhood community and regional scale shopping facilities in appropriate locations. Such developments are intended to serve the broad commercial needs of the community and shall be laid out and developed as a unit according to an approved plan. This section applies to such district. Inasmuch as the C-2 shopping center district will frequently be situated in close proximity to residential development, building setback, screening and other development criteria are included to achieve a compatible relationship between the retail development and adjacent residential areas. It is anticipated that the C-2 shopping center district will be utilized where retail areas are needed to serve developing residential communities.

(b) *Development criteria.* Unless otherwise specifically provided in this section, the following development criteria shall apply to this district:

(1) All properties within this district shall be contiguous and shall be totally developed under a unified site plan. Criteria for submittal of the accompanying site plan shall follow the guidelines set forth in this chapter.

(2) All commercial uses shall be restricted to closed buildings, except parking lots, seasonal and temporary sales per subsection 36-298(4), and the normal pump island services of service stations operations.

(3) All detached buildings shall be separated by a distance of not less than twenty (20) feet.

(4) Design provisions for ingress and egress for a site, service drives and interior

circulation shall be that required by section 31-210 of the subdivision regulations.

(5) Freestanding ancillary structures subordinate to but compatible with the shopping center shall not occupy more than forty (40) percent of the frontage of any abutting boundary street.

(6) Off-premises outdoor advertising is prohibited.

(c) *Use regulations.*

(1) *Permitted uses.* Permitted uses are as follows:

a. Ambulance service post.
b. Amusement, commercial (inside).
c. Animal clinic (enclosed).
d. Antique shop, with repair.
e. Appliance repair.
f. Auto glass or muffler shop.
g. Auto parts and accessories.
h. Bakery or confectionery shop.
i. Bank or savings and loan.
j. Barber and beauty shop.
k. Bar, lounge or tavern.
l. Beverage store.
m. Book and stationery store.
n. Butcher shop.
o. Camera shop.
p. Catering, commercial.
q. Church.
r. Cigar, tobacco and candy store.
s. Clinic (medical, dental or optical).
t. Clothing.
u. Reserved.
v. Custom sewing and millinery.
w. Day nursery or day care center.
x. Day care center, adult.
y. Drugstore or pharmacy.
z. Duplication shop.
aa. Eating place with drive-in service.
bb. Eating place without drive-in service.
cc. Establishment of a religious, charitable or philanthropic organization.
dd. Reserved.
ee. Fire station.
ff. Florist shop.
gg. Food store.
hh. Furniture repair store.
ii. Furniture store.
jj. Handicraft, ceramic, sculpture or similar art work.
kk. Hardware or sporting goods store.
ll. Health studio or spa.
mm. Hobby shop.
nn. Home center.
oo. Hotel or motel.
pp. Jewelry store.
qq. Job printing, lithographer, printing or blueprinting.
rr. Key shop.
ss. Laundromat or pickup station.
tt. Lawn and garden center, enclosed.
uu. Library, art gallery, museum or similar public use.
vv. Lodge or fraternal organization.
ww. Medical appliance fittings and sales.
xx. Medical marijuana cultivation facility.
yy. Medical marijuana dispensary.
zz. Microbrewery or microbrewery restaurant.
aaa. Mobile canteen units when operated in compliance with current planning and development department regulations for such vehicles.
bbb. Office (general and professional).
ccc. Office equipment sales and service.
ddd. Optical shop.

eee. Paint and wallpaper store.

fff. Parking, commercial lot or garage.

ggg. Pawnshop.

hhh. Pet shop.

iii. Photography studio.

jjj. Plumbing, electrical, air conditioning or heating shop.

kkk. Retail use not listed (enclosed).

lll. School (business).

mmm. Seasonal and temporary sales, outside.

nnn. Secondhand store (used furniture or rummage shop).

ooo. Service station.

ppp. Shoe repair.

qqq. Studio (art, music, speech, drama, dance or other artistic endeavors).

rrr. Studio broadcasting and recording.

sss. Swimming pool sales and supply.

ttt. Tailor.

uuu. Taxi office.

vvv. Theater (not drive-in type).

www. Tool and equipment rental (inside display only).

xxx. Travel bureau.

(2) *Conditional uses.* Conditional uses are as follows:

a. Amusement, commercial (outside).

b. Automobile or motorcycle display sales and service.

c. Brewery.

d. Cabinet or woodwork shop.

e. Car wash.

f. Community welfare or health center.

g. Event center.

h. Feed store.

i. Food store under five thousand (5,000) square feet gross floor area, with sales of beer or wine.

j. Glass or glazer. Installation, repair and sales.

k. High-rise multifamily residences.

l. Lawn and garden center, open display.

m. Multifamily dwellings (as per R-5 district).

n. Private club with dining or bar service.

o. Private school or kindergarten or institution for special education.

p. School, commercial trade or craft.

q. Service station with limited motor vehicle repair.

(d) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height at the required front, side or rear yard setback lines of forty-five (45) feet.

(e) *Area regulations:*

(1) *Yard setbacks.* The required front, side and rear yard setbacks shall be a distance of not less than forty (40) feet from the property line to the respective face of any building.

(2) *Site area.* The minimum site area for this district shall be five (5) acres, except in those instances where a subdivision site plan and plat proposing peripheral lots and multiple ownership is approved by the planning commission. The planning commission shall establish the size, orientation and access to multiple lot C-2 development with special emphasis on interior circulation, curb cuts and siting of physical improvements. In addition, there shall be not less than three hundred (300) feet of district frontage on at least one (1) abutting street, whether for single or multiple building/lot development.

(Code 1961, Ch. 43, § 7-103.2; Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,553, § 1ff, rr, 9-20-88; Ord. No. 15,571, § 1e, f, 11-1-88; Ord. No. 15,703, § 1a, b, n, 7-5-89; Ord. No. 15,832, § 1a, 4-3-90; Ord. No. 16,116, § 1(bb), (kk), 11-19-91; Ord. No. 16,577, § 1j, 1-18-94; Ord. No. 16,861, § 1(r), (u), (aa), 3-21-95; Ord. No. 17,305, § 1(s),

(zz), 11-7-96; Ord. No. 18,324, § 1(m), (ee), (pp), 8-1-00; Ord. No. 19,438, § 1(h), 11-15-05; Ord. No. 19,713, §§ 1(a), 1(b), 3-6-07; Ord. No. 20,396, § 1(g), 2-1-11; Ord. No. 20,407, §§ 1(a), 1(b), 1(g), 2-5-11; Ord. No. 20,568, §§ 11, 12, 4-3-12; Ord. No. 20,894, § 3, 6-17-14; Ord. No. 21,168, §§ 1(m), 1(n), 2-2-16; Ord. No. 21,469, § (e), 8-15-17; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-301. C-3 General commercial district.

(a) *Purpose and intent.* The C-3 general commercial district shall be applied to the broad range of retail uses which comprise the commercial function of the city including groupings of freestanding commercial structures. This section applies to such district. Permitted uses include most types of retail activity except those involving open displays of merchandise and those which generate large volumes of vehicular traffic or are otherwise incompatible with the purpose and intent of the C-3 general commercial district. Retail areas zoned C-3 general commercial shall be generally concentrated as to geographical configuration. It is anticipated, however, that in some situations, change to another commercial or office classification may be appropriate to permit the transition of strip retail areas to other productive forms of land use. It is the intent of these regulations that the C-3 district be concentrated at the intersection of arterial streets. Extension of this district along major arterial streets in linear fashion shall be discouraged. Outdoor display of merchandise is allowed under carefully controlled conditions.

(b) *Development criteria.* All commercial uses shall be restricted to closed buildings, except parking lots, seasonal and temporary sales per section 36-298.4, and the normal pump island services of service station operations. In addition, outdoor display of merchandise is allowed in an area equal to one-half of the facade area of the front of the building. Certain seasonal or special event sales may be allowed when the owner has requested a permit for such activity in conjunction with the privilege license application. The permitting authority shall review the owner's plan or placement of merchandise in order to assure that obstruction of drives, walks, required parking and fire lanes does not occur. In no case shall full-time static open display be permitted.

(c) *Use regulations.*

(1) *Permitted uses.* Permitted uses are as follows:

a. Amusement, (commercial, inside).
b. Animal clinic (enclosed).
c. Antique shop, with repair.
d. Appliance repair.
e. Auto parts and accessories.
f. Bakery or confectionery shop.
g. Bank or savings and loan office.
h. Bar, lounge or tavern.
i. Barber and beauty shop.
j. Beverage shop.
k. Book and stationery store.
l. Butcher shop.
m. Cabinet and woodwork shop.
n. Camera shop.
o. Catering, commercial.
p. Church.
q. Cigar, tobacco and candy store.
r. Clinic (medical, dental or optical).
s. Clothing store.
t. College dormitory.
u. College fraternity or sorority.
v. College, university or seminary.
w. Reserved.
x. Convenience food store with gas pumps.
y. Convent or monastery.
z. [Reserved].
aa. Custom sewing and millinery.
bb. Day nursery or day care center.
cc. Day care center, adult.
dd. Drugstore or pharmacy.
ee. Duplication shop.

ff. Eating place without drive-in service.

gg. Reserved.

hh. Establishment of a religious, charitable or philanthropic organization.

ii. Feed store.

jj. Fire station.

kk. Florist shop.

ll. Food store.

mm. Furniture store.

nn. Group care facility.

oo. Handicraft, ceramic sculpture or similar artwork.

pp. Hardware or sporting goods store.

qq. Health studio or spa.

rr. Hobby shop.

ss. Hospital.

tt. Hotel or motel.

uu. Jewelry store.

vv. Job printing, lithographer, printing or blueprinting.

ww. Key shop.

xx. Laboratory.

yy. Laundromat or pickup station.

zz. Laundry, domestic cleaning.

aaa. Lawn and garden center, enclosed.

bbb. Library, art gallery, museum or similar public use.

ccc. Lodge or fraternal organization.

ddd. Medical appliance fittings and sales.

eee. Medical marijuana cultivation facility.

fff. Medical marijuana dispensary.

ggg. Microbrewery or microbrewery restaurant.

hhh. Mobile canteen units when operated in compliance with current planning department regulations for such vehicles.

iii. Mortuary or funeral home.

jjj. Multifamily dwellings (as per the R-5 district 1).

kkk. Office (general and professional).

lll. Office, showroom with warehouse (with retail sales, enclosed).

mmm. Office equipment sales and service.

nnn. Optical shop.

ooo. Paint and wallpaper store.

ppp. Parking, commercial lot or garage.

qqq. Pawnshop.

rrr. Pet shop.

sss. Photography studio.

ttt. Private school, kindergarten or institution for special education.

uuu. Recycling facility, automated.

vvv. Retail uses not listed (enclosed).

www. School (business).

xxx. School (commercial, trade or craft).

yyy. School (public or denominational).

zzz. Seasonal and temporary sales, outside.

aaaa. Secondhand store (used furniture or rummage shop).

bbbb. Service station.

cccc. Shoe repair.

dddd. Studio (art, music, speech, drama, dance or other artistic endeavors).

eeee. Studio broadcasting and recording.

ffff. Tailor.

gggg. Taxidermist.

hhhh. Taxi office.

iiii. Theater (not drive-in type).

jjjj. Tool and equipment rental (inside display only).

kkkk. Travel bureau.

(2) *Conditional uses.* Conditional uses are as follows:

a. Ambulance service post.

b. Amusement, commercial (outside).

c. Auto glass or muffler shop.

d. Auto parts, sales with limited motor vehicle parts installation.

e. Auto rental or leasing (no service, sales or repair).

f. Auto repair garage.

g. Brewery.

h. Building material sales (open).

i. Car wash.

j. Community welfare or health center.

k. Crematorium.

l. Eating place with drive-in service.

m. Establishment for the care of alcoholic, narcotic or psychiatric patients.

n. Event center.

o. Food store under five thousand (5,000) square feet gross floor area, with sales of beer or wine.

p. Glass or glazer. Installation, repair and sales.

q. Home center.

r. Landscape service.

s. Lawn and garden center, open display.

t. Lumberyard.

u. Mini-warehouse.

v. Nursing home or convalescent home.

w. Office warehouse.

x. Plant nursery.

y. Private club with dining or bar service.

z. Service station with limited motor vehicle repair.

aa. Small engine repair.

bb. Swimming pool sales and supply.

cc. Tool and equipment rental (with outside display).

dd. Truck or trailer rental or leasing (no service, sales or repair).

ee. Upholstery shop, furniture.

ff. Upholstery shop, auto.

(d) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of thirty-five (35) feet.

(e) *Area regulations.*

(1) *Front yard.* There shall be a front yard having a depth of not less than twenty-five (25) feet to the front line of the building. Where the two (2) adjacent buildings are closer than twenty-five (25) feet to the property line, said established setback line will prevail on subject property.

(2) *Side yard.* No side yard shall be required except where abutting a residential district; then there shall be a side yard width of not less than fifteen (15) feet. On a corner lot, the side yard on the street side or exterior side shall be equal to the front yard setback.

(3) *Rear yard.* There shall be a rear yard having a depth of not less than twenty-five (25) feet. In the case of a corner lot, however, and when providing a twenty-five-foot exterior side yard the rear yard may be reduced to not less than fifteen (15) feet.

(4) *Lot area regulations.* There shall be a minimum lot area of fourteen thousand (14,000) square feet. In addition, there shall be a lot width of not less than one hundred (100) feet.

(Code 1961, Ch. 43, § 7-103.3; Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,553, § 1q, u, jj, aaa, 9-20-88; Ord. No. 15,571, § 1g, h, 11-1-88; Ord. No. 15,703, § 1c—e, n, 7-5-89; Ord. No. 16,116, § 1(cc), (kk), (ll), 11-19-91; Ord. No. 16,341, § 1(r), (v), 1-19-93; Ord. No. 16,437, § 3, 6-9-93; Ord. No. 16,441, § 2, 7-6-93; Ord. No. 16,861, § 1(k), (s), (v), (aa), (ee), (oo), 3-21-95; Ord. No. 17,305, § 1(t), (x), (aaa), 11-7-96; Ord. No. 18,324, § 1(n), (ff), (pp), 8-1-00; Ord. No. 18,682, § 1(b), 5-21-02; Ord. No. 19,438, § 1(i), 11-15-05; Ord. No. 20,396, § 1(h), 2-1-11; Ord. No. 20,407, §§ 1(c), 1(d), 1(h), 2-15-11; Ord. No. 20,568, §§ 13, 14, 4-3-12; Ord. No. 20,894, § 4, 6-17-14; Ord. No. 21,168, §§ 1(o), 1(p), 2-2-16; Ord. No. 21,469, § (f), 8-15-17)

Sec. 36-302. C-4 open display district.

(a) *Purpose and intent.* The C-4 open display district is established in order to provide adequate locations for retail uses which serve the needs of the motoring public and are characterized by a high level of vehicular ingress and egress. Among these uses are automobile and other vehicular service establishments, transient sleeping accommodations, and eating and drinking establishments. This section applies to such district. The C-4 district is also intended to provide a location for the limited amount of merchandise, equipment and material being offered for retail sale that, because of the type of material or transportation requirements, is suitable for display and storage outside the confines of an enclosed building. Such uses are not generally compatible with pedestrian-oriented commercial districts and shopping centers since they tend to obstruct and interfere with pedestrian movements. Appropriate locations for this district are along heavily traveled major traffic arterials.

(b) *Development criteria.* Unless otherwise specifically provided in this section, the following development criteria shall apply to this district:

(1) All yards unoccupied by buildings or merchandise or used as traffic ways shall be landscaped with grass and shrubs and maintained in an orderly condition.

(2) All of the lot used for the parking of vehicles, for the storage and display of merchandise and all driveways used for vehicle ingress and egress shall be paved with a sealed surface pavement and maintained in such a manner that no dust will be produced by continued use.

(3) All servicing of vehicles and assembly of equipment carried on as an incidental part of the sales operation shall be conducted within a completely enclosed building.

(4) No article or material stored or offered for sale in connection with the permitted or conditional uses listed herein shall be stored or displayed outside the confines of a building unless it is so screened by a permanent opaque screening fence or wall so that it cannot be seen from an adjoining lot. The following screening and display criteria shall apply to uses located in the C-4 open display district:

a. Automobile, truck, tractor, mobile home, boat or motorcycle sales areas are not required to screen fully assembled merchandise which is ready for sale.

b. No permanent open display will be permitted on sidewalks or public right-of-way.

c. Automobile service stations shall be permitted open display of merchandise commonly sold by such operations as long as the area of said display is not taller than the building nor larger than an area equal to one-half of the facade area of the front of the building.

d. Automobile service stations may be used for the storage of rental trucks or trailers, provided, however, the storage space shall be paved, shall not exceed four thousand (4,000) square feet in area and the above screening requirements are met.

(5) There shall be no open display of any kind whatsoever in the first twenty (20) feet of the required front yard setback.

(c) *Use regulations.*

(1) *Permitted uses.* Permitted uses are as follows:

a. Ambulance service headquarters post.

b. Amusement, commercial (outside).

c. Animal clinic (enclosed).

d. Auto glass, muffler shop.

e. Auto paint or body rebuilding shop.

f. Auto parts and accessories.

g. Automobile or motorcycle display, sales or service.

h. Auto or truck rental or leasing.

i. Auto repair garage.
j. Banks and savings and loan.
k. Building material sales (open).
l. Bottled gas, sales and service.
m. Car wash.
n. Catering, commercial.
o. Convenience food store with gas pumps.
p. Eating place (drive-in).
q. Eating place (without drive-in service).
r. Feed store.
s. Fire station.
t. Furniture store.
u. Glass or glazer. Installation, repair and sales.
v. Home center.
w. Hotel and motel.
x. Landscape service.
y. Laundromat or pickup station.
z. Lawn and garden center, enclosed.
aa. Lawn and garden center, open display.
bb. Lumber yard.
cc. Machinery sales and service.
dd. Microbrewery or microbrewery restaurant.
ee. Mini-warehouse.
ff. Mobile canteen units when operated in compliance with current planning department regulations for such vehicles.
gg. Mobile home sales and service.
hh. Multifamily dwellings (as per the R-5 district).
ii. Office (general and professional).
jj. Office warehouse.
kk. Parking, commercial lot or garage.
ll. Plant nursery.
mm. Plumbing, electrical, air conditioning and heating shops.
nn. Recycling facility, automated.
oo. Retail uses not listed (enclosed).
pp. Seasonal and temporary sales, outside.
qq. Secondhand store, used furniture or rummage shop.
rr. Service station.
ss. Service station with limited motor vehicle repair.
tt. Small engine repair.
uu. Studio (broadcasting or recording).
vv. Swimming pool sale and supply.
ww. Taxi office.
xx. Taxi service facility.
yy. Tool and equipment rental (with outside display).
zz. Truck or tractor sales or repair.
aaa. Truck or trailer rental or leasing (no service, sales or repair).
bbb. Upholstery shop, furniture.
ccc. Upholstery shop, auto.

(2) *Conditional uses.* Conditional uses are as follows:

a. Animal pound or kennel.
b. Auction—General merchandise.
c. Auto auction.
d. Brewery.
e. Bus station and terminal.
f. Contractor or maintenance yard.
g. Crematorium.
h. Hauling and storage company.
i. Medical marijuana cultivation facility.
j. Medical marijuana dispensary.
k. Other permitted and conditional uses in the C-3 district not otherwise permitted in the C-4 district.
l. Racetrack.

m. Retail uses not listed (with outside display).

n. Stable, commercial.

o. Theater (drive-in type).

p. Warehouse and wholesaling.

(d) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of thirty-five (35) feet.

(e) *Area regulations.*

(1) *Front yard.* There shall be a front yard having a depth of not less than forty-five (45) feet.

(2) *Side yard.* There shall be a side yard on each side of the building having a width of not less than fifteen (15) feet. On a corner lot, the side yard on the street side or exterior side shall be equal to the required front yard setback.

(3) *Rear yard.* There shall be a rear yard having a depth of not less than twenty-five (25) feet. In the case of a corner lot, however, and when providing an exterior side yard of forty-five (45) feet, the rear yard may be reduced to not less than fifteen (15) feet.

(4) *Lot area regulations.* There shall be a minimum lot area of fourteen thousand (14,000) square feet. In addition, there shall be a lot width of not less than one hundred (100) feet.

(Code 1961, Ch. 43, § 7-103.4; Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,553, § 1h, v, 9-20-88; Ord. No. 15,703, § 1f, g, o, 7-5-89; Ord. No. 15,832, § 1a, 4-3-90; Ord. No. 16,116, § 1(d), (f), (dd), (gg), (ll), 11-19-91; Ord. No. 16,437, § 3, 6-9-93; Ord. No. 16,441, § 2, 7-6-93; Ord. No. 16,861, § 1(l), (t), (aa), (ff), 3-21-95; Ord. No. 17,305, § 1(y), 11-7-96; Ord. No. 18,324, § 1(gg), (pp), (qq), (tt), 8-1-00; Ord. No. 18,682, § 1(c), 5-21-02; Ord. No. 18,902, § 1(k), 7-15-03; Ord. No. 20,894, § 5, 6-17-14; Ord. No. 21,168, §§ 1(q), 1(r), 2-2-16; Ord. No. 21,469, § (g), 8-15-17)

Secs. 36-303—36-315. Reserved.

DIVISION 5. INDUSTRIAL DISTRICTS

Sec. 36-316. General purpose.

The industrial zoning districts are intended to provide for the development of light to heavy industrial uses and their related facilities. Appropriate standards for the various districts are designed to assure compatibility with other similar uses. In the city, such factors as location, availability of transportation, utilities and other factors have combined to create a well-established industrial base. In order to maintain quality industrial development and to protect the health, safety and welfare of the general public the specific purposes of industrial districts are:

(1) To provide sufficient space, at appropriate locations, to meet the needs of the city's projected requirements for all types of distributive, industrial and related activities, with due allowance for the need for choice of suitable sites.

(2) To protect distributive, industrial and related activities, as well as residential and related activities by providing for the separation of these uses; to ensure that appropriate space needs for distributive and industrial activities are available for prohibiting the use of such space for residential purposes.

(3) To restrict those industrial activities which involve danger of fire, explosion, toxic or noxious matter, radiation, smoke, dust or other particulate matter, and other hazards, or to create offensive noise, vibration, heat, humidity, glare and other objectionable influences, to areas where this chapter restricts the emission of such nuisances, without regard to the industrial products or processes involved.

(4) To protect industrial activities and related developments against congestion, as appropriate for each area, by limiting the bulk of buildings in relation to the land around them and to one another, and by requiring off-street parking and loading facilities to be provided with such developments.

(5) To promote the most desirable use of land and direction of building development, to promote stability of industrial and related development, to strengthen the economic base of the city to protect the character of these districts and their peculiar suitability for particular uses, and to conserve the value of land and buildings.

(Code 1961, Ch. 43, § 7-104(a))

Sec. 36-317. Districts.

The I industrial district is hereby subdivided into three (3) subordinate districts which are known as:

(1) I-1 industrial park district.

(2) I-2 light industrial district.

(3) I-3 heavy industrial district.

(Code 1961, Ch. 43, § 7-104(b))

Sec. 36-318. District restrictions.

Unless otherwise specifically provided in this section, the following restrictions shall apply to the industrial districts:

(1) Any lighting visible from outside the site shall be designed to reflect away from adjacent residential districts. No noise, odor or vibration shall be emitted so that it constitutes a nuisance which substantially exceeds the general level of noise, odor or vibration emitted by uses adjacent to or immediately surrounding the site. Such comparisons shall be made at the boundaries of the site.

(2) Outdoor storage of trash receptacles shall be at the sides or rear of the site and shall be totally encircled or screened by a fence, planting or other suitable visual barrier.

(3) Landscaping of all vehicular use areas shall be in compliance with chapter 15, article IV.

(4) All premises shall be kept clear of all rubbish, trash, brush, litter and abandoned vehicles.

(Code 1961, Ch. 43, § 7-104(c); Ord. No. 15,832, § 1a, 4-3-90; Ord. No. 19,910, § 1(i), 1-15-08)

Sec. 36-319. I-1 industrial park district.

(a) *Purpose and intent.* The I-1 industrial park district is established to provide for modern, efficient, and well-designed industrial facilities within a "park-like" setting. As the city's most restrictive industrial district, the I-1 zone is designed to conform to high development standards while providing for a full array of industrial and related uses. This section applies to such district. The siting of buildings, parking, landscaping and the location of this district in relation to adjacent residential and commercial areas will be of particular importance in determining the appropriateness of allowing the I-1 district at a given location. Stringent enclosure, screening and locational requirements are applied to storage areas of materials and merchandise.

(b) *Development criteria.* Unless otherwise specifically provided in this section, the following development criteria shall apply to this district:

(1) All properties within this district shall be contiguous and shall be totally developed under a unified site plan. Criteria for submittal of the accompanying site plan shall follow the guidelines set forth in this chapter.

(2) Every use, or any part thereof, that is not conducted within a building completely enclosed on all sides shall be enclosed within a wall or fence six (6) feet in height. Such wall or fence shall completely screen all operations conducted within such wall or fence from observation. No exterior storage area shall encroach into any of the required yards.

(3) All buildings shown on the required site plan shall cover an aggregate area of not more than fifty (50) percent of such site.

(4) No loading or storage of materials or products shall be permitted in the required front yard.

(5) Notwithstanding the yard regulations for this district, no part of any building or accessory structure shall be located closer than one hundred (100) feet to any residential district boundary.

(6) Design provisions for ingress and egress, service drives, interior circulation shall be that required by section 31-210 of the subdivision regulations.

(7) Off-premises outdoor advertising is prohibited.

(c) *Use regulations.*

(1) *Permitted uses.*

a. Ambulance services headquarters post.

b. Appliance repair.

c. Banks and savings and loans.

d. Building material sales (open).

e. Clothing manufacturing.

f. Contractor or maintenance yard.

g. Day nursery or day care center.

h. Day care center, adult.

i. Eating place with drive-in service.

j. Eating place without drive-in service.

k. Feed store.

l. Financial institution (drive-in).

m. Hauling and storage company.

n. Home center.

o. Hotel or motel.

p. Job printing, lithographer, printing or blueprinting plant.

q. Laboratory.

r. Laboratory manufacturing.

s. Landscape service.

t. Laundry, industrial.

u. Lawn and garden center, enclosed.

v. Lawn and garden center, open display.

w. Light fabrication and assembly process.

x. Mini-warehouse.

y. Mobile canteen units when operated in compliance with current planning department regulations for such vehicles.

z. Motor freight terminal.

aa. Office (general and professional).

bb. Office equipment sales and service.

cc. Office warehouse.

dd. Parking, commercial lot or garage.

ee. Photography studio.

ff. Plant nursery.

gg. Plumbing, electrical, heating or air conditioning shop.

hh. School, business.

ii. Secondhand store, used furniture or rummage shop.

jj. Service station.

kk. Studio (broadcasting or recording).

ll. Warehouse and wholesaling.

(2) *Conditional uses.* Conditional uses are as follows:

a. Agricultural products processing.

b. Airport or landing field.

c. Bus station and terminal.

d. Cabinet or woodwork shop.

e. Furniture repair store.

f. Industrial uses not listed (enclosed).

g. Lumberyard.

h. Machine or welding shop.

i. Medical marijuana cultivation facility.

j. Medical marijuana dispensary.

k. Recycling facility (MRF)

l. Retail uses not listed.

m. School, commercial, trade or craft.

(3) *Accessory uses.* Accessory uses are as follows:

a. Sleeping quarters for drivers or crew.

b. Vehicle maintenance or repair.

(d) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of seventy-five (75) feet.

(e) *Area regulations.*

(1) *Front yard.* There shall be a front yard having a depth of not less than seventy (70) feet.

(2) *Side yard.* There shall be a side yard on each side lot line of any building having a width of not less than thirty (30) feet.

(3) *Rear yard.* There shall be a rear yard having a depth of not less than forty (40) feet from the lot line to the building. In the case of double frontage lots the rear yard setback shall be increased to fifty (50) feet.

(4) *Lot area regulations.* There shall be a minimum lot area of not less than one (1) acre.

In addition, there shall be a minimum tract width of one hundred fifty (150) feet and a tract depth of not less than two hundred (200) feet.

(Code 1961, Ch. 43, § 7.104.1; Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,703, § 1i, 7-5-89; Ord. No. 15,832, § 1a, 4-3-90; Ord. No. 16,116, § 1(hh), (mm), 11-19-91; Ord. No. 16,577, § 1k, 1-18-94; Ord. No. 16,861, § 1(m), 3-21-95; Ord. No. 17,305, § 1(f), 11-7-96; Ord. No. 18,324, § 1(o), 8-1-00; Ord. No. 19,438, §§ 1(j), 1(k), 11-15-05; Ord. No. 20,894, § 9, 6-17-14; Ord. No. 21,469, § (h), 8-15-17; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-320. I-2 light industrial district.

(a) *Purpose and intent.* The I-2 light industrial district is designed to accommodate a wide range of industrial and related uses which conform to high development standards, Industrial establishments of this type may either be located in extensive areas devoted solely to these uses or may provide a buffer between commercial districts and other industrial uses which involve more objectionable influences. This section applies to such district. A primary objective of this district is the reservation of sufficient land at appropriate locations to accommodate both present and proposed needs of the city for industrial development. Residential development is excluded from this district, both to protect residents from an undesirable environment and to facilitate maximum efficiency of industrial activity. Community facilities and convenience trade establishments which provide needed services to the industrial uses are allowed in this district.

(b) *Development criteria.*

(1) Uses shall be provided entirely within enclosed buildings. Outdoor storage of equipment, materials or merchandise, however, is allowed provided they are screened by a six-foot opaque barrier, except when such merchandise consists of airplanes, automobiles, boats, mobile homes, travel trailers or motorhomes, motorcycles, buses or trucks or wheeled or tracked industrial vehicles. In those instances where the provisions of this section conflict with the landscape ordinance or the buffer regulations of the zoning ordinance, the landscape ordinance shall apply.

(2) The side and rear yard setbacks will be adjusted to accommodate those tracts of land provided with rail service.

(c) *Use regulations.*

(1) *Permitted uses.* Permitted uses are as follows:

a. Ambulance service headquarters post.

b. Airport or landing field.

c. Animal pound or kennel.

d. Appliance repair.

e. Auction—General merchandise.

f. Auto auction.

g. Auto glass muffler shop.

h. Automobile, motorcycle display, sales and service.

i. Auto or truck rental and leasing.

j. Auto parts and accessories.
k. Auto paint or body rebuilding shop.
l. Auto repair garage.
m. Banks and savings and loans.
n. Bottled gas, bulk storage of nonflammable or nonhazardous.
o. Bottled gas, sales and service.
p. Brewery.
q. Building material sales (open).
r. Bus or truck storage or garage.
s. Cabinet or woodworking shop.
t. Car wash.
u. Clothing manufacturing.
v. Contractor or maintenance yard.
w. Day nursery or day care center.
x. Day care center, adult.
y. Drug store or pharmacy.
z. Eating place with drive-in service.
aa. Eating place without drive-in service.
bb. Feed store.
cc. Fire station.
dd. Furniture repair store.
ee. Hauling and storage company.
ff. Home center.
gg. Job printing, lithographer, printing or blueprinting plant.
hh. Laboratory.
ii. Laboratory manufacturing.
jj. Landscape service.
kk. Laundry, industrial.
ll. Lawn and garden center, enclosed.
mm. Lawn and garden center, open display.
nn. Light fabrication and assembly process.
oo. Lumberyard.
pp. Machine or welding shop.
qq. Machinery sales and service.
rr. Medical marijuana cultivation facility.
ss. Medical marijuana dispensary.
tt. Microbrewery or microbrewery restaurant.
uu. Mini-warehouse.
vv. Mobile canteen units when operated in compliance with current planning department regulations for such vehicles.
ww. Mobile home sales.
xx. Motor freight terminal.
yy. Office equipment sales and service.
zz. Office (general and professional).
aaa. Office warehouse.
bbb. Parking (commercial lot or garage).
ccc. Photography studio.
ddd. Plant nursery.
eee. Plumbing, electrical, heating or air conditioning shop.
fff. Railroad passenger station.
ggg. Recycling facility, automated.
hhh. Recycling facility (MFR)
iii. School, business.
jjj. School, commercial, trade or craft.
kkk. Secondhand store, used furniture or rummage shop.
lll. Service station
mmm. Small engine repair.
nnn. Studio (broadcasting or recording).
ooo. Swimming pool sales and supply.
ppp. Taxidermist.
qqq. Taxi office.
rrr. Taxi service facility.
sss. Tool and equipment rental (inside).
ttt. Tool and equipment rental (outside).
uuu. Truck or tractor sales or repair.
vvv. Warehousing and wholesaling.
www. Wood products manufacturing.

(2) *Conditional uses.* Conditional uses are as follows:

a. Agricultural products processing.
b. Bus station and terminal
c. Crematorium.
d. Hotel or motel.
e. Industrial uses not listed (enclosed).
f. Racetrack.
g. Recycling facility (MRF) outside.
h. Retail uses not listed.
i. Slaughterhouse, closed facility.
j. Theater (drive-in).
k. Upholstery shop, furniture.
l. Upholstery shop, auto.
m. Hazardous or medical waste disposal facility.
n. Tire retreading and recapping.

(3) *Accessory uses.* Accessory uses are as follows:

a. Sleeping quarters for drivers or crew.
b. Vehicle maintenance or repair.

(d) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of seventy-five (75) feet.

(e) *Area regulations.*

(1) *Front yard.* There shall be a front yard having a depth of not less than fifty (50) feet.

(2) *Side yard.* There shall be a side yard on each side of the building having a width of not less than fifteen (15) feet.

(3) *Rear yard.* There shall be a rear yard having a depth not less than twenty-five (25) feet.

(4) *Lot area regulations.* There shall be a lot area of not less than fourteen thousand (14,000) square feet. In addition, there shall be a lot width of not less than one hundred (100) feet.

(Code 1961, Ch. 43, § 7.104.2; Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,553, §§ 1i, w, oo, 9-20-88; Ord. No. 15,703, § 1h, 7-5-89; Ord. No. 16,116, §§ 1(e), (ii), (nn), 11-19-91; Ord. No. 16,157, § 1, 1-21-92; Ord. No. 16,437, § 3, 6-9-93; Ord. No. 16,441, § 2, 7-6-93; Ord. No. 16,861, §§ 1(e), (n), (aa), (gg), 3-21-95; Ord. No. 17,305, §§ 1(g), (h), (z), (ff), (bbb), 11-7-96; Ord. No. 18,324, §§ 1(p), (hh), (pp), (tt), (uu), 8-1-00; Ord. No. 19,438, §§ 1(l), 1(m), 11-15-05; Ord. No. 20,894, § 10, 6-17-14; Ord. No. 21,168, § 1(s), 2-2-16; Ord. No. 21,469, § (i), 8-15-17; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-321. I-3 industrial district.

(a) *Purpose and intent.* The I-3 heavy industrial district is designed to accommodate industrial uses which involve potentially objectionable uses and hazards, and which, therefor, cannot be reasonably expected to conform to a high level of performance standards, but which are essential to the economic viability of the city. This section applies to such district. It is the expressed purpose of this district on other uses by locating them in areas where the negative influences have least impact. The side and rear yard setbacks will be adjusted to accommodate those tracts of land provided with rail service.

(b) *Development criteria.* Unless otherwise specifically provided for in this section, the following development criteria shall apply to this district:

(1) Every use that is devoted to the collection storage, salvage, or scrapping of automobiles, trucks, buses, or other self-propelled vehicles shall provide on all sides of such operations an eight-foot opaque wall or fence. The fence or wall shall be constructed of wood or metal so as to preclude the passage of light or air.

(2) In addition to the screening requirements of (b)(1) of this section, all uses that stack or pile the chassis or bodies of vehicles shall be limited to a maximum stacking height of fifteen (15) feet at any point on the property. This measurement shall be from the uppermost point of the stack to ground elevation on any side.

(c) *Use regulations.*

(1) *Permitted uses.* The permitted uses in the I-3 heavy industrial district include (except for hotel or motel) those permitted uses found in the I-1 industrial park district or the I-2 light industrial district together with the following:

a. Agricultural products processing.

b. Bulk storage of highly flammable and/or hazardous materials. This use shall be permitted to be located by right on tracts of land larger than five (5) acres in area separated from residential zoned or used property by at least one thousand (1,000) feet, property line to property line, and providing a minimum of two hundred (200) feet of setback for storage facilities from all property lines.

c. Foundry and metalwork.

d. Grain elevator or feed mill.

e. Junk or salvage yard.

f. Railroad freight terminal.

g. Sand, gravel or earth sales and storage.

h. Recycling and reclamation.

i. Recycling facility (MRF) outside.

j. Sanitary landfill.

k. Sawmill.

l. Stable, commercial.

m. Tire retreading or recapping.

n. Mobile canteen units when operated in compliance with current planning department regulations for such vehicles.

(2) *Conditional uses.* Conditional uses are as follows:

a. Bulk storage of highly flammable and/or hazardous materials that does not conform to the standards set forth within subsection (c)(1) of this section.

b. Day nursery or day care center.

c. Day care center, adult.

d. Hotel or motel.

e. Racetrack.

f. Rendering plant.

g. Slaughterhouse, open facility.

h. Stone, sand or gravel extraction.

i. Tannery.

j. Water or sewage treatment plant.

k. Other industrial uses not expressly provided for in the I-1 or I-2 districts unless otherwise prohibited by other city ordinance.

l. Hazardous or medical waste disposal facility.

m. Other conditional uses listed in the I-2 district.

(3) *Accessory uses.* Accessory uses are as follows:

a. Sleeping quarters for drivers or crew.

b. Vehicle maintenance or repair.

(d) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of seventy-five (75) feet.

(e) *Area regulations.*

(1) *Front yard.* There shall be a front yard having a depth of not less than fifty (50) feet to the front line of the building.

(2) *Side yard.* There shall be a side yard on each side of the building having a width of not less than thirty (30) feet.

(3) *Rear yard.* There shall be a rear yard having a depth of not less than twenty-five (25) feet from the lot line to the building.

(4) *Lot area regulations.* there shall be a lot area of not less than one (1) acre. In addition, there shall be a lot width of not less than one hundred fifty (150) feet and a lot depth of not less than two hundred fifty (250) feet.

(Code 1961, Ch. 43, § 7.104.3; Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,553, § 1p, 9-20-88; Ord. No. 15,832, § 1a, 4-3-90; Ord. No. 15,835, § 1a, c,

4-3-90; Ord. No. 16,116, § 1(oo), 11-19-91; Ord. No. 16,157, § 2, 1-21-92; Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 17,305, § 1(i), (j), (ee), 11-7-96; Ord. No. 18,324, § 1(q), 8-1-00; Ord. No. 20,894, § 11, 6-17-14; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-322. PR park and recreation district.

(a) *Purpose and intent.* The PR, park and recreation district, is intended to provide areas where active and passive recreation activities and other uses as determined by the city may be conducted and for conservation of natural and cultural areas and resources, allowing flexibility adequate to permit reasonable development of the site to meet the recreation and conservation needs of the city. This district is intended to include those public and private park and recreation and conservation areas which are designated as parks, or for park uses, in the adopted Little Rock parks and recreation master plan.

(b) *Development criteria.* The following development criteria should apply to the PR park and recreation district:

(1) Development of all properties in the PR district should conform to the Little Rock Parks and Recreation Master Plan.

(2) No property shall be zoned PR until that property has been established on the Little Rock Parks and Recreation Master Plan by the board of directors. For purposes of the official land use plan of the city, the adopted Little Rock Parks and Recreation Master Plan shall control.

(3) Multiple uses and structures shall be permitted on individual park sites as specified by the Little Rock Parks and Recreation Master Plan.

(4) The city staff shall present any plans for the development of a property within the PR park and recreation district to the parks and recreation commission at a public meeting and shall demonstrate that the proposed development, or redevelopment, plans are consistent with the goals expressed in the Little Rock Parks and Recreation Master Plan. This presentation is for information purposes only, and no formal action is required unless a majority of the members of the parks and recreation commission vote to approve a motion that states:

a. That the city staff is in error; and

b. The proposed plan is totally inconsistent with goals and vision of the Little Rock Parks and Recreation Master Plan; and

c. That the city board of directors should review the presented plan to determine if it is consistent with the Little Rock Parks and Recreation Master Plan; and

d. If such an affirmative vote is taken, provides to the city board of directors a written list of the reasons that a majority of the members of the parks and recreation commission believe that the proposal is inconsistent with the Little Rock Parks and Recreation Master Plan.

(Ord. No. 18,419, § 1(a), 1-16-01; Ord. No. 18,630, §§ 1—5, 1-51-02; Ord. No. 19,910, § 1(j), 1-15-08; Ord. No. 21,867, § 1, 5-19-20)

Secs. 36-323—36-335. Reserved.

DIVISION 6. SPECIAL DISTRICTS

Sec. 36-336. General purpose.

The special districts established by this chapter are designed to promote and protect the health, safety, morals, convenience, order, prosperity and other aspects of the general welfare by creating specific regulations which deal with sensitive development areas within the city. The use of land or the construction of buildings at these locations is of particular importance to not only adjacent properties, but to the city as a whole. A proper approach is necessary to hold down the escalating public expense of public facilities in these areas of marginal development. It is incumbent on the city to identify sensitive areas of steep slopes, watercourses and natural vegetation and to protect such locations

from haphazard growth. Also, intensive uses and natural resources such as mining, agriculture and forestry should be located so as to minimize any deleterious impact to lands devoted to less intensive usages, and those less intensive land uses should not be allowed to encroach on established mining or agricultural activities.
(Code 1961, Ch. 43, § 7-105(a))

Sec. 36-337. Districts.

The special districts are hereby subdivided into six (6) special purpose districts which are known as:

(1) AF agriculture and forestry district.

(2) M mining district.

(3) OS open space district.

(4) FP floodplain district.

(5) R-4A low density residential distract.

(6) UU urban use district.

(Code 1961, Ch. 43, § 7-105(b); Ord. No. 18,228, § 5, 3-7-00)

Sec. 36-338. AF agriculture and forestry district.

(a) *Purpose and intent.* The AF agriculture and forestry district is intended to provide a smooth transition between purely rural areas and newly urbanized areas, allowing flexibility adequate to permit reasonable absorption of land use types typically found in the urban fringe. Many areas newly annexed to the city will be already partially developed with a variety of nonurban land uses, while others will exhibit relatively little development of any kind. It is the purpose of the AF district to provide a usable district for certain uses which may be annexed to the city and which may be held from development as urban land uses.

(b) *Development criteria.* Except as provided for in the bulk and area provisions of this section, the following development criteria shall apply:

(1) Owners of properties which remain in agricultural use are permitted on-premises sales of products on the land. Sales facilities for such on-premises sales shall be limited to two hundred (200) square feet of floor area per one (1) acre of land area, not to exceed two thousand (2,000) square feet total floor area.

(2) On-premises sales shall be limited to agricultural products produced on the owner's farm or garden.

(3) Trash dumping or junkyards are specifically prohibited, except as may be permitted under governmental authority and regulation.

(4) Off-premises outdoor advertising is prohibited.

(c) *Permitted uses.* The following uses are permitted in the AF agriculture and forestry district:

(1) Single-family residences, together with the usual accessory uses.

(2) Agriculture and forestry operations, to include the raising of livestock and poultry.

(3) Governmental or private recreational uses, including but not limited to golf courses, tennis courts, swimming pools, playgrounds, day camps and passive recreational open space.

(4) Plant nursery.

(d) *Conditional uses.*

(1) Agricultural products processing.

(2) Hunting and gun clubs.

(3) Reserved.

(4) Riding academy (equestrian) or commercial stable.

(5) Broadcast towers and related facilities.

(6) Kennels.

(e) *Height regulations.* No building hereinafter erected or structurally altered shall exceed a height of forty-five (45) feet.

(f) *Area regulations.*

(1) *Front yard.* Except for single-family residences, there shall be a front yard depth of fifty (50) feet from the front property line to the front line of the

building. Single-family residences shall have a front yard of twenty-five (25) feet.

(2) *Side yard.* Except for single-family residences, there shall be a side yard on both sides of the building of thirty (30) feet from each side property line to the side of the building. Single-family residences shall have side yards of eight (8) feet.

(3) *Rear yard.* Except for single-family residences, there shall be a rear yard depth of fifty (50) feet from the rear property line to the rear of any building. Single-family residences shall have a rear yard of twenty-five (25) feet.

(4) *Lot coverage.* The main building and all accessory structures in the AF district shall not occupy more than twenty-five (25) percent of the total area of the tract.

(5) *Lot area regulations.* There shall be a minimum lot area of seven thousand (7,000) square feet. In addition, there shall be a minimum lot width of not less than seventy (70) feet and a minimum lot depth of not less than one hundred (100) feet.

(Code 1961, Ch. 43, § 7-105.1; Ord. No. 15,553, § 1ii, kk, 9-20-88; Ord. No. 16,861, § 1(j), (aa), (bb), 3-21-95; Ord. No. 20,326, § 1(j), 9-21-10)

Sec. 36-339. M mining district.

(a) *Purpose and intent.* The M mining zoning district is intended to accomplish the following purposes:

(1) To allow the most efficient and effective utilization of extracted or quarried natural resources while minimizing detrimental impact on adjacent properties.

(2) To minimize the conflict between urban land uses, extractive land uses and rural land uses by protecting areas suitable and desirable for mining uses from the intrusion of incompatible uses.

(3) To protect nonmining uses within or near mining areas from the undesirable effects of mining operations.

In this section mining includes the extraction of various natural resources including bauxite, sand, gravel, limestone, granite and others. It is the intent of the M district to allow the mining and utilization of these resources, but not to permit the disfiguration or pollution of land beyond the point of reasonable recovery. The M district is designed to assure that these resources be properly managed so as not to create a hazard or nuisance which either immediately or in the future adversely affect the health, safety or general welfare of the community. This section applies to such district. For the purpose of this district, mining will not include or preclude any individual from filling, landscaping, terracing or grading any lot for development or redevelopment.

(b) *Development criteria.* Unless otherwise specifically provided in this chapter, the following development criteria shall apply to the M mining district.

(1) Dumping of trash, waste or other offensive materials of any kind is prohibited unless officially approved as a governmental or private landfill.

(2) Off-premises outdoor advertising is prohibited.

(3) Any mining, extraction or quarrying operation must comply with the permitting provisions of the Arkansas Open-Cut Land Reclamation Act of 1977 [A.C.A. § 15-57-301 et seq.] and subsequent revisions or amendments.

(4) The emission of vibration, noise, odor, smoke, dust or particulate matter outside the boundaries of the site which adversely affects the health, safety or general welfare of the community is prohibited.

(c) *Permitted uses.* The following uses shall be permitted in the M mining districts:

(1) Any mining, extraction or quarrying operation (except for coal) which complies with the bulk and area provisions of this section along with the necessary accessory structures required for said operation.

(2) Agriculture, farming, gardening, orchards and other customary agricultural pursuits.

(3) Forestry land operations.

(d) *Height regulations.* There shall be no height restriction in the M mining district.

(e) *Area regulations.* The requirements set forth herein relate to the distances between property lines and buildings or structures and not use areas:

(1) *Front yard.* There shall be a front yard measured from the front property line to the building or structure, having a depth of not less than fifty (50) feet. This front yard requirement shall apply to any portion of the tract of land zoned for M mining which abuts any public street.

(2) *Side yard.* There shall be a side yard, measured from the side property line to the building or structure, having a width of not less than thirty-five (35) feet from any building or structure to the side property line.

(3) *Rear yard.* There shall be a rear yard having a depth of not less than thirty-five (35) feet.

(4) *Lot area regulations.* There shall be a lot area of not less than ten (10) acres. In addition, no dimension (depth or width) shall be less than two hundred fifty (250) feet.

(Code 1961, Ch. 43, § 7-105.2)

Sec. 36-340. OS open space district.

(a) *Purpose and intent.* The OS open space district is intended to accomplish the following purposes:

(1) To encompass lands where natural topography creates practical difficulty for urban development. In such locations, slope, drainage and erosion hinder the adequate placement of utility systems. The provision of safe traffic circulation systems, adhering to the minimum street construction standards of the city, is rendered problematical. It is the intent of this district to protect the public health, safety and welfare and to preserve and enhance the natural conditions of such areas and to reduce the disproportionate costs of public facilities by providing for land uses and development densities involving a minimum disturbance of the land.

(2) To be utilized as a buffer zone between uses which, due to their nature, height, siting or other circumstance, are not compatible with each other. In this case, no building or structure (principal or accessory) may be erected, no trees may be removed and no paving for wheeled vehicles will be allowed.

(3) To apply to public and private recreation areas including parks, golf courses and country clubs where such uses comprise a significant component of the city's open space network.

This section applies to such district.

(b) *Development criteria.* Unless otherwise specifically provided in this chapter, the following development criteria shall apply to the OS open space district:

(1) Dumping of trash, waste or offensive materials or the creation of a junkyard of any kind shall be expressly prohibited.

(2) The location of off-premises outdoor advertising shall be prohibited.

(3) Where the OS district is used as a buffer zone, all such areas shall remain in their natural state unless otherwise authorized by the city.

(4) In no case shall a buffer of OS zoning be less than fifty (50) feet wide.

(5) Where open space zoning is required in conjunction with multifamily zoning, the owner or applicant may compute the area of open space zoning in determining the allowable density for the tract.

(6) Enhancement of the buffer area, such as additional screening or planting, may be required when granting a zoning or conditional use application.

(c) *Permitted uses.* The following uses are permitted in the OS open space district:

(1) One (1) single-family dwelling on each lot or building site having an area of not less than five (5) acres.

(2) Agriculture uses such as farming, gardening, orchards, livestock, pasture, poultry and other customary agricultural uses.

(3) Day camps when located on lots or tracts having an area of not less than five (5) acres.

(4) Forestry land operations.

(5) Municipal, governmental, private or philanthropic recreational use, including parks, playgrounds, tennis courts, golf courses and skating rinks.

(6) Country club, golf course, swimming pool or other private recreational uses usually associated with or incidental to a social country club operated for mutual recreation for the members and not as a business for profit.

(7) Wildlife refuge.

(8) Broadcast towers and related communication facilities.

(d) *Accessory uses.* Accessory uses and structures are allowed when they are normally appurtenant to the permitted uses and structures such as:

(1) Detached parking facilities for occupants.

(2) Children's playhouses.

(3) Barns, silos, tank houses.

(4) Recreation, refreshment and service buildings in parks, playgrounds and golf courses.

(e) *Conditional uses.*

(1) Country club (private membership).

(f) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of forty-five (45) feet. Broadcast towers shall comply with section 36-201.

(g) *Area regulations.*

(1) *Front yard.* There shall be a front yard having a depth of not less than fifty (50) feet to the front line of the building.

(2) *Side yard.* There shall be a side yard having a width of not less than thirty (30) feet from the building or structure to the side (interior or exterior) property line.

(3) *Rear yard.* There shall be a rear yard having a depth of not less than fifty (50) feet to the rear line of the building.

(h) *Lot coverage.* The main building and all accessory buildings in the OS district shall not occupy more than ten (10) percent of the total area of the tract.
(Code 1961, Ch. 43, § 7-105.3; Ord. No. 15,247, § 1, 2-17-87)

Sec. 36-341. FP floodplain district.

(a) *Purpose and intent.* The FP floodplain district is designed to provide regulations in undeveloped areas on properties situated within the floodplain of rivers, creeks, streams and water-courses. The purposes of this zone include the following:

(1) To protect the lives and property of persons living in such vicinity.

(2) To protect public health, safety and welfare.

(3) To reduce the burden on the city and its inhabitants and property owners by eliminating or reducing the need for the construction of flood control channels, dams, levies and other flood control improvements that would be required if scattered and unplanned development is permitted to occur.

This section applies to such district. It is intended that this zoning classification be applied in a uniform manner to those properties within the city which are subject to inundation under the one-hundred-year frequency flood conditions. It is also intended that the FP floodplain zone will

be removed from any property that is no longer subject to inundation as the result of construction of flood-control structures or facilities.

(b) *Creation of district; official maps established.* The floodplain areas within the jurisdiction of the city are hereby defined as those identified by the Federal Emergency Management Agency in a scientific and engineering report entitled "The Flood Insurance Study for the City of Little Rock," dated November 3, 1993 with accompanying flood insurance rate maps and flood boundary-floodway maps (FIRM and FBFM) and any revision thereto are hereby adopted by reference and declared to be a part of this article.

(c) *Interpretation of district boundaries.* The boundaries of the floodplain districts shall be determined from the aforementioned flood hazard boundary maps. Where interpretation is needed as to the exact location of the boundaries of the district shown on the flood hazard boundary map, the appropriate city official shall make the necessary interpretation and direct that corrections of district boundaries be made on the flood hazard boundary map as appropriate. In such instances, the regulatory flood protection elevation shall be the governing factor in locating a district boundary on any property. Appeals from the administrative judgement of the appropriate city official shall be filed with the board of adjustment. The content of the filing shall consist of:

(1) A cover letter addressed to the chairman and members of the board of adjustment setting forth the request; and

(2) A copy of all pertinent graphic materials and correspondence.

This filing shall occur within thirty (30) calendar days of the action by the appropriate city official. The board shall accept the engineering data of a registered professional engineer unless conflicting engineering data is proved to be correct.

(d) *Overlay zone.* The FP floodplain district will be used as an overlay zone and this zoning classification is superimposed on any existing zoning classification. The bulk and area requirements of the base zoning classification shall be applied to buildings within an overlay of FP floodplain zoning.

(e) *Permitted uses.*

(1) Within the floodplain (one-hundred year flood elevation) there exists an area of the channel or stream bed called the floodway and so designated on the community's flood boundary-floodway maps (FBFM). No building or structure shall be allowed within the floodway.

(2) In order to build or operate any structure or use, it must be allowable use among those specified as allowable uses in the base or principal zoning classification; provided further no such use shall adversely affect the capacity of the channels or floodways of any designated creek, stream, tributary to the mainstream, drainage ditch, or other drainage facility or system; and provided still further, no such use or combination of uses shall raise the level of the one-hundred-year flood a distance of one (1) foot.

(f) *Prohibited uses.* In the FP floodplain district, the storage or processing, aboveground, and the storage, belowground, of materials or fuel which is flammable or explosive or which could otherwise be injurious to human, animal or plant life in time of flood shall be unlawful.

(g) *Conditional uses.* A day camp is allowed conditionally subject to the review procedures contained within this chapter.

(h) *Restrictions on structures.*

(1) *Existing structures.* Any structure existing and lying within a floodplain district and completed at the time of the adoption of this chapter or for which a building permit has been issued shall be deemed a legal nonconforming structure. All such structures may be repaired, improved or strengthened, provided no construction will be permitted which will:

a. Enlarge the foundation area of the structure within the floodplain;

b. Increase the bulk of the building or structure below the one-hundred-year flood level; or

c. Enlarge the surface area perpendicular to the direction of flow of the watercourse to which the floodway relates.

In the event of damage to an existing structure in a floodplain district, by flood or other means, requiring the substantial improvement of said structure, the structure may be repaired, provided the surface area of the floodplain district formerly occupied by the structure shall not be increased; provided further, repairs to the structure shall incorporate appropriate floodproofing measures; and provided still further, the repair shall not increase the bulk of the structure below the one-hundred-year flood level.

(2) *Proposed structures.* Any structure proposed within a floodplain district shall comply with the following criteria:

a. No structure shall be closer than twenty-five (25) feet to any established floodway line.

b. Uses having a low flood-danger potential shall be permitted within the twenty-five-foot setback to the extent that they are not prohibited by ordinance and provided they do not require structural involvement. Examples of such uses include loading areas, parking areas, open storage of materials or equipment, and public and private recreational uses.

c. Where it can be demonstrated that acceptable alternative means of access to the floodway can be provided and that the existing or proposed structure will not be subject to erosion or structural damage, or for other good and sufficient reasons, the board of adjustment may modify or eliminate the required setback.

d. Floodways shall be kept free of structural involvement including fences, open storage of materials and equipment, vehicle parking and other impediments to the free flow of floodwater. Exceptions may be granted when existing topography is at or above the existing one-hundred-year flood level and when the velocity of flow is less than three (3) feet per second.

e. Cantilever construction over the floodway may be allowed when the lowest structural elevation of the cantilever section is greater than five (5) feet above the five-hundred-year flood level. Pilings and columns are expressly prohibited.

(Code 1961, Ch. 43, § 7-105.4; Ord. No. 15,303, § 1, 6-2-87; Ord. No. 16,116, § 1(u), 11-19-91; Ord. No. 16,507, § 2(a), (b), 10-5-93; Ord. No. 16,861, § 1, (qq), 3-21-95; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-342. DOD design overlay district.

(a) *Purpose and intent.* One (1) purpose of the design overlay district is to provide enhanced design standards to protect and enhance the unique natural scenic beauty or features of a particular corridor or area while providing for development opportunities. Design overlay districts may also be used to protect or facilitate a particular design theme established through a certain architectural style or period.

For example, the purpose of the overlay district may include:

(1) To promote the safe and efficient use of the arterial roadway by controlling access and other traffic measures;

(2) To encourage the redevelopment of an area consistent with a particular design theme;

(3) To minimize the detrimental impact of development on hillsides, watercourses, and other significant natural features;

(4) To give special attention to landscaping, buffering, signage, lighting and building setbacks in those districts identified as scenic parkway corridors;

(5) To given special attention to the existing architectural style or to the style which is planned so as to create an easily identifiable corridor in those districts identified as architecturally significant.

(b) *Districts established.* The city board of directors may adopt design overlay districts as the needs are identified in order to implement specific purpose, intent, and design standards based upon the adopted land use plan for the area being regulated, which shall be applied as additional standards to other ordinance regulations required by the city.

(c) *Development criteria.* The development criteria for a DOD will be those standards as set out in each design overlay district.
(Ord. No. 15,764, § 2, 10-17-89; Ord. No. 20,326, § 1(p), 9-21-10)

Sec. 36-342.1. UU urban use district.

(a) *General purpose and intent.* The urban use district established by this chapter is designed to assure the continuation of development consistent with a traditional urban form. The urban use district is designed to help create a compact, dense, distinguishable core area. The district is established in order to provide for an urban form allowing mid-rise and high-rise structures. This district is to provide for the urban residential, office, civic and business core of the city. Structures within the urban use district are encouraged to provide multiple uses within the same structure. The ground or street level of structures should include street-oriented activity and pedestrian amenities. The resulting area is to be pedestrian 'urban' oriented.

(b) *Application of regulations.* The regulations of this district shall apply to new development, redevelopment exceeding fifty (50) percent of the structure's current replacement value, and expansion of existing development or exterior modifications. Routine repairs and maintenance shall not require compliance with this section.

(c) *Pre-development review.* Development subject to these regulations shall be required to submit for and attend a pre-development review meeting with the Planning & Development Department to ensure conformance with applicable development standards of the Urban Use District, to assure construction activity avoids disruption to the use of neighboring properties, to encourage the preservation and rehabilitation of historically and culturally significant sites, and to facilitate applications that are harmonious with the intent of the Downtown Master Plan, and other relevant, adopted municipal plans.

Except for construction of improvements in the public right-of-way required by the city, and redevelopment or expansion of existing development, all uses, structures or lots which existed on the effective date of this section which do not conform to the standards and guidelines in this section, shall be treated as nonconforming according to the provisions of article III of this chapter.

(d) *Definitions.*

(1) Stepback means a steplike recession in the profile of a high-rise building implemented to mitigate the canyon effect, reduce shadow impact on the public realm, and support a human-scale environment.

(e) *Development criteria.*

(1) *Lighting.* Any lighting shall be placed so as to reflect away from adjacent residential structures. Fixtures adjacent to roadways shall be of a design that minimizes glare to the motoring public. No excessive or unusual noise, odor or vibration shall be emitted so that it constitutes a nuisance, which substantially exceeds that general level of noise, odor or vibration emitted by uses adjacent to or immediately surrounding the site. Such comparisons shall be made at the boundary of the site.

(2) *Screening.* All ground-mounted mechanical systems and trash receptacles and pickup shall be oriented away from a primary street side of the property and screened from the public right-of-way. Ground-mounted mechanical systems and trash receptacles shall be placed adjacent to alleys if alleys are available.

(3) Drive-in or drive-through facilities. Drive-thru facilities shall only be allowed on properties directly abutting Broadway Street, south of W. Capitol Avenue.

a. The drive-thru shall be located so that it runs along no more than two sides of the lot, shall not encircle the building, and shall not abut the front facade of the building (or either of the two front facades in the case of a comer lot).

b. Pedestrian access should be prioritized, and a pedestrian circulation plan shall be submitted demonstrating safe, uninterrupted, and direct pedestrian access to all public entrances.

c. *Nonconforming facilities.* Drive-thru facilities associated with sites legally existing prior to the effective date of this section may continue as nonconforming uses. Modifications to such facilities may be approved through the applicable development review process, provided that the proposed changes comply with the requirements outlined in this section.

1. If full compliance with these provisions is not feasible due to a substantial hardship—defined as a condition or irregularity unique to the property—a variance may be requested. Approval of a variance shall require the proposed development to demonstrate a net reduction in adverse impacts on the pedestrian environment. Mitigation measures may include, but are not limited to: removal of redundant curb cuts, addition of landscaping, and installation of pedestrian-oriented amenities.

(4) *Building materials.* Facade materials may be any standard material, except corrugated or ribbed materials.

(5) *Landscaping.*

a. All vehicular use areas shall be in compliance with chapter 15, article IV.

b. Street trees a minimum of three-inch caliper shall be required (type of trees as listed in landscape ordinance [chapter 15]). The trees shall be located a minimum of two (2) feet off the back of a curb and shall be thirty (30) feet on center and no closer than thirty (30) feet to a street intersection with a water source provided. The tree canopy shall be maintained at least eight (8) feet above the sidewalk.

c. Unless otherwise approved, the planter well shall have placed at its base a six (6) inch thick section of approximately one (1) inch gravel with filter fabric laid on top to assist with drainage.

(6) *Sidewalks.*

a. Sidewalks shall consist of a minimum five-foot concrete walk, excluding the first two (2) feet from the curb. Sidewalks shall provide a minimum seven-foot horizontal clearance at a height of four (4) feet from the ground.

b. Sidewalk sales and daily display or vending that is stored inside the principal business building during closed business hours, may be allowed. However, these activities shall not obstruct pedestrian movement, fire lanes, or areas designated for access by the physically impaired.

(7) *Building orientation.* Buildings must be oriented to the street. The primary entrance of the building shall be at street level on the street at the sidewalk. Entrances shall be designed so that the door will not swing beyond the property line.

(8) *Street-level floor.* The ground-level (street fronting) floor of nonresidential structures

shall have a minimum surface area of sixty (60) percent transparent or window display.

(9) *Projections (all requirements for a franchise remain in place).*

a. Objects shall not project from the building facade over the public right-of-way except for awnings, balconies and signs as specified in section 36-553.

b. Awnings shall not project more than eight (8) feet from the building facade and have a minimum clearance of eight (8) feet above the sidewalk.

c. Balconies over tne puonc right-of-way shall have a minimum clearance of nine (9) feet above the sidewalk. The maximum projection shall be four (4) feet.

(10) *Parking requirements.*

a. No off-street parking shall be required.

b. *Parking maximums.* The maximum number of off-street parking allowed in this district shall be the minimum standard established in Article VIII (Sec. 36-502).

1. New parking structures or commercial garages proposed which provide parking spaces in excess of the maximum allowable limit shall be required to demonstrate a shared parking agreement with adjacent or nearby uses, subject to consideration to be processed as a request for a variance per Sec. 36-69—70 of the Little Rock Municipal Code, through the Board of Adjustments.

c. *Location.*

1. *Surface parking.* Surface parking areas, including parking pads, shall be located behind or adjacent to a structure, never between the building and abutting street.

2. *Parking structure.* Parking structures associated with a proposed or existing building shall be subordinate to the primary use of the structure and be located behind, within, or adjacent to the structure, never between the principal building and abutting street, excluding alleys.

d. *Surface parking.* Surface parking shall not exceed 25 percent in area of the proposed site, inclusive of all parcels involved in the proposal.

e. *Parking structures or commercial garages.* Any parking structure with frontage along Capitol Avenue, Broadway, Chester, Main, Markham and 9th Streets shall be required to have active uses other than parking (such as office, light retail, personal services and entertainment) or building facade constructed to meet the standards of this section along the first floor of said frontage.

1. *[Screening.]* An opaque screening wall no less than three (3) feet in height shall be placed on the exterior perimeter of the first floor of the street frontage of all parking structures not otherwise required to have active uses or building facade construction as noted in subsection a. above. The screening wall shall extend above the finished floor of the first floor of the parking structure so as to screen vehicles in the parking structure.

(11) *Signs.* Off-premises signs are not allowed. Ground-mounted signs are discouraged and may only be permitted as a variance as per division 2 of this chapter. Otherwise, permitted signs shall be as in section 36-553, signs permitted in institutional and office zones, of this chapter. On the street level, the maximum area of signage may be doubled if at least

fifty (50) percent of the street-level office and retail space has direct access to the street.

(f) *Use regulations.*

(1) *Conditional uses.* Conditional uses shall include those uses allowed in the light industrial "I-2" district as "permitted uses" and those uses allowed in the residential, office and commercial districts of this chapter as "conditional uses", except that all uses must be inside or enclosed.

a. Other conditional uses.

1. Event center.

a. Hours of operation shall end no later than 12:00 a.m. (midnight). Event centers located within a designated Entertainment District, authorized by Ordinance No. 21,761 (July 13, 2019), may operate beyond midnight in accordance with the regulations and limitations specific to that district.

1. Parking, structure or commercial garage.

2. Private club with dining or bar service.

(2) Prohibited uses.

a. Gas stations.

b. Parking, commercial surface lot.

(g) *Height regulations.* No building hereafter erected or structurally altered, unless otherwise stated, shall exceed a height of eighty-five (85) feet. Development proposed to exceed eighty-five (85) feet shall be processed as a conditional use and shall provide a minimum ten-foot (10') stepback for all portions of the structure above eighty-five (85) feet, along all sides of the building, including those abutting alleys. Where a development is proposed to exceed eighty-five (85) feet and is located within one (1) block directly adjacent to another building exceeding eighty-five (85) feet—whether in a cardinal or ordinal direction—the proposal shall be processed through the Planned Zoning District (PZD) section of the zoning ordinance, with the intent to establish a workable development plan that aligns with the purpose and intent of the zoning district.

(1) *Views.*

a. *Corridors.* New construction shall be designed to preserve identified view corridors, those being: President Clinton Avenue Corridor, River Market Avenue Corridor, Capitol Avenue Corridor, and West Markham Corridor.

b. *River views.* Views of the Arkansas River north of E. 2nd Street shall be preserved for structures existing at the time of the effective date of this section, free from any visual obstructions above the height of six (6) stories.

(h) *Area regulations.*

(1) *Front yard.* Unless otherwise noted, buildings shall have a zero-foot setback along the public right-of-way. In no case may a structure be built in the right-of-way.Along Chester Street from I-630 to La Harpe Boulevard, the front building line shall be ten (10) feet.

a. Front setbacks abutting the public right-of-way are allowed, not to exceed ten (10) feet, where the front setback area results in enhanced outdoor planned and landscaped space, public or quasi-public, such as outdoor seating and plazas.

b. Front setbacks required where adjacent to lots containing residential detached structures shall be aligned with the average of the current setbacks or adjacent structures within 10 percent variance, not to exceed a maximum of fifteen (15) feet.

(2) *Rear yard.* No setback required except where adjacent to lots containing single-family detached structures. In this case the rear yard shall have a setback of not less than twenty- five (25) feet.

(3) *Side yard.* No setback required except where adjacent to lots containing single-family detached structures. In this case the side yards shall have a setback of not less than four (4) feet.

(Ord. No. 18, 228, § 6, 3-7-00; Ord. No. 18,902, § 1(e)-(g), (j), (l), 7-15-03; Ord. No. 19,438, §§ 1(t)—1(w), 11-15-05; Ord. No. 19,713, § 1(i), 3-6-07; Ord. No. 19,910, § 1(k), 1-15-08; Ord. No. 20,396, §§ 1(e), 1(i), 2-1-11; Ord. No. 20,407, §§ 1(e), 1(i), 2-15-11; Ord. No. 20,568, § 15, 4-3-12; Ord. No. 21,017, § 1(b), 4-7-15; Ord. No. 21,867, § 1, 5-19-20; Ord. No. 22,695, §§ 1—5, 12-16-25)

Sec. 36-342.2. R-4A low density residential.

(a) *Purpose and intent.* The purpose of the R-4A district is to protect existing developed residential neighborhoods. It is intended for single-family use with conversions to two-family units or the addition of accessory residential units. The R-4A district should be located in developed areas of the city with an environment suitable for moderate-density residential (use) and in established medium-density residential areas where densification may facilitate their continuation as desirable residential areas. Accessory uses, conditional uses and home occupations are permitted as long as they do not have objectionable characteristics, provided further that they otherwise conform to the provisions of this chapter. The district is intended to be an urban low to moderate density residential area, where an occasional nonresidential use adds to the overall character of the neighborhood.

(b) *Use regulations.*

(1) *Permitted uses.* Permitted uses are single-family and two-family residences.

(2) *Other uses.* Accessory, home occupation, temporary, special and conditional uses allowed within the R-4A low-density residential district shall be the same as those in the R-1, R-2, R-3 single-family districts.

In addition any by-right uses within the C-1 neighborhood commercial district may be allowed as conditional uses in R-4A as specifically approved by the planning commission. These uses must follow the development criteria listed under C-1 neighborhood commercial and have a traditional design consistent with the neighborhood.

(3) Within the area bounded by Capital Avenue on the north, 9th Street on the south, I-30 on the east, and Cumberland Street on the west, in addition to the above uses, multifamily use, as defined by R-5 urban residential district, shall be a permitted use.

(c) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of thirty-five (35) feet.

(d) *Area regulations.*

(1) *Front yard.* There shall be a front yard setback having a depth of not less than fifteen (15) feet. If there is an adjacent structure which is closer than fifteen (15) feet, then the new structure may be built using the line of the pre-existing structure. In no case may a structure be built in the right-of-way.

(2) *Side yard.* There shall be a side yard on each side of the building having a width of not less than ten (10) percent of the average width of the lot, not to exceed five (5) feet.

(3) *Rear yard.* There shall be a rear yard having a depth of not less than twenty-five (25) feet.

(4) *Lot area regulations.* There shall be a lot area of not less than five thousand (5,000) square feet. In addition, there shall be a lot of width of not less than fifty (50) feet and a lot depth of not less than one hundred (100) feet.

(5) *Accessory structures and additions.* Accessory structures or principal building additions of conventional on-site construction are permitted by right.

(Ord. No. 18,228, § 6, 3-7-00)

DIVISION 7. DESIGN OVERLAY DISTRICT—HIGHWAY 10 SCENIC CORRIDOR*

Sec. 36-343. Purpose and intent.

A Highway 10 scenic corridor overlay is hereby established, consistent with the objectives of the Highway 10 land use plan adopted by the City of Little Rock, and pursuant to the authority granted under chapter 36 of this Code providing overlay zoning districts. The purpose of establishing this district is to protect and enhance the aesthetic and visual character of the lands surrounding Highway 10. In particular the purposes of this district are as follows:

(1) To protect and enhance the scenic quality of the Highway 10 corridor by providing for sensitive developments which will maximize the natural foliage and terrain while also providing planted buffer and landscaped areas.

(2) To create a distinctive parkway atmosphere along Highway 10 by encouraging substantial building setbacks, extensive landscaping and uniform tree plantings.

(3) To minimize the number of curb cuts along Highway 10 so that the roadway will function at an efficient level of service.

(4) To promote development along Highway 10 without the undesired effects of small lot strip development.

(5) To create standards for signage and parking lot lighting which are in keeping with the intent of this article.

(Ord. No. 15,765, §1(A), 10-17-89; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-344. District boundaries.

The district encompasses all land with Highway 10 frontage lying within three hundred (300) feet of each side of the right-of-way of Highway 10 from the western boundary of the intersection of Rodney Parham Road and Highway to the western boundary of the planning boundary along Highway 10.

(Ord. No. 15,765, § 1(B), 10-17-89; Ord. No. 15,965, § 2, 11-20-90; Ord. No. 19,041, § 1, 1-20-04)

Sec. 36-345. Application of district regulations.

The regulations in this article shall be in addition to and shall overlay all other zoning districts and other ordinance requirements regulating the development of land so that any parcel of land lying in the overlay district shall also lie within one or more of the other underlying zoning districts. Therefore, all property within this overlay district will have requirements of both the underlying and overlay zoning district in addition to other ordinance requirements regulating the development of land. In case of conflicting standards between this article and other City of Little Rock Ordinances, the overlay requirements shall control.

These regulations apply to all development, redevelopment or expansion of existing development with the exception of single-family and duplex development under zoning districts R-1, R-2, R-3, and R-4, or PUD submissions as required.

(Ord. No. 15,765, § 1(C), 10-17-89)

Sec. 36-346. Site design and development standards.

(a) *Lot size.* There shall be a minimum development tract size of not less than two (2) acres. Existing lots of record two (2) acres or less are exempt from this requirement.

(b) *Front yard.* All principal and accessory buildings or structures are required to have a one hundred-foot building setback from the property line abutting Highway 10.

(c) *Rear yard.* Rear yard shall not be less than forty (40) feet.

(d) *Side yard.* Side yard shall not be less than thirty (30) feet.

***Editor's note—**Ord. No. 16,861, § 1(hh), adopted Mar. 21, 1995, renumbered former ch. 23, art. V, §§ 23-161—23-166 to read as set out herein in div. 7, §§ 36-343—36-348.

Cross references—Planning jurisdiction (map), § 23-2; subdivisions, ch. 31; zoning, ch. 36.

(e) *Landscaping treatment.* Landscaped areas shall attempt to incorporate existing on-site trees and shrubbery into the landscaping scheme and the plans shall indicate such incorporation.

(1) Landscaped areas shall have water sprinkler systems to maintain plant materials.

(2) Erosion retardant vegetation shall be used on all cuts and fills.

(3) Tree species to be planted within this corridor should be consistent with other species present.

(4) The Highway 10 frontage (front yard) shall consist of a minimum of forty (40) feet of landscaped area exclusive of right-of-way. The landscaped area shall contain organic and/or combined manmade/organic features as berms, brick walls and dense plantings such that vehicular use areas are screened when viewed from an elevation of forty-two (42) inches above the elevation of the adjacent street. Alternative screening methods and designs must be approved by the plans review specialist. Appeals from the staff will be directed to the planning commission. Within the landscaped area trees shall be planted or be existing at least every twenty (20) feet and have a minimum of two (2) inches in diameter when measured twelve (12) inches from the ground at time of planting.

Where a developer demonstrates that this requirement will constitute an undue hardship, a landscaped area exclusive of right-of-way may consist of a minimum of twenty-five (25) feet. In those instances only, a half-berm shall be constructed which is a minimum of three (3) feet in height with tree plantings as required herein; provided however, that this provision may only be applied to a maximum of twenty (20) percent of the highway frontage affected in the plans submitted.

(5) Rear and side yards shall have a landscaped buffer averaging a minimum of twenty-five (25) feet from the property line. Where such yards abut a street right-of-way, a fifteen-foot landscaped strip shall be required adjacent to land zoned office and residential. A seven-foot landscaped strip shall be required when adjacent to lands zoned commercial.

(f) *Signage.* Signage shall comply with the provisions of article X of this chapter, except as follows:

(1) *Commercial development signage.* Signage identifying the commercial development shall not exceed ten (10) feet in height and one hundred (100) square feet in area. All signs that are ground-mounted shall be of a monument type design. These signs may be installed in the landscaped area of the front and side yards.

(2) *Commercial building signage.* Each separate commercial building will be allowed a single monument ground-mounted sign located on the building site or in the landscaped front yard of the commercial development. The sign shall be a maximum of six (6) feet in height and seventy-two (72) square-feet in area.

(g) *Curb cuts.* Maximum, one (1) curb cut per three hundred (300) feet and no curb cut closer to an intersection than one hundred (100) feet.

(h) *Lighting.* Parking lot lighting shall be designed and located in such manner so as not to disturb the scenic appearance preserved in this corridor. Lighting should be directed to the parking areas and not reflected into the adjacent neighborhoods.

(i) *Building sites.* The maximum number of buildings per commercial development shall be measured both by minimum tract size and minimum frontage as follows: One (1) building every two (2) acres.

(j) *Stormwater detention.* Any stormwater detention proposed within the front landscape buffer shall be placed underground or the facility shall be graded where the bottom of the facility has a minimum slope of two (2) percent from the

furthest extent to the outfall location and a five-foot low flow concrete channel shall be installed.
(Ord. No. 15,765, § 1(D), 10-17-89; Ord. No. 15,965, §§ 3—6, 11-20-90; Ord. No. 18,902, § 1(c), 7-15-03; Ord. No. 21,867, § 1, 5-19-20)

Cross references—Landscaping and tree protection, Ch. 15; signs, Ch. 27.

Sec. 36-347. Commercial developments.

In the case of a commercial development, whether on one (1) or more platted lots, the above described regulations shall apply to the development as an entire tract rather than to each platted lot.
(Ord. No. 15,765, § 1(E), 10-17-89; Ord. No. 21,867, § 1, 5-19-20)

Editor's note—Ord. No. 21,867, § 1, adopted May 19, 2020, changed the title of § 36-347 from commercial developments and multiple building sites to commercial developments.

Sec. 36-348. Exceptions.

Property, if for any reason, that cannot be developed without violating the standards of the design overlay district shall be reviewed through the PZD, planned zoning district, section of the zoning ordinance, with the intent to devise a workable development plan which is consistent with the purpose and intent of the overlay standards. All variances to the underlying zoning requirements shall be reviewed as per article II, division 2, Board of Zoning Adjustment.
(Ord. No. 15,765, § 1(F), 10-17-89; Ord. No. 15,965, § 7, 11-20-90; Ord. No. 21,168, § 1(d), 2-2-16)

Sec. 36-349. Chenal/Financial Center Design Overlay.

(a) *Purpose and intent.* A Chenal/Financial Center Parkway Urban Corridor Overlay is hereby established consistent with the objectives of the Chenal, Ellis Mountain and I-430 Land Use Plans adopted by the city, and pursuant to the authority granted under chapter 36 of the Code of Ordinances of the city providing for zoning overlay districts. The purpose of establishing this district is to protect and enhance the aesthetic and visual character of the lands surrounding Chenal Parkway and Financial Center Parkway. In particular, the purposes of this district are:

(1) To create a scenic parkway atmosphere with the removal of adjacent utilities and control of lighting and signage.

(2) To utilize the existing land use plans and master street plan requirements in creating a well designed urban corridor.

(b) *District boundaries.* The district encompasses all land with Chenal Parkway or Financial Center Parkway frontage lying within three hundred (300) feet of each side of the right-of-way of Chenal Parkway or Financial Center Parkway. The eastern boundary of the district shall be the intersection of Financial Center Parkway and Shackleford Road and the western boundary shall be the intersection of Chenal Parkway and Highway 10. In the case of conflicting standards applicable to property included within the boundaries of this district and also within the boundaries of the Highway 10 Design Overlay District, the Highway 10 Design Overlay District standards shall control.

(c) *Application of district regulations.* The regulations in this section shall overlay all other zoning districts and other ordinance requirements regulating the development of land so that any parcel of land lying in the overlay district shall also lie within one (1) or more of the other underlying zoning districts. Therefore, all property within this overlay district will have requirements of both the underlying and overlay zoning district in addition to other ordinance requirements regulating the development of land. In cases of conflicting standards between this section and other city ordinances, the overlay requirements shall control. In the case of conflicting standards applicable to property included within the boundaries of this district and also within the boundaries of the Highway 10 Design Overlay District, the Highway 10 Design Overlay District standards shall control.

These regulations apply to all development, redevelopment or expansion of existing development with the exception of single family and duplex development under zoning districts R-1, R-2, R-3 and R-4, or PUD submissions as required.

(d) *Site design and development standards.*

(1) *Signage.* Signage shall comply with the Little Rock Sign Ordinance, except for ground mounted signs. The maximum size of principal site signs along Chenal/ Financial Center Parkway shall be one hundred (100) square feet in area and eight (8) feet in height. Each landowner will be permitted to erect one (1) sign per parcel, except for parcels fronting on two (2) different streets upon which one (1) per street frontage may be erected. The signs will be "monument" type signs.

(2) *Lighting and utilities.* Parking lot lighting shall be designed and located in such a manner so as not to disturb the scenic appearance of the corridor. Lighting will be directed to the parking areas and not reflected to adjacent parcels. All lighting and other utilities on lots adjacent to Chenal/Financial Center Parkway which are located in front of the rear line of the building, or in front of the rear line of the building if such lighting and utilities

were constructed prior to building construction, shall be underground. Notwithstanding the foregoing limitation, no overhead utilities shall be constructed within one hundred (100) feet of the Chenal/Financial Center Parkway right-of-way.

(e) *Exceptions.* Property, if for any reason, that cannot be developed without violating the standards of the design overlay district shall be reviewed through the PZD, planned zoning district, section of the zoning ordinance, with the intent to devise a workable development plan which is consistent with the purpose and intent of the overlay standards. All variances to the underlying zoning requirements shall be reviewed as per article II, division 2, Board of Zoning Adjustment.
(Ord. No. 16,861, § 1(ii), 3-21-95; Ord. No. 21,168, § 1(e), 2-2-16)

DIVISION 8. DESIGN OVERLAY DISTRICT—RIVER MARKET DESIGN GUIDELINES*

Sec. 36-350. Definitions.

The following words, terms and phrases, when used in this division, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

ADAAG means the Americans With Disabilities Act Accessibility Guidelines, 36 CFR § 1191.1 App. A, and any amendments thereto.

Design overlay district or *DOD* as referred to in this section means the River Market district.

DRC means the design review committee established pursuant to this section.

Projecting sign is defined in section 36-530 of this chapter.

River Market district is also referred to as the "district" and is depicted on exhibit "A" attached to Ordinance No. 18,961. Exhibit "A" is not set out herein, but is on file and available for inspection in the office of the city clerk.

Significant architectural detail or feature means an architectural element that contributes to the overall style, design or facade of a building. The detail may include architectural elements or materials, including, but not limited to, an arch, bracket, brickwork, capital of a column, corbelling, cornice, dentil, door, eave, fascia, gable, hood mold, latticework, parapet, pressed tin, sash, sidelight, shingles, transom, trim and window.
(Ord. No. 18,961, §§ 1, 2, 10-21-03)

Sec. 36-351. River Market design overlay.

(a) *Purpose and intent.* The purpose of establishing the River Market district (referred to herein as the "district") is to create a quality mixture of commercial, office and residential uses that also have a festive and pedestrian orientation. Once established, the district will become a viable location for business, cultural, residential and entertainment activities. Buildings, signs, street furnishings and landscaping should all be designed to complement and encourage pedestrian use during the day and at night. Careful planning is necessary to ensure the proper placement of such items to avoid visual clutter.

Visual clutter is not a major problem in the district at present, but good planning anticipates and prepares for future problems, especially in consideration of positive economic development. Guidelines and strategies must be in place to protect the district from the negative impact of poorly planned or incompatible projects. Incompatible development has the potential to destroy the attributes that will attract people to the district. Programs and policies will be enacted to maintain and enhance the visual quality of the district. Physical design elements of the district shall be controlled and reviewed by a design review committee to ensure appropriate design and compatible development.

(b) *District boundaries.* The district encompasses all parcels within the area described as: Beginning at the intersection of the center

*__Editor's note—__*Ord. No. 18.961, §§ 1, 2, amended div. 8 in its entirety to read as herein set out. The former div. 8, titled "Design Guidelines", derived from Ord. No. 17,240, § 1, adopted July 9, 1996; and Ord. No. 17,702, §§ 1—4, adopted April 7, 1998.

lines of Second Street and Cumberland Street (southeast corner of Block 35 Original City of Little Rock), east along the center line of Second Street to the centerline of the southbound lanes of Interstate 30, thence north along the centerlines of the southbound lanes of Interstate 30 for a distance of 600 feet, thence northwesterly parallel to President Clinton Avenue to the center of the right-of-way for Cumberland Street, thence southerly along the centerline of Cumberland Street to the point of beginning. The district is further identified on the map attached as exhibit "A". To the extent required by law, the city zoning map shall be amended to graphically display the district.
(Ord. No. 18,961, §§ 1, 2, 10-21-03; Ord. No. 20,310, § 1, 9-7-10)

Sec. 36-352. Application of district regulations.

(a) The regulations of this chapter shall be in addition to and shall overlay all other zoning districts and other requirements regulating the development of land so that any parcel of land lying in the overlay district shall also lie within one or more of the other underlying zoning districts. Therefore, all property within this overlay district shall have requirements of both the underlying and overlay zoning districts in addition to any other provisions regulating the development of land. In case of conflicting standards between this division and other city ordinances, the overlay requirements shall control.

(b) These regulations shall apply to new development and redevelopment or expansion of existing development. The design guidelines shall be implemented when a permit is requested for exterior improvements on buildings or in the public right-of-way. This section also applies when any exterior improvement is undertaken which may not require a permit, but affects the exterior visible elements of the structure such as repainting in a manner that significantly changes the color of the facade as determined by the DRC. Routine repairs, maintenance and interior alterations shall not require compliance with this section.

(c) Uses, structures or lots which existed on the effective date of this ordinance which do not conform to the standards and guidelines established in this ordinance, shall be treated as nonconforming according to the provisions of article III of this chapter. Nonconforming status shall not apply to construction of improvements in the public right-of-way required by the city, new and existing improvements requiring franchise permits, and new development, redevelopment or expansion of existing development.

(d) Franchises shall be required for all structures located in the public right-of-way. Franchise permits shall be issued for a period of not more than two (2) years. All franchisees are required to renew their franchise permits upon the anniversary of the original permit. Franchise permits that were valid on the effective date of this article will terminate on the two-year anniversary of the effective date of this ordinance. Notwithstanding any other provision for the application and issuance of permits, owners of all existing franchises shall obtain a new franchise within sixty (60) days after notice from the city. The franchisee shall submit to the city any changes in the information contained in the original franchise. Any franchise not permitted by the due date shall be classified as abandoned. Any encroachment within the abandoned franchise is deemed to be illegal and shall be removed by the franchisee at his expense. The River Market design review committee shall review and provide recommendations on all franchise renewals pursuant to the provisions of section 36-367 of this chapter.
(Ord. No. 18,961, §§ 1, 2, 10-21-03)

Sec. 36-353. Signs.

(a) *Signs in general.*

(1) *Location.*

a. Signs shall not hide significant architectural detail or features of a building.

b. Signs shall not visually clutter nor interfere with views of the building.

c. Wall signs shall be confined to the flat surface of the building and shall not project more than five (5) inches from the building facade.

d. Signs shall not be painted directly on the face of a building.

e. Awning valences are appropriate locations for signage.

f. Freestanding signage is prohibited.

g. Signs shall be adequately spaced from other signs.

h. All signs must face public street right-of-way except those permitted on facades facing the Arkansas River.

(2) *Appearance.*

a. Signs shall be compatible with the architecture of the building on which it is located.

b. Design of signs shall capitalize on the special character of the district.

c. Window signs shall not cover more than twenty-five (25) percent of each glass panel.

d. Awning signs shall not exceed twelve (12) square feet per awning.

e. Neon illumination is permitted.

f. Internally illuminated signs are prohibited.

g. In accordance with federal law, businesses with registered trademarks are allowed to display the mark in signage which otherwise complies with city sign regulations.

h. Advertising copy on signs is prohibited.

i. Materials used in signs shall be sensitive to signs and architecture on adjacent sites.

(3) *Nonconforming signs.* Signs existing prior to July 9, 1996, (the first adoption of the River Market design overlay district) shall be considered nonconforming. Nonconforming signs shall be permitted to be renovated or maintained. No change shall be made to the shape or size of the signage without approval of the DRC.

(b) *Signs on public buildings.* Signs on public buildings shall conform to the standards outlined in this DOD with the exception of signs that have significant architectural detail, or signs that serve as an entrance to Riverfront Park and are otherwise consistent with the DOD standards. These exceptions may only be approved by the board of directors.

(c) *Wall signs located on or facing public street rights-of-way or private streets.*

(1) *Location.*

a. Except as permitted in subsection (b), the maximum sign height on a building shall not extend above the second floor windowsill or above the overhang of a single-story building.

b. Signs shall not number more than three (3) per business.

(2) *Appearance.* Signs shall not exceed one-half of a square foot of sign area for each linear foot of street building frontage, not exceeding twenty-five (25) square feet per sign.

(3) *Sign illumination.* Internally lit signs are prohibited. When signs are externally lit, they shall be illuminated from a concealed source of light or a decorative source that is integral to the design of the sign.

(d) *Signs on facades facing the Arkansas River.* The buildings having facades facing the river present a unique opportunity to create their own character on the facades that share views with the amphitheatre and the river. These facades shall compliment the festive atmosphere that has been established by the Riverfest Amphitheatre and the River Market building.

(1) *Location.*

a. Building signs shall not extend above the overhang of the roof.

b. Signs shall not number more than three (3) per business.

(2) *Appearance.* Signs shall not cover more than ten (10) percent of the facade facing the river.

(3) *Sign illumination.* Internally lit signs are prohibited. When signs are externally lit, they shall be illuminated from a concealed source of light or a decorative source that is integral to the design of the sign.

(e) *Projecting signs.*

(1) *Location.*

a. Projecting signs shall maintain a nine-foot clearance in all pedestrian walkways and a thirteen-foot clearance over vehicular use areas, i.e. alleys and driveways.

b. Height of projecting signs shall not extend past the sill of the second story windows.

c. Projecting signs shall extend a maximum of three (3) feet from the face of the building.

d. The number of projecting signs shall be limited to one (1) sign per one hundred (100) feet of street frontage per building.

e. Projecting signs shall be placed at a ninety-degree angle to the building.

f. Signs shall be spaced so not to conflict or obscure other signage.

(2) *Appearance.*

a. Projecting signs shall have a maximum of twenty-five (25) square feet of sign face per sign.

b. Thickness of projecting signs shall be limited to twelve (12) inches.

c. Signage colors, typeface and style shall be compatible with the district.

(3) *Sign illumination.*

a. Internally lit signs are prohibited. When projecting signs are externally lit, they shall be illuminated from a concealed source of light or a decorative source that is integral to the design of the sign.

b. Neon is permitted on projecting signs. No movement, flashing, or change of illumination level shall be permitted on signs. Each neon sign shall have a one-year maintenance review, by city staff, for functionality.

(f) *Sandwich board signs.*

(1) *Location.*

a. Sandwich board signs shall be located within the brick planting strip portion of the sidewalk.

b. Signs shall not number more than one (1) per business.

c. Signs shall be displayed only when the business is open for business and shall be removed from the exterior of the building when the business is closed.

d. Signs shall have a minimum spacing of one (1) per twenty-five (25) linear feet of sidewalk not to exceed six (6) per block face.

(2) *Appearance.*

a. Signs shall be no larger than twenty-four (24) inches wide and thirty-six (36) inches tall per face with a total height not to exceed thirty-six (36) inches.

b. Merchants shall limit the wording on the signage to effectively use the space.

c. Signs shall have a wooden or simulated wooden frame that encases and supports the message area. Molded plastic or metal construction is prohibited unless encased in wood or simulated wood trim.

d. Signs shall be kept in a tidy and clean condition and maintained in good repair. Signs shall be stable and weighted to resist overturning due to wind or accidental pedestrian contact.

e. All individually changeable letters, tacking of flyers or loose leaf pages, and poster boards on signs are prohibited. Chalkboards and dry-erase boards are permitted.

f. Balloons, ribbons, streamers, and other decorative attachments are prohibited.

(3) *[Illumination.]* Signs shall not be illuminated.

(4) *[Sandwich board signs.]* A franchise permit and sign permit for a permanent type sign shall be required for all sandwich board signs.

(Ord. No. 18,961, §§ 1, 2, 10-21-03; Ord. No. 20,310, § 2, 9-7-10; Ord. No. 21,017, §§ 1(d), 1(e), 4-7-15)

Sec. 36-354. Balconies.

Balconies over the public right-of-way shall have a minimum clearance of nine (9) feet above the sidewalk. One (1) inch of projection is permitted for each additional inch of clearance above eight (8) feet, provided that no such projection shall exceed a distance of four (4) feet.
(Ord. No. 18,961, §§ 1, 2, 10-21-03)

Sec. 36-355. Sidewalks.

(a) *Sidewalks and right-of-way improvements in general.* All repairs and new construction shall match existing improvements in materials, construction methods, shape, size, etc. Samples of material shall be provided to the DRC or its representative to verify material match prior to installation.

(b) *Width and clearance.*

(1) Sidewalks shall consist of seven and one-half-foot concrete walk in addition to a four-foot red brick paving planting strip.

(2) Sidewalks shall have a twelve-foot overall width from property line to curb face.

(3) Sidewalks shall provide adequate clearance for ease of pedestrian traffic and movement.

(c) *Materials.*

(1) The walks, curbs, gutters, and tree grate frames shall be concrete.

(2) The planting strip shall consist of red brick pavers.

(d) *Curb ramps.*

(1) Two (2) curb ramps shall be provided per corner or the entire corner may be constructed as a ramp.

(2) Ramps shall have 1:10 side slopes.

(3) Ramps shall have 1:12 maximum slope.

(4) Ramps shall be five (5) feet in width with striations perpendicular to pedestrian traffic movement.

(5) Slopes shall be congruent between ramps.

(6) There shall be a minimum five (5) feet landing at the top of all ramps.

(7) Curb ramps shall be coordinated with the crosswalk locations pursuant to ADAAG 4.7.9.

(8) Curb ramps shall have a visual contrast of surfaces adjacent to traffic.

(e) *Curbs and gutters.*

(1) Curbs shall be six (6) inches in height.

(2) Gutters shall be eighteen (18) inches in width.

(f) *Tree-planting strip.*

(1) The tree-planting strip shall be a four-foot-wide red brick paving strip on two-inch sand base and eighteen-inch topsoil backfill.

(2) The six-inch concrete tree gate frame shall be integrated with the top of the curb.

(g) *Utilities.*

(1) All utilities shall be located under the street.

(2) All metal grates located in walking surfaces shall meet ADAAG 4.5.4 standards.

(Ord. No. 18,961, §§ 1, 2, 10-21-03)

Sec. 36-356. Building form.

(a) *Materials.*

(1) Historic materials or distinctive architectural features shall not be removed or hidden.

(2) The type of materials and their color, texture, scale and detailing shall be compatible with those of buildings on adjacent sites.

(3) Surface cleaning of historic structures shall be done with the gentlest possible method.

Physical or chemical treatments, such as sandblasting or high pressure water cleaning, that cause damage to historic material shall be prohibited.

(b) *Roof types.* Building roofs shall relate to the overall size, shape, slope, color and texture of roofs of buildings within the district.

(c) *Openings.*

(1) Historical upper facade windows shall retain original dimensions and details.

(2) Historical storefront configuration shall not be altered.

(3) New construction shall have a pattern of windows and doors that resemble similar patterns on facades of adjacent buildings.

(4) Primary entrances shall be parallel with the street.

(d) *Style and form.*

(1) *Height regulations.* No building hereafter erected or structurally altered shall exceed a height of sixty (60) feet. Building height shall be defined, for the purpose of the River Market Design Overlay District, as the vertical distance from the highest point of the centerline of abutting private and public street frontages to the highest point of the roof or parapet wall. All structural embellishments as defined by section 36-2, Definitions shall be reviewed by the River Market Design Review Committee for compliance.

(2) *[Building levels.]* Buildings shall maintain the distinction between upper and street levels.

(3) *[Historical context.]* Historical context of buildings shall be restored to original designs.

(e) *Mass.*

(1) New construction wider than the typical building width shall be visually massed to appear similar to buildings on adjacent sites.

(2) The primary facade of a building shall be oriented parallel with the street.

(f) *Projections.*

(1) Objects shall not project from the building facade over the public right of way except for awnings, signs and balconies.

(2) Awnings shall not project more than five (5) feet from the building facade and have a minimum clearance of nine (9) feet above the sidewalk.

(3) Balconies over the public right of way shall have a minimum clearance of nine (9) feet above the sidewalk. One (1) inch of projection is permitted for each additional inch of clearance above eight (8) feet, provided that no such projection shall exceed a distance of four (4) feet. Balconies shall not be supported with posts extending to the sidewalk. Mounting heights for balcony brackets shall conform to minimum clearance standards.

(g) *Setbacks.* Buildings shall have a zero-foot build to line along the public street rights-of-way. (Ord. No. 18,961, §§ 1, 2, 10-21-03; Ord. No. 20,310, § 3, 9-7-10; Ord. No. 21,017, § 1(f), 4-7-15)

Sec. 36-357. Awnings.

(a) *Appearance.*

(1) Colors should be compatible with others used in the River Market district.

(2) Awnings shall relate to the shape of the opening.

(3) Direct back illuminated awnings are prohibited.

(4) Awnings shall be composed of canvas, vinyl coated canvas, acrylic fabrics or other architectural materials compatible with the building and the district.

(5) Retractable canvas awnings are allowed and shall conform to other awning standards for appearance and location.

(b) *Location.*

(1) Awnings shall cover only the storefront display windows, balconies or transom above the main entrance. Upper facade details shall not be obscured.

(2) Awnings and support structures shall have a minimum clearance of nine (9) feet from the sidewalk.

(3) Awnings shall not project more than five (5) feet from the building facade.

(Ord. No. 18,961, §§ 1, 2, 10-21-03)

Sec. 36-358. Landscaping.

(a) *Plant materials.*

(1) All plant materials shall be as prescribed in this section or substitute materials of equal quality approved in advance by the DRC.

(2) President Clinton Avenue from Interstate 30 to Cumberland Street shall be Acer X Freemanii "Jeffersred," autumn blaze maple trees.

(3) River Market Avenue from President Clinton Avenue to Second Street shall be Acer X Freemanii "Jeffersred," autumn blaze maple trees.

(4) Streets with north and south orientation between Interstate 30 and Cumberland Street and north of Second Street shall be Taxodium distichum; bald cypress trees.

(5) Second Street from Interstate 30 and Cumberland Street shall be Ginkgo biloba, Ginkgo.

(6) Plazas and open spaces shall be Ostrya virginiana; American hophornbeam trees and Gleditsia tricanthos var. inermis "Moraine;" moraine thornless honey locust trees.

(7) All planting of trees and planting adjacent to sidewalks shall meet ADAAG 4.4.2 standards.

(b) *Plant size.*

(1) Street trees shall be one and one-half-inch to two and one-half-inch caliper trees at planting.

(2) Plazas and open spaces shall be one and one-half-inch to two-inch caliper trees at planting.

(c) *Location and spacing.*

(1) Trees shall be thirty (30) feet on center and two (2) feet off back of curb.

(2) Trees placement shall allow for adequate site distance at intersections.

(d) *Irrigation systems.*

(1) Irrigation systems shall provide four (4) irrigation bubbler heads per tree well.

(2) All systems shall have backflow preventors.

(3) Automatic controllers shall be pole mounted.

(4) Valve-box covers shall have snaplocks and be located within the brick-planter strip.

(e) *Tree grates.*

(1) Tree grates shall be four (4) feet by four (4) feet cast iron with slot openings no more than one-quarter inch. All replacement and new tree grates shall match existing grates in manufacturer and model number. Samples of materials shall be provided to the DRC or its representative to verify match prior to installation.

(2) Tree grates shall be set into concrete and angle iron curb collar, six (6) inches exposed at surface, minimum twelve-inch depth.

(f) *Subdrainage.*

(1) A gravel drain shall consist of a four-inch perforated pipe wrapped in washed, crushed gravel and geotextile running parallel with planting strip.

(2) A gravel drain shall be approximately four (4) feet below finished pavement elevation and connected to the storm drainage inlet.

(3) The bottom of the gravel drain shall be sloped for positive flow towards the four-inch perforated pipe.

(g) *Planting medium.*

(1) Topsoil backfill shall contain ten (10) percent organic material and be free of objectionable materials.

(2) The tree root ball shall be set in place on compacted SB-2 sub-base pedestal and covered with two (2) inches washed river gravel.

(Ord. No. 18,961, §§ 1, 2, 10-21-03; Ord. No. 20,310, § 4, 9-7-10; Ord. No. 21,017, § 1(g), 4-7-15)

Sec. 36-359. Streetlights and furnishings.

(a) *Lights.*

(1) Pedestrian posts and luminaries shall be Antique Lighting "Capitol" Series or preapproved substitute.

(2) Roadway intersection posts and luminaries shall be Antique Lighting "Capitol" Series or preapproved substitute.

(b) *Spacing and location.*

(1) Pedestrian posts and luminaries shall be located every third tree within a block.

(2) Roadway posts and luminaries shall be located fifteen (15) feet off right-of-way of perpendicular streets; one (1) per corner.

(c) *Furnishings.*

(1) Signage and street equipment shall be in the same design family as light posts and luminaries.

(2) Trash receptacles shall be manufactured by Canterbury International; Pennsylvania Avenue model or preapproved substitute.

(3) Benches shall be six (6) feet in length and located on the inside of roadway intersection posts and luminaries manufactured by Dumor Model #57 Bench or pre-approved substitute.

(4) Bus shelters and information kiosks shall be uniform in architectural style and character with streetscape equipment and building form.

(5) Newspaper stands shall be of the same style and size and be incorporated as an integral part of the street furnishings.

(Ord. No. 18,961, §§ 1, 2, 10-21-03)

Sec. 36-360. Streets.

(a) *Crosswalks.*

(1) Crosswalks shall be constructed of red brick pavers bound by a one-foot-wide by two-foot-tall concrete band on both sides.

(2) The running bond brick pattern of the crosswalks shall run perpendicular to vehicle traffic.

(3) Brick pavers shall be eight thousand (8,000) p.s.i. to withstand vehicle loads.

(4) Curb ramps at marked crossings shall be wholly contained within the markings, excluding any flared sides, pursuant to ADAAG 4.7.9.

(5) All replacement and new crosswalks shall match existing crosswalks in construction manner and materials. Samples of materials shall be provided to the DRC or its representative to verify match prior to installation.

(Ord. No. 18,961, §§ 1, 2, 10-21-03)

Sec. 36-361. Parking.

(a) *Location.*

(1) Parking lots shall not surround a building.

(2) Buildings shall not be removed to provide surface parking unless no other economically viable alternative is available.

(b) *Parking landscape.* Parking lots shall comply with the minimum requirements of the landscape ordinance. Landscaping beyond that which is required is encouraged.

(c) *Parking lot lighting and design.*

(1) Perimeter lighting on parking lots shall match the style used on the streetscape.

(2) Parking lot design shall be sensitive to the purposes and intent of the district.

(3) Buses shall be marshaled outside the district.

(4) Handicapped accessible parking shall be provided pursuant to ADAAG 4.1.2(5)(a) and 4.6.3.

(5) Passenger loading zones shall be provided pursuant to ADAAG 4.6.6.

(6) Interior fixtures shall be mounted on poles with a maximum height of thirty (30) feet.

(7) Interior lighting levels shall be in the range of one (1) to three (3) footcandles.

(8) Interior lighting fixtures shall be of square shoebox type or pre-approved substitute.

(9) Lamps shall be of the metal halide type.

(10) Interior lighting fixtures shall have sag-type lenses.

(11) Interior lighting poles shall be painted dark bronze.

(12) Interior lighting poles shall be a square straight steel pole GSP-30-BRP or pre-approved substitute.

(13) Interior lighting pole arms shall be RTS30-6511-UMB-28 or pre-approved substitute.

(d) *Parking requirements.*

(1) Parking requirements shall be as established in section 36-342.1., Urban use district.

(2) The DRC shall make a recommendation to the board of zoning adjustment on any request for variance from the off-street parking requirements of section 36342.1., Urban use district.

(Ord. No. 18,961, §§ 1, 2, 10-21-03)

Sec. 36-362. Curb cuts.

(a) *Location.*

(1) New curb cuts on President Clinton Avenue are prohibited.

(2) Existing curb cuts on President Clinton Avenue, River Market Avenue, Sherman and Rock Streets shall be removed or minimized to reduce conflict with pedestrian traffic.

(b) *Number per block.* Curb cuts shall be minimized to allow for safe and efficient pedestrian movement throughout the River Market district.

(c) *Size.* Driveway width shall be twenty-two (22) feet; provided that, the DRC may adjust the width to correspond with a recommendation of the director of the public works department if such adjustment is consistent with the uses in the district.

(Ord. No. 18,961, §§ 1, 2, 10-21-03; Ord. No. 21,017, § 1(h), 4-7-15)

Sec. 36-363. Alleys.

Use.

(1) Alleys shall serve as alternative routes for pedestrians as well as efficient service access for vehicles.

(2) Alleys shall have adequate lighting for pedestrians.

(Ord. No. 18,961, §§ 1, 2, 10-21-03)

Sec. 36-364. Fences and walls.

Design.

(1) Chain link fences and razor or barbed wire are prohibited.

(2) Ornamental iron fences may be appropriate where compatible with the style of the building.

(Ord. No. 18,961, §§ 1, 2, 10-21-03)

Sec. 36-365. Views.

(a) *Corridors.* New construction shall be designed to preserve all view corridors including the President Clinton Avenue Corridor and the River Market Avenue Corridor.

(b) *River.* Views of the river shall be protected from any obstructions or visual clutter.

(Ord. No. 18,961, §§ 1, 2, 10-21-03; Ord. No. 21,017, § 1(i), 4-7-15)

Sec. 36-366. Maintenance.

The city shall maintain all sidewalks, lights, landscaped planting areas, trees, grates, pavers, streets, curbs, gutters, irrigation systems, benches, trash receptacles, litter removal, street lighting and sidewalk lighting.

(Ord. No. 18,961, §§ 1, 2, 10-21-03; Ord. No. 20,310, § 5, 9-7-10)

Sec. 36-366.1. Exceptions.

Property that cannot be developed for any reasons without violating the standards of this article and that creates new or additional space shall be reviewed through the planned zoning district (PZD) section of the zoning ordinance, with the intent to devise a workable development plan which is consistent with the purpose and intent of the overlay standards. All other requests for variances for the overlay standards shall go to the board of adjustment.
(Ord. No. 20,310, § 6, 9-7-10)

Sec. 36-367. River Market district design review committee.

(a) *Design review committee (DRC).* A DRC shall be appointed by the board of directors to protect the visual integrity of the district, consisting of five (5) persons as follows:

(1) Two (2) representatives from the district selected from a list recommended by property owners within the district. Representatives shall include a letter of recommendation from a property owner in the district. Members of the committee serving as property owners or representatives of property owners shall not be required to be residents of the city.

(2) Two (2) design professionals with experience in historic preservation such as an architect, engineer, planner or landscape architect.

(3) A representative from the downtown partnership.

The appointments to the DRC shall be arranged so the term of at least one (1) member will expire each year, and their successors shall be appointed in a like manner for terms of three (3) years. Members who are appointed to fill vacancies for unexpired terms shall join the DRC at the next meeting following their appointment and confirmation.

(b) *Vacancies.* Vacancies to the committee shall be advertised in a newspaper.

(c) *Submission of proposals.* The developer or designer of exterior improvements to a structure in the district shall meet with the DRC prior to request for a permit. No permit shall be issued unless the DRC has approved the proposal. The DRC will meet on call as projects are filed with the planning staff. A written record of the review and recommendation will be forwarded to the planning commission or board of zoning adjustment on proposals not meeting the design guidelines established by the DOD.

(d) *Authority of the DRC.* The DRC shall function with a primary goal of providing substance and governance to the DOD guidelines. This includes:

(1) Providing district businesses with guidance in adhering to the DOD guidelines.

(2) Provide recommendations on all building permits, signs, banners, franchises, zoning and subdivision applications within the district.

(3) Timely review and recommendations on all variance applications made by property owners within the district.

(4) Maintaining a comprehensive report of all variances permitted from the city zoning and planning ordinances and regulations within the district.

(5) Forwarding to the planning commission or board of zoning adjustment a review and recommendation of all proposals that do not meet the established guidelines as established by section 36-366.1.

(Ord. No. 18,961, §§ 1, 2, 10-21-03; Ord. No. 20,310, § 7, 9-7-10)

DIVISION 9. DESIGN OVERLAY DISTRICT—CENTRAL CITY REDEVELOPMENT CORRIDOR

Sec. 36-368. Established; district boundaries.

Pursuant to chapter 36 of the Code of Ordinances of the City of Little Rock, a design overlay district for the central city redevelopment corridor is hereby established as follows:

Original city: Blk-018, Lot 007 through 010.

Original city: All of Blk-050 through 053.

Original city: All of Blk-161 through 162.

Original city: Blk-163, Lot 008 through 012.

Clark Addition: All of Blk-001 through 004.

Clark Addition: Blk-006, Lot 007 through 009.

Duvall's Addition: All of Blk-401.

Duvall's Addition: All of Blk-414.

Duvall's Addition: Blk-415, Lot 007 through 012.

Fultons Addition: All of Blk-024.

E. W. Gibbs Addition: All of Blk-001 through 002.

Lincoln and Zimmerman Addition: Blk-401, Lot 001 through 002.

Mccains Addition: Blk-000, Lot 00A through 00C.

Wat Worthen Addition: Blk-001, Lot 005.

Wat Worthen Addition: Blk-002, Lot 005 through 008.

Wat Worthen Addition: Blk-003, Lot 005 through 008.

Wat Worthen Addition: All of Blk-004 through 009.

Wat Worthen Addition: All of Blk-010 Mccoppins Subdivision.

Wat Worthen Addition: All of Blk-011 through 014.

Wat Worthen Addition: Blk-022 through 023.

Wrights Addition: Blk-006, Lot 001 through 003.

Wrights Addition: Blk-007 through 010, Lot 001 through 006.

Wrights Addition: All of Blk-011 through 023.

Wrights Addition: All of Blk-027 through 029.
(Ord. No. 18,064, § 1A, 7-20-99)

Sec. 36-369. Definitions.

Central City Redevelopment Corridor ("CCRC") is depicted as exhibit "A" attached to Ordinance No. 18,064.

New construction. Construction that is characterized by the introduction of new buildings or structures.

Block face. The total of all lots within a city block facing a single given city street.

Developed block face. A block face containing developed lots which comprise fifty (50) percent or more of the block face.
(Ord. No. 18,064, § 1B, 7-20-99)

Sec. 36-370. Application of design regulations.

The regulations in this ordinance shall be in addition to and shall overlay all other zoning districts and other ordinances requirements regulating the development of land so that any parcel of land lying in the overlay district shall also lie within one or more of the other underlying zoning districts. Therefore, all property within this overlay district will have requirements of both the underlying and overlay-zoning district in addition to other ordinance requirements regulating the development of land. In case of conflicting standards between this ordinance and other City of Little Rock ordinances, the overlay requirements shall control.

These regulations apply to all new construction. These regulations shall not apply in areas already protected by the Capitol Zoning District and the MacArthur Park Historic District. Routine repairs, maintenance and interior alterations shall not require compliance with this section.

In order to be compatible with the established neighborhood, new construction shall comply with the following criteria. In the case of an undeveloped block face, the requirements shall relate to the adjacent block faces.

(1) *Roofline.* A roof pitch of less than 4:12 shall be prohibited.

(2) *Materials.* The materials of the exterior shell shall be wood, brick or a material that resembles wood.

(3) *Orientation.* The orientation shall be consistent with that of other structures on the developed block face.

(4) *Entrances.* The primary entrance shall be consistent with that of other structures on the developed block face.

(5) *Parking.* Parking shall be prohibited in the front yard setback.

(6) *Nonresidential setbacks.* Nonresidential new construction shall be sited at the front property line of the block face.
(Ord. No. 18,064, § 1C, 7-20-99)

Sec. 36-371. Review section.

The director of the department of planning and development shall determine compliance of all building permit requests within the boundaries of the CCRC.
(Ord. No. 18,064, § 1D, 7-20-99)

Sec. 36-372. Exceptions.

Any request to vary, alter or modify specifications of this design overlay district shall be processed as a request for a variance as per article II, division 2 of this chapter.
(Ord. No. 18,064, § 1E, 7-20-99; Ord. No. 19,713, § 1(h), 3-6-07)

Secs. 36-373—36-384. Reserved.

DIVISION 10. MIDTOWN DESIGN OVERLAY DISTRICT*

Sec. 36-385. Purpose and intent.

The purpose of the Midtown design overlay district (district or DOD) is to create a medium-

*__Editor's note—__Ord. No. 19,754, §§ 1—3, adopted May 15, 2007, amended div. 10 in its entirety and enacted the provisions set out herein. The former div. 10, titled Midtown Overlay District, derived from Ord. No. 19,004, §§ 1A—1D and 1F—1L, adopted Dec. 2, 2003.

density urban neighborhood that offers people the opportunity to live, work, shop, and recreate in a compact, pedestrian-friendly environment. Retail and service commercial, office space, community services, and multifamily residential will be the primary land uses. New development and redeveloped properties are encouraged to vertically and horizontally integrate compatible residential and non-residential uses. The DOD is intended to encourage compatibility of existing and proposed land uses, the protection of established neighborhoods, and the creation of strong linkages between major developments. The goal shall be an economically healthy mixed-use neighborhood that features streetscapes, public spaces and building forms that embody a unique sense of place.

Guidelines and strategies must be in place to protect the district from the negative impact of poorly planned or incompatible projects. Incompatible development has the potential to destroy the attributes that will attract people to the District.
(Ord. No. 19,754, § 2, 5-15-07)

Sec. 36-386. Boundaries.

The district shall include lands east of McKinley to University Avenue, and south of Father Tribou to I-630; south of Lee Avenue to Markham, and east of University to the alignment of Filmore; and west of the Taylor Street right-of-way to the alignment of Filmore, two hundred (200) feet north of C Street to one hundred seventy (170) feet south of C Street; south of Evergreen to Lee Avenue, and east of University to the alignment of Grant Street; east of Filmore to Monroe, north of Markham to the alignment of A Street; and east of Monroe to Elm Street, north of Markham one hundred seventy (170) feet.
(Ord. No. 19,754, § 2, 5-15-07)

Sec. 36-387. Application of regulations.

(a) The regulations of this district shall be in addition to and shall overlay all other zoning districts and other ordinance requirements regulating the development of land so that any parcel of land lying in the overlay district shall also lie within one (1) or more of the other underlying zoning districts. Therefore, all property within this overlay district shall have requirements of both the underlying and overlay zoning districts in addition to any other provisions regulating the development of land. In case of conflicting standards between this article and other city ordinances, the overlay requirements shall control provided, that subsection 36-154(b) shall not apply to buildings with a footprint of ten thousand (10,000) square feet or less in area.

(b) With the exception single-family or duplex uses with a zoning of R-2, R-3 and R-4, these regulations shall apply to new development; redevelopment exceeding fifty (50) percent of the structure's current replacement value; and expansion of existing development. The design guidelines shall be implemented when a permit is requested for exterior improvements on buildings or in the public right-of-way. Routine repairs, maintenance and interior alterations shall not require compliance with this section.

(c) Uses, structures or lots which existed on the effective date of this division which do not conform to the standards and guidelines established in this division shall be treated as nonconforming according to the provisions of article III of this chapter. Nonconforming status shall not apply to construction of improvements in the public right-of-way required by the city, redevelopment or expansion of existing development.
(Ord. No. 19,754, § 2, 5-15-07)

Sec. 36-388. Development process.

(1) A planned zoning district process shall be required for a new development, redevelopment exceeding fifty (50) percent of the structure's current replacement value based on its configuration at the time of the DOD's adoption, and for expansion of existing development exceeding fifty (50) percent of the structure's current gross square-footage at the time of the DOD's adoption. Routine repairs, maintenance and interior alterations to accommodate existing, expanding or new tenants within the existing building envelope shall not require compliance with chapter 36, article 10 (Midtown design overlay district). The proposed planned zoning development shall be reviewed to

realize a development plan that is consistent with the purpose and intent of the Midtown design overlay.

(2) For a new development or structure of over one hundred thousand (100,000) square feet (excluding structured parking), a mix of uses must be provided. This mix may occur either under the same roof or in adjacent structures as part of a common development. In order to be considered a mix, the new development must either:

(a) Devote the majority of its leasable ground floor space to a secondary use (i.e., retail in a multistory office building); or

(b) Devote ten (10) percent of the gross leasable area of a single building to the secondary use (i.e., residential on the upper levels of a multistory office, retail or institutional building); or

(c) Devote fifteen (15) percent of the gross leasable area to a secondary use in a separate building constructed and occupied at the same time as the primary structure (i.e., a restaurant on a pad adjacent to an office building).

(3) For a new development greater than two hundred thousand (200,000) square feet (excluding structured parking), there must be a residential component. This residential may be in the same structure or a separate structure, as long as the separate structure is part of the same overall development and the overall development is built simultaneously.

(4) For any new development to be constructed in phases, a portion of the secondary use(s) shall be included in the initial phases.
(Ord. No. 19,754, § 2, 5-15-07)

Sec. 36-389. Development criteria.

(a) *Building form.*

(1) *Facade treatment.*

a. For new construction, at least sixty (60) percent of the ground floor level facing internal pedestrian public circulation areas or streets shall be glass-windows, entry features, or displays.

b. The primary facade of a building shall be oriented parallel with the street, or to the principal vehicular or pedestrian routes of travel whether public or private.

c. Buildings shall maintain a distinction between upper and lower levels; any elevation greater than eighteen (18) feet in height shall contain an architectural treatment, which visually divides the structure into "stories".

d. Wall projections or recesses a minimum of three (3) feet depth and a minimum of twenty (20) contiguous feet not to extend over twenty (20) percent of the facade shall be required. Arcades, display windows, entry areas or awnings shall exist along at least sixty (60) percent of the facade.

(2) *Entryway.*

a. Primary entrances shall be oriented to the street or to the principal vehicular or pedestrian routes of travel within a development.

b. Buildings shall have clearly defined and visible customer entrances featuring elements such as overhangs, arcades, arches, canopies, peaked roof forms, display windows.

c. All sides of building that face abutting public or private rights-of-way, except alleys, shall feature at least one customer entrance.

(3) *Elevations.*

a. No elevation facing an arterial or greater street shall be primarily used as a service entry or otherwise be treated as the rear of the structure.

b. New construction wider than the one hundred (100) linear feet shall be visually massed so as to break the structure visually.

c. Roof lines shall be varied with a change in height every one hundred

(100) linear feet in building length. Parapets, mansard roofs, gable roofs, high roofs shall be used to conceal flat roofs and roof top equipment.

d. Exterior building materials and colors shall be aesthetically pleasing and compatible with materials and colors used in neighboring developments.

I. Predominant exterior building materials shall be of high quality materials; such as, but not limited to: brick, wood, stone, tinted, stucco, EIFS (exterior insulation finish system) concreted masonry units. Facade colors shall be low reflectant, subtle, neutral or earth tone with trim and accents brighter colors.

II. Predominant exterior building materials shall not be smooth-faced concrete block, tilt-up concrete panels or prefabricated steel panels.

(4) *Projections (all requirements for a franchise remain in place).*

a. Objects shall not project from the building facade over the public right of way except for awnings, signs, and balconies.

b. Awnings shall not project more than five (5) feet from the building facade and have a minimum clearance of nine (9) feet above pedestrian areas and thirteen (13) feet above vehicular areas.

c. Balconies over the public right-of-way shall have a minimum clearance of nine (9) feet above the sidewalk. One (1) inch of projection is permitted for each additional inch of clearance above eight (8) feet, provided that no such projection shall exceed a distance of four (4) feet. Balconies shall not be supported with posts extending to the sidewalk. Mounting heights for balcony brackets shall conform to minimum clearance standards.

(5) *Small building requirement.* The following criteria shall apply to any building under five thousand (5,000) square feet.

a. Parking shall not wrap the building, but be limited to the side and rear areas.

b. Building height shall be limited to thirty-five (35) feet.

(b) *Building height.* No building hereafter erected or structurally altered shall exceed a height of sixty (60) feet, except as provided below. Structures may have a greater height as follows, and these "bonuses" may be cumulative:

Developments that provide a minimum fifteen (15) percent of the gross floor area for residential uses are entitled to add forty-five (45) feet to the structure.

(1) Any structure that is certified by CATA (Central Arkansas Transit Authority) as providing a portion of the structure for mass transit (such as a bus stop, etc.), is entitled to add fifteen (15) feet to the structure.

(2) Structures with a mix of uses (i.e. office, retail and/or residential), with the street-level primarily devoted to retail uses and at least fifty (50) percent of these uses having direct access to the street, is entitled to add twenty-five (25) feet to the structure; alternately, a development with an integrated parking facility substantially located within the footprint of the primary structure, is entitled to add twenty-five (25) feet to the structure.

(3) Notwithstanding the foregoing, any structure north of Markham and east of University shall be limited to a height of thirty-five (35) feet.

(c) *Setbacks.* Building setbacks from adjacent property lines and street rights-of-way shall be:

(1) Front yard setbacks may be zero (0) feet, but will not be more than twenty (20) feet,

excepting in those cases where grade changes make such setbacks impractical.

(2) Side yard setbacks may be zero (0), except where adjacent to lots containing single-family detached structures. In this case the side yards shall have a setback of not less than four (4) feet.

(3) Rear yard setback may be zero (0), except where adjacent to lots containing single-family detached structures. In this case the rear yard shall have a setback of not less than twenty-five (25) feet.

(d) *Driveways, sidewalks and alleys.*

(1) *Driveways and circulation streets.*

a. Driveways and internal circulation streets must have lanes at least ten (10) feet in width, but not more than twelve (12) feet, excepting that width needed for bike lanes or special pedestrian accommodations.

b. Reserved.

c. Intersections of internal driveways or streets will be minimally controlled by stop signs, and will feature special crossway paving or treated surfaces.

d. Access driveways running parallel to the street shall not create a four-way intersection within one hundred twenty-five (125) feet of the ultimate curb line of the public street.

e. No more than one (1) curb cut per block face shall be permitted. Driveways and parking lot entrance-exits shall be combined and where appropriate located in alleys.

(2) *Sidewalks and pedestrian walkways.*

a. All driveways and internal streets shall have minimum five-foot sidewalks on both sides located away from the back of curb.

b. All sidewalks fronting buildings with ground floor retail shall be at least ten (10) feet in width.

c. Protected pedestrian walkways shall be provided through parking lots.

d. All developments shall include as part of their site plan pedestrian linkages through parking areas and to adjacent buildings or developments.

(3) *Alleys.* Alleys shall not be more than twenty (20) feet wide unless needed for emergency vehicle access. Where an alley runs along a property line, it shall be screened from the adjacent property by a permanent wall of high-quality materials compatible with neighboring buildings.

(e) *Utilities.*

(1) All new utilities for developments within the district shall be buried. All new developments shall underground all utilities on site or within adjacent public right-of-way whenever determined by the affected utility agency to be feasible.

(2) Trash enclosures shall be located in alleys whenever available or in common service areas for multiple developments.

(3) In all areas, service and waste removal areas shall be screened and located away from public outdoor spaces and pedestrian. Dumpster screening shall be as per 36-253.

(f) *Parking.*

(1) *Parking facilities.* Wherever feasible, multilevel parking structures shall be encouraged. Surface parking shall be limited to the side and rear of structures, unless grouped in quantities of fifty (50) spaces or less separated by a landscape strip no less than the minimum perimeter landscape strip as required for the property by chapter 15 of the Code [of Ordinances] or a structure from other vehicular areas and having no more than one vehicular connection to another surfacing parking area. Surface parking areas should be "broken up" or distributed around larger structures so as to shorten the distance to

other buildings and public sidewalks. For corner lots, parking is allowed along the side street frontage.

(2) *Parking requirements.* Parking requirements within the district shall be at least fifty (50) percent of that required by article VIII. The maximum allowed parking shall be the minimum standard established in article VIII.

(3) *Shared parking.* As an alternative to subsection (f)(2) above, mixed-use developments may utilize the shared parking methodologies developed by the Urban Land Institute and published in Shared Parking (Second Edition, 2005) by Mary S. Smith, et al. A project may elect this means of determining the total parking requirement by submitting a parking demand analysis prepared by a qualified parking or traffic consultant, a licensed architect, city planner, or urban planner or civil engineer.

(4) *On-street parking.* On-street parking on internal streets or circulation routes shall be allowed and may count towards the parking requirement. On-street parking is permitted either parallel, in areas in front of, or adjacent to, retail or commercial entries. Angled street (drive) parking shall not be permitted on streets (drives) that provide the development majority access. Such parking may count towards the overall project parking requirements. No on-street parking shall be allowed on University Avenue or Markham Street.

(5) *Parking in setback.* No parking shall be allowed in the "front yard setback" area.

(6) *Parking garage design.* Parking facilities should be designed consistent with the overall project design. Where possible, other uses—residential or commercial—should be used to "wrap" or otherwise block the view of a parking garage.

(g) *Signage.* Signage shall comply with provisions of article X of except as follows:

(1) No off-site advertising signs are permitted.

(2) No pole-mounted signs are permitted.

(3) Monument signs are to identify the development and be limited to seventy-two (72) square feet in area and six (6) feet in height for developments of greater than one (1) acre. For developments less than one (1) acre monument signs may be up to twenty-four (24) square feet in area and six (6) feet in height and must be as located as part of the required landscape area of the parking lot.

(4) Signage integrated into freestanding vertical structures whose design theme and materials are directly related to the primary development may be submitted for approval under the planned zoning district process if located along University southerly of Lee. No single elevation or face of such a structure shall be more than four hundred (400) square feet.

(h) *Landscaping and public spaces.*

(1) No street buffer or landscaping shall be required along streets classified less than an arterial. When the structure is not built to the property line, landscaping is required in the area between the building and property line up to that required in chapter 15 of the Code [of Ordinances].

(2) Land use buffers shall only be provided where single-family and duplex use or zoning is the abutting use. In those cases where a land use buffer is required, buffers shall be the same as those for multifamily uses in subsection 36-522(b)(1). In areas where terrain variation is great or other features result in the loss of privacy, alternative designs and massing shall be considered.

(3) Common use areas and plazas shall be a minimum of three hundred (300) square feet for thirty thousand (30,000) square-foot structures. For each additional five thousand (5,000) square feet or portion thereof, a minimum of an additional fifty (50) square feet of plaza area is required.

(4) Surface parking lots shall meet all current landscape requirements (chapter 15, article IV).

(5) Street trees shall be a minimum of three-inch caliper and shall be two (2) feet off the back of curb, thirty (30) feet on center. The canopy shall be maintained with an eight-foot clearance. A four-foot planter strip shall be maintained.

(6) Common use areas and plazas shall be maintained by a common authority. Attempts shall be made to maintain vegetation, trees, and bushes in undisturbed conditions to serve the aesthetic, recreational and ecological needs of the district. Trees planted in these areas shall be a minimum of two (2) inches in caliper and ten (10) feet in height.

(7) Trees greater than fourteen (14) inches in diameter, measured at four and one-half (4.5) feet above the ground, shall be protected from removal and damages in future development of the district. Any development within fifty (50) feet of any such tree shall be reviewed prior to development to assure protective measures are included and in place.

(i) *Lighting.*

(1) The purpose of this section is to regulate the intensity of exterior lighting. The intent is to prevent light from commercial developments from excessively illuminating the property in question, other properties, or the night sky.

(2) Only light fixtures which are categorized as full cut-off (FCO) fixtures shall be permitted. The use of fully shielded floodlights are permitted but not encouraged.

(3) The following are specific standards for lighting intensity based upon the activities performed involved. Values are presented in allowable foot-candles (fc) maintained (measured horizontally) at grade and are to be averaged throughout the site to avoid hot spots, i.e., areas of extreme light intensity relative to the remainder of the site:

Land Use	Minimum	Maximum
Pedestrian areas/ sidewalks	0.2 fc	1.0 fc
Building entries	1.0 fc	10.0 fc
Street lighting	0.2 fc	1.0 fc
Parking areas	2.0 fc	4.0 fc
Playgrounds		5.0 fc
Sports grounds		20.0 fc
Site perimeter		0.5 fc

(4) Gas station canopies shall be illuminated at a maximum luminance of thirty (30) fc and individual fixtures shall be flush mounted or have the canopy edge below the lowest light-emitting point on the fixtures. All existing gas station canopies that exceed this standard shall be made compliant within seven (7) years of the date of adoption of this article.

(5) Up lighting may be used to illuminate a building, landscaping element or architectural feature, provided the lighting design has a maximum luminance of twelve (12) fc, measured in a vertical plane. Down lighting is preferred.

(6) A lighting plan shall be submitted for staff review and approval prior to issuance of building permits. The plan shall contain the following information:

a. An area lighting plan, drawn to scale, indicating all structures, parking lots, building entrances, vehicular and pedestrian traffic areas, vegetation that may interfere with lighting, and adjacent land uses that may be adversely impacted by the lighting. The plan shall contain a layout of all proposed fixtures by location, orientation, aiming direction, mounting height and type.

b. The submission shall include, in addition to proposed area lighting,

all other exterior lighting, e.g., architectural, building entrance, landscape, flagpole, sign, etc.

c. A ten-foot × ten-foot luminance grid (point-by-point) of maintained foot-candles overlaid on the site plan plotted out to 0.0 foot-candles, which demonstrates compliance with light intensity standards.

(Ord. No. 19,754, § 2, 5-15-07; Ord. No. 20,326, § 1(k), 9-21-10)

Sec. 36-390. Exceptions.

Property, if for any reason, that cannot be developed without violating the standards of the design overlay district shall be reviewed through the PZD, planned zoning district, section of the zoning ordinance, with the intent to devise a workable development plan which is consistent with the purpose and intent of the overlay standards. All variances to the underlying zoning requirements shall be reviewed as per article II, division 2, Board of Zoning Adjustment.
(Ord. No. 19,754, § 2, 5-15-07; Ord. No. 21,168, § 1(f), 2-2-16)

Secs. 36-391—36-410. Reserved.

DIVISION 11. PRESIDENTIAL PARK OVERLAY DISTRICT

Sec. 36-411. Purpose and intent.

The purpose of the Presidential Park overlay (district) is to create a quality vital atmosphere for businesses (commercial or office) and residents. Buildings, parking areas, signage, landscaping and street furnishings should all be designed to complement and encourage pedestrian use both day and evening. Proper planning is necessary to avoid visual clutter.

Guidelines and strategies must be in place to protect the district from the negative impact of poorly planned or incompatible projects. Incompatible development has the potential to destroy the attributes that will attract people to the district.
(Ord. No. 19,034, § 1A, 1-6-04)

Sec. 36-412. Boundaries.

The district shall include all parcels within the area described below: starting at Interstate 30 and the Arkansas River east along the river to one hundred fifty (150) feet east of Bond Street; thence south to 6th Street; hence west to Bond; hence south one hundred (150) feet; hence west to a line one hundred fifty (150) feet east of College Street; hence south to a line one hundred fifty (150) feet south of 9th Street; hence west to Interstate 30; hence north to the point of beginning.
(Ord. No. 19,034, § 1B, 1-6-04)

Sec. 36-413. Application of regulations.

(a) The regulations of this district shall be in addition to and shall overlay all other zoning districts and other ordinance requirements regulating the development of land so that any parcel of land lying in the overlay district shall also lie within one or more of the other underlying zoning districts. Therefore, all property within this overlay district shall have requirements of both the underlying and overlay zoning districts in addition to any other provisions regulating the development of land. In case of conflicting standards between this article and other city ordinances, the overlay requirements shall control.

(b) These regulations shall apply to new development, redevelopment of existing buildings the cost of which exceeds fifty (50) percent of the buildings' current replacement value or expansion of existing development. The design guidelines shall be implemented when a permit is requested for exterior improvements on buildings or in the public right-of-way. Routine repairs, maintenance and interior alterations shall not require compliance with this section.

(c) Uses, structures or lots which existed on the effective date of this ordinance which do not conform to the standards and guidelines established in this ordinance, shall be treated as nonconforming according to the provisions of article III of chapter 36, Little Rock Code of Ordinances. Nonconforming status shall not apply to construction of improvements in the public right-of-way required by the city, redevelopment or expansion of existing development.
(Ord. No. 19,034, § 1C, 1-6-04)

Sec. 36-414. Sidewalks and landscape.

All landscape requirements of the base zone shall be enforced, related to location, plant size and spacing. Along Bond, 3rd, 6th, 9th, and College Streets, all the standards delineated below apply in urban use-zoned areas the street trees below apply. Any property owner, due to the spacing requirements, not required to provide a "street tree" or "street furniture" shall pay an in-lieu fee based on the percentage of frontage along the street divided by the cost of providing the required street trees and furniture in the ordinance. See schedule for base costs.

(1) *Street trees.* Street trees should be:

- Shademaster honey locust (*Gleditsia triancathos inermis* "shademaster");
- Red sunset maple (*Acer rubrum* "red sunset");
- Summard [Shumard] oak (*Quercus shumardii*).

(2) *Street furniture.* Benches and receptacles shall be at a spacing of one hundred (100) feet with none closer than fifty (50) feet to the intersection.

Street furniture shall be:

- *Bench.* DuMor Bench 51 or approved equivalent;
- *Receptacle.* DuMor Receptacle 152 or approved equivalent.

(Ord. No. 19,034, § 1D, 1-6-04)

Sec. 36-415. Vehicular use and service areas.

(1) In order to conserve our natural resources and minimize flooding and pollution due to large amounts of impermeable surfaces, vehicular use areas may be surfaced with porous materials. Vehicle use areas that are made of porous materials must be low use, specifically may not be loading areas, primary parking areas, driveways, etc. The plans development administrator must approve any alternative surface treatment, to that described in section 36-508 at the time of building permit review.

(2) Service and loading areas shall not be located along 3rd Street from Interstate 30 east for one thousand one hundred fifty (1,150) feet, 6th Street, Bond Street or College/College Street extension. Delivery vehicles (such as beer, soft drink, etc. trucks) may make deliveries on these streets.

(Ord. No. 19,034, § 1E, 1-6-04)

Sec. 36-416. Use regulations.

Permitted uses.

(1) All uses in the base zone classification;

(2) Outdoor, on-premises, seating areas for dining in UU areas.

(Ord. No. 19,034, § 1F, 1-6-04)

Sec. 36-417. Height regulations.

(a) No building hereafter erected or structurally altered shall exceed thirty-five (35) feet in the area east of John Street.

(b) Any development in the area between John and McLean Streets erected or structurally altered shall not exceed the base height of forty-five (45) feet; except that the height may be increased as follows:

(1) Developments which provide a minimum 40 percent of the gross floor area for residential uses are entitled to add thirty (30) feet. If at least fifty (50) percent of the street-level office and retail space has direct access to the street, an additional fifteen (15) feet may be added to the structure. Building height in this section is cumulative not to exceed ninety (90) feet.

(Ord. No. 19,034, § 1G, 1-6-04)

Sec. 36-418. Setbacks.

Setback shall be that of the base zoning except:

(1) Bond Street, 8th Street, 9th Street, and McLean Street south of 7th Street where all structures shall be set back fifteen (15) feet from the street right-of-way.

(2) John Street, where all structures shall be set back twenty (20) feet from the street right-of-way.

(Ord. No. 19,034, § 1H, 1-6-04)

Sec. 36-419. Parking.

No surface parking is allowed along 3rd Street from I-30 east one thousand, one hundred fifty (1,150) feet, 6th Street, Bond Street and College/College Street Extension. Parking structures along these streets must either have nonvehicular uses on the first (ground) level or a false facade along the street so as to appear to be a non-vehicular use area.

(Ord. No. 19,034, § 1I, 1-6-04)

Sec. 36-420. Signage.

General sign regulations as per the base zoning classification except for the first two (2) floors where the following is required:

(1) Awning valances are appropriate locations for signage, sign area not to exceed six (6) square feet of valance.

(2) Neon illumination is permitted if channelized.

(3) Letters shall not exceed thirty (30) inches in height.

(4) Window signs shall not cover more than twenty-five (25) percent of each glass panel.

(Ord. No. 19,034, § 1I, 1-6-04)

Sec. 36-421. Exceptions.

Property, if for any reason, that cannot be developed without violating the standards of the design overlay district shall be reviewed through the PZD, planned zoning district, section of the zoning ordinance, with the intent to devise a workable development plan which is consistent with the purpose and intent of the overlay standards. All variances to the underlying zoning requirements shall be reviewed as per article II, division 2, Board of Zoning Adjustment.

(Ord. No. 19,034, § 1J 1-6-04; Ord. No. 21,168, § 1(g), 2-2-16)

Secs. 36-422—36-434. Reserved.

DIVISION 12. DESIGN OVERLAY DISTRICT—GRANITE MOUNTAIN CORRIDOR

Sec. 36-434.1. Purpose and intent.

The purpose of the Granite Mountain overlay (district) is to enhance the scenic quality of the corridor and to create a distinctive atmosphere that complements the Audubon Arkansas Nature Center building, outdoor nature trails, and wildlife and night sky viewing areas as well as other future development of the area. Proper planning is necessary to avoid visual clutter.

Guidelines and strategies must be in place to protect the district from the negative impact of poorly planned or incompatible projects. Incompatible development has the potential to destroy the attributes that will attract people to the district.

(Ord. No. 18,183, § 1A, 9-21-04)

Sec. 36-434.2. Boundaries.

The district shall include all parcels located on Springer Boulevard to a distance of three hundred (300) feet of each side of the right-of-way of Highway 365, from the city limits on the south and east to Roosevelt Road on the north and west.

(Ord. No. 18,183, § 1B, 9-21-04; Ord. No. 21,168, § 1(t), 2-2-16)

Sec. 36-434.3. Application of regulations.

(a) The regulations of this district shall be in addition to and shall overlay all other zoning districts and other ordinance requirements regulating the development of land so that any parcel of land lying in the overlay district shall also lie within one (1) or more of the other underlying zoning districts. Therefore, all property within this overlay district shall have requirements of both the underlying and overlay zoning districts in addition to any other provisions regulating the development of land. In case of conflicting standards between this article and other city ordinances, the overlay requirements shall control.

(b) These regulations shall apply to new development, redevelopment of existing buildings the cost of which exceeds fifty (50) percent of the building's current replacement value or expansion of existing development. The design guidelines shall be implemented when a permit is requested for exterior improvements on buildings or in the public right-of-way. Routine repairs, maintenance and interior alterations shall not require compliance with this section.

(c) Uses, structures or lots which existed on the effective date of this division which do not conform to the standards and guidelines established in this division, shall be treated as nonconforming according to the provisions of article III of chapter 36, Little Rock Code of Ordinances. Nonconforming status shall not apply to construction of improvements in the public right-of-way required by the city, redevelopment or expansion of existing development.
(Ord. No. 18,183, § 1C, 9-21-04)

Sec. 36-434.4. Setback.

North of the railroad crossing located south of East 30th Street, the setback shall be fifteen (15) feet.

South of the railroad crossing located south of East 30th Street, the setback shall be twenty-five (25) feet.
(Ord. No. 18,183, § 1D, 9-21-04; Ord. No. 21,168, § 1(u), 2-2-16)

Sec. 36-434.5. Signage.

No pole-mounted or off-premises signage is allowed.

Maximum height of monument sign—Six (6) feet.

Maximum sign area of monument sign— Thirty (30) square feet.
(Ord. No. 18,183, § 1E, 9-21-04)

Sec. 36-434.6. Landscape/streetscape.

All street trees shall be thirty (30) feet on center and two (2) feet off back-of-curb. Trees shall be located no closer than thirty (30) feet to a street intersection with a water source provided. Trees shall be three-inch to three and one-half-inch-caliper trees. The tree canopy shall be maintained at least eight (8) feet above the sidewalk.

(1) North of the railroad crossing located south of East 30th Street. Sidewalk shall be eight (8) feet wide and may be constructed at the curb. All walks, curbs, gutters and tree grate frames shall be concrete.

Rather than a green strip along the road, there shall be a paved "tree zone" with minimum 4 × 4 foot tree well including grate. The remaining four (4) feet are to be kept clear for pedestrian movement.

(2) South of the railroad crossing located south of East 30th Street. Pedestrian/bike path rather than sidewalk shall be constructed at the property line. Path paved width shall be eight (8) feet.

Swales along Springer Boulveard shall be at a 3:1 slope and designed to retain (hold) water during large storm events. The swale shall be vegetated with "cells" to reduce water velocity. Swale design and construction shall be reviewed and approved by the state highway department.

(3) *Plantings.*

a. *Where utility poles are present. Ilex opaca* (American holly), *amelanchier arborea* (service berry), *carpinus caroliniana* (American hornbeam), *cornus florida* (flowering dogwood), *crataegus marshallii* (parsley hawthorn), *crategus opaca* (mayhaw), *crataegus viridis* (green hawthorn), *ilex decidera* (possumhaw), *ilex vomitoria* (yaupon holly), or approved equivalent native species by the urban forester in consultation with the plans development administrator.

b. *Where no utility poles are present.* In addition to those previously listed, *celtis laevigata* (sugarberry), *fraxinus pennsylvanica* (green ash), *plate-*

nus occidentalis (American sycamore), *quercus falcata* (southern red oak), *quercus nigra* (water oak), *quercus phellos* (willow oak), *quercus shumardii* (Shumard oak), *pinus taeda* (loblolly pine), *nyssa sylvatica* (blackgum), *cercis canadensis* (redbud), or approved equivalent native species by the urban forester in consultation with the plans development administrator.

(Ord. No. 18,183, § 1F, 9-21-04; Ord. No. 21,168, § 1(v), 2-2-16)

Sec. 36-434.7. Vehicular use and service areas.

(a) In order to conserve our natural resources and minimize flooding and pollution due to large amounts of impermeable surfaces, vehicular use areas may be surfaced with porous materials. Vehicular use areas that are made of porous materials must be low use, specifically may not be loading areas, primary parking areas, driveways, etc. The plans development administrator must approve any alternative surface treatment, to that described in section 36-508 at the time of building permit review.

(b) Surface parking is to be located behind or adjacent to the structure, never between the building and abutting street. Service/loading areas shall not be located facing Springer Boulevard. They shall be designed on the side or rear of buildings.

(Ord. No. 18,183, § 1G, 9-21-04; Ord. No. 21,168, § 1(w), 2-2-16)

Sec. 36-434.8. Outdoor lighting.

A lighting plan shall indicate the location, type, intensity, and height of luminaries including both building and ground-mounted fixtures. The lighting plan shall be reviewed using national accepted dark-sky principals. The plan shall include the description of the luminaries, including lamps, poles or other supports and shielding devices, which may be provided as catalogue illustrations from the manufacturer.

(1) Lighting shall be shielded so as to direct light below a horizontal plane running through the lowest point on the fixture where light is emitted.

(2) Fixtures shall be high intensity type such as high pressure sodium.

(3) Maximum height for mounting lighting fixture shall be twenty (20) feet.

(Ord. No. 18,183, § 1H, 9-21-04)

Sec. 36-434.9. Exceptions.

Property, if for any reason, that cannot be developed without violating the standards of the design overlay district shall be reviewed through the PZD, planned zoning district, section of the zoning ordinance, with the intent to devise a workable development plan which is consistent with the purpose and intent of the overlay standards. All variances to the underlying zoning requirements shall be reviewed as per article II, division 2, Board of Zoning Adjustment.

(Ord. No. 18,183, § 1I, 9-21-04; Ord. No. 21,168, § 1(h), 2-2-16)

DIVISION 13. HILLCREST DESIGN OVERLAY DISTRICT*

Sec. 36-434.10. Purpose and intent.

The purpose of a Hillcrest design overlay district (district) is to help maintain the built environment in a neighborhood that is rich in history and architectural character and consists of both a vital residential area and a thriving commercial sector. In order to preserve and enhance those qualities, compatible design and scale of buildings, parking areas, signage, landscaping, streetscapes, and street furnishings are required such that the friendly, pedestrian-oriented, "small-town" nature of the neighborhood is continued.

Through additional guidelines for buildings, the district intends to prevent incompatible and poorly planned projects from having a negative impact on Hillcrest's unique character and its living and working environment. Such incompatible construction has the potential to destroy the very attributes that have attracted people to the

*__Editor's note—__Ord. No. 20,223, §§ 1, 2, adopted March 2, 2010, amended div. 13 in its entirety and enacted similar provisions as set out herein. The former div. 13 derived from Ord. No. 19,782, § 1, adopted July 17, 2007.

neighborhood since its beginning as Little Rock's first "suburb" in the 1890s, and more recently during its resurgence since the 1960s.
(Ord. No. 20,223, § 2, 3-2-10)

Sec. 36-434.11. Definitions.

Floor area ratio (FAR). The total area of all enclosed spaces on all floors of the principal structure as measured to the outside surfaces of the exterior walls and including halls, stairways, elevator shafts, and attached garages divided by the area of the lot.

Attached unfinished spaces such as storage areas, floored attics and above ground basements, shall be included as part of the permitted floor area at fifty (50) percent of the measured area.

Crawlspaces or similar spaces that must be accessed from outside the main structure, unen-

closed porches, decks, and attached carports that are open on at least two sides are excluded from the permitted floor area.

Grade plane. A reference plane representing the average of finished ground level adjoining the building at exterior walls. The reference plane shall be established by the lowest points within the area between the building and the lot line or, where the lot line is more than six (6) feet from the building, between the building and a point six (6) feet from the building. A minimum of four (4) points, each from a different side of the building, shall be used in this calculation.

Lot coverage. The area of a lot covered by a building or buildings expressed as a percentage of the total lot area. All buildings or structures that have a roof are counted toward the total. Decks, driveways, patios, arbors, trellises, and other structures that do not have a roof are not counted toward the total.
(Ord. No. 20,223, § 2, 3-2-10)

Sec. 36-434.12. Application of the regulations.

A. The regulations of this district shall be in addition to and shall overlay all other zoning districts and other ordinance requirements regulating the development of land so that any parcel of land lying in the overlay district shall also lie within one (1) or more of the other underlying zoning districts. Therefore, all property within this overlay district shall have requirements of both the underlying and overlay zoning districts, in addition to any other provisions regulating the development of land. In case of conflicting standards between this article and other city ordinances, the overlay requirements shall control.

B. These regulations shall apply to new development and redevelopment exceeding fifty (50) percent of the structure's current replacement value or expansion of existing development. These regulations shall apply to new development, expansion of existing development, when a permit is requested for exterior improvements on buildings, and private improvements located in the public right-of-way. Private improvements in the public right-of-way may include, but [are] not limited to: awnings, benches, and flagpoles. Routine repairs, maintenance, and interior alterations shall not require compliance with this section.

C. Uses, structures, or lots that existed on the effective date of this ordinance, July 17, 2007, which do not conform to the standards and guidelines established in this division, shall be treated as nonconforming according to the provisions of article III. Nonconforming status shall not apply to construction of improvements in the public right-of-way required by the city, redevelopment, or expansion of the existing development.

D. The following guidelines shall apply to both residential and nonresidential types of structures. In the case of multiuse structures, the applicant shall conform to section 36-434.15, the multifamily—nonresidential developments.

E. Churches and schools, regardless of underlying zoning shall conform to section 36-434.15. Multifamily—Nonresidential developments. All other properties which require conditional use permits and special use permits on residentially zoned land shall conform to section 36-434.14, Single-family and two-family development.
(Ord. No. 20,223, § 2, 3-2-10)

Sec. 36-434.13. Overlay boundaries.

The district shall include all parcels within the area bounded as follows, less that area within the Midtown DOD (chapter 36, article V, division 10):

Starting at the southwest corner of the Arkansas School for the Blind (with Markham), thence west along Markham to University Avenue, thence north along University Avenue to "H" Street, thence east along "H" Street to Fillmore, thence north along Fillmore Street to "L" Street, thence east along "L" Street to Kavanaugh Boulevard, thence south along Kavanaugh Boulevard to North Lookout Street, thence east along North Lookout (southern boundary of Allsop Park (north)), thence east and south along the north and west boundary of Doyle Place Addition to Allsop Park (south), thence south and west along said boundary to Cedar Hill Road, thence southwest along Cedar Hill Road to a point approximately two hundred fifty (250) feet west of Cedar Hill Circle, thence south approximately two hundred (200) feet, thence

north east parallel to Oakwood Road approximately seven hundred (700) feet, thence south to a point two hundred (200) feet north of "I" Street, thence east parallel to "I" Street and Edgerstoune Lane approximately one thousand six hundred (1,600) feet, thence south approximately two hundred (200) feet to Ozark Point Water Treatment Plant, thence east, south and west along the boundary of the Ozark Point Water Treatment Plant to Arkansas School for the Blind, thence south along the western boundary of the Arkansas School for the Blind to Markham the point of beginning.
(Ord. No. 20,223, § 2, 3-2-10)

Sec. 36-434.14. Single-family and two-family developments.

The residential regulations shall apply to single-family and two-family developments R-2, R-3, and R-4 residential zoned land within the district boundaries. Although the overlay district does not regulate the style and character of Hillcrest housing, new construction and additions should be respectful of the prevailing styles of the neighborhood. The compatible design of housing contributes to the richness of the history and architectural character of Hillcrest.

A. *Scale.* Floor-to-area ratio is abbreviated as FAR.

Lot sizes of less than eight thousand (8,000) square feet.

* For residential structures with one (1) floor, the FAR shall be 0.37;

* For residential structures with two (2) floors, the FAR shall be 0.50;

* For residential structures with more than two (2) floors, i.e. built-out attics, the FAR shall be .55.

Lot sizes of eight thousand (8,000) square feet or more.

* For residential structures with one (1) floor, the FAR shall be 0.37;

* For residential structures with more than one (1) floor, the FAR shall be 0.50.

The purchase of an adjoining lot shall not allow a proportionate increase in the size of the building in all cases. For the purposes of computing the FAR, lot sizes of more than ten thousand (10,000) square feet shall use a maximum lot size in the calculations of ten thousand (10,000) square feet. Any lot of record or any combination of lots creating a zoning lot of record exceeding ten thousand (10,000) square feet in existence at the time of the adoption of this section shall have an FAR as described for lots exceeding eight thousand (8,000) square feet.

B. *Mass.* Maximum lot coverage for all structures under roof shall not exceed fifty (50) percent. For lots of four thousand five hundred (4,500)square feet or less, maximum lot coverage for all structures under roof shall not exceed sixty (60) percent.

C. *Setbacks.* All setbacks shall be as required for the zoning district, except as follows:

1. The minimum front yard setback for new principal structures or additions to principal structures in the R-2, R-3, and R-4 zoning districts shall be fifteen (15) feet in all instances.

2. Front yard and side yard setbacks on existing and proposed buildings shall be measured from twelve (12) inches above grade on the closest vertical surface measured to the property line.

3. Front yard setbacks for structures on interior lots: The front yard setback for the principal structure shall be aligned with the average of the current setbacks of the adjoining residential structures within ten (10) percent variance, but no structure may be within the minimum fifteen (15) foot front setback as established in this section.

4. If adjoining structure(s) or the average of the adjoining structure(s) is encroaching into the minimum fifteen (15) foot front yard setback as set forth in this section or the minimum street side yard setback as stated elsewhere in this chapter, the building shall be built to the minimum front yard and/or the street side yard setback line.

5. Additions to the side of a principal structure on an interior lot line shall not be subject to the front yard setback ten (10) percent variance rule if the addition does not extend in front of the main wall of the existing structure towards the front property line.

6. Front and street side yard setbacks for structures on corner lots: The front yard setback shall be within ten (10) percent of the adjoining residential principal structure and the street side yard setback shall be within ten (10) percent of the adjoining residential principal structure but no structures shall be built within the minimum front or side yard setbacks.

7. Additions to the rear of the principal structure on a corner lot shall not be subject to the side yard setback ten (10) percent variation rule if the addition does not extend in front of the main wall of the structure towards the street side property line.

8. When determining front or side yard setbacks on a structure that is oriented differently than all other structures on the block face, the front yard setback shall be fifteen (15) feet and the side yard setback shall be ten (10) percent of the lot width not to exceed eight (8) feet.

9. Accessory buildings setbacks and separations shall be as permitted in 36-156 (Height and area exceptions).

D. *Accessory building coverage.* Accessory building coverage within the twenty-five-foot setback from the rear property line shall be no more than forty (40) percent of the area in that section.

E. *Building height and ridge-line elevations.* Maximum building height shall be thirty-nine (39) feet, measured from the "grade plane" to the ridge-line of the highest roof surface. In addition, new buildings and additions shall be constructed to an elevation that is within one story of the adjacent residential structures.
(Ord. No. 20,223, § 2, 3-2-10)

Sec. 36-434.15. Multifamily and nonresidential developments.

The multifamily and nonresidential developments regulations shall apply to all zoning districts except R-2, R-3 and R-4 within the district, and shall apply to all churches and schools, regardless of underlying zoning within the district.

A. *Building form.* New and renovated buildings (more than fifty (50) percent exterior surface area altered) shall be compatible with existing scale, setbacks, and mass of the buildings in the immediate area (e.g., along Kavanaugh Boulevard most buildings have minimum setbacks from the street, whereas along Beechwood the former residences have setbacks with yards).

1. *Facades.* Street-level facades shall reflect the same building materials as existing commercial buildings in the one-block area adjacent to and across from the location. Predominant exterior building materials may be any standard material, except corrugated or ribbed materials, smooth-faced concrete block, tilt-up concrete panels, or prefabricated steel panels.

2. *Setbacks.* Setbacks from street and alley shall meet current code requirements, except setbacks may align with surrounding structures.

   Front-yard setbacks on Kavanaugh Boulevard between Rose Street and L Street shall not exceed ten (10) feet. A minimum of fifty (50) percent of the front facade must be constructed along this line. Front yard and side yard setback on existing and proposed buildings shall be measured from twelve (12) inches above grade on the closest vertical surface measured to the appropriate property line.

3. *Height.* Maximum building height shall be thirty-nine (39) feet, measured from the "grade plane" to the ridge line of the highest roof surface or parapet wall.

4. *Building form.*

(a) Wall projections or recesses a minimum of three (3) feet depth and a minimum of twenty (20) contiguous feet not to extend over twenty (20) percent of the facade shall be required. Arcades, display windows, entry areas or awnings shall exist along at least sixty (60) percent of the facade.

(b) Buildings shall maintain a distinction between upper and lower levels; any elevation greater than eighteen feet in height shall contain an architectural treatment, which visually divides the structure into "stories".

(c) Roof lines shall be varied with a change in height every one hundred (100) linear feet in building length. Parapets, mansard roofs, gable roofs, high roofs shall be used to conceal flat roofs and roof top equipment.

B. *Parking.*

1. *Standard parking requirements.* Parking requirements within the district shall be fifty (50) percent of that required by article VIII. The maximum parking allowed for this district shall be the minimum standard established in article VIII. Multifamily developments or mixed-use developments that contain residential units must provide the minimum number of parking spaces as required in section 36-502 for those residential units. All other parking for the mixed-use facility may develop at the requirements stated in this division.

2. *Off-site parking.* Where on-street parking is allowed it shall be credited toward the parking requirements at a rate of one (1) space per ten (10) linear feet of street frontage. Parking spaces within a common parking facility may be counted toward the parking requirements of any development. The total number of parking spaces within the common parking facility shall not be less than the sum of requirements for the various individual uses utilizing the facility.

3. *Parking facilities.* Surface parking shall be limited to the side and rear of structures. No parking shall be allowed in the "front yard" setback. Surface parking is to be located behind or adjacent to a structure, never between the building and any abutting street.

Any parking structure shall be required to have active uses on the street level other than parking (such as quiet office, or neighborhood retail uses).

C. *Utilities and services.* All new developments are required to place utilities and cabled services in subterranean locations from the pole to the structure.

D. *Signage.* Permitted signs shall be as in section 36-553, Signs permitted in institutional and office zones. On the street level, the maximum area of signage may be doubled if at least fifty (50) percent of the street-level office and retail space has direct access to the street.

The highest point on any commercial sign attached to the building shall not exceed the corresponding building's height.

* Freestanding commercial signs may not exceed eighteen (18) feet in height.

* Neon-lit signs greater than thirty (30) square feet are prohibited.

* Off-premises signs are prohibited.

E. *Lighting.*

1. The purpose of this section is to regulate the intensity of exterior lighting. The intent is to prevent light from commercial developments from

excessively illuminating the property in question, other properties, or the night sky.

2. Only light fixtures that are categorized as full cut-off (FCO) fixtures shall be permitted. The use of fully shielded (FCO) floodlights are permitted but not encouraged.

3. The following are specific standards for lighting intensity based upon the activities performed involved. Values are presented in allowable footcandles (fc) maintained (measured horizontally) at grade and are to be averaged throughout the site to avoid hot spots, i.e.; areas of extreme light intensity relative to the remainder of the site:

Land Use	*Minimum*	*Maximum*
Pedestrian areas/sidewalks	0.2 fc	1.0 fc
Building entries	1.0 fc	10.0 fc
Street lighting	0.2 fc	1.0 fc
Parking areas	2.0 fc	4.0 fc
Playgrounds		5.0 fc
Sports grounds		20.0 fc
Site perimeter		0.5 fc

4. Gas station canopies shall be illuminated at a maximum luminance of thirty (30) fc and individual fixtures shall be flush-mounted or have the canopy edge below the lowest light-emitting point on the fixtures.

5. Up lighting may be used to illuminate a building, landscaping element or architectural feature, provided the lighting design has a maximum luminance of twelve (12) fc, measured in a vertical plane. Down lighting is preferred.

6. A lighting plan shall be submitted for staff review and approval prior to issuance of building permits. The plan shall contain the following information:

   (a) An area lighting plan, drawn to scale, indicating all structures, parking lots, building entrances, vehicular and pedestrian traffic areas, vegetation that may interfere with lighting, and adjacent land uses that may be adversely impacted by the lighting. The plan shall contain a layout of all proposed fixtures by location, orientation, aiming direction, mounting height and type.

   (b) The submission shall include, in addition to proposed area lighting, all other exterior lighting, e.g., architectural, building entrance, landscape, flagpole, sign, etc.

   (c) A ten-foot luminance grid (point by point) of maintained footcandles overlaid on the site plan plotted out to 0.0 footcandles, which demonstrates compliance with light intensity standards.

(Ord. No. 20,223, § 2, 3-2-10)

Sec. 36-434.16. Exceptions.

Property, if for any reason, that cannot be developed without violating the standards of the Hillcrest Design Overlay District shall be reviewed through the planned zoning district (PZD) section of the zoning ordinance, with the intent to devise a workable development plan which is consistent with the purpose and intent of the overlay standards. All variances to the underlying zoning requirements shall be reviewed as per article II, division 2, Board of Zoning Adjustment. (Ord. No. 20,223, § 2, 3-2-10; Ord. No. 20,942, §§ 1, 2, 10-21-14)

Secs. 36-434.17—36-434.24. Reserved.

DIVISION 14. DESIGN OVERLAY DISTRICT—CENTRAL HIGH NEIGHBORHOOD DESIGN OVERLAY DISTRICT*

Sec. 36-434.25. Purpose and intent.

(a) *Purpose and intent.* The purpose of the Central High Neighborhood Design Overlay District (district) is to create a quality vital atmo-

*__Editor's note—__Ord. No. 20,180, § 1, adopted Oct. 20, 2009, added div. 13 to art. V. Inasmuch as said div. 13 already existed, the new material has been redesignated as herein set out at the editor's discretion and with the approval of the city.

sphere for businesses (commercial or office) and residents through protecting the historical architectural integrity and sense of place of the district, by encouraging historic rehabilitation of existing structures, and in-fill development which is fully compatible with existing, historic building stock. Buildings, parking area, signage, landscaping, and street furnishings should all be designed to complement and encourage pedestrian use both day and evening. Proper planning is necessary to ensure visual clutter is avoided.

Guidelines and strategies must be in place to protect the district from the negative impact of poorly planned or incompatible projects. Incompatible development has the potential to destroy the attributes that will attract people to the district.

(b) *District boundaries.* The district shall include all parcels within the area as described: Starting at the intersection of W 12th Street and South Woodrow Street, east along the centerline of W 12th Street to the intersection of South Schiller Street, thence south along the centerline of South Schiller Street to the intersection of W Daisy L Gatson Bates Drive, thence east along the centerline of W Daisy L Gatson Bates Drive to the intersection of Dr. Martin Luther King Jr. Drive, thence south along the centerline of Dr. Martin Luther King Jr. Drive to the intersection of W 17th Street, thence west along the centerline of W 17th Street to the center line of South Woodrow Street, thence north along the centerline of South Woodrow Street to the point of beginning.

Less and except:

All properties bounded by W Daisy L Gatson Bates Drive on the north, Park Street on the east, West 16th Street on the south and Jones Street on the west; and Park Addition Block 7 Lots 1, 2 and 12; and Park Addition Block 6 Lots 4—9; and that part of Dennison Street located between 13th Street and W Daisy L Gatson Bates Drive; and

All of Lots 15, 16, I7, and part of Lots 10 and 11, lying East of the Union Pacific Railroad right-of-way (Formerly Chicago, Rock Island and Pacific Railroad Company) and all of Lots 12, 13 and 14, less and except the North 35.00 feet and all that part of the South half of the closed East-West Alley lying North of Lots 10 and 11, all lying in Block 11, Worthern & Browns Addition, Little Rock, Pulaski County, Arkansas, more particularly described as follows:

Beginning at the Southeast corner of said Lot 17, Block 11; thence West along the South line of Lots 17, 16, 15, 14, 13, 12 and 11, said Block 11, 342.40 feet to a point 10 feet Easterly of, as measured at right angles to the center line of the Union Pacific Railroad Company's most Easterly sidetrack; thence Northerly on a straight line 10 feet Easterly of and parallel to the center line of the tangent portion of said sidetrack, 152.93 feet to the centerline of the closed East-West Alley; thence East along said centerline, 71.80 feet to a point on the East line of said Lot 11 extended; thence South along said extended line of Lot 11, 45.20 feet; thence East along a line 35.00 feet South and parallel to the center line of said closed East-West alley, 150.00 feet to a point on the East line of said Lot 14; thence North along said East line, 35.00 feet to the Northeast corner of said Lot 14; thence East along the South line of said Closed East-West alley and the North line of said Lots 15, 16 and 17, 150.00 feet to the Northeast corner of said Lot 17; thence South along the East line of said Lot 17, being the West right-of-way line of Jones Street, 140.00 feet to the point of beginning.
(Ord. No. 20,180, § 1, 10-20-09)

Sec. 36-434.26. Definitions.

Block face. The total of all lots within a city block facing a single given city street.

Developed block face. A block face containing developed lots which comprise fifty (50) percent or more of the block face.

Driveway. A designated gravel or paved vehicular path that leads from the public or private street to a permanent parking location, i.e.; a parking pad, carport, garage, etc., on private property.

New construction. Construction that is characterized by the introduction of new buildings or structures.

Undeveloped block face. A block face containing developed lots which comprise less than fifty (50) percent of the block face.
(Ord. No. 20,180, § 1, 10-20-09)

Sec. 36-434.27. Application of design regulations.

(a) The regulations in this division shall be in addition to and shall overlay all other zoning districts and other ordinances requirements regulating the development of land so that any parcel of land lying in the overlay district shall also lie within one (1) or more of the other underlying zoning districts. Therefore, all property within this overlay district will have requirements of both the underlying and overlay zoning district in addition to other ordinance requirements regulating the development of land. In case of conflicting standards between this division and other city ordinances, the overlay requirements shall control.

(b) These regulations shall apply to new development and also to expansion or redevelopment if the expansion or redevelopment exceeds fifty (50) percent of the structure's assessed value according to the county tax assessor but not including land value. In order to be compatible with the established neighborhood, new construction and landscaping shall comply with the following criteria. In the case of an undeveloped block face, the requirements shall relate to the adjacent block faces.

(c) Applicants for building permits to redevelop existing structures in the district shall state on their application the expected value of interior and of exterior improvements to the structure. Before a building permit is issued for more than one thousand dollars ($1,000.00) in exterior improvements to a structure, the permit shall be reviewed pursuant to section 36-434.28 by the department of planning and development to determine whether the total of proposed improvements are likely to exceed fifty (50) percent of the value of the structure, and thus trigger application of the design guidelines in this regulation.

(d) Uses, structures or lots which existed on the effective date of this division which do not conform to the standards and guidelines established in this division, shall be treated as nonconforming according to the provisions of article III. Nonconforming status shall not apply to construction of improvements in the public right-of-way required by the city, redevelopment, or expansion of existing development.

(e) Routine repairs, maintenance and interior alterations shall not be subject to these regulations. Regular maintenance shall be defined as maintenance or repair of any exterior architectural feature which does not change but simply upgrades a structure, including, but not limited to: repainting, replacing deteriorated porch flooring, stairs, siding or trim in the same material and texture, or replacing screens, gutters or downspouts. Regular maintenance does not involve a change in design, material, or outer appearance of any architectural feature. In the event of a dispute, to determine routine maintenance that does not require compliance with this section, the department of planning and development shall follow guidelines established by the Little Rock Historic District Commission for routine maintenance that does not require HDC review.

(f) To encourage owners of properties in the district to return them as much as possible to their original, historic appearance when built, the director of the department of planning and development shall promptly approve building permit requests within the boundaries of the district to return properties as near as possible to their appearance when built. To determine this, the director shall rely upon advice from the Department of Arkansas Heritage or staff of the Little Rock Historic District Commission.

(g) Demolitions shall not be subject to these regulations.

(h) Properties with conditional use permits on nonresidentially zoned land, churches, and schools, regardless of underlying zoning, shall conform to section 36-434.30, New construction and additions or modifications to existing structures on multifamily or nonresidentially zoned land. All other properties with conditional use permits and special use permits on residentially zoned land shall conform to section 36-434.29, New construc-

tion and additions or modifications to existing structures on single-family or two-family zoned land section.
(Ord. No. 20,180, § 1, 10-20-09)

Sec. 36-434.28. Review section.

The director of the department of planning and development shall determine compliance of all building permit requests within the boundaries of the HN district.
(Ord. No. 20,180, § 1, 10-20-09)

Sec. 36-434.29. New construction and additions or modifications to existing structures on single-family or two-family zoned land.

In order to be compatible with the historic nature of the neighborhood, new construction and additions to existing structures shall comply with the following criteria. plans for new construction, additions and modifications which are subject to this ordinance shall be submitted to the department of planning and development. The department will review plans for consistency with the detailed requirements of this ordinance and consistency with the historic nature of the district. In the case of an undeveloped block face, the requirements shall relate to the adjacent block faces.

(a) *Roofs.* A roof pitch of less than 8:12 shall be prohibited. Decorative roof features such as metal cresting, tile ridge caps, or other ornamentation shall be reinstalled when roofing or doing roof repairs. Tile roofs shall be preserved.

(b) *Materials.* The materials of the exterior shell shall be wood, brick, other masonry, or a material that resembles wood (i.e., vinyl siding, etc.)

(c) *Orientation.* The orientation shall be consistent with that of other structures on the developed block face.

(d) *Entrances.* The primary entrance shall be consistent with that of other structures on the developed block face.

(e) *Setback.* The front yard setback for all R-2 and R-3 single-family and R-4 two-family district shall be fifteen (15) feet. All other setbacks shall be as prescribed by the property's zoning district.

(f) *Parking in residentially zoned districts.* No off-street parking pads are allowed between the front of the principal structure and a public street. Surface parking is to be located behind or adjacent to a structure. Driveways are permitted to be installed in the front yard setback, but not between the principal structure and a public street. Parking pads, as used in this section, are to be defined as permanent surfaces of concrete, asphalt, modular pavers, masonry, gravel or other permanent surfaces to be used for the purpose of parking or storage of vehicles.

(g) *[Detached garages, carports.]* Detached garage and carport locations shall be located to the rear or the principal structure and shall not be located in the front setback. Attached garages must have garage door openings that face side streets, interior lot lines, or alleys.

(h) *Accessory buildings.* Accessory building coverage within the twenty-five-foot setback from the rear property line shall be no more than forty (40) percent of the area in that section. Accessory building setbacks shall be as per chapter [sections] 36-254 and 36-256.

(i) *Porches.* Residential structures must have a front porch that is a passageway from the street to the front door of the unit(s) on new residential construction and additions/modifications to the front facade of existing residential structures.

(j) *[Mechanical service equipment.]* Mechanical service equipment (including, but not limited to, air conditioner condensing units, transformers, solar collectors, satellite dishes, etc.) shall be located in the rear yards or on a rear-facing roof.

(Ord. No. 20,180, § 1, 10-20-09)

Sec. 36-434.30. New construction and additions or modifications to existing structures on multifamily or nonresidentially zoned land.

In order to be compatible with the historic nature of the neighborhood, new construction and

additions to existing structures shall comply with the following criteria. Plans for new construction, additions, and modifications which are subject to this division shall be submitted to the department of planning and development. The department will review plans for consistency with the detailed requirements of this division and consistency with the historic nature of the district. In the case of an undeveloped block face, the requirements shall relate to the adjacent block faces.

(1) *Orientation.* The primary facade of a nonresidential building shall face the principal street. The principal streets, as referred to in this section, shall refer to the street having the highest classification according to the city master street plan. Buildings located on corner lots shall have the same orientation as adjacent nonresidential structures.

(2) *Ground-level facade.* For new construction, at least sixty (60) percent of the ground-floor level facing pedestrian public circulation areas shall be glass windows and/or displays.

(3) *Nonresidential building setback.* All commercially and office zoned properties within the boundaries of this district shall have a ten-foot front setback with building sited at the front setback property line. Properties on street corners shall be sited on the property lines ten (10) feet off the property lines abutting the street corner. There shall be a five-foot side yard setback from residentially zoned properties, zero-foot side yard setback from nonresidentially zoned property and rear yard setback of twenty-five (25) feet.

(4) *Drive-through facilities.* No drive-through facilities shall be permitted on front facades of buildings. Buildings which are on a corner shall be considered to have two (2) front facades. Drive-through facilities are permissible on side or rear facades.

(5) *Roofs.* Flat roofs and pitched roofs are permitted. Rooflines should follow predominant style of the adjacent buildings.

(6) *Materials:.*The materials of the exterior shell shall be brick, other masonry, wood, or a material that resembles wood (i.e., vinyl siding, etc.).

(7) *Standard parking requirements.* Parking requirements within the district shall be fifty (50) percent of that required by article VIII.

(8) *Maximum parking.* The maximum parking allowed shall be the minimum standard established in article VIII.

(9) *Parking facilities.* Surface parking shall be limited to the side and rear of structures. No parking shall be allowed in the front-yard setback. Parking structures shall have ground-level uses devoted to nonvehicular activities. Development of ground-level retail or office uses is encouraged.

(Ord. No. 20,180, § 1, 10-20-09)

Sec. 36-434.31. Sidewalks.

All public streets and drives shall have five-foot sidewalks on both sides of the vehicular area for nonresidentially zoned property. All residentially zoned property shall have four-foot sidewalks on both sides of the vehicular area.
(Ord. No. 20,180, § 1, 10-20-09)

Sec. 36-434.32. Utilities and services.

(a) All new utilities for developments within the district shall be buried. All new developments are required to place utilities and cabled services in subterranean locations from the pole to the structure.

(b) Dumpster delivery and waste removal areas shall be located in alleys where available or in common service areas for multiple developments.

(c) In all areas, service and waste removal areas shall be screened and located away from public outdoor spaces and pedestrian areas. Dumpster screening as per section 36-253.
(Ord. No. 20,180, § 1, 10-20-09)

Sec. 36-434.33. Landscaping.

The regulations in this subsection shall apply to all development and redevelopment in the district.

(1) Land use buffers shall be as provided in subsection 36-522(b)(1). In areas where terrain variation is great or other features result in the loss of privacy, alternative designs and massing shall be considered.

(2) Parking lots shall meet all current landscape requirements (chapter 15, article IV) when development or redevelopment occurs as stated above. Variances from this provision will be heard by the city beautiful commission.

(3) Trees greater than fourteen (14) inches in diameter, measured at four and one-half (4½) feet above the ground, shall be protected from removal and damages in future development of the district. Any development within fifty (50) feet of any such tree shall be reviewed prior to development to assure protective measures are included and in place. Tree removal can only be done if approved by the city's urban forester. Penalties for violations shall be a listed in section 1-9. For trees in the public right-of-way, see section 15-51.

(4) Planting of trees in areas void of shade and canopy will be conducted as follows. Tree species will be selected based on its mature size, growth, habit, and optimal site requirements. In any development that requires compliance with the provisions of this district, at least two (2) trees shall be planted in the front yard setback. Trees shall be selected from the list of appropriate trees listed in chapter 15.

(5) Ensure that tree plantings do not interfere with above or below ground utilities, obstruct views at intersections, or cause other public safety concerns.

(6) Trees planted on public lands shall be at least two (2) inches in caliper and ten (10) feet in height.

(7) The city's urban forester shall advise about tree selection, planting guidelines, and tree placement.

(8) Trees planted in tree grates or in cutouts within sidewalks shall have a minimum of thirty-six (36) square feet area. Tree pits shall be excavated to a depth of a minimum of eighteen (18) inches and backfilled with topsoil.

(Ord. No. 20,180, § 1, 10-20-09)

Sec. 36-434.34. Exceptions.

Property, if for any reason, that cannot be developed without violating the standards of the design overlay district shall be reviewed through the PZD, planned zoning district, section of the zoning ordinance, with the intent to devise a workable development plan which is consistent with the purpose and intent of the overlay standards. All variances to the underlying zoning requirements shall be reviewed as per article II, division 2, Board of Zoning Adjustment.

(Ord. No. 20,180, § 1, 10-20-09; Ord. No. 21,168, § 1(i), 2-2-16)

DIVISION 15. DESIGN OVERLAY DISTRICT—JOHN BARROW CORRIDOR

Sec. 36-434.35. Purpose and intent.

(a) The purpose of the John Barrow Design Overlay District is to enhance the quality of the corridor to encourage development and redevelopment along the corridor. Proper planning is necessary to avoid visual clutter.

(b) Guidelines and strategies must be in place to protect the district from the negative impact of poorly planned or incompatible projects. Incompatible development has the potential to destroy the attributes that will attract people to the district.

(Ord. No. 20,867, § 1, 5-6-14)

Sec. 36-434.36. Boundaries.

The district shall include all parcels located on John Barrow Road to a distance of three

hundred (300) feet of each side of the right-of-way, from Markham Street on the north to Colonel Glenn Road on the south.
(Ord. No. 20,867, § 1, 5-6-14)

Sec. 36-434.37. Application of regulations.

(a) The regulations of this district shall be in addition to and shall overlay all other zoning districts and other ordinance requirements regulating the development of land so that any parcel of land lying in the overlay district shall also lie within one (1) or more of the other underlying zoning districts. Therefore, all property within this overlay district shall have requirements of both the underlying and overlay zoning districts in addition to any other provisions regulating the development of land. In case of conflicting standards between this division and other city ordinances, the overlay requirements shall control.

(b) With the exception single-family uses with a zoning of R-2 or R-3 (where there is no home occupation), these regulations shall apply to new development, redevelopment of existing buildings the cost of which exceeds fifty (50) percent of the building's current replacement value or expansion of existing development. The design guidelines shall be implemented when a permit is requested for exterior improvements on buildings or in the public right-of-way. Routine repairs, maintenance and interior alterations shall not require compliance with this section.

(c) Uses, structures or lots which existed on the effective date of this division which do not conform to the standards and guidelines established in this division, shall be treated as nonconforming according to the provisions of article III of chapter 36, Little Rock Code of Ordinances. Nonconforming status shall not apply to construction of improvements in the public right-of-way required by the city, redevelopment or expansion of existing development.
(Ord. No. 20,867, § 1, 5-6-14)

Sec. 36-434.38. Signage.

Any freestanding sign on the premises shall be monument style no more than ten (10) feet in height and consistent with other standards of article X of chapter 36 (Signs).
(Ord. No. 20,867, § 1, 5-6-14)

Sec. 36-434.39. Front facade.

Building materials. Facades facing John Barrow Road may be any standard material, except corrugated or ribbed metal materials.
(Ord. No. 20,867, § 1, 5-6-14)

Sec. 36-434.40. Fencing.

Electric fences and the use of barbed, concertina wire or other types of wire specifically designed to inflict injury upon human contact are prohibited. Chain-link fencing is prohibited from the building facade to John Barrow Road. Chain-link fencing on other portions for the site is to be vinyl coated.
(Ord. No. 20,867, § 1, 5-6-14)

Sec. 36-434.41. Service and waste areas.

Service/loading and waste/dumpster areas shall not be located within the front setback facing John Barrow Road or between the building and John Barrow Road or side streets on corner lots. They shall be located to the side or rear of buildings and shall be screened to comply with the provisions of this chapter.
(Ord. No. 20,867, § 1, 5-6-14)

Sec. 36-434.42. Exceptions.

Any request to vary, alter or modify specifications of this design overlay district shall be processed as a request for a variance as per article II, division 2 of this chapter.
(Ord. No. 20,867, § 1, 5-6-14)

DIVISION 16. CEDAR/PINE STREET OVERLAY DISTRICT

Sec. 36-434.43. Purpose and intent.

The purpose of the Pine/Cedar Street overlay is to implement the vision for a more walkable,

vibrant Pine/Cedar Street area with a mix of uses by: coordinating public and private investments for the greatest effect; providing better pedestrian connectivity; and creating equitable, sustainable, and affordable development options. The goal is to promote a more functional and attractive community through the use of recognized urban design principles and to allow property owners flexibility in land use, while prescribing a higher level of detail in building design and form than in the current standards of the Zoning Ordinance of the City of Little Rock, Arkansas. The standards in this overlay are intended to encourage better functional urbanism to create higher quality pedestrian environments along most streets.
(Ord. No. 21,238, § 2, 5-17-16)

Sec. 36-434.44. Boundary.

The boundaries of the Pine/Cedar Street Overlay are Interstate 630 on the north, 14th Street on the south, Maple Street on the west and Lewis/Bishop Warren Drive on the east.
(Ord. No. 21,238, § 3, 5-17-16)

Sec. 36-434.45. District plan.

The plan for the Pine/Cedar Street Overlay 2016 (attached to Ord. No. 21,238 as Exhibit A and incorporated herein by reference) is hereby added as Exhibit A to the Little Rock Zoning Ordinance (chapter 36).
(Ord. No. 21,238, § 4, 5-17-16)

DIVISION 17. HEIGHTS LANDSCAPE DESIGN OVERLAY DISTRICT

Sec. 36-434.46. Purpose and intent.

(a) *Purpose and intent.* The purpose of the heights landscape design overlay district (district) is to restore the tree canopy along the streets where new residential construction and expansions of residential structures have decreased or created voids in the tree canopy.

(b) *District boundaries.* The district shall include all parcels within the area designated in Exhibit A and described as: A part of Sections 29, 30, 31, and 32 all in Township 2 North, Range 12 West and a part of Sections 25 and 26 all in Township 2 North, Range 13 West, Pulaski County, Arkansas, being more particularly described as follows: Beginning at the centerline intersection; of North University Avenue and Evergreen Street; thence north along the centerline of North University Street to the centerline intersection of Cantrell Road; thence west along the centerline of Cantrell Road to the centerline intersection of North Hughes Street; thence north along the centerline of North Hughes Street to an extension of the north boundary of Betswood Subdivision; thence easterly along said north boundary of Betswood Subdivision to the northeast corner of Tract B Betswood Subdivision; thence southerly along the east boundary of Tract B Betswood Subdivision extended to a point on the centerline of Perryville Road; thence easterly along the centerline of Perryville Road to the centerline intersection of North McKinley Street; thence north along the centerline of North McKinley Street to the centerline intersection of Hawthorne Road; thence east along the centerline of Hawthorne Road to the centerline of University Avenue; thence north along the centerline of University Avenue to Brentwood Road; thence west along the centerline of Brentwood Road to an extension of the west boundary of the Mountain Home Subdivision; thence north along the western boundary of the Mountain Home Subdivision extended to a point on the centerline of Longwood Road; thence east along the centerline of Longwood Road extended to the west boundary of the South West ¼ North West ¼ of Section 30, Township 2 North, Range 12 West; thence north along the west line of T2N R12W Sec 30 to a point on centerline of the CRI&P railroad; thence southeasterly along the centerline of the CRI&P Railroad to the intersection of an extension of the west boundary of Lot 31 Sherrill Heights Subdivision; thence along the west line of said Sherrill Height Subdivision to the northwest corner of Lot 11 Club Terrace Subdivision; thence southerly along the west line of Club Terrace Subdivision to a point on the north line of the southeast ¼ southwest ¼ of Section 29, Township 2 North, Range 12 West; thence easterly along said north line to the northeast corner of the southeast ¼ southwest ¼ of said Section 29; thence southerly along east

line of the southwest ¼ of said section 29 to the southeast corner of the southwest ¼ of said Section 29; thence west along the south line of T2N R12W Sec 29 to the centerline intersection of Cantrell Road; thence southeasterly along the centerline of Cantrell Road to the centerline intersection of Allsopp Park Road; thence southwesterly along the centerline of Allsopp Park Road to the centerline intersection of North Lookout Road; thence southwesterly along the centerline of North Lookout Road to the centerline intersection of Kavanaugh Boulevard; thence northwesterly along the centerline of Kavanaugh Boulevard to the centerline intersection of L Street; thence west along the centerline of L Street to the centerline intersection of North Fillmore Street; thence south along the centerline of North Fillmore Street to the centerline intersection of Evergreen Drive; thence west along the centerline of Evergreen Drive to the point of beginning.

Map of area can be found on file at the city clerk's office.
(Ord. No. 21,787, § 1, 10-2-19)

Sec. 36-434.47. Definitions.

Preserved tree means a tree selected for preservation by the responsible party and approved by the city. A tree is considered preserved if a minimum of seventy-five (75) percent of the critical root zone is maintained at undisturbed natural grade and not more than twenty-five (25) percent of the tree canopy is removed. Nothing within this definition requires that a properly planted and appropriate tree shall survive for a period greater than thirty-six (36) months.

Responsible party means the following:

(1) The permit applicant who is the designated agent for development related activities for purposes of obtaining all required permits. The permit applicant relinquishes responsibility to the construction superintendent when all necessary permits have been issued by the city; or,

(2) The construction superintendent who is that person designated as the on-the-site agent for the project and responsible for all construction related activities until the issuance of a final certificate of occupancy; or,

(3) The lessee or any person or entity having control of the property subject to this chapter; or,

(4) The owner, which is the person, firm, corporation or other entity holding current legal title to the property. The responsibility of the owner shall commence upon the date of issuance of the certificate of occupancy.

Tree canopy means the outermost spreading branch layer of a tree.
(Ord. No. 21,787, § 1, 10-2-19)

Sec. 36-434.48. Application of design regulations.

(a) The regulations in this division shall be in addition to and shall overlay all other zoning districts and other ordinances requirements regulating the development of land so that any parcel of land lying in the overlay district shall also lie within one (1) or more of the other underlying zoning districts. Therefore, all property within this overlay district will have requirements of both the underlying and overlay zoning district in addition to other ordinance requirements regulating the development of land. In case of conflicting standards between this division and other city ordinances, the overlay requirements shall control.

(b) These regulations shall apply to all lots zoned or occupied by single-family or two-family dwellings except non-residentially occupied lots with conditional use permits.

(1) Any addition to the principal structure of more than six hundred (600) square feet of foundation area.

(2) All other subsequent additions after passage of this division that result in total of more six hundred (600) square feet of foundation area added to the principal structure as existing before the passage of this division.

(3) Construction of new single-family or two-family structures.

(4) Any lot that has had the principal building demolished and has not had active construction activities on that lot within one (l) year of the demolition permit being issued.

(Ord. No. 21,787, § 1, 10-2-19)

Sec. 36-434.49. Review section.

Prior to the issuance of any building permits within the boundaries of the heights landscape design overlay district, the planning and development department director shall determine compliance of all building permit requests with the terms of this article.

(Ord. No. 21,787, § 1, 10-2-19)

Sec. 36-434.50. New construction and additions or modifications to existing structures on lots zoned or occupied by single-family or two-family dwellings except non-residentially occupied lots with conditional use permits.

(a) In order to be compatible with the tree canopy of the neighborhood, new construction and additions to existing structures shall comply with the following criteria:

(1) Plans for new construction, additions and modifications which are subject to this article shall be submitted to the planning and development department; and,

(2) The department will review plans for consistency with the detailed requirements of this article and consistency with the tree canopy of the district; and,

(3) If a proposed tree is not on the list of approved trees, but in the opinion of the city arborist, in consultation with the planning and development department director, is compatible with the intent of this division, then such approved alternative is in compliance with the provisions of this Code.

(b) *Trees preservation.* There is no requirement under this division to preserve existing trees within the front-yard and street side-yard setbacks as defined per the underlying zoning. However, the responsible party may select certain trees to be preserved to comply with the provisions of this division. See section 15-52(g) Prohibited activities and section 15-52(h) Tree protection for proper methods of tree preservation.

(c) *Credits for preserved trees.* For each existing tree preserved within the front- or side-yard setback, there shall be a one to one credit applied to the minimum tree requirements. Trees in the front- or side-yard setback that are to be preserved that are twelve (12) inches or greater in diameter at breast height (DBH) shall fulfill all requirements for the required trees within the front- or side-yard setback.

(d) *Required tree planting.* One (1), two and one-half inch or greater caliper single trunk tree measured at twelve (12) inches above soil line shall be planted for every forty (40) feet or portion thereof of street frontage of the lot. Multi-trunk trees shall be measured as a total caliper of all trunks at twelve (12) inches above the soil line and shall be required to have a minimum of four and one-half inch or greater caliper. On corner lots, trees required on one (1) street frontage may not be planted on a different street frontage. A minimum of one (1) tree shall be planted for each street frontage.

(e) *Approved planting times.* To be an appropriately planted tree, the tree shall be planted in the spring, or in the fall, with the approval of the city's arborist, in consultation with the planning and development department.

(f) *Tree form.* Trees planted shall provide shade. Trees shall not be planted that are of a columnar form at maturity. A tree with a columnar form at maturity will be five (5) or more times as tall as they are wide.

(g) *Species.* Trees shall be selected from the list below. Native species not on the list are permitted upon review and approval by the city's arborist, in consultation of the planning and development department. See table below for a list of trees.

Trees shall be selected from the following list:		
(1) Deciduous—Large (average height 60' × 40' width)		
Botanical Name	Common Name	Native species
Fagus grandifolia	American Beech	
Liriodendron tulipfera	Tulip Poplar Tree	
Magnolia acuminata	Cucumber Magnolia	
Platanus occidentalis	Sycamore	
Quercus acutissima	Sawtooth Oak	
Quercus alba	White Oak	Yes
Quercus falcata	Southern Red Oak	Yes
Quercus michauxii	Swamp Chestnut Oak	Yes
Quercus nigra	Water Oak	Yes
Quercus nuttallii	Nuttall Oak	Yes
Quercus palustris	Pin Oak	Yes
Quercus phellos	Willow Oak	Yes
Quercus shumardii	Shumard Oak	Yes
(2) Deciduous—Medium Trees (average height 40' × 30' width)		
Botanical Name	Common Name	Native species
Acer rubrum "Drummondii"	Swamp Red Maple	
Acer rubrum	"Red Sunset" Red Sunset Maple	
Betula nigra	River Birch	Yes
Ginkgo biloba	Ginkgo (male)	
Koelreuteria paniculata	Golden Rain Tree	
Pistacia chinensis	Pistachio	
Taxodum distichum	Bald Cypress	Yes
Ulmus parvifolia	Chinese Elm	
(3) Trees to be planted under utility lines shall be selected from the following species: Deciduous—Small Trees (average height 20' × 15' width)		
Botanical Name	Common Name	Native species
Acer palmatum	Japanese Maple	
Cercis canandensis	Redbud	
Cercis chinensis	Chinese Redbud	
Cornus florida	Flowering Dogwood	Yes
Ilex decidua	Deciduous Holly	
Magnolia soulangiana	Saucer Magnolia	
(4) Evergreen—Large Trees (average height 60' × 30' width)		
Botanical Name	Common Name	Native species
Magnolia grandiflora	Southern Magnolia	
(5) Evergreen—Medium Trees (average height 40' × 30' width)		
Botanical Name	Common Name	Native species
Ilex opaca	American Holly	
Magnolia virginiana	Sweet Bay Magnolia	
(6) Evergreen—Small Trees (average height 20' × 15' width)		
Botanical Name	Common Name	Native species
Ilex attenuata "Fosteri"	Foster's Holly	
Ilex vomitoria	Yaupon Holly	

(h) *Location.* Trees shall be planted within the front yard and street side yard setbacks as defined per the underlying zoning. Trees shall not be planted within five (5) feet of adjoining property lines. A franchise permit is required for all trees that are proposed to be planted in the public right-of-way. All tree plantings shall not

interfere with above or utilities, obstruct views at intersections, or cause other public safety concerns.

(i) *Installation.* Trees shall be planted according to recognized horticultural practices.

(j) *Continuous maintenance.* See section 15-53, Tree pruning. Responsible parties shall in no instance overly prune to reduce or prohibit a tree's mature height and spread. Trees shall not be topped. Trees shall be maintained according to recognized horticultural practices. Nothing requires that a properly planted and appropriate tree shall survive for a period greater than thirty-six (36) months. Any tree required to be planted which dies within thirty-six (36) months of planting shall be replaced by the responsible party during the next planting period. In no event will an approved and appropriately planted tree ever be pruned in such a manner as to preclude future vertical growth.

(k) *Standards for preserved trees.* The city official may visit each site and review photographs of each site for which there is a plan in order to verify that the trees to be preserved pursuant to the plan are of sufficient size, quantity and quality to warrant preservation. Trees that do not warrant preservation shall not qualify as preserved trees as determined by the city official.

(l) *Utility.* This article shall not apply to the maintenance of overhead or underground utility lines, nor does it apply to the development of subdivisions in the construction of streets, curbs, gutters, storm sewers and overhead or underground utility lines. It is expected that proper care and planning are used in the construction so that the maximum number of trees can be preserved.
(Ord. No. 21,787, § 1, 10-2-19)

Sec. 36-434.51. Exceptions.

Any request to vary, alter, or modify specifications of this design overlay district shall be processed as a request for a variance considered by the board of adjustment.
(Ord. No. 21,787, § 1, 10-2-19)

ARTICLE VI. RESERVED*

Secs. 36-435—36-450. Reserved.

*__Editor's note—__Section 1 of Ord. No. 18,228, adopted March 7, 2000, repealed Art. VI, §§ 36-401—36-418, which pertained to Zoning Plan for Central Little Rock Urban Renewal Project, and derived from Ch. 43, §§ 7A-101—7A-115 of the 1961 Code; Ord. No. 16,861, adopted March 21, 1995; and Ord. No. 17,305, adopted Nov. 7, 1996.

ARTICLE VII. PLANNED ZONING DISTRICT*

Sec. 36-451. General purpose.

(a) The purpose of this article is to enact and set out the criteria for the two (2) planned zoning districts:

(1) Planned unit development (PUD) which is more specifically known as planned residential district (PRD); planned office district (POD); planned commercial district (PCD); and planned industrial district (PID).

(2) Planned developments (PD) which is more specifically known as PD-residential; PD-office; PD-commercial and PD-industrial.

(b) The planned unit development and planned development districts are established to permit the combination of subdivisions and zoning review for parcels of land into one (1) process in order that all aspects of a proposed development can be reviewed and acted upon simultaneously. It is also the intent of this article to permit the use of flexible guidelines rather than fixed zoning or subdivision regulations in the administrative review of specific development plans. By permitting and encouraging the use of such procedures, the planning commission and board of directors will be able to make more informed land use decisions and thereby guide development more effectively in the best interest of the health, safety and welfare of the city.

(c) It is the intent of this article to assure that applications for PUD and PD are not granted for the sole benefit of the applicant, but are used to establish developments that:

(1) Are compatible with the surrounding area;

(2) Are harmonious with the character of the neighborhood;

(3) Do not have a negative effect upon the future development of the area;

(4) Permit coordination of the planning of the land surrounding the PUD or PD; and

(5) Create a desirable and stable environment.

(d) It is also the intent of this article to encourage:

(1) Superior development and redevelopment which is more desirable than that which would occur through strict application of this chapter and chapter 31 of this Code.

(2) Provision of more usable and suitably located open space, recreation areas and other common facilities than would otherwise be required under conventional land development regulations.

(3) Maximum enhancement and minimal disruption of existing natural features and amenities.

(4) Comprehensive and innovative planning and design of diversified yet harmonious developments consistent with the urban development goals and the municipal plan.

(5) More efficient and economic arrangement of varied land use, buildings, circulation systems and facilities.

(6) Project phasing that will ensure the balanced and coordinated development of varied land uses and public facilities and services needed to support them.

(7) Better utilization of sites characterized by special features of geographic location, topography, size or shape.

(8) Preparation of more complete and useful information which will enable the planning commission and board of directors to make more informed decisions on land use.

(9) Flexible administration of general performance standards and development guidelines.

*__Editor's note—__Ord. No. 16,798, § 1, adopted Dec. 20, 1994, repealed §§ 36-451—36-462 and added new §§ 36-451—36-462. Former §§ 36-451—36-462 pertained to similar subject matter and derived from the Code of 1961, Ch. 43, §§ 9-101(a)—(j); Ord. No. 15,247, 2-17-87; Ord. No. 15,438, 2-16-88; Ord. No. 15,553, 9-20-88; Ord. No. 15,554, 9-20-88; Ord. No. 15,571, 11-1-88; Ord. No. 15,988, 12-18-90; Ord. No. 16,081, 8-20-91; Ord. No. 16,116, 11-19-91; Ord. No. 16,341, 1-19-93; and Ord. No. 16,577, 1-18-94.

(e) Except for those land uses specified in subsection 36-104(a), a land use that would otherwise need a conditional use permit shall not require a conditional use permit if the use is a part of a planned development or planned unit development application and process.
(Ord. No. 16,798, § 1, 12-20-94; Ord. No. 20,617, § 1, 8-7-12)

Sec. 36-452. Districts and district regulations.

In addition to zoning districts established elsewhere in this chapter, the following planned zoning districts are established and shall be designated on the official zoning map upon application of the owner or authorized agent and approval of the preliminary plat by the board of directors.

(1) *Residential districts:*

a. *Purpose and intent.* The PRD district is intended to accommodate mixed or clustered residential developments. The PD-residential district is intended to accommodate single use residential developments which are determined to be more appropriate for a PD application than a general residential reclassification. The legislative purposes, intent, and application of these districts are as follows:

1. To encourage a variety and flexibility in land development and land use for predominately residential areas, consistent with the long-range comprehensive plan and the orderly development of the city.
2. To provide a framework within which an effective relationship of different land uses and activities within a single development, or when considered with abetting parcels of land, can be planned on a total basis.
3. To provide a harmonious relationship with the surrounding development, minimizing such influences as land use incompatibilities, heavy traffic and congestion, and excessive demands on planned and existing public facilities.
4. To provide a means of developing areas with special physical features to enhance natural beauty and other attributes.
5. To encourage the efficient use of those public facilities required in connection with new residential development.

b. *Permitted uses.* Permitted uses shall include:

1. All residential uses permitted by the municipal plan and compatible with the density of the area.
2. Parks, recreation facilities and open space.
3. Public and institutional uses such as schools, churches and public utilities.
4. Incidental commercial and office.

(2) *Office districts:*

a. *Purpose and intent.* The POD district is intended to accommodate planned office developments, as well as mixed use developments combining residential, commercial, or both, with office uses in a carefully planned configuration in such a manner as to protect and enhance the viability of each independent use. The PD-office district is intended to accommodate single use office developments which are determined to be more appropriate for a PD application than a general office reclassification. The legislative purposes, intent and application of these districts include, but are not limited to the following:

1. To encourage the clustering of office activities within areas specifically designated to accommodate such uses.

2. To provide for the orderly development of office activities to minimize adverse impact on surrounding areas and in the general flow of traffic.
3. To encourage orderly and systematic office or mixed use development design, providing for the rational placement of activities, vehicular and pedestrian circulation, access and egress, loading, landscaping and buffer strips.
4. To encourage office development which is consistent with the long range comprehensive plan of the city.
5. To facilitate residential development in a multiuse configuration incorporating office uses.
6. To accommodate larger scale suburban developments of mixed uses in a harmonious relationship.

b. *Permitted uses.* Permitted uses in these districts shall include:

1. Office (general and professional).
2. Public and institutional uses.
3. Residential uses appropriate to the scope and character of the development.
4. Commercial or retail uses, or a combination thereof, may be allowed if deemed appropriate, consistent and complimentary to office development. However, in no instance shall the office use area be less than fifty-one (51) percent of the gross leasable floor area within the development.

(3) *Commercial districts:*

a. *Purpose and intent.* The PCD district is intended to accommodate multiple use developments containing any combination, including multiple combinations of commercial, office or residential uses in a carefully planned configuration in such a manner as to protect and enhance the viability of each independent use. The PD-commercial district is intended to accommodate single use commercial developments which are determined to be more appropriate for a PD application than a general commercial reclassification. The legislative purposes, intent and application of these districts include, but are not limited to, the following:

1. To encourage the clustering of commercial and office activities within areas specifically designated to accommodate such uses and to discourage the proliferation of commercial uses along major thoroughfares and noncommercial areas.
2. To provide for orderly development in order to minimize adverse impact on surrounding areas and on the general flow of traffic.
3. To encourage orderly and systematic commercial, office or mixed use development design or a combination thereof, providing for the rational placement of activities, vehicular and pedestrian circulation, access and egress, loading, landscaping and buffer strips.
4. To encourage commercial development which is consistent with the long-range comprehensive plan of the city.
5. To accommodate larger scale suburban developments of mixed uses in a harmonious relationship.

b. *Permitted uses.* Permitted uses in this district shall include:

1. Commercial uses, wholesale, retail, or both.

2. Public and institutional uses.
3. Office (general and professional).
4. Light industrial uses, provided that gross area per use generally does not exceed five thousand (5,000) square feet and that at least fifty (50) percent of the floor area is used for retail sales.
5. Residential uses appropriate to the design of the project.

(4) *Industrial districts:*

a. *Purpose and intent.* The PID district is intended to accommodate industrial parks. The PD-industrial district is intended to accommodate single use industrial developments which are determined to be more appropriate for a PD application than a general industrial reclassification. The legislative purpose, intent and application of these districts include, but are not limited to, the following:

1. To provide for manufacturing activities in a manner compatible with the surrounding area.
2. To encourage the application of sound planning and design principles in the orderly development of industrial activities.
3. To maximize manufacturing potential without adversely affecting the living environment of the community.

b. *Permitted uses.* Permitted uses in these districts shall include:

1. Industrial uses.
2. Ancillary commercial and office uses compatible with the design and scale of the project.

(Ord. No. 16,798, § 1, 12-20-94; Ord. No. 17,305, § 1(vv), (ww), (xx), 11-7-96; Ord. No. 18,324, § 1(r), 8-1-00)

Sec. 36-453. Eligibility requirements and staging.

(a) *Generally.* The three (3) standards of eligibility which shall be met by a PUD or PD application are location, ownership and size. Projects may be staged at the option of the developer.

(b) Eligible properties include those located within the city limits.

(c) *Ownership.* Eligible applicants for preliminary plan review shall be a landowner of record or an authorized agent. The approved final development plan shall be binding on all subsequent owners of the land until revised or repealed as authorized in this article.

(d) *Staging.*

(1) While this article encourages submission of comprehensively planned development proposals of entire ownerships, a preliminary plan need not cover the entire property owned by the applicant. Applicants may choose to submit a staged development by incorporating incremental final plan for certain areas of the entire ownership. A staged development plan shall include a boundary survey of the entire ownership. Preliminary information on streets, drainage and other physical plan elements shall be shown on the plan.

(2) The applicant shall adhere to the approved development schedule for the staged submission of final plan. The applicant may submit a written request for extension of time from the planning commission. The planning commission may grant a maximum of one (1) two-year extensions upon demonstration of good cause by the applicant. Additional extensions shall require approval of the board of directors.

(e) *Size.* There shall be no minimum tract size for the standard or long form PZD.

(Ord. No. 16,798, § 1, 12-20-94; Ord. No. 17,305, § 1(yy), 11-7-96; Ord. No. 18,324, § 1(ii), 8-1-00; Ord. No. 18,863, § 2, 5-6-03; Ord. No. 22,651, § 2, 9-2-25)

Sec. 36-454. Application review procedure.

(a) *Generally.* The application procedure shall consist of two (2) phases:

(1) A preapplication conference with the planning staff.

(2) A preliminary development plan reviewed by the planning commission and board of directors. For purposes of this article, a preliminary or final plan shall also include a plat when required by chapter 31 of this Code.

(3) No building permit for any portion of the PUD or PD shall be issued until the final development plan is approved and filed of record.

The final development plan shall be approved prior to the issuance of any building permits within any portion of the planned unit development. The final development plan shall be recorded as approved prior to the issuance of a building permit.

(b) *Preapplication conference.*Before submitting an application the landowner or authorized agent shall confer with city staff in order to become familiar with the development review process. The staff shall inform the applicant of any perceived problems that may arise. A further purpose of the preapplication conference is to make sure that the applicant has, or will be able to, submit the necessary information for filing the application. The intent of this conference is to provide guidance to the applicant prior to incurring substantial expense in the preparation of plans, surveys and other data required in a preliminary plan.

(c) *Preliminary development plan review.*

(1) An applicant seeking a PUD or PD rezoning of a parcel of property shall submit to the planning department a preliminary plan and all the necessary fees at the time of the filing.

(2) The preliminary plan will be reviewed by planning staff and affected city departments, and their recommendations shall be forwarded to the planning commission. A public hearing for the preliminary plan shall be set not later than sixty (60) days after filing and shall be legally advertised as specified in the zoning ordinance.

(3) At the public hearing before the planning commission, the applicant and interested citizens will have the opportunity to discuss the merits of the development proposal. The planning commission will assess the proposal in light of ordinance guidelines and will take action after weighing the recommendations of the staff, the developer's presentation and the community response. The commission shall approve, grant approval conditioned on specified modifications, or disapprove the development proposal. The applicant shall receive written notification of the action taken by the planning commission within ten (10) days of the meeting date.

(4) If the preliminary plan is approved by the planning commission, it will be forwarded to the board of directors for their review. The board of directors may grant or deny as submitted or as amended, defer for requested changes or more information, or return the application to the planning commission for further study. The board shall not consider an application that has been modified by the applicant to a design other than that reviewed by the commission. The board may direct the planning commission to reconsider specific aspects of the preliminary plan. If the preliminary plan is approved, an ordinance shall be prepared which incorporates the plan or conditions.

(5) If a preliminary plan is conditionally approved, the applicant shall have ninety (90) days from the date of the planning commission action granting approval to submit a revised preliminary plan. If the planning staff determines such revisions are in conformance with the planning commission's specific recommendations, it shall be forwarded to the board of directors for public hearing and disposition. If the revisions are determined not to be in conformance with the intent of the conditional approval, the revised development plan will be resubmitted to the planning commission for public hearing.

(6) Appeals from the action of the planning commission shall be filed with the city clerk. The content of the appeal filing shall consist of:

a. A cover letter addressed to the mayor and board of directors setting forth the request; and

b. A copy of the application indicating the planning commission action and properly executed by the staff.

This filing shall occur within thirty (30) calendar days of the action of the planning commission. Certified mail notice of appeal hearing shall be provided by the appellant not less than ten (10) days prior to the date of the hearing and the affidavit and other supporting evidence of notice shall be filed not less than five (5) days prior to the date of the review. This notice shall be given to all record parties in interest whether for or against the request. The cost of this notice shall be borne by the appellant.

(d) The owner of an approved PD or PUD may, for cause, request repeal of the ordinance establishing the development when it has been determined that the development will not occur. A written request may be filed with the city staff at any time up to three (3) years after the date of adoption of the ordinance creating the PUD or PD. The request shall set forth the cause of the repeal.

A public hearing on the repeal request shall be held by the planning commission not later than sixty (60) days after filing of the written request. Legal advertisement and notice to property owners within two hundred (200) feet shall be as required by this chapter and the planning commission bylaws for the initial planning commission hearing. Notice to others as required by the bylaws shall be provided by staff and signs shall be posted.

The planning commission's recommendation on the repeal request shall be forwarded to the board of directors for their consideration. The board of directors may grant or deny the request or return the request to the planning commission for further study. If the request is approved, an ordinance shall be adopted repealing the PUD or PD.

(e) *Final development plan.*

(1) The applicant shall have three (3) years from the date of passage of the ordinance approving the preliminary approval to submit the final development plan. Requests for extensions of time shall be submitted in writing to the planning commission which may grant one (1) extension of not more than two (2) years. Time extensions shall be applied for by formal written request not less than ninety (90) days prior to the first expiration date. Failure of the applicant to file a timely extension shall be cause for revocation of the PUD as provided in this article.

(2) The final development plan review shall be conducted by the department of planning and development. They will review the final plan to determine that no substantial charges were made to those elements of the plan agreed upon in the preliminary plan. If substantial changes are found to have been made to the agreed elements, then the application must be resubmitted to the planning commission for review. The staff will also determine that those elements conditioned by the board of directors were altered to meet the board's specific requirements. In certain instances such as condominium construction, final plan approval shall be held in abeyance until such time as an as-built survey is prepared and concurs with the final plan.

(3) The burden is on the applicant to justify any variation between the approved preliminary plan and the final plan. The final plan shall be deemed to be in substantial compliance with the preliminary plan provided the plan does not:

a. Increase proposed floor area for nonresidential use more than twenty (20) percent.

b. Increase total building coverage more than twenty (20) percent.

c. Increase building height more than twenty (20) percent.

d. Increase total number of dwelling units more than twenty (20) percent within a given stage. Fluctuation greater than the above may be permitted provided overall density is maintained as determined by staff.

(4) No public hearing is necessary to consider modifications on location and design of streets or facilities for water, storm water, sanitary sewers, or other public facilities required as a condition of approval of the preliminary plan.

(5) If the planning staff finds that only minor differences exist in the final plan, the staff shall approve the final plan. Approval or disapproval of a final plan by the staff shall occur within sixty (60) days of filing the plan. The applicant may either resubmit the final plan in conformance with the preliminary plan, or file a written appeal with the planning commission within thirty (30) days of the refusal.

(6) After the final plan has been approved, the applicant shall enter into an agreement with the city to install the required public improvements in accordance with chapter 31 of this Code.

(7) Building permits may be issued following approval of the final plan and proper recording of plan and plat components. Construction shall commence no later than one hundred eighty (180) days after final plan approval and shall proceed on a timely basis until completion and issuance of a final certificate of occupancy.

(Ord. No. 16,798, § 1, 12-20-94; Ord. No. 17,305, § 1(mm), (qq), (rr), 11-7-96; Ord. No. 18,863, § 3, 5-6-03; Ord. No. 19,438, § 1(e), 11-15-05; Ord. No. 20,326, § 1(s), 9-21-10; Ord. No. 21,867, § 1, 5-19-20)

Cross reference—Short-form planned unit development application review process, § 36-462(d).

Sec. 36-455. Reserved.

Sec. 36-456. Submission requirements.

As part of the application process, the applicant shall be required to submit the following documents and information:

(1) *Preliminary plan submittal.*

a. A statement describing the character of the development and including the rationale behind the assumptions and choices made by the application.

b. Quantitative data including the following information:

1. Parcel size.

2. Types and numbers of permitted uses and floor areas according to article V of this chapter.

3. Proposed building coverage.

4. Total acreage of private and common usable and nonusable open space by type.

c. A topographical cross section map of the site.

d. A site plan meeting the following requirements:

1. Submitted in an acceptable digital format and media and upon request, a sheet not to exceed thirty (30) inches by forty-two (42) inches, or less than eleven (11) inches by seventeen (17) inches and containing a small scale vicinity map.

2. To scale (scale indicated) and directionally oriented.

3. Proposed lot lines and plot designs.

4. Existing and proposed circulation system of all streets (arterial, collector, residential) including off-street parking areas, service areas, loading

areas, and major points of access to public rights-of-way (ingress and egress).

5. Existing and proposed pedestrian circulation systems.
6. Proposed treatment of the perimeter of the property, including materials and techniques used such as screens, fences and walls as well as description of uses, setbacks and their relationship to surrounding uses.
7. General schematic landscape plan of the treatment of the area used for private and common open spaces (including open space buffers).
8. Location and size of all areas to be conveyed, dedicated or reserved as common open spaces, public parks, recreational areas, school sites and similar public and semi-public use.
9. Location, dimensions, nature of all existing and proposed easements (utility, streets) and public improvements (drainage, sewers, water, etc.)
10. Indication of location of structures and structure dimensions, dimensioned distances between buildings and distances from structures to property lines.
11. Description of the following existing conditions of the property:
    (i) Contours at two-foot intervals.
    (ii) Watercourses.
    (iii) Floodplains.
    (iv) Unique natural features.
    (v) Forest cover.
12. A legal description of the total site proposed for development, including a statement of present and proposed ownership and present and proposed zoning.
13. A development schedule indicating the approximate date when construction of the planned unit development or stages of the planned unit development can be expected to begin and be completed.
14. A statement of the applicant's intentions with regard to the future selling or leasing of all or portions of the planned unit development, including land areas and dwelling units.
15. An approved preliminary plat in accordance with chapter 31.
16. The location of handicapped parking stalls and accessibility requirements of Arkansas State Fire Code.

e. In addition to the graphic and supporting documentation required for filing, the owner shall provide a graphic or narrative outline of methods to be employed to protect permanent undisturbed buffers. The outline/plan shall be filed for review by the planning commission not later than the filing date set by the calendar.

f. The applicant shall submit a copy of a valid bill of assurance for the subdivision within which the subject property is located if such property is located within a subdivision covered by a valid bill of assurance.

(2) *Final plan submittal.* The final plan shall contain or include with the following, all information required in a preliminary plan, plus the following:

a. A letter from the applicant requesting final development plan review.

b. A description of the maintenance provisions of the development.

c. Final subdivision plat.

d. Survey of the property.

e. The proposed development schedule including starting date and dates when various phases are projected to be completed.

f. A site plan with the required preliminary plan information, plugs the following:

1. Indication in feet of the interior curb radius for all vehicle turning movements within, into and off the site.

2. Illustration of proposed street improvements to be provided in relation to property, lines including additional dedication, if required, and width of curb cuts and sidewalks, if required.

3. Illustration of existing and proposed water supply for fire protection, utility systems including sanitary sewers, storm sewers and water, electric, gas and telephone lines, and evidence of approval from the responsible jurisdictions or companies.

4. Illustrations of locations of structures and structure dimensions, dimensioned distances between buildings, and distances from structures to property lines indicating any changes from the preliminary plan.

5. A landscaping and screening plan showing the location, size, and specific types of landscaping materials, fencing, and other buffers from other than single-family developments.

6. A detailed scheduled of events for final plat recording when associated with a condominium development. This schedule should outline the steps taken whereby the final plat will not be filed until the buildings are completed; condominium plat and final subdivision plat in this instance will be the same instrument. The building permits may be issued upon request by the owner or developer based on the approved final development plan and the approved preliminary subdivision plat. The engineer of record shall provide planning staff with copies of the proposed condominium or final plat as proposed for recording. Planning staff will ensure that all requirements have been met, and that the plat will be proper for recording subject to an as-built survey of the site.

g. All legal instruments as specified by section 36-459.

h. Filing fee as required by chapter 23 of this Code.

(Ord. No. 16,798, § 1, 12-20-94; Ord. No. 18,881, § 1(e), 6-3-03; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-457. Application fee.

(a) Filing fees for PUD and PD applications are designated in chapter 23 of this Code.

(b) In the event that a preliminary plan application is withdrawn prior to planning commission action, the applicant shall be entitled to a refund as established by the planning commission; provided, however, there shall be no refunds of any portion of fees paid on applications amended or denied in the review process. If a new application is filed on the same, or portion of the same, property after a prior petition has been acted upon or withdrawn, the subsequent application shall be considered a new application and fees charged accordingly.

(Ord. No. 16,798, § 1, 12-20-94)

Cross reference—Fee for PUD application, § 23-3.

Sec. 36-458. Revocation.

(a) *Causes for revocation as enforcement action.* The planning commission may recommend to the board of directors that any PUD or PD approval be revoked and all building permits or certificates of occupancy be voided under any of the following circumstances:

(1) The applicant has not submitted a final development plan to the staff as provided in this article. Where a staged development plan is approved the board of directors may revoke the entire preliminary plan or may revoke only that stage on which a final plan has not been submitted and approved.

(2) Construction has not commenced within the time allowed.

(3) The applicant has not adhered to the development schedule as stated in the approved preliminary plan.

(4) The construction and provision of landscaping, buffers, open space, and public streets and facilities which are shown on the final plan are proceeding at a substantially slower rate than other project components.

(5) The applicant has failed to implement any material element of the plan within a reasonable time as determined by the planning commission.

From time to time the planning commission may compare the actual development accomplished with the approved development schedule. If the planning commission finds that the rate of construction of residential units or commercial or industrial structures is substantially greater than the rate at which the approved landscaping, buffers, open space, public streets and facilities have been completed, the planning commission may recommend that the board of directors initiate revocation or cease to approve any additional plans. The city may also issue a stop work order or discontinue or revoke issuance of building permits or certificates of occupancy.

(b) *Procedures.* Prior to a recommendation of revocation, notice by certified mail shall be sent to the owner or authorized agent giving notice of the alleged default, setting a time to appear before the planning commission to show cause why steps should not be made to totally or partially revoke the PUD or PD. The planning commission recommendation shall be forwarded to the board of directors for disposition as in original approvals. In the event a PUD or PD is revoked, the board of directors shall take the appropriate action to prohibit any further development, and shall file for record such action in the office of the city clerk and the public zoning record shall be duly noted.

(c) *Effect.* In the event of revocation, any completed portion of the development or those portions for which building permits have been issued shall be treated as a whole and effective development. After causes for revocation or enforcement have been corrected, the board of directors shall expunge such records as established above, and the planning commission shall resume approval of the final development plan, and shall authorize continued issuance of building permits. (Ord. No. 16,798, § 1, 12-20-94; Ord. No. 17,305, § 1(tt), 11-7-96; Ord. No. 18,863, § 1, 5-6-03)

Sec. 36-459. Bills of assurance, covenants, trusts and homeowner associations.

(a) The developer shall create such legal entities as appropriate to undertake and be responsible for the ownership, operation, construction, and maintenance of private roads, parking areas, common usable open space, community facilities, recreation areas, building, lighting, security measures and similar common elements in a development. The city encourages the creation of homeowner associations, funded community trusts or other nonprofit organizations implemented by agreements, private improvement districts, contracts and covenants. All legal instruments setting forth a plan or manner of permanent care and maintenance of such open space, recreational areas and communally-owned facilities shall be approved by the city attorney as to legal form and effect, and by the planning commission as to the suitability for the

proposed use of the open areas. The aforementioned legal instruments shall be provided to the planning commission together with the filing of the final plan, except that the bill of assurance shall be filed with the preliminary plan or at least in a preliminary form.

(b) If the common open space is deeded to a homeowner association, the developer shall file with the plat a declaration of covenants and restrictions in the bill of assurance that will govern the association with the application for final plan approval. The provisions shall include, but not necessarily be limited to, the following:

(1) The homeowners' association must be legally established before building permits are granted.

(2) Membership and fees must be mandatory for each home buyer and successive buyer.

(3) The open space restrictions must be permanent, rather than for a period of years.

(4) The association must be responsible for the maintenance of recreational and other common facilities covered by the agreement and for all liability insurance, local taxes and other public assessments.

(5) Homeowners must pay their pro rata share of the initial cost; the maintenance assessment levied by the association must be stipulated as a potential lien on the property.

(6) The association must be able to adjust the assessment to meet changed needs.

(Ord. No. 16,798, § 1, 12-20-94)

Sec. 36-460. Development standards, conditions and review guidelines.

(a) *Generally.* The planning commission shall consider a proposed PUD or PD in light of the intent, purpose, standards and review guidelines set forth herein. Primary emphasis shall be placed upon achieving compatibility between the proposed development and surrounding areas so as to preserve and enhance the neighborhood. The planning commission shall consider, but shall not be bound by, the lawful provisions of a valid bill of assurance for the subdivision within which the subject property is located when determining the appropriateness of the proposed PUD or PD. Proper planning shall involve a consideration of water conservation, preservation of natural site, amenities, and the protection of watercourses from erosion and siltation. The planning commission shall determine that specific development features, including project density, building locations, common usable open space, the vehicular circulation system, parking areas, screening and landscaping, and perimeter treatment shall be combined in such a way as to further the health, safety, amenity and welfare of the community. To these ends, all applications filed pursuant to this article shall be reviewed in accordance with the same general review guidelines as those utilized for zoning and subdivision applications.

(b) *Residential density.* Residential densities shall be determined on the basis of the following considerations: The densities of surrounding development; the densities allowed under the current zoning; the urban development goals and other policies of the comprehensive plan, the topography and character of the natural environment, and the impact of a given density on the specific site and adjacent properties. The following specific guidelines shall be used in evaluating an application:

Residential Unit Guidelines	*Units Per Gross Acre*
Single-family	4
Zero-lot-line (patio homes)	4—6
Duplex, townhouse	6—12
Garden apartment (1 or 2 floors)	13—18
Medium-rise apartments	19—24
High-rise apartment (over 6 floors)	25+

(c) *Maximum coverage.* The planning commission shall review specific proposed lot coverages which generally correspond to the guidelines for lot coverage in the respective residential, office, commercial or industrial district which most depicts said development scheme.

(d) *Lot size.* There shall be no minimum standards although existing standards of this chapter and chapter 31 shall be used as a guide.

(e) *Setback.* There shall be no minimum standards although existing standards of this chapter and chapter 31 will be used as a guide.

(f) *Building height.* There shall be no maximum building height except as may be determined by the planning commission during the review of the preliminary development plan based on the uses within the development and the proximity of the development to existing or prospective development on adjacent properties. A lesser height may be established by the planning commission when it is deemed necessary to provide adequate light and air to adjacent property and to protect the visual quality of the community.

(g) *Screening and landscaping.* In order to enhance the integrity and attractiveness of the development, and when deemed necessary to protect adjacent properties, the planning commission shall require landscaping and screening as a part of a PUD or PD. The nature and extent of screening and landscaping required shall be determined by the planning commission in relation to the overall character of the development and its specific location. In no instance shall the gross land area devoted to landscaping be less than that required by chapter 15, article IV. This shall especially apply to PUD or PD projects where a change to a more intense use is proposed and there are existing buildings and improvements. As part of the final development plan, a detailed screening and landscaping plan shall be submitted to the planning commission. Landscape plans shall show the general location, type and quality (size and age) of plant material. Screening plans shall include typical details of fences, berms and plant material to be used. Existing trees shall be preserved whenever possible. The location of trees shall be considered when planning the common open space, location of buildings, underground services, walks, paved area, playgrounds, parking areas, and finished grade levels.

(h) *Open space.* Well designed open space is an important factor in providing for innovative design and visual attractiveness. Open space shall be evaluated utilizing the following general guidelines:

(1) A minimum of ten (10) to fifteen (15) percent of gross planned residential district (PRD) areas shall be designated as common usable open space.

(2) Single-family, duplex, zero-lot-line and townhouse developments shall have a minimum of five hundred (500) square feet of usable private open space per unit.

(3) No more than one-half of the common usable open space may be covered by water.

(4) At least fifty (50) percent of the required common usable open space shall conform to the average overall slope within the development.

(5) Recreation facilities or structures and their accessory uses located in common areas shall be considered as usable open space as long as the total impervious surfaces such as paving and roofs constitute no more than ten (10) percent of the total open space.

(6) Landscaped roof areas, accessible to all residents, may be counted as usable common open space at a value of sixty (60) percent of the actual roof area devoted to their use.

(7) A minimum of ten (10) percent of gross planned commercial mixed use district (PCD) or planned office district (POD) area shall be designated as landscaped open space not to be used for streets or parking.

(i) *Traffic circulation.* The following traffic circulation guidelines shall apply:

(1) The adequacy of both the internal and external street systems shall be reviewed in light of the projected future traffic volumes.

(2) Sites without access to either collector or arterial streets shall be developed at a density not to exceed twelve (12) units per gross acre.

(3) The traffic circulation system shall be comprised of a hierarchal scheme of local, collector and arterial streets, each designed to accommodate its proper function, and in appropriate relationship with one another.

(4) Design of the internal street circulation system must be sensitive to such considerations as safety, convenience, separation of vehicular and pedestrian traffic, general attractiveness, access to dwelling units and the proper relationship of different land uses.

(5) Internal collector streets shall be coordinated with the existing external street system, providing for the efficient flow of traffic into and out of the planned unit development.

(6) Internal local streets shall be designed to discourage through traffic within the planned unit development and to adjacent areas.

(7) Design provisions for ingress and egress for any site along with service drives and interior circulation shall be that required by chapter 31 of this Code.

(j) *Parking standards.* The off-street parking and loading standards found in article VIII of this chapter shall apply to the specific gross usable or leasable floor areas of the respective use areas.

(k) *Perimeter treatment.* Notwithstanding any other provisions of a planned zoning district, all uses of land or structures shall meet the open space, buffer or green strip provisions of this chapter and chapters 15 and 21 of this Code.

(l) *Financing of public improvements.* Where financing for public improvements needed to accommodate a proposed planned unit development is insufficient, the planning commission shall encourage the applicant to establish improvement districts or other equitable means of financing these improvements.

(Ord. No. 16,798, § 1, 12-20-94; Ord. No. 17,305, § 1(nn), (uu), 11-7-96; Ord. No. 18,881, § 1(d), 6-3-03)

Sec. 36-461. Modification of approved recorded plans by the director of the department of planning and development.

If an approved and recorded plan of a planned urban development (PUD) or planned development (PD) is presented for issuance of a building permit and the plan is at variance with the standards and conditions set forth in this chapter, the director of the department of planning and development may issue exceptions within the following guidelines:

(1) Does not increase the proposed floor area for nonresidential use by more than twenty (20) percent. Does not increase total number of dwelling units by more than five (5) percent within a given phase. Fluctuation greater than the above shall be permissible provided overall density is maintained.

(2) Does not increase total building coverage by more than twenty (20) percent.

(3) Does not increase building height by more than twenty (20) percent to a maximum of eight (8) feet for buildings less than four (4) stories nor more than one (1) story for buildings greater than four (4) stories.

(4) The owner did not exercise the variance rights contained in subsection 36-454(e).

(Ord. No. 16,798, § 1, 12-20-94; Ord. No. 19,438, § 1(a), 11-15-05; Ord. No. 21,867, § 1, 5-19-20)

Editor's note—Ord. No. 21,867, § 1, adopted May 19, 2020, changed the title of § 36-461 from modification of approved recorded plans by planning director to modification of approved recorded plans by the director of the department of planning and development.

Sec. 36-462. Reserved.

Editor's note—Ord. No. 21,867, adopted May 19, 2020, repealed § 36-462, which pertained to short form and derived from Ord. No. 16,798, § 1, adopted Dec. 20, 1994; and Ord. No. 17,305, § 1(oo), (pp), adopted Nov. 7, 1996.

Secs. 36-463—36-500. Reserved.

ARTICLE VIII. OFF-STREET PARKING AND LOADING*

Sec. 36-501. Purpose and intent.

This article is designed to prevent or alleviate the congestion of the public streets and to promote the safety and welfare of the public. This article establishes herein minimum requirements for the off-street parking, loading and unloading of motor vehicles appropriate to each land use and its intensity in relation to other land uses.
(Code 1961, Ch. 43, § 8-101(a))

Sec. 36-502. Required off-street parking.

(a) When computation of the number of required off-street parking spaces results in a fractional space, the fraction shall be rounded down to the nearest whole space. No parking shall be allowed in the front yard required for any MF-6, MF-12, MF-18, MF-24, R-5, R-6 and O-1 district. In cases where property zoned for one (1) of these seven (7) districts has more than one (1) street frontage or exterior yard, only the designated front yard shall be reserved for landscaping. Any interior yard may be used in its entirety for required off-street parking.

(b) The following shall constitute minimum standards for the provision of off-street parking spaces:

(1) *Residential uses.*

a. Single-family dwelling, 1.0 space per dwelling unit.

b. Accessory dwelling, 1.0 space per unit. Accessory dwelling defined by section 36-204 (b)(1), no space per dwelling unit required.

1. Elderly housing, 0.5 space per unit.

2. Other, 1.5 spaces per unit.

c. Rooming houses, dormitories, fraternities and sororities, boardinghouses (and similar uses and establishments), 0.5 space per sleeping accommodation.

d. Hotels and motels, 1.0 space per guestroom, plus an additional ten (10) percent of the total of all parking spaces required for developments larger than twenty (20) rooms for employees and nonguest users patronizing meeting rooms, restaurants and other facilities.

e. Mobile home park, 1.0 space per mobile home.

f. Orphanage, 1.0 space per each five (5) sleeping accommodations plus one (1) per each full-time staff member.

(2) *Office and institutional uses.*

a. Hospitals, sanitariums, convalescent homes (and similar uses or establishments), 1.0 space for each one (1) bed.

b. Medical clinics, 6.0 spaces per doctor or dentist.

c. Auditoriums, arenas, theaters (and similar places of public assembly), 1.0 space for each five (5) seats.

d. Churches (and other places of worship). One (1) space for every five (5) seats in new principal assembly areas or additions to currently existing structures. Choir seating and areas for folding chairs shall be counted. Twenty-four (24) inches on a pew shall be considered one (1) seat. Stacked parking may be authorized by the planning commission at the time of site plan reviews.

e. Lodge halls, exhibition halls, clubs (and similar places of public assembly), 1.0 space per one hundred (100) square feet of gross floor area.

f. Schools and educational institutions.

1. Nursery, kindergarten and day care centers, 1.0 space per

*__Cross reference—__Landscaping of vehicular use areas, § 15-81 et seq.

administrator, teacher and employee on the largest shift plus 1.0 space per facility vehicle plus 1.0 space per 10.0 persons of licensed capacity.

2. Elementary (grades 1—5), 1.0 space per classroom plus 1.0 space for each teacher, employee and administrator on the largest shift. Stacking space for drop-off and pick-up shall be required on site. Stacking space shall be adequate to accommodate private vehicles and school buses.

3. Middle (grades 1—8), 1.0 space per classroom plus 1.0 space for each teacher, employee and administrator on the largest shift. Stacking space for drop-off and pick-up shall be required on site. Stacking space shall be adequate to accommodate private vehicles and school buses.

4. High (grades 9—12), 6.0 spaces per classroom plus 1.0 space for each teacher, employee and administrator on the largest shift. Stacking space shall be adequate to accommodate private vehicles and school buses.

5. College, university, business college or trade school, 1.0 space for each three hundred (300) square feet of gross floor area, or one (1) space per four (4) students, whichever is greater.

6. Dance school/studio, one (1) space per employee plus on-site loading and unloading spaces to be required at the rate of one (1) for each five (5) students, based on the maximum number of students at any one (1) time. Loading and unloading spaces may be provided in a drive-through lane with stacked stalls as may be approved by the public works department.

g. Business and professional office (and similar use or establishment). One (1) space per five hundred (500) square feet of gross floor area. For structures larger than ten thousand (10,000) square feet, the above parking requirement shall be provided and the following percentage shall be taken of the remaining floor area:

Ten thousand (10,000) to twenty thousand (20,000) square feet, ninety-five (95) percent of parking requirement.

Twenty thousand one (20,001) to thirty thousand (30,000) square feet, ninety (90) percent of parking requirement.

Thirty thousand one (30,001) to forty thousand (40,000) square feet eighty-five (85) percent of parking requirement.

Forty thousand (40,000) square feet and up, eighty (80) percent of parking requirement.

(3) *Commercial uses.*

a. General business and retail sales (except as otherwise provided herein). One (1) space per four hundred (400) square feet of gross floor area up to ten thousand (10,000) square feet. For structures larger than ten thousand (10,000) square feet, the above parking requirement shall be provided and the following percentage shall be taken of the remaining gross floor area:

Ten thousand one (10,001) to twenty thousand (20,000) square feet, ninety-five (95) percent of parking requirement.

Twenty thousand one (20,001) to thirty thousand (30,000) square feet, ninety (90) percent of parking requirement.

Thirty thousand one (30,001) to forty thousand (40,000) square feet eighty-five (85) percent of parking requirement.

Forty thousand (40,000) square feet and up, eighty (80) percent of parking requirement.

Business uses with a mixture of sales space and stock warehousing may reduce the total off-street parking requirement in those instances where the floor area devoted to warehouse exceeds seventy (70) percent of the gross floor area. Such uses may compute the warehouse portion separately at the standard set for warehouse and storage in paragraph (4)b. of this section.

b. Bowling alleys, 4.0 spaces for each lane.

c. Restaurants (and similar establishments serving food and beverages), 1.0 space for each one hundred (100) square feet of gross floor area.

d. Drive-in commercial facilities, in addition to the provisions of subparagraph a., above, drive-in commercial facilities (banks, restaurants and similar uses) shall provide not less than three (3) holding or stacking spaces for each service window.

e. Food store, supermarkets and convenience-type grocery stores, 4.0 spaces plus one (1) space for each three hundred (300) square feet of gross floor area, exclusive of storage area.

f. Personal service establishments (barber, beauty shops and similar uses), 1.0 space per two hundred (200) square feet of gross building area.

g. Automotive services (service stations, garages, automobile washing facilities and similar uses), 5.0 spaces plus 1.0 space for each two hundred fifty (250) square feet of gross building area.

h. Shopping centers. One (1) space for each three hundred (300) square feet of gross leasable floor area in new shopping centers or additions to existing shopping centers for which a building permit is obtained after March 17, 1987. This requirement shall be sufficient for all permitted uses in a shopping center, including new uses and conversions from one use to another use. Existing shopping centers may convert any permitted use to any other permitted use, provided that requirement of one (1) space for each three hundred (300) square feet of gross leasable area is met for the entire shopping center. If an existing shopping center seeks to convert an individual use to a new use which, in a separate commercial building, would require more parking than the most immediate past use and the shopping center does not meet the above requirement, conversions to the new use shall be subject to the same parking requirements as for separate commercial buildings. Such centers shall provide the number of parking spaces required for each separate use as specified in this article, except that nonconforming parking rights may be carried forward as provided in section 36-503.

i. Funeral home with chapel services, one (1) parking space for each three (3) seats in the chapel. This requirement may be provided as stacked or end-to-end spaces in rows as required for funeral procession formation, except that ten (10) percent of the parking requirement shall be provided as marked parking spaces as required by the standards of section 36-511, Parking design.

(4) *Industrial uses.*

a. Manufacturing, processing and wholesaling (and similar uses or establishments), 1.0 space per six hundred (600) square feet of gross floor area.

b. Warehouse and storage, 5.0 spaces plus 1.0 space per two thousand (2,000) square feet of gross floor area up to fifty thousand (50,000) square feet; then, in addition to the above requirement, one (1) space per ten thousand (10,000) square feet above fifty thousand (50,000) square feet or portion thereof.

(c) The number of parking spaces required for a use not listed herein shall be the same as for a similar use which is listed. Appeals from the administrative judgement of the staff shall be filed with the board of adjustment. The content of the filing shall consist of: (1) A cover letter addressed to the chairman and members of the board of adjustment setting forth the request; (2) a copy of all pertinent graphic materials or correspondence. This filing shall occur within thirty (30) calendar days of the action by the staff.
(Code 1961, Ch. 43, § 8-101(b), (d); Ord. No. 15,247, § 1, 2-17-87; Ord. No. 15,553, § 1ll, ss, tt, 9-20-88; Ord. No. 15,571, § 1a, 11-1-88; Ord. No. 16,116, § 1(x), 11-19-91; Ord. No. 18,682, § 1(g), 5-21-02; Ord. No. 21,867, § 1, 5-19-20; Ord. No. 22,647, § 3, 8-19-25)

Sec. 36-503. Combined facilities.

Off-street parking facilities required for two (2) or more uses located on the same building site may be combined and used jointly provided, however, that the total number of off-street parking spaces shall not be less than the sum of requirements for the various individual uses computed separately in accordance with the process set forth in this section. Those uses proposed for occupancy within an established development shall not occupy the site prior to the determination that the ordinance standard parking spaces available to the property for all uses meet the provisions of this section except that the number of spaces required for a previous legal use of any portion of the development shall be considered to be provided even if the spaces do not exist. Nonconforming parking rights may be carried forward to count as part of the parking requirement of a use replacing a previously established legal use.
(Code 1961, Ch. 43, § 8-101(c); Ord. No. 15,247, § 1, 2-17-87)

Sec. 36-504. Off-street loading requirements.

(a) In addition to all other requirements, all on the same premises with every building, structure or part thereof hereafter erected, established or enlarged and occupied for manufacturing, storage, warehouse, goods, display, department store, wholesale, market, hotel, laundry, drycleaning or other uses involving the receipt or distribution by vehicles of materials or merchandise, there shall be provided and maintained adequate space for standing, loading and unloading in order to avoid undue interference with public use of the street or alley.

(b) Such space, unless otherwise adequately provided for, shall include a twelve-foot by thirty-foot loading space and fourteen-foot height clearance for every twenty thousand (20,000) square feet or fraction thereof in excess of five thousand (5,000) square feet of floor and land area used for the above-mentioned purposes.
(Code 1961, Ch. 43, § 8-101(e))

Sec. 36-505. Use of right-of-way.

No portion of any public street right-of-way shall be considered as fulfilling or partially fulfilling the off-street parking requirements of this article. No parking "bays" shall be allowed, except for residential streets. All commercial off-street parking lots abutting collector and arterial streets shall be arranged so that ingress and egress is by forward motion of the vehicle (not applicable to single-family or two-family residences). For the purpose of parking in the rear yard, any public dedicated alley may be used in computing the maneuvering area.
(Code 1961, Ch. 43, § 8-101(f))

Sec. 36-506. Expansions.

When a building or structure erected prior to or after the effective date of this chapter shall undergo any increase in number of dwelling units, gross floor area, seating capacity, number of employees or other unit of measure used in determining required parking facilities, and when the increase would result in a requirement for additional parking facilities, such additional facilities shall be accordingly, provided as a condition for obtaining a building permit or privilege license. In computing the number of spaces required for such a building, however, only the increase in unit of measure shall be considered.
(Code 1961, Ch. 43, § 8-101(g))

Sec. 36-507. Location of off-street parking.

(a) All parking spaces provided pursuant to this article shall be on the same lot with the building or within three hundred (300) feet thereof. The distance to any parking area as herein required shall be measured between the nearest point of the off-street parking facility and the nearest point of the building said parking area or facility is to serve. Off-site parking shall not exceed fifty (50) percent of the total number of spaces required by this article. All off-site parking shall be noted on the official zoning map so as to assure maintenance of the requirement.

(b) When detached parking facilities or satellite parking lots are provided, they shall be located on property which is zoned to allow the principal use which this parking will serve. Parcels of land used as access to or from parking or loading areas for any land use shall conform to this requirement.
(Code 1961, Ch. 43, § 8-101(h); Ord. No. 15,571, § 1b, 11-1-88; Ord. No. 18,324, § 1(s), 8-1-00; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-508. Pavement requirements.

Every parcel of land which after the effective date of this chapter is changed to a parking area, automobile, other vehicle or trailer sales or storage area or automobile or motor vehicle service station, garage or other vehicle use area shall be paved where subject to wheeled traffic. The minimum pavement requirement shall be one and one-half (1½) inches asphaltic concrete hot mix with a five-inch compacted base or a double surface treatment with a five-inch compacted base or a four-inch concrete slab and shall have appropriate bumper guards where needed. Asphalt roofing and by-products of its manufacture are expressly prohibited as a base course or as surfacing material on parking lots and/or drives.

Low impact development (LID) facilities and techniques are allowed to be used for parking lot design and construction, unless conditions make LID infeasible as determined by the director of public works or his/her designee. LID techniques for parking lot design include, but are not limited to, pervious surfacing and bioretention swales. Pervious surfacing may be an option for all or a portion of the vehicular use area depending on the use, soil conditions and associated vehicular traffic. Pervious surfacing includes, but is not limited to, paving blocks, pervious concrete and porous asphalt. The surface of the vehicular use area shall be maintained to comply with the approved plan.
(Code 1961, Ch. 43, § 8-101(i); Ord. No. 21,079, § 1, 8-4-15)

Sec. 36-509. Permanency of spaces provided.

(a) Any off-street parking or loading space established prior to the effective date of this chapter and which is used or intended to be used in connection with any main building, structure or use, or any spaces designed and intended to comply with the requirements of this chapter for any such main building or structure erected after such effective date, shall hereafter be maintained so long as said building or structure remains, unless the owner provides and maintains in another location an equivalent number of required spaces in conformance with the provisions of this chapter.

(b) Any conveyance of such parking or loading space, or transfer of interest therein, by the owner of the property served thereby without a simultaneous conveyance or transfer of the property served thereby to the same grantee or

transferee or without suitable provisions being made in another location for the maintenance of an equivalent number of required spaces in conformance with the provisions hereof shall be unlawful.
(Code 1961, Ch. 43, § 8-101(k))

Sec. 36-510. Landscaping and screening requirements.

The landscaping and screening requirements set forth in chapter 15, article IV, shall be in full force and effect when erecting, constructing, enlarging or otherwise altering any vehicular use area.

Low impact development (LID) techniques are allowed when integrating stormwater management facilities.
(Code 1961, Ch. 43, § 8-101(l); Ord. No. 21,079, § 2, 8-4-15)

Sec. 36-511. Parking design.

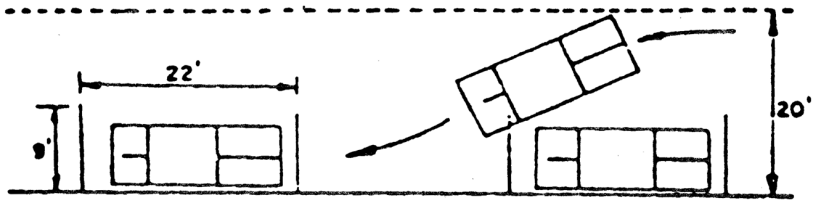
(a) The following four (4) parking angles are allowed with their respective width and depth dimensions for stalls and maneuvering areas:

Type	*Width (feet)*	*Depth (feet)*	*Maneuvering Area (feet)*
Parallel	22	9	11
Right angle	9	20	20
Sixty-degree angle	9	18	18
Forty-five degree angle	9	18	12

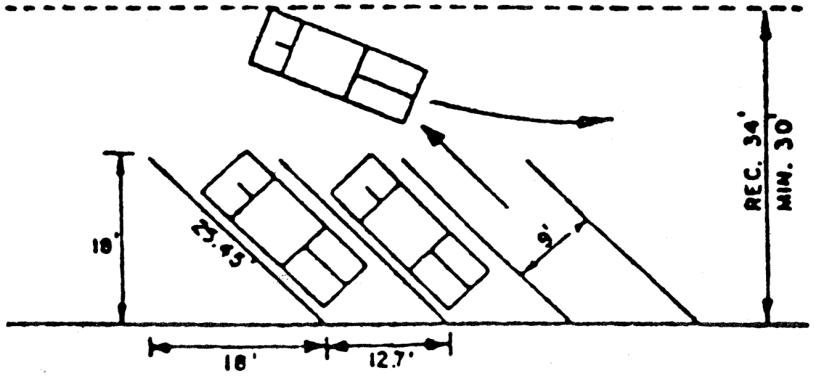
For purposes of compact-car space design, the width of spaces may be reduced to eight (8) feet, six (6) inches. This design dimension modification is permitted in those instances where a parking lot will consist of a minimum of twenty (20) parking spaces upon completion of the design whether located within a parking structure or an open parking surface. The maximum number of compact spaces permitted in any parking lot shall be limited to twenty (20) percent of the total spaces. Spaces shall be measured between centerlines of painted stripes. These spaces shall be properly signed or marked as compact-car use only. These dimensions are specifically prohibited for use in handicapped or loading-zone areas.

Within parking structures, compact spaces shall be permitted for all 45° and 60° angle parking spaces located on a one-way aisle or drive. All other parking spaces shall have a width of nine (9) feet.

(b) The following diagram illustrates the parking space and maneuvering space used for the various parking designs:

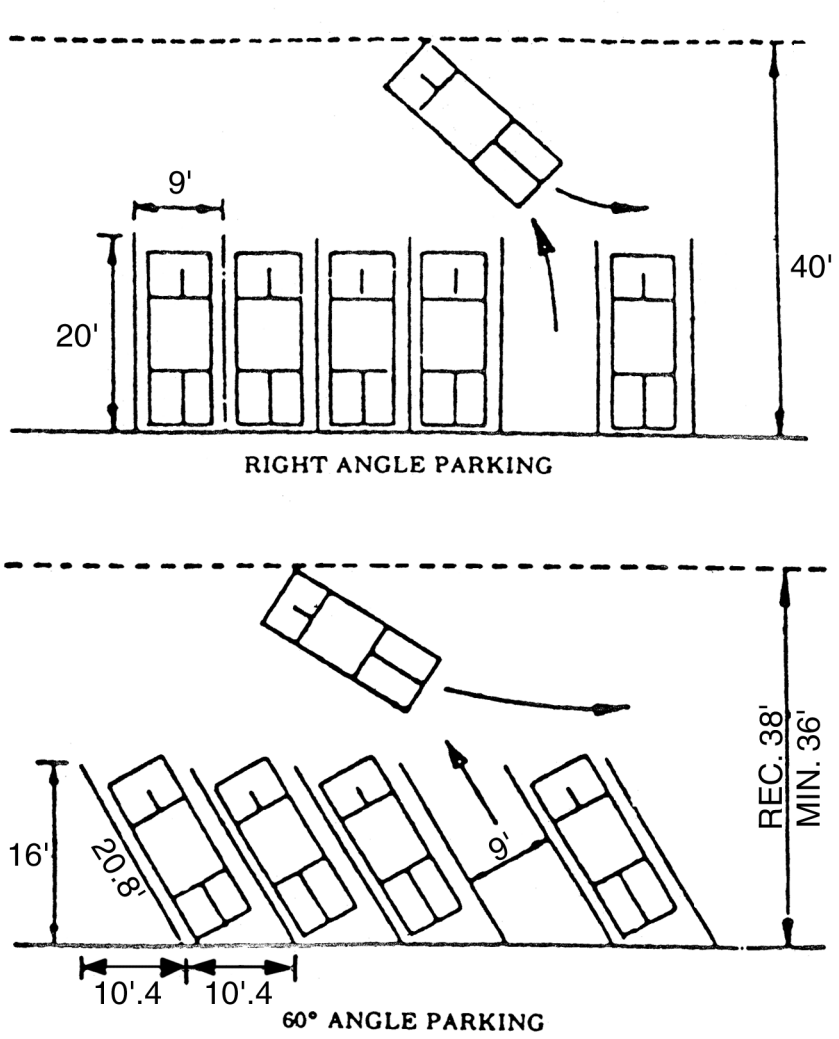


PARALLEL PARKING



45° ANGLE PARKING

Angle Parking



Angle Parking

(Code 1961, Ch. 43, § 8-101(j); Ord. No. 15,247, § 1, 2-17-87; Ord. No. 16,116, § 1(a), 11-19-91; Ord. No. 18,902, § 1(q), 7-15-03; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-512. Commercial vehicle parking (prohibited).

(a) Except as provided herein, no portion of any lot, tract or parcel of land zoned for residential usage, including districts "R-1" through "R-7a" and "MF-6" through "MF-24," shall be utilized for the parking of commercial vehicles with a load-carrying capacity of one (1) ton or greater.

(b) For the purposes of this section, the following types of vehicles are expressly prohibited at any time:

(1) All commercial tow vehicles or vehicle carriers.

(2) Dump trucks, trash haulers, bulldozers and other earth haulers or excavation equipment.

(3) Flatbed or stake bed trucks.

(4) Trailers whose designed intent is storage or transport of material or equipment.

(5) Trucks or buses used in inter- or intrastate commerce.

(6) Vans, of one (1) ton or greater in load-carrying capacity.

(7) School or church buses or vans of one (1) ton or greater in load-carrying capacity.

(8) Street sweepers and vehicle-mounted vacuum devices intended for the cleaning of streets or parking lots.

(9) Mobile canteen units.

(Ord. No. 15,842, § 1, 4-17-90; Ord. No. 15,905, §§ 1—3, 7-17-90; Ord. No. 16,341, § 1(cc), (dd), 1-19-93; Ord. No. 17,305, § 1(cc), 11-7-96; Ord. No. 21,168, § 1(c), 2-2-16)

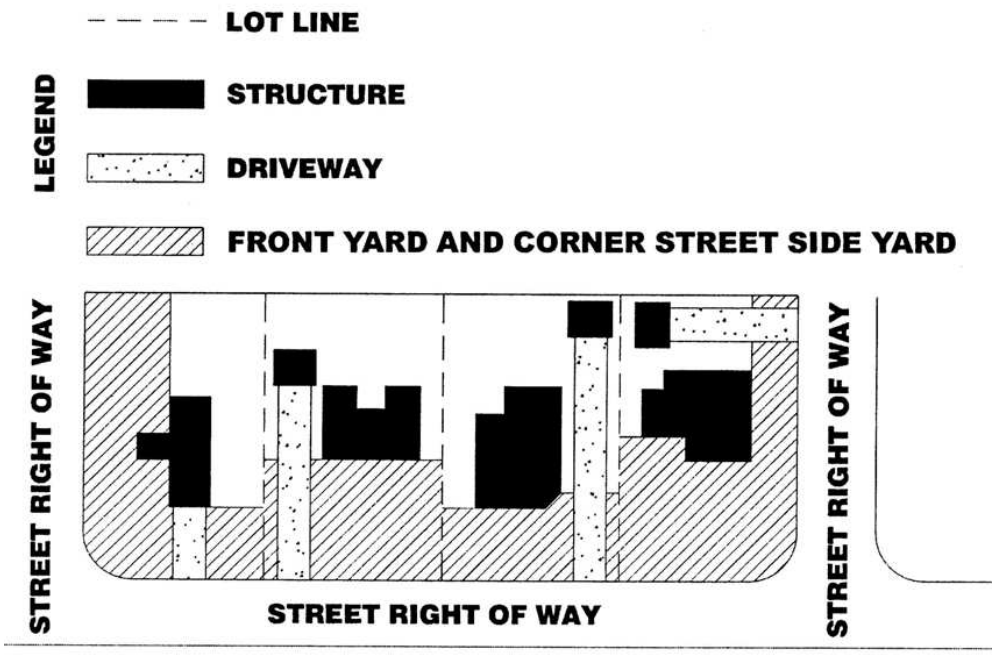
Sec. 36-513. Motor vehicle parking on residential properties.

(a) Any portion of a lot, tract or parcel of land zoned for residential use may be utilized for the parking of motor vehicles unless prohibited by other provisions of the zoning ordinance.

(b) For purposes of this section, "motor vehicle" means a passenger vehicle, truck, boat, camper, recreational vehicle, motorcycle, golf cart, all-terrain vehicle, trailer, or other similar vehicle. "Motor vehicle" does not include a motorized wheelchair, bicycle, tricycle or quadricycle. "Paved" means treated or covered with concrete, asphalt, pavers or other similar material and maintained in such a manner as to provide a mud-free and dustless surface.

(c) For purposes of this section, "front yard" and "corner street side yard" mean the open space between the pavement of the street and a line as established in this section, extending from one side of the lot to the opposite side of the lot.

As viewed from the street, the line shall start at a point on the left lot line, and shall extend parallel to the street to the nearest corner of the principal structure and then along the face of the principal structure to the right corner, and from that point on a line parallel to the street to a point on the right lot line (Figure 1).



(d) No person, including any owner, tenant, manager, or occupant of property used as a residence, shall allow any person to, keep, store, or park any motor vehicle on any portion of a front yard or corner street side yard, as defined in subsection (c) of this section, except on a paved designated driveway area, an unpaved designated driveway area, or parking pad not to exceed twenty-five (25) percent of the front yard or corner street side yard. The unpaved, designated driveway area or parking pad must be surfaced with gravel or similar material or hard-packed in a manner that does not result in the creation of dust, mud, silt, or standing water. For purposes of this subsection:

(1) A designated driveway area shall be defined as the clearly delineated and defined paved or unpaved path from the adjacent street to any garage or carport attached to the residence;

(2) No more than twenty-five (25) percent of the front yard or corner street side yard shall be used for driveway and off-street parking purposes;

(3) The restriction limiting parking area to twenty-five (25) percent of the front yard or corner street side yard shall not prohibit construction of a twenty (20) foot wide and twenty (20)-foot long driveway or driveway area;

(4) The twenty-foot width limitation shall not apply to a paved or unpaved designated driveway, provided the driveway does not exceed the width of the garage or carport;

(5) The twenty-foot length limitation shall not apply to a paved or unpaved designated driveway, provided the driveway does not exceed the distance from the adjacent street to the carport or garage;

(6) The twenty-foot length limitation shall not apply to clearly delineated and defined paved or unpaved circular driveways;

(7) Hard packed means any improved surface that is stabilized and provides appropriate dust control and limited permeability including pavers, concrete, asphalt, or other similar parking material;

(8) Any parking pad that is not paved shall be delineated in some manner that clearly defines and identifies the boundaries of the parking area and does not exceed twenty-five (25) percent of the front yard or corner street side yard;

(9) The provisions of this subsection shall not apply to special public events such as, but not limited to, football games at War Memorial Stadium, or the Arkansas State Fair and Livestock Exposition;

(10) The provisions of this subsection shall not apply on nationally recognized holidays, or to special private events such as, but not limited to, a private party or reception, if the private event lasts no more than six (6) hours during one (1) calendar day;

(11) Any individual seeking any additional paved or unpaved parking pad(s) may seek a variance pursuant to the guidelines in subsection (e); and

(12) Any designated parking area shall comply with the obstruction provision of section 32-8 of the Code of Ordinances.

(e) The board of adjustment may approve variances from the provisions established by this section provided the property owner can evidence a circumstance or hardship unique to the property. Applications to the board of adjustment for a variance shall consist of:

(1) A cover letter addressed to the chairman and members of the board of adjustment setting forth the request;

(2) A copy of all pertinent graphic materials or correspondence.

(f) Nothing contained in this section is intended to nor shall be construed or interpreted to permit parking that is prohibited or restricted by any other provision of this Code.

(g) No keeping, storing or parking of any motor vehicle in violation of this section shall be deemed to be nonconforming under article III of this chapter.

(h) For purposes of this section, boats, boat trailers and camping trailers are prohibited from being parked/stored in the public right-of-way for a period exceeding twenty-four (24) hours. This does not include motorized or self-propelled recreational vehicles.

(Ord. No. 15,842, § 2, 4-17-90; Ord. No. 20,231, § 1, 3-2-10; Ord. No. 21,378, § 1, 3-21-17; Ord. No. 22,599, §§ 1, 2, 4-1-25)

Sec. 36-514. Exclusion for public service and repair vehicles.

For the purposes of section 36-512, all vehicles engaged in public service work or repair services, such as utilities, drainage and/or street maintenance, delivery vehicles or contractors shall be exempt. This vehicle must be engaged in the service or repair rendered and not stored for use off-site. Further, any vehicle of a commercial nature that is on call for emergency service purposes, such as a utility repair van, shall be permitted at any time.

(Ord. No. 15,842, § 3, 4-17-90)

Sec. 36-515. Variance.

The planning director may approve variances from the provisions established by section 36-512 provided the property owner can evidence a circumstance or hardship unique to the property. Appeals from the administrative judgement of the staff shall be filed with the board of adjustment. The content of the filing shall consist of: (1) a cover letter addressed to the chairman and members of the board of adjustment setting forth the request; (2) a copy of all pertinent graphic materials or correspondence. This filing shall occur within thirty (30) calendar days of the action by the staff.

(Ord. No. 15,842, § 4, 4-17-90; Ord. No. 16,116, § 1(y), 11-19-91)

Sec. 36-516. Fences and walls.

(a) *Definition.* In this section the words *fence* and *wall* are synonymous. Fence means a structure of wire, posts, boards, pickets or rails commonly used to border, secure or delineate a yard, field, lot or other land area.

(b) *Applicability.* The provisions of this section shall apply to the placement of fences and walls upon both "use" and "zoned" sites. They may be erected so as to provide for expanded screening and fencing of nonconforming uses thereby reducing existing impact on adjacent properties. The residential, office, commercial and industrial standards below in subsections (e)(1), (2), and (3) are those districts set forth in article V of this chapter.

(c) *[Maintaining.]* Except as provided herein no fence, wall, screen, hedge or other structure in the nature of a fence shall be erected or maintained in a position or placed so as to be dangerous or detrimental to the health or safety of the public or obstruct the view so as to endanger public traffic on a street.

(d) *Security fencing.*

(1) *Barbed and razor wire fences.* For purposes of this section the use of barbed, concertina wire or other types of wire specifically designed to inflict injury upon human contact is prohibited except when used at the top of fences at least six (6) feet above grade enclosing business or manufacturing premises. When such wire is used, it shall not extend outside the vertical plane of the enclosed property.

(2) *Electric fences.* No electric fence shall be installed, operated or maintained except as provided in this subsection.

a. Electric fences shall be constructed, maintained and operated in conformance with the specifications set forth in International Electrotechnical Commission Standard [No.] 60335-2-76.

b. The electric charge produced by the fence upon contact shall not exceed energizer characteristics set forth in paragraph 22.108 and depicted in Figure 102 of International Electrotechnical Commission Standard No. 60335-2-76.

c. Electric fences shall be completely surrounded on the side facing the property exterior by a nonelectri-

fied fence or wall that is not less than six (6) feet in height and at least six (6) inches from the electric fence.

d. Electric fences may be installed, operated or maintained only on industrial zoned properties with approved areas of outdoor storage or display.

e. Electric fences shall be clearly identified with warning signs that read "Warning—Electric Fence" or similar terms and which are posted at intervals of not more than fifty (50) feet with at least one (1) sign on each exterior perimeter side of the fence.

f. Each electric fence must have a switch or other approved device on the outside in the gate area to disarm the entire electric fence (for police and fire department access).

g. No electric fence shall be installed until after certification from the planning and development department that the plans for the fence meet the requirements of this subsection and a permit is obtained for the fence.

(e) *[Height and area regulations.]* Fences meeting zoning and subdivision ordinance setback requirements may be constructed to district height as permitted by this chapter 36. All others are as follows:

(1) *Residential fence and wall standards.*

a. Between a required building setback line and a street right-of-way, the maximum height shall be four (4) feet. Other fences may be erected to a maximum height of eight (8) feet.

b. A decorative wall shall comply in the manner set forth for fences.

c. A structural wall as defined in this chapter shall conform to the building setback required by the zoning district.

(2) *Office and commercial fence and wall standards.*

a. Between a required building setback line and a street right-of-way, the maximum height shall be six (6) feet. Other fences may be erected to a maximum height of eight (8) feet.

b. A decorative wall shall comply in the manner set forth for fences.

c. A structural wall as defined in this chapter shall conform to the building setback required by the district, except that those walls required to comply with benching on a cut or fill regulation of the City of Little Rock are exempt.

(3) *Industrial fence and wall standards.*

a. Between a required building setback line and a street right-of-way the maximum height shall be nine (9) feet. Other fences may be erected to a maximum height of nine (9) feet.

b. A decorative wall shall comply in the manner set forth for fences.

c. A structural wall as defined in this chapter shall conform to the building setback required by the district, except that those walls required to comply with benching on a cut or fill regulation of the City of Little Rock are exempt.

(f) *General provisions.*

(1) For purposes of erecting fences that are to serve as visual screening, plastic or metal slats woven into a chain-link fence are prohibited.

(2) Any fence erected along a property line corner or within the fifty-foot triangle formed by the property line intersection shall comply with the obstruction provisions of section 32-8 of the Code of Ordinances.

(3) All fences intended as screening fences to fulfill a code or site plan requirement shall place the decorative or face side toward the subject to be protected.

(4) All fence or wall construction shall be placed in a manner that will not damage required landscape areas or obstruct access to utility easements.

(5) Any fence, wall or other construction within public easements shall be constructed in a manner not to impede or otherwise restrict existing drainage patterns, both natural and man-made. No construction within a public easement is allowed without first obtaining required permits. Other ordinance requirements apply as found in section 36-176.

(6) A fence erected for security or safety purposes shall not be construed to be expansion of a nonconforming use.

(7) Support columns or support posts shall be permitted to exceed the allowable fence or wall height by no more than two (2) feet, including any ornamental features. Support columns or support posts shall have a maximum width of two (2) feet. There shall be a minimum distance of seven (7) feet six (6) inches between opposing faces of support columns or support posts which exceed the allowable fence or wall height, other than at gates or corners.

(g) *Appeals.* Appeal of provisions of this section shall be to the board of adjustment.
(Ord. No. 17,234, § 1, 7-2-96; Ord. No. 18,324, § 1(aa), 8-1-00; Ord. No. 18,682, § 1(j)—(l), 5-21-02; Ord. No. 19,713, § 1(e), 3-6-07; Ord. No. 20,326, § 1(t), 9-21-10; Ord. No. 21,867, § 1, 5-19-20)

Secs. 36-517—36-519. Reserved.

ARTICLE IX. BUFFERS AND SCREENING*

Sec. 36-520. Purpose and intent.

(a) This article is designed to provide for the establishment of minimum livability, green open space and maximum required visual screening between dissimilar uses and public thoroughfares. Further, it is intended to promote the safety and welfare of the general public. This article establishes standards for the placement, retention or replacement of areas designated as foliage, including trees, shrubs, grasses and other ground covers, together with fences or man-made structures appropriate for a land use and its activity areas.

(b) Specifically, the purposes of this article are to encourage:

(1) Superior development and redevelopment through introduction of enhanced design criteria.

(2) Provision of more effective landscaping and buffering of nonresidential uses.

(3) Minimum disruption of neighborhoods through introduction of visual and physical barriers.

(4) Better utilization of sites with physical or geographic constraints or special features.

(5) Preservation of large trees and other natural vegetation.
(Ord. No. 18,360, § 1, 9-26-00)

Sec. 36-521. General provisions.

(a) The provisions of this article are intended to be harmonious, compatible and supportive of those included within the landscape, land alteration and stormwater management ordinances of the city. All plans for the provision of required buffer areas shall incorporate the design standards set forth within these several ordinances.

(b) These regulations are not intended to be additive in any respect, but shall overlay the area specified by the landscape, stormwater management and land alteration ordinances.

(c) The areas designated on a plan for buffers shall be designed and developed utilizing the following elements:

(1) Plantings, trees, groundcover and ornamental or structural embellishments as may be required by the landscape ordinance. Low impact development (LID) facilities and techniques are permitted in the landscape design.

(2) Stormwater detention areas, floodways, major drainage easements and hillside

*__Editor's note—__Section 1 of Ord. No. 18,360, adopted Sept. 26, 2000, deleted Art. IX in its entirety and enacted similar new provisions to replace §§ 36-520—36-526. Former Art. IX derived from Ord. No. 15,832, adopted April 3, 1990; Ord. No. 16,832, adopted March 21, 1995; Ord. No. 18,228, adopted March 7, 2000; Ord. No. 18,324, adopted Aug. 1, 2000.

__Cross references—__Landscaping and tree protection, Ch. 15; landscape ordinance, § 15-81 et seq.; landscaping requirements, § 15-131 et seq.; stormwater management and drainage, Ch. 29; stormwater management and drainage plans, § 29-61 et seq.; land alteration regulations, § 29-166 et seq.

buffers, as defined in the stormwater management ordinance, so long as these areas are not hard-surfaced.

(3) Surfacing materials that are impervious to the passage of water shall be prohibited except as may be authorized by the landscape ordinance.

(4) All applications submitted for planning commission review as a conditional use permit or planned development shall submit a general plan for treatment of the areas required as buffers. This plan may be general with respect to variety and quantity of trees or shrubs, but shall include a sketch grading plan.

(d) These provisions shall extend to include the development or redevelopment of all properties currently classified as multifamily, office, commercial or industrial.

(e) The right-of-way of any dedicated public thoroughfare or private street authorized by the planning commission shall not be used in computing the depth or area of any buffer.

(f) A minimum of seventy (70) percent of the land use buffer shall be undisturbed. The right-of-way of any utility easement shall not be used in computing the depth or area of land use buffer in developments abutting property used or zoned for single-family or two-family use under R-1, R-2, R-3, R-4, PRD and PDR.
(Ord. No. 18,360, § 1, 9-26-00; Ord. No. 18,369, § 2, 10-10-00; Ord. No. 21,079, § 3, 8-4-15; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-522. Buffers required.

(a) This section is designed to provide standards for buffers in multifamily, office, commercial and industrial zones while specifically omitting requirements for buffers or screening by single-family or duplex uses.

(1) Single-family or duplex uses shall not be required buffering or screening.

(2) The city official may grant not more than a twenty-five (25) percent reduction of the buffer requirements of this chapter within developments in areas designated mature in chapter 15 of this Code.

(3) Street buffers shall be a minimum of thirty (30) feet in width when abutting an expressway except within mature areas.

(4) A map of matured areas is available at the department of planning and development.

(b) The following shall constitute the standards for provision of buffers:

(1) *Multifamily uses:* These uses shall provide land use buffers only where abutting single-family and duplex use or zoning. Street buffers shall be required in all instances.

a. *Land use buffer.* All sites developed, modified or enlarged shall provide a land use buffer(s) as follows:

1. Side property lines at six (6) percent of the average width of the lot on both sides;

2. Rear property lines at six (6) percent of the average depth of the lot;

3. The minimum dimension shall be nine (9) feet in all instances;

4. The maximum dimension required shall be fifty (50) feet in all instances.

b. *Street buffer.* All sites developed, modified or enlarged shall provide street buffers as follows:

1. All street property lines at six (6) percent of the average depth of the lot;

2. Street buffers shall not be required for alley frontage;

3. The minimum dimension shall be one-half the full width requirement but in no case less than nine (9) feet.

4. The maximum dimension required shall be fifty (50) feet.

(2) *Office uses.* These uses shall provide land use buffers only where abutting multifamily, duplex or single-family usage or zoning. Street buffers shall be required in all instances.

a. *Land use buffer.* All sites developed, modified or enlarged shall provide a land use buffer(s) as follows:

1. Side property lines at six (6) percent of the average width of the lot on both sides;
2. Rear property lines at six (6) percent of the average depth of the lot;
3. The minimum dimension shall be nine (9) feet in all instances;
4. The maximum dimension required shall be fifty (50) feet in all instances.

b. *Street buffer.* All sites developed, modified or enlarged shall provide street buffers as follows:

1. All street property lines at six (6) percent of the average depth of the lot;
2. Street buffers shall not be required for alley frontage;
3. The minimum dimension shall be one-half the full width requirement but in no case less than nine (9) feet.
4. The maximum dimension required shall be fifty (50) feet in all instances.

(3) *Commercial uses.* These uses shall provide buffers where abutting any use or zoning except office, commercial or industrial. Street buffers shall be required in all instances.

a. *Land use buffer.* All sites developed, modified or enlarged shall provide a land use buffer(s) as follows:

1. Side property lines at six (6) percent of the average width of the lot on both sides;
2. Rear property lines at six (6) percent of the average depth of the lot;
3. The minimum dimension shall be nine (9) feet in all instances;
4. The maximum dimension required shall be fifty (50) feet in all instances.

b. *Street buffer.* All sites developed, modified or enlarged shall provide street buffers as follows:

1. All street property lines at six (6) percent of the average depth of the lot;
2. Street buffers shall not be required for alley frontage;
3. The minimum dimension shall be one-half the full width requirement but in no case less than nine (9) feet.
4. The maximum dimension required shall be fifty (50) feet.

(4) *Industrial uses.* These uses shall provide land use buffers where abutting any use or zoning except industrial. Street buffers shall be required in all instances.

a. *Land use buffer.* All sites developed, modified or enlarged shall provide a land use buffer(s) as follows:

1. Side property lines at six (6) percent of the average width of the lot on both sides;
2. Rear property lines at six (6) percent of the average depth of the lot;
3. The minimum dimension shall be nine (9) feet in all instances;
4. The maximum dimension required shall be fifty (50) feet in all instances.

b. *Street buffer.* All sites developed, modified or enlarged shall provide street buffers as follows:

1. All street property lines at six (6) percent of the average depth of the lot;

2. Street buffers shall not be required for alley frontage;
3. The minimum dimension shall be one-half the full width requirement but in no case less than nine (9) feet.
4. The maximum dimension required shall be fifty (50) feet.

(Ord. No. 18,360, § 1, 9-26-00)

Sec. 36-523. Screening required.

(a) As a component of all land use buffer requirements, opaque screening, whether a fence or other device, a minimum of six (6) feet in height shall be required to be placed upon the property line side of a buffer.

(b) Where practical and the terrain permits, the required screening shall extend the full length of a property where any outside activity is located for a distance of ten (10) feet on either side of such activity.

(c) The activities to be screened include, but are not limited to, parking lots, drives, sanitation areas, commercial static display of merchandise, loading docks, utility service facilities and heating and air conditioning equipment.

(d) Dumpsters, trash containment areas and dumpster-type recycling containers shall be screened and the screen shall exceed the height of the dumpster or trash containment area by at least two (2) feet not to exceed eight (8) feet total height. This requirement may be modified as to location within the buffer when a circumstance unique to a site indicates that the screening will not serve its intended purpose and may, in some fashion, be inappropriate.

(e) The city official shall review all requests for modification of location and make a determination of appropriateness. The city official shall not have authority to waive a requirement in its entirety.

(Ord. No. 18,360, § 1, 9-26-00; Ord. No. 21,017, § 1(a), 4-7-15)

Sec. 36-524. Exceptions and modifications.

The provisions of this article may be modified and trade-offs permitted with respect to dimension or location within a property boundary. Permitted forms of modification are identified within the landscape ordinance and as follows:

(1) For purposes of application of this article, no buffer or screening requirement located on an adjacent property may be utilized as a portion of a required buffer, nor allowed to be used in a trade off or modification of a standard.

(2) Lots or tracts of land unique or unusual in shape, location or access may be permitted to reduce the land use buffers set forth in this article to dimensions not less than the required building setback lines from side and rear property lines.

(3) The redevelopment of a site utilizing all or parts of an existing building(s) shall not be required to provide land use or street buffers except as follows:

a. When the orientation of the building changes to face another lot line or street frontage.
b. When new loading docks or building openings are proposed.
c. When outside storage of trash, materials, equipment or products are introduced to the site at new locations.
d. When new parking, drives or access to the site is proposed.

In these instances, the buffer standards shall apply to the affected lot line only.

(4) For purposes of lots containing nonconforming building(s) setback(s), the owner/developer may delete from the required buffer area that area in conflict with the existing building.

(5) Lots or tracts of land abutting the right-of-way of a railroad zoned for residential use and held by title separate from, all abutting lands shall not be required to provide land use buffers along the common property line.

(6) In those instances where a developer proposes to erect a solid wall of face brick or other approved finish on a lot side or

rear property line requiring a buffer, the buffer may be reduced when each of the following are applied:

a. Not less than the required building setback line established by the zoning ordinance.

b. All surface area between the proposed wall and the property line be landscaped as provided within the landscape ordinance.

c. The wall to have no openings, doors or signage except as may be required by the building code or fire department as a safety device.

d. The wall shall not exceed twenty-six (26) feet in height including the parapet or other roof line structure.

e. The elevator penthouse and HVAC systems to meet the original buffer dimension, whether roof- or building-mounted.

(7) In those instances where a development site abuts a public park or other permanent public open space and where at least one hundred (100) feet of undisturbed natural foliage exists along the common lot line, a buffer requirement along the common property line may be reduced to the minimum landscaping and screening required by the landscape ordinance. Activity areas on the development site along the common line shall be screened as provided in section 36-523 of this article.

(8) Up to twenty-five (25) percent of a required land use buffer can be moved from one property line to another for purposes of improving visual esthetics or for other appropriate environmental or design concerns. This shall be permitted only when used in concert with trade-offs in the landscape ordinance.

(9) For purposes of trade-off, an irregular land area may be substituted for the required parallel street buffer, when the designed intent is to preserve existing trees, foliage or land features. In all instances, the total required land area within the street buffer shall remain the same.

(10) For purposes of this section, the city official shall have the authority to interpret the language and specifics of application of the several exceptions. Appeals of the decisions of the city official shall be filed with the board of adjustment.

(Ord. No. 18,360, § 1, 9-26-00)

Sec. 36-525. Permanency of buffer area.

It shall be the responsibility of the landowner to maintain all designated buffer areas in the manner established by the approved plan.
(Ord. No. 18,360, § 1, 9-26-00)

Sec. 36-526. Variance.

Requests for a variance from the standards of this article may be filed with the board of adjustment. The basis for relief and the procedure for filing shall be the same as that established for zoning district variances.
(Ord. No. 18,360, § 1, 9-26-00)

Secs. 36-527—36-529. Reserved.

ARTICLE X. SIGNS*

Sec. 36-530. Definitions.

The following words, terms and phrases, when used in this chapter, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Abandoned sign means a sign which no longer identifies or advertises a bona fide business, lessor, service, owner, product or activity, and for which no legal owner can be found.

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*__Cross references—__Buildings and building regulations, ch. 8; special sign electricians, § 8-225; electrical sign contractors, § 8-236; planning and development, ch. 23; subdivisions, ch. 31.

__State law reference—__Authority to legislate on matters pertaining to municipal affairs, A.C.A. § 14-43-601 et seq.

Administrator means the person designated by the director to enforce this chapter.

Alteration means to replace, exchange, reconstruct, renovate, move, relocate, animate, enlarge or decrease in size.

Animated sign means any sign which incorporates in any manner mechanical movement, or apparent movement achieved by electrical pulsations or other means such as sequential light phasing.

Awning means a shelter projecting from and supported by the exterior wall of a building constructed on nonrigid materials on a supporting framework.

Awning sign means a sign painted on, printed on, or attached flat against the surface of an awning.

Banner sign means a sign made of fabric or any nonrigid material with no enclosing framework.

Billboard means off-premises sign.

Billboard site means one (1) sign structure regardless of the number of faces. A location containing multiple billboards not exceeding fifteen (15) feet in distance between the closest point of the billboards is one (1) billboard site.

Building has the meaning provided for it in the edition of the Standard Building Code in force in the city.

Changeable copy sign (automatic) means a sign on which the copy changes automatically on a
lampbank or through mechanical means, e.g., electrical or electronic time and temperature units.

Changeable copy sign (manual) means a sign on which copy is changed manually in the field, e.g., readerboards with changeable letters.

Clearance (of a sign) means the smallest vertical distance between the grade and the lowest point of any sign, including framework and embellishments, extending over that grade.

Construction sign means a temporary sign identifying an architect, contractor, subcontractor, and/or material supplier participating in construction on the property on which the sign is located.

Copy means the wording on a sign surface in either permanent or removable letter form.

Directional/information sign means a sign of two (2) feet square or less, and no more than six (6) feet in height, giving direction to a specific location, instructions or facility information. The sign may contain the business name or logo and an arrow for direction of travel, but no advertising or commercial copy.

Director means the director of the department of planning and development as having authority and responsibility under this chapter.

Double-faced sign means a sign with two (2) faces.

Electrical sign means a sign or sign structure in which electrical wiring, connections or fixtures are used.

Facade means the entire building front including the parapet, wingwalls, etc.

Face of sign means the area of a sign on which the copy is placed.

Festoons means a string of ribbons, tinsel, small flags or pinwheels.

Flashing sign means a sign which contains an intermittent or sequential flashing light source used primarily to attract attention. "Flashing sign" does not include a changeable copy sign, animated sign, or sign which through reflection or other means, creates an illusion of flashing of intermittent light.

Freestanding sign means a permanently attached sign supported upon the ground by poles or braces and not attached to any building.

Frontage means the length of the property line of any one (1) premises along a public right-of-way on which it borders.

Frontage, building means the length of an outside building wall on a public right-of-way.

Government sign means any temporary or permanent sign erected and maintained by the

city, county, state, or federal government for traffic direction or for designation of or direction to any school, hospital, historical site, or public service, property, or facility.

Height (of a sign) means the vertical distance measured from the highest point of the sign, including decorative embellishments, to the grade of the adjacent street or the surface grade beneath the sign, whichever is less (compare "clearance").

Identification sign means a sign whose copy is limited to the name and address of a building, institution, or person and/or to the activity or occupation being identified.

Illegal sign means a sign which does not meet the requirements of this chapter and which has not received legal nonconforming status.

Illuminated sign means a sign with an artificial light source incorporated internally or externally for the purpose of illuminating the sign.

Incidental sign means a sign, emblem or decal informing the public of goods, facilities or services available on the premises, e.g., a credit card sign or a sign indicating the hours of business.

Lot means a parcel of land legally defined on a subdivision map recorded with the assessment department or land registry office, or a parcel of land defined by a legal record of survey map.

Maintenance means the cleaning, painting, repair or replacement of defective parts of a sign in a manner that does not alter the basic copy design or structure of the sign.

Mansard means a steeply sloping ornamental roof-life structure commonly used on exterior walls of buildings having flat, or nearly flat roofs.

Marquee means a permanent roof-life structure or canopy of rigid materials supported by an extending structure from the facade of a building.

Marquee sign means any sign attached to or supported by a marquee structure.

Nameplate means a nonelectric on-premises identification sign giving only the name, address and/or occupation of an occupant or group of occupants.

Nonconforming sign means a sign which was erected legally but which does not comply with subsequently enacted sign restrictions and regulations.

Occupancy means the portion of a building or premises owned, leased, rented or otherwise occupied for a given use.

Off-premises sign means a sign structure advertising an establishment, merchandise, service or entertainment, which is not sold, produced, manufactured or furnished at the property on which the sign is located, e.g., billboards or outdoor advertising.

On-premises sign means a sign which pertains to the use of the premises on which it is located.

Owner means a person recorded as such on official records. For the purposes of this chapter, the owner of property on which a sign is located is presumed to be the owner of the sign unless facts to the contrary are officially recorded or otherwise brought to the attention of the administrator, e.g., a sign leased from a sign company.

Painted bulletin means a billboard containing up to eight hundred (800) square feet in sign area.

Painted wall sign means a sign which is applied with paint or similar substance on the face of a wall.

Parapet means the extension of a false front or wall above a roof line.

Permanent mounting means to set, fix or secure in or on a support, thereby allowing such sign to become a fixed object to be used for the purpose of which it was intended.

Point of purchase display means advertising of a retail item accompanying its display, e.g., an advertisement on a product dispenser.

Pole cover means a cover enclosing or decorating poles or other structural supports of a sign.

Political sign means a temporary sign used in connection with a local, state or national election or referendum.

Portable sign means any sign designed to be moved easily and not permanently affixed to the ground or to a structure or building.

Poster panel means a billboard containing up to three hundred (300) square feet of sign area.

Premises means a parcel of land with its appurtenances and buildings which, because of its unity of use, may be regarded as a conveyable unit of real estate.

Projecting sign means a sign, other than a flat wall sign, which is attached to and projects from a building wall or other structure not specifically designed to support the sign.

Real estate sign means a temporary sign of thirty-two (32) square feet or less advertising the real estate upon which the sign is located as being for rent, lease or sale.

Roof line means the top edge of a roof or building parapet, whichever is higher, excluding any cupola, pylons, chimneys or minor projects.

Roof sign means a sign which is mounted on the roof of a building or which is attached to a building and which extends above or higher than the top edge of the exterior wall or parapet of a flat-roofed building, above or higher than the eave line of a building with a hip, gambrel or gable roof or above or higher than the deck line of a building with a mansard roof.

Rotating sign means a copy in which the sign itself or any portion of the sign moves in a revolving or similar manner. Such motion does not refer to methods of changing copy.

Scenic corridor means a public right-of-way which, in the opinion of the board of directors, exhibits special aesthetic and visual characteristics worthy of protection through enhanced billboard regulation.

Sign means any device, structure, fixture or placard using graphics, symbols, and/or written copy designed specifically for the purpose of advertising or identifying any establishment, product, goods or services.

Sign, area of means that area enclosed by one (1) continuous line connecting the extreme points or edges of a sign. The area shall be determined using the largest sign area or silhouette visible at any one (1) time from any one (1) point. This area does not include the main supporting sign structure but all other ornamental attachments, inner connecting links, etc., which are not a part of the main supports of the sign, are to be included in determining sign area.

Snipe sign means a temporary sign or poster affixed to a tree, fence, utility pole, or any object in the public right-of-way. For purposes of this definition is not limited to the definition of "sign" found elsewhere in this Code and means any document that communicates a message or symbol.

Subdivision identification sign means a freestanding or wall sign identifying a recognized subdivision, condominium complex, or residential development.

Temporary sign means a sign not constructed or intended for long-term use, and not permanently attached to the ground, a building or structure.

Trailer sign means any sign that is attached to a frame with wheels and designed in a manner that allows it to be moved easily.

Under-canopy sign means a sign suspended beneath a canopy, ceiling, roof or marquee.

Use means the principal purpose for which a building, lot, sign or structure is intended, designed, occupied or maintained.

Vehicular sign is any sign displayed on a parked or moving vehicle, where the primary purpose of the vehicle is to advertise a product or business or to direct people to a business or activity. For purposes of this definition, vehicular signs shall not include business logos, identification, or advertising on vehicles primarily used for other business purposes.

Wall sign means a sign attached parallel to and extending not more than eighteen (18) inches from the wall of a building. "Wall sign" includes painted, individual letter and cabinet signs and signs on a mansard.

Window sign means a sign installed inside a window and intended to be viewed from the outside.
(Code 1961, § 44-2; Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,000, §§ 1(e), (f), (r), 2-5-91; Ord. No. 16,181, § 1, 2-18-92; Ord. No. 16,244, § 1, 7-7-92; Ord. No. 16,861, § 1(aa), 3-21-95; Ord. No. 17,680, § 1, 2-17-98; Ord. No. 20,326, § 1(q), 9-21-10; Ord. No. 21,867, § 1, 5-19-20)

Cross reference—Definitions and rules of construction generally, § 1-2.

Sec. 36-531. Penalty.

(a) Except as set forth in subsection (b), any person convicted of a violation of any of the provisions of this chapter shall be punished as provided in section 1-9 of the Code, and may be subject to an action to abate the sign as a nuisance.

(b) Any snipe sign that is placed in violation of this chapter shall be subject to immediate removal and, if a person responsible for the placement of the snipe sign can be identified, that person shall be subject to a civil penalty equal to the necessary costs of removal of the sign, plus any cost of repair for damage caused by the sign, or a removal fee of twenty-five dollars ($25.00) for up to five (5) snipe signs and an additional twenty-five dollars ($25.00) for each additional five (5) signs, whichever amount is greater.

(c) Costs incurred by the city shall be charged to the owner of the sign, or to the owner of the property upon which the sign is located, or both. These costs may constitute a lien upon the property and may be collected by any lawful means.
(Ord. No. 17,680, § 2, 2-17-98)

Sec. 36-532. Purpose and intent.

(a) The purposes of this chapter are:

(1) To control and coordinate the type, placement and physical dimensions of signs within the various zoning classifications.

(2) To recognize the commercial communication requirements of all sectors of the business community; to encourage the innovative use of design.

(3) To promote both renovation and proper maintenance.

(4) To allow for special circumstances; and to guarantee equal treatment under the law through accurate record keeping and consistent enforcement.

(b) This purpose shall be accomplished by regulation of the display, erection, use and maintenance of signs. The use of signs is regulated according to the zoning classification in which it is located. The placement and physical dimensions of signs are regulated primarily by type and length of street frontage. No sign shall be permitted as a main or accessory use except in accordance with the provisions of this chapter.

(c) The primary intent of this chapter is to regulate signs of a commercial nature intended to be viewed from any vehicular public right-of-way.
(Code 1961, § 44-1; Ord. No. 16,000 § 1(g), (r), 2-5-91; Ord. No. 16,861, § 1(w), 3-21-95)

Sec. 36-533. Conflicts.

If any portion of this chapter is found to be in conflict with any other provision of any section of this Code, the provision which establishes the higher standard shall prevail.
(Code 1961, § 44-8)

Sec. 36-534. Exemptions.

This chapter does not relate to building design. This chapter does not regulate:

(1) Official traffic or government signs.

(2) The copy and message of signs.

(3) Window displays.

(4) Product dispensers.

(5) Scoreboards on athletic fields.

(6) Flags of any nation, government, or noncommercial organization.

(7) Gravestones.

(8) Barber poles.

(9) Religious symbols.

(10) Commemorative plaques.

(11) The display of street numbers.

(12) Any display or construction not defined as a sign.

(Code 1961, § 44-1(b); Ord. No. 16,000, § 1(h), (r), 2-5-91)

Sec. 36-535. Nonconforming signs.

(a) Existing signs as of the effective date of this article which do not conform to the specific provisions of the chapter may be eligible for the designation "nonconforming" provided that the signs have a valid city permit or variance and the signs comply with all applicable laws.

(b) A nonconforming sign shall lose this designation if the sign is altered in violation of this chapter. Such signs shall be deemed illegal and removed by the sign owner pursuant to section 36-536 of this chapter. This provision does not refer to change of copy or normal maintenance.

(c) The nonconforming sign is subject to all requirements of this code regarding safety, maintenance and repair. However, any nonconforming sign that is damaged to the extent that the cost for complete repair exceeds fifty (50) percent of the replacement cost of the sign, such sign shall be removed by the sign owner. Owners of damaged on-premises signs may obtain a new sign permit if the sign is to be replaced as permitted and regulated by this chapter.

(d) Nonconforming signs in existence on the effective date of this article shall be allowed to remain subject to the provisions of this chapter.

(Code 1961, § 44-5(a)—(d); Ord. No. 16,000, § 1(r), 2-5-91; Ord. No. 16,181, § 4, 2-18-92; Ord. No. 16,244, § 3, 7-7-92)

Sec. 36-536. Violations.

(a) Except for signs in the public right-of-way which are subject to immediate removal, the administrator shall issue a written order to any alleged violator of the sign ordinance that, in the judgment of the administrator, a violation of this chapter exists and the sign must be removed. The order shall specify those sections of this chapter deemed to be violated and shall state that the person has ten (10) days from the date of the order in which to abate the alleged violation or to appeal to the board of zoning adjustment. Notwithstanding this provision, if within the previous twelve-month period the administrator has issued an order that has been upheld by the board of zoning adjustment for a particular sign, the notice shall require the person to abate the alleged violation within one (1) business day. If the violator fails to appeal or to correct the violation within the time allowed by this section, the sign shall be deemed illegal and shall be subject to immediate removal.

(b) If upon inspection, the administrator finds that a sign is abandoned or structurally, materially, or electrically defective, or in any way endangers the public, or is not maintained in accordance with section 36-546, such signs shall be deemed illegal and the administrator shall issue a written order to the owner of the sign and/or the occupant of the premises stating the nature of the violation and requiring the sign to be repaired in conformance with this chapter or removed within ten (10) days of the date of the order.

(c) Illegal signs are public nuisances. In the event of a failure to comply with the order of the administrator, the city may institute legal proceedings pursuant to section 1-9 of the code, including without limitation, an action to abate the sign as a nuisance. Costs incurred by the city shall be charged to the owner of the sign and/or the owner of the property on which the sign is located. The costs may constitute a lien upon the property and may be collected by any appropriate lawful means.

(Code 1961, § 44-7(i); Ord. No. 16,000, § 1(r), 2-5-91; Ord. No. 16,181, § 5, 2-18-92; Ord. No. 16,244, § 5, 7-7-92; Ord. No. 17,680, § 3, 2-17-98)

Sec. 36-537. Enforcement agency.

The department of planning and development shall enforce this chapter and all references herein.

(Code 1961, § 44-7(a); Ord. No. 15-988, § 4, 12-18-90; Ord. No. 16,000, § 1(i), (r); 2-5-91; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-538. Interpretation and variances by enforcement officer.

The administrator shall interpret the application of the provisions of this chapter in such a way as to carry out its stated purpose and intent. The administrator may review requests for variances from the literal provisions of this chapter in cases where strict enforcement of the chapter would cause undue hardship to the individual application under consideration and allow such deviation only when it is demonstrated that such action will be in keeping with the spirit and intent of this chapter. In no event shall the administrator authorize a deviation of greater than twenty (20) percent of height and area requirements of this chapter. Requests for variances greater than twenty (20) percent of height of area requirements shall be made to the board of zoning adjustment pursuant to article II, division 2 of this chapter.

(Code 1961, § 44-7(f); Ord. No. 16,000, § 1(j), (r), 2-5-91; Ord. No. 21,867, § 1, 5-19-20)

Editor's note—Ord. No. 16,000, § 1(a), adopted Feb. 5, 1991, amended the Code by repealing provisions contained in § 36-539 in their entirety. Said provisions pertained to regulations concerning appeals and variance requests to the sign review board. and derived from the code of 1961, § 44-7(g).

Sec. 36-539. Reserved.

Sec. 36-540. Compliance.

It is unlawful for any person to erect, place or maintain a sign in the city except in accordance with the provisions of this chapter.

(Code 1961, § 44-3; Ord. No. 16,000, § 1(r), 2-5-91)

Sec. 36-541. Contractor—License.

(a) No person shall engage in the business of installing, erecting, or maintaining any sign, nor contract for the performance of such service without a license to do so issued until the bond or insurance required by section 36-542 has been filed with and approved by the city collector.

(b) The license of any sign contractor may thereafter be cancelled for cause by the board of directors. When any sign contractor has, within two (2) calendar years, been found guilty of three (3) separate violations of this chapter or of the building code by any court of record, whether such judgment be appealed or not, the department of planning and development shall cancel the license. The license of any person which has been cancelled shall not be renewed until all past violations have been corrected, and any application for renewal of the license shall be made to the board of directors, and the department shall file with the board of directors a report stating whether or not all previous violations have been corrected.

(Ord. No. 14,119, § 43, 9-15-81; Ord. No. 16,000, § 1(r), 2-5-91; Ord. No. 21,867, § 1, 5-19-20)

Cross references—Special sign electricians, § 8-225; electrical sign contractors, § 8-236.

Sec. 36-542. Same—Bond or insurance.

No person shall engage in the business of installing, or erecting or maintaining any sign or medium of display or advertising, electric or otherwise within the city until he has filed with the city collector a bond or certificate of liability and property damage insurance in the sum of twenty-five thousand dollars ($25,000.00) with such surety thereon as may be approved by the city collector. Such bond or certificate of liability and property damage insurance shall be conditioned for the installation, erection, and maintenance of signs in accordance with the ordinances of the city and laws of the state, and shall provide for the indemnification of the city and the purchaser or lessee of such signs, for damages or liabilities which may accrue by reason of faulty installation, erection, maintenance, demolition, repair, removal, or defects in, or collapse of any sign so serviced by or under the direction of the maker of such bond, or certificate of liability of property damage insurance. Such bond or certificate of liability and property damage insurance shall provide for the indemnification of any person who, while upon public property or in any public place, incurs damages for which the principal named in the bond or certificate of liability property damage insurance is legally liable.

(Ord. No. 14,119, § 44, 9-15-81; Ord. No. 16,000, § 1(r), 2-5-91)

Sec. 36-543. Prohibited signs and sales promotion devices.

The following type signs are prohibited in all districts unless otherwise noted:

(1) Abandoned signs.

(2) Banners, pennants, festoons, searchlights, except as allowed in section 36-557, subsection (d).

(3) Signs imitating or resembling official traffic or government signs or signals.

(4) Snipe signs or signs attached to trees, telephone poles, fences, public benches, or placed on public property or public right-of-way.

(5) Vehicular signs.

(6) Trailer or temporary signs that do not meet the standards for freestanding permanent signs.

(7) Roof signs, or any sign that is not mounted on a vertical surface.

(8) Rotating signs.

(9) Off-premises signs except as specifically permitted elsewhere in this article.

(Code 1961, § 44-3(a); Ord. No. 16,000, § 1(k), (r), 2-5-91; Ord. No. 16,181, § 2, 2-18-92; Ord. No. 16,578, § 1(a), 1-18-94; Ord. No. 19,438, § 1(x), 11-15-05)

Sec. 36-544. Abandoned signs.

All abandoned signs not removed by owner after due notice shall be removed by the city. Upon completion of the work the city shall file and have a lien upon real estate for the cost of removing the sign.

(Code 1961, § 44-7(c); Ord. No. 16,000, § 1(r), 2-5-91)

Sec. 36-545. Permit.

(a) Unless otherwise provided by this chapter, all signs shall require permits and payment of fees as described in this section. No permit is required for the maintenance of a sign or for a change of copy on painted, printed or manual changeable copy signs.

(b) The following signs are exempted from permit requirements but must be in conformance with all other requirements of this chapter:

(1) Signs used by churches, synagogues or other civic organizations.

(2) Construction signs.

(3) Directional/information signs.

(4) Nameplates.

(5) Political signs.

(6) Public signs or notices, or any sign relating to an emergency.

(7) Real estate signs.

(8) Incidental signs.

(9) Time and temperature signs.

(c) Application for a permit for the erection, alteration or relocation of a sign, when allowed by this chapter, shall be made to the administrator upon a form provided by the administrator and shall include the following information:

(1) The sign owners name, address and telephone number; and (if different) the name of the person in possession of the premises where the sign is located or to be located;

(2) The name, address and telephone number of the person who will be performing the work requested;

(3) The location and zoning designation of the parcel in which the sign is or will be located;

(4) The type of sign or sign structure as defined in this chapter;

(5) Specifications and scale drawings showing the materials, design, dimensions, structural supports and electrical components of the proposed sign;

(6) The cost to construct the sign and any alteration expenses;

(7) Any other information the administrator shall require to ensure compliance with this and all other applicable city ordinances.

Accompanying each application for a sign permit shall be a detailed drawing or drawings, all of which are to be to scale and legible. All existing structures and proposed structures along with proposed sign locations will be indicated. Building or structure elevation drawings shall be submitted when applications are for building-mounted signs.

(d) Accompanying each application for a sign permit for an existing sign shall be:

(1) A completed application form stating all necessary facts concerning each sign, signed by the owner certifying to the facts in the application.

(2) Photographs of the sign.

(e) All applications for permits filed with the administrator shall be accompanied by a payment of the initial permit fee for each sign according to the following schedule. All signs shall be permitted and tagged for which a fee shall be paid in accordance with the permit schedule set out below:

Off-premises signs on scenic corridors:	
Painted bulletin	$1,125.00
Poster panel	675.00
Off-premises signs outside scenic corridors:	
Painted bulletin	500.00
Poster panel	300.00
All on-premises signs as follows:	
Ground mounted signs	50.00
Projecting	50.00
Wall signs (including marquee and mansard)	50.00
Special event	20.00
Alteration fees: (based on cost of alteration as percentage of replacement cost)	
Off-premises signs	No fee
Ground-mounted signs:	
Up to 25%	15.00
25% to 50%	25.00
50% to 75%	35.00
Over 75%	50.00
Projecting signs:	
Up to 25%	20.00
25% to 75%	35.00
Over 75%	50.00
Wall signs (marquee and mansard signs included):	
Up to 75%	30.00
Over 75%	50.00

(f) If a permit is denied, the permit fee will be refunded to the applicant. If any sign is installed or placed on any property prior to receipt of a permit, the specified permit fee shall be doubled. However, payment of the doubled fee shall not relieve the responsible party of any other requirements or penalties prescribed in this chapter. The director of the department of planning and development, or his designee, may accept requests for refunds or unused sign fees when a lease has been terminated or the sign has been destroyed. In the event a lease has been terminated or a sign has been destroyed, the director of the department of planning and development, or his designee, may refund a portion of the sign permit fee based on the amount of time remaining between the date the lease was terminated or the sign was destroyed and the date the permit expires.

(g) Any person installing, altering or relocating a sign for which a permit has been issued shall notify the administrator upon completion of the work. The administrator may require a final inspection, including an electrical inspection and inspection of footings on freestanding signs. The administrator may require in writing upon issuance of a permit that he be notified for inspection prior to the installation of certain signs.

(h) Permits for on-premises signs are to be issued for a period of five (5) years. All sign owners are required to renew their sign permits every five (5) years prior to January 31 of the fifth year. Any sign not permitted within the month of January of the fifth year shall be

classified as abandoned. On-premises signs with expired permits are illegal and shall be removed by the sign owner at his expense.

(i) All off-premises sign permits which were valid on the effective date of this article are hereby revoked. The fees paid for such permits shall be prorated, rounded to the nearest ten dollars ($10.00) and applied toward the new permit fees. Each billboard site shall require one (1) off-premises sign permit. Notwithstanding any other provision for the application and issuance of permits, owners of all existing billboards shall obtain a new permit for each billboard within sixty (60) days of the passage of this article. Billboard permits shall be issued for a period of five (5) years. Billboard owners shall renew their permits prior to September 30 of the fifth year without further notice from the city. The renewal fee shall be the same amount as the initial permit fee. The sign owner shall submit to the administrator any changes in the information contained in the original permit. Any sign not permitted by the due date shall be classified as abandoned. Such signs are illegal and shall be removed by the sign owner at his expense.

(j) Off-premises sign permits issued for new signs prior to the effective date of this article are hereby revoked provided the permit holder has not commenced actual construction under the permit resulting in a tangible erection of the sign structure. The permit fee for such signs shall be refunded by the city upon application of the owner.

(k) The issuance of a sign permit shall in no instance be construed as waiving any provision of this chapter. If any person commences work on a sign before obtaining the necessary permit, or if a permit issued despite the violation of any provision of this chapter, or if the location or specifications of the sign vary from the approved design or location, the person shall be subject to the penalty prescribed in section 1-9 of this Code and the sign shall be removed as an illegal sign as provided in section 36-536 of this chapter.

(l) In addition, the administrator shall revoke a sign permit for failure of the holder to conform with any of the provisions of this chapter. All rights and privileges acquired under the provisions of this chapter, or any amendment thereto, are mere licenses revocable at any time.

(m) Any sign for which a sign permit has been issued must be erected within one hundred eighty (180) days of the issuance of the permit, otherwise the sign permit shall be voided and the permit fee shall not be refunded.
(Code 1961, §§ 44-3(b), (c), 44-7(b)—(f); Ord. No. 15,988, § 4, 12-18-90; Ord. No. 16,181, § 3, 2-18-92; Ord. No. 16,244, §§ 2, 4, 7-7-92; Ord. No. 18,622, §§ 6, 7, 12-18-01; Ord. No. 21,168, § 1(b), 2-2-16; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-546. Maintenance.

(a) All freestanding signs and the premises surrounding the same shall be maintained by the owner thereof in a clean, sanitary, and inoffensive condition, and free and clear of all obnoxious substances, rubbish and weeds.

(b) All signs shall be properly maintained at all times. Exposed surfaces shall be clean and painted if paint is required. Defective parts shall be replaced.

(c) The administrator shall have the right under section 36-536 to order the repair or removal of any sign which is defective, damaged, substantially deteriorated or presents a public hazard, as defined in the edition of the Standard Building Code in force in the city.
(Code 1961, § 44-3(d); Ord. No. 16,000, § 1(r), 2-5-91)

Sec. 36-547. Lighting.

Unless otherwise specified by this chapter, all signs may be illuminated. However, no sign regulated by this chapter may utilize:

(1) An exposed incandescent lamp with an external reflector and without a sunscreen or comparable diffusion.

(2) Any exposed incandescent lamp in excess of three hundred (300) watts.

(3) Any revolving beacon light.

(4) Any device that allows oscillating, rotating or flashing lights.

(5) Animation manifesting either kinetic or illusionary motion occasioned by a natural manual, mechanical, electrical or other means.

(6) The illusion of movement by means of a preprogrammed repetitious sequential switching action in which illuminated elements of the sign are turned off or on to visually simulate the impression of motion characteristic of chasing, running, blinking, oscillating, twinkling, scintillating, or expanding and contracting light patterns.

(Code 1961, § 44-3(e); Ord. No. 16,000, § 1(r), 2-5-91; Ord. No. 16,578, § 1(c), 1-18-94)

Sec. 36-548. Changeable copy.

Unless otherwise specified by this chapter a sign may use changeable copy, limited to:

(1) *Manually activated:* Signs whose alphabetic, pictographic, or symbolic informational content can be changed or altered by manual means.

(2) *Electrically activated:* Signs whose alphabetic, pictographic, or symbolic informational content can be changed or

altered on a fixed surface composed of electrically illuminated or mechanically driven changeable segments.

However, in no instance shall these types of signs produce the illusion of movement or animation prohibited by section 36-547.
(Code 1961, § 44-3(f); Ord. No. 16,000, § 1(r), 2-5-91; Ord. No. 16,578, § 1(d), 1-18-94)

Sec. 36-549. Construction specifications.

(a) *Compliance with building, electrical and traffic codes.* All electrical signs or equipment and devices used in electrical signs shall bear the label of Underwriters Laboratories, Inc., or another recognized independent testing laboratory approved by the building official. Disconnect switches shall be located in a safe and secure location for each electrical sign and shall be located within twenty-five (25) feet of such sign. Each disconnect switch shall be located so as to be readily accessible and shall be properly identified stating what sign it controls. All materials and methods used for installation shall comply with the current adopted electrical code. Specific application shall be made for approval of these signs and/or devices by the building official and/or chief electrical inspector of the city, building codes section. Such review shall be accomplished utilizing standard application and permit procedures established by the city.

(b) *Anchoring.* No sign shall be suspended by nonrigid attachments that will allow the sign to swing in a wind. All freestanding signs shall have self-supporting structures erected on or permanently attached to concrete foundations, or erected with pilings or other methods approved by the administrator.

(c) *Wind loads.* All signs shall be designed to withstand a wind of sixty (60) miles per hour.

(d) *Additional construction specifications.* No signs shall be erected, constructed or maintained so as to obstruct any fire escape, required, exit, window or door opening used as a means of egress. No sign shall be attached in any form, shape or manner which will interfere with any opening required for ventilation, except that signs maybe erected in front of any building may cover transom windows when not in violation of the provisions of the edition of the Standard Building Code or Fire Prevention Code in force in the city. Signs shall be located in such a way as to maintain horizontal and vertical clearance of all overhead electrical conductors in accordance with all ordinances, depending on voltage concerned. However, in no case shall a sign be installed closer than twenty-four (24) inches horizontally or vertically from any conductor or public utility guy wire. Electrical connections to any sign must be made with overhead or underground connections. Construction and placement of all signs must conform to the applicable traffic codes of the city and in no way restrict the safe and efficient movement of traffic.
(Code 1961, § 44-6; Ord. No. 15,957, § 1, 11-6-90; Ord. No. 15,906, § 1, 1-15-91; Ord. No. 16,000, § 1(r), 2-5-91)

Sec. 36-550. Signs permitted in all zones.

The following signs are permitted in all zones:

(1) All signs not requiring permits.

(2) One (1) construction sign for each street frontage of a construction project, not to exceed thirty-two (32) square feet in sign area in residential zones or sixty-four (64) square feet in sign area in all other zones. Such signs may be erected ten (10) days prior to beginning of construction and shall be removed ten (10) days following completion of construction.

(3) One (1) nonilluminated real estate sign per lot or premises, not to exceed sixteen (16) square feet in sign area on residential one- and two-family-zoned properties and thirty-two (32) square feet in all other zones. Such signs must be removed fourteen (14) days following sale, rental or lease of the property.

(4) One (1) attached nameplate per occupancy, not to exceed one (1) square foot in sign area.

(5) Two (2) directional/information signs per lot, not to exceed four (4) square feet in sign area or six (6) feet in height.

(6) One (1) company or organizational flag, not to exceed one hundred (100) square feet in area, that can be displayed from a permanently mounted flag pole.

(Code 1961, § 44-4(a); Ord. No. 16,000, § 1(r), 2-5-91; Ord. No. 16,116, § 1(ff), 11-19-91; Ord. No. 18,767, § 1(a)—(c), 10-15-02; Ord. No. 19,910, § 1(l), 1-15-08; Ord. No. 20,326, § 1(h), 9-21-10)

Sec. 36-551. Signs permitted in residential one- and two-family zones.

(a) The following signs are permitted in residential one- and two-family zones:

(1) All signs as permitted in section 36-550.

(2) One (1) freestanding ground-mounted sign is allowed per lot, not to exceed one (1) square foot in area. The maximum height shall not exceed six (6) feet.

(3) One (1) building-mounted wall sign is allowed for each residence not to exceed one (1) square foot in area.

(4) One (1) subdivision identification sign per major entrance as determined by the director of planning and development shall be permitted per neighborhood or subdivision, not to exceed thirty-two (32) square feet in area and six (6) feet in height.

(b) Illumination is allowed but must not be greater than fifty (50) footlamberts or luminance. No commercial advertising is allowed. Only signs denoting the name and address of occupants are allowed.

(Code 1961, § 44-4(b); Ord. No. 16,000, § 1(l), (r), 2-5-91; Ord. No. 19,438, § 1(q), 11-15-05)

Sec. 36-552. Signs permitted in multifamily zones.

(a) The following signs are permitted in multifamily zones:

(1) All signs as permitted in section 36-550.

(2) One (1) subdivision identification sign per neighborhood, subdivision or development, not to exceed thirty-two (32) square feet.

(3) One (1) identification sign per apartment or condominium complex, not to exceed twenty-four (24) feet in sign area.

(4) For permitted nonresidential uses, including churches and synagogues, one (1) freestanding sign not to exceed twenty-four (24) square feet in sign area, and one (1) wall sign not to exceed thirty-two (32) square feet in sign area.

(b) No commercial advertising is allowed. Only signs denoting the name and address of the complex or name and address of occupants are allowed. All allowed freestanding signs shall have a maximum height limit of six (6) feet and shall have a setback of five (5) feet from any public right-of-way, measured from the closest edge of the sign. Illumination is allowed but not greater than one hundred (100) footlamberts of luminance.

(Code 1961, § 44-4(c); Ord. No. 16,000, § 1(m)(r), 2-5-91)

Sec. 36-553. Signs permitted in institutional and office zones.

(a) The following signs are permitted in institutional and office zones:

(1) All signs as permitted in sections 36-550 through 36-552.

(2) One (1) freestanding sign per premises, not to exceed two (2) square feet in sign area for each linear foot of main street frontage up to a maximum of sixty-four (64) square feet. Such sign may not exceed a height of six (6) feet. In addition to the above freestanding sign, the owner may use one (1) of the following:

a. Wall or mansard signs not to exceed ten (10) percent in aggregate sign area for that occupancy's facade area.

b. One (1) under-canopy or projecting sign per occupancy, not to exceed twelve (12) square feet in sign area.

(3) Where a building is on a corner or has more than one (1) main street frontage, one (1) wall sign and one (1) additional freestanding sign will be allowed on the

additional frontage, not to exceed the size of other wall and freestanding signs.

(b) All freestanding, projecting, and under-canopy signs shall have a minimum setback of five (5) feet from any property line and vehicular public right-of-way, measured from the closest edge of the sign, and a minimum clearance of thirteen (13) feet over any vehicular use area and nine (9) feet over any pedestrian use area. Illumination is allowed but not greater than two hundred (200) footlamberts of luminance.
(Code 1961, § 44-4(d); Ord. No. 16,000, § 1(n), (r), 2-5-91; Ord. No. 18,902, § 1(b), (h), 7-15-03)

Sec. 36-554. Signs permitted in industrial zones.

(a) The following signs are permitted in industrial zones:

(1) All signs as permitted in sections 36-550 through 36-553.

(2) One (1) freestanding sign per premises, not to exceed two (2) square feet in sign area for each linear foot of main street frontage up to a maximum of seventy-two (72) square feet. Such sign shall not exceed a height of thirty (30) feet. In addition to the above freestanding sign, the owner may use one (1) of the following:

a. Wall or mansard signs not to exceed ten (10) percent in aggregate sign area for that occupancy's facade area.

b. One (1) awning sign per occupancy not to exceed thirty-three (33) percent of the surface area of an awning, or one (1) marquee sign not to exceed one-third square foot in sign area for each linear foot of marquee front and side.

c. One (1) under-canopy or projecting sign per occupancy, not to exceed twelve (12) square feet in sign area.

(3) Where a building has more than one (1) main street frontage, one (1) additional wall sign and one (1) additional freestanding sign are allowed on the additional frontage, not to exceed the size limitations of other allowed wall and freestanding signs.

(b) All freestanding, projecting, awning, marquee and under-canopy signs shall have a minimum setback of five (5) feet from any property line and vehicular public right-of-way, measured from the closest edge of the sign, and a minimum clearance of thirteen (13) feet over any vehicular use area and nine (9) feet over any pedestrian use area. Illumination is allowed but not greater than three hundred (300) footlamberts of luminance.
(Code 1961, § 44-4(e); Ord. No. 16,000, § 1(o), (r), 2-5-91; Ord. No. 18,902, § 1(h), 7-15-03)

Sec. 36-555. Signs permitted in commercial zones.

(a) The following signs are permitted in commercial zones:

(1) All signs as permitted in sections 36-550 through 36-554.

(2) One (1) freestanding sign per premises, not to exceed two (2) square feet in sign area for each linear foot of main street frontage up to a maximum of one hundred sixty (160) square feet. Such sign shall not exceed a height of thirty-six (36) feet. In addition to the above, freestanding sign, the owner may use one (1) of the following:

a. Wall or mansard signs not to exceed ten (10) percent in aggregate sign area for that occupancy's facade area.

b. One (1) awning sign per occupancy not to exceed fifty (50) percent of the surface area of the awning or one (1) marquee sign not to exceed one-third square foot in sign area for each linear foot of marquee front and side.

c. One (1) under-canopy or projecting sign per occupancy, not to exceed fifteen (15) square feet in sign area.

(3) Where a building has more than one (1) main street frontage, one (1) additional wall sign and one (1) additional freestand-

ing sign are allowed on the additional frontage, not to exceed the size limitations of other allowed wall and freestanding signs.

(b) All freestanding, projecting, awning, marquee and under-canopy signs shall have a minimum setback of five (5) feet from any property line and vehicular public right-of-way, measured from the closest edge of the sign, and a minimum clearance of thirteen (13) feet over any vehicular use area, and nine (9) feet over any pedestrian use area. Illumination is allowed but not greater than three hundred (300) footlamberts of luminance.
(Code 1961, § 44-4(e); Ord. No. 16,000, § 1(p), (r), 2-5-91; Ord. No. 18,902, § 1(h), 7-15-03)

Sec. 36-556. Off-premises signs.

(a) Billboards shall only be allowed in C-3 and C-4 commercial zones, and I-2 and I-3 industrial zones, provided the sign meets the following criteria:

(1) No portion of the billboard shall encroach within the following setback from the public right-of-way: C-3 zone—twenty-five (25) feet; C-4 zone—forty-five (45) feet; I-2 and I-3 zones—fifty (50) feet.

(2) The billboard shall not exceed the following maximum height: C-3 and C-4 zones—thirty-five (35) feet; I-2 and I-3 zones—forty-five (45) feet. Height shall be measured from the elevation of the centerline of the adjacent traffic lanes to the highest point of the billboard.

(3) The billboard site shall be located within six hundred sixty (660) feet of an expressway or freeway or within three hundred (300) feet of any arterial designated by the master street plan.

(4) No billboard site shall be located less than one thousand (1,000) feet from another billboard site. The separation requirement shall be measured along the nearest edge of pavement between points directly opposite the signs, provided that only on streets separated by a median, each side of the street shall be considered separately for distance purposes.

(5) No billboard shall be animated.

(b) I-430, I-630, I-440, Highway 10, Rebsamen Park Road, Chenal Parkway-Financial Center Parkway from Shackleford Road to State Highway 300, Kanis Road from West 12th Street to the western boundary of the planning boundary, Stagecoach Road and Colonel Glenn Road from Stagecoach Road to the western boundary of the planning boundary are designated as scenic corridors for the purposes of this article. No billboard may be altered or erected within six hundred sixty (660) feet of the nearest edge of the right-of-way of the scenic corridors, except on properly zoned properties within the following specifically designated segments of the scenic corridors:

(1) Along Kanis Road, beginning six hundred sixty (660) feet south of Chenal Parkway to Pride Valley Road. Billboards in this area must not exceed ten (10) feet six (6) inches by twenty-two (22) feet eight (8) inches in area, must not exceed a height of fifteen (15) feet and must be constructed in monument style, not pole-mounted.

(2) Along Kanis Road, one thousand (1,000) feet both east and west of Bowman Road; and along Bowman Road, six hundred sixty (660) feet both north and south of Kanis Road.

(3) Along Kanis Road, from Rodney Parham Road to one hundred (100) feet west of Leander Street.

(4) Along Colonel Glenn Road, beginning six hundred sixty (660) feet west of I-430 to Lawson Road; and along Bowman Road and David O. Dodd Road, six hundred sixty (660) feet both north and south of Colonel Glenn Road.

(5) Along Colonel Glenn Road, beginning six hundred sixty (660) feet east of I-430 to one thousand (1,000) feet east of Shackleford Road. Billboards in this area must not exceed ten (10) feet six (6) inches by twenty-two (22) feet eight (8) inches in

area, must not exceed a height of fifteen (15) feet and must be constructed in monument style, not pole-mounted.

(6) Along Interstate 630 beginning one thousand (1,000) feet east of Rice Street to one thousand (1,000) feet west of University Avenue. Existing billboards in this area may be modified and/or altered in their current location or on the same parcels on which they are currently located including conversion to digital format as long as the modifications or alterations do not increase the size of the then-existing faces and as long as the modified or altered billboards and locations meet the then-existing requirements of the Arkansas Highway and Transportation Department including any spacing or distance requirements. No more than a total of four (4) faces across three (3) structures (i.e., a maximum of one (1) structure with two (2) digital faces and two (2) structures with one (1) digital face each) in this area may be converted to digital format, and the conversion of a billboard structure in this area to digital format shall be allowed only if the owner of the billboard to be converted removes another billboard within the city located on Highway 10. Upon such removal, the number of billboard sites allowed to be permitted in areas annexed into the city referenced in subsection (d) shall be reduced by one (1) for each such removal and the current cap ratio stated in subsection (d) for billboard sites shall be adjusted accordingly. Such removal of another billboard shall be required only if the billboard is actually converted to digital format by the owner of the billboard. The removal of the other billboard shall be accomplished no later than the thirtieth day following the first day of operation of the converted digital billboard.

(7) Along Kanis Road extending five hundred (500) feet west of the Shackleford Road and Kanis Road intersection. The number of billboards permitted in this area shall not exceed one (1). The billboard in this area may be modified and/or altered in its current location including conversion to digital format as long as the modifications or alterations do not increase the size of the then-existing faces and as long as the modified or altered billboards and locations meet the then-existing requirements of the Arkansas Highway and Transportation Department including any spacing or distance requirements. However, the conversion of the billboard in this area to digital format shall be allowed only if the owner of the billboard to be converted removes any ten (10) other currently permitted billboards within the city. Upon such removal, the number of billboard sites allowed to be permitted in areas annexed into the city referenced in subsection (d) shall be reduced by one (1) for each such removal and the current cap ratio stated in subsection (d) for billboard sites shall be adjusted accordingly. Such removal of the ten (10) other billboards shall be required only if the billboard located within this area is actually converted to digital format by the owner of the billboard. The removal of the other billboards shall be accomplished no later than the thirtieth day following the first day of operation of the converted digital billboard.

(c) Except as set forth in subsections (d) and (g) herein, no new permits shall be issued for billboard sites exceeding the number of billboard sites in existence in the city on the effective date of this article. Existing billboard sites shall be permitted within sixty (60) days as required by this article.

(d) The number of billboard sites allowed to be permitted in areas annexed into the city after the effective date of this article shall be determined by computing a cap ratio based on the existing number of billboard sites (198) divided by the total square miles of the existing city limits (106.7). The current cap ratio is 1.86 billboard sites per square mile. The cap ratio shall be adjusted to account for billboard sites in annexed

areas and new billboard sites may be permitted in the annexed areas to maintain, but not to exceed the cap ratio.

(e) Owners of existing billboards in areas annexed to the city after the effective date of this article shall obtain an off-premises sign permit from the city within sixty (60) days of the date of annexation.

(f) Billboard alteration:

(1) No alteration of billboards shall be allowed on the scenic corridors.

(2) Billboards may be altered outside of the scenic corridors on an existing site if the site is located in the proper zone and the alteration will cause the billboard site to comply with the height, setback, size and zoning requirements of this article. No alteration fee shall be required of on-site alterations, however, an alteration permit shall be obtained.

(3) A new off-premises sign permit shall be obtained in order to move a billboard from one site to another site, provided the relocation conforms to all of the requirements of this chapter. No pro rata refund of the off-premises sign permit is available if the billboard is moved to another location.

(g) Funds on deposit in the billboard account, if used for landscaping purposes, shall first be used by the city for the placement of trees within a two hundred fifty-foot radius of existing billboard sites in the city. After such landscaping and tree placement in areas near billboard sites has been accomplished in any given budget year pursuant to an appropriately created plan, any funds in this account may then be used by the city as part of the urban forestry initiative.

(Code 1961, § 44-4(g); Ord. No. 16,000, § 1(r), 2-5-91; Ord. No. 16,181, § 6, 2-18-92; Ord. No. 16,244, § 5, 7-7-92; Ord. No. 18,408, §§ 1, 2, 12-28-00; Ord. No. 19,266, § 1, 1-18-05; Ord. No. 21,211, § 1, 4-5-16)

Sec. 36-557. Special provisions for on-premises signs and other sale promotion devices.

(a) All on-premises wall signs must face required street frontage except in complexes where a sign without street frontage would be the only means of identification for a tenant.

(b) Sign heights for all ground-mounted on-premises signs located on properties immediately adjacent to and contiguous to an expressway or freeway may be measured from the elevation of the centerline of the traffic lanes (excluding frontage roads) adjacent to subject property to the top of the sign structure. It shall be the responsibility of the sign owner to submit all necessary information when this approach is used.

(c) In commercial and industrial zones where a lot has in excess of one hundred fifty (150) linear feet main street frontage, one (1) additional on-premises freestanding sign will be allowed for each additional one hundred fifty (150) linear feet of main street frontage. Such signs shall be subject to the size and height limitations of the first allowed freestanding sign and may be placed no closer than one hundred fifty (150) linear feet from any other freestanding sign located on the same property.

(d) Each business shall be permitted to utilize one (1) temporary special event on-premises, building-mounted banner or device per street frontage as allowed by the administrator for special events or promotions. Special event banners or devices shall only be utilized for nonresidential uses or zoning districts. Temporary special event on-premises banners or devices may be erected for a maximum of twenty-four (24) weeks (one hundred sixty-eight (168) days) per year. A special event permit will be issued for a maximum of six (6) weeks (forty-two (42) days) per permit. Multiple permits may be obtained at one time as specified in subsection (d)(4) below.

(1) These signs or decorations shall be secured by a method approved by the administrator to ensure safety and stability.

(2) The maximum size for these banners and decorations shall be five (5) feet vertical and twenty (20) feet horizontal.

(3) They shall not be tied, secured, mounted or affixed in any manner to a tree, landscaping, screening wall or fence. The placement of these event materials may

be pole mounted or on a building provided there are no encroachments into a public right-of-way.

(4) An annual events permit may be obtained by an owner or operator of a site, which will allow the user to structure the number of events and days per year desired, not to exceed a total of twenty-four (24) weeks (one hundred sixty-eight (168) days). The permit shall be submitted for review and approval as set forth in section 36-545, and a fee assessed as provided in subsection 36-545(e).

Telephone contact may be used to initiate the beginning of events and timing after initial approval.

(5) Maintenance shall be as provided in section 36-546.

(6) These materials or devices shall not be placed, mounted or in any way affixed to any off-premises sign or billboard.

(7) In addition to a building mounted banner, businesses may also utilize one (1) freestanding banner per street frontage. For purposes of developments which have multiple businesses or buildings on a single lot or tract of land, the number of freestanding banners shall be limited to two (2) per property per street frontage.

(e) Within the institutional and office, commercial and industrial districts, each premises may utilize incidental signs not to exceed twenty (20) square feet in aggregate sign area per occupancy.

(f) All on-premises ground-mounted signs shall have located on the face of the sign, in characters no less than six (6) inches in height, the street address number of the business identified by the sign. In the case of a double-faced ground-mounted sign, the street address number shall be located on each face of the sign.
(Code 1961, § 44-4(h); Ord. No. 16,000, § 1(q), (r), 2-5-91; Ord. No. 16,578, § 1(b), 1-18-94; Ord. No. 18,902, §§ 1(i), (4), 7-15-03; Ord. No. 19,438, §§ 1(r), 1(s), 11-15-05)

Sec. 36-558. Trailer signs and temporary signs.

Trailer signs and temporary signs are specifically prohibited except as allowed by this chapter.
(Code 1961, § 44-4(e); Ord. No. 16,000, § 1(r), 2-5-91)

Sec. 36-559. Protection of First Amendment rights.

Any sign, display or device allowed under this chapter may contain, in lieu of any other copy, any otherwise lawful noncommercial message that does not direct attention to a business operated for profit or to a commodity or service for sale and that complies with all other requirements of this chapter.
(Ord. No. 16,181, § 7, 2-18-92)

Editor's note—Ord. No. 16,181, § 7, adopted Feb. 18, 1992, did not specifically amend the Code; hence, its inclusion herein as § 36-559 was at the discretion of the editor.

Sec. 36-560. Signs prohibited in city right-of-way or on city property.

No sign shall be erected upon any city right-of-way, or upon city property, unless:

(1) The sign provides directions to a specific public location or public facility; or

(2) The sign identifies a specific public location such as the name of a neighborhood, or the identification of a public structure;

and

(3) The city has expressly enacted a franchise for the placement of the sign, or

(4) The sign is located on public property under lease to a specific person, or entity, and that person or entity is granted authority in the lease agreement to permit the placement of such a sign.

Any sign placed, erected, or found in the city right-of-way, or upon city property, in violation of this provision shall be subject to immediate removal by the city.
(Ord. No. 18,767, § 2, 10-15-02; Ord. No. 20,326, § 1(m), 9-21-10)

Secs. 36-561—36-570. Reserved.

ARTICLE XI. HAZARDOUS AND MEDICAL WASTE DISPOSAL FACILITIES

Sec. 36-571. Title.

Chapter 36 of the Little Rock, Arkansas Revised Code (1988) is hereby amended to add a new article XI entitled the "Hazardous and Medical Waste Disposal Facility Zoning Ordinance". Except to the extent of a conflict with the provisions of this article, the application, submission and review of conditional uses set forth in Little Rock, Arkansas Revised Code §§ 36-101—36-125 (1988), shall apply.
(Ord. No. 16,156, § 1, 1-21-92)

Sec. 36-572. Purpose and construction.

The purpose of this article is to provide for an application and review procedure for the issuance of a conditional use permit for any person seeking to locate a hazardous or medical waste disposal facility within the city. This article is to be liberally construed consistent with Arkansas Statutes and federal law applicable to the disposal of hazardous or medical waste.
(Ord. No. 16,156, § 2, 1-21-92; Ord. No. 22,651, § 2, 9-2-25)

Sec. 36-573. Authority.

This article is enacted pursuant to the authority of the city to engage in planning and zoning, as set forth in A.C.A. § 14-56-416 (1987).
(Ord. No. 16,156, § 3, 1-21-92)

Sec. 36-574. Definitions.

The following words, terms and phrases when used in this article, shall have the meanings ascribed to them by this section, except where the context clearly indicates a different meaning:

Disposal facility means any land and appurtenances thereon and thereto, used for the treatment, storage, or disposal by any means of hazardous or medical waste, excluding a crematorium.

Disposal site means any place in which hazardous or medical waste is dumped, abandoned, accepted or disposed of for final disposition by incineration, microwaving, landfilling, composting, or any other method, excluding a crematorium.

District zoned for residential uses means an area of the city ees as designated on the official zoning map which authorizes the use of land or buildings primarily for dwelling units. This definition includes all residential, planned residential and multifamily districts.

Hazardous waste means any waste or combination of solid, liquid, contained gaseous, or semisolid form which, because of its quantity, concentration or physical, chemical or infectious characteristics, may in the judgment of the Arkansas Department of Pollution Control and Ecology: (1) cause or significantly contribute to an increase in mortality or an increase in serious irreversible or incapacitating reversible illness or injury; or (2) pose a substantial present or potential hazard to human health or the environment when improperly treated, stored, transported or disposed of, or otherwise improperly managed. Such wastes include, but are not limited to, those which are radioactive, toxic, corrosive, flammable, irritants, or strong sensitizers or those which generate pressure through decomposition, heat, or other means.

Incineration means a controlled process by which solid, liquid and gaseous combustible wastes are burned and changed into gases and a residue produced which is relatively free of combustible materials.

Incinerator means all devices intended or used for the reduction or destruction of solid, liquid or gaseous wastes.

Medical waste is solid, semisolid or liquid waste and includes isolation waste, infectious agents, pathological waste, human or animal blood and blood products, sharps and nonsharps, human or animal body parts, contaminated bedding, surgical wastes and other contaminated disposal medical equipment and material that may pose a risk to the public health or welfare.

Occupied structure means a building or other structure:

(1) Where any person lives or carries on a business or other calling; or

(2) Where people assemble for purposes of business, government, education, religion, entertainment or public transportation; or

(3) Which is customarily used for overnight accommodation of persons whether or not a person is actually present. Each unit of a structure divided into separate units designed for occupancy is itself an occupied structure; or

(4) Which has not yet been constructed or completed but for which a building permit where applicable has been issued by the city and is valid on the date the application for the conditional use permit is filed.

Person means any individual, corporation, firm, partnership, association, trust, venture, or other legal entity, however organized.

Transportation of waste means the movement of hazardous or medical waste from the point of generation to any intermediate points, or to the point of ultimate storage, treatment or disposal if such points are not on the property of the generating entity.
(Ord. No. 16,156, § 4, 1-21-92; Ord. No. 22,651, § 2, 9-2-25)

Sec. 36-575. Permit required.

No person shall engage in the operation of a hazardous or medical waste disposal facility within the city without first having obtained a conditional use permit as described herein. In no event shall a permit be issued to allow the operation of a hazardous waste disposal facility within one-half (½) mile of an occupied structure or district zoned for residential uses on the date of the application for the permit. Medical waste disposal facilities shall not be permitted to operate within one thousand (1,000) feet of an occupied structure or district zoned for residential uses on the date of the application for the permit. Disposal facilities approved under this article shall only be allowed in districts zoned 1-2 or 1-3, subject to the spacing requirements which shall be measured from the property line of the proposed facility. No conditional use permit issued pursuant to this chapter shall become effective until the applicable permits submitted to PC&E have been granted. Actual construction of the disposal facility shall commence within one (1) year of the date of final approval of the conditional use perm it or the permit shall be revoked.
(Ord. No. 16,156, § 5, 1-21-92; Ord. No. 22,651, § 2, 9-2-25)

Sec. 36-576. Hazardous waste disposal facility—Application procedure.

Each person seeking a conditional use permit to operate a hazardous waste disposal facility shall file an application with the department of planning and development and provide the following information:

(1) At least thirty (30) days prior to filing, the applicant shall send notice of intent to apply for a conditional use permit. The notice shall be sent by certified mail to all property owners within one-half mile of the proposed disposal facility. For purposes of this requirement, a list of property owners in a certified abstract obtained from an abstract company will suffice. Proof of notice shall be submitted with the application to the city;

(2) In addition to the submission requirements of Little Rock, Arkansas Revised Code Section 36-103 (1988), the applicant shall provide a full and complete legal description and site survey of the land where the disposal facility is to be located, including a map with overlay of the official zoning map and the adopted land use plan of the area in question on the effective date of the application, demonstrating that the proposed disposal facility will not be located within one-half mile of an occupied structure or district zoned for residential uses on the date of the application;

(3) A copy of the application or draft of application for permit submitted to the Arkansas Department of Pollution Control and Ecology (PC&E). A draft is sufficient to the extent that it provides all information required by PC&E in accordance

with the Arkansas Hazardous Waste Disposal Act and Arkansas Hazardous Waste Management Code;

(4) Proof of title to the property where the proposed disposal facility is to be constructed; in lieu of record title, the applicant may submit evidence of an agreement to purchase the property for use as a hazardous waste disposal facility; and

(5) Information sufficient to establish that the utility requirements of the facility are currently met and will be sufficient to provide extraordinary service in the event of an accident.

(Ord. No. 16,156, § 6, 1-21-92; Ord. No. 21,867, § 1, 5-19-20)

Sec. 36-577. Same—Public hearing.

(a) Once an application has been accepted and the appropriate fees paid pursuant to Little Rock, Arkansas, Revised Code Section 23-3 (1988), notice of the date of a public hearing by the city regarding the application for the permit shall be given by the applicant via regular mail to each property owner described in Section 36-576(1). If any hearing is postponed, a new notice must be sent by regular mail.

(b) At the public hearing, comments from the public in support of or opposition to the disposal facility will be recorded and forwarded by the city to PC&E. The hearing will also establish for the record the information required pursuant to section 36-376.

(c) If failure to notify is established at the public hearing by a preponderance of the evidence, then the hearing shall be recessed, certified notice of the next hearing date given by the applicant, and a full public hearing held on that date.

(Ord. No. 16,156, § 7, 1-21-92)

Sec. 36-578. Approval of hazardous waste disposal facility permit.

If the application submitted pursuant to section 36-576 is found by the Little Rock Planning Commission to be in compliance with this article in all respects, and the planning commission determines that use of the property for the purpose described in the application is consistent with a coordinated, adjusted and harmonious development of the city and its environs, the conditional use permit shall be granted subject to approval of the applicant's request for a permit from PC&E. The planning commission shall not vary any of the provisions of this article. However, the planning commission shall retain the discretion and responsibility in reviewing the appropriateness of the proposed land use as provided in Little Rock, Arkansas, Revised Code Sections 36-105, 36-106, 36-107 and 36-108 (1988). If any of the applicable federal, state or local permits or amended permits to operate are denied, suspended or revoked at any time, the permit issued pursuant to this article shall automatically be revoked and a new permit shall be obtained prior to continuing operation. A new application shall not be denied solely on the basis that an occupied structure or district zoned for residential uses came into existence within the spacing requirement subsequent to the approval of the original permit.

(Ord. No. 16,156, § 8, 1-21-92)

Sec. 36-579. Medical waste disposal facility—Application procedure.

Each person seeking a conditional use permit to operate a medical waste disposal facility shall file an application with the department of planning and development and provide the following information:

(1) At least thirty (30) days prior to filing, the applicant shall send notice of intent to apply for a conditional use permit. The notice shall be sent by certified mail to all property owners within one thousand (1,000) feet of the proposed disposal facility. For purposes of this requirement, a list of property owners in a certified abstract obtained from an abstract company will suffice. Proof of notice shall be submitted with the application to the city;

(2) In addition to the submission requirements of Little Rock, Arkansas Revised Code Section 36-103 (1988), the applicant

shall provide a full and complete legal description and site survey of the land where the disposal facility is to be located, including a map with overlay of the official zoning map and the adopted land use plan of the area in question on the effective date of the application, demonstrating that the proposed disposal facility will not be located within one thousand (1,000) feet of an occupied structure or district zoned for residential uses on the date of the application;

(3) A copy of the application or draft of application for permit submitted to the Arkansas Department of Pollution Control and Ecology (PC&E). Subject to the provisions of section 36-575 of this article, a draft is sufficient to the extent that it provides all information required by PC&E in accordance with the Arkansas Solid Waste Management Code;

(4) Proof of title to the property where the proposed disposal facility is to be located. In lieu of record title, the applicant may submit evidence of an agreement to purchase the property for use as a medical waste disposal facility;

(5) Information sufficient to establish that the utility requirements of the facility are currently met and will be sufficient to provide extraordinary service in the event of an accident;

(6) Proposed use of facility and design to accomplish the use;

(7) Proposed days and hours of operation;

(8) Proposed emergency preparedness plan, including a detailed list of all city services which may be required in the event of an emergency. Such plan shall also contain a description of emergency procedures, safety and security precautions that will be implemented at the facility, details on emergency assistance and medical treatment that may be required of the area's medical facilities, fire, police and ambulance service;

(9) Proposed maintenance schedule; and

(10) Identity of contractors retained to build the facility and proof of any license required by Arkansas Code Annotated Section 17-22-101, et seq. (Supp. 1991).

(Ord. No. 16,156, § 9, 1-21-92; Ord. No. 21,867, § 1, 5-19-20)

ward, around the primary use area to provide screening and a background for required landscaping within the six-foot landscape strip.

c. The opaque fence shall also satisfy the security fence requirement of subsection (f).

d. The landscape strip on each side of the primary use area shall be planted with two (2) trees of a two-inch caliper which will grow to a spacing of fifteen (15) feet which will grow to a minimum twenty (20) feet in height at maturity. Each landscape strip shall also be planted with evergreen shrubs of thirty (30) inches height at planting, with a maximum spacing of forty-eight (48) inches on center and which will grow to a minimum height of sixty (60) inches at maturity.

(2) Existing mature trees shall be retained within the six-foot landscape strip and all leased or owned areas outside the primary use area except for reasonable ingress and egress.

(3) Existing vegetation within a WCF site may be used in lieu of required landscaping when approved by the planning commission for TUP applications or by staff in other WCF applications.

(4) The permanent six-foot landscape strip required by this section shall be maintained in such a manner as to assure that vegetation grows to mature height. Any planting within the strip shall be replaced if dead or diseased. Replacement vegetation shall be the minimum number, type and size required in this section.

(5) All applications for new or amended WCF shall include a detailed landscape plan for placement and maintenance. The use of existing vegetation within the WCF site shall be noted on the plan as to how it will fulfill the requirements of this article.

(6) Existing WCF shall be landscaped and screened in accordance with this section within thirty (30) days of the effective date of this section [May 21, 2002] unless compliance is deferred by the planning commission through the TUP process because the WCF is not currently located within one hundred (100) feet of any occupiable structure. Provided, however, the WCF shall be landscaped and screened in accordance with this article within ninety (90) days of final inspection for any occupiable structure subsequently constructed within one hundred (100) feet of the WCF.

a. In such cases where the planning commission has granted a deferral of the landscape and/or screening requirements of this article, the planning commission may modify the deferral or impose the landscape and screening requirements if, in the future, a major change in circumstances occurs.

b. For purposes of this section, a "major change in circumstance" means that:

1. The area within two hundred (200) feet of the boundaries of the WCF tower site has developed to the point that there is a virtually unobstructed view of the tower site from any adjoining occupiable residential structure or from public property or right-of-way, and

2. The City has received a complaint from the owner of an occupiable structure located within two hundred (200) feet of the tower site that the site has insufficient landscaping or screening in place; and

3. The City has requested that the parties resolve the issue by agreeing to certain screening or landscaping requirements consistent with section 36-593 which can be granted administratively by the director of planning and development, but no agreement has been reached, or sufficient additional space

around the site has been acquired to meet the landscaping, setback and screening requirements of section 36-593.

(d) *Aesthetics, placement, materials and colors.* WCF shall be designed so as to be compatible with the existing structures and surroundings to the extent feasible, including placement in a location which is consistent with proper functioning of the WCF, the use of compatible or neutral colors, or stealth technology.

(e) *Lighting and signage.*

(1) WCF shall not be artificially illuminated, directly or indirectly, except as may be required by state or federal law, and except for:

(a) Security and safety lighting of equipment buildings if such lighting is appropriately down shielded to keep light within the boundaries of the site; and

(b) Such illumination of the WCF as may be required by the FAA or other applicable authority installed in a manner to minimize impacts on adjacent residences.

(2) WCF shall not display any signage, logos, decals, symbols or any messages of a commercial or noncommercial nature, except for a small message containing provider identification and emergency telephone numbers.

(f) *Security fencing.* WCF with support structures shall be enclosed by a security fence not less than eight (8) feet in height. Security features may be incorporated into the buffer, landscaping and screening requirements for the site. Nothing herein shall prevent security fencing which is necessary to meet requirements of state or federal agencies.

(g) *Radio frequency emissions.*

(1) The FTA gives the FCC sole jurisdiction of the regulation of radio frequency (RF) emissions, and WCF which meet the FCC standards shall not be conditioned or denied on the basis of RF impact.

(2) In order to provide information to its citizens, copies of ongoing FCC information concerning WCF and RF emission standards may be requested. Applicants for WCF shall be required to provide information with the application on the measurement of the effective radiated power of the facility and how this meets the FCC standards.

(3) No sound emissions such as alarms, bells, buzzers or the like are permitted.

(h) *Structural integrity.* WCF with support structures shall be constructed to the Electronic Industries Association/Telecommunications Industries Association (EIA/TIA) 222 Revision F Standard entitled "Structural Standards for Steel Antennas Towers and Antenna Supporting Structures" (or equivalent), as it may be updated or amended. WCF with support structure shall be capable of supporting at least two (2) additional antenna arrays.

(i) *Collocation agreement.* All applicants for WCF with support structures are required to execute a statement upon filing the application agreeing to allow collocation of other WCF providers. The host WCF shall be constructed to accommodate two (2) additional antenna arrays and their equipment facilities.
(Ord. No. 17,664, § 1, 1-20-98; Ord. No. 18,173, §§ 2, 3, 12-20-99; Ord. No. 18,682, § 1(p)—(s), (x), (y), 5-21-02; Ord. No. 18,683, § 1, 5-21-02)

Sec. 36-594. Review process.

(a) *General.* The applicable development standards referred to herein are those set forth in section 36-593 of this article.

(b) *Permitting procedures.* Attached WCF with or without new building construction and WCF with support structures that meet the development standards are permitted by administrative review. All WCF applications that do not conform with the development standards shall be permitted through a tower use permit (TUP) review.

(c) *WCF as part of coordinated development approval.* WCF as part of a proposed residential or nonresidential subdivision, planned zoning dis-

trict (PZD), site plan, conditional rezoning, or other coordinated development approval shall be reviewed and approved through those processes.

(d) *WCF for temporary term.* Temporary WCF for a term not to exceed ninety (90) days are permitted by administrative review, and in case of emergency shall be given expedited review.
(Ord. No. 17,664, § 1, 1-20-98)

Sec. 36-595. Approval procedures.

(a) *Administrative review.*

(1) Review of WCF under this section shall be conducted by the department of planning and development upon filing a WCF application. The submission requirements shall be as directed by the "instructions for filing" outline provided to the applicant.

(2) *Review criteria.* The department of planning and development shall review the application for compliance with the development standards.

(3) *Timing of decision.* The department of planning and development shall render a decision on the WCF application by written response to the applicant within five (5) business days after receipt of the completed application, except that an extension may be agreed upon by the applicant.

(4) If administrative approval is not obtained due to noncompliance with the development standards the applicant may apply for a TUP.

(b) *Tower use permit (TUP).*

(1) *Approval body.* The body that shall review and approve and have final authority of TUP shall be the planning commission.

(2) *Applications.*

a. Application contents. Each applicant requesting a TUP under this article shall submit a property survey and a scaled site plan containing a scaled elevation view and other supporting drawings, calculations and other documentation showing the location and dimensions of the WCF and all improvements associated therewith, including information concerning specifications, antenna locations, equipment facility and shelters, landscaping, parking, access, fencing, and if relevant as determined by staff, topography, adjacent uses and existing vegetation.

b. Proprietary information. Any proprietary information required to comply with the application process shall be placed in a separate envelope clearly marked "Proprietary Information—To Be Returned." Upon completion of staff review, or upon request by any other person for this information, this marked material shall be returned to the applicant. Under no circumstances shall the city maintain proprietary information as a public record.

(3) Submission requirements. Application for a TUP shall be submitted to the department of planning and development on forms provided by staff. The application shall be accompanied by a property survey and a scaled site plan containing the information described above, together with the appropriate fee described in section 23-3. The site plan shall be filed for review by the planning commission not later than the filing date set by calendar.

(4) Notice. Notice of the application and the public hearing by planning commission shall be given in accordance with the procedures under the zoning ordinance for notice of applications and hearings before the planning commission.

(5) Hearing. The planning commission shall review and consider the application for a TUP at a public hearing. At the hearing interested persons may appear and offer information in support or opposition to the proposed application. The planning commission shall take one (1) of the following actions:

a. Approve the application as submitted;

b. Approve the application with conditions or modifications;

c. Defer the application for additional information or neighborhood input; or

d. Deny the application.

(i) *Development standards.* Every application for a TUP shall be reviewed for compliance with the development standards set forth in section 36-593; provided that the applicable development standards may be reduced or waived so long as the approval of the WCF meets the goals and purposes of section 36-591 herein. The planning commission may authorize a variance from the development standards by specific inclusion in a motion for approval. No such variance authorized by the planning commission shall be subsequently applied for a variance to the board of zoning adjustment.

(ii) *Tower siting conditions.* The planning commission may impose conditions and restrictions on the application or on the premises benefitted by the TUP as it deems necessary to reduce or minimize any adverse effects and to enhance the compatibility of the WCF with the surrounding property, in accordance with the purposes and intent of this chapter. The violation of any condition shall be grounds for revocation of the TUP. The planning commission may impose such conditions in addition to the development standards upon the following findings:

a. The WCF would result in probable significant adverse visual impact on nearby residences.

b. The conditions are based upon the purpose and goals of this article as set forth in section 36-591.

c. The conditions are reasonable and capable of being accomplished.

(6) Findings. All decisions rendered by the planning commission under a TUP shall be final and shall be supported by written findings of fact and conclusions of law based upon substantial evidence in the record.

(7) Timing of decision. The planning commission shall render its decision on the date of the next scheduled public hearing for which the application is filed.

(8) Appeals. The decision of the planning commission may be appealed to the board of directors of the city under the following circumstances:

a. Only the applicant and those who registered an objection to the TOP in the record of the planning commission shall have standing to appeal.

b. Only such evidence or testimony in support of or opposition to the issuance of the TUP which was provided to the planning commission may be presented to the board of directors unless the board, by majority vote, decides to hear new information.

c. In the course of its consideration of an application the planning commission may deem it necessary to employ an engineer(s) qualified in the design and installation of WCF to assist the city in the technical engineering aspects of the application. In such cases, any reasonable costs incurred by the city not to exceed fifteen hundred dollars ($1,500.00) with the engineer review and recommendation shall be reimbursed by the applicant prior to the final city hearing on the TUP.

d. Appeal of decisions of the board of directors shall be filed in Chancery Court within thirty (30) days of the final decision on the TUP.

(Ord. No. 17,664, § 1, 1-20-98; Ord. No. 18,682, § 1(t)—(w), 5-21-02)

Sec. 36-596. Shared facilities and collocation policy; facilitating location on public property.

(a) *Collocation.* All WCF with support structure shall be constructed to be capable of sharing the facility with other providers, to collocate with other existing WCF and to accommodate the future collocation of other WCF, where technically and practically feasible. Applicants proposing a new WCF with support structure shall demonstrate that it has made a reasonable good faith attempt to find a collocation site acceptable to engineering standards and that none was technically or practically feasible. Competitive conflict and financial burden are not deemed to be adequate reasons against collocation.

(b) *Location on public property.* The city will work with telecommunication providers to facilitate the siting of WCF on city owned or controlled property, by identifying existing facilities, the appropriate contact persons, and the appropriate procedures in accordance with this article.

(Ord. No. 17,664, § 1, 1-20-98)

Sec. 36-597. Removal of abandoned WCF.

Any WCF that is not operated for a continuous period of twelve (12) months or such lesser time if the city is so advised by the provider or landowner, shall be considered abandoned, and the owner of such WCF shall remove same within ninety (90) days of notice to the city that the WCF is abandoned. If the abandoned WCF is not removed within ninety (90) days, the city may remove it and recover its cost from the owner of the WCF or from the landowner. If there are two (2) or more users of a single WCF this provision shall not become effective until all providers cease to use the WCF.

(Ord. No. 17,664, § 1, 1-20-98)

Sec. 36-598. Nonconforming WCF.

WCF in existence on the date of the adoption of the article, which do not comply with the requirements of this article (nonconforming WCF) are subject to the following provisions:

(a) Nonconforming WCF may continue in use for the purpose now used, but may not be expanded without complying with this article, except as further provided in this section.

(b) Nonconforming WCF may add additional antennas (belonging to the same provider or other providers) subject to administrative review under section 36-595 of this article.

(c) Nonconforming WCF which become damaged or destroyed due to any reason or cause, may be repaired and restored to its former use, location, and physical dimensions subject to the provisions of this article.

(Ord. No. 17,664, § 1, 1-20-98)

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CODE COMPARATIVE TABLE

1961 CODE

This table gives the location within this Code of those sections of the 1961 Code, as updated through March 5, 1986, which are included herein. Sections of the 1961 Code, as supplemented, not listed herein have been omitted as repealed, superseded, obsolete or not of a general and permanent nature. For the location of ordinances adopted subsequent thereto, see the table immediately following this table.

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d. Appeal of decisions of the board of directors shall be filed in Chancery Court within thirty (30) days of the final decision on the TUP.

(Ord. No. 17,664, § 1, 1-20-98; Ord. No. 18,682, § 1(t)—(w), 5-21-02)

Sec. 36-596. Shared facilities and collocation policy; facilitating location on public property.

(a) *Collocation.* All WCF with support structure shall be constructed to be capable of sharing the facility with other providers, to collocate with other existing WCF and to accommodate the future collocation of other WCF, where technically and practically feasible. Applicants proposing a new WCF with support structure shall demonstrate that it has made a reasonable good faith attempt to find a collocation site acceptable to engineering standards and that none was technically or practically feasible. Competitive conflict and financial burden are not deemed to be adequate reasons against collocation.

(b) *Location on public property.* The city will work with telecommunication providers to facilitate the siting of WCF on city owned or controlled property, by identifying existing facilities, the appropriate contact persons, and the appropriate procedures in accordance with this article.

(Ord. No. 17,664, § 1, 1-20-98)

Sec. 36-597. Removal of abandoned WCF.

Any WCF that is not operated for a continuous period of twelve (12) months or such lesser time if the city is so advised by the provider or landowner, shall be considered abandoned, and the owner of such WCF shall remove same within ninety (90) days of notice to the city that the WCF is abandoned. If the abandoned WCF is not removed within ninety (90) days, the city may remove it and recover its cost from the owner of the WCF or from the landowner. If there are two (2) or more users of a single WCF this provision shall not become effective until all providers cease to use the WCF.

(Ord. No. 17,664, § 1, 1-20-98)

Sec. 36-598. Nonconforming WCF.

WCF in existence on the date of the adoption of the article, which do not comply with the requirements of this article (nonconforming WCF) are subject to the following provisions:

(a) Nonconforming WCF may continue in use for the purpose now used, but may not be expanded without complying with this article, except as further provided in this section.

(b) Nonconforming WCF may add additional antennas (belonging to the same provider or other providers) subject to administrative review under section 36-595 of this article.

(c) Nonconforming WCF which become damaged or destroyed due to any reason or cause, may be repaired and restored to its former use, location, and physical dimensions subject to the provisions of this article.

(Ord. No. 17,664, § 1, 1-20-98)

Secs. 36-599—36-650. Reserved.

ARTICLE XIII. BAN ON REMOVAL OF GROUNDWATER*

Sec. 36-651. Definitions.

[The following words, terms and phrases, when used in this article, shall have the meanings ascribed to them in this section, except where the context clearly indicates a different meaning:

Person is any individual, partnership, copartnership, firm, company, limited liability company, corporation, association, joint stock company, trust, estate, political subdivision, or any other legal entity, or their legal representatives, agents or assigns.

Property shall generally mean the United States Army Reserve Center located at 1201 Bond Avenue, Little Rock, AR 72202, and more

*__Editor's note—__Ord. No. 20,990, §§ 1—5, adopted Jan. 20, 2015, enacted provisions, but did not specify manner of inclusion; hence, codification as Art. XIII, §§ 36-651—36-655 was at the discretion of the editor.

specifically that area described in section 36-652 and includes any future subdivision or parcel of the property.
(Ord. No. 20,990, § 1, 1-20-15)

Sec. 36-652. Identification of lands subject to the regulations of this article.

A legal description of the lands affected by this article (i.e., the "property") is set forth on the attached Exhibit A and a depiction of such lands is set forth on the attached Exhibit B.
(Ord. No. 20,990, § 2, 1-20-15)

Editor's note—Exhibits A and B can be located at the end of this article.

Sec. 36-653. Prohibition on use of groundwater.

(a) *Prohibition of use of groundwater within the identified area.* The use of any and all currently existing groundwater wells within the identified area is prohibited for any purpose other than those exceptions listed in subsection (b). All existing groundwater wells within the identified area, other than those excepted under subsection (b), shall be closed and abandoned pursuant to applicable requirements within ninety (90) days of the effective date of this article. The construction of new groundwater wells within the identified area is prohibited for any purpose other than those exceptions listed in subsection (b).

(b) *Exceptions for monitoring and remediation.* This article shall not apply to wells constructed or used for purposes of investigation, monitoring, removal, and/or remediation of any subsurface contamination or suspected subsurface contamination pursuant to an order of, or with the consent of, the city or any state or federal regulatory agency.
(Ord. No. 20,990, § 3, 1-20-15)

Sec. 36-654. Restrictions on future use.

(a) Property uses restricted to those allowed by current zoning. The property is currently zoned 1-2, Light Industrial District, as currently defined in section 36-320 of the Little Rock Code of Ordinances. The property shall hereafter be restricted to those uses that are identified as compatible with I-2 zoning as of the enactment of this article regardless of whether the property's zoning, or the uses allowed thereunder, should change in the future.

(b) Provided, however, that in no event, regardless of future zoning, shall the property be used for any of the following purposes, as currently defined in chapter 36 of the Little Rock Code of Ordinances:

(1) A day nursery or day care center;

(2) An adult day care center;

(3) Any eating establishment;

(4) A business school;

(5) A commercial, trade, or craft school;

(6) A bus station or terminal;

(7) A hotel or motel;

(8) A drive-in theatre;

(9) A child care or other play facility.

(Ord. No. 20,990, § 4, 1-20-15)

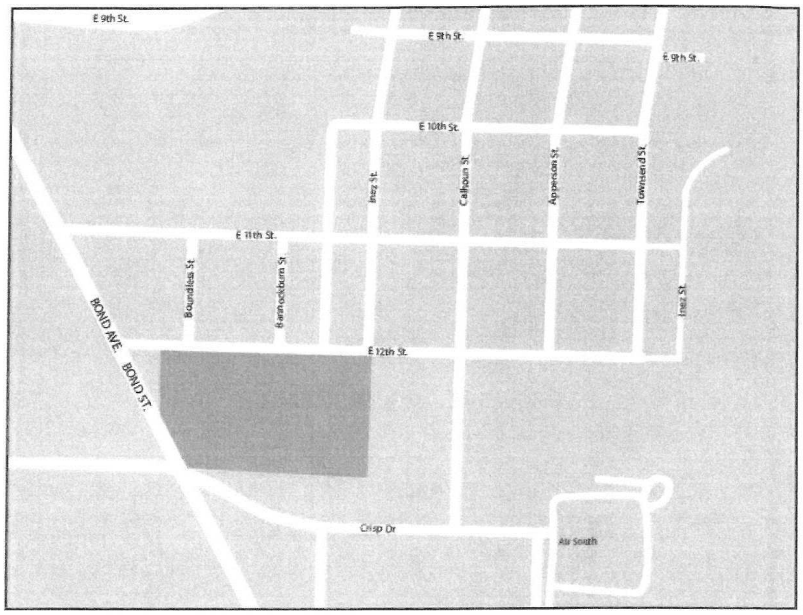
Sec. 36-655. Penalties for violations and noncompliance.

Any person who is found to have violated this article shall be fined. The maximum fine per violation shall be five hundred dollars ($500.00).
(Ord. No. 20,990, § 5, 1-20-15)

Exhibit A

The affected area consists of all of Clinton Park Addition Blocks 16 and 17 and Lots 1 through 8. Block 18; and all parts of Bannockburn Street and all parts of Boundless Street lying south of East 12th Street closed and abandoned; and all parts of East 13th Street (abandoned) between Boundless Street and Inez Street (Hawkins).
(Ord. No. 20,990, 1-20-15)

Exhibit B



(Ord. No. 20,990, 1-20-15)

ARTICLE XIV. BED AND BREAKFAST HOUSE/SHORT-TERM RENTALS

Sec. 36-599. Short title.

This chapter may be cited as the "Short Term Rental Ordinance."
(Ord. No. 22,274, § 5, 6-20-23)

Sec. 36-600. Purpose.

Purpose of this article is to establish regulations for use of residential dwellings as bed and breakfast house/short-term rentals, establish a system to track the short-term rental inventory in the city, ensure compliance with local performance standards, provide a means of contact for the responsible party of bed and breakfast house/short-term rentals, and allow private property owners the right to fully and efficiently utilize their property without undue regulation or interference.

Definitions:

Administrative approval shall mean formal acceptance of approval by the director of planning and development, or their designee.

Bed and breakfast house/short-term rental type 1 (STR-1) shall mean an owner occupied single-family, two (2)-family or multi-family property which contains not more than nine (9) bedrooms or guest rooms, no more than one (1) of which may be located in an approved accessory dwelling, which for a fee may be occupied by a guest for no longer than twenty-nine (29) consecutive days.

Bed and breakfast house/short-term rental type 2 (STR-2) shall mean a nonowner occupied single-family, two (2)-family or multi-family property which contains not more than nine (9) bedrooms or guest rooms, which for a fee may be occupied by a guest for no longer than twenty-nine (29) consecutive days.

Contributing structure shall mean a building within a National Register Historic District that contributes to the historic character of the district, was built during the district's period of significance, and retains its appearance from that time, as determined by the Arkansas Historic Preservation Program.

Occupant shall mean the person or persons who contracts with the responsible party for use of the short-term rental.

Owner-occupied shall mean owner of the property permanently resides in the short-term rental or in the principal residential unit with which the short-term rental is associated on the same tax parcel.

Rehabilitation shall mean the act or process of making use for an existing structure through repair, alterations and additions.

Responsible party shall mean the owner of a residential dwelling being used as a short-term rental type 1 or type 2, as well as any person designated by the owner, who is responsible for compliance with this article by an occupant. The responsible party shall provide for the maintenance of the property and ensure compliance by the occupant and any guests with the provisions of this article, or any other applicable law, rule, or regulation pertaining to the use and occupancy of a short-term rental. The owner of the property shall not be relieved of responsibility or liability for noncompliance with the provisions.
(Ord. No. 22,274, § 5, 6-20-23)

Sec. 36-601. Bed and breakfast house/short-term rentals (type 1 & 2) entitlement.

(a) Bed and breakfast house/short-term rental type 1 (STR-1) is an owner occupied single-family, two (2)-family or multi-family dwelling unit, or a unit within one thousand five hundred (1,500) feet of said dwelling, which contains not more than nine (9) bedrooms or guest rooms, no more than one (l) of which may be located in an approved accessory dwelling, which for a fee may be occupied by a guest for no longer than twenty-nine (29) consecutive days.

(1) Bed and breakfast house/short-term rental type 1 (STR-1) are a land use allowed only where the planning commission has granted a special use permit in accordance with chapter 36, article II, section 36-54, special use permits.

a. *Business license required*.

1. Upon planning commission approval of a special use permit, the owner shall submit an application for a business license, which if said license is issued, must be renewed annually.

2. Annual inspection fee for a STR-1 is of one hundred dollars ($100.00) per bedroom up to maximum of five hundred dollars ($500.00).

3. The annual inspection fee would be waived for the first year if the structure is on the city's unsafe/vacant list, as determined by the housing and neighborhood programs department, and is rehabilitated for use as an STR-1.

b. To qualify for an STR-1 permit, the owner of the property must permanently reside at the property, or must permanently reside within one thousand five hundred (1,500) feet of the property, and be a natural person or persons.

(2) Owner-occupied status shall be confirmed by at least two (2) documents demonstrating primary residence. Documentation of primary residence address must match the deed as recorded with the Pulaski County clerk's office. Acceptable documents include: Arkansas Driver's License;

State of Arkansas ID card; Pulaski County voter registration card, IRS W2 form; utility bill (dated within sixty (60) days); or bank statement (dated within sixty (60) days).

(b) Bed and breakfast house/short-term rental type 2 (STR-2) is a non-owner occupied single-family, two (2)-family or multi-family dwelling unit which contains not more than nine (9) bedrooms or guest rooms, which for a fee may be occupied by a guest for no longer than twenty-nine (29) consecutive days. Bed and breakfast house/short-term rental type 2 (STR-2) are a land use allowed only where a planned zoning district has been approved in accordance with chapter 36, article VII, planned zoning district.

(1) No person or entity shall advertise or operate a property for use as a bed and breakfast home/short-term rental type 2 (STR-2) without having first obtained board of director's approval of a PZD, planned zone development.

a. *Business license required.*

1. Upon the board's adoption of an ordinance for a PZD, the owner can submit application for a business license, to be renewed annually.
2. Annual inspection fee for a STR-2 is five hundred dollars ($500.00).
3. The annual inspection fee would be waived for the first year if the structure is on the city's unsafe/vacant list, as determined by the housing and neighborhood programs department, and is rehabilitated for use as an STR-2.

(c) Pre-existing bed and breakfast house/short-term rental type 1 (STR-1) administrative approval for pre-existing bed and breakfast house/short-term rental type 1 (STR-1) can be granted. Within six (6) months of the passage of this ordinance, the owner must register the STR-1 with the city, demonstrate the STR-1 was in operation six (6) months prior to passage of this ordinance, demonstrate compliance with all bed and breakfast house/short-term rental type 1 (STR-1) development standards and pay a one hundred fifty dollar ($150.00) administrative review fee.

(1) If administrative approval is granted, the applicant will be notified and an inspection will be scheduled, and a one hundred dollar ($100.00) inspection fee is to be collected.

(2) Following payment of the administrative review and inspection fee, the operator shall obtain a business permit, to be renewed annually.

(3) Annual inspection fee for pre-existing STR-1 is one hundred dollars ($100.00) per bedroom, up to a maximum of five hundred dollars ($500.00).

(d) Pre-existing bed and breakfast house/short-term rental type 2 (STR-2) non-owner occupied short-term rentals (STR-2's) in operation prior to six (6) months of passage of this ordinance, which have not secured entitlement through a PZD, shall apply for a PZD with the City of Little Rock planning & development department within six (6) months following passage of this ordinance. If no application is received, and/or if the PZD application is not approved, the property shall revert to its former use status.

(e) All bed and breakfast house/STR-1 & 2 permit holders are responsible for collecting and remitting all applicable room, occupancy, advertising & promotion tax, and sales and gross receipts taxes required by Arkansas State Law or city code.

(Ord. No. 22,274, § 5, 6-20-23)

Sec. 36-602. Responsible party.

(a) A responsible party must be available twenty-four (24) hours per day, seven (7) days per week, for the purpose of responding to city officials within sixty (60) minutes to complaints regarding the condition of the short-term rental or the conduct of the occupant of the short-term rental and/or their guests.

(b) A responsible party, upon notification that any occupant or guest has created any unreasonable noise or disturbance, engaged in disorderly conduct, or committed a violation of any applicable law, rule or regulation pertaining to the use and occupancy of a short-term rental, shall promptly respond in an appropriate manner within sixty (60) minutes and require an immediate halt to the conduct, and take such steps as may be necessary to prevent a recurrence of such conduct. Failure of the responsible party to respond to calls or complaints regarding the condition, operation, or conduct of an occupant or guest in a short-term rental in an appropriate manner within sixty (60) minutes shall constitute a violation of this article.

(c) A responsible party shall provide their contact number and information to all residents adjacent to the residential dwelling being used, or will be used, as short-term rental (Type 1 or 2).

(d) A responsible party shall post on or near the front door of the short-term rental a notice which includes the address of the rental, emergency contact numbers (including the responsible party name and contact number), maximum occupancy, and a diagram showing emergency exit route(s) approved by the Little Rock fire department.

(1) The responsible party shall answer calls twenty-four (24) hours a day, seven (7) days a week for the duration of each short-term rental period to address problems associated with the STR.

(Ord. No. 22,274, § 5, 6-20-23)

Sec. 36-603. Development standards.

(a) Purpose and intent of this section is to establish development standards for bed and bed and breakfast house/short-term rentals. Compliance with these development standards shall be demonstrated by applicants requesting entitlements for STR type 1 & 2.

(1) For STR-1 applications, compliance with these development standards shall be demonstrated and submitted as a supplement to a special use permit application.

(2) For STR-2 applications, compliance with these development standards shall be demonstrated and submitted as a supplement to the minimum criteria required for the submittal of a planned zoning district application.

(3) Density of short-term rentals - There shall be no more than five hundred (500) short-term rentals at any one (1) time within the corporate boundary of the City of Little Rock.

(b) Development standards.

(1) Hosting of private parties and special events such as weddings, receptions, and other similar gatherings is not allowed in short-term rentals.

(2) No tours for a fee are allowed to anyone other than an occupant.

(3) The occupancy fee may include any meal to be served to paying guests; no other meal service is permitted.

(4) Allowable signage is that as permitted by the single-family residential standard.

(5) Parking plan must be provided with permit application. Off-street standard for STRs shall be provided in accordance with Little Rock Arkansas Code, chapter 36, subsection 36-54(e)(1).

If on-street parking is proposed as an alternative to meet the above requirements, parking must be available for guest use within three hundred thirty (330) feet of the short-term rental and parking plan must address neighborhood impact. If the short-term rental is proposed within a design overlay district, any alternate parking requirements, as provided in Little Rock, Arkansas Rev. Code, chapter 36, zoning, article V, district regulations shall be applicable.

(6) Applicants shall provide a scaled floor plan that includes all of the rooms available for rent with location of windows, doors, and smoke detectors identified. Smoke detectors (certified) are required in all sleeping areas, in every room in the

path of the means of egress from the sleeping area to the exit, and in each story with sleeping unit, including basements.

(7) All sleeping areas must have two (2) ways of egress, one (1) of which can be an operable window.

(8) Proof of homeowner's, fire, hazard and liability insurance. Liability coverage shall have limits of not less than one million dollars ($ 1,000,000.00) per occurrence.

(9) All persons operating a bed and breakfast house/short-term rental (type 1 & 2) shall meet all applicable requirements of the city of Little Rock's Municipal Code, chapter 12, fire prevention and protection, article II, Arkansas fire prevention code. Prior to use as a bed and breakfast house/short-term rental (type 1 & 2), the annual City of Little Rock, building code and fire marshal inspection fee must be paid and payment of annual business license received.

(10) Smoke alarms shall be installed, all smoke alarms shall meet local and state standards (current fire code). Smoke alarms shall be installed in all sleeping areas and every room in the path of the means of egress from the sleeping area to the door leading from the sleeping unit.

(11) Carbon monoxide detectors shall be installed as directed by city staff if there are fuel-fired appliances in the unit or the unit has an attached garage.

(12) Five (5)-pound ABC-type extinguisher shall be mounted where readily accessible.

(13) No recreational vehicles, buses, or trailers shall be visible on the street or property in conjunction with the bed and breakfast house/short-term rental use.

(14) Principal renter shall be at least eighteen (18) years of age.

(15) *Maximum occupancy*. Maximum occupancy of any room or structure as a whole shall be determined by the Arkansas fire prevention code.

(16) Simultaneous rental to more than one (1) party under separate contracts shall not be allowed.

(17) The owner shall not receive any compensation or remuneration to permit occupancy of a STR for a period of less than a one (1)-day rental.

(Ord. No. 22,274, § 5, 6-20-23)

Sec. 36-604. Compliance.

(a) It is unlawful for any responsible party to offer for rent a bed and breakfast house/short-term rental or to operate a bed and breakfast house/short-term rental without a business license. Owners shall not list a property or units online until they have received a business license, operation of an STR without a business license shall make the owner ineligible to apply for a business license for up to one (l)-year.

(b) It is the intent of the City of Little Rock that complaints regarding bed and breakfast house/short-term rental properties be resolved according to existing state law and City of Little Rock ordinances pertaining to public nuisances, vehicles and traffic, health and safety, and public peace, morals, and welfare.

(c) Sanctions:

(1) In addition to any other remedy or procedure authorized by law, for three (3) or more confirmed violations of or failure to comply with any of the standards of this article in a calendar year, the director of the planning and development or his/her designee may revoke a business license and, in addition, may order that no new business license be issued for up to one (l)-year pursuant to the following procedures:

a. Prior to the revocation of any business license or the denial of a business license for repeated violation of the provisions of this article, written notice of the reasons for such

action shall be served on the owner and/or responsible party in person or by certified mail at the address on the permit application.

b. Revocation shall become final within ten (10) days of service unless the owner and/or responsible party appeals the action. The owner and/or responsible party shall provide the appeal in writing to the director of planning & development or his/her designee within ten (10) days of receipt of the notice. The written notice of appeal must state the reasons for the appeal and the relief requested.

c. Should the owner and/or responsible party request an appeal within the ten (10)-day period, the director of the planning & development department or his/her designee shall notify the owner and/or responsible party in writing of the time and place of the hearing.

d. Appeals shall be heard by the board of adjustment as an administrative appeal pursuant to chapter 36, division 4, section 36-109 of the Little Rock zoning code. For good cause shown, the board may affirm or reverse the decision to revoke a business license.

e. Once a business license for an short-term rental has been revoked, no new business license shall be issued to the applicant for the same property for a period of one (1)-year.

(Ord. No. 22,274, § 5, 6-20-23)

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		1(e)	Added	36-320(c)(1)e.
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			as	36-320(c)(1)f.—hhh.
		1(f)	Added	36-302(c)(2)b.
			Rnbd	36-302(c)(2)b.—i.
			as	36-302(c)(2)c.—j.
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		1(l)		36-462(d)(2)
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		1(y)		36-515
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		1(bb)	Added	36-300(c)(2)g.
			Rnbd	36-300(c)(2)g.—m.
			as	36-300(c)(2)h.—n.
		1(cc)	Added	36-301(c)(2)j.
			Rnbd	36-301(c)(2)j.—v.
			as	36-301(c)(2)k.—w.
		1(dd)	Added	36-302(c)(1)s.
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		1(gg)	Added	36-302(c)(1)oo.
			Rnbd	36-302(c)(1)oo.—ss.
			as	36-302(c)(1)pp.—tt.
		1(hh)	Added	36-319(c)(1)jj.
			Rnbd	36-319(c)(1)ii.
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		1(ii)	Added	36-320(c)(1)aaa.
			Rnbd	36-320(c)(1)aaa.—ggg.
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			Added	36-279(b)(1)m., 36-280(c)(1)z., 36-281(b)(1)y., 36-299(c)(1)oo., 36-300(c)(1)jjj., 36-301(c)(1)www.

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			as	36-301(c)(1)ddd.—eeee.
			Added	36-301(c)(1)dd.
			Rnbd	36-301(c)(1)dd.—ss.
			as	36-301(c)(1)ee.—tt.
		1(mm)	Added	36-319(c)(1)h.
			Rnbd	36-319(c)(1)h.—hh.
			as	36-319(c)(1)i.—ii.
		1(nn)	Added	36-320(c)(1)t.
			Rnbd	36-320(c)(1)t.—ggg.
			as	36-320(c)(1)u.—hhh.
		1(oo)	Added	36-321(c)(2)b.
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			as	36-321(c)(2)c.—j.

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18,069	7-20-99	1—13		3-11—3-23
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18,086	8- 3-99	1	Added	8-31(b)
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18,100	9-21-99	1	Added	2-243(a)(2)l.
18,101	9-21-99	1		22-30
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18,246	3-28-00	1	Added	29-186(h)
18,259	4- 4-00	1—4		34-43(b)(1)—(3)
18,280	5-16-00	1		8-474(a)(1)
18,324	8- 1-00	1(a)	Added	36-11(f)
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18,343	9- 5-00		Rpld	7-51—7-59, 7-76—7-83
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18,359	9-26-00	1	Added	15-1—15-7
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18,361	9-26-00	1		29-1
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18,362	9-26-00	1	Added	15-37
18,369	10-10-00	1		15-102(c)
		2	Dltd	36-521(c)(3)
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18,406	12-19-00	1, 2	Added	34-38(c)(12)
18,408	12-28-00	1, 2		36-556(g)
18,419	1-16-01	1(a)	Added	36-322
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18,425	2- 6-01	1		30-246(b)
18,426	2- 6-01	1	Added	2-243(a)(2)o.

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18,449	3-20-01	1	Added	2-243(a)(2)p.
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18,483	5-15-01	1		34-4
18,528	7-17-01	1—8	Added	22-3—22-10
18,529	8- 7-01	1(1)—(25)		17-97—17-98.23
18,545	8-21-01	1		2-273(a)
18,548	8-21-01	1		17.5-26
18,551	9- 4-01	1	Dltd	8-102
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18,553	9- 4-01	1	Added	Ch. 8, Art. VII
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18,554	9- 4-01	1	Added	8-3
18,555	9- 4-01	1		8-282
18,556	9- 4-01	1	Rpld	Ch. 8, Art. IV
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18,612	12-18-01	1(Att. A)		17-52
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18,613	12-18-01	3, 4	Added	22-214(i)
18,614	12-18-01	1	Added	34-20(a)(4)
18,617	12-18-01	1, 2		8-31(c), (d)
18,618	12-18-01	1—10	Added	32-322
18,617	12-18-01	1, 2		8-31(c), (d)
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18,622	12-18-01	1—5		23-3(a)—(e)
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18,630	1-15-02	1—5		36-322
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18,644	2- 5-02	1		32-309
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18,649	2-19-02	1(Att. A)	Added	2-260.3—2-260.8
18,652	12-18-01	1		2-242(a)
18,667	4-16-02	1	Added	2-243(a)(2)r.
18,668	4- 2-02	1	Rpld	6-1—6-7.1, 6-9, 6-9.1, 6-11, 6-12.1, 6-18, 6-49, 6-50
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18,673	4- 2-02	1—5	Added	2-330.10—2-330.14
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18,683	5-21-02	1		36-593(c)(6)
18,684	5-21-02	1	Added	2-243(a)(2)q.
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18,706	6-18-02	1		8-28
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18,772	11- 4-02	1		2-194(3)
18,791	12- 3-02	1		17-212(9)
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18,803	1- 7-03	1	Added	2-327.1
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18,841	3-18-03	1		17-52(0.31)—(0.33)
18,844	3-18-03	1	Added	30-5(d)—(h)
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18,866	5-20-03	1—3	Added	2-31
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		1(b)		36-83
		1(c)		36-101
		1(d)		36-460(a)
		1(e)	Added	36-456(1)f.
18,892	7- 1-03	1		8-32
18,902	7-15-03	1(a)	Dltd	36-54(e)(2)
			Rnbd	(3)
			as	(2)
		1(b)		36-553(b)

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		1(gg)		36-302(c)(1)
		1(hh)		36-320(c)(1)
		1(ii)	Added	36-453(e)
		1(jj)		36-253(b)(6)
		1(kk)		36-104(b)(4)
		1(ll)		36-299(c)(1)
		1(mm)		36-3
		1(nn)		36-3
		1(oo)		36-253(b)(4)
		1(pp)		36-279(b)(1), 36-280(c)(1), 36-281(b)(1), 36-299(c)(1), 36-300(c)(1), 36-301(c)(1), 36-302(c)(1), 36-320(c)(1)
		1(qq)		36-302(c)(1)c.
		1(rr)		36-156(a)(2)c.
		1(ss)		36-3
		1(tt)		36-302(c)(1), 36-320(c)(1)
		1(uu)		36-320(c)(1)
		1(vv)	Added	36-281(b)(2)o.
18,328	8- 1-00	1		2-283(a)
18,343	9- 5-00		Rpld	7-51—7-59, 7-76—7-83
		II—XIII	Added	7-52—7-63
18,345	9-19-00	1		6-3
		2		6-6
		3		6-44
		4		6-45(a)
		5		6-46
18,359	9-26-00	1	Added	15-1—15-7
		2	Added	15-36
		3	Dltd	15-51—15-56
			Added	15-51—15-54
		4	Dltd	15-81—15-94, 15-111—15-118, 15-131—15-143, 15-151—15-157
			Added	15-81—15-105
18,360	9-26-00	1		36-520—36-526
18,361	9-26-00	1		29-1
		2		29-166—29-195
18,362	9-26-00	1	Added	15-37
18,369	10-10-00	1		15-102(c)
		2	Dltd	36-521(c)(3)
			Added	36-521(f)
18,406	12-19-00	1, 2	Added	34-38(c)(12)
18,408	12-28-00	1, 2		36-556(g)
18,419	1-16-01	1(a)	Added	36-322
		1(b)		36-176
18,421	1-16-01	1		8-574
		2—4		8-583(c), (d), (i)
18,425	2- 6-01	1		30-246(b)
18,426	2- 6-01	1	Added	2-243(a)(2)o.

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18,449	3-20-01	1	Added	2-243(a)(2)p.
18,451	3-20-01	1, 2		34-4
		3		34-61
		4		34-62(b)
		5	Added	34-62(d)
		6	Added	34-72
18,475	5- 1-01	1(8-31A—8-31D)	Added	8-31.1
18,483	5-15-01	1		34-4
18,488	5-15-01	1		23-2
18,528	7-17-01	1—8	Added	22-3—22-10
18,529	8- 7-01	1(1)—(25)		17-97—17-98.23
18,545	8-21-01	1		2-273(a)
18,548	8-21-01	1		17.5-26
18,551	9- 4-01	1	Dltd	8-102
				8-121, 8-148,
				8-147(b), 8-150,
				8-151(a)(4), (b), (c)
			Added	8-31(c)II. I.
		2		8-171(a), 8-172,
			Dltd	8-173
				8-176
		3		8-198—8-200
			Dltd	8-221—8-229
				8-230, 8-231
			Dltd	8-232—8-236
18,552	9- 4-01	1		Ch. 8, Art. VI(title), 8-471—8-474
		2		8-475—8-481
		3		8-501—8-508
		4		8-509—8-511
		5		8-531—8-535
18,553	9- 4-01	1	Added	Ch. 8, Art. VII
			Rnbd	Ch. 8, Arts. VII, VIII
			as	Ch. 8, Arts. VIII, IX
			Added	8-536—8-539
		2	Added	8-540—8-545
		3	Added	8-546—8-553
		4	Added	8-554—8-556
		5	Added	8-557—8-561
18,554	9- 4-01	1	Added	8-3
18,555	9- 4-01	1		8-282
18,556	9- 4-01	1	Rpld	Ch. 8, Art. IV
			Added	13-51—13-62
18,569	9-18-01	1(a), (b)	Rpld	17-3, 17-4
		2	Rpld	22-43(c)
		3(a)—(h)	Rpld	32-548—32-555
		4(a)—(p)	Added	32-546—32-561
		5(a)—(g)	Added	32-571—32-577
18,573	10- 2-01	1		25-2
		2		25-3
		3		25-4
		4		25-6
18,596	11- 2-01	1(1)	Rpld	22-38
		1(2)		22-39
		2	Added	22-221—22-237

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18,603	12-4-01			13-51(a), 13-59
			Added	13-63

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		1(h)	Added	36-54(e)(4)
		1(i)	Added	(h)
19,438	11-15-05	1(a)		36-461(5)
		1(b)		36-67(a)
		1(c)		36-54(d)
		1(d)		36-4(d)
		1(e)		36-454(d)
		1(f)		31-94(c)
		1(g)		36-105
		1(h)	Dltd	36-300(c)(2)c.
			Rltd	d.—n.
			as	c.—m.
		1(i)	Dltd	36-301(c)(2)h.
			Rltd	i.—aa.
			as	h.—z.
		1(j)		36-319(c)(1)e.
			Rltd	f.—ll.
			as	e.—kk.
		1(k)	Added	3-319(c)(2)c.
			Rltd	c.—j.
			as	d.—k.
		1(l)	Dltd	36-320(c)(1)r.
			Rltd	s.—sss.
			as	r.—rrr.
		1(m)	Added	36-320(c)(2)b.
			Rltd	b.—m.
			as	c.—n.
		1(n)		36-69(b)(5)
		1(o)		36-298(2)
		1(p)	Added	(9)
		1(q)	Added	36-551(a)(4)
		1(r), 1(s)		36-557(b), (d)
		1(t)		36-342.1(f)(1)
		1(u)		(d)(1)
		1(v)		(e)
		1(w)		(c)(2)
		1(x)	Added	36-543(9)
19,439	11-29-05	1		6-8(c)(1)
19,444	12- 6-05	1	Added	12-7—12-13
		2	Added	12-53
19,460	12-10-05	1		5-56
		2, 3		5-68(2), (4)
		4		5-71(a)
19,484	2- 7-06	1	Added	2-243(a)(2)u.
19,497	3- 7-06	1—4	Added	29-43—29-46
19,509	3-21-06	1—10	Added	20-50—20-59
		11		36-54(a)
		12	Added	20-60
		13	Added	36-110
		14—16	Added	20-61—20-63
19,638	11-21-06	1	Added	8-2(a)(4)
19,639	11-21-06	1		8-474
19,640	11-21-06	1	Added	8-2(a)(3)
19,641	11-21-06	1		8-28(a)(1), (b)
		2		12-28(a)(2)
19,642	11-21-06	1		8-28(a)(2)
		2		12-28(a)(1), (b), (c)

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19,653	12- 5-06	1	Added	8-2(a)(3)
19,654	12- 5-06	1	Added	3-15(f)
		2		3-20(a)
		3	Added	(h)
19,655	12-15-06	1		17-37
		2		17-38
		3		17-39
		4	Added	17-40
		5		17-41
		6		17-42
		7		17-43
		8		17-44
		9		17-45
		10		17-46
		11		17-47
		12		17-48
		13		17-49
		14		17-50
		15		17-51
19,658	12-19-06	1		32-303
		2	Added	32-410
19,713	3- 6-07	1(a)	Dltd	36-300(c)(2)k.
			Rltd	l., m.
			as	k., l.
		1(b)	Added	(c)(1)ggg.
			Rltd	ggg.—ssss.
			as	hhh.—tttt.
		1(c)	Added	(c)(1)f.
			Rltd	f.—tttt.
			as	g.—uuuu.
		1(d)		36-69(c)
		1(e)	Added	36-516(f)(7)
		1(f)	Added	36-259(b)(1)e., f.
		1(g)		31-13(c)
		1(h)		36-372
		1(i)	Added	36-342.1(c)(10)c.
		1(j)		31-12
19,754	5-15-07	1	Rpld	36-385—36-410
		2	Added	36-385—36-389
		3	Rsvd	36-391—36-410
19,755	5-15-07	1	Rpld	26-76—26-95
		2	Added	23-76—23-81
		3	Rsvd	23-82—23-95
		5	Rpld	23-100
		6	Added	23-100
		7	Rsvd	23-101—13-114
		8	Rpld	23-115—23-123
		9	Added	23-115—23-123
		10	Rsvd	23-124—12-128
		11		23-129
		12	Rsvd	23-130—23-160
19,758	6- 5-07	1		6-6(b)
19,782	7-17-07	1	Added	36-434.10—36-434.16
19,784	7-17-07	1		32-322(1)(a), (b)
				(5)—(10)
			Added	(11)
19,811	8-28-07	1		32-322(9)

Ordinance Number	Date	Section		Section this Code
		1(c)		36-346(f)
		1(d)		31-232(b)
		1(e)		36-342.1(c)(8)
		1(f)		36-342.1(c)(11)
		1(g)		36-342.1(e)
		1(h)	Dltd	36-553(a)(2)c.
				36-554(a)(2)d.
				36-555(a)(2)d.
		1(i)	Added	36-557(e)
		1(j)		36-342.1(c)(9)a.
		1(k)	Rltd	36-302(c)(2)(h)-(l)
			as	(i)—(m)
			Added	(h)
		1(l)		36-342.1(b)
		1(m)		31-89
		1(n)		36-130(b)(1)
		1(o)	Added	36-298(8)
		1(p)		31-94(e)
		1(q)		36-511(a)
		1(r)	Added	36-557(f)
		1(s)		36-252(3)
		1(t)		36-53(catchline)
18,904	7-15-03	1		20-2
		2		20-3
18,906	8- 4-03	1		17-214(2)
18,924	8-19-03	1		22-39(d)
18,928	9- 2-03	1		6-13
18,937	9-16-03	1		6-43
18,939	9-16-03	1		36-3
		2		36-104(a)
		3	Added	36-107(15)
18,952	10- 7-03	1, 2		17-178(a)
18,959	10- 7-03	1	Rpld	6-12, 6-21
				6-42-6-46.1
				6-48
		2		6-1
		3	Added	6-8
		4	Rnbd	6-13—6-48
			as	6-41—6-48
			Rnbd	6-51, 6-52
			as	6-49, 6-50
		5	Added	6-14—6-25
		6	Added	6-26—6-40
18,961	10-21-03	1	Rpld	36-350—36-367
		2	Added	36-35—-36-367
18,975	10-21-03	1		30-5(i)
18,976	11- 4-03	1	Added	17-52(158.1), (198.1)
		2		17-45(5)
18,992	11-25-03	1—3		17-96—17-98
		5	Added	17-100(d)
19,003	12- 2-03	1	Added	23-4
19,004	12- 2-03	1A—1L	Added	36-385—36-396
19,034	1- 6-04	1A—1K	Added	36-411—36-421
19,041	1-20-04	1		36-344
19,051	1-20-04	1		34-1—34-115
19,052	2- 3-04	1		36-2
		2		36-252

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19,065	3-16-04	1(a)		36-54(e)(3)a.
		1(b).	Added	36-54(e)(3)f.—m.
		1(c)	Added	36-54(e)(2)f.
		1(d)	Added	36-54(g)
19,087	4-20-04	1		28-28(a)
19,110	5-18-04	1	Added	2-243(a)(2)s.
19,114	5- 4-04	1		20-2(c)(3)
19,115	5-18-04	1		18-113
19,116	5-18-04	1—8	Added	2-350—2-357
19,122	6- 1-04	1		17-5(b)
19,126	6-15-04	1		36-203(g)
19,155	8- 2-04	1		8-2(1)
		2	Added	8-474(c)—(e)
19,180	9-21-04	1	Added	2-243(a)(2)t.
19,183	9-21-04	1A—1I	Added	36-434.1—36-434.9
19,211	10- 5-04	2	Added	2-328
19,214	10-18-04	1		32-301
		2		32-309
19,230	11- 1-04	1		18-3(b)(3)
19,236	11-23-04	3	Rpld	35-26, 35-27
19,239	11-23-04	1	Added	17-51(c)
		2		17-52
19,251	12-21-04	1		8-474(a)
19,266	1-18-05	1		36-556(b)
19,299	4- 5-05	1		7-27
		10		7-52
19,331	6- 7-05	1—15	Rpld	3-11—3-23
			Added	3-11—3-25
19,332	6-21-05	1		8-28(a)
19,333	6-21-05	1		8-172
19,353	7-19-05	1		29-1
		2	Rpld	29-166—29-195
			Added	29-166—29-196
19,368	8- 1-05	1	Added	35-101
19,391	9- 6-05	1		17-52(25)
		2, 3		(54), (118)
		4, 5		(133), (147)
		6		(187)
		7	Rpld	(188)
		8		(191)
		9	Added	(25.5), (86.1)
				(160)
		10		17-50
19,411	9-20-05	1	Added	34-43(b)(5)
19,419	9-20-05	1		2-111
19,445	12- 5-05	1(a)	Rpld	2-251(b)(3)
		1(b)	Rpld	(b)(4)
		1(c)	Rpld	(c)(4)
19,458	12-13-05	1, 2		8-31(c), (d)
19,460	12-20-05	1		5-56
		2, 3		5-68(2), (4)
		4		5-71(a)
19,266	1-18-05	1		36-556(b)
19,395	9- 6-05	1(a)		36-2
		1(b)		36-104(a)
		1(c)		36-107(15)
		1(d)—1(f)		36-3

Ordinance Number	Date	Section		Section this Code
		1(g)	Added	36-253(b)(5)d.—h.
		1(h)	Added	36-54(e)(4)
		1(i)	Added	(h)
19,438	11-15-05	1(a)		36-461(5)
		1(b)		36-67(a)
		1(c)		36-54(d)
		1(d)		36-4(d)
		1(e)		36-454(d)
		1(f)		31-94(c)
		1(g)		36-105
		1(h)	Dltd	36-300(c)(2)c.
			Rltd	d.—n.
			as	c.—m.
		1(i)	Dltd	36-301(c)(2)h.
			Rltd	i.—aa.
			as	h.—z.
		1(j)		36-319(c)(1)e.
			Rltd	f.—ll.
			as	e.—kk.
		1(k)	Added	3-319(c)(2)c.
			Rltd	c.—j.
			as	d.—k.
		1(l)	Dltd	36-320(c)(1)r.
			Rltd	s.—sss.
			as	r.—rrr.
		1(m)	Added	36-320(c)(2)b.
			Rltd	b.—m.
			as	c.—n.
		1(n)		36-69(b)(5)
		1(o)		36-298(2)
		1(p)	Added	(9)
		1(q)	Added	36-551(a)(4)
		1(r), 1(s)		36-557(b), (d)
		1(t)		36-342.1(f)(1)
		1(u)		(d)(1)
		1(v)		(e)
		1(w)		(c)(2)
		1(x)	Added	36-543(9)
19,439	11-29-05	1		6-8(c)(1)
19,444	12- 6-05	1	Added	12-7—12-13
		2	Added	12-53
19,460	12-10-05	1		5-56
		2, 3		5-68(2), (4)
		4		5-71(a)
19,484	2- 7-06	1	Added	2-243(a)(2)u.
19,497	3- 7-06	1—4	Added	29-43—29-46
19,509	3-21-06	1—10	Added	20-50—20-59
		11		36-54(a)
		12	Added	20-60
		13	Added	36-110
		14—16	Added	20-61—20-63
19,638	11-21-06	1	Added	8-2(a)(4)
19,639	11-21-06	1		8-474
19,640	11-21-06	1	Added	8-2(a)(3)
19,641	11-21-06	1		8-28(a)(1), (b)
		2		12-28(a)(2)
19,642	11-21-06	1		8-28(a)(2)

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		2		12-28(a)(1), (b), (c)
19,653	12- 5-06	1	Added	8-2(a)(3)
19,654	12- 5-06	1	Added	3-15(f)
		2		3-20(a)
		3	Added	(h)
19,655	12-15-06	1		17-37
		2		17-38
		3		17-39
		4	Added	17-40
		5		17-41
		6		17-42
		7		17-43
		8		17-44
		9		17-45
		10		17-46
		11		17-47
		12		17-48
		13		17-49
		14		17-50
		15		17-51
19,658	12-19-06	1		32-303
		2	Added	32-410
19,713	3- 6-07	1(a)	Dltd	36-300(c)(2)k.
			Rltd	l., m.
			as	k., l.
		1(b)	Added	(c)(1)ggg.
			Rltd	ggg.—ssss.
			as	hhh.—tttt.
		1(c)	Added	(c)(1)f.
			Rltd	f.—tttt.
			as	g.—uuuu.
		1(d)		36-69(c)
		1(e)	Added	36-516(f)(7)
		1(f)	Added	36-259(b)(1)e., f.
		1(g)		31-13(c)
		1(h)		36-372
		1(i)	Added	36-342.1(c)(10)c.
		1(j)		31-12
19,754	5-15-07	1	Rpld	36-385—36-410
		2	Added	36-385—36-389
		3	Rsvd	36-391—36-410
19,755	5-15-07	1	Rpld	26-76—26-95
		2	Added	23-76—23-81
		3	Rsvd	23-82—23-95
		5	Rpld	23-100
		6	Added	23-100
		7	Rsvd	23-101—13-114
		8	Rpld	23-115—23-123
		9	Added	23-115—23-123
		10	Rsvd	23-124—12-128
		11		23-129
		12	Rsvd	23-130—23-160
19,758	6- 5-07	1		6-6(b)
19,761	6-12-07	1—5	Added	2-110
19,782	7-17-07	1	Added	36-434.10—36-434.16

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19,784	7-17-07	1		32-322(1)(a), (b)(5)—(10)
			Added	(11)
19,811	8-28-07	1		32-322(9)

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19,813	9-18-07	1		32-322(9)
			Dltd	(3)
19,839	10-16-07	1		17-43(a), (b)(1)
		2		17-47(d)(2)
			Added	(3)
		3, 4		17-52(73), (77)
19,857	11-13-07	1		2-116
19,858	11-13-07	1	Added	2-263
19,886	12- 4-07	1	Added	3-22(g)(6)
19,895	12-21-07	1—15		35-161—35-183
			Added	35-184—35-390
19,899	12-21-07	1		32-301
19,902	1- 8-08	2		2-330.12
		2		2-330.13
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19,910	1-15-08	1(a)		31-36(3)
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		1(g)	Added	36-261(e)(8)
		1(h)	Added	36-278(4)
		1(i)	Added	36-318(4)
		1(j)		36-322(b)(4)
		1(k)		36-342.1(c)(11)
		1(l)		36-550(6)
19,911	1-15-08	1—13	Added	2-330.30—2-330.42
19,917	2- 5-08	1	Added	2-243(a)(2)z.
19,919	2- 5-08	1		9-97
19,921	2-19-08	1		32-301—32-323
		2		32-341—32-347
			Added	32-348
		3		32-371—32-378
			Added	32-379
		4		32-401—32-410
			Added	32-411
19,924	2-19-08	1	Added	12-14
19,925	2-19-08	1, 2	Added	6-20
19953	4-15-08	1	Added	2-117
19954	4-15-08	1	Rpld	5-76(c)
			Rltd	(d), (e)
			as	(c), (d)
19,966	5- 6-08	1		34-43(b)(5)c.
19983	6-17-08	1		34-43(b)(5)c.
19,997	7-15-08	1		8-474
19,998	7-15-08	1		8-172(a)
19,999	7-15-08	1		8-474(a)
20,000	7-15-08	1	Added	8-102—8-104
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				(i)(3),
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			Added	(p)

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20,001	7-15-08	1		8-471—8-474
		2		80475—8-481
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20,044	11- 3-08	1—19		34-4
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		21, 22		34-19(f), (g)
		23		34-20(a)(1)
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		26	Dltd	34-38(a)(2)
		27		(b)(5)
		28	Added	(b)(6)
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		41		34-102
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		49	Added	34-116—34-141
20,026	9-16-08	1—6	Added	2-330.50—2-330.55
20,079	3- 3-09	1		15-27(a)
20,093	3-31-09	1	Added	20-71—20-79
20,095	4- 7-09	1	Added	2-243(a)(2)v.
20,098	4-21-09	1—3		6-1
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20,102	5- 5-09	1		36-203(g)
20,106	5- 5-09	1	Added	28-20a.
20,120	6-16-09	1		6-26
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20,121	6-16-09	1		6-14
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20,122	6-16-09	1		17-58
20,128	7- 7-09	1a., 1b.	Added	30-285
20,130	7- 7-09	1		1-9(c)
20,131	7- 7-09	1, 2	Added	18-6
20,144	8-18-09	1a., 1b.	Added	30-286
20,148	8-18-09	1	Added	2-243(a)(2)w.
20,180	10-20-09	1	Added	36-434.25—36-434.24
20,181	10-20-09	1		15-1—15-105
20,195	12- 1-09	1		20-28(a)(5)
20,198	12-15-09	1		8-2(a)(3)
			Added	(b)
20,221	2-16-10	1—3		7-127(2)c.
20,223	3- 2-10	1, 2		36-434.10—36-434.16
20,231	3- 2-10	1		36-513
20,232	3-16-10	1—4	Added	18-7
20,241	4- 6-10	1	Added	2-243(2)x., y.
20,245	4- 6-10	1, 2		2-330.41(a)—(e)
		3, 4	Added	(f), (g)
			Rnbd	(f)—(j)
			as	(h)—(l)
20,253	4-20-10	1		8-31(c)I.E.
20,254	4-20-10	1		20-72
		2		20-79
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20,255	4-20-10	1		36-3
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20,263	5- 4-10	1	Added	17-41(c)
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			Rpld	(41)
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		9	Added	17-52(74.2)
		10		17-52(82.1)
			Rpld	(82.2)
		11		17-52(129.1)
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20,279	6- 1-10	1		4-48(a), (b)

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20,281	6- 1-10	1		36-3
20,288	7- 6-10	1		36-152
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20,310	9- 7-10	1		36-351(b)
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20,311	9- 7-10	1		35-152
20,313	9- 7-10	1		20-3(c)
			Added	(d)
20,324	9-21-10	1, 2		8-583(d), (e)
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		1(j)	Added	36-338(f)(5)
		1(k)		36-389(f)(2)
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20,332	9-21-10	1	Added	4-51
20,345	10-19-10	1		8-2(1)
		2	Added	8-474(c)—(e)
20,347	10-19-10	1		17-52(155)
20,395	1-18-11	1		15-27(a)
20,396	2- 1-11	1(e)		36-342.1(d)
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		1(j)	Added	36-107(16)
20,407	2-15-11	1(a)		36-300(c)(1)

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		1(h)		36-301(c)(2)
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		1(k)	Added	36-107(17)
20,412	3- 1-11	1		35-103(a), (b)
			Added	(c)—(e)
20,414	3- 1-11	1		23-97(a)
20,423	4-19-11	1		23-116
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20,433	5-17-11	1a., 1b.	Added	30-287
20,458	8-16-11	1		8-31I.S.
		2	Added	I.U.
20,482	10- 3-11	1	Added	18-8
20,490	10-18-11	1		22-87
20,500	11- 1-11	1	Added	31-431(b)(2)d.
20,508	12- 6-11	1		9-5
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20,509	12- 6-11	1		28-1(d)(3)
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20,514	12-13-11	1		9-71—9-101
20,523	12-20-11	1	Added	17-202(c)
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20,533	2- 7-12	1		15-37(h)
		2		15-96(b)
20,534	2- 7-12	1		31-2
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20,540	2- 7-12	1, 2		20-1
20,541	2- 7-12	1		28-25(b)
20,562	3-27-12	1		28-1(c)(4)
		2		28-8(d)
		3	Added	28-18(g)
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20,568	4- 3-12	1, 2		36-3
		3	Dltd	36-259(b)(1)d.
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		5	Dltd	36-280(c)(1)g, m.
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		7	Dltd	36-281(b)(1)f, k, m, p, y.
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		12		36-300(c)(2)
		13	Dltd	36-301(c)(1)w, gg.
		14		36-301(c)(2)
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20,569	4-17-12	1		8-172
20,570	4-17-12	1		8-2(3)
20,580	5- 1-12	1	Added	20-2(a)(2)d.
20,581	5- 1-12	1	Added	2-243(a)(2)aa.
20,588	6- 5-12	1		29-187(e), (f)
			Added	29-197
20,616	8- 7-12	1	Added	2-243(a)(2)bb.
20,617	8- 7-12	1	Added	36-451(e)
20,620	8-21-12	1		2-330.37
20,638	10- 1-12	1		23-2
20,650	10-16-12	1	Added	2-53
20,653	11- 5-12	1		2-53
20,662	12- 4-12	1	Added	2-243(a)(2)cc.
20,670	12-18-12	1		28-28(a)
20,708	4- 2-13	1		2-330(c)
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20,726	5-21-13	1	Added	32-411
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20,730	5-21-13	1, 2		2-116(2)
20,738	6-18-13	1		34-38(e)(4)c.1—6. 34-38(e)(4)d.1, 2.
		2		34-38(b)(5)
		3	Added	34-38(b)(7)
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20,754	8- 6-13	1		23-2
20,787	9-17-13	1		8-2
20,814	11- 5-13	1		34-4
20,839	2-11-14	1(a)		31-13(f)
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20,854	3- 4-14	1—13	Added	28-56—28-66
20,863	4- 1-14	1		2-49(a)
20,867	5- 6-14	1	Added	36-424.35—36-434.42
20,873	5- 6-14	1		9-97
20,880	6- 3-14	1—4		34-4
20,881	6- 3-14	1—3		8-572—8-574
		4		8-577
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		9, 10		8-583(h), (i)
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20,882	6- 3-14	1		Ch. 20, Art. II title
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20,894	6-17-14	1		36-3
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		3	Added	36-300(c)(1)uuu.
		4	Added	36-301(c)(1)hhhh.
		5	Added	36-302(c)(1)ccc.
		6	Added	36-279(b)(1)t.
		7	Added	36-280(c)(1)ee.
		8	Added	36-281(b)(1)ee.
		9	Added	36-319(c)(1)ll
		10	Added	36-320(c)(1)sss.
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20,899	7- 1-14	1		36-203(g)
20,902	7- 1-14	1		2-242(a)
20,920	8-19-14	1		36-3
20,940	10- 6-14	1	Added	4-141, 4-142
20,942	10-21-14	1, 2		36-434.16
20,956	11-18-14	1	Added	34-2(d)
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		5, 6	Added	34-48, 34-49
20,957	11-18-14	1		6-41(5)
		2		6-43
20,958	11-25-14	1		34-20(a)(1)
20,971	12-16-14	1, 2		8-2, 8-3
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20,972	12-16-14	1		8-31(c)
20,978	12-16-14	1		34-42
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20,990	1-20-15	1—5	Added	36-651—36-655

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21,006	3- 3-15	1		32-546
21,010	3- 3-15	1	Added	2-52
21,013	3-17-15	1		2-243(a)(2)w
21,017	4- 7-15	1(a)		36-523(d)
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		1(c)		36-2
		1(d)		36-353(c)(2)
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		1(f)		36-356(d)(1)
		1(g)		36-358(a)(3)
		1(h)		36-362(a)(2)
		1(i)		36-365(a)
21,020	4- 7-15	1		3-13
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		3	Dltd	3-19(c)
		4	Added	3-20(i)
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		6		3-22(f)(1)
		7	Dltd	3-25
21,028	4-21-15	1		2-242(a)
21,031	4-21-15	1—3	Added	2-2
21,040	5-19-15	1	Added	35-103(f)
21,053	6- 2-15	1		2-242(a)
21,069	7-14-15	1	Rpld	13-51—13-63
			Added	13-51—13-60
21,071	7-14-15	1—6	Added	17-131
21,079	8- 4-15	1		36-508
		2		36-510
		3		36-521(c)(1)
21,099	9-15-15	1		2-191
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21,168	2- 2-16	1(a)		36-3
		1(b)	Added	36-545(m)
		1(c)	Added	36-512(b)(9)
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		1(h)		36-434.9
		1(i)		36-434.34
		1(j)		36-3
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		1(l)		36-299(c)(2)
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		1(o), (1)(p)		36-301(c)(1), (2)
		1(q), (1)(r)		36-302(c)(1), (2)
		1(s)		36-320(c)(1)
		1(t)		36-434.2
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		1(v)		36-434.6(1), (2)
		1(w)		36-434.7(b)
		1(x)	Added	36-253(b)(6)e
21,211	4- 5-16	1	Added	36-556(b)(6), (7)
21,238	5-17-16	2—4	Added	36-434.43—36-434.45
21,243	5-17-16	1	Added	30-288

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21,245	5-17-16	1		17-131
21,246	6- 7-16	1		8-471(b)(4)
		2		8-536(b)(4)
21,251	6- 7-16	1	Added	5-58(c)
21,267	7-19-16	1		8-2(10)
21,293	9- 6-16	1		3-14
		2	Added	3-15(g)
		3		3-16(a)(1)
		4	Added	3-17(a)(12)
		5		3-20(c)
		6		3-22(b), (c)(1), (d)
21,296	9- 6-16	1		2-242(a)(1)
21,297	9- 6-16	1		17-43
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21,336	12- 6-16	1, 2		34-4
21,378	3-21-17	1	Added	36-513(h)
21,396	5- 2-17	1		8-32
21,397	5- 2-17	1		8-2(a)(8)
21,412	6- 6-17	1	Added	30-289
21,422	6- 6-17	1		5-58(c)
21,424	6- 6-17	1	Added	2-243(a)(2)dd.
21,442	7- 5-17	1, 2		2-243(a)(2)dd.
21,469	8-15-17	(a)		36-3
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		(c)		36-281(b)(2)
		(d)		36-299(c)(1)
		(e)		36-300(c)(1)
		(f)		36-301(c)(1)
		(g)		36-302(c)(2)
		(h)		36-319(c)(2)
		(i)		36-320(c)(1)
21,495	10-17-17	1—3	Added	6-5(c)—(e)
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*__Note—__The adoption, amendment, repeal, omissions, effective date, explanation of numbering system and other matters pertaining to the use, construction and interpretation of this Code are contained in the adopting ordinance and preface which are to be found in the preliminary pages of this volume.

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